

code of federal regulations

Protection of Environment

40

PARTS 150 to 189

Revised as of July 1, 1996

CONTAINING
A CODIFICATION OF DOCUMENTS
OF GENERAL APPLICABILITY
AND FUTURE EFFECT

AS OF JULY 1, 1996

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Cite this Code: CFR

*To cite the regulations in
this volume use title,
part and section num-
ber. Thus, 40 CFR 152.1
refers to title 40, part
152, section 1.*

Explanation

The Code of Federal Regulations is a codification of the general and permanent rules published in the Federal Register by the Executive departments and agencies of the Federal Government. The Code is divided into 50 titles which represent broad areas subject to Federal regulation. Each title is divided into chapters which usually bear the name of the issuing agency. Each chapter is further subdivided into parts covering specific regulatory areas.

Each volume of the Code is revised at least once each calendar year and issued on a quarterly basis approximately as follows:

Title 1 through Title 16.....	as of January 1
Title 17 through Title 27.....	as of April 1
Title 28 through Title 41.....	as of July 1
Title 42 through Title 50.....	as of October 1

The appropriate revision date is printed on the cover of each volume.

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The contents of the Federal Register are required to be judicially noticed (44 U.S.C. 1507). The Code of Federal Regulations is prima facie evidence of the text of the original documents (44 U.S.C. 1510).

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The Paperwork Reduction Act of 1980 (Pub. L. 96-511) requires Federal agencies to display an OMB control number with their information collection request.

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- (b) The matter incorporated is in fact available to the extent necessary to afford fairness and uniformity in the administrative process.
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RICHARD L. CLAYPOOLE,
Director,
Office of the Federal Register.

July 1, 1996.

THIS TITLE

Title 40—PROTECTION OF ENVIRONMENT is composed of eighteen volumes. The parts in these volumes are arranged in the following order: parts 1–51, part 52, parts 53–59, part 60, parts 61–71, parts 72–80, parts 81–85, part 86, parts 87–135, parts 136–149, parts 150–189, parts 190–259, parts 260–299, parts 300–399, parts 400–424, parts 425–699, parts 700–789 and part 790 to end. The contents of these volumes represent all current regulations codified under this title of the CFR as of July 1, 1996.

Chapter I—Environmental Protection Agency appears in all eighteen volumes. A Pesticide Tolerance Commodity/Chemical Index appears in parts 150–189. A Toxic Substances Chemical—CAS Number Index appears in parts 700–789 and part 790 to end. Redesignation Tables appear in the volumes containing parts 1–51, parts 150–189, and parts 700–789. Regulations issued by the Council on Environmental Quality appear in the volume containing part 790 to end.

The OMB control numbers for title 40 appear in §9.1 of this chapter. For the convenience of the user, §9.1 appears in the Finding Aids section of the volumes containing parts 52 to the end.

For this volume, Cheryl E. Sirofchuck was Chief Editor. The Code of Federal Regulations publication program is under the direction of Frances D. McDonald, assisted by Alomha S. Morris.

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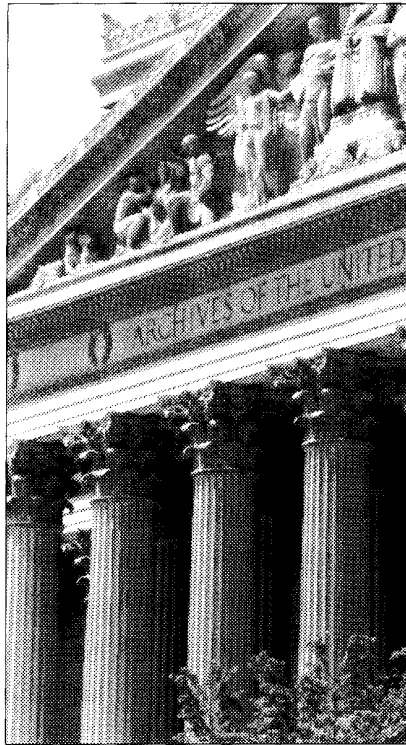
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Title 40—Protection of Environment

(This book contains parts 150 to 189)

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AUTHORITY: 7 U.S.C. 136–136y; Subpart U is also issued under 31 U.S.C. 9701.

Subpart A—General Provisions

SOURCE: 53 FR 15975, May 4, 1988, unless otherwise noted.

§ 152.1 Scope.

Part 152 sets forth procedures, requirements and criteria concerning the registration and reregistration of pesticide products under FIFRA sec. 3, and for associated regulatory activities affecting registration. These latter regulatory activities include data compensation and exclusive use (subpart E), and the classification of pesticide uses (subpart I).

[53 FR 15975, May 4, 1988, as amended at 60 FR 32096, June 19, 1995]

§ 152.3 Definitions.

Terms used in this part have the same meaning as in the Act. In addition, the following terms have the meanings set forth in this section.

(a) *Act* or *FIFRA* means the Federal Insecticide, Fungicide, and Rodenticide Act, as amended (7 U.S.C. 136–136y).

(b) *Active ingredient* means any substance (or group of structurally similar substances if specified by the Agency) that will prevent, destroy, repel or mitigate any pest, or that functions as a plant regulator, desiccant, or defo-

liant within the meaning of FIFRA sec. 2(a).

(c) *Acute dermal LD₅₀* means a statistically derived estimate of the single dermal dose of a substance that would cause 50 percent mortality to the test population under specified conditions.

(d) *Acute inhalation LC₅₀* means a statistically derived estimate of the concentration of a substance that would cause 50 percent mortality to the test population under specified conditions.

(e) *Acute oral LD₅₀* means a statistically derived estimate of the single oral dose of a substance that would cause 50 percent mortality to the test population under specified conditions.

(f) *Administrator* means the Administrator of the United States Environmental Protection Agency or his delegate.

(g) *Agency* means the United States Environmental Protection Agency (EPA), unless otherwise specified.

(h) *Applicant* means a person who applies for a registration, amended registration, or reregistration, under FIFRA sec. 3.

(i) *Biological control agent* means any living organism applied to or introduced into the environment that is intended to function as a pesticide against another organism declared to be a pest by the Administrator.

(j) *Distribute or sell* and other grammatical variations of the term such as “distributed or sold” and “distribution or sale,” means the acts of distributing, selling, offering for sale, holding for sale, shipping, holding for shipment, delivering for shipment, or receiving and (having so received) delivering or offering to deliver, or releasing for shipment to any person in any State.

(k) *End use product* means a pesticide product whose labeling

(1) Includes directions for use of the product (as distributed or sold, or after combination by the user with other substances) for controlling pests or defoliating, desiccating, or regulating the growth of plants, and

(2) Does not state that the product may be used to manufacture or formulate other pesticide products.

(l) *Final printed labeling* means the label or labeling of the product when

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distributed or sold. Final printed labeling does not include the package of the product, unless the labeling is an integral part of the package.

(m) *Inert ingredient* means any substance (or group of structurally similar substances if designated by the Agency), other than an active ingredient, which is intentionally included in a pesticide product.

(n) *Institutional use* means any application of a pesticide in or around any property or facility that functions to provide a service to the general public or to public or private organizations, including but not limited to:

- (1) Hospitals and nursing homes.
- (2) Schools other than preschools and day care facilities.
- (3) Museums and libraries.
- (4) Sports facilities.
- (5) Office buildings.

(o) *Manufacturing use product* means any pesticide product that is not an end-use product.

(p) *New use*, when used with respect to a product containing a particular active ingredient, means:

(1) Any proposed use pattern that would require the establishment of, the increase in, or the exemption from the requirement of, a tolerance or food additive regulation under section 408 or 409 of the Federal Food, Drug and Cosmetic Act;

(2) Any aquatic, terrestrial, outdoor, or forestry use pattern, if no product containing the active ingredient is currently registered for that use pattern; or

(3) Any additional use pattern that would result in a significant increase in the level of exposure, or a change in the route of exposure, to the active ingredient of man or other organisms.

(q) *Operated by the same producer*, when used with respect to two establishments, means that each such establishment is either owned by, or leased for operation by and under the control of, the same person. The term does not include establishments owned or operated by different persons, regardless of contractual agreement between such persons.

(r) *Package or packaging* means the immediate container or wrapping, including any attached closure(s), in which the pesticide is contained for

distribution, sale, consumption, use, or storage. The term does not include any shipping or bulk container used for transporting or delivering the pesticide unless it is the only such package.

(s) *Pesticide* means any substance or mixture of substances intended for preventing, destroying, repelling, or mitigating any pest, or intended for use as a plant regulator, defoliant, or desiccant, other than any article that:

(1) Is a new animal drug under FFDCA sec. 201(w), or

(2) Is an animal drug that has been determined by regulation of the Secretary of Health and Human Services not to be a new animal drug, or

(3) Is an animal feed under FFDCA sec. 201(x) that bears or contains any substances described by paragraph (s) (1) or (2) of this section.

(t) *Pesticide product* means a pesticide in the particular form (including composition, packaging, and labeling) in which the pesticide is, or is intended to be, distributed or sold. The term includes any physical apparatus used to deliver or apply the pesticide if distributed or sold with the pesticide.

(u) *Residential use* means use of a pesticide directly:

- (1) On humans or pets,
- (2) In, on, or around any structure, vehicle, article, surface, or area associated with the household, including but not limited to areas such as non-agricultural outbuildings, non-commercial greenhouses, pleasure boats and recreational vehicles, or
- (3) In any preschool or day care facility.

§ 152.5 Pests.

An organism is declared to be a pest under circumstances that make it deleterious to man or the environment, if it is:

(a) Any vertebrate animal other than man;

(b) Any invertebrate animal, including but not limited to, any insect, other arthropod, nematode, or mollusk such as a slug and snail, but excluding any internal parasite of living man or other living animals;

(c) Any plant growing where not wanted, including any moss, alga, liverwort, or other plant of any higher

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order, and any plant part such as a root; or

(d) Any fungus, bacterium, virus, or other microorganisms, except for those on or in living man or other living animals and those on or in processed food or processed animal feed, beverages, drugs (as defined in FFDCA sec. 201(g)(1)) and cosmetics (as defined in FFDCA sec. 201(i)).

§ 152.8 Products that are not pesticides because they are not for use against pests.

A substance or article is not a pesticide, because it is not intended for use against “pests” as defined in § 152.5, if it is:

(a) A product intended for use only for the control of fungi, bacteria, viruses, or other microorganisms in or on living man or animals, and labeled accordingly.

(b) A product intended for use only for control of internal invertebrate parasites or nematodes in living man or animals, and labeled accordingly.

(c) A product of any of the following types, intended only to aid the growth of desirable plants:

(1) A fertilizer product not containing a pesticide.

(2) A plant nutrient product, consisting of one or more macronutrients or micronutrient trace elements necessary to normal growth of plants and in a form readily usable by plants.

(3) A plant inoculant product consisting of microorganisms applied to the plant or soil for the purpose of enhancing the availability or uptake of plant nutrients through the root system.

(4) A soil amendment product containing a substance or substances added to the soil for the purpose of improving soil characteristics favorable for plant growth.

(d) A product intended to force bees from hives for the collection of honey crops.

§ 152.10 Products that are not pesticides because they are not deemed to be used for a pesticidal effect.

A product that is not intended to prevent, destroy, repel, or mitigate a pest, or to defoliate, desiccate or regulate the growth of plants, is not considered to be a pesticide. The following types of products or articles are not consid-

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ered to be pesticides unless a pesticidal claim is made on their labeling or in connection with their sale and distribution:

(a) Deodorizers, bleaches, and cleaning agents;

(b) Products not containing toxicants, intended only to attract pests for survey or detection purposes, and labeled accordingly;

(c) Products that are intended to exclude pests only by providing a physical barrier against pest access, and which contain no toxicants, such as certain pruning paints to trees.

§ 152.15 Pesticide products required to be registered.

No person may distribute or sell any pesticide product that is not registered under the Act, except as provided in §§ 152.20, 152.25, and 152.30. A pesticide is any substance (or mixture of substances) intended for a pesticidal purpose, i.e., use for the purpose of preventing, destroying, repelling, or mitigating any pest or use as a plant regulator, defoliant, or desiccant. A substance is considered to be intended for a pesticidal purpose, and thus to be a pesticide requiring registration, if:

(a) The person who distributes or sells the substance claims, states, or implies (by labeling or otherwise):

(1) That the substance (either by itself or in combination with any other substance) can or should be used as a pesticide; or

(2) That the substance consists of or contains an active ingredient and that it can be used to manufacture a pesticide; or

(b) The substance consists of or contains one or more active ingredients and has no significant commercially valuable use as distributed or sold other than (1) use for pesticidal purpose (by itself or in combination with any other substance), (2) use for manufacture of a pesticide; or

(c) The person who distributes or sells the substance has actual or constructive knowledge that the substance will be used, or is intended to be used, for a pesticidal purpose.

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Subpart B—Exemptions

SOURCE: 53 FR 15977, May 4, 1988, unless otherwise noted.

§ 152.20 Exemptions for pesticides regulated by another Federal agency.

The pesticides or classes of pesticide listed in this section are exempt from all requirements of FIFRA. The Agency has determined, in accordance with FIFRA sec. 25(b)(1), that they are adequately regulated by another Federal agency.

(a) *Certain biological control agents.* (1) Except as provided by paragraph (a)(3) of this section, all biological control agents are exempt from FIFRA requirements.

(2) If the Agency determines that an individual biological control agent or class of biological control agents is no longer adequately regulated by another Federal agency, and that it should not otherwise be exempted from the requirements of FIFRA, the Agency will revoke this exemption by amending paragraph (a)(3) of this section.

(3) The following biological control agents are not exempt from FIFRA requirements:

- (i) Eucaryotic microorganisms, including protozoa, algae and fungi;
- (ii) Procaryotic microorganisms, including bacteria; and
- (iii) Viruses.

(b) *Certain human drugs.* A pesticide product that is offered solely for human use and also is a new drug within the meaning of FFDCA sec. 201(p) or is an article that has been determined by the Secretary of Health and Human Services not to be a new drug by a regulation establishing conditions of use for the article, is exempt from the requirements of FIFRA. Such products are subject to regulation in accordance with the Federal Food, Drug, and Cosmetic Act and implementing regulations.

§ 152.25 Exemptions for pesticides of a character not requiring FIFRA regulation.

The pesticides or classes of pesticides listed in this section have been determined to be of a character not requiring regulation under FIFRA, and are therefore exempt from all provisions of

FIFRA when intended for use, and used, only in the manner specified.

(a) *Treated articles or substances.* An article or substance treated with, or containing, a pesticide to protect the article or substance itself (for example, paint treated with a pesticide to protect the paint coating, or wood products treated to protect the wood against insect or fungus infestation), if the pesticide is registered for such use.

(b) *Pheromones and pheromone traps.* Pheromones and identical or substantially similar compounds labeled for use only in pheromone traps (or labeled for use in a manner which the Administrator determines poses no greater risk of adverse effects on the environment than use in pheromone traps), and pheromone traps in which those compounds are the sole active ingredient(s).

(1) For the purposes of this paragraph, a pheromone is a compound produced by an arthropod which, alone or in combination with other such compounds, modifies the behavior of other individuals of the same species.

(2) For the purposes of this paragraph, a synthetically produced compound is identical to a pheromone only when their molecular structures are identical, or when the only differences between the molecular structures are between the stereochemical isomer ratios of the two compounds, except that a synthetic compound found to have toxicological properties significantly different from a pheromone is not identical.

(3) When a compound possesses many characteristics of a pheromone but does not meet the criteria in paragraph (a)(2) of this section, it may, after review by the Agency, be deemed a substantially similar compound.

(4) For the purposes of this paragraph, a pheromone trap is a device containing a pheromone or an identical or substantially similar compound used for the sole purpose of attracting, and trapping or killing, target arthropods. Pheromone traps are intended to achieve pest control by removal of target organisms from their natural environment and do not result in increased levels of pheromones or identical or substantially similar compounds over a significant fraction of the treated area.

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(c) *Preservatives for biological specimens.* (1) Embalming fluids.

(2) Products used to preserve animal or animal organ specimens, in mortuaries, laboratories, hospitals, museums and institutions of learning.

(3) Products used to preserve the integrity of milk, urine, blood, or other body fluids for laboratory analysis.

(d) *Vitamin hormone products.* Vitamin hormone horticultural products consisting of mixtures of plant hormones, plant nutrients, inoculants, or soil amendments, which meet the following criteria:

(1) The product, in the undiluted package concentration at which it is distributed or sold, meets the criteria of § 156.10(h)(1) of this chapter for Toxicity Category III or IV; and

(2) The product is not intended for use on food crop sites, and is labeled accordingly.

(e) *Foods.* Products consisting of foods and containing no active ingredients, which are used to attract pests.

(f) *Natural cedar.* (1) Natural cedar blocks, chips, shavings, balls, chests, drawer liners, paneling, and needles that meet all of the following criteria:

(i) The product consists totally of cedarwood or natural cedar.

(ii) The product is not treated, combined, or impregnated with any additional substance(s).

(iii) The product bears claims or directions for use solely to repel arthropods other than ticks or to retard mildew, and no additional claims are made in sale or distribution. The labeling must be limited to specific arthropods, or must exclude ticks if any general term such as “arthropods,” “insects,” “bugs,” or any other broad inclusive term, is used. The exemption does not apply to natural cedar products claimed to repel ticks.

(2) The exemption does not apply to cedar oil, or formulated products which contain cedar oil, other cedar extracts, or ground cedar wood as part of a mixture.

(g) *Minimum risk pesticides*—(1) *Exempt products.* Products containing the following active ingredients are exempt from the requirements of FIFRA, alone or in combination with other substances listed in this paragraph,

provided that all of the criteria of this section are met.

Castor oil (U.S.P. or equivalent)
Cedar oil
Cinnamon and cinnamon oil
Citric acid
Citronella and citronella oil
Cloves and clove oil
Corn gluten meal
Corn oil
Cottonseed oil
Dried blood
Eugenol
Garlic and garlic oil
Geraniol
Geranium oil
Lauryl sulfate
Lemongrass oil
Linseed oil
Malic acid
Mint and mint oil
Peppermint and peppermint oil
2-Phenethyl propionate (2-phenylethyl propionate)
Potassium sorbate
Putrescent whole egg solids
Rosemary and rosemary oil
Sesame (includes ground sesame plant) and sesame oil
Sodium chloride (common salt)
Sodium lauryl sulfate
Soybean oil
Thyme and thyme oil
White pepper
Zinc metal strips (consisting solely of zinc metal and impurities)

(2) *Permitted inerts.* A pesticide product exempt under paragraph (g)(1) of this section may only include inert ingredients listed in the most current List 4A. This list is updated periodically and is published in the FEDERAL REGISTER. The most current list may be obtained by writing to Registration Support Branch (4A Inerts List) Registration Division (7505C), Office of Pesticide Programs, Environmental Protection Agency, 401 M St., SW., Washington DC 20460.

(3) *Other conditions of exemption.* All of the following conditions must be met for products to be exempted under this section:

(i) Each product containing the substance must bear a label identifying the name and percentage (by weight) of each active ingredient and the name of each inert ingredient.

(ii) The product must not bear claims either to control or mitigate microorganisms that pose a threat to human health, including but not limited to

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disease transmitting bacteria or viruses, or claims to control insects or rodents carrying specific diseases, including, but not limited to ticks that carry Lyme disease.

(iii) The product must not include any false and misleading labeling statements, including those listed in 40 CFR 156.10(a)(5)(i) through (viii).

[53 FR 15977, May 4, 1988, as amended at 59 FR 2751, Jan. 19, 1994; 61 FR 8878, Mar. 6, 1996]

§ 152.30 Pesticides that may be transferred, sold, or distributed without registration.

An unregistered pesticide, or a pesticide whose registration has been cancelled or suspended, may be distributed or sold, or otherwise transferred, to the extent described by this section.

(a) *A pesticide transferred between registered establishments operated by the same producer.* An unregistered pesticide may be transferred between registered establishments operated by the same producer. The pesticide as transferred must be labeled in accordance with part 156 of this chapter.

(b) *A pesticide transferred between registered establishments not operated by the same producer.* An unregistered pesticide may be transferred between registered establishments not operated by the same producer if:

(1) The transfer is solely for the purpose of further formulation, packaging, or labeling into a product that is registered;

(2) Each active ingredient in the pesticide, at the time of transfer, is present as a result of incorporation into the pesticide of either:

(i) A registered product; or

(ii) A pesticide that is produced by the registrant of the final product; and

(3) The product as transferred is labeled in accordance with part 156 of this chapter.

(c) *A pesticide distributed or sold under an experimental use permit.* (1) An unregistered pesticide may be distributed or sold in accordance with the terms of an experimental use permit issued under FIFRA sec. 5, if the product is labeled in accordance with § 172.6 of this chapter.

(2) An unregistered pesticide may be distributed or sold in accordance with

the provisions of § 172.3 of this chapter, pertaining to use of a pesticide for which an experimental use permit is not required, provided the product is labeled in accordance with part 156 of this chapter.

(d) *A pesticide transferred solely for export.* An unregistered pesticide may be transferred within the United States solely for export if it meets the following conditions:

(1) The product is prepared and packaged according to the specifications of the foreign purchaser; and

(2) The product is labeled in accordance with part 156 of this chapter.

(e) *A pesticide distributed or sold under an emergency exemption.* An unregistered pesticide may be distributed or sold in accordance with the terms of an emergency exemption under FIFRA sec. 18, if the product is labeled in accordance with part 156 of this chapter.

(f) *A pesticide transferred for purposes of disposal.* An unregistered, suspended, or cancelled pesticide may be transferred solely for disposal in accordance with FIFRA sec. 19 or an applicable Administrator's order. The product must be labeled in accordance with part 156 of this chapter.

(g) *Existing stocks of a formerly registered product.* A cancelled or suspended pesticide may be distributed or sold to the extent and in the manner specified in an order issued by the Administrator concerning existing stocks of the pesticide.

Subpart C—Registration Procedures

SOURCE: 53 FR 15978, May 4, 1988, unless otherwise noted.

§ 152.40 Who may apply.

Any person may apply for new registration of a pesticide product. Any registrant may apply for amendment of the registration of his product.

§ 152.42 Application for new registration.

Any person seeking to obtain a registration for a new pesticide product must submit an application for registration, containing the information specified in § 152.50. An application for new registration must be approved by

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the Agency before the product may legally be distributed or sold, except as provided by § 152.30.

§ 152.43 Alternate formulations.

(a) A product proposed for registration must have a single, defined composition, except that EPA may approve a basic formulation and one or more alternate formulations for a single product.

(b) An alternate formulation must meet the criteria listed in paragraph (b) (1) through (4) of this section. The Agency may require the submission of data to determine whether the criteria have been met.

(1) The alternate formulation must have the same certified limits for each active ingredient as the basic formulation.

(2) If the alternate formulation contains an inert ingredient or impurity of toxicological significance, the formulation must have the same upper certified limit for that substance as the basic formulation;

(3) The label text of the alternate formulation product must be identical to that of the basic formulation.

(4) The analytical method required under § 158.180 must be suitable for use on both the basic formulation and the alternate formulation.

(c) Notwithstanding the criteria in this section, the Agency may determine that an alternate formulation must be separately registered. If EPA makes this determination, the Agency will notify the applicant of its determination and its reasons. Thereafter the application for an alternate formulation will be treated as an application for new registration, and the alternate formulation will be assigned a new registration number.

§ 152.44 Application for amended registration.

(a) Except as provided by § 152.46, any modification in the composition, labeling, or packaging of a registered product must be submitted with an application for amended registration. The applicant must submit the information required by § 152.50, as applicable to the change requested. If an application for amended registration is required, the application must be approved by the

Agency before the product, as modified, may legally be distributed or sold.

(b) In its discretion, the Agency may:

(1) Waive the requirement for submission of an application for amended registration;

(2) Require that the applicant certify to the Agency that he has complied with an Agency directive rather than submit an application for amended registration; or

(3) Permit an applicant to consolidate an amendment affecting a number of products into a single application.

(4) Permit an applicant to modify a registration by notification or non-notification in accordance with § 152.46.

[53 FR 15978, May 4, 1988, as amended at 61 FR 33041, June 26, 1996]

EFFECTIVE DATE NOTE: At 61 FR 33041, June 26, 1996, § 152.44 was amended by adding paragraph (b)(4), effective Aug. 26, 1996.

§ 152.46 Notification and non-notification changes to registrations.

(a) *Changes permitted by notification.*

(1) EPA may determine that certain minor modifications to registration having no potential to cause unreasonable adverse effects to the environment may be accomplished by notification to the Agency, without requiring that the registrant obtain Agency approval. If EPA so determines, it will issue procedures following an opportunity for public comment describing the types of modifications permitted by notification and any conditions and procedures for submitting notifications.

(2) A registrant may modify a registration consistent with paragraph (a)(1) of this section and any procedures issued thereunder and distribute or sell the modified product as soon as the Agency has received the notification. Based upon the notification, the Agency may require that the registrant submit an application for amended registration. If it does so, the Agency will notify the registrant and state its reasons for requiring an application for amended registration. Thereafter, if the registrant fails to submit an application the Agency may determine that the product is not in compliance with the requirements of the Act. Notification under this paragraph is considered a report filed under

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the Act for the purposes of FIFRA section 12(a)(2)(M).

(b) *Changes permitted without notification.* EPA may determine that certain minor modifications to registration having no potential to cause unreasonable adverse effects to the environment may be accomplished without notification to or approval by the Agency. If EPA so determines, it will issue procedures following an opportunity for public comment describing the types of amendments permitted without notification (also known as non-notification). A registrant may distribute or sell a product changed in a manner consistent with such procedures without notification to or approval by the Agency.

(c) *Effect of non-compliance.* Notwithstanding any other provision of this section, if the Agency determines that a product has been modified through notification or without notification in a manner inconsistent with paragraphs (a) or (b) of this section and any procedures issued thereunder, the Agency may initiate regulatory and/or enforcement action without first providing the registrant with an opportunity to submit an application for amended registration.

[61 FR 33041, June 26, 1996]

EFFECTIVE DATE NOTE: At 61 FR 33041, June 26, 1996, § 152.46 was revised, effective Aug. 26, 1996. For the convenience of the user, the superseded text is set forth as follows:

§ 152.46 Modifications to registration not requiring amended applications.

(a) *Changes needing Agency notification, but not approval.* A registrant may modify his registration as provided in paragraph (a) (1) through (7) of this section if he notifies the Agency before the modified product is distributed or sold. The registrant need not obtain Agency approval of any such amendment, but may distribute or sell the product, as changed, as soon as he has notified the Agency of the change. Based upon a notification, the Agency may require that the registrant submit an application for amended registration. If it does so, the Agency will notify the registrant and state its reasons for requiring an application for amended registration in lieu of a notification. Thereafter, if the registrant fails to submit an application without good cause, the Agency may determine that the product is no longer in compliance with the requirements of the Act and initiate cancellation proceedings under FIFRA sec. 6. Notification under this

paragraph is considered a report filed under the Act for the purposes of FIFRA sec. 12(a)(2)(M).

(1) A revision of the label language consistent with part 156 of this chapter and involving no change in the statement of ingredients, precautionary statements of directions for use.

(2) Addition or substitution of brand names.

(3) A change in the source of any starting material used in the manufacturing process for a product produced by an integrated process, unless the applicant has reason to believe that such source change would result in:

(i) An increase in the level of any impurity of toxicological significance (but not to exceed the upper certified limit); or

(ii) The formation of any new impurity at a level greater than 0.1% by weight of the technical grade active ingredient.

(4) A change in the source of an active ingredient if, after the change the registrant continues to be eligible for a formulator's or generic data exemption.

(5) If the Agency has previously required that the source(s) of an inert ingredient be specified, a change in the source(s) of that ingredient.

(6) A change in the nominal concentration, but not the identity or certified limits, of any inert ingredient whose chemical identity or composition is known to the registrant. Substitution of a proprietary or trade name inert ingredient whose identity or composition is unknown to the registrant does not qualify.

(7) Change in the formulation process of a product produced by a non-integrated system (as defined in § 158.153), provided that the certified limits of the active and inert ingredients would not change as a result.

(b) *Changes not needing Agency approval or notification.* The following changes may be made in a product's composition, labeling or packaging without notification to or approval by the Agency:

(1) Correction of typographical or printing errors on the labeling.

(2) Change in the package size and label net contents, provided no change in use directions or requirement for child-resistant packaging would ensue.

(3) Revision of non-mandatory label statements, consistent with part 156 of this chapter, including additions or changes required by other Federal statutes or regulations.

(4) Change on the label of the name or address of the registrant, except for a change resulting from transfer of ownership, which requires Agency approval in accordance with § 152.135. Section 152.122 requires, however, that a registrant keep his name and address current with the Agency.

(5) Revision of the label format, provided that the format is consistent with Agency

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labeling requirements and the label text is not modified.

[53 FR 15978, May 4, 1988, as amended at 58 FR 34203, June 23, 1993]

§ 152.50 Contents of application.

Each application for registration or amended registration must include the following information, as applicable:

(a) *Application form.* An application form must be completed and submitted to the Agency. Application forms are provided by the Agency, with instructions as to the number of copies required and proper completion.

(b) *Identity of the applicant—(1) Name.* The applicant must identify himself. An applicant not residing in the United States must also designate an agent in accordance with paragraph (b)(3) of this section to act on behalf of the applicant on all registration matters.

(2) *Address of record.* The applicant must provide an address in the United States for correspondence purposes. The U.S. address provided will be considered the applicant's address of record, and EPA will send all correspondence concerning the application and any subsequent registration to that address. It is the responsibility of the applicant and any registrant under § 152.122 to ensure that the Agency has a current and accurate address.

(3) *Authorized agent.* An applicant may designate a person residing in the United States to act as his agent. If an applicant wishes to designate an agent, he must send the Agency a letter stating the name and United States address of his agent. The applicant must notify the Agency if he changes his designated agent. This relationship may be terminated at any time by the applicant by notifying the Agency in writing.

(4) *Company number.* If an applicant has been assigned a company number by the Agency, the application must reference that number.

(c) *Summary of the application.* Each application must include a list of the data submitted with the application, together with a brief description of the results of the studies. The list of data submitted may be the same as the list required by § 158.32 of this chapter. The summary must state that is is releas-

able to the public after registration in accordance with § 152.119.

(d) *Identity of the product.* The product for which application is being submitted must be identified. The following information is required:

- (1) The product name;
- (2) The trade name(s) (if different); and
- (3) The EPA Registration Number, if currently registered.

(e) *Draft labeling.* Each application for new registration must be accompanied by five legible copies of draft labeling (typescript or mock-up). Each application for amended registration that proposes to make any changes in the product labeling must be accompanied by five legible copies of draft labeling incorporating the proposed labeling changes. If the proposed labeling change affects only a portion of the labeling, such as the use directions, the applicant may submit five copies of that portion of the label which is the subject of the amendment. Upon request, an applicant for amended registration must submit a complete label to consolidate amendments.

(f) *Registration data requirements.* (1) An applicant must submit materials to demonstrate that he has complied with the FIFRA sec. 3(c)(1)(D) and subpart E of this part with respect to satisfaction of data requirements, to enable the Agency to make the determination required by FIFRA sec. 3(c)(5)(B). Required items are described in subpart E of this part.

(2) An applicant must furnish any data specified in part 158 of this chapter which are required by the Agency to determine that the product meets the registration standards of FIFRA sec. 3(c) (5) or (7). Each study must comply with:

- (i) Section 158.30 of this chapter, with respect to times for submission;
- (ii) Section 158.32 of this chapter, with respect to format of submission;
- (iii) Section 158.33 of this chapter, with respect to studies for which a claim of trade secret or confidential business information is made;
- (iv) Section 158.34 of this chapter, with respect to flagging for potential adverse effects; and
- (v) Section 160.12 of this chapter, if applicable, with respect to a statement

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of whether studies were conducted in accordance with the Good Laboratory Practices of part 160.

(3) An applicant shall furnish with his application any factual information of which he is aware regarding unreasonable adverse effects of the pesticide on man or the environment, which would be required to be reported under FIFRA sec. 6(a)(2) if the product were registered.

(g) *Certification relating to child-resistant packaging.* If the product meets the criteria for child-resistant packaging, the applicant must submit a certification that the product will be distributed or sold only in child-resistant packaging. Refer to part 157 of this chapter for the criteria and certification requirements.

(h) *Request for classification.* If an applicant wishes to request a classification different from that established by the Agency, he must submit a request for such classification and information supporting the request.

(i) *Statement concerning tolerances.* If the proposed labeling bears instructions for use of the pesticide on food or feed crops, or if the intended use of the pesticide results or may be expected to result, directly or indirectly, in pesticide residues in or on food or feed (including residues of any active ingredient, inert ingredient, metabolite, or degradation product), the applicant must submit a statement indicating whether such residues are authorized by a tolerance, exemption from the requirement of a tolerance, or food additive regulation issued under section 408 or 409 of the Federal Food, Drug and Cosmetic Act (FFDCA). If such residues have not been authorized, the application must be accompanied by a petition for establishment of appropriate tolerances, exemptions from the requirement of a tolerance, or food additive regulations, in accordance with part 180 of this chapter.

[53 FR 15978, May 4, 1988, as amended at 58 FR 34203, June 23, 1993; 60 FR 32096, June 19, 1995]

§ 152.55 Where to send applications and correspondence.

Applications and correspondence relating to registration should be mailed to the Registration Division (TS-767C),

U.S. Environmental Protection Agency, Washington, DC 20460. Persons who wish to hand-deliver applications should contact the Registration Division to determine the location for delivery.

Subpart D—[Reserved]

Subpart E—Procedures To Ensure Protection of Data Submitters' Rights

SOURCE: 49 FR 30903, Aug. 1, 1984, unless otherwise noted.

§ 152.80 General.

This subpart E (§§ 152.80 through 152.119)¹ describes the information that an applicant must submit with his application for registration, amended registration, or reregistration to comply (and for the Agency to determine compliance) with the provisions of FIFRA section 3(c)(1)(D). This subpart also describes the procedures by which data submitters may challenge registration actions which allegedly failed to comply with these procedures. If the Agency determines that an applicant has failed to comply with the requirements and procedures in this subpart, the application may be denied. If the Agency determines, after registration has been issued, that an applicant failed to comply with these procedures and requirements, the Agency may issue a notice of intent to cancel the product's registration.

[49 FR 30903, Aug. 1, 1984, as amended at 58 FR 34203, June 23, 1993]

§ 152.81 Applicability.

(a) Except as provided in paragraph (b) of this section, §§ 152.83 through 152.119 apply to:

(1) Each application for registration of a new product;

(2) Each application for an amendment of a registration; and

(3) Each application for reregistration under FIFRA section 3(g).

(b) This subpart E does not apply to:

¹EDITORIAL NOTE: Sections 152.116 and 152.119 were transferred to subpart F at 53 FR 15980, May 4, 1988.

(1) Applications for registration submitted to States under FIFRA section 24(c);

(2) Applications for experimental use permits under FIFRA section 5;

(3) Applications for emergency exemptions under FIFRA section 18;

(4) Applications to make only one or more of the following types of amendments to existing registrations, unless the Administrator or his designee finds that Agency consideration of scientific data would be necessary in order to approve the amendment under FIFRA section 3(c)(5):

(i) An increase or decrease in the percentage in the product of one or more of its active ingredients or deliberately added inert ingredients;

(ii) A revision of the identity or amount of impurities present in the product;

(iii) The addition or deletion of one or more deliberately added inert ingredients;

(iv) The deletion of one or more active ingredients;

(v) A change in the source of supply of one or more of the active ingredients used in the product, if the new source of the active ingredient is a product which is registered under FIFRA section 3;

(vi) Deletion of approved uses of claims;

(vii) Redesign of the label format involving no substantive changes, express or implied, in the directions for use, claims, representations, or precautionary statements;

(viii) Change in the product name or addition of an additional brand name, if no additional claims, representations, or uses are expressed or implied by the changes;

(ix) Clarification of directions for use;

(x) Correction of typographical errors;

(xi) Changes in the registrant's name or address;

(xii) Adding or deleting supplemental registrants;

(xiii) Changes in the package or container size;

(xiv) Changes in warranty, warranty disclaimer, or liability limitation statements, or addition to or deletion of such statements;

(xv) "Splitting" a label for the sole purpose of facilitating the marketing of a product in different geographic regions with appropriate labels, where each amended label will contain previously approved use instructions (and related label statements) appropriate to a particular geographic region;

(xvi) Any other type of amendment, if the Administrator or his designee determines, by written finding, that the Agency consideration of scientific data would not be necessary in order to approve the amendment under FIFRA section 3(c)(5); and

(xvii) Compliance with Agency Regulations, adjudicatory hearing decisions, notices, or other Agency announcements that unless the registration is amended in the manner the Agency proposes, the product's registration will be suspended or cancelled, or that a hearing will be held under FIFRA section 6. (However, this paragraph does not apply to amendments designed to avoid cancellation or suspension threatened under FIFRA section 3(c)(2)(B) or because of failure to submit data.)

§ 152.83 Definitions.

As used in this subpart, the following terms shall have the meanings set forth in this section:

(a) *Data gap* means the absence of any valid study or studies in the Agency's files which would satisfy a specific data requirement for a particular pesticide product.

(b) *Data Submitters List* means the current Agency list, entitled "Pesticide Data Submitters by Chemical," of persons who have submitted data to the Agency.

(c) *Exclusive use study* means a study that meets each of the following requirements:

(1) The study pertains to a new active ingredient (new chemical) or new combination of active ingredients (new combination) first registered after September 30, 1978;

(2) The study was submitted in support of, or as a condition of approval of, the application resulting in the first registration of a product containing such new chemical or new combination (first registration), or an application to

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amend such registration to add a new use; and

(3) The study was not submitted to satisfy a data requirement imposed under FIFRA section 3(c)(2)(B);

Provided that, a study is an exclusive use study only during the 10-year period following the date of the first registration.

(d) *Original data submitter* means the person who possesses all rights to exclusive use or compensation under FIFRA section 3(c)(1)(D) in a study originally submitted in support of an application for registration, amended registration, reregistration, or experimental use permit, or to maintain an existing registration in effect. The term includes the person who originally submitted the study, any person to whom the rights under FIFRA section 3(c)(1)(D) have been transferred, or the authorized representative of a group of joint data developers.

(e) *Valid study* means a study that has been conducted in accordance with the Good Laboratory Practice standards of 40 CFR part 160 or generally accepted scientific methodology and that EPA has not determined to be invalid.

§ 152.84 When materials must be submitted to the Agency.

All information required by this subpart should be submitted with the application, but may be submitted at any later time prior to EPA's approval of the application. The Agency will not approve any application until it determines either that the application is not subject to these requirements or that all required materials have been submitted and are acceptable.

§ 152.85 Formulators' exemption.

(a) FIFRA section 3(c)(2)(D) excuses an applicant from the requirement to submit or cite data pertaining to the safety of any ingredient (or mixture of ingredients) contained in his product that is derived solely from one or more EPA-registered products which the applicant purchases from another producer.

(b) If the product contains one or more ingredients eligible for the formulators' exemption, the applicant need not comply with the requirements of §§ 152.90 through 152.96 with respect

to any data requirements pertaining to the safety of any such ingredient, provided that he submits to the Agency a certification statement containing the following information (a form for this purpose is available from the Agency):

(1) Identification of the applicant, and of the product by EPA registration number or file symbol;

(2) Identification of each ingredient in the pesticide that is eligible for the formulators' exemption, and the EPA registration number of the product that is the source of that ingredient;

(3) A statement that the listed ingredients meet the requirements for the formulators' exemption;

(4) A statement that the applicant has submitted (either previously or with the current application) a complete, accurate and current Confidential Statement of Formula; and

(5) The name, title and signature of the applicant or his authorized representative and the date of signature.

(c) An applicant for amended registration is not required to submit a new formulators' exemption statement, if the current statement in Agency files is complete and accurate.

[49 FR 30903, Aug. 1, 1984, as amended at 58 FR 34203, June 23, 1993; 60 FR 32096, June 19, 1995]

§ 152.86 The cite-all method.

An applicant may comply with this subpart by citing all data in Agency files that are pertinent to its consideration of the requested registration under FIFRA section 3(c)(5), in accordance with the procedures in this section, as applicable.

(a) *Exclusive use studies.* The applicant must certify to the Agency that he has obtained, from each person listed on the Data Submitters List as an exclusive use data submitter for the chemical in question, a written authorization that contains at least the following information:

(1) Identification of the applicant to whom the authorization is granted;

(2) Authorization to the applicant to use all pertinent studies in satisfaction of data requirements for the application in question; and

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(3) The signature and title of the original data submitter or his authorized representative and date of the authorization.

If the Agency identifies any exclusive use data submitter not on the Data Submitters List, the applicant will be required prior to registration to obtain the necessary written authorization from such person.

(b) *Other studies.* The applicant must certify to the Agency that, with respect to each other person on the Data Submitters List for the chemical in question:

(1) He has obtained from that person a written authorization that contains the information required by paragraphs (a) (1) through (3) of this section; or

(2) He has furnished to that person:

(i) A notification of his intent to apply for registration, including the name of the proposed product, and a list of the product's active ingredients;

(ii) An offer to pay the person compensation to the extent required by FIFRA section 3(c)(1)(D) for any data on which the application relies;

(iii) An offer to commence negotiations to determine the amount and terms of compensation, if any, to be paid for the use of any study; and

(iv) His name, address and telephone number.

(c) *General offer to pay statement.* The applicant must submit to the Agency the following general offer to pay statement:

[Name of applicant] hereby offers and agrees to pay compensation to other persons, with regard to the approval of this application, to the extent required by FIFRA section 3(c)(1)(D) of the Federal Insecticide, Fungicide and Rodenticide Act.

(d) *Acknowledgement of reliance on data.* Each application filed under this section shall include an acknowledgement that for purposes of FIFRA section 3(c)(1)(D) the application relies on the following data:

(1) All data submitted with or specifically cited in the application; and

(2) Each other item of data in the Agency's files which:

(i) Concerns the properties or effects of the applicant's product, of any product which is identical or substantially similar to the applicant's product, or of

one or more of the active ingredients in the applicant's product; and

(ii) Is one of the types of data that EPA would require to be submitted if the application sought the initial registration under FIFRA section 3(c)(5) of a product with composition and intended uses identical or substantially similar to the applicant's product, under the data requirements in effect on the date EPA approves the applicant's present application.

§ 152.90 The selective method.

An applicant may comply with this subpart by listing the specific data requirements that apply to his product, its active ingredients, and use patterns, and demonstrating his compliance for each data requirement by submitting or citing individual studies, or by demonstrating that no study has previously been submitted to the Agency. This section summarizes the procedures that an applicant must follow if he chooses the selective method of demonstrating compliance. Sections 152.91 through 152.96 contain specific procedures for citing or submitting a study or demonstrating a data gap.

(a) *List of data requirements.* Each applicant must submit a list of the data requirements that would apply to his pesticide, its active ingredients, and its use patterns, if the product were being proposed for registration under FIFRA section 3(c)(5) for the first time. The applicant need not list data requirements pertaining to any ingredient which qualifies for the formulator's exemption.

(1) If a Registration Standard has been issued for any active ingredient, the applicant must list the applicable data requirements enumerated in that Standard for the active ingredient and, if end use products are covered by the Registration Standard, for such products containing that active ingredient.

(2) If a Registration Standard has not been issued, or if an issued Registration Standard does not cover all data requirements for products containing the active ingredient in question, the applicant must list the applicable requirements as prescribed by 40 CFR part 158. All required (R) studies, and any studies that could be conditionally required (CR) based upon composition,

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use pattern, or the results of required studies, are to be listed. The applicant may demonstrate via the data gap procedures in § 152.96 that a conditional requirement need not be satisfied by the submission or citation of data at the time of application.

(b) *Methods of demonstrating compliance.* The applicant must state for each data requirement on the list required by paragraph (a) of this section which of the following methods of compliance with the requirement he is using, and shall provide the supporting documentation specified in the referenced section.

(1) Existence of or granting of a data waiver. Refer to § 152.91.

(2) Submission of a new valid study. Refer to § 152.92.

(3) Citation of a specific valid study previously submitted to the Agency by the applicant or another person, with any necessary written authorizations or offers to pay. Refer to § 152.93.

(4) Citation of a public literature study. Refer to § 152.94.

(5) Citation of all pertinent studies previously submitted to the Agency, with any necessary written authorizations or offers to pay. Refer to § 152.95.

(6) Documentation of a data gap. Refer to § 152.96.

§ 152.91 Waiver of a data requirement.

The applicant may demonstrate compliance for a data requirement by documenting the existence of a waiver in accordance with paragraph (a) of this section, or by being granted a new waiver requested in accordance with paragraph (b) of this section.

(a) *Request for extension of an existing waiver.* An applicant may claim that a waiver previously granted by the Agency also applies to a data requirement for his product. To document this claim, the applicant must provide a reference to the Agency record that describes the previously granted waiver, such as an Agency list of waivers or an applicable Registration Standard, and must explain why that waiver should apply to his product.

(b) *Request for a new waiver.* An applicant who requests a waiver to satisfy a data requirement must submit the information specified in 40 CFR 158.45.

(c) *Effect of denial of waiver request.* If the request for a new waiver or extension of an existing waiver is denied by the Agency, the applicant must choose another method of satisfying the data requirement.

§ 152.92 Submission of a new valid study.

An applicant may demonstrate compliance for a data requirement by submitting a valid study that has not previously been submitted to the Agency. A study previously submitted to the Agency should not be resubmitted but should be cited in accordance with § 152.93.

§ 152.93 Citation of a previously submitted valid study.

An applicant may demonstrate compliance for a data requirement by citing a valid study previously submitted to the Agency. The study is not to be submitted to the Agency with the application.

(a) *Study originally submitted by the applicant.* If the applicant certifies that he is the original data submitter, no documentation other than the citation is necessary.

(b) *Study previously submitted by another person.* If the applicant is not the original data submitter, the applicant may cite the study only in accordance with paragraphs (b) (1) through (3) of this section.

(1) *Citation with authorization of original data submitter.* The applicant may cite any valid study for which he has obtained the written authorization of the original data submitter. The applicant must obtain written authorization to cite any study that is an exclusive use study. The applicant must certify that he has obtained from the original data submitter a written authorization that contains at least the following information:

(i) Identification of the applicant to whom the authorization is granted;

(ii) Identification by title, EPA Accession Number or Master Record Identification Number, and date of submission, of the study or studies for which the authorization is granted;

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(iii) Authorization to the applicant to use the specified study in satisfaction of the data requirement for the application in question; and

(iv) The signature and title of the original data submitter or his authorized representative, and date of the authorization.

(2) *Citation with offer to pay compensation to the original data submitter.* The applicant may cite any valid study that is not subject to the exclusive use provisions of FIFRA section 3(c)(1)(D)(i) without written authorization from the original data submitter if the applicant certifies to the Agency that he has furnished to the original data submitter:

(i) A notification of the applicant's intent to apply for registration, including the proposed product name and a list of the product's active ingredients;

(ii) Identification of the specific data requirement involved and of the study for which the offer to pay is made (by title, EPA Accession Number or Master Record Identification Number, and date of submission, if possible);

(iii) An offer to pay the person compensation to the extent required by FIFRA section 3(c)(1)(D);

(iv) An offer to commence negotiations to determine the amount and terms of compensation, if any, to be paid for the use of the study; and

(v) The applicant's name, address and telephone number.

(3) *Citation without authorization or offer to pay.* The applicant may cite any valid study without written authorization from, or offer to pay to, the original data submitter, if:

(i) The study was originally submitted to the Agency on or before December 31, 1969; or

(ii) The study was originally submitted to the Agency on or before the date that is 15 years before the date of the application for which it is cited, and the study is not an exclusive use study, as defined in § 152.83(c).

§ 152.94 Citation of a public literature study or study generated at government expense.

(a) An applicant may demonstrate compliance for a data requirement by citing, and submitting to the Agency, one of the following:

(1) A valid study from the public literature.

(2) A valid study generated by, or at the expense of, any government (Federal, State, or local) agency.

(b) In no circumstances does submission of a public literature study or government-generated study confer any rights on the data submitter to exclusive use of data or compensation under FIFRA section 3(c)(1)(D).

§ 152.95 Citation of all studies in the Agency's files pertinent to a specific data requirement.

An applicant normally may demonstrate compliance for a data requirement by citation of all studies in the Agency's files pertinent to that data requirement. The applicant who selects this cite-all option must submit to the Agency:

(a) A general offer to pay statement having the same wording as that specified in § 152.86(c) except that the offer to pay may be limited to apply only to data pertinent to the specific data requirement(s) for which the cite-all method of support has been selected;

(b) A certification that:

(1) For each person who is included on the Data Submitters List as an original data submitter of exclusive use data for the active ingredient in question, the applicant has obtained a written authorization containing the information required by § 152.86(a) for the use the any exclusive use study that would be pertinent to the applicant's product; and

(2) For each person included on the current Data Submitters List as an original data submitter of data that are not exclusive use for the active ingredient in question, the applicant has furnished:

(i) A notification of the applicant's intent to apply for registration, including the name of the proposed product, and a list of the product's active ingredients;

(ii) Identification of the specific data requirement(s) for which the offer to pay for data is being made;

(iii) An offer to pay the person compensation to the extent required by FIFRA section 3(c)(1)(D);

(iv) An offer to commence negotiations to determine the amount and

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terms of compensation, if any, to be paid for use of any study; and

(v) The applicant's name, address and telephone number; and

(c) An acknowledgment having the same wording as that specified in § 152.86(d), except that it may be limited to apply only to data pertinent to the specific data requirement(s) for which the cite-all method of support has been selected.

§ 152.96 Documentation of a data gap.

Except as provided in paragraph (a) of this section, an applicant may defer his obligation to satisfy an applicable data requirement until the Agency requests the data if he can demonstrate, by the procedure in this section, that no other person has previously submitted to the Agency a study that would satisfy the data requirement in question.

(a) *When data gap procedures may not be used.* (1) An applicant for registration of a product containing a new chemical may not defer his obligation by the procedure in this section, unless he can demonstrate to the Agency's satisfaction that the data requirement was imposed so recently that insufficient time has elapsed for the study to have been completed and that, in the public interest, the product should be registered during the limited period of time required to complete the study. Refer to FIFRA section 3(c)(7)(C).

(2) An applicant for registration of a product under FIFRA section 3(c)(7) (A) or (B) may not defer his obligation by the procedure in this section if the Agency requires the data to determine:

(i) Whether the product is identical or substantially similar to another currently registered product or differs only in ways that would not substantially increase the risk of unreasonable adverse effects on the environment;

(ii) If efficacy data are required, whether the product is efficacious; or

(iii) Whether the new use would substantially increase the risk of unreasonable adverse effects on the environment, usually required when the application involves a new use of a product which is identical or substantially similar to a currently registered product.

(b) *Data gap listed in a Registration Standard.* The applicant may rely on a data gap that is documented by a Registration Standard without submitting the certification required by paragraph (c) of this section. If the data gap listed in the Registration Standard has been filled since the issuance of the Standard, the Agency will notify the applicant and require him to choose another method of demonstrating compliance.

(c) *Certification of a data gap.* Except as provided by paragraph (b) of this section, an applicant who wishes to claim that a data gap exists must certify to the Agency that:

(1) The applicant has furnished, by certified mail, to each original data submitter on the current Data Submitters List for the active ingredient in question, a notice containing the following information:

(i) The name and address of the applicant;

(ii) The name of the product, and a statement that the applicant intends to apply for registration of that product;

(iii) The name(s) of the active ingredient(s) in the product;

(iv) A list of the data requirements for which the applicant intends to claim under this section that a data gap exists; and

(v) A request that the data submitter identify, within 60 days of receipt of the notice, any valid study which he has submitted to the Agency that would fulfill any of the data requirement(s) listed.

(2) The applicant has, within that 60-day period, received no response, or has received a negative response, from each person notified; and

(3) The applicant has no basis to believe that any data have been submitted to the Agency that would fulfill the data requirement, and is entitled to claim that a data gap exists.

(d) *Requirement to obtain permission or make offer to pay.* In responding to a data gap letter, the original data submitter is not deemed to have given his authorization for the applicant to cite any study which the data submitter identifies in his response. The applicant must seek and obtain specific written authorization from, or make an offer to pay to, the original data

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submitter to cite the identified study in order to demonstrate compliance for the data requirement. Nothing, however, precludes the applicant from requesting written authorization or making an offer to pay at the same time that he requests confirmation of a data gap.

§ 152.97 Rights and obligations of data submitters.

(a) *Right to be listed on Data Submitters List.* (1) Each original data submitter shall have the right to be included on the Agency's Data Submitters List.

(2) Each original data submitter who wishes to have his name added to the current Data Submitters List must submit to the Agency the following information:

(i) Name and current address;

(ii) Chemical name and common name (if any) of the active ingredient(s), with respect to which he is an original data submitter;

(iii) For each such active ingredient, the type(s) of study he has previously submitted (corresponding to Guidelines reference numbers given in tables in 40 CFR part 158, if applicable), the date of submission, and the EPA registration number, file symbol, or other identifying reference for which it was submitted.

(3) Each applicant not already included on the Data Submitters List for a particular active ingredient must inform the Agency at the time of submission of a relevant study whether he wishes to be included on the Data Submitters List for that pesticide.

(b) *Obligation to respond to data gap letters.* An applicant who chooses to defer his obligation by demonstrating the existence of a data gap must write to each original data submitter for confirmation that the data submitter has not submitted a valid study that would satisfy the requirement. The original data submitter is not required to respond to such letters. However, if he fails to respond, the applicant is entitled to assume (and the Agency will act on the assumption) that the original data submitter has not submitted a study to satisfy the requirement. The data submitter may thereby limit his right to later challenge the applicant's claim if he fails respond in writing de-

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livered to the applicant within 60 days of receipt of the applicant's data gap letter.

§ 152.98 Procedures for transfer of exclusive use or compensation rights to another person.

A person who possesses rights to exclusive use or compensation under FIFRA section 3(c)(1)(D) may transfer such rights to another person in accordance with this section.

(a) The original data submitter must submit to the Agency a transfer document that contains the following information:

(1) The name, address and state of incorporation (if any) of the original data submitter (the transferor);

(2) The name, address and state of incorporation (if any) of the person to whom the data rights are being transferred (the transferee);

(3) Identification of each item of data transferred including:

(i) The name of the study or item of data;

(ii) Whether the study is an exclusive use study, and, if so, when the period of exclusive use protection expires;

(iii) The name of the person or laboratory that conducted the study;

(iv) The date the study was submitted to the Agency;

(v) The EPA document number assigned to the item of data (the Master Record Identification Number or Accession Number), if known. If not known, the EPA administrative number (such as the EPA Registration Number, petition number, file symbol, or permit number) with which the item of data was submitted, such that the Agency can identify the item of data.

(vi) A statement that the transferor transfers irrevocably to the transferee all rights, titles, and interest in the items of data named;

(vii) A statement that the transferor and transferee understand that any false statement may be punishable under 18 U.S.C. 1001; and

(viii) The names, signatures and titles of the transferor and transferee, and the date signed.

(b) In addition, the original data submitter must submit to the Agency a notarized statement affirming that:

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(1) The person signing the transfer agreement is authorized by the original data submitter to bind the data submitter;

(2) No court order prohibits the transfer, and any required court approvals have been obtained; and

(3) The transfer is authorized under Federal, State, and local law and relevant corporate charters, bylaws or partnership agreements.

(c) The Agency will acknowledge the transfer of the data by notifying both transferor and transferee, and will state the effective date of the transfer. Thereafter the transferee will be considered to be the original data submitter of the items of data transferred for all purposes under FIFRA section 3(c)(1)(D), unless a new transfer agreement is submitted to the Agency.

§ 152.99 Petitions to cancel registration.

An original data submitter may petition the Agency to deny or cancel the registration of a product in accordance with this section if he has submitted to the Agency a valid study which, he claims, satisfies a data requirement that an applicant purportedly has failed to satisfy.

(a) *Grounds for petition.* (1) If an applicant has offered to pay compensation to an original data submitter of a study (either specifically or by filing a general offer to pay statement), the original data submitter may petition the Agency to deny or cancel the registration to which the offer related on any of the following grounds:

(i) The applicant has failed to participate in an agreed-upon procedure for reaching an agreement on the amount and terms of compensation. The petitioner shall submit a copy of the agreed-upon procedure and describe the applicant's failure to participate in the procedure.

(ii) The applicant has failed to comply with the terms of an agreement on compensation. The petitioner shall submit a copy of the agreement, and shall describe how the applicant has failed to comply with the agreement.

(iii) The applicant has failed to participate in an arbitration proceeding. The petitioner shall submit evidence of such failure.

(iv) The applicant has failed to comply with the terms of an arbitration decision. The petitioner shall submit a copy of the arbitration decision, and describe how the applicant has failed to comply with the decision.

(2) When no offer to pay has been made, the petitioner shall state in his petition the basis for the challenge, and describe how the failure of the applicant to comply with the procedures of this subpart has deprived him of the rights accorded him under FIFRA section 3(c)(1)(D). Possible grounds for challenge include, but are not limited to, the following:

(i) The applicant has failed to list a data requirement applicable to his product, or has failed to demonstrate compliance with all applicable data requirements.

(ii) The applicant has submitted or cited a study that is not valid.

(iii) The applicant has submitted or cited a study that does not satisfy the data requirement for which it was submitted or cited.

(iv) The applicant has failed to comply with the procedure for showing that a data gap exists.

(v) The applicant has improperly certified that a data gap exists. An original data submitter who has failed without good cause to respond to an applicant's request for confirmation of a data gap may not petition the Agency for review on this basis.

(vi) The applicant has submitted or cited a study originally submitted by the petitioner, without the required authorization or offer to pay.

(b) *Procedure for petition to the Agency—(1) Time for filing.* A petition under paragraph (a)(1) of this section may be filed at any time that the circumstances warrant. A petition under paragraph (a)(2) of this section must be filed within one year after the Agency makes public the issuance of the registration.

(2) *Notice to affected registrant.* At the same time that the petitioner files his petition with the Agency, he shall send a copy by certified mail to the affected applicant or registrant. The applicant or registrant shall have 60 days from the date of his receipt of the petition to submit written comments to the Agency.

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(c) *Disposition of petitions.* The Agency will consider the material submitted by the petitioner and the response, if any, by the affected applicant or registrant.

(1) If the Agency determines that the petition is without merit, it will inform the petitioner and the affected applicant or registrant that the petition is denied. Denial of a petition is a final Agency action.

(2) If the Agency determines that an applicant has acted in any way described by paragraph (a)(1) of this section, the Agency will notify the petitioner and the affected applicant or registrant that it intends to deny or cancel the registration of the product in support of which the data were cited. The affected applicant or registrant will have 15 days from the date of delivery of this notice to respond. If the Agency determines, after considering any response, that the affected applicant or registrant has acted in the ways described by paragraph (a)(1) of this section, the Agency will deny or cancel the registration without further hearing. Refer to FIFRA section 3(c)(1)(D)(ii). Denial or cancellation of a registration is a final Agency action.

(3) Except as provided in paragraph (c)(2) of this section, if the Agency determines that an applicant for registration of a product has acted in any way that deprives an original data submitter of rights under FIFRA section 3(c)(1)(D), the Agency will take steps to deny the application or cancel the registration, as appropriate. The procedures in FIFRA section 3(c)(6) or section 6(b) shall be followed. Denial or cancellation is a final Agency action.

(d) *Hearing.* Any hearing will be conducted in accordance with the procedures in 40 CFR part 164. The only matter for resolution at the hearing shall be whether the registrant failed to comply with the requirements and procedures of FIFRA section 3(c)(1)(D) or of this subpart, in the manner described by the petitioner. A decision following a hearing shall be final.

Subpart F—Agency Review of Applications

SOURCE: 53 FR 15980, May 4, 1988, unless otherwise noted.

§ 152.100 Scope.

(a) The Agency will follow the procedures in this subpart for all applications for registration, except an application for registration of a pesticide that has been the subject of a previous Agency cancellation or suspension notice under FIFRA sec. 6.

(b) The Agency will follow the procedures of subpart D of part 164 of this chapter in evaluating any application for registration of a pesticide involving use of the pesticide in a manner that is prohibited by a suspension or cancellation order, to the extent required by subpart D of part 164.

§ 152.102 Publication.

The Agency will issue in the FEDERAL REGISTER a notice of receipt of each application for registration of a product that contains a new active ingredient or that proposes a new use. After registration of the product, the Agency will issue in the FEDERAL REGISTER a notice of issuance. The notice of issuance will describe the new chemical or new use, summarize the Agency's regulatory conclusions, list missing data and the conditions for their submission, and respond to comments received on the notice of application.

§ 152.104 Completeness of applications.

The applicant is responsible for the accuracy and completeness of all information submitted in connection with the application. The Agency will review each application to determine whether it is complete. An application is incomplete if any pertinent item specified in § 152.50 has not been submitted, or has been incorrectly submitted (for example, data required by part 158 of this chapter not submitted in accordance with the requirements for format, claims of confidential business information, or flagging).

§ 152.105 Incomplete applications.

The Agency will not begin or continue the review of an application that is incomplete. If the Agency determines that an application is incomplete or that further information is needed in order to complete the Agency's review, the Agency will notify the applicant of the deficiencies and allow

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the applicant 75 days to make corrections or additions to complete the application. If the applicant believes that the deficiencies cannot be corrected within 75 days, he must notify the Agency within those 75 days of the date on which he expects to complete the application. If, after 75 days, the applicant has not responded, or if the applicant subsequently fails to complete the application within the time scheduled for completion, the Agency will terminate any action on such application, and will treat the application as if it had been withdrawn by the applicant. Any subsequent submission relating to the same product must be submitted as a new application.

§ 152.107 Review of data.

(a) The Agency normally will review data submitted with an application that have not previously been submitted to the Agency.

(b) The Agency normally will review other data submitted or cited by an applicant only:

(1) As part of the process of reregistering currently registered products;

(2) When acting on an application for registration of a product containing a new active ingredient;

(3) If such data have been flagged in accordance with § 158.34 of this chapter; or

(4) When the Agency determines that it would otherwise serve the public interest.

(c) If the Agency finds that it needs additional data in order to determine whether the product may be registered, it will notify the applicant as early as possible in the review process.

§ 152.108 Review of labeling.

The Agency will review all draft labeling submitted with the application. If an applicant for amended registration submits only that portion of the labeling proposed for amendment, the Agency may review the entire label, as revised by the proposed changes, in deciding whether to approve the amendment. The Agency will not approve final printed labeling, but will selectively review it for compliance.

§ 152.110 Time for Agency review.

The Agency will complete its review of applications as expeditiously as possible. Applications involving new active ingredients, new uses, petitions for tolerance or exemptions, or consultation with other Federal agencies normally will take longer than applications for substantially similar products and uses.

§ 152.111 Choice of standards for review of applications.

The Agency has discretion to review applications under either the unconditional registration criteria of FIFRA sec. 3(c)(5) or the conditional registration criteria of FIFRA sec. 3(c)(7). The type of review chosen depends primarily on the extent to which the relevant data base has been reviewed for completeness and scientific validity. EPA conducts data reviews needed to support unconditional registrations on a chemical-by-chemical basis, according to an established priority list. Except for applications for registration of a new active ingredient or in special cases where it finds immediate review to be warranted, the Agency will not commence a complete review of the existing data base on a given chemical in response to receipt of an application for registration. Instead the Agency will review the application using the criteria for conditional registration in FIFRA sec. 3(c)(7) (A) and (B).

§ 152.112 Approval of registration under FIFRA sec. 3(c)(5).

EPA will approve an application under the criteria of FIFRA sec. 3(c)(5) only if:

(a) The Agency has determined that the application is complete and is accompanied by all materials required by the Act and this part, including, but not limited to, evidence of compliance with subpart E of this part;

(b) The Agency has reviewed all relevant data in the possession of the Agency (see §§ 152.107 and 152.111);

(c) The Agency has determined that no additional data are necessary to make the determinations required by FIFRA sec. 3(c)(5) with respect to the pesticide product which is the subject of the application;

(d) The Agency has determined that the composition of the product is such as to warrant the proposed efficacy claims for it, if efficacy data are required to be submitted by part 158 of this chapter for the product;

(e) The Agency has determined that the product will perform its intended function without unreasonable adverse effects on the environment, and that, when used in accordance with widespread and commonly recognized practice, the product will not generally cause unreasonable adverse effects on the environment;

(f) The Agency has determined that the product is not misbranded as that term is defined in FIFRA sec. 2(q) and part 156 of this chapter, and its labeling and packaging comply with the applicable requirements of the Act, this part, and parts 156 and 157 of this chapter;

(g) If the proposed labeling bears directions for use on food, animal feed, or food or feed crops, or if the intended use of the pesticide results or may reasonably be expected to result, directly or indirectly, in pesticide residues (including residues of any active or inert ingredient of the product, or of any metabolite or degradation product thereof) in or on food or animal feed, all necessary tolerances, exemptions from the requirement of a tolerance, and food additive regulations have been issued under FFDCA sec. 408, sec. 409 or both; and

(h) If the product, in addition to being a pesticide, is a drug within the meaning of FFDCA sec. 201(q), the Agency has been notified by the Food and Drug Administration (FDA) that the product complies with any requirements imposed by FDA.

§ 152.113 Approval of registration under FIFRA sec. 3(c)(7)—Products that do not contain a new active ingredient.

(a) Except as provided in paragraph (b) of this section, the Agency may approve an application for registration or amended registration of a pesticide product, each of whose active ingredients is contained in one or more other registered pesticide products, only if the Agency has determined that:

(1) It possesses all data necessary to make the determinations required by FIFRA sec. 3(c)(7)(A) or (B) with respect to the pesticide product which is the subject of the application (including, at a minimum, data needed to characterize any incremental risk that would result from approval of the application);

(2) Approval of the application would not significantly increase the risk of any unreasonable adverse effect on the environment; and

(3) The criteria of § 152.112(a), (d), and (f) through (h) have been satisfied.

(b) Notwithstanding the provisions of paragraph (a) of this section, the Agency will not approve the conditional registration of any pesticide under FIFRA sec. 3(c)(7)(A) unless the Agency has determined that the applicant's product and its proposed use are identical or substantially similar to a currently registered pesticide and use, or that the pesticide and its proposed use differ only in ways that would not significantly increase the risk of unreasonable adverse effects on the environment.

(c) Notwithstanding the provisions of paragraph (a) of this section, the Agency will not approve the conditional registration of any pesticide product for a new use under FIFRA sec. 3(c)(7)(B) if:

(1) The pesticide is the subject of a special review, based on a use of the product that results in human dietary exposure; and

(2) The proposed new use involves use on a major food or feed crop, or involves use on a minor food or feed crop for which there is available an effective alternative registered pesticide which does not meet the risk criteria associated with human dietary exposure. The determination of available and effective alternatives shall be made with the concurrence of the Secretary of Agriculture.

§ 152.114 Approval of registration under FIFRA sec. 3(c)(7)—Products that contain a new active ingredient.

An application for registration of a pesticide containing an active ingredient not in any currently registered product may be conditionally approved for a period of time sufficient for the

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generation and submission of certain of the data necessary for a finding of registrability under FIFRA sec. 3(c)(5) if the Agency determines that:

(a) Insufficient time has elapsed since the imposition of the data requirement for those data to have been developed;

(b) All other required test data and materials have been submitted to the Agency;

(c) The criteria in § 152.112(a), (b), (d), and (f) through (h) have been satisfied;

(d) The use of the pesticide product during the period of the conditional registration will not cause any unreasonable adverse effect on the environment; and

(e) The registration of the pesticide product and its subsequent use during the period of the conditional registration are in the public interest.

§ 152.115 Conditions of registration.

(a) *Substantially similar products and new uses.* Each registration issued under § 152.113 shall be conditioned upon the submission or citation by the registrant of all data which are required for unconditional registration of his product under FIFRA sec. 3(c)(5), but which have not yet been submitted, no later than the time such data are required to be submitted for similar pesticide products already registered. If a notice requiring submission of such data has been issued under FIFRA sec. 3(c)(2)(B) prior to the date of approval of the application, the applicant must submit or cite the data described by that notice at the time specified by that notice. The applicant must agree to these conditions before the application may be approved.

(b) *New active ingredients.* Each registration issued under § 152.114 shall be conditioned upon the applicant's agreement to each of the following conditions:

(1) The applicant will submit remaining required data (and interim reports if required) in accordance with a schedule approved by the Agency.

(2) The registration will expire upon a date established by the Agency, if the registrant fails to submit data as required by the Agency. The expiration date will be established based upon the length of time necessary to generate

and submit the required data. If the studies are submitted in a timely manner, the registration will be cancelled if the Agency determines, based on the data (alone, or in conjunction with other data), that the product or one or more of its uses meets or exceeds any of the risk criteria established by the Agency to initiate a special review. If the Agency so determines, it will issue to the registrant a Notice of Intent to Cancel under FIFRA sec. 6(e), and will specify any provisions for sale and distribution of existing stocks of the pesticide product.

(3) The applicant will submit an annual report of the production of the product.

(c) *Other conditions.* The Agency may establish, on a case-by-case basis, other conditions applicable to registrations to be issued under FIFRA sec. 3(c)(7).

(d) *Cancellation if condition is not satisfied.* If any condition of the registration of the product is not satisfied, or if the Agency determines that the registrant has failed to initiate or pursue appropriate action towards fulfillment of any condition, the Agency will issue a notice of intent to cancel under FIFRA sec. 6(e).

[53 FR 15980, May 4, 1988, as amended at 60 FR 32096, June 19, 1995]

§ 152.116 Notice of intent to register to original submitters of exclusive use data.

(a) Except as provided in paragraph (c) of this section, at least 30 days before registration of a product containing an active ingredient for which a previously submitted study is eligible for exclusive use under FIFRA sec. 3(c)(1)(D)(i), the Agency will notify the original submitter of the exclusive use study of the intended registration of the product. If requested by the exclusive use data submitter within 30 days, the Agency will also provide the applicant's list of data requirements and method of demonstrating compliance with each data requirement.

(b) Within 30 days after receipt of the Agency's notice, or of the applicant's list of data requirements, whichever is later, the exclusive use data submitter

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may challenge the issuance of the registration in accordance with the procedures in § 152.99 (b) and (c). If the Agency finds that the challenge has merit, it will issue a notice of denial of the application. The applicant may then avail himself of the hearing procedures provided by FIFRA sec. 3(c)(6). If the Agency finds that the challenge is without merit, it will deny the petition and register the applicant's product. Denial of the petition is a final Agency action.

(c) If an applicant has submitted to the Agency a certification from an exclusive use data submitter that he is aware of the applicant's application for registration, and does not object to the issuance of the registration, the Agency will not provide the 30-day notification described in paragraph (a) of this section to that exclusive use data submitter.

§ 152.117 Notification to applicant.

The Agency will notify the applicant of the approval of his application by a Notice of Registration for new registration, or by a letter in the case of an amended registration.

§ 152.118 Denial of application.

(a) *Basis for denial.* The Agency may deny an application for registration if the Agency determines that the pesticide product does not meet the criteria for registration under either FIFRA sec. 3(c)(5) or (7), as specified in §§ 152.112 through 152.114.

(b) *Notification of applicant.* If the Agency determines that an application should be denied, it will notify the applicant by certified letter. The letter will set forth the reasons and factual basis for the determination with conditions, if any, which must be fulfilled in order for the registration to be approved.

(c) *Opportunity for remedy by the applicant.* The applicant will have 30 days from the date of receipt of the certified letter to take the specified corrective action. During this time the applicant may request that his application be withdrawn.

(d) *Notice of denial.* If the applicant fails to correct the deficiencies within the 30-day period, the Agency may issue a notice of denial, which will be

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published in the FEDERAL REGISTER, and which will set forth the reasons and the factual basis for the denial.

(e) *Hearing rights.* Within 30 days following the publication of the notice of denial, an applicant, or any interested person with written authorization of the applicant, may request a hearing in accordance with FIFRA sec. 6(b). Hearings will be conducted in accordance with part 164 of this chapter.

§ 152.119 Availability of material in support of registration.

(a) The information submitted to support a registration application shall be part of the official Agency file for that registration.

(b) Within 30 days after registration, the Agency will make available for public inspection, upon request, the materials required by subpart E to be submitted with an application. Materials that will be publicly available include an applicant's list of data requirements, the method used by the applicant to demonstrate compliance for each data requirement, and the applicant's citations of specific studies in the Agency's possession if applicable.

(c) Except as provided by FIFRA sec. 10, within 30 days after registration, the data on which the Agency based its decision to register the product will be made available for public inspection, upon request, in accordance with the procedures in 40 CFR part 2.

Subpart G—Obligations and Rights of Registrants

SOURCE: 53 FR 15983, May 4, 1988, unless otherwise noted.

§ 152.122 Currency of address of record and authorized agent.

(a) The registrant must keep the Agency informed of his current name and address of record. If the Agency's good faith attempts to contact the registrant are not successful, the Agency will issue in the FEDERAL REGISTER a notice of intent to cancel all products of the registrant under FIFRA sec. 6(b). The registrant must respond within 30 days requesting that the registrations be maintained in effect, and providing his name and address of record. If no response is received, the cancellations

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will become effective at the end of 30 days without further notice to the registrant. The Agency may make provision for the sale and distribution of existing stocks of such products after the effective date of cancellation.

(b) The registrant must also notify the Agency if he changes his authorized agent.

§ 152.125 Submission of information pertaining to adverse effects.

If at any time the registrant receives or becomes aware of any factual information regarding unreasonable adverse effects of the pesticide on the environment that has not previously been submitted to the Agency, he shall, in accordance with FIFRA sec. 6(a)(2), provide such information to the Agency, clearly identified as FIFRA 6(a)(2) data.

[53 FR 15975, May 4, 1988, as amended at 60 FR 32096, June 19, 1995]

§ 152.130 Distribution under approved labeling.

(a) A registrant may distribute or sell a registered product with the composition, packaging and labeling currently approved by the Agency.

(b) A registrant may distribute or sell a product under labeling bearing any subset of the approved directions for use, provided that in limiting the uses listed on the label, no changes would be necessary in precautionary statements, use classification, or packaging of the product.

(c) Normally, if the product labeling is amended on the initiative of the registrant, by submission of an application for amended registration, the registrant may distribute or sell under the previously approved labeling for a period of 18 months after approval of the revision, unless an order subsequently issued by the Agency under FIFRA sec. 6 or 13 provides otherwise. However, if paragraph (d) of this section applies to the registrant's product, the time frames established by the Agency in accordance with that paragraph shall take precedence.

(d) If a product's labeling is required to be revised as a result of the issuance of a Registration Standard, a Label Improvement Program notice, or a notice concluding a special review process,

the Agency will specify in the notice to the registrant the period of time that previously approved labeling may be used. In all cases, supplemental or sticker labeling may be used as an interim compliance measure for a reasonable period of time. The Agency may establish dates as follows governing when label changes must appear on labels:

(1) The Agency may establish a date after which all product distributed or sold by the registrant must bear revised labeling.

(2) The Agency may also establish a date after which no product may be distributed or sold by any person unless it bears revised labeling. This date will provide sufficient time for product in channels of trade to be distributed or sold to users or otherwise disposed of.

§ 152.132 Supplemental distribution.

The registrant may distribute or sell his registered product under another person's name and address instead of (or in addition to) his own. Such distribution and sale is termed "supplemental distribution" and the product is referred to as a "distributor product." The distributor is considered an agent of the registrant for all intents and purposes under the Act, and both the registrant and the distributor may be held liable for violations pertaining to the distributor product. Supplemental distribution is permitted upon notification to the Agency if all the following conditions are met:

(a) The registrant has submitted to the Agency for each distributor product a statement signed by both the registrant and the distributor listing the names and addresses of the registrant and the distributor, the distributor's company number, the additional brand name(s) to be used, and the registration number of the registered product.

(b) The distributor product is produced, packaged and labeled in a registered establishment operated by the same producer (or under contract in accordance with §152.30) who produces, packages, and labels the registered product.

(c) The distributor product is not repackaged (remains in the producer's unopened container).

(d) The label of the distributor product is the same as that of the registered product, except that:

(1) The product name of the distributor product may be different (but may not be misleading);

(2) The name and address of the distributor may appear instead of that of the registrant;

(3) The registration number of the registered product must be followed by a dash, followed by the distributor's company number (obtainable from the Agency upon request);

(4) The establishment number must be that of the final establishment at which the product was produced; and

(5) Specific claims may be deleted, provided that no other changes are necessary.

(e) Voluntary cancellation of a product applies to the registered product and all distributor products distributed or sold under that registration number. The registrant is responsible for ensuring that distributors under his cancelled registration are notified and comply with the terms of the cancellation.

[53 FR 15975, May 4, 1988, as amended at 60 FR 32096, June 19, 1995]

§ 152.135 Transfer of registration.

(a) A registrant may transfer the registration of a product to another person, and the registered product may be distributed and sold without the requirement of a new application for registration by that other person, if the parties submit to the Agency the documents listed in paragraphs (b) and (c) of this section, and receive Agency approval as described in paragraph (d) of this section.

(b) Persons seeking approval of a transfer of registration must provide a document signed by the authorized representative of the registrant (the transferor) and of the person to whom the registration is transferred (the transferee) that contains the following information:

(1) The name, address and State of incorporation (if any) of the transferor;

(2) The name, address and State of incorporation of the transferee;

(3) The name(s) and EPA registration number(s) of the product(s) being transferred;

(4) A statement that the transferor transfers irrevocably to the transferee all right, title, and interest in the EPA registration(s) listed in the document;

(5) A statement that the transferred registration(s) shall not serve as collateral or otherwise secure any loan or other payment arrangement or executory promise, and that the registration(s) shall not revert to the transferor unless a new transfer agreement is submitted to and approved by the Agency;

(6) A description of the general nature of the underlying transaction, e.g., merger, spinoff, bankruptcy transfer (no financial information need be disclosed);

(7) A statement that the transferor and transferee understand that any false statement may be punishable under 18 U.S.C. 1001; and

(8) An acknowledgment by the transferee that his rights and duties concerning the registration under FIFRA and this chapter will be deemed by EPA to be the same as those of the transferor at the time the transfer is approved.

(c) In addition, the transferor must submit to the Agency a notarized statement affirming that:

(1) The person signing the transfer agreement is authorized by the registrant to bind the transferor;

(2) No court order prohibits the transfer, and that any required court approvals have been obtained; and

(3) The transfer is authorized under all relevant Federal, State and local laws and all relevant corporate charters, bylaws, partnerships, or other agreements.

(d) If the required documents are submitted, and no information available to the Agency indicates that the information is incorrect, the Agency will approve the transfer without requiring that the transferee obtain a new registration. The Agency will notify the transferor and transferee of its approval.

(e) The transfer will be effective on the date of Agency approval. Thereafter the transferee will be regarded as the registrant for all purposes under FIFRA.

(f) Rights to exclusive use of data or compensation under FIFRA sec.

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3(c)(1)(D) are separate from the registration itself and may be retained by the transferor, or may be transferred independently in accordance with the provisions of § 152.98. If the registrant as the original data submitter wishes to transfer data rights at the same time as he transfers the registration, he may submit a single transfer document containing the information required by this section for both the registration and the data.

[53 FR 15983, May 4, 1988, as amended at 58 FR 34203, June 23, 1993]

Subpart H—[Reserved]

Subpart I—Classification of Pesticides

SOURCE: 53 FR 15986, May 4, 1988, unless otherwise noted.

§ 152.160 Scope.

(a) *Types of classification.* A pesticide product may be unclassified, or it may be classified for restricted use or for general use. The Agency does not normally classify products for general use; products that are not restricted remain unclassified.

(b) *Kinds of restrictions.* The Agency may restrict a product or its uses to use by a certified applicator, or by or under the direct supervision of a certified applicator, as described in FIFRA sec. 3(d)(1)(C). The Agency may also, by regulation, prescribe restrictions relating to the product's composition, labeling, packaging, uses, or distribution and sale, or to the status or qualifications of the user.

§ 152.161 Definitions.

In addition to the definitions in § 152.3, the following terms are defined for the purposes of this subpart:

(a) *Dietary LC₅₀* means a statistically derived estimate of the concentration of a test substance in the diet that would cause 50 percent mortality to the test population under specified conditions.

(b) *Outdoor use* means any pesticide application that occurs outside enclosed manmade structures or the consequences of which extend beyond enclosed manmade structures, including,

but not limited to, pulp and paper mill water treatments and industrial cooling water treatments.

§ 152.164 Classification procedures.

(a) *Grouping of products for classification purposes.* In its discretion, the Agency may identify a group of products having common characteristics or uses and may classify for restricted use same or all of the products or uses included in that group. Such a group may be comprised of, but is not limited to, products that:

(1) Contain the same active ingredients.

(2) Contain the same active ingredients in a particular concentration range, formulation type, or combination of concentration range and formulation type.

(3) Have uses in common.

(4) Have other characteristics, such as toxicity, flammability, or physical properties, in common.

(b) *Classification reviews.* The Agency may conduct classification reviews and classify products at any time, if it determines that a restriction on the use of a pesticide product is necessary to avoid unreasonable adverse effects on the environment. However, classification reviews normally will be conducted and products classified only in the following circumstances:

(1) As part of the review of an application for new registration of a product containing an active ingredient not contained in any currently registered product.

(2) As part of the review of an application for a new use of a product, if existing uses of that product previously have been classified for restricted use. Review of a restricted use product at this time is for the purpose of determining whether the new use should also be classified for restricted use. Normally the Agency will not conduct initial classification reviews for existing uses of individual products in conjunction with an application for amended registration.

(3) As part of the process of developing or amending a registration standard for a pesticide. The Agency normally will conduct classification reviews of all uses of a currently registered pesticide at this time.

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(4) As part of any special review of a pesticide, in accordance with the procedures of 40 CFR part 154.

(c) *Classification procedures.* (1) If the Agency determines that a product or one or more of its uses should be classified for restricted use, the Agency initially may classify the product by regulation. In this case, within 60 days after the effective date of a final rule, each registrant of a product subject to the rule must submit to the Agency one of the following, as directed in the final rule:

(i) A copy of the amended label and any supplemental labeling to be used as an interim compliance measure.

(ii) A statement, which the Agency considers a report under the Act, that the registrant will comply with the labeling requirements prescribed by the Agency within the timeframes prescribed by the regulation.

(iii) An application for amended registration to delete the uses which have been restricted, or to “split” the registration into two registrations, one including only restricted or all uses, and the other including only uses that have not been classified.

(2) Alternatively, EPA may notify the applicant or registrant of the classification decision and require that he submit the information required by paragraph (c)(1) of this section. The Agency may deny registration or initiate cancellation proceedings if the registrant fails to comply within the timeframes established by the Agency in its notification.

§ 152.166 Labeling of restricted use products.

(a) *Products intended for end use.* A product whose labeling bears directions for end use and that has been classified for restricted use must be labeled in accordance with the requirements of § 156.10 of this chapter or other Agency instructions. The Agency will permit the use of stickers or supplemental labeling as an interim alternative to the use of an approved amended label, in accordance with § 152.167.

(b) *Products intended only for formulation.* A product whose labeling does not bear directions for end use (a product that is intended and labeled solely for further formulation into other pes-

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ticide products) is not subject to the labeling requirements of this subpart.

§ 152.167 Distribution and sale of restricted use products.

Unless modified by the Agency, the compliance dates in this section shall apply to restricted use products.

(a) *Sale by registrant or producer.* (1) No product with a use classified for restricted use may be distributed or sold by the registrant or producer after the 120th day after the effective date of such classification unless the product:

(i) Bears an approved amended label which contains the terms of restricted use imposed by the Agency and otherwise complies with part 156 of this chapter;

(ii) Bears a sticker containing the product name, EPA registration number, and any terms of restricted use imposed by the Agency; or

(iii) Is accompanied by supplemental labeling bearing the information listed in paragraph (a)(1)(ii) of this section.

(2) If the registrant chooses to delete the restricted uses from his product label, that product may not be distributed or sold after the 180th day after the effective date of classification unless the product bears amended labeling with the restricted uses deleted.

(3) Notwithstanding paragraphs (a)(1) and (2) of this section, after the 270th day after the effective date of classification, no registrant or producer may distribute or sell a product that does not bear the approved amended label. After that date, stickers and supplemental labeling described in paragraph (a)(1)(ii) and (iii) are no longer acceptable.

(b) *Sale by retailer.* No product with a use classified for restricted use by a regulation may be distributed or sold by a retailer or other person after the 270th day after the effective date of the final rule unless the product bears a label or labeling which complies with paragraph (a)(1) of this section.

§ 152.168 Advertising of restricted use products.

(a) Any product classified for restricted use shall not be advertised unless the advertisement contains a statement of its restricted use classification.

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(b) The requirement in paragraph (a) of this section applies to all advertisements of the product, including, but not limited, to:

(1) Brochures, pamphlets, circulars and similar material offered to purchasers at the point of sale or by direct mail.

(2) Newspapers, magazines, newsletters and other material in circulation or available to the public.

(3) Broadcast media such as radio and television.

(4) Telephone advertising.

(5) Billboards and posters.

(c) The requirement may be satisfied for printed material by inclusion of the statement "Restricted Use Pesticide," or the terms of restriction, prominently in the advertisement. The requirement may be satisfied with respect to broadcast or telephone advertising by inclusion in the broadcast of the spoken words "Restricted use pesticide," or a statement of the terms of restriction.

(d) The requirements of this section shall be effective:

(1) After 270 days after the effective date of restriction of a product that is currently registered, unless the Agency specifies a shorter time period;

(2) Upon the effective date of registration of a product not currently registered.

§ 152.170 Criteria for restriction to use by certified applicators.

(a) *General criteria.* An end-use product will be restricted to use by certified applicators (or persons under their direct supervision) if the Agency determines that:

(1) Its toxicity exceeds one or more of the specific hazard criteria in paragraph (b) or (c) of this section, or evidence described in paragraph (d) of this section substantiates that the product or use poses a serious hazard that may be mitigated by restricting its use;

(2) Its labeling, when considered according to the factors in paragraph (e)(2) of this section, is not adequate to mitigate these hazard(s);

(3) Restriction of the product would decrease the risk of adverse effects; and

(4) The decrease in risks of the pesticide as a result of restriction would exceed the decrease in benefits.

(b) *Criteria for human hazard*—(1) *Residential and institutional uses.* A pesticide product intended for residential or institutional use will be considered for restricted use classification if:

(i) The pesticide, as diluted for use, has an acute oral LD₅₀ of 1.5 g/kg or less;

(ii) The pesticide, as formulated, has an acute dermal LD₅₀ of 2000 mg/kg or less;

(iii) The pesticide, as formulated, has an acute inhalation LC₅₀ of 0.5 mg/liter or less, based upon a 4-hour exposure period;

(iv) The pesticide, as formulated, is corrosive to the eye (causes irreversible destruction of ocular tissue) or results in corneal involvement or irritation persisting for more than 7 days;

(v) The pesticide, as formulated, is corrosive to the skin (causes tissue destruction into the dermis and/or scarring) or causes severe irritation (severe erythema or edema) at 72 hours; or

(vi) When used in accordance with label directions, or widespread and commonly recognized practice, the pesticide may cause significant subchronic, chronic or delayed toxic effects on man as a result of single or multiple exposures to the product ingredients or residues.

(2) *All other uses.* A pesticide product intended for uses other than residential or institutional use will be considered for restricted use classification if:

(i) The pesticide, as formulated, has an acute oral LD₅₀ of 50 mg/kg or less;

(ii) The pesticide, as formulated, has an acute dermal LD₅₀ of 200 mg/kg or less;

(iii) The pesticide, as diluted for use, has an acute dermal LD₅₀ of 16 g/kg or less;

(iv) The pesticide, as formulated, has an acute inhalation LC₅₀ of 0.05 mg/liter or less, based upon a 4-hour exposure period;

(v) The pesticide, as formulated, is corrosive to the eye or causes corneal involvement or irritation persisting for more than 21 days;

(vi) The pesticide, as formulated, is corrosive to the skin (causes tissue destruction into the dermis and/or scarring); or

(vii) When used in accordance with label directions, or widespread and commonly recognized practice, the pesticide may cause significant subchronic toxicity, chronic toxicity, or delayed toxic effects on man, as a result of single or multiple exposures to the product ingredients or residues.

(c) *Criteria for hazard to non-target species*—(1) *All products.* A pesticide product intended for outdoor use will be considered for restricted use classification if:

(i) When used according to label directions, application results in residues of the pesticide, its metabolites, or its degradation products, in the diet of exposed mammalian wildlife, immediately after application, such that:

(A) The level of such residues equals or exceeds one-fifth of the acute dietary LC_{50} ; or

(B) The amount of pesticide consumed in one feeding day (mg/kg/day) equals or exceeds one-fifth of the mammalian acute oral LD_{50} ;

(ii) When used according to label directions, application results, immediately after application, in residues of the pesticide, its metabolites or its degradation products, in the diet of exposed birds at levels that equal or exceed one-fifth of the avian subacute dietary LC_{50} ;

(iii) When used according to label directions, application results in residues of the pesticide, its metabolites or its degradation products, in water that equal or exceed one-tenth of the acute LC_{50} for non-target aquatic organisms likely to be exposed; or

(iv) Under conditions of label use or widespread and commonly recognized practice, the pesticide may cause discernible adverse effects on non-target organisms, such as significant mortality or effects on the physiology, growth, population levels or reproduction rates of such organisms, resulting from direct or indirect exposure to the pesticide, its metabolites or its degradation products.

(2) *Granular products.* In addition to the criteria of paragraph (c)(1) of this section, a pesticide intended for out-

door use and formulated as a granular product will be considered for restricted use classification if:

(i) The formulated product has an acute avian or mammalian oral LD_{50} of 50 mg/kg or less as determined by extrapolation from tests conducted with technical material or directly with the formulated product; and

(ii) It is intended to be applied in such a manner that significant exposure to birds or mammals may occur.

(d) *Other evidence.* The Agency may also consider evidence such as field studies, use history, accident data, monitoring data, or other pertinent evidence in deciding whether the product or use may pose a serious hazard to man or the environment that can reasonably be mitigated by restricted use classification.

(e) *Alternative labeling language.* (1) If the Agency determines that a product meets one or more of the criteria of paragraphs (b) or (c) of this section, or if other evidence identified in paragraph (d) of this section leads the Agency to conclude that the product should be considered for restricted use classification, the Agency will then determine if additional labeling language would be adequate to mitigate the identified hazard(s) without restricted use classification. If the labeling language meets all the criteria specified in paragraph (e)(2) of this section, the product will not be classified for restricted use.

(2) The labeling will be judged adequate if it meets all the following criteria:

(i) The user, in order to follow label directions, would not be required to perform complex operations or procedures requiring specialized training and/or experience.

(ii) The label directions do not call for specialized apparatus, protective equipment, or materials that reasonably would not be available to the general public.

(iii) Failure to follow label directions in a minor way would result in few or no significant adverse effects.

(iv) Following directions for use would result in few or no significant adverse effects of a delayed or indirect

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nature through bioaccumulation, persistence, or pesticide movement from the original application site.

(v) Widespread and commonly recognized practices of use would not nullify or detract from label directions such that unreasonable adverse effects on the environment might occur.

§ 152.171 Restrictions other than those relating to use by certified applicators.

The Agency may by regulation impose restrictions on a product or class of products if it determines that:

(a) Without such restrictions, the product when used in accordance with warnings, cautions and directions for

use or in accordance with widespread and commonly recognized practices of use may cause unreasonable adverse effects on the environment; and

(b) The decrease in risks as a result of restricted use would exceed the decrease in benefits as a result of restricted use.

§ 152.175 Pesticides classified for restricted use.

The following uses of pesticide products containing the active ingredients specified below have been classified for restricted use and are limited to use by or under the direct supervision of a certified applicator.

Active ingredient	Formulation	Use pattern	Classification ¹	Criteria influencing restriction
Acrolein	As sole active ingredient. No mixtures registered.	All uses	Restricted	Inhalation hazard to humans. Residue effects on avian species and aquatic organisms.
Aldicarb	As sole active ingredient	Ornamental uses (indoor and outdoor)	do	Other hazards—accident history.
Aluminum phosphide	No mixtures registered	Agricultural crop uses	Under further evaluation.	Inhalation hazard to humans.
Azinphos methyl	As sole active ingredient. No mixtures registered.	do	do	Do.
Carbofuran	All liquids with a concentration greater than 13.5 pct.	do	Under further evaluation.	Acute inhalation toxicity.
Chloropicrin	All other formulations	do	Under evaluation.	Acute inhalation toxicity.
Clonitralid	All concentrate suspensions and wettable powders 40% and greater.	Rice	do	Hazard to non-target organisms.
Dicrotophos	All granular formulations	All uses except rice	do	Acute inhalation toxicity.
Disulfoton	All granular and fertilizer formulations	All uses	Unclassified.	Hazard to non-target organisms.
	All formulations greater than 2%	Rodent control	Restricted	Acute inhalation toxicity.
	All formulations 2% and less	Outdoor uses (other than rodent control)	Unclassified.	Effects on aquatic organisms.
	All wettable powders 70% and greater	All uses	Restricted	Acute dermal toxicity; residue effects on avian species (except for tree injections).
	All granulars and wettable powders	Molluscicide uses	do	Do.
	Pressurized sprays 0.55% and less	Hospital antiseptics	Restricted	Acute inhalation toxicity.
	All liquid formulations 8% and greater	All uses	do	Acute dermal toxicity.
	All emulsifiable concentrates 65% and greater, all emulsifiable concentrates and concentrate solutions 21% and greater with fensulfothion 43% and greater, all emulsifiable concentrates 32% and greater in combination with 32% fensulfothion and greater.	do	Restricted	Acute dermal toxicity.
	Non-aqueous solution 95% and greater	Commercial seed treatment.	do	Acute dermal toxicity.
Ethoprop	Granular formulations 10% and greater	Indoor uses (greenhouse)	do	Acute dermal toxicity.
Ethyl parathion	Emulsifiable concentrates 40% and greater	Aquatic uses	do	Acute dermal toxicity.
	All granular and fertilizer formulations	All uses	Under evaluation.	Inhalation hazard to humans. Acute dermal toxicity. Residue effects on mammalian, aquatic, avian species.
	All granular and dust formulations greater than 2 pct, fertilizer formulations, wettable powders, emulsifiable concentrates, concentrated suspensions, concentrated solutions.	do	do	Inhalation hazard to humans.
Fenamiphos	Smoke fumigants	do	do	Other hazards—accident history.
Fonofos	Dust and granular formulations 2 pct and below	do	do	Acute dermal toxicity.
	Emulsifiable concentrates 35% and greater	do	do	Acute dermal toxicity.
	Emulsifiable concentrates 44% and greater	do	Unclassified.	Acute dermal toxicity.
	Emulsifiable concentrates 12.6% and less with pebulate 50.3% and less.	Tobacco	do	Acute dermal toxicity.
Methamidophos	Liquid formulations 40% and greater	do	Restricted	Acute dermal toxicity; residue effects on avian species.
	Dust formulations 2.5% and greater	do	do	Residue effects on avian species.

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Methidathion	All formulations	All uses except nursery stock, safflower and sunflower.	do	Do.
Methomyl	All formulations	Nursery stock, safflower and sunflower.	Unclassified.	Residue effects on mammalian species.
	As sole active ingredient in 1 pct to 2.5 baits (except 1 pct fly bait).	Nondomestic outdoors-agricultural crops, ornamental and turf. All other registered uses.	Restricted	
	All concentrated solution formulations 90 pct wettable powder formulations (not in water soluble bags). 90 pct wettable powder formulation in water soluble bags.	do	do	
Methyl bromide	All granular formulations	do	Unclassified.	Other hazards-accident history. Do.
	25 pct wettable powder formulations	do	do	
	In 1.24 pct to 2.5 pct dusts as sole active ingredient and in mixtures with fungicides and chlorinated hydrocarbon, inorganic phosphate and biological insecticides.	do	do	
Methyl parathion	All formulations in containers greater than 1.5 lb Containers with not more than 1.5 lb of methyl bromide with 0.25 pct to 2.0 pct chloropicrin as an indicator.	All uses Single applications (nondomestic use) for soil treatment in closed systems.	Restricted Unclassified.	Do.
	Container with not more than 1.5 lb having no indicator.	All uses	Restricted	
	All dust and granular formulations less than 5 pct.	do	do	
Nicotine (alkaloid)	Microencapsulated	do	do	Other hazards-accident history. All foliar applications restricted based on residue effects on mammalian and avian species. Residue effects on avian species. Hazard to bees. Acute dermal toxicity. Residue effects on mammalian and avian species. Acute inhalation toxicity. Effects on aquatic organisms.
	All dust and granular formulations 5 pct and greater and all wettable powders and liquids.	do	do	
	Liquid and dry formulations 14% and above	Indoor (greenhouse) Applications to cranberries.	do	
Paraquat (dichloride) and paraquat bis(methyl sulfate).	All formulations	All uses (domestic and nondomestic).	Unclassified.	Other hazards. Use and accident history, human toxicological data.
	Liquid and dry formulations 1.5% and less	All uses	Restricted	
	All formulations and concentrations except those listed below.	Spot weed and grass control.	do.	
	Pressurized spray formulations containing 0.44 pct Paraquat bis(methyl sulfate) and 15 pct petroleum distillates as active ingredients. Liquid fertilizers containing concentrations of 0.025 pct paraquat dichloride and 0.03 percent atrazine; 0.03 pct paraquat dichloride and 0.37 pct atrazine, 0.04 pct paraquat dichloride and 0.49 pct atrazine.	All uses	Unclassified.	

Active ingredient	Formulation	Use pattern	Classification ¹	Criteria influencing restriction
Phorate	Liquid formulations 65% and greater	do	Restricted	Acute dermal toxicity. Residue effects on avian species (applies to foliar applications only). Residue effects on mammalian species (applies to foliar application only). Effects on aquatic organisms. Acute dermal toxicity. Residue effects on mammalian species. Residue effects on avian species.
Phosphamidon	All granular formulations Liquid formulations 75% and greater	Ricedo	do	Do.
Picloram	Dust formulations 1.5% and greater All formulations and concentrations except tordon 101 R. Tordon 101 R forestry herbicide containing 5.4 pct picloram and 20.9 pct 2,4-D.	do	do	Residue effects on mammalian species. Hazard to nontarget organisms (specifically nontarget plants both crop and noncrop).
Sodium cyanide ³ Sodium fluoroacetate	All capsules and ball formulations All solutions and dry baits	Control of unwanted trees by cut surface treatment. All usesdo	Unclassified.	Inhalation hazard to humans. Acute oral toxicity. Hazard to nontarget organisms. Use and accident history. Acute oral toxicity. Hazard to nontarget avian species. Use and accident history. Hazard to nontarget organisms.
Strychnine	All dry baits, pellets and powder formulations greater than 0.5 pct. All dry baits, pellets and powder formulations	do	Restricteddo	Do.
Sulfotepp Zinc Phosphide	All dry baits, pellets and powder formulations 0.5 pct and below.do	All uses calling for burrow builders. All uses except subsoildo	do	Inhalation hazard to humans. Acute oral toxicity. Hazard to nontarget organisms. Use and accident history. Hazard to nontarget organisms.
	Sprays and smoke generators All formulations 2% and less	All subsoil uses All uses All domestic uses and non-domestic uses in and around buildings.	Unclassified. Restricted Unclassified.	Inhalation hazard to humans.
	All dry formulations 60% and greater.	All uses Non-domestic outdoor uses (other than around buildings).	Restricteddo	Acute inhalation toxicity. Hazard to non-target organisms.
	All bait formulations	Domestic uses	do	Acute oral toxicity.
	All dry formulations 10% and greater	do	do	Acute oral toxicity.

¹ "Under evaluation" means no classification decision has been made and the use/formulation in question is still under active review within EPA.

² Percentages given are the total of dioxathion plus related compounds.

³ (NOTE—M-44 sodium cyanide capsules may only be used by certified applicators who have also taken the required additional training.)

[43 FR 5790, Feb. 9, 1978, as amended at 44 FR 45132, Aug. 1, 1979; 46 FR 5698, Jan. 19, 1981. Redesignated and amended at 53 FR 15988, May 4, 1988; 60 FR 32096, June 19, 1995]

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Subparts J—T [Reserved]

Subpart U—Registration Fees

SOURCE: 53 FR 19114, May 26, 1988, unless otherwise noted.

§ 152.400 Purpose.

Subpart U prescribes fees to be charged for the pesticide regulatory activities set forth in § 152.403 as performed by the Environmental Protection Agency (as authorized by 31 U.S.C. 9701 and Pub. L. 100–202) and provisions regarding their payment.

§ 152.401 Inapplicability of fee provisions to applications filed prior to October 1, 1997.

No fee required by this subpart U shall be levied with respect to any application filed during the period beginning on October 25, 1988, and ending on September 30, 1997. See FIFRA section 4(i)(7) (added to FIFRA by Pub. L. 100–532, October 25, 1988, 102 Stat. 2654).

[53 FR 11923, Mar. 22, 1989]

§ 152.403 Definitions of fee categories.

(a) *New chemical registration review* means review of an application for registration of a pesticide product containing a chemical active ingredient which is not contained as an active ingredient in any other pesticide product that is registered under FIFRA at the time the application is made.

(b) *New biochemical and microbial registration review* means review of an application for registration of a biochemical or microbial pesticide product containing a biochemical or microbial active ingredient not contained in any other pesticide product that is registered under FIFRA at the time the application is made. For purposes of this subpart, the definitions of biochemical and microbial pesticides contained in § 158.65 (a) and (b) of this chapter shall apply.

(c) *New use pattern registration review* means review of an application for registration, or for amendment of a registration entailing a major change to the use pattern of an active ingredient contained in a product registered under FIFRA or pending Agency decision on a prior application at the time of appli-

cation. For purposes of this paragraph, examples of major changes include but are not limited to, changes from non-food to food use, outdoor to indoor use, ground to aerial application, terrestrial to aquatic use, and non-residential to residential use.

(d) *Old chemical registration review* means review of an application for registration of a new product containing active ingredients and uses which are substantially similar or identical to those currently registered or for which an application is pending Agency decision.

(e) *Amendment review* means review of any application requiring Agency approval to amend the registration of a currently registered product, or for which an application is pending Agency decision, not entailing a major change to the use pattern of an active ingredient.

(f) *Experimental use permit review* means review of an application for a permit pursuant to section 5 of FIFRA to apply a limited quantity of a pesticide in order to accumulate information necessary to register the pesticide. The application may be for a new chemical or for a new use of an old chemical. The fee applies to such experimental uses of a single unregistered active ingredient (no limit on the number of other active ingredients, in a tank mix, already registered for the crops involved) and no more than three crops. This fee does not apply to experimental use permits required for small-scale field testing of microbial pest control agents (40 CFR 172.3).

§ 152.404 Fee amounts.

The fee prescribed by the following table must be submitted with each application for registration, amended registration or experimental use permit. Fees will be adjusted annually in accordance with § 152.410. The Agency may waive or refund fees in accordance with § 152.412.

TABLE—REGISTRATION FEES

Type of review	Fee
New chemical	\$184,500
New biochemical or microbial	64,000
New use pattern	33,800
Experimental use permit	4,500
Old chemical	4,000

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TABLE—REGISTRATION FEES—Continued

Type of review	Fee
Amendment	700

[53 FR 19114, May 26, 1988, as amended at 58 FR 34203, June 23, 1993]

§ 152.406 Submission of supplementary data.

Applicants may submit data to supplement pending applications without incurring additional charges if the proper fee was paid with submission of the original application and subsequent submissions of supplementary data do not constitute a change in the type of registration action requested.

[53 FR 19114, May 26, 1988, as amended at 58 FR 34203, June 23, 1993]

§ 152.408 Special considerations.

(a) If two or more applicants apply for a new chemical registration for products having the same active ingredient and each applicant provides a set of data in support of the registration developed independently of the other applicants' data, then each applicant submitting an independent set of data shall be charged the full new chemical registration review fee.

(b) If two or more applicants apply for a new chemical registration for products having the same active ingredient and the applicants have jointly developed or paid for the joint development of a common set of data to support their applications for registration, then each applicant shall be charged an equal share of the total fee for review of the applications for all of the subject products. The total fee will include the sum of the new chemical registration review fee for one product and one old chemical registration review fee for each additional product.

(c) If an application is received for registration of a product that contains two or more new chemical active ingredients and a different set of generic data is required by the Agency for each new chemical for the purpose of registration, the applicant will be required to pay the full new chemical registration review fee for each active ingredient.

§ 152.410 Adjustment of fees.

(a) The fee schedule will be adjusted annually by the same percentage as the percent change in the Federal General Schedule (GS) pay scale. Such adjustments will be published in the FEDERAL REGISTER as a final rule and will be effective 30 days or more after promulgation.

(b) Processing costs and fees will be reviewed periodically and changes will be made to the schedule as necessary. Such adjustments will be published for notice and comment in the FEDERAL REGISTER.

§ 152.412 Waivers and refunds.

(a) *Refunds.* If an application is not accepted for processing because it is incomplete, the fee, less \$1,200 for handling and initial review (or the amount of the fee, whichever is less), shall be returned. If an application is withdrawn by the applicant before significant Agency scientific review has begun, the fee, less \$1,200, shall be returned. If an unacceptable or withdrawn petition is resubmitted, it shall be accompanied by the fee that would be required if it were submitted for the first time.

(b) *Waiver of fees for activities initiated by the Agency.* The Agency may waive fees for amended registrations where the amendment has been initiated solely by the Agency. The Agency retains sole discretion in determining when this fee will be waived. The announcement of the fee waiver will accompany the EPA request for an amendment. The Agency will not approve any individual requests for waivers of EPA-initiated activity fees.

(c) *Waiver of fees for activities initiated by applicants.* Upon request by an applicant, together with the supporting documentation or justification described in this paragraph, the Agency may waive or refund fees in whole or in part. A request for waiver must be submitted in accordance with § 152.414(a). An application for which a waiver of fees has been requested will not be accepted for review until the waiver has been granted, or until the waiver has been denied and thereafter the proper fee has been submitted.

(1) *Minor use.* Fees may be waived for applications limited to minor uses that

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lack commercial feasibility for the pesticide applicant. An applicant requesting a waiver on this basis must provide supporting information that demonstrates that anticipated revenues from the uses that are the subject of the application would be insufficient to pay back the cost of the fee. The burden of proof of the reasonableness of this estimate rests with the applicant.

(2) *IR-4*. Fees will be waived for registration actions that are determined to be specifically associated with tolerance petitions submitted by the Inter-Regional Research Project Number 4 (IR-4 program) when such waiver is deemed by the Agency to be in the public interest.

(3) *Severe economic impact*. The Agency may waive two-thirds of any cumulative registration fee payment in a 12-month period following completion of the applicant's most recent fiscal year that exceeds 3 percent of the applicant's pesticide sales in its most recently completed fiscal year. An applicant requesting a waiver on this basis must provide documentation (e.g. copy of an annual report, or income tax forms filed with the Internal Revenue Service, or if needed, a notarized statement signed by a corporate officer regarding annual pesticide sales) demonstrating that:

(i) The company applying had less than \$40 million in gross revenue (including all revenue sources) in the most recently concluded fiscal year of operation, and a single fee would constitute more than 3 percent of the applicant's gross revenue from pesticide sales in the most recently completed fiscal year of operation, or

(ii) The company applying had less than \$40 million in gross revenue (including all revenue sources) in the most recently concluded fiscal year of operation, and the cumulative registration fees paid during the 12 months following the applicant's most recently completed fiscal year, including any registration fees paid for the applicant for which a waiver is requested, constitute more than 3 percent of the applicant's gross revenue from pesticide sales in the most recently concluded fiscal year of operation.

(iii) The Agency will not grant such a waiver if it determines that the entity

submitting the application has been formed or manipulated to qualify for such a waiver.

(4) *Public interest*. The Agency, in its discretion, may waive in whole or in part any of the fees established herein in the public interest. Examples include, but are not limited to, pesticides offering unique advantages for reducing public health risks, those that significantly reduce a current environmental risk, or a product with extraordinary utility for use in Integrated Pest Management (IPM).

[53 FR 19114, May 26, 1988, as amended at 58 FR 34203, June 23, 1993]

§ 152.414 Procedures.

(a) *Procedures for requesting a waiver*.

(1) A request for a waiver must be submitted in writing at the time the application is submitted to the Environmental Protection Agency, Office of Pesticide Programs, Registration Division (TS-767C), 401 M. Street SW., Washington, DC 20460.

(2) A payment of \$1,200 for processing the waiver or the amount of the actual fee, whichever is less, must be submitted simultaneously to the address set forth in paragraph (b) of this section. This fee will be refunded (or applied to any resulting partial fee) if the waiver is granted. Payment of fees for the registration activities, in contrast to the waiver fee, shall not be required until the Agency makes a determination on the waiver request. Since the actual fee is submitted to an address different than the one to which the waiver request is submitted, a copy of the payment document must be submitted with the waiver request that is submitted to the Washington, DC address set forth in paragraph (a)(1) of this section. No fee is required from a person who has no financial interest in the application.

(b) *Procedures for payment of fees*. All fees required by this section must be paid by money order, bank draft, or certified check drawn to the order of the Environmental Protection Agency. All payment of fees must be forwarded to the Environmental Protection Agency, Headquarters Accounting Operations Branch, Office of Pesticide Programs (Registration Fees), P.O. Box

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360277M, Pittsburgh, PA 15251. The payments should be specifically labeled “Registration Fees” and should be accompanied only by a copy of the registration application form or the experimental use permit application form, as appropriate. An application will not be accepted for processing until the required fees have been submitted.

(c) *Procedures for submitting application and supporting data.* The application, along with supporting data, shall be forwarded within 30 days of payment to the Washington DC address set forth in paragraph (a)(1) of this section.

[53 FR 19114, May 26, 1988, as amended at 58 FR 34203, June 23, 1993]

Subparts V—Y [Reserved]

Subpart Z—Devices

§ 152.500 Requirements for devices.

(a) A device is defined as any instrument or contrivance (other than a fire-arm) intended for trapping, destroying, repelling, or mitigating any pest or any other form of plant or animal life (other than man and other than a bacterium, virus, or other microorganism on or in living man or living animals) but not including equipment used for the application of pesticides (such as tamper-resistant bait boxes for rodenticides) when sold separately therefrom.

(b) A device is not required to be registered under FIFRA sec. 3. The Agency has issued a policy statement concerning its authority and activities with respect to devices, which was published in the FEDERAL REGISTER of November 19, 1976 (41 FR 51065). A device is subject to the requirements set forth in:

(1) FIFRA sec. 2(q)(1) and part 156 of this chapter, with respect to labeling;

(2) FIFRA sec. 7 and part 167 of this chapter, with respect to establishment registration and reporting;

(3) FIFRA sec. 8 and part 169 of this chapter, with respect to books and records;

(4) FIFRA sec. 9, with respect to inspection of establishments;

(5) FIFRA sec. 12, 13, and 14, with respect to violations, enforcement activities, and penalties;

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(6) FIFRA sec. 17, with respect to import and export of devices;

(7) FIFRA sec. 25(c)(3), with respect to child-resistant packaging; and

(8) FIFRA sec. 25(c)(4), with respect to the Agency’s authority to declare devices subject to certain provisions of the Act.

[53 FR 15990, May 4, 1988. Redesignated at 60 FR 32096, June 19, 1995]

PART 153—REGISTRATION POLICIES AND INTERPRETATIONS

Subparts A—F [Reserved]

Subpart G—Determination of Active and Inert Ingredients

Sec.

153.125 Criteria for determination of pesticidal activity.

Subpart H—Coloration and Discoloration of Pesticides

153.140 General.

153.155 Seed treatment products.

Subparts I—M [Reserved]

AUTHORITY: 7 U.S.C. 136w.

Subparts A—F [Reserved]

Subpart G—Determination of Active and Inert Ingredients

SOURCE: 53 FR 15989, May 4, 1988, unless otherwise noted.

§ 153.125 Criteria for determination of pesticidal activity.

(a) An ingredient will be considered an active ingredient if it is contained in a pesticide product and:

(1) The ingredient has the capability by itself, and when used as directed at the proposed use dilution, to function as a pesticide; or

(2) The ingredient has the ability to elicit or enhance a pesticidal effect in another compound whose pesticidal activity is substantially increased due to the interaction of the compounds. Compounds which function simply to enhance or prolong the activity of an active ingredient by physical action, such as stickers and other adjuvants,

are not generally considered to be active ingredients.

(b) Normally the applicant will determine and state in his application whether an ingredient is active or inert with respect to pesticidal activity. The Agency, as part of its review of an application for registration, or in conjunction with the Registration Standard or Special Review process, may require any ingredient, to be designated as an active ingredient if the Agency finds that it meets the criteria in paragraph (a) of this section. Conversely, the Agency may determine that any ingredient designated as active by an applicant is an inert ingredient if it fails to meet those criteria.

(c) If an ingredient is designated as an active ingredient, it must be identified in the label ingredients statement. If an ingredient is designated as an inert ingredient, it must be included as part of the total inert ingredients in the label ingredients statement.

(d) Designation of a substance as a pesticidally inert ingredient does not relieve the applicant or registrant of other requirements of FIFRA with respect to labeling of inert ingredients or submission of data, or from the requirements of the Federal Food, Drug, and Cosmetic Act with respect to tolerances or other clearance of ingredients.

[53 FR 15989, May 4, 1988, as amended at 60 FR 32096, June 19, 1995]

Subpart H—Coloration and Discoloration of Pesticides

SOURCE: 53 FR 15990, May 4, 1988, unless otherwise noted.

§ 153.140 General.

Section 25(c)(5) of the Act authorizes the Administrator to prescribe regulations requiring coloration or discoloration of any pesticide if the Administrator determines that such requirements are feasible and necessary for the protection of health and the environment. This subpart describes those pesticide products which must be colored or discolored.

[60 FR 32096, June 19, 1995]

§ 153.155 Seed treatment products.

(a) Pesticide products intended for use in treating seeds must contain an EPA-approved dye to impart an unnatural color to the seed, unless appropriate tolerances or other clearances have been established under the Federal Food, Drug and Cosmetic Act for residues of the pesticide.

(b) The following products are exempt from the requirement of paragraph (a) of this section:

(1) Products intended and labeled for use solely by commercial seed treaters, provided that the label bears a statement requiring the user to add an EPA-approved dye with the pesticide during the seed treatment process.

(2) Products intended and labeled for use solely as at-planting or hopper box treatments.

(3) Products which are gaseous in form or are used as fumigants.

(c) EPA-approved dyes are those listed in § 180.1001 (c) and (d) of this chapter. Upon written request additional dyes will be considered for inclusion in this listing.

Subparts I—M [Reserved]

PART 154—SPECIAL REVIEW PROCEDURES

Subpart A—General Provisions

Sec.

154.1 Purpose and scope.

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154.5 Burden of persuasion in determinations under this part.

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154.34 Expedited procedures.

154.35 Finality of determinations.

AUTHORITY: 15 U.S.C. 136a, d, and w.

SOURCE: 50 FR 49015, Nov. 27, 1985, unless otherwise noted.

Subpart A—General Provisions

§ 154.1 Purpose and scope.

(a) *Purpose.* The purpose of the Special Review process is to help the Agency determine whether to initiate procedures to cancel, deny, or reclassify registration of a pesticide product because uses of that product may cause unreasonable adverse effects on the environment, in accordance with sections 3(c)(6) and 6 of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA). The process is intended to ensure that the Agency assesses risks that may be posed by pesticides, and the benefits of use of those pesticides, in an open and responsive manner. The issuance of a Notice of Special Review means that the Agency has determined that one or more uses of a pesticide may pose significant risks and that, following completion of the Special Review process, the Agency expects to initiate formal proceedings seeking to cancel, deny, reclassify, or require modifications to the registration of the product(s) in question unless it has been shown during the Special Review that the Agency's initial determination was erroneous, that the risks can be reduced to acceptable levels without the need for formal proceedings, or that the benefits of the pesticide's use outweigh the risks. Following completion of the Special Review process, a pesticide in question may be returned to the registration process.

(b) *Scope.* This part sets forth the substantive standards for initiating a Special Review of a pesticide product and the procedures for initiating and conducting the Special Review.

§ 154.3 Definitions.

(a) Except as otherwise defined in this section, terms defined in section 2 of FIFRA shall have the same definitions for purposes of this part.

(b) The term *Act* or *FIFRA* means the Federal Insecticide, Fungicide, and

Rodenticide Act, as amended, 7 U.S.C. 136 et seq.

(c) The term *Administrator* means the Administrator of the Environmental Protection Agency or any officer or employee thereof to whom authority has been delegated to act for the Administrator.

(d) The term *confidential business information* means trade secrets or confidential commercial or financial information under FIFRA section 10(b) or 5 U.S.C. 552(b) (3) or (4).

(e) The term *other significant evidence* means factually significant information that relates to the uses of the pesticide and their adverse risk to man or to the environment but does not include evidence based only on misuse of the pesticide unless such misuse is widespread and commonly recognized practice.

(f) The term *person* means an applicant, registrant, manufacturer, pesticide user, environmental group, labor union, or other individual or group of individuals interested in pesticide regulation.

(g) The term *pesticide use* means a use of a pesticide (described in terms of the application site and other applicable identifying factors) that is included in the labeling of a pesticide product which is registered, or for which an application for registration is pending, and the terms and conditions (or proposed terms and conditions) of registration for the use.

(h) *Terms and conditions of registration* means the terms and conditions governing lawful sale, distribution, and use approved in conjunction with registration, including labeling, use classification, composition, and packaging.

(i) The term *validated test* means a test determined by the Agency to have been conducted and evaluated in a manner consistent with accepted scientific procedures

§ 154.5 Burden of persuasion in determinations under this part.

In making determinations under this part the Administrator shall be guided by the principle that the burden of persuasion that a pesticide product is entitled to registration or continued registration for any particular use or under any particular set of terms and

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conditions of registration is always on the proponent(s) of registration.

§ 154.7 Criteria for initiation of Special Review.

(a) The Administrator may conduct a Special Review of a pesticide use if he determines, based on a validated test or other significant evidence, that the use of the pesticide (taking into account the ingredients, impurities, metabolites, and degradation products of the pesticide):

(1) May pose a risk of serious acute injury to humans or domestic animals.

(2) May pose a risk of inducing in humans an oncogenic, heritable genetic, teratogenic, fetotoxic, reproductive effect, or a chronic or delayed toxic effect, which risk is of concern in terms of either the degree of risk to individual humans or the number of humans at some risk, based upon:

(i) Effects demonstrated in humans or experimental animals.

(ii) Known or predicted levels of exposure of various groups of humans.

(iii) The use of appropriate methods of evaluating data and relating such data to human risk.

(3) May result in residues in the environment of nontarget organisms at levels which equal or exceed concentrations acutely or chronically toxic to such organisms, or at levels which produce adverse reproductive effects in such organisms, as determined from tests conducted on representative species or from other appropriate data.

(4) May pose a risk to the continued existence of any endangered or threatened species designated by the Secretary of the Interior or the Secretary of Commerce under the Endangered Species Act of 1973, as amended.

(5) May result in the destruction or other adverse modification of any habitat designated by the Secretary of the Interior or the Secretary of Commerce under the Endangered Species Act as a critical habitat for any endangered or threatened species.

(6) May otherwise pose a risk to humans or to the environment which is of sufficient magnitude to merit a determination whether the use of the pesticide product offers offsetting social, economic, and environmental benefits

that justify initial or continued registration.

(b) In making any determination that a pesticide use satisfies one of the criteria for issuance of a Special Review specified by paragraph (a) of this section, the Administrator shall consider available evidence concerning both the adverse effect in question and the magnitude and scope of exposure of humans and nontarget organisms associated with use of the pesticide.

§ 154.10 Petitions to begin the Special Review process.

The Administrator may evaluate a pesticide use under the criteria of § 154.7 either on his own initiative, or at the suggestion of any interested person.

§ 154.15 Docket for the Special Review.

(a) *Establishment of the docket.* When the Agency first notifies registrants privately that it is considering issuance of a Notice of Special Review for a pesticide, it shall establish a docket concerning that particular pesticide.

(b) *Contents of the docket.* For each pre-Special Review or Special Review, the docket shall contain:

(1) The Notice of Special Review, any Notice of Preliminary Determination, and any Notice of Final Determination.

(2) Any notice issued under § 154.21 or § 154.23.

(3) Any documents (other than information claimed to be confidential business information) referred to by the Agency in those notices as relied upon by the Agency in reaching its determination.

(4) Copies of all written comments or materials (other than information claimed to be confidential business information) responding to any notice furnished under § 154.21 or § 154.23 or submitted at any time during the Special Review process by any person outside of government.

(5) Any written response to the Notice of Preliminary Determination from the Secretary of Agriculture or the Scientific Advisory Panel.

(6) A transcript of all public meetings held by the Scientific Advisory Panel or conducted by the Agency for the purpose of gathering information.

(7) A memorandum describing each meeting between Agency personnel and any person or party outside of government which concerns a pending pre-Special Review or Special Review decision. Each such memorandum shall be based on notes taken at the meeting and shall specify the date and time of the meeting, the participants and their affiliations, who requested the meeting, the subject matter of the meeting, and the person who prepared the memorandum. Except for information claimed to be confidential business information, each memorandum shall describe fully and accurately all significant positions taken, arguments made, and facts presented by each participant in the meeting, and shall identify all documents, proposals, or other materials distributed or exchanged at the meeting. Any discussion of claimed confidential business information shall be identified in meeting notes and referenced in the memorandum.

(8) All comments, correspondence, or other materials concerning a pending pre-Special Review or Special Review decision provided to the Agency by a person or party outside of government (other than information claimed to be confidential business information).

(9) All documents, proposals, or other materials concerning a pending pre-Special Review or Special Review decision, provided by the Agency to any person or party outside of government (other than information claimed to be confidential business information).

(c) *Assertion of confidential business information claims.* (1) Information, comments, data, or other written material submitted to the Agency concerning a Special Review may be claimed by the submitter to be confidential business information. The burden of identifying claimed confidential business information rests with the submitter, or, in meetings, with the participants who wish to assert a claim of confidentiality.

(2) To assert a claim of confidentiality for all or any part of a written submission concerning a Special Review, the submitter must furnish three copies of the material. Two copies must be complete, with claimed confidential business information clearly marked in the text. Items in the document that

are claimed confidential should be numbered consecutively throughout the text. The third copy must have the claimed confidential business information excised from the text without closing up or paraphrasing the remaining text. The deletions should be consecutively numbered to correspond to the numbering of the complete copies. Each copy must be marked on the cover as to whether it contains claimed confidential business information.

(3) Any written material concerning a Special Review received by the Agency that is not marked as confidential will be deemed to be nonconfidential, and may be made available through the public docket or otherwise disclosed without prior notice to the submitter.

(d) *Placement of materials in the docket.* Any memorandum identified under paragraph (b)(7) of this section shall be placed in the docket within 10 working days of the subject meeting. Materials identified under paragraph (b)(8) of this section shall be placed in the docket within 10 working days of receipt by the Office of Pesticide Programs, or within 15 working days of receipt by the Office of Pesticide Programs if the submitter has asserted a confidential business information claim concerning the submittal. Materials identified under paragraph (b)(9) of this section shall be placed in the docket within 15 working days of transmittal to such person or party outside of government.

(e) *Index.* The Agency shall prepare and maintain a current index of all materials included in the docket. The index will include a list identifying, for each meeting between Agency personnel and a person or party outside of government for which a memorandum has been prepared, the date, the subject, participants, and person who requested the meeting. The index will also list any document included in the docket by its title, its source, its recipient, and the date it was received or provided by the Agency.

(f) *Access to the docket.* (1)(i) For each chemical in Special Review, the docket shall be available for public inspection and copying and its index kept current and made available to the public on request. The docket and index for any pesticide for which the Agency has issued a pre-Special Review notification

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under § 154.21 will only be made available for public inspection and copying following issuance of a proposed decision not to start a Special Review under § 154.23, a Notice of Special Review under § 154.25(c), or as otherwise specified in § 154.34.

(ii) The docket and index will be available at the Program Management and Support Division, in Rm. 236, CM#2, 1921 Jefferson Davis Highway, Arlington, VA, from 8 a.m. to 4 p.m. Monday through Friday, excluding legal holidays.

(2) Information contained in the docket shall not be disclosed to the public to the extent that FIFRA or any other statute or regulation (including, but not limited to, 5 U.S.C. 552(b)(3) or (4)) prohibits its disclosure.

(3) The Agency will distribute a compendium of indices for new materials in the public docket by mail, on a monthly basis, to those members of the public who have specifically requested such material. The Agency will announce the availability of docket indices both annually in the FEDERAL REGISTER and in each FEDERAL REGISTER Notice concerning pre-Special Review or Special Review for specific pesticides. The Agency may also periodically require parties on the mailing list to renew their previous request for such materials.

Subpart B—Procedures

§ 154.21 Preliminary notification to registrants and applicants for registration.

(a) *Preliminary notification.* If the Administrator decides that he may initiate a Special Review of a pesticide use, he shall send written notice by certified mail to the affected registrant(s) and applicant(s) setting forth his decision and a general description of the information which supports it.

(b) *Comment opportunity.* Registrant(s) and applicant(s) will be allowed 30 days from the receipt of notification to respond in writing to dispute the validity of the Agency's conclusions or to present information in response to the notification.

§ 154.23 Proposed decision not to initiate a Special Review.

If the Administrator proposes not to initiate a Special Review after having given notice under § 154.21, he shall issue a proposed decision for publication in the FEDERAL REGISTER. The proposal shall include a description of the concerns which were the original basis for placement of the pesticide in pre-Special Review status and the Agency's rationale for its proposed decision, announce the availability of a public docket, and provide a period generally not less than 30 days for submission of comments. A notice under § 154.25(b) may not be published unless it has been preceded by a notice under this section. A proposal under this section shall not be based on the benefits of use of a pesticide product.

§ 154.25 Public announcement of final decision whether to initiate a Special Review.

(a) The Administrator shall evaluate the available information and the comments received in response to the notice under § 154.21 and any notice issued under § 154.23, and shall issue for publication in the FEDERAL REGISTER a notice under paragraph (b) or (c) of this section.

(b) If the Administrator determines after having given notice under § 154.21 not to initiate a Special Review, he shall issue his decision for publication in the FEDERAL REGISTER with a statement of reasons.

(c) If the Administrator determines after having given notice under § 154.21 that one or more of the risk criteria set forth in § 154.7 have been satisfied, the Agency shall issue a notice for publication in the FEDERAL REGISTER which shall include:

(1) Identification of the pesticide uses for which a Special Review has been initiated and an identification of the criteria which have been satisfied.

(2) A brief discussion of the Agency's reasons for determining that the criteria have been satisfied.

(3) A statement indicating that EPA has established a docket for the Special Review, the contents of the docket, the location of the docket, and the times during which the docket will be available for inspection and copying.

(4) An invitation to all interested persons to submit further information concerning the risks and benefits associated with each use of the pesticide subject to the Special Review.

(5) A brief description of the Special Review process and a statement that registrants and applicants bear an affirmative burden of supporting registration of a pesticide product.

(6) A date by which information in response to the Agency's request for further information must be submitted.

(d) In his discretion, the Administrator may request that the Scientific Advisory Panel hold a public meeting to review the scientific issues related to the Special Review.

§ 154.26 Comment opportunity.

After issuance of a Notice of Special Review that applies to a use of a pesticide product (or category of products), any person may submit to the Agency any information, argument, or both, pertinent to:

(a) Whether the use of a pesticide product satisfies any of the § 154.7 risk criteria, with respect to the composition, labeling, packaging, and restrictions on use of the product as currently registered.

(b) Whether the use of a pesticide product would satisfy any of the § 154.7 risk criteria if its composition, labeling, packaging, and restrictions on use were approved in accordance with an application for registration or amended registration pending before the Agency. For further information see § 154.27(b).

(c) Whether any risks posed by the use or proposed use of the product that satisfy the § 154.7 risk criteria are unreasonable, taking into account the economic, social, and environmental costs and benefits of the use of the product.

(d) What regulatory action, if any, the Agency should take with respect to the use of the product.

§ 154.27 Meetings with interested persons.

(a) In the Special Review process, to assure openness and responsiveness, no person or party outside of government will be afforded special or preferential

access to Agency Special Review decisionmakers or to the Agency's Special Review process. At the same time, however, Agency personnel are free to meet and otherwise communicate with persons or parties outside of government, including registrants and manufacturers, users, trade unions, environmental groups and other interested persons, to obtain information, exchange views, explore factual and substantive positions, or discuss regulatory options concerning Special Review decisions.

(b) Meetings between EPA and any person or party outside of government will not result in undue delay in reaching Special Review decisions. During such meetings, the Agency will not commit to take any particular action concerning a pending decision. The Agency may receive and consider information and recommendations from persons or parties outside of government; however, the Agency will make the final administrative decision on a wholly independent basis and in accordance with law.

(c) Any interested person may ask to meet with Agency officials to discuss factual information available to the Agency, to present any factual information, to respond to presentations by other persons, or to discuss what regulatory actions should be taken regarding a pesticide which is or may be the subject of a Special Review. If, at its discretion, the Agency holds such meetings with any person outside of government concerning a use of a pesticide product, the Agency will prepare and file in the docket a memorandum of such meeting, meeting the requirements specified in § 154.15(b)(7).

(d) Meetings described in this section may include meetings held after issuance of a Notice of Special Review with any registrant who proposes to change voluntarily the composition, packaging, and labeling, or other terms and conditions of registration of his pesticide product in a way which he believes would reduce the risks of use of the product so that it would no longer meet or exceed the risk criteria of § 154.7. Meetings for this purpose will be most helpful and productive for both registrants and the Agency if they are requested by registrants shortly after

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the issuance of the Notice of Special Review.

(e) If the Agency meets with any person or party outside of government concerning a pending Special Review decision, the Agency will not issue a final Special Review decision until 30 days after inclusion of a memorandum concerning that meeting in the public docket. During those 30 days, any person or party may submit written comments to the Agency regarding the subject matter of the meeting in question. The Agency may issue a final Special Review decision without allowing this 30-day period if expedited action is necessary to protect public health or the environment, or if the Agency has invited other parties with potentially opposing viewpoints to the meeting in question (e.g., registrants, users, labor, and environmental groups).

(f) The Agency may decline to meet subsequently with any person or party who asserts unreasonable confidential business information claims pursuant to § 154.15(c) for the purpose of circumventing the docketing procedures described in § 154.15(b).

§ 154.29 Informal public hearings.

(a) *Timing.* At any time after issuance of a Notice of Special Review and prior to issuance of a Notice of Final Determination, the Administrator may conduct an informal public hearing to gather relevant information or otherwise assist Agency decisionmaking.

(b) *FEDERAL REGISTER notice.* The Administrator shall issue a notice for publication in the FEDERAL REGISTER of any informal public hearing to be held under this section. The notice shall contain the following information:

(1) The time, date, and place of the hearing.

(2) A brief description of the procedures governing participation in the hearing by interested persons.

(3) The issues to be considered at the hearing.

(c) *Transcript.* A verbatim transcript of the hearing shall be prepared and filed in the public docket.

§ 154.31 Notices of Preliminary Determination.

The Administrator shall prepare a Notice of Preliminary Determination after the close of the comment period on a Notice of Special Review.

(a) *Contents of notice.* The Notice of Preliminary Determination shall respond to all significant comments submitted in response to the Notice of Special Review. For each use of a pesticide product that was the subject of the Notice of Special Review, the Notice of Preliminary Determination shall also include, as appropriate:

(1) A determination whether the use satisfies any of the risk criteria set forth in § 154.7, and a discussion of the reasons for the determination.

(2) A determination of whether any changes in the composition, packaging, labeling, or restrictions on use of a pesticide product that were proposed in an application for new or amended registration submitted after issuance of the Notice of Special Review would reduce the risk so that the use no longer would satisfy any of the risk criteria in § 154.7.

(3) If the use satisfies any of the risk criteria set forth in § 154.7, a determination of whether the adverse effects posed by the use are unreasonable, taking into account the economic, social, and environmental costs and benefits of the use of the product, and a discussion of reasons for the determination.

(4) If the use is determined to pose an unreasonable adverse effect, a statement of the regulatory action, if any, which the Agency intends to initiate with respect to the use, and a discussion of the reasons for initiating that regulatory action.

(5) A statement that the Administrator is requesting comments from the Secretary of Agriculture and the Scientific Advisory Panel on the notices and analysis specified in paragraph (b) of this section, and that the notices and analysis are available on request.

(6) Instructions to interested persons on how to submit comments (including the deadline for submission of comments).

(7) The location of the docket under § 154.15 and the times during which the

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docket will be available for inspection and copying.

(b) *Referral to Secretary of Agriculture and Scientific Advisory Panel.* If the Administrator proposes to cancel, deny, or change the classification of the registration of a pesticide product which is the subject of a Special Review, or to hold a hearing under FIFRA section 6(b)(2) on whether to take any of those actions, he shall:

(1) Prepare a proposed form of a Notice of Intent to Cancel, a Notice of Intent to Deny Registration, a Notice of Intent to Hold a Hearing, and/or a Notice of Intent to Change Classification, as appropriate.

(2) Prepare an Agricultural Impact Analysis, analyzing the impact of the proposed action on production and prices of agricultural commodities, retail food prices, and otherwise on the agricultural economy.

(3) Send the proposed notices and analysis to the Secretary of Agriculture and the Scientific Advisory Panel for comment, as provided by the Act.

(4) Send the Notice of Preliminary Determination and the other notices and analysis prepared under this section to all registrants and applicants for registration of products that are subject to the Special Review.

(c) *Publication.* The Agency shall issue the Notice of Preliminary Determination for publication in the FEDERAL REGISTER.

§ 154.33 Notice of Final Determination.

(a) *Publication and notice to registrants and applicants.* The Administrator shall prepare a Notice of Final Determination after the close of the comment period on a Notice of Preliminary Determination. As necessary, the Administrator shall also prepare Notices of Intent to Cancel, Notices of Denial, Notices of Intent to Hold a Hearing under FIFRA section 6(b)(2), or Notices of Intent to Change Classification.

(b) *Contents.* The Notice of Final Determination shall include:

(1) For each pesticide use subject to the Notice of Preliminary Determination, the Agency's final determination with respect to each use, along with a discussion of the reasons for the determination.

(2) Any comments submitted by the Secretary of Agriculture or the Scientific Advisory Panel, and the responses of the Administrator to these comments.

(3) The response of the Administrator to any significant public comments submitted on the Notice of Preliminary Determination.

(4) Instructions to registrants, applicants for registration, and other interested persons concerning the procedures which will be used to implement any regulatory action which the Administrator has decided upon, including instructions concerning how to request hearings, if hearings are available as of right under the Act or have been made available by the Administrator under the Act.

(5) The location of the docket under § 154.15 and the times during which the docket will be available for inspection and copying.

(c) *Publication and notification of registrants and applicants.* The Notice of Final Determination and any Notice of Intent to Cancel, Notice of Denial, Notice of Intent to Hold a Hearing, or Notice of Intent to Change Classification shall be published in the FEDERAL REGISTER. If the Administrator issues a Notice of Intent to Cancel, Notice of Denial, Notice of Intent to Hold a Hearing, or Notice of Intent to Change Classification, such notice, along with the Notice of Final Determination, also shall be sent by certified mail to all affected registrants and applicants.

§ 154.34 Expedited procedures.

(a) The Agency may elect to issue a Notice of Special Review and a Notice of Preliminary Determination simultaneously; or, to initiate cancellation, suspension, or denial proceedings concerning a pesticide or any of its uses without first conducting a Special Review or issuing a Notice of Preliminary Determination.

(b) If the Agency elects to issue a simultaneous Notice of Special Review and Notice of Preliminary Determination, the Agency will make the docket for that decision available for public inspection no more than 3 months after the Agency privately notifies the registrant of its risk concerns pursuant to § 154.21(a).

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§ 154.35 Finality of determinations.

(a) The Administrator will not approve an application for registration or amended registration of a pesticide product except by use of the procedures specified in paragraph (c) of this section, if:

(1) The application proposes registration of a product for a use which earlier had been the subject of a notice under § 154.21(a);

(2) After the Administrator issued the notice, he determined not to initiate a Special Review, because of a proposal by an applicant for registration or amended registration to change the terms and conditions of registration of the product in a way which would reduce the risk sufficiently to eliminate the need for a Special Review; and

(3) The application for registration or amended registration now proposes that the terms and conditions which served as the basis of the earlier determination be eliminated, or be modified in a way which might increase the risk which was the subject of the notice under § 154.21(a).

(b) The Administrator will not approve an application for registration or amended registration of a pesticide product except by use of the procedures specified in paragraph (c) of this section, if:

(1) The application proposed registration of a product for a use which earlier had been the subject of a Notice of Special Review issued under § 154.25;

(2) After the Administrator issued that Notice, he determined not to issue a notice under FIFRA section 3(c)(6) or 6(b) because of a proposal by an applicant for registration or amended registration to change the terms and conditions of registration of the product in a way which would reduce the risk sufficiently to eliminate the need for issuance of a notice under FIFRA section 3(c)(6) or 6(b); and

(3) The application for registration or amended registration now proposes that the terms and conditions of registration which served as the basis for the earlier determination now be eliminated or be modified in a way which might increase the risk which was the subject of the Notice of Special Review.

(c) An application to which paragraph (a) or (b) of this section applies may not be approved until:

(1) The Administrator issues a notice for publication in the FEDERAL REGISTER which describes why the application is subject to the provisions of this section, states that the Administrator proposes to approve the application and his reasons, solicits public comment on whether the application should be approved, and provides a period not less than 30 days for comments to be submitted; and

(2) If any substantive comments are submitted in response to the notice, the Administrator issues a second notice for publication in the FEDERAL REGISTER responding to the comments.

PART 155—REGISTRATION STANDARDS

Subpart A—[Reserved]

Subpart B—Docketing and Public Participation Procedures

Sec.

155.23 Definitions.

155.25 Schedule.

155.27 Agency review of data.

155.30 Meetings and communications.

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155.34 Notice of availability.

AUTHORITY: 7 U.S.C. 136 through 136y.

SOURCE: 50 FR 49001, Nov. 27, 1985, unless otherwise noted.

Subpart A—[Reserved]

Subpart B—Docketing and Public Participation Procedures

§ 155.23 Definitions.

For the purposes of this part, *confidential business information* means trade secrets or confidential commercial or financial information under FIFRA sec. 10(b) or 5 U.S.C. 552(b) (3) or (4).

§ 155.25 Schedule.

EPA will issue annually in the FEDERAL REGISTER a notice listing the pesticides (or groups of pesticides) for

which Registration Standards are currently being developed. The list will include pesticides for which a Registration Standard is scheduled for issuance within the next year, and the approximate sequence of issuance. The list may also include pesticides for which a Registration Standard will be under development during the upcoming year, but which are not scheduled for issuance until the succeeding year. The notice will invite comment and submission of information on the individual pesticides on the list.

§ 155.27 Agency review of data.

EPA will independently (or using the services of disinterested contractors or consultants) review available data in preparation for the development of a Registration Standard, and will be responsible for the drafting of the Registration Standard based on such data reviews. The Agency will not permit registrants to prepare, or assist in the preparation of, data reviews or other Registration Standard documents. The Agency may, however, meet with registrants to discuss its pending reviews, decisions, or documents, in accordance with the meeting procedures in § 155.30, and the docketing procedures in § 155.32.

§ 155.30 Meetings and communications.

EPA personnel may, upon their own initiative or upon request of any interested person or party, meet or communicate with persons or parties outside of government concerning a Registration Standard under development. Such meetings or communications will conform to the following policies and procedures:

(a) *Purpose.* Meetings and communications may be for the purpose of receiving and considering information, exchanging views, exploring factual and substantive positions, discussing regulatory options or for any other purpose deemed appropriate by the Agency in its deliberations concerning development of a Registration Standard. The Agency will not commit to take any particular action concerning a Registration Standard under development during discussions with any per-

son or party outside of government. The Agency will make its final administrative decision on a wholly independent basis, and in accordance with law.

(b) *Meetings with persons or parties outside of government.* Requests by responsible persons or parties outside of government to meet with Agency personnel concerning a Registration Standard under development should be directed in writing to the Registration Division. Reasonable requests will ordinarily be granted on a timely basis. EPA will decide the time and place of such meetings, and the Agency personnel who will attend. EPA may decline to meet with persons or parties who assert unreasonable claims of confidential business information for the purpose of circumventing the docketing procedures in § 155.32. EPA may also decline to meet if the number or frequency of meetings would delay unduly the issuance of the Registration Standard. Further, no person or party outside government will be accorded special or preferential access to Agency pesticide decisionmaking or to the Agency's decisional process.

(c) *Information submitted to the Agency concerning a Registration Standard under development.* (1) Information, comments, data, or other written material submitted to the Agency at any time concerning a Registration Standard under development may be claimed by the submitter to be confidential business information. The burden of identifying claimed confidential business information rests with the submitter, or, in meetings, with the participants from outside of government who wish to assert a claim of confidentiality.

(2) To assert a claim of confidentiality for all or any part of a written submission concerning a Registration Standard under development, the submitter must furnish three copies of the material. Two copies must be complete, with claimed confidential business information clearly marked in the text. Items in the document that are claimed confidential should be numbered consecutively throughout the document. The third copy must have the claimed confidential business information excised from the text without

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closing up or paraphrasing the remaining text. The deletions should be consecutively numbered to correspond to the numbering of the complete copies. Each copy must be marked on the cover as to whether it contains claimed confidential business information.

(3) Any written material received by the Agency that is not marked as confidential will be deemed to be nonconfidential, and may be made available through the public docket or otherwise disclosed without prior notice to the submitter.

(d) *Memorandum of meeting.* For each meeting with a person or party outside of government, the Agency will prepare, based on notes taken at the meeting, a memorandum of the meeting. The memorandum will be prepared within 10 working days of the meeting and will include all of the following information:

- (1) The date and time of the meeting.
- (2) The name of the person who requested the meeting.
- (3) The names and affiliations of the participants.
- (4) The subject matter of the meeting.
- (5) A full and accurate description of all significant positions taken, facts presented, and arguments made by each participant (except that any discussion of claimed confidential business information will be identified in meeting notes, and referenced in the memorandum).
- (6) Identification of all documents, proposals, or other materials (other than information claimed to be confidential business information) distributed or exchanged at the meeting.
- (7) The name of the person who prepared the memorandum.

[50 FR 49001, Nov. 27, 1985, as amended at 58 FR 34203, June 23, 1993]

§ 155.32 Public docket.

(a) *When created.* (1) A docket will be created for each Registration Standard under development when the Agency begins review of data for the Registration Standard or upon publication of the notice described in § 155.25 setting out the list and sequence of Registration Standards, whichever is earlier. The Agency will announce in its annual schedule notice the dockets that

are available for Registration Standards under development.

(2) If the Agency notifies registrants privately in accordance with 40 CFR 154.21 that one or more risk criteria set forth in 40 CFR 154.7 (leading to a special review) may have been exceeded, that notification and any subsequent communications concerning that notification will be placed in a separate docket pertaining to possible special review in accordance with the provisions of § 154.15.

(b) *Contents of docket.* The docket will contain, within the time frames indicated, all of the following documents and information (except that information claimed to be confidential business information will not be included):

(1) An index of its contents (refer to paragraph (c) of this section).

(2) A copy of each comment received in response to the notice described in § 155.25 that pertains to a pesticide for which the notice indicated a Registration Standard was under development (within 10 working days after receipt by the Agency, or 15 working days if the submitter has asserted a confidential business information claim concerning the material).

(3) A copy of each memorandum of a meeting between the Agency and persons or parties outside of government, prepared in accordance with § 155.30(d) (within 10 working days after the meeting).

(4) A copy of each document, comment, item of correspondence or other written material concerning the Registration Standard submitted to the Agency by any person or party outside of government, whether in a meeting or separately (within 10 working days after receipt, or 15 working days if the submitter has asserted a confidential business information claim concerning the material).

(5) A copy of each document, proposal, or other item of written material concerning the Registration Standard provided by the Agency to any person or party outside of government (within 15 working days after the item is made available to such person or party).

(6) A copy of the Registration Standard;

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(7) With respect to a Registration Standard for which the Agency has determined that a substantially complete chronic health and teratology data base exists, a copy of the FEDERAL REGISTER notice concerning availability of a proposed Registration Standard, and a copy of each comment received in response to that notice (within 10 working days after receipt by the Agency, or 15 working days if the submitter has asserted a confidential business information claim concerning the material).

(8) A copy of the FEDERAL REGISTER notice announcing the issuance of the Registration Standard (within 10 working days after the publication of the notice).

(c) *Index of the docket.* The Agency will establish and keep current an index to the docket for each Registration Standard. The index will include, but is not limited to:

(1) A list of each meeting between the Agency and any person or party outside of government, containing the date and subject of the meeting, the names of participants and the name of the person requesting the meeting.

(2) A list of each document in the docket by title, source or recipient(s), and the date the document was received or provided by the Agency.

(d) *Availability of docket and indices.*

(1) The Agency will make available to the public for inspection and copying the docket and index for any Registration Standard.

(2) The Agency will establish and maintain a mailing list of persons who have specifically requested that they receive indices for Registration Standard dockets. On a quarterly basis, EPA will distribute the indices of new materials placed in the public docket to these persons. Annually, EPA will require that persons on the list renew their requests for inclusion on the list.

(3) The Agency will issue annually in the FEDERAL REGISTER (in conjunction with the annual schedule notice specified in § 155.25) a notice announcing the availability of docket indices.

(4) Each FEDERAL REGISTER notice of availability of a Registration Standard will announce the availability of the docket index for that Standard.

§ 155.34 Notice of availability.

(a) The Agency will issue in the FEDERAL REGISTER a notice announcing the issuance and availability of Registration Standard which:

(1) Concerns a previously unregistered active ingredient; or

(2) Concerns a previously registered active ingredient, and the Registration Standard states that registrants will be required (under FIFRA section 3(c)(2)(B)) to submit chronic health (including, but not limited to, chronic feeding, oncogenicity and reproduction) or teratology studies.

(b) Interested persons may submit comments concerning any Registration Standard described by paragraph (a) of this section at any time.

(c) The Agency will issue in the FEDERAL REGISTER a notice announcing the availability of, and providing opportunity for comment on, each proposed Registration Standard which concerns a previously registered active ingredient for which the Agency has determined that a substantially complete chronic health and teratology data base exists. Following the comment period and issuance of the Registration Standard, the Agency will issue in the FEDERAL REGISTER a notice of availability of the Registration Standard.

PART 156—LABELING REQUIREMENTS FOR PESTICIDES AND DEVICES

Subpart A—General Provisions

Sec.

156.10 Labeling requirements.

Subparts B–J [Reserved]

Subpart K—Worker Protection Statements

156.200 Scope and applicability.

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156.204 Modification and waiver of requirements.

156.206 General statements.

156.208 Restricted-entry statements.

156.210 Notification-to-workers statements.

156.212 Personal protective equipment statements.

AUTHORITY: 7 U.S.C. 136–136y.

Subpart A—General Provisions**§ 156.10 Labeling requirements.**

(a) *General*—(1) *Contents of the label.* Every pesticide products shall bear a label containing the information specified by the Act and the regulations in this part. The contents of a label must show clearly and prominently the following:

(i) The name, brand, or trademark under which the product is sold as prescribed in paragraph (b) of this section;

(ii) The name and address of the producer, registrant, or person for whom produced as prescribed in paragraph (c) of this section;

(iii) The net contents as prescribed in paragraph (d) of this section;

(iv) The product registration number as prescribed in paragraph (e) of this section;

(v) The producing establishment number as prescribed in paragraph (f) of this section;

(vi) An ingredient statement as prescribed in paragraph (g) of this section;

(vii) Warning or precautionary statements as prescribed in paragraph (h) of this section;

(viii) The directions for use as prescribed in paragraph (i) of this section; and

(ix) The use classification(s) as prescribed in paragraph (j) of this section.

(2) *Prominence and legibility.* (i) All words, statements, graphic representations, designs or other information required on the labeling by the Act or the regulations in this part must be clearly legible to a person with normal vision, and must be placed with such conspicuousness (as compared with other words, statements, designs, or graphic matter on the labeling) and expressed in such terms as to render it likely to be read and understood by the ordinary individual under customary conditions of purchase and use.

(ii) All required label text must:

(A) Be set in 6-point or larger type;

(B) Appear on a clear contrasting background; and

(C) Not be obscured or crowded.

(3) *Language to be used.* All required label or labeling text shall appear in the English language. However, the Agency may require or the applicant may propose additional text in other

languages as is considered necessary to protect the public. When additional text in another language is necessary, all labeling requirements will be applied equally to both the English and other-language versions of the labeling.

(4) *Placement of Label*—(i) *General.* The label shall appear on or be securely attached to the immediate container of the pesticide product. For purposes of this Section, and the misbranding provisions of the Act, “securely attached” shall mean that a label can reasonably be expected to remain affixed during the foreseeable conditions and period of use. If the immediate container is enclosed within a wrapper or outside container through which the label cannot be clearly read, the label must also be securely attached to such outside wrapper or container, if it is a part of the package as customarily distributed or sold.

(ii) *Tank cars and other bulk containers*—(A) *Transportation.* While a pesticide product is in transit, the appropriate provisions of 49 CFR parts 170–189, concerning the transportation of hazardous materials, and specifically those provisions concerning the labeling, marking and placarding of hazardous materials and the vehicles carrying them, define the basic Federal requirements. In addition, when any registered pesticide product is transported in a tank car, tank truck or other mobile or portable bulk container, a copy of the accepted label must be attached to the shipping papers, and left with the consignee at the time of delivery.

(B) *Storage.* When pesticide products are stored in bulk containers, whether mobile or stationary, which remain in the custody of the user, a copy of the label of labeling, including all appropriate directions for use, shall be securely attached to the container in the immediate vicinity of the discharge control valve.

(5) *False or misleading statements.* Pursuant to section 2(q)(1)(A) of the Act, a pesticide or a device declared subject to the Act pursuant to § 152.500, is misbranded if its labeling is false or misleading in any particular including both pesticidal and non-pesticidal

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claims. Examples of statements or representations in the labeling which constitute misbranding include:

(i) A false or misleading statement concerning the composition of the product;

(ii) A false or misleading statement concerning the effectiveness of the product as a pesticide or device;

(iii) A false or misleading statement about the value of the product for purposes other than as a pesticide or device;

(iv) A false or misleading comparison with other pesticides or devices;

(v) Any statement directly or indirectly implying that the pesticide or device is recommended or endorsed by any agency of the Federal Government;

(vi) The name of a pesticide which contains two or more principal active ingredients if the name suggests one or more but not all such principal active ingredients even though the names of the other ingredients are stated elsewhere in the labeling;

(vii) A true statement used in such a way as to give a false or misleading impression to the purchaser;

(viii) Label disclaimers which negate or detract from labeling statements required under the Act and these regulations;

(ix) Claims as to the safety of the pesticide or its ingredients, including statements such as “safe,” “nonpoisonous,” “noninjurious,” “harmless” or “nontoxic to humans and pets” with or without such a qualifying phrase as “when used as directed”; and

(x) Non-numerical and/or comparative statements on the safety of the product, including but not limited to:

(A) “Contains all natural ingredients”;

(B) “Among the least toxic chemicals known”

(C) “Pollution approved”

(6) *Final printed labeling.* (i) Except as provided in paragraph (a)(6)(ii) of this section, final printed labeling must be submitted and accepted prior to registration. However, final printed labeling need not be submitted until draft label texts have been provisionally accepted by the Agency.

(ii) Clearly legible reproductions or photo reductions will be accepted for unusual labels such as those silk-

screened directly onto glass or metal containers or large bag or drum labels. Such reproductions must be of microfilm reproduction quality.

(b) *Name, brand, or trademark.* (1) The name, brand, or trademark under which the pesticide product is sold shall appear on the front panel of the label.

(2) No name, brand, or trademark may appear on the label which:

(i) Is false or misleading, or

(ii) Has not been approved by the Administrator through registration or supplemental registration as an additional name pursuant to § 152.132.

(c) Name and address of producer, registrant, or person for whom produced. An unqualified name and address given on the label shall be considered as the name and address of the producer. If the registrant’s name appears on the label and the registrant is not the producer, or if the name of the person for whom the pesticide was produced appears on the label, it must be qualified by appropriate wording such as “Packed for * * *,” “Distributed by * * *,” or “Sold by * * *” to show that the name is not that of the producer.

(d) *Net weight or measure of contents.*

(1) The net weight or measure of content shall be exclusive of wrappers or other materials and shall be the average content unless explicitly stated as a minimum quantity.

(2) If the pesticide is a liquid, the net content statement shall be in terms of liquid measure at 68° F (20°C) and shall be expressed in conventional American units of fluid ounces, pints, quarts, and gallons.

(3) If the pesticide is solid or semi-solid, viscous or pressurized, or is a mixture of liquid and solid, the net content statement shall be in terms of weight expressed as avoirdupois pounds and ounces.

(4) In all cases, net content shall be stated in terms of the largest suitable units, i.e., “1 pound 10 ounces” rather than “26 ounces.”

(5) In addition to the required units specified, net content may be expressed in metric units.

(6) Variation above minimum content or around an average is permissible only to the extent that it represents

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deviation unavoidable in good manufacturing practice. Variation below a stated minimum is not permitted. In no case shall the average content of the packages in a shipment fall below the stated average content.

(e) *Product registration number.* The registration number assigned to the pesticide product at the time of registration shall appear on the label, preceded by the phrase "EPA Registration No.," or the phrase "EPA Reg. No." The registration number shall be set in type of a size and style similar to other print on that part of the label on which it appears and shall run parallel to it. The registration number and the required identifying phrase shall not appear in such a manner as to suggest or imply recommendation or endorsement of the product by the Agency.

(f) *Producing establishments registration number.* The producing establishment registration number preceded by the phrase "EPA Est.," of the final establishment at which the product was produced may appear in any suitable location on the label or immediate container. It must appear on the wrapper or outside container of the package if the EPA establishment registration number on the immediate container cannot be clearly read through such wrapper or container.

(g) *Ingredient statement—(1) General.* The label of each pesticide product must bear a statement which contains the name and percentage by weight of each active ingredient, the total percentage by weight of all inert ingredients; and if the pesticide contains arsenic in any form, a statement of the percentages of total and water-soluble arsenic calculated as elemental arsenic. The active ingredients must be designated by the term "active ingredients" and the inert ingredients by the term "inert ingredients," or the singular forms of these terms when appropriate. Both terms shall be in the same type size, be aligned to the same margin and be equally prominent. The statement "Inert Ingredients, none" is not required for pesticides which contain 100 percent active ingredients. Unless the ingredient statement is a complete analysis of the pesticide, the term "analysis" shall not be used as a heading for the ingredient statement.

(2) *Position of ingredient statement.* (i) The ingredient statement is normally required on the front panel of the label. If there is an outside container or wrapper through which the ingredient statement cannot be clearly read, the ingredient statement must also appear on such outside container or wrapper. If the size or form of the package makes it impracticable to place the ingredient statement on the front panel of the label, permission may be granted for the ingredient statement to appear elsewhere.

(ii) The text of the ingredient statement must run parallel with other text on the panel on which it appears, and must be clearly distinguishable from and must not be placed in the body of other text.

(3) *Names to be used in ingredient statement.* The name used for each ingredient shall be the accepted common name, if there is one, followed by the chemical name. The common name may be used alone only if it is well known. If no common name has been established, the chemical name alone shall be used. In no case will the use of a trademark or proprietary name be permitted unless such name has been accepted as a common name by the Administrator under the authority of section 25(c)(6).

(4) *Statements of percentages.* The percentages of ingredients shall be stated in terms of weight-to-weight. The sum of percentages of the active and the inert ingredients shall be 100. Percentages shall not be expressed by a range of values such as "22–25%." If the uses of the pesticide product are expressed as weight of active ingredient per unit area, a statement of the weight of active ingredient per unit volume of the pesticide formulation shall also appear in the ingredient statement.

(5) *Accuracy of stated percentages.* The percentages given shall be as precise as possible reflecting good manufacturing practice. If there may be unavoidable variation between manufacturing batches, the value stated for each active ingredient shall be the lowest percentage which may be present.

(6) *Deterioration.* Pesticides which change in chemical composition significantly must meet the following labeling requirements:

(i) In cases where it is determined that a pesticide formulation changes chemical composition significantly, the product must bear the following statement in a prominent position on the label: “Not for sale or use after [date].”

(ii) The product must meet all label claims up to the expiration time indicated on the label.

(7) *Inert ingredients.* The Administrator may require the name of any inert ingredient(s) to be listed in the ingredient statement if he determines that such ingredient(s) may pose a hazard to man or the environment.

(h) *Warnings and precautionary statements.* Required warnings and precautionary statements concerning the

general areas of toxicological hazard including hazard to children, environmental hazard, and physical or chemical hazard fall into two groups; those required on the front panel of the labeling and those which may appear elsewhere. Specific requirements concerning content, placement, type size, and prominence are given below.

(1) *Required front panel statements.* With the exception of the child hazard warning statement, the text required on the front panel of the label is determined by the Toxicity Category of the pesticide. The category is assigned on the basis of the highest hazard shown by any of the indicators in the table below:

Hazard indicators	Toxicity categories			
	I	II	III	IV
Oral LD ₅₀	Up to and including 50 mg/kg.	From 50 thru 500 mg/kg	From 500 thru 5000 mg/kg.	Greater than 5000 mg/kg.
Inhalation LC ₅₀	Up to and including .2 mg/liter.	From .2 thru 2 mg/liter ...	From 2. thru 20 mg/liter	Greater than 20 mg/liter.
Dermal LD ₅₀	Up to and including 200 mg/kg.	From 200 thru 2000	From 2,000 thru 20,000	Greater than 20,000.
Eye effects	Corrosive; corneal opacity not reversible within 7 days.	Corneal opacity reversible within 7 days; irritation persisting for 7 days.	No corneal opacity; irritation reversible within 7 days.	No irritation.
Skin effects	Corrosive	Severe irritation at 72 hours.	Moderate irritation at 72 hours.	Mild or slight irritation at 72 hours.

(i) *Human hazard signal word—(A) Toxicity Category I.* All pesticide products meeting the criteria of Toxicity Category I shall bear on the front panel the signal word “Danger.” In addition if the product was assigned to Toxicity Category I on the basis of its oral, inhalation or dermal toxicity (as distinct from skin and eye local effects) the word “Poison” shall appear in red on a background of distinctly contrasting color and the skull and crossbones shall appear in immediate proximity to the word “poison.”

(B) *Toxicity Category II.* All pesticide products meeting the criteria of Toxicity Category II shall bear on the front panel the signal word “Warning.”

(C) *Toxicity Category III.* All pesticide products meeting the criteria of Toxicity Category III shall bear on the front panel the signal word “Caution.”

(D) *Toxicity Category IV.* All pesticide products meeting the criteria of Toxicity

Category IV shall bear on the front panel the signal word “Caution.”

(E) *Use of signal words.* Use of any signal word(s) associated with a higher Toxicity Category is not permitted except when the Agency determines that such labeling is necessary to prevent unreasonable adverse effects on man or the environment. In no case shall more than one human hazard signal word appear on the front panel of a label.

(ii) *Child hazard warning.* Every pesticide product label shall bear on the front panel the statement “keep out of reach of children.” Only in cases where the likelihood of contact with children during distribution, marketing, storage or use is demonstrated by the applicant to be extremely remote, or if the nature of the pesticide is such that it is approved for use on infants or small children, may the Administrator waive this requirement.

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(iii) *Statement of practical treatment—* (A) *Toxicity Category I.* A statement of practical treatment (first aid or other) shall appear on the front panel of the label of all pesticides falling into Toxicity Category I on the basis of oral, inhalation or dermal toxicity. The Agency may, however, permit reasonable variations in the placement of the statement of practical treatment is some reference such as “See statement of practical treatment on back panel” appears on the front panel near the word “Poison” and the skull and crossbones.

(B) *Other toxicity categories.* The statement of practical treatment is not required on the front panel except as described in paragraph (h)(1)(iii)(A) of this section. The applicant may, however, include such a front panel statement at his option. Statements of practical treatment are, however, required elsewhere on the label in accord with paragraph (h)(2) of this section if they do not appear on the front panel.

(iv) *Placement and prominence.* All the require front panel warning statements shall be grouped together on the label, and shall appear with sufficient prominence relative to other front panel text and graphic material to make them unlikely to be overlooked under customary conditions of purchase and use. The following table shows the minimum type size requirements for the

front panel warning statements on various sizes of labels:

Size of label front panel in square inches	Points	
	Required signal word, all capitals	“Keep out of reach of children”
5 and under	6	6
Above 5 to 10	10	6
Above 10 to 15	12	8
Above 15 to 30	14	10
Over 30	18	12

(2) *Other required warnings and precautionary statements.* The warnings and precautionary statements as required below shall appear together on the label under the general heading “Precautionary Statements” and under appropriate subheadings of “Hazard to Humans and Domestic Animals,” “Environmental Hazard” and “Physical or Chemical Hazard.”

(i) *Hazard to humans and domestic animals.* (A) Where a hazard exists to humans or domestic animals, precautionary statements are required indicating the particular hazard, the route(s) of exposure and the precautions to be taken to avoid accident, injury or damage. The precautionary paragraph shall be immediately preceded by the appropriate hazard signal word.

(B) The following table depicts typical precautionary statements. These statements must be modified or expanded to reflect specific hazards.

Toxicity category	Precautionary statements by toxicity category	
	Oral, inhalation, or dermal toxicity	Skin and eye local effects
I	Fatal (poisonous) if swallowed [inhaled or absorbed through skin]. Do not breathe vapor [dust or spray mist]. Do not get in eyes, on skin, or on clothing [Front panel statement of practical treatment required.].	Corrosive, causes eye and skin damage [or skin irritation]. Do not get in eyes, on skin, or on clothing. Wear goggles or face shield and rubber gloves when handling. Harmful or fatal if swallowed. [Appropriate first aid statement required.]
II	May be fatal if swallowed [inhaled or absorbed through the skin]. Do not breathe vapors [dust or spray mist]. Do not get in eyes, on skin, or on clothing. [Appropriate first aid statements required.].	Causes eye [and skin] irritation. Do not get in eyes, on skin, or on clothing. Harmful if swallowed. [Appropriate first aid statement required.]
III	Harmful if swallowed [inhaled or absorbed through the skin]. Avoid breathing vapors [dust or spray mist]. Avoid contact with skin [eyes or clothing]. [Appropriate first aid statement required.].	Avoid contact with skin, eyes or clothing. In case of contact immediately flush eyes or skin with plenty of water. Get medical attention if irritation persists.
IV	[No precautionary statements required.]	[No precautionary statements required.]

(ii) *Environmental hazards.* Where a hazard exists to non target organisms excluding humans and domestic animals, precautionary statements are required stating the nature of the hazard

and the appropriate precautions to avoid potential accident, injury or damage. Examples of the hazard statements and the circumstances under which they are required follow:

(A) If a pesticide intended for outdoor use contains an active ingredient with a mammalian acute oral LD₅₀ of 100 or less, the statement “This Pesticide is Toxic to Wildlife” is required.

(B) If a pesticide intended for outdoor use contains an active ingredient with a fish acute LC₅₀ of 1 ppm or less, the statement “This Pesticide is Toxic to Fish” is required.

(C) If a pesticide intended for outdoor use contains an active ingredient with an avian acute oral LD₅₀ of 100 mg/kg or less, or a subacute dietary LC₅₀ of 500 ppm or less, the statement “This Pesticide is Toxic to Wildlife” is required.

(D) If either accident history or field studies demonstrate that use of the pesticide may result in fatality to

birds, fish or mammals, the statement “This pesticide is extremely toxic to wildlife (fish)” is required.

(E) For uses involving foliar application to agricultural crops, forests, or shade trees, or for mosquito abatement treatments, pesticides toxic to pollinating insects must bear appropriate label cautions.

(F) For all outdoor uses other than aquatic applications the label must bear the caution “Keep out of lakes, ponds or streams. Do not contaminate water by cleaning of equipment or disposal of wastes.”

(iii) *Physical or chemical hazards.* Warning statements on the flammability or explosive characteristics of the pesticide are required as follows:

Flash point	Required text
(A) PRESSURIZED CONTAINERS	
Flash point at or below 20° F; if there is a flashback at any valve opening.	Extremely flammable. Contents under pressure. Keep away from fire, sparks, and heated surfaces. Do not puncture or incinerate container. Exposure to temperatures above 130° F may cause bursting.
Flash point above 20° F and not over 80° F or if the flame extension is more than 18 in long at a distance of 6 in from the flame.	Flammable. Contents under pressure. Keep away from heat, sparks, and open flame. Do not puncture or incinerate container. Exposure to temperatures above 130° F may cause bursting.
All other pressurized containers	Contents under pressure. Do not use or store near heat or open flame. Do not puncture or incinerate container. Exposure to temperatures above 130° F may cause bursting.
(B) NONPRESSURIZED CONTAINERS	
At or below 20° F	Extremely flammable. Keep away from fire, sparks, and heated surfaces.
Above 20° F and not over 80° F	Flammable. Keep away from heat and open flame.
Above 80° F and not over 150° F	Do not use or store near heat or open flame.

(i) *Directions for Use*—(1) *General requirements*—(i) *Adequacy and clarity of directions.* Directions for use must be stated in terms which can be easily read and understood by the average person likely to use or to supervise the use of the pesticide. When followed, directions must be adequate to protect the public from fraud and from personal injury and to prevent unreasonable adverse effects on the environment.

(ii) *Placement of directions for use.* Directions may appear on any portion of the label provided that they are conspicuous enough to be easily read by the user of the pesticide product. Directions for use may appear on printed

or graphic matter which accompanies the pesticide provided that:

(A) If required by the Agency, such printed or graphic matter is securely attached to each package of the pesticide, or placed within the outside wrapper or bag;

(B) The label bears a reference to the directions for use in accompanying leaflets or circulars, such as “See directions in the enclosed circular;” and

(C) The Administrator determines that it is not necessary for such directions to appear on the label.

(iii) *Exceptions to requirement for direction for use*—(A) Detailed directions for use may be omitted from labeling of pesticides which are intended for use

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only by manufacturers of products other than pesticide products in their regular manufacturing processes, provided that:

(1) The label clearly shows that the product is intended for use only in manufacturing processes and specifies the type(s) of products involved.

(2) Adequate information such as technical data sheets or bulletins, is available to the trade specifying the type of product involved and its proper use in manufacturing processes;

(3) The product will not come into the hands of the general public except after incorporation into finished products; and

(4) The Administrator determines that such directions are not necessary to prevent unreasonable adverse effects on man or the environment.

(B) Detailed directions for use may be omitted from the labeling of pesticide products for which sale is limited to physicians, veterinarians, or druggists, provided that:

(1) The label clearly states that the product is for use only by physicians or veterinarians;

(2) The Administrator determines that such directions are not necessary to prevent unreasonable adverse effects on man or the environment; and

(3) The product is also a drug and regulated under the provisions of the Federal Food, Drug and Cosmetic Act.

(C) Detailed directions for use may be omitted from the labeling of pesticide products which are intended for use only by formulators in preparing pesticides for sale to the public, provided that:

(1) There is information readily available to the formulators on the composition, toxicity, methods of use, applicable restrictions or limitations, and effectiveness of the product for pesticide purposes;

(2) The label clearly states that the product is intended for use only in manufacturing, formulating, mixing, or repackaging for use as a pesticide and specifies the type(s) of pesticide products involved;

(3) The product as finally manufactured, formulated, mixed, or repackaged is registered; and

(4) The Administrator determines that such directions are not necessary

to prevent unreasonable adverse effects on man or the environment.

(2) *Contents of Directions for Use.* The directions for use shall include the following, under the headings "Directions for Use":

(i) The statement of use classification as prescribed in paragraph (j) of this section immediately under the heading "Directions for Use."

(ii) Immediately below the statement of use classification, the statement "It is a violation of Federal law to use this product in a manner inconsistent with its labeling."

(iii) The site(s) of application, as for example the crops, animals, areas, or objects to be treated.

(iv) The target pest(s) associated with each site.

(v) The dosage rate associated with each site and pest.

(vi) The method of application, including instructions for dilution, if required, and type(s) of application apparatus or equipment required.

(vii) The frequency and timing of applications necessary to obtain effective results without causing unreasonable adverse effects on the environment.

(viii) Worker protection statements meeting the requirements of subpart K of this part.

(ix) Specific directions concerning the storage and disposal of the pesticide and its container, meeting the requirements of 40 CFR part 165. These instructions shall be grouped and appear under the heading "Storage and Disposal." This heading must be set in type of the same minimum sizes as required for the child hazard warning. (See Table in § 162.10(h)(1)(iv))

(x) Any limitations or restrictions on use required to prevent unreasonable adverse effects, such as:

(A) Required intervals between application and harvest of food or feed crops.

(B) Rotational crop restrictions.

(C) Warnings as required against use on certain crops, animals, objects, or in or adjacent to certain areas.

(D) [Reserved]

(E) For restricted use pesticides, a statement that the pesticide may be applied under the direct supervision of a certified applicator who is not physically present at the site of application

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but nonetheless available to the person applying the pesticide, unless the Agency has determined that the pesticide may only be applied under the direct supervision of a certified applicator who is physically present.

(F) Other pertinent information which the Administrator determines to be necessary for the protection of man and the environment.

(j) *Statement of Use Classification.* By October 22, 1976, all pesticide products must bear on their labels a statement of use classification as described in paragraphs (j) (1) and (2) of this section. Any pesticide product for which some uses are classified for general use and others for restricted use shall be separately labeled according to the labeling standards set forth in this subsection, and shall be marketed as separate products with different registration numbers, one bearing directions only for general use(s) and the other bearing directions for restricted use(s) except that, if a product has both restricted use(s) and general use(s), both of these uses may appear on a product labeled for restricted use. Such products shall be subject to the provisions of paragraph (j)(2) of this section.

(1) *General Use Classification.* Pesticide products bearing directions for use(s) classified general shall be labeled with the exact words “General Classification” immediately below the heading “Directions for Use.” And reference to the general classification that suggests or implies that the general utility of the pesticide extends beyond those purposes and uses contained in the Directions for Use will be considered a false or misleading statement under the statutory definitions of misbranding.

(2) *Restricted Use Classification.* Pesticide products bearing direction for use(s) classified restricted shall bear statements of restricted use classification on the front panel as described below:

(i) *Front panel statement of restricted use classification.* (A) At the top of the front panel of the label, set in type of the same minimum sizes as required for human hazard signal words (see table in paragraph (h)(1)(iv) of this section), and appearing with sufficient prominence relative to other text and

graphic material on the front panel to make it unlikely to be overlooked under customary conditions of purchase and use, the statement “Restricted Use Pesticide” shall appear.

(B) Directly below this statement on the front panel, a summary statement of the terms of restriction imposed as a precondition to registration shall appear. If use is restricted to certified applicators, the following statement is required: “For retail sale to and use only by Certified Applicators or persons under their direct supervision and only for those uses covered by the Certified Applicator’s certification.” If, however, other regulatory restrictions are imposed, the Administrator will define the appropriate wording for the terms of restriction by regulation.

[40 FR 28268, July 3, 1975; 40 FR 32329, Aug. 1, 1975; 40 FR 36571, Aug. 21, 1975, as amended at 43 FR 5786, Feb. 9, 1978. Redesignated and amended at 53 FR 15991, 15999, May 4, 1988; 57 FR 38146, Aug. 21, 1992; 60 FR 32096, June 19, 1995]

Subparts B–J [Reserved]

Subpart K—Worker Protection Statements

SOURCE: 57 FR 38146, Aug. 21, 1992, unless otherwise noted.

§ 156.200 Scope and applicability.

(a) *Scope.* (1) This subpart prescribes statements that must be placed on the pesticide label and in pesticide labeling. These statements incorporate by reference the Worker Protection Standard, part 170 of this chapter. The requirements addressed in these statements are designed to reduce the risk of illness or injury resulting from workers’ and pesticide handlers’ occupational exposures to pesticides used in the production of agricultural plants on agricultural establishments as defined in §170.3 of this chapter. These statements refer to specific workplace practices designed to reduce or eliminate exposure and to respond to emergencies that may arise from the exposures that may occur.

(2) This subpart prescribes interim requirements that must be placed on

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the pesticide label and in pesticide labeling. These interim requirements pertain to restricted-entry intervals, personal protective equipment, and notification. On a case-by-case basis, these interim requirements will be reviewed and may be revised during re-registration or other agency review processes.

(b) *Applicability.* (1) The requirements of this subpart apply to each pesticide product that bears directions for use in the production of any agricultural plant on any agricultural establishment as defined in §170.3 of this chapter, or whose labeling reasonably permits such use.

(2) The requirements of this subpart do not apply to a product that bears directions solely for uses excepted by §170.202(b) of this chapter.

(c) *Effective dates.* (1) The effective date of this subpart is October 20, 1992.

(2) No pesticide product bearing labeling amended and revised as required by this subpart shall be distributed or sold by a registrant prior to April 21, 1993.

(3) No product to which this subpart applies shall be distributed or sold without amended labeling by any registrant after April 21, 1994.

(4) No product to which this subpart applies shall be distributed or sold without amended labeling by any person after October 23, 1995.

§ 156.203 Definitions.

Terms in this subpart have the same meanings as they do in the Federal Insecticide, Fungicide, and Rodenticide Act, as amended. In addition, the following terms, as used in this subpart, shall have the meanings stated below:

Fumigant means any pesticide product that is a vapor or gas or forms a vapor or gas on application and whose method of pesticidal action is through the gaseous state.

Restricted-entry interval means the time after the end of a pesticide application during which entry to the treated area is restricted.

§ 156.204 Modification and waiver of requirements.

(a) *Modification on Special Review.* If the Agency concludes in accordance with §154.25(c) of this chapter that a

pesticide should be placed in Special Review because the pesticide meets or exceeds the criteria for human health effects of §154.7(a)(1)(2) or (6) of this chapter, the Agency may modify the personal protective equipment required for handlers or early-entry workers or both, the restricted-entry intervals, or the notification to workers requirements.

(b) *Other modifications.* The Agency, pursuant to this subpart and authorities granted in FIFRA sections 3, 6, and 12, may, on its initiative or based on data submitted by any person, modify or waive the requirements of this subpart, or permit or require alternative labeling statements. Supporting data may be either data required by Subdivisions U or K of the Pesticide Assessment Guidelines or data from medical, epidemiological, or health effects studies. The Pesticide Assessment Guidelines contain the standards for conducting acceptable tests, guidance on evaluation and reporting of data, definition of terms, further guidance on when data are required, and examples of acceptable protocols. They are available through the National Technical Information Service, 5285 Port Royal Rd., Springfield, VA 22161. A registrant who wishes to modify any of the statements required in §§156.206, 156.208, 156.210, or 156.212 must submit an application for amended registration unless specifically directed otherwise by the Agency.

§ 156.206 General statements.

(a) *Application restrictions.* Each product shall bear the statement: "Do not apply this product in a way that will contact workers or other persons, either directly or through drift. Only protected handlers may be in the area during application." This statement shall be near the beginning of the DIRECTIONS FOR USE section of the labeling under the heading AGRICULTURAL USE REQUIREMENTS.

(b) *40 CFR part 170 reference statement.* (1) Each product shall bear the reference statement: "Use this product only in accordance with its labeling and with the Worker Protection Standard, 40 CFR part 170." This statement shall be placed on the product label

under the heading AGRICULTURAL USE REQUIREMENTS.

(2) Each product shall bear the statement: “This standard contains requirements for the protection of agricultural workers on farms, forests, nurseries, and greenhouses, and handlers of agricultural pesticides. It contains requirements for training, decontamination, notification, and emergency assistance. It also contains specific instructions and exceptions pertaining to the statements on this label [in this labeling] about [use any of the following that are applicable] personal protective equipment, restricted-entry interval, and notification to workers.” These statements shall be placed immediately following the reference statement required by paragraph (b)(1) of this section, or they shall be placed in the supplemental product labeling under the heading AGRICULTURAL USE REQUIREMENTS.

(3) If the statements in paragraph (b)(2) of this section are included in supplemental labeling rather than on the label of the pesticide container, the container label must contain this statement immediately following the statement required in paragraph (b)(1) of this section: “Refer to supplemental labeling entitled AGRICULTURAL USE REQUIREMENTS in the DIRECTIONS FOR USE section of the labeling for information about this standard.”

(4) If the statements in paragraph (b)(2) of this section are included in supplemental labeling, they must be preceded immediately by the statement in paragraph (b)(1) of this section under the heading AGRICULTURAL USE REQUIREMENTS in the labeling.

(c) *Product-type identification.* (1) If the product contains an organophosphate (i.e., an organophosphorus ester that inhibits cholinesterase) or an *N*-methyl carbamate (i.e., an *N*-methyl carbamic acid ester that inhibits cholinesterase), the label shall so state. The statement shall be associated with the product name or product-type identification or shall be in the STATEMENT OF PRACTICAL TREATMENT or FIRST AID section of the label.

(2) If the product is a fumigant, the label shall so state. The identification shall appear:

(i) As part of the product name; or
(ii) Close to the product name, as part of the product-type identification or as a separate phrase or sentence.

(d) *State restrictions.* Each product shall bear the statement: “For any requirements specific to your State, consult the agency in your State responsible for pesticide regulation.” This statement shall be under the heading AGRICULTURAL USE REQUIREMENTS in the labeling.

(e) *Spanish warning statements.* If the product is classified as toxicity category I or toxicity category II according to the criteria in § 156.10(h)(1), the signal word shall appear in Spanish in addition to English followed by the statement, “Si Usted no entiende la etiqueta, busque a alguien para que se la explique a Usted en detalle. (If you do not understand the label, find someone to explain it to you in detail.)” The Spanish signal word “PELIGRO” shall be used for products in toxicity category I, and the Spanish signal word “AVISO” shall be used for products in toxicity category II. These statements shall appear on the label close to the English signal word.

[57 FR 38146, Aug. 21, 1992, as amended at 58 FR 34203, June 23, 1993]

§ 156.208 Restricted-entry statements.

(a) *Requirement.* Each product with a restricted-entry interval shall bear the following statement: “Do not enter or allow worker entry into treated areas during the restricted-entry interval (REI).” This statement shall be under the heading AGRICULTURAL USE REQUIREMENTS in the labeling.

(b) *Location of specific restricted-entry interval statements.* (1) If a product has one specific restricted-entry interval applicable to all registered uses of the product on agricultural plants, the restricted-entry interval for the product shall appear as a continuation of the statement required in paragraph (a) of this section and shall appear as follows: “of X hours” or “of X days” or “until the acceptable exposure level of X ppm or mg/m³ is reached.”

(2) If different restricted-entry intervals have been established for some crops or some uses of a product, the restricted-entry statement in paragraph (b)(1) of this section shall be associated

on the labeling of the product with the directions for use for each crop each use to which it applies, immediately preceded or immediately followed by the words “Restricted-entry interval” (or the letters “REI”).

(c) *Restricted-entry interval based on toxicity of active ingredient*—(1) *Determination of toxicity category*. A restricted-entry interval shall be established based on the acute toxicity of the active ingredients in the product. For the purpose of setting the restricted-entry interval, the toxicity category of each active ingredient in the product shall be determined by comparing the obtainable data on the acute dermal toxicity, eye irritation effects, and skin irritation effects of the ingredient to the criteria of § 156.10(h)(1). The most toxic of the applicable toxicity categories that are obtainable for each active ingredient shall be used to determine the restricted-entry interval for that product. If no acute dermal toxicity data are obtainable, data on acute oral toxicity also shall be considered in this comparison. If no applicable acute toxicity data are obtainable on the active ingredient, the toxicity category corresponding to the signal word of any registered manufacturing-use product that is the source of the active ingredient in the end-use product shall be used. If no acute toxicity data are obtainable on the active ingredients and no toxicity category of a registered manufacturing-use product is obtainable, the toxicity category of the end-use product (corresponding to the signal word on its labeling) shall be used.

(2) *Restricted-entry interval for sole active ingredient products*. (i) If the product contains only one active ingredient and it is in toxicity category I by the criteria in paragraph (c)(1) of this section, the restricted-entry interval shall be 48 hours. If, in addition, the active ingredient is an organophosphorus ester that inhibits cholinesterase and that may be applied outdoors in an area where the average annual rainfall for the application site is less than 25 inches per year, the following statement shall be added to the restricted-entry interval statement: “(72 hours in outdoor areas where average annual rainfall is less than 25 inches a year).”

(ii) If the product contains only one active ingredient and it is in toxicity category II by the criteria in paragraph (c)(1) of this section, the restricted-entry interval shall be 24 hours.

(iii) If the product contains only active ingredients that are in toxicity category III or IV by the criteria in paragraph (c)(1) of this section, the restricted-entry interval shall be 12 hours.

(3) *Restricted-entry interval for multiple active ingredient products*. If the product contains more than one active ingredient, the restricted-entry interval (including any associated statement concerning use in arid areas under paragraph (c)(2)(i) of this section) shall be based on the active ingredient that requires the longest restricted-entry interval as determined by the criteria in this section.

(d) *Exception for fumigants*. The criteria for determining restricted-entry intervals in paragraph (c) of this section shall not apply to any product that is a fumigant. For fumigants, any existing restricted-entry interval (hours, days, or acceptable exposure level) shall be retained. Entry restrictions for fumigants have been or shall be established on a case-by-case basis at the time of registration, reregistration, or other Agency review process.

(e) *Existing product-specific restricted-entry intervals*. (1) A product-specific restricted-entry interval, based on data collected in accordance with § 158.390 of this chapter and Subdivision K of the Pesticide Assessment Guidelines, shall supersede any restricted-entry interval applicable to the product under paragraph (c) of this section.

(2) Product-specific restricted-entry intervals established for pesticide products or pesticide uses that are not covered by part 170 of this chapter shall remain in effect and shall not be placed under the heading AGRICULTURAL USE REQUIREMENTS in the labeling.

(f) *Existing interim restricted-entry intervals*. (1) An interim restricted-entry interval established by the Agency before the effective date of this subpart will continue to apply unless a longer restricted-entry interval is required by paragraph (c) of this section.

(2) Existing interim restricted-entry intervals established by the Agency for

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pesticide products or pesticide uses not covered by part 170 of this chapter shall remain in effect and shall not be placed under the heading AGRICULTURAL USE REQUIREMENTS in the labeling.

[57 FR 38146, Aug. 21, 1992, as amended at 58 FR 34203, June 23, 1993]

§ 156.210 Notification-to-workers statements.

(a) *Requirement.* Each product that meets the requirements of paragraph (b) of this section shall bear the posting and oral notification statements prescribed below. The statements shall be in the DIRECTIONS FOR USE section of the labeling under the heading AGRICULTURAL USE REQUIREMENTS.

(b) *Notification to workers of pesticide application.* (1) Each product that contains any active ingredient classified as toxicity category I for either acute dermal toxicity or skin irritation potential under the criteria in § 156.10(h)(1) shall bear the statement: "Notify workers of the application by warning them orally and by posting warning signs at entrances to treated areas." If no acute dermal toxicity data are obtainable, data on acute oral toxicity of the active ingredient shall be considered instead. If no data on acute dermal toxicity, skin irritation potential, or acute oral toxicity are obtainable on the active ingredient, the toxicity category corresponding to the signal word of any registered manufacturing-use product that is the source of the active ingredient in the end-use product shall be used. If none of the applicable acute toxicity data are obtainable on the active ingredient and no toxicity category of the registered manufacturing-use product is obtainable, the toxicity category of the end-use product corresponding to the product's signal word shall be used.

(2) Each product that is a fumigant and is registered for use in a greenhouse (or whose labeling allows use in a greenhouse) shall bear the statement: "For greenhouse applications, notify workers of the application by warning them orally and by posting warning

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signs outside all entrances to the greenhouse."

[57 FR 38146, Aug. 21, 1992, as amended at 58 FR 34203, June 23, 1993]

§ 156.212 Personal protective equipment statements.

(a) *Requirement.* Each product shall bear the personal protective equipment statements prescribed in paragraphs (d) through (j) of this section.

(b) *Exceptions.* (1) If personal protective equipment were required for a product before the effective date of this subpart, the existing requirements shall be retained on the labeling whenever they are more specific or more protective (as specified in EPA guidance materials) than the requirements in the table in paragraph (e) of this section.

(2) Any existing labeling statement that prohibits the use of gloves or boots overrides the corresponding requirement in paragraph (e) of this section and must be retained on the labeling.

(3) If the product labeling contains uses that are not covered by part 170 of this chapter, the registrant may adopt the personal protective equipment required in this section for those uses. However, if the personal protective equipment required in this section would not be sufficiently protective or would be onerously overprotective for uses not covered by part 170 of this chapter, the registrant must continue to apply the existing personal protective equipment requirements to those uses. The labeling must indicate which personal protective equipment requirements apply to uses covered by part 170 of this chapter and which personal protective equipment requirements apply to other uses.

(c) *Location of personal protective equipment statements—*(1) *Personal protective equipment statements for pesticide handlers.* Personal protective equipment statements for pesticide handlers shall be in the HAZARDS TO HUMANS (AND DOMESTIC ANIMALS) section of the labeling. The required statements may be combined to avoid redundancy as long as the requirements and conditions under which they apply are identified.

(2) Personal protective equipment statements for early-entry workers. Personal protective equipment statements for early-entry workers shall be placed in the DIRECTIONS FOR USE section of the labeling under the heading AGRICULTURAL USE REQUIREMENTS and immediately after the restricted-entry statement required in § 156.208(a).

(d) *Personal protective equipment statements for pesticide handlers.* (1) The table in paragraph (e) of this section specifies minimum requirements for personal protective equipment (as defined in § 170.240 of this chapter) and work clothing for pesticide handlers. This personal protective equipment requirement applies to any product that presents a hazard through any route of exposure identified in the table (acute dermal toxicity, skin irritation potential, acute inhalation toxicity, and eye irritation potential).

(2) The requirement for personal protective equipment is based on the acute toxicity category of the end-use product for each route of exposure as defined by § 156.10(h)(1). If data to determine the acute dermal toxicity or the acute inhalation toxicity are not obtainable, the acute oral toxicity shall be used as a surrogate to determine the

personal protective equipment requirements for that route of exposure. If data to determine the acute toxicity of the product by a specific route of exposure (including acute oral toxicity in lieu of acute dermal or acute inhalation toxicity) are not obtainable, the toxicity category corresponding to the signal word of the end-use product shall be used to determine personal protective equipment requirements for that route of exposure. If the signal word is "CAUTION," toxicity category III will be used.

(3) The minimum personal protective equipment and work clothing requirements specified in this section shall be included in a statement such as the following: "Applicators and other handlers must wear: (body protection statement); (glove statement, if applicable); (footwear statement, if applicable); (protective eyewear statement, if applicable); (respirator statement, if applicable)." The format of statements given in this paragraph is optional, but it is recommended for clarity.

(e) *Summary of personal protective equipment requirements.* The following Table 1 summarizes the personal protective equipment requirements by route of exposure and toxicity category:

TABLE 1.—MINIMUM PERSONAL PROTECTIVE EQUIPMENT (PPE) AND WORK CLOTHING FOR HANDLING ACTIVITIES

Route of Exposure	Toxicity Category of End-Use Product			
	I	II	III	IV
Dermal Toxicity or Skin Irritation Potential ¹	Coveralls worn over long-sleeved shirt and long pants	Coveralls worn over short-sleeved shirt and short pants	Long-sleeved shirt and long pants	Long-sleeved shirt and long pants
	Socks	Socks	Socks	Socks
	Chemical-resistant footwear	Chemical-resistant footwear	Shoes	Shoes
	Chemical-resistant gloves ²	Chemical-resistant gloves ²	Chemical-resistant gloves ²	No minimum ⁴
Inhalation Toxicity	Respiratory protection device ³	Respiratory protection device ³	No minimum ⁴	No minimum ⁴
Eye Irritation Potential	Protective eyewear	Protective eyewear	No minimum ⁴	No minimum ⁴

¹ If dermal toxicity and skin irritation potential are in different toxicity categories, protection shall be based on the more toxic (lower numbered) category.

² For labeling language for chemical-resistant gloves, see paragraph (f) of this section.

³ For labeling language for respiratory protection device, see paragraphs (g) and (h) of this section.

⁴ Although no minimum PPE is required by this section for this toxicity category and route of exposure, the Agency may require PPE on a product-specific basis.

(f) *Chemical-resistant gloves labeling statements for pesticide handlers.* If the table in paragraph (e) of this section indicates that chemical-resistant

gloves are required, the glove statement shall be as specified in paragraph (f)(2), (3), (4), or (5) of this section.

(1) *Exception.* The registrant shall specify a glove type other than that selected through the criteria in paragraphs (f)(2) through (5) of this section if information available to the registrant indicates that such a glove type is more appropriate or more protective than the glove type specified in this section. The statement must specify the particular types of chemical-resistant glove (such as nitrile, butyl, neoprene, and/or barrier-laminate).

(2) *Solid formulations.* For products formulated and applied as solids or formulated as solids and diluted solely with water for application, the glove statement shall specify: “waterproof gloves.”

(3) *Aqueous-based formulations.* For products formulated and applied as a water-based liquid or formulated as a water-based liquid and diluted solely with water for application, the glove statement may specify: “waterproof gloves” instead of the statement in paragraph (f)(4) of this section.

(4) *Other liquid formulations.* For products formulated or diluted with liquids other than water, the glove statement shall specify: “chemical-resistant (such as nitrile or butyl) gloves.”

(5) *Gaseous formulations and applications.* For products formulated or applied as gases, any existing glove statement established before the effective date of this subpart, including any glove prohibition statement, will continue to apply. If no glove statement or glove prohibition now exists, the glove statement shall specify “chemical-resistant (such as nitrile or butyl) gloves.”

(g) *Existing respirator requirement for pesticide handlers on product labeling—*

(1) *General requirement.* If a statement placed on a product’s labeling before the effective date of this subpart indicates that respiratory protection is required, that requirement for protection shall be retained. The statement must specify, or be amended to specify, one of the following respirator types and the appropriate MSHA/NIOSH approval number prefix:

(i) Dust/mist filtering respirator with MSHA/NIOSH approval number prefix TC-21C; or

(ii) Respirator with an organic-vapor-removing cartridge and a prefilter approved for pesticides with MSHA/NIOSH approval number prefix TC-23C or with a canister approved for pesticides with MSHA/NIOSH approval number prefix TC-14G; or

(iii) Supplied-air respirator with MSHA/NIOSH approval number prefix TC-19C or self-contained breathing apparatus (SCBA) with MSHA/NIOSH approval number TC-13F.

(2) *Respirator type already specified on labeling.* If the existing respiratory protection requirement specifies a respirator type, it shall be retained. The respirator statement must be revised, if necessary, to conform to the wording in paragraph (g)(1) of this section.

(3) *Respirator type not already specified on labeling.* If the existing respiratory protection requirement on product labeling does not specify a respirator type as listed in paragraph (g)(1) of this section, the specific respirator type shall be that required in the criteria in paragraphs (g)(3)(ii) through (vi) of this section.

(i) *Exception.* The registrant shall specify a different type of respiratory protection device if information, such as vapor pressure value, is available to the registrant to indicate that the type of respiratory protection device selected through the criteria in paragraphs (g)(3)(ii) through (vi) of this section would not be adequately protective, or might increase risks to the user unnecessarily.

(ii) *Gases applied outdoors.* For products that are formulated or applied as a gas (space and soil fumigants) and that may be used outdoors, the respiratory protection statement shall be: “For handling activities outdoors, use either a respirator with an organic-vapor-removing cartridge with a prefilter approved for pesticides (MSHA/NIOSH approval number prefix TC-23C), or a canister approved for pesticides (MSHA/NIOSH approval number prefix TC-14G).”

(iii) *Gases used in enclosed areas.* For products that are formulated or applied as a gas (space and soil fumigants) and that may be used in greenhouses or

other enclosed areas, the respiratory protection statement shall specify: “For handling activities in enclosed areas, use either a supplied-air respirator with MSHA/NIOSH approval number prefix TC-19C, or a self-contained breathing apparatus (SCBA) with MSHA/NIOSH approval number TC-13F.”

(iv) *Solids*. For products that are formulated and applied as solids, the respiratory protection statement shall specify: “dust/mist filtering respirator (MSHA/NIOSH approval number prefix TC-21C).”

(v) *Liquids in toxicity category I*. For products that are formulated or applied as liquids, and, as formulated, have an acute inhalation toxicity (or its surrogate as specified in paragraph (d)(2) of this section) in category I, the respiratory protection statement shall specify: “either a respirator with an organic-vapor-removing cartridge with a prefilter approved for pesticides (MSHA/NIOSH approval number prefix TC-23C), or a canister approved for pesticides (MSHA/NIOSH approval number prefix 14G).”

(vi) *Liquids in toxicity category II*. For products that are formulated or applied as liquids, and, as formulated, have an acute inhalation toxicity (or its surrogate as specified in paragraph (d)(2) of this section) in category II, the respiratory protection statement shall specify: “For handling activities during (select uses applicable to the product: airblast, mistblower, pressure greater than 40 p.s.i. with fine droplets, smoke, mist, fog, aerosol or direct overhead) exposures, wear either a respirator with an organic-vapor-removing cartridge with a prefilter approved for pesticides (MSHA/NIOSH approval number prefix TC-23C), or a canister approved for pesticides (MSHA/NIOSH approval number prefix 14G). For all other exposures, wear a dust/mist filtering respirator (MSHA/NIOSH approval number prefix TC-21C).”

(h) *New respirator requirement established for pesticide handlers in this part—*
(1) *General requirement*. If the table in paragraph (e) of this section indicates a respiratory protection device is required, and existing product labeling has no respiratory protection requirement, the registrant shall add a res-

piratory protection statement that specifies a: “dust/mist filtering respirator (MSHA/NIOSH approval number prefix TC-21C).”

(2) *Exception*. The registrant shall specify a different type of respiratory protection device if information, such as vapor pressure value, is available to the registrant to indicate that the type of respiratory protection device required in paragraph (h)(1) of this section would not be adequately protective or might increase risks to the user unnecessarily.

(i) *Additional personal protective equipment requirements for pesticide handlers*. In addition to the minimum personal protective equipment and work clothing requirements given in the table in paragraph (e) of this section, the labeling statement for any product in toxicity category I or II on the basis of dermal toxicity or skin irritation potential (or their surrogate as specified in paragraph (d)(2) of this section), shall include the following personal protective equipment instructions, additions, or substitutions as applicable:

(1) If the product is not ready-to-use and there is no existing requirement for a chemical-resistant suit, the following statement shall be included: “Mixers/Loaders: add a chemical-resistant apron.”

(2) If the application of the product may result in overhead exposure to any handler (for example, applicator exposure during airblast spraying of orchards or flagger exposure during aerial application), the following statement shall be included: “Overhead Exposure: wear chemical-resistant headgear.”

(3) If any type of equipment other than the product container may be used to mix, load, or apply the product, and there is no requirement for a chemical-resistant protective suit, the following statement shall be included: “For Cleaning Equipment: add a chemical-resistant apron.”

(j) *Personal protective equipment for early-entry workers*. This paragraph specifies minimum requirements for personal protective equipment (as defined in §170.240 of this chapter) and work clothing for early-entry workers.

(1) For all pesticide products, add the statement: “For early entry to treated

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areas that is permitted under the Worker Protection Standard and that involves contact with anything that has been treated, such as plants, soil, or water, wear: (list the body protection, glove, footwear, protective eyewear, and protective headgear, if applicable, statements specified for applicators and other handlers, but omit any respiratory protection statement).”

(2) If the body protection statement in the personal protective equipment requirement for handlers specifies a long-sleeved shirt and long pants, “coveralls” must be specified in the statement of personal protective equipment for early-entry workers.

(3) If there is no statement requiring gloves and no prohibition against gloves for applicators and other handlers under the heading HAZARDS TO HUMANS (AND DOMESTIC ANIMALS) in the labeling, add a requirement for “waterproof gloves” in the statement of personal protective equipment for early-entry workers.

[57 FR 38146, Aug. 21, 1992, as amended at 58 FR 34203, June 23, 1993]

PART 157—PACKAGING REQUIREMENTS FOR PESTICIDES AND DEVICES

Subpart A—[Reserved]

Subpart B—Child-Resistant Packaging

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AUTHORITY: 7 U.S.C. 136w.

SOURCE: 51 FR 21286, June 11, 1986 and 51 FR 36692, Oct. 15, 1986, unless otherwise noted.

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Subpart A—[Reserved]

Subpart B—Child-Resistant Packaging

§ 157.20 General.

This subpart prescribes requirements for child-resistant packaging of pesticide products and devices. The requirements are established under the authority of FIFRA section 25(a)(1), which authorizes the Administrator to issue regulations to carry out the purposes of the Act, and FIFRA section 25(c)(3), which authorizes the Administrator to establish standards with respect to the package, container or wrapping in which a pesticide or device is enclosed in order to protect children and adults from serious injury or illness resulting from accidental ingestion or contact with pesticides or devices regulated under the Act.

§ 157.21 Definitions.

Terms used in this subpart shall have the following meanings:

(a) *Appropriate*, when used with respect to child-resistant packaging, means that the packaging is chemically compatible with the pesticide contained therein.

(b) *Child-resistant packaging* means packaging that is designed and constructed to be significantly difficult for children under 5 years of age to open or obtain a toxic or harmful amount of the substance contained therein within a reasonable time, and that is not difficult for normal adults to use properly.

(c) *Package* or *packaging* means the immediate container or wrapping, including any attached closure(s), in which the pesticide is contained for distribution, sale, consumption, use or storage. The term does not include any shipping or bulk container used for transporting or delivering the pesticide unless it is the only such package.

(d) *Practicable*, when used with respect to child-resistant packaging, means that the packaging can be mass

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produced and can be used in assembly line production.

(e) *Residential use* means use of a pesticide or device:

(1) Directly on humans or pets;

(2) In, on, or around any structure, vehicle, article, surface or area associated with the household, including but not limited to areas such as non-agricultural outbuildings, non-commercial greenhouses, pleasure boats and recreational vehicles; or

(3) In or around any preschool or day care facility.

(f) *Technically feasible*, when applied to child-resistant packaging, means that the technology exists to produce the child-resistant packaging for a particular pesticide.

(g) *Unit packaging* means a package that is labeled with directions to use the entire contents of the package in a single application.

§ 157.22 When required.

Unless exempted under § 157.24, a pesticide product must be distributed and sold in child-resistant packaging complying with § 157.32 if it meets both of the following criteria:

(a) *Toxicity criterion*. Based upon testing with an appropriate test species, the product meets any of the following toxicity criteria:

(1) The pesticide has an acute oral LD₅₀ of 1.5 g/kg or less;

(2) The pesticide has an acute dermal LD₅₀ of 2000 mg/kg or less;

(3) The pesticide has an acute inhalation LC₅₀ of 2 mg/liter or less;

(4) The pesticide is corrosive to the eye (causes irreversible destruction of ocular tissue) or causes corneal involvement or irritation persisting for 21 days or more;

(5) The pesticide is corrosive to the skin (causes tissue destruction into the dermis and/or scarring) or causes severe skin irritation (severe erythema or edema) at 72 hours; or

(6) The pesticide or device has such characteristics that, based upon human toxicological data, use history, accident data or such other evidence as is available, the Agency determines there is serious hazard of accidental injury or illness which child-resistant packaging could reduce; and

(b) *Use criterion*. The product's labeling either directly recommends residential use or reasonably can be interpreted to permit residential use.

§ 157.24 Exemptions.

(a) *General exemptions*. The Agency hereby exempts from the requirement for child-resistant packaging the following classes of products:

(1) *Products classified for restricted use*.

(i) A product restricted to use by or under the supervision of a certified applicator is not required to be distributed and sold in child-resistant packaging.

(ii) Notwithstanding the exemption in paragraph (a)(1)(i) of this section, the Agency may require the use of child-resistant packaging for a product classified for restricted use by or under the direct supervision of a certified applicator if the Agency determines that the product poses a risk of serious accidental injury or illness which child-resistant packaging could reduce. If the Agency makes such a determination, it will notify the registrant in writing and provide a short statement of the basis of its determination. The registrant will then have 30 days to request a hearing on the Agency's determination. Thereafter the Agency will decide whether to require the product to be distributed only in child-resistant packaging and will notify the registrant of its decision.

(2) *Products packaged in large sizes*. (i) Except as provided by paragraph (a)(2)(ii) of this section, a product is not required to be in child-resistant packaging if distributed and sold in the following sizes:

(A) If the product is a solid product, regardless of pesticide type, a size of 50 pounds or greater;

(B) If the product is a liquid product intended for use in swimming pools, a size greater than 7.5 gallons by volume;

(C) If the product is a liquid product intended for any other pesticide use, a size of 5 gallons or greater by volume;

(D) If the product is packaged as an aerosol (measured by weight), regardless of pesticide type, a weight of 2 pounds or greater.

(ii) The Agency may require that a product packaged in a size exceeding that listed in paragraphs (a)(2)(i) (A)

through (D) of this section be distributed and sold only in child-resistant packaging if the Agency determines that the product is, or is intended to be, distributed or sold to homeowners or other members of the general public. If the Agency makes such a determination, it will notify the registrant in writing and provide a short statement of the basis of its determination. The registrant will then have 30 days to request a hearing on the Agency's determination. Thereafter the Agency will decide whether to require the product to be distributed only in child-resistant packaging and will notify the registrant of its decision.

(b) *Exemptions requiring Agency approval.* The Agency may, in accordance with paragraphs (b) (1) through (3) of this section, grant an exemption from the requirements of this subpart. An exemption may be withdrawn in accordance with paragraph (b)(4) of this section.

(1) *Requesting an exemption.* A request for an exemption must be submitted to the Agency, and must be accompanied by two copies of the following information:

- (i) The name, address, and telephone number of the requester;
- (ii) The name and registration number (or file symbol) of the product(s) for which the exemption is requested;
- (iii) A description of the package and the size(s) for which the exemption is requested; and
- (iv) Documentation supporting the request for exemption, including the length of time for which the exemption is requested.

(2) *Exemption based upon lack of toxicity.* The Agency may grant an exemption from the requirements of this subpart if the registrant or applicant demonstrates to the Agency's satisfaction that the hazards indicated by the toxicity criteria in § 157.22(a) are not indicative of the hazards to man. If granted, an exemption shall apply to other products of substantially similar composition. A notice will be issued in the FEDERAL REGISTER stating the nature of and reasons for the exemption.

(3) *Exemption based upon technical factors.* The Agency may grant an exemption from the requirements of this subpart based upon technical consider-

ations. If granted, the exemption will be for a specified length of time, and will apply to other products of substantially similar composition and intended uses. A notice of the granting of an exemption will be issued in the FEDERAL REGISTER. In considering whether to grant an exemption, the Agency will consider, among other things, the following:

- (i) Whether the toxicity of the product is such that it should not be allowed to be distributed or sold except in child-resistant packaging.
- (ii) Whether child-resistant packaging is technically feasible, practicable, or appropriate. An exemption may be granted if the Agency determines that any one of these criteria has not been met.
- (iii) Whether the composition or use pattern of the product necessitates a particular form of packaging for proper use.
- (iv) Whether child-resistant packaging that is technically feasible, practicable, and appropriate is available for the product or can reasonably be made available to the registrant in sufficient quantities to meet his packaging needs. This determination does not include a consideration of whether the packaging would be adaptable to a registrant's existing package type or packaging equipment.
- (v) Whether the registrant has made a timely and good faith effort to obtain child-resistant packaging for the product.

(vi) If child-resistant packaging which is technically feasible, practicable, and appropriate is not yet available, when such packaging is likely to be available.

(4) An exemption may be withdrawn by the Agency at any time if the lack of child-resistant packaging results in serious illnesses or injuries to children. If the Agency determines that an exemption should be withdrawn, it will notify the registrant, stating the basis for its determination. The registrant will then have 30 days to request a hearing on the Agency's determination. Thereafter the Agency will decide whether to withdraw the exemption, and will notify the registrant of its decision.

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§ 157.27 Unit packaging.

Pesticide products distributed or sold as an aggregate of one or more unit packages and meeting the criteria of § 157.22 must be distributed or sold in child-resistant packaging either for each unit package or for the outer retail container which contains the unit packages. Child-resistant packaging is not required for both the outer package and the unit packages unless the Agency determines, on a case-by-case basis, that it is necessary for risk reduction.

§ 157.30 Voluntary use of child-resistant packaging.

A registrant whose product is not required to be in child-resistant packaging may distribute or sell his pesticide product in child-resistant packaging. If he does so, that packaging must meet the standards for child-resistant packaging stated in § 157.32. The registrant must certify to this effect in accordance with § 157.34, and must retain the records required by § 157.36.

§ 157.32 Standards.

(a) *Effectiveness standard.* The child-resistant packaging, when tested by the protocol specified in 16 CFR 1700.20, shall meet the effectiveness specifications in 16 CFR 1700.15(b).

(b) *Compatibility standard.* The child-resistant packaging must continue to meet the effectiveness specifications of paragraph (a) of this section when in actual use as a pesticide container. This requirement may be satisfied by appropriate scientific evaluation of the compatibility of the substance with the child-resistant packaging to determine that the chemical and physical characteristics of the pesticide will not compromise or interfere with the proper functioning of the child-resistant packaging and that the packaging will not be detrimental to the integrity of the product during storage and use.

(c) *Durability standard.* The child-resistant packaging must continue to meet the effectiveness and compatibility standards of paragraphs (a) and (b) of this section for the reasonably expected lifetime of the package, taking into account the number of times the package is customarily opened and closed. This requirement may be satis-

fied by appropriate technical evaluation based on physical wear and stress factors of packaging, the force required for activation, and other relevant factors.

§ 157.34 Certification.

(a) *General.* (1) The registrant of a pesticide product required to be in child-resistant packaging shall certify to the Agency that the package meets the standards of § 157.32.

(2) Certification must be submitted with each application for new registration, if applicable. If the Agency determines, in accordance with § 157.24(a)(1)(ii), (2)(ii), or (b)(4), that a currently registered product is required to be packaged in child-resistant packaging, a certification must be submitted within 6 months after the Agency finally notifies the registrant of the requirement.

(b) *Contents of certification.* The certification must contain the following information:

(1) The name and EPA registration number of the product to which the certification applies, the registrant's name and address, the date, and the name, title and signature of the company official making the certification.

(2) A statement that the packaging that is being used for the product will meet the standards of § 157.32. The statement, "I certify that the packaging that will be used for this product meets the standards of 40 CFR 157.32," will suffice for this purpose.

§ 157.36 Recordkeeping.

For as long as the registration of a pesticide product required to be in child-resistant packaging is in effect, the registrant must retain the records listed in this section. The registrant must, upon request by the Agency, make them available to Agency representatives for inspection and copying, or must submit them to the Agency.

(a) A description of the package, including a description of:

(1) The container and its dimensions and composition.

(2) The closure or child-resistant mechanism, including the name of its manufacturer and the manufacturer's

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designation for the closure or the physical working of the child-resistant packaging mechanism.

(b) A copy of the certification statement required by §157.34.

(c) One of the following types of records verifying that each package for the product is child-resistant:

(1) Test data on the package based on the Consumer Product Safety Commission protocol in 16 CFR 1700.20.

(2) Test data, not conforming to the protocol in 16 CFR 1700.20, or a set of measurements on the package, together with an explanation as to why such data or measurements demonstrate that the package is child-resistant.

(3) Test data, whether or not conforming to the protocol in 16 CFR 1700.20, on a different package, together with an explanation of why such data demonstrate that the package being used is child-resistant.

(4) Written evidence that verifies that testing on the package has been conducted according to the protocol in 16 CFR 1700.20. Written evidence may be one of the following:

(i) A letter or literature from the packaging supplier;

(ii) A letter from the facility that conducted the testing; or

(iii) A specification in the contract between the registrant or applicant and the packaging supplier;

(5) When the container and closure are purchased separately by the registrant:

(i) Information of the kinds described in paragraphs (c) (1) through (4) of this section showing that the closure is child-resistant; and

(ii) A written explanation of why the container is child-resistant; and

(iii) Information showing that the closure and container are compatible with each other, and a written explanation of why the resulting package is child-resistant.

(6) A combination of the records listed in paragraphs (c) (1) through (5).

(d) Records verifying that the package meets the compatibility and durability standards of §157.32(b) and (c).

(Approved by the Office of Management and Budget under control number 2070–0052)

PART 158—DATA REQUIREMENTS FOR REGISTRATION

Subpart A—General Provisions

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APPENDIX A TO PART 158—DATA REQUIREMENTS FOR REGISTRATION: USE PATTERN INDEX.

AUTHORITY: 7 U.S.C. 136–136y.

SOURCE: 49 FR 42881, Oct. 24, 1984, unless otherwise noted.

Subpart A—General Provisions

§ 158.20 Overview.

(a) *Legal authority.* These requirements are promulgated under the authority of sections 3, 5, 12, and 25 of the Federal Insecticide, Fungicide and Rodenticide Act, as amended (FIFRA) (7 U.S.C. 136–136y).

(b) *Purposes of this part.* (1) The primary purpose of this part is to specify the types and minimum amounts of data and information the Agency requires in order to make regulatory judgments about the risks and benefits of various kinds of pesticide products under the criteria set forth in FIFRA sections 3(c)(5) (C) and (D) and 3(c)(7).

(2) This part also specifies the types and minimum amounts of data and information the Agency requires to decide whether to approve applications for experimental use permits under FIFRA section 5.

(3) Finally, this part specifies the types and minimum amounts of data and information that an applicant for registration, amended registration, or reregistration must submit or cite in support of an application in order to satisfy the requirements of FIFRA section 3(c)(1)(D) and sections 3(c)(5)(B) or 3(c)(7). Use of the term “registration” in this part will pertain to new registrations and amended registrations as well as reregistration accomplished under section 3(g), unless stated otherwise.

(c) *Availability of related guidelines.*

The data requirements for pesticide registration specified in this part pertain to product chemistry, residue chemistry, environmental fate, toxicology, reentry protection, aerial drift evaluation, wildlife and aquatic organisms, plant protection, nontarget insects, product performance, and biochemical and microbial pesticides. The standards for conducting acceptable tests, guidance on evaluation and reporting of data, further guidance on when data are required, definition of most terms, and examples of protocols are not specified in this part. This information is available in advisory documents (collectively referred to as Pesticide Assessment Guidelines) through the National Technical Information Service, 5285 Port Royal Road, Springfield, VA 22161 (telephone: 703-487-4650).

§ 158.25 Applicability of data requirements.

(a) Some kinds of data and information are specified in subparts C and D of this part as “required” (“R”) for the evaluation of some or all types of products. Other kinds of data and information are specified in those sections as “conditionally required” (“CR”), that is, they are required if the product’s proposed pattern of use, results of other tests, or other pertinent factors meet the criteria specified in those sections. The terms “required” and “conditionally required” are further discussed in §§ 158.100 and 158.101.

(b) The Agency recognizes that certain data requirements may not be applicable to (or should be waived for) some products, and has made provisions for such cases in this part as specified in § 158.35 *Flexibility of the data requirements*, § 158.40 *Consultation with the Agency*, § 158.45 *Waivers*, and § 158.60 *Minor uses*.

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988]

§ 158.30 Timing of the imposition of data requirements.

This part establishes requirements for the types of data which are necessary to support the unconditional registration of a pesticide product under section 3(c)(5) of the Act. While every registered pesticide product

must eventually be supported by the data required by part 158, when an applicant or registrant must initially satisfy these data requirements depends on the factors listed below in this section.

(a) *Existing Registrations.* A registrant of a currently registered pesticide product is not obligated to satisfy any data requirement in part 158 with respect to that product until he receives a notice under section 3(c)(2)(B) of the Act that additional data are required to support the continued registration of the product, until he applies for an amendment to the registration, or until the product is subject to reregistration.

(b) *Applications.* The amount of data required by the Agency to evaluate an application for initial or amended registration depends on whether the product is being reviewed under section 3(c)(5) of the Act (unconditional registration) or section 3(c)(7) of the Act (conditional registration). Refer to § 152.111 of this chapter or consult with the appropriate EPA Product Manager to determine under which section of the Act the application will be reviewed. The following paragraphs identify, for each different type of application, the minimum amount of data that must be available for EPA review to permit EPA to make the statutory risk-benefit determinations required by section 3(c)(5) or 3(c)(7) of the Act. In addition to satisfying these minimum data requirements, applicants may be required to submit or cite additional data, either to permit EPA to assess the safety or efficacy of the product (refer to § 158.75) or to comply with the statutory requirements of section 3(c)(1)(D) of the Act, or both.

(1) *Applications for unconditional registration under section 3(c)(5) of the Act.* EPA will not approve an application for unconditional registration unless all data required by this part which have not been waived are available for EPA to review.

(2) *Applications for conditional registration of a new chemical under section 3(c)(7)(C) of the Act.* EPA will not approve an application for conditional registration of a pesticide containing an active ingredient not contained in any currently registered product unless

data required by this part are available for EPA to review except for:

(i) Those data for which the requirement has been waived.

(ii) Those data for which the requirement was imposed so recently that the applicant has not had sufficient time to produce the data.

(3) *Applications for conditional registration of products which are identical or substantially similar to currently registered products under section 3(c)(7)(A) of the Act.* EPA will not approve an application for conditional registration of a pesticide product which is identical or substantially similar to a currently registered pesticide unless the following data are available for EPA to review:

(i) Product chemistry data, as required by subpart C of this part.

(ii) Product performance data, to the extent required by § 158.160.

(4) *Applications for conditional registration of new uses of currently registered products under section 3(c)(7)(B) of the Act.* EPA will not approve an application for registration of a pesticide for a new use of a currently registered pesticide product unless the following data are available for EPA to review:

(i) Product chemistry data, as required by subpart C of this part.

(ii) Product performance data, to the extent required by § 158.160.

(iii) Other data pertaining solely to the new use. The applicant may generally determine which data pertain solely to the new use by comparing the data requirements for all existing uses of all currently registered products containing the same active ingredient(s) with those for all uses including the new use. Any differences are attributable to the new use and must be submitted with the application.

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988; 58 FR 34203, June 23, 1993]

§ 158.32 Format of data submission.

(a) *Transmittal document.* All data submitted at the same time and for review in support of a single administrative action (e.g., an application for registration, reregistration, experimental use permit, or in response to a requirement for data under the authority of

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FIFRA sec. 3(c)(2)(B), must be accompanied by a single transmittal document including the following information:

(1) The identity of the submitter, or the identity of each joint submitter and of the agent for joint submitters;

(2) The date of the submission;

(3) The identification of the Agency action in support of which the data are being submitted, such as the registration number or file symbol, petition number, experimental use permit number, or registration standard review; and

(4) A bibliography of all specific documents included in the submission and covered by the transmittal.

(b) *Individual studies.* (1) All data must be submitted in the form of individual studies. Unless otherwise specified by the Agency, each study should address a single data requirement, and be listed separately in the bibliography.

(2) Each study must include the following elements in addition to the study itself:

(i) A title page, as described in paragraph (c) of this section;

(ii) A Statement of Data Confidentiality Claims and, if desired, a Supplemental Statement of Data Confidentiality Claims, in accordance with § 158.33;

(iii) A certification with respect to Good Laboratory Practice standards, if required by § 160.12 of this chapter;

(iv) If the original study is not in the English language, a complete and accurate English translation under the same cover; and

(v) If the study is of a type listed in § 158.34(b), the statement prescribed by paragraph (c) of that section.

(3) Three identical copies of each study must be submitted. If the study is submitted in conjunction with a pending Special Review or Registration Standard under development, four copies must be submitted. Three copies must be identical and must conform to the requirements of § 158.33 with respect to claims of confidentiality. The fourth copy will be placed in the public docket and must conform to the requirements of § 154.15(c) of this chapter or § 155.30(c) of this chapter with re-

spect to claimed confidential business information.

(4) All copies must be in black ink on uniform pages of white, 8½ × 11 inch paper. Copies must have high contrast and good resolution for microfilming. Frayed or oversize pages and glued bindings are not acceptable.

(c) *Contents of title page.* Each individual study must have a title page bearing the following identifying information:

(1) The title of the study, including identification of the substance(s) tested and the test name or data requirement addressed;

(2) The author(s) of the study;

(3) The date the study was completed;

(4) If the study was performed in a laboratory, the name and address of the laboratory and any laboratory project numbers or other identifying codes;

(5) If the study is a commentary on or supplement to another previously submitted study, full identification of the other study with which it should be associated in review; and

(6) If the study is a reprint of a published document, all relevant facts of publication, such as the journal title, volume, issue, inclusive page numbers, and date of publication.

(d) *EPA identification number.* EPA will assign each study an EPA Master Record Identification (MRID) number, and will promptly notify the submitter of the number assigned. This number should be used in all further communications with the Agency about the study.

(e) *Reference to previously submitted data.* Data which previously have been submitted need not be resubmitted unless resubmission is specifically requested by the Agency. If an applicant or registrant wishes the Agency to consider such data in the review of an Agency action, he should cite the data by providing:

(1) The title or adequate description of the study;

(2) The transmittal information required by paragraph (a) (1), (2), and (3) of this section; and

(3) The MRID number assigned in accordance with paragraph (d) of this section.

[53 FR 15991, May 4, 1988]

§ 158.33 Procedures for claims of confidentiality of data.

(a) *General.* A data submitter must clearly identify any information which he claims is entitled to confidential treatment under FIFRA sec. 10. The procedures in this section must be followed to assert a claim of confidentiality.

(b) *Claims of confidentiality for information described by FIFRA sec. 10(d)(1) (A), (B), and (C).* Any information claimed to be confidential under FIFRA sec. 10(d)(1) (A) through (C) must be submitted in accordance with the following procedures:

(1) The information must be contained in a separate attachment to the study. If any information is included in the body of the study rather than in the confidential attachment, the submitter waives a claim of confidentiality for such information under FIFRA sec. 10(d)(1) (A), (B), or (C).

(2) The attachment must have a cover page which is clearly marked to indicate that the material contained in the attachment falls within the scope of FIFRA sec. 10(d)(1) (A), (B), or (C).

(3) Each item in the attachment must be numbered. For each item, the submitter must cite the applicable portion of FIFRA sec. 10(d)(1) (A), (B), or (C) on which the claim of confidentiality is based. In addition, for each item, the submitter must provide a list of page numbers in the study where the item is cited (i.e., identified by number).

(4) Each item in the attachment must be referenced in the body of the study by its number in the attachment.

(5) The following statement must appear on the Statement of Data Confidentiality Claims:

Information claimed confidential on the basis of its falling within the scope of FIFRA sec. 10(d)(1)(A), (B), or (C) has been removed to a confidential appendix, and is cited by cross-reference number in the body of the study.

The statement must bear the name, title, and signature of the submitter or his properly designated agent, and the date of signature.

(c) *No claim of confidentiality under FIFRA sec. 10(d)(1)(A), (B), or (C).* If no claim of confidentiality is being made for information described by FIFRA

sec. 10(d)(1)(A), (B), or (C), or if such information is not contained in the body of the study, the Statement of Data Confidentiality Claims must include the following statement:

No claim of confidentiality is made for any information contained in this study on the basis of its falling within the scope of FIFRA sec. 10(d)(1)(A), (B), or (C).

This statement must bear the name, title and signature of the submitter or his properly designated agent, and the date of signature.

(d) *Claim of confidentiality for information not described by FIFRA sec. 10(d)(1) (A), (B), or (C).* Any information not described by FIFRA sec. 10(d)(1) (A), (B), or (C) for which a claim of confidentiality is made must be submitted in accordance with the following procedures:

(1) The information must be clearly marked in the body of the study as being claimed confidential.

(2) A separate Supplemental Statement of Data Confidentiality Claims must be submitted identifying by page and line number the location within the study of each item claimed confidential, and stating the basis for the claim.

(3) The Supplemental Statement of Data Confidentiality Claims must bear the name, title, and signature of the submitter or his properly designated agent, and the date of signature.

[53 FR 15991, May 4, 1988]

§ 158.34 Flagging of studies for potential adverse effects.

(a) Any person who submits a study of a type listed in paragraph (b) of this section to support an application for new or amended registration, or to satisfy a requirement imposed under FIFRA sec. 3(c)(2)(B), must submit with the study a statement in accordance with paragraph (c) of this section.

(b) The following table indicates that study types and the criteria to be applied to each. Column 1 lists the study types by name. Column 2 lists the associated Pesticide Assessment Guideline number. Column 3 lists the criteria applicable to each type of study. Column 4 lists the reporting code to be included in the statement specified in § 158.34(c) when any criterion is met or exceeded.

TABLE—FLAGGING CRITERIA

Toxicity studies	Pesticide assessment guidelines No.	Criteria	Reporting code
Oncogenicity [or combined oncogenicity/chronic feeding study] or Subchronic feeding study	83–2	Treated animals show any of the following:	
	82–1	An incidence of neoplasms in male or female animals which increases with dose;	1
		or A statistically significant ($p \leq 0.05$) incidence of any type of neoplasm in any test group (male or female animals at any dose level) compared to concurrent control animals of the same sex;	2
		or An increase in any type of uncommon or rare neoplasms in any test group (male or female animals at any dose level) compared to concurrent control animals	3
		or A decrease in the time to development of any type of neoplasms in any test group (male or female animals at any dose level) compared to concurrent control animals	4
Teratogenicity	83–3	When compared with concurrent controls, treated animals show a dose-related increase in malformations (or deaths) on a litter basis in the absence of significant maternal toxicity at the same dose levels	5
Neurotoxicity	81–7	When compared with controls, treated animals show a response indicative of acute delayed neurotoxicity	6
Chronic feeding study or combined chronic feeding/ oncogenicity study	83–1	Cholinesterase inhibition NOEL less than 10 times the current existing ADI.	7
		or General (systemic) toxicity NOEL less than 100 times the current existing ADI.	8
Reproduction study	83–4	Reproductive effects NOEL less than 100 times the current ADI	9
Subchronic feeding study	82–1	Cholinesterase inhibition NOEL less than 100 times the current existing ADI.	10
		or General (systemic) toxicity NOEL less than 1000 times the current existing ADI.	11

(c) *Identification of studies.* For each study of a type identified in paragraph (b) of this section, the applicant (or registrant in the case of information submitted under FIFRA sec. 3(c)(2)(B)) shall include the appropriate one of the following two statements, together with the signature of the authorized representative of the company, and the date of signature:

(1) “I have applied the criteria of 40 CFR 158.34 for flagging studies for potential adverse effects to the results of the attached study. This study neither meets nor exceeds any of the applicable criteria.”

(2) “I have applied the criteria of 40 CFR 158.34 for flagging studies for potential adverse effects to the results of the attached study. This study meets or exceeds the criteria numbered [insert all applicable reporting codes.]”

[53 FR 15992, May 4, 1988, as amended at 58 FR 34203, June 23, 1993]

§ 158.35 Flexibility of the data requirements.

Several provisions of this part provide EPA flexibility in requiring (or not requiring) data and information for the purposes specified in § 158.20(b). These provisions are summarized in

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this section and discussed elsewhere in this part.

(a) The Agency encourages each applicant, particularly a person applying for registration for the first time, to consult with the Product Manager for his product to resolve questions relating to the protocols or the data requirements before undertaking extensive testing under § 158.40.

(b) Any applicant who believes that a data requirement is inapplicable to a specific pesticide product may request a waiver of a data requirement under § 158.45.

(c) The Agency may require an applicant to provide additional data or information beyond that specified in subparts C and D of this part when these data are not sufficient to permit EPA to evaluate the applicant's product under § 158.75.

(d) Several policies are in effect that govern the data requirements for registration of products having minor uses. These policies reduce substantially the data requirements that need to be met on the basis of limited exposures and economic equity, and allow case-by-case decision making to determine the specific needs for each kind of use under § 158.60.

(e) The data requirements and guidelines are not static documents. Section 3(c)(2) of FIFRA states that the administrator "shall revise such guidelines from time to time." Therefore, the data requirements and guidelines will be revised periodically to reflect new scientific knowledge, new trends in pesticide development, and new Agency policies under § 158.80.

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988]

§ 158.40 Consultation with the Agency.

This part establishes data requirements applicable to various general use patterns of pesticide products, but some unique or unanticipated aspect of a proposed product's use pattern or composition may result in the need for conferences between registration applicants and the Agency. Such conferences may be initiated by the Agency or by registration applicants. Applicants are expected to contact their respective Product Managers to arrange discussions. The Agency welcomes sug-

gestions for changes to improve the clarity, accuracy, or some other aspect of the data requirements set forth in this part. Specific suggestions should be forwarded to the Director of the Hazard Evaluation Division.

§ 158.45 Waivers.

(a) *Rationale and policy.* (1) The data requirements specified in this part as applicable to a category of products will not always be appropriate for every product in that category. Some products may have unusual physical, chemical, or biological properties or atypical use patterns which would make particular data requirements inappropriate, either because it would not be possible to generate the required data or because the data would not be useful in the Agency's evaluation of the risks or benefits of the product. The Agency will waive data requirements it finds are inappropriate, but will ensure that sufficient data are available to make the determinations required by the applicable statutory standards.

(2) The Agency will waive data requirements on a case-by-case basis in response to specific written requests by applicants. Because of the wide variety of types and use patterns of pesticides, it is impossible to spell out all of the circumstances which might serve as a basis for waiving data requirements. The Agency, however, will take into account, as appropriate, the factors enumerated in sections 3(c)(2)(A) and 25(a)(1) of FIFRA.

(b) *Procedure for requesting waiver.* (1) An applicant should discuss his plans to request a waiver with the EPA Product Manager responsible for his product before developing and submitting extensive support information for the request.

(2) To request a waiver, an applicant must submit a written request to the appropriate Product Manager. The request must specifically identify the data requirement for which a waiver is requested, explain why he thinks data requirement(s) should be waived, describe any unsuccessful attempts to generate the required data, furnish any other information which he believes would support the request, and when appropriate, suggest alternative means

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of obtaining data to address the concern which underlies the data requirement.

(c) *Notification of waiver decision.* The Agency will review each waiver request and inform the applicant in writing of its decision. In addition, for decisions that could apply to more than a specific product, the Agency may choose to send a notice to all registrants or to publish a notice in the FEDERAL REGISTER announcing its decision. An Agency decision denying a written request to waive a data requirement shall constitute final Agency action for purposes of FIFRA section 16(a).

(d) *Availability of waiver decisions.* Agency decisions under this section granting waiver requests will be available to the public at the Office of Pesticide Programs Reading Room, Rm. 236, Crystal Mall #2, 1921 Jefferson Davis Highway, Arlington, VA 22202 from 8:00 a.m. to 4:00 p.m., Monday through Friday, except legal holidays. Any person may obtain a copy of any waiver decision by written request in the manner set forth in 40 CFR part 2.

§ 158.50 Formulators' exemption.

(a) FIFRA section 3(c)(2)(D) provides that an applicant for registration of an end-use pesticide product need not submit or cite any data that pertain to the safety of another registered pesticide product which is purchased by the applicant and used in the manufacture or formulation of the product for which registration is sought.

(b) This exemption applies only to data concerning safety of a product or its ingredients, not to efficacy data. Data concerning safety includes toxicity, metabolism, environmental fate, product chemistry, and residue chemistry data.

(c) This exemption does not apply to data concerning the safety of the applicant's end-use product itself, unless the composition of the applicant's product and that of the purchased product are identical, i.e., data which this part indicates must be developed by tests using the end-use product for which registration is sought as the test substance. These requirements can be identified by the notation "EP*" in the "test substance" column of the tables in subparts C and D of this part and

these are the minimum data requirements that the applicant described in paragraph (a) of this section (i.e., the "formulator") must satisfy.

(d) The data to which this exemption applies usually will concern the safety of one or more of the end-use product's active ingredients, specifically, those active ingredients which are contained in the purchased product. These data requirements normally can be identified by the notations "TGAI" (technical grade of active ingredient), "PAI" (pure active ingredients), "PAIRA" (pure active ingredient, radiolabeled), or "TEP" (typical end-use product) in the "test substance" column of the tables in subparts C and D of this part.

(e) EPA interprets FIFRA section 3(c)(2)(D) as allowing an applicant to use the formulator's exemption with respect to a data requirement concerning the safety of an ingredient of his product only if:

(1) His application indicates that the ingredient's presence in his product is attributable solely to his purchase from another person of an identified, registered product containing that ingredient and his use of the purchased product in formulating his product; and

(2) The purchased product is a registered manufacturing-use product whose label does not prohibit its use for making an end-use product with any use for which the applicant's product will be labeled; or

(3) The purchased end-use product is a registered end-use product labeled for each use for which the applicant's product will be labeled.

(f) Notwithstanding FIFRA section 3(c)(2)(D), EPA will not approve an application unless there is available to EPA for its review whatever data is necessary in order to make the required risk/benefit finding under FIFRA section 3(c)(5) or section 3(c)(7).

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988]

§ 158.55 Agricultural vs. non-agricultural pesticides.

Section 25(a)(1) of FIFRA instructs the Administrator to "take into account the difference in concept and

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usage between various classes of pesticides and differences in environmental risk and the appropriate data for evaluating such risk between agricultural and non-agricultural pesticides.” This part distinguishes the various classes of pesticide use (e.g., crop vs. non-crop) and the corresponding data necessary to support registration under FIFRA. This information is present in each data requirement table. In addition, the Use Pattern Index (appendix A) is a comprehensive list of pesticide use patterns, cross-referenced to the general use patterns appearing in the tables; the index will further assist the reader in distinguishing agricultural versus non-agricultural uses of pesticides.

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988]

§ 158.60 Minor uses.

(a) *Minor use policy.* A minor use of a pesticide is a use on a “minor crop” (a crop which is planted on a small total amount of acreage) or a use which is otherwise limited such that the potential market volume of the product for that use is inherently small. EPA’s policy concerning data requirements for minor uses of pesticides includes the following elements:

(1) Since the market volume for a minor use of a pesticide is intrinsically low, and the risk associated with the use often is also correspondingly low, EPA will adjust the data requirements concerning the minor use appropriately.

(2) A new data requirement pertinent to both an unregistered minor use and a registered major use will not be applied to a minor use applicant until it is applied to the major use registrations.

(3) EPA will accept extrapolations and regional data to support establishment of individual minor use tolerances.

(4) Group tolerances will be established to assist applicants for registration of products for minor uses as described in 40 CFR 180.34.

(b) *Advice on data requirements to support minor uses.* Applicants for registration are advised to contact the appropriate EPA Product Manager of the Minor Use Officer for advice on devel-

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oping data to support new applications for minor uses of pesticides.

§ 158.65 Biochemical and microbial pesticides.

Biochemical and microbial pesticides are generally distinguished from conventional chemical pesticides by their unique modes of action, low use volume, target species specificity or natural occurrence. In addition, microbial pesticides are living entities capable of survival, growth reproduction and infection. Biochemical and microbial pesticides are subject to a different set of data requirements, as specified in §§ 158.165 and 158.170, respectively.

(a) *Biochemical pesticides.* Biochemical pesticides include, but are not limited to, products such as semichemicals (e.g. insect pheromones), hormones (e.g., insect juvenile growth hormones), natural plant and insect regulators, and enzymes. When necessary the Agency will evaluate products on an individual basis to determine whether they are biochemical or conventional chemical pesticides.

(b) *Microbial pesticides.* (1) Microbial pesticides include microbial entities such as bacteria, fungi, viruses, and protozoans. The data requirements apply to all microbial pesticides, including those that are naturally-occurring as well as those that are genetically modified. Each “new” variety, subspecies, or strain of an already registered microbial pest control agent must be evaluated, and may be subject to additional data requirements.

(2) Novel microbial pesticides (i.e., genetically modified or non-indigenous microbial pesticides) will be subject to additional data or information requirements on a case-by-case basis depending on the particular micro-organism, its parent microorganism, the proposed pesticide use pattern, and the manner and extent to which the organism has been genetically modified. Additional requirements may include information on the genetic engineering techniques used, the identity of the inserted or deleted gene segment (base sequence data or enzyme restriction map of the gene), information on the control region of the gene in question, a description of the “new” traits or characteristics that are intended to be expressed, tests

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to evaluate genetic stability and exchange, and/or selected Tier II environmental expression and toxicology tests.

(3) Pest control organisms such as insect predators, nematodes, and macroscopic parasites are exempt from the requirements of FIFRA as authorized by section 25(b) of FIFRA and specified in § 152.20 (a) of this chapter.

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988]

§ 158.70 Acceptable protocols.

The Agency has published Pesticide Assessment Guidelines, as indicated in § 158.20(d), which contain suggested protocols for conducting tests to develop the data required by this part.

(a) *General policy.* Any appropriate protocol may be used provided that it meets the purpose of the test standards specified in the guidelines and provides data of suitable quality and completeness as typified by the protocols cited in the guidelines. Applicants should use the test procedure which is most suitable for evaluation of the particular ingredient, mixture, or product. Accordingly, failure to follow a suggested protocol will not invalidate a test if another appropriate methodology is used.

(b) *Organization for Economic Cooperation and Development (OECD) Protocols.* Tests conducted in accordance with the requirements and recommendations of the applicable OECD protocols can be used to develop data necessary to meet the requirements specified in this part. Readers should note, however, that certain of the OECD recommended test standards, such as test duration and selection of test species, are less restrictive than those recommended by EPA. Therefore, when using the OECD protocols, care should be taken to observe the test standards in a manner such that the data generated by the study will satisfy the requirements of this part.

(c) *Procedures for requesting advice on protocols.* Normally, all contact between the Agency and applicants or registrants is handled by the assigned Product Manager in the Registration Division of the Office of Pesticide Programs. Accordingly, questions concerning protocols should be directed, preferably in writing, to the Product Man-

ager responsible for the registration or application which would be affected.

§ 158.75 Requirements for additional data.

(a) *General policy.* The data routinely required by part 158 may not be sufficient to permit EPA to evaluate every pesticide product. If the information required under this part is not sufficient to evaluate the potential of the product to cause unreasonable adverse effects on man or the environment, additional data requirements will be imposed. However, EPA expects that the information required by this part will be adequate in most cases for an assessment of the properties of pesticide.

(b) *Policy on test substance.* In general, where the technical grade of the active ingredient is specified as the substance to be tested, tests may be performed using a technical grade which is substantially similar to the technical grade used in the product for which registration is sought. In addition to or in lieu of the testing required in subparts C and D of this part the Administrator will, on a case-by-case basis, require testing to be conducted with:

(1) An analytical pure grade of an active ingredient, with or without radioactive tagging.

(2) The technical grade of an active ingredient.

(3) The representative technical grade of an active ingredient.

(4) An intentionally added inert ingredient in a pesticide product.

(5) A contaminant or impurity of an active or inert ingredient.

(6) A plant or animal metabolite or degradation product of an active or inert ingredient.

(7) The end-use pesticide product.

(8) The end-use pesticide product plus any recommended vehicles and adjuvants.

(9) Any additional substance which could act as a synergist to the product for which registration is sought.

(10) Any combination of substances in paragraphs (b) (1) through (9) of this section.

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988; 58 FR 34203, June 23, 1993]

§ 158.80 Acceptability of data.

(a) *General policy.* The Agency will determine whether the data submitted to fulfill the data requirements specified in this part are acceptable. This determination will be based on the design and conduct of the experiment from which the data were derived, and an evaluation of whether the data fulfill the purpose(s) of the data requirement. In evaluating experimental design, the Agency will consider whether generally accepted methods were used, sufficient numbers of measurements were made to achieve statistical reliability, and sufficient controls were built into all phases of the experiment. The Agency will evaluate the conduct of each experiment in terms of whether the study was conducted in conformance with the design, good laboratory practices were observed, and results were reproducible. The Agency will not reject data merely because they were derived from studies which, when initiated were in accordance with an Agency-recommended protocol, even if the Agency subsequently recommends a different protocol, as long as the data fulfill the purposes of the requirements as described in this paragraph.

(b) *Previously developed data.* The Agency will consider that data developed prior to the effective date of this part would be satisfactory to support applications provided good laboratory practices were followed, the data meet the purposes of this part, and the data permit sound scientific judgments to be made. Such data will not be rejected merely because they were not developed in accordance with suggested protocols.

(c) *Data developed in foreign countries.* The Agency considers all applicable data developed from laboratory and field studies anywhere to be suitable to support pesticide registrations except for data from tests which involved field test sites or a test material, such as a native soil, plant, or animal, that is not characteristic of the United States. When studies at test sites or with materials of this type are anticipated, applicants should take steps to assure that United States materials are used or be prepared to supply data or information to demonstrate the lack of substantial or relevant differences be-

tween the selected material or test site and the United States material or test site. Once comparability has been established, the Agency will assess the acceptability of the data as described in paragraph (a) of this section.

(d) *Data from monitoring studies.* Certain data are developed to meet the monitoring requirements of FIFRA sections 5, 8 or 20. Applicants may wish to determine whether some of these data may meet the requirements of this part. In addition, data developed independently of FIFRA regulations or requirements may also satisfy data requirements in this part. Consultation with appropriate EPA Product Managers would be helpful if applicants are unsure about suitability of such data.

§ 158.85 Revision of data requirements and guidelines.

(a) Data requirements will be revised from time to time to keep up with policy changes and technology. Revisions to this part will be made in accordance with the Administrative Procedure Act (5 U.S.C. 551 *et seq.*). Changes having a significant impact on the registration process, applicants, testers, or other parties, or on the outcome and evaluation of studies, will be made only after public notice and opportunity for comment. Until final rules reflecting a change have been promulgated, the Agency can implement changes in the data requirements on a case-by-case basis.

(b) The Agency invites registration applicants, registrants, and the general public to suggest changes in the data requirements or the Pesticide Assessment Guidelines. Suggestions may be submitted at any time. Those making suggestions are requested to contact, in writing, the Director of the Hazard Evaluation Division. When suggestions consist of new suggested methods, representative test results should accompany the submittals.

Subpart B—How to Use Data Tables

§ 158.100 How to determine registration data requirements.

To determine the specific kinds of data needed to support the registration

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of each pesticide product, the registration applicant should:

(a) Refer to subparts C and D (§§ 158.150 through 158.740). These subparts describe the data requirements, including data tables for each subject area. The corresponding subdivisions in the Pesticide Assessment Guidelines are listed in § 158.108.

(b) Select the general use pattern(s) that best covers the use pattern(s) specified on the pesticide product label. Selection of the appropriate general use pattern(s) will usually be obvious. However, unique or ambiguous cases will arise occasionally. These situations may be clarified by reference to the Use Pattern Index presented in the appendix to the Data Requirements for Registration. The applicant can look up a specific use pattern in appendix A and it will be cross referenced to the appropriate general use patterns to be used in each Data Requirement table.

(c) Proceed down the appropriate general use pattern column in the table and note which tests (listed along the left hand side of the table) are required (“R”), conditionally required (“CR”) or usually not required (“—”). After reading through each data requirement table, the applicant will have a complete list of required and conditionally required data for the pesticide product and the substance to be tested in developing data to meet each requirement. The data EPA must have available to review the registration of a specific product consists of all the data designated as required for that product and all the applicable data designated as conditionally required for that product.

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15993, May 4, 1988]

§ 158.101 Required vs. conditionally required data.

(a) Data designated as “required” (“R”) for products with a given general use pattern are needed by EPA to evaluate the risks or benefits of a product having that use pattern unless the data requirement has been waived under § 158.45 for that particular product or unless the product is covered by a specific exception set forth in a note accompanying the requirement.

(b) Data designated as “conditionally required” (“CR”) for products with a given general use pattern are needed by EPA to evaluate the risks or benefits of a product having that use pattern if the product meets the conditions specified in the corresponding notes accompanying the data requirements table. As indicated in the notes, the determination of whether the data must be submitted is based on the product’s use pattern, physical or chemical properties, expected exposure of nontarget organisms, and/or results of previous testing (e.g., tier testing). Applicants must evaluate each applicable note to determine whether or not conditionally required data must be submitted as indicated by the conditions and criteria specified in the accompanying notes unless the Agency has granted a waiver request submitted by the registrant in accordance with § 158.45.

(c) For certain of the required or conditionally required data, the “R” or “CR” designations are enclosed in brackets (i.e., [R], [CR]). The brackets designate those data that are required or conditionally required to support a product when an experimental use permit is being sought. In all other situations (i.e., other than support of an experimental use permit), the brackets have no meaning and the designations R and CR are equivalent to [R] and [CR], respectively.

[49 FR 42881, Oct. 24, 1984, as amended at 58 FR 34203, June 23, 1993]

§ 158.102 Distinguishing between what data are required and what substance is to be tested.

(a) Readers should be careful to distinguish between what data are required and what substance is to be tested, as specified in this part and in each corresponding section of the guidelines. Each data requirement table specifies whether a particular data requirement is required to support the registration of manufacturing-use products, end-use products, or both. The test substance column specifies which substance is to be subjected to testing. Thus, the data from a certain kind of study may be required to support the registration of each end-use product, but the test substance column may state that the particular test shall

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be performed using, for example, the technical grade of the active ingredient(s) in the end-use product.

(b) Manufacturing-use products (MP) and end-use products (EP) containing a single active ingredient and no inert ingredients are identical in composition to each other and to the technical grade of the active ingredient (TGAI) from which they were derived, and therefore, the data from a test conducted using any one of these as the test substance (e.g., TGAI) is also suitable to meet the requirement (if any) for the same test to be conducted using either of the other substances (i.e., MP or EP).

[49 FR 42881, Oct. 24, 1984, as amended at 53 FR 15999, May 4, 1988]

§ 158.108 Relationship of Pesticide Assessment Guidelines to data requirements.

The Pesticide Assessment Guidelines contain the standards for conducting acceptable tests, guidance on evaluation and reporting of data, definition of terms, further guidance on when data are required, and examples of acceptable protocols. They are available through the National Technical Information Service, 5285 Port Royal Road, Springfield, VA 22161 (703-487-4650). The following Subdivisions of the Pesticide Assessment Guidelines, referenced to the appropriate sections of this part, are currently available:

Subdivision	Title	NTIS order no.	Corresponding section(s) in this part
D	Product Chemistry	PB83-153890	§§ 158.150–158.190
E	Hazard Evaluation: Wildlife and Aquatic Organisms	PB83-153908	§ 158.490
F	Hazard Evaluation: Humans and Domestic Animals	PB83-153916	§ 158.340
G	Product Performance	PB83-153924	§ 158.640
I	Experimental Use Permits	PB83-153932	§§ 158.20–158.740
J	Hazard Evaluation: Nontarget Plants	PB83-153940	§ 158.540
K	Reentry Protection	PB85-120962	§ 158.390
L	Hazard Evaluation: Nontarget Insect	PB83-153957	§ 158.590
M	Biorational Pesticides	PB83-153965	§§ 158.690–158.740
N	Environmental Fate	PB83-153973	§ 158.290
O	Residue Chemistry	PB83-153961	§ 158.240
R	Spray Drift Evaluation	PB84-189216	§ 158.440

[53 FR 15993, May 4, 1988]

Subpart C—Product Chemistry Data Requirements

SOURCE: 53 FR 15993, May 4, 1988, unless otherwise noted.

§ 158.150 General.

(a) *Applicability.* This subpart describes the product chemistry data that are required to support the registration of each pesticide product. The information specified in this subpart must be submitted with each application for new or amended registration or for reregistration, if it has not been submitted previously or if the previously submitted information is not complete and accurate. References in this subpart to the “applicant” include the registrant if the information is required for a registered product.

(b) *Purpose—(1) Product composition.* (i) Data on product composition are needed to support the conclusions ex-

pressed in the statement of formula. These data include information on the starting materials, production or formulating process, possible formation of impurities, results of preliminary analysis of product samples, a description of analytical methods to identify and quantify ingredients and validation data for such methods. In addition, an applicant is required to certify the limits for ingredients of his product.

(ii) Product composition data are compared to the composition of materials used in required testing under subpart D of this part. This comparison indicates which components of a pesticide product have been evaluated by a particular study, and might lead to a conclusion that another study is needed. Based on conclusions concerning the product’s composition and its toxic

properties, appropriate use restrictions, labeling requirements, or special packaging requirements may be imposed.

(iii) Product composition data, including certified limits of components, are used to determine whether a product is “identical or substantially similar” to another product or “differs only in ways that do not significantly increase the risk of unreasonable adverse effects on the environment” (FIFRA sec. 3(c)(7)(A)). In nearly every case, this determination involves a comparison of the composition of an applicant’s product with that of currently registered products.

(2) *Certified limits.* Certified limits required by § 158.175 are used in two ways. First, the Agency considers the certified limits in making the registration determination required by sections 3(c)(5), 3(c)(7) and 3(d) of the Act and making other regulatory decisions required by the Act. Second, the Agency may collect commercial samples of the registered products and analyze them for the active ingredient(s), inert ingredients, or impurities determined by the Agency to be toxicologically significant. If, upon analysis the composition of such a sample is found to differ from that certified, the results may be used by the Agency in regulatory actions under FIFRA sec. 12(a)(1)(C) and other pertinent sections.

(3) *Nominal concentration.* The nominal concentration required by § 158.155 is the amount of active ingredient that is most likely to be present in the product when produced. Unlike the certified limits, which are the outer limits of the range of the product’s ingredients and thus are present only in a small proportion of the products, the nominal concentration is the amount that typically is expected to result from the applicant’s production or formulating process. The nominal concentration together with production process information is used to gauge the acceptability of the certified limits presented by the applicant. The nominal concentration is used by the Agency as the basis for enforceable certified limits if the applicant has chosen not to specify certified limits of his own (thereby agreeing to abide by the standard limits in § 158.175).

(4) *Physical and chemical characteristics.* (i) Data on the physical and chemical characteristics of pesticide active ingredients and products are used to confirm or provide supportive information on their identity. Such data are also used in reviewing the production or formulating process used to produce the pesticide or product. For example, data that indicate significant changes in production or formulation might indicate the need for additional information on product composition.

(ii) Certain information (e.g., color, odor, physical state) is needed for the Agency to respond to emergency requests for identification of unlabeled pesticides involved in accidents or spills. Physicians, hospitals, and poison control centers also request this information to aid in their identification of materials implicated in poisoning episodes.

(iii) Certain physical and chemical data are used directly in the hazard assessment. These include stability, oxidizing and reducing action, flammability, explosability, storage stability, corrosion, and dielectric breakdown voltage. For example, a study of the corrosion characteristics of a pesticide is needed to evaluate effects of the product formulation on its container. If the pesticide is highly corrosive, measures can be taken to ensure that lids, liners, seams or container sides will not be damaged and cause the contents to leak during storage, transport, handling, or use. The storage stability study provides data on change (or lack of change) in product composition over time. If certain ingredients decompose, other new chemicals are formed whose toxicity and other characteristics must be considered.

(iv) Certain data are needed as basic or supportive evidence in initiating or evaluating other studies. For example, the octanol/water partition coefficient is used as one of the criteria to determine whether certain fish and wildlife toxicity or accumulation studies must be conducted. Vapor pressure data are needed, among other things, to determine suitable reentry intervals and other label cautions pertaining to worker protection. Data on viscosity

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and miscibility provide necessary information to support acceptable labeling for tank mix and spray applications.

§ 158.153 Definitions.

The following terms are defined for the purposes of this subpart:

(a) *Active ingredient* means any substance (or group of structurally similar substances, if specified by the Agency) that will prevent, destroy, repel or mitigate any pest, or that functions as a plant regulator, desiccant, or defoliant within the meaning of FIFRA sec. 2(a).

(b) *End use product* means a pesticide product whose labeling

(1) Includes directions for use of the product (as distributed or sold, or after combination by the user with other substances) for controlling pests or defoliating, desiccating or regulating growth of plants, and

(2) Does not state that the product may be used to manufacture or formulate other pesticide products.

(c) *Formulation* means

(1) The process of mixing, blending, or dilution of one or more active ingredients with one or more other active or inert ingredients, without an intended chemical reaction, to obtain a manufacturing use product or an end use product, or

(2) The repackaging of any registered product.

(d) *Impurity* means any substance (or group of structurally similar substances if specified by the Agency) in a pesticide product other than an active ingredient or an inert ingredient, including unreacted starting materials, side reaction products, contaminants, and degradation products.

(e) *Impurity associated with an active ingredient* means:

(1) Any impurity present in the technical grade of active ingredient; and

(2) Any impurity which forms in the pesticide product through reactions between the active ingredient and any other component of the product or packaging of the product.

(f) *Inert ingredient* means any substance (or group of structurally similar substances if designated by the Agency), other than an active ingredient,

which is intentionally included in a pesticide product.

(g) *Integrated system* means a process for producing a pesticide product that:

(1) Contains any active ingredient derived from a source that is not an EPA-registered product; or

(2) Contains any active ingredient that was produced or acquired in a manner that does not permit its inspection by the Agency under FIFRA sec. 9(a) prior to its use in the process.

(h) *Manufacturing use product* means any pesticide product other than an end use product. A product may consist of the technical grade of active ingredient only, or may contain inert ingredients, such as stabilizers or solvents.

(i) *Nominal concentration* means the amount of an ingredient which is expected to be present in a typical sample of a pesticide product at the time the product is produced, expressed as a percentage by weight.

(j) *Starting material* means a substance used to synthesize or purify a technical grade of active ingredient (or the practical equivalent of the technical grade ingredient if the technical grade cannot be isolated) by chemical reaction.

(k) *Technical grade of active ingredient* means a material containing an active ingredient:

(1) Which contains no inert ingredient, other than one used for purification of the active ingredient; and

(2) Which is produced on a commercial or pilot-plant production scale (whether or not it is ever held for sale).

§ 158.155 Product composition.

Information on the composition of the pesticide product must be furnished. The information required by paragraphs (a), (b) and (f) of this section must be provided for each product. In addition, if the product is produced by an integrated system, the information on impurities required by paragraphs (c) and (d) must be provided.

(a) *Active ingredient*. The following information is required for each active ingredient in the product:

(1) If the source of any active ingredient in the product is an EPA-registered product:

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(i) The chemical and common name (if any) of the active ingredient, as listed on the source product.

(ii) The nominal concentration of the active ingredient in the product, based upon the nominal concentration of active ingredient in the source product.

(iii) Upper and lower certified limits of the active ingredient in the product, in accordance with § 158.175.

(2) If the source of any active ingredient in the product is not an EPA-registered product:

(i) The chemical name according to Chemical Abstracts Society nomenclature, the CAS Registry Number, and any common names.

(ii) The molecular, structural, and empirical formulae, and the molecular weight or weight range.

(iii) The nominal concentration.

(iv) Upper and lower certified limits in accordance with § 158.175.

(v) The purpose of the ingredient in the formulation.

(b) *Inert ingredients.* The following information is required for each inert ingredient (if any) in the product:

(1) The chemical name of the ingredient according to Chemical Abstracts Society nomenclature, the CAS Registry Number, and any common names (if known). If the chemical identity or chemical composition of an ingredient is not known to the applicant because it is proprietary or trade secret information, the applicant must ensure that the supplier or producer of the ingredient submits to the Agency (or has on file with the Agency) information on the identity or chemical composition of the ingredient. Generally, it is not required that an applicant know the identity of each ingredient in a mixture that he uses in his product. However, in certain circumstances, the Agency may require that the applicant know the identity of a specific ingredient in such a mixture. If the Agency requires specific knowledge of an ingredient, it will notify the applicant in writing.

(2) The nominal concentration in the product.

(3) Upper and lower certified limits in accordance with § 158.175.

(4) The purpose of the ingredient in the formulation.

(c) *Impurities of toxicological significance associated with the active ingredient.* For each impurity associated with the active ingredient that is determined to be toxicologically significant, the following information is required:

(1) Identification of the ingredient as an impurity.

(2) The chemical name of the impurity.

(3) The nominal concentration of the impurity in the product.

(4) A certified upper limit, in accordance with § 158.175.

(d) *Other impurities associated with the active ingredient.* For each other impurity associated with an active ingredient that was found to be present in any sample at a level equal to or greater than 0.1 percent by weight of the technical grade active ingredient, the following information is required:

(1) Identification of the ingredient as an impurity.

(2) Chemical name of the impurity.

(3) The nominal concentration of the impurity in the final product.

(e) *Impurities associated with an inert ingredient.* [Reserved]

(f) *Ingredients that cannot be characterized.* If the identity of any ingredient or impurity cannot be specified as a discrete chemical substance (such as mixtures that cannot be characterized or isomer mixtures), the applicant must provide sufficient information to enable EPA to identify its source and qualitative composition.

§ 158.160 Description of materials used to produce the product.

The following information must be submitted on the materials used to produce the product:

(a) *Products not produced by an integrated system.*

(1) For each active ingredient that is derived from an EPA-registered product:

(i) The name of the EPA-registered product.

(ii) The EPA registration number of that product.

(2) For each inert ingredient:

(i) Each brand name, trade name, or other commercial designation of the ingredient.

(ii) All information that the applicant knows (or that is reasonably

available to him) concerning the composition (and, if requested by the Agency, chemical and physical properties) of the ingredient, including a copy of technical specifications, data sheets, or other documents describing the ingredient.

(iii) If requested by the Agency, the name and address of the producer of the ingredient or, if that information is not known to the applicant, the name and address of the supplier of the ingredient.

(b) *Products produced by an integrated system.* (1) The information required by paragraph (a)(1) of this section concerning each active ingredient that is derived from an EPA-registered product (if any).

(2) The following information concerning each active ingredient that is not derived from an EPA-registered product:

(i) The name and address of the producer of the ingredient (if different from the applicant).

(ii) Information on each starting material used to produce the active ingredient, as follows:

(A) Each brand name, trade name, or other commercial designation of the starting material.

(B) The name and address of the person who produces the starting material or, if that information is not known to the applicant, the name and address of each person who supplies the starting material.

(C) All information that the applicant knows (or that is reasonably available to him) concerning the composition (and if requested by the Agency, chemical or physical properties) of the starting material, including a copy of all technical specifications, data sheets, or other documents describing it.

(3) The information required by paragraph (a)(2) of this section concerning each inert ingredient.

(c) *Additional information.* On a case-by-case basis, the Agency may require additional information on substances used in the production of the product.

§ 158.162 Description of production process.

If the product is produced by an integrated system, the applicant must submit

information on the production (reaction) processes used to produce the active ingredients in the product. The applicant must also submit information on the formulation process, in accordance with § 158.165.

(a) Information must be submitted for the current production process for each active ingredient that is not derived from an EPA-registered product. If the production process is not continuous (a single reaction process from starting materials to active ingredient), but is accomplished in stages or by different producers, the information must be provided for each such production process.

(b) The following information must be provided for each process resulting in a separately isolated substance:

(1) the name and address of the producer who uses the process, if not the same as the applicant.

(2) A general characterization of the process (e.g., whether it is a batch or continuous process).

(3) A flow chart of the chemical equations of each intended reaction occurring at each step of the process, the necessary reaction conditions, and the duration of each step and of the entire process.

(4) The identity of the materials used to produce the product, their relative amounts, and the order in which they are added.

(5) A description of the equipment used that may influence the composition of the substance produced.

(6) A description of the conditions (e.g., temperature, pressure, pH, humidity) that are controlled during each step of the process to affect the composition of the substance produced, and the limits that are maintained.

(7) A description of any purification procedures (including procedures to recover or recycle starting materials, intermediates or the substance produced).

(8) A description of the procedures used to assure consistent composition of the substance produced, e.g., calibration of equipment, sampling regimens, analytical methods, and other quality control methods.

§ 158.165 Description of formulation process.

The applicant must provide information on the formulation process of the product (unless the product consists solely of a technical grade of active ingredient), as required by the following sections:

- (a) Section 158.162(b)(2), pertaining to characterization of the process.
- (b) Section 158.162(b)(4), pertaining to ingredients used in the process.
- (c) Section 158.162(b)(5), pertaining to process equipment.
- (d) Section 158.162(b)(6), pertaining to the conditions of the process.
- (e) Section 158.162(b)(8), pertaining to quality control measures.

§ 158.167 Discussion of formation of impurities.

The applicant must provide a discussion of the impurities that may be present in the product, and why they may be present. The discussion should be based on established chemical theory and on what the applicant knows about the starting materials, technical grade of active ingredient, inert ingredients, and production or formulation process. If the applicant has reason to believe that an impurity that EPA would consider toxicologically significant may be present, the discussion must include an expanded discussion of the possible formation of the impurity and the amounts at which it might be present. The impurities which must be discussed are the following, as applicable:

(a) *Technical grade active ingredients and products produced by an integrated system.* (1) Each impurity associated with the active ingredient which was found to be present in any analysis of the product conducted by or for the applicant.

(2) Each other impurity which the applicant has reason to believe may be present in his product at any time before use at a level equal to or greater than 0.1 percent (1000 ppm) by weight of the technical grade of the active ingredient, based on what he knows about the following:

(i) The composition (or composition range) of each starting material used to produce his product.

(ii) The impurities which he knows are present (or believes are likely to be present) in the starting materials, and the known or presumed level (or range of levels) of those impurities.

(iii) The intended reactions and side reactions which may occur in the production of the product, and the relative amounts of byproduct impurities produced by such reactions.

(iv) The possible degradation of the ingredients in the product after its production but prior to its use.

(v) Post-production reactions between the ingredients in the product.

(vi) The possible migration of components of packaging materials into the pesticide.

(vii) The possible carryover of contaminants from use of production equipment previously used to produce other products or substances.

(viii) The process control, purification and quality control measures used to produce the product.

(b) *Products not produced by an integrated system.* Each impurity associated with the active ingredient which the applicant has reason to believe may be present in the product at any time before use at a level equal to or greater than 0.1 percent (1000 ppm) by weight of the product based on what he knows about the following:

(1) The possible carryover of impurities present in any registered product which serves as the source of any of the product's active ingredients. The identity and level of impurities in the registered source need not be discussed or quantified unless known to the formulator.

(2) The possible carryover of impurities present in the inert ingredients in the product.

(3) Possible reactions occurring during the formulation of the product between any of its active ingredients, between the active ingredients and inert ingredients, or between the active ingredients and the production equipment.

(4) Post-production reactions between any of the product's active ingredients and any other component of the product or its packaging.

(5) Possible migration of packaging materials into the product.

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(6) Possible contaminants resulting from earlier use of equipment to produce other products.

(c) *Expanded discussion.* On a case-by-case basis, the Agency may require an expanded discussion of information of impurities:

(1) From other possible chemical reactions;

(2) Involving other ingredients; or

(3) At additional points in the production or formulation process.

§ 158.170 Preliminary analysis.

(a) If the product is produced by an integrated system, the applicant must provide a preliminary analysis of each technical grade of active ingredient contained in the product to identify all impurities present at 0.1 percent or greater of the TGAI. The preliminary analysis should be conducted at the point in the production process after which no further chemical reactions designed to produce or purify the substance are intended.

(b) Based on the preliminary analysis, a statement of the composition of the technical grade of active ingredient must be provided. If the technical grade of active ingredient cannot be isolated, a statement of the composition of the practical equivalent of the technical grade of active ingredient must be submitted.

§ 158.175 Certified limits.

The applicant must propose certified limits for the ingredients in the product. Certified limits become legally binding limits upon approval of the application. Certified limits will apply to the product from the date of production to date of use, unless the product label bears a statement prohibiting use after a certain date, in which case the certified limits will apply only until that date.

(a) *Ingredients for which certified limits are required.* Certified limits are required on the following ingredients of a pesticide product:

(1) An upper and lower limit for each active ingredient.

(2) An upper and lower limit for each inert ingredient.

(3) If the product is a technical grade of active ingredient or is produced by an integrated system, an upper limit

for each impurity of toxicological significance associated with the active ingredient and found to be present in any sample of the product.

(4) On a case-by-case basis, certified limits for other ingredients or impurities as specified by EPA.

(b) *EPA determination of certified limits for active and inert ingredients.* (1) Unless the applicant proposes different limits as provided in paragraph (c) of this section, the upper and lower certified limits for active and inert ingredients will be determined by EPA. EPA will calculate the certified limits on the basis of the nominal concentration of the ingredient in the product, according to the table in paragraph (b)(2) of this section.

(2) Table of standard certified limits.

If the nominal concentration (N) for the ingredient is:	The certified limits for that ingredient will be as follows:	
	Upper limit	Lower limit
$N \leq 1.0\%$	$N + 10\%N$	$N - 10\%N$
$1.0\% < N \leq 20.0\%$	$N + 5\%N$	$N - 5\%N$
$20.0\% < N \leq 100.0\%$	$N + 3\%N$	$N - 3\%N$

(c) *Applicant proposed limits.* (1) The applicant may propose a certified limit for an active or inert ingredient that differs from the standard certified limit calculated according to paragraph (b)(2) of this section.

(2) If certified limits are required for impurities, the applicant must propose a certified limit. The standard certified limits may not be used for such substances.

(3) Certified limits should:

(i) Be based on a consideration of the variability of the concentration of the ingredient in the product when good manufacturing practices and normal quality control procedures are used.

(ii) Allow for all sources of variability likely to be encountered in the production process.

(iii) Take into account the stability of the ingredient in the product and the possible formation of impurities between production and sale of distribution.

(4) The applicant may include an explanation of the basis of his proposed certified limits, including how the certified limits were arrived at (e.g., sample analysis, quantitative estimate

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based on production process), and its accuracy and precision. This will be particularly useful if the range of the certified limit for an active or inert ingredient is greater than the standard certified limits.

(d) *Special cases.* If the Agency finds unacceptable any certified limit (either standard or applicant-proposed), the Agency will inform the applicant of its determination and will provide supporting reasons. EPA may also recommend alternative limits to the applicant. The Agency may require, on a case-by-case basis, any or all of the following:

(1) More precise limits.

(2) More thorough explanation of how the certified limits were determined.

(3) A narrower range between the upper and lower certified limits than that proposed.

(e) *Certification statement.* The applicant must certify the accuracy of the information presented, and that the certified limits of the ingredients will be maintained. The following statement, signed by the authorized representative of the company, is acceptable:

I hereby certify that, for purposes of FIFRA sec. 12(a)(1)(C), the description of the

composition of [product name], EPA Reg. No. [insert registration number], refers to the composition set forth on the Statement of Formula and supporting materials. This description includes the representations that: (1) no ingredient will be present in the product in an amount greater than the upper certified limit or in an amount less than the lower certified limit (if required) specified for that ingredient in a currently approved Statement of Formula (or as calculated by the Agency); and (2) if the Agency requires that the source of supply of an ingredient be specified, that all quantities of such ingredient will be obtained from the source specified in the Statement of Formula.

§ 158.180 Enforcement analytical method.

An analytical method suitable for enforcement purposes must be provided for each active ingredient in the product and for each other ingredient or impurity that is determined to be toxicologically significant.

§ 158.190 Physical and chemical characteristics.

(a) *Table.* Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the physical and chemical characteristics data requirements and the substance to be tested.

Kind of data required	(b) Notes	All general use patterns (requirements are the same for every use pattern)	Test substance		Guidelines reference No.
			Data to support MP	Data to support EP	
Color		[R]	MP and TGAI	EP* and TGAI	63-2
Physical state		[R]	MP and TGAI	EP* and TGAI	63-3
Odor		[R]	MP and TGAI	EP* and TGAI	63-4
Melting point	(1)	[R]	TGAI	TGAI	63-5
Boiling point	(2)	[R]	TGAI	TGAI	63-6
Density, bulk density, or specific gravity.		[R]	MP and TGAI	EP* and TGAI	63-7
Solubility		[R]	TGAI or PAI	TGAI or PAI	63-8
Vapor pressure		[R]	TGAI or PAI	TGAI or PAI	63-9
Dissociation constant.		[R]	TGAI or PAI	TGAI or PAI	63-10
Octanol/water partition coefficient.	(3)	[CR]	PAI	PAI	63-11
pH	(4)	[CR]	MP and TGAI	EP* and TGAI	63-12
Stability		[R]	TGAI	TGAI	63-13
Oxidizing or reducing action.	(5)	[CR]			
Flammability	(6)	[CR]	MP	EP*	63-15
Explosibility	(7)	[R]	MP	EP*	63-16
Storage stability		[R]	MP	EP*	63-17
Viscosity	(8)	[CR]	MP	EP*	63-18
Miscibility	(9)	[CR]	MP	EP*	63-19
Corrosion characteristics.		[R]	MP	EP*	63-20
Dielectric breakdown voltage.	(10)	[CR]		EP*	63-21

Kind of data required	(b) Notes	All general use patterns (requirements are the same for every use pattern)	Test substance		Guidelines reference No.
			Data to support MP	Data to support EP	
Other requirements: Submittal of samples.	(¹¹)	[CR]	MP, TGAI, PAI	EP*, TGAI, PAI	64–1

Key: R = Required; CR = Conditionally Required; [] = Brackets (i.e. [R],[CR]) indicate data requirements that apply when an experimental use permit is being sought; MP = Manufacturing Use Product, EP* = End Use Product; asterisk indicates those registrants that end-use applicants (i.e. formulators) need not satisfy, if their active ingredient(s) is (are) purchased from a registered source; TGAI = Technical Grade of the Active Ingredient; PAI = Pure Active Ingredient.

(b) Notes.—The following notes are referenced in column two of the table contained in paragraph (a) of this section.

(¹) Required if technical chemical is a solid at room temperature.

(²) Required if technical chemical is a liquid at room temperature.

(³) Required if technical chemical is organic and non-polar.

(⁴) Required if test substance is dispersible with water.

(⁵) Required if product contains an oxidizing or reducing agent.

(⁶) Required if product contains combustible liquids.

(⁷) Required if product is potentially explosive.

(⁸) Required if product is a liquid.

(⁹) Required if product is a emulsifiable liquid and is to be diluted with petroleum solvents.

(¹⁰) Required if end-use product is a liquid and is to be used around electrical equipment.

(¹¹) Basic manufacturers are required to provide the Agency with a sample of each TGAI used to formulate a product produced by an integrated system when the new TGAI is first used as a formulating ingredient in products registered under FIFRA. A sample of the active ingredient (PAI) suitable for use as an analytical standard is also required at this time. Samples of end use products produced by an integrated system must be submitted on a case-by-case basis.

[49 FR 42881, Oct. 24, 1984, as amended at 58 FR 34203, June 23, 1993]

Subpart D—Data Requirement Tables

§ 158.202 Purposes of the registration data requirements.

(a) *General.* The data requirements for registration are intended to generate data and information necessary to address concerns pertaining to the identity, composition, potential adverse effects and environmental fate of each pesticide.

(b) [Reserved]

(c) *Residue chemistry.* (1) Residue Chemistry Data are used by the Agency to estimate the exposure of the general population to pesticide residues in food and for setting and enforcing tolerances for pesticide residues in food or feed.

(2) Information on the chemical identity and composition of the pesticide product, the amounts, frequency and time of pesticide application, and results of test on the amount of residues remaining on or in the treated food or feed, are needed to support a finding as to the magnitude and identity of residues which result in food or animal feed as a consequence of a proposed pesticide usage.

(3) Residue chemistry data are also needed to support the adequacy of one or more methods for the enforcement of the tolerance, and to support prac-

ticable methods for removing residues that exceed any proposed tolerance.

(d) *Environmental fate*—(1) *General.* The data generated by environmental fate studies are used to: assess the toxicity to man through exposure of humans to pesticide residues remaining after application, either upon reentering treated areas or from consuming inadvertently-contaminated food; assess the presence of widely distributed and persistent pesticides in the environment which may result in loss of usable land, surface water, ground water, and wildlife resources; and, assess the potential environmental exposure of other nontarget organisms, such as fish and wildlife, to pesticides. Another specific purpose of the environmental fate data requirements is to help applicants and the Agency estimate expected environmental concentrations of pesticides in specific habitats where threatened or endangered species or other wildlife populations at risk are found.

(2) *Degradation studies.* The data from hydrolysis and photolysis studies are used to determine the rate of pesticide degradation and to identify pesticides that may adversely affect nontarget organisms.

(3) *Metabolism studies.* Data generated from aerobic and anaerobic metabolism

studies are used to determine the nature and availability of pesticides to rotational crops and to aid in the evaluation of the persistence of a pesticide.

(4) *Mobility studies.* These data requirements pertain to leaching, adsorption/desorption, and volatility of pesticides. They provide information on the mode of transport and eventual destination of the pesticide in the environment. This information is used to assess potential environmental hazards related to: contamination of human and animal food; loss of usable land and water resources to man through contamination of water (including ground water); and habitat loss of wildlife resulting from pesticide residue movement or transport in the environment.

(5) *Dissipation studies.* The data generated from dissipation studies are used to assess potential environmental hazards (under actual field use conditions) related to: reentry into treated areas; hazards from residues in rotational crop and other food sources; and the loss of land as well as surface and ground water resources.

(6) *Accumulation studies.* Accumulation studies indicate pesticide residue levels in food supplies that originate from wild sources or from rotational crops. Rotational crop studies are necessary to establish realistic crop rotation restrictions and to determine if tolerances may be needed for residues on rotational crops. Data from irrigated crop studies are used to determine the amount of pesticide residues that could be taken up by representative crops irrigated with water containing pesticide residues. These studies allow the Agency to establish label restrictions regarding application of pesticides on sites where the residues can be taken up by irrigated crops. These data also provide information that aids the Agency in establishing any corresponding tolerances that would be needed for residues on such crops. Data from pesticides accumulation studies in fish are used to establish label restrictions to prevent applications in certain sites so that there will be minimal residues entering edible fish or shell fish. These residue data are also used to determine if a tolerance or action level is needed for resi-

dues in aquatic animals eaten by humans.

(e) *Hazard to humans and domestic animals.* Data required to assess hazards to humans and domestic animals are derived from a variety of acute, subchronic and chronic toxicity tests, and tests to assess mutagenicity and pesticide metabolism.

(1) *Acute studies.* Determination of acute oral, dermal and inhalation toxicity is usually the initial step in the assessment and evaluation of the toxic characteristics of a pesticide. These data provide information on health hazards likely to arise soon after, and as a result of, short-term exposure. Data from acute studies serve as a basis for classification and precautionary labeling. For example, acute toxicity data are used to calculate farmworker reentry intervals and to develop precautionary label statements pertaining to protective clothing requirements for applicators. They also provide information used in establishing the appropriate dose levels in subchronic and other studies; provide initial information on the mode of toxic action(s) of a substance; and determine the need for child resistant packaging. Information derived from primary eye and primary dermal irritation studies serves to identify possible hazards from exposure of the eyes, associated mucous membranes and skin.

(2) *Subchronic studies.* Subchronic tests provide information on health hazards that may arise from repeated exposures over a limited period of time. They provide information on target organs and accumulation potential. The resulting data are also useful in selecting dose levels for chronic studies and for establishing safety criteria for human exposure. These tests are not capable of detecting those effects that have a long latency period for expression (e.g., carcinogenicity).

(3) *Chronic studies.* Chronic toxicity (usually conducted by feeding the test substance to the test species) studies are intended to determine the effects of a substance in a mammalian species following prolonged and repeated exposure. Under the conditions of this test, effects which have a long latency period or are cumulative should be detected. The purpose of long-term

oncogenicity studies is to observe test animals over most of their life span for the development of neoplastic lesions during or after exposure to various doses of a test substance by an appropriate route of administration.

(4) *Teratogenicity and reproduction studies.* The teratogenicity study is designed to determine the potential of the test substance to induce structural and/or other abnormalities to the fetus as the result of exposure of the mother during pregnancy. Two-generation reproduction testing is designed to provide information concerning the general effects of a test substance on gonadal function, estrus cycles, mating behavior, conception, parturition, lactation, weaning, and the growth and development of the offspring. The study may also provide information about the effects of the test substance on neonatal morbidity, mortality, and preliminary data on teratogenesis and serve as a guide for subsequent tests.

(5) *Mutagenicity studies.* For each test substance a battery of tests are required to assess potential to affect the mammalian cell's genetic components. The objectives underlying the selection of a battery of tests for mutagenicity assessment are:

(i) To detect, with sensitive assay methods, the capacity of a chemical to alter genetic material in cells.

(ii) To determine the relevance of these mutagenic changes to mammals.

(iii) When mutagenic potential is demonstrated, to incorporate these findings in the assessment of heritable effects, oncogenicity, and possibly, other health effects.

(6) *Metabolism studies.* Data from studies on the absorption, distribution, excretion, and metabolism of a pesticide aid in the valuation of test results from other toxicity studies and in the extrapolation of data from animals to man. The main purpose of metabolism studies is to produce data which increase the Agency's understanding of the behavior of the chemical in its consideration of the human exposure anticipated from intended uses of the pesticide.

(f) *Reentry Protection.* Data required to assess hazard to farm employees resulting from reentry into areas treated with pesticides are derived from stud-

ies on toxicity, residue dissipation, and human exposure. Monitoring data generated during exposure studies are used to determine the quantity of pesticide to which people may be exposed after application and to develop reentry intervals.

(g) *Pesticide Spray Drift Evaluation.* Data required to evaluate pesticide spray drift are derived from studies of droplet size spectrum and spray drift field evaluations. These data contribute to development of the overall exposure estimate and along with data on toxicity for humans, fish and wildlife, or plants are used to assess the potential hazard of pesticides to these organisms. A purpose common to all these tests is to provide data which will be used to determine the need for (and appropriate wording for) precautionary labeling to minimize the potential adverse effect to nontarget organisms.

(h) *Hazard to nontarget organisms—(1) General.* The information required to assess hazards to nontarget organisms are derived from tests to determine pesticidal effects on birds, mammals, fish, terrestrial and aquatic invertebrates, and plants. These tests include short-term acute, subacute, reproduction, simulated field, and full field studies arranged in a hierarchical or tier system which progresses from the basic laboratory tests to the applied field tests. The results of each tier of tests must be evaluated to determine the potential of the pesticide to cause adverse effects, and to determine whether further testing is required. A purpose common to all data requirements is to provide data which determines the need for (and appropriate wording for) precautionary label statements to minimize the potential adverse effects to nontarget organisms.

(2) *Short term studies.* The short-term acute and subchronic laboratory studies provide basic toxicity information which serves as a starting point for the hazard assessment. These data are used: to establish acute toxicity levels of the active ingredient to the test organisms; to compare toxicity information with measured or estimated pesticide residues in the environment in order to assess potential impacts on fish, wildlife and other nontarget organisms; and to indicate whether further

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laboratory and/or field studies are needed.

(3) *Long term and field studies.* Additional studies (i.e., avian, fish, and invertebrate reproduction, lifecycle studies and plant field studies) may be required when basic data and environmental conditions suggest possible problems. Data from these studies are used to: estimate the potential for chronic effects, taking into account the measured or estimated residues in the environment; and to determine if additional field or laboratory data are necessary to further evaluate hazards. Simulated field and/or field data are used to examine acute and chronic adverse effects on captive or monitored fish and wildlife populations under natural or near-natural environments. Such studies are required only when predictions as to possible adverse effects in less extensive studies cannot

be made, or when the potential for adverse effects is high.

(i) *Product performance.* Requirements to develop data on product performance provide a mechanism to ensure that pesticide products will control the pests listed on the label and that unnecessary pesticide exposure to the environment will not occur as a result of the use of ineffective products. Specific performance standards are used to validate the efficacy data in the public health areas, including disinfectants used to control microorganisms infectious to man in any area of the inanimate environment and those pesticides used to control vertebrates (such as rodents, birds, bats and skunks) that may directly or indirectly transmit diseases to humans.

[49 FR 42881, Oct. 24, 1984. Redesignated and amended at 53 FR 15993, May 4, 1988]

§ 158.240 Residue chemistry data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the residue chemistry data requirements and the substances to be tested.

Kind of data required	(b) Notes	General use patterns								Test substance		Guidelines reference No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to support MP		Data to support EP
		Food crop	Nonfood	Food corp	Nonfood	Food corp	Nonfood						
Chemical identity	(1)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	TGAI	TGAI	171-2
Directions for use	(2)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]			171-3
Nature of the residue:													
Plants	(13), (14)	[R]	[R]	[R]	[R]	[R]	[R]		[CR]	[CR]	PAIRA	PAIRA	171-4
Livestock	(3), (13), (14)	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]				PAIRA and plant metabolites.	PAIRA and plant metabolites.	171-4
Residue analytical method.	(4), (13), (14), (15)	[R]		[R]		[R]			[CR]	[CR]	TGAI and metabolites.	TGAI and metabolites.	171-4
Magnitude of the residue:													
Crop field trials	(13), (14)	[R]		[R]		[R]			[CR]	[CR]	TEP	TEP	171-4
Processed food/ feed.	(5), (14)	[CR]		[CR]		[CR]					EP	EP	171-4
Meat/milk/poultry/ eggs.	(6), (14)	[CR]		[CR]		[CR]					TGAI or plant metabolites.	TGAI or plant metabolites.	171-4
Potable water	(7)			[R]		[R]					EP	EP	171-4
Fish	(8)			[R]		[R]					EP	EP	171-4
Irrigated crops	(9)			[CR]		[CR]					EP	EP	171-4
Food handling	(10), (14)										Residue of concern.	Residue of concern.	171-4
Reduction of residue	(11), (14)	[CR]		[CR]		[CR]					Residue of concern.	Residue of concern.	171-5
Proposed tolerance	(12), (14)	[R]		[R]		[R]					Residue of concern.	Residue of concern.	171-6
Reasonable grounds in support of the petition.	(14)	[R]		[R]		[R]							171-7
Submission of analytical reference standards.	(14)	[R]		[R]		[R]					PAIRA	PAIRA	171-13

Key: R=Required data; CR=Conditionally required data; TGAI=Technical grade of the active ingredient; PAIRA=Pure active ingredient, radio labeled; EP=End-use product; TEP=Typical end-use product; MP=Manufacturing-use product; []=Brackets (i.e., [R], [CR]) indicate data requirements that apply when an experimental use permit is being sought.

(b) NOTES.—The following notes are referenced in column two of the table contained in paragraph (a) of this section.

(1) The same chemical identity data as required under Subpart C of this part are required, with emphasis on impurities that could constitute a residue problem.

(2) Required information includes crops to be treated, rate of application, number and timing of applications, preharvest intervals, and relevant restrictions.

(3) Data on metabolism in livestock are required when residues occur on a livestock feed, or the pesticide is to be applied directly to livestock.

(4) A residue method for enforcement of tolerances is needed whenever a numeric tolerance is proposed. Exemptions from the requirements of a tolerance will also usually require an analytical method. Analytical methods used to enforce residue limits for emergency exemptions, temporary tolerances and permanent tolerances must be available for use by enforcement agencies and thus may not be claimed as confidential business information.

(5) Data on the nature and level of residue in processed food/feed are required when detectable residues could concentrate on processing and thus require establishment of a food additive tolerance.

- (6) Livestock feeding studies are required whenever a pesticide occurs as a residue in a livestock feed. Use involving direct application to livestock, including poultry, will require animal treatment residue studies.
- (7) Data on residues in potable water are required whenever a pesticide is to be applied directly to water, unless it can be determined that the treated water would not be used (eventually) for drinking purpose, by man or animals.
- (8) Data on residues in fish are required whenever a pesticide is to be applied directly to water inhabited by fish.
- (9) Data on residues in irrigated crops are required when a pesticide is to be applied directly to water that could be used for irrigation or to irrigation facilities such as irrigation ditches.
- (10) Data on residues in food/feed in food handling establishments are required whenever a pesticide is to be used in food/feed handling establishments. Disinfectants and sanitizers used in food or feed handling establishment are exempt from this requirement if their residues are regulated by the Food and Drug Administration at 21 CFR 178.1010.
- (11) Reduction of residue data are required when the assumption of tolerance level residues would result in predicted exposure at an unsafe level. Data on the level of residue in food as consumed will be used to obtain a more precise estimate of potential dietary exposure. The Agency recommends that such data be generated to support all pesticides requiring a tolerance in case new data are revealed which indicates the pesticide is more toxic than initially determined.
- (12) The proposed tolerance must reflect the maximum residue likely to occur in crops and near/milk/poultry eggs.
- (13) Residue data for outdoor domestic uses are required if home gardens are to be treated and the home garden use pattern is different from the use pattern on which the tolerance was established.
- (14) Required to support registration of an indoor use pesticide if such a use could result in residues in food or feed.
- (15) For all food uses, data on whether the FDA/USDA multiresidue methodology would detect and identify the pesticide are required.

[49 FR 42881, Oct. 24, 1984, Redesignated and amended at 53 FR 15993, 15999, May 4, 1988; 58 FR 34203, June 23, 1993]

§ 158.290 Environmental fate data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the environmental fate data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use patterns										Test substance		Guide- lines reference No.
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to sup- port MP	Data to sup- port EP		
		Food crop	Nonfood crop	Food crop	Nonfood crop	Food crop	Nonfood crop							
Degradation studies-lab														161-1
Hydrolysis		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]		TGAI or PAIRA.	TGAI or PAIRA.		
Photodegradation:														161-2
In water		R	R	R	R				R		TGAI or PAIRA.	TGAI or PAIRA.		
On soil	(1)	CR							CR		TGAI or PAIRA.	TGAI or PAIRA.		161-3
In air	(2)	CR									TGAI or PAIRA.	TGAI or PAIRA.		
Metabolism studies-lab														161-4
Aerobic soil		[R]	[R]			R	R	[R]	[R]		TGAI or PAIRA.	TGAI or PAIRA.		
Anaerobic aquatic				R	R				R		TGAI or PAIRA.	TGAI or PAIRA.		162-3
Aerobic aquatic			[R]	[R]	[R]						TGAI or PAIRA.	TGAI or PAIRA.		

Kind of data required	(b) Notes	General use patterns										Test substance		Guidelines reference No.
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to support MP	Data to support EP		
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood							
Mobility studies		[R]	[R]	R	R	R	R	[R]	R		TGAI or PAIRA.	TGAI or PAIRA.	163-1	
Leaching and adsorption/desorption.	(2)	CR				CR	CR		CR		TEP	TEP	163-2	
Volatility:	(2)	CR				CR	CR		CR		TEP	TEP	163-3	
(Lab)														
(Field)														
Dissipation studies-field		R	R						R		TEP	TEP	164-1	
Soil											TEP	TEP	164-2	
Aquatic (sediment)			R	R	R						TEP	TEP	164-3	
Forestry									R		TEP	TEP	164-4	
Combination and tank mixes.	(2)												164-4	
Soil, long-term	(4)	CR		CR							TEP	TEP	164-5	
Accumulation studies														
Rotational crops:														
(Confined)	(5)	[CR]		[CR]							PAIRA	PAIRA	165-1	
(Field)	(6)	CR		CR							TEP	TEP	165-2	
Irrigated crops	(7)			[CR]	CR						TEP	TEP	165-3	
In fish	(8)	[CR]	[CR]	[CR]	[CR]			[CR]	[CR]		TGAI or PAIRA.	TGAI or PAIRA.	165-4	
In aquatic non-target organisms.	(8), (9)				CR				CR		TEP	TEP	165-5	

Key: R=Required; CR=Conditionally required; []=Brackets (ie. [R], [CR]). Indicate data requirements that apply when an experimental use permit is being sought; TGAI=Technical grade of the active ingredient, PAIRA="Pure" active ingredient-radio labeled; TEP=typical end use product; EP =End use product.

(b) NOTES.—The following notes are referenced in column two of the table contained in paragraph (a) of this section.

(1) Not required if use involves application to soils solely by injection of the product into the soil or by incorporation of the product into the soil upon application.

AAA(2) Required on case basis depending on product use pattern and other pertinent factors.

AAA(3) Not required if anaerobic aquatic metabolism study has been conducted.

AAA(4) Required if pesticide residues do not readily dissipate in soil.

AAA(5) Confined accumulation study is required when it is reasonably foreseeable that any food or feed crop may be subsequently planted on the site of pesticide application.

AAA(6) Field accumulation study is required if significant pesticide residue is likely to be present in soil at time of plant crop, as evidenced by residue data obtained from confined accumulation study.

AAA(7) Required if it is reasonably foreseeable that water at treated site may be used for irrigation purposes.

AAA(8) Required if significant concentrations of the active ingredient and/or its principal degradation products are likely to occur in aquatic environments and may accumulate in aquatic organisms.

AAA(9) Required unless tolerance or action level for fish has been granted.

[49 F.R. 42881, Oct. 24, 1984. Redesignated at 53 F.R. 15993, May 4, 1988]

§ 158.340 Toxicology data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the toxicology data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use patterns										Test substance		Guide- lines ref- erence No.
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to sup- port MP	Data to sup- port EP		
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood							
Acute testing														
Acute oral toxicity—rat	(1)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* or EP dilution* and TGAI.	81-1	
Acute dermal toxicity	(1), (2)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* or EP dilution* and TGAI.	81-2	
Acute inhalation toxicity— rat.	(16)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* and TGAI.	81-3	
Primary eye irritation—rab- bit.	(2)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP	EP*	81-4	
Primary dermal irritation	(1), (2)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP	EP*	81-5	
Dermal sensitization	(3)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP	EP*	81-6	
Acute delayed neurotoxicity—hen.	(4)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	TGAI	TGAI	81-7	
Subchronic testing														
90-day feeding studies— rodent and nonrodent.	(17)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	CR	TGAI	TGAI	82-1	
21-day dermal	(18)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI and EP*.	82-2	
90-day dermal	(5), (19)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	82-3	
90-day inhalation—rat	(6)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	82-4	
90-day neurotoxicity:														
Hen	(7)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	82-5	
Mammal	(8)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	82-5	
Chronic testing														
Chronic feeding—2 spp. rodent and nonrodent.	(9), (13), (20)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	CR	TGAI	TGAI	83-1	
Oncogenicity study—2 Spp. rat and mouse pre- ferred.	(9), (21)	R	R	R	R	R	R	R	R	CR	TGAI	TGAI	83-2	
Teratogenicity—2 species Reproduction, 2-generation	(10), (15) (11), (14)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	CR	TGAI	TGAI	83-3 83-4	

Kind of data required	(b) Notes	General use patterns						Test substance			Guide-lines ref-erence No.		
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor		Data to sup-port MP	Data to sup-port EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Mutagenicity testing													
Gene mutation	(22)	[R]	R	[R]	R	[R]	R	R	R	R	TGAI	TGAI	84-2
Structural chromosomal aberration	(22)	[R]	R	[R]	R	[R]	R	R	R	R	TGAI	TGAI	84-2
Other genotoxic effects	(22)	[R]	R		R	[R]	R	R	R	R	TGAI	TGAI	84-4
Special testing													
General metabolism	(23)	R	CR	R	CR	R	CR	CR	CR	CR	PAI or PAIRA.	PAI or PAIRA.	85-1
Dermal penetration	(24)	CR	CR	CR	CR	CR	CR	CR	CR	CR	Choice	Choice	85-2
Domestic animal safety	(12)	CR	CR	CR	CR	CR	CR	CR	CR	CR	Choice	Choice	86-1

AAAKey: R=Required data; CR=Conditionally required; []=Brackets (ie [R], [CR]) indicate data requirements that apply when an experimental use permit is being sought; MP=manufacturing-use product; EP=End-Use Product; (asterisk identifies those data requirements that end-use applicants (i.e. "formulators") must satisfy, provided that their active ingredient(s) is (are) purchased from a registered source); TGAI=Technical grade of the active ingredient; PAI="Pure" active ingredient; PAIRA="Pure" active ingredient, radio-labeled; Choice=choice of several test substances, depending on studies required.

Notes:—The following notes are referenced in column two of the table contained in paragraph (a) of this section.

(1) Not required if test material is a gas or highly volatile.

(2) Not required if test material is corrosive to skin or has pH less than 2 or greater than 11.5; such a product will be classified as toxicity category I on the basis of potential eye and dermal irritation effects.

(3) Required unless repeated dermal exposure does not occur under conditions of use.

(4) Not required unless test material, is an organophosphate, or a metabolite or degradation product thereof which causes acetyl cholinesterase depression or is structurally related to a substance that causes delayed neurotoxicity.

(5) Required if use involves purposeful dermal application to, or prolonged exposure of, human skin.

(6) Required if use may result in repeated inhalation exposure at a concentration likely to be toxic. A test with duration of 21 days is required if pesticide is used on tobacco.

(7) Required if acute delayed neurotoxicity test showed neuropathy or neurotoxicity or if closely related structural to a compound which can induce these effects.

(8) Required if acute oral, dermal, or inhalation studies showed neuropathy or neurotoxicity.

(9)(i) Studies designed to simultaneously meet the requirements of both the chronic feeding and oncogenicity studies (i.e., a combined study) can be conducted.

(ii) Minimum acceptable test durations for chronic feeding and oncogenicity studies are as follows:

(A) Chronic rodent feeding study (food use pesticides)—24 months.

(B) Chronic rodent feeding study (non-food pesticides)—12 months.

(C) Chronic nonrodent (i.e., dog) feeding study—12 months.

(D) Mouse oncogenicity study—18 months.

(E) Rat oncogenicity study—24 months.

(10) Required to support products intended for food uses and to support products intended for non-food uses if significant exposure of human females of child bearing age may reasonably be expected.

(11) Required to support products intended for food uses and to support products intended for non-food uses if use of the product is likely to result in human exposure over a portion of the human lifespan which is significant in terms of the frequency of exposure, magnitude of exposure, or the duration of exposure (for example, pesticides used in treated fabrics for wearing apparel, diapers, or bedding; insect repellents applied directly to human skin; swimming pool additives; constant-release indoor pesticides which are used in aerosol form).

(12) Required on a case by case basis.

(13) In most cases, where theoretical maximum residue contribution (TMRC) exceeds 50 percent of the maximum permitted intake (MPI), a one year (or longer) interim report on a chronic feed study is required to support a temporary tolerance.

(14) In most cases, where theoretical maximum residue contribution (TMRC) exceeds 50 percent of the maximum permitted intake (MPI), a first generation (or longer) interim report on a multigeneration reproduction study is required to support a temporary tolerance.

(15) A teratology study in one species is required to support a temporary tolerance.

(16) Required if the product consists of, or under conditions of use will result in, an inhalable material (e.g., gas volatile substances, or aerosol/particulate).

(17) Required if intended use(s) of the pesticide product is expected to result in human exposure to the product, under the following conditions:

(i) Human exposure is via the oral route.

- (ii) Expected human exposure is over a limited portion of the human lifespan, yet is significant in terms of the frequency of exposure, magnitude of exposure, or the duration of exposure (for example, products requiring a temporary tolerance to support an experimental use permit or emergency exemption).
- (18) Required if intended use(s) of the pesticide product is expected to result in human exposure to the product, under the following conditions:
- (i) Human exposure is via skin contact.
 - (ii) Expected human skin contact is not purposeful, and such exposure is of limited frequency and duration (for example, such exposure could result from use of certain disinfectant, liquid fumigant or agricultural or home/garden pesticide products, and other circumstances where the Agency determines that more than acute dermal exposure is involved).
 - (iii) Data from a subchronic 90-day dermal toxicity study are not required.
- (19) Required if pesticide use will involve purposeful application to the human skin or will result in comparable human exposure to the product, (e.g., swimming pool algaecides, pesticides for impregnating clothing), and if either of the following criteria are met:
- (i) Data from a subchronic oral study are not required.
 - (ii) The active ingredient of the product is known or expected to be metabolized differently by the dermal route of exposure than by the oral route, and a metabolite of the active ingredient is the toxic moiety.
- (20) Required if either of the following criteria are met:
- (i) Use of the pesticide product is likely to result in repeated human exposure to the product, over a significant portion of the human life-span (for example, products intended for use in and around residences, swimming pools, and enclosed working spaces or their immediate vicinity).
 - (ii) The use requires a tolerance for the pesticide or an exemption from the requirement to obtain a tolerance, or requires issuance of a food additive regulation.
- (21) Required if any of the following criteria are met:
- (i) The active ingredient(s) or any of its (their) metabolites, degradation products, or impurities:
 - (A) Is structurally related to a recognized carcinogen.
 - (B) Is a substance that cause mutagenic effect as demonstrated by *in vitro* or *in vivo* testing.
 - (C) Produces in subchronic studies a morphologic effect (e.g., hyperplasia, metaplasia) in any organ that may lead to neoplastic change.
 - (ii) The use requires a tolerance for the pesticide or exemption from the requirement to obtain a tolerance, or requires the issuance of a food additive regulation.
 - (iii) Use of the pesticide product is likely to result in human exposure over a portion of the human lifespan which is significant in terms of either the time the exposure occurs or the duration of exposure (for example; pesticides used in treated fabrics for wearing apparel, diapers, or bedding; insect repellents applied directly to human skin; swimming pool additives; constant-release indoor pesticides which are used in aerosol form).
- (22)(i) The required battery of mutagenicity tests must include tests appropriate to address the following three categories in accordance with the objectives set forth in § 158.202:
- (A) Gene mutations.
 - (B) Structural chromosomal aberrations.
 - (C) Other genotoxic effects as appropriate for the test substance, e.g., numerical chromosome aberrations, direct DNA damage and repair, mammalian cells transformation, target organ/cell analysis.
 - (ii) Currently recognized tests for each of these categories are listed with the National Technical Information Service (NTIS). Applicants shall explain their reasons for selecting specific tests from the battery of currently recognized tests. Because of the rapid improvements in this field, applicants are encouraged to discuss with the Agency: test selection, protocol design and results of preliminary testing.
 - (iii) Not required if the pesticide use pattern precludes human exposure (e.g., nonvolatile pesticides packaged and used in enclosed bait boxes).
 - (23) Required if chronic feeding or oncogenicity studies are required.
 - (24) Dermal absorption studies required for compounds having a serious toxic effect as identified by oral or inhalation studies, for which a significant route of human exposure is dermal and for which the assumption of 100 percent absorption does not produce an adequate margin of safety. Registrants should work closely with the Agency in developing an acceptable protocol and performing dermal absorption studies.
- [49 FR 42881, Oct. 24, 1984. Redesignated and amended at 53 FR 15993, 15999, May 4, 1988; 58 FR 34203, June 23, 1993]
- § 158.390 Reentry protection data requirements.**
- (a) Table. Sections 158.50 and 158.102 describe how to use this table to determine the reentry protection data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use patterns										Test substance		Guideline reference No.
		Terrestrial		Aquatic		Greenhouse		Forestry	Indoor	Domestic outdoor	Data to support MP	Data to support EP		
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood							
Foliar dissipation	(1)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TEP	TEP	132-1	

Kind of data required	(b) Notes	General use patterns										Test substance		Guideline reference No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to support MP	Data to support EP			
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood								
Soil dissipation	(1), (4)	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	132-1
Dermal exposure	(1), (2), (3)	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	133-3
Inhalation exposure	(1), (2), (3)	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	CR	133-4

Key: CR=Conditionally required; TEP=Typical end-use product.
 (b) Notes.—The following notes are referenced in column two of the table contained in paragraph (a) of this section.
 (1) Data are required if the following conditions are met:
 (i)(A) The acute dermal toxicity of the technical grade of active ingredient is less than 200 mg/kg (body weight); or
 (B) The acute inhalation toxicity of the technical grade of active ingredient is less than 200 mg/m³ (for a one-hour exposure); or
 (C) The acute oral toxicity of the technical grade of active ingredient is less than 50 mg/kg (body weight); or
 (D) Neurotoxic, teratogenic, or oncogenic effects or other adverse effects as evidenced by subchronic, chronic, and reproduction studies would be expected from entry of persons into treated sites; or
 (E) The Agency receives other scientifically validated toxicological or epidemiological evidence that a pesticide or residue of a pesticide could cause adverse effects on persons entering treated sites. In the last situation, reentry intervals and supporting data may be required on a case-by-case basis.
 (ii) And if: end-use product is to be registered for:
 (A) Application to growing crops, such as to or around horticultural and agronomic crops that are field- or orchard-grown.
 (B) Application to outdoor tree nursery and forestry operations.
 (C) Application to turf crops and commercial applications to turf.
 (D) Application to parks and arboreta; or (E) application to aquatic crops.
 (iii) And if: human exposure to residues of the pesticide can be reasonably foreseen. This applies primarily to pesticides that will be used on crops where human tasks will involve substantial exposure to residues of the pesticide.
 (2) Data required if appropriate surrogate data are not available.
 (3) Data required if the applicant chooses to use the allowable exposure level method for proposal of a reentry interval.
 (4) Soil dissipation data required if agricultural practice involves human tasks that would cause substantial exposure to residues sorbed to soil.

[49 FR 42881, Oct. 24, 1984, Redesignated at 53 FR 15993, May 4, 1988, and amended at 58 FR 34203, June 23, 1993]

§ 158.440 Spray drift data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the aerial spray drift data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use patterns										Test substance		Guide- lines ref- erence No.
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to sup- port MP	Data to sup- port EP		
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood							
Droplet size spectrum Drift field evaluation	(1) (1)	CR CR	CR CR	CR CR	CR CR	CR CR	CR CR	CR CR	CR CR	CR CR	CR CR	CR CR	CR CR	201-1 202-1

Key: CR=Conditionally required; TEP=Typical end use product.
 (b) Notes.—The following are referenced in column two of the table contained in paragraph (a) of this section.

(1) This study is required when aerial applications (rotary and fixed winged) and mist blower or other methods of ground application are proposed and it is estimated that the detrimental effect level of those nontarget organisms expected to be present would be exceeded. The nontarget organisms include humans, domestic animals, fish and wildlife, and nontarget plants. This requirement may be satisfied by submittal of published or unpublished information regarding spray drift patterns that would be expected to be similar to the proposed product.

(2) [Reserved]

[49 FR 42881, Oct. 24, 1984. Redesignated at 53 FR 15993, May 4, 1988, and amended at 58 FR 34203, June 23, 1993]

§ 158.490 Wildlife and aquatic organisms data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the wildlife and aquatic organisms data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use patterns								Test substance		Guide-lines reference No.		
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor use	Data to support MP		Data to support EP	
		Food crop	Nonfood	Food Crop	Nonfood	Food crop	Nonfood							
Avian and mammalian testing														
Avian oral LD ₅₀ (preferably mallard or bobwhite).	(1)	[R]	[R]	[R]	[R]	CR	CR	[R]	[R]	CR	TGAI	TGAI		71-1
Avian dietary LC ₅₀ (preferably mallard and bobwhite).	(1)	[R]	[R]	[R]	[R]	CR	CR	[R]	[R]	CR	TGAI	TGAI		71-2
Wild mammal toxicity	(2)	CR	CR	CR	CR			CR	CR	CR	TGAI	TGAI		71-3
Avian reproduction (preferably mallard and bobwhite).	(3)	CR	CR	CR	CR			CR	CR	CR	TGAI	TGAI		71-4
Simulated and actual field testing—mammals and birds.	(2)	CR	CR	CR	CR			CR	CR	CR	TEP	TEP		71-5
Aquatic organism testing														
Freshwater fish LC ₅₀ (preferably rainbow and bluegill).	(1), (7)	[R]	[R]	[R]	[R]	CR	CR	[R]	[R]	CR	TGAI	TGAI		72-1
Acute LC ₅₀ freshwater invertebrates (preferably <i>Daphnia</i>).	(1), (7)	[R]	[R]	[R]	[R]	CR	CR	[R]	[R]	CR	TGAI	TGAI		72-2
Acute LC ₅₀ estuarine and marine organisms.	(4), (7)	CR	CR	CR	CR			CR	CR	CR	TGAI	TGAI		72-3

Kind of data required	(b) Notes	General use patterns								Test substance		Guide- lines ref- erence No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor use	Data to support MP		Data to support EP
		Food crop	Nonfood	Food Crop	Nonfood	Food crop	Nonfood						
Fish early life stage and aquatic inverte- brate life-cycle.	(5)	CR	CR	CR	CR			CR	CR		TGAI		72-4
Fish—life-cycle	(6)	CR	CR	CR	CR			CR	CR		TGAI		72-5
Aquatic organism ac- cumulation.	(8)	CR	CR	CR	CR			CR	CR		TGAI, PAI, or degradation product.	TGAI, PAI, or degradation product. TEP	72-6
Simulated or actual field testing—aquat- ic organisms.	(2)	CR	CR	CR	CR			CR	CR		TEP		72-7

Key: R=Required; CR=Conditionally required; [] =Brackets (ie. [R], [CR]) indicate data requirements that apply when an experimental use permit is being sought; TGAI=Technical grade of the active ingredient; TEP=Typical end-use product; PAI=Pure active ingredient.

(b) Notes.—The following notes are referenced in column two of the table contained in paragraph (a) of this section.
(1)(i) Data are required as follows to support manufacturing use products and those end-use products for indoor use for which there is no registered manufacturing use product:
(A) Solid formulation indoor use products require avian oral LD₅₀ (bobwhite), avian dietary LC₅₀ (bobwhite), freshwater fish LC₅₀ (rainbow trout) and acute LC₅₀ freshwater invertebrate (Daphnia).

(B) Liquid formulation indoors use products require all tests listed under (b)(1)(i) of this section except the avian oral LD₅₀.
(C) Data are not required to support:
(i) Data for products consisting of a gas/highly volatile liquid or a highly reactive solid.
(ii) Indoor end-use products for which there is a manufacturing use product registration.

(2) Tests required on a case-by-case basis depending on the results of lower tier studies such as acute and subacute testing, intended use pattern, and pertinent environmental fate characteristics:
(3) Data required if one or more of the following criteria are met:

- (i) Birds may be subjected to repeated or continued exposure to the pesticide or any of its major metabolite degradation products, especially preceding or during the breeding season.
- (ii) The pesticide or any of its major metabolites or degradation products are stable in the environment to the extent that potentially toxic amounts may persist in avian feed.
- (iii) The pesticide or any of its major metabolites or degradation products are stored or accumulated in plant animal tissues, as indicated by its octanol/water partition coefficient, accumulation studies, metabolic release and retention studies, or as indicated by structural similarity to known bioaccumulative chemicals.
- (iv) Any other information, such as that derived from mammalian reproduction studies that indicates the reproduction in terrestrial vertebrates may be adversely affected by the anticipated use of the pesticide product.

NOTE: Prior to conducting this test to support the registration of an avicide, the applicant should consult the Agency.

(4) Data required if the product is intended for direct application to the estuarine or marine environment, or the product is expected to enter this environment in significant concentrations because of its expected use or mobility pattern.

(5) Data from fish early life-stage tests or life-cycle tests with aquatic invertebrates (on whichever species is most sensitive to the pesticide as determined from the results of the acute toxicity tests) are required if the product is applied directly to water or expected to be transported to water from the intended use site, and when any one or more of the following conditions apply:

- (i) If the pesticide is intended for use such that its presence in water is likely to be continuous or recurrent regardless of toxicity.
- (ii) If any LC₅₀ or EC₅₀ value determined in acute toxicity testing is less than 1 mg/l or
- (iii) If the estimated environmental concentration in water is equal to or greater than 0.01 of any EC₅₀ or LC₅₀ determined in acute toxicity testing.
- (iv) If the actual or estimated environmental concentration in water resulting from use is less than 0.01 of any EC₅₀ or LC₅₀ determined in acute toxicity testing and any of the following conditions exist:

- (A) Studies of other organisms indicate the reproductive physiology of fish and/or invertebrates may be affected.
- (B) Physicochemical properties indicate cumulative effects.
- (C) The pesticide is persistent in water (e.g., half-life in water greater than 4 days).
- (D) Data are required if end-use product is intended to be applied directly to water or expected to transport to water from the intended use site, and when any of the following conditions apply:

- (i) If the estimated environmental concentration is equal to or greater than one-tenth of the no-effect level in the fish early life-stage or invertebrate life-cycle test.
- (ii) If studies of other organisms indicate the reproductive physiology of fish may be affected. NOTE: The applicant should consult the Agency prior to these tests to support the registration of a pesticide.

(7) Data from testing with the applicant's end-use product or a typical end-use product is required to support the registration of each end-use product which meets any one of the following conditions:

- (i) The end-use pesticide will be introduced directly not an aquatic environment when used as directed.
- (ii) The LC₅₀ or EC₅₀ of the technical grade of active ingredient is equal to or less than the maximum expected environmental concentration (MEEC) or the estimated environmental concentration (EEC) in the aquatic environment when the end-use pesticide is used as directed.
- (iii) An ingredient in the end-use formulation other than the active ingredient is expected to enhance the toxicity of the active ingredient or to cause toxicity to aquatic organisms.
- (8) Required if significant concentrations of the active ingredient and/or its principal degradation products are likely to occur in aquatic environments and may accumulate in aquatic organisms.

[49 FR 42881, Oct. 24, 1984. Redesignated at 53 FR 15993, May 4, 1988, and amended at 58 FR 34203, June 23, 1993]

§ 158.540 Plant protection data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the plant protection data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use patterns								Test substance		Guide- lines ref- erence No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to sup- port MP		Data to sup- port EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Target area phytotoxicity	(1)										EP		121-1
Nontarget area phytotoxicity.													
Tier I:													
Seed germination/ seedling emergence.	(2)		R		R				R		TGAI		122-1
Vegetative vigor	(2)		R		R				R		TGAI		122-1
Aquatic plant growth	(2)		R		R				R		TGAI		122-2
Tier II:													
Seed germination/ seedling emergence.	(3)		CR		CR				CR		TGAI		123-1
Vegetative vigor	(3)		CR		CR				CR		TGAI		123-1
Aquatic plant growth	(4)		CR		CR				CR		TGAI		123-2
Tier III:													
Terrestrial field	(3)		CR		CR				CR		TEP		124-1
Aquatic field	(4)		CR		CR				CR		TEP		124-2

Key: CR=Conditionally required; TGA=Technical grade of the active ingredient; EP=End-use product; TEP=Typical end-use product.

(b) NOTES.—The following notes are referenced in column two of the table contained in paragraph (a) of this section.

- (1) Data are required for Special Review and certain public health situations.
- (2) Data are required for pesticides to be used in forests and natural grasslands. For herbicide used in forest site preparation; the aquatic plant growth tests will be required. Data are required to support products to be used in other locations when any of the following conditions are met:
 - (i) Phytotoxicity problems concerning the product arise and open literature data are not available to address the problems.
 - (ii) The product may pose hazards to endangered or threatened species.
 - (iii) Special Review has been initiated on the product.
- (3) Required if a 25 percent or greater detrimental effect was found in 1 or more plant species in the corresponding test of the previous tier.
- (4) Required if a 50 percent or greater detrimental effect was found on any plant species in the corresponding test of the previous tier.

[49 FR 42881, Oct. 24, 1984, Redesignated at 53 FR 15993, May 4, 1988, and amended at 58 FR 34203, June 23, 1993]

§ 158.590 Nontarget insect data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the nontarget insect data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use pattern								Test substance		Guidelines reference No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor use	Data to support MP		Data to support EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Nontarget insect testing—pollinators													
Honey bee acute contact LD ₅₀ .	(1)	[CR]	[CR]	[CR]	[CR]			[CR]	[CR]		TGAI	TGAI	141-1
Honey bee—toxicity of residues on foliage.	(1), (2)	CR	CR	CR	CR			CR	CR		TEP	TEP	141-2
Honey bee subacute feeding study.	(3)												141-4
Field testing for pollinators	(4)	CR	CR	CR	CR			CR	CR		TEP	TEP	141-5
Nontarget insect testing—aquatic insects	(5)												142-1
Acute toxicity to aquatic insects.	(5)												142-1
Aquatic insect life-cycle study.	(5)												142-3
Simulated or actual field testing for aquatic insects.	(5)												143-1 thru 143-3
Nontarget insect testing—predators and parasites.	(5)												

Key: CR=Conditionally required; []=Brackets (ie, [CR]) indicate data requirements that apply to products for which an experimental use permit is being sought; TGAI=Technical grade of the active ingredient; TEP=Typical end-use product.

(b) NOTES.—The following notes are referenced in column two of the table contained in paragraph (a) of this section.

- (1) Required only if proposed use will result in honey bee exposure.
- (2) Required only when formulation contains one or more active ingredients having an acute LD₅₀ of less than 1 microgram/bee.
- (3) This requirement is reserved pending development of test methodology.
- (4) May be required under the following conditions:
 - (i) Data from the honey bee subacute feeding study indicate adverse effects on colonies, especially effects other than acute mortality (reproductive, behavioral, etc.).
 - (ii) Data from residual toxicity studies indicate extended residual toxicity.
 - (iii) Data derived from studies with organisms other than bees indicate properties of the pesticide beyond acute toxicity, such as the ability to cause reproductive or chronic effects.
- (5) This requirement is reserved pending further evaluation to determine what and when data should be required, and to develop appropriate test methods.

[49 FR 42881, Oct. 24, 1984, Redesignated at 53 FR 15993, May 4, 1988, and amended at 58 FR 34203, June 23, 1993]

§ 158.640 Product performance data requirements.

(a) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the product performance data requirements and the substance to be tested.

Kind of data required	(b) Notes	General use patterns										Test substance		Guide- lines ref- erence No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to sup- port MP	Data to sup- port EP			
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood								
Efficacy of antimicrobial agents															91-2
Products for use on hard surfaces.	(1)									CR		EP*			91-3
Products requiring confir- matory data.	(1)									CR		EP*			91-4
Products for use on fabrics and textiles.	(1)									CR		EP*			91-5
Air sanitizers	(1)									CR		EP*			91-7
Products for control of mi- crobial pests associated with human and animal wastes.	(1)									CR		EP*			91-8
Products for treating water systems.	(1)			[CR]						CR		EP*			93-16
Efficacy of fungicides and nematocides															
Products for control of or- ganisms producing mycotoxins.	(1)	[CR]		[CR]				[CR]				EP*			
Efficacy of Vertebrate Control Agents															
Avian toxicants	(1)	(R)								(R)		EP*			96-5
Avian repellents	(1)	(R)								(R)		EP*			96-6
Avian frightening agents	(1)	(R)								(R)		EP*			96-7
Bat toxicants and repellents.	(1)									(R)		EP*			96-9
Commensal rodenticides	(1)	(R)								(R)	TEP	EP*			96-10
Rodenticides on farm and rangelands.	(1)	(R)								(R)		EP*			96-12
Rodent fumigants	(1)	(R)								(R)		EP*			96-13
Rodent reproductive inhibi- tors.	(1)	(R)								(R)		EP*			96-16

Key: R=Required; CR=Conditionally required; I=Brackets (i.e., [R]) indicate data requirements that apply to products for which an experimental use permit is being sought. P=End-use product; asterisk identifies those data requirements that end-use applicants (i.e., "formulators") must satisfy, provided that their active ingredient(s) is (are) purchased from a registered source; MP=Manufacturing use product; TEP=Typical end-use product.

(b) Notes: The following notes are referenced in column two of the table contained in paragraph (a) of this section.

(1) The Agency has waived all requirements to submit efficacy data unless the pesticide product bears a claim to control pest microorganisms that pose a threat to human health and whose presence cannot readily be observed by the user including, but not limited to, microorganisms infectious to man in any area of the inanimate environment or a claim to control vertebrates (such as rodents, birds, bats, canids, and skunks) that may directly or indirectly transmit diseases to humans. However, each registrant must ensure through testing that his products are efficacious when used in accordance with label directions and commonly accepted pest control practices. The Agency reserves the right to require, on a case-by-case basis, submission of efficacy data for any pesticide product registered or proposed for registration.

(2) [Reserved]

§ 158.690 Biochemical pesticides data requirements.

(a) *Biochemical pesticide product analysis data requirements*—(1) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the biochemical pesticides—product analysis data requirements and the substance to be tested.

Kind of data required	(2) Notes	General use patterns						Test substance		Guide-lines reference No.		
		Terrestrial		Aquatic		Greenhouse		Indoor	Data to support MP		Data to support EP	
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood					
Product identity		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP	EP*	151-10
Manufacturing process	(i)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* and TGAI.	151-11
Discussion of formation of unintentional ingredients.	(ii)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* and TGAI.	151-12
Analysis of samples	(iii)	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	MP and TGAI.	EP* and TGAI.	151-13
Certification of limits		[R]	[R]	[R]	R	[R]	[R]	R	R	MP	EP*	151-15
Analytical methods		R	R	R	R	R	R	R	R	MP	EP*	151-16
Physical and chemical properties.		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* and TGAI.	151-17

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Kind of data required	(2) Notes	General use patterns								Test substance		Guidelines reference No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to support MP		Data to support EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Proposed tolerance	(i), (xii)	[CR]		[CR]									153-3
Reasonable grounds in support of the petition.		[CR]		[CR]		[CR]					Residue of concern.	Residue of concern.	153-3

Key: CR=Conditionally required data, TGA=Technical grade of the active ingredient; PAIRA=Pure active ingredient, radio labeled; TEP=typical end-use product, MP=Manufacturing-use product; []=Brackets (i.e., [CR]) indicate data requirements that apply when an experimental use permit is being sought.

(2) NOTES.—The following notes are referenced in column two of the table contained in paragraph (b)(1) of this section.
 (i) Residue chemistry data requirements shall apply to biochemical pesticide products when any one or more of the following conditions apply:
 (A) Tier II or III toxicology data are required, as specified for biochemical agents in (c)(1) of this section.
 (B) The application rate of the product exceeds 0.7 ounces (20 grams) active ingredient per acre per application.
 (C) The application rate of the product exceeds a level determined to be comparable to 0.7 ounces active ingredient per acre per application.

(ii) The same chemical identity data as required in (a)(1) of this section are required, with emphasis on impurities that could constitute a residue problem.
 (iii) Required information includes crops to be treated, rate of application, number and timing of applications, preharvest intervals, and relevant restrictions.
 (iv) Data on metabolism in livestock are required when residues occur on a livestock feed, or the pesticide is to be applied directly to livestock.
 (v) A residue method suitable for enforcement of tolerances is needed whenever a numeric tolerance is proposed. Exemptions from the requirement of a tolerance will also usually require an analytical method.

(vi) Data on the nature and level of residue in processed food/feed are required when detectable residues could concentrate on processing and thus require establishment of a food additive tolerance.
 (vii) Livestock feeding studies are required whenever a pesticide occurs as a residue in an livestock feed. Direct application to livestock uses will require animal treatment residue studies.
 (viii) Data on residues in potable water are required whenever a pesticide is to be applied directly to water, unless it can be determined that the treated water would not be used (eventually) for drinking purpose, by man or animals.

(ix) Data on residues in fish are required whenever a pesticide is to be applied directly to water.
 (x) Data on residues in irrigated crops are required when a pesticide is to be applied directly to water that could be used for irrigation or to irrigation facilities such as irrigation ditches.
 (xi) Data or residues in food/feed in food handling establishments are required whenever a pesticide is to be used in food/feed handling establishments.
 (xii) Reduction of residue data are required when the assumption of tolerance level residues results in an unsafe level of exposure. Data on the level of residue in food as consumed will be used to obtain a more precise estimate of potential dietary exposure.

(xiii) The proposed tolerance must reflect the maximum residue likely to occur in crops and meat/milk/poultry/eggs.
 (xiv) Residue data for outdoor domestic uses are required if home gardens are to be treated and the home garden use pattern is different from the use pattern on which the tolerances were established.

(c) *Biochemical pesticides toxicology data requirements*—(1) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the biochemical pesticides—toxicology data requirements and the substances to be tested.

Kind of data required	(2) Notes	General use patterns								Test substance		Guidelines reference No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor use	Data to support MP		Data to support EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Tier I: Acute oral toxicity	(i)	[R]		[R]		[R]		[R]		[R]	MP and TGAI.	EP* or EP dilution* and TGAI.	152-10
Acute dermal toxicity	(i), (ii)	[R]		[R]		[R]		[R]		[R]	MP and TGAI.	EP* or EP dilution* and TGAI.	152-11
Acute inhalation	(xiv)	[R]		[R]		[R]		[R]		[R]	MP and TGAI.	EP* and dilution* and TGAI.	152-12
Primary eye irritation	(ii)	[R]		[R]		[R]		[R]		[R]	MP	EP	152-13
Primary dermal irritation.	(i), (ii)	[R]		[R]		[R]		[R]		[R]	MP	EP	152-14
Hypersensitivity study	(iii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	MP	EP	152-15
Hypersensitivity incidents.	(iv)	CR	CR	CR	CR	CR	CR	CR	CR	CR	MP	EP	152-16
Studies to detect genotoxicity.	(v)	[R]	[CR]	[R]	[CR]	[R]	[CR]	[R]	[CR]	[CR]	TGAI	TGAI	152-17
Immune response		[R]	R	[R]	R	[R]	R	[R]	R	R	TGAI	TGAI	152-18
90-day feeding (1 spp.)	(vi)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-20
90-day dermal (1 spp.)	(vii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-21
90-day inhalation (1 spp.)	(viii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-22
Tier II: Teratogenicity (1 spp.)	(ix)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-23
Mammalian mutagenicity tests.	(x)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-19
Immune response	(xi)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-24
Tier III: Chronic exposure	(xii)	CR		CR		CR		CR		CR	TGAI	TGAI	152-26
Oncogenicity	(xiii)	CR		CR		CR		CR		CR	TGAI	TGAI	152-29

Key: R=Required; CR=Conditionally Required; MP=Manufacturing-use product; EP*=End-use product (asterisk identifies those data requirements that end-use applicants (i.e., "formulators") must satisfy, provided that their active ingredient(s) is (are) purchased from a registered source); TGAI=Technical Grade of the Active Ingredient; [] =Brackets (i.e., [R], [CR]) indicate data requirement that apply when an experimental use permit is being sought.

(2) NOTES.—The following notes are referenced in column two of the table contained in paragraph (c)(1) of this section.

(i) Not required if test material is a gas or is highly volatile.

(ii) Not required if test material is corrosive to skin or has pH less than 2 or greater than 11.5; such a product will be classified toxicity category I on the basis of potential eye and dermal irritation effects.

(iii) Required if repeated contact with human skin results under condition of use.

(iv) Incidents must be reported, if they occur.

(v) Required to support non-food uses if use is likely to result in significant human exposure; or the active ingredient or its metabolites is (are) structurally related to a known mutagen, or belongs(s) to any chemical class of compounds containing known mutagens.

(vi) Required if the use requires a tolerance or an exemption from the requirement for a tolerance, or its use requires a food additive regulation; or the use of the product is otherwise likely to result in repeated human exposure by the oral route.

(vii) Required if pesticidal use will involve purposeful application to the human skin or will result in comparable prolonged human exposure to the product (e.g., swimming pool algaecides, pesticides for impregnating clothing), and if either of the following criteria are met:
 (A) Data from a subchronic oral study are not required.
 (B) The active ingredient of the product is known or expected to be metabolized differently by the dermal route of exposure than by the oral route, and a metabolite of the active ingredient is the toxic moiety.
 (viii) Required if pesticidal use may result in repeated inhalation exposure at a concentration which is likely to be toxic.
 (ix) Required if any of the following criteria are met:
 (A) Use of the product under widespread and recognized practice may reasonably be expected to result in significant exposure to female humans.
 (B) Its use requires a tolerance or an exemption from the requirement for a tolerance, or its use requires issuance of a food additive regulation.
 (x) Required if results from any one of the Tier I mutagenicity tests were positive.
 (xi) Required if adverse effects are observed in the Tier I immune response studies.
 (xii) Required if the potential for adverse chronic effects are indicated based on:
 (A) The subchronic effect levels established in the Tier I subchronic oral toxicity studies, the Tier I subchronic dermal toxicity studies or the Tier I subchronic inhalation toxicity studies.
 (B) The pesticide use pattern (e.g., rate, frequency, and site of application).
 (C) The frequency and level of repeated human exposure that is expected.
 (xiii) Required if the product meets either of the following criteria:
 (A) The active ingredient(s) or any of its (their) metabolites, degradation products, or impurities produce(s) in Tier I subchronic studies a morphologic effect (e.g., hyperplasia, metaplasia) in any organ that potentially could lead to neoplastic change.
 (B) If adverse cellular effects suggesting oncogenic potential are observed in Tier I or Tier II immune response studies or in Tier II mammalian mutagenicity assays.
 (xiv) Required if the product consists of, or under conditions of use results in, an inhalable material (e.g., gas, volatile substance, or aerosol/particulate).

(d) *Nontarget organism, fate and expression data requirements*—(1) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the biochemical pesticides non-target organism, fate and expression data requirements and substances to be tested.

Kind of data required	(2) Notes	General use patterns								Test substance			Guide- lines ref- erence No.
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor use	Data to sup- port MP	Data to sup- port EP	
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Tier I: Avian acute oral Avian dietary Freshwater fish LC ₅₀ Freshwater inverte- brate LC ₅₀ Nontarget plant stud- ies. Nontarget insect test- ing.	(i), (ii) (i), (ii), (vi) (vi) (i), (ii), (v) (i), (ii), (v) (vii) (iii)	[R] [R] [R] [R] [R] R	[R] [R] [R] [R] [R] R	[R] [R] [R] [R] [R] R	CR CR CR CR CR CR	CR CR CR CR CR CR	[R] [R] [R] [R] [R] R	[R] [R] [R] [R] [R] R	CR CR CR CR CR CR	TGAI TGAI TGAI TGAI TGAI TGAI	TGAI TGAI TGAI TGAI TGAI TGAI	154-6 154-7 154-8 154-9 154-10 154-11	
Tier II: Volatility Dispenser-water leaching Adsorption-desorption Octanol/Water Parti- tion. U.V. absorption	(viii) (ix) (x) (x) (xi)	CR CR CR CR CR	CR CR CR CR CR	CR CR CR CR CR	CR CR CR CR CR	CR CR CR CR CR	CR CR CR CR CR	CR CR CR CR CR	CR CR CR CR CR	TEP EP TEP EP PAI	TEP EP TEP EP PAI	155-4 155-5 155-6 155-7 155-8	

Kind of data required	(2) Notes	General use patterns								Test substance		Guide-lines reference No.		
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to support MP		Data to support EP	
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood							
Product identity manufacturing process. Discussion of formation of unintentional ingredients. Analysis of samples	(i)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP	EP*	151-20	
		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* and TGAI.	151-21
		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* and TGAI.	151-22
	(iii)	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	MP and TGAI.	EP* and TGAI.	151-23	
Certification of limits	(iv)	[R]	R	[R]	R	[R]	R	R	R	R	MP	EP*	151-25	
		R	R	R	R	R	R	R	R	R	R	MP	EP*	151-25
		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* and TGAI.	151-26
		[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	MP and TGAI.	EP* and TGAI.	151-27

Key: R=Required; CP=Conditionally required; MP=Manufacturing-use product; EP=End-use product (asterisk indicates those data requirements that end-use applicants (i.e., "formulators") must satisfy provided that their active ingredient(s) is (are) purchased from a registered source); TGAI=Technical grade of the active ingredient; []=Brackets (i.e., [R], [CR]) indicate data requirements that apply when an experimental use permit is being sought.

(2) Notes.—The following notes are referenced in column two of the table contained in paragraph (a)(1) of this section.
(i) If an experimental use permit is being sought, a schematic diagram and/or description of the manufacturing process will suffice if the pesticide is not already under scale production.
(ii) If the product is not already under full scale production and an experimental use permit is being sought, a discussion of unintentional ingredients shall be submitted to the extent this information is available.

(iii) Required to support registration of each manufacturing-use product and end use products produced by an integrated formulation system. Data on other end use products will be required on a case-by-case basis. For pesticide in the production stage, a rudimentary product analytical method and data will suffice to support an experimental use permit.
AAA(iv) Routinely required for products produced by an integrated formulation system. Required on a case-by-case basis for other products or materials.

(b) *Microbial pesticides-residue data requirements*—(1) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the microbial pesticides-residue data requirements and the substances to be tested.

Kind of data required	(2) Notes	General use patterns								Test substance		Guide-lines reference No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor	Data to support MP		Data to support EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Residue data	(i)	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]	[CR]			153-4

Key: CR=Conditionally required data; EP=End-use product; MP=Manufacturing-use product; []=Brackets (i.e., [CR]) indicate data requirements that apply when an experimental use permit is being sought.

(2) Notes.—The following notes are referenced in column two of the table contained in paragraph (b)(1) of this section.
(i) Residue data requirements shall apply to microbial pesticides when Tier II or Tier III toxicology data are required, as specified for microbial pesticides in (c)(1) of this section.
(ii) [Reserved]

(c) *Microbial pesticides-toxicology data requirements*—(1) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the microbial pesticides-toxicology data requirements and the substances to be tested.

Kind of data required	(2) Notes	General use patterns								Test substance		Guide- lines ref- erence No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor use	Data to sup- port MP		Data to sup- port EP
		Food crop	Nonfood crop	Food crop	Nonfood crop	Food crop	Nonfood crop						
Tier I:													
Acute oral		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* or EP* dilution and TGAI.	152-30
Acute dermal		[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* or EP* dilution and TGAI.	152-31
Acute inhalation	(i)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP and TGAI.	EP* or EP* dilution* and TGAI.	152-32
I.V., I.C., I.P. injection													
Primary dermal	(ii)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	TGAI	TGAI	152-33
Primary eye	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP	EP*	152-34
Hypersensitivity study	(iii)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	MP	EP*	152-35
Hypersensitivity inci- dents.	(iv)	CR	CR	CR	CR	CR	CR	CR	CR	CR	MP	EP*	152-36
Immune response													
Tissue culture	(v)	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	[R]	TGAI	TGAI	152-37
Tier II:													
Acute oral	(vi)	CR	CR	CR	CR	CR	CR	CR	CR	CR	MP	EP*	152-38
Acute inhalation	(vii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	MP	EP*	152-39
Subchronic oral	(viii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	MP	EP*	152-40
Acute I.P., I.C.	(ix)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-41
Primary dermal	(x)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-42
Primary eye	(xi)	CR	CR	CR	CR	CR	CR	CR	CR	CR	MP	EP*	152-43
Immune response	(xii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-44
Teratogenicity	(xiii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-45
Virulence enhance- ment.	(xiv)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-46
Mammalian muta- genicity.	(xv)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-47
Tier III:													
Chronic feeding	(xvi)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-48
Oncogenicity	(xvii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-49
Mutagenicity	(xviii)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-50
Teratogenicity	(xix)	CR	CR	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	152-51

Key: R=Required; CR=Conditionally required; MP=Manufacturing-use product; EP*=End use product. (asterisk identifies those data requirements that end-use applicants (i.e., "formula-tors") must satisfy, provided that their active ingredient(s) is (are) purchased from a registered source); TGAI=Technical Grade of the Active Ingredient; [] =Brackets (i.e., [R], [CR]) indicate data requirements that apply when an experimental use permit is being sought.

(2) NOTES.—The following notes are referenced in column two of the table contained in paragraph (c)(1) of this section.

- (i) Required if 20 percent or more of the aerodynamic equivalent of the product (as registered or under conditions of use) is composed of particulates less than 10 microns in diameter.
- (ii) Data required for products as follows:
- (A) Intravenous ("IV") infectivity study for bacterial and viral agents;
 - (B) Intracerebral ("IC") infectivity study for viral and protozoan agents; and
 - (C) Intrapertoneal ("IP") infectivity study for fungal and protozoan agents.
- (iii) Required if commonly recognized use practices will result in repeated human contact by inhalation or dermal routes.
- (iv) Hypersensitivity incidents must be reported, if they occur.
- (v) Data required for products whose active ingredient is a virus.
- (vi) Required for survival, replication, infectivity, toxicity, or persistence of the microbial agent (virus or protozoa) is observed in the test animals treated in the Tier I acute oral infectivity tests or the intraperitoneal or intracerebral injection test for protozoa.
- (vii) Required if survival, replication, infectivity, toxicity, or persistence of the microbial agent (virus or protozoa) is observed in the test animals treated in the comparable Tier I acute inhalation tests.
- (viii) Required if there is evidence of survival, replication, infectivity, or persistence of the protozoan agent in the Tier I oral infectivity test.
- (ix) Required if in Tier I acute oral infectivity testing, Tier I dermal toxicity/infectivity testing, or Tier I intraperitoneal or intracerebral injection testing, the test microorganism (bacteria, fungi, or protozoa) survived for more than 2 weeks, caused toxic effects, or caused a severe illness response in an experimental animal as evidenced by irreversible gross pathology, severe weight loss, toxemia, or death.
- (x) Required if infectivity or if marked edema or broad erythema was observed in the Tier I dermal irritation study.
- (xi) Required if infectivity or if severe ocular lesions are observed in the Tier I primary eye irritation study.
- (xii) Required if results of the Tier I immune response test indicate abnormalities.
- (xiii) Required when Tier I tests on viral agents show replication of the virus in mammalian hosts and significant damage to mammalian cells.
- (xiv) Required when Tier I infectivity tests on bacteria or fungi indicate prolonged survival (including presence of viable microbial agents in test animal excreta) and/or multiplication (infectivity) of the bacteria or fungal agent, respectively.
- (xv) Required if any of the following criteria are met:
- (A) Acute infectivity tests are positive in Tier I studies.
 - (B) Adverse effects are observed in immune response studies.
 - (C) Positive results are obtained in tissue culture tests with viral agents.
- (xvi) Required when the potential for chronic adverse effects (e.g., replication or persistence of viral or subviral constituents, protozoans, fungi, or bacteria) are demonstrated by any of the Tier II tests (except primary dermal, primary ocular, and mammalian mutagenicity tests).
- (xvii) Required when the potential for oncogenic effects is indicated (e.g., adverse cellular effects due to presence, replication, or persistence of viral or subviral constituents, or bacteria, fungi or protozoans; or mutagenic effects) by any of the Tier II tests except the primary dermal and primary ocular studies.
- (xviii) Required when the potential for mutagenic effects is indicated (e.g., adverse cellular effects due to presence, replication, or persistence of viral or subviral constituents, bacteria, fungi or protozoa) by any of the Tier II tests except primary dermal or primary ocular studies.
- (xix) Required when the potential for teratogenic effects is expected based on the presence of persistence of fungi, bacteria, viruses, or protozoa in mammalian species as a result of testing performed in Tier II, except primary dermal and primary ocular studies.

(d) *Microbial pesticides non-target organism and environmental expression data requirements*—(1) Table. Sections 158.50 and 158.100 through 158.102 describe how to use this table to determine the microbial pesticides non-target organism and environmental expression data requirements and substances to be tested.

Kind of data required	(2) Notes	General use patterns								Test substance		Guide- lines ref- erence No.	
		Terrestrial		Aquatic		Greenhouse		Forestry	Domestic outdoor	Indoor use	Data to sup- port MP		Data to sup- port EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood						
Tier I:													
Avian oral	(i), (ii)	[R]	[R]	[R]	[R]	CR	CR	[R]	[R]	CR	TGAI	TGAI	154–16
Avian injection test	(ii), (iii)	[R]	[R]	[R]	[R]	CR	CR	[R]	[R]	CR	TGAI	TGAI	154–17
Wild mammal testing	(iii), (iv)	CR	CR	CR	CR			CR	CR		TGAI	TGAI	154–18
Freshwater fish testing	(i)	[R]	[R]	[R]	[R]	CR	CR	[R]	[R]	CR	TGAI	TGAI	154–19

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Estuarine and marine animal testing.	(v)	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	154-2
Nontarget plant studies.		[R]	[R]	[R]	CR	CR	CR	CR	TEP	TEP	154-2
Nontarget insect testing.		[R]	[R]	[R]	CR	CR	CR	CR	TGAI	TGAI	154-23
Honey bee testing		[R]	[R]	[R]	CR	CR	CR	CR	TGAI	TGAI	154-24
Tier II:											
Terrestrial environmental testing.	(vi)	CR	CR	CR	CR	CR	CR	CR	TGAI or TEP	TGAI or TEP	155-18
Freshwater environmental expression tests.	(vii)	CR	CR	CR	CR	CR	CR	CR	TGAI or TEP	TGAI or TEP	155-19
Marine or estuarine environmental expression tests.	(xiii), (ix)	CR	CR	CR	CR	CR	CR	CR	TGAI or TEP	TGAI or TEP	155-20
Tier III:											
Terrestrial wildlife and aquatic organism testing.	(x)	CR	CR	CR	CR	CR	CR	CR	TGAI or TEP	TGAI or TEP	154-25
Avian pathogenicity/reproduction test.	(xi)	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	154-26
Definitive aquatic animal tests.	(xii)	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	154-27
Aquatic embryo larvae and life cycle studies.	(xiii)	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	154-28
Aquatic ecosystem test.	(xiv)	CR	CR	CR	CR	CR	CR	CR	TGAI	TGAI	154-29
Special aquatic tests (reserved).											154-30
Nontarget plant studies.	(xv)	CR	CR	CR	CR	CR	CR	CR	TGAI	TEP	154-31
Tier IV:											
Simulated and actual field tests (birds, mammals).	(xvi)	CR	CR	CR	CR	CR	CR	CR	TEP	TEP	154-33
Simulated and actual field tests (aquatic organisms).	(xvii), (xviii)	CR	CR	CR	CR	CR	CR	CR	TEP	TEP	154-34
Simulated and actual field tests (insect predators, parasites) (reserved).											154-35

Kind of data required	(2) Notes	General use patterns						Test substance		Guide- lines ref- erence No.		
		Terrestrial		Aquatic		Greenhouse		Domestic outdoor	Indoor use		Data to sup- port MP	Data to sup- port EP
		Food crop	Nonfood	Food crop	Nonfood	Food crop	Nonfood					
Simulated and actual field tests (insect pollinators) (re- served).										154–36		

AAAKey: R=Required; CR=Conditionally required; []=Brackets (i.e., [R], [CR]) indicates data requirements that apply to products for which an experimental use permit is being sought; MP=Manufacturing-use Product; TEP=Typical end-use product; TGA=Technical grade of the active ingredient; EP=End-use product; PAL=“Pure” active ingredient.

AAA(2) Notes.—The following notes are referenced in column two of the table contained in paragraph (d)(1) of this section.

AAA(i) Tests for pesticides intended solely for indoor application will be required on a case-by-case basis, depending on use pattern, production volume, and other pertinent factors.

AAA(ii) Preferable test species are: bobwhite quail or mallard for avian acute oral and avian dietary studies; rainbow trout for freshwater fish studies.

AAA(iii) Data from either the avian acute oral or the avian injection study are required to support an experimental use permit.

AAA(iv) Required on a case-by-case basis if results of tests required by paragraph (c)(1) of this section are inadequate or inappropriate for assessment of hazards to wild animals.

AAA(v) Required when product is intended for direct application into the estuarine or marine environment or expected to enter this environment in significant concentrations because of expected use or mobility pattern.

AAA(vi) Required when toxic or pathogenic effects are observed in any of the following Tier I tests for microbial pest control agents:

AAA(A) Avian single dose oral toxicity and pathogenicity tests.

AAA(B) Avian injection pathogenicity tests.

AAA(C) Wild mammals toxicity and pathogenicity test.

AAA(D) Plant studies—terrestrial.

AAA(E) Honey bee toxicity/pathogenicity test.

AAA(F) Testing for toxicity/pathogenicity to insect predators and parasites.

AAA(vii) Required when toxic or pathogenic effects are observed in any of the following Tier I test for microbial pest control agents:

AAA(A) Freshwater fish toxicity and pathogenicity testing.

AAA(B) Freshwater aquatic invertebrate toxicity and pathogenicity test.

AAA(C) Plant studies—aquatic.

AAA(viii) Required if product is applied on land or in fresh water and toxic or pathogenic effects are observed in any of the following Tier I tests for microbial pest control agents:

AAA(A) Estuarine and marine animal toxicity and pathogenicity test.

AAA(B) Plant studies—estuarine or marine.

AAA(C) Estuarine and marine animal toxicity and pathogenicity test.

AAA(x) Required if product is applied in marine or estuarine environments and toxic or pathogenic effects are observed in any of the following Tier I tests:

AAA(A) Avian single dose oral toxicity and pathogenicity test.

AAA(B) Avian injection pathogenicity test.

AAA(C) Estuarine and marine animal toxicity and pathogenicity test.

AAA(x) Required when toxic effects on nontarget terrestrial wildlife or aquatic organisms are reported in one or more Tier I tests and results of Tier II tests indicate exposure of the microbial agent to the affected nontarget terrestrial wildlife or aquatic organisms.

AAA(xii) Required when:

AAA(A) Pathogenic effects are observed in Tier I avian tests at a level equal to the adjusted host equivalent amount.

AAA(B) Chronic, carcinogenic, or teratogenic effects are reported in tests required by paragraph (c)(1) of this section for evaluating hazard to humans and domestic animals.

AAA(C) Tier II Environmental expression testing indicates that exposure of terrestrial animals to the microbial agent is likely.

AAA(xii) Required when product is intended for use in water or expected to be transported to water from the intended use site, and when pathogenicity or infectivity was observed in Tier I tests.

AAA(xiii) Required when both of the following conditions are met:

AAA(A) Pathogenic effects at actual or expected field residue exposure levels are reported in Tier III.

AAA(B) The agency determines that quarantine methods will prevent the microbial pest control agent from contaminating areas adjacent to the test area.

AAA(xiv) Required if, after an analysis of the microbial agent's properties, the individual use patterns, and the results of previous nontarget organism and environmental expression tests, it is determined that use of the microbial agent may result in adverse effects on the nontarget organisms in aquatic environments, including those of the water column and bottom sediments. When a microbial pest control agent is used in or is expected to transport to water from the intended use site, major considerations for requiring these infectivity tests include, but are not limited to:

AAA(A) Infectivity or pathogenicity demonstrated in previous testing.

AAA(B) Viability of the microorganism in natural waters as demonstrated in Tier II tests.

AAA(xv) Required if the product is transported from the site of application by air, soil, or water or transmission by other animals. The extent of movement will be determined by the environmental expression tests in Tier II.

AAA(xvi) The Agency expects that Tier IV requirements would be imposed retrospectively—after product registration as post registration monitoring, since it is unlikely a registrant would pursue registration of a microbial agent posing potential hazards such that testing beyond Tier III is required.

AAA(xvii) Short term simulated or actual field studies are required when it is determined that the product is likely to cause adverse short-term or acute effects, based on consideration of available laboratory data, use patterns, and exposure rates.

AAA(xviii) Data from a long-term simulated field test (e.g., where reproduction and growth of confined populations are observed) and/or an actual field test (e.g., where reproduction and growth of natural populations are observed) are required if laboratory data indicate adverse long-term, cumulative, or life-cycle effects may result from intended use.

[49 FR 42881, Oct. 24, 1984. Redesignated at 53 FR 15993, May 4, 1988, and amended at 58 FR 34203, June 23, 1993]

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APPENDIX A TO PART 158—DATA REQUIREMENTS FOR REGISTRATION: USE PATTERN INDEX

How to use this Index:

1. Identify the Pesticide Use Site Group listed below (e.g., agricultural crops, forests, ornamental plants) that covers the specific use pattern of interest to you.
2. Find your specific use pattern under the appropriate Pesticide Use Site Group.
3. Identify the general use pattern that corresponds to your specific use pattern.
4. Use the general use pattern in determining applicable data requirements on the Data Requirements tables presented in §§ 158.120 through 158.170.

Pesticide use site group

1. Agricultural Crops.
2. Ornamental Plants and Forest Trees.
3. General Soil Treatment and Composting.
4. Processed or Manufactured Products, and food or feed containers or dispensers.
5. Pets and Domestic Animals.
6. Agricultural Premises and Equipment.
7. Household.
8. Wood or Wood Structure Protection Treatments.
9. Aquatic sites.
10. Noncrop, wide area, and general indoor/outdoor treatments.
11. Antifouling treatments.
12. Commercial and Industrial Uses.
13. Domestic and Human Use.
14. Miscellaneous Indoor Uses.

Specific use patterns—listed according to use site group	Corresponding general use pattern
1. <i>Agricultural crops</i>	
Small fruits	Terrestrial food crop
Caneberries (e.g., raspberry, dewberry) Bushberries (e.g., blueberry, currant) Vine fruits (e.g., grape, kiwi fruit) Strawberry Cranberry Pome fruits (e.g., apple, quince) Stone fruits (e.g., peach, cherry) Nut crops—tree & shrub (e.g., pecan, filbert) Other temperate fruits (e.g., persimmon, pawpaw)	
Tropical and subtropical fruits	
Citrus Banana and plantain Palm fruits and nuts (e.g., date, coconut) Pineapple Other fruits and nuts	
Beverage crops	
Woody—cocoa, coffee, tea Herbaceous—chicory, mint	
Flavoring and spice crops	
Woody—leaf/stem, root, seed and pod Herbac.—leaf/stem, root, seed and pod Vegetables—leaf/stem, root, seed and pod, fruiting vegetables, cucurbits	

Specific use patterns—listed according to use site group	Corresponding general use pattern
Commercial annual (e.g., tomato, bean) Commercial perennial (e.g., asparagus, rhubarb) Greenhouse (commercial) Mushrooms Nursery/seed crop/medical crop/tobacco Fiber crops Cotton Others—(e.g., flax) Forage crops Typical grasses—annual (e.g., sudan grass) Typical grasses—perennial (e.g., bromegrass) Corn and sorghum Small grains for forage (e.g., rye) Perennial legumes (e.g., white clover) Annual legumes (e.g., crotalaria, soybean) Crop harvest residue (peanut vines, beet tops, etc.) Grain and edible seed crops Corn Rice Wheat, barley, rye, oats Sorghum Alfalfa Other grains Other nongrains (e.g., squash, pumpkin) Buckwheat Sesame Peanut Sunflower Seed sprout crops Mung bean, red clover, soybean, alfalfa, etc. Nonlegume crops (e.g., wheat, radish, black mustard) Crops grown exclusively for seed for planting Sugar crops Stored raw agricultural commodities Honey (principal nectar-producing crops) Sugar beet Sugar cane Sugar maple Sorghum (for sugar) Crops for smoking and chewing —field —shade —storage —greenhouses Sapodilla (for chewing gum)	Greenhouse food crop Greenhouse non-food crop Terrestrial food crop Aquatic food crop Terrestrial food crop Indoor Terrestrial nonfood crop Terrestrial food crop Terrestrial nonfood crop
Oil crops Annual herbaceous crops Perennial herbaceous crops Tropical/subtropical woody crops Drug and medicinal crops Annual herbaceous crops Perennial herbaceous crops Temperate woody crops Tropical/subtropical wood crops	Terrestrial nonfood crop

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Specific use patterns—listed according to use site group	Corresponding general use pattern	Specific use patterns—listed according to use site group	Corresponding general use pattern
2. Ornamental plants and forest trees			
Ornamental plants	Terrestrial nonfood crop	Nuts Peanuts Seeds (sesame, sunflower) Dried processed Fruits Vegetables Tobacco Beverages (tea, coffee) Herbs and spices	
Annual garden plants		Animal Feeds	
Temperate perennial nonfood garden herbs	Greenhouse nonfood crop	Cattle (beef)	
Commercial greenhouse crops	Indoor	Cattle (dairy)	
Houseplants		Goat (nondairy)	
Home and retail greenhouse and conservatory plants	Terrestrial nonfood crop	Goat (dairy)	
Public display plantings		Horse, mule, donkey	
Bulb, corm, and tuber ornamentals		Poultry (chicken, turkey, etc.)	
Subtropical/tropical garden evergreen plants (dry—e.g., agave)		Sheep (meat)	
Subtropical/tropical garden evergreen plants (moist—e.g., ferns)		Sheep (wool)	
Groundcovers		Swine	
Aquatic plants (e.g., waterlilies)	Aquatic nonfood use	Dog	
Ornamental trees, shrubs, and vines (woody)	Terrestrial nonfood crop	Cat	
Deciduous temperate broadleaf		Other pets (including birds)	
Evergreen temperate broadleaf		Fur-bearing stock	
Deciduous temperate conifer		Other meat-producing stock (e.g., rabbit)	
Evergreen temperate conifer		Fish food (commercial)	
Tropical/subtropical broadleaf		Fish food (pet)	
Tropical/subtropical conifer		Birdseed	
Tropical/subtropical miscellaneous (e.g., cycad, tree fern, bamboo)		Processed grain products for human consumption	
Lawn and turf grasses—ornamental	Terrestrial nonfood crop or domestic outdoor	Corn	
Cool season Winter grasses (bent, bluegrass, fescue, etc.)		Soybean	
Summer grasses (zoysia, bermudagrass, etc.)		Wheat	
Ornamental bunch grasses (pampasgrass, blue fescue)		Other grains (rice, barley, etc.)	
Forest trees—nonornamental—trees forests, plantings	Forestry	Cereal foods	
Deciduous temperate (broadleaf)		Flour	
Evergreen temperate (broadleaf)		Baked goods	
Deciduous and evergreen conifers		Farinaceous products	
Tropical/subtropical broadleaf		Processed animal products for human consumption	
Tropical/subtropical conifer		Cheese	
Forest tree nurseries—Temperate broadleaf trees		Egg yolks	
Temperate conifer trees		Meats, including fish and poultry	
Forest trees: dead trees/logs/stumps in the forest or in plantings		Milk	
3. General soil treatment and composting			
General soil treatments	Terrestrial nonfood crop	Processed plant products for human consumption	
Soil application with no mention of crops to be grown (potting soil, top soil).		Chocolate	
Manure		Candy	
Composts		Sugar	
Cull piles		Yeast	
Mulches		Citrus pulp	
4. Processed or manufactured products, and food or feed containers or dispensers			
Processed vegetables, fruits, and nuts	Indoor	Chewing gum	
Fruits		Cigarettes, etc.	
Leafy vegetables		Herbs and spices	
Root vegetables		Pickles	
Fruited vegetables		Glazed fruits	
		Jellies	
		Seed oils	
		Fruit syrups (e.g., cola)	
		Fruit juices	
		Fermentation beverages (wine, beer, whiskey, vinegar)	
		Processed or manufactured nonfood plant and animal products	
		Textiles, fabrics, fibers	
		Fur and hair products	
		Leather products	
		Food and feed containers, dispensers, and processing equipment	
		Airtight storages—large (empty/full)	
		Airtight storages—small (empty/full)	
		Fumigation chambers	
		Bins	

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Specific use patterns—listed according to use site group	Corresponding general use pattern	Specific use patterns—listed according to use site group	Corresponding general use pattern
- Elevators - Storage areas—(empty/full) - Processing or handling equipment and machinery (other than food processing) 5. <i>Pets and domestic animals—animals and their man-made premises</i> - Dairy cattle—lactating - Dairy cattle—nonlactating - Dairy cattle—heifers, calves - Goats—lactating - Goats—nonlactating - Goats—young (kids) - Fur- and wool-bearing animals - Goats - Sheep - Mink - Chinchilla - Rabbit - Fox - Nutria - Meat animals (mammals) - Cattle (and calves) - Goats (and kids) - Horses - Rabbits - Sheep (and lambs) - Swine - Bison - Reindeer - Poultry (meat, eggs) - Chickens - Turkeys - Ducks, geese - Guineas, pheasants, quail, etc. - Honey production - Bees - Beehives - Honeycombs - Fish and shellfish production - Hatchery buildings - Culture ponds, containers - Animals for labor, display, riding, racing, lab use, etc. - Dogs - Horses, donkeys, mules - Guinea pigs - Mice - Rats - Gerbils - Hamsters - Monkeys - Cats - Chickens, birds - Wild rodents - Alfalfa leafcutting bee (pollinator) - Alkaline bee (pollinator) - Zoo ruminants - Zoo ungulates - Zoo canines - Zoo felines - Zoo primates - Zoo reptiles - Zoo amphibians - Zoo birds - Zoo—others - Aquarium fish - Animals for pets, including their cages, bedding, nests, etc. - Dogs - Cats - Birds	- Indoor - Aquatic food use - Indoor	- Rodents - Lagomorphs - Fish - Amphibians - Reptiles - Primates - Other vertebrates 6. <i>Agricultural premises and equipment</i> - Egg handling facilities and equipment - Egg washers - Egg rooms - Hatching egg treatments - Hatching egg rooms - Hatching egg equipment - Egg packing plants and hatcheries - Milk handling facilities and equipment - Milk storage rooms - Milking stalls and parlors - Milking machines, milk tanks, etc. - Teat cups, liners, etc. - Milk processing equipment 7. <i>Household</i> - Non-food area and sites - Closets, storage areas - Basements, cellars - Bedrooms - Attics - Recreation rooms - Living rooms - Baseboards, window sills, etc. - Plumbing fixtures - Sickrooms - Food-handling and food storage areas - Kitchens - Dining rooms - Pantry and food storage shelving - Household contents and space - Air - Beds - Rugs - Book cases - Furs, fabrics, blankets - Play pens - Sickroom utensils - Filters for air vents, air conditioners, furnaces, etc. - Outdoor areas (Noncommercial homeowner use) - Home garden, orchards - Porches - Patios - Foundations - Steps - Eaves - Yards, lawn, turf - Domestic ornamental plantings 8. <i>Wood or Wood Structure Protection Treatments</i> - Buildings (for termite, powderdust beetle controls, etc.) - Unseasoned forest products - Seasoned forest products - Finished wood products - Wood pressure treatments - Plant-growing wood structures and containers - Wood containers for nonfood, nonfeed uses	- Indoor - Indoor - Domestic outdoor or terrestrial food crop - Domestic outdoor - Domestic outdoor or indoor

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Specific use patterns—listed according to use site group	Corresponding general use pattern	Specific use patterns—listed according to use site group	Corresponding general use pattern
9. <i>Aquatic sites</i> Food processing water systems Poultry and livestock drinking water Pulp and papermill systems Swimming pool water Industrial disposal systems Industrial ponds Human drinking water Cooling water towers Agricultural irrigation water, and ditches Agricultural drainage water and ditches Sewage systems and drainfields Dishwashing water Domestic and commercial nonpotable water Lakes, ponds, impounded water Streams, rivers, canals Swamps, marshes, wetlands Air conditioner water Humidifier water Air washer water systems Secondary oil recovery injection water Heat exchange water system Polluted water Bait boards (floating—for vertebrate control) Catch basins, puddles, tree holes Estuaries, tidal marshes Commercial and sport fish-bearing waters 10. <i>Noncrop, wide area, and general indoor/outdoor treatments</i> Uncultivated agricultural areas (nonfood producing) Farmyards Fuel storage areas Fence rows Rights-of-way Fallow land Soil bank land Barrier strips Uncultivated nonagricultural areas (outdoor) Airports Recreation areas, fairgrounds, race tracks, tennis courts, etc. Campgrounds Recreation area structures Highway rights-of-way Railroad rights-of-way Utility rights-of-way Sewage disposal areas Industrial sites (lumberyards, tank farms, etc.) Paved areas Private roads and walks Fencerows and hedgerows (non-agricultural) Directed Pest Control to Pests' Nests, etc., and for Traps Diseased beehives Nuisance bee nests Ant mounds, hills, dens Termite mounds Insect traps (chemical lures) Repellents and irritants to pests (when not covered by other sites) Wide area and general indoor/outdoor treatments Rural areas (unspecified)	Aquatic food crop Aquatic noncrop Aquatic food crop Aquatic noncrop Aquatic food crop Aquatic noncrop Indoor Aquatic noncrop Aquatic food crop Terrestrial noncrop Terrestrial food crop Terrestrial noncrop Terrestrial noncrop or indoor	Urban areas (unspecified) Public buildings and structures Animal burrow entrances, dens, tunnels Animal nests Animal trails Mammal feeding areas Nonagricultural areas for public health treatments Bird roosting, nesting areas Bird feeding areas 11. <i>Antifouling Treatments</i> Sites for marine exposures Boat bottoms and other submersed structures Steel Fiberglass Aluminum Wood Plastic Other substances and materials Crab pots and lobster pots Sites for fresh water exposures Cooling tower influent conduits 12. <i>Commercial and Industrial Uses</i> Transportation Facilities Bus Truck and Trailer Containerized units Railroad cars Aircraft Ships/barges Auto, taxis Recreational vehicles Shipping containers Food and feed processing plants Bakeries Bottlers Canneries Dairies, creameries, milk processing plants Feed mills, feed stores Fresh fruit packing and processing Meat processing Poultry processing Wineries, wine cellars Flour mills, machinery, warehouses, bins, elevators Egg processing Candy and confectionary plants Sugar processing, cane mills, etc. Cider mills Dry food products plants Tobacco processing Air treatment for processing and transportation of foods Beverage processing Nut processing Cereal processing Seafood processing Vegetable oil processing Spice mills Vinegar processing Farinaceous processing (noodles, etc.) Mushroom processing Dried fruit processing Pickle processing Ice plants Chocolate processing Fruit juice processing	Aquatic noncrop Indoor

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Specific use patterns—listed according to use site group	Corresponding general use pattern	Specific use patterns—listed according to use site group	Corresponding general use pattern
Eating establishments (all) Food handling areas Food serving areas Eating establishment nonfood areas Air treatment for eating establishments Food storage equipment (coolers, refrigerators, etc.) Eating and serving utensils (spoons, etc.) Food marketing, storage, and distribution Food dispensing and vending equipment Food stores, markets, stands Meat and fish markets Food catering facilities Food marketing, storage, and distribution equipment and utensils Hospitals and related institutions and facilities Critical premises (e.g., burn wards, etc.) Hospital patient premises (wards, emergency rooms, etc.) Noncritical premises (labs, lounges, lobbies, storage) Critical items (hypodermic needles, dental instruments, catheters, etc.) Noncritical items (bedpans, carpets, furniture, etc.) Air treatment (also to ambulances) Janitorial equipment Barber and beauty shop instruments and equipment Morgues, mortuaries, and funeral homes Premises (embalming rooms, etc.) Equipment (tables, etc.) Instruments Burial vaults, mausoleums Air treatment Commercial, institutional, and industrial Maintenance, Buildings, and Structures Locker rooms, equipment Gyms, bowling alleys, and equipment Telephones and booths Shower rooms, mats, and equipment Cotton mill premises and equipment Auditoriums and stadiums Factories Rendering plants Loading areas, ramps School buildings and equipment Office buildings Laundries Fuels from Crops (alcohol, methane) Fossil fuels (e.g., oils, jet fuel) Seed oils Paper Pesticide materials preservation and protection Rodenticide baits (protection against insects) Dried plant parts (pyrethrum, red squill, rotenone, sabadilla) Paints Preservatives and protectants Grains Hay, silage Adhesives Coatings (asphalt and lacquer) Fuels		Leather and leather products Leather processing liquors Metalworking cutting fluids Oil recovery drilling muds and packer fluids Paints (latex) Paper and paper products Plastic products Resin emulsions Rubber (natural) products Specialty products (polishes, cleansers, dyes, etc.) Textiles, textile fibers, and cordage Wet-end additives, etc. (pulp sizing, alum, casein, printing pastes) Disposable diapers Wool, hair, mohair, furs, felt, feathers, etc. Electrical supplies, cables, and equipment 13. <i>Domestic and Human Use</i> Human Body and Hair Fiber product protection (Moth, mildew-proofing) Clothing Upholstery Ornamental fabrics (draperies, tapestries) Ropes Sail cloth Human articles and materials Bedding, blankets, mattresses (Treatments to) hair, body, clothing (while being worn) Clothing Face gear (goggles, face masks, etc.) Headgear (safety helmets, headphones, etc.) Wigs Contact lenses Dentures, toothbrushes, mouthpieces to musical instruments, etc. Brick, asbestos, etc. Wood surfaces Leather surfaces Fabric surfaces Paper/paperboard surfaces Specialty uses Museum collectors (preserved animal and plant specimens) Military uses—not specified Quarantine uses—not specified DHHS/FDA uses—not specified Filters (air conditioning, air, and furnace) Biological specimens Underground cables Cuspidors, spittoons Vomitus Human wastes Air sanitizers Diapers Laundry equipment (carts, chutes, tables, etc.) Dust control—products and equipment (mops, etc.) Dry cleaning Carpets Upholstery Bathrooms, toilets bowls, and related sites	Indoor

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Specific use patterns—listed according to use site group	Corresponding general use pattern
Bathroom premises Toilet bowls and urinals Toilet tanks Portable toilets, chemical toilets Vehicular holding tanks Bathroom air treatment Diaper pails Refuse and solid waste Refuse and solid waste containers Refuse and solid waste transportation and handling equipment Garbage dumps Household trash compactors Garbage disposal units, food disposals Incinerators 14. <i>Miscellaneous Indoor Uses</i> Surface Treatments Hard nonporous surfaces (painted, tile, plastic, metal, glass, etc.) Hard porous surfaces (cement, plaster) Camping equipment and gear Grooming instruments (brushes, clippers, razors, etc.) Laundry, cleaning, and dry cleaning	Indoor

PART 160—GOOD LABORATORY PRACTICE STANDARDS

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Subpart J—Records and Reports

- 160.185 Reporting of study results.
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- 160.195 Retention of records.

AUTHORITY: 7 U.S.C. 136a, 136c, 136d, 136f, 136j, 136t, 136v, 136w; 21 U.S.C. 346a, 348, 371, Reorganization Plan No. 3 of 1970.

SOURCE: 54 FR 34067, Aug. 17, 1989, unless otherwise noted.

Subpart A—General Provisions

§ 160.1 Scope.

(a) This part prescribes good laboratory practices for conducting studies that support or are intended to support applications for research or marketing permits for pesticide products regulated by the EPA. This part is intended to assure the quality and integrity of data submitted pursuant to sections 3, 4, 5, 8, 18 and 24(c) of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA), as amended (7 U.S.C. 136a, 136c, 136f, 136q and 136v(c)) and sections 408 and 409 of the Federal Food, Drug and Cosmetic Act (FFDCA) (21 U.S.C. 346a, 348).

(b) This part applies to any study described by paragraph (a) of this section which any person conducts, initiates, or supports on or after October 16, 1989.

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§ 160.3 Definitions.

As used in this part the following terms shall have the meanings specified:

Application for research or marketing permit includes:

(1) An application for registration, amended registration, or reregistration of a pesticide product under FIFRA sections 3, 4 or 24(c).

(2) An application for an experimental use permit under FIFRA section 5.

(3) An application for an exemption under FIFRA section 18.

(4) A petition or other request for establishment or modification of a tolerance, for an exemption for the need for a tolerance, or for other clearance under FFDCA section 408.

(5) A petition or other request for establishment or modification of a food additive regulation or other clearance by EPA under FFDCA section 409.

(6) A submission of data in response to a notice issued by EPA under FIFRA section 3(c)(2)(B).

(7) Any other application, petition, or submission sent to EPA intended to persuade EPA to grant, modify, or leave unmodified a registration or other approval required as a condition of sale or distribution of a pesticide.

Batch means a specific quantity or lot of a test, control, or reference substance that has been characterized according to § 160.105(a).

Carrier means any material, including but not limited to feed, water, soil, nutrient media, with which the test substance is combined for administration to a test system.

Control substance means any chemical substance or mixture, or any other material other than a test substance, feed, or water, that is administered to the test system in the course of a study for the purpose of establishing a basis for comparison with the test substance for known chemical or biological measurements.

EPA means the U.S. Environmental Protection Agency.

Experimental start date means the first date the test substance is applied to the test system.

Experimental termination date means the last date on which data are collected directly from the study.

FDA means the U.S. Food and Drug Administration.

FFDCA means the Federal Food, Drug and Cosmetic Act, as amended (21 U.S.C. 321 *et seq.*).

FIFRA means the Federal Insecticide, Fungicide and Rodenticide Act as amended (7 U.S.C. 136 *et seq.*).

Person includes an individual, partnership, corporation, association, scientific or academic establishment, government agency, or organizational unit thereof, and any other legal entity.

Quality assurance unit means any person or organizational element, except the study director, designated by testing facility management to perform the duties relating to quality assurance of the studies.

Raw data means any laboratory worksheets, records, memoranda, notes, or exact copies thereof, that are the result of original observations and activities of a study and are necessary for the reconstruction and evaluation of the report of that study. In the event that exact transcripts of raw data have been prepared (e.g., tapes which have been transcribed verbatim, dated, and verified accurate by signature), the exact copy or exact transcript may be substituted for the original source as raw data. "Raw data" may include photographs, microfilm or microfiche copies, computer printouts, magnetic media, including dictated observations, and recorded data from automated instruments.

Reference substance means any chemical substance or mixture, or analytical standard, or material other than a test substance, feed, or water, that is administered to or used in analyzing the test system in the course of a study for the purposes of establishing a basis for comparison with the test substance for known chemical or biological measurements.

Specimens means any material derived from a test system for examination or analysis.

Sponsor means:

(1) A person who initiates and supports, by provision of financial or other resources, a study;

(2) A person who submits a study to the EPA in support of an application for a research or marketing permit; or

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(3) A testing facility, if it both initiates and actually conducts the study.

Study means any experiment at one or more test sites, in which a test substance is studied in a test system under laboratory conditions or in the environment to determine or help predict its effects, metabolism, product performance (efficacy studies only as required by 40 CFR 158.640), environmental and chemical fate, persistence and residue, or other characteristics in humans, other living organisms, or media. The term “study” does not include basic exploratory studies carried out to determine whether a test substance or a test method has any potential utility.

Study completion date means the date the final report is signed by the study director.

Study director means the individual responsible for the overall conduct of a study.

Study initiation date means the date the protocol is signed by the study director.

Test substance means a substance or mixture administered or added to a test system in a study, which substance or mixture:

(1) Is the subject of an application for a research or marketing permit supported by the study, or is the contemplated subject of such an application; or

(2) Is an ingredient, impurity, degradation product, metabolite, or radioactive isotope of a substance described by paragraph (1) of this definition, or some other substance related to a substance described by that paragraph, which is used in the study to assist in characterizing the toxicity, metabolism, or other characteristics of a substance described by that paragraph.

Test system means any animal, plant, microorganism, chemical or physical matrix, including but not limited to soil or water, or subparts thereof, to which the test, control, or reference substance is administered or added for study. “Test system” also includes appropriate groups or components of the system not treated with the test, control, or reference substance.

Testing facility means a person who actually conducts a study, i.e., actually uses the test substance in a test

system. “Testing facility” encompasses only those operational units that are being or have been used to conduct studies.

Vehicle means any agent which facilitates the mixture, dispersion, or solubilization of a test substance with a carrier.

§ 160.10 Applicability to studies performed under grants and contracts.

When a sponsor or other person utilizes the services of a consulting laboratory, contractor, or grantee to perform all or a part of a study to which this part applies, it shall notify the consulting laboratory, contractor, or grantee that the service is, or is part of, a study that must be conducted in compliance with the provisions of this part.

§ 160.12 Statement of compliance or non-compliance.

Any person who submits to EPA an application for a research or marketing permit and who, in connection with the application, submits data from a study to which this part applies shall include in the application a true and correct statement, signed by the applicant, the sponsor, and the study director, of one of the following types:

(a) A statement that the study was conducted in accordance with this part; or

(b) A statement describing in detail all differences between the practices used in the study and those required by this part; or

(c) A statement that the person was not a sponsor of the study, did not conduct the study, and does not know whether the study was conducted in accordance with this part.

§ 160.15 Inspection of a testing facility.

(a) A testing facility shall permit an authorized employee or duly designated representative of EPA or FDA, at reasonable times and in a reasonable manner, to inspect the facility and to inspect (and in the case of records also to copy) all records and specimens required to be maintained regarding studies to which this part applies. The

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records inspection and copying requirements should not apply to quality assurance unit records of findings and problems, or to actions recommended and taken, except that EPA may seek production of these records in litigation or formal adjudicatory hearings.

(b) EPA will not consider reliable for purposes of supporting an application for a research or marketing permit any data developed by a testing facility or sponsor that refuses to permit inspection in accordance with this part. The determination that a study will not be considered in support of an application for a research or marketing permit does not, however, relieve the applicant for such a permit of any obligation under any applicable statute or regulation to submit the results of the study to EPA.

§ 160.17 Effects of non-compliance.

(a) EPA may refuse to consider reliable for purposes of supporting an application for a research or marketing permit any data from a study which was not conducted in accordance with this part.

(b) Submission of a statement required by § 160.12 which is false may form the basis for cancellation, suspension, or modification of the research or marketing permit, or denial or disapproval of an application for such a permit, under FIFRA section 3, 5, 6, 18, or 24 or FFDCA section 406 or 409, or for criminal prosecution under 18 U.S.C. 2 or 1001 or FIFRA section 14, or for imposition of civil penalties under FIFRA section 14.

Subpart B—Organization and Personnel

§ 160.29 Personnel.

(a) Each individual engaged in the conduct of or responsible for the supervision of a study shall have education, training, and experience, or combination thereof, to enable that individual to perform the assigned functions.

(b) Each testing facility shall maintain a current summary of training and experience and job description for each individual engaged in or supervising the conduct of a study.

(c) There shall be a sufficient number of personnel for the timely and proper

conduct of the study according to the protocol.

(d) Personnel shall take necessary personal sanitation and health precautions designed to avoid contamination of test, control, and reference substances and test systems.

(e) Personnel engaged in a study shall wear clothing appropriate for the duties they perform. Such clothing shall be changed as often as necessary to prevent microbiological, radiological, or chemical contamination of test systems and test, control, and reference substances.

(f) Any individual found at any time to have an illness that may adversely affect the quality and integrity of the study shall be excluded from direct contact with test systems, and test, control, and reference substances, and any other operation or function that may adversely affect the study until the condition is corrected. All personnel shall be instructed to report to their immediate supervisors any health or medical conditions that may reasonably be considered to have an adverse effect on a study.

§ 160.31 Testing facility management.

For each study, testing facility management shall:

(a) Designate a study director as described in § 160.33 before the study is initiated.

(b) Replace the study director promptly if it becomes necessary to do so during the conduct of a study.

(c) Assure that there is a quality assurance unit as described in § 160.35.

(d) Assure that test, control, and reference substances or mixtures have been appropriately tested for identity, strength, purity, stability, and uniformity, as applicable.

(e) Assure that personnel, resources, facilities, equipment, materials and methodologies are available as scheduled.

(f) Assure that personnel clearly understand the functions they are to perform.

(g) Assure that any deviations from these regulations reported by the quality assurance unit are communicated to the study director and corrective actions are taken and documented.

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§ 160.33 Study director.

For each study, a scientist or other professional of appropriate education, training, and experience, or combination thereof, shall be identified as the study director. The study director has overall responsibility for the technical conduct of the study, as well as for the interpretation, analysis, documentation, and reporting of results, and represents the single point of study control. The study director shall assure that:

(a) The protocol, including any change, is approved as provided by § 160.120 and is followed.

(b) All experimental data, including observations of unanticipated responses of the test system are accurately recorded and verified.

(c) Unforeseen circumstances that may affect the quality and integrity of the study are noted when they occur, and corrective action is taken and documented.

(d) Test systems are as specified in the protocol.

(e) All applicable good laboratory practice regulations are followed.

(f) All raw data, documentation, protocols, specimens, and final reports are transferred to the archives during or at the close of the study.

§ 160.35 Quality assurance unit.

(a) A testing facility shall have a quality assurance unit which shall be responsible for monitoring each study to assure management that the facilities, equipment, personnel, methods, practices, records, and controls are in conformance with the regulations in this part. For any given study, the quality assurance unit shall be entirely separate from and independent of the personnel engaged in the direction and conduct of that study. The quality assurance unit shall conduct inspections and maintain records appropriate to the study.

(b) The quality assurance unit shall:

(1) Maintain a copy of a master schedule sheet of all studies conducted at the testing facility indexed by test substance, and containing the test system, nature of study, date study was initiated, current status of each study,

identity of the sponsor, and name of the study director.

(2) Maintain copies of all protocols pertaining to all studies for which the unit is responsible.

(3) Inspect each study at intervals adequate to ensure the integrity of the study and maintain written and properly signed records of each periodic inspection showing the date of the inspection, the study inspected, the phase or segment of the study inspected, the person performing the inspection, findings and problems, action recommended and taken to resolve existing problems, and any scheduled date for reinspection. Any problems which are likely to affect study integrity found during the course of an inspection shall be brought to the attention of the study director and management immediately.

(4) Periodically submit to management and the study director written status reports on each study, noting any problems and the corrective actions taken.

(5) Determine that no deviations from approved protocols or standard operating procedures were made without proper authorization and documentation.

(6) Review the final study report to assure that such report accurately describes the methods and standard operating procedures, and that the reported results accurately reflect the raw data of the study.

(7) Prepare and sign a statement to be included with the final study report which shall specify the dates inspections were made and findings reported to management and to the study director.

(c) The responsibilities and procedures applicable to the quality assurance unit, the records maintained by the quality assurance unit, and the method of indexing such records shall be in writing and shall be maintained. These items including inspection dates, the study inspected, the phase or segment of the study inspected, and the name of the individual performing the inspection shall be made available for inspection to authorized employees or duly designated representatives of EPA or FDA.

(d) An authorized employee or a duly designated representative of EPA or FDA shall have access to the written procedures established for the inspection and may request testing facility management to certify that inspections are being implemented, performed, documented, and followed up in accordance with this paragraph.

Subpart C—Facilities

§ 160.41 General.

Each testing facility shall be of suitable size and construction to facilitate the proper conduct of studies. Testing facilities which are not located within an indoor controlled environment shall be of suitable location to facilitate the proper conduct of studies. Testing facilities shall be designed so that there is a degree of separation that will prevent any function or activity from having an adverse effect on the study.

§ 160.43 Test system care facilities.

(a) A testing facility shall have a sufficient number of animal rooms or other test system areas, as needed, to ensure: proper separation of species or test systems, isolation of individual projects, quarantine or isolation of animals or other test systems, and routine or specialized housing of animals or other test systems.

(1) In tests with plants or aquatic animals, proper separation of species can be accomplished within a room or area by housing them separately in different chambers or aquaria. Separation of species is unnecessary where the protocol specifies the simultaneous exposure of two or more species in the same chamber, aquarium, or housing unit.

(2) Aquatic toxicity tests for individual projects shall be isolated to the extent necessary to prevent cross-contamination of different chemicals used in different tests.

(b) A testing facility shall have a number of animal rooms or other test system areas separate from those described in paragraph (a) of this section to ensure isolation of studies being done with test systems or test, control, and reference substances known to be biohazardous, including volatile sub-

stances, aerosols, radioactive materials, and infectious agents.

(c) Separate areas shall be provided, as appropriate, for the diagnosis, treatment, and control of laboratory test system diseases. These areas shall provide effective isolation for the housing of test systems either known or suspected of being diseased, or of being carriers of disease, from other test systems.

(d) Facilities shall have proper provisions for collection and disposal of contaminated water, soil, or other spent materials. When animals are housed, facilities shall exist for the collection and disposal of all animal waste and refuse or for safe sanitary storage of waste before removal from the testing facility. Disposal facilities shall be so provided and operated as to minimize vermin infestation, odors, disease hazards, and environmental contamination.

(e) Facilities shall have provisions to regulate environmental conditions (e.g., temperature, humidity, photoperiod) as specified in the protocol.

(f) For marine test organisms, an adequate supply of clean sea water or artificial sea water (prepared from deionized or distilled water and sea salt mixture) shall be available. The ranges of composition shall be as specified in the protocol.

(g) For freshwater organisms, an adequate supply of clean water of the appropriate hardness, pH, and temperature, and which is free of contaminants capable of interfering with the study, shall be available as specified in the protocol.

(h) For plants, an adequate supply of soil of the appropriate composition, as specified in the protocol, shall be available as needed.

§ 160.45 Test system supply facilities.

(a) There shall be storage areas, as needed, for feed, nutrients, soils, bedding, supplies, and equipment. Storage areas for feed nutrients, soils, and bedding shall be separated from areas where the test systems are located and shall be protected against infestation or contamination. Perishable supplies shall be preserved by appropriate means.

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(b) When appropriate, plant supply facilities shall be provided. As specified in the protocol, these include:

(1) Facilities for holding, culturing, and maintaining algae and aquatic plants.

(2) Facilities for plant growth, including, but not limited to greenhouses, growth chambers, light banks, and fields.

(c) When appropriate, facilities for aquatic animal tests shall be provided. These include, but are not limited to, aquaria, holding tanks, ponds, and ancillary equipment, as specified in the protocol.

§ 160.47 Facilities for handling test, control, and reference substances.

(a) As necessary to prevent contamination or mixups, there shall be separate areas for:

(1) Receipt and storage of the test, control, and reference substances.

(2) Mixing of the test, control, and reference substances with a carrier, e.g., feed.

(3) Storage of the test, control, and reference substance mixtures.

(b) Storage areas for test, control, and/or reference substance and for test, control, and/or reference mixtures shall be separate from areas housing the test systems and shall be adequate to preserve the identity, strength, purity, and stability of the substances and mixtures.

§ 160.49 Laboratory operation areas.

Separate laboratory space and other space shall be provided, as needed, for the performance of the routine and specialized procedures required by studies.

§ 160.51 Specimen and data storage facilities.

Space shall be provided for archives, limited to access by authorized personnel only, for the storage and retrieval of all raw data and specimens from completed studies.

Subpart D—Equipment

§ 160.61 Equipment design.

Equipment used in the generation, measurement, or assessment of data

and equipment used for facility environmental control shall be of appropriate design and adequate capacity to function according to the protocol and shall be suitably located for operation, inspection, cleaning, and maintenance.

§ 160.63 Maintenance and calibration of equipment.

(a) Equipment shall be adequately inspected, cleaned, and maintained. Equipment used for the generation, measurement, or assessment of data shall be adequately tested, calibrated, and/or standardized.

(b) The written standard operating procedures required under § 160.81(b)(11) shall set forth in sufficient detail the methods, materials, and schedules to be used in the routine inspection, cleaning, maintenance, testing, calibration, and/or standardization of equipment, and shall specify, when appropriate, remedial action to be taken in the event of failure or malfunction of equipment. The written standard operating procedures shall designate the person responsible for the performance of each operation.

(c) Written records shall be maintained of all inspection, maintenance, testing, calibrating, and/or standardizing operations. These records, containing the dates of the operations, shall describe whether the maintenance operations were routine and followed the written standard operating procedures. Written records shall be kept of non-routine repairs performed on equipment as a result of failure and malfunction. Such records shall document the nature of the defect, how and when the defect was discovered, and any remedial action taken in response to the defect.

Subpart E—Testing Facilities Operation

§ 160.81 Standard operating procedures.

(a) A testing facility shall have standard operating procedures in writing setting forth study methods that management is satisfied are adequate to insure the quality and integrity of the data generated in the course of a study. All deviations in a study from

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standard operating procedures shall be authorized by the study director and shall be documented in the raw data. Significant changes in established standard operating procedures shall be properly authorized in writing by management.

(b) Standard operating procedures shall be established for, but not limited to, the following:

- (1) Test system area preparation.
- (2) Test system care.
- (3) Receipt, identification, storage, handling, mixing, and method of sampling of the test, control, and reference substances.
- (4) Test system observations.
- (5) Laboratory or other tests.
- (6) Handling of test systems found moribund or dead during study.
- (7) Necropsy of test systems or post-mortem examination of test systems.
- (8) Collection and identification of specimens.
- (9) Histopathology.
- (10) Data handling, storage and retrieval.
- (11) Maintenance and calibration of equipment.
- (12) Transfer, proper placement, and identification of test systems.

(c) Each laboratory or other study area shall have immediately available manuals and standard operating procedures relative to the laboratory or field procedures being performed. Published literature may be used as a supplement to standard operating procedures.

(d) A historical file of standard operating procedures, and all revisions thereof, including the dates of such revisions, shall be maintained.

§ 160.83 Reagents and solutions.

All reagents and solutions in the laboratory areas shall be labeled to indicate identity, titer or concentration, storage requirements, and expiration date. Deteriorated or outdated reagents and solutions shall not be used.

§ 160.90 Animal and other test system care.

(a) There shall be standard operating procedures for the housing, feeding, handling, and care of animals and other test systems.

(b) All newly received test systems from outside sources shall be isolated and their health status or appropriateness for the study shall be evaluated. This evaluation shall be in accordance with acceptable veterinary medical practice or scientific methods.

(c) At the initiation of a study, test systems shall be free of any disease or condition that might interfere with the purpose or conduct of the study. If during the course of the study, the test systems contract such a disease or condition, the diseased test systems should be isolated, if necessary. These test systems may be treated for disease or signs of disease provided that such treatment does not interfere with the study. The diagnosis, authorization of treatment, description of treatment, and each date of treatment shall be documented and shall be retained.

(d) Warm-blooded animals, adult reptiles, and adult terrestrial amphibians used in laboratory procedures that require manipulations and observations over an extended period of time or in studies that require these test systems to be removed from and returned to their test system-housing units for any reason (e.g., cage cleaning, treatment, etc.), shall receive appropriate identification (e.g., tattoo, color code, ear tag, ear punch, etc.). All information needed to specifically identify each test system within the test system-housing unit shall appear on the outside of that unit. Suckling mammals and juvenile birds are excluded from the requirement of individual identification unless otherwise specified in the protocol.

(e) Except as specified in paragraph (e)(1) of this section, test systems of different species shall be housed in separate rooms when necessary. Test systems of the same species, but used in different studies, should not ordinarily be housed in the same room when inadvertent exposure to test, control, or reference substances or test system mixup could affect the outcome of either study. If such mixed housing is necessary, adequate differentiation by space and identification shall be made.

(1) Plants, invertebrate animals, aquatic vertebrate animals, and organisms that may be used in multispecies tests need not be housed in separate

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rooms, provided that they are adequately segregated to avoid mixup and cross contamination.

(2) [Reserved]

(f) Cages, racks, pens, enclosures, aquaria, holding tanks, ponds, growth chambers, and other holding, rearing and breeding areas, and accessory equipment, shall be cleaned and sanitized at appropriate intervals.

(g) Feed, soil, and water used for the test systems shall be analyzed periodically to ensure that contaminants known to be capable of interfering with the study and reasonably expected to be present in such feed, soil, or water are not present at levels above those specified in the protocol. Documentation of such analyses shall be maintained as raw data.

(h) Bedding used in animal cages or pens shall not interfere with the purpose or conduct of the study and shall be changed as often as necessary to keep the animals dry and clean.

(i) If any pest control materials are used, the use shall be documented. Cleaning and pest control materials that interfere with the study shall not be used.

(j) All plant and animal test systems shall be acclimatized to the environmental conditions of the test, prior to their use in a study.

Subpart F—Test, Control, and Reference Substances

§ 160.105 Test, control, and reference substance characterization.

(a) The identity, strength, purity, and composition, or other characteristics which will appropriately define the test, control, or reference substance shall be determined for each batch and shall be documented before its use in a study. Methods of synthesis, fabrication, or derivation of the test, control, or reference substance shall be documented by the sponsor or the testing facility, and the location of such documentation shall be specified.

(b) When relevant to the conduct of the study the solubility of each test, control, or reference substance shall be determined by the testing facility or the sponsor before the experimental start date. The stability of the test, control, or reference substance shall be

determined before the experimental start date or concomitantly according to written standard operating procedures, which provide for periodic analysis of each batch.

(c) Each storage container for a test, control, or reference substance shall be labeled by name, chemical abstracts service number (CAS) or code number, batch number, expiration date, if any, and, where appropriate, storage conditions necessary to maintain the identity, strength, purity, and composition of the test, control, or reference substance. Storage containers shall be assigned to a particular test substance for the duration of the study.

(d) For studies of more than 4 weeks experimental duration, reserve samples from each batch of test, control, and reference substances shall be retained for the period of time provided by § 160.195.

(e) The stability of test, control, and reference substances under storage conditions at the test site shall be known for all studies.

§ 160.107 Test, control, and reference substance handling.

Procedures shall be established for a system for the handling of the test, control, and reference substances to ensure that:

(a) There is proper storage.

(b) Distribution is made in a manner designed to preclude the possibility of contamination, deterioration, or damage.

(c) Proper identification is maintained throughout the distribution process.

(d) The receipt and distribution of each batch is documented. Such documentation shall include the date and quantity of each batch distributed or returned.

§ 160.113 Mixtures of substances with carriers.

(a) For each test, control, or reference substance that is mixed with a carrier, tests by appropriate analytical methods shall be conducted:

(1) To determine the uniformity of the mixture and to determine, periodically, the concentration of the test,

control, or reference substance in the mixture.

(2) When relevant to the conduct of the study, to determine the solubility of each test, control, or reference substance in the mixture by the testing facility or the sponsor before the experimental start date.

(3) To determine the stability of the test, control, or reference substance in the mixture before the experimental start date or concomitantly according to written standard operating procedures, which provide for periodic analysis of each batch.

(b) Where any of the components of the test, control, or reference substance carrier mixture has an expiration date, that date shall be clearly shown on the container. If more than one component has an expiration date, the earliest date shall be shown.

(c) If a vehicle is used to facilitate the mixing of a test substance with a carrier, assurance shall be provided that the vehicle does not interfere with the integrity of the test.

Subpart G—Protocol for and Conduct of a Study

§ 160.120 Protocol.

(a) Each study shall have an approved written protocol that clearly indicates the objectives and all methods for the conduct of the study. The protocol shall contain but shall not necessarily be limited to the following information:

(1) A descriptive title and statement of the purpose of the study.

(2) Identification of the test, control, and reference substance by name, chemical abstracts service (CAS) number or code number.

(3) The name and address of the sponsor and the name and address of the testing facility at which the study is being conducted.

(4) The proposed experimental start and termination dates.

(5) Justification for selection of the test system.

(6) Where applicable, the number, body weight range, sex, source of supply, species, strain, substrain, and age of the test system.

(7) The procedure for identification of the test system.

(8) A description of the experimental design, including methods for the control of bias.

(9) Where applicable, a description and/or identification of the diet used in the study as well as solvents, emulsifiers and/or other materials used to solubilize or suspend the test, control, or reference substances before mixing with the carrier. The description shall include specifications for acceptable levels of contaminants that are reasonably expected to be present in the dietary materials and are known to be capable of interfering with the purpose or conduct of the study if present at levels greater than established by the specifications.

(10) The route of administration and the reason for its choice.

(11) Each dosage level, expressed in milligrams per kilogram of body or test system weight or other appropriate units, of the test, control, or reference substance to be administered and the method and frequency of administration.

(12) The type and frequency of tests, analyses, and measurements to be made.

(13) The records to be maintained.

(14) The date of approval of the protocol by the sponsor and the dated signature of the study director.

(15) A statement of the proposed statistical method to be used.

(b) All changes in or revisions of an approved protocol and the reasons therefore shall be documented, signed by the study director, dated, and maintained with the protocol.

§ 160.130 Conduct of a study.

(a) The study shall be conducted in accordance with the protocol.

(b) The test systems shall be monitored in conformity with the protocol.

(c) Specimens shall be identified by test system, study, nature, and date of collection. This information shall be located on the specimen container or shall accompany the specimen in a manner that precludes error in the recording and storage of data.

(d) In animal studies where histopathology is required, records of gross findings for a specimen from postmortem observations shall be available to

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a pathologist when examining that specimen histopathologically.

(e) All data generated during the conduct of a study, except those that are generated by automated data collection systems, shall be recorded directly, promptly, and legibly in ink. All data entries shall be dated on the day of entry and signed or initialed by the person entering the data. Any change in entries shall be made so as not to obscure the original entry, shall indicate the reason for such change, and shall be dated and signed or identified at the time of the change. In automated data collection systems, the individual responsible for direct data input shall be identified at the time of data input. Any change in automated data entries shall be made so as not to obscure the original entry, shall indicate the reason for change, shall be dated, and the responsible individual shall be identified.

§ 160.135 Physical and chemical characterization studies.

(a) All provisions of the GLP standards shall apply to physical and chemical characterization studies designed to determine stability, solubility, octanol water partition coefficient, volatility, and persistence (such as biodegradation, photodegradation, and chemical degradation studies) of test, control, or reference substances.

(b) The following GLP standards shall not apply to studies, other than those designated in paragraph (a) of this section, designed to determine physical and chemical characteristics of a test, control, or reference substance:

§ 160.31 (c), (d), and (g)

§ 160.35 (b) and (c)

§ 160.43

§ 160.45

§ 160.47

§ 160.49

§ 160.81(b) (1), (2), (6) through (9), and (12)

§ 160.90

§ 160.105 (a) through (d)

§ 160.113

§ 160.120(a) (5) through (12), and (15)

§ 160.185(a) (5) through (8), (10), (12), and (14)

§ 160.195 (c) and (d)

Subparts H—I [Reserved]

Subpart J—Records and Reports

§ 160.185 Reporting of study results.

(a) A final report shall be prepared for each study and shall include, but not necessarily be limited to, the following:

(1) Name and address of the facility performing the study and the dates on which the study was initiated and was completed, terminated, or discontinued.

(2) Objectives and procedures stated in the approved protocol, including any changes in the original protocol.

(3) Statistical methods employed for analyzing the data.

(4) The test, control, and reference substances identified by name, chemical abstracts service (CAS) number or code number, strength, purity, and composition, or other appropriate characteristics.

(5) Stability and, when relevant to the conduct of the study the solubility of the test, control, and reference substances under the conditions of administration.

(6) A description of the methods used.

(7) A description of the test system used. Where applicable, the final report shall include the number of animals used, sex, body weight range, source of supply, species, strain and substrain, age, and procedure used for identification.

(8) A description of the dosage, dosage regimen, route of administration, and duration.

(9) A description of all circumstances that may have affected the quality or integrity of the data.

(10) The name of the study director, the names of other scientists or professionals and the names of all supervisory personnel, involved in the study.

(11) A description of the transformations, calculations, or operations performed on the data, a summary and analysis of the data, and a statement of the conclusions drawn from the analysis.

(12) The signed and dated reports of each of the individual scientists or other professionals involved in the study, including each person who, at the request or direction of the testing

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facility or sponsor, conducted an analysis or evaluation of data or specimens from the study after data generation was completed.

(13) The locations where all specimens, raw data, and the final report are to be stored.

(14) The statement prepared and signed by the quality assurance unit as described in § 160.35(b)(7).

(b) The final report shall be signed and dated by the study director.

(c) Corrections or additions to a final report shall be in the form of an amendment by the study director. The amendment shall clearly identify that part of the final report that is being added to or corrected and the reasons for the correction or addition, and shall be signed and dated by the person responsible. Modification of a final report to comply with the submission requirements of EPA does not constitute a correction, addition, or amendment to a final report.

(d) A copy of the final report and of any amendment to it shall be maintained by the sponsor and the test facility.

§ 160.190 Storage and retrieval of records and data.

(a) All raw data, documentation, records, protocols, specimens, and final reports generated as a result of a study shall be retained. Specimens obtained from mutagenicity tests, specimens of soil, water, and plants, and wet specimens of blood, urine, feces, and biological fluids, do not need to be retained after quality assurance verification. Correspondence and other documents relating to interpretation and evaluation of data, other than those documents contained in the final report, also shall be retained.

(b) There shall be archives for orderly storage and expedient retrieval of all raw data, documentation, protocols, specimens, and interim and final reports. Conditions of storage shall minimize deterioration of the documents or specimens in accordance with the requirements for the time period of their retention and the nature of the documents of specimens. A testing facility may contract with commercial archives to provide a repository for all material to be retained. Raw data and

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specimens may be retained elsewhere provided that the archives have specific reference to those other locations.

(c) An individual shall be identified as responsible for the archives.

(d) Only authorized personnel shall enter the archives.

(e) Material retained or referred to in the archives shall be indexed to permit expedient retrieval.

§ 160.195 Retention of records.

(a) Record retention requirements set forth in this section do not supersede the record retention requirements of any other regulations in this subchapter.

(b) Except as provided in paragraph (c) of this section, documentation records, raw data, and specimens pertaining to a study and required to be retained by this part shall be retained in the archive(s) for whichever of the following periods is longest:

(1) In the case of any study used to support an application for a research or marketing permit approved by EPA, the period during which the sponsor holds any research or marketing permit to which the study is pertinent.

(2) A period of at least 5 years following the date on which the results of the study are submitted to the EPA in support of an application for a research or marketing permit.

(3) In other situations (e.g., where the study does not result in the submission of the study in support of an application for a research or marketing permit), a period of at least 2 years following the date on which the study is completed, terminated, or discontinued.

(c) Wet specimens, samples of test, control, or reference substances, and specially prepared material which are relatively fragile and differ markedly in stability and quality during storage, shall be retained only as long as the quality of the preparation affords evaluation. Specimens obtained from mutagenicity tests, specimens of soil, water, and plants, and wet specimens of blood, urine, feces, and biological fluids, do not need to be retained after quality assurance verification. In no case shall retention be required for longer periods than those set forth in paragraph (b) of this section.

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(d) The master schedule sheet, copies of protocols, and records of quality assurance inspections, as required by §160.35(c) shall be maintained by the quality assurance unit as an easily accessible system of records for the period of time specified in paragraph (b) of this section.

(e) Summaries of training and experience and job descriptions required to be maintained by §160.29(b) may be retained along with all other testing facility employment records for the length of time specified in paragraph (b) of this section.

(f) Records and reports of the maintenance and calibration and inspection of equipment, as required by §160.63 (b) and (c), shall be retained for the length of time specified in paragraph (b) of this section.

(g) If a facility conducting testing or an archive contracting facility goes out of business, all raw data, documentation, and other material specified in this section shall be transferred to the archives of the sponsor of the study. The EPA shall be notified in writing of such a transfer.

(h) Specimens, samples, or other non-documentary materials need not be retained after EPA has notified in writing the sponsor or testing facility holding the materials that retention is no longer required by EPA. Such notification normally will be furnished upon request after EPA or FDA has completed an audit of the particular study to which the materials relate and EPA has concluded that the study was conducted in accordance with this part.

(i) Records required by this part may be retained either as original records or as true copies such as photocopies, microfilm, microfiche, or other accurate reproductions of the original records.

PART 162—STATE REGISTRATION OF PESTICIDE PRODUCTS

Subparts A—C [Reserved]

Subpart D—Regulations Pertaining to State Registration of Pesticides To Meet Special Local Needs

Sec.

162.150 General.

162.151 Definitions.

162.152 State registration authority.

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162.154 Disapproval of State registrations.

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162.156 General requirements.

Subpart E—[Reserved]

Subparts A—C [Reserved]

Subpart D—Regulations Pertaining to State Registration of Pesticides To Meet Special Local Needs

AUTHORITY: 7 U.S.C. 136v, 136w.

SOURCE: 46 FR 2014, Jan. 7, 1981, unless otherwise noted.

§ 162.150 General.

(a) *Scope.* This subpart sets forth regulations governing the registration by any State of pesticide products, or uses thereof, formulated for distribution and use within the State to meet special local needs under sec. 24(c) of the Act. It also sets forth regulations governing the exercise by the Administrator of the power to disapprove specific State registrations and to suspend a State's registration authority under sec. 24(c). Unless otherwise indicated, any reference herein to registrations issued by a State includes amendments of registrations issued by States.

(b) *Applicability.* This subpart applies only to State registration authority granted by sec. 24(c) of FIFRA. It does not apply to any authority granted, or procedures established, by State law with respect to registration, licensing, or approval required for use within the State of federally registered pesticide products.

[46 FR 2014, Jan. 7, 1981, as amended at 53 FR 15999, May 4, 1988; 60 FR 32097, June 19, 1995]

§ 162.151 Definitions.

Unless otherwise indicated, terms used in this subpart have the meanings set forth in FIFRA and in subpart A of this part. In addition, as used in this subpart, the following terms have the meanings set forth below:

(a) *Federally registered* means currently registered under sec. 3 of the Act, after having been initially registered under the Federal Insecticide,

Fungicide, and Rodenticide Act of 1947 (Pub. L. 86–139; 73 Stat. 286; June 25, 1947) by the Secretary of Agriculture or under FIFRA by the Administrator.

(b) *Manufacturing-use product* means any pesticide product other than a product to be labeled with directions for end use. This term includes any product intended for use as a pesticide after re-formulation or repackaging.

(c) *New product* means a pesticide product which is not a federally registered product.

(d) *Pest problem* means (1) a pest infestation and its consequences, or (2) any condition for which the use of plant regulators, defoliants, or desiccants would be appropriate.

(e) *Product or pesticide product* means a pesticide offered for distribution and use, and includes any labeled container and any supplemental labeling.

(f) *Similar composition* refers to a pesticide product which contains only the same active ingredient(s), or combination of active ingredients, and which is in the same category of toxicity, as a federally registered pesticide product.

(g) *Similar product* means a pesticide product which, when compared to a federally registered product, has a similar composition and a similar use pattern.

(h) *Similar use pattern* refers to a use of a pesticide product which, when compared to a federally registered use of a product with a similar composition, does not require a change in precautionary labeling under § 156.10(h) of this chapter, and which is substantially the same as the federally registered use. Registrations involving changed use patterns are not included in this term.

(i) *Special local need* means an existing or imminent pest problem within a State for which the State lead agency, based upon satisfactory supporting information, has determined that an appropriate federally registered pesticide product is not sufficiently available.

(j) *State or State lead agency* as used in this subpart means the State agency designated by the State to be responsible for registering pesticides to meet special local needs under sec. 24(c) of the Act.

[46 FR 2014, Jan. 7, 1981, as amended at 53 FR 15999, May 4, 1988]

§ 162.152 State registration authority.

(a) *Statutory limitations.* In accordance with sec. 24(c) of the Act, each State is authorized to register a new end use product for any use, or an additional use of a federally registered pesticide product, if the following conditions exist:

(1) There is a special local need for the use within the State;

(2) The use is covered by necessary tolerances, exemptions or other clearances under the Federal Food, Drug and Cosmetic Act (21 U.S.C. 346 *et seq.*), if the use is a food or feed use;

(3) Registration for the same use has not previously been denied, disapproved, suspended or cancelled by the Administrator, or voluntarily cancelled by the registrant subsequent to issuance by the Administrator of a notice of intent to cancel that registration, because of health or environmental concerns about an ingredient contained in the pesticide product, unless such denial, disapproval, suspension or cancellation has been superseded by subsequent action of the Administrator; and

(4) The registration is in accord with the purposes of FIFRA.

(b) *Types of registrations*—(1) *Amendments to federal registrations.*

(i) Subject to the provisions of paragraphs (a) and (b)(1)(ii)(iv) of this section, States may register any new use of a federally registered pesticide product.

(ii) A State may register any use of a federally registered product for which registration of other uses of the product was denied, disapproved, suspended, or cancelled by the Administrator, provided that the State may register a use not considered by the Administrator in reaching such a determination only after the State consults with appropriate EPA personnel.

(iii) Except as provided in paragraph (a)(3) of this section, a State may register any use of a federally registered product for which registration of some or all uses has been voluntarily cancelled by the registrant, provided that a State may register such a use only after the State has consulted with appropriate EPA personnel.

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(iv) A State may not register an amendment to a federally registered manufacturing-use product.

(2) *New products.* (i) Subject to the provisions of paragraph (a) and subparagraphs (b)(2) (ii) and (iii) of this section, a State may issue registrations to meet special local needs for the following types of new end-use products:

(A) A product which is identical in composition to a federally registered product, but which has differences in packaging, or in the identity of the formulator.

(B) A product which contains the same active and inert ingredients as a federally registered product, but in different percentages.

(C) Subject to the requirements of paragraph (b)(2)(ii) of this section, a product containing a new combination of active, or active and inert, ingredients.

(ii) A State may register a new product only if each of the active ingredients in the new product is present because of the use of one or more federally registered products and if each of the inert ingredients in the new product is contained in a federally registered product.

(iii) A State may not register a new manufacturing-use product.

(iv) A State may register any use of a new product containing an ingredient described in paragraph (a)(3) of this section, if the new product registration is for a formulation or a use not included in the denial, disapproval, suspension, or cancellation, or if the federally registered use was voluntarily cancelled without a prior notice of intent to cancel by the Administrator. However, a formulation or use of such a new product which was not considered by the Administrator during such proceedings, or which was not the subject of a notice of intent to cancel, may be registered by a State only after the State consults with appropriate EPA personnel regarding the registration application.

(c) *Effect of State registration.* (1) A State registration issued under FIFRA sec. 24(c) which meets the conditions described in paragraphs (a) and (b) of this section, and which is not disapproved by the Administrator under

§ 162.154, shall be considered a federal registration, but shall authorize distribution and use only within that State. Accordingly, such registrations are subject to all provisions of FIFRA which apply to currently registered products, including provisions for cancellation and suspension of registrations, and reregistration of products.

(2) A State may require, as a condition of distribution or use of a pesticide product within the State, that the pesticide product be registered under State law as well as under FIFRA. Neither FIFRA sec. 24(c) nor §§ 162.150–162.156 affects a State's right under its own law to revoke, suspend, cancel, or otherwise affect such a registration issued under State law. However, the federal registration, whether issued under FIFRA sec. 3 or 24(c), is not affected by such a State action.

§ 162.153 State registration procedures.

(a) *Application for registration.* States shall require all applicants for registration to submit the following information:

(1) Name and address of the applicant and any other person whose name will appear on the labeling or in the directions for use.

(2) The name of the pesticide product, and, if the application is for an amendment to a federally registered product, the EPA registration number of that product.

(3) A copy of proposed labeling, including all claims made for the product as well as directions for its use to meet the special local need, consisting of:

(i) For a new product, a copy of the complete proposed labeling; or,

(ii) For an additional use of a federally registered product, a copy of proposed supplemental labeling and a copy of the labeling for the federally registered product.

(4) The complete formula of the product, if the application is for a new product registration.

(5) Any other information which is required to be reviewed prior to registration under this section.

(b) *Special local need determination.* In reviewing any application for registration, the State shall determine whether there is a special local need for the

registration. Situations which a State may consider as not involving a special local need may include, but are not limited to, applications for registrations to control a pest problem present on a nationwide basis, or for use of a pesticide product registered by other States on an interregional or nationwide basis.

(c) *Unreasonable adverse effects determination.* (1) Prior to issuing a registration in the following cases, the State shall determine that use of the product for which registration is sought will not cause unreasonable adverse effects on man or the environment, when used in accordance with labeling directions or widespread and commonly recognized practices:

(i) For use of a product which has a composition not similar to any federally registered product.

(ii) For use of a project involving a use pattern not similar to any federally registered use of the same product or of a product with a similar composition.

(iii) For use of a product for which other uses of the same product, or of a product with a similar composition, have had registration denied, disapproved, suspended, or cancelled by the Administrator.

(2) Determinations required by paragraph (c)(1) of this section shall be based on data and criteria consistent with those sections of part 152 of this chapter, applicable to the type of product or use under consideration. Such determinations may also involve consideration of the effect of the anticipated classification of the product or use under § 162.153(h).

(d) *Efficacy determination.* Prior to registration of any use of a product for public health purposes—that is, a use which could result in substantial harm to the public health if the product does not perform its intended function, the State shall determine that the product warrants the claims made for it in the registration application. Such determinations shall be based on criteria specified in applicable sections of part 152 of this chapter and on any additional criteria established by the State.

(e) *Labeling requirements.* (1) Prior to issuing any registration, the State

shall review the proposed labeling submitted with the application to determine compliance with this paragraph. In addition, the State shall review a copy of the final printed labeling as soon as practical after a registration is issued in order to verify compliance with this paragraph.

(2) For a new product, the State must, as a condition of the registration, require that the product be accompanied from the time it enters the stream of commerce by labeling meeting all applicable criteria of § 156.10 of this chapter. New product labeling must all contain:

(i) A statement identifying the State where registration is to be valid.

(ii) The special local need registration number assigned by the State.

(3) Except as provided in paragraph (e)(4) of this section, as a condition for a registration of an additional use of a federally registered product, the State must require that at the time of sale to users, labeling from the federally registered product be accompanied by supplemental labeling which contains:

(i) A statement identifying the State where registration is valid.

(ii) Directions for use to meet the special local need which satisfy the criteria of § 156.10(i) of this chapter.

(iii) The trade name of the product.

(iv) The name and address of the section 24(c) registrant.

(v) The EPA registration number of the federally registered product.

(vi) The special local need registration number assigned by the State.

(vii) A statement prohibiting use of the product in a manner inconsistent with all applicable directions, restrictions, and precautions found in the labeling of the federally registered product and accompanying supplemental labeling.

(4) When a federally registered product is already in the stream of commerce at the time the State issues a registration for an additional use of that product, the State must ensure that supplemental labeling for the additional use, meeting the criteria of paragraph (e)(3) of this section, is made available to purchasers and users of the product within 45 days of the date on which the State approves the final printed supplemental labeling.

(5) If a State classifies for restricted use a product or use registered by the State, which is not required to be so classified by paragraph (g) of this section, then the State may require supplemental labeling for the product or use containing additional appropriate precautions, and a statement that the product or use is for restricted use within that State.

(f) *Packaging and coloration standards.* All products registered by a State must meet all appropriate packaging standards prescribed by the Administrator under sec. 25(c)(3) of FIFRA. State registered products must also meet all appropriate standards for coloration, or discoloration, established by regulation under sec. 25(c) of FIFRA, including the standards contained in subpart H of part 153 of this chapter. Prior to issuing any registration, the State shall determine that the product will conform to these requirements.

(g) *Classification.* (1) As part of the registration of any product or use, a State shall classify the product or use as a restricted use pesticide if:

(i) The product is identical or similar in composition to a federally registered product:

(A) For which all federally registered uses have been classified as restricted by the Administrator; or

(B) For which a use similar to the State registered use has been classified as restricted by the Administrator; or

(ii) The State registered product or use meets the criteria for classification as a restricted use pesticide under the applicable provisions of § 152.170 of this chapter.

(2) [Reserved]

(h) *Notification and Submission of Data.* (1) Within ten working days from the date a State issues, amends, or revokes a registration, the State shall notify EPA, in writing, of the action. Notification of State registrations, or amendments thereto, shall include the effective date of the registration or amendment, a confidential statement of the formula of any new product, and a copy of the draft labeling reviewed and approved by the State, provided that labeling previously approved by the Administrator as part of a federal registration need not be submitted.

(2) Notification of State registrations or amendments shall be supplemented by the State sending to EPA a copy of the final printed labeling approved by the State within 60 days after the effective date of the registration or amendment.

(3) Notification of revocation of a registration by a State shall indicate the effective date of revocation, and shall state the reasons for revocation.

(4) The Administrator or his designee may request, when appropriate, that a State submit to EPA any data used by the State to determine that unreasonable adverse effects will not be caused when the State registers any use described in paragraph (c)(1) of this section. Within 15 working days of receipt of such a request from EPA, the State shall submit two copies of the requested data.

(i) *Federal Register Publication.* The Administrator shall publish in the FEDERAL REGISTER, on a regular basis, a summary of all State registrations made under sec. 24(c) during a previous reporting period established by the Administrator. For each product or use registered, the notice shall indicate:

(1) The name of the product.

(2) The name of the registrant.

(3) The registered use(s) of the product.

(4) The effective date of the State registration.

(5) If the registration is for an additional use of a federally registered product, whether the State registration involves a changed use pattern.

[46 FR 2014, Jan. 7, 1981, as amended at 53 FR 15999, May 4, 1988; 60 FR 32097, June 19, 1995]

§ 162.154 Disapproval of State registrations.

(a) *General disapprovals.* (1) Except as provided in paragraph (b) of this section, the Administrator may disapprove, on any reasonable grounds, any state registration which, when compared to a federally registered product, does not have both a similar composition and a similar use pattern; provided that the Administrator may not disapprove such a registration solely because of a lack of essentiality.

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Grounds for disapproval of State registrations not involving similar products may include, but are not limited to:

(i) Probable creation of unreasonable adverse effects on man or the environment by the registered use.

(ii) Refusal of the registering State to submit information supporting the registration as required by § 162.153(h).

(iii) Failure of information submitted by the State to support the State's decision to issue the registration under standards established by § 162.153.

(2) Prior to disapproval of any State registration under this paragraph, the Administrator shall notify the registering State, in writing, of the Administrator's intent to disapprove, and of the reasons for disapproval. The notice of intent will provide a reasonable time, not less than ten days from the date the notice is received by the State, for the State to respond, and will invite the State to consult with the Administrator or his designee. If the grounds for disapproval are based on actions or omissions by the State, the notice will, if possible, also provide the State with a reasonable amount of time in which to take corrective action, not to exceed the time allowed for disapproval under paragraph (c) of this section.

(3) The registering State may, within ten days of receipt of a notice of intent to disapprove, request that the Administrator, or his designee, consult with appropriate State officials prior to the Administrator's final decision on disapproval. The Administrator will consider any relevant information presented at such a consultation, or in any other timely and appropriate fashion, in deciding whether to withdraw the notice of intent to disapprove.

(b) *Special disapprovals.* (1) The Administrator may disapprove any State registration, including a registration for a similar product, at any time, if the Administrator determines that use of the product under the State registration:

(i) Would constitute an imminent hazard.

(ii) May result in a residue on food or feed exceeding, or not covered by, a tolerance, exemption, or other clear-

ance under the Federal Food, Drug and Cosmetic Act (21 U.S.C. 346a *et seq.*).

(2) If the Administrator disapproves a registration under this paragraph, the Administrator shall provide the registering State with written notification of disapproval, in accordance with paragraph (c) of this section, as soon thereafter as practicable. Such notification will specify the grounds for disapproval and invite the State to comment on the decision.

(3) If requested by the State within ten days of its receipt of a notice of disapproval, the Administrator, or his designee, will consult with appropriate State officials. The Administrator may consider any information presented at such a consultation, or in any other appropriate fashion, in determining whether the disapproval should be rescinded.

(c) *Decision and notification of disapproval.* Except as provided in paragraph (b)(1) of this section, the Administrator will make a final decision on disapproval of a State registration, and provide written notification thereof to the State, within 90 days of the effective date of the registration; provided that, if the State does not notify the Agency of a registration within ten days of its effective date, then the Administrator will make a final decision on disapproval within 90 days of the date on which EPA receives notification of the State registration. The notice of disapproval will specify an appropriate date on which the disapproval will become effective. Disapproval may become effective immediately, or at anytime within the period allowed for the Administrator to make a final decision on disapproval. The notice of disapproval will also, when appropriate, give instructions for use or disposal of the pesticide. Each notice of disapproval will be published in the FEDERAL REGISTER.

(d) *Effect of disapproval.* If a registration issued by a State is disapproved by the Administrator, that registration will not be valid for any purpose under FIFRA, as of the date the disapproval becomes effective. Thereafter, distribution or sale of the pesticide, in either interstate or intrastate commerce, for uses subject to the disapproval will be a violation of sec. 12(a)(1) of FIFRA.

(e) *Rescission of disapproval.* If the Administrator determines, after consultation with the State lead agency, that a registration, previously issued by the State and disapproved by the Administrator, should not have been disapproved under FIFRA, then the Administrator shall rescind the disapproval. The Administrator shall send written notification of the rescission to the State. In addition, the Administrator shall publish notice of any rescission of disapproval in the FEDERAL REGISTER.

(f) *Notification of registrants.* Any State that issues a registration which has been disapproved, or which is subject to a notice of intent to disapprove, shall be responsible for notifying the affected registrant of any such notice of intent or disapproval, and of any rescission of disapproval by the Administrator.

§ 162.155 Suspension of State registration authority.

(a) *General.* (1) If the Administrator finds that a State is not capable of exercising, or has failed to exercise, adequate control over its registration program, so that the State cannot ensure that registrations issued by it will be in accord with the purposes of FIFRA, then the Administrator may suspend the State's authority to register pesticides under sec. 24(c) of the Act. Registrations issued by the State after suspension of its authority will not be considered valid under FIFRA. Registrations issued by the State prior to suspension will not be affected by the suspension.

(2) The Administrator may suspend all or any part of a State's registration authority, as appropriate.

(b) *Grounds for Suspension.* (1) The Administrator may suspend a State's registration authority due to lack of, or failure to exercise, adequate control by the State over its sec. 24(c) registration program. Adequate control includes, but is not limited to, all of the following:

(i) Access to appropriate scientific and technical personnel to review data and make determinations as required by § 162.153.

(ii) Registration procedures satisfying § 162.153.

(iii) Complete and accurate records of State registrations.

(iv) Adequate legal authority. (A) To deny, suspend, revoke, or amend a State registration when the registration is not in compliance with FIFRA, this subpart, or State law, or when necessary to prevent unreasonable adverse effects on the environment.

(B) To enter, at reasonable times, by consent, warrant, or other legal means, any establishment where pesticides are produced or held for distribution or sale, to inspect, sample, and observe whether pesticides are being produced or distributed in compliance with FIFRA, this subpart, State law, and the terms of any State registration.

(2) The Administrator may suspend a State's registration authority if the State fails to exercise the controls specified in paragraph (b)(1) of this section, or if the State refuses to correct within a reasonable time any other significant deficiencies in its regulatory program, as specified by the Administrator in a notice of intent to suspend.

(c) *Procedures for Suspension.* (1) Prior to suspending the registration authority of any State, the Administrator will notify the State lead agency, in writing, of the Administrator's intent to suspend, and of the specific grounds for suspension. The notice of intent will specify whether the suspension will be complete or partial, and will provide the State an opportunity to respond and a reasonable amount of time, not less than 30 days from the date the notice is received, in which to correct the deficiencies specified in the notice. If the State does not correct the specified deficiencies within the reasonable time allowed by the notice, or if the Administrator has not withdrawn the notice of intent before that time, the notice of intent will be published in the FEDERAL REGISTER, and the public given an opportunity to comment thereon.

(2) If requested by the affected State lead agency within 30 days of receipt of the notice of intent to suspend, an informal consultation between appropriate State and EPA officials will be held to discuss the proposed suspension. In such a case, the Administrator shall not make a final decision on the proposed suspension until after the

consultation. The Administrator shall consider all relevant information presented at the consultation, or in any other appropriate manner, in determining whether to suspend the State's authority. If the Administrator determines, on the basis of such information, that the deficiencies listed in the notice of intent no longer exist, or will be corrected in a reasonable time, then the Administrator will withdraw, in writing, the notice of intent to suspend.

(3) Within ten days of the date a notice of intent to suspend is published in the FEDERAL REGISTER, a State may request a public hearing to consider the proposed suspension. If a hearing is requested, the Administrator will:

(i) Schedule a public hearing to be held in that State.

(ii) Publish in the FEDERAL REGISTER a notice announcing the date, time, and location of the hearing.

(iii) Appoint a presiding officer who shall preside over the hearing.

(iv) Prescribe additional, appropriate procedures for the conduct of the hearing, including procedures for the presentation of relevant material evidence from the State, EPA, or members of the public who would be affected by the outcome of the hearing. Evidence may be presented in either oral or written form, at the discretion of the Administrator.

(4) Following the close of any hearing held under paragraph (c)(3) of this section, the presiding officer shall make a recommended decision that the State's authority to register pesticides under sec. 24(c) of FIFRA be suspended, in whole or in part, or that the State's authority not be suspended and that the notice of intent to suspend be withdrawn.

(5) Any recommended decision made by a presiding officer under paragraph (c)(4) of this section may be appealed to the Administrator within 30 days after its issuance by the State or by EPA. Any recommended decision which is not appealed, or which the Administrator does not review on his own initiative, will become a final Agency action 30 days after its issuance.

(6) If no hearing is requested under paragraph (c)(3) of this section, or if a recommended decision is appealed to

the Administrator under paragraph (c)(5) of this section, the Administrator shall issue a final order either suspending the State's authority to register pesticides under section 24(c) of FIFRA, in whole or in part, or withdrawing the notice of intent to suspend.

(7) Any final order suspending State registration authority, issued under paragraph (c) (5) or (6) of this section, will specify the grounds therefor and an effective date for the suspension. If the suspension is merely partial, the notice of suspension will specify the types of registrations which will not be recognized as valid under sec. 24(c). All final orders issued under paragraph (c) (5) or (6) will be published in the FEDERAL REGISTER.

(d) *Termination of suspension.* Suspension of a State's authority will be effective for the period specified in the notice of suspension, or if no period was specified, until such time as the Administrator is satisfied that the State can and will exercise adequate control over its program. In the latter case, the Administrator will notify the State that the suspension is terminated, or that it will be terminated on a specific date. In either case, the Administrator will publish a notice of the termination of suspension in the FEDERAL REGISTER.

(e) *Judicial review.* Any State whose authority to register pesticides has been finally suspended by the Administrator may seek judicial review of the Administrator's decision under sec. 16 of FIFRA, at any time prior to termination of the suspension. Such suspension shall remain in effect during the period of judicial review unless otherwise ordered by the Administrator.

§ 162.156 General requirements.

(a) *Requirements for distribution and use.* (1) Any product whose State registration has been issued in accordance with §§ 162.152 and 162.153 may be distributed and used in that State, subject to the following provisions of the Act and the regulations promulgated thereunder:

(i) Sec. 12(a)(1) (A) through (E), in accordance with:

(A) Sec. 2(q)(1) (A) through (G).

(B) Sec. 2(q)(2) (A) through (D).

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(ii) Sec. 12(a)(2) (A) through (G) and (I) through (P).

(2) A product or use classified by a State for restricted use under § 162.153(g) may be used only by, or under the direct supervision of, an applicator certified under a plan approved by EPA in accordance with sec. 4 of FIFRA.

(3) State registrations which are not issued in accordance with § 162.152 (a) and (b)(2) (i), (ii) and (iii) are not authorized by section 24(c) and are not considered valid for any purposes under FIFRA. When the Administrator determines that a registration is invalid, the Administrator shall notify the registering State that the registration is invalid, and may specify the reason for the invalidity.

(b) *Establishment registration requirements.* No person may produce any pesticide, including any pesticide registered by a State under section 24(c), unless the establishment in which it is produced is registered by the Administrator in accordance with sec. 7 of FIFRA and 40 CFR part 167.

(c) *Books and records requirements.* All producers of pesticides, including those producers of pesticides registered by States under sec. 24(c), must maintain records in accordance with the requirements imposed under sec. 8 of FIFRA and 40 CFR part 169.

Subpart E—[Reserved]

PART 163—CERTIFICATION OF USEFULNESS OF PESTICIDE CHEMICALS

Sec.

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163.12 Opinion as to residue.

AUTHORITY: 21 U.S.C. 346a.

SOURCE: 36 FR 22533, Nov. 25, 1971, unless otherwise noted.

§ 163.1 Words in the singular form.

Words in this part in the singular form shall be deemed to import the plural, and vice versa, as the case may demand.

§ 163.2 Definitions.

Unless the context otherwise requires, the following terms shall be construed, respectively, to mean:

(a) *Act* means the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 301 et seq.), as amended by Pub. L. 518, 83d Congress, 2d Session, “An Act to amend the Federal Food, Drug, and Cosmetic Act with respect to residues of pesticide chemicals in or on raw agricultural commodities” (68 Stat. 511).

(b) *Director* means the Director of the Pesticides Regulation Division, Environmental Protection Agency, Washington, D.C.

(c) *Agency* means the Environmental Protection Agency.

(d) *Pesticide chemical* and *raw agricultural commodity* shall have the same meanings as they have in paragraphs (q) and (r), respectively, of section 201 of the Act.

(e) *Economic poison* shall have the same meaning as it has under the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 135–135k) and the regulations issued thereunder.

(f) *Person* means individuals, partnerships, corporations, and associations.

(g) *Certification* means a certification by the Director that a pesticide chemical is useful for the purpose for which a tolerance or exemption is sought under the act.

(h) *Petition* means a petition filed with the Administrator, Environmental Protection Agency pursuant to section 408(d)(1) of the Act.

[36 FR 22533, Nov. 25, 1971, as amended at 53 FR 15999, May 4, 1988]

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§ 163.3 Administration.

The Director is authorized to take such action as, in his discretion, may be necessary to carry out the provisions of sections 408(i) and 408(l) of the Act and the regulations in this part.

§ 163.4 Filing of requests for certification.

All requests for a certification shall be made in writing to the Director. Action upon such a request will not be undertaken unless (a) the person making the request has, pursuant to the provisions of the Federal Insecticide, Fungicide, and Rodenticide Act, registered or submitted an application for the registration of an economic poison consisting of or containing the pesticide chemical for which the certification is sought and (b) the request is accompanied by a copy of the petition. The person requesting certification may at any time withdraw such request for certification.

§ 163.5 Material in support of the request for certification.

In addition to the data required by section 408(d)(1) of the Act to be included in the petition, the request for certification should be supported by the following material, to the extent it is relied upon by the petitioner:

(a) A complete report of the results of any experimental work by the petitioner on the effectiveness of the pesticide chemical for the purposes intended;

(b) Data relating to the usefulness of the pesticide chemical obtained by other qualified investigators;

(c) Any other material which the petitioner believes will justify a finding of usefulness.

If such material is fully shown in the petition, it need not be set forth separately in the request for certification.

§ 163.6 Certification limited to economic poison uses.

If the product for which a certification is sought is intended for both economic poison and noneconomic poison uses, any certification relative to the usefulness of such product will refer only to economic poison uses. No

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action will be taken with respect to the noneconomic poison uses of such product.

§ 163.7 Factors considered in determining usefulness.

In determining whether a pesticide chemical is useful for the purposes for which a tolerance or exemption is sought, consideration will be given, among other things, to:

(a) The results of any experimental work by the petitioner on the effectiveness of the pesticide chemical for the purposes intended.

(b) Data relating to the usefulness of the pesticide chemical obtained by other qualified investigators.

(c) Reports of other experimental work before the Director in publications, the official files of the Agency, or otherwise.

(d) Opinions of experts qualified in the fields involved.

§ 163.8 Basis for determination of usefulness.

Usefulness of a pesticide chemical for the purposes intended will be determined upon the basis of its practical pesticidal, or biological, effectiveness. Pesticidal effectiveness may be established in terms of percentage reduction or control of pests or, when appropriate, increase in yield or quality of crop following application of the specified pesticide under the conditions prescribed, compared with the results from adequate controls. Consideration may also be given to other economic gain or practical benefit, including: Economy or ease of production, harvest, or storage of crop; flexibility as regards the time of planting or harvest, even at the possible sacrifice of yield; and general benefit to livestock, plants, or human welfare.

§ 163.9 Proposed certification; notice; request for hearing.

(a) If, upon the basis of the data before him, it appears to the Director that the pesticide chemical is not useful for the purpose or purposes for which a tolerance or exemption is sought, or is useful for only some of the purposes for which a tolerance or exemption is sought, the Director shall

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notify the person requesting the certification of his proposal to so certify. Notice of such proposed certification will be given by registered mail.

(b) Within one week after receipt of such notice of proposed certification the person requesting the certification may, by filing a request with the Director, (1) request that the certification be made on the basis of the proposed certification; (2) request a hearing on the proposed certification or the parts objected to; (3) request both such certification and such hearing; or (4) withdraw the request for certification as provided for in § 163.10.

If no such request or withdrawal is filed with the Director within such time, the certification will be made as proposed.

§ 163.10 Withdrawal of request for certification pending clarification or completion.

In some cases it may be necessary for the Director to notify the petitioner of his proposal to certify that the pesticide chemical does not appear to be useful for some or all of the purposes for which a tolerance or exemption is sought only because the data submitted by the petitioner are not sufficiently clear or complete to justify a finding of usefulness. In such cases the petitioner may withdraw his request for certification pending its clarification or the obtaining of additional data, and no further action will be taken with respect to the making of the certification until the request for certification is resubmitted. Upon the resubmission of the request for certification, the time limitation within which final certification is required to be made will begin to run anew from the date of the resubmission.

§ 163.11 Registration under the Federal Insecticide, Fungicide, and Rodenticide Act.

(a) Since in most cases where a pesticide chemical may leave a residue in or on a raw agricultural commodity there can be no determination of the adequacy of the directions for use or the warning or caution statements appearing on the labeling of an economic poison until a tolerance or exemption

has been established for the pesticide chemical which is, or is a part of, such economic poison, it will not ordinarily be possible to register the economic poison under the Federal Insecticide, Fungicide, and Rodenticide Act until such tolerance or exemption has been established.

(b) Factors other than pesticidal, or biological, effectiveness are considered in the granting of registration under the Federal Insecticide, Fungicide, and Rodenticide Act. Therefore, the criteria for registration are not all applied in considering the certification of usefulness, and the fact that such a certification has been made does not mean that the economic poison can be registered for the uses concerned.

§ 163.12 Opinion as to residue.

(a) In forming an opinion whether the tolerance or exemption proposed by the petitioner reasonably reflects the amount of residue likely to result when the pesticide chemical is used in the manner proposed, consideration will be given, among other things, to:

(1) Data furnished by the petitioner showing (i) the results of tests to ascertain the amount of residue remaining, including a description of the analytical methods used, and (ii) practicable methods for removing residue which exceeds any proposed tolerance;

(2) Reports of other experimental work before the Director in publications, the official files of the Agency, or otherwise;

(3) Opinions of experts qualified in the fields involved.

(b) If a tolerance proposed by the petitioner is reasonably to reflect the amount of residue likely to result when a pesticide chemical is used, it must be large enough to include all residue which is likely to result when the pesticide chemical is used in the manner proposed by the petitioner, but not larger than needed for this purpose. The tolerance proposed by the petitioner may take into account reduction of residue by washing, brushing, or other applicable method.

(c) If there is insufficient information before the Director to support an opinion as to whether the tolerance proposed by the petitioner reasonably

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reflects the amount of residue likely to result, the opinion will so state.

PART 164—RULES OF PRACTICE GOVERNING HEARINGS, UNDER THE FEDERAL INSECTICIDE, FUNGICIDE, AND RODENTICIDE ACT, ARISING FROM REFUSALS TO REGISTER, CANCELLATIONS OF REGISTRATIONS, CHANGES OF CLASSIFICATIONS, SUSPENSIONS OF REGISTRATIONS AND OTHER HEARINGS CALLED PURSUANT TO SECTION 6 OF THE ACT

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AUTHORITY: 7 U.S.C. 136d.

SOURCE: 38 FR 19371, July 20, 1973, unless otherwise noted.

Subpart A—General

§ 164.1 Number of words.

As used in this part, a word in the singular form shall be deemed to import the plural, and vice versa, as the case may require.

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§ 164.2 Definitions.

For the purposes of this part, the following terms shall be defined, as listed below:

(a) The term *Act* means the Federal Insecticide, Fungicide, and Rodenticide Act, as amended (86 Stat. 973) and other legislation supplementary thereto and amendatory thereof.

(b) The term *Administrative Law Judge* means an Administrative Law Judge appointed pursuant to 5 U.S.C. 3105 (see also 5 CFR part 930, as amended), and such term is synonymous with the term "Hearing Examiner" as used in the Act or in the United States Code.

(c) The term *Administrator* means the Administrator of the United States Environmental Protection Agency.

(d) The term *Agency*, unless otherwise specified, means the United States Environmental Protection Agency.

(e) The term *Applicant* means any person who has made application to have a pesticide registered or classified pursuant to the provisions of the Act.

(f) The term *Committee* means a group of qualified scientists designated by the National Academy of Sciences according to agreement under the Act to submit an independent report to the Administrative Law Judge on questions of scientific fact referred from a hearing under subpart B of this part.

(g) *Environmental Appeals Board* shall mean the Board within the Agency described in § 1.25 of this title. The Administrator delegates authority to the Environmental Appeals Board to issue final decisions in appeals filed under subparts B and C of this part. An appeal directed to the Administrator, rather than to the Environmental Appeals Board, will not be considered. This delegation does not preclude the Environmental Appeals Board from referring an appeal or a motion under subparts B and C to the Administrator when the Environmental Appeals Board, in its discretion, deems it appropriate to do so. When an appeal or motion is referred to the Administrator, all of the parties shall be so notified and the rules in subparts B and C referring to the Environmental Appeals Board shall be interpreted as referring to the Administrator.

(h) The term *Expedited Hearing* means a hearing commenced as the result of

the issuance of a notice of intention to suspend or the suspension of a registration of a pesticide by an emergency order, and is limited to a consideration as to whether a pesticide presents an imminent hazard which justifies such suspension.

(i) The term *Hearing* means a public hearing which is conducted pursuant to the provisions of chapter 5, subchapter II of title 5 of the United States Code and the regulations of this part.

(j) The term *Hearing Clerk* means the Hearing Clerk, Environmental Protection Agency, Washington, DC 20460.

(k) The term *Initial Decision* means the decision of the Administrative Law Judge supported by findings of fact and conclusions regarding all material issues of law, fact, or discretion, as well as reasons therefor. Such decision shall become the final decision and order of the Administrator without further proceedings unless an appeal therefrom is taken or the Administrator orders review thereof as herein provided.

(l) The term *Judicial Officer* means an officer or employee of the Agency designated as a judicial officer, pursuant to these rules, who shall meet the qualifications and perform functions as herein provided.

(1) Office. There may be designated for the Agency one or more judicial officers, one of whom may be Chief Judicial Officer. As work requires, there may be a judicial officer designated to act for the purpose of a particular case. All prior designations of judicial officer shall stay in force until further notice.

(2) Qualification. A judicial officer shall be a permanent or temporary employee or officer of the Agency who may perform other duties for the Agency. Such judicial officer shall not be employed by the Office of Hazardous Materials Control or have any connection with the preparation or presentation of evidence for a hearing.

(3) Functions. The Administrator may delegate any or part of his authority to act in a given case under subparts B and C of this part to a judicial officer. The Administrator can separately delegate his authority to rule on interlocutory orders and motions, and may also delegate his authority to

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make findings of fact and draw conclusions of law in a particular proceeding, providing that this delegation shall not preclude the Judicial Officer from referring any motion or case to the Administrator when the Judicial Officer determines such referral to be appropriate. The Administrator, in deciding a case himself, may consult with and assign the preliminary drafting of conclusions of law and findings of fact to any judicial officer.

(m) The term *Party* means any person, group, organization, or Federal agency or department that participates in a hearing.

(n) The term *Person* includes any individual, partnership, association, corporation, and any organized group of persons, whether incorporated or not.

(o) The term *Petitioner* means any person adversely affected by a notice of the Administrator who requests a public hearing.

(p) The term *Presiding Officer* means any person designated by the Administrator to conduct an expedited hearing.

(q) The term *Recommended Decision* means the recommended findings and conclusions of the Presiding Officer in an expedited hearing.

(r) The term *Registrant* means any person who has registered a pesticide pursuant to the provisions of the Act.

(s) The term *Respondent* means the Assistant Administrator of the Office of Hazardous Materials Control of the Agency.

Terms defined in the act and not explicitly defined herein are used herein with the meanings given in the act.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5342, Feb. 13, 1992; 57 FR 30657, July 10, 1992]

§ 164.3 Scope and applicability of this part.

The provisions of subpart B of this part shall govern proceedings, conducted pursuant to the provisions of the Act, concerning refusals to register, cancellations of registration, changes of classifications or hearings called by the Administrator; the provisions of subpart C of this part shall govern suspension proceedings conducted pursuant to the provisions of the Act.

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§ 164.4 Arrangements for examining Agency records, transcripts, orders, and decisions.

(a) Reporting of orders, decisions, and other signed documents. All orders, decisions, or other signed documents required by the rules in this part, whether issued by the Environmental Appeals Board or the Presiding Officer shall be made available to the public.

(b) Establishment of an Agency repository. In addition, all transcripts and docket entries shall become part of the official docket and shall be retained by the hearing clerk. At least two copies of all final orders, decisions and a notification of any appeals taken therefrom shall be retained by the hearing clerk and filed chronologically and shall be periodically bound and indexed. All the above documents shall be made available to the public for reasonable inspections during Agency business hours.

(c) Whenever any information or data is required to be produced or examined and any party to the proceeding claims that such information is a trade secret or commercial or financial information, other than information relating to the formulas of a pesticide, the Administrative Law Judge, the Presiding Officer, or the Environmental Appeals Board may require production or testimony *in camera* and sealed to all but the parties.

(d) All orders, decisions, or other documents made or signed by the Administrative Law Judge, the Presiding Officer, or the Environmental Appeals Board shall be filed with the hearing clerk. The hearing clerk shall immediately serve all parties with a copy of such order, decision, or other document.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5342, Feb. 13, 1992]

§ 164.5 Filing and service.

(a) All documents or papers required or authorized to be filed, shall be filed with the hearing clerk, except as provided otherwise in this part. At the same time that a party files documents or papers with the clerk, it shall serve upon all other parties copies thereof, with a certificate of service on each document or paper, including those

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filed with the hearing clerk. If filing is accomplished by mail addressed to the clerk, filing shall be deemed timely if the papers are postmarked on the due date except as to initial filings requesting a public hearing or responding to a notice of intent to hold a hearing, in which case such filings must be received by the hearing clerk either within the time required by statute or by the notice of intent to hold a hearing.

(b) Each document filed, other than papers commencing a proceeding, shall contain the FIFRA docket number and, if the document affects less than all of the registrations included under that docket number, the registration number or file symbol of each product which is the subject of the document.

(c) In addition to copies served on all other parties, each party shall file an original and two copies of all papers with the hearing clerk.

§ 164.6 Time.

(a) *Computation.* In computing any period of time prescribed or allowed by these rules, except as otherwise provided, the day of the act, event, or default from which the designated period of time begins to run shall not be included. Saturdays, Sundays, and legal holidays shall be included in computing the time allowed for the filing of any document or paper, except that when such time expires on a Saturday, Sunday, or legal holiday, such period shall be extended to include the next following business day.

(b) *Enlargement.* When by these rules or by order of the Administrative Law Judge, the Presiding Officer, or the Environmental Appeals Board, an act is required or allowed to be done at or within a specified time, the Administrative Law Judge (before his initial decision is filed), or the Presiding Officer (before his recommended decision is filed), or the Environmental Appeals Board (after the Administrative Law Judge's initial decision or the presiding officer's recommended decision is filed), for cause shown may at any time in their discretion: with or without motion or notice, order the period enlarged if request therefor, which may be made *ex parte*, is made before the expiration of the period originally pre-

scribed or as extended by a previous order; or on motion made after the expiration of the specified period, permit the act to be done where the failure to act was the result of excusable neglect. In this connection, consideration shall be given to the fact that, under the provisions of the act, the Administrator must issue his order not later than 90 days after the completion of the hearing, unless all parties agree by stipulation to extend this period of time pursuant to § 164.103.

(c) *Additional time after service by mail.* A prescribed period of time within which a party is required or permitted to do an act shall be computed from the time of service, except that when the service is made by mail, 3 days shall be added to the prescribed period. Such addition for service by mail shall not apply in the case of filing initial requests for hearings or responding to a notice of intent to hold a hearing, in which cases statutory filing times will run from the date of the return receipt pursuant to § 164.8.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5342, Feb. 13, 1992]

§ 164.7 Ex parte discussion of proceeding.

At no stage of a proceeding shall the Administrator, the members of the Environmental Appeals Board, the Presiding Officer, or the Administrative Law Judge discuss *ex parte* the merits of the proceeding with any party or with any person who has been connected with the preparation or presentation of the proceeding as an advocate, or in an investigative or expert capacity, or with any representative of such person, *Provided*, That the Environmental Appeals Board, the Presiding Officer, or the Administrative Law Judge may discuss the merits of the case with any such person if all parties to the proceeding, or their representatives, have been given reasonable notice and opportunity to be present. Any memorandum or other communication addressed to the Administrator, the Environmental Appeals Board, the Presiding Officer, or the Administrative Law Judge during the pendency of the proceeding, and relating to the merits thereof, by or on behalf of any party, shall be regarded as an argument made

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in the proceeding. The Administrator, the Environmental Appeals Board, the Presiding Officer, or the Administrative Law Judge shall cause any such communication to be filed with the hearing clerk and served upon all other parties to the proceeding who will be given the opportunity to file an answer thereto.

[57 FR 5342, Feb. 13, 1992]

§ 164.8 Publication.

All notices of intention to cancel a registration, all notices of intention to change a classification, and all denials of registrations, all together with the reasons (including the factual basis therefor), and all notices of intention by the Administrator to hold a hearing, together with the statement of issues as provided by § 164.20(b) shall be sent to the registrant or applicant by registered or certified mail (return receipt requested), and published by appropriate announcement in the FEDERAL REGISTER by the Administrator. The Administrative Law Judge shall cause to be published in the FEDERAL REGISTER by appropriate announcement, a notice of the filing of any objections, pursuant to § 164.20(b) or responses pursuant to § 164.24, and a notice of the public hearing as provided by § 164.80 *et seq.* Said notice of public hearing shall designate the place where the hearing will be held and specify the time when the hearing will commence. The hearing shall convene at the place and time announced in the notice, unless amended by subsequent notice published in the FEDERAL REGISTER, but thereafter it may be moved to a different place and may be continued from day to day or recessed to a later day without other notice than announcement thereof at the hearing.

Subpart B—General Rules of Practice Concerning Proceedings (Other Than Expedited Hearings)

COMMENCEMENT OF PROCEEDING

§ 164.20 Commencement of proceeding.

(a) A proceeding shall be commenced whenever a hearing is requested by any person adversely affected by a notice of

the Administrator of his refusal to register or of his intent to cancel the registration or to change the classification of a pesticide. A proceeding shall likewise be commenced whenever the Administrator decides to call a hearing to determine whether or not the registration of a pesticide should be canceled or its classification changed. Such request or notice of intent to hold a hearing shall be timely filed with the hearing clerk, and the matter shall be docketed and assigned a FIFRA docket number.

(b) If a request for a hearing is filed, the person filing the request shall, at the same time, file a document stating his objections to the Administrator's refusal to register or his intent to cancel the registration or to change the classification of a pesticide. If a notice of intent to hold a hearing is filed by the Administrator, he shall, at the same time, file a statement of issues.

(c) Upon the filing of any objections or notice of intent to hold a hearing, the proceeding shall be referred to the Chief Administrative Law Judge by the hearing clerk. The Chief Administrative Law Judge shall refer the proceeding to himself or another Administrative Law Judge who shall thereafter be in charge of all further matters concerning the proceedings, except as otherwise provided for by order of the Chief Administrative Law Judge, the Administrator, or the Environmental Appeals Board.

[38 FR 19371, July 20, 1973, as amended at 38 FR 34117, Dec. 11, 1973; 57 FR 5342, Feb. 13, 1992]

§ 164.21 Contents of a denial of registration, notice of intent to cancel a registration, or notice of intent to change a classification.

(a) *Contents.* The denial of registration or a notice of intent to cancel a registration or to change a classification shall be accompanied by the reasons (including the factual basis) for the action.

(b) *Amendments to contents of denials and notices.* Such documents under this section may be amended or enlarged by the Administrator at any time prior to the commencement of the public hearing. If the Administrative Law Judge

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determines that additional time is necessary to permit a party to prepare for matters raised by such amendments, the commencement of the hearing shall be delayed for an appropriate period.

§ 164.22 Contents of document setting forth objections.

(a) *Concise statement required.* Any document containing objections to an order of the Administrator of his refusal to register, or his intent to cancel the registration, or change the classification of a pesticide, shall clearly and concisely set forth such objections and the basis for each objection, including relevant allegations of fact concerning the pesticide under consideration. The document shall indicate the registration number of the pesticide, if applicable, a copy of the currently accepted and/or proposed labeling and a list of the currently registered or proposed uses of said pesticide.

(b) *Amendments to objections by leave.* Objections may be amended at any time prior to the commencement of the public hearing by leave of the Administrative Law Judge or by written consent of all parties. The Administrative Law Judge shall freely grant such leave when justice so requires. If the Administrative Law Judge determines that additional time is necessary to permit a party to prepare for matters raised by amendments to objections, the commencement of the hearing shall be delayed for an appropriate period. This subsection shall not permit the addition, beyond the statutory deadline, of registered pesticides which are not included in the objections filed pursuant to paragraph (a) of this section.

(c) *Amendments to objections as a matter of right.* Objections may be amended as a matter of right within 30 days, or in such time as the Administrator shall designate, after the Administrator amends his notice of intent to cancel a registration, change a classification, or his refusal to register a pesticide.

§ 164.23 Contents of the statement of issues to accompany notice of intent to hold a hearing.

(a) *Concise statement required.* The statement of issues by the Administrator shall set a time in which any person wishing to participate in the hearing shall file a written response to the statement of issues as provided by § 164.24. The statement of issues shall include questions as to which evidence shall be taken at the hearing. Those questions may include questions concerning whether a pesticide's registration should be canceled or its classification changed, whether its composition is such as to warrant the claims for it, whether its labeling and other material submitted comply with the requirements of the Act, whether it will perform its intended function without unreasonable adverse effects on the environment, and whether, when used in accordance with widespread and commonly recognized practice, it will or will not generally cause unreasonable adverse effects on the environment.

(b) *Amendment to statement of issues.* The statement of issues may be amended or enlarged by the Administrator at any time prior to the commencement of the public hearing. If the Administrative Law Judge determines that additional time is necessary to permit a party to prepare for matters raised by amendments or enlargements to the statement of issues, the commencement of the hearing shall be delayed for an appropriate period.

§ 164.24 Response to the Administrator's notice of intention to hold a hearing.

Any person wishing to participate in any proceeding commenced pursuant to any notice by the Administrator of intention to hold a hearing, shall file with the hearing clerk, within the time set by the Administrator in the notice (in no case less than 30 days from the date of the notice), a written response to the statement of issues which shall include the position and interest of such person with respect thereto. If

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any such person is a registrant or an applicant for registration, he shall also file the registration number of the pesticide, if applicable, a copy of the currently accepted and/or proposed labeling and a list of the currently registered or proposed uses of said pesticide.

§ 164.25 Filing copies of notification of intent to cancel registration or change classification or refusal to register, and statement of issues.

After a copy of the document setting forth the objections and requesting a public hearing is filed with the hearing clerk or a response to the statement of issues is filed, the hearing clerk shall serve a copy of the document upon Respondent and the Office of the General Counsel of the Agency. Respondent shall, by counsel, thereupon file with the hearing clerk a copy of the appropriate notice of intention to cancel, the notice of intention to change the classification or the registration refusal order.

APPEARANCES, INTERVENTION, AND CONSOLIDATION

§ 164.30 Appearances.

Representatives. Parties may appear in person or by counsel or other representative. Persons who appear as counsel or in a representative capacity must conform to the standards of ethical conduct required of practitioners before the courts of the United States.

§ 164.31 Intervention.

(a) *Motion.* Any person may file a motion for leave to intervene in a hearing conducted under this subpart. A motion must set forth the grounds for the proposed intervention, the position and interest of the movant in the proceeding and the documents proposed to be filed pursuant to either § 164.22 or § 164.24.

(b) *When filed.* A motion for leave to intervene in a hearing must ordinarily be filed prior to the commencement of the first prehearing conference. Any motion filed after that time must contain, in addition to the information set forth in paragraph (a) of this section, a

statement of good cause for the failure to file the motion prior to the commencement of the first prehearing conference, and shall be granted only upon a finding (1) that extraordinary circumstances justify the granting of the motion, or (2) that the intervenor shall be bound by agreements, arrangements, and other matters previously made in the proceeding.

(c) *Disposition.* Leave to intervene will be freely granted but only insofar as such leave raises matters which are pertinent to and do not unreasonably broaden the issues already presented. If leave is granted, the movant shall thereby become a party with the full status of the original parties to the proceedings. If leave is denied, the movant may request that the ruling be certified to the Environmental Appeals Board, pursuant to § 164.100 for a speedy appeal.

(d) *Amicus curiae.* Persons not parties to the proceedings wishing to file briefs may do so by leave of the Administrative Law Judge granted on motion. A motion for leave shall identify the interest of the applicant and shall state the reasons why the proposed amicus brief is desirable. Unless all parties otherwise consent, an amicus curiae shall file its brief within the time allowed the party whose position the brief will support. Upon a showing of good cause, the Administrator or Administrative Law Judge may grant permission for later filing.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5342, Feb. 13, 1992]

§ 164.32 Consolidation.

The Chief Administrative Law Judge, by motion or sua sponte, may consolidate two or more proceedings whenever it appears that this will expedite or simplify consideration of the issues. Consolidation shall not affect the right of any party to raise issues that could have been raised if consolidation had not occurred. At the conclusion of proceedings consolidated under this section, the Administrative Law Judge shall issue one decision under § 164.90 unless one or more of the consolidated proceedings have been dismissed pursuant to § 164.91.

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ADMINISTRATIVE LAW JUDGE

§ 164.40 Qualifications and duties of Administrative Law Judge.

(a) *Qualifications.* The Administrative Law Judge shall have the qualifications required by statute. He shall not decide any matter in connection with a proceeding where he has a financial interest in any of the parties or a relationship with a party that would make it otherwise inappropriate for him to act.

(b) *Disqualification of the Administrative Law Judge.* (1) Any party may, by motion made to the Administrative Law Judge, as soon as practicable, request that he disqualify himself and withdraw from the proceeding. The Administrative Law Judge shall then rule upon the motion and, upon request of the movant, shall certify an adverse ruling for appeal.

(2) Withdrawal sua sponte. The Administrative Law Judge may at any time withdraw from any proceedings in which he deems himself disqualified for any reason.

(c) *Conduct.* The Administrative Law Judge shall conduct the proceeding in a fair and impartial manner subject to the precepts of the Canons of Judicial Ethics of the American Bar Association.

(d) *Power.* Subject to review, as provided elsewhere in this part, the Administrative Law Judge shall have power to take actions and decisions in conformity with statute or in the interests of justice. The Administrative Law Judge shall not interrupt the recording of the proceedings on the record over the objection of any party.

(e) *Absence or change of the Administrative Law Judge.* In the case of the absence or unavailability of the Administrative Law Judge, or his inability to act, or his removal by disqualification or withdrawal, the powers and duties to be performed by him under this part in connection with a hearing assigned to him may, unless otherwise directed by the Administrator, be assigned to another Administrative Law Judge so designated to act by the Chief Adminis-

trative Law Judge, the Administrator or the Environmental Appeals Board.

[38 FR 19371, July 20, 1973, as amended at 38 FR 34117, Dec. 11, 1973; 57 FR 5342, Feb. 13, 1992]

PREHEARING PROCEDURES AND DISCOVERY

§ 164.50 Prehearing conference and primary discovery.

(a) *Purpose of the prehearing conference.* Except as otherwise provided in paragraph (d) of this section, the Administrative Law Judge shall, prior to the commencement of the hearing and for the purpose of expediting the hearing, file with the hearing clerk an order for a prehearing conference. More than one such conference may be held. Such order or orders shall direct the parties or their counsel to appear at a specified time and place to consider:

(1) The simplification of issues including listing of specific uses to be contested;

(2) The necessity or desirability of amendments to the objections or statement of issues, or any document filed in response thereto;

(3) The possibility of obtaining stipulations of fact and documents which will avoid unnecessary delay;

(4) Matters of which official notice may be taken;

(5) The limitation of the number of expert and other witnesses;

(6) Procedure at the hearing except as so provided in § 164.80(a);

(7) The use of verified written statements in lieu of oral direct testimony;

(8) The intent of any party to request a scientific advisory committee as defined in § 164.2(f);

(9) The issuance of subpoenas and subpoenas duces tecum for discovery and hearing purposes;

(10) A setting of a time and place for the public hearing, after giving careful consideration to the convenience of all the parties, the witnesses, the public interest and the necessity for notice in the FEDERAL REGISTER as provided by § 164.8; and

(11) Any other matter that may expedite the hearing or aid in the disposition of the proceeding.

(b) *Primary discovery (Exchange of witness lists and documents).* At a prehearing conference or within some reasonable time set by the Administrative Law Judge prior to the hearing, each party shall make available to the other parties the names of the expert and other witnesses the party expects to call, together with a brief narrative summary of their expected testimony and a list of all documents and exhibits which the party expects to introduce into evidence. Thereafter, witnesses, documents, or exhibits may be added and narrative summaries of expected testimony amended upon motion by a party.

(c) *Record of the prehearing conference.* No transcript of any prehearing conference shall be made unless a request therefor by one of the parties is granted by the Administrative Law Judge. Such party shall bear the cost of the taking of the transcript unless otherwise ordered by the Administrative Law Judge. The Administrative Law Judge shall prepare and file for the record a written report of the action taken at each conference, which shall incorporate any stipulations or agreements made by the parties at or as a result of such conference, all rulings upon matters considered at such conference and appropriate orders.

(d) *Unavailability of a prehearing conference.* Upon a finding that circumstances render a prehearing conference unnecessary, or impracticable, or upon a finding that a prehearing conference would serve primarily to delay the proceedings rather than to expedite them, the Administrative Law Judge, on motion or sua sponte, may order that the prehearing conference not be held. In these circumstances he may request the parties to correspond with him for the purpose of accomplishing any of the objectives set forth in this section. Such correspondence shall not be made a part of the record, but the Administrative Law Judge shall submit a written summary for the record if any action is taken.

(e) *Submission of questions to an advisory committee—(1) General.* At any prehearing conference, or if none is held prior to the public hearing, except as herein provided, the Administrative Law Judge shall determine whether

any party desires that questions of scientific fact be referred to a committee designated by the National Academy of Sciences.

(2) *Preparation of questions.* On determining an affirmative intent, the Administrative Law Judge shall direct all parties to file and serve, within a time period subject to his discretion, proposed questions of scientific fact accompanied by reasons supporting their submission to said committee. Within 10 days of the service of such proposed questions, together with their supporting reasons, any party may respond in writing to the proposed submission of the questions to the said committee. The Administrative Law Judge shall determine whether or not a reference of questions of scientific fact to said committee is necessary or desirable. In the event he decides such reference is necessary or desirable, he shall so inform the National Academy in writing, and shall prepare in his discretion appropriate questions. If any of the questions prepared are not in substance based upon the submissions of the parties, the Administrative Law Judge shall permit any party 10 days after their preparation to respond in writing to the proposed submission of said question or questions. He shall then determine whether such questions should be referred to the committee.

(3) *Reference and report.* Not less than 30 days after he has informed the National Academy that questions of scientific fact will be referred to it, the Administrative Law Judge shall refer the questions of scientific fact as prepared. The committee shall report in writing to the Administrative Law Judge within 60 days after such referral on these questions of scientific fact and the report, its record and any other matter transmitted as provided for by the Administrator's agreement with the National Academy of Sciences shall be made public and considered as part of the hearing record.

(4) *Request and submission subsequent to prehearing conference.* At any time before the hearing is closed, the Administrative Law Judge or a party by motion may request that questions of scientific fact not previously referred

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be referred, or that questions previously referred be amended or expanded. The Administrative Law Judge may refer such questions if he finds that good cause exists and that reference of such questions is necessary or desirable.

[38 FR 19371, July 20, 1973, as amended at 39 FR 11884, Apr. 1, 1974]

§ 164.51 Other discovery.

(a) *General.* Except as so provided by § 164.50(b) *supra*, further discovery, under this subpart, shall be permitted only upon determination by the Administrative Law Judge (1) that such discovery shall not in any way unreasonably delay the proceeding, (2) that the information to be obtained is not otherwise obtainable and (3) that such information has significant probative value. The Administrative Law Judge shall be guided by the procedures set forth in the Federal Rules of Civil Procedure, where practicable, and the precedents thereunder, except that no discovery shall be undertaken except upon order of the Administrative Law Judge or upon agreement of the parties.

(b) *Depositions upon oral questions.* The Administrative Law Judge shall order depositions upon oral questions only upon a showing of good cause and upon a finding that (1) the information sought cannot be obtained by alternative methods, or (2) there is a substantial reason to believe that relevant and probative evidence may otherwise not be preserved for presentation by a witness at the hearing.

(c) *Procedure.* (1) Any party to the proceeding desiring discovery shall make a motion or motions therefor. Such a motion shall set forth (i) the circumstances warranting the taking of the discovery, (ii) the nature of the information expected to be discovered and (iii) the proposed time and place where it will be taken.

(2) If the Administrative Law Judge determines the motion should be granted, he shall issue an order and appropriate subpoenas, if necessary, for the taking of such discovery together with the conditions and terms thereof.

MOTIONS

§ 164.60 Motions.

(a) *General.* All motions, except those made orally during the course of a public hearing or as otherwise provided by this part, shall be in writing and shall state with particularity the grounds therefor, shall set forth the relief or order sought, and shall be filed with the hearing clerk and served on all parties.

(b) *Response to motions.* Within 10 days after service of any motion filed pursuant to this part, or within such other time as may be fixed by the Administrator, his designee, or the Administrative Law Judge, any party may serve and file an answer to the motion. The movant shall, if requested by the Administrator, his designee, or the Administrative Law Judge, serve and file reply papers within the time set by the request.

(c) *Decision.* The Administrative Law Judge shall rule upon all motions filed or made prior to the filing of his initial or accelerated decision at the time of filing on ex parte motions or where the movant has stated that no party objects to the granting of such motion. Otherwise, such decision shall await the answering papers and reply papers if permitted. The Environmental Appeals Board shall rule upon all motions filed after the filing of the initial or accelerated decision. Oral argument of motions will be permitted only if the Administrative Law Judge or the Environmental Appeals Board deems it necessary.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5343, Feb. 13, 1992]

SUBPOENAS AND WITNESS FEES

§ 164.70 Subpoenas.

(a) The attendance of witnesses or the production of documentary evidence may, by subpoena, be required at any designated place of hearing or place of discovery. Subpoenas may be issued by the Administrative Law Judge sua sponte or upon a showing by an applicant that evidence sought for hearing is relevant and material to the issues involved in the hearing or that the sought discovery pursuant to § 164.51 meets the standards set forth

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therein. The Administrative Law Judge shall be guided by the principles of the Federal Rules of Civil Procedure in making any order for the protection of a witness or the content of the documents produced.

(b) Motion for subpoena duces tecum. Subpoenas for the production of documentary evidence, unless issued by the Administrative Law Judge sua sponte, shall be issued only upon a written motion. Such motion shall specify, as exactly as possible, the documents desired.

(c) Service of subpoenas. Subpoenas shall be served as provided by the Federal Rules of Civil Procedure.

§ 164.71 Fees of witnesses.

Witnesses summoned before the Administrative Law Judge shall be paid the same fees and mileage that are paid witnesses in the courts of the United States, and persons whose depositions are taken, and the persons taking the same, shall be entitled to the same fees as are paid for like services in the courts of the United States. Fees shall be paid by the party at whose instance the witness appears or the deposition is taken.

THE HEARINGS

§ 164.80 Order of proceeding and burden of proof.

(a) At the hearing, the proponent of cancellation or change in classification has the burden of going forward to present an affirmative case for the cancellation or change in classification of the registration. In the case of the denial of an application for registration, the applicant shall have the burden of going forward. In the case of a hearing called by the Administrator, the Respondent has the burden of going forward to present an affirmative case as to the statement of issues. The party having the burden of going forward shall have the opportunity to submit evidence on rebuttal.

(b) On all issues arising in connection with the hearing, the ultimate burden of persuasion shall rest with the proponent of the registration.

(c) If any party, other than Respondent, after being duly notified, fails to appear at the hearing, he shall be

deemed to have authorized the Administrative Law Judge to dismiss the proceeding with or without prejudice, as the Administrative Law Judge may determine, unless a motion excusing the failure to appear has been made and granted. In the event that a party appears at the hearing and no representative of the Agency appears, the Administrative Law Judge shall proceed *ex parte* to hear the evidence of the party: *Provided*, That failure on the part of Respondent to appear at a hearing shall not be deemed to be a waiver of Respondent's right to file proposed findings of fact, conclusions of law and orders, to be served with a copy of the Administrative Law Judge's initial or accelerated decision, and to file exceptions with and to submit argument before the Administrator with respect thereto.

§ 164.81 Evidence.

(a) *General*. The Administrative Law Judge shall admit all relevant, competent and material evidence, except evidence that is unduly repetitious. Relevant, competent and material evidence may be received at any hearing even though inadmissible under the rules of evidence applicable to judicial proceedings. The weight to be given evidence shall be determined by its reliability and probative value. In all hearings the testimony of witnesses shall be taken orally, except as otherwise provided by these rules or by the Administrative Law Judge. Parties, however, shall have the right to cross-examine a witness who appears at the hearing, provided that such cross examination is not unduly repetitious.

(b) *Report of a committee of the National Academy of Sciences*. If questions have been submitted to a committee designated by the National Academy pursuant to § 164.50(e), the report of the committee, other material that may be required by the Administrator and a list of witnesses and evidence relied upon shall be received into evidence and made part of the record of the hearing. Objections to the report may also be made part of the record and go to the weight of its evidentiary value.

(c) *Objections*. If a party objects to the admission or rejection of any evidence or the limitation of the scope of

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any examination or cross-examination, he shall state briefly the grounds for such objection. The transcript shall include any argument or debate thereon, unless the Administrative Law Judge, with the consent of all parties, orders that such argument not be transcribed. The ruling and the reasons given therefor by the Administrative Law Judge on any objection shall be a part of the transcript. An automatic exception to that ruling will follow.

(d) *Exhibits.* Except where the Administrative Law Judge finds that the furnishing of copies is impracticable, a copy of each exhibit filed with the Administrative Law Judge shall be furnished to each other party. A true copy of an exhibit may, in the discretion of the Administrative Law Judge, be substituted for the original.

(e) *Official Notice.* Official notice may be taken of Agency proceedings, any matter judicially noticed in the Federal courts, and of other facts within the specialized knowledge and experience of the Agency. Any active party shall be given adequate opportunity to show that such facts are erroneously noticed by presenting evidence to the contrary.

(f) *Offer of proof.* Whenever evidence is deemed inadmissible, the party offering such evidence may make an offer of proof, which shall be included in the transcript. The offer of proof for excluded oral testimony shall consist of a brief statement describing the nature of the evidence excluded. If the evidence consists of a document or exhibit, it shall be inserted in the record in total. In the event the Environmental Appeals Board decides that the Administrative Law Judge's ruling in excluding the evidence was erroneous and prejudicial, the hearings may be reopened to permit the taking of such evidence, or where appropriate, the Environmental Appeals Board may evaluate the evidence and proceed to a final decision.

(g) *Verified statements.* With the approval of the Administrative Law Judge, a witness may insert into the record, as his testimony, statements of fact or opinion prepared by him or written answers to interrogatories of counsel, or may submit as an exhibit his prepared statement, provided that

such statements or answers must not include legal argument. Before any such statement or answer is read or admitted into evidence the witness shall deliver to the Administrative Law Judge, the reporter, and opposing counsel a copy of such. The admissibility of the evidence contained in such statement shall be subject to the same rules as if such testimony were produced in the usual manner and the witness shall be subject to oral cross-examination on the contents of such statements. Approval for such a procedure may be denied when it appears to the Administrative Law Judge that the memory or the demeanor of the witness is of importance.

[38 FR 19371, July 20, 1973, as amended at 40 FR 25815, June 19, 1975; 57 FR 5343, Feb. 13, 1992]

§ 164.82 Transcripts.

(a) *Filing and certification.* Hearings shall be stenographically reported, transcribed and made available to the public as required by statute or Agency regulations. As soon as practicable after the taking of the last evidence, the Administrative Law Judge shall certify (1) that the original transcript is a true transcript of the testimony offered or received at the hearing, except in such particulars as he shall specify and (2) that the exhibits accompanying the transcript are all the exhibits introduced at the hearing, with such exceptions as he shall specify. A copy of such certificate shall be attached to each of the copies of the transcript.

(b) [Reserved]

INITIAL OR ACCELERATED DECISION

§ 164.90 Initial decision.

(a) *Proposed findings of fact, conclusions, and order.* Within 20 days after the last evidence is taken in a hearing, each party may file with the hearing clerk proposed orders, findings of fact, and conclusions of law based solely on the record, and a brief in support thereof. Within 10 days thereafter, each party may file a reply brief. The Administrative Law Judge may, in his discretion, extend the total time period for filing any proposed findings, conclusions, orders or briefs for an additional 30 days. In such instances, briefs

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and replies shall be due at such time as the Administrative Law Judge may fix by order. The hearing shall be deemed closed at the conclusion of the briefing period.

(b) *Initial decision.* The Administrative Law Judge, within 25 days after the close of the hearing, shall evaluate the record before him, and prepare and file his initial decision with the hearing clerk. A copy of the initial decision shall be served upon each of the parties, and the hearing clerk shall immediately transmit a copy to the Environmental Appeals Board. The initial decision shall become the decision of the Environmental Appeals Board without further proceedings unless an appeal is taken from it or the Environmental Appeals Board orders review of it, pursuant to § 164.101.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5343, Feb. 13, 1992]

§ 164.91 Accelerated decision.

(a) *General.* The Administrative Law Judge, in his discretion, may at any time render an accelerated decision in favor of Respondent as to all or any portion of the proceeding, including dismissal without further hearing or upon such limited additional evidence such as affidavits as he may receive, under any of the following conditions:

(1) Untimely or insufficient objections filed pursuant to § 164.20;

(2) Failure to comply with discovery orders;

(3) Failure to comply with prehearing orders;

(4) Failure to appear or to proceed at prehearing conferences;

(5) Failure to appear at the hearing;

(6) Failure to state a claim upon which relief can be granted, or direct or collateral estoppel.

(7) That there is no genuine issue of any material fact and that the respondent is entitled to judgment as a matter of law; or

(8) Such other and further reasons as are just.

(b) *Effect.* A decision rendered under this section shall have the same force and effect as an initial decision entered under § 164.90.

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APPEALS

§ 164.100 Appeals from or review of interlocutory orders or rulings.

Except as provided herein, appeals as a matter of right shall lie to the Environmental Appeals Board only from an initial or accelerated decision of the Administrative Law Judge. Appeals from other orders or rulings shall, except as provided in this section, lie only if the Administrative Law Judge certifies such orders or rulings for appeal, or otherwise as provided. The Administrative Law Judge may certify an order or ruling for appeal to the Environmental Appeals Board when: (a) The order or ruling involves an important question of law or policy about which there is substantial ground for difference of opinion; and (b) either (1) an immediate appeal from the order and ruling will materially advance the ultimate termination of the proceeding or (2) review after the final judgment is issued will be inadequate or ineffective. The Administrative Law Judge shall certify orders or rulings for appeal only upon the request of a party. If the Environmental Appeals Board determines that certification was improvidently granted, or takes no action within thirty (30) days of the certification, the appeal shall be deemed dismissed. When an order or ruling is not certified by the Administrative Law Judge, it shall be reviewed by the Environmental Appeals Board only upon appeal from the initial or accelerated decision except when the Environmental Appeals Board determines, upon request of a party and in exceptional circumstances, that delaying review would be deleterious to vital public or private interests. Except in extraordinary circumstances proceedings will not be stayed pending an interlocutory appeal; where a stay is granted, a stay of more than 30 days must be approved by the Environmental Appeals Board. Ordinarily, the interlocutory appeal will be decided on the basis of the submission made to the Administrative Law Judge, but the Environmental Appeals Board may allow further briefs and oral argument.

[57 FR 5343, Feb. 13, 1992]

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§ 164.101 Appeals from or review of initial decisions.

(a) *Exceptions and request for oral argument.* (1) Within 20 days after the filing of the Administrative Law Judge's initial decision, each party may take exception to any matter set forth in such decision or to any adverse order or ruling to which he objected during the hearing and may appeal such exceptions to the Environmental Appeals Board for decision by filing them in writing with the hearing clerk, including a section containing proposed findings of fact, conclusions, orders, or rulings. Within the same period of time each party filing exceptions and amicus curiae shall file with the hearing clerk a brief concerning each of the exceptions being appealed. The party shall include, in its brief, page references to the relevant portions of the record and to the Administrative Law Judge's initial decision.

(2) Within 7 days of the service of exceptions, and of a brief under paragraph (a)(1) of this section, any other party or amicus curiae may file and serve a brief responding to exceptions or arguments raised by any other party. Such brief shall include references to the relevant portions of the record. Such brief shall not, however, raise additional exceptions.

(3) Five copies of all material filed under this section shall be filed with the hearing clerk.

(b) *Review by Administrator when no exceptions are filed.* If no exceptions are filed within the time provided, the hearing clerk shall notify the Administrator 30 days from the date of filing of the Administrative Law Judge's initial decision. Within 10 days after said notification, the Environmental Appeals Board shall issue an order either declining review of the initial decision or expressing its intent to review said initial decision. Such order may include a statement of issues to be briefed by the parties and a time schedule concerning service and filing of briefs adequate to allow the Environmental Appeals Board to issue a final order within 90 days from the close of the hearing.

(c) *Argument before the Environmental Appeals Board.* (1) A party, if he files exceptions and a brief, shall state in writing whether he desires to make an

oral argument thereon before the Environmental Appeals Board; otherwise, he shall be deemed to have waived such oral argument. The Environmental Appeals Board shall, however, on its own initiative, have the right to set an appeal for oral argument.

(2) If the Environmental Appeals Board determines that additional exceptions should be argued, counsel for the parties shall be given reasonable written notice of such determination so as to permit preparation of adequate argument on all of the exceptions to be argued.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5343, Feb. 13, 1992]

§ 164.102 Appeals from accelerated decisions.

(a) Within 20 days after filing of an accelerated decision by the Administrative Law Judge, any party may file exceptions and a supporting brief with the hearing clerk, stating with particularity the grounds upon which he asserts that the decision is incorrect. The party shall include in its brief page references to the relevant portions of the record, if applicable.

(b) Within 7 days of the service of exceptions and brief under paragraph (a) of this section, any other party or amicus curiae may file and serve a brief responding thereto, with appropriate page references to the relevant portions of the record, if applicable.

(c) Ordinarily, the appeal from an accelerated decision will be decided on the basis of the submission of briefs, but the Environmental Appeals Board may allow additional briefs and oral argument.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5343, Feb. 13, 1992]

§ 164.103 Final decision or order on appeal or review.

Within 90 days after the close of the hearing or within 90 days from the filing of an accelerated decision, unless otherwise stipulated by the parties, the Environmental Appeals Board shall, on appeal or review from an initial or accelerated order of the Administrative Law Judge, issue its final decision and order, including its rulings on any exceptions filed by the parties; such final

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order may accept or reject all or part of the initial or accelerated decision of the Administrative Law Judge even if acceptable to the parties.

[57 FR 5343, Feb. 13, 1992]

§ 164.110 Motion for reopening hearings; for rehearing; for reargument of any proceeding; or for reconsideration of order.

(a) *Filing; service.* A motion for reopening the hearing to take further evidence, or for rehearing or reargument of any proceeding or for reconsideration of the order, must be made by motion to the Environmental Appeals Board filed with the hearing clerk. Every such motion must state specifically the grounds relied upon.

(b) *Motion to reopen hearings.* A motion to reopen a hearing to take further evidence may be filed at any time prior to the issuance of the Administrator's final order. Every such motion shall state briefly the nature and purpose of the evidence to be adduced, shall show that such evidence is not merely cumulative, and shall set forth good reason why such evidence was not adduced at a hearing.

(c) *Motions to rehear or reargue proceedings, or to reconsider final orders.* A motion to rehear or reargue the proceeding or to reconsider the final order shall be filed within 10 days after the date of service of the final order. Every such motion must state specifically the matters claimed to have been erroneously decided, and alleged errors must be briefly stated. Motions to rehear or reargue proceedings or to reconsider final orders shall be directed to, and heard by, the Environmental Appeals Board. Motions under this section directed to the Administrator will not be considered, except in cases that the Environmental Appeals Board has referred to the Administrator pursuant to § 164.2(g) and in which the Administrator has issued the final order. A motion for reconsideration shall not stay the effective date of the final order unless specifically so ordered by the Environmental Appeals Board.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5343, Feb. 13, 1992]

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§ 164.111 Procedure for disposition of motions.

Within 7 days following the service of any motion provided for in § 164.110, any other party to the proceeding may file with the hearing clerk an answer thereto. As soon as practicable thereafter, the Environmental Appeals Board shall announce its decision whether to grant or to deny the motion. Unless the Environmental Appeals Board shall determine otherwise, operation of the order shall not be stayed pending the decision to grant or to deny the motion. In the event that any such motion is granted by the Environmental Appeals Board, the applicable rules of practice, as set out elsewhere herein, shall be followed.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5344, Feb. 13, 1992]

Subpart C—General Rules of Practice for Expedited Hearings

§ 164.120 Notification.

(a) Whenever the Administrator determines that action is necessary to prevent an imminent hazard during the time required for cancellation or change in classification proceedings, but that the hazard does not constitute an emergency, he shall notify the registrant of his intention to suspend registration of the pesticide at issue.

(b) Such notice shall include findings pertaining to the question of imminent hazard and shall either be personally served on the registrant or be sent to the registrant by registered or certified mail, return receipt requested, and filed with the hearing clerk.

§ 164.121 Expedited hearing.

(a) *Request.* (1) An expedited hearing shall be held whenever the Administrator has received from the registrant a timely request for such hearing in response to the Administrator's notice of intention to suspend.

(2) A request for an expedited hearing is timely if made in writing or by telegram and filed with the office of the hearing clerk within 5 days of the registrant's receipt of the notice of intention to suspend.

(3) At the time of filing a request for an expedited hearing, the registrant

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shall also file a document setting forth objections to the Administrator's notice of intention to suspend and its findings pertaining to the question of imminent hazard. Such objections shall conform to the requirements of § 164.21.

(b) *Presiding officer.* (1) An expedited hearing shall be conducted by a presiding officer appointed by the Administrator, and such officer need not be an Administrative Law Judge.

(2) The presiding officer shall not have the authority to make an initial decision on the merits but shall make a recommended decision only.

(c) *The issue.* The expedited hearing shall address only the issue of whether an imminent hazard exists.

(d) *Time of hearing.* The hearing shall commence within 5 days after the filing of the request with the office of the hearing clerk unless the registrant and respondent agree that it shall commence at a later time. As soon as possible, the presiding officer shall publish in the Federal Register notice of such hearing.

(e) *Intervention.* Any person adversely affected by the Administrator's notice may move to intervene within 5 days after the receipt by the registrant of said notice or at any time prior to the conclusion of the presentation of the evidence, upon good cause found, except

(1) Leave to intervene will be granted only if the motion to intervene meets the standards of § 164.31 and, in addition, indicates that the movant would raise matters or introduce evidence pertinent to the issue of imminent hazard which would substantially assist in its resolution.

(2) A movant denied permission to intervene under this section but who otherwise meets the standards of § 164.31 and who is adversely affected may file proposed findings and conclusions and briefs in support thereof pursuant to paragraph (j) of this section. Any person filing under this subsection shall be deemed to have been a party to the proceeding, for all purposes of its further review.

(3) When an "emergency order" is issued pursuant to § 164.123, no person other than the respondent and the registrant shall participate in the hearing except that any person adversely af-

fected may file proposed findings and conclusions and briefs in support thereof pursuant to paragraph (j) of this section. Any person filing under this subsection shall be deemed to have been a party to the proceeding for all purposes of its further review.

(f) *Appearances and consolidation.* The provisions of §§ 164.30 and 164.32 apply to an expedited hearing insofar as may be practicable.

(g) *Order of proceeding and burden of proof.* At the hearing, the proponent of suspension shall have the burden of going forward to present an affirmative case for the suspension. However, the ultimate burden of persuasion shall rest with the proponent of the registration.

(h) *Evidence.* The provisions of § 164.81, where applicable, apply to an expedited hearing.

(i) *Transcripts.* The presiding officer shall make provision for daily transcripts and otherwise comply with the provisions of § 164.82.

(j) *Proposed findings or conclusions; recommended decision.* (1) Within 4 days of the conclusion of the presentation of evidence, the parties may propose findings and conclusions to the Presiding Officer. Such proposed findings and conclusions shall be accompanied by a brief with supporting reasons.

(2) Within 8 days of the conclusion of the presentation of evidence, the Presiding Officer shall submit to the parties his proposed recommended findings and conclusions and a statement of the reasons on which they are based.

(3) Within 10 days of the conclusion of the presentation of evidence the Presiding Officer shall submit to the Environmental Appeals Board his recommended findings and conclusions, together with the record.

(4) Within 12 days of the conclusion of the presentation of evidence the parties shall submit to the Environmental Appeals Board their objections to the Presiding Officer's recommended findings and conclusions and written briefs in support thereof.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5344, Feb. 13, 1992]

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§ 164.122 Final order and order of suspension.

(a) *Final order.* Within 7 days of receipt of the record and of the Presiding Officer's recommended findings and conclusions, the Environmental Appeals Board shall issue a final decision and order. Such final order may accept or reject in whole or in part the recommendations of the Presiding Officer.

(b) *Order of suspension.* No final order of suspension shall be issued unless the Environmental Appeals Board has issued or at the same time issues a notice of its intention to cancel the registration or change the classification of the pesticide. Such notice shall be given as provided in § 164.8.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5344, Feb. 13, 1992]

§ 164.123 Emergency order.

(a) Whenever the Environmental Appeals Board determines that an emergency exists that does not permit him to hold a hearing before suspension, the Environmental Appeals Board may issue a suspension order in advance of notification to the registrant.

(b) The Environmental Appeals Board shall immediately notify the registrant of the suspension order. The registrant may then request a hearing in accordance with §§ 164.121 and 164.122, but the suspension order shall remain in effect during the hearing pending the issuance of a final order on suspension.

[38 FR 19371, July 20, 1973, as amended at 57 FR 5344, Feb. 13, 1992]

Subpart D—Rules of Practice for Applications Under Sections 3 and 18 To Modify Previous Cancellation or Suspension Orders

AUTHORITY: Sec. 25(a) and 6 of the Federal Insecticide, Fungicide, and Rodenticide Act, as amended by the Federal Environmental Pesticide Control Act of 1972 (86 Stat. 997).

SOURCE: 40 FR 12265, Mar. 18, 1975, unless otherwise noted.

§ 164.130 General.

EPA has determined that any application under section 3 or section 18 of the Act to allow use of a pesticide at a site and on a pest for which registra-

tion has been finally cancelled or suspended by the Administrator constitutes a petition for reconsideration of such order. Because of the extensive notice and hearing opportunities mandated by FIFRA and the Administrative Procedures Act before a final cancellation or suspension order may be issued, EPA has determined that such orders may not be reversed or modified without affording interested parties—who may in fact have participated in lengthy cancellation proceedings—similar notice and hearing opportunities. The procedures set forth in this subpart D shall govern all such applications.

§ 164.131 Review by Administrator.

(a) The Administrator will review applications subject to this subpart D and supporting data submitted by the applicant to determine whether reconsideration of the Administrator's prior cancellation or suspension order is warranted. The Administrator shall determine that such reconsideration is warranted when he finds that: (1) The applicant has presented substantial new evidence which may materially affect the prior cancellation or suspension order and which was not available to the Administrator at the time he made his final cancellation or suspension determination and (2) such evidence could not, through the exercise of due diligence, have been discovered by the parties to the cancellation or suspension proceeding prior to the issuance of the final order.

(b) If after review of the application and other supporting data submitted by the applicant, the Administrator determines, in accordance with paragraph (a) of this section, that reconsideration of his prior order is not warranted, then the application will be denied without requirement for an administrative hearing. The Administrator shall publish notice in the FEDERAL REGISTER of the denial briefly describing the basis for his determination as soon as practicable. Such denial shall constitute final agency action.

(c) If after review of the application and other supporting data submitted

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by the applicant, the Administrator determines, in accordance with paragraph (a) of this section, that reconsideration of his prior order is warranted, he will then publish notice in the FEDERAL REGISTER setting forth his determination and briefly describing the basis for the determination. Such notice shall announce that a formal public hearing will be held in accordance with 5 U.S.C. section 554. The notice shall specify: (1) The date on which the hearing will begin and end, (2) the issues of fact and law to be adjudicated at the hearing, (3) the date on which the presiding officer shall submit his recommendations, including findings of fact and conclusions, to the Administrator, and (4) the date on which a decision by the Administrator is anticipated.

§ 164.132 Procedures governing hearing.

(a) The burden of proof in the hearing convened pursuant to § 164.131 shall be on the applicant and he shall proceed first. The issues in the hearing shall be whether: (1) Substantial new evidence exists and (2) such substantial new evidence requires reversal or modification of the existing cancellation or suspension order. The determination of these issues shall be made taking into account the human and environmental risks found by the Administrator in his cancellation or suspension determination and the cumulative effect of all past and present uses, including the requested use, and uses which may reasonably be anticipated to occur in the future as a result of granting the requested reversal or modification. The granting of a particular petition for use may not in itself pose a significant risk to man or the environment, but the cumulative impact of each additional use of the cancelled or suspended pesticide may re-establish, or serve to maintain, the significant risks previously found by the Administrator.

(b) The presiding officer shall make recommendations, including findings of fact and conclusions and to the extent feasible, as determined by the presiding officer, the procedures at the hearing shall follow the Rules of Practice, set forth in subparts A and B of this part 164.

§ 164.133 Emergency waiver of hearing.

(a) In the case of an application subject to this subpart D which is filed under section 18 of FIFRA, and regulations thereunder, and for which a hearing is required pursuant to § 164.131, the Administrator may dispense with the requirement of convening such a hearing in any case in which he determines:

(1) That the application presents a situation involving need to use the pesticide to prevent an unacceptable risk: (i) To human health, or (ii) to fish or wildlife populations when such use would not pose a human health hazard; and

(2) That there is no other feasible solution to such risk; and

(3) That the time available to avert the risk to human health or fish and wildlife is insufficient to permit convening a hearing as required by § 164.131; and

(4) That the public interest requires the granting of the requested use as soon as possible.

(b) Notice of any determination made by the Administrator pursuant to paragraph (a) of this section shall be published in the FEDERAL REGISTER as soon as practicable after granting the requested use and shall set forth the basis for the Administrator's determination.

PART 166—EXEMPTION OF FEDERAL AND STATE AGENCIES FOR USE OF PESTICIDES UNDER EMERGENCY CONDITIONS

Subpart A—General Provisions

Sec.

166.1 Purpose and organization.

166.2 Types of exemptions.

166.3 Definitions.

166.7 User notification; advertising.

Subpart B—Specific, Quarantine, and Public Health Exemptions

166.20 Application for a specific, quarantine, or public health exemption.

166.22 Consultation with the Secretary of Agriculture and Governors of the States.

166.24 Public notice of receipt of application and opportunity for public comment.

166.25 Agency review.

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- 166.32 Reporting and recordkeeping requirements for specific, quarantine, and public health exemptions.
- 166.34 EPA review of information obtained in connection with emergency exemptions.
- 166.35 Revocation or modification of exemptions.

Subpart C—Crisis Exemptions

- 166.40 Authorization.
- 166.41 Limitations.
- 166.43 Notice to EPA and registrants or basic manufacturers.
- 166.45 Duration of crisis exemption.
- 166.47 Notification of FDA, USDA, and State health officials.
- 166.49 Public notice of crisis exemptions.
- 166.50 Reporting and recordkeeping requirements for crisis exemptions.
- 166.53 EPA review of crisis exemption and revocation of authority.

AUTHORITY: 7 U.S.C. 136–136y.

SOURCE: 51 FR 1902, Jan. 15, 1986, unless otherwise noted.

Subpart A—General Provisions

§ 166.1 Purpose and organization.

(a) *Purpose and scope.* Section 18 of the Act authorizes the Administrator to exempt State and Federal agencies from any provision of the Act, if he determines that emergency conditions exist which require an exemption. The regulations in this part establish procedures whereby the Administrator may exempt a Federal or State agency from the provisions of the Act which regulate the manner in which a pesticide is made available for use or is used.

(b) *Organization.* (1) The provisions in subpart A of this part describe the four types of emergency exemptions authorized by the Agency and define terms used in this part.

(2) Subpart B of this part establishes procedures and criteria for specific, quarantine, and public health exemptions.

(3) Subpart C of this part establishes procedures and criteria for crisis exemptions.

§ 166.2 Types of exemptions.

There are four types of emergency exemptions which may be authorized: specific, quarantine, public health, and crisis exemptions.

(a) *Specific exemption.* A specific exemption may be authorized in an emergency condition to avert:

- (1) A significant economic loss; or
- (2) A significant risk to:
 - (i) Endangered species,
 - (ii) Threatened species,
 - (iii) Beneficial organisms, or
 - (iv) The environment.

(b) *Quarantine exemption.* A quarantine exemption may be authorized in an emergency condition to control the introduction or spread of any pest new to or not theretofore known to be widely prevalent or distributed within and throughout the United States and its territories.

(c) *Public health exemption.* A public health exemption may be authorized in an emergency condition to control a pest that will cause a significant risk to human health.

(d) *Crisis exemption.* A crisis exemption may be utilized in an emergency condition when the time from discovery of the emergency to the time when the pesticide use is needed is insufficient to allow for the authorization of a specific, quarantine, or public health exemption.

§ 166.3 Definitions.

Terms used in this part shall have the meanings established by the Federal Insecticide, Fungicide, and Rodenticide Act. In addition, as used in this part, the following terms shall also apply:

(a) The term *the Act* means the Federal, Insecticide, Fungicide, and Rodenticide Act, as amended, 7 U.S.C. 136 *et seq.*

(b) The terms *the Agency* and *EPA* mean the U.S. Environmental Protection Agency.

(c) The term *beneficial organism* means any pollinating insect, or any pest predator, parasite, pathogen or other biological control agent which functions naturally or as part of an integrated pest management program to control another pest.

(d) The term *emergency condition* means an urgent, non-routine situation that requires the use of a pesticide(s) and shall be deemed to exist when:

(1) No effective pesticides are available under the Act that have labeled uses registered for control of the pest

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under the conditions of the emergency; and

(2) No economically or environmentally feasible alternative practices which provide adequate control are available; and

(3) The situation:

(i) Involves the introduction or dissemination of a pest new to or not theretofore known to be widely prevalent or distributed within or throughout the United States and its territories; or

(ii) Will present significant risks to human health; or

(iii) Will present significant risks to threatened or endangered species, beneficial organisms, or the environment; or

(iv) Will cause significant economic loss due to:

(A) An outbreak or an expected outbreak of a pest; or

(B) A change in plant growth or development caused by unusual environmental conditions where such change can be rectified by the use of a pesticide(s).

(e) The term *first food use* refers to the use of a pesticide on a food or in a manner which otherwise would be expected to result in residues in a food, if no permanent tolerance, exemption from the requirement of a tolerance, or food additive regulation for residues of the pesticide on any food has been established for the pesticide under section 408 (d) or (e) or 409 of the Federal Food, Drug, and Cosmetic Act.

(f) The term *food* means any article used for food or drink for man or animals.

(g) The term *new chemical* means an active ingredient not contained in any currently registered pesticide.

(h) The term *significant economic loss* means that, under the emergency conditions: for a productive activity, the profitability would be substantially below the expected profitability for that activity; or, for other types of activities, where profits cannot be calculated, the value of public or private fixed assets would be substantially below the expected value for those assets. Only losses caused by the emergency conditions, specific to the impacted site, and specific to the geographic area affected by the emergency

conditions are included. The contribution of obvious mismanagement to the loss will not be considered in determining loss. In evaluating the significance of an economic loss for productive activities, the Agency will consider whether the expected reduction in profitability exceeds what would be expected as a result of normal fluctuations over a number of years, and whether the loss would affect the long-term financial viability expected from the productive activity. In evaluating the significance of an economic loss for situations other than productive activities, the Agency will consider reasonable measures of expected loss.

(i) The term *Special Review* refers to any interim administrative review of the risks and benefits of the use of a pesticide conducted pursuant to the provisions of EPA's Rebuttable Presumption Against Registration rules, 40 CFR 162.11(a), or any subsequent version of those rules.

(j) The term *unreasonable adverse effects on the environment* means any unreasonable risk to man or the environment, taking into account the economic, social, and environmental costs and benefits of the use of any pesticide.

§ 166.7 User notification; advertising.

(a) A State or Federal agency that obtains an exemption may notify eligible users of the availability of the exempted pesticide(s) through user groups, retail dealers, and other means. Notification may include distributing copies of the section 18 approval letter, labeling, or other information to eligible persons.

(b) As set forth more fully in § 168.22 of this chapter, EPA interprets FIFRA sections 12(a)(1) (A) and (B) as making it unlawful for any person who distributes, sells, offers for sale, holds for sale, ships, delivers for shipment, or receives and (having so received) delivers or offers to deliver any pesticide, to advertise the pesticide for any use authorized by an emergency exemption, except for advertisements that are placed in media that address only persons in the geographical area to which the exemption applies, state the name and address of one or more retail dealers where users may buy the pesticide, and contain a prominent notice of the

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limitations on use under the emergency exemption. EPA may withdraw an exemption if the use of the pesticide covered by the exemption is advertised unlawfully.

[54 FR 1125, Jan. 11, 1989]

Subpart B—Specific, Quarantine, and Public Health Exemptions

§ 166.20 Application for a specific, quarantine, or public health exemption.

(a) *General information required in an application for a specific, quarantine or public health exemption.* An application must be submitted in writing by the head of the Federal or State agency, the Governor of the State involved, or their official designee. If a designee has been delegated authority to request exemptions, written authorization of such delegation must accompany the request or be on file with the Agency. In addition, the application must contain all applicable information specified in paragraphs (a) (1) through (11) of this section.

(1) *Identity of contact persons.* (i) Unless otherwise specified, the person who submits the application will be considered the contact person for all matters relating to administration of the emergency exemption.

(ii) Requests should identify by name and telephone number one or more qualified experts who may be contacted in case any questions arise concerning the application.

(2) *Description of the pesticide.* The application shall contain a description of the pesticide(s) proposed for use under the exemption. Such information shall include:

(i) For a federally registered pesticide product:

(A) The registration number and the name of the pesticide product if a specific product is requested; or the formulation(s) requested if a specific product is not desired; and

(B) A copy of any additional labeling proposed for the emergency exemption; or

(ii) For any other pesticide products:

(A) A confidential statement of formula or reference to one already submitted to the Agency; and

(B) Complete labeling to be used in connection with the proposed exemption use.

(3) *Description of the proposed use.* The application shall identify all of the following:

(i) Sites to be treated, including their locations within the State;

(ii) The method of application;

(iii) The rate of application in terms of active ingredient and product;

(iv) The total acreage or other appropriate unit proposed to be treated;

(v) The total amount of pesticide proposed to be used in terms of both active ingredient and product; and

(vi) All applicable restrictions and requirements concerning the proposed use and the qualifications of applicators using the pesticide.

(4) *Alternative methods of control.* The application shall contain:

(i) A detailed explanation of why the pesticide(s) currently registered for the particular use proposed in the application is not available in adequate supplies and/or effective to the degree needed to control the emergency. If the applicant states that an available registered pesticide is ineffective for the given situation, the statement must be supported by field data which demonstrate ineffectiveness of registered pesticides, or, if such data are unavailable, statements by qualified agricultural experts, extension personnel, university personnel or other persons similarly qualified in the field of pest control; and

(ii) A detailed explanation of why alternative practices, if available, either would not provide adequate control or would not be economically or environmentally feasible.

(5) *Effectiveness of proposed use.* The application shall contain data, a discussion of field trials, or other evidence which provide the basis for the conclusion that the proposed pesticide treatment will be effective in dealing with the emergency.

(6) *Discussion of residues for food uses.* If the proposed use is expected to result in residues of the pesticide in or on food, the application shall list the food likely to contain such residues and shall contain an estimate of the maximum amount of the residue likely to result from the proposed use, together

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with the information on which such estimates are based.

(7) *Discussion of risk information.* The application shall address the potential risks to human health, endangered or threatened species, beneficial organisms, and the environment expected to result from the proposed use, together with references to data and other supporting information.

(8) *Coordination with other affected State or Federal agencies.* If the proposed use of the pesticide is likely to be of concern to other Federal or State agencies, the application shall indicate that such agencies have been contacted prior to submission of the application, and any comments received from such agencies shall be submitted to EPA.

(9) *Notification of registrant or basic manufacturer.* The application shall contain a statement that the registrants of all pesticide products proposed for use or, if appropriate, the basic manufacturer have been notified that a request has been made to the Agency for use of the pesticide under a specific, quarantine, or public health exemption.

(10) *Description of proposed enforcement program.* Prior to approval, the applicant shall provide an explanation of the authority of the applicant or related State or Federal agencies for ensuring that use of the pesticide under the proposed exemption would comply with any special requirements imposed by the Agency and a description of the program and procedures for assuring such compliance.

(11) *Repeated uses.* Applications for the use of a pesticide at a site for which the applicant has previously been exempted under section 18 shall contain an interim report summarizing the results of the specific, quarantine, or public health exemption previously issued, if the application is submitted prior to the time the final report for the previous exemption is due. The interim report shall contain that information specified in § 166.32 to the extent available at the time the application is made.

(b) *Information required for a specific exemption.* An application for a specific exemption shall provide all of the following information, as appropriate,

concerning the nature of the emergency:

(1) The scientific and common name of the pest or pest complex;

(2) A discussion of the events which brought about the emergency condition;

(3) A discussion of the anticipated risks to endangered or threatened species, beneficial organisms, or the environment that would be remedied by the proposed use of the pesticide; and

(4) A discussion of the anticipated significant economic loss, together with data and other information supporting the discussion, which addresses all of the following:

(i) Historical net and gross revenues for the site;

(ii) The estimated net and gross revenues for the site without the use of the proposed pesticide; and

(iii) The estimated net and gross revenues for the site with use of the proposed pesticide.

(c) *Information required for a quarantine exemption.* An application for a quarantine exemption shall provide all of the following information concerning the nature of the emergency:

(1) The scientific and common name of pest;

(2) The origin of pest and the means of its introduction or spread if known; and

(3) The anticipated impact of not controlling the pest.

(d) *Information required for a public health exemption.* An application for a public health exemption shall provide all the following information concerning the nature of the emergency:

(1) The scientific and common name of the pest to be controlled and, if the pest is a vector, a description of the disease it is expected to transmit;

(2) A discussion of the magnitude of the health problems which are expected to occur without the pesticide use; and

(3) Discussion of the availability of medical treatment for the health problem.

[51 FR 1902, Jan. 15, 1986, as amended at 58 FR 34203, June 23, 1993]

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§ 166.22 Consultation with the Secretary of Agriculture and Governors of the States.

The Agency, in determining whether or not such emergency conditions exist, shall consult with the Secretary of Agriculture and the Governor of any State concerned if they request such determination.

§ 166.24 Public notice of receipt of application and opportunity for public comment.

(a) *Publication requirement.* The Administrator shall issue a notice of receipt in the FEDERAL REGISTER for a specific quarantine, or public health exemption and request public comment when any one of the following criteria is met:

- (1) The application proposes use of a new chemical;
- (2) The application proposes the first food use of an active ingredient;
- (3) The application proposes any use of a pesticide if the pesticide has been subject to a suspension notice under section 6(c) of the Act;
- (4) The application proposes use of a pesticide which:
 - (i) Was the subject of a notice under section 6(b) of the Act and was subsequently cancelled, and
 - (ii) Is intended for a use that poses a risk similar to the risk posed by any use of the pesticide which was the subject of the notice under section 6(b);
- (5) The application proposes use of a pesticide which:
 - (i) Contains an active ingredient which is or has been the subject of a Special Review, and
 - (ii) Is intended for a use that could pose a risk similar to the risk posed by any use of the pesticide which is or has been the subject of the Special Review;
- (6) The application proposes use of a pesticide for a specific or public health exemption, if:
 - (i) An emergency exemption has been requested or granted for that use in any 3 previous years, and
 - (ii) A complete application for registration of that use and/or a petition for tolerance for residues in or on the commodity has not been submitted to the Agency; or

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(7) The Administrator determines that publication of notice is appropriate.

(b) *Contents.* The notice of receipt of an application for an emergency exemption shall contain the following information:

- (1) The name of the applicant;
- (2) The name of the active ingredient requested for use, including, if available, the common name and the Chemical Abstracts Service (CAS) number;
- (3) The total amount of product or active ingredient proposed for use;
- (4) The geographical location where treatment is proposed;
- (5) The proposed number of acres or other appropriate units proposed to be treated;
- (6) A summary of the applicant's description of the emergency conditions including the pest and the site or crop to be treated;
- (7) A description of the major conditions of use of the pesticide as proposed by the applicant;
- (8) If the pesticide proposed for use meets the criteria of paragraph (a) (3), (4), or (5) of this section, an identification of the types of risks that were the basis for EPA's regulatory action; and
- (9) The name, telephone number, and address of a person in the Agency who can provide further information.

(c) *Length of comment period.* Normally, a notice of receipt shall give the public 15 days in which to file comments on the application. The Administrator may shorten or eliminate the comment period if he determines that the time available for a decision on the application requires it and shall state reasons for such action in a notice in the FEDERAL REGISTER. The Administrator may extend the comment period if additional time for comment is requested and such an extension would not interfere with a timely decision on the application.

§ 166.25 Agency review.

(a) *General.* The Agency will review all requests as expeditiously as possible, making every attempt to respond to requests prior to the time when the proposed use is needed. The Agency will review the application and other

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available data necessary to make a determination with respect to all of the following:

(1) Whether an emergency condition exists or will exist;

(2) The level of residues in or on all food resulting from the proposed use;

(3) The anticipated benefits to be derived from the proposed use; and

(4) The potential risks to the human health, endangered or threatened species, beneficial organisms, and the environment from the proposed use.

(b) *Criteria for approval.* The Administrator may authorize a specific, public health, or quarantine exemption, based on the information available to the Agency, after:

(1) He determines that:

(i) An emergency condition exists;

(ii) The use of the pesticide under the exemption will not cause unreasonable adverse effects on the environment;

(iii) Registration of the pesticide use for which the exemption is requested has not been suspended under section 6(c) of the Act or cancelled following a notice under section 6(b) of the Act, unless the use is authorized in accordance with the provisions of §§ 164.130 through 164.133 of this chapter;

(2) Giving due consideration to:

(i) Whether the pesticide is reasonably likely to be used in compliance with the requirements imposed by the Agency under the exemption; and

(ii) The progress which has been made toward registration of the proposed use, if a repeated specific or public health exemption is sought. It shall be presumed that if a complete application for registration of a use, which has been under a specific or public health exemption for any 3 previous years, has not been submitted, reasonable progress towards registration has not been made.

§ 166.28 Duration of exemption.

(a) *Specific or public health exemptions.* EPA shall allow use of a pesticide under a specific or public health exemption for as long a period as is reasonably expected to be necessary but in no case for longer than 1 year.

(b) *Quarantine exemption.* EPA shall allow use of a pesticide under a quarantine exemption for as long a period as is deemed necessary but in no case

for longer than 3 years. Quarantine exemptions may be renewed. Interim reports containing the information specified in § 166.32(b) to the extent available shall be filed annually.

§ 166.30 Notice of Agency decision.

(a) *Notification of applicants.* The Agency shall notify an applicant of its decision to approve or deny an application request for an emergency exemption in a timely manner.

(1) *Incomplete applications.* The Agency may discontinue the processing of any application which does not contain all of the information required by § 166.20 until such time the additional information is submitted by the applicant.

(2) *Complete applications—(i) Denials.* The Agency shall provide the specific reasons and rationale for denying the exemption request. If the denial is based on a specific information gap, the decision shall be reconsidered in a timely manner when the information gap is filled.

(ii) *Approvals.* The Agency shall provide the specific terms and conditions under which the exempted pesticide may be used.

(b) *Notification of FDA, USDA, and State health officials.* If a use authorized under a specific, quarantine, or public health exemption will result in residues of the pesticide chemical in or on food, the Agency shall notify the Food and Drug Administration, U.S. Department of Health and Human Services, and the Food Safety and Inspection Service, U.S. Department of Agriculture, as appropriate, of the level of residues expected to result. Additionally, the Agency shall ensure that State health and food officials, as appropriate, are also provided with the information specified in this paragraph.

(c) *FEDERAL REGISTER publication.* (1) At least quarterly, the Administrator shall issue a notice in the FEDERAL REGISTER announcing all approvals of specific, quarantine, and public health exemptions. The notice shall contain all of the following:

(i) The name of the applicant;

(ii) The pesticide authorized for use;

(iii) The crop or site to be treated; and

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(iv) The name, address, and telephone number of a person in the Agency who can provide further information.

(2) In addition, if EPA has issued a Notice of Receipt of an application for an exemption, it will issue a notice of its final decision and the reasons for that decision.

§ 166.32 Reporting and recordkeeping requirements for specific, quarantine, and public health exemptions.

(a) *Unexpected adverse effects information.* Any unexpected adverse effects resulting from the use of a pesticide under a specific, quarantine, or public health exemption must be immediately reported to the Agency.

(b) *Final reports.* A report summarizing the results of pesticide use under a specific, quarantine, and public health exemption must be submitted to the Agency within 6 months from the expiration of the exemption unless otherwise specified by the Agency. The information in this report shall include all of the following:

(1) Total acreage, amount of commodity or other unit treated and the total quantity of the pesticide used;

(2) A discussion of the effectiveness of the pesticide in dealing with the emergency condition;

(3) A description of any unexpected adverse effects which resulted from use of the pesticide under the exemption;

(4) The results of any monitoring required and/or carried out under the exemption;

(5) A discussion of any enforcement actions taken in connection with the exemption;

(6) Method(s) of disposition of a food crop, if required to be destroyed under an exemption; and

(7) Any other information requested by the Administrator.

(c) *Records.* Records for all treatments involving the first food use of a pesticide will be maintained by the agency to which the emergency exemption was granted for a minimum of 2 years following the date of expiration of the exemption. On request by the Agency these records shall be made available to the Administrator. Records will include all of the following:

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(1) Locations where the pesticide was applied;

(2) Dates of application (range); and

(3) Total quantity of the pesticide used.

[51 FR 1902, Jan. 15, 1986, as amended at 58 FR 34203, June 23, 1993]

§ 166.34 EPA review of information obtained in connection with emergency exemptions.

EPA shall review information submitted in connection with emergency exemptions and, when applicable, use it in connection with other regulatory decisions under the Act.

§ 166.35 Revocation or modification of exemptions.

(a) *Grounds.* The Administrator may revoke or modify the terms or conditions of a specific, quarantine, or public health exemption if he determines one of the following:

(1) An emergency no longer exists;

(2) Use of the pesticide under the exemption may cause unreasonable adverse effects on the environment;

(3) The pesticide authorized under the exemption is not effective at controlling the pest or conditions causing the emergency; or

(4) The terms and conditions established by the exemption and these regulations are not being complied with.

(b) *Implementation.* The revocation or modification becomes effective as soon as the Administrator notifies the State or Federal agency which submitted the application. Upon notification, the applicant is required immediately to take all necessary steps to assure that further use complies with the terms and conditions of any modification or, if the exemption has been revoked, to stop further use.

Subpart C—Crisis Exemptions

§ 166.40 Authorization.

The head of a Federal or State agency, the Governor of a State, or their official designee, may issue a crisis exemption in situations involving an unpredictable emergency situation when:

(a) An emergency condition exists; and

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(b) The time element with respect to the application of the pesticide is critical, and there is not sufficient time either to request a specific, quarantine, or public health exemption or, if such a request has been submitted, for EPA to complete review of the request.

§ 166.41 Limitations.

The crisis provisions may not be utilized to authorize a pesticide use if any of the following has occurred:

(a) EPA has informed the head of the Federal or State agency, the Governor, or their official designee, not to issue such an exemption;

(b) The pesticide use has been suspended under section 6(c) of the Act;

(c) The pesticide use has been cancelled following a notice issued under section 6(b) of the Act;

(d) The pesticide contains a new chemical; or

(e) The application proposes the first food use of a pesticide.

§ 166.43 Notice to EPA and registrants or basic manufacturers.

(a) *Timing of notice.* (1) When feasible, the State or Federal Agency issuing the crisis exemption must notify the Administrator at least 36 hours in advance of utilization of the crisis provisions. In no case shall notice be given to the Agency later than 24 hours after the decision to avail itself of a crisis exemption.

(2) The State or Federal agency issuing the crisis exemption shall notify the registrant(s) or, if appropriate, the basic manufacturer(s) of the pesticide(s) being used under the crisis exemption at the same time notice is given to EPA or as soon thereafter as possible.

(b) *Contents of notice.* Information required to be provided in notices shall include all of the following:

(1) The name of the active ingredient authorized for use, including, if available, the common name and the Chemical Abstracts Service (CAS) number;

(2) The site on which the pesticide is to be used or is being used;

(3) The use pattern;

(4) The date on which the pesticide use is to begin or the date on which use of the pesticide began;

(5) An estimate of the level of residues of the pesticide expected to result from use under the crisis exemption; and

(6) Any other pertinent information available at the time.

[51 FR 1902, Jan. 15, 1986, as amended at 58 FR 34203, June 23, 1993]

§ 166.45 Duration of crisis exemption.

A crisis exemption may be authorized for:

(a) Only as long as is necessary to control the pest or conditions causing the emergency; and

(b) No longer than 15 days, unless an application requesting a specific, quarantine, or public health exemption for this use has been submitted to the Agency.

§ 166.47 Notification of FDA, USDA, and State health officials.

If a use authorized under a crisis exemption will result in residues of the pesticide chemical in or on food, the Agency will notify the authorizing agency, the Food and Drug Administration, U.S. Department of Health and Human Services and the Food Safety and Inspection Service, U.S. Department of Agriculture, as appropriate, of the level of residues expected to result and whether such residues pose an unacceptable risk to public health. This notice shall be provided as soon as the Agency makes its determination. Additionally, the Agency will ensure that State health and food officials, as appropriate, are also provided with this information.

§ 166.49 Public notice of crisis exemptions.

(a) *Periodic notices.* At least quarterly, the Administrator shall issue a notice in the FEDERAL REGISTER announcing issuance of crisis exemptions. The notice shall contain all of the following:

(1) The name of the State or Federal agency using a crisis exemption;

(2) The name of the active ingredient authorized for use, including, if available, the common name and the Chemical Abstracts Service (CAS) number;

(3) The site to be treated;

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(4) The name, telephone number, and address of a person in the Agency who can provide further information; and

(5) Whether a specific, quarantine, or public health exemption has been requested.

(b) *Annual reports.* Annually, the Agency shall issue a notice in the FEDERAL REGISTER that shall summarize:

(1) The number of crisis exemptions declared; and

(2) The number of crisis exemptions revoked.

§ 166.50 Reporting and recordkeeping requirements for crisis exemption.

(a) *Adverse effects information.* Any adverse effects resulting from the use of a pesticide under a crisis exemption must be immediately reported to the Agency.

(b) *Final reports.* (1) A report summarizing the results of treatment under a crisis exemption will be required to be submitted to the Agency within 3 months following the last date of treatment. If a specific, quarantine, or public health exemption has been approved while the crisis exemption is in effect, however, the crisis exemption report may be incorporated into the specific, quarantine, or public health exemption final report required under § 166.32(b) and submitted at the time it is due.

(2) Information to be included in the crisis exemption report includes the same information as required in § 166.32(b) and an explanation as to why there was a need to utilize the crisis provisions.

(c) *Records.* Records will be maintained for a minimum of 2 years following the date of expiration of the exemption. On request by the Agency, these records shall be made available to the Administrator. Records will include all of the following:

(1) Location where the pesticide was applied;

(2) Dates of application (range); and

(3) Total quantity of the pesticide used.

[51 FR 1902, Jan. 15, 1986, as amended at 58 FR 34203, June 23, 1993]

§ 166.53 EPA review of crisis exemption and revocation of authority.

(a) *Review.* When a crisis exemption is about to be or has already been de-

clared by a State or Federal agency, EPA will undertake an expedited review of the pesticide to determine if use of the pesticide may result in such unreasonable health or environmental risks that the crisis authority should not be exercised or the crisis exemption should be revoked.

(b) *Revocation*—(1) *Individual crisis exemptions.* A crisis exemption for the use of a specific pesticide may be revoked if the Administrator determines that:

(i) There are insufficient data to determine the risks posed from the use;

(ii) Such action is necessary to protect man or the environment; or

(iii) The State or Federal agency is not complying with the requirements of this subpart C.

(2) *State or Federal agency authority.* The Administrator may revoke the authority of a State or Federal agency to issue crisis exemptions for any pesticide if he determines that:

(i) Such action is necessary to protect man or the environment; or

(ii) The State or Federal agency is not complying with the requirements of this subpart C.

(c) *Reason for revocation.* The Agency shall provide the specific reasons for revoking an agency's authority to issue a crisis exemption and for revoking an issued crisis exemption.

PART 167—REGISTRATION OF PESTICIDE AND ACTIVE INGREDIENT PRODUCING ESTABLISHMENTS, SUBMISSION OF PESTICIDE REPORTS

Subpart A—General Provisions

Sec.

167.3 Definitions.

Subpart B—Registration Requirements

167.20 Establishments requiring registration.

Subparts C and D—[Reserved]

Subpart E—Recordkeeping and Reporting Requirements

167.85 Reporting requirements.

167.90 Where to obtain and submit forms.

AUTHORITY: 7 U.S.C. 136 (e) and (w).

SOURCE: 53 FR 35058, Sept. 8, 1988; 54 FR 32638, Aug. 9, 1989, unless otherwise noted.

Subpart A—General Provisions**§ 167.3 Definitions.**

Terms used in this part shall have the meanings set forth for such terms in the Federal Insecticide, Fungicide, and Rodenticide Act. In addition, when used in this part, the following terms shall have the meanings stated below:

Act means the Federal Insecticide, Fungicide, and Rodenticide Act, as amended, 7 U.S.C. 136 *et seq.*

Amount of pesticidal product means quantity, expressed in weight or volume of the product, and is to be reported in pounds for solid or semi-solid pesticides and active ingredients or gallons for liquid pesticides and active ingredients, or number of individual retail units for devices.

Current production [sales or distribution] means amount of planned production in the calendar year in which the pesticides report is submitted, including new pesticidal products not previously sold or distributed.

Custom blender means any establishment which provides the service of mixing pesticides to a customer's specifications, usually a pesticide(s)-fertilizer(s), pesticide-pesticide, or a pesticide-animal feed mixture, when: (1) The blend is prepared to the order of the customer and is not held in inventory by the blender; (2) the blend is to be used on the customer's property (including leased or rented property); (3) the pesticide(s) used in the blend bears end-use labeling directions which do not prohibit use of the product in such a blend; (4) the blend is prepared from registered pesticides; (b) the blend is delivered to the end-user along with a copy of the end-use labeling of each pesticide used in the blend and a statement specifying the composition of mixture; and (6) no other pesticide production activity is performed at the establishment.

Device means any device or class of devices as defined by the Act and determined by the Administrator pursuant to section 25(c) to be subject to the provisions of section 7 of the Act.

Establishment means any site where a pesticidal product, active ingredient, or device is produced, regardless of whether such site is independently owned or operated, and regardless of

whether such site is domestic and producing a pesticidal product for export only, or whether the site is foreign and producing any pesticidal product for import into the United States.

Past year means the calendar year immediately prior to that in which the report is submitted.

Pesticidal product means a pesticide, active ingredient, or device.

Pesticidal product report means information showing the types and amounts of pesticidal products which were: (1) Produced in the past calendar year; (2) produced in the current calendar year; and, (3) sold or distributed in the past calendar year. For active ingredients, the pesticidal product report must include information on the types and amounts of an active ingredient for which there is actual or constructive knowledge of its use or intended use as a pesticide. This pesticidal product report also pertains to those products produced for export only which must also be reported. A positive or a negative annual report is required in order to maintain registration for the establishment.

Produce means to manufacture, prepare, propagate, compound, or process any pesticide, including any pesticide produced pursuant to section 5 of the Act, any active ingredient or device, or to package, repackaging, label, relabel, or otherwise change the container of any pesticide or device.

Producer means any person, as defined by the Act, who produces any pesticide, active ingredient, or device (including packaging, repackaging, labeling and relabeling).

Sold or distributed means the aggregate amount of a pesticidal product released for shipment by the establishment in which the pesticidal product was produced.

Type of pesticidal product refers to each individual product as identified by: the product name; EPA Registration Number (or EPA File Symbol, if any, for planned products, or Experimental Permit Number, if the pesticide is produced under an Experimental Use Permit); active ingredients; production type (technical, formulation, repackaging, etc.); and, market for which the product was produced (domestic, foreign, etc.). In cases where a pesticide is

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not registered, registration is not applied for, or the pesticide is not produced under an Experimental Use Permit, the term shall also include the chemical formulation.

Subpart B—Registration Requirements

§ 167.20 Establishments requiring registration.

(a) *Who must register.* (1) Any establishment where a pesticidal product is produced must be registered with the Agency. This requirement does not apply to custom blenders as defined in this part.

(2) Any establishment where a substance is produced must be registered with the Agency if the producer intends the substance to be used as an active ingredient of a pesticide, or has actual or constructive knowledge that the substance will be used by any person as an active ingredient of a pesticide.

(3) Any domestic establishment producing a pesticidal product for export, or any unregistered pesticide, or any foreign establishment producing a pesticidal product for import into the United States must be registered. Also, any establishment, either foreign or domestic, which produces a pesticidal product for use under an Experimental Use Permit, FIFRA section 18 Emergency Exemption or section 24(c) Special Local Needs registration, must be registered.

(b) *Information required.* An applicant for establishment registration must submit the following information:

(1) Name and address of the company.

(2) The type of ownership (individual, partnership, cooperative association, corporation, or any organized group of persons whether incorporated or not).

(3) The name and address of each producing establishment for which registration is sought.

(c) *When to apply.* An application for establishment registration must be submitted, and an establishment registration number must be assigned by the Agency, before any production may occur at an establishment. In the case of an establishment which has not previously been required to be registered and is not currently registered, the

producer must apply for establishment registration by submitting an application within 180 days after the effective date of this regulation.

(d) *Assignment of establishment registration number.* The Agency will return incomplete or inaccurately completed applications to the applicant. If the application is complete and accurate, the Agency will register the establishment and assign a registration number to the establishment. The establishment registration number will be entered on the application, and a copy of the application will be returned to the applicant.

(e) *Amendment.* If at any time after the first report there is a change in the information required to be submitted under paragraph (b) of this section, that new information must be reported to EPA, in writing on letterhead stationery or on forms supplied by the Agency, within 30 days after such change occurs.

(f) *Duration of registration.* Establishment registration will remain effective provided pesticide reports are submitted annually pursuant to the requirements of this part. Failure to submit a report may result in termination of establishment registration, civil and/or criminal penalty assessments.

[53 FR 35058, Sept. 8, 1988; 54 FR 32638, Aug. 9, 1989, as amended at 58 FR 34203, June 23, 1993]

Subparts C and D—[Reserved]

Subpart E—Recordkeeping and Reporting Requirements

§ 167.85 Reporting requirements.

(a) *Who must report.* Each producer operating an establishment must submit the reports required by this section concerning any pesticide, active ingredient, or device produced at each establishment. Custom blenders are not required to report production to the Agency.

(b) *Information required.* The pesticide report shall include the following: (1) Name and address of the establishment; (2) amount of each pesticidal product: (i) Produced during the past year; (ii) sold or distributed during the

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past year; (iii) estimated to be produced during the current year. The report shall only include those pesticidal products actually produced at the reporting establishment. Reports submitted by foreign-producing establishments shall cover only those pesticidal products exported to the United States.

(c) *How to report.* The reports required by this section must be made on forms supplied by the Agency. It is the ultimate responsibility of companies to obtain, complete, and submit the form each year.

(d) *When to report.* A producer operating an establishment must submit an initial report no later than 30 days after the first registration of each establishment the producer operates. Thereafter, the producer must submit an annual report on or before March 1 of each year, even if the producer has produced no pesticidal product for that reporting year.

[53 FR 35058, Sept. 8, 1988; 54 FR 32638, Aug. 9, 1989, as amended at 58 FR 34203, June 23, 1993]

§ 167.90 Where to obtain and submit forms.

(a) *Where to obtain forms.* Any person may obtain blank forms for the applications and reports required by this part from any EPA Regional Office, or from the address listed in paragraph (b) of this section.

(b) *Where to submit applications and reports.* Each producer operating an establishment, with the exception of those establishments not found at the same location as their company headquarters, must submit applications and reports required by this part to the EPA Regional Office which serves the area where the establishment is located. The list of Regional Office addresses is found in 40 CFR 1.7. Applications and reports for those establishments not found at the same location as their company headquarters to be submitted by the company headquarters to the Regional Office having jurisdiction over the State in which the company headquarters is located. A foreign producer who exports any pesticide product, device, or active ingredient to the United States must submit all applications and reports to:

U.S. Environmental Protection Agency, Office of Compliance Monitoring (EN-342), 401 M Street SW., Washington, DC 20460.

PART 168—STATEMENTS OF ENFORCEMENT POLICIES AND INTERPRETATIONS

Subpart A—General Provisions [Reserved]

Subpart B—Advertising

Sec.

168.22 Advertising of unregistered pesticides, unregistered uses of registered pesticides and FIFRA section 24(c) registrations.

Subpart C—[Reserved]

Subpart D—Export Policy and Procedures for Exporting Unregistered Pesticides

168.65 Pesticide export label and labeling requirements.

168.75 Procedures for exporting unregistered pesticides— purchaser acknowledgement statements.

168.85 Other export requirements.

AUTHORITY: 7 U.S.C. 136–136y.

SOURCE: 54 FR 1125, Jan. 11, 1989.

Subpart A—General Provisions [Reserved]

Subpart B—Advertising

§ 168.22 Advertising of unregistered pesticides, unregistered uses of registered pesticides and FIFRA section 24(c) registrations.

(a) FIFRA sections 12(a)(1) (A) and (B) make it unlawful for any person to “offer for sale” any pesticide if it is unregistered, or if claims made for it as part of its distribution or sale differ substantially from any claim made for it as part of the statement required in connection with its registration under FIFRA section 3. EPA interprets these provisions as extending to advertisements in any advertising medium to which pesticide users or the general public have access.

(b) EPA regards it as unlawful for any person who distributes, sells, offers for sale, holds for sale, ships, delivers for shipment, or receives and (having so received) delivers or offers to deliver

any pesticide, to place or sponsor advertisements which recommend or suggest the purchase or use of:

(1) Any pesticide for a use authorized under a FIFRA section 5 experimental use permit (EUP).

(2) Any pesticide for a use authorized under a FIFRA section 18 emergency exemption, except for advertisements that:

(i) Are placed in media which address primarily persons in the geographical area to which the exemption applies.

(ii) State the name and address of one or more retail dealers who stock the pesticide.

(iii) Contain a prominent notice of the limitations on use under the section 18 emergency exemption.

(3) Any pesticide for any use authorized only by a FIFRA section 24(c) special local need registration, unless the advertisement contains a prominent notice of the limitations on use under the section 24(c) registrations.

(4) Any unregistered pesticide for any use unless the advertisement is one permitted by paragraph (b) (2) or (3) of this section.

(5) A registered pesticide product for an unregistered use, unless the advertisement is one permitted by paragraph (b) (2) or (3) of this section. However, as a matter of policy, the Agency will not regard as unlawful the advertisement of uses permitted by FIFRA section 2(ee) provided the product is not an antimicrobial pesticide targeted against human pathogens (see 51 FR 19174; May 28, 1986).

(c) For purposes of paragraph (b) of this section, a “prominent notice of the limitations on use” is one which sets forth the limitations on use in a manner reasonably likely to be understood by persons to whom the advertisement is addressed. For printed advertising, this criterion will be met by a legend in 6-point or larger type.

Subpart C—[Reserved]

Subpart D—Export Policy and Procedures for Exporting Unregistered Pesticides

SOURCE: 58 FR 9085, Feb. 18, 1993, unless otherwise noted.

§ 168.65 Pesticide export label and labeling requirements.

(a) *General.* This section describes how EPA interprets and will enforce the requirements of FIFRA section 17(a)(1). Every exported pesticide, device, and active ingredient used in producing a pesticide (see §152.3 of this chapter for the definition of “active ingredient” and “pesticide”) must bear a label or labeling which meets the requirements of FIFRA section 17(a)(1). This requirement applies to all such pesticides, devices, or active ingredients, regardless of whether the export is for commercial or research use. In the case of unregistered pesticides, including research substances which are being exported for testing, the labeling requirements of this section continue to apply independently of whether the exporter must submit a purchaser acknowledgement statement under FIFRA section 17(a)(2) as described at §168.75 of this chapter. In addition, information which will satisfy FIFRA section 2(q)(1)(E), (G), and (H) and section 2(q)(2)(A) and (D) must appear in English and in the appropriate foreign languages, on the label or labeling as described in paragraph (b)(4) of this section. The required label and labeling statements may be met through either immediate container labels, accompanying supplemental labeling as described in paragraph (c) of this section, or a combination of the two.

(b) *Specific requirements.* The labels and labeling of any exported pesticides, devices, and active ingredients used in producing pesticides must meet the requirements regarding label and labeling content, correct representation, and understandability as stated in this paragraph.

(1) *Label contents.* The term “label” means the written, printed, or graphic matter on or attached to the immediate container of the pesticide, device, or active ingredient used in producing a pesticide. In the case that the immediate container is enclosed in an outer container or wrapper through which the label cannot be read, the label must also be on such outer container or wrapper. Except as provided in paragraph (c) of this section, the immediate container of the pesticide, device, or active ingredient used in producing a

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pesticide must bear a conspicuous and readable label which includes:

(i) *EPA pesticide producing establishment number.* The producing establishment registration number must be present but may appear anywhere on the label or immediate container in accordance with the establishment registration labeling requirements set forth in § 156.10(f) of this chapter.

(ii) *Warning or caution statements.* Warning or caution statements must appear on the label and must be adequate for the protection of persons handling the pesticide, device, or active ingredients including warnings regarding general toxicological hazards and environmental, physical, or chemical hazards. Warning and caution statements must appear in English and in the appropriate foreign languages, as described in paragraph (b)(4) of this section. Where the U.S. warning or caution statement, as translated, is obviously inappropriate to protect residents of the importing country, (for example, where a statement calls for a gas mask meeting the specification of the U.S. Bureau of Mines) an equivalent caution must be substituted.

(iii) *The statement "Not Registered for Use in the United States of America."* The labels of all pesticides, devices, and active ingredients which are not registered for use in the United States under FIFRA section 3 must prominently display the following statement: "Not Registered for Use in the United States of America." The statement must appear in English and in appropriate foreign languages, as described in paragraph (b)(4) of this section. It is permissible to append explanatory text which qualifies the statement by pointing out the reasons for the unregistered status. Examples of possible additional statements are "Not Registered for Use on...", "No Longer Registered for Use...", or "Not Registered...because..." Such additions must not be misleading or misrepresent the registration status of the pesticide. The statement "Not Registered For Use in the United States of America" must also be present.

(A) A pesticide is considered registered for the purposes of the section 17(a)(1) requirement only when:

(1) A label and labeling approved under a current FIFRA section 3 registration for the product is either attached to the immediate product container or accompanies the product at all times as supplemental labeling as provided in paragraph (c) of this section.

(2) The formula of the exported product is the same as the formula of the U.S. registered product (within certified limits). In addition, a change in the color or fragrance of the export product will not affect the product's registration status, as long as the following conditions are met:

(i) The change in color must result only from the addition of a dye included on the list of the chemicals exempted from the requirement of a tolerance at § 180.1001, and the dye must not be a List 1 inert. (List 1 inerts are those inerts which the Agency has identified as presenting toxicological concerns. The classification of inerts is explained in EPA's Policy Statement on Inert Ingredients in Pesticide Products, which can be obtained from the Office of Pesticide Programs public docket, Room 1128, Crystal Mall 2, 1921 Jefferson Davis Highway, Arlington, Virginia 22202.

(ii) The change in fragrance must result only from the addition of a chemical included on the list of chemicals exempted from the requirement of a tolerance (§ 180.1001) and the chemical must not be a List 1 inert.

(iii) The change in fragrance must not result in a pesticide product containing a food or food-like fragrance. (See "Food Fragrances in Pesticide Formulations," EPA's Office of Pesticide Programs Policy and Criteria Notice number 2155.1, November 20, 1975 which can be obtained from the Office of Pesticide Programs public docket, Room 1128, Crystal Mall 2, 1921 Jefferson Davis Highway, Arlington, Virginia 22202.)

(iv) Any differences in color or fragrance of the export product in accordance with this section must be reflected in records which show the complete formula of the export product in accordance with the requirements of § 169.2 and this policy.

(3) No statements which appear on any of the product labels or labeling

add new uses or claims or in any way contradict the approved FIFRA section 3 labeling. However, certain minor changes may be made to a product's labeling or packaging without affecting the registration status of the product, as specified in §152.46(b) of this chapter.

(iv) *The ingredient statement.* The ingredient statement must appear on the label in English and in appropriate foreign languages (as described in paragraph (b)(4) of this section). If the English language description of the ingredients is easily identifiable and likely to be understood by the ordinary individual, the foreign language ingredient statement need not be included on the label. In the case of pesticide products, devices and active ingredients shipped solely for research and development purposes, it is permissible to use coded identification of ingredients on the label in order to protect confidentiality, in accordance with the requirements of §§168.75(c) and 168.85(a).

(v) *Identity of parties.* The name and address of the producer, registrant (if any), or the person for whom the pesticide was produced, must appear on the label.

(vi) *Weight or measure.* The net weight must appear on the label in either English or metric units.

(vii) *Additional warning for highly toxic pesticides.* If the pesticide, device or active ingredient is highly toxic to humans, the skull and crossbones, the word "Poison", and a statement of practical treatment must appear on the label. The word "Poison" and the statement of practical treatment shall be in English and in the appropriate foreign languages, as described in paragraph (b)(4) of this section. The skull and crossbones may be in red or black. For criteria on what pesticides are highly toxic, see §156.10(h) of this chapter.

(2) *Use classification statement.* In addition to the label contents described in paragraph (b)(1) of this section, the labeling must include a use classification statement, if a use classification has been assigned under a FIFRA section 3 registration. The use classification shall accurately describe the use classification applicable to the U.S. registered use of the pesticide, device

or active ingredient (e.g., "Restricted Use Pesticide"). Summary statements describing the use classification, e.g., "For retail sale to and use only by Certified Applicators...", or explaining what such terms mean are not required, but may be included if such statements do not result in false representation of the U.S. regulatory status of the pesticide. The use classification information may appear on the product label or on the labeling accompanying the pesticide product during shipment.

(3) *Misrepresentation.* The labeling shall not make false or misleading representations or represent the product as an imitation of other products.

(4) *Understandability.* The required statements must be expressed in such terms as to render them likely to be read and understood by the ordinary individual under customary conditions of purchase and use. To satisfy this section, certain information described in paragraph (b)(4)(i) of this section, which appears on the labeling of all exported pesticide products, devices and active ingredients must appear in English, in an acceptable language of the country of import as defined in paragraph (b)(4)(ii) of this section, and in an acceptable language of the country of final destination, if known or reasonably ascertainable by the exporter. When there are several official languages or dialects in a country, the language which is predominately spoken or written, or a language in which official government business is conducted, will be acceptable.

(i) *Information required to be multilingual.* The following labeling information must be multilingual:

(A) The warning and caution statements.

(B) Where required, the statement "Not Registered for Use in the United States of America."

(C) The ingredient statement.

(D) Where required in accordance with paragraph (b)(1)(vii) of this section, the word "Poison" and the statement of practical treatment in case of poisoning.

(ii) *Acceptable languages.* In all cases, English must be one of the languages used on the label or labeling. In addition, either the language which is used

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to conduct official government business, or the predominantly spoken or written language of the country of import must appear on the labeling. In each case where a country of final destination is known, the language which is used to conduct official government business or which is predominantly spoken in that country, if different from the language of the country of import, shall also appear on the labeling. In any case where English is predominantly spoken or written or is the language used to conduct official government business in a country, no other language need be included to meet the multiple language requirement of this paragraph.

(c) *Supplemental labeling.* A pesticide, device or active ingredient intended for export will not be considered in violation of the labeling requirements of FIFRA when the label and/or labeling requirements stated in paragraph (b) of this section are met by supplemental labeling. Supplemental labeling must be attached to the immediate product container or the shipping container of the pesticide, device or active ingredient at all times when it is shipped or held for shipment to meet export label requirements. Supplemental labeling must meet all of the label requirements in paragraph (b) of this section which are not met by the immediate product labels. Supplemental labeling will satisfy the labeling requirements of FIFRA only if the following conditions are met:

(1) *Applicability.* The use of supplemental labeling applies to any situation where the labeling requirements specified in this section are not met fully on the product label which is attached to the immediate product container. Any required label or labeling statement not met on the immediate container may be met through supplemental labeling.

(2) *Labeling contents and relation to shipment.* If supplemental labeling is used to meet any of the labeling requirements of FIFRA section 17(a)(1), it must meet all of the requirements in paragraph (b) of this section which are not met by the label on the immediate product container. Thus, the supplemental labeling, together with the immediate product container label will

meet all of the requirements of paragraph (b) of this section. Where used, supplemental labeling must be attached to or accompany the product shipping container of the pesticide, device, or active ingredient used in producing a pesticide at all times when shipped or held for shipment in the United States.

§ 168.75 Procedures for exporting unregistered pesticides-purchaser acknowledgement statements.

This section describes how EPA interprets and will enforce requirements of FIFRA section 17(a)(2). Section 17(a)(2) provides that any person exporting a pesticide other than a pesticide registered for use under FIFRA section 3 or sold under FIFRA section 6(a)(1), shall obtain a statement signed by the foreign purchaser prior to export, acknowledging that the purchaser understands that such pesticide is not registered for use in the United States and cannot be sold in the United States. Section 17(a)(2) requires that a copy of the statement be transmitted to an appropriate official of the government of the importing country.

(a) *Products subject to the requirement.* EPA will not consider an exporter of an unregistered pesticide to be in violation of FIFRA section 17(a)(2) if, prior to export of the pesticide, the exporter submits to EPA a statement signed by the foreign purchaser which affirms that the purchaser is aware that the pesticide is not registered for use in the United States and cannot be sold for use in the United States. The exporter must also include with the submission of the purchaser acknowledgement statement to EPA, a certification signed by the exporter affirming that the export did not occur until the statement signed by the foreign purchaser was obtained by the exporter. Except as provided in paragraph (b) of this section, all pesticide products produced for export which cannot be sold for use in the United States in the form that they are produced for export, are considered to be unregistered pesticides. This includes pesticides which are of a different formulation, including composition (except for variation within certified limits), or type of formulation, and pesticides which are

packaged for use patterns for which they are not registered, which may be evidenced by package type or label use statements. This also includes unregistered products which are under development as pesticidal products and which are being exported for research testing.

(b) *Exceptions.* Under the specific circumstances discussed below, EPA will not treat a registered product which has been modified slightly for export purposes, as unregistered for the purposes of the purchaser acknowledgement statement requirement. Any changes to the registered product for export purposes must be documented in accordance with the record-keeping requirements at § 169.2 of this chapter and this policy.

(1) *Labeling on Immediate Product.* EPA will not treat as unregistered for the purposes of section 17(a)(2), a registered pesticide product which cannot be sold or distributed for use in the United States because its immediate product container does not bear a label approved under a FIFRA section 3 registration, but which could be sold or distributed in the United States with the approved label attached to the immediate product container, provided that the label and labeling approved under a current FIFRA section 3 registration for the product is either attached to the immediate product container or accompanies the product at all times as supplemental labeling as provided in paragraph (c) of this section.

(2) *Packaging.* (i) Certain changes may be made to a product's labeling or packaging without affecting the registration status of the product, as specified in § 152.46(b) of this chapter and this policy. These changes include any changes in package size and label net contents, provided no change in use directions or requirement for child-resistant packaging would be necessary for the product to be registered for use in the United States. For example, if child-resistant packaging is required for a particular pesticide product in the United States, and the product will be exported without child-resistant packaging, the product would be considered unregistered and therefore subject to all the requirements of FIFRA

section 17(a), as described in § 168.75 of this chapter including the requirement for a purchaser acknowledgement statement.

(ii) If an exporter needed to repack a product in a size to meet a foreign purchaser's specifications, that modification would not affect the registration status of the export product. Other modifications to the label used for export purposes which will not affect the export product's registration status are: the use of metric units for net contents, dosages, and other numeric expressions; the use of a different format for the label, provided that the information does not contradict the U.S. label; revision of non-mandatory U.S. label statements, consistent with 40 CFR part 156, including additions or changes required by other Federal statutes or regulations; a change of the name or address of the registrant, except for a change resulting from transfer of ownership, which requires that a registrant keep his name and address current with the Agency; and any correction of typographical or printing errors that appeared on the U.S. labeling. (See § 152.46(b)).

(3) *Labeling statements.* The following statements which appear on any of the product labels or labeling will not affect the status of the product, provided that they do not contradict the approved FIFRA section 3 labeling:

(i) It is permissible to add explanatory language which accurately explains the meaning of a use classification. For example, the statement "restricted use pesticide" may be expanded to read: "Restricted in the United States of America to use by certified applicators" or "Restricted Use Pesticide. In The United States this product is restricted to use by applicators determined by each state to be competent in pesticide application and the human health and environmental consequences of misuse." If the explanatory language falsely represents or is misleading regarding the U.S. use classification, the product will be considered misbranded. In addition, a use classification can only be listed if one has been assigned pursuant to the U.S. registration.

(ii) An exporter who is also the manufacturer of a U.S. registered pesticide may add new uses to the label of that product for export purposes, without triggering the requirements of section 17(a)(2), as long as the new uses are within the same general use patterns as those for the registered product. (Pesticide use patterns are listed in appendix A to 40 CFR part 158—Data Requirements for Registration: Use Pattern Index. The general pesticide use patterns are: terrestrial food crop and terrestrial nonfood crop; greenhouse food crop and greenhouse nonfood crop; aquatic food crop and aquatic nonfood crop; indoor use; and forestry use.) Adding new uses to the label which change the use pattern, such as changes from non-food to food use, outdoor to indoor use, or terrestrial to aquatic use, render the product unregistered and subject to the requirements of section 17 for unregistered products. If the new use added to the label is a food or feed use, a tolerance must already be established for the use of that pesticide in or on that commodity.

(4) *Composition.* EPA will not treat a registered product as unregistered for the purposes of the purchaser acknowledgement statement requirement under the following specific circumstances:

(i) The formula of the exported product is within certified limits of the formula of the U.S. registered product.

(ii) An exporter, who is also the manufacturer of a U.S. registered pesticide, may decrease the percentage of the active ingredient(s) of that product by adding a List 4 inert ingredient, without causing the product to be treated as “unregistered” and triggering the requirement to obtain a purchaser acknowledgement statement as a condition for export. In EPA’s Policy Statement on Inert Ingredients in Pesticide Products, EPA included inert ingredients on List 4—a list of inert ingredients posing minimal hazard or risk—if the inert ingredients were generally regarded as innocuous. The provisions of this paragraph do not apply to those pesticide products intended for public health uses which are required or conditionally required to submit efficacy data pursuant to § 158.640 of this chapter. Any differences in formula or com-

position caused by adding a List 4 inert must be reflected in records which show the complete formula of the export product in accordance with the requirements of § 169.2 and this policy.

(iii) A change in the color or fragrance of the export product will not affect the product’s registration status as long as the following conditions are met. The change in color must result only from the addition of a dye included on the list of the chemicals exempted from the requirement of a tolerance at § 180.1001, and the dye must not be a List 1 inert. (List 1 inerts are those inerts which the Agency has identified as presenting toxicological concerns. The classification of inerts is explained in EPA’s Policy Statement on Inert Ingredients in Pesticide Products. The change in fragrance must result only from the addition of a chemical included on the list of chemicals exempted from the requirement of a tolerance (§ 180.1001) and the chemical must not be a List 1 inert. The change in fragrance must not result in a pesticide product containing a food or food-like fragrance. (See “Food Fragrances in Pesticide Formulations,” EPA’s Office of Pesticide Programs Policy and Criteria Notice number 2155.1, November 20, 1975.) Any difference in color or fragrance of the export product in accordance with this section must be reflected in records which show the complete formula of the export product in accordance with the requirements of § 169.2 and this policy.

(5) *Research and development products.* An unregistered pesticide product exported only for research and development purposes is subject to the notification requirements of this section, unless its use fits within the criteria described in this paragraph.

(i) An unregistered pesticide product exported solely for research and development purposes will not be considered to be in violation of the notification requirements if the export of the research and development product:

(A) Would not involve land uses of more than 10 acres (4.05 hectares), or be used on or affect food or feed crops which are intended for consumption.

(B) Would not involve aquatic uses of more than 1 acre (0.405 hectares), or

any aquatic uses which involve water used for irrigation, drinking or recreation, or be used on or affect plants or animals taken for food or feed from such waters.

(C) Would not involve tests on animals intended for food or feed.

(ii) Shipments to different purchasers, to different countries of final destination, or which occur more than a calendar year apart will be evaluated separately. When determining whether total shipments exceed the criteria described in this paragraph, EPA will evaluate the total amount of shipments by a single exporter during a calendar year for use in a particular country.

(iii) An exporter bears the burden of demonstrating that the product meets these criteria before the research product is shipped. This may be met by documenting before the product is shipped and maintaining records for the time period required by § 169.2(h) of this chapter from the date of the last shipment relevant to such records. The records to be maintained consist of:

(A) The identity of the purchaser and country of intended use of the research product.

(B) The amount shipped.

(C) The intended research use by the purchaser, including the type of application site, rate of application, and measures taken for protection of humans from direct or dietary exposure.

(c) *Procedures.* An exporter of an unregistered pesticide product must submit a purchaser acknowledgement statement to EPA containing the information stated in paragraph (c)(1) of this section, and a statement signed by the exporter certifying that the exportation did not occur until the signed acknowledgement statement had been obtained from the purchaser. If the foreign purchaser signs a purchaser acknowledgement statement in their own language, it must be accompanied by an English translation when it is submitted to EPA by the exporter. These statements shall be submitted in accordance with one of the two options for submission described in paragraph (c)(2) of this section.

(1) *Contents of the purchaser acknowledgement statements.* The purchaser acknowledgement statement must in-

clude the following information in a format that is clearly understandable:

(i) Name, address, and EPA identification number, if applicable, of the exporter.

(ii) Name and address of the foreign purchaser.

(iii) Identity of the product and the active ingredient(s), including:

(A) The Chemical Abstract Services (CAS) Registry number for each active ingredient.

(B) The chemical nomenclature for each active ingredient as used by the International Union of Pure and Applied Chemists (IUPAC).

(C) Other known chemical or common names; or if the export involves a research product, a code name or identification number that can be used by EPA to identify the product from the exporter's records. If a code name or identification number is used, additional information must be attached to the certification statement submitted with the purchaser acknowledgement statement which will enable EPA to identify the product. This attached information may be claimed as confidential, and EPA will not forward this information with the purchaser acknowledgement statement to foreign governments.

(iv) If known or reasonably ascertainable, the country or countries of final destination of the export shipment, i.e., where the exported pesticide is intended to be used, if different from the country of the foreign purchaser's address.

(v) A statement that indicates that the foreign purchaser understands that the product is not registered for use in the United States and cannot be sold in the United States.

(vi) The signature of the foreign purchaser.

(vii) The date of the foreign purchaser's signature.

(2) *Reporting options.* At the discretion of the exporter, the requirements of paragraph (c)(1) of this section may be met on a per-shipment or annual basis, as stated in paragraphs (c)(2)(i) and (c)(2)(ii) of this section. If the procedures in paragraph (c)(2)(ii) of this section are not followed, EPA will consider paragraph (c)(2)(i) of this section,

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requiring pershipment purchaser acknowledgement statements, to be applicable in full. Where paragraph (c)(2)(i) of this section is applicable, each shipment which does not meet the requirements of that paragraph will be considered to be a separate violation of FIFRA.

(i) *Per-shipment purchaser acknowledgement statement.* Unless the exporter chooses to follow the procedures described in paragraph (c)(2)(ii) of this section for the annual reporting procedures, the exporter must obtain and submit to EPA, a signed purchaser acknowledgement statement prior to each shipment of an unregistered pesticide according to the following procedures:

(A) Prior to each shipment in a calendar year of an unregistered pesticide product to a particular purchaser in a foreign country, the exporter must provide the foreign purchaser with instructions about the required information on a purchaser acknowledgement statement, and inform the foreign purchaser that the pesticide product cannot be exported from the United States until the exporter has received from the foreign purchaser a properly completed, signed, and dated acknowledgement statement.

(B) The exporter must obtain, prior to each shipment in a calendar year of an unregistered pesticide product to a particular purchaser in a foreign country, a signed purchaser acknowledgement statement which contains the information set forth in paragraph (c)(1) of this section.

(C) The exporter must sign a statement certifying that export did not take place until a signed purchaser acknowledgement statement was received. The exporter must also specify the chemical identity of any research product which is referred to by code in the purchaser acknowledgement statement. The information regarding the specific identity of research products, which may be included in the statement or consist of an attachment to the certification, may be claimed as confidential.

(D) The exporter must submit the signed acknowledgement statement from the foreign purchaser, and the accompanying certification by the ex-

porter including attachments, to EPA within 7 working days of the exporter's receipt of the purchaser acknowledgement statement, or by the date of export, whichever occurs first. This information must be transmitted to the following address:

U.S. Environmental Protection Agency, Office of Pesticide Programs, (H-7501C), 401 M Street, SW, Washington, DC 20460, Attention: Purchaser Acknowledgement Statement.

(ii) *Annual reporting procedures.* Unless the exporter chooses to follow the per-shipment reporting option described in paragraph (c)(2)(i) of this section, the exporter must follow the procedures for annual summary reporting which include the requirement of a purchaser acknowledgement statement for the first shipment each calendar year of an unregistered pesticide product to a particular purchaser, and an annual summary of shipments to that purchaser. The annual summary reporting procedures are as follows:

(A) Prior to the first shipment each calendar year of an unregistered pesticide product to a particular purchaser in a foreign country, the exporter must provide the foreign purchaser with instructions about the required information on a purchaser acknowledgement statement, and inform the foreign purchaser that the pesticide product cannot be exported from the United States until the exporter has received from the foreign purchaser a properly completed, signed, and dated purchaser acknowledgement statement.

(B) The exporter must obtain, prior to the first shipment each calendar year of an unregistered pesticide product to a particular purchaser in a foreign country, a signed purchaser acknowledgement statement which contains the information set forth in paragraph (c)(1) of this section.

(C) The exporter must sign a statement certifying that export did not take place until a signed purchaser acknowledgement statement was received, indicating that this statement is for the first shipment to a particular purchaser in a specific country for that calendar year, and that the exporter will meet all the purchaser acknowledgement statement requirements as described in this paragraph (c)(2)(ii) of

this section. The exporter must also specify the chemical identity of any research product which is referred to by code in the purchaser acknowledgement statement. The information regarding the specific identity of research products, which may be included in the statement or consist of an attachment to the certification, may be claimed as confidential.

(D) The exporter must submit the signed acknowledgement statement from the foreign purchaser, and the accompanying certification by the exporter including attachments, to EPA within 7 working days of the exporter's receipt of the purchaser acknowledgement statement, or by the date of export, whichever occurs first. This information must be transmitted to the following address:

U.S. Environmental Protection Agency, Office of Pesticide Programs, (H-7501C), 401 M Street, SW, Washington, DC 20460, Attention: Purchaser Acknowledgement Statement.

(E) The exporter, who has chosen to comply with the requirements of this paragraph instead of providing per-shipment purchaser acknowledgement statements in accordance with paragraph (c)(2)(i) of this section, must submit an annual summary report to EPA. An annual summary report is required for each unregistered pesticide exported within the preceding calendar year. The report must be in writing, signed by the exporter, and include the following information:

(1) Name, address, and EPA identification number if applicable, of the exporter.

(2) Name and address of the foreign purchaser, and the date the purchaser acknowledgement statement, submitted to EPA during the previous calendar year, was signed by the purchaser.

(3) The identity of the product and the active ingredients, including: the Chemical Abstract Services (CAS) registry number for each active ingredient, the chemical nomenclature for each active ingredient used by the International Union of Pure and Applied Chemists (IUPAC), and other known chemical or common names, or if the export involves a research product, the code name or identification number that can be used by EPA to

identify the product from the exporter's records.

(4) The dates of each shipment of the pesticide exported to the foreign purchaser during that calendar year.

(5) If known, or reasonably ascertainable, the country or countries of final destination of the export shipments, i.e., where the exported pesticide was intended to be used, if different from the foreign purchaser's address.

(F) The exporter shall submit the annual summary no later than March 1st of the following calendar year. The annual summary shall be sent to the following address:

U. S. Environmental Protection Agency, Office of Pesticide Programs, H-7501C, 401 M Street, SW., Washington, DC 20460, Attention: Annual Summary of Exports.

(iii) *Confidentiality claims.* Persons submitting the information specified in the purchaser acknowledgement statement may assert a claim of business confidentiality by marking the information claimed confidential as "FIFRA Confidential Business Information." Information so claimed will not be disclosed, with the exception of disclosure to the foreign governments, except in accordance with the procedures set forth in 40 CFR part 2, 7 U.S.C. 136(h), and this policy statement. If such claim is not asserted, EPA may disclose the information to the public without providing further notice prior to disclosure or an opportunity to object. Notwithstanding any claim of confidentiality, the purchaser acknowledgement statement will continue to be forwarded to the appropriate foreign government officials in its entirety, as required by section 17(a)(2).

(3) *Recordkeeping.* Except as specifically stated, the requirement to retain records under part 169 of this chapter applies to all pesticide producers, regardless of whether a particular product is intended for export. All records shall be maintained in accordance with the time period required by § 169.2(h) of this chapter. Producers must also maintain certain records pertaining to pesticide products intended for export. In addition to the requirement that a copy of the purchaser acknowledgement statement be kept, as stated at

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§ 169.2(h)(3) of this chapter, the following records must be maintained:

(i) Copies of the instructions provided to foreign purchasers in accordance with paragraphs (c)(2)(i)(A) and (c)(2)(ii)(A) of this section.

(ii) Copies of signed purchaser acknowledgement statements obtained according to paragraphs (c)(2)(i)(B) and (c)(2)(ii)(B) of this section.

(iii) Copies of the certification from the exporter; and copies of any accompanying information regarding the identity of coded R&D products.

(d) *Agency transmission of purchaser acknowledgement statements.* EPA will transmit a copy of each purchaser acknowledgement statement to the appropriate government official in each of the intended destination countries. After receipt of the Annual Summary the following calendar year, EPA will also transmit a copy of that document to the appropriate government official in each of the intended destination countries. In the case that no Annual Summary has been received within 30 days of the date at which such summary is required to be submitted, EPA will send written notification to the appropriate government official indicating that no summary was submitted, and may also take enforcement action against the exporter.

§ 168.85 Other export requirements.

This section describes other requirements found in regulations that apply to exporters of pesticides, devices, and active ingredients used in producing a pesticide.

(a) *Recordkeeping and inspection.* Exporters of pesticides, devices and active ingredients must keep records and permit inspections of those records in accordance with part 169 of this chapter. Exporters must keep records of the product labeling used, including the EPA registered labeling, any foreign labeling on or attached to the product when shipped, and, as applicable, any supplemental labeling used. Producers of pesticides for export shall maintain these records in a manner that shows exactly which labels and labeling accompanied each shipment of a pesticide product to a foreign country. As stated at § 168.75(c), when research product identity information appears on the la-

beling in an encoded manner, information translating the code shall be maintained in records. These records shall be maintained for the time period required by § 169.2(h) of this chapter following the last export of such pesticides. All records required by part 169 of this chapter shall be made available for inspection and copying by EPA or its duly authorized representatives.

(b) *Pesticide production establishment requirements.* Exporters of pesticides, devices, and active ingredients must submit annual reports to EPA in accordance with part 167 of this chapter, concerning those products that are exported. All products required to be labeled “Not Registered for Use in the United States of America” must be reported as unregistered production regardless of whether a purchaser acknowledgement statement is required.

PART 169—BOOKS AND RECORDS OF PESTICIDE PRODUCTION AND DISTRIBUTION

Sec.

169.1 Definitions.

169.2 Maintenance of records.

169.3 Inspection.

AUTHORITY: 7 U.S.C. 136f and 136w.

SOURCE: 45 FR 54338, Aug. 15, 1980, unless otherwise noted.

§ 169.1 Definitions.

Terms used in this part shall have the meanings set forth for such terms in the Federal Insecticide, Fungicide, and Rodenticide Act, as amended. In addition, as used in this part, the following terms shall have the meanings set forth below:

(a) *Amount of pesticide or active ingredient.* The term “amount of pesticide or active ingredient” means the weight or volume of the pesticide or active ingredient used in producing a pesticide expressed as weight for solid or semi-solid products and as weight or volume of liquid products.

(b) *Batch.* The term “batch” means a quantity of a pesticide product or active ingredient used in producing a pesticide made in one operation or lot or if made in a continuous or semi-continuous process or cycle, the quantity produced during an interval of time to be specified by the producer.

(c) *Device*. The term “device” means any device or class of device as defined by the Act and determined by the Administrator to be subject to the provisions of the Act.

(d) *Inability*. The term “inability” means the incapacity of any person to maintain, furnish or permit access to any records under this Act and regulations, where such incapacity arises out of causes beyond the control and without the fault or negligence of such person. Such causes may include, but are not restricted to acts of God or of the public enemy, fires, floods, epidemics, quarantine restrictions, strikes, and unusually severe weather, but in every case, the failure must be beyond the control and without the fault or negligence of said person.

(e) *Producer*. The term “producer” means the person, as defined by the Act, who produces or imports any pesticide or device or active ingredient used in producing a pesticide.

§ 169.2 Maintenance of records.

All producers of pesticides, devices, or active ingredients used in producing pesticides subject to this Act, including pesticides produced pursuant to an experimental use permit and pesticides, devices, and pesticide active ingredients produced for export, shall maintain the following records:

(a) Records showing the product name, EPA Registration Number, Experimental Permit Number if the pesticide is produced under an Experimental Use Permit, amounts per batch and batch identification (numbers, letters, etc.) of all pesticides produced. In cases where the product is an active ingredient used in producing a pesticide or where the product is a pesticide which is not registered, is not the subject of an application for registration, or is not produced under an Experimental Use Permit, the records shall also show the complete formula. The batch identification shall appear on all production control records. These records shall be retained for a period of two (2) years.

(b) Records showing the brand names and quantities of devices produced. These records shall be retained for a period of two (2) years.

(c) Records showing the following information regarding the receipt, by the producer, of all pesticides, devices, and active ingredients used in producing pesticides:

- (1) Brand name of the pesticide or device, or common or chemical name of the pesticide active ingredient;
- (2) Name and address of shipper;
- (3) Name of delivering carrier;
- (4) Date received; and
- (5) Quantities received.

These records are not intended to cover receipt of pesticides used for in-plant maintenance, extermination, or sanitation programs, etc. Shipping and receiving documents such as invoices, freight bills, receiving tickets, etc., which provide the required information will be considered satisfactory for the purposes of this section. These records shall be retained for a period of two (2) years.

(d) Records showing the following information regarding the shipment of all pesticides, devices, and active ingredients used in producing pesticides:

- (1) Brand name of pesticide or device, or the common or chemical name of the pesticide active ingredient;
- (2) Name and address of consignee;
- (3) Where the pesticide is produced pursuant to an experimental use permit (FIFRA section 5), a special exemption (section 18), or a special local need (section 24), the information required under these sections and any regulations promulgated thereto regarding the distribution of such pesticides;
- (4) Name of originating carrier;
- (5) Date shipped or delivered for shipment; and
- (6) Quantities shipped or delivered for shipment.

Such records are required regardless of whether any shipment or receipt of shipment is between plants owned or otherwise controlled by the same person. Shipping and receiving documents such as invoices, freight bills, receiving tickets, etc., which provide the required information will be considered satisfactory for purposes of this section. These records shall be retained for a period of two (2) years.

(e) Inventory records with respect to the types and amounts of pesticides or

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pesticide active ingredients, or quantities of devices in stock which he has produced. These records may be disposed of when a more current inventory record is prepared.

(f) Copies of all domestic advertising of the restricted uses of any pesticide registered for restricted use which the producer caused to have prepared, including any radio or television scripts for all such pesticides. These records shall be retained for a period of two (2) years.

(g) Copies of all guarantees given pursuant to section 12(a)(2)(C) of the Act. These records shall be retained for a period of one (1) year after expiration of the guarantee.

(h) In the case of all pesticides, devices, and active ingredients used in producing pesticides intended solely for export to any foreign country:

(1) Copies of the specification or directions of the foreign purchaser for the production of such pesticides, devices, or pesticide active ingredients;

(2) Copies of labels or labeling required to comply with section 17(a)(1) of the Act; and

(3) For any pesticide other than a pesticide registered under section 3 or sold under section 6(a)(1) of the Act, copies of a statement signed by the foreign purchaser of the pesticide acknowledging that the purchaser understands that such pesticide is not registered for use in the United States and cannot be sold in the United States under this Act.

These records shall be retained for a period of 2 years after expiration of the contract.

(i) Records on the method of disposal (burial, incineration, etc.) date or dates of disposal, location of the disposal sites, and the types and amounts of pesticides or pesticide active ingredients disposed of by the producer or his contractor. With regard to the disposal of containers accumulated during production, the Agency will consider satisfactory a statement, attested to by a responsible firm official, describing in general terms the method and location of disposal, e.g., all containers are taken periodically to a certain site. Records of deviations from normal practice must be maintained. In addition, any records on the disposal of pes-

ticides or pesticide active ingredients and/or containers specified pursuant to section 19 of the Act and any regulations promulgated thereto shall also be maintained. The above requirements apply to those products bearing label instructions for disposal and to any other products specified under any regulations promulgated pursuant to section 19. These records shall be retained for twenty (20) years or may be forwarded after three (3) years to the Environmental Protection Agency Regional Administrator for maintenance. Notwithstanding these record keeping requirements, whenever any producer of pesticides or pesticide active ingredients is complying with a rule promulgated under the authority of the Resource Conservation and Recovery Act of 1976 (RCRA) (Pub. L. 94-580, 90 Stat. 2795, October 21, 1976), for the handling or disposal of hazardous wastes, as defined by RCRA or any regulations promulgated thereunder, such producer will no longer be required to maintain records in accordance with this subsection.

(j) Records of any tests conducted on human beings whether performed by the producer himself or authorized and/or paid for by the producer. Such records shall include: The names and addresses of subjects tested, dates of tests, types of tests, written consent of subjects to test, and all information and instructions given to the subjects regarding the nature and purpose of the tests and of any physical and mental health consequences which were reasonably foreseen therefrom, and any adverse effects of the test on the subjects, including any such effects coming to the attention of the producer after completion of the tests. These records shall be retained for twenty (20) years or may be forwarded after three (3) years to the Environmental Protection Agency Regional Administrator for maintenance.

(k) Records containing research data relating to registered pesticides including all test reports submitted to the Agency in support of registration or in support of a tolerance petition, *all* underlying raw data, and interpretations and evaluations thereof, whether in the possession of the producer or in the possession of the independent testing

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facility or laboratory (if any) which performed such tests on behalf of the producer. These records shall be retained as long as the registration is valid and the producer is in business.

[45 FR 54338, Aug. 15, 1980, as amended at 58 FR 9090, Feb. 18, 1993]

§ 169.3 Inspection.

(a) *Producers.* Any producer of any pesticide, device, or active ingredient used in producing a pesticide which is subject to this Act shall, upon request of any officer or employee of the Agency or of any State or political subdivision, duly designated by the Administrator, furnish or permit such person at all reasonable times to have access to and to copy all records required to be maintained by this part, including records in the possession of an independent testing facility or laboratory which performed tests on behalf of the producer. Such inspection will be conducted in accordance with procedures detailed in section 8(b) of the Act.

(b) *Distributors, carriers, dealers, etc.* Any distributor, carrier, dealer, or any other person who sells or offers for sale, delivers or offers for delivery any pesticide, device, or active ingredient used in producing a pesticide which is subject to this Act, shall, upon request of any officer or employee of the Agency or of any State or political subdivision, duly designated by the Administrator, furnish or permit such person at all reasonable times to have access to and copy all records showing the delivery or holding of such pesticide, device, or active ingredient used in producing a pesticide, including the quantity, the date of shipment and receipt, and the name and address of the consignor and consignee, and any guarantee received pursuant to section 12(b)(1) of the Act.

(c) *Confidentiality.* Any record which is subject to the regulations under this part, and which may be confidential, shall be treated in accordance with the provisions of section 10 of the Act. The availability to the public of information provided to, or otherwise obtained by, the Administrator under this part shall be governed by part 2 of this chapter.

(d) *Inability.* (1) In the event of the inability of any person to produce

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records containing the information required to be maintained, furnished for inspection, or given access to, all other records and information regarding the same shall be provided.

(2) Where no such inability exists and any such person fails to give access to and permit copying of such records as required, such failure shall be deemed a refusal to keep records required or a refusal to allow the inspection of any such records or both.

PART 170—WORKER PROTECTION STANDARD

Subpart A—General Provisions

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AUTHORITY: 7 U.S.C. 136w.

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SOURCE: 57 FR 38151, Aug. 21, 1992, unless otherwise noted.

Subpart A—General Provisions

§ 170.1 Scope and purpose.

This part contains a standard designed to reduce the risks of illness or injury resulting from workers' and handlers' occupational exposures to pesticides used in the production of agricultural plants on farms or in nurseries, greenhouses, and forests and also from the accidental exposure of workers and other persons to such pesticides. It requires workplace practices designed to reduce or eliminate exposure to pesticides and establishes procedures for responding to exposure-related emergencies.

§ 170.3 Definitions.

Terms used in this part have the same meanings they have in the Federal Insecticide, Fungicide, and Rodenticide Act, as amended. In addition, the following terms, when used in this part, shall have the following meanings:

Agricultural employer means any person who hires or contracts for the services of workers, for any type of compensation, to perform activities related to the production of agricultural plants, or any person who is an owner of or is responsible for the management or condition of an agricultural establishment that uses such workers.

Agricultural establishment means any farm, forest, nursery, or greenhouse.

Agricultural plant means any plant grown or maintained for commercial or research purposes and includes, but is not limited to, food, feed, and fiber plants; trees; turfgrass; flowers, shrubs; ornamentals; and seedlings.

Chemigation means the application of pesticides through irrigation systems.

Commercial pesticide handling establishment means any establishment, other than an agricultural establishment, that:

(1) Employs any person, including a self-employed person, to apply on an agricultural establishment, pesticides used in the production of agricultural plants.

(2) Employs any person, including a self-employed person, to perform on an

agricultural establishment, tasks as a crop advisor.

Crop advisor means any person who is assessing pest numbers or damage, pesticide distribution, or the status or requirements of agricultural plants. The term does not include any person who is performing hand labor tasks.

Early entry means entry by a worker into a treated area on the agricultural establishment after a pesticide application is complete, but before any restricted-entry interval for the pesticide has expired.

Farm means any operation, other than a nursery or forest, engaged in the outdoor production of agricultural plants.

Forest means any operation engaged in the outdoor production of any agricultural plant to produce wood fiber or timber products.

Fumigant means any pesticide product that is a vapor or gas, or forms a vapor or gas on application, and whose method of pesticidal action is through the gaseous state.

Greenhouse means any operation engaged in the production of agricultural plants inside any structure or space that is enclosed with nonporous covering and that is of sufficient size to permit worker entry. This term includes, but is not limited to, polyhouses, mushroom houses, rhubarb houses, and similar structures. It does not include such structures as malls, atriums, conservatories, arboretums, or office buildings where agricultural plants are present primarily for aesthetic or climatic modification.

Hand labor means any agricultural activity performed by hand or with hand tools that causes a worker to have substantial contact with surfaces (such as plants, plant parts, or soil) that may contain pesticide residues. These activities include, but are not limited to, harvesting, detasseling, thinning, weeding, topping, planting, sucker removal, pruning, disbudding, roguing, and packing produce into containers in the field. Hand labor does not include operating, moving, or repairing irrigation or watering equipment or performing the tasks of crop advisors.

Handler means any person, including a self-employed person:

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(1) Who is employed for any type of compensation by an agricultural establishment or commercial pesticide handling establishment to which subpart C of this part applies and who is:

(i) Mixing, loading, transferring, or applying pesticides.

(ii) Disposing of pesticides or pesticide containers.

(iii) Handling opened containers of pesticides.

(iv) Acting as a flagger.

(v) Cleaning, adjusting, handling, or repairing the parts of mixing, loading, or application equipment that may contain pesticide residues.

(vi) Assisting with the application of pesticides.

(vii) Entering a greenhouse or other enclosed area after the application and before the inhalation exposure level listed in the labeling has been reached or one of the ventilation criteria established by this part (§ 170.110(c)(3)) or in the labeling has been met:

(A) To operate ventilation equipment.

(B) To adjust or remove coverings used in fumigation.

(C) To monitor air levels.

(viii) Entering a treated area outdoors after application of any soil fumigant to adjust or remove soil coverings such as tarpaulins.

(ix) Performing tasks as a crop advisor:

(A) During any pesticide application.

(B) Before the inhalation exposure level listed in the labeling has been reached or one of the ventilation criteria established by this part (§ 170.110(c)(3)) or in the labeling has been met.

(C) During any restricted-entry interval.

(2) The term does not include any person who is only handling pesticide containers that have been emptied or cleaned according to pesticide product labeling instructions or, in the absence of such instructions, have been subjected to triple-rinsing or its equivalent.

Handler employer means any person who is self-employed as a handler or who employs any handler, for any type of compensation.

Immediate family includes only spouse, children, stepchildren, foster

children, parents, stepparents, foster parents, brothers, and sisters.

Nursery means any operation engaged in the outdoor production of any agricultural plant to produce cut flowers and ferns or plants that will be used in their entirety in another location. Such plants include, but are not limited to, flowering and foliage plants or trees; tree seedlings; live Christmas trees; vegetable, fruit, and ornamental transplants; and turfgrass produced for sod.

Owner means any person who has a present possessory interest (fee, leasehold, rental, or other) in an agricultural establishment covered by this part. A person who has both leased such agricultural establishment to another person and granted that same person the right and full authority to manage and govern the use of such agricultural establishment is not an owner for purposes of this part.

Restricted-entry interval means the time after the end of a pesticide application during which entry into the treated area is restricted.

Treated area means any area to which a pesticide is being directed or has been directed.

Worker means any person, including a self-employed person, who is employed for any type of compensation and who is performing activities relating to the production of agricultural plants on an agricultural establishment to which subpart B of this part applies. While persons employed by a commercial pesticide handling establishment are performing tasks as crop advisors, they are not workers covered by the requirements of subpart B of this part.

§ 170.5 Effective date and compliance dates.

(a) *Effective date.* The effective date for this part, including § 170.112(e), shall be October 20, 1992.

(b) *Accelerated provisions.* The compliance date shall be April 21, 1993, for:

(1) Section 170.112(a) through (c)(3);

(2) Section 170.112(d)(1) through (d)(2)(ii);

(3) The requirement of § 170.112(c)(3) as referenced in § 170.112(d)(2)(iii);

(4) The requirement of § 170.112(c)(3) as referenced in § 170.112(e)(5);

(5) Section 170.120(a)(3); and

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(6) Section 170.120(b)(3).

(c) *All other provisions.* The compliance date for all other provisions of this part shall be April 15, 1994.

§ 170.7 General duties and prohibited actions.

(a) *General duties.* The agricultural employer or the handler employer, as appropriate, shall:

(1) Assure that each worker subject to subpart B of this part or each handler subject to subpart C of this part receives the protections required by this part.

(2) Assure that any pesticide to which subpart C of this part applies is used in a manner consistent with the labeling of the pesticide, including the requirements of this part.

(3) Provide, to each person who supervises any worker or handler, information and directions sufficient to assure that each worker or handler receives the protections required by this part. Such information and directions shall specify which persons are responsible for actions required to comply with this part.

(4) Require each person who supervises any worker or handler to assure compliance by the worker or handler with the provisions of this part and to assure that the worker or handler receives the protections required by this part.

(b) *Prohibited actions.* The agricultural employer or the handler employer shall not take any retaliatory action for attempts to comply with this part or any action having the effect of preventing or discouraging any worker or handler from complying or attempting to comply with any requirement of this part.

§ 170.9 Violations of this part.

(a) Under the Federal Insecticide, Fungicide, and Rodenticide Act (7 U.S.C. 136 *et seq.*) (FIFRA) section 12(a)(2)(G) it is unlawful for any person “to use any registered pesticide in a manner inconsistent with its labeling.” When this part is referenced on a label, users must comply with all of its requirements except those that are inconsistent with product-specific instructions on the labeling. For the pur-

poses of this part, EPA interprets the term “use” to include:

(1) Preapplication activities, including, but not limited to:

(i) Arranging for the application of the pesticide;

(ii) Mixing and loading the pesticide; and

(iii) Making necessary preparations for the application of the pesticide, including responsibilities related to worker notification, training of handlers, decontamination, use and care of personal protective equipment, emergency information, and heat stress management.

(2) Application of the pesticide.

(3) Post-application activities necessary to reduce the risks of illness and injury resulting from handlers’ and workers’ occupational exposures to pesticide residues during the restricted-entry interval plus 30 days. These activities include, but are not limited to, responsibilities related to worker training, notification, and decontamination.

(4) Other pesticide-related activities, including, but not limited to, providing emergency assistance, transporting or storing pesticides that have been opened, and disposing of excess pesticides, spray mix, equipment wash waters, pesticide containers, and other pesticide-containing materials.

(b) A person who has a duty under this part, as referenced on the pesticide product label, and who fails to perform that duty, violates FIFRA section 12(a)(2)(G) and is subject to a civil penalty under section 14. A person who knowingly violates section 12(a)(2)(G) is subject to section 14 criminal sanctions.

(c) FIFRA section 14(b)(4) provides that a person is liable for a penalty under FIFRA if another person employed by or acting for that person violates any provision of FIFRA. The term “acting for” includes both employment and contractual relationships.

(d) The requirements of this part, including the decontamination requirements, shall not, for the purposes of section 653(b)(1) of title 29 of the U.S. Code, be deemed to be the exercise of statutory authority to prescribe or enforce standards or regulations affecting

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the general sanitary hazards addressed by the OSHA Field Sanitation Standard, 29 CFR 1928.110, or other agricultural, nonpesticide hazards.

Subpart B—Standard for Workers

§ 170.102 Applicability of this subpart.

Except as provided by §§ 170.103 and 170.104, this subpart applies when any pesticide product is used on an agricultural establishment in the production of agricultural plants.

[60 FR 21952, May 3, 1995]

§ 170.103 Exceptions.

Exceptions. This subpart does not apply when any pesticide is applied on an agricultural establishment in the following circumstances:

(a) For mosquito abatement, Mediterranean fruit fly eradication, or similar wide-area public pest control programs sponsored by governmental entities;

(b) On livestock or other animals, or in or about animal premises;

(c) On plants grown for other than commercial or research purposes, which may include plants in habitations, home fruit and vegetable gardens, and home greenhouses;

(d) On plants that are in ornamental gardens, parks, and public or private lawns and grounds that are intended only for aesthetic purposes or climatic modification;

(e) By injection directly into agricultural plants. Direct injection does not include “hack and squirt,” “frill and spray,” chemigation, soil-incorporation, or soil-injection;

(f) In a manner not directly related to the production of agricultural plants, including, but not limited to, structural pest control, control of vegetation along rights-of-way and in other noncrop areas, and pasture and rangeland use;

(g) For control of vertebrate pests;

(h) As attractants or repellents in traps;

(i) On the harvested portions of agricultural plants or on harvested timber; and

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(j) For research uses of unregistered pesticides.

[57 FR 38151, Aug. 21, 1992. Redesignated at 60 FR 21952, May 3, 1995]

§ 170.104 Exemptions.

The workers listed in this section are exempt from the specified provisions of this subpart.

(a) *Owners of agricultural establishments.* (1) The owner of an agricultural establishment is not required to provide to himself or members of his immediate family who are performing tasks related to the production of agricultural plants on their own agricultural establishment the protections of:

(i) Section 170.112(c)(5) through (9).

(ii) Section 170.112(c)(5) through (9) as referenced in §§ 170.112(d)(2)(iii) and 170.112(e).

(iii) Section 170.120.

(iv) Section 170.122.

(v) Section 170.130.

(vi) Section 170.135.

(vii) Section 170.150.

(viii) Section 170.160.

(2) The owner of the agricultural establishment must provide the protections listed in paragraph (a)(1)(i) through (viii) of this section to other workers and other persons who are not members of his immediate family.

(b) *Crop advisors.* (1) Provided that the conditions of paragraph (b)(2) of this section are met, a person who is certified or licensed as a crop advisor by a program acknowledged as appropriate in writing by EPA or a State or Tribal lead agency for pesticide enforcement, and persons performing crop advising tasks under such qualified crop advisor’s direct supervision, are exempt from the provisions of:

(i) Section 170.150.

(ii) Section 170.160.

A person is under the direct supervision of a crop advisor when the crop advisor exerts the supervisory controls set out in paragraphs (b)(2)(iii) and (iv) of this section. Direct supervision does not require that the crop advisor be physically present at all times, but the crop advisor must be readily accessible to the employees at all times.

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(2) Conditions of exemption. (i) The certification or licensing program requires pesticide safety training that includes, at least, all the information in § 170.230(c)(4).

(ii) Applies only when performing crop advising tasks in the treated area.

(iii) The crop advisor must make specific determinations regarding the appropriate PPE, appropriate decontamination supplies, and how to conduct the tasks safely. The crop advisor must convey this information to each person under his direct supervision in a language that the person understands.

(iv) Before entering a treated area, the certified or licensed crop advisor must inform, through an established practice of communication, each person under his direct supervision of the pesticide product and active ingredient(s) applied, method of application, time of application, the restricted entry interval, which tasks to undertake, and how to contact the crop advisor.

(c) *Grace period for persons performing crop advisor tasks who are not certified or licensed.* (1) Provided that the conditions of paragraph (c)(2) of this section are met, a person who is neither certified nor licensed as a crop advisor and any person performing crop advising tasks under his direct supervision is exempt until May 1, 1996, from the requirements of:

(i) Section 170.130.

(ii) Section 170.150.

(iii) Section 170.160.

(2) Conditions of exemption. (i) Applies only when the persons are performing crop advising tasks in the treated area.

(ii) The crop advisor must make specific determinations regarding the appropriate PPE, appropriate decontamination supplies, and how to conduct the tasks safely. The crop advisor must convey this information to each person under his direct supervision in a language that the person understands.

(iii) Before entering a treated area, the crop advisor must inform, through an established practice of communication, each person under his direct supervision of the active ingredient, method of application, time of application, the restricted entry interval, which tasks to undertake, and how to contact the crop advisor.

[60 FR 21952, May 3, 1995]

§ 170.110 Restrictions associated with pesticide applications.

(a) *Farms and forests.* During the application of any pesticide on a farm or in a forest, the agricultural employer shall not allow or direct any person, other than an appropriately trained and equipped handler, to enter or to remain in the treated area.

(b) *Nurseries.* In a nursery, during any pesticide application described in column A of Table 1 of this paragraph, the agricultural employer shall not allow or direct any person, other than an appropriately trained and equipped handler, to enter or to remain in the area specified in column B of Table 1 of this paragraph. After the application is completed, until the end of any restricted-entry interval, the entry-restricted area is the treated area.

Table 1.—Entry-Restricted Areas in Nurseries During Pesticide Applications

A. During Application of a Pesticide:	B. Workers are Prohibited in:
(1) (a) Applied: (i) Aerially, or (ii) In an upward direction, or (iii) Using a spray pressure greater than 150 psi, or	Treated area plus 100 feet in all directions on the nursery
(b) Applied as a: (i) Fumigant, or (ii) Smoke, or (iii) Mist, or (iv) Fog, or (v) Aerosol.	
(2)(a) Applied downward using: (i) A height of greater than 12 inches from the planting medium, or (ii) A fine spray, or	Treated area plus 25 feet in all directions on the nursery

Table 1.—Entry-Restricted Areas in Nurseries During Pesticide Applications—Continued

A. During Application of a Pesticide:	B. Workers are Prohibited in:
(iii) A spray pressure greater than 40 psi and less than 150 psi. (b) Not as in 1 or 2(a) above but for which a respiratory protection device is required for application by the product labeling. (3) Applied otherwise.	Treated area

(c) *Greenhouses.* (1) When a pesticide application described in column A of Table 2 under paragraph (c)(4) of this section takes place in a greenhouse, the agricultural employer shall not allow or direct any person, other than an appropriately trained and equipped handler, to enter or to remain in the area specified in column B of Table 2 until the time specified in column C of Table 2 has expired.

(2) After the time specified in column C of Table 2 under paragraph (c)(4) of this section has expired, until the expiration of any restricted-entry interval, the agricultural employer shall not allow or direct any worker to enter or to remain in the treated area as specified in column D of Table 2 under paragraph (c)(4) of this section, except as provided in § 170.112.

(3) When column C of Table 2 under paragraph (c)(4) of this section specifies that ventilation criteria must be met, ventilation shall continue until

the air concentration is measured to be equal to or less than the inhalation exposure level the labeling requires to be achieved. If no inhalation exposure level is listed on the labeling, ventilation shall continue until after:

(i) Ten air exchanges are completed; or

(ii) Two hours of ventilation using fans or other mechanical ventilating systems; or

(iii) Four hours of ventilation using vents, windows or other passive ventilation; or

(iv) Eleven hours with no ventilation followed by 1 hour of mechanical ventilation; or

(v) Eleven hours with no ventilation followed by 2 hours of passive ventilation; or

(vi) Twenty-four hours with no ventilation.

(4) The following Table 2 applies to paragraphs (c)(1), (2), and (3) of this section.

Table 2.—Greenhouse Entry Restrictions Associated With Pesticide Applications

A. When a Pesticide is Applied:	B. Workers are Prohibited in:	C. Until:	D. After the Expiration of Time in Column C Until the Restricted-Entry Interval Expires, the Entry-Restricted Area is:
(1) As a fumigant	Entire greenhouse plus any adjacent structure that cannot be sealed off from the treated area	The ventilation criteria of paragraph (c)(3) of this section are met	No entry restrictions after criteria in column C are met
(2) As a (i) Smoke, or (ii) Mist, or (iii) Fog, or (iv) Aerosol	Entire enclosed area	The ventilation criteria of paragraph (c)(3) of this section are met	Entire enclosed area is the treated area
(3) Not in 1 or 2 above, and for which a respiratory protection device is required for application by the product labeling	Entire enclosed area	The ventilation criteria of paragraph (c)(3) of this section are met	Treated area
(4) Not in 1, 2, or 3 above, and:	Treated area plus 25 feet in all directions in the enclosed area	Application is complete	Treated area

Table 2.—Greenhouse Entry Restrictions Associated With Pesticide Applications—Continued

A. When a Pesticide is Applied:	B. Workers are Prohibited in:	C. Until:	D. After the Expiration of Time in Column C Until the Restricted-Entry Interval Expires, the Entry-Restricted Area is:
(i) From a height of greater than 12 in. from the planting medium, or (ii) As a fine spray, or (iii) Using a spray pressure greater than 40 psi			
(5) Otherwise	Treated area	Application is complete	Treated area

§ 170.112 Entry restrictions.

(a) *General restrictions.* (1) After the application of any pesticide on an agricultural employer shall not allow or direct any worker to enter or to remain in the treated area before the restricted-entry interval specified on the pesticide labeling has expired, except as provided in this section.

(2) Entry-restricted areas in greenhouses are specified in column D in Table 2 under § 170.110(c)(4).

(3) When two or more pesticides are applied at the same time, the restricted-entry interval shall be the longest of the applicable intervals.

(4) The agricultural employer shall assure that any worker who enters a treated area under a restricted-entry interval as permitted by paragraphs (c), (d), and (e) of this section uses the personal protective equipment specified in the product labeling for early-entry workers and follows any other requirements on the pesticide labeling regarding early entry.

(b) *Exception for activities with no contact.* A worker may enter a treated area during a restricted-entry interval if the agricultural employer assures that both of the following are met:

(1) The worker will have no contact with anything that has been treated with the pesticide to which the restricted-entry interval applies, including, but not limited to, soil, water, air, or surfaces of plants; and

(2) No such entry is allowed until any inhalation exposure level listed in the labeling has been reached or any ventilation criteria established by § 170.110(c)(3) or in the labeling have been met.

(c) *Exception for short-term activities.* A worker may enter a treated area during a restricted-entry interval for short-term activities if the agricultural employer assures that the following requirements are met:

(1) No hand labor activity is performed.

(2) The time in treated areas under a restricted-entry interval for any worker does not exceed 1 hour in any 24-hour period.

(3) No such entry is allowed for the first 4 hours following the end of the application, and no such entry is allowed thereafter until any inhalation exposure level listed in the labeling has been reached or any ventilation criteria established by § 170.110(c)(3) or in the labeling have been met.

(4) The personal protective equipment specified on the product labeling for early entry is provided to the worker. Such personal protective equipment shall conform to the following standards:

(i) Personal protective equipment (PPE) means devices and apparel that are worn to protect the body from contact with pesticides or pesticide residues, including, but not limited to, coveralls, chemical-resistant suits, chemical-resistant gloves, chemical-resistant footwear, respiratory protection devices, chemical-resistant aprons, chemical-resistant headgear, and protective eyewear.

(ii) Long-sleeved shirts, short-sleeved shirts, long pants, short pants, shoes,

socks, and other items of work clothing are not considered personal protective equipment for the purposes of this section and are not subject to the requirements of this section, although pesticide labeling may require that such work clothing be worn during some activities.

(iii) When “chemical-resistant” personal protective equipment is specified by the product labeling, it shall be made of material that allows no measurable movement of the pesticide being used through the material during use.

(iv) When “waterproof” personal protective equipment is specified by the product labeling, it shall be made of material that allows no measurable movement of water or aqueous solutions through the material during use.

(v) When a “chemical-resistant suit” is specified by the product labeling, it shall be a loose-fitting, one- or two-piece, chemical-resistant garment that covers, at a minimum, the entire body except head, hands, and feet.

(vi) When “coveralls” are specified by the product labeling, they shall be a loose-fitting, one- or two-piece garment, such as a cotton or cotton and polyester coverall, that covers, at a minimum, the entire body except head, hands, and feet. The pesticide product labeling may specify that the coveralls be worn over a layer of clothing. If a chemical-resistant suit is substituted for coveralls, it need not be worn over a layer of clothing.

(vii) Gloves shall be of the type specified by the product labeling. Gloves or glove linings made of leather, cotton, or other absorbent materials must not be worn for early-entry activities unless these materials are listed on the product labeling as acceptable for such use. If chemical-resistant gloves with sufficient durability and suppleness are not obtainable for tasks with roses or other plants with sharp thorns, leather gloves may be worn over chemical-resistant liners. However, once leather gloves have been worn for this use, thereafter they shall be worn only with chemical-resistant liners and they shall not be worn for any other use.

(viii) When “chemical-resistant footwear” is specified by the product labeling, it shall be one of the following types of footwear: chemical-resistant

shoes, chemical-resistant boots, or chemical-resistant shoe coverings worn over shoes or boots. If chemical-resistant footwear with sufficient durability and a tread appropriate for wear in rough terrain is not obtainable for workers, then leather boots may be worn in such terrain.

(ix) When “protective eyewear” is specified by the product labeling, it shall be one of the following types of eyewear: goggles; face shield; safety glasses with front, brow, and temple protection; or a full-face respirator.

(x) When “chemical-resistant headgear” is specified by the product labeling, it shall be either a chemical-resistant hood or a chemical-resistant hat with a wide brim.

(5) The agricultural employer shall assure that the worker, before entering the treated area, either has read the product labeling or has been informed, in a manner that the worker can understand, of all labeling requirements related to human hazards or precautions, first aid, symptoms of poisoning, personal protective equipment specified for early entry, and any other labeling requirements related to safe use.

(6) The agricultural employer shall assure that:

(i) Workers wear the personal protective equipment correctly for its intended purpose and use personal protective equipment according to manufacturer’s instructions.

(ii) Before each day of use, all personal protective equipment is inspected for leaks, holes, tears, or worn places, and any damaged equipment is repaired or discarded.

(iii) Personal protective equipment that cannot be cleaned properly is disposed of in accordance with any applicable Federal, State, and local regulations.

(iv) All personal protective equipment is cleaned according to manufacturer’s instructions or pesticide product labeling instructions before each day of reuse. In the absence of any such instructions, it shall be washed thoroughly in detergent and hot water.

(v) Before being stored, all clean personal protective equipment is dried thoroughly or is put in a well-ventilated place to dry.

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(vi) Personal protective equipment contaminated with pesticides is kept separately and washed separately from any other clothing or laundry.

(vii) Any person who cleans or launders personal protective equipment is informed that such equipment may be contaminated with pesticides, of the potentially harmful effects of exposure to pesticides, and of the correct way(s) to handle and clean personal protective equipment and to protect themselves when handling equipment contaminated with pesticides.

(viii) All clean personal protective equipment is stored separately from personal clothing and apart from pesticide-contaminated areas.

(ix) Each worker is instructed how to put on, use, and remove the personal protective equipment and is informed about the importance of washing thoroughly after removing personal protective equipment.

(x) Each worker is instructed in the prevention, recognition, and first aid treatment of heat-related illness.

(xi) Workers have a clean place(s) away from pesticide-storage and pesticide-use areas for storing personal clothing not in use; putting on personal protective equipment at the start of any exposure period; and removing personal protective equipment at the end of any exposure period.

(7) When personal protective equipment is required by the labeling of any pesticide for early entry, the agricultural employer shall assure that no worker is allowed or directed to perform the early-entry activity without implementing, when appropriate, measures to prevent heat-related illness.

(8) During any early-entry activity, the agricultural employer shall provide a decontamination site in accordance with § 170.150.

(9) The agricultural employer shall not allow or direct any worker to wear home or to take home personal protective equipment contaminated with pesticides.

(d) *Exception for an agricultural emergency.* (1) An “agricultural emergency” means a sudden occurrence or set of circumstances which the agricultural employer could not have anticipated and over which the agricultural employer has no control, and which re-

quires entry into a treated area during a restricted-entry interval, when no alternative practices would prevent or mitigate a substantial economic loss. A substantial economic loss means a loss in profitability greater than that which would be expected based on the experience and fluctuations of crop yields in previous years. Only losses caused by the agricultural emergency specific to the affected site and geographic area are considered. The contribution of mismanagement cannot be considered in determining the loss.

(2) A worker may enter a treated area under a restricted-entry interval in an agricultural emergency to perform tasks, including hand labor tasks, necessary to mitigate the effects of the agricultural emergency, if the agricultural employer assures that all the following criteria are met:

(i) A State, Tribal, or Federal Agency having jurisdiction declares the existence of circumstances that could cause an agricultural emergency on that agricultural establishment.

(ii) The agricultural employer determines the agricultural establishment is subject to the circumstances declared under paragraph (d)(2)(i) of this section that result in an agricultural emergency meeting the criteria of paragraph (d)(1) of this section.

(iii) The requirements of paragraphs (c)(3) through (9) of this section are met.

(e) *Exception requiring Agency approval.* The Agency may, in accordance with paragraphs (e)(1) through (3) of this section, grant an exception from the requirements of this section. An exception may be withdrawn in accordance with paragraph (e)(6) of this section.

(1) *Requesting an exception.* A request for an exception must be submitted to the Director, Office of Pesticide Programs (H-7501C), Environmental Protection Agency, 401 M Street, SW., Washington, DC 20460 and must be accompanied by two copies of the following information:

(i) The name, address, and telephone number of the submitter.

(ii) The time period for which the exception is requested.

(iii) A description of the crop(s) and specific crop production task(s) for

which the exception is requested. Such a description must include an explanation as to the necessity of applying pesticides of a type and at a frequency such that the restricted-entry interval would interfere with necessary and time-sensitive hand labor tasks for the period for which the exception is sought.

(iv) A description of the geographic area for which the exception is requested. If the exception request is for a limited geographic area, the explanation must include a description as to why the circumstances of exposure or economic impact resulting from the prohibition of routine hand labor tasks during the restricted-entry interval are unique to the geographic area named in the exception.

(v) An explanation as to why, for each requested crop-task combination, alternative practices would not be technically or financially viable. Such alternative practices might include: rescheduling the pesticide application or hand labor activity; using a non-chemical pest control alternative; using an alternative to the hand labor tasks, such as machine cultivation; or substituting a pesticide with a shorter restricted-entry interval. This information should include estimates or data on per acre revenue and cost of production for the crop and area for which the exception is requested. These estimates or data should include: the situation prior to implementation of this final rule, the situation after implementation of this final rule if the exception is not granted, the situation after implementation of this final rule if the exception is granted, and specific information on individual factors which cause differences in revenues and costs among the three situations.

(vi) A description or documentation of the safety and feasibility of such an exception, including, but not limited to, the feasibility of performing the necessary hand labor activity while wearing the personal protective equipment required for early entry for the pesticide(s) expected to be applied, the means of mitigating heat-related illness concerns, the period of time required daily per worker to perform the hand labor activity, any suggested methods of reducing the worker's expo-

sure, and any other mitigating factors, such as the availability of running water for routine and emergency decontamination and mechanical devices that would reduce the workers' contact with the treated surfaces. The information should include the costs associated with early-entry, such as decontamination facilities, special information and training for the workers, heat stress avoidance procedures, and provision, inspection, cleaning, and maintenance of personal protective equipment. EPA will not grant exceptions where the costs of early entry equal or exceed the expected loss in value of crop yield or quality.

(2) *Notice of receipt.* (i) When a request for an exception is submitted to the Agency along with all of the information required in paragraph (e)(1) of this section, the Agency shall issue a notice in the FEDERAL REGISTER stating that an exception is being considered, describing the nature of the exception, and allowing at least 30 days for interested parties to comment.

(ii) If a request for an exception is submitted to the Agency without all of the information required in paragraph (e)(1) of this section, the Agency shall return the request to the submitter.

(3) *Exception decision.* EPA will publish in the FEDERAL REGISTER its decision whether to grant the request for exception. EPA will base its decision on whether the benefits of the exception outweigh the costs, including the value of the health risks attributable to the exception. If the exception is granted, the notice will state the nature of and reasons for the exception.

(4) *Presumptive denial.* (i) Except as provided in paragraph (e)(4)(ii) of this section, persons requesting an exception may assume that the exception has been denied if EPA has not issued its decision whether to grant the exception within 9 months from the comment-closure date specified in the FEDERAL REGISTER notice in which the Agency announced, in accordance with paragraph (e)(2) of this section, that it would consider the exception.

(ii) Persons requesting an exception may not assume that the request has been denied as provided by paragraph (e)(4)(i) of this section if the Agency has taken action to extend its review

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period for a specified time interval due to the complexity of the exception request or to the number of exception requests concurrently under Agency review. EPA shall state the reason(s) for the delay in issuing a decision on the exception request. A notice of such an action may be published in the FEDERAL REGISTER or persons who requested the exception may be directly notified of the action.

(5) *Agricultural employer duties.* When a worker enters a treated area during a restricted-entry interval under an exception granted under paragraph (e) of this section, the agricultural employer shall assure that the requirements of paragraphs (c)(3) through (9) of this section are met, unless the notice granting the exception specifically indicates otherwise.

(6) *Withdrawing an exception.* An exception may be withdrawn by the Agency at any time if the Agency receives poisoning information or other data that indicate that the health risks imposed by this early-entry exception are unacceptable or if the Agency receives other information that indicates that the exception is no longer necessary or prudent. If the Agency determines that an exception should be withdrawn, it will publish a notice in the FEDERAL REGISTER, stating the basis for its determination. Affected parties would then have 30 days to request a hearing on the Agency's determination. The exception, however, would be discontinued as of the date specified by EPA in the notice, which may include any of the 30-day period and the time required for any subsequent hearing process. Thereafter the Agency will decide whether to withdraw the exception and will publish a notice in the FEDERAL REGISTER stating its decision.

(7) *List of exceptions granted by EPA.* The following administrative exceptions from the requirements of this section have been granted by EPA. Each exception listed in paragraph (e)(7) of this section contains a reference to the FEDERAL REGISTER notice in which EPA has granted the exception and the effective dates of the exception. The terms and conditions of the exception appear in the referenced FEDERAL REGISTER notice.

(i) Exception for hand labor to harvest greenhouse-grown cut roses published in the FEDERAL REGISTER of June 10, 1994, effective from June 10, 1994, to June 10, 1996.

(ii) Exception to perform irrigation tasks under specified conditions published in the FEDERAL REGISTER of May 3, 1995.

(iii) Exceptions to perform limited contact tasks under specified conditions published in the FEDERAL REGISTER of May 3, 1995.

[57 FR 38151, Aug. 21, 1992, as amended at 59 FR 30264, June 10, 1994; 60 FR 21954, May 3, 1995]

§ 170.120 Notice of applications.

(a) *Notification to workers of pesticide applications in greenhouses.* The agricultural employer shall notify workers of any pesticide application in the greenhouse in accordance with this paragraph.

(1) All pesticide applications shall be posted in accordance with paragraph (c) of this section.

(2) If the pesticide product labeling has a statement requiring both the posting of treated areas and oral notification to workers, the agricultural employer shall also provide oral notification of the application to the worker in accordance with paragraph (d) of this section.

(3) Notice need not be given to a worker if the agricultural employer can assure that one of the following is met:

(i) From the start of the application until the end of the application and during any restricted-entry interval, the worker will not enter, work in, remain in, or pass through the greenhouse; or

(ii) The worker applied (or supervised the application of) the pesticide for which the notice is intended and is aware of all information required by paragraphs (d)(1) through (3) of this section.

(b) *Notification to workers on farms, in nurseries, or in forests of pesticide applications.* The agricultural employer shall notify workers of any pesticide application on the farm or in the nursery or forest in accordance with this paragraph.

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(1) If the pesticide product labeling has a statement requiring both the posting of treated areas and oral notification to workers, the agricultural employer shall post signs in accordance with paragraph (c) of this section and shall provide oral notification of the application to the worker in accordance with paragraph (d) of this section.

(2) For any pesticide other than those for which the labeling requires both posting and oral notification of applications, the agricultural employer shall give notice of the application to the worker either by the posting of warning signs in accordance with paragraph (c) of this section or orally in accordance with paragraph (d) of this section, and shall inform the workers as to which method of notification is in effect.

(3) Notice need not be given to a worker if the agricultural employer can assure that one of the following is met:

(i) From the start of the application until the end of the application and during any restricted-entry interval, the worker will not enter, work in, remain in, or pass through on foot the treated area or any area within 1/4 mile of the treated area; or

(ii) The worker applied (or supervised the application of) the pesticide for which the notice is intended and is

aware of all information required by (d)(1) through (3) of this section.

(c) *Posted warning signs.* The agricultural employer shall post warning signs in accordance with the following criteria:

(1) The warning sign shall have a background color that contrasts with red. The words “DANGER” and “PELIGRO,” plus “PESTICIDES” and “PESTICIDAS,” shall be at the top of the sign, and the words “KEEP OUT” and “NO ENTRE” shall be at the bottom of the sign. Letters for all words must be clearly legible. A circle containing an upraised hand on the left and a stern face on the right must be near the center of the sign. The inside of the circle must be red, except that the hand and a large portion of the face must be in a shade that contrasts with red. The length of the hand must be at least twice the height of the smallest letters. The length of the face must be only slightly smaller than the hand. Additional information such as the name of the pesticide and the date of application may appear on the warning sign if it does not detract from the appearance of the sign or change the meaning of the required information. A black-and-white example of a warning sign meeting these requirements, other than the size requirements, follows:



(2) The standard sign shall be at least 14 inches by 16 inches with letters at least 1 inch in height. Farms and forests shall use the standard size sign unless a smaller sign is necessary because the treated area is too small to accommodate a sign of this size. In nurseries and greenhouses, the agricultural employer may, at any time, use a sign smaller than the standard size sign. Whenever a small sign is used on any establishment, there are specific posting distances depending on the size of the lettering and symbol on the sign. If a sign is used with DANGER and PELIGRO in letters at least $\frac{7}{8}$ inch in height and the remaining letters at least $\frac{1}{2}$ inch in height and a red circle at least 3 inches in diameter containing an upraised hand and a stern face, the signs shall be no further than 50 feet apart. If a sign is used with DANGER and PELIGRO in letters at least $\frac{7}{16}$ inch in height and the remaining letters at least $\frac{1}{4}$ inch in height and a red circle at least $1\frac{1}{2}$ inches in diameter containing an upraised hand and a stern face, the signs shall be no further than 25 feet apart. A sign with DANGER and PELIGRO in letters less than $\frac{7}{16}$ inch in height or with any words in letters less than $\frac{1}{4}$ inch in height or a red circle smaller than $1\frac{1}{2}$ inches in diameter containing an upraised hand and a stern face will not satisfy the requirements of the rule. All signs must meet the requirements of paragraph (c)(1) of this section.

(3) The employer may replace the Spanish portion of the warning sign with a non-English language read by the largest group of workers who do not read English. The replacement sign must be in the same format as the original sign and be visible and legible.

(4) On farms and in forests and nurseries, the signs shall be visible from all usual points of worker entry to the treated area, including at least each access road, each border with any labor camp adjacent to the treated area, and each footpath and other walking route that enters the treated area. When there are no usual points of worker entry, signs shall be posted in the corners of the treated area or in any other location affording maximum visibility.

(5) In greenhouses, the signs shall be posted so they are visible from all

usual points of worker entry to the treated area including each aisle or other walking route that enters the treated area. When there are no usual points of worker entry to the treated area, signs shall be posted in the corners of the treated area or in any other location affording maximum visibility.

(6) The signs shall:

(i) Be posted no sooner than 24 hours before the scheduled application of the pesticide.

(ii) Remain posted throughout the application and any restricted-entry interval.

(iii) Be removed within 3 days after the end of the application and any restricted-entry interval and before agricultural-worker entry is permitted, other than entry permitted by § 170.112.

(7) The signs shall remain visible and legible during the time they are posted.

(8) When several contiguous areas are to be treated with pesticides on a rotating or sequential basis, the entire area may be posted. Worker entry, other than entry permitted by § 170.112, is prohibited for the entire area while the signs are posted.

(d) *Oral warnings.* The agricultural employer shall provide oral warnings to workers in a manner that the worker can understand. If a worker will be on the premises during the application, the warning shall be given before the application takes place. Otherwise, the warning shall be given at the beginning of the worker's first work period during which the application is taking place or the restricted-entry interval for the pesticide is in effect. The warning shall consist of:

(1) The location and description of the treated area.

(2) The time during which entry is restricted.

(3) Instructions not to enter the treated area until the restricted-entry interval has expired.

[57 FR 38151, Aug. 21, 1992, as amended at 61 FR 33207, June 26, 1996]

EFFECTIVE DATE NOTE: At 61 FR 33207, June 26, 1996, § 170.120 was amended by revising paragraph (c)(2), redesignating existing paragraphs (c)(3) through (c)(7) as (c)(4) through (c)(8) respectively, and adding a new paragraph (c)(3), effective Aug. 26, 1996. For the convenience of the user, the superseded text is set forth as follows:

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* * * * *

(c) * * *

(2) The sign shall be at least 14 inches by 16 inches in size, and the letters shall be at least 1 inch in height unless a smaller sign and smaller letters are necessary because the treated area is too small to accommodate a sign of this size. If a smaller sign is used, it must meet the proportions and other requirements described in paragraph (c)(1) of this section.

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§ 170.122 Providing specific information about applications.

When workers are on an agricultural establishment and, within the last 30 days, a pesticide covered by this subpart has been applied on the establishment or a restricted-entry interval has been in effect, the agricultural employer shall display, in accordance with this section, specific information about the pesticide.

(a) *Location, accessibility, and legibility.* The information shall be displayed in the location specified for the pesticide safety poster in § 170.135(d) and shall be accessible and legible, as specified in § 170.135(e) and (f).

(b) *Timing.* (1) If warning signs are posted for the treated area before an application, the specific application information for that application shall be posted at the same time or earlier.

(2) The information shall be posted before the application takes place, if workers will be on the establishment during application. Otherwise, the information shall be posted at the beginning of any worker's first work period.

(3) The information shall continue to be displayed for at least 30 days after the end of the restricted-entry interval (or, if there is no restricted-entry interval, for at least 30 days after the end of the application) or at least until workers are no longer on the establishment, whichever is earlier.

(c) *Required information.* The information shall include:

(1) The location and description of the treated area.

(2) The product name, EPA registration number, and active ingredient(s) of the pesticide.

(3) The time and date the pesticide is to be applied.

(4) The restricted-entry interval for the pesticide.

§ 170.124 Notice of applications to handler employers.

Whenever handlers who are employed by a commercial pesticide handling establishment will be performing pesticide handling tasks on an agricultural establishment, the agricultural employer shall provide to the handler employer, or assure that the handler employer is aware of, the following information concerning any areas on the agricultural establishment that the handler may be in (or may walk within 1/4 mile of) and that may be treated with a pesticide or that may be under a restricted-entry interval while the handler will be on the agricultural establishment:

(a) Specific location and description of any such areas; and

(b) Restrictions on entering those areas.

§ 170.130 Pesticide safety training for workers.

(a) *General requirement*—(1) *Agricultural employer assurance.* The agricultural employer shall assure that each worker, required by this section to be trained, has been trained according to this section during the last 5 years, counting from the end of the month in which the training was completed.

(2) *Requirement for workers performing early-entry activities.* Before a worker enters a treated area on the agricultural establishment during a restricted-entry interval to perform early-entry activities permitted by § 170.112 and contacts anything that has been treated with the pesticide to which the restricted-entry interval applies, including but not limited to, soil, water, or surfaces of plants, the agricultural employer shall assure that the worker has been trained.

(3) *Requirements for other agricultural workers*—(i) *Information before entry.* As of January 1, 1996, and except as provided in paragraph (a)(2) of this section, before a worker enters any areas on the agricultural establishment where, within the last 30 days a pesticide to which this subpart applies has

been applied or the restricted-entry interval for such pesticide has been in effect, the agricultural employer shall assure that the worker has been provided the pesticide safety information specified in paragraph (c), in a manner that agricultural workers can understand, such as by providing written materials or oral communication or by other means. The agricultural employer must be able to verify compliance with this requirement.

(ii) *Training before the 6th day of entry.* Except as provided in paragraph (a)(2) of this section, before the 6th day that a worker enters any areas on the agricultural establishment where, within the last 30 days a pesticide to which this subpart applies has been applied or a restricted-entry interval for such pesticide has been in effect, the agricultural employer shall assure that the worker has been trained.

(iii) *Exceptions during interim period.* Until December 31, 1995, and except as provided by paragraph (a)(2) of this section, before the 16th day that a worker enters any areas on the agricultural establishment where, within the last 30 days a pesticide to which this subpart applies has been applied or a restricted-entry interval has been in effect, the agricultural employer shall assure that the worker has been trained. After December 31, 1995 this exception no longer applies.

(b) *Exceptions.* The following persons need not be trained under this section:

(1) A worker who is currently certified as an applicator of restricted-use pesticides under part 171 of this chapter.

(2) A worker who satisfies the training requirements of part 171 of this chapter.

(3) A worker who satisfies the handler training requirements of § 170.230(c).

(4) A worker who is certified or licensed as a crop advisor by a program acknowledged as appropriate in writing by EPA or a State or Tribal lead agency for pesticide enforcement, provided that a requirement for such certification or licensing is pesticide safety training that includes all the information set out in § 170.230(c)(4).

(c) *Pesticide safety information.* The pesticide safety information required

by paragraph (a)(3)(i) shall be presented to workers in a manner that the workers can understand. At a minimum, the following information shall be provided:

(1) Pesticides may be on or in plants, soil, irrigation water, or drifting from nearby applications.

(2) Prevent pesticides from entering your body by:

(i) Following directions and/or signs about keeping out of treated or restricted areas.

(ii) Washing before eating, drinking, using chewing gum or tobacco, or using the toilet.

(iii) Wearing work clothing that protects the body from pesticide residues.

(iv) Washing/showering with soap and water, shampoo hair, and put on clean clothes after work.

(v) Washing work clothes separately from other clothes before wearing them again.

(vi) Washing immediately in the nearest clean water if pesticides are spilled or sprayed on the body. As soon as possible, shower, shampoo, and change into clean clothes.

(3) Further training will be provided within 5 days.

(d) *Training programs.* (1) General pesticide safety information shall be presented to workers either orally from written materials or audiovisually. The information must be presented in a manner that the workers can understand (such as through a translator) using nontechnical terms. The presenter also shall respond to workers' questions.

(2) The person who conducts the training shall meet at least one of the following criteria:

(i) Be currently certified as an applicator of restricted-use pesticides under part 171 of this chapter; or

(ii) Be currently designated as a trainer of certified applicators or pesticide handlers by a State, Federal, or Tribal agency having jurisdiction; or

(iii) Have completed a pesticide safety train-the-trainer program approved by a State, Federal, or Tribal agency having jurisdiction; or

(iv) Satisfy the training requirements in part 171 of this chapter or in § 170.230(c).

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(3) Any person who issues an EPA-approved Worker Protection Standard worker training certificate must assure that the worker who receives the training certificate has been trained in accordance with (c)(4) of this section.

(4) The training materials shall convey, at a minimum, the following information:

(i) Where and in what form pesticides may be encountered during work activities.

(ii) Hazards of pesticides resulting from toxicity and exposure, including acute and chronic effects, delayed effects, and sensitization.

(iii) Routes through which pesticides can enter the body.

(iv) Signs and symptoms of common types of pesticide poisoning.

(v) Emergency first aid for pesticide injuries or poisonings.

(vi) How to obtain emergency medical care.

(vii) Routine and emergency decontamination procedures, including emergency eyeflushing techniques.

(viii) Hazards from chemigation and drift.

(ix) Hazards from pesticide residues on clothing.

(x) Warnings about taking pesticides or pesticide containers home.

(xi) Requirements of this subpart designed to reduce the risks of illness or injury resulting from workers' occupational exposure to pesticides, including application and entry restrictions, the design of the warning sign, posting of warning signs, oral warnings, the availability of specific information about applications, and the protection against retaliatory acts.

(e) *Verification of training.* (1) Except as provided in paragraph (e)(2) of this section, if the agricultural employer assures that a worker possesses an EPA-approved Worker Protection Standard worker training certificate, then the requirements of paragraph (a) and (c) of this section will have been met.

(2) If the agricultural employer is aware or has reason to know that an EPA-approved Worker Protection Standard worker training certificate has not been issued in accordance with this section, or has not been issued to the worker bearing the certificate, or

the training was completed more than 5 years before the beginning of the current month, a worker's possession of that certificate does not meet the requirements of paragraph (a) of this section.

[57 FR 38151, Aug. 21, 1992, as amended at 60 FR 21947, 21952, May 3, 1995]

§ 170.135 Posted pesticide safety information.

(a) *Requirement.* When workers are on an agricultural establishment and, within the last 30 days, a pesticide covered by this subpart has been applied on the establishment or a restricted-entry interval has been in effect, the agricultural employer shall display, in accordance with this section, pesticide safety information.

(b) *Pesticide safety poster.* A safety poster must be displayed that conveys, at a minimum, the following basic pesticide safety concepts:

(1) Help keep pesticides from entering your body. At a minimum, the following points shall be conveyed:

(i) Avoid getting on your skin or into your body any pesticides that may be on plants and soil, in irrigation water, or drifting from nearby applications.

(ii) Wash before eating, drinking, using chewing gum or tobacco, or using the toilet.

(iii) Wear work clothing that protects the body from pesticide residues (long-sleeved shirts, long pants, shoes and socks, and a hat or scarf).

(iv) Wash/shower with soap and water, shampoo hair, and put on clean clothes after work.

(v) Wash work clothes separately from other clothes before wearing them again.

(vi) Wash immediately in the nearest clean water if pesticides are spilled or sprayed on the body. As soon as possible, shower, shampoo, and change into clean clothes.

(vii) Follow directions about keeping out of treated or restricted areas.

(2) There are Federal rules to protect workers and handlers, including a requirement for safety training.

(c) *Emergency medical care information.*

(1) The name, address, and telephone number of the nearest emergency medical care facility shall be on the safety

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poster or displayed close to the safety poster.

(2) The agricultural employer shall inform workers promptly of any change to the information on emergency medical care facilities.

(d) *Location.* (1) The information shall be displayed in a central location on the farm or in the nursery or greenhouse where it can be readily seen and read by workers.

(2) The information shall be displayed in a location in or near the forest in a place where it can be readily seen and read by workers and where workers are likely to congregate or pass by, such as at a decontamination site or an equipment storage site.

(e) *Accessibility.* Workers shall be informed of the location of the information and shall be allowed access to it.

(f) *Legibility.* The information shall remain legible during the time it is posted.

§ 170.150 Decontamination.

(a)(1) *Requirement.* The agricultural employer must provide decontamination supplies for workers in accordance with this section whenever:

(i) Any worker on the agricultural establishment is performing an activity in the area where a pesticide was applied or a restricted-entry interval (REI) was in effect within the last 30 days, and;

(ii) The worker contacts anything that has been treated with the pesticide, including, but not limited to soil, water, plants, plant surfaces, and plant parts.

(2) *Exception.* The 30-day time period established in paragraph (a)(1)(i) of this section shall not apply if the only pesticides used in the treated area are products with an REI of 4 hours or less on the label (but not a product without an REI on the label). When workers are in such treated areas, the agricultural employer shall provide decontamination supplies for not less than 7 days following the expiration of any applicable REI.

(b) *General conditions.* (1) The agricultural employer shall provide workers with enough water for routine washing and emergency eyeflushing. At all times when the water is available to workers, the employer shall assure

that it is of a quality and temperature that will not cause illness or injury when it contacts the skin or eyes or if it is swallowed.

(2) When water stored in a tank is to be used for mixing pesticides, it shall not be used for decontamination or eyeflushing, unless the tank is equipped with properly functioning valves or other mechanisms that prevent movement of pesticides into the tank.

(3) The agricultural employer shall provide soap and single-use towels in quantities sufficient to meet worker's needs.

(4) To provide for emergency eyeflushing, the agricultural employer shall assure that at least 1 pint of water is immediately available to each worker who is performing early-entry activities permitted by § 170.112 and for which the pesticide labeling requires protective eyewear. The eyeflush water shall be carried by the early-entry worker, or shall be on the vehicle the early-entry worker is using, or shall be otherwise immediately accessible.

(c) *Location.* (1) The decontamination supplies shall be located together and be reasonably accessible to and not more than 1/4 mile from where workers are working.

(2) For worker activities performed more than 1/4 mile from the nearest place of vehicular access:

(i) The soap, single-use towels, and water may be at the nearest place of vehicular access.

(ii) The agricultural employer may permit workers to use clean water from springs, streams, lakes, or other sources for decontamination at the remote work site, if such water is more accessible than the water located at the nearest place of vehicular access.

(3) The decontamination supplies shall not be maintained in an area being treated with pesticides.

(4) The decontamination supplies shall not be maintained in an area that is under a restricted-entry interval, unless the workers for whom the supplies are provided are performing early-entry activities permitted by § 170.112 and involving contact with treated surfaces and the decontamination supplies would otherwise not be reasonably accessible to those workers.

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(d) *Decontamination after early-entry activities.* At the end of any exposure period for workers engaged in early-entry activities permitted by § 170.112 and involving contact with anything that has been treated with the pesticide to which the restricted-entry interval applies, including, but not limited to, soil, water, air, or surfaces of plants, the agricultural employer shall provide, at the site where the workers remove personal protective equipment, soap, clean towels, and a sufficient amount of water so that the workers may wash thoroughly.

[57 FR 38151, Aug. 21, 1992, as amended at 61 FR 33212, June 26, 1996]

EFFECTIVE DATE NOTE: At 61 FR 33212, June 26, 1996, § 170.150 was amended by revising paragraphs (a), (b)(3), (c)(1), (c)(2)(ii), (c)(3), and (c)(4), effective Aug. 26, 1996. For the convenience of the user, the superseded text is set forth as follows:

§ 170.150 Decontamination.

(a) *Requirement.* If any worker on an agricultural establishment performs any activity in an area where, within the last 30 days, a pesticide has been applied or a restricted-entry interval has been in effect and contacts anything that has been treated with the pesticide, including, but not limited to, soil, water, or surfaces of plants, the agricultural employer shall provide, in accordance with this section, a decontamination site for washing off pesticide residues.

(b) * * *

(3) The agricultural employer shall provide soap and single-use towels at each decontamination site in quantities sufficient to meet workers' needs.

* * * * *

(c) * * *

(1) The decontamination site shall be reasonably accessible to and not more than 1/4 mile from where workers are working.

(2) * * *

(ii) The agricultural employer may permit workers to use clean water from springs, streams, lakes, or other sources for decontamination at the remote work site, if such water is more accessible than the water at the decontamination site located at the nearest place of vehicular access.

(3) The decontamination site shall not be in an area being treated with pesticides.

(4) The decontamination site shall not be in an area that is under a restricted-entry interval, unless the workers for whom the site is provided are performing early-entry activities permitted by § 170.112 and involving contact with treated surfaces and the de-

contamination site would otherwise not be reasonably accessible to those workers.

* * * * *

§ 170.160 Emergency assistance.

If there is reason to believe that a person who is or has been employed on an agricultural establishment to perform tasks related to the production of agricultural plants has been poisoned or injured by exposure to pesticides used on the agricultural establishment, including, but not limited to, exposures from application, splash, spill, drift, or pesticide residues, the agricultural employer shall:

(a) Make available to that person prompt transportation from the agricultural establishment, including any labor camp on the agricultural establishment, to an appropriate emergency medical facility.

(b) Provide to that person or to treating medical personnel, promptly upon request, any obtainable information on:

(1) Product name, EPA registration number, and active ingredients of any product to which that person might have been exposed.

(2) Antidote, first aid, and other medical information from the product labeling.

(3) The circumstances of application or use of the pesticide on the agricultural establishment.

(4) The circumstances of exposure of that person to the pesticide.

Subpart C—Standard for Pesticide Handlers

§ 170.202 Applicability of this subpart.

Except as provided by §§ 170.203 and 170.204, this subpart applies when any pesticide is handled for use on an agricultural establishment.

[60 FR 21952, May 3, 1995]

§ 170.203 Exceptions.

Exceptions. This subpart does not apply when any pesticide is handled for use on an agricultural establishment in the following circumstances:

(a) For mosquito abatement, Mediterranean fruit fly eradication, or similar wide-area public pest control

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programs sponsored by governmental entities.

(b) On livestock or other animals, or in or about animal premises.

(c) On plants grown for other than commercial or research purposes, which may include plants in habitations, home fruit and vegetable gardens, and home greenhouses.

(d) On plants that are in ornamental gardens, parks, and public or private lawns and grounds and that are intended only for aesthetic purposes or climatic modification.

(e) In a manner not directly related to the production of agricultural plants, including, but not limited to, structural pest control, control of vegetation along rights-of-way and in other noncrop areas, and pasture and rangeland use.

(f) For control of vertebrate pests.

(g) As attractants or repellents in traps.

(h) On the harvested portions of agricultural plants or on harvested timber.

(i) For research uses of unregistered pesticides.

[57 FR 38151, Aug. 21, 1992. Redesignated at 60 FR 21952, May 3, 1995]

§ 170.204 Exemptions.

The handlers listed in this section are exempt from the specified provisions of this subpart.

(a) *Owners of agricultural establishments.* (1) The owner of an agricultural establishment is not required to provide to himself or members of his immediate family who are performing handling tasks on their own agricultural establishment the protections of:

(i) Section 170.210(b) and (c).

(ii) Section 170.222.

(iii) Section 170.230.

(iv) Section 170.232.

(v) Section 170.234.

(vi) Section 170.235.

(vii) Section 170.240(e) through (g).

(viii) Section 170.250.

(ix) Section 170.260.

(2) The owner of the agricultural establishment must provide the protections listed in paragraphs (a)(1)(i) through (ix) of this section to other handlers and other persons who are not members of his immediate family.

(b) *Crop advisors.* (1) Provided that the conditions of paragraph (b)(2) of

this section are met, a person who is certified or licensed as a crop advisor by a program acknowledged as appropriate in writing by EPA or a State or Tribal lead agency for pesticide enforcement, and persons performing crop advising tasks under such qualified crop advisor's direct supervision, are exempt from the provisions of:

(i) Section 170.232.

(ii) Section 170.240.

(iii) Section 170.250.

(iv) Section 170.260.

A person is under the direct supervision of a crop advisor when the crop advisor exerts the supervisory controls set out in paragraphs (b)(2)(iv) and (v) of this section. Direct supervision does not require that the crop advisor be physically present at all times, but the crop advisor must be readily accessible to the employees at all times.

(2) Conditions of exemption. (i) The certification or licensing program requires pesticide safety training that includes, at least, all the information in § 170.230(c)(4).

(ii) No entry into the treated area occurs until after application ends.

(iii) Applies only when performing crop advising tasks in the treated area.

(iv) The crop advisor must make specific determinations regarding the appropriate PPE, appropriate decontamination supplies, and how to conduct the tasks safely. The crop advisor must convey this information to each person under his direct supervision in a language that the person understands.

(v) Before entering a treated area, the certified or licensed crop advisor must inform, through an established practice of communication, each person under his direct supervision of the pesticide products and active ingredient(s) applied, method of application, time of application, the restricted entry interval, which tasks to undertake, and how to contact the crop advisor.

(c) *Grace period for persons performing crop advisor tasks who are not certified or licensed.* (1) Provided that the conditions of paragraph (c)(2) of this section are met, a person who is neither certified nor licensed as a crop advisor and any person performing crop advising tasks under his direct supervision is

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exempt until May 1, 1996, from the requirements of:

- (i) Section 170.230.
- (ii) Section 170.232.
- (iii) Section 170.240.
- (iv) Section 170.250.
- (v) Section 170.260.

(2) Conditions of exemption. (i) No entry into the treated area occurs until after application ends.

(ii) Applies only when the persons are performing crop advising tasks in the treated area.

(iii) The crop advisor must make specific determinations regarding the appropriate PPE, appropriate decontamination supplies, and how to conduct the tasks safely. The crop advisor must convey this information to each person under his direct supervision in a language that the person understands.

(iv) Before entering a treated area, the crop advisor must inform, through an established practice of communication, each person under his direct supervision of the pesticide products and active ingredient(s) applied, method of application, time of application, the restricted entry interval, which tasks to undertake, and how to contact the crop advisor.

[60 FR 21953, May 3, 1995]

§ 170.210 Restrictions during applications.

(a) *Contact with workers and other persons.* The handler employer and the handler shall assure that no pesticide is applied so as to contact, either directly or through drift, any worker or other person, other than an appropriately trained and equipped handler.

(b) *Handlers handling highly toxic pesticides.* The handler employer shall assure that any handler who is performing any handling activity with a product that has the skull and crossbones symbol on the front panel of the label is monitored visually or by voice communication at least every 2 hours.

(c) *Fumigant applications in greenhouses.* The handler employer shall assure:

(1) That any handler who handles a fumigant in a greenhouse, including a handler who enters the greenhouse before the acceptable inhalation exposure level or ventilation criteria have been met to monitor air levels or to initiate

ventilation, maintains continuous visual or voice contact with another handler.

(2) That the other handler has immediate access to the personal protective equipment required by the fumigant labeling for handlers in the event entry into the fumigated greenhouse becomes necessary for rescue.

§ 170.222 Providing specific information about applications.

When handlers (except those employed by a commercial pesticide handling establishment) are on an agricultural establishment and, within the last 30 days, a pesticide covered by this subpart has been applied on the establishment or a restricted-entry interval has been in effect, the handler employer shall display, in accordance with this section, specific information about the pesticide.

(a) *Location, accessibility, and legibility.* The information shall be displayed in the same location specified for the pesticide safety poster in § 170.235(d) of this part and shall be accessible and legible, as specified in § 170.235(e) and (f) of this part.

(b) *Timing.* (1) If warning signs are posted for the treated area before an application, the specific application information for that application shall be posted at the same time or earlier.

(2) The information shall be posted before the application takes place, if handlers (except those employed by a commercial pesticide handling establishment) will be on the establishment during application. Otherwise, the information shall be posted at the beginning of any such handler's first work period.

(3) The information shall continue to be displayed for at least 30 days after the end of the restricted-entry interval (or, if there is no restricted-entry interval, for at least 30 days after the end of the application) or at least until the handlers are no longer on the establishment, whichever is earlier.

(c) *Required information.* The information shall include:

(1) The location and description of the treated area.

(2) The product name, EPA registration number, and active ingredient(s) of the pesticide.

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(3) The time and date the pesticide is to be applied.

(4) The restricted-entry interval for the pesticide.

§ 170.224 Notice of applications to agricultural employers.

Before the application of any pesticide on or in an agricultural establishment, the handler employer shall provide the following information to any agricultural employer for the establishment or shall assure that any agricultural employer is aware of:

(a) Specific location and description of the treated area.

(b) Time and date of application.

(c) Product name, EPA registration number, and active ingredient(s).

(d) Restricted-entry interval.

(e) Whether posting and oral notification are required.

(f) Any other product-specific requirements on the product labeling concerning protection of workers or other persons during or after application.

§ 170.230 Pesticide safety training for handlers.

(a) *Requirement.* Before any handler performs any handling task, the handler employer shall assure that the handler has been trained in accordance with this section during the last 5 years, counting from the end of the month in which the training was completed.

(b) *Exceptions.* The following persons need not be trained under this section:

(1) A handler who is currently certified as an applicator of restricted-use pesticides under part 171 of this chapter.

(2) A handler who satisfies the training requirements of part 171 of this chapter.

(3) A handler who is certified or licensed as a crop advisor by a program acknowledged as appropriate in writing by EPA or a State or Tribal lead agency for pesticide enforcement, provided that a requirement for such certification or licensing is pesticide safety training that includes all the information set out in § 170.230(c)(4).

(c) *Training programs.* (1) General pesticide safety information shall be presented to handlers either orally from

written materials or audiovisually. The information must be presented in a manner that the handlers can understand (such as through a translator). The presenter also shall respond to handlers' questions.

(2) The person who conducts the training shall meet at least one of the following criteria:

(i) Be currently certified as an applicator of restricted-use pesticides under part 171 of this chapter; or

(ii) Be currently designated as a trainer of certified applicators or pesticide handlers by a State, Federal, or Tribal agency having jurisdiction; or

(iii) Have completed a pesticide safety train-the-trainer program approved by a State, Federal, or Tribal agency having jurisdiction.

(3) Any person who issues an EPA-approved Worker Protection Standard handler training certificate must assure that the handler who receives the training certificate has been trained in accordance with paragraph (c)(4) of this section.

(4) The pesticide safety training materials must convey, at a minimum, the following information:

(i) Format and meaning of information contained on pesticide labels and in labeling, including safety information such as precautionary statements about human health hazards.

(ii) Hazards of pesticides resulting from toxicity and exposure, including acute and chronic effects, delayed effects, and sensitization.

(iii) Routes by which pesticides can enter the body.

(iv) Signs and symptoms of common types of pesticide poisoning.

(v) Emergency first aid for pesticide injuries or poisonings.

(vi) How to obtain emergency medical care.

(vii) Routine and emergency decontamination procedures.

(viii) Need for and appropriate use of personal protective equipment.

(ix) Prevention, recognition, and first aid treatment of heat-related illness.

(x) Safety requirements for handling, transporting, storing, and disposing of pesticides, including general procedures for spill cleanup.

(xi) Environmental concerns such as drift, runoff, and wildlife hazards.

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(xii) Warnings about taking pesticides or pesticide containers home.

(xiii) Requirements of this subpart that must be followed by handler employers for the protection of handlers and other persons, including the prohibition against applying pesticides in a manner that will cause contact with workers or other persons, the requirement to use personal protective equipment, the provisions for training and decontamination, and the protection against retaliatory acts.

(d) *Verification of training.* (1) Except as provided in paragraph (d)(2) of this section, if the handler employer assures that a handler possesses an EPA-approved Worker Protection Standard handler training certificate, then the requirements of paragraph (a) of this section will have been met.

(2) If the handler employer is aware or has reason to know that an EPA-approved Worker Protection Standard handler training certificate has not been issued in accordance with this section, or has not been issued to the handler bearing the certificate, or the handler training was completed more than 5 years before the beginning of the current month, a handler's possession of that certificate does not meet the requirements of paragraph (a) of this section.

[57 FR 38151, Aug. 21, 1992, as amended at 60 FR 21953, May 3, 1995]

§ 170.232 Knowledge of labeling and site-specific information.

(a) *Knowledge of labeling information.*

(1) The handler employer shall assure that before the handler performs any handling activity, the handler either has read the product labeling or has been informed in a manner the handler can understand of all labeling requirements related to safe use of the pesticide, such as signal words, human hazard precautions, personal protective equipment requirements, first aid instructions, environmental precautions, and any additional precautions pertaining to the handling activity to be performed.

(2) The handler employer shall assure that the handler has access to the product labeling information during handling activities.

(b) *Knowledge of site-specific information.* Whenever a handler who is employed by a commercial pesticide handling establishment will be performing pesticide handling tasks on an agricultural establishment, the handler employer shall assure that the handler is aware of the following information concerning any areas on the agricultural establishment that the handler may be in (or may walk within 1/4 mile of) and that may be treated with a pesticide or that may be under a restricted-entry interval while the handler will be on the agricultural establishment:

(1) Specific location and description of any such areas; and

(2) Restrictions on entering those areas.

§ 170.234 Safe operation of equipment.

(a) The handler employer shall assure that before the handler uses any equipment for mixing, loading, transferring, or applying pesticides, the handler is instructed in the safe operation of such equipment, including, when relevant, chemigation safety requirements and drift avoidance.

(b) The handler employer shall assure that, before each day of use, equipment used for mixing, loading, transferring, or applying pesticides is inspected for leaks, clogging, and worn or damaged parts, and any damaged equipment is repaired or is replaced.

(c) Before allowing any person to repair, clean, or adjust equipment that has been used to mix, load, transfer, or apply pesticides, the handler employer shall assure that pesticide residues have been removed from the equipment, unless the person doing the cleaning, repairing, or adjusting is a handler employed by the agricultural or commercial pesticide handling establishment. If pesticide residue removal is not feasible, the handler employer shall assure that the person who repairs, cleans, or adjusts such equipment is informed:

(1) That such equipment may be contaminated with pesticides.

(2) Of the potentially harmful effects of exposure to pesticides.

(3) Of the correct way to handle such equipment.

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§ 170.235 Posted pesticide safety information.

(a) *Requirement.* When handlers (except those employed by a commercial pesticide handling establishment) are on an agricultural establishment and, within the last 30 days, a pesticide covered by this subpart has been applied on the establishment or a restricted-entry interval has been in effect, the handler employer shall display, in accordance with this section, pesticide safety information.

(b) *Pesticide safety poster.* A safety poster must be displayed that conveys, at a minimum, the following basic pesticide safety concepts:

(1) Help keep pesticides from entering your body. At a minimum, the following points shall be conveyed:

(i) Avoid getting on your skin or into your body any pesticides that may be on plants and soil, in irrigation water, or drifting from nearby applications.

(ii) Wash before eating, drinking, using chewing gum or tobacco, or using the toilet.

(iii) Wear work clothing that protects the body from pesticide residues (long-sleeved shirts, long pants, shoes and socks, and a hat or scarf).

(iv) Wash/shower with soap and water, shampoo hair, and put on clean clothes after work.

(v) Wash work clothes separately from other clothes before wearing them again.

(vi) Wash immediately in the nearest clean water if pesticides are spilled or sprayed on the body. As soon as possible, shower, shampoo, and change into clean clothes.

(vii) Follow directions about keeping out of treated or restricted areas.

(2) There are Federal rules to protect workers and handlers including a requirement for safety training.

(c) *Emergency medical care information.*

(1) The name, address, and telephone number of the nearest emergency medical care facility shall be on the safety poster or displayed close to the safety poster.

(2) The handler employer shall inform handlers promptly of any change to the information on emergency medical care facilities.

(d) *Location.* (1) The information shall be displayed in a central location on

the farm or in the nursery or greenhouse where it can be readily seen and read by handlers.

(2) The information shall be displayed in a location in or near the forest in a place where it can be readily seen and read by handlers and where handlers are likely to congregate or pass by, such as at a decontamination site or an equipment storage site.

(e) *Accessibility.* Handlers shall be informed of the location of the information and shall be allowed access to it.

(f) *Legibility.* The information shall remain legible during the time it is posted.

§ 170.240 Personal protective equipment.

(a) *Requirement.* Any person who performs tasks as a pesticide handler shall use the clothing and personal protective equipment specified on the labeling for use of the product.

(b) *Definition.* (1) Personal protective equipment (PPE) means devices and apparel that are worn to protect the body from contact with pesticides or pesticide residues, including, but not limited to, coveralls, chemical-resistant suits, chemical-resistant gloves, chemical-resistant footwear, respiratory protection devices, chemical-resistant aprons, chemical-resistant headgear, and protective eyewear.

(2) Long-sleeved shirts, short-sleeved shirts, long pants, short pants, shoes, socks, and other items of work clothing are not considered personal protective equipment for the purposes of this section and are not subject to the requirements of this section, although pesticide labeling may require that such work clothing be worn during some activities.

(c) *Provision.* When personal protective equipment is specified by the labeling of any pesticide for any handling activity, the handler employer shall provide the appropriate personal protective equipment in clean and operating condition to the handler.

(1) When “chemical-resistant” personal protective equipment is specified by the product labeling, it shall be made of material that allows no measurable movement of the pesticide being used through the material during use.

(2) When “waterproof” personal protective equipment is specified by the product labeling, it shall be made of material that allows no measurable movement of water or aqueous solutions through the material during use.

(3) When a “chemical-resistant suit” is specified by the product labeling, it shall be a loose-fitting, one- or two-piece chemical-resistant garment that covers, at a minimum, the entire body except head, hands, and feet.

(4) When “coveralls” are specified by the product labeling, they shall be a loose-fitting, one- or two-piece garment, such as a cotton or cotton and polyester coverall, that covers, at a minimum, the entire body except head, hands, and feet. The pesticide product labeling may specify that the coveralls be worn over another layer of clothing.

(5) Gloves shall be of the type specified by the product labeling. Gloves or glove linings made of leather, cotton, or other absorbent material shall not be worn for handling activities unless such materials are listed on the product labeling as acceptable for such use.

(6) When “chemical-resistant footwear” is specified by the product labeling, one of the following types of footwear must be worn:

(i) Chemical-resistant shoes.

(ii) Chemical-resistant boots.

(iii) Chemical-resistant shoe coverings worn over shoes or boots.

(7) When “protective eyewear” is specified by the product labeling, one of the following types of eyewear must be worn:

(i) Goggles.

(ii) Face shield.

(iii) Safety glasses with front, brow, and temple protection.

(iv) Full-face respirator.

(8) When a “chemical-resistant apron” is specified by the product labeling, an apron that covers the front of the body from mid-chest to the knees shall be worn.

(9) When a respirator is specified by the product labeling, it shall be appropriate for the pesticide product used and for the activity to be performed. The handler employer shall assure that the respirator fits correctly.

(10) When “chemical-resistant headgear” is specified by the product labeling, it shall be either a chemical resist-

ant hood or a chemical-resistant hat with a wide brim.

(d) *Exceptions to personal protective equipment specified on product labeling—*

(1) *Body protection.* (i) A chemical-resistant suit may be substituted for “coveralls,” and any requirement for an additional layer of clothing beneath is waived.

(ii) A chemical-resistant suit may be substituted for “coveralls” and a chemical-resistant apron.

(2) *Boots.* If chemical-resistant footwear with sufficient durability and a tread appropriate for wear in rough terrain is not obtainable, then leather boots may be worn in such terrain.

(3) *Gloves.* If chemical-resistant gloves with sufficient durability and suppleness are not obtainable, then during handling activities with roses or other plants with sharp thorns, leather gloves may be worn over chemical-resistant glove liners. However, once leather gloves are worn for this use, thereafter they shall be worn only with chemical-resistant liners and they shall not be worn for any other use.

(4) *Closed systems.* If handling tasks are performed using properly functioning systems that enclose the pesticide to prevent it from contacting handlers or other persons, and if such systems are used and are maintained in accordance with that manufacturer’s written operating instructions, exceptions to labeling-specified personal protective equipment for the handling activity are permitted as provided in paragraphs (d)(4)(i) and (ii) of this section.

(i) Persons using a closed system to mix or load pesticides with a signal word of DANGER or WARNING may substitute a long-sleeved shirt, long pants, shoes, socks, chemical-resistant apron, and any protective gloves specified on the labeling for handlers for the labeling-specified personal protective equipment.

(ii) Persons using a closed system to mix or load pesticides other than those in paragraph (d)(4)(i) of this section or to perform other handling tasks may substitute a long-sleeved shirt, long pants, shoes, and socks for the labeling-specified personal protective equipment.

(iii) Persons using a closed system that operates under pressure shall wear protective eyewear.

(iv) Persons using a closed system shall have all labeling-specified personal protective equipment immediately available for use in an emergency.

(5) *Enclosed cabs.* If handling tasks are performed from inside a cab that has a nonporous barrier which totally surrounds the occupants of the cab and prevents contact with pesticides outside of the cab, exceptions to personal protective equipment specified on the product labeling for that handling activity are permitted as provided in paragraphs (d)(5)(i) through (iv) of this section.

(i) Persons occupying an enclosed cab may substitute a long-sleeved shirt, long pants, shoes, and socks for the labeling-specified personal protective equipment. If a respiratory protection device is specified on the pesticide product labeling for the handling activity, it must be worn.

(ii) Persons occupying an enclosed cab that has a properly functioning ventilation system which is used and maintained in accordance with the manufacturer's written operating instructions and which is declared in writing by the manufacturer or by a governmental agency to provide respiratory protection equivalent to or greater than a dust/mist filtering respirator may substitute a long-sleeved shirt, long pants, shoes, and socks for the labeling-specified personal protective equipment. If a respiratory protection device other than a dust/mist-filtering respirator is specified on the pesticide product labeling, it must be worn.

(iii) Persons occupying an enclosed cab that has a properly functioning ventilation system which is used and maintained in accordance with the manufacturer's written operating instructions and which is declared in writing by the manufacturer or by a governmental agency to provide respiratory protection equivalent to or greater than the vapor- or gas-removing respirator specified on pesticide product labeling may substitute a long-sleeved shirt, long pants, shoes, and socks for the labeling-specified per-

sonal protective equipment. If an air-supplying respirator or a self-contained breathing apparatus (SCBA) is specified on the pesticide product labeling, it must be worn.

(iv) Persons occupying an enclosed cab shall have all labeling-specified personal protective equipment immediately available and stored in a chemical-resistant container, such as a plastic bag. They shall wear such personal protective equipment if it is necessary to exit the cab and contact pesticide-treated surfaces in the treated area. Once personal protective equipment is worn in the treated area, it must be removed before reentering the cab.

(6) *Aerial applications—(i) Use of gloves.* Chemical-resistant gloves shall be worn when entering or leaving an aircraft contaminated by pesticide residues. In the cockpit, the gloves shall be kept in an enclosed container to prevent contamination of the inside of the cockpit.

(ii) *Open cockpit.* Persons occupying an open cockpit shall use the personal protective equipment specified in the product labeling for use during application, except that chemical-resistant footwear need not be worn. A helmet may be substituted for chemical-resistant headgear. A visor may be substituted for protective eyewear.

(iii) *Enclosed cockpit.* Persons occupying an enclosed cockpit may substitute a long-sleeved shirt, long pants, shoes, and socks for labeling-specified personal protective equipment.

(7) *Crop advisors.* Crop advisors entering treated areas while a restricted-entry interval is in effect may wear the personal protective equipment specified on the pesticide labeling for early-entry activities instead of the personal protective equipment specified on the pesticide labeling for handling activities, provided:

(i) Application has been completed for at least 4 hours.

(ii) Any inhalation exposure level listed in the labeling has been reached or any ventilation criteria established by § 170.110(c)(3) or in the labeling have been met.

(e) *Use of personal protective equipment.* (1) The handler employer shall assure that personal protective equipment is used correctly for its intended

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purpose and is used according to the manufacturer's instructions.

(2) The handler employer shall assure that, before each day of use, all personal protective equipment is inspected for leaks, holes, tears, or worn places, and any damaged equipment is repaired or discarded.

(f) *Cleaning and maintenance.* (1) The handler employer shall assure that all personal protective equipment is cleaned according to the manufacturer's instructions or pesticide product labeling instructions before each day of reuse. In the absence of any such instructions, it shall be washed thoroughly in detergent and hot water.

(2) If any personal protective equipment cannot be cleaned properly, the handler employer shall dispose of the personal protective equipment in accordance with any applicable Federal, State, and local regulations. Coveralls or other absorbent materials that have been drenched or heavily contaminated with an undiluted pesticide that has the signal word DANGER or WARNING on the label shall be not be reused.

(3) The handler employer shall assure that contaminated personal protective equipment is kept separately and washed separately from any other clothing or laundry.

(4) The handler employer shall assure that all clean personal protective equipment shall be either dried thoroughly before being stored or shall be put in a well ventilated place to dry.

(5) The handler employer shall assure that all personal protective equipment is stored separately from personal clothing and apart from pesticide-contaminated areas.

(6) The handler employer shall assure that when dust/mist filtering respirators are used, the filters shall be replaced:

(i) When breathing resistance becomes excessive.

(ii) When the filter element has physical damage or tears.

(iii) According to manufacturer's recommendations or pesticide product labeling, whichever is more frequent.

(iv) In the absence of any other instructions or indications of service life, at the end of each day's work period.

(7) The handler employer shall assure that when gas- or vapor-removing res-

pirators are used, the gas- or vapor-removing canisters or cartridges shall be replaced:

(i) At the first indication of odor, taste, or irritation.

(ii) According to manufacturer's recommendations or pesticide product labeling, whichever is more frequent.

(iii) In the absence of any other instructions or indications of service life, at the end of each day's work period.

(8) The handler employer shall inform any person who cleans or launders personal protective equipment:

(i) That such equipment may be contaminated with pesticides.

(ii) Of the potentially harmful effects of exposure to pesticides.

(iii) Of the correct way(s) to clean personal protective equipment and to protect themselves when handling such equipment.

(9) The handler employer shall assure that handlers have a clean place(s) away from pesticide storage and pesticide use areas where they may:

(i) Store personal clothing not in use.

(ii) Put on personal protective equipment at the start of any exposure period.

(iii) Remove personal protective equipment at the end of any exposure period.

(10) The handler employer shall not allow or direct any handler to wear home or to take home personal protective equipment contaminated with pesticides.

(g) *Heat-related illness.* When the use of personal protective equipment is specified by the labeling of any pesticide for the handling activity, the handler employer shall assure that no handler is allowed or directed to perform the handling activity unless appropriate measures are taken, if necessary, to prevent heat-related illness.

§ 170.250 Decontamination.

(a) *Requirement.* During any handling activity, the handler employer shall provide for handlers, in accordance with this section, decontamination supplies for washing off pesticides and pesticide residues.

(b) *General conditions.* (1) The handler employer shall provide handlers with enough water for routine washing, for

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emergency eyeflushing, and for washing the entire body in case of an emergency. At all times when the water is available to handlers, the handler employer shall assure that it is of a quality and temperature that will not cause illness or injury when it contacts the skin or eyes or if it is swallowed.

(2) When water stored in a tank is to be used for mixing pesticides, it shall not be used for decontamination or eye flushing, unless the tank is equipped with properly functioning valves or other mechanisms that prevent movement of pesticides into the tank.

(3) The handler employer shall provide soap and single-use towels in quantities sufficient to meet handlers' needs.

(4) The handler employer shall provide one clean change of clothing, such as coveralls, for use in an emergency.

(c) *Location.* The decontamination supplies shall be located together and be reasonably accessible to and not more than ¼ mile from each handler during the handling activity.

(1) *Exception for mixing sites.* For mixing activities, decontamination supplies shall be at the mixing site.

(2) *Exception for pilots.* Decontamination supplies for a pilot who is applying pesticides aerially shall be in the airplane or at the aircraft loading site.

(3) *Exception for handling pesticides in remote areas.* When handling activities are performed more than 1/4 mile from the nearest place of vehicular access:

(i) The soap, single-use towels, clean change of clothing, and water may be at the nearest place of vehicular access.

(ii) The handler employer may permit handlers to use clean water from springs, streams, lakes, or other sources for decontamination at the remote work site, if such water is more accessible than the water located at the nearest place of vehicular access.

(4) *Decontamination supplies in treated areas.* The decontamination supplies shall not be in an area being treated with pesticides or in an area under a restricted-entry interval, unless:

(i) The decontamination supplies are in the area where the handler is performing handling activities;

(ii) The soap, single-use towels, and clean change of clothing are in enclosed containers; and

(iii) The water is running tap water or is enclosed in a container.

(d) *Emergency eyeflushing.* To provide for emergency eyeflushing, the handler employer shall assure that at least 1 pint of water is immediately available to each handler who is performing tasks for which the pesticide labeling requires protective eyewear. The eyeflush water shall be carried by the handler, or shall be on the vehicle or aircraft the handler is using, or shall be otherwise immediately accessible.

(e) *Decontamination after handling activities.* At the end of any exposure period, the handler employer shall provide at the site where handlers remove personal protective equipment, soap, clean towels, and a sufficient amount of water so that the handlers may wash thoroughly.

[57 FR 38151, Aug. 21, 1992, as amended at 61 FR 33213, June 26, 1996]

EFFECTIVE DATE NOTE: At 61 FR 33213, June 26, 1996, § 170.250 was amended by revising paragraphs (a), (b)(3), (b)(4), (c) introductory text, (c)(1), (c)(2), (c)(3)(ii), (c)(4) heading and introductory text, and (c)(4)(i), effective Aug. 26, 1996. For the convenience of the user, the superseded text is set forth as follows:

§ 170.250 Decontamination.

(a) *Requirement.* During any handling activity, the handler employer shall provide for handlers, in accordance with this section, a decontamination site for washing off pesticides and pesticide residues.

(b) * * *

(3) The handler employer shall provide soap and single-use towels at each decontamination site in quantities sufficient to meet handlers' needs.

(4) The handler employer shall provide one clean change of clothing, such as coveralls, at each decontamination site for use in an emergency.

(c) * * * The decontamination site shall be reasonably accessible to and not more than 1/4 mile from each handler during the handling activity.

(1) *Exception for mixing sites.* For mixing activities, the decontamination site shall be at the mixing site.

(2) *Exception for pilots.* The decontamination site for a pilot who is applying pesticides aerially shall be in the airplane or at the aircraft's loading site.

(3) * * *

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(ii) The handler employer may permit handlers to use clean water from springs, streams, lakes, or other sources for decontamination at the remote work site, if such water is more accessible than the water at the decontamination site located at the nearest place of vehicular access.

(4) *Decontamination site in treated areas.* The decontamination site shall not be in an area being treated with pesticides or in an area under a restricted-entry interval, unless:

(i) The decontamination site is in the area where the handler is performing handling activities;

* * * * *

§ 170.260 Emergency assistance.

If there is reason to believe that a person who is or has been employed by an agricultural establishment or commercial pesticide handling establishment to perform pesticide handling tasks has been poisoned or injured by exposure to pesticides as a result of that employment, including, but not limited to, exposures from handling tasks or from application, splash, spill, drift, or pesticide residues, the handler employer shall:

(a) Make available to that person prompt transportation from the place of employment or the handling site to an appropriate emergency medical facility.

(b) Provide to that person or to treating medical personnel, promptly upon request, any obtainable information on:

(1) Product name, EPA registration number, and active ingredients of any product to which that person might have been exposed.

(2) Antidote, first aid, and other medical information from the product labeling.

(3) The circumstances of handling of the pesticide.

(4) The circumstances of exposure of that person to the pesticide.

PART 171—CERTIFICATION OF PESTICIDE APPLICATORS

Sec.

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AUTHORITY: 7 U.S.C. 136b and 136w.

SOURCE: 39 FR 36449, Oct. 9, 1974, unless otherwise noted.

§ 171.1 General.

This section deals with the certification of applicators of restricted use pesticides.

§ 171.2 Definitions.

(a) *General.* Terms used in this subpart shall have the meanings set forth for such terms in the Act. In addition, the following definitions are applicable to all aspects of the certification of pesticide applicator program in this part:

(1) The term *accident* means an unexpected, undesirable event, caused by the use or presence of a pesticide, that adversely affects man or the environment.

(2) The term *Act* means the Federal Insecticide, Fungicide, and Rodenticide Act, as amended (86 Stat. 973), and other legislation supplementary thereto and amendatory thereof.

(3) The term *Administrator* means the Administrator of the Environmental Protection Agency, or any office or employee of the Agency to whom authority has heretofore been delegated, or to whom authority may hereafter be delegated, to act in his stead.

(4) The term *Agency*, unless otherwise specified, means the United States Environmental Protection Agency.

(5) The term *agricultural commodity* means any plant, or part thereof, or animal, or animal product, produced by a person (including farmers, ranchers,

vineyardists, plant propagators, Christmas tree growers, aquaculturists, floriculturists, orchardists, foresters, or other comparable persons) primarily for sale, consumption, propagation, or other use by man or animals.

(6) The term *calibration of equipment* means measurement of dispersal or output of application equipment and adjustment of such equipment to control the rate of dispersal, and droplet or particle size of a pesticide dispersed by the equipment.

(7) The term *certification* means the recognition by a certifying agency that a person is competent and thus authorized to use or supervise the use of restricted use pesticides.

(8) The term *certified applicator* means any individual who is certified to use or supervise the use of any restricted use pesticides covered by his certification.

(9) The term *commercial applicator* means a certified applicator (whether or not he is a private applicator with respect to some uses) who uses or supervises the use of any pesticide which is classified for restricted use for any purpose or on any property other than as provided by the definition of “private applicator.”

(10) The term *compatibility* means that property of a pesticide which permits its use with other chemicals without undesirable results being caused by the combination.

(11) The term *competent* means properly qualified to perform functions associated with pesticide application, the degree of capability required being directly related to the nature of the activity and the associated responsibility.

(12) The term *common exposure route* means a likely way (oral, dermal, respiratory) by which a pesticide may reach and/or enter an organism.

(13) The term *environment* means water, air, land, and all plants and man and other animals living therein, and the interrelationships which exist among them.

(14) The term *forest* means a concentration of trees and related vegetation in non-urban areas sparsely inhabited by and infrequently used by humans; characterized by natural terrain and drainage patterns.

(15) The term *hazard* means a probability that a given pesticide will have an adverse effect on man or the environment in a given situation, the relative likelihood of danger or ill effect being dependent on a number of interrelated factors present at any given time.

(16) The term *host* means any plant or animal on or in which another lives for nourishment, development, or protection.

(17) The term *non-target organism* means a plant or animal other than the one against which the pesticide is applied.

(18) The term *ornamental* means trees, shrubs, and other plantings in and around habitations generally, but not necessarily located in urban and suburban areas, including residences, parks, streets, retail outlets, industrial and institutional buildings.

(19) The term *practical knowledge* means the possession of pertinent facts and comprehension together with the ability to use them in dealing with specific problems and situations.

(20) The term *private applicator* means a certified applicator who uses or supervises the use of any pesticide which is classified for restricted use for purposes of producing any agricultural commodity on property owned or rented by him or his employer or (if applied without compensation other than trading of personal services between producers of agricultural commodities) on the property of another person.

(21) The term *protective equipment* means clothing or any other materials or devices that shield against unintended exposure to pesticides.

(22) The term *regulated pest* means a specific organism considered by a State or Federal agency to be a pest requiring regulatory restrictions, regulations, or control procedures in order to protect the host, man and/or his environment.

(23) The term *restricted use pesticide* means a pesticide that is classified for restricted use under the provisions of section 3(d)(1)(C) of the Act.

(24) The term *standard* means the measure of knowledge and ability which must be demonstrated as a requirement for certification.

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(25) The term *State* means a State, the District of Columbia, the Commonwealth of Puerto Rico, the Virgin Islands, Guam, the Trust Territory of the Pacific Islands, and American Samoa.

(26) The term *susceptibility* means the degree to which an organism is affected by a pesticide at a particular level of exposure.

(27) The term *toxicity* means the property of a pesticide to cause any adverse physiological effects.

(28) The term *under the direct supervision of* means the act or process whereby the application of a pesticide is made by a competent person acting under the instructions and control of a certified applicator who is responsible for the actions of that person and who is available if and when needed, even though such certified applicator is not physically present at the time and place the pesticide is applied.

(b) *Limited*. The following definitions apply only to dealers, dealerships and transactions in States or on Indian Reservations where EPA conducts a Federal Pesticide Applicator Certification Program.

(1) The term *restricted use pesticide retail dealer* means any person who makes available for use any restricted use pesticide, or who offers to make available for use any such pesticide.

(2) The term *make available for use* means to distribute, sell, ship, deliver for shipment, or receive and (having so received) deliver, to any person. However, the term excludes transactions solely between persons who are pesticide producers, registrants, wholesalers, or retail sellers, acting only in those capacities.

(3) The term *dealership* means any site owned or operated by a restricted use pesticide retail dealer where any restricted use pesticide is made available for use, or where the dealer offers to make available for use any such pesticide.

(4) The term *uncertified person* means any person who is not holding a currently valid certification document indicating that he is certified under section 4 of FIFRA in the category of the restricted use pesticide made available for use.

(5) The term *principal place of business* means the principal location, either

residence or office, in the State in which an individual, partnership, or corporation applies pesticides.

[39 FR 36449, Oct. 9, 1974, as amended at 48 FR 53974, Nov. 1983]

§ 171.3 Categorization of commercial applicators of pesticides.

(a) *Procedure*. Categories of applicators (other than private) using or supervising the use of restricted use pesticides are identified below. State systems of applicator identification shall adopt these categories as needed, along with such appropriate subcategories as are necessary to meet the particular requirements of the State.

(b) *Categories*—(1) *Agricultural pest control*—(i) *Plant*. This category includes commercial applicators using or supervising the use of restricted use pesticides in production of agricultural crops, including without limiting the foregoing, tobacco, peanuts, cotton, feed grains, soybeans and forage; vegetables; small fruits; tree fruits and nuts; as well as on grasslands and non-crop agricultural lands.

(ii) *Animal*. This category includes commercial applicators using or supervising the use of restricted use pesticides on animals, including without limiting the foregoing, beef cattle, dairy cattle, swine, sheep, horses, goats, poultry, and livestock, and to places on or in which animals are confined.

Doctors of Veterinary Medicine engaged in the business of applying pesticides for hire, publicly holding themselves out as pesticide applicators, or engaged in large-scale use of pesticides are included in this category.

(2) *Forest pest control*. This category includes commercial applicators using or supervising the use of restricted use pesticides in forests, forest nurseries, and forest seed producing areas.

(3) *Ornamental and turf pest control*. This category includes commercial applicators using or supervising the use of restricted use pesticides to control pests in the maintenance and production of ornamental trees, shrubs, flowers, and turf.

(4) *Seed treatment*. This category includes commercial applicators using or

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supervising the use of restricted use pesticides on seeds.

(5) *Aquatic pest control.* This category includes commercial applicators using or supervising the use of any restricted use pesticide purposefully applied to standing or running water, excluding applicators engaged in public health related activities included in category 8 below.

(6) *Right-of-way pest control.* This category includes commercial applicators using or supervising the use of restricted use pesticides in the maintenance of public roads, electric powerlines, pipelines, railway rights-of-way or other similar areas.

(7) *Industrial, institutional, structural and health related pest control.* This category includes commercial applicators using or supervising the use of restricted use pesticides in, on, or around food handling establishments, human dwellings, institutions, such as schools and hospitals, industrial establishments, including warehouses and grain elevators, and any other structures and adjacent areas, public or private; and for the protection of stored, processed, or manufactured products.

(8) *Public health pest control.* This category includes State, Federal or other governmental employees using or supervising the use of restricted use pesticides in public health programs for the management and control of pests having medical and public health importance.

(9) *Regulatory pest control.* This category includes State, Federal or other governmental employees who use or supervise the use of restricted use pesticides in the control of regulated pests.

(10) *Demonstration and research pest control.* This category includes: (i) individuals who demonstrate to the public the proper use and techniques of application of restricted use pesticides or supervise such demonstration, and (ii) persons conducting field research with pesticides, and in doing so, use or supervise the use of restricted use pesticides. Included in the first group are such persons as extension specialists and county agents, commercial representatives demonstrating pesticide products, and those individuals demonstrating methods used in public pro-

grams. The second group includes: State, Federal, commercial and other persons conducting field research on or utilizing restricted use pesticides.

(c) *Other categories and subcategories.* Any State submitting a plan pursuant to this section for the certification of applicators, as provided for below, may designate such subcategories within the above 10 categories as it deems necessary. In addition, a State may delete a category not needed or may request the Administrator's approval of additional major categories.

§ 171.4 Standards for certification of commercial applicators.

(a) *Determination of competency.* Competence in the use and handling of pesticides shall be determined on the basis of written examinations, and, as appropriate, performance testing, based upon standards set forth below and which are approved by the Administrator. Such examination and testing shall include the general standards applicable to all categories (§ 171.4(b)) and the additional standards specifically identified for each category or subcategory (if any) in which an applicator is to be classified (§ 171.4(c)). State standards must conform and be at least equal to those prescribed herein. In developing the details of standards at the State level and in structuring examinations, it is important to recognize and reflect the extent of competency appropriate and necessary to a particular category.

(b) *General standards for all categories of certified commercial applicators.* (1) All commercial applicators shall demonstrate practical knowledge of the principles and practices of pest control and safe use of pesticides. Testing shall be based on examples of problems and situations appropriate to the particular category or subcategory of the applicator's certification and the following areas of competency:

(i) *Label & labeling comprehension.* (a) The general format and terminology of pesticide labels and labeling;

(b) The understanding of instructions, warnings, terms, symbols, and other information commonly appearing on pesticide labels;

(c) Classification of the product, general or restricted; and

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(d) Necessity for use consistent with the label.

(ii) *Safety*. Factors including:

(a) Pesticide toxicity and hazard to man and common exposure routes;

(b) Common types and causes of pesticide accidents;

(c) Precautions necessary to guard against injury to applicators and other individuals in or near treated areas;

(d) Need for and use of protective clothing and equipment;

(e) Symptoms of pesticide poisoning;

(f) First aid and other procedures to be followed in case of a pesticide accident; and

(g) Proper identification, storage, transport, handling, mixing procedures and disposal methods for pesticides and used pesticide containers, including precautions to be taken to prevent children from having access to pesticides and pesticide containers.

(iii) *Environment*. The potential environmental consequences of the use and misuse of pesticides as may be influenced by such factors as:

(a) Weather and other climatic conditions;

(b) Types of terrain, soil or other substrate;

(c) Presence of fish, wildlife and other non-target organisms; and

(d) Drainage patterns.

(iv) *Pests*. Factors such as: (a) Common features of pest organisms and characteristics of damage needed for pest recognition;

(b) Recognition of relevant pests; and

(c) Pest development and biology as it may be relevant to problem identification and control.

(v) *Pesticides*. Factors such as:

(a) Types of pesticides;

(b) Types of formulations;

(c) Compatibility, synergism, persistence and animal and plant toxicity of the formulations;

(d) Hazards and residues associated with use;

(e) Factors which influence effectiveness or lead to such problems as resistance to pesticides; and

(f) Dilution procedures.

(vi) *Equipment*. Factors including: (a) Types of equipment and advantages and limitations of each type; and

(b) Uses, maintenance and calibration.

(vii) *Application techniques*. Factors including:

(a) Methods of procedure used to apply various formulations of pesticides, solutions, and gases, together with a knowledge of which technique of application to use in a given situation;

(b) Relationship of discharge and placement of pesticides to proper use, unnecessary use, and misuse; and

(c) Prevention of drift and pesticide loss into the environment.

(viii) *Laws and regulations*. Applicable State and Federal laws and regulations.

(c) *Specific standards of competency for each category of commercial applicators*.

Some of the factors referenced in paragraph (b) of this section are of particular importance because of the different types of activities carried out by applicators in each category. Such factors must be especially stressed and specifically reflected in State certification standards, as appropriate. For example, practical knowledge of drift problems should be required of agricultural applicators but not of seed treatment applicators. The latter, however, should be particularly knowledgeable of the hazards of the misuse of treated seed and the necessary precautionary techniques. Many applicators in § 171.3(b) (8), (9), and (10) will have had considerable formal education, training and experience in preparation for their positions. Their competency with respect to the use and handling of pesticides will have been determined by examining boards of their professional scientific societies utilizing standards which equal or exceed those prescribed herein. Such standards should be consulted by States in developing their State standards for certification of such applicators under these regulations. Commercial applicators in each category shall be particularly qualified with respect to the practical knowledge standards elaborated below:

(1) *Agricultural pest control*—(i) *Plant*. Applicators must demonstrate practical knowledge of crops grown and the specific pests of those crops on which they may be using restricted use pesticides. The importance of such competency is amplified by the extensive areas involved, the quantities of pesticides needed, and the ultimate use of

many commodities as food and feed. Practical knowledge is required concerning soil and water problems, pre-harvest intervals, re-entry intervals, phytotoxicity, and potential for environmental contamination, non-target injury and community problems resulting from the use of restricted use pesticides in agricultural areas.

(ii) *Animal*. Applicators applying pesticides directly to animals must demonstrate practical knowledge of such animals and their associated pests. A practical knowledge is also required concerning specific pesticide toxicity and residue potential, since host animals will frequently be used for food. Further, the applicator must know the relative hazards associated with such factors as formulation, application techniques, age of animals, stress and extent of treatment.

(2) *Forest pest control*. Applicators shall demonstrate practical knowledge of types of forests, forest nurseries, and seed production in their State and the pests involved. They should possess practical knowledge of the cyclic occurrence of certain pests and specific population dynamics as a basis for programming pesticide applications. A practical knowledge is required of the relative biotic agents and their vulnerability to the pesticides to be applied. Because forest stands may be large and frequently include natural aquatic habitats and harbor wildlife, the consequences of pesticide use may be difficult to assess. The applicator must therefore demonstrate practical knowledge of control methods which will minimize the possibility of secondary problems such as unintended effects on wildlife. Proper use of specialized equipment must be demonstrated, especially as it may relate to meteorological factors and adjacent land use.

(3) *Ornamental and turf pest control*. Applicators shall demonstrate practical knowledge of pesticide problems associated with the production and maintenance of ornamental trees, shrubs, plantings, and turf, including cognizance of potential phytotoxicity due to a wide variety of plant material, drift, and persistence beyond the intended period of pest control. Because of the frequent proximity of human habitations to application activities,

applicators in this category must demonstrate practical knowledge of application methods which will minimize or prevent hazards to humans, pets, and other domestic animals.

(4) *Seed-treatment*. Applicators shall demonstrate practical knowledge of types of seeds that require chemical protection against pests and factors such as seed coloration, carriers, and surface active agents which influence pesticide binding and may affect germination. They must demonstrate practical knowledge of hazards associated with handling, sorting and mixing, and misuse of treated seed such as introduction of treated seed into food and feed channels, as well as proper disposal of unused treated seeds.

(5) *Aquatic pest control*. Applicators shall demonstrate practical knowledge of the secondary effects which can be caused by improper application rates, incorrect formulations, and faulty application of restricted use pesticides used in this category. They shall demonstrate practical knowledge of various water use situations and the potential of downstream effects. Further, they must have practical knowledge concerning potential pesticide effects on plants, fish, birds, beneficial insects and other organisms which may be present in aquatic environments. These applicators shall demonstrate practical knowledge of the principles of limited area application.

(6) *Right-of-way pest control*. Applicators shall demonstrate practical knowledge of a wide variety of environments, since rights-of-way can traverse many different terrains, including waterways. They shall demonstrate practical knowledge of problems on runoff, drift, and excessive foliage destruction and ability to recognize target organisms. They shall also demonstrate practical knowledge of the nature of herbicides and the need for containment of these pesticides within the right-of-way area, and the impact of their application activities in the adjacent areas and communities.

(7) *Industrial, institutional, structural and health related pest control*. Applicators must demonstrate a practical knowledge of a wide variety of pests,

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including their life cycles, types of formulations appropriate for their control, and methods of application that avoid contamination of food, damage and contamination of habitat, and exposure of people and pets. Since human exposure, including babies, children, pregnant women, and elderly people, is frequently a potential problem, applicators must demonstrate practical knowledge of the specific factors which may lead to a hazardous condition, including continuous exposure in the various situations encountered in this category. Because health related pest control may involve outdoor applications, applicators must also demonstrate practical knowledge of environmental conditions, particularly related to this activity.

(8) *Public health pest control.* Applicators shall demonstrate practical knowledge of vector-disease transmission as it relates to and influences application programs. A wide variety of pests is involved, and it is essential that they be known and recognized, and appropriate life cycles and habitats be understood as a basis for control strategy. These applicators shall have practical knowledge of a great variety of environments ranging from streams to those conditions found in buildings. They should also have practical knowledge of the importance and employment of such non-chemical control methods as sanitation, waste disposal, and drainage.

(9) *Regulatory pest control.* Applicators shall demonstrate practical knowledge of regulated pests, applicable laws relating to quarantine and other regulation of pests, and the potential impact on the environment of restricted use pesticides used in suppression and eradication programs. They shall demonstrate knowledge of factors influencing introduction, spread, and population dynamics of relevant pests. Their knowledge shall extend beyond that required by their immediate duties, since their services are frequently required in other areas of the country where emergency measures are invoked to control regulated pests and where individual judgments must be made in new situations.

(10) *Demonstration and research pest control.* Persons demonstrating the safe

and effective use of pesticides to other applicators and the public will be expected to meet comprehensive standards reflecting a broad spectrum of pesticide uses. Many different pest problems situations will be encountered in the course of activities associated with demonstration, and practical knowledge of problems, pests, and population levels occurring in each demonstration situation is required. Further, they should demonstrate an understanding of a pesticide-organism interactions and the importance of integrating pesticide use with other control methods. In general, it would be expected that applicators doing demonstration pest control work possess a practical knowledge of all of the standards detailed in § 171.4(b). In addition, they shall meet the specific standards required for paragraphs (c) (1) through (7) of this section as may be applicable to their particular activity.

Persons conducting field research or method improvement work with restricted use pesticides should be expected to know the general standards detailed in 171.4(b). In addition, they shall be expected to know the specific standards required for paragraphs (c) (1) through (9) of this section, applicable to their particular activity, or alternatively, to meet the more inclusive requirements listed under "Demonstration."

(d) *Special standards.* This space reserved for possible issuance of Special Standards.

(e) *The above standards do not apply to the following persons for purposes of these regulations.* (1) Persons conducting laboratory type research involving restricted use pesticides; and

(2) Doctors of Medicine and Doctors of Veterinary Medicine applying pesticides as drugs or medication during the course of their normal practice.

§ 171.5 Standards for certification of private applicators.

(a) Competence in the use and handling of pesticides by a private applicator will be determined by procedures set forth below. State standards must conform and be at least equal to those prescribed herein. As a minimum requirement for certification, a private applicator must show that he possesses

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a practical knowledge of the pest problems and pest control practices associated with his agricultural operations; proper storage, use, handling and disposal of the pesticides and containers; and his related legal responsibility. This practical knowledge includes ability to:

(1) Recognize common pests to be controlled and damage caused by them.

(2) Read and understand the label and labeling information—including the common name of pesticides he applied; pest(s) to be controlled, timing and methods of application; safety precautions; any pre-harvest or re-entry restrictions; and any specific disposal procedures.

(3) Apply pesticides in accordance with label instructions and warnings, including the ability to prepare the proper concentration of pesticide to be used under particular circumstances taking into account such factors as area to be covered, speed at which application equipment will be driven, and the quantity dispersed in a given period of operation.

(4) Recognize local environmental situations that must be considered during application to avoid contamination.

(5) Recognize poisoning symptoms and procedures to follow in case of a pesticide accident.

(b) Such competence of each private applicator shall be verified by the responsible State agency through the administration of a private applicator certification system which ensures that the private applicator is competent, based upon the standards set forth above, to use the restricted use pesticides under limitations of applicable State and Federal laws and regulations. A certification system shall employ a written or oral testing procedure, or such other equivalent system as may be approved as part of a State plan.

(1) In any case where a person, at the time of testing for certification, is unable to read a label, the responsible State agency may employ a testing procedure, previously approved by the Administrator, which can adequately assess the competence of such person with regard to all of the above standards. Certification must be related and

limited to the use and handling of each individual pesticide for which he desires certification at any time. Therefore, the applicator will be authorized to use only the pesticide(s) for which he has demonstrated competence. A specific procedure is required for § 171.5(a)(2) relating to label comprehension, with testing designed to assure his knowledge of the following:

(i) Understanding of the label and labeling information including those items indicated in that subsection.

(ii) Sources of advice and guidance necessary for the safe and proper use of each pesticide related to his certification.

(2) [Reserved]

§ 171.6 Standards for supervision of non-certified applicators by certified private and commercial applicators.

(a) Certified applicators whose activities indicate a supervisory role must demonstrate a practical knowledge of Federal and State supervisory requirements, including labeling, regarding the application of restricted use pesticides by noncertified applicators.

The availability of the certified applicator must be directly related to the hazard of the situation. In many situations, where the certified applicator is not required to be physically present, “direct supervision” shall include verifiable instruction to the competent person, as follows: (1) Detailed guidance for applying the pesticide properly, and (2) provisions for contacting the certified applicator in the event he is needed. In other situations, and as required by the label, the actual physical presence of a certified applicator may be required when application is made by a noncertified applicator.

(b) [Reserved]

§ 171.7 Submission and approval of State plans for certification of commercial and private applicators of restricted use pesticides.

If any State, at any time, desires to certify applicators of restricted use pesticides, the Governor of that State shall submit a State plan for that purpose. The Administrator shall approve the plan submitted by any State, or

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any modification thereof, if the plan in his judgment—

(a) Designates a State agency as the agency responsible for administering the plan throughout the State. Since several other agencies or organizations may also be involved in administering portions of the State plan, all of these shall be identified in the State plan, particularly any other agencies or organizations responsible for certifying applicators and suspending or revoking certification. In the extent that more than one governmental agency will be responsible for performing certain functions under the State plans, the plans shall identify which functions are to be performed by which agency and indicate how the program will be coordinated by the lead agency to ensure consistency of programs within the State. The lead agency will serve as the central contact point for the Environmental Protection Agency in carrying out the certification program. The numbers and job titles of the responsible officials of the lead agency and cooperating units shall be included.

(b) Contains satisfactory assurances that such lead agency has or will have the legal authority and qualified personnel necessary to carry out the plan:

(1) Satisfactory assurances that the lead agency or other cooperating agencies have the legal authority necessary to carry out the plans should be in the form of an opinion of the Attorney General or the legal counsel of the lead agency. In addition:

(i) The lead agency should submit a copy of each appropriate State law and regulation.

(ii) In those States where any requisite legal authorities are pending enactment and/or promulgation, the Governor (or Chief Executive) may request that a State plan be approved contingent upon the enactment and/or promulgation of such authorities. Plans approved on a contingency basis will be subject to such reasonable terms and conditions, concerning the duration of the contingency approval and other matters, as the Administrator may impose. During the period of the contingency approval, the State will have an approved certification program and may proceed to certify applicators, who will then be permitted to use or

supervise the use of pesticides classified for restricted use under FIFRA, as amended.

(iii) The State plan should indicate by citations to specific laws (whether enacted or pending enactment) and/or regulations (whether promulgated or pending promulgation) that the State has legal authorities as follows:

(A) Provisions for and listing of the acts which constitute grounds for denying, suspending, and revoking certification of applicators, and for assessing criminal and/or civil penalties. Such grounds should include, at a minimum, misuse of a pesticide and falsification of any records required to be maintained by the certified applicator.

(B) Provisions for reviewing an applicator's certification to determine whether suspension or revocation of the certification is appropriate in the event of criminal conviction under section 14(b) of the amended FIFRA, a final order imposing civil penalty under section 14(a) of the amended FIFRA, or conclusion of a State enforcement action.

(C) Provisions for right-of-entry by consent or warrant by appropriate State officials at reasonable times for sampling, inspection, and observation purposes.

(D) Provisions making it unlawful for persons other than certified applicators or persons working under their direct supervision to use restricted use pesticides.

(E) Provisions requiring certified commercial applicators to keep and maintain for the period of at least two years routine operational records containing information on kinds, amounts, uses, dates, and places of application of restricted use pesticides; and for ensuring that such records will be available to appropriate State officials.

(2) Satisfactory assurances that the lead agency and any cooperating organizations have qualified personnel necessary to carry out the plan will be demonstrated by including the numbers, job titles and job functions of persons so employed.

(c) Gives satisfactory assurances that the State will devote adequate funds to the administration of the plan.

(d) Provides that the State agency will make reports to the Administrator

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in a manner and containing information that the Administrator may from time to time require, including:

(1) An annual report to be submitted by the lead agency, at a time to be specified by the State, to include the following information:

(i) Total number of applicators, private and commercial, by category, currently certified; and number of applicators, private and commercial, by category, certified during the last reporting period.

(ii) Any changes in commercial applicator subcategories.

(iii) A summary of enforcement activities related to use of restricted use pesticides during the last reporting period.

(iv) Any significant proposed changes in required standards of competency.

(v) Proposed changes in plans and procedures for enforcement activities related to use of restricted use pesticides for the next reporting period.

(vi) Any other proposed changes from the State plan that would significantly affect the State certification program.

(2) Other reports as may be required by the Administrator shall be submitted from time to time to meet specific needs.

(e) Contains satisfactory assurances that the State standards for the certification of applicators of pesticides conform to those standards prescribed by the Administrator under §§ 171.1 through 171.6. Such assurances should consist of:

(1) A detailed description of the State's plan for certifying applicators and a discussion of any special situations, problems, and needs together with an explanation of how the State intends to handle them. The State plan should include the following elements as a minimum:

(i) For commercial applicators:

(A) A list and description of categories and subcategories to be used in the State, such categories to be consistent with those defined in § 171.3.

(B) An estimate of the number of commercial applicators by category expected to be certified by the State.

(C) The standards of competency elaborated by the State. These shall conform and be at least equal to those prescribed in § 171.4 for the various cat-

egories of applicators utilized by the State. The standards shall also cover each of the points listed in the general standards in § 171.4(b) and the points covered in the appropriate specific standards set forth in § 171.4(c).

(D) For each category and subcategory listed under § 171.7(e)(1)(i)(A), either submission of examinations or a description of the types and contents of examinations (e.g., multiple choice, true-false) and submission of sample examination questions; and a description of any performance testing used to determine competency of applicators.

(ii) For private applicators:

(A) An estimate of the number of private applicators expected to be certified by the State.

(B) The standards of competency elaborated by the State. These shall conform and be at least equal to those prescribed in § 171.5(a), including the five requirements listed in § 171.5(a) (1) through (5).

(C) Types and contents of examinations and/or submission of detailed description of methods other than examination used to determine competency of private applicators.

(D) A description of any special procedure of testing that a State develops to determine the competency of a private applicator who is unable to read the label as prescribed in § 171.5(b)(1).

(2) A provision for issuance by the State of appropriate credentials or documents verifying certification of applicators.

(3) If appropriate, a description of any existing State licensing, certification or authorization programs for private applicators or for one or more categories of commercial applicators may be included. If these programs are determined by EPA to meet standards of competency prescribed by §§ 171.1 through 171.6, States may certify applicators so licensed, certified or authorized without any additional demonstration of competency provided:

(i) The commercial applicators who were licensed, certified, or authorized have demonstrated their competency based on written examinations and, as appropriate, performance testing, conforming to the standards set forth in § 171.4, and

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(ii) The private applicators who were licensed, certified, or authorized have demonstrated their competency by written or oral testing procedures or other acceptable equivalent system, conforming to the standards set forth in § 171.5.

(4) A statement that the State accepts Federal employees qualified under the Government Agency Plan (GAP) as fully meeting the requirements for certification by that State; or a description of any additional requirements these employees must meet to apply restricted use pesticides in that State. Any such additional requirements shall be consistent with and shall not exceed standards established for other comparable applicators in that State.

(i) Until such time as the GAP has been fully developed and approved by EPA, this statement (§ 171.7(e)(4)) is not required. However, within 60 days after final approval of the GAP, the State should forward such a statement for inclusion in its State plan.

(5) A description of any cooperative agreements a State has made with any Indian Governing Body to certify or assist in the certification of applicators not subject to State jurisdiction. (§ 171.10).

(6) A description of any arrangements that a State has made or plans to make relating to reciprocity with other States or jurisdictions for the acceptance of certified applicators from those States or jurisdictions. However, those arrangements should meet these conditions:

(i) The State according reciprocity should provide for issuance of an appropriate document verifying certification based upon the certifying document issued by the other States or jurisdictions.

(ii) The State according reciprocity should have enforcement procedures that cover out-of-State applicators determined to be competent and certified within the State or jurisdiction.

(iii) The detailed State or jurisdiction standards of competency, for each category identified in the reciprocity arrangement should be sufficiently comparable to justify waiving an additional determination of competency by the State granting reciprocity.

(f) In responding to the preceding requirements, a State may describe in its State plan other regulatory activities implemented under State laws or regulations which will contribute to the desired control of the use of restricted use pesticides by certified applicators. Such other regulatory activities, if described, will be considered by the Administrator in evaluating whether or not a State's certified applicator program satisfies the requirements of § 171.7 (a) through (e).

[40 FR 11702, Mar. 12, 1975]

§ 171.8 Maintenance of State plans.

(a) Any State certification program approved under § 171.7 shall be maintained in accordance with the State plan approved under that section. Accordingly, the State plan should include:

(1) Provisions to assure that certified applicators comply with standards for the use of restricted use pesticides and carry out their responsibility to provide adequate supervision of noncertified applicators.

(2) Provisions to ensure that certified applicators continue to meet the requirements of changing technology and to assure a continuing level of competency and ability to use pesticides safely and properly.

(b) An approved State plan and the certification program carried out under such plan may not be substantially modified without the prior approval of the Administrator. A proposed change may be submitted for approval at any time but all applicable requirements prescribed by these Regulations must be satisfied for the modification to be eligible for approval by the Administrator.

(c) Whenever the Administrator determines that a State is not administering the certification program in accordance with the State plan approved under § 171.7, he shall so notify the State and provide for a hearing at the request of the State and, if appropriate corrective action is not taken within a reasonable time, not to exceed ninety days, the Administrator shall withdraw approval of the plan.

[40 FR 11704, Mar. 12, 1975]

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§ 171.9 Submission and approval of Government Agency Plan.

This section is included to provide for certain Federal employees including those whose duties may require them to use or supervise the use of restricted use pesticides in a number of States.

(a) Sections 171.1 through 171.8 will, with the necessary changes, apply to the Government Agency Plan (GAP) for determining and attesting to the competency of Federal employees to use or supervise the use of restricted use pesticides.

(b) Federal employees qualified under the GAP shall:

(1) Be prepared to present the Federal form issued to them attesting to their competency to appropriate State officials.

(2) Fulfill any additional requirements States may have enumerated in their State plans as provided for under § 171.7(e)(4).

(c) The employing Federal agency shall ensure that certified employees using or supervising the use of restricted use pesticides within a Federal facility are subject to the same or equivalent provisions prescribed under § 171.7(b)(1)(iii)(A)–(E).

[40 FR 11704, Mar. 12, 1975]

§ 171.10 Certification of applicators on Indian Reservations.

This section applies to applicators on Indian Reservations.

(a) On Indian Reservations¹ not subject to State jurisdiction the appropriate Indian Governing Body² may choose to utilize the State certification program, with the concurrence of the State, or develop its own plan for certifying private and commercial applicators to use or supervise the use of restricted use pesticides.

¹The term “Indian Reservation” means any federally-recognized reservation established by Treaty, Agreement, Executive Order, or Act of Congress.

²The term “Indian Governing Body” means the governing body of any tribe, band, or group of Indians subject to the jurisdiction of the United States and recognized by the United States as possessing power of self-government.

(1) If the Indian Governing Body decides to utilize the State certification program, it should enter into a cooperative agreement with the State. This agreement should include matters concerning funding and proper authority for enforcement purposes. Such agreement and any amendments thereto shall be incorporated in the State plan, and forwarded to the Administrator for approval or disapproval.

(2) If the Indian Governing Body decides to develop its own certification plan, it shall be based on either Federal standards (§§ 171.1 through 171.8) or State standards for certification which have been accepted by EPA. Such a plan shall be submitted through the United States Department of the Interior to the EPA Administrator for approval.

(b) On Indian Reservations where the State has assumed jurisdiction under other Federal laws, anyone using or supervising the use of restricted use pesticides shall be certified under the appropriate State certification plan.

(c) Non-Indians applying restricted use pesticides on Indian Reservations not subject to State jurisdiction shall be certified either under a State certification plan accepted by the Indian Governing Body or under the Indian Reservation certification plan.

(d) Nothing in this section is intended either to confer or deny jurisdiction to the States over Indian Reservations not already conferred or denied under other laws or treaties.

[40 FR 11704, Mar. 12, 1975]

§ 171.11 Federal certification of pesticide applicators in States or on Indian Reservations where there is no approved State or Tribal certification plan in effect.

(a) *Applicability.* This section applies to persons in any State and on any Indian Reservation where, because there is no approved State or Tribal certification plan in effect, the Administrator implements an EPA plan for the Federal certification of applicators of restricted use pesticides.

(b) *Certification requirement.* In any State or on any Indian Reservation where this section is applicable, any person who uses or supervises the use of any pesticide classified for restricted

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use must be certified in accordance with this section. However, a competent person who is not certified may use a restricted use pesticide under the direct supervision of a certified applicator for uses authorized by the certified applicator's certification. Private applicator certification shall authorize only those uses, or the supervision of those uses, described in §171.2(t). Commercial applicator certification shall authorize only those uses, or the supervision of those uses, included within the specific category(ies) or subcategory(ies), described in §171.3(b) or an applicable Federal plan, in which the applicator is certified.

(c) *Certification of commercial applicators*—(1) *Categories for Commercial Applicators*. Categories referred to in this section are the same as those listed in §171.3(b). Determination of competency in each category shall conform to the requirements of §171.4(a).

(2) *Subcategories*. The Administrator may adopt subcategories as he or she deems necessary, consonant with the needs of the individual State or Reservation.

(3) *Standards for certification*. The standards of competency for certification of commercial applicators under this section are the same as those listed in §171.4 (b) and (c) and §171.6.

(4) *Certification procedure*. An individual who desires to be certified or recertified under this paragraph shall complete the EPA certification form and submit the form to the appropriate EPA Regional Office. In order to be initially certified as a commercial applicator under this paragraph, an individual must take and pass written examinations approved by the Administrator and administered by the Administrator or any other party approved by him or her. A general examination will be given, based on the general standards found in §171.4(b) and the standards for supervision found in §171.6. In addition, specific category and subcategory examinations will be given, based on the appropriate category or subcategory standards found in §171.4(c) and the applicable Federal plan. The Administrator will notify the individual in writing of the results of the examinations within 45 days unless special cir-

cumstances justify a longer time period. The Administrator will issue to each person who has passed a general examination and one or more category or subcategory examinations a commercial applicator certificate covering each category and subcategory in which he or she has qualified. A commercial applicator certificate is valid for a period of three years from the date of issuance, unless earlier suspended or revoked by the Administrator (two years from the date of issuance, in the case of certificates issued prior to [effective date of amended rule]), and is valid within the State or Indian Reservation named on the certificate.

(5) *Re-examination*. Individuals failing to pass the required certification examination(s) may be re-examined after notification of failure. An individual seeking re-examination need take only the examination(s) which he or she originally failed.

(6) *Renewal of commercial applicator certification*. A certified commercial applicator may qualify for recertification by taking and passing written examinations as specified in paragraph (c)(4) of this section, or by successfully completing any available training program approved for this purpose by the Administrator. Recertification procedures must be completed by the certified commercial applicator during the twelve month period preceding the expiration date of his or her certificate.

(7) *Recordkeeping requirements*. (i) Each self-employed certified commercial applicator, each firm employing a certified commercial applicator, and each person who contracts with a certified commercial applicator (or his or her employer) to have a restricted use pesticide applied on property owned or operated by another person shall keep and maintain at their principal place of business true and accurate records of the use of restricted use pesticides, providing the following information:

(A) Name and address of the person for whom the pesticide was applied;

(B) Location of the pesticide application;

(C) Target pest(s);

(D) Specific crop or commodity, as appropriate, and site, to which the pesticide was applied;

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(E) Year, month, day, and time of application;

(F) Trade name and EPA registration number of the pesticide applied;

(G) Amount of the pesticide applied and percentage of active ingredient per unit of the pesticide used; and

(H) Type and amount of the pesticide disposed of, method of disposal, date(s) of disposal, and location of the disposal site.

(ii) *Availability of required records.* Each certified commercial applicator shall keep all records required under this paragraph current and shall make such records available for inspection and copying by representatives of EPA for a period of at least two years from the date of use of the pesticide.

(d) *Certification of private applicators—*
(1) *Certification procedures.* An individual who desires to be certified or recertified under this paragraph shall complete the EPA certification form and submit the form to the appropriate EPA Regional Office. In order to be certified or recertified as a private applicator to use restricted use pesticides, an individual must be determined competent with respect to the use and handling of pesticide. Standards for such determination are the same as those listed in §§ 171.5 and 171.6. The Administrator will offer one or more of the following certification options, including at least one option which does not require the applicator to take an examination—

(i) *Approved training course.* The individual may successfully complete an approved training course. Approved training courses may include courses sponsored by EPA, State cooperative extension services, State vocational agricultural courses, or private educational groups. Each training course for certification must be approved for that purpose by the Administrator and include, at a minimum, coverage of the private applicator standards listed in §§ 171.5 and 171.6, and a demonstration that the individual has successfully completed the training course. Subject to the approval of the Administrator, this demonstration may be accomplished by completion of a no pass/no fail written questionnaire or a workbook, receipt of a passing grade in an approved course offered by an edu-

cational institution, or any other equivalent procedure.

(ii) *Written examination.* The individual may pass a written examination approved by the Administrator and administered by the Administrator or any other party approved by him or her.

(iii) *Self-study program.* The individual may successfully complete a self-study learning program approved by the Administrator and administered by the Administrator or any other party approved by him or her.

(iv) *Non-reader certification.* Non-readers may be certified for specific use(s) of a single product by successfully completing an approved training course as specified in (d)(1) (i) of this section, or by passing an oral examination approved by the Administrator and administered by the Administrator or any other party approved by him or her. Such training or testing shall incorporate a specific procedure relating to label comprehension, as described in § 171.5(b)(1).

(2) *Issuance of certificates.* The Administrator will issue a private applicator certificate to each individual who successfully completes any available certification option. Individuals who, for any reason, fail to complete successfully a certification option may attempt to complete the same option or, if available, an alternative option. A private applicator certificate is valid for a period of four years from the date of issuance (three years from the date of issuance, in the case of certificates issued before [effective date of amended rule]), unless earlier suspended or revoked by the Administrator, and is valid within the State or Indian Reservation named on the certificate.

(3) *Renewal of private applicator certification.* A certified private applicator may qualify for recertification by successfully completing any available certification option during the twelve month period preceding the expiration date of his or her certificate.

(e) *Recognition of other certificates.* The Administrator may issue a certificate to an individual possessing any other valid Federal, State or Tribal certificate without further demonstration of competency. The individual shall submit the EPA certification

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form and written evidence of valid certification to the appropriate EPA Regional Office. The Administrator may deny issuance of such certificate if the standards of competency for each category or subcategory identified in the other Federal, State or Tribal certificate are not sufficiently comparable to justify waiving further demonstration of competency. The Administrator may revoke, suspend, or modify such certificate if the Federal, State or Tribal certificate upon which it is based is revoked, suspended, or modified. Unless suspended or revoked, a certificate issued under this paragraph is valid for two years for commercial applicators and three years for private applicators, or until the expiration date of the original Federal, State or Tribal certificate, whichever occurs first.

(f) *Denial, suspension, modification or revocation of a certificate.* (1) The Administrator may suspend all or part of a certificate issued pursuant to this section, or, after opportunity for a hearing, may deny issuance of, or revoke or modify, a certificate issued pursuant to this section, if he or she finds that the applicant or certificate holder has been convicted under section 14(b) of the amended FIFRA, has been subject to a final order imposing a civil penalty under section 14(a) of the amended FIFRA, or has committed any of the following acts:

- (i) Used any registered pesticide in a manner inconsistent with its labeling;
- (ii) Made available for use, or used, any registered pesticide classified for restricted use other than in accordance with section 3(d) of the amended FIFRA and any regulations promulgated thereunder;
- (iii) Refused to keep and maintain any records required pursuant to this section;
- (iv) Made false or fraudulent records, invoices or reports;
- (v) Failed to comply with any limitations or restrictions on or in a duly issued certificate; or,
- (vi) Violated any provision of the amended FIFRA and the regulations promulgated thereunder.

(2) If the Administrator decides to deny, revoke, or modify a certificate, he or she will:

(i) Notify the applicant or certificate holder of:

(A) The ground(s) upon which the denial, revocation or modification is based;

(B) The time period during which the denial, revocation or modification is effective, whether permanent or otherwise;

(C) The conditions, if any, under which the individual may become certified or recertified; and,

(D) Any additional conditions the Administrator may impose.

(ii) Provide the applicant or certificate holder an opportunity to request a hearing prior to final Agency action to deny, revoke or modify the certificate.

(3) If a hearing is requested by an applicant or certificate holder pursuant to paragraph (f)(2)(ii) of this section, the Administrator will:

(i) Notify the affected applicant or certificate holder of those assertions of law and fact upon which the action to deny, revoke or modify the certificate is based;

(ii) Provide the affected applicant or certificate holder an opportunity to offer written statements of facts, explanations, comments, and arguments relevant to the proposed action;

(iii) Provide the affected applicant or certificate holder such other procedural opportunities as the Administrator may deem appropriate to ensure a fair and impartial hearing; and

(iv) Appoint an attorney in the Agency as Presiding Officer to conduct the hearing. No person shall serve as Presiding Officer if he or she has had any prior connection with the specific case.

(4) The Presiding Officer appointed pursuant to paragraph (f)(3)(iv) of this section shall:

(i) Conduct a fair, orderly, and impartial hearing, without unnecessary delay;

(ii) Consider all relevant evidence, explanation, comment, and argument submitted pursuant to paragraphs (f)(3)(ii) and (iii) of this section; and,

(iii) Promptly notify the affected applicant or certificate holder of his or her decision and order. Such an order is a final Agency action subject to judicial review in accordance with Section 16 of the amended FIFRA.

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(5) If the Administrator decides to suspend all or part of a certificate, he or she will:

(i) First determine that the public health, interest or welfare warrants immediate action to suspend the certificate;

(ii) Notify the certificate holder of the ground(s) upon which the suspension action is based;

(iii) Notify the certificate holder of the time period during which the suspension is effective; and,

(iv) Notify the certificate holder of his or her intent to revoke or modify the certificate, as appropriate, in accord with paragraph (f)(2) of this section. If such revocation or modification notice has not previously been issued, it will be issued at the same time the suspension notice is issued.

(6) In cases where the act constituting grounds for suspension, revocation, or modification of a certificate is neither willful nor contrary to the public interest, health, or safety, the affected certificate holder may have additional procedural rights under 5 U.S.C. 558(c).

(7) Any notice, decision, or order issued by the Administrator under paragraph (f) of this section, and any documents filed by an applicant or certificate holder in a hearing under paragraph (f) of this section, shall be available to the public except as otherwise provided by section 10 of the amended FIFRA or by part 2 of this title. Any such hearing at which oral testimony is presented shall be open to the public, except that the Presiding Officer may exclude the public to the extent necessary to allow presentation of information which may be entitled to confidentiality under section 10 of the amended FIFRA or under part 2 of this title.

(g) *Pesticide dealer reporting and recordkeeping requirements, availability of records, and failure to comply—(1) Reporting requirements.* Each person who is a restricted use pesticide retail dealer in a State or on an Indian Reservation where the Administrator conducts the applicator certification and training program shall:

(i) Report to the Environmental Protection Agency (EPA) the business name by which the restricted use pesticide retail dealer operates, and the

name and business address of each of his dealerships. For dealers or dealerships in Nebraska this initial report must be submitted to EPA, Region VII, 324 E. 11th Street, Kansas City, MO 64106. For dealers or dealerships in Colorado this initial report must be submitted to EPA, Region VIII, 1860 Lincoln Street, Denver, Colorado 80295. This report shall be submitted to the appropriate EPA regional office no later than 60 days after the date the person first becomes a restricted use pesticide retail dealer, or within 60 days after the publication of the effective date of this final rule, whichever date is later.

(ii) Submit revisions to the initial report to the appropriate EPA regional office listed above reflecting any name changes, additions or deletions of dealerships. Revisions shall be submitted to EPA within 10 days of the occurrence of such change, addition or deletion.

(2) *Recordkeeping requirement.* Recordkeeping is required when making restricted use pesticides available to:

(i) *Certified applicators.* Each restricted use pesticide retail dealer shall maintain at each individual dealership records of each transaction where a restricted use pesticide is made available for use by that dealership to a certified applicator. Record of each such transaction shall be maintained for a period of 24 months after the date of the transaction, and shall include the following information:

(A) Name and address of the residence or principal place of business of each person to whom the pesticide was made available for use.

(B) The certification number on the document evidencing that person's certification, the State (or other governmental unit) that issued the document, the expiration date of the certification, and the categories in which the applicator is certified, if appropriate.

(C) The product name, EPA registration number, and the State special local need registration number, granted under section 24(c) of the FIFRA (if any) on the label of the pesticide.

(D) The quantity of the pesticide made available for use in the transaction.

(E) The date of the transaction.

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(ii) *Uncertified persons.* No dealer or dealership may make a restricted use pesticide available to an uncertified person unless he can document that the restricted use pesticide will be used by a certified applicator, and he maintains the records required in this subsection. Each restricted use pesticide retail dealer shall maintain records at each individual dealership of each transaction where a restricted use pesticide was made available to an uncertified person for use by a certified applicator. Records of each such transaction shall be maintained for a period of 24 months after the date of the transaction, and shall include the following information:

(A) The name and address of the residence or principal place of business of the uncertified person to whom the restricted use pesticide is made available for use by a certified applicator.

(B) The name and address of the residence or principal place of business of the certified applicator who will use the restricted use pesticide.

(C) The certified applicator's certification number, the State (or other governmental unit) that issued his certification document, the expiration date of the certification, and the categories in which the applicator is certified, if appropriate.

(D) The product name, EPA registration number, and the State special local need registration number, granted under section 24(c) of the FIFRA (if any) on the label of the pesticide.

(E) The quantity of the pesticide made available for use in the transaction.

(F) The date of the transaction.

(G) At the time of each transaction, EPA recommends that the dealer obtain the information required in paragraph (g)(2)(ii) (A) through (C) of this section and assure himself that the restricted use pesticide is made available for use by a certified applicator by examining one of the following sets of documents:

(1) The original of the certified applicator's certification document, and a driver's license or other State, county, or Tribal identification document issued to the uncertified person to whom the restricted use pesticide is made available.

(2) A photocopy or facsimile of the certified applicator's certification document, together with a statement signed by the certified applicator authorizing the uncertified person to purchase the restricted use pesticide on his behalf, and a driver's license or other State, county, or Tribal identification document issued to the uncertified person to whom the restricted use pesticide is made available.

(3) A photocopy or facsimile of the certified applicator's certification document, together with a copy of a signed contract or agreement, between the uncertified person to whom the restricted use pesticide is being made available for use and the identified certified applicator, which provides for the use of the restricted use pesticide by the identified certified applicator, and a driver's license or other State, county, or Tribal identification document issued to the uncertified person to whom the restricted use pesticide is made available.

(3) *Availability of required records.* Each pesticide dealer shall, upon request of any officer or employee of EPA duly designated by the Administrator, furnish or permit such person at all reasonable times to have access to and copy all records required to be maintained under this section.

(4) *Failure to comply.* Any person who fails to comply with the provisions of this rule may be subject to civil or criminal sanctions, under section 14 of the Act, or 18 U.S.C. 1001. Violations include failure to submit or falsification of any report required under this paragraph, failure to maintain or falsification of records as required under this section, and making available for use any pesticide classified for restricted use to a person who is not a certified commercial applicator other than in accordance with these regulations and section 3(d) of the amended FIFRA or rules promulgated thereunder.

[43 FR 24837, June 8, 1978, as amended at 48 FR 29855, June 29, 1983; 48 FR 53974, Nov. 29, 1983; 49 FR 17759, Apr. 25, 1984; 58 FR 34203, June 23, 1993]

PART 172—EXPERIMENTAL USE PERMITS

Subpart A—Federal Issuance of Experimental Use Permits

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AUTHORITY: 7 U.S.C. 136c, 136w. Section 172.4 is also issued under 31 U.S.C. 9701.

SOURCE: 40 FR 18782, Apr. 30, 1975, unless otherwise noted.

Subpart A—Federal Issuance of Experimental Use Permits

§ 172.1 Definitions.

For the purposes of this part, the following terms shall be defined as listed below:

(a) The term *Act* means the Federal Insecticide, Fungicide, and Rodenticide Act, as amended (86 Stat. 973), and other legislation supplementary thereto and amendatory thereof.

(b) The term *applicant* means any person who applies for an experimental

use permit, pursuant to section 5 of the Act.

(c) The term *cooperator* means any person who grants permission to a permittee or a permittee's designated participant for the use of an experimental use pesticide at an application site owned or controlled by the cooperator.

(d) The term *experimental animals* means individual animals or groups of animals, regardless of species, intended for use and used solely for research purposes and does not include animals intended to be used for any food purposes.

(e) The term *participant* means any person acting as a representative of the permittee and responsible for making available for use, or supervising the use or evaluation of, an experimental use pesticide to be applied at a specific application site.

(f) The phrase *value for pesticide purposes* means that characteristic of a substance or mixture of substances which produces an efficacious action on a pest.

(g) The term *permittee* means any applicant to whom an experimental use permit has been granted.

Terms defined in the Act and not explicitly defined herein are used herein with the meaning given in the Act.

§ 172.2 General.

(a) Pursuant to section 5 of the Federal Insecticide, Fungicide, and Rodenticide Act, as amended (86 Stat. 983), and except as herein provided by § 172.3, any person wishing to accumulate information necessary to register under section 3 of the Act and the regulations thereunder (1) a pesticide not registered with this Agency or (2) a registered pesticide for a use not previously approved in the registration of the pesticide may apply to the Administrator at any time for an experimental use permit.

(b) Pesticides under experimental use permits may not be sold or distributed other than through participants and, if sold or distributed through participants, may be used only at an application site of a cooperator and in accordance with the terms and conditions of the experimental use permit.

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§ 172.3 Scope of requirement.

(a) An experimental use permit (EUP) is generally required for testing of any unregistered pesticide or any registered pesticide being tested for an unregistered use. However, as described in paragraph (b) of this section, certain of such tests are presumed not to involve unreasonable adverse effects and, therefore, do not require an EUP.

(b) Except as provided in subpart C of this part or as specifically determined by the Environmental Protection Agency (EPA), it may be presumed that EUPs are not required when:

(1) The experimental use of the pesticide is limited to:

(i) Laboratory or greenhouse tests,

(ii) Limited replicated field trials as described in paragraph (c) of this section to confirm such tests, or

(iii) Other tests as described in paragraph (c) of this section whose purpose is only to assess the pesticide's potential efficacy, toxicity, or other properties.

(2) The producer, applicator, or any other person conducting the test does not expect to receive any benefit in pest control from the pesticide's use.

(c) For purposes of paragraphs (b)(1)(ii) and (b)(1)(iii) of this section, the following types of experimental tests are presumed not to need an EUP:

(1) A small-scale test involving use of a particular pesticide that is conducted on a cumulative total of no more than 10 acres of land per pest, except that:

(i) When testing for more than one target pest occurs at the same time and in the same locality, the 10 acre limitation shall encompass all of the target pests.

(ii) Any food or feed crops involved in, or affected by, such tests (including, but not limited to, crops subsequently grown on such land which may reasonably be expected to contain residues of the tested pesticides) shall be destroyed or consumed only by experimental animals unless an appropriate tolerance or exemption from a tolerance has been established under the Federal Food, Drug, and Cosmetic Act (FFDCA) for residues of the pesticide.

(2) A small-scale test involving the use of a particular pesticide that is conducted on a cumulative total of no

more than 1 surface acre of water per pest, except that:

(i) When the testing for more than one target pest occurs at the same time and in the same locality, the 1 acre limitation shall encompass all of the target pests.

(ii) Waters which are involved in or affected by such tests are not used for irrigation purposes, drinking water supplies, or body contact recreational activities.

(iii) Testing shall not be conducted in any waters which contain or affect fish, shellfish, plants, or animals taken for recreational or commercial purposes and used for food or feed, unless an appropriate tolerance or exemption from a tolerance has been established under the FFDCA for residues of the pesticide.

(3) Animal treatment tests involving the use of a particular pesticide that are conducted only on experimental animals which will not be used for food or feed, unless an appropriate tolerance or an exemption from a tolerance has been established for animal products and byproducts under the FFDCA for residues of the pesticide.

(d) The examples in paragraphs (c)(1), (c)(2), and (c)(3) of this section are not all-inclusive and do not preclude testing in larger areas or larger numbers of units if the intended use meets the criteria of paragraph (a) of this section. However, tests which do not come within the examples in paragraphs (c)(1), (c)(2), and (c)(3) of this section, absent a specific determination by EPA to the contrary, require an EUP. Subdivision I of the Pesticide Assessment Guidelines provides guidance on the procedures, data requirements, and general aspects pertaining to the issuance and use of EUPs. Persons intending to conduct tests who are uncertain whether the testing may be conducted without a permit may submit a request for determination to the Registration Division (7505C), Office of Pesticide Programs, Environmental Protection Agency, 401 M St., SW., Washington, DC 20460, Telephone: (703-305-5447). Such a request shall include the information listed in § 172.4(b)(1)(ii) and (b)(1)(iii) and in the case of an unregistered product, the information in § 172.4(b)(3)(i).

(e) Notwithstanding paragraphs (b) through (d) of this section, EPA may, on a case-by-case basis, require that certain testing of a particular pesticide or class of pesticides be carried out under an EUP, if it is determined that such EPA oversight is warranted. If EPA determines that an EUP is required, it will notify the developer of the pesticide of the need for an EUP and provide opportunity for comment or objections before imposing the requirement.

(f) No EUP is required for a substance or mixture of substances being put through tests for the sole purpose of gathering data required for approval of such substance or mixture under the FFDCA (21 U.S.C. 301 et seq.) as:

(1) A “new drug” (21 U.S.C. sec. 321(p) and sec. 355).

(2) A “new animal drug” (21 U.S.C. sec. 321(w) and sec. 360(b)), or

(3) An “animal feed” (21 U.S.C. sec. 321 (x)) containing a “new animal drug” (21 U.S.C. sec. 360(b)).

(g) Paragraph (f) of this section shall not apply when a purpose of such test is to accumulate information necessary to register a pesticide under section 3 of the Act.

[59 FR 45611, Sept. 1, 1994]

§ 172.4 Applications.

(a) *Time for submission.* An application or request for amendment to an existing permit shall be submitted in triplicate to the Registration Division, Office of Pesticide Programs, Environmental Protection Agency, Washington, DC 20460, as far as possible in advance of the intended date of shipment or use. Applications will be processed as expeditiously as possible.

(b) *Contents of applications.* (1) *General requirements.*

(i) The name and address of the applicant;

(ii) The registration number of the product, if registered;

(iii) The purpose or objectives of the proposed testing; a description in detail of the proposed testing program including test parameters; a designation of the pest organism(s) involved; the amount of pesticide product proposed for use; the crops, fauna, flora, sites, modes, dosage rates, and situation of application on or in which the pesticide

is to be used; the States in which the proposed program will be conducted; the number of acres, number of structural sites, or number of animals by State to be treated or included in the area of experimental use; the proposed dates or period(s) during which the testing program is to be conducted; and the manner in which supervision of the program will be accomplished;

(iv) The name, street address, telephone number, and qualifications of all participants in the program (whether or not in the employ of the applicant). A permit must be amended to add or change participants;

(v) The name and street address of all cooperators, if available at the time an application is submitted or as soon thereafter as available;

(vi) A description and the specific results of any appropriate prior testing of the product conducted by the applicant to determine toxicity and effects in or on target organisms at the site of application; and to determine phytotoxicity and other forms of toxicity or effects on nontarget plants, animals, and insects at or near the site of application; and to determine adverse effects on the environment;

(vii) The proposed method of storage and disposition of any unused experimental use pesticide and its containers; and

(viii) Such other additional pertinent information as the Administrator may require.

(2) *Requirement for tolerance.* If the experimental use pesticide is to be used in such a manner that any residue can reasonably be expected to result in or on food or feed, the applicant must:

(i) Submit evidence that a tolerance or exemption from the requirement of a tolerance has been established for residues of the pesticide in or on such food or feed under section 408 of the Federal Food, Drug, and Cosmetic Act, or a regulation promulgated under section 409 of that Act; or

(ii) Submit a petition proposing establishment of a tolerance or an exemption from the requirement of a tolerance under section 408, or a regulation under section 409, of the Federal Food, Drug, and Cosmetic Act; or

(iii) Certify that the food or feed derived from the experimental program

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will be destroyed or fed only to experimental animals for testing purposes, or otherwise disposed of in a manner which will not endanger man or the environment. The method of such destruction or disposition shall be provided in the application for the permit.

(3) *Additional requirements for unregistered pesticide products.* (i) A complete confidential statement of composition for the formulation to be tested giving the name and percentage by weight of each ingredient, active and inert;

(ii) Chemical and physical properties of each active ingredient of the formulation to be tested, including, but not limited to, the manufacturing or laboratory processes and analytical methods suitable for determining the active ingredients in the formulation;

(iii) Appropriate date, if available, on the rate of decline of residues on the treated crop or environmental site or other information for determination regarding entry of persons into treated areas; and

(iv) Results of toxicity tests and other data relevant to the product's potential for causing injury to the users or other persons who may be exposed, including any available epidemiological information as to man.

(c) *Fees.* The payment of fees for experimental use permits shall apply as specified in subpart U of part 152 of the chapter.

[40 FR 18782, Apr. 30, 1975, as amended at 53 FR 19115, May 26, 1988]

§ 172.5 The permit.

(a) *Issuance.* The Experimental Use Permit shall be issued when the Administrator determines that the conditions of section 5 of the Act, and the regulations thereunder, have been met subject to such terms and conditions as the Administrator determines are warranted.

(b) *Duration.* Permits will be effective for a specified period of time, normally one year, depending upon the crop or site to be tested and the requirements of the testing program submitted. The applicant should propose a suitable duration of the permit commensurate with the program submitted. Permits and associated temporary tolerances

may be renewed, extended, or amended upon request if circumstances warrant.

(c) *Limitations.* The quantity of a pesticide allowed by a permit may be less than requested if it is determined that the available information on efficacy, toxicity or other hazards, the need for data, or the adequacy of program supervision does not justify the quantity of the pesticide requested. Other limitations may also be placed in the permit if necessary for the protection of the public health and the environment.

(d) *Additions.* With respect to an experimental use pesticide containing any chemical or combination of chemicals not included in any previously registered pesticides, the Administrator may require that additional studies be conducted during the permit period to gather data to support the establishment of tolerances and/or registration. To the extent practicable, the applicant will be notified of any such requirements before or at the time an experimental use permit is issued.

(e) *Maintenance of records.* All producers of pesticides produced pursuant to an experimental use permit shall maintain records in accordance with part 169.

§ 172.6 Labeling.

(a) *Contents.* Except as provided by paragraph (b) of this section, all pesticides shipped or used under an experimental use permit shall be labeled with directions and conditions for use which shall include the following:

(1) The prominent statement, "For Experimental Use Only";

(2) The Experimental Use Permit number;

(3) The statement, "Not for sale to any person other than a participant or cooperator of the EPA-approved Experimental Use Program";

(4) The name, brand, or trademark;

(5) The name and address of the permittee, producer, or registrant;

(6) The net contents;

(7) An ingredient statement;

(8) Warning or caution statements;

(9) Any appropriate limitations on entry of persons into treated areas;

(10) The establishment registration number, except in those cases where application of the pesticide is made solely by the producer; and

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(11) The directions for use, except that the Administrator may approve the use of the experimental program as labeling provided that such program is to be distributed with the product.

(b) *Supplemental labeling.* In the case of a registered pesticide, the Administrator may, at his discretion, permit a pesticide to be used under an experimental use permit with supplemental labeling as approved by him.

§ 172.7 Importation of technical material.

Technical materials may be imported without registration in sufficient quantities to formulate a pesticide for which an Experimental Use Permit has been requested if the application for such permit states that such importation will occur.

§ 172.8 Program surveillance and reporting of data.

(a) The permittee shall supervise the test program and evaluate the results of testing at each site of application. It will further be the responsibility of the permittee to report immediately to the Administrator, or to any person designated by him, any adverse effects from use of, or exposure to, the pesticide.

(b) The permittee shall submit the following reports to the Registration Division during the experimental program.

(1) [Reserved]

(2) A final report shall be submitted within 180 days after the expiration of the permit, unless a request for extension of time is approved, and shall include:

(i) All data gathered during the testing program; field notes need not be submitted but must be maintained and submitted upon request;

(ii) A description of the disposition of any pesticide containers and any unused pesticides including amounts disposed of and the method and site of disposition; and

(iii) The method of disposition of affected food and/or feed.

The data under paragraph (b)(2)(i) of this section above may be submitted as part of an application for registration submitted within 180 days after the ex-

piration of the permit, provided that the final report shall include a statement that such application has been made, and the date of such application.

(c) In addition to the reporting requirements provided for elsewhere in this part, in the case of any meat-producing animals or birds that receive a direct treatment or application of any experimental use pesticide, the name and location of the packing plant where the animals will be processed shall be sent to the U.S. Department of Agriculture, Animal and Plant Health Inspection Service, Washington, D.C. 20250, at least 10 days before the animals are to be shipped for slaughter. This requirement may be waived, on request, by the USDA. These provisions do not exempt treated food-producing animals and their products from compliance with other applicable inspection requirements.

(d) Failure to submit required reports may constitute grounds for revocation of the permit.

(e) For the purpose of supervising the use of experimental use pesticides, the Agency may require the permittee or any participant to give reasonable advance notification of the intended dates, times, and sites on which such experimental use pesticide will be applied.

(f) The permittee or participants in the experimental use program will permit any authorized representative of the Agency, upon presentation of official identification, entry, at any reasonable time, to any premises involved in the testing program to inspect and to determine whether there has been compliance with the terms and conditions of the permit.

[40 FR 18782, Apr. 30, 1975, as amended at 60 FR 32097, June 19, 1995]

§ 172.9 Renewals.

Applications for renewal of experimental use permits and temporary tolerances, to provide for additional testing, shall be submitted prior to expiration of the permit. Requirements for renewals are the same as for applications under § 172.4, except that information previously submitted may be incorporated by reference.

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§ 172.10 Refusals to issue and revocation.

(a) *Refusal.* At any time that the Administrator determines that an experimental use permit is not justified, or that the issuance of such a permit would cause unreasonable adverse effects on the environment, or that for any other reason provided for under the law a permit shall not be issued, he shall notify the applicant in writing.

(b) *Revocation.* The Administrator may revoke an experimental use permit if he finds that its terms or conditions are being violated or that its terms or conditions are inadequate to avoid unreasonable adverse effects on the environment, or if new evidence is obtained which demonstrates that the tolerance will be inadequate to protect the public health, or for failure to meet any other provision of this part 172. The Administrator will notify the permittee in writing of such revocation. The permittee shall notify all participants of such revocation as soon as possible after he receives notice of revocation. The revocation of a permit shall not preclude the Administrator from initiating civil or criminal sanctions for the violations of the permit conditions or otherwise as authorized by law.

(c) *Hearing.* In the event that an applicant for an experimental use permit wishes to contest the refusal to issue an experimental use permit, or an experimental use permittee wishes to contest the revocation of any such permit, he shall, within twenty days after receipt of notice of such refusal or revocation, file with the Administrator a written request for an opportunity to confer with the Administrator or his designee. Within twenty days after such conference, the applicant or permittee will be notified of the Administrator's final decision.

§ 172.11 Publication.

(a) *Notice of receipt of an experimental use permit application.* The Administrator shall publish notice in the FEDERAL REGISTER of receipt of an application for an experimental use permit upon finding that issuance of the experimental use permit may be of re-

gional or national significance. This notice shall include:

- (1) The active ingredients,
- (2) Use pattern(s),
- (3) Quantity of pesticide,
- (4) Total acreage,
- (5) Location of area of application,
- (6) A statement soliciting comments from any interested persons regarding the application.

(b) *Public hearing.* The Administrator may hold a public hearing, and publish notice in the FEDERAL REGISTER of the date and location of the hearing, when he determines that there is sufficient interest in the application to warrant a hearing, based upon the comments received in response to the Notice of Receipt of an Application, or that a hearing would otherwise be in the public interest.

(c) *Issuance of experimental use permit.* The Administrator shall give prompt notice in the FEDERAL REGISTER of the issuance of an experimental use permit. The notice shall include:

- (1) The active ingredients,
- (2) Use pattern(s),
- (3) Quantity of pesticide,
- (4) Total acreage,
- (5) Location of area of application,
- (6) A statement indicating where the experimental use permit is available for public inspection.

Subpart B—State Issuance of Experimental Use Permits

SOURCE: 44 FR 41787, July 18, 1979, unless otherwise noted.

§ 172.20 Scope.

This subpart sets forth regulations governing State issuance of experimental use permits pursuant to section 5(f) of the Federal Insecticide, Fungicide, and Rodenticide Act, as amended (FIFRA). It also sets forth regulations governing authorization by the Administrator of State experimental use permit programs.

§ 172.21 Definitions.

(a) Terms used in this subpart shall, with the exception of those terms defined below, have the meaning set forth in FIFRA and in § 172.1.

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(1) *Public or Private Agricultural Research Agency or Educational Institution*—means any organization engaged in research pertaining to the agricultural use of pesticides, or any educational institution engaged in pesticides research. Any research agency or educational institution whose principal function is to promote, or whose principal source of income is directly derived from, the sale or distribution of pesticides (or their active ingredients) does not come within the meaning of this term.

(2) *Designated State Agency*—means the State agency designated by State law or other authority to be responsible for registering pesticides to meet special local needs.

(b) [Reserved]

§ 172.22 General.

(a) Experimental use permits are not required under this rule in those situations described in § 172.3 of subpart A pertaining to Federal experimental use permits.

(b) Subpart B is not applicable to experimental use permits issued by a State, as required by State law, to a permittee who already holds a valid Federal experimental use permit issued under subpart A for the same purpose, or who is not required to obtain a permit under this rule.

(c) Pesticide products used under experimental use permits may not be sold or distributed other than through participants, and, if sold or distributed through participants, may be used only at an application site of a cooperator and in accordance with the terms and conditions of the experimental use permit.

(d) Establishments in which pesticide products under State experimental use permits are produced shall be registered as required by 40 CFR 167.2(a) and producers of such products shall maintain books and records as required by 40 CFR 169.2.

(e) Pesticide products and their containers used under this rule must also be packaged, stored, transported, used, and disposed of in accordance with all applicable Federal laws and regulations, including the Resource Conservation and Recovery Act of 1976 as amended (Pub. L. 94-580; 90 Stat. 2795;

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42 U.S.C. 6901 *et seq.*) (RCRA), and rules thereunder.

§ 172.23 State plans.

(a) *Submission.* (1) A State may, by submitting a State plan, request the Administrator to authorize the designated State agency to issue experimental use permits under section 5(f) of FIFRA.

(2) A State shall request authorization to issue experimental use permits by having the Governor or Chief Executive Officer or his designated agent submit a State plan in writing to the Administrator.

(b) *Contents.* A State plan shall include—

(1) A designation of the State agency responsible for the administration of the State experimental use permit program.

(2) An opinion of the State attorney general or the legal counsel of the designated State agency that the State has the requisite legal authorities as set forth in paragraph (c)(1)(i) of this section, accompanied by copies of the applicable State laws and regulations.

(3) A description of procedures that the designated State agency will follow:

(i) To review experimental use permit applications, to ensure that experimental use permits will be issued in accordance with the terms and conditions of the authorization, FIFRA, and this subpart; and

(ii) To supervise use pursuant to the permits, and to ensure that permits are used in accordance with their terms and conditions, FIFRA, and this subpart.

(c) *Criteria for EPA acceptance of State plan.* (1) The Administrator shall grant authorization to issue experimental use permits if the State plan establishes that the designated State agency—

(i) Has adequate legal authority under State law to implement the plan, including authority:

(A) To issue experimental use permits, subject to limitations necessary for the protection of public health and the environment;

(B) To supervise the use of a pesticide pursuant to an experimental use permit, as provided in § 172.25(c);

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(C) To deny an experimental use permit if it determines that a permit is not justified, or that the issuance of the permit would cause unreasonable adverse effects on the environment;

(D) To amend or revoke an experimental use permit, if the designated State agency finds that:

(1) The terms and conditions of the permit are being violated, or are inadequate to avoid unreasonable adverse effects on the environment;

(2) Any required tolerance under the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 301 *et seq.*) has been revoked by EPA, or any exemption from the requirement for tolerance has been withdrawn by EPA; or

(3) A failure by the permittee or any cooperator to meet any other provision of FIFRA or this subpart has occurred;

(E) To enter, by consent or by warrant or by other legal means, in connection with an experimental use permit, a permittee's or cooperator's premises at reasonable times in order to sample or inspect any pesticides used or property treated, to inspect any equipment or records kept, or to observe any activities conducted, as necessary to enforce compliance with State law, the terms of the permit, and this subpart;

(F) To comply in all other respects with the requirements of this subpart, including labeling requirements; and

(ii) Utilizes procedures for the review of each permit which are adequate to ensure that the State program will be administered in accordance with the purposes of FIFRA and this subpart.

(2) After receiving a State plan, EPA shall publish a FEDERAL REGISTER notice announcing the fact and inviting interested parties to comment thereon.

(d) *Approval, rejection, and revocation.*

(1) EPA shall approve or reject the State plan within 90 days after receipt of all information necessary for final review of the plan, including copies of effective statutes and regulations which satisfy the requirements of this subpart.

(2) The Administrator may at any time revoke the authorization of a State to issue experimental use permits if he determines that the designated State agency has not complied with the requirements of this subpart

or with the terms and conditions of such authorization. State experimental use permits issued prior to the revocation of authority shall remain valid until they expire or until three years from the date of revocation of the State's authority, whichever comes first, unless sooner revoked by EPA under § 172.26(c) of this subpart.

(3) Notices of approval, rejection, and revocation shall be published in the FEDERAL REGISTER, as well as the basis for such approval, rejection, or revocation.

(4) Prior to rejecting or revoking authorization, the Administrator shall notify the State in writing of his intention to take such action, along with the basis for such action, and shall afford the State the opportunity for a hearing, and time to take corrective action.

§ 172.24 State issuance of permits.

(a) *General.* Upon approval of a State plan by the Administrator under § 172.23, the designated State agency is authorized to issue, amend, renew, deny or revoke experimental use permits subject to the terms of the authorization and these regulations.

(b) *Authority.* A designated State agency may issue an experimental use permit—

(1) To any person for the purpose of gathering the data necessary to support the State registration of a pesticide to meet special local needs under section 24(c), FIFRA.

(2) To any agricultural research agency or educational institution conducting work within the State for the purpose of experimentation:

(i) Which is done within the State; and

(ii) Which is not directly intended to result in the registration of a specific pesticide product.

(3) For use of a restricted use pesticide only if the pesticide is to be used by, or under the direct supervision of, an applicator certified in accordance with section 4 of FIFRA.

(c) *Limitations.* (1) In the case of applicants who need to gather data required to register a pesticide product to meet a special local need under section 24(c) of FIFRA, a State may only issue experimental use permits for the

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types of pesticide products and uses which it has authority to register under section 24(c).

(2) A State may not issue an experimental use permit under § 172.24(b)(1) or § 172.24(b)(2) for any of the following:

(i) A product containing an active or inert ingredient not contained in any EPA-registered product;

(ii) A product containing an active or inert ingredient which is currently subject to an EPA cancellation or suspension of registration order, or which is currently subject to an EPA notice of intent to suspend or cancel registration because of human health, environmental or efficacy considerations; except that the State may issue a permit for such a product for a purpose or in a formulation—

(A) Which was not specifically considered in, or which is not subject to, such suspension or cancellation proceedings, after consultation with appropriate EPA officials; or

(B) Which was specifically considered during such proceedings but not suspended, cancelled, or subjected to a notice of intent to suspend or cancel;

(iii) A use of a product which has been the subject of a notice of denial of registration published in the FEDERAL REGISTER pursuant to section 3(c)(6) of FIFRA and part 154 of this chapter; or

(iv) A use of a product which may involve use in or on food or feed other than as authorized under § 172.24(d), *Requirement of tolerance*.

(3) A State may not issue an experimental use permit for use of a pesticide product in an area or in an amount in excess of that necessary to accomplish the purposes for which the permit was issued under paragraph (b) of this section.

(d) *Requirement of tolerance*. If the experimental use pesticide is to be used in or on food or feed, the applicant must—

(1) Submit evidence that:

(i) A tolerance or exemption from the requirement of a tolerance has been established for residues of the pesticide in or on such food or feed under section 408 of the Federal Food, Drug and Cosmetic Act, or a regulation established under section 409 of the Act; and

(ii) The proposed program would not reasonably be expected to result in res-

idues of the pesticide in or on such food or feed in excess of that authorized under section 408 of the Federal Food, Drug and Cosmetic Act, or a regulation established under section 409 of the Act; and

(iii) All inert ingredients in the pesticide are exempted from the requirement of a tolerance under the appropriate section of 40 CFR part 180, subpart D; or

(2) Certify that the food or feed derived from the experimental program will be destroyed or fed only to experimental animals for testing purposes, or otherwise disposed of in a manner which will not endanger man or the environment. The method of destruction or disposal shall be described in the application for the permit.

[44 FR 41787, July 18, 1979, as amended at 50 FR 49020, Nov. 27, 1985]

§ 172.25 Administration of State programs.

(a) *General*. State experimental use permit programs shall be consistent with the Federal experimental use permit program, as set forth in subpart A of 40 CFR part 172.

(b) *Procedures leading to issuance*. An application for an experimental use permit shall be made in writing, and shall contain sufficient information, including a confidential statement of formula for any new product, to enable the State to determine whether use pursuant to the permit would be in accordance with the purposes of FIFRA and this subpart.

(c) *Labeling*. (1) New products shall bear labeling satisfying the requirements of § 172.6(a), except that the prominent statement “For Distribution and Experimental Use Only Within (State)” shall be used in place of “For Experimental Use Only”. The designated State agency may approve, as directions for use on labeling, the experimental program, provided such program is to be distributed with the product.

(2) The designated State agency may permit an EPA or State registered pesticide to be used under an experimental use permit with supplemental labeling as approved by the State agency. In exercising this discretion, the designated

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State agency shall ensure that the supplemental labeling and the registered label together satisfy the requirements of § 172.6(a).

(d) *Duration.* State experimental use permits shall be issued for a specified period of time, not to exceed three years, depending upon the nature of the pest problem and the requirements of the testing program submitted. The designated State agency may renew, extend or amend the stated duration of a permit, if circumstances warrant.

(e) *Limitations.* The designated State agency shall impose such limitations in the permit as are necessary to protect health and the environment, including limitations on quantity, sites, area, disposal, and other aspects of pesticide use.

(f) *Program surveillance and reporting of data.* (1) The permittee shall supervise the test program and evaluate the results of testing at each site of application. The designated State agency shall require the permittee to report to it immediately any adverse effects resulting from use of, or exposure to, the pesticide.

(2) During the course of the program, the designated State agency shall require the permittee to submit such reports (both special and periodic) as are necessary to supervise effectively the progress of the program to prevent unreasonable adverse effects on man or the environment. The designated State agency shall also require the permittee to submit a final report at the conclusion of the program. Where applicable, such reports shall also be made available to the U.S. Department of Agriculture, Food Service and Quality Service (FSQS), as required by § 172.8(c).

(g) *Disposal.* All pesticides and pesticide containers, whether disposed of during the course of a State permit or remaining at the termination of a permit, must either be:

(1) Disposed of in accordance with a disposal plan approved as part of the experimental program; or

(2) Returned to the permittee for storage or disposal in accordance with the requirements of RCRA and rules there under; or

(3) If the product is currently registered, used in accordance with the registered label.

[44 FR 41787, July 18, 1979, as amended at 60 FR 32097, June 19, 1995]

§ 172.26 EPA review of permits.

(a) *Notification of State action.* (1) Within 10 days after the issuance of an experimental use permit, the designated State agency shall notify EPA of the action by forwarding to the appropriate EPA Regional Office a copy of the permit, a description of the experimental program to be conducted under the terms of the permit, a copy of the approved labeling, and a copy of the confidential statement of formula for any new product.

(2) Within 10 days after amendment or revocation of an experimental use permit by a State, the designated State agency shall notify the appropriate EPA Regional Office in writing of the amendment or revocation. The notice shall include a brief explanation of the reason for the amendment or revocation. If amendments to permits include changes in the approved labeling, the designated State agency shall also forward a copy of the amended labeling.

(3) EPA shall give notice in the FEDERAL REGISTER of State issuance of experimental use permits.

(b) *Reports.* The designated State agency shall submit the following reports to EPA:

(1) An annual report covering the number of permits issued, the names and addresses of permittees, the names of the products covered by permits, and the State permit numbers issued;

(2) Reports, as requested by EPA, containing any information that EPA may determine necessary to ensure that a State has acted in compliance with provisions of FIFRA and this subpart; and

(3) Reports of any serious adverse effect(s), as soon thereafter as possible, from use of, or exposure to, a pesticide used pursuant to an experimental use permit.

(c) *Revocation by EPA.* (1) The Administrator may revoke an experimental use permit issued under this subpart if he finds:

(i) That its terms and conditions are being violated;

(ii) That its terms and conditions are inadequate to avoid unreasonable adverse effects on the environment;

(iii) That new evidence demonstrates that any tolerance or food additive regulation upon which the permit is based will be inadequate to protect the public health, or that any exemption from the requirement for a tolerance or food additive regulation is no longer appropriate; or

(iv) That a failure by the permittee to meet any other provisions of FIFRA or this subpart has occurred.

(2) The Administrator shall, prior to revoking a State experimental use permit, consult with the State agency which issued the permit, except in cases where continued use of the pesticide under the permit would create an imminent hazard to man or the environment.

(3) The Administrator shall notify the designated State agency, in writing, of the revocation, and the State agency shall notify the permittee, also in writing, of the revocation.

(4) The permittee shall notify all participants of the revocation within 10 days after he receives notice of revocation.

(5) The revocation of a permit shall not preclude the Administrator from initiating civil or criminal sanctions for violations of the permit conditions or other violations, as authorized by law.

(6) If a permittee wishes to contest the revocation of a State experimental use permit, he shall, within 30 days after receipt of notice of such revocation, file with the Administrator a written request for an opportunity to confer with the Administrator or his designee. The revocation of the permit shall remain effective pending the outcome of any conference requested under this paragraph.

(7) If a permittee requests a conference under paragraph (c)(6) of this section, the Administrator shall provide the permittee:

(i) With information as to the time, place and nature of the conference, and of the matters of fact and law asserted by the Agency as grounds for the revocation action;

(ii) An opportunity to offer a written statement of facts, explanations, and

arguments relevant to the revocation action;

(iii) All other procedural opportunities to which the permittee may be entitled by law.

(8) The Administrator shall notify the affected permittee and State Agency, in writing, of his final decision on the revocation matter as expeditiously as possible and shall attempt to do so within 30 days after the conclusion of a conference conducted under paragraph (c)(7). The Administrator shall also provide the permittee and the State agency with a written statement of the reasons for his decision, which shall take into account the evidence presented pursuant to paragraph (c)(7)(ii) of this section.

(9) A decision to revoke a permit under paragraph (c)(8) of this section is a final Agency action subject to judicial review as provided by law.

Subpart C—Notification for Certain Genetically Modified Microbial Pesticides

SOURCE: 59 FR 45612, Sept. 1, 1994, unless otherwise noted.

§ 172.43 Definitions.

Terms used in this subpart shall, with the exception of those defined below, have the meaning set forth in the Act and in § 172.1.

Containment and inactivation controls means any combination of mechanical, procedural, or biological controls designed and operated to restrict environmental release of viable microorganisms from a facility.

Deliberately modified means the directed addition, rearrangement, or removal of nucleotide sequences to or from genetic material.

Introduction of genetic material means the movement of nucleotide sequences into a microorganism, regardless of the technique used.

Inversions of genetic material means the replacement of an internal section of a chromosome in the reverse orientation.

Microbial pesticide means any pesticide whose active ingredient is a

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microorganism intended for preventing, destroying, repelling, or mitigating any pest, or intended for use as a plant regulator, defoliant, or desiccant.

Microbial pesticides resulting from rearrangements means a microbial pesticide resulting from translocations or inversions of genetic material.

Microorganism means a bacterium, fungus, alga, virus, or protozoan.

Nonindigenous microbial pesticide means a microbial pesticide brought into one of the following geographic areas from outside that area:

(1) The continental United States, including Alaska, and the immediately adjoining countries (i.e., Canada and Mexico).

(2) The Hawaiian Islands.

(3) The Caribbean Islands including Puerto Rico and the U.S. Virgin Islands.

Pesticidal property means a characteristic exhibited by a microorganism that contributes to the intentional use of the microorganism to prevent, destroy, repel, or mitigate a pest or to act as a plant regulator, defoliant, or desiccant.

Single genome means the sum total of chromosomal and extrachromosomal genetic material of an isolate and any descendants derived under axenic culture conditions from that isolate.

Small-scale test means the experimental use of a microbial pesticide in a facility such as a laboratory or greenhouse, or use in limited replicated field trials or other tests as described in §172.3(c).

Test or testing means any use of a microbial pesticide consistent with section 5 of the Act, including limited replicated field trials and associated activities.

Translocations of genetic material means a chromosomal configuration in which part of a chromosome becomes attached to a different chromosome, or inserts in a different location on the same chromosome.

§172.45 Requirement for a notification.

(a) *Who must submit a Notification.* Notwithstanding §172.3, any person who plans to conduct small-scale testing of a type of microbial pesticide identified in paragraph (c) of this sec-

tion must submit a Notification to EPA and obtain prior approval for either of the following tests:

(1) Small-scale tests that involve an intentional environmental introduction of that microbial pesticide.

(2) Small-scale tests performed in a facility without adequate containment and inactivation controls as provided in paragraph (e) of this section.

(b) *Alternative to Notification.* In lieu of a Notification, any person required to submit a Notification under paragraph (a) of this section may submit an application for an experimental use permit (EUP) to EPA for approval.

(c) *Small-scale testing that requires a Notification.* As provided in paragraph (a) of this section, and notwithstanding any other approval by any governmental entity, EPA review and approval are required prior to the initiation of any small-scale test involving either of the following microbial pesticides:

(1) Microbial pesticides whose pesticidal properties have been imparted or enhanced by the introduction of genetic material that has been deliberately modified.

(2) Nonindigenous microbial pesticides that have not been acted upon by the U.S. Department of Agriculture (i.e., either by issuing or denying a permit or determining that a permit is unnecessary; or a permit is not pending with the USDA).

(d) *Small-scale testing that does not require a Notification.* (1) Testing conducted with microbial pesticides identified in paragraph (c) of this section, but made exempt pursuant to §172.52, does not require a Notification. The following microbial pesticides (or classes of pesticides) are exempt from the notification requirement in paragraph (a) of this section:

(i) Microbial pesticides resulting from deletions or rearrangements within a single genome that are brought about by the introduction of genetic material that has been deliberately modified.

(ii) [Reserved]

(2) Testing conducted in a facility with adequate containment and inactivation controls, as provided in paragraph (e) of this section, does not require a Notification.

(e) *Selection and use of containment and inactivation controls.* (1) Selection and use of containment and inactivation controls for a particular microbial pesticide shall take into account the following:

(i) Factors relevant to the microbial pesticide's ability to survive in the environment.

(ii) Potential routes of release in air, solids, and liquids; in or on waste materials and equipment; in or on people (including maintenance and custodial personnel); and in or on other organisms such as insects and rodents.

(iii) Procedures for transfer of materials between facilities.

(iv) Plans for routine or emergency clean-up and test termination.

(2) For purposes of paragraph (e)(1) of this section, EPA will presume that compliance with the containment provisions of the National Institutes of Health (NIH) "Guidelines for Research Involving Recombinant DNA Molecules" (51 FR 16958, May 7, 1986) constitutes selection and use of adequate containment and inactivation controls.

(3) The selection of containment and inactivation controls shall be approved by an authorized official of the organization that is conducting the test prior to commencement of the test.

(4) Records shall be developed and maintained describing the selection and use of the containment and inactivation controls, including contingency plans for emergency clean-up and test termination, that will be used during the test. These records shall be available for inspection at the test facility. In addition, these records shall be submitted to EPA at EPA's request and within the time frame specified in EPA's request.

(5) Subsequent to any EPA review of the containment/inactivation controls selected under paragraph (e)(1) of this section, changes to the controls necessary to prevent unreasonable adverse effects must be made upon EPA request. Failure to comply with EPA's request shall result in automatic revocation of the exemption from the requirement to submit a Notification.

§ 172.46 Submission of a notification.

(a) *When to submit a Notification.* A Notification shall be submitted for ap-

proval at least 90 days prior to the initiation of the proposed test.

(b) *Where to submit a Notification.* A Notification shall be submitted to the Registration Division (7505C), Office of Pesticide Programs, Environmental Protection Agency, 401 M St., SW., Washington, DC 20460, and clearly marked "ATTN: Biotechnology Notification Review."

(c) *How to format a Notification.* A Notification submitted under this section must comply with the following procedures, but is not required to comply with the format and other provisions governing submission of data in §§ 158.32 and 158.33 of this chapter. However, because data submitted with the Notification may subsequently be used to support other regulatory actions (e.g., used in EUP or registration applications), it is recommended that such data comply with EPA requirements in §§ 158.32 and 158.33 of this chapter.

(1) Each Notification must be accompanied by a transmittal document that clearly identifies the EPA action supported as a Biotechnology Notification Review.

(2) Five copies of each Notification must be submitted to EPA.

(3) Any claims of confidentiality for information submitted in the Notification must be made as described in paragraph (d) of this section.

(d) *How to make confidential business information (CBI) claims in a Notification.* Although it is strongly recommended that the submitter minimize the amount of data and other information claimed as CBI, a submitter may assert a claim of confidentiality for all or part of the information submitted to EPA in a Notification (See part 2, Subpart B of this chapter). To assert such a claim, the submitter must comply with the following procedures:

(1) Any claim of confidentiality must accompany the information at the time the information is submitted to EPA. Failure to assert a claim at that time will be considered a waiver of confidentiality for the information submitted, and the information may be made available to the public, subject to section 10(g) of the Act, with no further notice to the submitter.

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(2) Of the five copies of the Notification required by paragraph (c) of this section, four copies must be complete with the information that is claimed confidential clearly marked in the manner described in §2.203(b) of this chapter. All information claimed as confidential must be deleted from the fifth copy, but it must be otherwise complete. The first page of the fifth copy must be marked "Contains no information claimed as confidential." EPA may include the fifth copy in a public file without further notice. EPA will consider incomplete a Notification containing information claimed as CBI that is not submitted in accordance with this paragraph and will suspend the review period on the Notification until such procedures are followed.

(3) Any claim of confidentiality must be accompanied, at the time the claim is made, by comments substantiating the claim and explaining why the submitter believes that the information should not be disclosed. The submitter should refer to §2.204(e)(4) of this chapter for points to address in the substantiation. If such comments are themselves claimed confidential and are marked confidential when submitted to EPA, they will be treated as such in accordance with §2.205(c) of this chapter. EPA will consider incomplete all Notifications containing information claimed as CBI that are not accompanied by substantiation, and will suspend the review period on such Notifications until the required substantiation is provided.

(4) EPA will disclose information that is subject to a claim of confidentiality asserted under this section only to the extent and by means of the procedures set forth in section 10 of the Act, in this subpart, and in part 2 of this chapter.

§172.48 Data requirements for a notification.

This section identifies the data and information to be included in each Notification. When specific information is not submitted, an explanation of why it is not practical or necessary to provide the information is to be provided.

(a) The identity of the microorganism which constitutes the microbial pesticide including:

(1) Summary of data supporting the taxonomic designation and its interpretation.

(2) Means and limit of detection using sensitive and specific methods (e.g., note the use of any markers that are used to distinguish the introduced population from native microorganisms). Introduction into the microbial pesticide of a unique genetic marker is encouraged.

(b) Description of the natural habitat of the parental strain of the microbial pesticide including information on:

(1) Physical and chemical features important to growth and survival of the parental strain.

(2) Biological features of the parental strain that would have an impact on the microbial pesticide (e.g., presence of phages that infect the microorganism).

(3) Competitors.

(c) Information on the host range of the microbial pesticide, if any, with an assessment of infectivity and pathogenicity to nontarget organisms.

(d) Information on survival and the ability of the microbial pesticide to increase in numbers (biomass) in the environment (e.g., in the environment into which the microbial pesticide will be introduced, and in substantially different environments that may be in the immediate vicinity). These data may be derived from the scientific literature or from tests conducted in a laboratory or other containment facility.

(e) The identity of possible transmission vectors (e.g., insects).

(f) Data on relative environmental competitiveness compared to the parental strain of the microbial pesticide.

(g) Description of the methods used to genetically modify the microbial pesticide.

(h) The identity and location of the gene segments that have been rearranged or inserted/deleted (host source, nature, and, for example, base sequence data, or restriction enzyme map of the genes).

(i) Information on the control region of the genes, and a description of the new traits or characteristics that are expressed.

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(j) Data on potential for genetic transfer and exchange with other organisms and on genetic stability of any inserted sequences in the microbial pesticide.

(k) A description of the proposed testing program including:

(1) The purpose or objectives of the proposed testing.

(2) Designation of the pest organisms involved (common and scientific names).

(3) The States in which the proposed program will be conducted.

(4) The exact location of the test sites (including proximity to residences and human activities, surface water, etc.).

(5) The crops, fauna, flora, geographical description of sites, modes, dosage rates, frequency, and situation of application on or in which the pesticide is to be used.

(6) The total amount of pesticide product proposed for use in the testing.

(7) The method of application.

(8) A comparison of the natural habitat of the microbial pesticide with the proposed test site.

(9) The number of acres, structural sites, or animals/plants by State, to be treated or included in the area of experimental use.

(10) Procedures to be used to protect the test area from intrusion by unauthorized individuals.

(11) The proposed dates or periods during which the testing program is to be conducted, and the manner in which supervision of the program will be accomplished.

(12) Description of procedures for monitoring the microbial pesticide within and adjacent to the test site during the test.

(13) The method of sanitation or disposal of plants, animals, soils, farm tools, machinery etc., that will be exposed to the microbial pesticide during or after the test.

(14) Means of evaluating potential adverse effects and methods of controlling the microbial pesticide if detected beyond the test area.

(l) A statement of composition for the formulation to be tested, giving:

(1) The name and percentage by weight (or other suitable units) of each ingredient, active and inert.

(2) Production methods.

(3) Extraneous microorganisms present as contaminants.

(4) Amount and potency of any toxin present.

(5) Where applicable, the number of viable microorganisms per unit weight or volume of the product or other appropriate system for designating the quantity of active ingredient.

(m) Any additional factual information regarding the potential for unreasonable adverse effects on the environment.

§ 172.50 Response to a notification.

(a) EPA will review and evaluate each Notification as expeditiously as possible and will make a determination no later than 90 days after receipt of the complete Notification; however, under no circumstances shall the proposed test proceed until the submitter has received notice from EPA of its approval of such test.

(b) For each Notification, EPA may make the following determinations:

(1) Require additional information from the submitter to assess the proposed test adequately.

(2) Approve the proposed test.

(3) Approve the proposed test provided that the submitter makes certain modifications to the test proposal.

(4) Require an EUP for the test.

(5) Disapprove the proposed test because of the potential for unreasonable adverse effects. Such disapproval by EPA shall be considered the equivalent of denial of an EUP and the remedies for such denial provided by § 172.10 are available to the submitter.

(c) If the proposed test is approved by EPA, then the submitter shall perform the test in the same manner described in the Notification, subject to any requirements imposed under paragraph (b)(3) of this section.

§ 172.52 Notification exemption process.

(a) *Initiation of the exemption process.* Pesticides may be added to the list of exemptions in § 172.45(d) by rule at EPA's initiative or in response to a petition submitted in accordance with paragraph (b) of this section.

(b) *Petitions for exemption from the requirement for a Notification—(1) Who*

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may submit a petition. Any person may submit a petition requesting an exemption from the notification requirements of this subpart for a specific microbial pesticide or class of microbial pesticides.

(2) *Where to submit a petition.* All petitions shall be submitted to the following location: Registration Division (7507C), Office of Pesticide Programs, Environmental Protection Agency, 401 M St., SW., Washington, DC 20460.

(3) *Content of petition.* Each petition shall contain the following:

(i) Name and address of petitioner and name, address, and telephone number of a person who may be contacted for further information.

(ii) Description of the exemption requested, including the specific microbial pesticide or class of microbial pesticides to be tested under the petition for exemption.

(iii) Basis for the petitioner's contention that the specific microbial pesticide or class of microbial pesticides meet the criteria of § 172.3 for small-scale tests of pesticides that do not require an EUP.

(iv) Discussion of the extent to which the microbial pesticide or class of microbial pesticides covered by the petition differ from microbial pesticides that are already registered or subject to an EUP under the Act.

(4) *Administrative action on a petition.* EPA will review and evaluate petitions as expeditiously as possible and may request further information from the petitioner to assess the proposed exemption adequately. No later than 180 days after the submission of a petition, or 90 days after the last submission of additional information by the petitioner, whichever is later, EPA will take one of the following actions with respect to the petition:

(i) Grant the petition and publish a notice of proposed rulemaking in the FEDERAL REGISTER for a 45-day comment period proposing the exemption requested by the petitioner.

(ii) Grant the petition and publish a notice of proposed rulemaking in the FEDERAL REGISTER for a 45-day comment period proposing an exemption under such terms and conditions as EPA deems appropriate.

(iii) Deny the petition and provide the petitioner with a written explanation of EPA's decision.

(5) *Confidential business information (CBI) claims.* To assert a claim of confidentiality, the petitioner must comply with the applicable procedures in § 172.46(d).

(6) *Supplements, amendments, and withdrawals.* The petitioner may supplement, amend, or withdraw his or her petition in writing without EPA approval at any time prior to the granting or denial of the petition under paragraph (b)(4) of this section. The withdrawal of a petition shall be without prejudice to the resubmission of the petition at a later date.

§ 172.57 Submission of information regarding potential unreasonable adverse effects.

Any person using a microbial pesticide in small-scale testing covered by this subpart who obtains information regarding potential unreasonable adverse effects on health or the environment must within 30 days of receipt of such information submit the information to EPA, unless the person has actual knowledge that EPA has been adequately informed of such information. The requirement to submit information applies both to those microbial pesticides subject to the notification requirements under § 172.45(c) and those that are exempt under § 172.45(d).

§ 172.59 Enforcement.

(a) *Imminent threat of substantial harm to health or the environment.* The use of a microbial pesticide in small-scale testing covered by this subpart (whether subject to the notification requirements of § 172.45(c) or exempt under § 172.45(d)) in a manner that creates an imminent threat of substantial harm to health or the environment is prohibited, and is considered a violation of section 12(a)(2)(S) of the Act.

(b) *EPA response to violations.* Under section 14 of the Act, EPA may seek civil or criminal penalties for violations of the Act. Failure to comply with the regulations in this part could result in civil or criminal penalties. Moreover, under sections 14 and 16(c) of the Act, EPA may at any time take appropriate action against violators to

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prevent or otherwise restrain use of a microbial pesticide in small-scale testing if it is determined that:

(1) Such use would create an imminent threat of substantial harm to health or the environment that is prohibited under paragraph (a) of this section; or

(2) The terms or conditions on which approval of the testing was granted under this subpart C are violated.

PART 173—PROCEDURES GOVERNING THE RESCISSION OF STATE PRIMARY ENFORCEMENT RESPONSIBILITY FOR PESTICIDE USE VIOLATIONS

Sec.

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173.6 Publication of the notice; scheduling the hearing.

173.7 Hearing and recommended decision.

173.8 Final order.

173.9 Judicial review.

AUTHORITY: 7 U.S.C. 136w and 136w-2.

SOURCE: 46 FR 26059, May 11, 1981, unless otherwise noted.

§ 173.1 Applicability.

These procedures govern any proceeding to rescind a State's primary enforcement responsibility for pesticide use violations conducted under section 27(b) of the Federal Insecticide, Fungicide, and Rodenticide Act, as amended (FIFRA), 7 U.S.C. 136 *et seq.*

§ 173.2 Definitions.

For purposes of this part:

(a) *Administrator* means the Administrator of the United States Environmental Protection Agency or his delegate.

(b) *Notice of intent to rescind* means a notice to a State issued under § 173.3 which initiates a proceeding to rescind the State's primary enforcement responsibility for pesticide use violations.

(c) *State* means the agency or agencies primarily responsible for enforcing pesticide use laws or regulations within the State or jurisdiction undergoing rescission proceedings.

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(d) *Party to the proceeding* shall mean the State or the Agency's Office of Enforcement.

(e) *Presiding Officer* means an attorney appointed by the Administrator to conduct the rescission proceeding. The Presiding Officer shall be an employee or representative of the Agency and shall not have had prior direct connection with the specific proceeding except in circumstances where subsequent hearings are in order.

§ 173.3 Initiation of rescission proceedings.

(a) Whenever the Administrator determines that a State having primary enforcement responsibility for pesticide use violations is not carrying out such responsibility, or cannot carry out such responsibility due to the lack of adequate legal authority, the Administrator shall notify the State in writing of his intent to rescind its primary enforcement responsibility, in whole or in part, by serving upon the State a notice of intent to rescind.

(b) The notice of intent to rescind shall:

(1) Specify those aspects of the State's pesticide use enforcement program determined to be inadequate;

(2) Specify the facts which underlie the findings contained in the rescission notice;

(3) Have attached thereto copies of any relevant documents discoverable under the Federal Rules of Civil Procedure and the Freedom of Information Act which contain data relied upon by the Administrator in making his decision to issue the notice;

(4) Have attached thereto a copy of this part; and

(5) Be sent to the State by certified mail, return receipt requested.

(c) The State may respond in writing to the findings specified in the notice of intent to rescind.

§ 173.4 Informal conference and settlement.

(a) After receipt of a notice of intent to rescind, the State may request that an informal conference be held between appropriate State and EPA officials to discuss the findings made in the notice of intent to rescind. The informal conference shall then be held in the State.

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If the Administrator finds, on the basis of information submitted by the State at the conference, that the deficiencies specified in the notice did not exist or were corrected by the State, the Administrator shall issue an order withdrawing the notice of intent to rescind and terminating the rescission proceeding.

(b) At any time after receipt of a notice of intent to rescind and before the issuance of a final order, the State and EPA may resolve the issues raised in the notice by agreement. Any settlement agreement shall be in writing and signed by the parties and shall:

(1) Detail the deficiencies found in the State program;

(2) Specify the steps the State has taken or will take to remedy the deficiencies; and

(3) Set forth a precise schedule for each remedial action yet to be initiated.

(c) If a written agreement is signed by the parties, the Administrator shall issue an order withdrawing the notice of intent to rescind and terminating the rescission proceeding. If the State does not comply with the terms of the settlement agreement, the Administrator may reissue the notice of intent to rescind.

§ 173.5 Request for hearing.

A State may request a hearing before a Presiding Officer not later than sixty (60) days after receipt of a notice of intent to rescind.

§ 173.6 Publication of the notice; scheduling the hearing.

(a) If the Administrator has not issued an order terminating the rescission proceeding within sixty (60) days after service of the notice of intent to rescind upon the State, the Administrator shall publish the notice of intent to rescind in the FEDERAL REGISTER. The Administrator may modify the original notice of intent to rescind before its publication by deleting those deficiencies listed in the original notice which have been corrected or which were shown not to have existed. The public may submit comments upon the matters specified in the published notice of intent to rescind within the time specified therein.

(b) Concurrently with the publication of the notice of intent to rescind, the Administrator shall schedule a hearing in the State if one has been requested by the State. The date, time, and location of the hearing shall be published in the FEDERAL REGISTER along with the notice of intent to rescind.

(c) If a hearing is requested and the Administrator has not issued an order terminating the rescission proceeding, the Administrator shall provide for a hearing as scheduled. Representatives of the State, EPA, and the public may present evidence at the hearing. The Administrator shall appoint a Presiding Officer who shall preside over the hearing and make a recommended decision regarding the adequacy of the State's pesticide use enforcement program. The Administrator, after consultation with the State, may prescribe additional procedures governing the conduct of the hearing.

(d) If a termination order is issued or the hearing is rescheduled after the notice of intent to rescind is published in the FEDERAL REGISTER, such order or notice rescheduling the hearing shall also be published in the FEDERAL REGISTER.

§ 173.7 Hearing and recommended decision.

(a) The Presiding Officer shall:

(1) Conduct a fair and impartial hearing, without unnecessary delay;

(2) Ensure that the facts are fully elicited; and

(3) Consider all evidence, comment, and argument which is submitted by persons who will be affected by the outcome of the proceeding and which is not irrelevant, immaterial, unduly repetitious, or otherwise unreliable or of little probative value. The Presiding Officer may require any prospective witness to make available, in advance of the hearing, a brief summary of his or her testimony.

(b) If, following the close of the hearing, the Presiding Officer finds that the State has corrected, or has agreed in writing to correct, the deficiencies specified in the notice of intent to rescind or has shown that such deficiencies do not exist, the Presiding Officer shall issue a decision recommending that the notice of intent to rescind

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be withdrawn and that the rescission proceeding be terminated.

(c) If, following the close of the hearing, the Presiding Officer finds that the State has not corrected the deficiencies in its program, the Presiding Officer shall issue a decision recommending that the State's primary enforcement responsibility for pesticide use violations be rescinded in whole or in part.

(d) The recommended decision of the Presiding Officer shall become final Agency action forty-five (45) days after its service upon the parties and without further proceedings unless (1) an appeal to the Administrator is taken from it by a party to the proceeding, or (2) the Administrator elects, sua sponte, to review the recommended decision.

§ 173.8 Final order.

(a) If the State does not request a hearing within the sixty-day time period and the Administrator has not issued an order withdrawing the notice of intent to rescind, the Administrator shall issue a final order as soon as practicable after the time for public comment on the notice of intent to rescind has elapsed. The final order shall either withdraw the notice of intent to rescind and terminate the proceeding or rescind, in whole or in part, the State's primary enforcement responsibility for pesticide use violations.

(b) If a hearing has been held and the Presiding Officer has made a recommended decision, then either the Office of Enforcement or the State may appeal the recommended decision to the Administrator or the Administrator may elect to review the recommended decision on his own initiative.

(c) After an appeal or sua sponte review the Administrator shall issue a final order terminating the rescission proceeding or rescinding, in whole or in part, the State's primary enforcement responsibility for pesticide use violations.

(d) In no event may the Administrator issue his final decision sooner than ninety (90) days after service of the notice of intent to rescind on a State.

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(e) Any final order, or a recommended decision which becomes a final order under § 173.7(c), shall be published in the FEDERAL REGISTER.

§ 173.9 Judicial review.

The State may appeal an order rescinding, in whole or in part, its primary enforcement responsibility for pesticide use violations to the appropriate federal court pursuant to section 16 of FIFRA.

PART 177—ISSUANCE OF FOOD ADDITIVE REGULATIONS

Subpart A—General Provisions

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177.1 Scope and applicability.

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Subparts B—D [Reserved]

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177.125 Action after review.

177.130 Issuance of proposed rule on Administrator's initiative or in response to petition, and final action on proposal.

177.135 Effective date of regulation.

Subpart H—Judicial Review

177.140 Judicial review.

AUTHORITY: 21 U.S.C. 348, 371(a) 331(j); Reorg. Plan No. 3 of 1970.

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SOURCE: 55 FR 50288, Dec. 5, 1990, unless otherwise noted.

Subpart A—General Provisions

§ 177.1 Scope and applicability.

(a) This part establishes procedures for the establishment, modification, or revocation by the Administrator of food additive regulations under section 409 of the Federal Food, Drug, and Cosmetic Act (FFDCA), 21 U.S.C. 348, for food additives which may result in pesticide residues in or on processed food or otherwise affect the characteristics of such food.

(b) Part 178 of this chapter contains procedures for filing objections and requests for hearings under FFDCA section 409(f) on food additive regulations or petition denials issued under this part. Part 179 of this chapter contains rules governing formal evidentiary hearings under FFDCA section 409(f).

(c) Part 180 of this chapter contains regulations establishing tolerances, or exemptions from the necessity for a tolerance, for pesticide residues on raw agricultural commodities under FFDCA section 408. If the use of a pesticide chemical in the production, storage, or transportation of a raw agricultural commodity (RAC) in conformity with such a tolerance or exemption results in the presence of a pesticide residue in or on processed food made from the RAC, FFDCA section 402(a)(2)(C) provides that such pesticide residue shall not be deemed unsafe for the purposes of FFDCA section 409 (despite the absence of a food additive regulation regarding such residue on the processed food) if the residue in or on the RAC has been removed to the extent possible in good manufacturing practice and the concentration of such residue in the processed food when ready to eat is not greater than the tolerance prescribed for the RAC. However, a food additive regulation would be required if the level of the pesticide residue in the processed food when ready to eat exceeded the level permitted in the “parent” RAC by the tolerance established under FFDCA section 408. In addition, if a pesticide residue in or on a processed food results from the application of a pesticide during or after processing, the food would be unsafe

within the meaning of FFDCA section 409 unless a food additive regulation permitted that residue in or on the processed food.

§ 177.3 Definitions.

For the purposes of this part:

Administrator means the Administrator of the Agency, or an officer or employee of the Agency to whom the Administrator has delegated the authority to perform functions under this part.

Agency means the United States Environmental Protection Agency.

FFDCA means the Federal Food, Drug, and Cosmetic Act, as amended, 21 U.S.C. 301–392.

FIFRA means the Federal Insecticide, Fungicide, and Rodenticide Act, 7 U.S.C. 136–136y.

Food additive means any substance the intended use of which results or may reasonably be expected to result, directly or indirectly, in its becoming a component of or otherwise affecting the characteristics of any food (including any such substance intended for use in producing, manufacturing, packing, processing, preparing, treating, packaging, transporting, or holding food), except that such term does not include:

(1) A pesticide chemical in or on a raw agricultural commodity.

(2) A pesticide chemical to the extent that it is intended for use or is used in the production, storage, or transportation of any raw agricultural commodity.

(3) A color additive.

(4) Any substance used in accordance with a sanction or approval granted prior to September 6, 1958, pursuant to the FFDCA, the Poultry Products Inspection Act, or the Federal Meat Inspection Act.

(5) A new animal drug.

(6) A substance that is generally recognized, among experts qualified by scientific training and experience to evaluate its safety, as having been adequately shown through scientific procedures (or, in the case of a substance used in food prior to January 1, 1958, through either scientific procedures or experience based on common use in food) to be safe under the conditions of its intended use.

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Food additive regulation means a regulation issued pursuant to FFDCA section 409 that states the conditions under which a food additive may be safely used. A food additive regulation under this part ordinarily establishes a tolerance for pesticide residues in or on a particular processed food or a group of such foods. It may also specify:

(1) The particular food or classes of food in or on which a food additive may be used.

(2) The maximum quantity of the food additive which may be used in or on such food.

(3) The manner in which the food additive may be added to or used in or on such food.

(4) Directions or other labeling or packaging requirements for the food additive.

Pesticide chemical means any substance which alone, or in chemical combination with or in formulation with one or more other substances, is a “pesticide” within the meaning of FIFRA and which is used in the production, storage, or transportation of any raw agricultural commodity or processed food. The term includes any substance that is an active ingredient, intentionally-added inert ingredient, or impurity of such a “pesticide.”

Pesticide residue means a residue of a pesticide chemical or of any metabolite or degradation product of a pesticide chemical.

Tolerance means:

(1) The amount of a pesticide residue that legally may be present in or on a raw agricultural commodity under the terms of a tolerance under FFDCA section 408 or a processed food under the terms of a food additive regulation under FFDCA section 409. Tolerances are usually expressed in terms of parts of the pesticide residue per million parts of the food (ppm), by weight.

(2) [Reserved]

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Subparts B—D [Reserved]

Subpart E—Procedures for Filing Petitions

§ 177.81 Petition for establishment, modification, or revocation of a food additive regulation.

(a) *Who may submit a petition.* Any person may submit a petition requesting the Agency to issue a regulation to establish, modify, or revoke a food additive regulation.

(b) *Where to submit petition.* A petition shall be submitted to: Office of Pesticide Programs (H7504C), Document Processing Desk - PETN, U. S. Environmental Protection Agency, 401 M St., SW., Washington, DC 20460.

(c) *Identification of petitioner.* A petition must be signed by the petitioner or the petitioner’s authorized representative, and must state the petitioner’s mailing address and telephone number.

(d) *Material to be in English language.* The petition shall be written in the English language. If any part of the accompanying material is written in a language other than English, it shall be accompanied by an accurate and complete English translation.

(e) *Format for data submission.* Data and information submitted in support of a petition shall be on separate sheets or sets of sheets of paper, suitably identified. If an item of data has already been submitted to the Agency, the petitioner may cite it rather than resubmitting it. The data shall be submitted in the manner specified by § 158.32 of this chapter.

(f) *Confidentiality of data and information in petition, amendment, or supplement—(1) Asserting confidentiality claims.* A petitioner may assert a claim that data and information in a petition, or any amendment or supplement to a petition, other than the summary described in § 177.102(j), are entitled to confidential treatment under part 2 of this chapter. To assert such a claim,

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the petitioner must mark those portions of the petition, amendment, or supplement, and those portions of any data and information submitted in support of the petition, amendment, or supplement, with the words “trade secret,” “proprietary,” or other words that indicate the data or information are claimed to be confidential business information. If the data and information have also been submitted to EPA under FIFRA, the person shall assert the confidentiality claim in accordance with § 158.33 of this chapter.

(2) *Effect of asserting confidentiality claim.* If a petitioner asserts a confidentiality claim in accordance with this paragraph for any data or information in a petition, amendment, or supplement, the Agency will disclose that data or information only in accordance with parts 2, 158, 178, and 179, of this chapter, and FIFRA and FFDCa, as applicable.

(3) *Failure to assert confidentiality claim.* If a petitioner does not assert a claim that specific data and information in a petition, or any amendment or supplement to a petition, are entitled to confidential treatment under part 2 of this chapter in accordance with paragraph (e)(1) of this section at the time of submission of the petition, amendment, or supplement, the Agency will treat that data and information as available for disclosure to the public without further notice to the petitioner.

§ 177.84 Deficient or incomplete petitions.

(a) After a preliminary review of the petition, the Administrator may notify the petitioner that the Agency has found the petition to be incomplete or deficient, i.e., that it does not comply with the requirements of § 177.102 or § 177.105, and that it will not be accepted for detailed review.

(b) A petitioner who receives a notice under paragraph (a) of this section may supplement the petition, in which case the Agency shall conduct a further preliminary review of the petition as supplemented and take action under paragraph (a) of this section or under § 177.86.

§ 177.86 Acceptance for review.

Unless the Administrator notifies the petitioner under § 177.84 that the petition is incomplete or deficient, the Administrator shall accept the petition for detailed review.

§ 177.88 Publication of notice.

Within 30 days of acceptance of a petition for detailed review, the Administrator shall publish in the FEDERAL REGISTER a notice which includes the name of the petitioner and the summary submitted in accordance with § 177.102(j).

§ 177.92 Amendments or supplements to petitions.

After a notice of a petition has been published, the petitioner may submit additional information or data in support of the petition, or may amend the petition. Any such submission or amendment shall be accompanied by an informative summary of its contents that may be published in the FEDERAL REGISTER. The Administrator shall publish a notice in the FEDERAL REGISTER to supplement the notice published under § 177.88 if:

(a) The petitioner seeks to amend the petition by:

(1) Increasing a requested tolerance, by identifying any additional food additive or additional pesticide residues to which the requested food additive regulation would apply.

(2) Identifying any additional processed food to which the requested food additive regulation would apply.

(3) Changing the method for detecting or measuring pesticide residues to be used for enforcement purposes.

(b) The Administrator finds that publication of such a notice otherwise would be in the public interest.

§ 177.98 Withdrawal of petitions.

A petitioner may withdraw a petition. The Agency may retain a copy of a withdrawn petition and any supporting data and information.

§ 177.99 Demand for action.

A petitioner may demand action on a petition if the Administrator has not acted on the petition within the timeframes in FFDCa section 409(c)(2).

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Upon receipt of such a demand, the Administrator shall take appropriate action under FFDCA section 409(c)(1).

Subpart F—Submission of Scientific and Technical Information

§ 177.102 Data and information required to support petition to establish a food additive regulation, to increase a tolerance, or to remove a condition on use.

A petition to establish a food additive regulation, or to modify a food additive regulation by increasing a tolerance for a pesticide residue in or on a processed food or by removing any other condition of use of a food additive, shall include the following data and information:

(a)(1) The name and composition of the food additive that is a subject of the petition, and the chemical composition of each component of the food additive.

(2) The name, chemical identity, and composition of each pesticide residue that is a subject of the petition.

(3) The identity of the processed food(s) in question.

(b) A statement of any conditions of use proposed for the food additive, including all directions, recommendations, and suggestions proposed regarding the use of the food additive, i.e., the amount, frequency, method, and time of application or other use, and a copy of its proposed labeling.

(c) Full reports of investigations made with respect to the toxicity of the food additive and of its safety for the proposed use, including full information as to the methods and controls used in conducting such investigations.

(d) The results of tests to determine the identity and amount of pesticide residues in or on the processed food resulting from the proposed use of the food additive, including a description of the analytical methods used, and a description of practicable methods for measuring such pesticide residues.

(e) Full reports of investigations made with respect to the toxicity of such pesticide residues, including full information as to the methods and controls used in conducting such investigations.

(f) All relevant data bearing on the physical or other technical effects such food additive is intended to produce, and the quantity of such food additive required to produce such effect.

(g) The terms of each food additive regulation proposed.

(h) Any other information relevant to the approval of the petition known to the petitioner that is unfavorable to the petition.

(i) A statement of why, in the petitioner's opinion, it would be reasonable for the Administrator to approve the petition, taking into account the terms of the FFDCA and FIFRA, this part, the petition, the data and information submitted or cited in support of the petition, and other information available to the Agency.

(j) An informative summary of the petition and of the data, information, and arguments submitted or cited in support of the petition, and a statement that the petitioner agrees that such summary or any information it contains may be published as a part of the notice to be furnished to the public under § 177.88 or as part of a proposal under § 177.130. The summary need not refer to any method or process that is entitled to protection as a trade secret under FFDCA section 301(j).

[55 FR 50288, Dec. 5, 1990, as amended at 58 FR 34203, June 23, 1993]

§ 177.105 Data and information required to support petition to revoke a food additive regulation, to decrease a tolerance, or to add a condition on use.

A petition to revoke a food additive regulation, or to modify such a regulation by decreasing a tolerance for a pesticide residue in or on a processed food or by adding a condition on the use of a food additive, shall include:

(a) The data and information required by § 177.102(a), (b), (g), (h), and (i).

(b) Such data and information of the types described in § 177.102(c), (d), (e), and (f) as the petitioner chooses to submit.

(c) Information showing what changes, if any, petitioner believes would have to be made in associated registrations of pesticides under

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FIFRA or in associated tolerance regulations issued under FFDCA section 408 if the petition were granted.

[55 FR 50288, Dec. 5, 1990, as amended at 58 FR 34203, June 23, 1993]

§ 177.110 Additional data requirements; waiver of requirements.

(a) The Administrator may require or occasion a petitioner to submit data or information other than that described by this part only if the Administrator finds such data or information to be necessary for the evaluation of the petition.

(b) The Administrator may waive a requirement imposed by this part for the submission of data or information if the Administrator finds such data or information to be unnecessary for the evaluation of the petition.

[55 FR 50288, Dec. 5, 1990, as amended at 58 FR 34203, June 23, 1993]

§ 177.116 Sample of food additive.

The Agency may require the petitioner to submit a sample of the food additive or pesticide residue that is a subject of the petition. The Agency shall specify in such request the quantity which it requires.

[55 FR 50288, Dec. 5, 1990, as amended at 58 FR 34203, June 23, 1993]

Subpart G—Administrative Actions

§ 177.125 Action after review.

(a) After a petition has been accepted for detailed review, the Administrator shall review the petition, the accompanying data and information, and other pertinent data or information available to the Administrator.

(b) Upon completion of such review, the Administrator shall determine, in accordance with the Act, whether to issue an order that establishes, modifies, or revokes a food additive regulation (whether or not in accord with the action proposed by the petitioner), whether to issue an order denying the petition, or whether to publish a proposed food additive regulation and request public comment thereon under § 177.130.

(c) The Administrator shall publish in the FEDERAL REGISTER such order or proposed regulation. An order pub-

lished under this section shall describe briefly how to submit objections and requests for a hearing under part 178 of this chapter.

§ 177.130 Issuance of proposed rule on Administrator's initiative or in response to petition, and final action on proposal.

(a) The Administrator may publish in the FEDERAL REGISTER a proposal to establish a food additive regulation or to modify or revoke an existing food additive regulation, on his or her own initiative or in response to a petition.

(b) The Administrator shall provide a period of not less than 30 days for persons to comment on the proposed regulation.

(c) After reviewing any timely comments made, the Administrator may by order establish, modify, or revoke a food additive regulation, or may by order decide that no final action on the proposal is warranted. Each such order and each such regulation shall be published in the FEDERAL REGISTER. An order published under this section shall state that objections and requests for a hearing may be filed as prescribed by part 178 of this chapter.

§ 177.135 Effective date of regulation.

Any final regulation issued under § 177.125 or § 177.130 shall be effective on the date of publication in the FEDERAL REGISTER unless otherwise provided in the regulation. The Administrator, in his or her sole discretion, may stay the effective date of the regulation if an adversely affected person files an objection under part 178 of this chapter.

Subpart H—Judicial Review

§ 177.140 Judicial review.

The FFDCA does not provide for judicial review of an order or regulation issued under this part or of a denial of a petition under this part. However, if an objection to such action is submitted to the Administrator in the manner prescribed by part 178 of this chapter, judicial review may be obtained of the Administrator's action on the objection. (See FFDCA sections 409(f) and (g).)

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PART 178—OBJECTIONS AND REQUESTS FOR HEARINGS

Subpart A—General Provisions

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178.3 Definitions.

Subpart B—Procedures for Filing Objections and Requests for Hearings

- 178.20 Right to submit objections and requests for a hearing.
- 178.25 Form and manner of submission of objections.
- 178.27 Form and manner of submission of request for evidentiary hearing.
- 178.30 Response by Administrator to objections and to requests for hearing.
- 178.32 Rulings on requests for hearing.
- 178.35 Modification or revocation of regulation.
- 178.37 Order responding to objections on which a hearing was not requested or was denied.

Subpart C—[Reserved]

Subpart D—Judicial Review

178.65 Judicial review.

178.70 Administrative record.

AUTHORITY: 21 U.S.C. 346a, 348, 371(a); Reorg. Plan No. 3 of 1970.

SOURCE: 55 FR 50291, Dec. 5, 1990, unless otherwise noted.

Subpart A—General Provisions

§ 178.3 Definitions.

For the purposes of this part:

Administrator means the Administrator of the Agency, or any officer or employee of the Agency to whom the Administrator delegates the authority to perform functions under this part.

Agency means the United States Environmental Protection Agency.

Assistant Administrator means the Agency's Assistant Administrator for Prevention, Pesticides and Toxic Substances, or any officer or employee of the Agency's Office of Prevention, Pesticides and Toxic Substances to whom the Assistant Administrator delegates the authority to perform functions under this part.

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FFDCA means the Federal Food, Drug, and Cosmetic Act, as amended, 21 U.S.C. 301–392.

[55 FR 50291, Dec. 5, 1990, as amended at 57 FR 28087, June 24, 1992]

Subpart B—Procedures for Filing Objections and Requests for Hearing

§ 178.20 Right to submit objections and requests for a hearing.

(a) On or before the 30th day after the date of publication in the FEDERAL REGISTER of an order under part 177 or part 180 of this chapter establishing, modifying, or revoking a regulation, or an order under part 177 of this chapter denying all or any portion of a petition, a person adversely affected by such order or petition denial may submit, in accordance with § 178.25, one or more written objections to the order (or to the action that is the subject of the order).

(b) A person may include with any such objection a written request for an evidentiary hearing on such objection in accordance with § 178.27.

(c) A person who submits objections need not request a hearing. For instance, if the person's objections are of a purely legal or policy nature, a hearing request would be inappropriate; the purpose of an evidentiary hearing is to resolve factual disputes. The Administrator will rule on the objections, whether or not a hearing is requested.

(d) As a matter of discretion, the Administrator may order a hearing on an objection even though no person has requested a hearing.

§ 178.25 Form and manner of submission of objections.

(a) To be considered by the Administrator, an objection must:

- (1) Be in writing.
- (2) Specify with particularity the provision(s) of the order, regulation, or denial objected to, the basis for the objection(s), and the relief sought.
- (3) Be signed by the objector.
- (4) State the objector's name and mailing address.

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(5) Be accompanied by the fee prescribed by § 180.33(i) of this chapter, if the objection is to an order or regulation issued under part 180 of this chapter.

(6) Be submitted to the hearing clerk.

(7) Be received by the hearing clerk not later than the close of business of the 30th day following the date of the publication in the FEDERAL REGISTER of the order to which the objection is taken (or, if such 30th day is a Saturday, Sunday, or Federal holiday, not later than the close of business of the next government business day after such 30th day).

(b) Submissions to the hearing clerk shall be made as follows:

(1) Mailed submissions should be addressed to: Office of the Hearing Clerk (A-110), U.S. Environmental Protection Agency, 401 M St., SW., Washington, DC 20460.

(2) For personal delivery, the Office of the Hearing Clerk is located at: room M3708, Waterside Mall, 401 M St., SW., Washington, DC.

§ 178.27 Form and manner of submission of request for evidentiary hearing.

To be considered by the Administrator, a request for an evidentiary hearing must meet the criteria in § 178.32, and must:

(a) Be submitted as a part of, and specifically request an evidentiary hearing on an objection that complies with the requirements of § 178.25.

(b) Include a statement of the factual issue(s) on which a hearing is requested and the requestor's contentions on each such issue.

(c) Include a copy of any report, article, survey, or other written document (or the pertinent pages thereof) upon which the objector relies to justify an evidentiary hearing, unless the document is an EPA document that is routinely available to any member of the public.

(d) Include a summary of any evidence not described in paragraph (a)(3) of this section upon which the objector relies to justify an evidentiary hearing.

(e) Include a discussion of the relationship between the factual issues and the relief requested by the objection.

§ 178.30 Response by Administrator to objections and to requests for hearing.

The Administrator will respond to objections, and to requests for a hearing on such objections, as set forth in this section.

(a) *Denial of objections that are improperly submitted or that seek an unavailable form of relief.* The Administrator will by order issued under § 178.37 deny each objection and each request for a hearing that is included with such an objection, if:

(1) The objection is found not to conform to § 178.25.

(2) The action requested by the objection is inconsistent with any provision of FFDCA.

(3) The action requested by the objection is inconsistent with any generic, e.g., non-chemical specific, interpretation of a provision of FFDCA in any regulation in this chapter (the proper procedure in such a case is for the person to petition for an amendment of the regulation involved).

(b) *Denial of improperly submitted requests for hearing.* The Administrator will then determine whether any objection that has not been denied under paragraph (a) of this section was accompanied by a request for an evidentiary hearing that conforms to § 178.27. The Administrator will deny under § 178.37 each request that does not conform to § 178.27.

(c) *Grouping of certain related objections.* If the Administrator then finds (1) That two or more undenied objections are substantially similar, or are related in such a way that any judicial review of the Administrator's action on those objections should occur at the same time, and (2) that one or more of those objections was accompanied by an undenied request for an evidentiary hearing on that objection, the Administrator will treat those objections as a group and will rule on them only after ruling under § 178.32 on the associated request for hearing.

(d) *Rulings on objections for which a request for hearing has been granted.* If the Administrator rules under § 178.32 that an evidentiary hearing should be held on an objection, the Administrator will resolve the issues raised by any other

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objection grouped with it under paragraph (c) of this section in conjunction with the evidentiary hearing upon which the hearing request was granted, unless the Administrator for good cause determines otherwise.

(e) *Rulings on objections for which no request for hearing was received, or for which each request for hearing was denied.* Except as provided in paragraphs (c) and (d) of this section, if no hearing was requested on an objection, or if each such request that was made is denied under the criteria of paragraphs (a) or (b) of this section or § 178.32(b), the Administrator will rule on the objection under § 178.37.

§ 178.32 Rulings on requests for hearing.

(a) In the case of each request for an evidentiary hearing that was not denied under § 178.30(a) or (b), the Administrator will determine whether such a hearing on one or more of the objections is justified, and will publish in the FEDERAL REGISTER the determination in an order issued under § 178.37 or a Notice of Hearing issued under § 179.20 of this chapter. If some requests for a hearing are denied and others pertaining to the same order or regulation are granted, the denial order and the hearing notice may be combined into a single document and shall be issued at the same time unless the Administrator for good cause determines otherwise.

(b) A request for an evidentiary hearing will be granted if the Administrator determines that the material submitted shows the following:

(1) There is a genuine and substantial issue of fact for resolution at a hearing. An evidentiary hearing will not be granted on issues of policy or law.

(2) There is a reasonable possibility that available evidence identified by the requestor would, if established, resolve one or more of such issues in favor of the requestor, taking into account uncontested claims or facts to the contrary. An evidentiary hearing will not be granted on the basis of mere allegations, denials, or general descriptions of positions and contentions, nor if the Administrator concludes that the data and information submitted, even if accurate, would be insufficient to

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justify the factual determination urged.

(3) Resolution of the factual issue(s) in the manner sought by the person requesting the hearing would be adequate to justify the action requested. An evidentiary hearing will not be granted on factual issues that are not determinative with respect to the action requested. For example, a hearing will not be granted if the Administrator concludes that the action would be the same even if the factual issue were resolved in the manner sought.

(c) Where appropriate, the Administrator will make rulings on any issues raised by an objection which are necessary for resolution prior to determining whether a request for an evidentiary hearing should be granted.

§ 178.35 Modification or revocation of regulation.

(a) If the Administrator determines upon review of an objection or request for hearing that the regulation in question should be modified or revoked, the Administrator will by order publish appropriate rulemaking documents in the FEDERAL REGISTER.

(b) The Administrator will provide an opportunity for objections and requests for hearing on such rule to the extent required by law. Such objections to the modification or revocation of the regulation, and requests for a hearing on such objections, may be submitted under §§ 178.20 through 178.27.

(c) Objections and requests for hearing that are not affected by the modification or revocation will remain on file and be acted upon in accordance with this part.

§ 178.37 Order responding to objections on which a hearing was not requested or was denied.

(a) The Administrator will publish in the FEDERAL REGISTER an order under FFDCA section 408(d)(5) or 409(f)(1) setting forth the Administrator's determination on each denial of a request for a hearing, and on each objection submitted under § 178.20 on which:

(1) A hearing was not requested.

(2) A hearing was requested, but denied.

(b) Each order published under paragraph (a) of this section must state the

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reasons for the Administrator's determination. If the order denies a request for a hearing on the objection, the order also must state the reason for that denial (e.g., why the request for a hearing did not conform to § 178.27, or why the request was denied under § 178.32).

(c) Each order published under paragraph (a) of this section must state its effective date, which must not be earlier than the 90th day after the order is published unless the order contains the Administrator's findings as to the existence of emergency conditions that necessitate an earlier effective date.

Subpart C—[Reserved]

Subpart D—Judicial Review

§ 178.65 Judicial review.

An order issued under § 178.37 is final agency action reviewable in the courts as provided by FFDCA sections 408(i) or 409(g)(1), as of the date of entry of the order, which shall be determined in accordance with §§ 23.10 and 23.11 of this chapter. The failure to file a petition for judicial review within the period ending on the 60th day after the date of the entry of the order constitutes a waiver under FFDCA section 408(i) or 409(g)(1) of the right to judicial review of the order and of any regulation promulgated by the order.

§ 178.70 Administrative record.

(a) For purposes of judicial review, the record of an administrative proceeding that culminates in an order under § 178.37 consists of:

(1) The objection ruled on (and any request for hearing that was included with the objection).

(2) Any order issued under § 177.125 of this chapter to which the objection related, and:

(i) Any regulation or petition denial that was the subject of that order.

(ii) The petition to which such order responded.

(iii) Any amendment or supplement of the petition.

(iv) The data and information submitted in support of the petition.

(v) The notice of filing of the petition.

(3) Any order issued under § 177.130 of this chapter to which the objection related, the regulation that was the subject of that order, and each related Notice of Proposed Rulemaking.

(4) Any order issued under § 180.7(g) of this chapter to which the objection related, and:

(i) Any regulation or petition denial that was the subject of that order.

(ii) The petition to which such order responded.

(iii) Any amendment or supplement of the petition.

(iv) The data and information submitted in support of the petition.

(v) The notice of filing of the petition.

(5) Any order issued under § 180.29(f) of this chapter to which the objection related, the regulation that was the subject of that order, and each related Notice of Proposed Rulemaking.

(6) Any comments submitted by members of the public in response to the Notice of Filing or Notice of Proposed Rulemaking, any data or information submitted as part of the comments, the Administrator's response to comments and the documents or information relied on by the Administrator in issuing the regulation or order.

(7) All other documents or information submitted to the docket for the rulemaking in question.

(8) The order issued under § 178.37.

(b) The record will be closed as of the date of the Administrator's decision unless another date for closing of the record is specified in the order issued under § 178.37.

PART 179—FORMAL EVIDENTIARY PUBLIC HEARING

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AUTHORITY: 21 U.S.C. 346a, 348, 371(a); Reorg. Plan No. 3 of 1970.

SOURCE: 55 FR 50293, Dec. 5, 1990, unless otherwise noted.

Subpart A—General Provisions

§ 179.3 Definitions.

Administrator means the Administrator of the Agency, or any officer or employee of the Agency to whom the Administrator has delegated the authority to perform functions under this part.

Agency means the United States Environmental Protection Agency.

Assistant Administrator means the Agency's Assistant Administrator for Prevention, Pesticides and Toxic Substances, or any officer or employee of OPPTS to whom the Assistant Administrator has delegated the authority to perform functions under this part.

FFDCA means the Federal Food, Drug, and Cosmetic Act, as amended, 21 U.S.C. 301–392.

FIFRA means the Federal Insecticide, Fungicide, and Rodenticide Act, 7 U.S.C. 136–136y.

Judicial Officer means a person who has been designated by the Administrator under § 179.117 to serve as a judicial officer.

Office of the Administrator means the Agency's Administrator and Deputy Administrator and their immediate staff, including the judicial officer.

OPPTS means the Agency's Office of Prevention, Pesticides and Toxic Substances.

[55 FR 50293, Dec. 5, 1990, as amended at 57 FR 28087, June 24, 1992]

§ 179.5 Other authority.

Questions regarding procedural matters arising under this part or part 178 of this chapter that are not addressed by this part or part 178 of this chapter shall be resolved by the Administrator or presiding officer, as appropriate.

Subpart B—Initiation of Hearing

§ 179.20 Notice of hearing.

(a) If the Administrator determines under § 178.32 of this chapter that a hearing is justified on any issue, the Administrator will file with the hearing clerk and publish in the FEDERAL REGISTER a Notice of Hearing. The Notice of Hearing will set forth:

(1) The docket number for the hearing.

(2) Each order, regulation, or petition denial that is the subject of the hearing, and a statement specifying any part of any such regulation or order that has been stayed in the Administrator's discretion.

(3) The identity of each person whose request for a hearing has been granted, and of any other person whose petition under § 177.81 or § 180.7 of this chapter

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occasioned the order that the hearing concerns.

(4) A statement of the issues of fact on which a hearing has been found to be justified.

(5) A statement of the objections whose resolution depends on the resolution of those issues of fact.

(6) A statement that the presiding officer will be designated by the Chief Administrative Law Judge.

(7) The time within which notices of participation should be filed under §179.42.

(8) The date, time, and place of the preliminary conference, or a statement that the date, time, and place will be announced in a later notice, and the place of the hearing.

(9) The time within which parties must submit written information and views under §179.83.

(10) Designations with respect to separation of functions published under §179.24(b)(2).

(b) The statement of the issues of fact on which a hearing has been justified determines the scope of the hearing and the matters on which evidence may be introduced. The issues may be revised by the presiding officer. A party may obtain interlocutory review by the Administrator of a decision by the presiding officer to revise the issues to include an issue on which the Administrator has not granted a request for a hearing or to eliminate an issue on which a request for a hearing has been granted.

(c) A hearing is deemed to begin on the date of publication of the Notice of Hearing.

§179.24 Ex parte discussions; separation of functions.

(a) Any person may meet or correspond with any officer or employee of the Agency concerning a matter under parts 177, 178, or 180 of this chapter prior to publication of a Notice of Hearing under §179.20.

(b) Upon publication of a Notice of Hearing, the following separation of function rules apply:

(1) OPPTS, as a party to the hearing, is responsible for presentation of its position at the hearing and in any pleading or oral argument before the Administrator. The Pesticides and

Toxic Substances Division of the Office of General Counsel shall advise and represent OPPTS with respect to the hearing and in any pleading or oral argument before the Administrator. An employee or other representatives of OPPTS may not participate in or advise the Administrator or any of his representatives on any decision under this part, other than as witness or counsel in public proceedings, except as provided by paragraph (b)(2) of this section. There is to be no other communication between representatives of OPPTS and the presiding officer or any representative of the Office of the Administrator concerning the merits of the hearing until after issuance of the decision of the Administrator.

(2) The Administrator may designate persons who otherwise would be regarded as representatives of OPPTS, to serve as representatives of the Office of the Administrator on matters pertaining to the hearing, and may also designate persons who otherwise would be regarded as representatives of the Office of the Administrator to serve as representatives of OPPTS. Such designations will be included in the Notice of Hearing published under §179.20.

(3) The Office of the Administrator is responsible for the final decision of the matter, with the advice and participation of anyone in the Agency other than representatives of OPPTS.

(c) Between the date of publication of the Notice of Hearing and the date of the Administrator's final decision on the matter, communication concerning the matter involved in the hearing will be restricted as follows:

(1) No person outside the Agency may have an ex parte communication with the presiding officer or any representative of the Office of the Administrator concerning the merits of the hearing. Neither the presiding officer nor any representative of the Office of the Administrator may have any ex parte communication with a person outside the Agency concerning the merits of the hearing.

(2) A written communication contrary to this section must be immediately served on all other participants and filed with the hearing clerk by the presiding officer at the hearing, or by the Administrator, depending on who

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received the communication. An oral communication contrary to this section must be immediately recorded in a written memorandum and similarly served on all other parties and filed with the hearing clerk. A person, including a representative of a party in the hearing, who is involved in an oral communication contrary to this section, must, to the extent necessary to determine the substance of the communication, be made available for cross-examination during the hearing with respect to the substance of that communication. Rebuttal testimony pertinent to a written or oral communication contrary to this section will be permitted.

(d) The prohibitions specified in paragraph (c) of this section also apply to a person who, in advance of the publication of a Notice of Hearing, knows that the notice has been signed. The prohibitions become applicable to such a person as of the time the knowledge is acquired.

(e) The making of a communication contrary to this section may, consistent with the interests of justice and the policies underlying the FFDCA, result in a decision adverse to the person knowingly making or causing the making of the communication.

[55 FR 50293, Dec. 5, 1990, as amended at 57 FR 28087, June 24, 1992]

Subpart C—Participation and Appearance; Conduct

§ 179.42 Notice of participation.

(a) OPPTS shall be a party to a hearing under this part. Any other person may participate as a party in such a hearing to the extent specified by this section.

(b) A person desiring to participate in a hearing must file with the hearing clerk within 30 days after publication of the Notice of Hearing under § 179.20, a Notice of Participation in the following form:

NOTICE OF PARTICIPATION

Docket No. _____
Under 40 CFR part 179, please enter the participation of: _____
(Name) _____
(Street address) _____

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(City and State) _____

(Telephone number) _____
Service on the above will be accepted by: _____

(Name) _____
(Street address) _____

(City and State) _____

(Telephone number) _____
Signed: _____
Date: _____

(c) An amendment to a Notice of Participation must be filed with the hearing clerk and served on all parties.

(d) No person may participate in a hearing who has not filed a written Notice of Participation or whose participation has been stricken under paragraph (f) of this section.

(e) The presiding officer may permit the late filing of a Notice of Participation upon a showing of good cause. Arrangements and agreements previously made in the proceeding shall apply to any party admitted late.

(f) The presiding officer may strike the participation of a person for failure to comply with any requirement of this subpart. Any person whose participation is stricken may obtain interlocutory review thereof by the Administrator.

[55 FR 50293, Dec. 5, 1990, as amended at 57 FR 28087, June 24, 1992]

§ 179.45 Appearance.

(a) A party to a hearing may appear in person or by counsel or other representative in the hearing.

(b) The presiding officer may strike a person's right to appear in the hearing for violation of the rules of conduct in § 179.50.

§ 179.50 Conduct at oral hearings or conferences.

The parties and their representatives must conduct themselves with dignity and observe the same standards of practice and ethics that would be required of parties in a judicial proceeding. Disrespectful, disorderly, or contumacious language or conduct, refusal to comply with directions, use of dilatory tactics, or refusal to adhere to reasonable standards of orderly and ethical conduct during any hearing

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constitute grounds for immediate exclusion from the proceeding by the presiding officer.

Subpart D—Presiding Officer

§ 179.60 Designation and qualifications of presiding officer.

The presiding officer in a hearing will be an administrative law judge qualified under 5 U.S.C. 3105 and designated by the Agency's chief administrative law judge.

§ 179.70 Authority of presiding officer.

The presiding officer shall conduct the hearing in a fair and impartial manner subject to the precepts of the Administrative Procedure Act. The presiding officer has all powers necessary to conduct a fair, expeditious, and orderly hearing, including the power to:

(a) Specify and change the date, time, and place for conferences, and issue and modify a schedule for the hearing.

(b) Establish an orderly manner for developing evidentiary facts at preliminary conferences under § 179.87, for making rulings on oral testimony and cross-examination under § 179.93, and for making other similar evidentiary rulings in accord with these regulations.

(c) Prepare statements of the areas of factual disagreement among the participants.

(d) Hold conferences to settle, simplify, or determine the issues in a hearing or to consider other matters that may expedite the hearing.

(e) Administer oaths and affirmations.

(f) Control the course of the hearing and the conduct of the participants.

(g) Examine witnesses and strike their testimony if they fail to respond fully to proper questions.

(h) Rule on, admit, exclude, or limit evidence.

(i) Set the time for filing pleadings.

(j) Rule on motions and other procedural matters.

(k) Rule on motions for summary decision under § 179.90.

(l) Conduct the hearing in stages if the number of parties is large or the issues are numerous and complex.

(m) Strike the participation of any person under § 179.42(f), or exclude any person from the hearing under § 179.50, or take other reasonable disciplinary action.

(n) Take any other action for the fair, expeditious, and orderly conduct of the hearing that is not in conflict with law or these rules.

§ 179.75 Disqualification of deciding officials.

(a) A deciding official in a hearing under this part (including, e.g., the Administrator, judicial officer, or presiding officer) shall not decide any matter in connection with which he or she has a financial interest in any of the parties, or a relationship that would make it otherwise inappropriate for him or her to act.

(b) A party may request that a deciding official disqualify himself/herself and withdraw from the proceeding. The party may obtain interlocutory review by the Administrator of a denial of such a request made to any deciding official other than the Administrator.

(c) A deciding official who is aware of grounds for disqualification shall withdraw from the proceeding.

§ 179.78 Unavailability of presiding officer.

If the presiding officer is unable to act for any reason, his or her powers with respect to the hearing will be assigned by the Chief Administrative Law Judge to another presiding officer. The substitution will not affect the hearing, i.e., the testimony of the witnesses will not be taken anew except as the new presiding officer may order upon the request of a party where the credibility of a witness is of particular importance.

Subpart E—Hearing Procedures

§ 179.80 Filing and service.

(a) All documents required or authorized to be filed by a party to a hearing under this part regarding any matter to be decided by the presiding officer, the judicial officer, or the Administrator shall be filed in triplicate with the hearing clerk, in the manner specified by § 178.25(b) of this chapter. Each

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filing shall prominently note the docket number. To determine compliance with deadlines in a hearing, a document is considered filed on the date it is actually received by the hearing clerk. When this part allows a response by a party to a submission and prescribes a period of time for the filing of the response, an additional 3 days are allowed for the filing of the response if the submission is served by mail.

(b) Each notice, order, decision, or other document issued under this part by the presiding officer, the judicial officer, or the Administrator shall be filed with the hearing clerk. The hearing clerk shall immediately serve all parties with a copy of such order, decision, or other document.

(c) At the same time that a party files any document with the hearing clerk, the party shall serve a copy thereof on each other party, unless the presiding officer specifies otherwise. Each filing shall be accompanied by a certificate of service, or a statement that service is not required. Service on a party is accomplished by mailing a submission to the address shown in the Notice of Participation or by personal delivery.

(d) The presiding officer may grant an extension of time for the filing of any pleading, document, or motion (1) Upon timely motion by a party, for good cause shown, and after consideration of prejudice to other parties, or (2) upon the presiding officer's own motion.

(e) A motion by a party for an extension may only be made after serving a copy of the motion on all other parties, unless the movant can show good cause why doing so is impracticable. The motion shall be filed in advance of the date on which the pleading, document, or motion is due to be filed, unless the failure of the party to make a timely motion for an extension was the result of excusable neglect.

§ 179.81 Availability of documents.

(a) All orders, decisions, pleadings, transcripts, exhibits, and other docket entries shall become part of the official docket and shall be retained by the hearing clerk. Except as otherwise provided by paragraph (b) of this section or part 2 of this chapter, all documents

that are a part of the official docket shall be made available to the public for reasonable inspection during Agency business hours. Copies of such documents may be obtained by members of the public as provided in part 2 of this chapter.

(b) Whenever any information or data are required to be produced or examined in a hearing and any party makes a business confidentiality claim regarding such information under part 2 of this chapter, the availability of such information to the other parties or to the public shall be determined by EPA in accordance with part 2 of this chapter, including specifically the procedures and principles set forth in § 2.301(g)(3) and (g)(4) of this chapter. The presiding officer shall make the determinations with respect to the matters referred to in § 2.301(g)(3) and (g)(4) to the extent provided, and shall take such steps as are necessary for the protection of information entitled to confidential treatment or otherwise exempt from public disclosure, including issuance of protective orders to parties or taking testimony in a closed hearing.

§ 179.83 Disclosure of data and information.

(a) Within 60 days of the publication of the Notice of Hearing under § 179.20, or, if no party will be prejudiced, within another period set by the presiding officer, the Assistant Administrator shall file with the hearing clerk, in accordance with § 179.80, the following documents numbered and organized in the manner prescribed by the presiding officer:

(1) The portions of the administrative record of the proceeding developed under part 178 of this chapter, and under parts 177 or 180 of this chapter, that are relevant to the issues in the hearing.

(2) All documents in the files of OPPTS containing factual information or expert opinion, whether favorable or unfavorable to the position of OPPTS, which relate to the issues involved in the hearing. For purposes of this paragraph, "files" means the principal files in OPPTS in which documents relating to each of the issues in the hearing are ordinarily kept. Documents that are

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internal memoranda reflecting the deliberative process, or are attorney work product, or were prepared specifically for use in connection with the hearing, are not required to be submitted.

(3) All other documentary data and information upon which OPPTS plans to rely upon in the hearing.

(4) A narrative position statement on the factual issues in the Notice of Hearing and the nature of the supporting evidence that OPPTS intends to introduce.

(5) A signed statement that, to the best knowledge and belief of the Assistant Administrator, the submission complies with this section.

(b) Within 70 days of the publication of the Notice of Hearing or, if no party will be prejudiced, within another period of time set by the presiding officer, each party other than OPPTS shall submit to the hearing clerk in accordance with § 179.80 the following documents, numbered and organized in the manner prescribed by the presiding officer:

(1) Any objections that the administrative record filed under paragraph (a)(1) of this section is incomplete.

(2) All documents (other than those filed under paragraph (a) of this section) in the party's files containing factual information or expert opinion, whether favorable or unfavorable to the party's position, that relates to the issues involved in the hearing. For purposes of this paragraph, "files" means the party's principal files in which documents relating to each of the issues in the hearing are ordinarily kept. Documents that are attorney work product, or were prepared specifically for use in connection with the hearing, are not required to be submitted.

(3) All other documentary data and information the party plans to rely upon in the hearing.

(4) A narrative position statement on the factual issues in the Notice of Hearing and the nature of the supporting evidence the party intends to introduce.

(5) A signed statement that, to the best knowledge and belief of the party, the submission complies with this section.

(c) Submissions required by paragraphs (a) and (b) of this section may be supplemented later in the proceeding, with the approval of the presiding officer, upon a showing that the material contained in the supplement was not reasonably known by or available to the party when the submission was made or that the relevance of the material contained in the supplement could not reasonably have been foreseen.

(d) If a party fails to comply substantially and in good faith with this section, the presiding officer may infer that such failure was for the purpose of withholding information that is unfavorable to the party's position, and may make such further adverse inferences and findings with respect to such failure as are warranted.

(e) Parties may reference each other's submissions. To reduce duplicative submissions, parties are encouraged to exchange and consolidate lists of documentary evidence. If a particular document is bulky or in limited supply and cannot reasonably be reproduced, and it constitutes relevant evidence, the presiding officer may authorize submission of a reduced number of copies.

(f) The presiding officer will rule on questions relating to this section.

[55 FR 50293, Dec. 5, 1990, as amended at 57 FR 28087, June 24, 1992]

§ 179.85 Purpose of preliminary conference.

The presiding officer will conduct one or more preliminary conferences for the following purposes:

(a) To determine the areas of factual disagreement to be considered at the hearing.

(b) To establish any necessary procedural rules to control the course of the hearing and the schedule for the hearing.

(c) To group parties with substantially similar interests, for purposes of presenting evidence, making objections, cross-examination, and presenting oral argument.

(d) To obtain stipulations and admissions of facts.

(e) To take other action that may expedite the hearing.

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§ 179.86 Time and place of preliminary conference.

A preliminary conference will commence at the date, time, and place announced in the Notice of Hearing, or as otherwise specified by the Administrator or presiding officer in a subsequent notice. The preliminary conference may not commence until after expiration of the time for filing notices of participation under § 179.42. The presiding officer may specify that two or more such conferences shall be held.

§ 179.87 Procedures for preliminary conference.

Parties in a hearing must appear at the preliminary conference(s) prepared to present a position on the matters specified in § 179.85. A preliminary conference may be held by telephone, or other electronic means, if appropriate.

(a) To expedite the hearing, parties are encouraged to prepare in advance for the conference. Parties should cooperate with each other and should request information and begin preparation of testimony at the earliest possible time. Failure of a party to appear at the preliminary conference or to raise matters that could reasonably be anticipated and resolved at that time will not delay the progress of the hearing, and constitutes a waiver of the rights of the party regarding such matters as objections to the agreements reached, actions taken, or rulings issued. Such failure to appear may also be grounds for striking the party's participation under § 179.42(f).

(b) Each party shall bring to the preliminary conference the following specific information, which will be filed with the hearing clerk under § 179.80:

(1) Any additional information to supplement the submission which may have been filed under § 179.83, and/or which may be filed if approved under § 179.83(c).

(2) A list setting forth each person who has been identified as a witness whose oral or written testimony will be offered by the party at the hearing, with a full curriculum vitae for each and a summary of the expected testimony (including a list of the principal exhibits on which the witness will rely) or a statement as to when such a summary will be furnished. A party may

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amend its witness and document list to add, delete, or substitute witnesses or documents.

(c) The presiding officer may hold preliminary conferences off the record in an effort to reach agreement on disputed factual or procedural questions.

(d) The presiding officer shall issue and file under § 179.80 a written order reciting the actions taken at each preliminary conference and setting forth the schedule for the hearing. The order will control the subsequent course of the hearing unless modified by the presiding officer for good cause.

§ 179.89 Motions.

A motion, unless made in the course of a preliminary conference or a transcribed oral hearing before the presiding officer, must be filed in the manner prescribed by § 179.80 and include a draft order. A response may be filed within 10 days of service of a motion. The moving party has no right to reply, except as permitted by the presiding officer. The presiding officer shall rule upon the motion.

§ 179.90 Summary decisions.

(a) After the hearing commences, a party may file a written motion, with or without supporting affidavits or brief, for a summary decision on any issue in the hearing. Any other party may, within 10 days after service of the motion, which time may be extended for an additional 10 days for good cause shown, serve opposing affidavits or brief or countermove for summary decision. The presiding officer may set the matter for argument and call for the submission of briefs if not submitted by the parties.

(b) The presiding officer will grant the motion if the objections, requests for hearing, other pleadings, affidavits, and other material filed in connection with the hearing, or matters officially noticed, show that there is no genuine disagreement as to any material fact bearing on the issue and that a party is entitled to summary decision.

(c) Affidavits should set forth facts that would be admissible in evidence and show affirmatively that the affiant is competent to testify to the matters

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stated. When a properly supported motion for summary decision is made, a party opposing the motion may not rest upon mere allegations or denials or general descriptions of positions and contentions; affidavits or other responses must demonstrate specifically that there is a genuine issue of material fact for the hearing.

(d) Should it appear from the affidavits of a party opposing the motion that for sound reasons stated, facts essential to justify the opposition cannot be presented by affidavit, the presiding officer may deny the motion for summary decision, order a continuance to permit affidavits or additional evidence to be obtained, or issue other just order.

(e) If a summary decision is not rendered upon all issues or for all the relief asked, and evidentiary facts need to be developed, the presiding officer will issue an order specifying the facts that appear without substantial controversy and directing further evidentiary proceedings. The facts so specified will be deemed established.

(f) A party may obtain interlocutory review by the Administrator of a summary decision of the presiding officer.

§ 179.91 Burden of going forward; burden of persuasion.

(a) The party whose request for an evidentiary hearing was granted has the burden of going forward in the hearing with evidence as to the issues relevant to that request for a hearing.

(b) The party or parties who contend that a regulation satisfies the criteria of section 408 or 409 of the FFDCA has the burden of persuasion in the hearing on that issue, whether the proceeding concerns the establishment, modification, or revocation of a tolerance or food additive regulation.

§ 179.93 Testimony.

(a) The presiding officer will conduct such proceedings as are necessary for the taking of oral direct testimony and for the conduct of oral examination of witnesses by the parties. The presiding officer shall limit oral examination to prevent irrelevant, immaterial or unduly repetitious examination.

(b) Direct testimony shall be submitted in writing, except that the presid-

ing officer may order direct testimony to be presented orally in those unusual cases where the memory or demeanor of the witness is of importance. Written direct testimony shall be in the form of a verified statement of fact or opinion prepared by the witness, in narrative form or in question-and-answer form. Written direct testimony may incorporate exhibits. Such a verified statement or exhibit may not be admitted into evidence sooner than 14 days (or such other reasonable period as the presiding officer may order) after the witness has delivered to the presiding officer and each party a copy of the statement or exhibit. The admissibility of the evidence contained in such a statement is subject to the same rules as if such testimony had been given orally.

(c) Oral cross-examination of witnesses will be permitted. Each exhibit that a party intends to rely upon in cross-examining a witness shall be furnished to the other parties not later than 3 days (or such other reasonable period as the presiding officer may order) before such exhibit is used in the cross-examination.

(d) Witnesses shall give testimony under oath or affirmation.

§ 179.94 Transcripts.

(a) The hearing clerk shall make arrangements to have all oral testimony stenographically reported or recorded and transcribed, with evidence that is admitted in the form of written testimony or exhibits attached or incorporated as appropriate.

(b) Unless the presiding officer orders otherwise, parties shall have 15 days from the date that the transcript of particular oral testimony first becomes available to propose corrections in the transcript of that testimony. Corrections are permitted only for transcription errors. The presiding officer shall promptly order justified corrections.

(c) As soon as practicable after the taking of the last evidence, the presiding officer shall certify:

(1) That the original transcript is a true transcript of the oral testimony offered or received at the hearing, except in such particulars as the presiding officer specifies.

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(2) That the written testimony and exhibits accompanying the transcript are all the written testimony and exhibits introduced at the hearing, with such exceptions as the presiding officer specifies.

(3) The transcript with attached or incorporated material, as so certified by the presiding officer, shall be submitted to and filed by the hearing clerk under § 179.80.

(d) Copies of the transcript shall be available to the public in accordance with § 179.81; parties may make special arrangements through the hearing clerk to obtain copies on an ongoing, expedited basis.

§ 179.95 Admission or exclusion of evidence; objections; offers of proof.

(a) Written material identified as direct testimony or as an evidentiary exhibit and offered by a party in a hearing, and oral testimony, whether on direct or on cross-examination, is admissible as evidence unless the presiding officer excludes it (on objection of a party or on the presiding officer's own initiative) because it is irrelevant, immaterial, or unduly repetitive, or because its exclusion is necessary to enforce a specific requirement of this part relating to the admissibility of evidence.

(b) If a party objects to the admission or rejection of any evidence or to the limitation of the scope of any examination or cross-examination, the party shall state briefly the grounds for such objection. The transcript shall include any argument or debate thereon, unless the presiding officer, with the consent of all the parties, orders that such argument not be transcribed. The ruling and the reasons given therefor by the presiding officer on any objection shall be a part of the transcript. An automatic exception to that ruling will follow.

(c) Whenever evidence is deemed inadmissible, the party offering such evidence may make an offer of proof, which shall be included in the transcript. The offer of proof for excluded oral testimony shall consist of a brief statement describing the nature of the evidence excluded. If the evidence consists of a document or exhibit, it shall be inserted in the record in total. If the

Administrator in reviewing the record under § 179.112 decides that the presiding officer's ruling in excluding the evidence was erroneous and prejudicial, the hearing may be reopened to permit the taking of such evidence, or, where appropriate, the Administrator may evaluate the evidence and proceed to a final decision.

(d) Official notice may be taken of Agency proceedings, any matter that might be judicially noticed by the courts of the United States, or any other fact within the knowledge and experience of the Agency as an expert agency. Any party shall be given adequate opportunity to show that such facts are erroneously noticed by presenting evidence to the contrary.

§ 179.97 Conferences during hearing.

The presiding officer may schedule and hold conferences as needed to monitor the progress of the hearing, narrow and simplify the issues, and consider and rule on motions, requests, or other matters concerning the development of the evidence.

§ 179.98 Briefs and arguments.

(a) Promptly after the taking of evidence is completed, the presiding officer will announce a schedule for the filing of briefs. Briefs must include a statement of position on each issue, with specific and complete citations to the evidence and points of law relied on. Briefs must contain proposed findings of fact and conclusions of law.

(b) The presiding officer may, as a matter of discretion, permit oral argument after the briefs are filed.

Subpart F—Decisions and Appeals

§ 179.101 Interlocutory appeal from ruling of presiding officer.

(a) Except as provided in paragraph (b) of this section and in §§ 179.20(b), 179.42(f), 179.75(b), and 179.90(f), rulings of the presiding officer may not be appealed to the Administrator before the Administrator's consideration of the entire record of the hearing.

(b) A ruling of the presiding officer is subject to interlocutory appeal to the Administrator if the presiding officer certifies on the record or by document

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submitted under § 179.80 that immediate review is necessary to prevent exceptional delay, expense, or prejudice to any party or substantial harm to the public interest. When an order or ruling is not certified by the presiding officer, it shall be reviewed by the Administrator only upon appeal from the initial decision except when the Administrator determines upon the request of a party and in exceptional circumstances, that delaying review would be deleterious to vital public or private interests. Except in extraordinary circumstances, proceedings will not be stayed pending an interlocutory appeal. Where a stay is granted, a stay of more than 30 days must be approved by the Administrator.

(c) Ordinarily, the interlocutory appeal will be decided on the basis of the submission made to the presiding officer, but the Administrator may allow further briefs and oral arguments. Any oral argument will be transcribed and the transcript will be prepared and certified in the same manner as provided in § 179.94.

§ 179.105 Initial decision.

(a) After the filing of briefs and any oral argument, the presiding officer shall prepare and file an initial decision on the issues of fact in the hearing and the objections relating to those issues.

(b) The initial decision must be based on a fair evaluation of the entire record, and must contain:

(1)(i) A conclusion that no change is warranted in the order or regulation to which objection was taken; or

(ii) A conclusion that changes in the order or regulation are warranted, the language of the order or regulation as changed, and an effective date for the order or regulation as changed, which date must not be earlier than the 90th day after it is published unless the order contains findings as to the existence of emergency conditions that necessitate an earlier effective date.

(2) Findings of fact supported by reliable, probative and substantial evidence that has been found admissible by the presiding officer, and adequate citations to the record supporting those findings.

(3) Conclusions on legal and policy issues, if such conclusions are necessary to resolve the objections.

(4) A discussion of the reasons for the findings and conclusions, including a discussion of the significant contentions made by any party.

(c) Except as otherwise provided by order of the Administrator filed in accordance with § 179.80, after the initial decision is filed, the presiding officer has no further jurisdiction over the matter and any motions or requests filed with the hearing clerk will be decided by the Administrator.

(d) The initial decision becomes the final decision of the Administrator by operation of law unless a party files exceptions with the hearing clerk under § 179.107 or the Administrator files a notice of review under § 179.110.

§ 179.107 Appeal from or review of initial decision.

(a) A party may appeal an initial decision to the Administrator by filing exceptions with the hearing clerk, and serving them on the other parties, within the period specified in the initial decision. The period may not exceed 30 days, unless extended by the Administrator under paragraph (d) of this section.

(b) Exceptions must specifically identify alleged errors in the findings of fact or conclusions of law or policy in the initial decision and, if errors in the findings of fact are alleged, must provide supporting citations to evidence of record. Oral argument before the Administrator may be requested in the exceptions.

(c) Any reply to the exceptions is to be filed and served within the timeperiod specified in the initial decision. The timeperiod may not exceed 30 days after the end of the period (including any extensions) for filing exceptions, unless extended by the Administrator under paragraph (d) of this section.

(d) The Administrator may extend the time for filing exceptions or replies to exceptions for good cause shown.

(e) If the Administrator decides to hear oral argument, the parties will be informed of the date, time, and place; the amount of time allotted to each party, and the issues to be addressed.

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§ 179.110 Determination by Administrator to review initial decision.

Within 10 days following the expiration of the time for filing exceptions (including any extensions), the Administrator may file with the hearing clerk, and serve on the parties, a notice of the Administrator's determination to review the initial decision. The Administrator may invite the parties to file briefs or present oral argument on the matter. The time for filing briefs or presenting oral argument will be specified in that or a later notice.

§ 179.112 Decision by Administrator on appeal or review of initial decision.

(a) On appeal from or review of the initial decision, the Administrator shall have the same powers as did the presiding officer in making the initial decision. On the Administrator's own initiative or on motion, the Administrator may remand the matter to the presiding officer for any further action necessary for a proper decision.

(b) The scope of the issues on appeal to, or on review by the Administrator is the same as the scope of the issues before the presiding officer, unless the Administrator specifies otherwise.

(c) After the filing of briefs and any oral argument, the Administrator will issue a final decision on the issues of fact in the hearing and the objections related to those issues. A final decision must contain the elements required for an initial decision by § 179.105(b).

(d) The Administrator may adopt the initial decision as the final decision.

(e) The Administrator's decision, or a summary of the decision and a notice of its availability, will be published in the FEDERAL REGISTER.

§ 179.115 Motion to reconsider a final order.

A party may file a motion requesting the Administrator to reconsider a final decision under this part. Any such motion must be filed within 10 days after service of the final decision, and must set forth the matters claimed to have been erroneously decided and the nature of the alleged errors. Such a motion shall not stay the effective date of the final decision unless specifically so ordered by the Administrator.

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§ 179.117 Designation and powers of judicial officer.

(a) One or more judicial officers may be designated by the Administrator. A judicial officer shall be an attorney who is a permanent or temporary employee of the Agency or of another Federal agency. A judicial officer may perform other duties. A judicial officer who performs any duty under this part may not be employed by OPPTS, by the Pesticides and Toxic Substances Division of the Office of General Counsel, or by any other person who is a representative of OPPTS in the hearing. A person may not be designated as a judicial officer in a hearing if he or she performed any prosecutorial or investigative functions in connection with that hearing or any other factually related hearing.

(b) The Administrator may delegate to the judicial officer all or part of the Administrator's authority to act in a given proceeding under this part. Such a delegation does not prevent the judicial officer from referring any motion or case to the Administrator when appropriate.

[55 FR 50293, Dec. 5, 1990, as amended at 57 FR 28087, June 24, 1992]

Subpart G—Judicial Review

§ 179.125 Judicial review.

(a) The Administrator's final decision is final agency action reviewable in the courts as provided by FFDCA section 408(i) or 409(g)(1), as of the date of entry of the order, which shall be determined in accordance with §§ 23.10 and 23.11 of this chapter. The failure of a person to file a petition for judicial review within the period ending on the 60th day after the date of the entry of the order constitutes a waiver under FFDCA sections 408(i) or 409(g)(1) of the right to judicial review of the order and of any regulation promulgated by the order.

(b) The record for judicial review of a final decision under this part consists of the record described in § 179.130.

§ 179.130 Administrative record.

(a) For purposes of judicial review, the record of a hearing that culminates in a final decision of the Administrator

under § 179.105(d) or § 179.112(c) ruling on an objection shall consist of:

(1) The objection ruled on (and any request for hearing that was included with the objection).

(2) Any order issued under § 177.125 of this chapter to which the objection related, and:

(i) The regulation or petition denial that was the subject of that order.

(ii) The petition to which such order responded.

(iii) Any amendment or supplement of the petition.

(iv) The data and information submitted in support of the petition.

(v) The notice of filing of the petition.

(3) Any order issued under § 177.130 of this chapter to which the objection related, the regulation that was the subject of that order, and each related Notice of Proposed Rulemaking.

(4) Any order issued under § 180.7(g) of this chapter to which the objection related, and:

(i) The regulation or petition denial that was the subject of that order.

(ii) The petition to which such order responded.

(iii) Any amendment or supplement of the petition.

(iv) The data and information submitted in support of the petition.

(v) The notice of filing of the petition.

(5) Any order issued under § 180.29(f) of this chapter to which the objection related, the regulation that was the subject of that order, and each related Notice of Proposed Rulemaking.

(6) The comments submitted by members of the public in response to the Notice of Filing or Notice of Proposed Rulemaking, and the information submitted as part of the comments, the Administrator's response to comments and the documents or information relied on by the Administrator in issuing the regulation or order.

(7) All other documents or information submitted to the docket for the rulemaking in question under parts 177 or part 180 of this chapter.

(8) The Notice of Hearing published under § 179.20.

(9) All notices of participation filed under § 179.42.

(10) Any FEDERAL REGISTER notice issued under this part that pertains to the proceeding.

(11) All submissions filed under § 179.80.

(12) Any document of which official notice was taken under § 179.95.

(b) The record of the administrative proceeding is closed:

(1) With respect to the taking of evidence, when specified by the presiding officer.

(2) With respect to pleadings, at the time specified in § 179.98(a) for the filing of briefs.

(c) The presiding officer may reopen the record to receive further evidence at any time before the filing of the initial decision.

PART 180—TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

EDITORIAL NOTE: An alphabetical listing of pesticide chemicals appears at the end of this table of contents.

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- 180.124 Glyodin; tolerances for residues.
- 180.125 Calcium cyanide; tolerances for residues.
- 180.127 Piperonyl butoxide; tolerances for residues.
- 180.128 Pyrethrins; tolerances for residues.
- 180.129 *o*-Phenylphenol and its sodium salt; tolerances for residues.
- 180.130 Hydrogen cyanide; tolerances for residues.
- 180.132 Thiram; tolerances for residues.
- 180.133 Lindane; tolerances for residues.
- 180.136 Basic copper carbonate; tolerance for residues.
- 180.141 Biphenyl; tolerances for residues.
- 180.142 2,4-D; tolerances for residues.

- 180.143 Dipropyl isocinchomeronate; tolerances for residues.
- 180.144 Cyhexatin; tolerances for residues.
- 180.145 Fluorine compounds; tolerances for residues.
- 180.148 β -Naphthoxyacetic acid; tolerances for residues.
- 180.149 Mineral oil; tolerances for residues.
- 180.150 Dalapon; tolerances for residues.
- 180.151 Ethylene oxide; tolerances for residues.
- 180.152 Sodium dimethyldithiocarbamate; tolerance for residues.
- 180.153 Diazinon; tolerances for residues.
- 180.154 *O,O*-Dimethyl S-[(4-oxo-1,2,3-benzotriazin-3(4*H*)-yl)methyl] phosphorodithioate; tolerances for residues.
- 180.154a *O,O*-Dimethyl S-[(4-oxo-1,2,3-benzotriazin-3(4*H*)-yl)methyl] phosphorodithioate residues and/or its metabolites in milk.
- 180.155 1-Naphthaleneacetic acid; tolerances for residues.
- 180.157 Methyl 3-[(dimethoxyphosphinyl)oxy]butenoate, alpha and beta isomers; tolerances for residues.
- 180.158 2,4-Dichloro-6-*o*-chloroanilino-s-triazine; tolerances for residues.
- 180.159 Sodium dehydroacetate; tolerances for residues.
- 180.161 Manganous dimethyldithiocarbamate; tolerance for residues.
- 180.162 Tetraiodoethylene; tolerance for residues.
- 180.163 1,1 - Bis(*p* - chlorophenyl) - 2,2,2-trichloroethanol; tolerances for residues.
- 180.167 Nicotine-containing compounds; tolerances for residues.
- 180.167a Nicotine; tolerances for residues.
- 180.169 Carbaryl; tolerances for residues.
- 180.170 Temphos; tolerances for residues.
- 180.171 Dioxathion; tolerances for residues.
- 180.172 Dodine; tolerances for residues.
- 180.173 Ethion; tolerances for residues.
- 180.174 Tetradifon; tolerances for residues.
- 180.175 Maleic hydrazide; tolerances for residues.
- 180.176 Coordination product of zinc ion and maneb; tolerances for residues.
- 180.178 Ethoxyquin; tolerances for residues.
- 180.179 Tartar emetic; tolerances for residues.
- 180.180 Orthoarsenic acid.
- 180.181 CIPC; tolerances for residues.
- 180.182 Endosulfan; tolerances for residues.
- 180.183 *O,O*-Diethyl S-[2-(ethylthio)ethyl] phosphorodithioate; tolerances for residues.
- 180.184 Linuron; tolerances for residues.
- 180.185 Dimethyl tetrachloroterephthalate; tolerances for residues.
- 180.188 Ammonium sulfamate; tolerances for residues.
- 180.189 Coumaphos; tolerances for residues.
- 180.190 Diphenylamine; tolerances for residues.

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- 180.191 Folpet; tolerances for residues.
- 180.198 Dimethyl (2,2,2-trichloro-1-hydroxyethyl) phosphonate; tolerance for residues.
- 180.199 Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide; tolerances for residues.
- 180.200 2,6-Dichloro-4-nitroaniline; tolerances for residues.
- 180.201 Chlorosulfamic acid; tolerances for residues.
- 180.202 *p*-Chlorophenoxyacetic acid; tolerances for residues.
- 180.204 Dimethoate including its oxygen analog; tolerances for residues.
- 180.205 Paraquat; tolerances for residues.
- 180.206 Phorate; tolerances for residues.
- 180.207 Trifluralin; tolerances for residues.
- 180.208 *N*-Butyl-*N*-ethyl- $\alpha\alpha\alpha$ -trifluoro-2,6-dinitro-*p*-toluidine; tolerances for residues.
- 180.209 Terbacil; tolerances for residues.
- 180.210 Bromacil; tolerances for residues.
- 180.211 2-Chloro-*N*-isopropylacetanilide; tolerances for residues.
- 180.212 *S*-Ethyl cyclohexylethylthiocarbamate; tolerances for residues.
- 180.213 Simazine; tolerances for residues.
- 180.213a Simazine; tolerances for residues.
- 180.214 Fenthion; tolerances for residues.
- 180.215 Naled; tolerances for residues.
- 180.216 Chloroxuron; tolerances for residues.
- 180.217 Ammoniates for [ethylenebis-(dithiocarbamate)] zinc and ethylenebis [dithiocarbamic acid] bimolecular and trimolecular cyclic anhydrosulfides and disulfides; tolerances for residues.
- 180.219 2,3,5-Triiodobenzoic acid; tolerances for residues.
- 180.220 Atrazine; tolerances for residues.
- 180.221 *O*-Ethyl *S*-phenyl ethylphosphonodithioate; tolerances for residues.
- 180.222 Prometryn; tolerances for residues.
- 180.224 Gibberellins; tolerances for residues.
- 180.225 Aluminum phosphide; tolerances for residues.
- 180.226 Diquat; tolerances for residues.
- 180.227 Dicamba; tolerances for residues.
- 180.228 *S*-Ethyl hexahydro-1*H*-azepine-1-carbothioate; tolerances for residues.
- 180.229 Fluometuron; tolerances for residues.
- 180.230 Diphenamid; tolerances for residues.
- 180.231 Dichlobenil; tolerances for residues.
- 180.232 Butylate; tolerances for residues.
- 180.235 2,2-Dichlorovinyl dimethyl phosphate; tolerances for residues.
- 180.236 Triphenyltin hydroxide; tolerances for residues.
- 180.238 *S*-Propyl butylethylthiocarbamate; tolerances for residues.
- 180.239 Phosphamidon; tolerances for residues.
- 180.240 *S*-Propyl dipropylthiocarbamate; tolerances for residues.
- 180.241 *S*-(*O,O*-Diisopropyl phosphorodithioate) of *N*-(2-mercaptoethyl) benzenesulfonamide; tolerances for residues.
- 180.242 Thiabendazole; tolerances for residues.
- 180.243 Propazine; tolerances for residues.
- 180.244 Basic zinc sulfate; tolerances for residues.
- 180.245 Streptomycin; tolerances for residues.
- 180.249 Alachlor; tolerances for residues.
- 180.250 Metobromuron; tolerance for residues.
- 180.252 2-Chloro-1-(2,4,5-trichlorophenyl) vinyl dimethyl phosphate; tolerances for residues.
- 180.253 Methomyl; tolerances for residues.
- 180.254 Carbofuran; tolerances for residues.
- 180.257 Chloroneb; tolerances for residues.
- 180.258 Ametryn; tolerances for residues.
- 180.259 Propargite; tolerances for residues.
- 180.261 *N* - (Mercaptomethyl) phthalimide *S*-(*O,O*-dimethyl phosphorodithioate) and its oxygen analog; tolerances for residues.
- 180.262 Ethoprop; tolerances for residues.
- 180.263 Phosalone; tolerances for residues.
- 180.265 Terbutryn; tolerances for residues.
- 180.266 Chloramben; tolerances for residues.
- 180.267 Captafol; tolerances for residues.
- 180.268 Barban; tolerances for residues.
- 180.269 Aldicarb; tolerances for residues.
- 180.272 *S,S,S*-Tributyl phosphorotrithioate; tolerances for residues.
- 180.274 Propanil; tolerances for residues.
- 180.275 Chlorothalonil; tolerances for residues.
- 180.276 Formetanate hydrochloride; tolerances for residues.
- 180.277 *S* -2,3 -Dichloroallyl diisopropylthiocarbamate; tolerances for residues.
- 180.278 Phenmedipham; tolerances for residues.
- 180.282 2-Chloro-*N,N*-diallylacetamide; tolerances for residues.
- 180.283 2,3,6-Trichlorophenylacetic acid; tolerances for residues.
- 180.284 Zinc phosphide; tolerances for residues.
- 180.287 Amitraz; tolerances for residues.
- 180.288 2-(Thiocyanomethylthio) benzothiazole; tolerances for residues.
- 180.289 Methanearsonic acid; tolerances for residues.
- 180.291 Pentachloronitrobenzene; tolerance for residues.
- 180.292 Picloram; tolerances for residues.
- 180.293 Endothall; tolerances for residues.
- 180.294 Benomyl; tolerances for residues.
- 180.296 Dimethyl phosphate of 3-hydroxy-*N*-methyl-*cis*-crotonamide; tolerances for residues.
- 180.297 *N*-1-Naphthyl phthalamic acid; tolerances for residues.
- 180.298 Methidathion; tolerances for residues.

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- 180.299 Dimethyl phosphate of 3-hydroxy-*N,N*-dimethyl-*cis*-crotonamide; tolerances for residues.
- 180.300 Ethephon; tolerances for residues.
- 180.301 Carboxin; tolerances for residues.
- 180.303 Oxamyl; tolerances for residues.
- 180.304 Oryzalin; tolerances for residues.
- 180.305 3,4,5-Trimethylphenyl methylcarbamate and 2,3,5-trimethylphenyl methylcarbamate; tolerances for residues.
- 180.306 Cyprazine; tolerances for residues.
- 180.307 2 - [[4 - chloro - 6 - (ethylamino)-s-triazin-2-yl]amino]-2-methylpropionitrile; tolerances for residues.
- 180.309 α -Naphthaleneacetamide; tolerances for residues.
- 180.311 Cacodylic acid; tolerances for residues.
- 180.312 4-Aminopyridine; tolerances for residues.
- 180.314 S - 2,3,3 - Trichloroallyl diisopropylthiocarbamate; tolerances for residues.
- 180.315 Methamidophos; tolerances for residues.
- 180.316 Pyrazon; tolerances for residues.
- 180.317 3,5-Dichloro-N-(1,1-dimethyl-2-propynyl)benzamide; tolerances for residues.
- 180.318 4-(2-Methyl-4-chlorophenoxy) butyric acid; tolerances for residues.
- 180.319 Interim tolerances.
- 180.320 3,5 - Dimethyl - 4 - (methylthio) phenyl methylcarbamate; tolerances for residues.
- 180.321 *sec*-Butylamine; tolerances for residues.
- 180.324 Bromoxynil; tolerances for residues.
- 180.325 2-(*m*-Chlorophenoxy) propionic acid; tolerances for residues.
- 180.326 Dialifor; tolerances for residues.
- 180.328 *N,N*-Diethyl-2-(1-naphthalenyloxy) propionamide; tolerances for residues.
- 180.330 S-[2-(Ethylsulfinyl) ethyl] O,O-dimethyl phosphorothioate; tolerances for residues.
- 180.331 4-(2,4-Dichlorophenoxy) butyric acid; tolerances for residues.
- 180.332 4 - Amino - 6 - (1,1-dimethyl-ethyl) - 3 - (methylthio) - 1,2,4-triazin-5(4*H*) - one; tolerances for residues.
- 180.337 Oxytetracycline; tolerance for residues.
- 180.338 6-methyl-1,3-dithiolo [4,5-*b*] quinoxalin-2-one; tolerances for residues.
- 180.339 2-methyl - 4 - chlorophenoxyacetic acid; tolerances for residues.
- 180.341 2,4-Dinitro-6-octylphenyl crotonate and 2,6-dinitro-4-octylphenyl crotonate; tolerances for residues.
- 180.342 Chloropyrifos; tolerances for residues.
- 180.344 4,6-Dinitro-*o*-cresol and its sodium salt; tolerances for residues.
- 180.345 Ethofumesate; tolerances for residues.
- 180.346 Oxadiazon; tolerances for residues.
- 180.347 Tetraethyl pyrophosphate; tolerances for residues.
- 180.349 Ethyl 3 - methyl - 4 - (methylthio) phenyl (1 - methyl-ethyl)phosphoramidate; tolerances for residues.
- 180.350 Nitrapyrin; tolerances for residues.
- 180.352 Terbufos; tolerances for residues.
- 180.353 Desmedipham; tolerances for residues.
- 180.355 Bentazon; tolerances for residues.
- 180.356 Norflurazon; tolerances for residues.
- 180.357 Methazole; tolerances for residues.
- 180.358 Butralin; tolerances for residues.
- 180.359 Methoprene; tolerances for residues.
- 180.360 Asulam; tolerances for residues.
- 180.361 Pendimethalin; tolerances for residues.
- 180.362 Hexakis (2-methyl-2-phenylpropyl)distannoxane; tolerances for residues.
- 180.363 Fluchloralin; tolerances for residues.
- 180.364 Glyphosate; tolerances for residues.
- 180.366 Octhilinone; tolerances for residues.
- 180.367 *n* - Octyl bicycloheptenedicarboximide; tolerances for residues.
- 180.368 Metolachlor; tolerances for residues.
- 180.369 Difenzoquat; tolerances for residues.
- 180.370 5-Ethoxy-3-(trichloromethyl)-1, 2, 4-thiadiazole; tolerances for residues.
- 180.371 Thiophanate-methyl; tolerances for residues.
- 180.372 2, 6-dimethyl-4-tridecylmorpholine; tolerances for residues.
- 180.373 [Reserved]
- 180.374 *O*-Ethyl *O*-[4-(methylthio)phenyl]*S*-propyl phosphorodithioate; tolerances for residues.
- 180.375 Magnesium phosphide; tolerances for residues.
- 180.377 Diflubenzuron; tolerances for residues.
- 180.378 Permethrin; tolerances for residues.
- 180.379 Cyano(3-phenoxyphenyl)methyl-4-chloro-*a*-(1-methylethyl) benzeneacetate; tolerances for residues.
- 180.380 3-(3,5-Dichlorophenyl)-5-ethenyl-5-methyl-2,4 oxazolidinedione; tolerances for residues.
- 180.381 Oxyfluorfen; tolerances for residues.
- 180.382 Triforine; tolerances for residues.
- 180.383 Sodium salt of acifluorfen; tolerances for residues.
- 180.384 *N,N*-Dimethylpiperidinium chloride; tolerances for residues.
- 180.385 Diclofop-methyl; tolerances for residues.
- 180.386 Mefluidide; tolerances for residues.
- 180.387 1-Methyl 2-[[ethoxy-[(1-methylethyl) amino] phosphinothioyl]oxy] benzoate.
- 180.388—180.389 [Reserved]
- 180.390 Tebuthiuron; tolerances for residues.

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- 180.395 Tetrahydro-5,5-dimethyl-2(1H)-pyrimidinone(3-(4-(trifluoromethyl)phenyl)-1-(2-(4-(trifluoromethyl)phenyl)ethenyl)-2-propenylidene)hydrazone; tolerances for residues.
- 180.396 Hexazinone; tolerances for residues.
- 180.398 Chlorthiophos; tolerances for residues.
- 180.399 Iprodione; tolerances for residues.
- 180.401 Thiobencarb; tolerances for residues.
- 180.402 Diethatyl-ethyl; tolerances for residues.
- 180.403 Thidiazuron; tolerances for residues.
- 180.404 Profenofos; tolerances for residues.
- 180.405 Chlorsulfuron; tolerances for residues.
- 180.406 Dimethipin; tolerances for residues.
- 180.407 Thiodicarb; tolerances for residues.
- 180.408 Metalaxyl; tolerances for residues.
- 180.409 Pirimiphos-methyl; tolerances for residues.
- 180.410 1-(4-Chlorophenoxy)-3,3-dimethyl-1-(1H-1,2,4-triazol-1-yl)-2-butanone; tolerances for residues.
- 180.411 Fluazifop-butyl; tolerances for residues.
- 180.412 2-[1-(Ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one; tolerances for residues.
- 180.413 Imazalil; tolerances for residues.
- 180.414 Cyromazine; tolerances for residues.
- 180.415 Aluminum tris (O-ethylphosphonate); tolerances for residues.
- 180.416 Ethalfluralin; tolerances for residues.
- 180.417 Triclopyr; tolerances for residues.
- 180.418 Cypermethrin; tolerances for residues.
- 180.419 Chlorpyrifos-methyl.
- 180.420 Fluridone; tolerances for residues.
- 180.421 Fenarimol; tolerances for residues.
- 180.422 Tralothrin; tolerances for residues.
- 180.423 Fenridazon, potassium salt; tolerances for residues.
- 180.424 2-(3,5-Dichlorophenyl)-2-(2,2,2-trichloroethyl)-oxirane; tolerances for residues.
- 180.425 Clomazone; tolerances for residues.
- 180.426 2-[4,5-Dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-3-quinoline carboxylic acid; tolerance for residues.
- 180.427 (Alpha RS,2R)-fluvalinate [(RS)-alpha-cyano-3-phenoxybenzyl (R)-2-[2-chloro-4-(trifluoromethyl) anilino]-3-methylbutanoate]; tolerances for residues.
- 180.428 Metsulfuron methyl; tolerances for residues.
- 180.429 Chlorimuron ethyl; tolerance for residues.
- 180.430 Fenoxaprop-ethyl; tolerances for residues.
- 180.431 Clopyralid; tolerances for residues.
- 180.432 Lactofen; tolerances for residues.
- 180.433 Sodium salt of fomesafen; tolerance for residues.
- 180.434 1-[[2-(2,4-dichlorophenyl)-4-propyl-1,3-dioxolan-2-yl]methyl]-1H-1,2,4-triazole; tolerances for residues.
- 180.435 Deltamethrin; tolerances for residues.
- 180.436 Cyfluthrin; tolerances for residues.
- 180.437 Methyl 2-(4-isopropyl-4-methyl-5-oxo-2-imidazolin-2-yl)-p-toluate and methyl 6-(4-isopropyl-4-methyl-5-oxo-2-imidazolin-2-yl)-m-toluate; tolerances for residues.
- 180.438 Lambda-cyhalothrin; tolerances for residues.
- 180.439 Thifensulfuron methyl (methyl-3-[[[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)amino]carbonyl]amino]sulfonyl]-2-thiophene carboxylate); tolerances for residues.
- 180.440 Tefluthrin; tolerances for residues.
- 180.441 Quizalofop ethyl; tolerances for residues.
- 180.442 Bifenthrin; tolerances for residues.
- 180.443 Myclobutanil; tolerances for residues.
- 180.444 Sulfur dioxide; tolerances for residues.
- 180.445 Bensulfuron methyl ester; tolerances for residues.
- 180.446 Clofentezine; tolerances for residues.
- 180.447 Imazethapyr, ammonium salt; tolerance for residues.
- 180.448 Hexythiazox; tolerance for residues.
- 180.449 Avermectin B₁ and its delta-8,9-isomer; tolerances for residues.
- 180.450 Beta-(4-Chlorophenoxy)-alpha-(1,1-dimethylethyl)-1H-1,2,4-triazole-1-ethanol; tolerances for residues.
- 180.451 Tribenuron methyl; tolerances for residues.
- 180.452 Primisulfuron-methyl; tolerances for residues.
- 180.454 Nicosulfuron, [3-pyridinecarboxamide, 2-(((4,6-dimethoxyprimidin-2-yl)aminocarbonyl)aminosulfonyl))-N,N-dimethyl]; tolerances for residues.
- 180.455 Procymidone; tolerances for residues.
- 180.456 Oxadixyl; tolerances for residues.
- 180.457 Beta-([1,1'-biphenyl]-4-yloxy)-alpha-(1,1-dimethylethyl)-1H-1,2,4-triazole-1-ethanol; tolerances for residues.
- 180.458 Clethodim ((E)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl)-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one); tolerances for residues.
- 180.459 Triasulfuron; tolerances for residues.
- 180.460 4-(Dichloroacetyl)-3,4-dihydro-3-methyl-2H-1,4-benzoxazine; tolerances for residues.
- 180.461 Cadusafos; tolerances for residues.
- 180.462 Pyridate; tolerances for residues.
- 180.463 3,7-Dichloro-8-quinoline carboxylic acid; tolerances for residues.

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- 180.464 Dimethenamid, 2-chloro-N-[(1-methyl-2-methoxy)ethyl]-N-(2,4-dimethylthien-3-yl)-acetamide; tolerances for residues.
- 180.465 4-(Dichloroacetyl)-1-oxa-4-azaspiro[4.5]decane; tolerances for residues.
- 180.466 Fenpropathrin; tolerances for residues.
- 180.467 Carbon disulfide; tolerances for residues.
- 180.468 Flumetsulam; tolerances for residues.
- 180.469 N,N-Diallyl dichloroacetamide; tolerances for residues.
- 180.470 Acetochlor; tolerances for residues.
- 180.471 3-Dichloroacetyl-5-(2-furanyl)-2,2-dimethylloxazolidine; tolerances for residues.
- 180.472 1-[[6-Chloro-3-pyridinyl] methyl]-N-nitro-2-imidazolidinimine; tolerances for residues.
- 180.473 Glufosinate ammonium; tolerances for residues.
- 180.474 Tebuconazole (alpha-[2-(4-chlorophenyl)-ethyl]-alpha-(1,1-dimethylethyl)-1H-1,2,4-triazole-1-ethanol); tolerances for residues.
- 180.475 Difenoconazole; tolerances for residues.
- 180.476 Triflumizole; tolerances for residues.
- 180.477 Flumiclorac pentyl; tolerances for residues.
- 180.478 Rimsulfuron; tolerances for residues.
- 180.479 Halosulfuron; tolerances for residues.
- 180.480 Fenbuconazole; tolerances for residues.
- 180.481 Prosulfuron; tolerances for residues.
- 180.482 Benzoic acid; tolerances for residues.
- 180.483 O-[2-(1,1-Dimethylethyl)-5-pyrimidinyl] O-ethyl-O-(1-methylethyl) phosphorothioate; tolerances for residues.
- 180.484 Flutolanil (N-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide); tolerances for residues.
- 180.485 Cyproconazole; tolerances for residues.
- 180.486 Phosphorothioic acid, 0,0-diethyl 0-(1,2,2,2-tetrachloroethyl) ester; tolerances for residues.
- 180.487 Pyriothiobac sodium salt (sodium 2-chloro-6-[(4,6-dimethoxypyrimidin-2-yl)thio]benzoate); tolerances for residues.
- 180.488 Hexaconazole; tolerance for residues.
- 180.489 Sulfonium, trimethyl-salt with N-(phosphonomethyl)glycine (1:1); tolerances for residues.
- 180.490 Cadre; tolerance for residues.
- 180.491 Propylene oxide; tolerance for residues.
- 180.492 Triflusulfuron methyl; tolerances for residues

Subpart D—Exemptions From Tolerances

- 180.1001 Exemptions from the requirement of a tolerance.
- 180.1002 Allethrin (allyl homolog of cinerin I); exemption from the requirement of a tolerance.
- 180.1003 Ammonia; exemption from the requirement of a tolerance.
- 180.1008 Chloropicrin; exemption from the requirement of a tolerance.
- 180.1010 Methylene chloride; exemption from the requirement of a tolerance.
- 180.1011 Viable spores of the microorganism *Bacillus thuringiensis* Berliner; exemption from the requirement of a tolerance.
- 180.1012 1,1,1-Trichloroethane; exemption from the requirement of a tolerance.
- 180.1013 Sulfur dioxide from use in fumigants for stored grains; exemption from the requirement of a tolerance.
- 180.1014 Pentane; exemption from the requirement of a tolerance.
- 180.1016 Ethylene; exemption from the requirement of a tolerance.
- 180.1017 Diatomaceous earth; exemption from the requirement of a tolerance.
- 180.1018 Ammonium nitrate; exemption from the requirement of a tolerance.
- 180.1019 Sulfuric acid; exemption from the requirement of a tolerance.
- 180.1020 Sodium chlorate; exemption from the requirement of a tolerance.
- 180.1021 Copper; exemption from the requirement of a tolerance.
- 180.1022 Iodine-detergent complex; exemption from the requirement of a tolerance.
- 180.1023 Propionic acid; exemptions from the requirement of a tolerance.
- 180.1024 Paraformaldehyde; exemption from the requirement of a tolerance.
- 180.1025 Xylene; exemption from the requirement of a tolerance.
- 180.1026 N,N-Diallyl dichloroacetamide; exemption from the requirement of a tolerance.
- 180.1027 Nuclear polyhedrosis virus of *Heliothis zea*; exemption from the requirement of a tolerance.
- 180.1028 Cross-linked nylon-type encapsulating polymer; exemption from the requirement of a tolerance.
- 180.1030 Isobutyric acid; exemption from the requirement of a tolerance.
- 180.1031 Acetaldehyde; exemption from the requirement of a tolerance.
- 180.1032 Formaldehyde; exemption from the requirement of a tolerance.
- 180.1033 Methoprene; exemption from the requirement of a tolerance.
- 180.1034 Butanoic anhydride; exemption from the requirement of a tolerance.
- 180.1035 Pine oil; exemption from the requirement of a tolerance.
- 180.1036 Hydrogenated castor oil; exemption from the requirement of a tolerance.

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- 180.1037 Polybutenes; exemption from the requirement of a tolerance.
- 180.1038 Polyoxymethylene copolymer; exemption from the requirement of a tolerance.
- 180.1040 Ethylene glycol; exemption from the requirement of a tolerance.
- 180.1041 *Nosema locustae*; exemption from the requirement of a tolerance.
- 180.1042 Aqueous extract of seaweed meal; exemption from the requirement of a tolerance.
- 180.1043 Gossypure; exemption from the requirement of a tolerance.
- 180.1045 Chlorotoluene; exemption from the requirement of a tolerance.
- 180.1046 Dimethylformamide; exemption from the requirement of a tolerance.
- 180.1049 Carbon dioxide; exemption from the requirement of a tolerance.
- 180.1050 Nitrogen; exemption from the requirement of a tolerance.
- 180.1051 Combustion product gas; exemption from the requirements of a tolerance.
- 180.1052 2,2,5-trimethyl-3-dichloroacetyl-1,3-oxazolidine; exemption from the requirement of a tolerance.
- 180.1053 Polyamide polymer derived from sebacic acid; exemption from requirement of tolerance.
- 180.1054 Calcium hypochlorite; exemptions from the requirement of a tolerance.
- 180.1055 (E,Z)-3,13-octadecadien-1-ol acetate and (Z,Z)-3,13-octadecadien-1-ol acetate; exemption from the requirement of a tolerance.
- 180.1056 Boiled linseed oil; exemption from requirement of tolerance.
- 180.1057 *Phytophthora palmivora*; exemption from requirement of tolerance.
- 180.1058 Sodium diacetate; exemption from the requirement of a tolerance.
- 180.1059 Methyl alpha-eleostearate; exemption from the requirement of a tolerance.
- 180.1060 Polyvinyl chloride; exemption from requirement of a tolerance.
- 180.1061 *Hirsutella thompsonii*; exemption from the requirement of a tolerance.
- 180.1062 Butyl benzyl phthalate; exemption from the requirement tolerance.
- 180.1063 Kontrol H. V.; exemption from the requirement of a tolerance.
- 180.1064 Tomato pinworm insect pheromone; exemption from the requirement of a tolerance.
- 180.1065 2-Amino-4,5-dihydro-6-methyl-4-propyl-s-triazolo(1,5- α)pyrimidin-5-one; exemption from the requirement of a tolerance.
- 180.1066 O,O-Diethyl-O-phenylphosphorothioate; exemption from the requirement of tolerance.
- 180.1067 Methyl eugenol and malathion combination; exemption from the requirement of a tolerance.
- 180.1068 C₁₂-C₁₈ fatty acid potassium salts; exemption from the requirement of a tolerance.
- 180.1069 (Z)-11-Hexadecenal; exemption from the requirement of a tolerance.
- 180.1070 Sodium chlorite; exemption from the requirement of a tolerance.
- 180.1071 Egg solids (whole); exemption from the requirement of a tolerance.
- 180.1072 Poly-D-glucosamine (chitosan); exemption from the requirement of a tolerance.
- 180.1073 Isomate-M; exemption from the requirement of a tolerance.
- 180.1074 F.D. & C Blue No. 1; exemption from the requirement of a tolerance.
- 180.1075 *Colletotrichum gloeosporioides* f. sp. *aeschynomene*; exemption from the requirement of a tolerance.
- 180.1076 Viable spores of the microorganism *Bacillus popilliae*; exemption from the requirement of a tolerance.
- 180.1077 2,2-Dichloro-N-(1,3-dioxolan-2-ylmethyl)-N-2-propenylacetamide; exemption from the requirement of a tolerance.
- 180.1078 Poly(oxy-1,2-ethanediyl), alpha-isooctadyl-omega-hydroxy; exemption from the requirement of a tolerance.
- 180.1079 1-(8-Methoxy-4,8-dimethylnonyl)-4-(1-methylethyl) benzene; exemptions from the requirement of a tolerance.
- 180.1080 Plant volatiles and pheromone; exemptions from the requirement of a tolerance.
- 180.1081 1-Triacontanol; exemption from the requirement of a tolerance.
- 180.1083 Dimethyl sulfoxide; exemption from the requirement of a tolerance.
- 180.1084 Monocarbamide dihydrogen sulfate; exemption from the requirement of a tolerance.
- 180.1085 Potassium ricinoleate and related C₁₂-C₁₈ fatty acid potassium salts; exemption from the requirement of a tolerance.
- 180.1086 3,7,11-Trimethyl-1,6,10-dodecatriene-1-ol and 3,7,11-trimethyl-2,6,10-dodecatriene-3-ol; exemption from the requirement of a tolerance.
- 180.1087 Sesame stalks; exemption from the requirement of a tolerance.
- 180.1088 *Pseudomonas fluorescens* EG-1053; exemption from the requirement of tolerance.
- 180.1089 Poly-N-acetyl-D-glucosamine; exemption from the requirement of tolerance.
- 180.1090 Lactic acid; exemption from the requirement of a tolerance.
- 180.1091 Aluminum isopropoxide and aluminum secondary butoxide; exemption from the requirement of a tolerance.
- 180.1092 Menthol; exemption from the requirement of a tolerance.
- 180.1095 Chlorine gas; exemptions from the requirement of a tolerance.

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- 180.1097 GBM-ROPE; exemption from the requirement of a tolerance.
- 180.1098 Gibberellins (GA₃); exemption from the requirement of a tolerance.
- 180.1099 Indole butyric acid (IBA); exemption from the requirement of tolerance.
- 180.1100 Gliocladium virens isolate GL-21; exemption from the requirement of a tolerance.
- 180.1101 Parasitic (parasitoid) and predatory insects; exemption from the requirement of a tolerance.
- 180.1102 Trichoderma harzianum, Rifai Strain KRL-AG2; exemption from the requirement of a tolerance.
- 180.1103 Isomate-C; exemption from the requirement of a tolerance.
- 180.1107 Delta endotoxin of *Bacillus thuringiensis* variety *kurstaki* encapsulated into killed *Pseudomonas fluorescens*; exemption from the requirement of a tolerance.
- 180.1108 Delta endotoxin of *Bacillus thuringiensis* variety San Diego encapsulated into killed *Pseudomonas fluorescens*; exemption from the requirement of a tolerance.
- 180.1110 3-Carbamyl-2,4,5-trichlorobenzoic acid; exemption from the requirement of a tolerance.
- 180.1111 *Bacillus subtilis* GB03; exemption from the requirement of a tolerance.
- 180.1112 Alkyl acrylate/methacrylate copolymers; exemptions from the requirement of a tolerance.
- 180.1113 *Lagenidium giganteum*; exemption from the requirement of a tolerance.
- 180.1114 *Pseudomonas fluorescens* A506, *Pseudomonas fluorescens* 1629RS, and *Pseudomonas syringae* 742RS; exemptions from the requirement of a tolerance.
- 180.1115 *Burkholderia* (*Pseudomonas*) *cepacia* type Wisconsin; exemption from the requirement of a tolerance.
- 180.1116 *Metarhizium anisopliae* strain ESF1; exemption from the requirement of a tolerance.
- 180.1117 Urea; exemption from the requirement of a tolerance.
- 180.1118 *Spodoptera exigua* nuclear polyhedrosis virus; exemption from the requirement of a tolerance.
- 180.1119 Azadirachtin; exemption from the requirement of a tolerance.
- 180.1120 *Streptomyces* sp. strain K61; exemption from the requirement of a tolerance.
- 180.1121 Boric acid and its salts, borax (sodium borate decahydrate), disodium octaborate tetrahydrate, boric oxide (boric anhydride), sodium borate and sodium metaborate; exemptions from the requirement of a tolerance.
- 180.1122 Inert ingredients of semiochemical dispensers; exemptions from the requirement of a tolerance.
- 180.1123 *Puccinia canaliculata* (ATCC 40199); exemption from the requirement of a tolerance.
- 180.1124 Arthropod pheromones; exemption from the requirement of a tolerance.
- 180.1125 Polyhedral occlusion bodies of *Autographa californica* nuclear polyhedrosis virus; exemption from the requirement of a tolerance.
- 180.1126 Codlure, (E,E)-8,10-Dodecadien-1-ol; exemption from the requirement of a tolerance.
- 180.1127 Biochemical pesticide plant floral volatile attractant compounds: cinnamaldehyde, cinnamyl alcohol, 4-methoxy cinnamaldehyde, 3-phenyl propanol, 4-methoxy phenethyl alcohol, indole, and 1,2,4-trimethoxybenzene; exemptions from the requirement of a tolerance.
- 180.1128 *Bacillus subtilis* MBI 600; exemption from the requirement of a tolerance.
- 180.1129 *Pseudomonas fluorescens* strain NCIB 12089; exemption from the requirement of a tolerance.
- 180.1130 N-(n-octyl)-2-pyrrolidone and N-(n-dodecyl)-2-pyrrolidone; exemptions from the requirement of a tolerance.
- 180.1131 *Ampelomyces quisqualis* isolate M10; exemption from the requirement of a tolerance.
- 180.1132 Watermelon mosaic virus-2 coat protein, zucchini yellow mosaic virus coat protein, and the genetic material necessary for the production of these proteins; exemption from the requirement of a tolerance.
- 180.1133 Methyl-1-alkylamido ethyl-2-alkylimidazolium methyl sulfate; exemption from the requirement of a tolerance.
- 180.1134 Neomycin phosphotransferase II and genetic material necessary for its production; exemption from the requirement of a tolerance.
- 180.1135 *Pasteuria penitans*; exemption from the requirement of a tolerance.
- 180.1139 Sodium 5-nitroguaiacolate; exemption from the requirement of a tolerance.
- 180.1140 Sodium o-nitrophenolate; exemption from the requirement of a tolerance.
- 180.1141 Sodium p-nitrophenolate; exemption from the requirement of a tolerance.
- 180.1142 1,4-Dimethylnaphthalene; exemption from the requirement of tolerance.
- 180.1143 Methyl anthranilate; exemption from the requirement of a tolerance.
- 180.1144 *Candida oleophila* isolate I-182; exemption from the requirement of a tolerance.
- 180.1145 *Pseudomonas syringae*; exemption from the requirement of a tolerance.

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- 180.1146 *Beauveria bassiana* Strain GHA; exemption from the requirement of a tolerance.
- 180.1147 *Bacillus thuringiensis* CryIIIA delta-endotoxin and the genetic material necessary for its production.
- 180.1148 Occlusion Bodies of the Granulosis Virus of *Cydia pomonella*; tolerance exemption.
- 180.1149 Inclusion bodies of the multi-nuclear polyhedrosis virus of *Anagrapha falcifera*; exemption from the requirement of a tolerance.
- 180.1150 6-Benzyladenine; exemption from the requirement of a tolerance.
- 180.1151 Phosphinothricin acetyltransferase and the genetic material necessary for its production (plasmid vector pCIB3064) in corn; exemption from the requirement of a tolerance.
- 180.1152 *Bacillus thuringiensis* CryIA(b) delta-endotoxin and the genetic material necessary for its production (plasmid vector pCIB4431) in corn; exemption from the requirement of a tolerance.
- 180.1153 Lepidopteran pheromones; exemption from the requirement of a tolerance.
- 180.1154 CryIA(c) and CryIC derived delta-endotoxins of *Bacillus thuringiensis* var. *kurstaki* encapsulated in killed *Pseudomonas fluorescens*, and the expression plasmid and cloning vector genetic constructs.
- 180.1155 *Bacillus thuringiensis* CryIA(c) delta-endotoxin and the genetic material necessary for its production; exemption from the requirement of a tolerance.
- 180.1156 Cinnamaldehyde; exemption from the requirement of a tolerance.
- 180.1159 Pelargonic acid.
- 180.1160 Jojoba oil; exemption from the requirement of a tolerance.
- 180.1161 Clarified hydrophobic extract of neem oil; exemption from the requirement of a tolerance.
- 180.1162 Acrylate polymers and copolymers; exemption from the requirement of a tolerance.
- 180.1163 Killed *Myrothecium verrucaria*; exemption from the requirement of a tolerance.
- 180.1164 Food and food by-products; exemption from the requirement of a tolerance.
- 180.1167 Allyl isothiocyanate as a component of food grade oil of mustard; exemption from the requirement of a tolerance.

AUTHORITY: 21 U.S.C. 346a and 371.

SOURCE: 36 FR 22540, Nov. 25, 1971, unless otherwise noted.

ALPHABETICAL LISTING OF PESTICIDE CHEMICALS

Name	Section Number
ACEPHATE	180.108
ACETALDEHYDE	180.1031

ALPHABETICAL LISTING OF PESTICIDE CHEMICALS—Continued

Name	Section Number
ACETOC HLOR	180.470
ACETIC ACID	180.1029
ACRYLATE POLYMERS AND COPOLYMERS	180.1162
ACRYLIC ACIO9STEARYL METHACRYLATE	
COPOLYMER	180.1109
ALACHLOR	180.249
ALDICARB	180.269
ALKYL ACRYLATE/METHACRYLATE CO-	
POLYMERS	180.1112
ALLETHRIN (ALLYL HOMOLOG OF CINERIN	
l)	180.113,
	180.1002
ALLYL ISOTHIOCYANATE AS A COMPONENT	
OF FOOD GRADE OIL OF MUSTARD	180.1167
ALUMINUM ISOPROPOXIDE AND ALUMINUM	
SECONDARY BUTOXIDE	180.1091
ALUMINUM PHOSPHIDE	180.225
ALUMINUM TRIS (O,ETHYLPHOSPHONATE)	
AMETRYN	180.415
2-AMINO-4,5-DIHYDRO-6-METHYL-4-	
PROPYL-S-TRIAZOLO (1,5-ALPHA)	
PYRIMIDIN-5-ONE	180.1065
4-AMINO-6-(1,1-DIMETHYL-ETHYL)-3-(ME	
THYLTHIO) 1,2,4-TRIAZIN-5(4H)-ONE	180.332
4-AMINOPYRIDINE	180.312
A MITRAZ	180.287
AMMONIA	180.1003
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(DITHIOCARBAMATO)] ZINC AND	
ETHYLENEBIS (DITHIOCARBAMIC ACID)	
BIMOLECULAR AND TRIMOLECULAR CY-	
CLIC ANHYDROSULFIDES AND	
DISULFIDES	180.217
AMMONIATES OF [ETHYLENEBIS	
(DITHIOCARBAMATO)] ZINC AND	
ETHYLENEBIS [DITHIOCARBAMIC ACID] BI-	
MOLECULAR AND TRIMOLECULAR CY-	
CLIC ANHYDROSULFIDES AND	
DISULFIDES; INTERIM TOLERANCE	180.319
AMMONIUM NITRATE	180.1018
AMMONIUM SULFAMATE	180.188
AMPELOMYCES QUISQUALIS ISOLATE M10	
ANTHROPID PHEROMONES	180.1131
AQUEOUS EXTRACT OF SEAWEED MEAL	180.1124
ASULAM	180.1042
ATRAZINE	180.360
AVERMEC TIN B ¹ AND ITS DELTA-8,9-ISO-	
MER	180.220
	180.449
AZADIRACTIN	180.1119
BACILLUS POPILLIAE, VIABLE SPORES	180.1076
BACILLUS SUBTILLIS GB03	180.1111
BACILLUS SUBTILLIS MBI 600	180.1128
BACILLUS THURINGIENSIS BERLINER, VIA-	
BLE SPORES	180.1011
BACILLUS THURINGIENSIS CRYIA(B) DELTA-	
ENDOTOXIN AND THE GENETIC MATE-	
RIAL NECESSARY FOR ITS PRODUCTION	
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BACILLUS THURINGIENSIS CRYIA(C) DELTA-	
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BACILLUS THURINGIENSIS CRYIIIA DELTA-	
ENDOTOXIN AND THE GENETIC MATE-	
RIAL NECESSARY FOR ITS PRODUCTION	
BARBAN	180.1147
BEAUVERIA BASSIANA STRAIN GHA	180.268
BENOMYL	180.1146
BENSULFURON METHYL ESTER	180.294
BENTAZON	180.445
BENZOIC ACID	180.355
6-BENZYLADENINE	180.482
	180.1150

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CHEMICALS—Continued

Name	Section Number
BETA-([1,1'-BIPH ENYL]-4-YLOXY)-ALPHA-(1,1-DIMETHYLETHYL)-1H-1,2,4-TRIAZOLE-1-ETHA NOL	180.457
BIFENTHRIN	180.442
BIOCHEMICAL PESTICIDE PLANT FLORAL VOLATILE ATTRACTANT COMPOUNDS: CINNAMALDEHYDE, CINNAMYL ALCOHOL, 4-METHOXY CINNAMALDEHYDE, 3-PHENYL PROPANOL, 4-METHOXY PHENETHYL ALCOHOL, INDOLE, AND 1,2,4-TRIMETHOXY BENZENE	180.1127
BIPHENYL	180.141
1,1-BIS(P-CHLOROPHENYL) -2,2,2-TRICHLOROETHANOL	180.163
BORIC ACID AND ITS SALTS, BORAX (SODIUM BORATE DECAHYDRATE), DISODIUM OCTABORATE TETRAHYDRATE, BORIC OXIDE (BORIC ANHYDRIDE), SODIUM BORATE, AND SODIUM METABORATE	180.1121
BROMACIL	180.210
BROMOXYNIL	180.324
BUTANOIC ANHYDRIDE	180.1034
BUTRALIN	180.358
SEC-BUTYLAMINE	180.3 21
BUTYL BENZYL PHTHALATE	180.1062
N-BUTYL-N-ETHYL-A,A-A-TRIFLUORO-2,6-DINITR O-P-TOLUIDINE	180.208
CACODYLIC ACID	180.311
CADRE	180.490
CADUSAFOS	180.461
CALCI UM CYANIDE	180.125
CALCIUM HYPOCHLORITE	180.1054
CANDIDA OLEOPHILA ISOLATE I-182	180.1144
CAPTAFOL	180.267
CAPTAN	180.103
3-CARB AMYL-2,4,5-TRICHLORBENZOIC ACID	180.1110
CARBARYL	180.169
CARBARYL (1-NAPHTHYL N-METHYLCARBAMATE AND ITS METABOLITE 1-NAPHTHOL, CALCULATED AS CARBARYL; INTERIM TOLERANCE	180.319
CARBOFURAN	180.254
CARBON DIOXIDE	180.1049
CARBON DISULFIDE	180.467
CARBON TETRACHLORIDE	180.1005
CARBOPHENOTHION	180.156
CARBOXIN	180.301
CHLORAMBEN	180.266
CHLORDIMEFORM	180.285
CHLORIMURON ETHYL	180.429
CHLORINE GAS	180.1095
2-CHLORO-N,N-DIALLYLACETAMIDE	180.282
2-((4- CHLORO-6-(ETHYLAMINO)-S-TRIAZIN-2-YL) AMINO)-2-METHYLPROPIONITRILE ...	180.307
2-CHLORO-N-ISOPROPYLACET ANILIDE	180.211
CHLORONEB	180.257
P-CHLOROPHENOXYACETIC ACID	180.202
BETA-(4-CHLOROPHENOXY)-ALPHA-(1,1-DIMETHYLETHYL) -1H-1,2,4-TRIAZOLE-1-1-ETHANOL	180.450
1-(4-CHLOROPHENOXY)-3, 3-DIMETHYL- (1H-1,2,4-TRIAZOL-1-YL)-2-BUTANONE	180.410
2-(M-CHLOROPHENOXY)PROPIONIC ACID ...	180.325
CLOMAZONE	180.425
CHLOROPICRIN	180.1008
1-[(6-CHLORO-3-PYRIDINYL)METHYL]-N-2-IMIDAZOLIDINIMINE	180.472
CHLOROSULFAMIC ACID	180.201

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CHEMICALS—Continued

Name	Section Number
CHLOROTHALONIL	180.275
CHLOROTOLUENE	180.10 45
2-CHLORO-1-(2,4,5-TRICHLOROPHENYL)VINYL DIMETHYL PHOSPHATE	180.252
CHLOROXURON	180.216
CHLORPYRIFOS	180.3 42
CHLORPYRIFOS-METHYL	180.419
CHLORSULFURON	180.405
C HLORTHIOPHOS	180.398
CINNALEDHYDE	180.1156
CIPC	180 .181
CLARIFIED HYDROPHOBIC EXTRACT OF NEEM OIL	180.1161
CLETHODIM ((E)-(B)-2-[1-[(3-CHLORO-2-PRO-PENYL)OXY]IMINO]PROPYL]-5- [2-(ETHYLTHIO)PROPYL]-3-HYDROXY-2-CYCLOHEXEN-1-ONE)	180.458
C LOFENTEZINE	180.446
CLOPYRALID	180.431
CODLURE, (E,E)-8,10-DODECADIEN-1-01	180.1126
COLLETOTRICHUM GLOEOSPORIOIDES f.sp. aescynomene	180.1075
COMBUSTION PRODUCT GAS	180.1051
COORDINATION PRODUCT OF ZINC ION AND MANEB	180.176
COORDINATION PRODUCT OF ZINC ION AND MANEB; INTERIM TOLERANCE	180.319
COPPER	180.1021
COPPER CARBONATE, BASIC	180.136
COUMAPHOS	180.189
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CYANO(3-PHENOXYPHENYL)METHYL-4-CHLORO- A-(1-METHYLETHYL) BENZENACETATE	180.379
CYFLUTHRIN	180.436
CYHEXATIN	180.1 44
CYPERMETHRIN	180.418
CYPRAZINE	180.306
CYPROCONAZOL E	180.485
CYROMAZINE	180.414
2,4-D	180.142
DALAPON	180.150
DAMINOZIDE	180.246
(Z)-9-DEDECENYL ACETATE AND (Z)-11-TETRADECENYL ACETATE (GBM-ROPE) ...	180.1097
DELTA ENDOTOXIN OF BACILLUS THURINGIENSIS VARIETY KURSTAKI ENCAPSULATED INTO KILLED PSEUDOMONAS FLUORESCENS	180.1107
DELTA ENDOTOXIN OF BACILLUS THURINGIENSIS VARIETY SAN DIEGO ENCAPSULATED INTO KILLED PSEUDOMONAS FLUORESCENS	180.1108
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DESMEDIPHAM	180.353
DIALIFOR	180.326
N,N-DIALLYL DICHOROACETAMIDE	180.469,
DIATOMACEOUS EARTH	180.1026
DIAZINON	180.1017
DICAMBA	180.153
DICHL OBENIL	180.227
DICHLONE	180.231
DICHLONE	180.118

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Name	Section Number
4-(DICHLOROACETYL)-3,4-DI METHYL-2H-1,4-BENZOXAZINE	180.460
3-DICHLOROACETYL-5- (2-FARANYL)-2- DIMETHYLOXAZOLIDINE	180.471
4-(DICHLOROACETYL)- 1-OXA-4- AZASPIRO[4.5]DECANE	180.465
S-2,3-DICHLOROALLYL DIISOPROPYLTHIOCARBAMATE	180.277
2,4-DICHLORO-6-O-CHLOROANILI NO-S-TRI- AZINE	180.158
3,5-DICHLORO-N-(1,1-DIMETHYL-2- PROPYNYL) BENZAMINE	180.317
2,2-DICHLORO-N-(1,3-DIOXOLAN-2- YLMETHYL)-N- 2-PROPENYLACETAMIDE ...	180.1077
2,6-DICHLORO-4-NITROANILINE	180.200
4-(2,4-DICHLOROPHENOXY) BUTYRIC ACID 3-(3,5-DICHLOROPHENYL)-5-ETHENYL-5- METHYL-2,4-OX AZOLIDINEDIONE	180.331
1-[[2-(2,4-DICHLOROPHENYL)-4-PROPYL-1, 3- DIOXOLAN-2-YL] METHYL]-1H-1,2,4-TRI- AZOLE	180.380
2-(3,5-DICHLOROPHENYL)-2-(2 ,2- TRICHLOROETHYL)OXIRANE	180.434
2,2-DICHLOROVINYL DIMETHYL PHOSPHATE DICLOFOP-METHYL	180.424
3,7-DICHLORO-8- QUINOLINE CARBOXYLIC ACID	180.235
DIETHATYL-ETHYL	180.385
O,O-DIETHYL S-(2-(ETHYLTHIO)ETHYL PHOSPHORODITHIOATE	180.463
N,N-DIETHYL-2-(1-NAPHTHALENYLO XY)PROPIONAMIDE	180.402
O,O-DIETHYL-O- PHENYLPHOSPHOROTHIOATE	180.183
DIFENOCONAZOLE	180.328
DIFENZOQUAT	180.1066
DIFLUBENZU RON	180.475
2-[4,5-DIHYDRO-4-METHYL-4(1- METHYLETHYL)-5-OXO-1H-IMIDAZOL-2-YL]- 3-QUINOLINE CARBOXYLIC ACID	180.369
S-(O,O-DIISOPROPYL PHOSPHORODITHIOATE) OF N-(2- MERCAPTOETHYL) BENZENESULFONAMIDE	180.377
DIMETHENAMID,2-CHLORO-N-[1-METHYL- 2- METHOXY)ETHYL]-N-(2,4-DIMETHYLTHIEN- 3-YL)-ACETAMIDE	180.426
DIMETHIPIN	180.241
DIMETHOATE INCLUDING ITS OXYGEN ANA- LOG	180.464
O-[2-(1,1-DIMETHYLETHYL)-5-PYRIMIDNYL] O-ETHYL-O-(1- METHYLETHYL)PHOSPHOROTHIOATE	180.406
3,5-DIME THYL-4-(METHYLTHIO)PHENYL METHYLCARBAMATE	180.204
1,4-DIMETHYLNAPHTHALENE	180.483
O,O-DIMETHYL S-[[4-OXO-1,2,3- BENZOTRIAZIN-3(4H)-YL]METHYL] PHOSPHORODITHIOATE	180.320
O,O-DIMETHYL S-[[4-OXO-1,2,3- BENZOTRIAZIN-3(4H)-YL]METHYL] PHOSPHORODITHIOATE RESIDUES AND/ OR ITS METABOLITES IN MILK	180.1142
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DIMETHYL PHOSPHATE OF 3-HYDROXY-N- METHYL-CIS-CROTONAMIDE	180.296
DIMETHYL TETRACHLOROTEREPHTHALATE DIMETHYLFORMAMIDE	180.185
N N-DIMETHYLPYPERIDIUM CHLORIDE	180.1046
	180.384

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Name	Section Number
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2,6-DIMETHYL-4-TRIDECYLMORPHOLINE	18 0.372
4,6-DINITRO-O-CRESOL AND ITS SODIUM SALT	180.344
2,4-DINITRO-6-OCTYLPHENYL CROTONATE AND 2,6-DINITRO-4-OCTYLPHENYL CRO- TONATE	180.341
DIOXATHION	180.171
DIPHENAMID	180.230
DIPHENYLAMINE	180.190
DIPROPETRYN	180.329
DIPROPYL ISOCINCHOMERONATE	180.143
DIQUAT	180.226
DIURON	180.106
DODINE	180.172
EGG SOLIDS (WHOLE)	180.1071
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ENDOTHALL	180.293
ENDOTH ALL (7-OXABICYCLO-(2,2,1) HEPTANE 2,3-DICARBOXYLIC ACID); IN- TERIM TOLERANCE	180.319
ETHALFLURALIN	180.416
ETHEPHON	180.300
ETHION	180.173
ETHOPROP	180.262
ETHOFUMESATE	180.345
ETHOXYQUIN	180.178
5-ETHOXY-3-TRICHLOROMETHYL-1,2,4-THI ADIAZOLE	180.370
2-[1-(ETHOXYIMINO(BUTYL)-5-[2- (ETHYLTHIO)P ROPYL]-3-HYDROXY-2- CYCLOHEXENE-1-ONE	180.412
S-ETHYL CYCLOHEXYLETHYLTHIOCARBAMATE	180.212
ETHYL 4,4-DICHLOROENBENZILATE	180.109
S-ETHYL DIISOBUTYLTHIOCARBAMATE	180.232
S-ETHYL DIPROPYLTHIOCARBAMATE	180.117
S-ETHYL HEXAHYDRO-1H-AZEPINE-1- CARBOTHIOATE	180.228
ETHYL 3-METHYL-4-(METHYLTHIO) PHENYL (1-METHYLETHYL) PHOSPHORAMIDATE	180.349
O-ETHYL O-[4-(METHYLTHIO)PHENYL S- PROPYL PHOSPHORODITHIOATE	180.374
O-ETHYL S-PHENYL ETHYLPHOSPHONODITHIOATE	180.221
ETHYLENE	180.101 6
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ETHYLENE OXIDE	180.151
S-(2-(ETHYLSULFINYL)ETHYL) O,O-DI- METHYL PHOSPHOROTHIOATE	180.330
F. D. & C. BLUE NO. 1	180.1074
FENARIMOL	180.421
FENBUCONAZOLE	180.480
FE NOXAPROP-ETHYL	180.430
FENPROPATHRIN	180.466
FENRIDAZON	180.423
FENTHION	180.214
FERBAM	180.114
FLUAZIFOP-BUTY L	180.411
FLUCLORALIN	180.363
FLUMETSULAM	180.468
FL UMICLORAC PENTYL	180.477
FLUOMETURON	180.229
FLURIDONE	180.420
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Name	Section Number
(ALPHA RS,2R)-FLUVALINATE[(RS)-ALPHA-CYANO-3-PHENOXYBENZYL (R)-2-[2-CHLORO-4-(TRIFLUOROMETHYL)ANILINO] 3-METHYLBUTANOATE]	180.427
FLUTOLANIL (N-(3-(1-METHYLETHOXY)PHENYL)-2-(TRIFLUOROMETHYL)BENZAMIDE)	1 80.484
FOOD AND FOOD BY-PRODUCTS	180.1164
FOLPET	180.191
FORMALDEHYDE	180.1032
FORMETANATE HYDROCHLORIDE	180.276
GIBBERELLINS	180.224
GIBBERELLINS (GA ₃)	180.1098
GLIOCLADIUM VIRENS GL-21	180.1100
GLUFOSINATE AMMONIUM	180.473
GLYODIN	180.124
GLYPHOSATE	180.364
G OSSYPLURE	180.1043
HALOSULFURON	180.479
HEXACONAZOLE	180.488
(Z)-11-HEXADECENAL	180.1069
HEXAKIS(2-METHYL-2-PHE NYLPROPYL) DISTANNOXANE	180.362
HEXAZINONE	180.396
HEXYTHIAZOX	180.448
HIRSUTELLA THOMPSONII	180.1061
HYDROGEN CYANIDE	180.130
HYDROGENATED CASTOR OIL	180.1036
IMAZALIL	180.413
IMAZETHAPYR, AMMONIUM SALT	180.447
INCLUSION BODIES OF THE MULTINUCLEAR POLYHEDROSIS VIRUS OF ANAGRAPH FALCIFERA	180.1149
INDOLE BUTYRIC ACID	180.1099
INERT INGREDIENTS OF SEMIOCHEMICAL DISPENSERS	180.1122
INORGANIC BROMIDE RESIDUES IN PEANUT HAY AND PEANUT HULLS	180.123A
INORGANIC BROMIDES RESULTING FROM FUMIGATION WITH METHYL BROMIDE	180.123
INORGANIC BROMIDES RESULTING FROM SOIL TREATMENT WITH COMBINATIONS OF CHLOROPICRIN, METHYL BROMIDE, AND PROPARGYL BROMIDE	180.199
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IODINE-DETERGENT COMPLEX	180.1022
IPRODIONE	180.399
ISOBUTYRIC ACID	180.1030
ISOMATE-C	180.1103
ISOMATE-M	180.1073
I SOPROPYL M-CHLOROCARBANILATE (CIPC); INTERIM TOLERANCE	180.319
ISOPROPYL CARBANILATE (IPC); INTERIM TOLERANCE	180.319
JOJOBA OIL	180.1160
KILLED MYROTHECIUM VERRUCARIA	180.1163
KONTROL H.V.	180.1063
LACTIC ACID	180.1090
LACTOFEN	180.432
LAGENIDIUM GIGANTEUM	180.1113
LAMBDA-CYHALOTHRIN	180.438
LEPIDOPTERA N PHEROMONES	180.1153
LINDANE	180.133
LINURON	180.184
LINSEED OIL, BOILED	180.1056
MAGNESIUM PHOSPHIDE	180.375
MALATHION	180.111
MALEIC HYDRAZIDE	180.175
MANEB	180.110
MANGANOUS DIMETHYLDITHIOCARBAMATE	180.161

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CHEMICALS—Continued**

Name	Section Number
MEFLUIDIDE	180.386
MENTHO L	180.1092
N - (MERCAPTOMETHYL) PHTHALIMIDE S - (O,O - DIMETHYL PHOSPHORODITHIOATE) AND ITS OXYGEN ANALOG	180.261
METALAXYL	180.408
METARHIZIUM ANISOPLIAE STRAIN ESF1	180.1116
METHAMIDOPHOS	180.315
METHANEARSONIC ACID	180.289
METHAZOLE	180.357
METHIDATHION	180.298
M ETHOMYL	180.253
METHOPRENE	180.359,
	180.1033
1-(8-METHOXY-4,8-DIMETHYLNONYL)-4-(1-METHYLETHYL)BENZ ENE	180.1079
METHOXYCHLOR	180.120
METHYL-1-ALKYLAMIDO ETHYL-2-ALKYL-IMIDAZOLIUM METHYL SULFATE	180.1133
METHYL A-ELEOSTEARATE	180.1059
METHYL ANTHRANILATE	180.1143
METHYLENE CHLORIDE	180.1010
2-METHYL-4-CHLOROPHENOXYACETIC ACID	180.339
1-METHYL 2-[ETHOXY[(1-METHYLETHYL)AMINO] PHOSPHINOTHIOYL] BENZOATE	180.387
4-(2-METHYL-4-CHLOROPHENOXY) BUTYRIC ACID	180.318
METHYL 3-((DIMETHOXYPHOSPHINYLOXY) BUTENOATE, A AND B ISOMERS	180.157
6-METHYL-1,3-DITHIOLO (4,5-B) QUINOXALIN-2-ONE	180.338
METHYL EUGENOL/MALATHION COMBINATION	180.1067
METHYL 2-(4-ISOPROPYL-4-METHYL-5-OXO-2-IMIDAZOLIN-2-YL)-P-TOLUATE AND METHYL 6-(4-ISOPROPYL-4-METHYL-5-OXO-2-IMIDAZOLIN-2-YL)-M-TOLUATE	180.4 37
METOBROMURON	180.250
METOLACHLOR	180.368
METSULFURO N METHYL	180.428
MINERAL OIL	180.149
MONOCARBAMIDE DIHYDROGEN SULFATE	180.1084
MYCLOBUTANIL	180.443
NALED	180.215
A -NAPHTHALENEACETAMIDE	180.309
1-NAPHTHALENEACETIC ACID	180.155
B-NAPHTHOXYACETIC ACID	180.148
N-1-NAPHTHYL PHTHALAMIC ACID	180.297
NEOMYCIN PHOSPHOTRANSFERASE II AND THE GENETIC MATERIAL NECESSARY FOR ITS PRODUCTION	180.1134
NICOSULFURON [3-PYRIDINECARBOXAMIDE, 2-(((4,6-DIMETHOXYPYRIMIDIN-2-YL)AMINOCARBONYL) AMINOSULFONYL))-N, N-DIMETHYL]	180.454
NICOTINE-CONTAINING COMPOUNDS	180.167
NICOTINE	180.167A
NITRAPYRIN	180.350
NITROGEN	180.1050
NORFLURAZON	180.356
NOSEMA LOCUSTAE	180.1041
NUCLEAR POLYHEDROSIS VIRUS OF HELIOTHIS ZEA	180.1027
OCCULSION BODIES OF THE GRANULOSIS VIRUS OF CYDIA POMENELLA	180.1148
N-OCTYL	
BICYCLOHEPTENEDICARBOXIMIDE	180.367
2-N-OCTYL-4-ISOTHIAZOLIN- 3-ONE	180.366

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Name	Section Number
(E,Z)-3, 13-OCTADECADIEN-1-ol-ACETATE AND (Z,Z)-3,13-OCTADECADIEN-1-ol ACE- TATE	180.1055
N-(N-OCTYL)-2-PYRROLIDONE AND N-(N- DODECYL)-2-PYRROLIDONE	180.1130
ORTHOARSENIC ACID	180.180
ORYZALIN	180.304
OXADIAZON	180.346
OXADI XYL	180.456
OXAMYL	180.303
OXYFLUORFEN	180.381
OXYTET RACYCLINE	180.337
PARAFORMALDEHYDE	180.1024
PARAQUAT	180.205
PARASITIC (PARASITOID) AND PREDATORY INSECTS	180.1101
PARATHION OR ITS METHYL HOMOLOG	180.121
PARATHION (O,O-DIETHYL-O-P- NITROPHENYLTHIOPHOSPHATE) OR ITS METHYL HOMOLOG; INTERIM TOLERANCE	180.319
PASTEURIA PENETRANS	180.1135
PELARGONIC ACID	180.1159
PENDIMETHALIN	180.361
PENTACHLORONITROBE NZENE	180.291
PENTACHLORONITROBENZENE; INTERIM TOLERANCE	180.319
PENTANE	180.1014
PERMETHRIN	180.378
PHENMEDIPHAM	180.278
PHENOTHIAZINE; INTERIM TOLERANCE	180.319
O-PHENYLPHENOL AND ITS SODIUM SALT	180.129
PHORATE	180.206
PHOSALONE	180.263
PHOSPH AMIDON	180.239
PHOSPHINOTHRICIN ACETYLTRANSFERASE AND THE GENETIC MATERIAL NEC- CESSARY FOR ITS PRODUCTION (PLASMID VECTOR PCIB3064) IN CORN	180.1151
PHOSPHOROTHIOIC ACID, O,O-DIETHYL O- (1,2,2,2-TETRACHLOROETHYL)ESTER	180.486
PHYTOPHTHORA PALMIVORA	180.1057
PICLORAM	180.292
PINE OIL	180.1035
PIPERONYL BUTOXIDE	180.127
PIRIMIPHOS-METHYL	180.409
PLANT VOLATILES/PHEROMONE	180.1080
POLY-N-ACETYL-D-GLUCOS AMINE	180.1089
POLYAMIDE POLYMER DERIVED FROM SE- BACIC ACID	180.1053
POLYBUTENES	180.1037
POLY-D-GLUCOSAMINE	180.1072
POLYHEDRAL OCCLUSION BODIES OF AUTOGRAPHIA CALIFORNICA NUCLEAR POLYHEDROSIS VIRUS	180.1125
POLY (OX091,09ETHANEDIYL), ALPH09ISOCTADY09OMEG09HYDROXY POLYOXYMETHYLENE COPOLYMER	180.1078
POLYVINYL CHLORIDE	180.1038
POLY(VINYLPYRROLIDONE/1-EICOSENE)	180.1060
POLY(VINYLPYRROLIDONE/1-HEXADECENE)	180.1104
POTASSIUM OLEATE AND RELATED C ₁₂ -C ₁₈ FATTY ACID POTASSIUM SALTS	180.1105
POTASSIUM RICINOLEATE AND RELATED C ₁₂ -C ₁₈ FATTY ACID POTASSIUM SALTS	180.1068
PRIMISULFURON-METHYL	180.1085
PROCYMIDONE	180.452
PROFENOFOS	180.455
PROMETRYN	180.404
PROPANIL	180.222
PROPARGITE	180.274
	180.259

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Name	Section Number
PROPAZINE	180.243
PROPIONI C ACID	180.1023
S-PROPYL BUTYLETHYLTHIOCARBAMATE ...	180.238
S-PROPYL DIPROPYLTHIOCARBAMATE	180.240
PROPYLENE OXIDE	180.491
PROSULFURON	180.481
PSEUDOMONAS CEPACIA TYPE WISCONSIN PSEUDOMONAS FLUORESCENS A506, 1629RS, 742RS	180.1115
PSEUDOMONAS FLUORESCENS E091053	180.1114
PSEUDOMONAS FLUORESCENS STRAIN NCIB 12089	180.1088
PSEUDOMONAS SYRINGAE	180.1129
PUCCINIA CANALICULATA (ATCC 40199)	180.1145
PYRAZON	180.1123
PYRETHRINS	180.316
PY RIDATE	180.128
PYRITHIOPAC SODIUM SALT (SODIUM 2- CHLORO-6-[(4,6-DIMETHYLOXYPYRIMIDIN- 2-YL)THIO]BENZOATE	180.462
QUIZALOFOP-ETHYL	180.487
RIMSULFURON	180.441
SESON E	180.478
SIMAZINE (2-CHLORO-4,6-BIS(ETHYLAMINO)- S-TRIAZINE)	180.102
SIMAZINE (2-CHLORO-4,6-BIS(ETHYLAMINO)- S-TRIAZINE) AND METABOLITES	180.213
SODIUM ARSENITE (CALCULATED AS AS ₂ O ₃): INTERIM TOLERANCE	180.213A
SODIUM CHLORATE	180.319
SODIUM CHLORITE	180.1020
SODIUM DIACETATE	180.1070
SODIUM DEHYDROACETATE	180.1058
SODIUM DIMETHYLDITHIOCARBAMATE	180.159
SODIUM 5-NITROGUAICOLATE	180.152
SODIUM O-NITROPHENOLATE	180.1139
SODIUM P-NITROPHENOLATE	180.1140
SODIUM SALT OF ACIFLUORFEN	180.1141
SODIUM SALT OF FOMESAFEN	180.383
SPODOPTERA EXIGUA NUCLEAR POLYHEDROSIS VIRUS	180.433
STREPTOMYCES SP. STRAIN K61	180.1118
STREPTOMYCIN	180.1120
SULFONIUM, TRIMETHYL-SALT WITH N- (PHOSPHONOMETHYL)GLYCINE (1:1)	180.245
SULFUR DIOXIDE	180.489
SULFURIC ACID	180.444,
TARTAR EMETIC	180.1013
TEBUTHIURON	180.1019
TEFLUTHRIN	180.179
TEMEPHOS	180.390
TERBACIL	180.440
TEBUCONAZOLE	180.170
TERBUFOS	180.209
TERBUTRYN	180.474
1,2,4,5-TETRACHLORO -3-NITROBENZENE	180.352
TETRADIFON	180.265
TETRAETHYL PYROPHOSPHATE	180.203
TETRAHYDRO-5,5-DIMETHYL-2(1H)-PYRIM IDINONE (3-(4- TRIFLUOROMETHYL)PHENYL)-1-(2-4- (TRIFLUOROMETHYL)PHENYL)ETHENYL)-2- PROPENYLIDENE)HYDRAZONE	180.174
TETRAIODOETHYLENE	180.347
THIABENDAZOLE	180.395
THIDIAZU RON	180.162
	180.242
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Name	Section Number
THIFENSULFURON METHYL (METHYL-3-[[[[(4-METHOXY-6-METHYL-1,3,5-TRIAZIN-2-YL)AMINO]CARBON YL]AMINO]SULFONYL]-2-THIOPHENE CARBOXYLATE)	180.43
THIOBENCARB	180.401
2-(THIOCYANOMETHYLTHIO) BENZOTHAZOLE	180.288
THIODICARB	180.407
THIOPHANAT09METH YL	180.371
THIRAM	180.132
TOMATO PINWORM INSECT PHEROMONE ...	180.1064
TRALOMETHRIN	180.422
1-TRIACONTANOL	180.1081
TRIASULFURON	180.459
TRIBENURON METHYL	180.451
S,S,S-TRIBUTYL PHOSPHOROTRITHIOATE ...	180.272
TRIBUTYLPHOSPHOROTRITHIOITE	180.186
S-2,3,3-TRICHLOROALLYL DIISOPROPYLTHIOCARBAMATE	180.314
TRICHODERMA HARZIANUM, RIFAI STRAIN KRL-AG2	180.1102
TRICLOPYR	180.417
1,1,1-TRICHLOROETHANE	180.1012
2,3,6-TRICHLOROPHENYLACETIC ACID	180.283
TRIFLUMIZOLE	180.476
TRIFLURALIN	180.207
TRIFLUSULFURON METHYL	180.492
TRIFORINE	180.382
TRISULFURON	180.459
2,3,5-TRIODOBENZOIC ACID	180.219
2,2,5-TRIMETHYL-3-DICHLOROACETYL-1,3-OXAZOLIDINE	180.1052
3,7,11-TRIMETHYL-1,6,10-DODECATRIENE-1-OL AND 3,7,11-TRIMETHYL-2,6,10-DODECATRIENE-3-OL	180.1086
3, 4,5-TRIMETHYLPHENYL METHYL CARBAMATE AND 2,3,5-TRIMETHYLPHENYL METHYL CARBAMATE	180.305
TRIPHENYL TIN HYDROXIDE	180.236
UREA	180.1117
WATERMELON MOSAIC VIRUS-2 COAT PROTEIN, ZUCCHINI YELLOW MOSAIC VIRUS COAT PROTEIN, AND THE GENETIC MATERIAL NECESSARY FOR THE PRODUCTION OF THESE PROTEINS	180.1132
XYLENE	180.1025
ZINC PHOSPHIDE	180.284
ZINC SULFATE, BASIC	180.244
ZINEB	180.115
ZINEB (ZINC ETHYLENEBISDITHIOCARBAMATE); IN-TERIM TOLERANCE	180.319
ZIRAM	180.116

NOTE: The *Alphabetical Listing of Pesticide Chemicals* is a finding aid intended for the convenience of the reader. This list is compiled and kept up to date by the Environmental Protection Agency.

GLOSSARY

NOTE: The items in this glossary were compiled as an aid to the users of the Code of Federal Regulations. Inclusion or exclusion from this glossary has no legal significance.

APPLI = APPLICATION
C—I MET = CHOLINESTERASE — INHIBIT-
ING METABOLITES
CARB = CARBAMATES

EPWRR = EDIBLE PORTION WITH RIND
REMOVED

EXC = EXCEPT

I (IN PPM COLUMN) = INTERIM TOLER-
ANCE

INC = INCLUDING

K+CWHR=KERNEL PLUS COB WITH HUSK
REMOVED

MBYP = MEAT BYPRODUCTS

MIN = MINIMUM

N (IN PPM COLUMN) = NEGLIGIBLE RESI-
DUES

NMT = NOT MORE THAN

NON—PER BAG/PKGD RAC = NON-PERISH-
ABLE PACKAGED OR BAGGED RAW
AGRICULTURAL COMMODITY

PPM = PART(S) PER MILLION

POST—H = POSTHARVEST APPLICATION

PRE—H = PREHARVEST APPLICATION

PRE—S = PRESLAUGHTER APPLICATION

PRODS = PRODUCTS

T (IN PPM COLUMN) = TEMPORARY TOL-
ERANCE

[41 FR 4537, Jan. 30, 1976]

Subpart A—Definitions and Interpretative Regulations

DEFINITIONS AND INTERPRETATIONS

§ 180.1 Definitions and interpretations.

(a) *Administrator*, without qualifica-
tion, means the Administrator of the
Environmental Protection Agency.

(b) *Agency*, without qualification,
means the Environmental Protection
Agency.

(c) [Reserved]

(d) *Registration Division* means the
unit established within the Environ-
mental Protection Agency charged
with administration of the Pesticide
Residue amendment to the Federal
Food, Drug, and Cosmetic Act (section
408).

(e) Raw agricultural commodities in-
clude, among other things, fresh fruits,
whether or not they have been washed
and colored or otherwise treated in
their unpeeled natural form; vegetables
in their raw or natural state, whether
or not they have been stripped of their
outer leaves, waxed, prepared into
fresh green salads, etc.; grains, nuts,
eggs, raw milk, meats, and similar ag-
ricultural produce. It does not include
foods that have been processed, fab-
ricated, or manufactured by cooking,
freezing, dehydrating, or milling.

(f) Where raw agricultural commod-
ities bearing residues that have been
exempted from the requirement of a

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tolerance, or which are within a tolerance permitted under section 408 are used, the processed foods will not be considered unsafe within the meaning of section 406 if:

(1) The poisonous or deleterious pesticide residues have been removed to the extent possible in good manufacturing practice; and

(2) The concentration of the pesticide in the preserved or processed food when ready to eat is not greater than the tolerance permitted on the raw agricultural commodity.

(g) For the purpose of computing fees as required by § 180.33, each group of re-

lated crops listed in § 180.34(e) and each crop group or subgroup listed in § 180.41 is counted as a single raw agricultural commodity in a petition or request for tolerances or exemption from the requirement of a tolerance.

(h) Tolerances and exemptions established for pesticide chemicals in or on the general category of raw agricultural commodities listed in column A apply to the corresponding specific raw agricultural commodities listed in column B. However, a tolerance or exemption for a specific commodity in column B does not apply to the general category in column A.

A	B
Alfalfa	<i>Medicago sativa</i> , (alfalfa, lucerne); <i>Onobrychion viciaefolia</i> (sainfoin, holy clover, esparcet); and <i>Lotus corniculatus</i> (birdsfoot trefoil); and varieties and/or hybrids of these.
Bananas	Bananas, plantains.
Beans	<i>Cicer arietinum</i> (chick peas, garbanzo beans); <i>Lupinus</i> spp. (including sweet lupine, white sweet lupine, white lupine, and grain lupine). <i>Phaseolus</i> spp. (including kidney beans, lima beans, mung beans, navy beans, pinto beans, snap beans, and waxbeans); <i>Vicia faba</i> (broad beans, fava beans); <i>Vigna</i> spp. (including asparagus beans, blackeyed peas and cowpeas).
Beans (dry)	All beans above in dry form only.
Beans (succulent)	All beans above in succulent form only.
Blackberries	<i>Rubus eubatus</i> (including bingleberries, black satin berries, boysenberries, Cherokee blackberries, Chesterberries, Cheyenne blackberries, coryberries, darrowberries, dewberries, Dirksen thornless berries, Himalayaberries, hullberries, Lavacaberries, lowberries, Lucretiaberreries, mammoth blackberries, marionberries, nectarberries, olallieberries, Oregon evergreen berries, phenomenalberries, rangerberries, ravenberries, rossberries, Shawnee blackberries, and varieties and/or hybrids of these).
Broccoli	Broccoli, chinese broccoli (gia lon, white flowering broccoli).
Cabbage	Cabbage, Chinese cabbage (tight-heading varieties only).
Caneberries	<i>Rubus</i> spp. (including blackberries; <i>Rubus caesius</i> (youngberry); <i>Rubus loganbaccus</i> (loganberry); <i>Rubus occidentalis</i> , <i>idaeus</i> , and <i>strigosus</i> (red and black raspberries); and varieties and/or hybrids of these.
Celery	Celery, Florence fennel (sweet anise, sweet fennel, finocchio) (fresh leaves and stalks only).
Cherries	Sour cherries, sweet cherries.
Citrus fruits	Grapefruit, lemons, limes, oranges, tangelos, tangerines, citrus citron, kumquats, and hybrids of these.
Endive	Endive, escarole.
Lettuce	Lettuce, head; and lettuce, leaf
Lettuce, head	Lettuce, head; crisphead varieties only
Lettuce, leaf	Lettuce, leaf; cos (romaine), butterhead varieties
Marjoram	<i>Origanum</i> spp. (includes sweet or annual marjoram, wild marjoram or oregano, and pot marjoram).
Melons	<i>Muskmelons</i> , including hybrids and/or varieties of <i>Cucumis melo</i> (including true cantaloupe, cantaloupe, casaba, Santa Claus melon, crenshaw melon, honeydew melon, honey balls, Persian melon, golden pershaw melon, mango melon, pineapple melon, snake melon); and watermelons, including hybrids and/or varieties of (<i>Citrullus</i> spp.).
Muskmelons	<i>Cucumis melo</i> (includes true cantaloupe, cantaloupe, casaba, Santa Claus melon, crenshaw melon, honeydew melon, honey balls, Persian melon, golden pershaw melon, mango melon, pineapple melon, snake melon, and other varieties and/or hybrids of these.)
Onions	Dry bulb onions, green onions, and garlic.
Onions (dry bulbs only)	Garlic, onions (dry bulbs only), shallots (dry bulbs only).
Onions, green	Green onions, leeks, spring onions or scallions, Japanese bunching onions, green shallots, or green eschalots.
Oriental radish (root and tops)	<i>Raphanus sativus</i> var. <i>longipinnatus</i> (root and tops), including Chinese or Japanese radish (both white and red), winter radish, daikon, lobok, lo pak, and other cultivars and/or hybrids of these.
Peaches	Peaches, nectarines

A	B
Peas	<i>Cajanus cajan</i> (includes pigeon peas); <i>Cicer spp.</i> (includes chick peas and garbanzo beans); <i>Lens culinaris</i> (lentils); <i>Pisum spp.</i> (includes dwarf peas, garden peas, green peas, English peas, field peas, and edible pod peas). [Note: A variety of pesticide tolerances have been previously established for peas and/or beans. Chick peas/garbanzo beans are now classified in both the bean and the pea categories. For garbanzo beans/chick peas ONLY, the highest established pea or bean tolerance will apply to pesticide residues found in this commodity.]
Peas (dry)	All peas in dry form only.
Peas (succulent)	All peas in succulent form only.
Peppers	All varieties of peppers including pimientos and bell, hot, and sweet peppers.
Rapeseed	<i>Brassica napus</i> , <i>B. campestris</i> , and <i>Crambe abyssinica</i> (oilseed-producing varieties only which include canola and crambe.)
Sorghum (grain)	<i>Sorghum spp.</i> [sorghum (grain), sudangrass (seed crop), and hybrids of these grown for its seed].
Sorghum (fodder, forage)	<i>Sorghum spp.</i> [(sorghum (fodder, forage), sudangrass, and hybrids of these grown for fodder and/or forage)].
Squash	Pumpkins, summer, and winter squash.
Sugar apple	<i>Annona squamosa</i> L. (sugar apple, sweetsop, anon), and its hybrid <i>A. squamosa</i> L. x <i>A. cherimoya</i> M. (atemoya). Also <i>A. reticulata</i> L. (true custard apple).
Summer squash	Fruits of the gourd (<i>Cucurbitaceae</i>) family that are consumed when immature, 100% of the fruit is edible either cooked or raw, once picked it cannot be stored, has a soft rind which is easily penetrated, and if seeds were harvested they would not germinate; e.g., <i>Cucurbita pepo</i> (i.e., crookneck squash, straightneck squash, scallop squash, and vegetable marrow); <i>Lagenaria spp.</i> (i.e., spaghetti squash, hyotan, cucuzza); <i>Luffa spp.</i> (i.e., hechima, Chinese okra); <i>Momordica spp.</i> (i.e., bitter melon, balsam pear, balsam apple, Chinese cucumber); <i>Sechium edule</i> (chayote); and other cultivars and/or hybrids of these.
Sweet potatoes	Sweet potatoes, yams.
Tangerines	Tangerines (mandarins or mandarin oranges); tangelos, tangors, and other hybrids of tangerine with other citrus.
Tomatoes	Tomatoes, tomatillos.
Turnip tops or turnip greens	Broccoli raab (raab, raab salad), hanover salad, turnip tops (turnip greens).
Wheat	Wheat, triticale.

(i) Unless otherwise specified, tolerances and exemptions established under the regulations in this part apply to residues from only preharvest application of the chemical.

(j) Unless otherwise specified in this paragraph or in tolerance regulations prescribed in this part for specific pesticide chemicals, the raw agricultural commodity to be examined for pesticide residues, shall consist of the whole raw agricultural commodity.

(1) The raw agricultural commodity bananas, when examined for pesticide residues, shall not include any crown tissue or stalk.

(2) Shell shall be removed and discarded from nuts before examination for pesticide residues.

(3) Caps (hulls) shall be removed and discarded from strawberries before examination for pesticide residues.

(4) Stems shall be removed and discarded from melons before examination for pesticide residues.

(5) Roots, stems, and outer sheaths (or husks) shall be removed and discarded from garlic bulbs and dry bulb onions, and only the garlic cloves and

onion bulbs shall be examined for pesticide residues.

(6) Where a tolerance is established on a root vegetable including tops and/or with tops, and the tops and the roots are marketed together, they shall be analyzed separately and neither the pesticide residue on the roots nor the pesticide residue on the tops shall exceed the tolerance level, except that in the case of carrots, parsnips, and rutabagas, the tops shall be removed and discarded before analyzing roots for pesticide residues.

(7) The crowns (leaves at the top of the fruit) shall be removed and discarded from pineapples before examination for pesticide residues.

(8) The term *lima beans* means the beans and the pod.

(9) The term *peanuts* means the peanut meat after removal of the hulls.

(k) The term *pesticide chemical*, as defined in section 201(q) of the act, means any substance which, alone, in chemical combination, or in formulation with one or more other substances, is a “pesticide” within the meaning of the Federal Insecticide, Fungicide, and

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Rodenticide Act (7 U.S.C. 136(u)) and as defined in § 152.3 of regulations for its enforcement (40 CFR 152.3), as now in force or as hereafter amended, and which is used in the production, storage, or transportation of raw agricultural commodities.

(l) The term *negligible residue* means any amount of a pesticide chemical remaining in or on a raw agricultural commodity or group of raw agricultural commodities that would result in a daily intake regarded as toxicologically insignificant on the basis of scientific judgment of adequate safety data. Ordinarily this will add to the diet an amount which will be less than 1/2,000th of the amount that has been demonstrated to have no effect from feeding studies on the most sensitive animal species tested. Such toxicity studies shall usually include at least 90-day feeding studies in two species of mammals.

(m) The term *nonperishable raw agricultural commodity* means any raw agricultural commodity not subject to rapid decay or deterioration that would render it unfit for consumption. Examples are cocoa beans, coffee beans, field-dried beans, field-dried peas, grains, and nuts. Not included are eggs, milk, meat, poultry, fresh fruits, and vegetables such as onions, parsnips, potatoes, and carrots.

(n) The term *tolerance with regional registration* means any tolerance which is established for pesticide residues resulting from the use of the pesticide pursuant to a regional registration. Such a tolerance is supported by residue data from specific growing regions for a raw agricultural commodity. Individual tolerances with regional registration are designated in separate subsections in 40 CFR 180.101 through 180.999, as appropriate. Additional residue data which are representative of the proposed use area are required to expand the geographical area of usage of a pesticide on a raw agricultural commodity having an established "tolerance with regional registration." Persons seeking geographically broader registration of a crop having a "tolerance with regional registration" should contact the appropriate EPA product manager concerning additional

residue data required to expand the use area.

[36 FR 22540, Nov. 25, 1971]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.1, see the List of CFR Sections Affected in the Finding Aids section of this volume.

§ 180.2 Pesticide chemicals considered safe.

(a) As a general rule, pesticide chemicals other than benzaldehyde (when used as a bee repellant in the harvesting of honey), ferrous sulfate, lime, lime-sulfur, potassium carbonate, potassium polysulfide, potassium sorbate, sodium carbonate, sodium chloride, sodium hypochlorite, sodium polysulfide, sodium sesquicarbonate, sorbic acid, sulfur, and when used as plant desiccants, sodium metasilicate (not to exceed 4 percent by weight in aqueous solution) and when used as postharvest fungicide, citric acid, fumaric acid, oil of lemon, oil of orange, and sodium benzoate are not for the purposes of section 408(a) of the Act generally recognized as safe.

(b) Upon written request, the Registration Division will advise interested persons whether a pesticide chemical should be considered as poisonous or deleterious, or one not generally recognized by qualified experts, as safe.

(c) The training and experience necessary to qualify experts to evaluate the safety of pesticide chemicals for the purposes of section 408(a) of the Act are essentially the same as training and experience necessary to qualify experts to serve on advisory committees prescribed by section 408(g) of the Act. (See § 180.11.)

[60 FR 42460, Aug. 16, 1995]

§ 180.3 Tolerances for related pesticide chemicals.

(a) Pesticide chemicals that cause related pharmacological effects will be regarded, in the absence of evidence to the contrary, as having an additive deleterious action. (For example, many pesticide chemicals within each of the following groups have related pharmacological effects: Chlorinated organic

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pesticides, arsenic-containing chemicals, metallic dithiocarbamates, cholinesterase-inhibiting pesticides.)

(b) Tolerances established for such related pesticide chemicals may limit the amount of a common component (such as As_2O_3) that may be present, or may limit the amount of biological activity (such as cholinesterase inhibition) that may be present, or may limit the total amount of related pesticide chemicals (such as chlorinated organic pesticides) that may be present.

(c)(1) Where tolerances for inorganic bromide in or on the same raw agricultural commodity are set in two or more sections in this part (example: §§ 180.123 and 180.199), the overall quantity of inorganic bromide to be tolerated from use of the same pesticide in different modes of application or from two or more pesticide chemicals for which tolerances are established is the highest of the separate applicable tolerances. For example, where the bromide tolerance on asparagus from methyl bromide commodity fumigation is 100 parts per million (40 CFR 180.123) and on asparagus from methyl bromide soil treatment is 300 parts per million (40 CFR 180.199), the overall inorganic bromide tolerance for asparagus grown on methyl bromide-treated soil and also fumigated with methyl bromide after harvest is 300 parts per million.

(2) Where tolerances are established in terms of inorganic bromide residues only from use of organic bromide fumigants on raw agricultural commodities, such tolerances are sufficient to protect the public health, and no additional concurrent tolerances for the organic pesticide chemicals from such use are necessary. This conclusion is based on evidence of the dissipation of the organic pesticide or its conversion to inorganic bromide residues in the food when ready to eat.

(d)(1) Where tolerances are established for both calcium cyanide and hydrogen cyanide on the same raw agricultural commodity, the total amount of such pesticides shall not yield more residue than that permitted by the larger of the two tolerances, calculated as hydrogen cyanide.

(2) Where tolerances are established for residues of both *O,O*-diethyl *S*-[2-(ethylthio)ethyl] phosphorodithioate

and demeton (a mixture of *O,O*-diethyl *O*-(and *S*-) [2-(ethylthio)ethyl] phosphorothioates) on the same raw agricultural commodity, the total amount of such pesticides shall not yield more residue than that permitted by the larger of the two tolerances, calculated as demeton.

(3) Where tolerances are established for both terpene polychlorinates (chlorinated mixture of camphene, pinene, and related terpenes, containing 65–66 percent chlorine) and toxaphene (chlorinated camphene containing 67–69 percent chlorine) on the same raw agricultural commodities, the total amount of such pesticides shall not yield more residue than that permitted by the larger of the two tolerances, calculated as a chlorinated terpene of molecular weight 396.6 containing 67 percent chlorine.

(4) Where a tolerance is established for more than one pesticide containing arsenic found in, or on a raw agricultural commodity, the total amount of such pesticide shall not exceed the highest established tolerance calculated as As_2O_3 .

(5) Where tolerances are established for more than one member of the class of dithiocarbamates listed in paragraph (e)(3) of this section on the same raw agricultural commodity, the total residue of such pesticides shall not exceed that permitted by the highest tolerance established for any one member of the class, calculated as zinc ethylenebisdithiocarbamate.

(6) Where tolerances are established for residues of both *S,S,S*-tributyl phosphorotrithioate and tributyl phosphorotrithioate in or on the same raw agricultural commodity, the total amount of such pesticides shall not yield more residue than that permitted by the higher of the two tolerances, calculated as *S,S,S*-tributyl phosphorotrithioate.

(7) Where tolerances are established for residues of α -naphthaleneacetamide and/or α -naphthaleneacetic acid in or on the same raw agricultural commodity, the total amount of such pesticides shall not yield more residue than that permitted by the higher of the two tolerances, calculated as α -naphthaleneacetic acid.

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(8) Where tolerances are established for residues of *O,S*-dimethyl phosphoramidothioate, resulting from the use of acephate (*O,S*-dimethyl acetylphosphoramidothioate) and/or *O,S*-dimethylphosphoramidothioate on the same agricultural commodity, the total amount of *O,S*-dimethyl-phosphoramidothioate shall not yield more residue than that permitted by the higher of the two tolerances.

(9) Where a tolerance is established for more than one pesticide having the metabolites 1-(3,4-dichlorophenyl)-3-methylurea (DCPMU) and 3,4-dichlorophenylurea (DCPU) found in or on a raw agricultural commodity, the total amount of such residues shall not exceed the highest established tolerance for a pesticide having these metabolites.

(10) Where a tolerance is established for more than one pesticide having as metabolites compounds containing the benzimidazole moiety found in or on a raw agricultural commodity, the total amount of such residues shall not exceed the highest established tolerance for a pesticide having these metabolites.

(11) Where a tolerance is established for triclopyr, chlorpyrifos, and chlorpyrifos-methyl having the common metabolite 3,5,6-trichloro-2-pyridinol on the same raw agricultural commodity, the total amount of such residues shall not exceed the highest established tolerance for any of the pesticides having the metabolites.

(12) Where tolerances are established for more than one pesticide having the metabolite 3,5,6-trichloro-2-pyridinol found in or on the raw agricultural commodity, the total amount of such residues shall not exceed the highest established tolerance for a pesticide having this metabolite.

(13) Where tolerances are established for residues of both 1-(4-chlorophenoxy)-3,3-dimethyl-1-(1*H*-1,2,4-triazol-1-yl)-2-butanone (triadimefon) and beta-(4-chlorophenoxy)-alpha-(1,1-dimethylethyl)-1*H*-1,2,4-triazole-1-ethanol (triadimenol) including its butanediol metabolite, 4-(4-chlorophenoxy)-2,2-dimethyl-4-(1*H*-1,2,4-triazol-1-yl)-1,3-butanediol, in or on the same raw agricultural commodity and its products thereof, the total amount of such resi-

dues shall not yield more residue than that permitted by the higher of the two tolerances.

(14) Where tolerances are established for residues of methomyl, resulting from the use of thiodicarb and/or methomyl on the same raw agricultural commodity, the total amount of methomyl shall not yield more residue than that permitted by the higher of the two tolerances.

(e) Except as noted in paragraphs (e)(1) and (2) of this section, where residues from two or more chemicals in the same class are present in or on a raw agricultural commodity the tolerance for the total of such residues shall be the same as that for the chemical having the lowest numerical tolerance in this class, unless a higher tolerance level is specifically provided for the combined residues by a regulation in this part.

(1) Where residues from two or more chemicals in the same class are present in or on a raw agricultural commodity and there are available methods that permit quantitative determination of each residue, the quantity of combined residues that are within the tolerance may be determined as follows:

(i) Determine the quantity of each residue present.

(ii) Divide the quantity of each residue by the tolerance that would apply if it occurred alone, and multiply by 100 to determine the percentage of the permitted amount of residue present.

(iii) Add the percentages so obtained for all residues present.

(iv) The sum of the percentages shall not exceed 100 percent.

(2) Where residues from two or more chemicals in the same class are present in or on a raw agricultural commodity and there are available methods that permit quantitative determinations of one or more, but not all, of the residues, the amounts of such residues as may be determinable shall be deducted from the total amount of residues present and the remainder shall have the same tolerance as that for the chemical having the lowest numerical tolerance in that class. The quantity of combined residues that are within the tolerance may be determined as follows:

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(i) Determine the quantity of each determinable residue present.

(ii) Deduct the amounts of such residues from the total amount of residues present and consider the remainder to have the same tolerance as that for the chemical having the lowest numerical tolerance in that class.

(iii) Divide the quantity of each determinable residue by the tolerance that would apply if it occurred alone and the quantity of the remaining residue by the tolerance for the chemical having the lowest numerical tolerance in that class and multiply by 100 to determine the percentage of the permitted amount of residue present.

(iv) Add the percentages so obtained for all residues present.

(v) The sum of the percentages shall not exceed 100 percent.

(3) The following pesticides are members of the class of dithiocarbamates:

A mixture of 5.2 parts by weight of ammoniates of [ethylenebis (dithiocarbamate)] zinc with 1 part by weight ethylenebis [dithiocarbamic acid] bimolecular and trimolecular cyclic anhydrosulfides and disulfides.

2-Chloroallyl diethyldithiocarbamate.

Coordination product of zinc ion and maneb containing 20 percent manganese, 2.5 percent zinc, and 77.5 percent ethylenebis-dithiocarbamate.

Ferbam.

Maneb.

Manganous dimethyldithiocarbamate.

Sodium dimethyldithiocarbamate.

Thiram.

Zineb.

Ziram.

(4) The following are members of the class of chlorinated organic pesticides:

Aldrin.

BHC (benzene hexachloride).

1,1 - Bis(*p*-chlorophenyl) - 2,2,2-trichloro-ethanol.

Chlorbenside (*p*-chlorobenzyl *p*-chlorophenyl sulfide).

Chlordane.

Chlorobenzilate (ethyl 4,4'-dichlorobenzilate).

p-Chlorophenoxyacetic acid.

p-Chlorophenyl-2,4,5-trichlorophenyl sulfide.

2,4-D (2,4-dichlorophenoxyacetic acid).

DDD (TDE).

DDT.

1,1 - Dichloro - 2,2 - bis(*p*-ethylphenyl) ethane.

2,6-Dichloro-4-nitroaniline.

2,4-Dichlorophenyl *p*-nitrophenyl ether.

Dieldrin.

Dodecachlorooctahydro - 1,3,4 - metheno-2*H*-cyclobuta[*cd*]pentalene.

Endosulfan (6,7,8,9,10,10-hexachloro-1,5,5a,6,9,9a-hexahydro-6,9-methano - 2,4,3 - benzodioxathiepin-3-oxide).

Endosulfan sulfate (6,7,8,9,10,10-hexachloro-1,5,5a,6,9,9a-hexahydro- 6,9 - methano - 2,4,3-benzodioxathiepin-3,3-dioxide).

Heptachlor (1,4,5,6,7,8,8-heptachlor-3a,4,7,7a-tetrahydro-4,7-methanoindene).

Heptachlor epoxide (1,4,5,6,7,8,8-heptachloro -2,3 - epoxy - 2,3,3a,4,7,7a-hexahydro-4,7-methanoindene).

Hexachlorophene (2,2'-methylenebis(3,4,6-trichlorophenol) and its monosodium salt.

Isopropyl 4,4'-dichlorobenzilate.

Lindane.

Methoxychlor.

Ovex (*p*-chlorophenyl *p*-chlorobenzene-sulfonate).

Sesone (sodium 2,4-dichlorophenoxyethyl sulfate, SES).

Sodium 2,4-dichlorophenoxyacetate.

Sodium trichloroacetate.

Sulphenone (*p*-chlorophenyl phenyl sulfone).

Terpene polychlorinates (chlorinated mixture of camphene, pinene, and related terpenes 65–66 percent chlorine).

2,3,5,6-Tetrachloronitrobenzene.

Tetradifon (2,4,5,4'-tetrachlorodiphenyl sulfone).

Toxaphene (chlorinated camphene).

Trichlorobenzoic acid.

Trichlorobenzyl chloride.

(5) The following are members of the class of cholinesterase-inhibiting pesticides:

Acephate (*O,S*-dimethyl acetyl-phosphoramidothioate) and its cholinesterase-inhibiting metabolite *O,S*-dimethyl phosphoramidothioate.

Aldicarb (2-methyl-2-(methylthio) propionaldehyde *O*-(methylcarbamoyl)oxime) and its cholinesterase-inhibiting metabolites 2-methyl-2-(methylsulfonfyl)propionaldehyde *O*-(methycarbamoyl)oxime and 2-methyl-2-(methylsulfonfyl)propionaldehyde *O*-(methylcarbamoyl)oxime.

4-*tert*-Butyl-2-chlorophenyl methyl methyl phosphoramidate.

S-[(*tert*-Butylthio)methyl] *O,O*-diethyl phosphorodithioate and its cholinesterase-inhibiting metabolites.

Carbaryl (1-naphthyl *N*-methylcarbamate).

Carbofuran (2,3-dihydro-2,2-dimethyl-7-benzofuranyl-*N*-methylcarbamate).

Carbofuran metabolite (2,3-dihydro-2,2-dimethyl-3-hydroxy-7-benofuranyl *N*-methylcarbamate).

Carbophenothion (*S*- [(*p*-chlorophenyl) thiolmethyl] *O,O*-diethyl phosphorodithioate) and its cholinesterase-inhibiting metabolites.

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Chlorpyrifos (*O,O*-diethyl *O*-(3,5,6-trichloro-2-pyridyl)phosphorothioate).

Chlorpyrifos-methyl (*O,O*-dimethyl-*O*-(3,5,6-trichloro-2-pyridyl) phosphorothioate. 2-Chloro-1-(2,4,5-trichlorophenyl)vinyl dimethyl phosphate.

2-Chloro-1-(2,4-dichlorophenyl) vinyl dimethyl phosphate.

Coumaphos (*O,O*-diethyl *O*-3-chloro-4-methyl-2-oxo-2*H*-1-benzopyran-7-yl phosphan-7-yl phosphate).

Coumaphos oxygen analog (*O,O*-diethyl *O*-3-chloro-4-methyl-2-oxo-2*H*-1-benzopyrophosphorothioate).

Dialifor (*S*-(2-chloro-1-phthalimidoethyl) *O,O*-diethyl phosphorodithioate).

Dialifor oxygen analog (*S*-(2-chloro-1-phthalimidoethyl) *O,O*-diethyl phosphorothioate).

Demeton (a mixture of *O,O*-diethyl *O*-(and *S*) [2-ethylthio]ethyl] phosphorothioates).

Ethiolate (*S*-ethyl diethylthiocarbamate).

2,2-Dichlorovinyl dimethyl phosphate.

O,O-Diethyl *S*-[2-(ethylthio)ethyl] phosphorodithioate and its cholinesterase-inhibiting metabolites.

O,O-Diethyl *O*-(2-diethylamino-6-methyl-4-pyrimidinyl) phosphorothioate and its oxygen analog diethyl 2-diethylamino-6-methyl-4-pyrimidinyl phosphate.

O,O-Diethyl *O*-(2-isopropyl-4-methyl-6-pyrimidinyl) phosphorothioate.

O,O-Diethyl *O*-[*p*-(methylsulfinyl)phenyl] phosphorothioate and its cholinesterase-inhibiting metabolites.

Diethyl 2-pyrazinyl phosphate.

O,O-Diethyl *O*-2-pyrazinyl phosphorothioate.

S-(*O,O*-Diisopropyl phosphorodithioate) of *N*-(2-mercaptoethyl) benzenesulfonamide

S-(*O,O*-Diisopropyl phosphorodithioate) of *N*-(2-mercaptoethyl) benzenesulfonamide

2 - (Dimethylamino) - 5,6 - dimethyl - 4-pyrimidinyl dimethylcarbamate and its metabolites 5,6-dimethyl-2-(formylmethylamino)-4-pyrimidinyl dimethylcarbamate and 5,6-dimethyl-2-(methylamino)-4-pyrimidinyl dimethylcarbamate (both calculated as parent).

Dimethoate (*O,O*-dimethyl *S*-(*N*-methylcarbamoylmethyl) phosphorodithioate).

Dimethoate oxygen analog (*O,O*-dimethyl *S*-(*N*-methylcarbamoylmethyl) phosphorothioate).

O,O-Dimethyl *O*-*p*-(dimethylsulfamoyl) phenyl phosphate.

O,O-Dimethyl *O*-*p*-(dimethylsulfamoyl) phenyl phosphorothioate.

3,5-Dimethyl-4-(methylthio) phenyl methylcarbamate.

O,O-Dimethyl *S*-[4-oxo-1,2,3-benzotriazin-3-(4*H*)-ylmethyl] phosphorodithioate.

Dimethyl phosphate of 3-hydroxy-*N,N*-dimethyl-*cis*-crotonamide.

Dimethyl phosphate of 3-hydroxy-*N*-methyl-*cis*-crotonamide.

Dimethyl phosphate of α -methylbenzyl 3-hydroxy-*cis*-crotonate.

O,O-Dimethyl 2,2,2-trichloro-1-hydroxyethyl phosphonate.

O,O-Dimethyl phosphorodithioate, *S*-ester with 4-(mercaptomethyl)-2-methoxy- Δ^2 -1,3,4-thiadiazolin-5-one.

Dioxathion (2,3-*p*-dioxanedithiol *S,S*-bis(*O,O*-diethylphosphorodithioate)) containing approximately 70 percent *cis* and *trans* isomers and approximately 30 percent related compounds.

EPN.

Ethephon ((2- - chloroethyl) phosphonic acid).

Ethion.

Ethion oxygen analog (*S*-[[[(diethoxyphosphinothioyl)thio] methyl] *O,O*-diethyl phosphorothioate).

O-Ethyl *O*-[4-(methylthio) phenyl] *S*-propyl phosphorodithioate and its cholinesterase-inhibiting metabolites.

O-Ethyl *S,S*-dipropylphosphorodithioate.

Ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl) phosphoramidate and its cholinesterase-inhibiting metabolites.

O-Ethyl *S*-phenyl ethylphosphonodithioate.

O-Ethyl *S*-phenyl ethylphosphonothiolate.

m-(1-Ethylpropyl)phenyl methylcarbamate.

S-[2-Ethylsulfinyl]ethyl] *O,O*-dimethyl phosphorothioate and its cholinesterase-inhibiting metabolites, (primarily *S*-[2-(ethylsulfonyl)ethyl] *O,O*-dimethyl phosphorothioate).

Fenthion (*O,O*-dimethyl *O*-[3-methyl-4-(methylthio)phenyl]phosphorothioate and its cholinesterase-inhibiting metabolites.

Malathion.

N-(Mercaptomethyl)phthalimide *S*-(*O,O*-dimethyl phosphorodithioate).

N-(Mercaptomethyl)phthalimide *S*-(*O,O*-dimethyl phosphorothioate).

Methomyl (*S*-methyl *N*-[(methylcarbamoyl)oxy]thioacetimidate).

1-Methoxycarbonyl-1-propen-2-yl dimethyl phosphate and its beta isomer.

m-(1-Methylbutyl)phenyl methylcarbamate.

Methyl parathion.

Naled (1,2-dibromo-2,2-dichloroethyl dimethyl phosphate).

Oxamyl (methyl *N,N'*-dimethyl-*N*-[(methylcarbamoyl)oxy] - 1 - thiooxamimidate)

Parathion.

Phorate (*O,O*-diethyl *S*-(ethylthio)methyl phosphorodithioate) and its cholinesterase-inhibiting metabolites.

Phosalone (*S*-(6-chloro-3-mercaptomethyl)-2 - benzoxazolinone) *O,O* - diethyl phosphorodithioate).

Phosphamidon (2-chloro-2-diethylcarbamoyl-1-methylvinyl dimethyl phosphate) including all of its related cholinesterase-inhibiting compounds.

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Pirimiphos-methyl *O*-[2-diethylamino-6-methyl-pyrimidinyl] *O*,*O*-dimethyl phosphorothioate

Ronnel.

Schradan (octamethylpyrophosphoramide).
Tetraethyl pyrophosphate.

O,*O*,*O*',*O*'-Tetramethyl *O*,*O*'-sulfinyldi-*p*-phenylene phosphorothioate.

O,*O*,*O*',*O*'-Tetramethyl *O*,*O*'-thiodi-*p*-phenylene phosphorothioate.

Tributyl phosphorotritioite.

S,*S*,*S*-Tributyl phosphorothrithioate.

3,4,5-Trimethylphenyl methylcarbamate and its isomer 2,3,5-trimethylphenyl methylcarbamate.

(6) The following pesticides are members of the class of dinitrophenols:

2,4-Dinitro-6-octylphenyl crotonate and 2,6-dinitro-4-octylphenyl crotonate, mixture of.

4,6-Dinitro-*o*-cresol and its sodium salt.

Dinoseb (2-sec-butyl-4,6-dinitrophenol) and its alkanolamine, ammonium, and sodium salts.

[41 FR 8969, Mar. 2, 1976, as amended at 41 FR 10605, Mar. 12, 1976; 41 FR 20660, May 20, 1976; 41 FR 51401, Nov. 22, 1976; 42 FR 6582, Feb. 3, 1977; 43 FR 12682, Mar. 27, 1978; 49 FR 44465, Nov. 7, 1984; 49 FR 45852, Nov. 21, 1984; 50 FR 18485, May 1, 1985; 50 FR 26684, June 27, 1985; 51 FR 28228, Aug. 6, 1986; 54 FR 31835, Aug. 2, 1989; 57 FR 1649, Jan. 15, 1992; 58 FR 65555, Dec. 15, 1993]

§ 180.4 Certification of usefulness and residue estimate.

The time period for the Agency's consideration of a petition will not begin to run until the Administrator of the Environmental Protection Agency certifies that the pesticide chemical involved is useful and gives an opinion whether the tolerance proposed by the petitioner reasonably reflects the amount of residue likely to result when the pesticide chemical is used in the manner proposed. The tolerance thereafter established ordinarily will not exceed that figure which the Administrator of the Environmental Protection Agency states, in his opinion, reasonably reflects the amounts of residue likely to result.

§ 180.5 Zero tolerances.

A zero tolerance means that no amount of the pesticide chemical may remain on the raw agricultural commodity when it is offered for shipment. A zero tolerance for a pesticide chemical in or on a raw agricultural com-

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modity may be established because, among other reasons:

(a) A safe level of the pesticide chemical in the diet of two different species of warm-blooded animals has not been reliably determined.

(b) The chemical is carcinogenic to or has other alarming physiological effects upon one or more of the species of the test animals used, when fed in the diet of such animals.

(c) The pesticide chemical is toxic, but is normally used at times when, or in such manner that, fruit, vegetables, or other raw agricultural commodities will not bear or contain it.

(d) All residue of the pesticide chemical is normally removed through good agricultural practice such as washing or brushing or through weathering or other changes in the chemical itself, prior to introduction of the raw agricultural commodity into interstate commerce.

§ 180.6 Pesticide tolerances regarding milk, eggs, meat, and/or poultry; statement of policy.

(a) When establishing tolerances for pesticide residues in or on raw agricultural commodities, consideration is always given to possible residues of those pesticide chemicals or their conversion products entering the diet of man through the ingestion of milk, eggs, meat, and/or poultry produced by animals fed agricultural products bearing such pesticide residues. In each instance an evaluation of all available data will result in a conclusion either:

(1) That finite residues will actually be incurred in these foods from feed use of the raw agricultural commodity including its byproducts; or

(2) That it is not possible to establish with certainty whether finite residues will be incurred, but there is a reasonable expectation of finite residues; or

(3) That it is not possible to establish with certainty whether finite residues will be incurred, but there is no reasonable expectation of finite residues.

(b) When the data show that finite residues will actually be incurred in milk, eggs, meat, and/or poultry, a tolerance will be established on the raw agricultural commodity used as feed provided that tolerances can be established at the same time, on the basis of

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the toxicological and other data available, for the finite residues incurred in milk, eggs, meat, and/or poultry. When it is not possible to determine with certainty whether finite residues will be incurred in milk, eggs, meat, and/or poultry but there is a reasonable expectation of finite residues in light of data reflecting exaggerated pesticides levels in feeding studies, a tolerance will be established on the raw agricultural commodity provided that appropriate tolerances can be established at the same time, on the basis of the toxicological and other data available, for the finite residues likely to be incurred in these foods through the feed use of the raw agricultural commodity or its byproducts. When it is not possible to determine with certainty whether finite residues will be incurred in milk, eggs, meat, and/or poultry but there is no reasonable expectation of finite residues in light of data such as those reflecting exaggerated pesticide levels in feeding studies and those elucidating the biochemistry of the pesticide chemical in the animal, a tolerance may be established on the raw agricultural commodity without the necessity of a tolerance on food products derived from the animal.

(c) The principles outlined in paragraphs (a) and (b) of this section will also be followed with respect to tolerances for residues which will actually be incurred or are reasonably to be expected in milk, eggs, meat, and/or poultry by the use of pesticides directly on the animal or administered purposely in the feed or drinking water.

(d) Tolerances contemplated by paragraphs (a) and (b) of this section will in addition to toxicological considerations be conditioned on the availability of a practicable analytical method to determine the pesticide residue; that is, the method must be sensitive and reliable at the tolerance level or in special cases at a higher level where such level is deemed satisfactory and safe in light of the toxicity of the pesticide residue and of the unlikelihood of such residue exceeding the tolerance. The analytical methods to be used for enforcement purposes will be those set forth in the "Pesticide Analytical Manual" (see § 180.101(c)). The sensitivities

of these methods are expressed in that manual.

Subpart B—Procedural Regulations

PROCEDURE FOR FILING PETITIONS

§ 180.7 Petitions proposing tolerances or exemptions for pesticide residues in or on raw agricultural commodities.

(a) Petitions to be filed with the Agency under the provisions of section 408(d) shall be submitted in duplicate to the Registration Division. If any part of the material submitted is in a foreign language, it shall be accompanied by an accurate and complete English translation. The petition shall be accompanied by an advance deposit for fees described in § 180.33. The petition shall state petitioner's mail address to which notice of objection under section 408(d)(5) may be sent.

(b) Petitions shall include the following data and be submitted in the following form:

(Date)

Registration Division,
Environmental Protection Agency,
Washington, D.C. 20460

Dear Sirs:

The undersigned, _____, submits this petition pursuant to section 408(d)(1) of the Federal Food, Drug, and Cosmetic Act with respect to the pesticide chemical _____.

Attached hereto, in duplicate and constituting a part of this petition, are the following:

A. The name, chemical identity, and composition of the pesticide chemical. (If the pesticide chemical is an ingredient of an economic poison, the complete quantitative formula of the resulting economic poison should be submitted. The submission of this information does not restrict the application of any tolerance or exemption granted to the specific formula(s) submitted.)

B. The amount, frequency, and time of application of the pesticide chemical.

C. Full reports of investigations made with respect to the safety of the pesticide chemical. (These reports should include, where necessary, detailed data derived from appropriate animal or other biological experiments in which the methods used and the results obtained are clearly set forth.)

D. The results of tests on the amount of residue remaining, including a description of the analytical method used. (See § 180.34 for further information about residue tests.)

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E. Practicable methods for removing residue that exceeds any proposed tolerance.

F. Proposed tolerances for the pesticide chemical if tolerances are proposed.

G. Reasonable grounds in support of the petition.

Enclosed is (money order, bank draft, or certified check) for \$_____, payable to the Environmental Protection Agency to cover clerical operations, initial administrative review, and the cost incurred in considering the petition after it has been filed.

Very truly yours,

(Petitioner)

Per _____
(Indicate authority)

Mail address _____
This petition must be signed by the petitioner or by his attorney or agent, or (if a corporation) by an authorized official.

The data specified under the several lettered headings should be on separate sheets or sets of sheets, suitably identified. If such data have already been submitted with an earlier application, the present petition may incorporate it by reference to the earlier one.

The petition shall be submitted in duplicate. The petitioner shall show that he has registered or has submitted an application for the registration of an economic poison containing the pesticide chemical under the Federal Insecticide, Fungicide, and Rodenticide Act.

(c) Except as noted in paragraph (d) of this section, a petition shall not be accepted for filing if any of the data prescribed by section 408(d) are lacking or are not set forth so as to be readily understood. The availability to the public of information provided to, or otherwise obtained by, the Agency under this part shall be governed by part 2 of this chapter.

(d) The Registration Division shall notify the petitioner within 15 days after its receipt of acceptance or non-acceptance of a petition, and if not accepted the reasons therefor. Copy of the notice shall be sent to the Registration Division, Environmental Protection Agency. If accepted, the date of notification becomes the date of filing for the purposes of section 408(d)(1). If petitioner desires, he may supplement a deficient petition after notification as to deficiencies. If the supplementary material or explanation of petition is deemed acceptable, petitioner shall be notified, and date of such notification

becomes the date of filing. If the petitioner does not wish to supplement or explain the petition and requests in writing that it be filed as submitted, the petition shall be filed and the petitioner so notified. The date of such notification becomes the date of filing. The Administrator shall publish in the FEDERAL REGISTER within 30 days a notice of filing, name of petitioner, and a brief outline of the petition, including description of analytical method or reference to a publication in which it appears, if such publication is generally available.

(e) The Registration Division may request a sample of the pesticide chemical at any time while a petition is under consideration. The Registration Division shall specify in its request for a sample of the pesticide chemical, a quantity which it deems adequate to permit tests of analytical methods used to determine residues of the pesticide chemical and of methods proposed by the petitioner for removing any residues of the chemical that exceed the tolerance proposed. The date used for computing the 90-day limit for the purposes of section 408(d)(2) shall be moved forward 1 day for each day in excess of 15 from the mailing date of the request taken by the petitioner to submit the sample. If the sample is not submitted within 180 days after mailing date of the request, the petition will be considered withdrawn without prejudice.

(f) The date of receipt from the Administration of certification as to usefulness shall be the date used for computing the 90-day limit for the purposes of section 408(d)(2).

(g) If the petition is not referred to an advisory committee, or upon receipt of the report of an advisory committee under § 180.12(c) if such a referral occurred, the Administrator shall determine, in accordance with the Act, whether to issue an order that establishes, modifies, or revokes a tolerance regulation (whether or not in accord with the action proposed by the petitioner), or whether to publish a proposed tolerance regulation and request public comment thereon under § 180.29. The Administrator shall publish in the

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FEDERAL REGISTER such order or proposed regulation. After receiving comments on any proposed regulation, the Administrator may issue an order that establishes modifies, or revokes a tolerance regulation. An order published under this section shall describe briefly how to submit objections and requests for a hearing under part 178 of this chapter. A regulation issued under this section shall be effective on the date of publication in the FEDERAL REGISTER unless otherwise provided in the regulation.

[36 FR 22540, Nov. 25, 1971, as amended at 41 FR 36918, Sept. 1, 1976; 46 FR 34345, July 1, 1981; 55 FR 21200, May 23, 1990; 55 FR 50299, Dec. 5, 1990]

§ 180.8 Withdrawal of petitions without prejudice.

In some cases the Registration Division or an advisory committee to which the petition has been referred will notify the petitioner that the petition, while technically complete, is inadequate to justify the establishment of a tolerance or the tolerance requested by petitioner. This may be due to the fact that the data are not sufficiently clear or complete. In such cases, the petitioner may withdraw the petition pending its clarification or the obtaining of additional data. This withdrawal may be without prejudice to a future filing. Upon refiling, the time limitation will begin to run anew from the date of refiling or the date of receipt of certification from the Administrator, whichever is later. A deposit for fees as specified in § 180.33 shall accompany the resubmission of the petition.

[46 FR 22450, Nov. 25, 1971, as amended at 46 FR 34345, July 1, 1981; 55 FR 21200, May 23, 1990]

§ 180.9 Substantive amendments to petitions.

After a petition has been filed or referred to an advisory committee, the petitioner may submit additional information or data in support thereof, but in such cases the petition will be given a new filing date or a new initial date of consideration by the advisory

committee, and the time limitation will begin to run anew.

[41 FR 4537, Jan. 30, 1976, as amended at 55 FR 21200, May 23, 1990]

ADVISORY COMMITTEES

§ 180.10 Referral of petition to advisory committee.

(a) If within the prescribed period a person filing a petition requests that the petition be referred to an advisory committee, he shall make such request in writing to the Administrator and forward with such request an advance deposit for fees prescribed by § 180.33.

(b) If further advance deposits are not made upon request of the Administrator, as provided for in § 180.33, the request for referral of the petition to an advisory committee shall be considered withdrawn, and a tolerance shall be established within 90 days of the date on which the Administrator requested the further advance deposit.

(c) In case the Administrator on his own initiative deems it necessary to refer a petition to an advisory committee, he shall, in writing, so inform the person filing the petition.

[41 FR 4537, Jan. 30, 1976, as amended at 55 FR 21200, May 23, 1990]

§ 180.11 Appointment of advisory committee.

(a) Whenever the referral of a petition or proposal to an advisory committee is requested or the Administrator otherwise deems such referral necessary, the Administrator will request the National Academy of Sciences, National Research Council, to select qualified experts, including at least one representative from land-grant colleges, willing to serve on the advisory committee. All such experts shall have had sufficient training and experience in biology, medicine, physiology, toxicology, pharmacology, veterinary medicine, or other appropriate science to evaluate the safety of pesticide chemicals. The Administrator will request the National Academy of Sciences, when it furnishes the names of such experts, to supply a biographical sketch showing the background of their experience and their connection, if any, with academic and commercial institutions.

(b) Each advisory committee shall consist of not less than three experts, at least one of whom is a representative from a land-grant college. The Administrator may specify a larger number to serve. He shall appoint one member of the committee as chairman, and the chairman shall be the spokesman of the committee for receiving and forwarding reports and other functions of the committee.

(c) The Administrator shall appoint the experts so selected and fix their compensation at not to exceed the maximum permitted by other authority per day for each day or part thereof spent in committee meetings and in traveling to and from committee meetings held outside the city of their residence, plus necessary traveling and subsistence expenses while the experts are serving away from their places of residence. Subsistence expenses shall not exceed the maximum per diem permitted by other authority.

§ 180.12 Procedure for advisory committee.

(a) The Administrator shall submit to the chairman of the committee the petition for tolerances, together with certification by the Administrator and such other relevant, reliable information as may be available. When the Administrator submits a proposal to an advisory committee, he shall inform the petitioner and furnish him with copies of material other than the petition and certification that is furnished the committee. The chairman of the committee shall acknowledge receipt of the information and readiness of the committee to act. The date of receipt of such information shall be considered the beginning of the period allowed for consideration by the committee. Copy of this acknowledgement shall be forwarded to the petitioner by the chairman of the committee.

(b) A secretariat to advisory committees will be established by the Administrator. The secretariat shall furnish members of the committee with copies of the proposal or petition, certification from the Administrator, and any data received by the chairman. If the chairman of the committee believes that a meeting of the committee is necessary before making a rec-

ommendation, he shall so advise the Administrator. Such meetings shall be held in Washington, DC, or such other place as the Administrator may designate. The Administrator shall furnish a suitable meeting place for the committee. If a meeting is held, the secretariat shall keep the minutes and provide clerical assistance.

(c) As soon as practicable, but not later than 60 days after receipt of proposal or petition (unless the time has been extended as provided in paragraph (d) of this section), the chairman shall certify to the Administrator the report of the committee, including any minority report, and shall return the petition for tolerances and the certification. The report will include copies of all relevant material considered by the committee, except that in the case of scientific literature proper reference may be made to it instead of furnishing actual copies. The report of the advisory committee shall be available for inspection by any interested person after a tolerance or exemption resulting from the petition is published.

(d) If at any time within 60 days, the chairman believes that the advisory committee needs more time, he shall so inform the Administrator in writing, in which case he shall make the certification contemplated by section 408(d)(3) of the act within the additional 30 days.

(e) The date of receipt of the committee report will be the date for computing time for the Administrator to act for the purposes of both sections 408(d)(3) and (e).

(f) The chairman of the committee, after consultation with the committee members, will inform the National Academy of Sciences of the committee's opinion as to the member who may best represent the committee at a hearing, if one occurs.

(g) More than one petition or proposal may be handled by a committee concurrently.

(h) Persons authorized under section 408(h) to discuss proposals or petitions with the committee shall notify the chairman and if practicable make appointments through him. The report of the committee shall show the names of

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persons other than committee members discussing proposals or petitions with the committee. Except for discussions with authorized persons the committee shall not disclose data originating with a petitioner prior to publication of a regulation.

ADOPTION OF TOLERANCE ON INITIATIVE OF ADMINISTRATOR OR ON REQUEST OF INTERESTED PERSONS; JUDICIAL REVIEW; TEMPORARY TOLERANCES; AMENDMENT AND REPEAL OF TOLERANCES; FEES

§ 180.29 Adoption of tolerance on initiative of Administrator or on request of an interested person.

(a) Upon the Administrator's own initiative, or at the written request of any interested person furnishing reasonable grounds therefor and such fees or deposits as are prescribed by § 180.33, the Administrator may propose, under sec. 408(e) of the Federal Food, Drug, and Cosmetic Act, the issuance of a regulation establishing a tolerance for a pesticide chemical or exempting it from the necessity of a tolerance, or a regulation modifying or revoking an existing tolerance or exemption. As used in the preceding sentence, "reasonable grounds" shall include a statement describing the nature of the requestor's interest in issuance of such a tolerance or exemption, and adequate data on subjects outlined in sec. 408(d)(1) (A) through (F) of the Federal Food, Drug, and Cosmetic Act. Any petition received by the Agency which requests establishment of a tolerance or exemption for pesticide residues in or on a raw agricultural commodity that result from any pesticide use not directly associated with producing, storing, or transporting that commodity, will be treated by the Agency as a request for issuance of the tolerance or exemption under sec. 408(e) of that Act. (As the Agency interprets that Act, the certification of usefulness which is a prerequisite of issuing a regulation under sec. 408(d) can only be made with respect to pesticides used to help produce, store, or transport the commodity for which the tolerance or exemption is sought.) Requests shall be submitted in duplicate to: Registration Division (TS-767), Environmental Protection Agency, Washington, DC 20460.

If any part of the request or supporting data is in a language other than English, it must be accompanied by a complete and accurate English translation. If the Administrator decides that a request does not warrant a proposal for the issuance of a regulation, he shall so inform the requestor and state the reasons for his decision.

(b) The notice of the proposal shall show whether it is made on the initiative of the Administrator or at the request of an interested person, naming such person.

(c) If within 30 days after publication of the proposal a person who has registered, or who has submitted an application for registration of an economic poison under the Federal Insecticide, Fungicide, and Rodenticide Act containing the pesticide chemical named in the proposal, requests in writing that the proposal be referred to an advisory committee and makes advance deposit as provided by § 180.33, the Administrator shall appoint a committee as provided in § 180.11 and refer the proposal and relevant data to such committee. The Agency and the committee shall proceed as prescribed in section 408 and this part.

(d) If further advance deposits are not made upon request of the Administrator, as provided in § 180.33, the request for referral of the petition to an advisory committee shall be considered withdrawn, and a tolerance shall be established within 90 days from the date on which the Administrator requested the further advance deposit.

(e) The Administrator shall provide a period of not less than 30 days for persons to comment on the proposed regulation.

(f) After reviewing any timely comments received, the Administrator may by order establish, modify, or revoke a tolerance regulation, which order and regulation shall be published in the FEDERAL REGISTER. An order published under this section shall state that persons may submit objections and requests for a hearing in the manner described in part 178 of this chapter.

(g) Any final regulation issued under this section shall be effective on the date of publication in the FEDERAL REGISTER unless otherwise provided in the regulation.

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(h) In ruling on a request under paragraph (a) of this section, the Administrator may publish a FEDERAL REGISTER notice requesting information and views on the request, or provide other procedures as a matter of discretion.

(i) When a request is denied under this section, the administrative record consists of:

(1) The request, including all data and information submitted in support of the request.

(2) Any FEDERAL REGISTER notice requesting information and views.

(3) Any comments submitted by members of the public in response to the FEDERAL REGISTER notice requesting information and views.

(4) If the request resulted in any other procedures, the order of the Administrator providing the procedures and the administrative record of the procedure provided.

(5) All other documents or information submitted to the record.

(6) The Administrator's order and decision on the request, including all information identified by the Administrator as part of the record.

[36 FR 22540, Nov. 25, 1971, as amended at 46 FR 3020, Jan. 13, 1981; 55 FR 21200, May 23, 1990; 55 FR 50300, Dec. 5, 1990]

§ 180.30 Judicial review.

(a) It is the Agency's view that the Act does not allow a person to obtain direct judicial review of a regulation issued under this part that establishes, amends, or revokes a tolerance regulation or a regulation exempting a pesticide chemical from the need for a tolerance. However, if an objection to such action is submitted to the Administrator in the manner prescribed by part 178 of this chapter, judicial review may be obtained of the Administrator's action on the objections (see sections 408(d)(5) and 408(i) of the Act).

(b) A decision under §§ 180.29 and 180.32 that a request does not warrant the issuance of a proposed regulation is final agency action. Although the Act makes no special provision for review of such final agency action, the action may be reviewable under other provi-

sions of the United States Code (see e.g., 5 U.S.C. 701–706, 28 U.S.C. 1331).

[55 FR 50300, Dec. 5, 1990]

§ 180.31 Temporary tolerances.

(a) A temporary tolerance (or exemption from a tolerance) established under authority of section 408(j) of the act shall be deemed to be a tolerance (or exemption from the requirement of a tolerance) for the purposes of section 408(a) (1) or (2) of the act.

(b) (1) A request for a temporary tolerance or a temporary exemption from a tolerance by a person who has obtained an experimental permit for a pesticide chemical under the Federal Insecticide, Fungicide, and Rodenticide Act shall be accompanied by a copy of such experimental permit, such data as are available on subjects outlined in clauses (A), (B), (C), (D), (E), (F), and (G) of section 408(d)(1), and an advance deposit to cover fees as provided in § 180.33(d).

(2) Before an experimental permit has been obtained, the Pesticides Tolerance Division upon request of the Environmental Protection Agency or a person who proposes to apply for an experimental permit will consider available data and discuss its adequacy for the purpose of justifying a tolerance or exemption from a tolerance.

(c) A notice of the issuance of a temporary tolerance outlining any restrictions as to use of the chemical imposed under the experimental permit under the Federal Insecticide, Fungicide, and Rodenticide Act may be published in the FEDERAL REGISTER if the Administrator deems such publication desirable.

(d) A temporary tolerance or exemption from a tolerance may be issued for a period designed to allow the orderly marketing of the raw agricultural commodities produced while testing a pesticide chemical under an experimental permit issued under authority of the Federal Insecticide, Fungicide, and Rodenticide Act when the Administrator concludes that the public health can be adequately protected during such marketing. A temporary tolerance or exemption from a tolerance may be revoked if the experimental permit is revoked, or may be revoked

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at any time if it develops that the application for a temporary tolerance contains a misstatement of a material fact or that new scientific data or experience with the pesticide chemical indicates that it may be hazardous to the public health.

(e) Conditions under which a temporary tolerance is established shall include:

(1) A limitation on the amount of the chemical to be used on the designated crops permitted under the experimental permit.

(2) A limitation for the use of the chemical on the designated crops to bona fide experimental use by qualified persons as indicated in the experimental permit.

(3) A requirement that the person or firm which obtains the experimental permit for which the temporary tolerance is established will immediately inform the Environmental Protection Agency of any reports on findings from the experimental use that have a bearing on safety.

(4) A requirement that the person or firm which obtained the experimental permit for which the temporary tolerance is established will keep records of production, distribution, and performance for a period of 2 years and, on request, at any reasonable time, make these records available to any authorized officer or employee of the Environmental Protection Agency.

§ 180.32 Procedure for amending and repealing tolerances or exemptions from tolerances.

(a) The Administrator on his own initiative or on request from an interested person furnishing reasonable grounds therefor, may propose the issuance of a regulation amending or repealing a tolerance for a pesticide chemical on raw agricultural commodities or granting or repealing an exemption from tolerance for such chemical. Requests for such amendment or repeal shall be made in writing and accompanied by an advance deposit to cover fees as provided in § 180.33.

(b) Reasonable grounds shall include an explanation showing wherein the person has a substantial interest in such tolerance or exemption from tolerance and an assertion of facts (sup-

ported by data if available) showing that new uses for the pesticide chemical have been developed or old uses abandoned, that new data are available as to toxicity of the chemical, or that experience with the application of the tolerance or exemption from tolerance may justify its amendment or repeal. Evidence that a person has registered or has submitted an application for the registration of an economic poison under the Federal Insecticide, Fungicide, and Rodenticide Act will be regarded as evidence that he has a substantial interest in a tolerance or exemption from the requirement of a tolerance for a pesticide chemical that consists in whole or in part of the economic poison. New data should be furnished in the form specified in § 180.7(b) for submitting petitions.

(c) The notice announcing the proposal to amend or repeal a regulation shall show whether the proposal was made on the initiative of the Administrator or at the request of an interested person, naming such person. From this point the proceedings shall be the same as prescribed by section 408(e), beginning with the second sentence of that paragraph, and the regulations applicable to section 408(d), (e), (f), and (g).

(d) In ruling on a request under paragraph (a) of this section, the Administrator may publish a FEDERAL REGISTER notice requesting information and views on the request or providing other procedures as a matter of discretion.

(e) When a request is denied under this section, the administrative record consist of:

(1) The request, including all data and information submitted in support of the request.

(2) Any FEDERAL REGISTER notice requesting information and views.

(3) Any comments submitted by members of the public in response to the FEDERAL REGISTER notice requesting information and views.

(4) If the request resulted in any other procedures, the order of the Administrator providing the procedures and the administrative record of the procedure provided.

(5) All other documents or information submitted to the record.

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(6) The Administrator's order and decision on the request, including all information identified by the Administrator as part of the record.

[41 FR 4537, Jan. 30, 1976, as amended at 55 FR 21200, May 23, 1990; 55 FR 50300, Dec. 5, 1990]

§ 180.33 Fees.

(a) Each petition or request for the establishment of a new tolerance or a tolerance higher than already established, shall be accompanied by a fee of \$61,950, plus \$1,550 for each raw agricultural commodity more than nine on which the establishment of a tolerance is requested, except as provided in paragraphs (b), (d), and (h) of this section.

(b) Each petition or request for the establishment of a tolerance at a lower numerical level or levels than a tolerance already established for the same pesticide chemical, or for the establishment of a tolerance on additional raw agricultural commodities at the same numerical level as a tolerance already established for the same pesticide chemical, shall be accompanied by a fee of \$14,175 plus \$950 for each raw agricultural commodity on which a tolerance is requested.

(c) Each petition or request for an exemption from the requirement of a tolerance or repeal of an exemption shall be accompanied by a fee of \$11,425.

(d) Each petition or request for a temporary tolerance or a temporary exemption from the requirement of a tolerance shall be accompanied by a fee of \$24,750 except as provided in paragraph (e) of this section. A petition or request to renew or extend such temporary tolerance or temporary exemption shall be accompanied by a fee of \$3,500.

(e) A petition or request for a temporary tolerance for a pesticide chemical which has a tolerance for other uses at the same numerical level or a higher numerical level shall be accompanied by a fee of \$12,350 plus \$950 for each raw agricultural commodity on which the temporary tolerance is sought.

(f) Each petition or request for repeal of a tolerance shall be accompanied by a fee of \$7,750. Such fee is not required when, in connection with the change sought under this paragraph, a petition

or request is filed for the establishment of new tolerances to take the place of those sought to be repealed and a fee is paid as required by paragraph (a) of this section.

(g) If a petition or a request is not accepted for processing because it is technically incomplete, the fee, less \$1,550 for handling and initial review, shall be returned. If a petition is withdrawn by the petitioner after initial processing, but before significant Agency scientific review has begun, the fee, less \$1,550 for handling and initial review, shall be returned. If an unacceptable or withdrawn petition is resubmitted, it shall be accompanied by the fee that would be required if it were being submitted for the first time.

(h) Each petition or request for a crop group tolerance, regardless of the number of raw agricultural commodities involved, shall be accompanied by a fee equal to the fee required by the analogous category for a single tolerance that is not a crop group tolerance, i.e., paragraphs (a) through (f) of this section, without a charge for each commodity where that would otherwise apply.

(i) Objections under section 408(d)(5) of the Act shall be accompanied by a filing fee of \$3,100.

(j)(1) In the event of a referral of a petition or proposal under this section to an advisory committee, the costs shall be borne by the person who requests the referral of the data to the advisory committee.

(2) Costs of the advisory committee shall include compensation for experts as provided in § 180.11(c) and the expenses of the secretariat, including the costs of duplicating petitions and other related material referred to the committee.

(3) An advance deposit shall be made in the amount of \$30,950 to cover the costs of the advisory committee. Further advance deposits of \$30,950 each shall be made upon request of the Administrator when necessary to prevent arrears in the payment of such costs. Any deposits in excess of actual expenses will be refunded to the depositor.

(k) The person who files a petition for judicial review of an order under section 408(d)(5) or (e) of the Act shall

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pay the costs of preparing the record on which the order is based unless the person has no financial interest in the petition for judicial review.

(l) No fee under this section will be imposed on the Inter-Regional Research Project Number 4 (IR-4 Program).

(m) The Administrator may waive or refund part or all of any fee imposed by this section if the Administrator determines in his or her sole discretion that such a waiver or refund will promote the public interest or that payment of the fee would work an unreasonable hardship on the person on whom the fee is imposed. A request for waiver or refund of a fee shall be submitted in writing to the Environmental Protection Agency, Office of Pesticide Programs, Registration Division (7505C), Washington, DC 20460. A fee of \$1,550 shall accompany every request for a waiver or refund, except that the fee under this sentence shall not be imposed on any person who has no financial interest in any action requested by such person under paragraphs (a) through (k) of this section. The fee for requesting a waiver or refund shall be refunded if the request is granted.

(n) All deposits and fees required by the regulations in this part shall be paid by money order, bank draft, or certified check drawn to the order of the Environmental Protection Agency. All deposits and fees shall be forwarded to the Environmental Protection Agency, Headquarters Accounting Operations Branch, Office of Pesticide Programs (Tolerance Fees), P.O. Box 360277M, Pittsburgh, PA 15251. The payments should be specifically labeled "Tolerance Petition Fees" and should be accompanied only by a copy of the letter or petition requesting the tolerance. The actual letter or petition, along with supporting data, shall be forwarded within 30 days of payment to the Environmental Protection Agency, Office of Pesticide Programs, Registration Division, (7504C) Washington, DC 20460. A petition will not be accepted for processing until the required fees have been submitted. A petition for which a waiver of fees has been requested will not be accepted for processing until the fee has been waived or, if the waiver has been denied, the prop-

er fee is submitted after notice of denial. A request for waiver or refund will not be accepted after scientific review has begun on a petition.

(o) This fee schedule will be changed annually by the same percentage as the percent change in the Federal General Schedule (GS) pay scale. In addition, processing costs and fees will periodically be reviewed and changes will be made to the schedule as necessary. When automatic adjustments are made based on the GS pay scale, the new fee schedule will be published in the FEDERAL REGISTER as a Final Rule to become effective 30 days or more after publication, as specified in the rule. When changes are made based on periodic reviews, the changes will be subject to public comment.

[61 FR 19851, May 3, 1996]

§ 180.34 Tests on the amount of residue remaining.

(a) Data in a petition on the amount of residue remaining in or on a raw agricultural commodity should establish the residue that may remain when the pesticide chemical is applied according to directions registered under the Federal Insecticide, Fungicide, and Rodenticide Act, or according to directions contained in an application for registration. These data should establish the residues that may remain under conditions most likely to result in high residues on the commodity.

(b) The petition should establish the reliability of the residue data reported in it. Sufficient information should be submitted about the analytical method to permit competent analysts to apply it successfully.

(c) If the pesticide chemical is absorbed into a living plant or animal when applied (is systemic), residue data may be needed on each plant or animal on which a tolerance or exemption is requested.

(d) If the pesticide chemical is not absorbed into the living plant or animal when applied (is not systemic), it may be possible to make a reliable estimate of the residues to be expected on each commodity in a group of related commodities on the basis of less data than would be required for each commodity in the group, considered separately.

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(e) Each of the following groups of crops lists raw agricultural commodities that are considered to be related for the purpose of paragraph (d) of this section. Commodities not listed in this paragraph are not considered as related for the purpose of paragraph (d) of this section. This grouping of crops does not affect the certification of usefulness by the Administrator as contemplated by section 408(l) of the act.

- (1) Apples, crabapples, pears, quinces.
- (2) Avocados, papayas.
- (3) Blackberries, boysenberries, dewberries, loganberries, raspberries.
- (4) Blueberries, currants, gooseberries, huckleberries.
- (5) Cherries, plums, prunes.
- (6) Oranges, citrus citron, grapefruit, kumquats, lemons, limes, tangelos, tangerines.
- (7) Mangoes, persimmons.
- (8) Peaches, apricots, nectarines.
- (9) Beans, peas, soybeans (each in dry form).
- (10) Beans, peas, soybeans (each in succulent form).
- (11) Broccoli, brussels sprouts, cauliflower, kohlrabi.
- (12) Cantaloups, honeydew melons, muskmelons, pumpkins, watermelons, winter squash.
- (13) Carrots, garden beets, sugar beets, horseradish, parsnips, radishes, rutabagas, salsify roots, turnips.
- (14) Celery, fennel.
- (15) Cucumbers, summer squash.
- (16) Lettuce, endive (escarole), Chinese cabbage, salsify tops.
- (17) Onions, garlic, leeks, shallots (green, or in dry bulb form).
- (18) Potatoes, Jerusalem-artichokes, sweetpotatoes, yams.
- (19) Spinach, beet tops, collards, dandelion, kale, mustard greens, parsley, Swiss chard, turnip tops, watercress.
- (20) Tomatoes, eggplants, peppers, pimientos.
- (21) Pecans, almonds, brazil nuts, bush nuts, butternuts, chestnuts, filberts, hazelnuts, hickory nuts, walnuts.
- (22) Field corn, popcorn, sweet corn (each in grain form).
- (23) Milo, sorghum (each in grain form).
- (24) Wheat, barley, oats, rice, rye (each in grain form).

(25) Alfalfa, Bermuda grass, bluegrass, brome grass, clovers, cowpea hay, fescue, lespedeza, lupines, orchard grass, peanut hay, peavine hay, rye grass, soybean hay, sudan grass, timothy, and vetch.

(26) Corn forage, sorghum forage.

(27) Sugarcane, cane sorghum.

[36 FR 22540, Nov. 25, 1971, as amended at 39 FR 28286, Aug. 6, 1974; 39 FR 28977, Aug. 13, 1974; 40 FR 6972, Feb. 18, 1975; 45 FR 82928, Dec. 17, 1980; 48 FR 29860, June 29, 1983; 60 FR 26635, May 17, 1995]

§ 180.35 Tests for potentiation.

Experiments have shown that certain cholinesterase-inhibiting pesticides when fed together to test animals are more toxic than the sum of their individual toxicities when fed separately. One substance potentiates the toxicity of the other. Important toxicological interactions also have been observed between pesticides and other substances. Wherever there is reason to believe that a pesticide chemical for which a tolerance is proposed may interact with other pesticide chemicals or other substances to which man is exposed, it may be necessary to require special experimental data regarding potentiation capacities to evaluate the safety of the proposed tolerance. This necessarily will be determined on a case-by-case basis.

§ 180.40 Tolerances for crop groups.

(a) Group or subgroup tolerances may be established as a result of:

(1) A petition from a person who has submitted an application for the registration of a pesticide under the Federal Insecticide, Fungicide, and Rodenticide Act.

(2) On the initiative of the Administrator.

(3) A petition by an interested person.

(b) The tables in § 180.41 are to be used in conjunction with this section for the establishment of crop group tolerances. Each table in § 180.41 lists a group of raw agricultural commodities that are considered to be related for the purposes of this section. Refer also to § 180.1(h) for a listing of commodities for which established tolerances may be applied to certain other related and similar commodities.

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(c) When there is an established or proposed tolerance for all of the representative commodities for a specific group or subgroup of related commodities, a tolerance may be established for all commodities in the associated group or subgroup. Tolerances may be established for a crop group or, alternatively, tolerances may be established for one or more of the subgroups of a crop group.

(d) The representative crops are given as an indication of the minimum residue chemistry data base acceptable to the Agency for the purposes of establishing a group tolerance. The Agency may, at its discretion, allow group tolerances when data on suitable substitutes for the representative crops are available (e.g., limes instead of lemons).

(e) Since a group tolerance reflects maximum residues likely to occur on all individual crops within a group, the proposed or registered patterns of use for all crops in the group or subgroup must be similar before a group tolerance is established. The pattern of use consists of the amount of pesticide applied, the number of times applied, the timing of the first application, the interval between applications, and the interval between the last application and harvest. The pattern of use will also include the type of application; for example, soil or foliar application, or application by ground or aerial equipment.

(f) When the crop grouping contains commodities or byproducts that are utilized for animal feed, any needed tolerance or exemption from a tolerance for the pesticide in meat, milk, poultry and/or eggs must be established before a tolerance will be granted for the group as a whole. The representative crops include all crops in the group that could be processed such that residues may concentrate in processed food and/or feed. Processing data will be required prior to establishment of a group tolerance, and food additive tolerances will not be granted on a group basis.

(g) If maximum residues (tolerances) for the representative crops vary by more than a factor of 5 from the maximum value observed for any crop in the group, a group or subgroup tolerance

will ordinarily not be established. In this case individual crop tolerances, rather than group tolerances, will normally be established.

(h) Alternatively, a commodity with a residue level significantly higher or lower than the other commodities in a group may be excluded from the group tolerance (e.g., cereal grains, except corn). In this case an individual tolerance at the appropriate level for the unique commodity would be established, if necessary. The alternative approach of excluding a commodity with a significantly higher or lower residue level will not be used to establish a tolerance for a commodity subgroup. Most subgroups have only two representative commodities; to exclude one such commodity and its related residue data would likely provide insufficient residue information to support the remainder of the subgroup. Residue data from crops additional to those representative crops in a grouping may be required for systemic pesticides.

(i) The commodities included in the groups will be updated periodically either at the initiative of the Agency or at the request of an interested party. Persons interested in updating this section should contact the Registration Division of the Office of Pesticide Programs.

(j) Establishment of a tolerance does not substitute for the additional need to register the pesticide under a companion law, the Federal Insecticide, Fungicide, and Rodenticide Act. The Registration Division of the Office of Pesticide Programs should be contacted concerning procedures for registration of new uses of a pesticide.

[60 FR 26635, May 17, 1995]

§ 180.41 Crop group tables.

(a) The tables in this section are to be used in conjunction with § 180.40 to establish crop group tolerances.

(b) Commodities not listed are not considered as included in the groups for the purposes of this paragraph, and individual tolerances must be established. Miscellaneous commodities intentionally not included in any group include asparagus, avocado, banana, cranberry, fig, globe artichoke, grape, hops, kiwifruit, mango, mushroom,

okra, papaya, pawpaw, peanut, persimmon, pineapple, strawberry, water chestnut, and watercress.

(c) Each group is identified by a group name and consists of a list of representative commodities followed by a list of all commodity members for the group. If the group includes subgroups, each subgroup lists the subgroup name, the representative commodity or commodities, and the member commodities for the subgroup. Sub-

groups, which are a subset of their associated crop group, are established for some but not all crops groups.

(1) *Crop Group 1: Root and Tuber Vegetables Group.*

(i) *Representative commodities.* Carrot, potato, radish, and sugar beet.

(ii) *Table.* The following Table 1 lists all the commodities included in Crop Group 1 and identifies the related crop subgroups.

TABLE 1—CROP GROUP 1: ROOT AND TUBER VEGETABLES

Commodities	Related crop subgroups
Arracacha (<i>Arracacia xanthorrhiza</i>)	1-C, 1-D
Arrowroot (<i>Maranta arundinacea</i>)	1-C, 1-D
Artichoke, Chinese (<i>Stachys affinis</i>)	1-C, 1-D
Artichoke, Jerusalem (<i>Helianthus tuberosus</i>)	1-C, 1-D
Beet, garden (<i>Beta vulgaris</i>)	1-A, 1-B
Beet, sugar (<i>Beta vulgaris</i>)	1-A
Burdock, edible (<i>Arctium lappa</i>)	1-A, 1-B
Canna, edible (Queensland arrowroot) (<i>Canna indica</i>)	1-C, 1-D
Carrot (<i>Daucus carota</i>)	1-A, 1-B
Cassava, bitter and sweet (<i>Manihot esculenta</i>)	1-C, 1-D
Celeriac (celery root) (<i>Apium graveolens</i> var. <i>rapaceum</i>)	1-A, 1-B
Chayote (root) (<i>Sechium edule</i>)	1-C, 1-D
Chervil, turnip-rooted (<i>Chaerophyllum bulbosum</i>)	1-A, 1-B
Chicory (<i>Cichorium intybus</i>)	1-A, 1-B
Chufa (<i>Cyperus esculentus</i>)	1-C, 1-D
Dasheen (taro) (<i>Colocasia esculenta</i>)	1-C, 1-D
Ginger (<i>Zingiber officinale</i>)	1-C, 1-D
Ginseng (<i>Panax quinquefolius</i>)	1-A, 1-B
Horseradish (<i>Armoracia rusticana</i>)	1-A, 1-B
Leren (<i>Calathea allouia</i>)	1-C, 1-D
Parsley, turnip-rooted (<i>Petroselinum crispum</i> var. <i>tuberosum</i>)	1-A, 1-B
Parsnip (<i>Pastinaca sativa</i>)	1-A, 1-B
Potato (<i>Solanum tuberosum</i>)	1-C
Radish (<i>Raphanus sativus</i>)	1-A, 1-B
Radish, oriental (daikon) (<i>Raphanus sativus</i> subvar. <i>longipinnatus</i>)	1-A, 1-B
Rutabaga (<i>Brassica campestris</i> var. <i>napobrassica</i>)	1-A, 1-B
Salsify (oyster plant) (<i>Tragopogon porrifolius</i>)	1-A, 1-B
Salsify, black (<i>Scorzonera hispanica</i>)	1-A, 1-B
Salsify, Spanish (<i>Scolymus hispanicus</i>)	1-A, 1-B
Skirret (<i>Sium sisarum</i>)	1-A, 1-B
Sweet potato (<i>Ipomoea batatas</i>)	1-C, 1-D
Tanier (cocoyam) (<i>Xanthosoma sagittifolium</i>)	1-C, 1-D
Turmeric (<i>Curcuma longa</i>)	1-C, 1-D
Turnip (<i>Brassica rapa</i> var. <i>rapa</i>)	1-A, 1-B
Yam bean (jicama, manioc pea) (<i>Pachyrhizus</i> spp.)	1-C, 1-D
Yam, true (<i>Dioscorea</i> spp.)	1-C, 1-D

(iii) *Table.* The following Table 2 identifies the crop subgroups for Crop Group 1, specifies the representative

commodity(ies) for each subgroup, and lists all the commodities included in each subgroup.

TABLE 2—CROP GROUP 1 SUBGROUP LISTING

Representative commodities	Commodities
Crop Subgroup 1–A. Root vegetables subgroup.	
Carrot, radish, and sugar beet.	Beet, garden; beet, sugar; burdock, edible; carrot; celeriac; chervil, turnip-rooted; chicory; ginseng; horseradish; parsley, turnip-rooted; parsnip; radish; radish, oriental; rutabaga; salsify; salsify, black; salsify, Spanish; skirret; turnip.

TABLE 2—CROP GROUP 1 SUBGROUP LISTING—Continued

Representative commodities	Commodities
Crop Subgroup 1-B. Root vegetables (except sugar beet) subgroup. Carrot and radish.	Beet, garden; burdock, edible; carrot; celeriac; chervil, turnip-rooted; chicory; ginseng; horseradish; parsley, turnip-rooted; parsnip; radish; radish, oriental; rutabaga; salsify; salsify, black; salsify, Spanish; skirret; turnip.
Crop Subgroup 1-C. Tuberous and corm vegetables subgroup. Potato.	Arracacha; arrowroot; artichoke, Chinese; artichoke, Jerusalem; canna, edible; cassava, bitter and sweet; chayote (root); chufa; dasheen; ginger; leren; potato; sweet potato; taniar; turmeric; yam bean; yam, true.
Crop Subgroup 1-D. Tuberous and corm vegetables (except potato) subgroup. Sweet potato.	Arracacha; arrowroot; artichoke, Chinese; artichoke, Jerusalem; canna, edible; cassava, bitter and sweet; chayote (root); chufa; dasheen; ginger; leren; sweet potato; taniar; turmeric; yam bean; yam, true.

(2) *Crop Group 2.* Leaves of Root and Tuber Vegetables (Human Food or Animal Feed) Group (Human Food or Animal Feed) Group.

(i) *Representative commodities.* Turnip and garden beet or sugar beet.

(ii) *Commodities.* The following is a list of all the commodities included in Crop Group 2:

CROP GROUP 2: LEAVES OF ROOT AND TUBER VEGETABLES (HUMAN FOOD OR ANIMAL FEED) GROUP—COMMODITIES

Beet, garden (*Beta vulgaris*)
 Beet, sugar (*Beta vulgaris*)
 Burdock, edible (*Arctium lappa*)
 Carrot (*Daucus carota*)
 Cassava, bitter and sweet (*Manihot esculenta*)
 Celeriac (celery root) (*Apium graveolens* var. *rapaceum*)
 Chervil, turnip-rooted (*Chaerophyllum bulbosum*)
 Chicory (*Cichorium intybus*)
 Dasheen (taro) (*Colocasia esculenta*)
 Parsnip (*Pastinaca sativa*)
 Radish (*Raphanus sativus*)
 Radish, oriental (daikon) (*Raphanus sativus* subvar. *longipinnatus*)
 Rutabaga (*Brassica campestris* var. *napobrassica*)
 Salsify, black (*Scorzonera hispanica*)
 Sweet potato (*Ipomoea batatas*)
 Taniar (cocoyam) (*Xanthosoma sagittifolium*)
 Turnip (*Brassica rapa* var. *rapa*)
 Yam, true (*Dioscorea* spp.)

(3) *Crop Group 3.* Bulb Vegetables (*Allium* spp.) Group.

(i) *Representative commodities.* Onion, green; and onion, dry bulb.

(ii) *Commodities.* The following is a list of all the commodities in Crop Group 3:

CROP GROUP 3: BULB VEGETABLES (*ALLIUM* spp.) GROUP—COMMODITIES

Garlic (*Allium sativum*)
 Garlic, great-headed (elephant) (*Allium ampeloprasum* var. *ampeloprasum*)
 Leek (*Allium ampeloprasum*, *A. porrum*, *A. tricoccum*)
 Onion, dry bulb and green (*Allium cepa*, *A. fistulosum*)
 Onion, Welch (*Allium fistulosum*)
 Shallot (*Allium cepa* var. *cepa*)

(4) *Crop Group 4.* Leafy Vegetables (Except Brassica Vegetables) Group.

(i) *Representative commodities.* Celery, head lettuce, leaf lettuce, and spinach (*Spinacia oleracea*).

(ii) *Table.* The following Table 1 lists all the commodities included in Crop Group 4 and identifies the related crop subgroups.

TABLE 1—CROP GROUP 4: LEAFY VEGETABLES (EXCEPT BRASSICA VEGETABLES) GROUP

Commodities	Related crop subgroups
Amaranth (leafy amaranth, Chinese spinach, tampala) (<i>Amaranthus</i> spp.)	4-A
Arugula (Rocket) (<i>Eruca sativa</i>)	4-A
Cardoon (<i>Cynara cardunculus</i>)	4-B
Celery (<i>Apium graveolens</i> var. <i>dulce</i>)	4-B
Celery, Chinese (<i>Apium graveolens</i> var. <i>secalinum</i>)	4-B
Celtuce (<i>Lactuca sativa</i> var. <i>angustana</i>)	4-B
Chervil (<i>Anthriscus cerefolium</i>)	4-A

TABLE 1—CROP GROUP 4: LEAFY VEGETABLES (EXCEPT BRASSICA VEGETABLES) GROUP—
Continued

Commodities	Related crop subgroups
Chrysanthemum, edible-leaved (<i>Chrysanthemum coronarium</i> var. <i>coronarium</i>)	4-A
Chrysanthemum, garland (<i>Chrysanthemum coronarium</i> var. <i>spatosum</i>)	4-A
Corn salad (<i>Valerianella locusta</i>)	4-A
Cress, garden (<i>Lepidium sativum</i>)	4-A
Cress, upland (yellow rocket, winter cress) (<i>Barbarea vulgaris</i>)	4-A
Dandelion (<i>Taraxacum officinale</i>)	4-A
Dock (sorrel) (<i>Rumex</i> spp.)	4-A
Endive (escarole) (<i>Cichorium endivia</i>)	4-A
Fennel, Florence (finocchio) (<i>Foeniculum vulgare</i> Azoricum Group)	4-B
Lettuce, head and leaf (<i>Lactuca sativa</i>)	4-A
Orach (<i>Atriplex hortensis</i>)	4-A
Parsley (<i>Petroselinum crispum</i>)	4-A
Purslane, garden (<i>Portulaca oleracea</i>)	4-A
Purslane, winter (<i>Montia perfoliata</i>)	4-A
Radicchio (red chicory) (<i>Cichorium intybus</i>)	4-A
Rhubarb (<i>Rheum rhabarbarum</i>)	4-B
Spinach (<i>Spinacia oleracea</i>)	4-A
Spinach, New Zealand (<i>Tetragonia tetragonioides</i> , <i>T. expansa</i>)	4-A
Spinach, vine (Malabar spinach, Indian spinach) (<i>Basella alba</i>)	4-A
Swiss chard (<i>Beta vulgaris</i> var. <i>cicla</i>)	4-B

(iii) *Table.* The following Table 2 commodities for each subgroup, and identifies the crop subgroups for Crop lists all the commodities included in Group 4, specifies the representative each subgroup.

TABLE 2—CROP GROUP 4 SUBGROUP LISTING

Representative commodities	Commodities
Crop Subgroup 4-A. Leafy greens subgroup. Head lettuce and leaf lettuce, and spinach (<i>Spinacia oleracea</i>).	Amaranth; arugula; chervil; chrysanthemum, edible-leaved; chrysanthemum, garland; corn salad; cress, garden; cress, upland; dandelion; dock; endive; lettuce; orach; parsley; purslane, garden; purslane, winter; radicchio (red chicory); spinach; spinach, New Zealand; spinach, vine.
Crop Subgroup 4-B. Leaf petioles subgroup. Celery.	Cardoon; celery; celery, Chinese; celtuce; fennel, Florence; rhubarb; Swiss chard.

(5) *Crop Group 5. Brassica (Cole) Leafy Vegetables Group.*

(i) *Representative commodities.* Broccoli or cauliflower; cabbage; and mustard greens.

(ii) *Table.* The following Table 1 lists all the commodities included in Crop Group 5 and identifies the related crop subgroups.

TABLE 1—CROP GROUP 5: *Brassica (Cole) Leafy Vegetables*

Commodities	Related crop subgroups
Broccoli (<i>Brassica oleracea</i> var. <i>botrytis</i>)	5-A
Broccoli, Chinese (gai lon) (<i>Brassica alboglabra</i>)	5-A
Broccoli raab (rapini) (<i>Brassica campestris</i>)	5-B
Brussels sprouts (<i>Brassica oleracea</i> var. <i>gemmifera</i>)	5-A
Cabbage (<i>Brassica oleracea</i>)	5-A
Cabbage, Chinese (bok choy) (<i>Brassica chinensis</i>)	5-B
Cabbage, Chinese (napa) (<i>Brassica pekinensis</i>)	5-A
Cabbage, Chinese mustard (gai choy) (<i>Brassica campestris</i>)	5-A
Cauliflower (<i>Brassica oleracea</i> var. <i>botrytis</i>)	5-A
Cavalo broccolo (<i>Brassica oleracea</i> var. <i>botrytis</i>)	5-A
Collards (<i>Brassica oleracea</i> var. <i>acephala</i>)	5-B
Kale (<i>Brassica oleracea</i> var. <i>acephala</i>)	5-B
Kohlrabi (<i>Brassica oleracea</i> var. <i>gongylodes</i>)	5-A
Mizuna (<i>Brassica rapa Japonica</i> Group)	5-B
Mustard greens (<i>Brassica juncea</i>)	5-B

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TABLE 1—CROP GROUP 5: *Brassica* (Cole) Leafy Vegetables—Continued

Commodities	Related crop subgroups
Mustard spinach (<i>Brassica rapa</i> Perviridis Group)	5-B
Rape greens (<i>Brassica napus</i>)	5-B

(iii) *Table.* The following Table 2 commodity(ies) for each subgroup, and identifies the crop subgroups for Crop lists all the commodities included in Group 5, specifies the representative each subgroup.

TABLE 2—CROP GROUP 5 SUBGROUP LISTING

Representative commodities	Commodities
Crop Subgroup 5-A. Head and stem <i>Brassica</i> subgroup	
Broccoli or cauliflower; and cabbage	Broccoli; broccoli, Chinese; brussels sprouts; cabbage; cabbage, Chinese (napa); cabbage, Chinese mustard; cauliflower; cavalo broccolo; kohlrabi
Crop Subgroup 5-B. Leafy <i>Brassica</i> greens subgroup.	
Mustard greens	Broccoli raab; cabbage, Chinese (bok choy); collards; kale; mizuna; mustard greens; mustard spinach; rape greens

(6) *Crop Group 6.* Legume Vegetables (Succulent or Dried) Group. one succulent cultivar and one dried cultivar); and soybean.

(i) *Representative commodities.* Bean (*Phaseolus* spp.; one succulent cultivar and one dried cultivar); pea (*Pisum* spp.; (ii) *Table.* The following Table 1 lists all the commodities included in Crop Group 6 and identifies the related crop subgroups.

TABLE 1—CROP GROUP 6: LEGUME VEGETABLES (SUCCULENT OR DRIED)

Commodities	Related crop subgroups
Bean (<i>Lupinus</i> spp.) (includes grain lupin, sweet lupin, white lupin, and white sweet lupin)	6-C
Bean (<i>Phaseolus</i> spp.) (includes field bean, kidney bean, lima bean, navy bean, pinto bean, runner bean, snap bean, tepary bean, wax bean)	6-A, 6-B, 6-C
Bean (<i>Vigna</i> spp.) (includes adzuki bean, asparagus bean, blackeyed pea, catjang, Chinese longbean, cowpea, Crowder pea, moth bean, mung bean, rice bean, southern pea, urd bean, yardlong bean)	6-A, 6-B, 6-C
Broad bean (fava bean) (<i>Vicia faba</i>)	6-B, 6-C
Chickpea (garbanzo bean) (<i>Cicer arietinum</i>)	6-C
Guar (<i>Cyamopsis tetragonoloba</i>)	6-C
Jackbean (<i>Canavalia ensiformis</i>)	6-A
Lablab bean (hyacinth bean) (<i>Lablab purpureus</i>)	6-C
Lentil (<i>Lens esculenta</i>)	6-C
Pea (<i>Pisum</i> spp.) (includes dwarf pea, edible-pod pea, English pea, field pea, garden pea, green pea, snow pea, sugar snap pea)	6-A, 6-B, 6-C
Pigeon pea (<i>Cajanus cajan</i>)	6-A, 6-B, 6-C
Soybean (<i>Glycine max</i>)	N/A
Soybean (immature seed) (<i>Glycine max</i>)	6-A
Sword bean (<i>Canavalia gladiata</i>)	6-A

(iii) *Table.* The following Table 2 identifies the crop subgroups for Crop Group 6, specifies the representative commodities for each subgroup, and lists all the commodities included in each subgroup.

TABLE 2—CROP GROUP 6 SUBGROUP LISTING

Representative commodities	Commodities
Crop Subgroup 6-A. Edible-podded legume vegetables subgroup. Any one succulent cultivar of edible-podded bean (<i>Phaseolus</i> spp.) and any one succulent cultivar of edible-podded pea (<i>Pisum</i> spp.).	Bean (<i>Phaseolus</i> spp.) (includes runner bean, snap bean, wax bean); bean (<i>Vigna</i> spp.) (includes asparagus bean, Chinese longbean, moth bean, yardlong bean); jackbean; pea (<i>Pisum</i> spp.) (includes dwarf pea, edible-pod pea, snow pea, sugar snap pea); pigeon pea; soybean (immature seed); sword bean.
Crop Subgroup 6-B. Succulent shelled pea and bean subgroup. Any succulent shelled cultivar of bean (<i>Phaseolus</i> spp.) and garden pea (<i>Pisum</i> spp.).	Bean (<i>Phaseolus</i> spp.) (includes lima bean (green)); broad bean (succulent); bean (<i>Vigna</i> spp.) (includes blackeyed pea, cowpea, southern pea); pea (<i>Pisum</i> spp.) (includes English pea, garden pea, green pea); pigeon pea.
Crop Subgroup 6-C. Dried shelled pea and bean (except soybean) subgroup Any one dried cultivar of bean (<i>Phaseolus</i> spp.); and any one dried cultivar of pea (<i>Pisum</i> spp.).	Dried cultivars of bean (<i>Lupinus</i> spp.) (includes grain lupin, sweet lupin, white lupin, and white sweet lupin); (<i>Phaseolus</i> spp.) (includes field bean, kidney bean, lima bean (dry), navy bean, pinto bean; tepary bean; bean (<i>Vigna</i> spp.) (includes adzuki bean, blackeyed pea, catjang, cowpea, Crowder pea, moth bean, mung bean, rice bean, southern pea, urd bean); broad bean (dry); chickpea; guar; lablab bean; lentil; pea (<i>Pisum</i> spp.) (includes field pea); pigeon pea.

(7) *Crop Group 7.* Foliage of Legume Vegetables Group.

(i) *Representative commodities.* Any cultivar of bean (*Phaseolus* spp.), field pea (*Pisum* spp.), and soybean.

(ii) *Table.* The following Table 1 lists the commodities included in Crop Group 7.

TABLE 1—CROP GROUP 7: FOLIAGE OF LEGUME VEGETABLES GROUP

Representative commodities	Commodities
Any cultivar of bean (<i>Phaseolus</i> spp.) and field pea (<i>Pisum</i> spp.), and soybean (<i>Glycine max</i>).	Plant parts of any legume vegetable included in the legume vegetables that will be used as animal feed.

(iii) *Table.* The following Table 2 identifies the crop subgroup for Crop Group 7 and specifies the representa-

tive commodities for the subgroup, and lists all the commodities included in the subgroup.

TABLE 2—CROP GROUP 7 SUBGROUP LISTING

Representative commodities	Commodities
Crop Subgroup 7-A. Foliage of legume vegetables (except soybeans) subgroup Any cultivar of bean (<i>Phaseolus</i> spp.), and field pea (<i>Pisum</i> spp.).	Plant parts of any legume vegetable (except soybeans) included in the legume vegetables group that will be used as animal feed.

(8) *Crop Group 8.* Fruiting Vegetables (Except Cucurbits) Group.

(i) *Representative commodities.* Tomato, bell pepper, and one cultivar of non-bell pepper.

(ii) *Commodities.* The following is a list of all the commodities included in Crop Group 8:

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CROP GROUP 8: FRUITING VEGETABLES (EXCEPT CUCURBITS)—COMMODITIES

Eggplant (*Solanum melongena*)
Groundcherry (*Physalis* spp.)
Pepino (*Solanum muricatum*)
Pepper (*Capsicum* spp.) (includes bell pepper, chili pepper, cooking pepper, pimento, sweet pepper)
Tomatillo (*Physalis ixocarpa*)
Tomato (*Lycopersicon esculentum*)

(9) Crop Group 9. Cucurbit Vegetables Group.

(i) *Representative commodities.* Cucum-ber, muskmelon, and summer squash.

(ii) *Table.* The following Table 1 lists all the commodities included in Crop Group 9 and identifies the related sub-groups.

TABLE 1—CROP GROUP 9: CUCURBIT VEGETABLES

Commodities	Related crop subgroups
Chayote (fruit) (<i>Sechium edule</i>)	9-B
Chinese waxgourd (Chinese preserving melon) (<i>Benincasa hispida</i>)	9-B
Citron melon (<i>Citrullus lanatus</i> var. <i>citroides</i>)	9-A
Cucumber (<i>Cucumis sativus</i>)	9-B
Gherkin (<i>Cucumis anguria</i>)	9-B
Gourd, edible (<i>Lagenaria</i> spp.) (includes hyotan, cucuzza); (<i>Luffa acutangula</i> , <i>L. cylindrica</i>) (includes hechima, Chinese okra)	9-B
<i>Momordica</i> spp. (includes balsam apple, balsam pear, bitter melon, Chinese cucumber)	9-B
Muskmelon (hybrids and/or cultivars of <i>Cucumis melo</i>) (includes true cantaloupe, cantaloupe, casaba, crenshaw melon, golden pershaw melon, honeydew melon, honey balls, mango melon, Persian melon, pineapple melon, Santa Claus melon, and snake melon)	9-A
Pumpkin (<i>Cucurbita</i> spp.)	9-B
Squash, summer (<i>Cucurbita pepo</i> var. <i>melopepo</i>) (includes crookneck squash, scallop squash, straightneck squash, vegetable marrow, zucchini)	9-B
Squash, winter (<i>Cucurbita maxima</i> ; <i>C. moschata</i>) (includes butternut squash, calabaza, hubbard squash); (<i>C. mixta</i> ; <i>C. pepo</i>) (includes acorn squash, spaghetti squash)	9-B
Watermelon (includes hybrids and/or varieties of <i>Citrullus lanatus</i>)	9-A

(iii) *Table.* The following Table 2 identifies the crop subgroups for Crop Group 9, specifies the representative commodities for each subgroup, and lists all the commodities included in each subgroup.

TABLE 2—CROP GROUP 9 SUBGROUP LISTING

Representative commodities	Commodities
Crop Subgroup 9-A. Melon subgroup Cantaloupes	Citron melon; muskmelon; watermelon
Crop Subgroup 9-B. Squash/cucumber sub-group. One cultivar of summer squash and cucumber.	
	Chayote (fruit); Chinese waxgourd; cucumber; gherkin; gourd, edible; <i>Momordica</i> spp.; pumpkin; squash, summer; squash, winter.

(10) Crop Group 10. Citrus Fruits (*Citrus* spp., *Fortunella* spp.) Group.

(i) *Representative commodities.* Sweet orange; lemon and grapefruit.

(ii) *Commodities.* The following is a list of all the commodities in Crop Group 10:

CROP GROUP 10: CITRUS FRUITS (CITRUS SPP., FORTUNELLA SPP.) GROUP—COMMODITIES

Calamondin (*Citrus mitis* X *Citrofortunella mitis*)
Citrus citron (*Citrus medica*)
Citrus hybrids (*Citrus* spp.) (includes chironja, tangelo, tangor)
Grapefruit (*Citrus paradisi*)
Kumquat (*Fortunella* spp.)
Lemon (*Citrus jambhiri*, *Citrus limon*)
Lime (*Citrus aurantiifolia*)
Mandarin (tangerine) (*Citrus reticulata*)
Orange, sour (*Citrus aurantium*)
Orange, sweet (*Citrus sinensis*)
Pumelo (*Citrus grandis*, *Citrus maxima*)
Satsuma mandarin (*Citrus unshiu*)

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(11) *Crop Group 11: Pome Fruits Group.*

(i) *Representative commodities.* Apple and pear.

(ii) *Commodities.* The following is a list of all the commodities included in Crop Group 11:

CROP GROUP 11: POME FRUITS GROUP—
COMMODITIES

Apple (*Malus domestica*)
Crabapple (*Malus* spp.)
Loquat (*Eriobotrya japonica*)
Mayhaw (*Crataegus aestivalis*, *C. opaca*, and *C. rufula*)
Pear (*Pyrus communis*)
Pear, oriental (*Pyrus pyrifolia*)
Quince (*Cydonia oblonga*)

(12) *Crop Group 12. Stone Fruits Group.*

(i) *Representative commodities.* Sweet cherry or tart cherry; peach; and plum or fresh prune (*Prunus domestica*, *Prunus* spp.)

(ii) *Commodities.* The following is a list of all the commodities included in Crop Group 12:

CROP GROUP 12: STONE FRUITS GROUP—
COMMODITIES

Apricot (*Prunus armeniaca*)
Cherry, sweet (*Prunus avium*),
Cherry, tart (*Prunus cerasus*)
Nectarine (*Prunus persica*)
Peach (*Prunus persica*)
Plum (*Prunus domestica*, *Prunus* spp.)
Plum, Chickasaw (*Prunus angustifolia*)
Plum, Damson (*Prunus domestica* spp. *insititia*)
Plum, Japanese (*Prunus salicina*)
Plumcot (*Prunus. armeniaca* X *P. domestica*)
Prune (fresh) (*Prunus domestica*, *Prunus* spp.)

(13) *Crop Group 13. Berries Group.*

(i) *Representative commodities.* Any one blackberry or any one raspberry; and blueberry.

(ii) *Table.* The following Table 1 lists all the commodities included in Crop Group 13 and identifies the related subgroups.

TABLE 1—CROP GROUP 13: BERRIES GROUP

Commodities	Related crop subgroups
Blackberry (<i>Rubus eubatus</i>) (including bingleberry, black satin berry, boysenberry, Cherokee blackberry, Chesterberry, Cheyenne blackberry, coryberry, darrowberry, dewberry, Dirksen thornless berry, Himalayaberry, hullberry, Lavacaberry, lowberry, Lucretiaberry, mammoth blackberry, marionberry, nectarberry, olallieberry, Oregon evergreen berry, phenomenalberry, rangeberry, ravenberry, rossberry, Shawnee blackberry, youngberry, and varieties and/or hybrids of these)	13-A
Blueberry (<i>Vaccinium</i> spp.)	13-B
Currant (<i>Ribes</i> spp.)	13-B
Elderberry (<i>Sambucus</i> spp.)	13-B
Gooseberry (<i>Ribes</i> spp.)	13-B
Huckleberry (<i>Gaylussacia</i> spp.)	13-B
Loganberry (<i>Rubus loganobaccus</i>)	13-A
Raspberry, black and red (<i>Rubus occidentalis</i> , <i>Rubus strigosus</i> , <i>Rubus idaeus</i>)	13-A

(iii) *Table.* The following Table 2 commodities for each subgroup, and identifies the crop subgroups for Crop lists all the commodities included in Group 13, specifies the representative each subgroup.

TABLE 2—CROP GROUP 13 SUBGROUPS LISTING

Representative commodities	Commodities
Crop Subgroup 13-A. Caneberry (blackberry and raspberry) subgroup. Any one blackberry or any one raspberry.	Blackberry; loganberry; red and black raspberry; cultivars and/or hybrids of these.
Crop Subgroup 13-B. Bushberry subgroup. Blueberry, highbush.	Blueberry, highbush and lowbush; currant; elderberry; gooseberry; huckleberry.

(14) *Crop Group 14. Tree Nuts Group.*

(i) *Representative commodities.* Almond and pecan.

(ii) *Commodities.* The following is a list of all the commodities included in Crop Group 14:

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CROP GROUP 14: TREE NUTS—COMMODITIES

Almond (*Prunus dulcis*)
 Beech nut (*Fagus* spp.)
 Brazil nut (*Bertholletia excelsa*)
 Butternut (*Juglans cinerea*)
 Cashew (*Anacardium occidentale*)
 Chestnut (*Castanea* spp.)
 Chinquapin (*Castanea pumila*)
 Filbert (hazelnut) (*Corylus* spp.)
 Hickory nut (*Carya* spp.)
 Macadamia nut (bush nut) (*Macadamia* spp.)
 Pecan (*Carya illinoensis*)
 Walnut, black and English (Persian) (*Juglans* spp.)

(15) *Crop Group 15. Cereal Grains Group.*

(i) *Representative commodities.* Corn (fresh sweet corn and dried field corn), rice, sorghum, and wheat.

(ii) *Commodities.* The following is a list of all the commodities included in Crop Group 15:

CROP GROUP 15: CEREAL GRAINS—COMMODITIES

Barley (*Hordeum* spp.)
 Buckwheat (*Fagopyrum esculentum*)
 Corn (*Zea mays*)
 Millet, pearl (*Pennisetum glaucum*)
 Millet, proso (*Panicum milliaceum*)
 Oats (*Avena* spp.)
 Popcorn (*Zea mays* var. *evarta*)
 Rice (*Oryza sativa*)
 Rye (*Secale cereale*)
 Sorghum (milo) (*Sorghum* spp.)
 Teosinte (*Euchlaena mexicana*)
 Triticale (*Triticum-Secale* hybrids)
 Wheat (*Triticum* spp.)
 Wild rice (*Zizania aquatica*)

(16) *Crop Group 16. Forage, Fodder and Straw of Cereal Grains Group.*

(i) *Representative commodities.* Corn, wheat, and any other cereal grain crop.

(ii) *Commodities.* The commodities included in Crop Group 16 are: Forage, fodder, and straw of all commodities included in the group cereal grains group.

(17) *Crop Group 17. Grass Forage, Fodder, and Hay Group.*

(i) *Representative commodities.* Bermuda grass; bluegrass; and brome grass or fescue.

(ii) *Commodities.* The commodities included in Crop Group 17 are: Any grass, *Gramineae* family (either green or cured) except sugarcane and those included in the cereal grains group, that will be fed to or grazed by livestock, all pasture and range grasses and grasses grown for hay or silage.

(18) *Crop Group 18. Nongrass Animal Feeds (Forage, Fodder, Straw, and Hay) Group.*

(i) *Representative commodities.* Alfalfa and clover (*Trifolium* spp.)

(ii) *Commodities.* The following is a list of all the commodities included in Crop Group 18:

CROP GROUP 18: NONGRASS ANIMAL FEEDS (FORAGE, FODDER, STRAW, AND HAY) GROUP—COMMODITIES

Alfalfa (*Medicago sativa* subsp. *sativa*)
 Bean, velvet (*Mucuna pruriens* var. *utilis*)
 Clover (*Trifolium* spp., *Melilotus* spp.)
 Kudzu (*Pueraria lobata*)
 Lespedeza (*Lespedeza* spp.)
 Lupin (*Lupinus* spp.)
 Sainfoin (*Onobrychis viciifolia*)
 Trefoil (*Lotus* spp.)
 Vetch (*Vicia* spp.)
 Vetch, crown (*Coronilla varia*)
 Vetch, milk (*Astragalus* spp.)

(19) *Crop Group 19. Herbs and Spices Group.*

(i) *Representative commodities.* Basil (fresh and dried); black pepper; chive; and celery seed or dill seed.

(ii) *Table.* The following Table 1 lists all the commodities included in Crop Group 19 and identifies the related subgroups.

TABLE 1—CROP GROUP 19: HERBS AND SPICES GROUP

Commodities	Related crop subgroups
Allspice (<i>Pimenta dioica</i>)	19-B
Angelica (<i>Angelica archangelica</i>)	19-A
Anise (anise seed) (<i>Pimpinella anisum</i>)	19-B
Anise, star (<i>Illicium verum</i>)	19-B
Annatto (seed)	19-B
Balm (lemon balm) (<i>Melissa officinalis</i>)	19-A
Basil (<i>Ocimum basilicum</i>)	19-A
Borage (<i>Borago officinalis</i>)	19-A
Burnet (<i>Sanguisorba minor</i>)	19-A
Camomile (<i>Anthemis nobilis</i>)	19-A
Caper buds (<i>Capparis spinosa</i>)	19-B
Caraway (<i>Carum carvi</i>)	19-B
Caraway, black (<i>Nigella sativa</i>)	19-B

TABLE 1—CROP GROUP 19: HERBS AND SPICES GROUP—Continued

Commodities	Related crop subgroups
Cardamom (<i>Elettaria cardamomum</i>)	19-B
Cassia bark (<i>Cinnamomum aromaticum</i>)	19-B
Cassia buds (<i>Cinnamomum aromaticum</i>)	19-B
Catnip (<i>Nepeta cataria</i>)	19-A
Celery seed (<i>Apicum graveolens</i>)	19-B
Chervil (dried) (<i>Anthriscus cerefolium</i>)	19-A
Chive (<i>Allium schoenoprasum</i>)	19-A
Chive, Chinese (<i>Allium tuberosum</i>)	19-A
Cinnamon (<i>Cinnamomum verum</i>)	19-B
Clary (<i>Salvia sclarea</i>)	19-A
Clove buds (<i>Eugenia caryophyllata</i>)	19-B
Coriander (cilantro or Chinese parsley) (leaf) (<i>Coriandrum sativum</i>)	19-A
Coriander (cilantro) (seed) (<i>Coriandrum sativum</i>)	19-B
Costmary (<i>Chrysanthemum balsamita</i>)	19-A
Culantro (leaf) (<i>Eryngium foetidum</i>)	19-A
Culantro (seed) (<i>Eryngium foetidum</i>)	19-B
Cumin (<i>Cuminum cyminum</i>)	19-B
Curry (leaf) (<i>Murraya koenigii</i>)	19-A
Dill (dillweed) (<i>Anethum graveolens</i>)	19-A
Dill (seed) (<i>Anethum graveolens</i>)	19-B
Fennel (common) (<i>Foeniculum vulgare</i>)	19-B
Fennel, Florence (seed) (<i>Foeniculum vulgare</i> Azoricum Group)	19-B
Fenugreek (<i>Trigonella foenumgraecum</i>)	19-B
Grains of paradise (<i>Aframomum melegueta</i>)	19-B
Horehound (<i>Marrubium vulgare</i>)	19-A
Hyssop (<i>Hyssopus officinalis</i>)	19-A
Juniper berry (<i>Juniperus communis</i>)	19-B
Lavender (<i>Lavandula officinalis</i>)	19-A
Lemongrass (<i>Cymbopogon citratus</i>)	19-A
Lovage (leaf) (<i>Levisticum officinale</i>)	19-A
Lovage (seed) (<i>Levisticum officinale</i>)	19-B
Mace (<i>Myristica fragrans</i>)	19-B
Marigold (<i>Calendula officinalis</i>)	19-A
Marjoram (<i>Origanum spp.</i>) (includes sweet or annual marjoram, wild marjoram or oregano, and pot marjoram)	19-A
Mustard (seed) (<i>Brassica juncea</i> , <i>B. hirta</i> , <i>B. nigra</i>)	19-B
Nasturtium (<i>Tropaeolum majus</i>)	19-A
Nutmeg (<i>Myristica fragrans</i>)	19-B
Parsley (dried) (<i>Petroselinum crispum</i>)	19-A
Pennyroyal (<i>Mentha pulegium</i>)	19-A
Pepper, black (<i>Piper nigrum</i>)	19-B
Pepper, white	19-B
Poppy (seed) (<i>Papaver somniferum</i>)	19-B
Rosemary (<i>Rosemarinus officinalis</i>)	19-A
Rue (<i>Ruta graveolens</i>)	19-A
Saffron (<i>Crocus sativus</i>)	19-B
Sage (<i>Salvia officinalis</i>)	19-A
Savory, summer and winter (<i>Satureja spp.</i>)	19-A
Sweet bay (bay leaf) (<i>Laurus nobilis</i>)	19-A
Tansy (<i>Tanacetum vulgare</i>)	19-A
Tarragon (<i>Artemisia dracunculus</i>)	19-A
Thyme (<i>Thymus spp.</i>)	19-A
Vanilla (<i>Vanilla planifolia</i>)	19-B
Wintergreen (<i>Gaultheria procumbens</i>)	19-A
Woodruff (<i>Galium odorata</i>)	19-A
Wormwood (<i>Artemisia absinthium</i>)	19-A

(iii) Table. The following Table 2 identifies the crop subgroups for Crop Group 19, specifies the representative commodities for each subgroup, and lists all the commodities included in each subgroup.

TABLE 2—CROP GROUP 19 SUBGROUPS

Representative commodities	Commodities
Crop Subgroup 19-A. Herb subgroup. Basil (fresh and dried) and chive.	Angelica; balm; basil; borage; burnet; camomile; catnip; chervil (dried); chive; chive, Chinese, clary; coriander (leaf); costmary; culantro (leaf); curry (leaf); dillweed; horehound; hyssop; lavender; lemongrass; lovage (leaf); marigold; marjoram (<i>Origanum</i> spp.); nasturtium; parsley (dried); pennyroyal; rosemary; rue; sage; savory, summer and winter; sweet bay; tansy; tarragon; thyme; wintergreen; woodruff; and wormwood.
Crop Subgroup 19-B. Spice subgroup. Black pepper; and celery seed or dill seed.	Allspice; anise (seed); anise, star; annatto (seed); caper (buds); caraway; caraway, black; cardamom; cassia (buds); celery (seed); cinnamon; clove (buds); coriander (seed); culantro (seed); cumin; dill (seed); fennel, common; fennel, Florence (seed); fenugreek; grains of paradise; juniper (berry); lovage (seed); mace; mustard (seed); nutmeg; pepper, black; pepper, white; poppy (seed); saffron; and vanilla.

[60 FR 26635, May 17, 1995]

Subpart C—Specific Tolerances**§ 180.101 Specific tolerances; general provisions.**

(a) The tolerances established for pesticide chemicals in this subpart C apply to residues resulting from their application prior to harvest or slaughter, unless otherwise stated. Tolerances are expressed in terms of parts by weight of the pesticide chemical per one million parts by weight of the raw agricultural commodity.

(b) The poisonous and deleterious substances for which tolerances are established by the regulations in this subpart C are named by their common names wherever practicable, otherwise by their chemical names.

(c) The analytical methods to be used for determining whether pesticide residues, including negligible residues, in or on raw agricultural commodities are in compliance with the tolerances established in this part 180 are identified among the methods contained or referenced in the Food and Drug Administration's "Pesticide Analytical Manual" which is available from the Food and Drug Administration, Department of Health, Education, and Welfare, 200 C Street SW., Washington, DC 20204.

§ 180.102 Sesone; tolerances for residues.

The following tolerances are established for residues of the herbicide sesone (sodium 2,4-dichlorophenoxy-

ethyl sulfate) in or on the raw agricultural commodities indicated:

6 parts per million in or on potatoes, peanuts, peanut hulls, peanut hay.

2 parts per million in or on asparagus, strawberries.

§ 180.103 Captan; tolerances for residues.

(a) Tolerances are established for residues of the fungicide captan (*N*-trichloromethylthio-4-cyclohexene-1,2-dicarboximide) from preharvest and postharvest uses or combinations of such uses in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	25
Apricots	50
Avocados	25
Beet, greens	100
Beet (roots)	2
Blackberries	25
Blueberries (huckleberries)	25
Broccoli	2
Brussels sprouts	2
Cabbage	2
Cantaloups	25
Carrots	2
Cattle, fat	0.05
Cattle, meat	0.05
Cattle, mbyr	0.05
Cauliflower	2
Celery	50
Cherries	100
Collards	2
Corn, sweet (K+CWHR)	2
Cottonseed	2
Cucumbers	25
Dewberries	25
Eggplants	25
Grapes	50
Garlic	25
Hogs, fat	0.05
Hogs, meat	0.05
Hogs, mbyr	0.05

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Commodity	Parts per million
Honeydew melons	25
Kale	2
Leeks	50
Lettuce	100
Mangoes	50
Muskmelons	25
Mustard greens	2
Nectarines	50
Onions, dry bulb	25
Onions, green	50
Peaches	50
Pears	25
Peas, dry	2
Peas, succulent	2
Plums (fresh prunes)	100
Peppers	25
Pimentos	25
Pumpkins	25
Raspberries	25
Rutabagas (roots)	2
Shallots	50
Soybeans, dry	2
Soybeans, succulent	2
Spinach	100
Squash, summer	25
Squash, winter	25
Strawberries	25
Taro (corn)	0.25
Tomatoes	25
Turnip, greens	2.0
Turnips, roots	2.0
Watermelons	25.0

(b) The following tolerances for residues of captan are established on an interim basis pending evaluation of captan under the Rebuttable Presumption Against Registration (RPAR) review on the transmission of residues to meat, milk, and eggs from feeding cattle or poultry with raw agricultural commodities or their byproducts when such commodities have been treated with captan:

Commodity	Parts per million
Almonds	2
Almond hulls	100
Beans, dry	25
Beans, succulent	25
Potatoes	25

[46 FR 55114, Nov. 6, 1981, as amended at 49 FR 17760, Sept. 28, 1983; 57 FR 36005, Aug. 12, 1992]

§ 180.106 Diuron; tolerances for residues.

Tolerances for residues of the herbicide diuron (3-(3,4-dichlorophenyl)-1,1-dimethylurea) in or on raw agricultural commodities are established as follows:

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7 parts per million in or on asparagus, Bermuda grass and Bermuda grass hay.

2 parts per million in or on alfalfa; corn fodder or forage (including sweet corn, field corn, and popcorn); grass crops (other than Bermuda grass); grass hay (other than Bermuda grass hay); hay, forage, and straw of barley, oats, rye, and wheat; hay and forage of birdsfoot trefoil, clover, peas, and vetch; peppermint hay, sorghum fodder and forage.

1 part per million in or on apples, artichokes, barley grain, blackberries, blueberries, boysenberries, citrus fruits, corn in grain or ear form (including sweet corn, field corn, popcorn), cottonseed, currants, dewberries, gooseberries, grapes, huckleberries, loganberries, oat grain, olives, pears, peas, pineapple, potatoes, raspberries, rye grain, sorghum grain, sugarcane, vetch (seed), wheat grain.

1 part per million in or on meat, fat, and meat byproducts of cattle, goats, hogs, horses, and sheep.

0.5 part per million in or on papayas.

0.1 part per million (negligible residue) in or on bananas, nuts, and peaches.

[36 FR 22540, Nov. 25, 1971, as amended at 37 FR 23334, Nov. 21, 1972; 38 FR 2687, Jan. 29, 1973; 54 FR 20125, May 10, 1989]

§ 180.108 Acephate; tolerances for residues.

(a) Tolerances are established for combined residues of acephate (*O,S*-dimethyl acetylphosphoramidothioate) and its cholinesterase-inhibiting metabolite *O,S*-dimethylphosphura-midothioate in or on raw agricultural commodities as follows:

Commodity	Parts per million
Beans (succulent and dry form, of which no more than 1 ppm is <i>O,S</i> -dimethyl phosphoramidothioate)	3
Brussels sprouts (of which no more than 0.5 is <i>O,S</i> -dimethyl phosphoramido-thioate)	3.0
Cattle, fat	0.1
Cattle, meat	0.1
Cattle, mbyop	0.1
Cauliflower (of which no more than 0.5 is <i>O,S</i> -dimethyl phosphoramido-thioate)	2.0
Celery (of which no more than 1 ppm is <i>O,S</i> -dimethyl phosphoramidothioate)	10
Cottonseed	2
Cranberries (of which no more than 0.1 ppm is <i>O,S</i> -dimethyl phosphoramidothioate)	0.5

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Commodity	Parts per million
Eggs	0.1
Goats, fat	0.1
Goats, meat	0.1
Goats, mbyp	0.1
Grass (pasture & range)	15
Grass hay	15
Hogs, fat	0.1
Hogs, meat	0.1
Hogs, mbyp	0.1
Horses, fat	0.1
Horses, meat	0.1
Horses, mbyp	0.1
Lettuce (head, of which no more than 1 ppm is O,S-dimethyl phosphoramidothioate)	10
Milk	0.1
Mint hay (of which no more than 1 ppm is O,S-dimethyl phosphoramidothioate)	15.0
Peanuts	0.2
Peanut hulls	5.0
Peppers (of which no more than 1 ppm is O, S-dimethyl phosphoramidothioate)	4.0
Poultry, fat	0.1
Poultry, meat	0.1
Poultry, mbyp	0.1
Soybeans	1
Sheep, fat	0.1
Sheep, meat	0.1
Sheep, mbyp	0.1

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of acephate and its cholinesterase-inhibiting metabolite in or on the following raw agricultural commodities:

Commodity	Parts per million
Macadamia nuts	0.05

[39 FR 38229, Oct. 30, 1974, as amended at 40 FR 46310, Oct. 7, 1975; 46 FR 17021, Mar. 17, 1981; 47 FR 622, Jan. 6, 1982; 48 FR 9863, Mar. 9, 1983; 48 FR 35095, Aug. 3, 1983; 48 FR 49511, Oct. 26, 1983; 49 FR 46739, Nov. 28, 1984; 50 FR 1051, Jan. 9, 1985; 52 FR 33236, Sept. 2, 1987]

§ 180.109 Ethyl 4,4'-dichlorobenzilate; tolerances for residues.

Tolerances are established for residues of the insecticide ethyl 4,4'-dichlorobenzilate (chlorobenzilate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.5
Cattle, mbyp	0.5
Cattle, meat	0.5
Citrus fruits	5.0
Sheep, fat	0.5
Sheep, mbyp	0.5
Sheep, meat	0.5

[51 FR 8497, Mar. 12, 1986]

§ 180.110 Maneb; tolerances for residues.

Tolerances for residues of the fungicide maneb (manganous ethylenebis-dithiocarbamate), calculated as zinc ethylenebisdithiocarbamate, are established in or on raw agricultural commodities, as follows:

45 parts per million in or on sugar beet tops.

10 parts per million in or on apricots, beans (succulent form), broccoli, brussels sprouts, cabbage, cauliflower, Chinese cabbage, collards, endive (escarole), kale, kohlrabi, lettuce, mustard greens, nectarines, papayas, peaches, rhubarb, spinach, turnip tops.

7 parts per million in or on apples, beans (dry form), carrots, cranberries, eggplants, figs, grapes, onions, peppers, pumpkins, turnip roots.

5 parts in or on celery and sweet corn (kernels plus cob with husk removed).

4 parts per million in or on bananas (not more than 0.5 part per million) shall be in the pulp after peel is removed and discarded (preharvest application only), cucumbers, melons, summer squash, tomatoes, and winter squash.

2 parts per million in or on apples.

0.1 part per million in or on almonds, potatoes.

[36 FR 22540, Nov. 25, 1971, as amended at 37 FR 13695, July 13, 1972; 37 FR 14783, July 25, 1972; 37 FR 19134, Sept. 9, 1972; 38 FR 4394, Feb. 14, 1973]

§ 180.111 Malathion; tolerances for residues.

Tolerances are established for residues of the insecticide malathion (O,O-dimethyl dithiophosphate of diethyl mercaptosuccinate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa (PRE-H)	135
Almond hulls (PRE-H)	50
Almonds (PRE- and POST-H)	8
Almonds, shells	50
Apples (PRE-H)	8

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Commodity	Parts per million	Commodity	Parts per million
Apricots (PRE–H)	8	Milk, fat (from application to dairy cows)	0.5
Asparagus (PRE–H)	8	Mushrooms (PRE–H)	8
Avocados (PRE–H)	8	Nectarines (PRE–H)	8
Barley, grain (PRE– and POST–H)	8	Oats, grain (PRE– and POST–H)	8
Beans (PRE–H)	8	Okra (PRE–H)	8
Beets (including tops) (PRE–H)	8	Onions (including green onions) (PRE–H)	8
Beets, sugar, roots (PRE–H)	1	Oranges (PRE–H)	8
Beets, sugar, tops (PRE–H)	8	Papayas (PRE–H)	1
Birdsfoot trefoil, forage (PRE–H)	135	Parsnips (PRE–H)	8
Birdsfoot trefoil, hay (PRE–H)	135	Passion fruit (PRE–H)	8
Blackberries (PRE–H)	8	Peaches (PRE–H)	8
Blueberries (PRE–H)	8	Peanut, forage (PRE–H)	135
Boysenberries (PRE–H)	8	Peanut, hay (PRE–H)	135
Carrots (PRE–H)	8	Peanuts (PRE– and POST–H)	8
Cattle, fat (PRE–S)	4	Pears (PRE–H)	8
Cattle, mbyp ¹ (PRE–S)	4	Peas (PRE–H)	8
Cattle, meat ¹ (PRE–S)	4	Peavine, hay (PRE–H)	8
Chayote fruit	8	Peavines (PRE–H)	8
Chayote roots	8	Pecans (PRE–H)	8
Cherries (PRE–H)	8	Peppermint (PRE–H)	8
Chestnuts (PRE–H)	1	Peppers (PRE–H)	8
Clover (PRE–H)	135	Pineapples (PRE–H)	8
Corn, forage (PRE–H)	8	Plums (PRE–H)	8
Corn, fresh (including sweet K+CWHR) (PRE–H)	2	Potatoes (PRE–H)	8
Corn, grain (POST–H)	8	Poultry, fat (PRE–S)	4
Cottonseed (PRE–H)	2	Poultry, mbyp ¹ (PRE–S)	4
Cowpea, forage (PRE–H)	135	Poultry, meat ¹ (PRE–S)	4
Cowpea, hay (PRE–H)	135	Prunes (PRE–H)	8
Cranberries (PRE–H)	8	Pumpkins (PRE–H)	8
Cucumbers (PRE–H)	8	Quinces (PRE–H)	8
Currants (PRE–H)	8	Radishes (PRE–H)	8
Dates (PRE–H)	8	Raspberries (PRE–H)	8
Dewberries (PRE–H)	8	Rice, grain (PRE– and POST–H)	8
Eggplants (PRE–H)	8	Rice, wild	8
Eggs (from application to poultry)	0.1	Rutabagas (PRE–H)	8
Figs (PRE–H)	8	Rye, grain (PRE– and POST–H)	8
Filberts (PRE–H)	1	Safflower, seed (PRE–H)	0.2
Flax seed	0.1	Salsify (including tops) (PRE–H)	8
Flax straw	1	Shallots (PRE–H)	8
Garlic (PRE–H)	8	Sheep, fat (PRE–S)	4
Goats, fat (PRE–S)	4	Sheep, mbyp ¹ (PRE–S)	4
Goats, mbyp ¹ (PRE–S)	4	Sheep, meat ¹ (PRE–S)	4
Goats, meat ¹ (PRE–S)	4	Sorghum, forage (PRE–H)	8
Gooseberries (PRE–H)	8	Sorghum, grain (PRE– and POST–H)	8
Grapefruit (PRE–H)	8	Soybeans (dry and succulent) (PRE–H)	8
Grapes (PRE–H)	8	Soybeans, forage (PRE–H)	135
Grass, (PRE–H)	135	Soybeans, hay (PRE–H)	135
Grass, hay (PRE–H)	135	Spearmint (PRE–H)	8
Guavas (PRE–H)	8	Squash, summer and winter (PRE–H)	8
Hogs, fat (PRE–S)	4	Strawberries (PRE–H)	8
Hogs, mbyp ¹ (PRE–S)	4	Sunflower seeds (Post–H)	8
Hogs, meat ¹ (PRE–S)	4	Sweet potatoes (PRE–H)	1
Hops (PRE–H)	1	Tangerines (PRE–H)	8
Horseradish (PRE–H)	8	Tomatoes (PRE–H)	8
Horses, fat (PRE–S)	4	Turnips (including tops) (PRE–H)	8
Horses, mbyp ¹ (PRE–S)	4	Vegetables, leafy, <i>Brassica</i> (cole)	8
Horses, meat ¹ (PRE–S)	4	Vegetables, leafy (except <i>Brassica</i>)	8
Kumquats (PRE–H)	8	Vetch, hay (PRE–H)	135
Leeks (PRE–H)	8	Vetch, seed (PRE–H)	8
Lemons (PRE–H)	8	Vetch, straw (PRE–H)	135
Lentils (PRE–H)	8	Walnuts (PRE–H)	8
Lespedeza, hay (PRE–H)	135	Wheat, grain (PRE– and POST–H)	8
Lespedeza, seed (PRE–H)	8		
Lespedeza, straw (PRE–H)	135		
Limes (PRE–H)	8		
Loganberries (PRE–H)	8		
Lupine, hay (PRE–H)	135		
Lupine, seed (PRE–H)	8		
Lupine, straw (PRE–H)	135		
Macadamia nuts (PRE–H)	1		
Mangos (PRE–H)	8		
Melons (PRE–H)	8		

¹The tolerance level shall not be exceeded in any cut of meat or in any meat byproduct from cattle, goats, hogs, horses, poultry, or sheep.

[43 FR 22974, May 30, 1978, as amended at 43 FR 45584, Oct. 3, 1978; 44 FR 38844, July 3, 1979; 45 FR 76145, Nov. 18, 1980; 47 FR 42738, Sept. 29, 1982; 47 FR 55226, Dec. 8, 1982; 52 FR 45183, Nov. 25, 1987]

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§ 180.113 Allethrin (allyl homolog of cinerin I); tolerances for residues.

Tolerances are established for residues of the insecticide allethrin (allyl homolog of cinerin I) as follows:

4 parts per million from postharvest use in or on the following raw agricultural commodities: Apples, blackberries, blueberries (huckleberries), boysenberries, cherries, crabapples, currants, dewberries, figs, gooseberries, grapes, guavas, loganberries, mangoes, muskmelons, oranges, peaches, pears, pineapples, plums (fresh prunes), raspberries, tomatoes.

2 parts per million from postharvest use in or on the following grains: Barley, corn, grain sorghum, milo, oats, rye, wheat.

§ 180.114 Ferbam; tolerances for residues.

Tolerances for residues of the fungicide ferbam (ferric dimethyl-dithiocarbamate), calculated as zinc ethylenebisdithiocarbamate, in or on raw agricultural commodities are established as follows:

⁷¹ parts per million in or on apples, apricots, asparagus, beans, beets (with

or without tops) or beet greens alone, blackberries, blueberries (huckleberries), boysenberries, broccoli, brussels sprouts, cabbage, carrots, cauliflower, celery, cherries, citrus fruits, collards, corn, cranberries, cucumbers, currants, dates, dewberries, eggplants, gooseberries, grapes, guavas, kale, kohlrabi, lettuce, loganberries, mangoes, melons, mustard greens, nectarines, onions, papayas, peaches, peanuts, pears, peas, peppers, plums (fresh prunes), pumpkins, quinces, radishes (with or without tops) or radish tops, raspberries, rutabagas (with or without tops), or rutabaga tops, spinach, squash, strawberries, summer squash, tomatoes, turnips (with or without tops) or turnip greens, youngberries.

0.1 part per million in or on almonds.

§ 180.115 Zineb; tolerances for residues.

Tolerances for residues of the fungicide zineb (zinc ethylene bisdithiocarbamate) in or on raw agricultural commodities are established as follows:

Commodity	Parts Per million	Expiration date
Grapes (wine use only) ¹	7	December 31, 1997

¹ Wine grapes grown for wine vintage years 1992 (Northern Hemisphere), 1993 (Southern Hemisphere), and earlier.

[60 FR 32097, June 19, 1995]

§ 180.116 Ziram; tolerances for residues.

Tolerances for residues of the fungicide ziram (zinc dimethyldithiocarbamate), calculated as zinc ethylenebisdithiocarbamate, in or on raw agricultural commodities are established as follows:

⁷¹ parts per million in or on apples, apricots, beans, beets (with or without tops) or beet greens alone, blackberries, blueberries (huckleberries), boysenberries, broccoli, brussels sprouts, cabbage, carrots, cauliflower,

celery, cherries, collards, cranberries, cucumbers, dewberries, eggplants, gooseberries, grapes, kale, kohlrabi, lettuce, loganberries, melons, nectarines, onions, peaches, peanuts, pears, peas, peppers, pumpkins, quinces, radishes (with or without tops) or radish tops, raspberries, rutabagas (with or without tops) or rutabaga tops, spinach, squash, strawberries, summer squash, tomatoes, turnips (with or without tops) or turnip greens, youngberries.

0.1 part per million in or on almonds, pecans.

¹ Some of these tolerances were established on the basis of data acquired at the public hearings held in 1950 (formerly § 180.101) and the remainder were established on the basis of pesticide petitions presented under the

procedure specified in the amendment to the Federal Food, Drug, and Cosmetic Act by Pub. L. 518, 83d Congress (68 Stat. 511).

¹ See footnote 1 to § 180.114.

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§ 180.117 S-Ethyl dipropylthiocarbamate; tolerances for residues.

Tolerances are established for negligible residues (N) of the herbicide S-ethyl dipropylthiocarbamate in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds, hulls	0.1 (N)
Asparagus	0.1 (N)
Beans, castor	0.1 (N)
Cotton, forage	0.1 (N)
Cottonseed	0.1 (N)
Flaxseed	0.1 (N)
Fruits, citrus	0.1 (N)
Fruits, small	0.1 (N)
Grain crops	0.1 (N)
Grasses, forage	0.1 (N)
Legumes, forage	0.1 (N)
Nuts	0.1 (N)
Pineapples	0.1 (N)
Safflower, seed	0.1 (N)
Strawberries	0.1 (N)
Sunflower, seed	0.1 (N)
Vegetables, fruiting	0.1 (N)
Vegetables, leafy	0.1 (N)
Vegetables, root crop	0.1 (N)
Vegetables, seed and pod	0.1 (N)

[42 FR 9178, Feb. 15, 1977]

§ 180.118 Dichlone; tolerances for residues.

Tolerances for residues of the fungicide dichlone (2,3-dichloro-1,4-naphthoquinone) are established as follows:

15 parts per million in or on strawberries.

3 parts per million in or on apples, beans, celery, cherries, peaches, plums (fresh prunes), tomatoes.

§ 180.120 Methoxychlor; tolerances for residues.

Tolerances are established for residues of the insecticide methoxychlor (2,2-bis (p-methoxyphenyl)-1,1,1-trichloroethane) as follows:

100 parts per million in or on alfalfa, clover, cowpeas, grass for forage, peanut forage, soybean forage.

14¹ parts per million in or on apples, apricots, asparagus, beans, beets (with or without tops) or beet greens alone, blackberries, blueberries (huckleberries), boysenberries, broccoli, brussels sprouts, cabbage, carrots, cauliflower, cherries, collards, corn, cranberries, cucumbers, currants, dewberries, eggplants, gooseberries, grapes, kale, kohlrabi, lettuce, loganberries, melons,

mushrooms, nectarines, peaches, peanuts, pears, peas, peppers, pineapples, plums (fresh prunes), pumpkins, quinces, radishes (with or without tops) or radish tops, raspberries, rutabagas (with or without tops) or rutabaga tops, spinach, squash, strawberries, summer squash, tomatoes, turnips (with or without tops) or turnip greens, youngberries.

7 parts per million in or on sweet potatoes and yams from preharvest and postharvest application.

3 parts per million in or on the fat of meat from cattle, goats, hogs, horses, or sheep.

2 parts per million in or on the following grains from storage-bin treatment: Barley, corn, oats, rice, rye, sorghum grain, wheat.

1.25 parts per million in milk fat reflecting negligible residues in milk.

1 part per million in or on potatoes.

1 part per million in or on horseradish.

[36 FR 22540, Nov. 25, 1971, as amended at 38 FR 28663, Oct. 16, 1973; 45 FR 67350, Oct. 10, 1980]

§ 180.121 Parathion or its methyl homolog; tolerances for residues.

(a) Tolerances are established for residues of the insecticide parathion (O,O-diethyl-O-p-nitrophenyl thiophosphate) or its methyl homolog in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa (fresh)	1.25
Alfalfa hay	5
Almonds	0.1(N)
Almond hulls	3
Apples	1
Apricots	1
Artichokes	1
Avocados	1
Barley	1
Beans	1
Beet greens (alone)	1
Beets (with or without tops)	1
Beets, sugar	0.1(N)
Beets, sugar (tops)	0.1(N)
Blackberries	1
Blueberries (huckleberries)	1
Boysenberries	1
Broccoli	1
Brussels sprouts	1
Cabbage	1
Carrots	1
Cauliflower	1
Celery	1
Cherries	1

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Commodity	Parts per million
Citrus fruits	1
Clover	1
Collards	1
Corn	1
Corn, forage	1
Cottonseed	0.75
Cranberries	1
Cucumbers	1
Currants	1
Dates	1
Dewberries	1
Eggplants	1
Endive (escarole)	1
Figs	1
Filberts	0.1(N)
Garlic	1
Gooseberries	1
Grapes	1
Grass (forage)	1
Guavas	1
Hops	1
Kale	1
Kohlrabi	1
Lettuce	1
Loganberries	1
Mangoes	1
Melons	1
Mustard greens	1
Mustard seed	0.2
Nectarines	1
Oats	1
Okra	1
Olives	1
Onions	1
Parsnips (with or without tops)	1
Parsnip greens (alone)	1
Peaches	1
Peanuts	1
Pears	1
Peas	1
Peas, forage	1
Pecans	0.1(N)
Peppers	1
Pineapples	1
Plums (fresh prunes)	1
Potatoes	0.1(N)
Pumpkins	1
Quinces	1
Radishes (with or without tops)	1
Radish, tops	1
Rape seed	0.2
Raspberries	1
Rice	1
Rutabagas (with or without tops)	1
Rutabaga tops	1
Safflower seed	0.1(N)
Sorghum	0.1(N)
Sorghum fodder	3
Sorghum forage	3
Soybeans	0.1
Soybean hay	1
Spinach	1
Squash	1
Strawberries	1
Summer squash	1
Sugarcane	0.1(N)
Sugarcane fodder	0.1(N)
Sugarcane forage	0.1(N)
Sunflower seed	0.2
Sweet potatoes	0.1(N)
Swiss chard	1

Commodity	Parts per million
Tomatoes	1
Turnips (with or without tops)	1
Turnips greens	1
Vetch	1
Walnuts	0.1(N)
Wheat	1
Youngberries	1

(b) Tolerances are established for residues of the insecticide *O,O*-dimethyl-*O*-*p*-nitrophenyl thiophosphate (the methyl homolog of parathion) in or on the following raw agricultural commodities:

Commodity	Parts per million
Birdsfoot trefoil forage	1.25
Birdsfoot trefoil hay	5
Guar beans	0.2
Lentils	1
Parsley	1
Vegetables, leafy, <i>Brassica</i> (cole)	1.0

[47 FR 31552, July 21, 1982, as amended at 49 FR 37758, Sept. 26, 1984]

§ 180.123 Inorganic bromides resulting from fumigation with methyl bromide; tolerances for residues.

(a) Tolerances are established for residues of inorganic bromides (calculated as Br) in or on the following raw agricultural commodities which have been fumigated with the antimicrobial agent and insecticide methyl bromide after harvest (with the exception of strawberries):

Commodity	Parts per million
Alfalfa, hay (Post-H)	50.0
Almonds (Post-H)	200.0
Apples (Post-H)	5.0
Apricots (Post-H)	20.0
Artichokes, Jerusalem (Post-H)	30.0
Asparagus (Post-H)	100.0
Avocados (Post-H)	75.0
Barley (Post-H)	50.0
Beans (Post-H)	50.0
Beans, green (Post-H)	50.0
Beans, lima (Post-H)	50.0
Beans, snap (Post-H)	50.0
Beets, garden, roots (Post-H)	30.0
Beets, sugar, roots (Post-H)	30.0
Blueberries (Post-H)	20.0
Brazil nuts (Post-H)	200.0

Commodity	Parts per million
Bush nuts (Post-H)	200.0
Butternuts (Post-H)	200.0
Cabbage (Post-H)	50.0
Cantaloupes (Post-H)	20.0
Carrots (Post-H)	30.0
Cashews (Post-H)	200.0
Cherries (Post-H)	20.0
Chestnuts (Post-H)	200.0
Cippolini, bulbs (Post-H)	50.0
Citrus citron (Post-H)	30.0
Cocoa beans (Post-H)	50.0
Coffee beans (Post-H)	75.0
Copra (Post-H)	100.0
Corn (Post-H)	50.0
Corn (pop) (Post-H)	240.0
Corn, sweet (K+CWHR) (Post-H)	50.0
Cottonseed (Post-H)	200.0
Cucumbers (Post-H)	30.0
Cumin, seed (Post-H)	100.0
Eggplants (Post-H)	20.0
Filberts (Hazelnuts) (Post-H)	200.0
Garlic (Post-H)	50.0
Ginger, roots (Post-H)	100.0
Grapefruit (Post-H)	30.0
Grapes (Post-H)	20.0
Hickory nuts (Post-H)	200.0
Honeydew melons (Post-H)	20.0
Horseradish (Post-H)	30.0
Kumquats (Post-H)	30.0
Lemons (Post-H)	30.0
Limes (Post-H)	30.0
Mangoes (Post-H)	20.0
Muskmelons (Post-H)	20.0
Nectarines (Post-H)	20.0
Oats (Post-H)	50.0
Okra (Post-H)	30.0
Onions (Post-H)	20.0
Oranges (Post-H)	30.0
Papayas (Post-H)	20.0
Parsnips, roots (Post-H)	30.0
Peaches (Post-H)	20.0
Peanuts (Post-H)	200.0
Pears (Post-H)	5.0
Peas (Post-H)	50.0
Peas, blackeyed (Post-H)	50.0
Pecans (Post-H)	200.0
Peppers (Post-H)	30.0
Pimentos (Post-H)	30.0
Pineapples (Post-H)	20.0
Pistachio nuts (Post-H)	200.0
Plums (Post-H)	20.0
Pomegranates (Post-H)	100.0
Potatoes (Post-H)	75.0
Pumpkins (Post-H)	20.0
Quinces (Post-H)	5.0
Radishes (Post-H)	30.0
Rice (Post-H)	50.0
Rutabagas (Post-H)	30.0
Rye (Post-H)	50.0
Salsify, roots (Post-H)	30.0
Sorghum, grain (Post-H)	50.0
Soybeans (Post-H)	200.0
Squash, summer (Post-H)	30.0
Squash, winter (Post-H)	20.0
Squash, zucchini (Post-H)	20.0
Strawberries (Pre- and Post-H)	60.0
Sweet potatoes (Post-H)	75.0
Tangerines (Post-H)	30.0
Timothy, hay (Post-H)	50.0
Tomatoes (Post-H)	20.0

Commodity	Parts per million
Turnips, roots (Post-H)	30.0
Walnuts (Post-H)	200.0
Watermelons (Post-H)	20.0
Wheat	50.0

(b) A tolerance with regional registration, as defined in §180.1(n), is established for residues of inorganic bromides (calculated as Br) in or on the following raw agricultural commodity grown in soil fumigated with methyl bromide.

Commodity	Parts per million
Ginger, roots (Pre- and Post-H)	100

[48 FR 20052, May 4, 1983, as amended at 48 FR 50534, Nov. 2, 1983; 53 FR 30054, Aug. 10, 1988; 56 FR 19950, May 1, 1991]

§ 180.123a Inorganic bromide residues in peanut hay and peanut hulls; statement of policy.

(a) Investigations by the Food and Drug Administration show that peanut hay and peanut shells have been used as feed for meat and dairy animals. While many growers now harvest peanuts with combines and leave the hay on the ground to be incorporated into the soil, some growers follow the practice of curing peanuts on the vines in a stack and save the hay for animal feed. Peanut shells or hulls have been used to a minor extent as roughage for cattle feed. It has been established that the feeding to cattle of peanut hay and peanut hulls containing residues of inorganic bromides will contribute considerable residues of inorganic bromides to the meat and milk.

(b) There are no tolerances for inorganic bromides in meat and milk to cover residues from use of such peanut hulls as animal feed. Peanut hulls containing residues of inorganic bromides from the use of methyl bromide are unsuitable as an ingredient in the feed of meat and dairy animals and should not

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be represented, sold, or used for that purpose.

[58 FR 65555, Dec. 15, 1993]

§ 180.124 Glyodin; tolerances for residues.

Tolerances are established for residues of the fungicide glyodin (2-hepta-decyl-2-imidazoline acetate or 2-hepta-decyl-2-imidazoline (base)) in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	5
Cherries	5
Peaches	5
Pears	5

[42 FR 9178, Feb. 15, 1977]

§ 180.125 Calcium cyanide; tolerances for residues.

Tolerances are established for residues of the insecticide calcium cyanide, calculated as hydrogen cyanide, in or on raw agricultural commodities as follows:

25 parts per million, from postharvest application, in or on the grains: Barley, buckwheat, corn, oats, rice, rye, sorghum, and wheat.

5 parts per million in or on cucumbers, lettuce, radishes, and tomatoes.

§ 180.127 Piperonyl butoxide; tolerances for residues.

Tolerances for residues of the insecticide piperonyl butoxide [(butyl carbityl) (6-propyl piperonyl)ether] are established in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds (post-H)	8
Apples (post-H)	8
Barley (post-H)	20
Beans (post-H)	8
Birdseed mixtures (post-H)	20
Blackberries (post-H)	8
Blueberries (huckleberries) (post-H)	8
Boysenberries (post-H)	8
Buckwheat (post-H)	20
Cattle, fat	0.1(N)
Cattle, mbyop	0.1(N)
Cattle, meat	0.1(N)
Cherries (post-H)	8
Cocoa beans (post-H)	8
Copra (post-H)	8
Corn (including popcorn) (post-H)	20
Cottonseed (post-H)	8

Commodity	Parts per million
Crabapples (post-H)	8
Currants (post-H)	8
Dewberries (post-H)	8
Eggs	1
Figs (post-H)	8
Flaxseed (post-H)	8
Goats, fat	0.1(N)
Goats, mbyop	0.1(N)
Goats, meat	0.1(N)
Gooseberries (post-H)	8
Grain sorghum (post-H)	8
Grapes (post-H)	8
Guavas (post-H)	8
Hogs, fat	0.1(N)
Hogs, mbyop	0.1(N)
Hogs, meat	0.1(N)
Horses, fat	0.1(N)
Horses, mbyop	0.1(N)
Horses, meat	0.1(N)
Loganberries (post-H)	8
Mangoes (post-H)	8
Milk fat (reflecting negligible residues in milk)	0.25
Muskmelons (post-H)	8
Oats (post-H)	8
Oranges (post-H)	8
Peaches (post-H)	8
Peanuts (with shell removed) (post-H)	8
Pears (post-H)	8
Peas (post-H)	8
Pineapples (post-H)	8
Plums (fresh prunes) (post-H)	8
Potatoes (post-H)	0.25
Poultry, fat	3
Poultry, mbyop	3
Poultry, meat	3
Raspberries (post-H)	8
Rice (post-H)	20
Rye (post-H)	20
Sheep, fat	0.1(N)
Sheep, mbyop	0.1(N)
Sheep, meat	0.1(N)
Sweet potatoes (post-H)	0.25
Tomatoes (post-H)	8
Walnuts (post-H)	8
Wheat (post-H)	20

[46 FR 48665, Oct. 2, 1981]

§ 180.128 Pyrethrins; tolerances for residues.

Tolerances for residues of the insecticide pyrethrins (insecticidally active principles of *Chrysanthemum cinerariifolium*) are established in or on following the raw agricultural commodities:

Commodity	Parts per million
Almonds (post-H)	1
Apples (post-H)	1
Barley (post-H)	3
Beans (post-H)	1
Birdseed mixtures (post-H)	3
Blackberries (post-H)	1
Blueberries (huckleberries) (post-H)	1
Boysenberries (post-H)	1

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Commodity	Parts per million
Buckwheat (post-H)	3
Cattle, fat	0.1(N)
Cattle, mbyp	0.1(N)
Cattle, meat	0.1(N)
Cherries (post-H)	1
Cocoa beans (post-H)	1
Copra (post-H)	1
Corn (including popcorn) (post-H)	3
Cottonseed (post-H)	1
Crabapples (post-H)	1
Currants (post-H)	1
Dewberries (post-H)	1
Eggs	0.1(N)
Figs (post-H)	1
Flaxseed (post-H)	1
Goats, fat	0.1(N)
Goats, mbyp	0.1(N)
Goats, meat	0.1(N)
Gooseberries (post-H)	1
Grain sorghum (post-H)	1
Grapes (post-H)	1
Guavas (post-H)	1
Hogs, fat	0.1(N)
Hogs, mbyp	0.1(N)
Hogs, meat	0.1(N)
Horses, fat	0.1(N)
Horses, mbyp	0.1(N)
Horses, meat	0.1(N)
Loganberries (post-H)	1
Mangoes (post-H)	1
Milk fat (reflecting negligible residues in milk)	0.5
Muskmelons (post-H)	1
Oats (post-H)	1
Oranges (post-H)	1
Peaches (post-H)	1
Peanuts (with shell removed) (post-H)	1
Pears (post-H)	1
Peas (post-H)	1
Pineapples (post-H)	1
Plums (fresh prunes) (post-H)	1
Potatoes (post-H)	0.05
Poultry, fat	0.2
Poultry, mbyp	0.2
Poultry, meat	0.2
Raspberries (post-H)	1
Rice (post-H)	3
Rye (post-H)	3
Sheep, fat	0.1(N)
Sheep, mbyp	0.1(N)
Sheep, meat	0.1(N)
Sweet potatoes (post-H)	0.05
Tomatoes (post-H)	1
Walnuts (post-H)	1
Wheat (post-H)	3

[46 FR 48666, Oct. 2, 1981]

§ 180.129 *o*-Phenylphenol and its sodium salt; tolerances for residue.

Tolerances are established for combined residues of the fungicide *o*-phenylphenol and sodium *o*-phenylphenate, each expressed as *o*-phenylphenol, from postharvest application of either in or on the following raw agricultural commodities:

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Commodity	Parts per million
Apples	25
Cantaloupes (NMT 10 ppm in edible portion)	125
Carrots	20
Cherries	5
Citrus	10
Citron	10
Cucumbers	10
Grapefruit	10
Kiwifruit	20
Kumquats	10
Lemons	10
Limes	10
Nectarines	5
Oranges	10
Peppers (bell)	10
Peaches	20
Pears	25.0
Pineapples	10
Plums (fresh prunes)	20
Sweet potatoes	15
Tangerines	10
Tomatoes	10

[46 FR 27938, May 22, 1981, as amended at 48 FR 32015, July 13, 1983]

§ 180.130 Hydrogen cyanide; tolerances for residues.

Tolerances for residues of the insecticide hydrogen cyanide from postharvest fumigation are established as follows:

250 parts per million in or on the following spices: Allspice, anise, basil, bay, black pepper, caraway, cassia, celery seed, chili, cinnamon, cloves, coriander, cumin, dill, ginger, mace, marjoram, nutmeg, oregano, paprika, poppy, red pepper, rosemary, sage, savory, thyme, tumeric, white pepper.

75 parts per million in or on barley, buckwheat, corn (including popcorn), milo (grain sorghum), oats, rice, rye, wheat.

50 parts per million in or on citrus fruits.

25 parts per million in or on almonds, beans (dried), cashews, cocoa beans, peanuts, peas (dried), pecans, sesame, walnuts.

§ 180.132 Thiram; tolerances for residues.

Tolerances for residues of the fungicide thiram (tetramethyl thiuram disulfide) in or on raw agricultural commodities are established as follows:

7 parts per million in or on apples, celery, peaches, strawberries, tomatoes.

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7 parts per million in or on bananas, (from preharvest and postharvest application) of which not more than 1 part per million shall be in the pulp after peel is removed and discarded.

0.5 part per million in or on onions (dry bulb).

[36 FR 22540, Nov. 25, 1971, as amended at 37 FR 3182, Feb. 12, 1972]

§ 180.133 Lindane; tolerances for residues.

Tolerances are established for residues of the insecticide lindane (gamma isomer of benzene hexachloride) in or on raw agricultural commodities as follows:

7 parts per million in or on the fat of meat from cattle, goats, horses, and sheep.

4 parts per million in or on the fat of meat from hogs.

3 parts per million in or on cucumbers, lettuce, melons, mushrooms, pumpkins, squash, summer squash, and tomatoes.

1 part per million in or on apples, apricots, asparagus, avocados, broccoli, brussels sprouts, cabbage, cauliflower, celery, cherries, collards, eggplants, grapes, guavas, kale, kohlrabi, mangoes, mustard greens, nectarines, okra, onions (dry bulb only), peaches, pears, peppers, pineapples, plums (fresh prunes), quinces, spinach, strawberries, and Swiss chard.

0.01 part per million (negligible residue) in or on pecans.

[36 FR 22540, Nov. 25, 1971, as amended at 39 FR 13776, Apr. 17, 1974]

§ 180.136 Basic copper carbonate; tolerance for residues.

The tolerance for residues of the fungicide basic copper carbonate in or on pears from post-harvest use of the chemical is 3 parts per million of combined copper.

§ 180.141 Biphenyl; tolerances for residues.

Tolerances are established for residues of the fungicide biphenyl (also known as diphenyl) from postharvest use on the following raw agricultural commodities:

Commodity	Parts per million
Fruits, citrus (and hybrids thereof)	110

[42 FR 9178, Feb. 15, 1977]

§ 180.142 2,4-D; tolerances for residues.

(a) Tolerances are established for residues of the herbicide, plant regulator, and fungicide 2,4-D (2,4-dichlorophenoxyacetic acid) in or on raw agricultural commodities as follows:

Commodity	Parts per million
Apples	5
Apricots	5
Citrus fruits	5
Pears	5
Potatoes	0.2
Quinces	5

(1) The tolerance on apricots also includes residues of 2,4-D (2,4-dichlorophenoxyacetic acid) from the preharvest application of 2,4-D dimethylamine salt to apricots.

(2) The tolerance on citrus fruits also includes residues 2,4-D from the preharvest application of 2,4-D isopropyl ester and 2,4-D butoxyethyl ester and from the postharvest application of 2,4-D alkanolamine salts and 2,4-D isopropyl ester to citrus fruits.

(b) Tolerances are established for residues of 2,4-D at:

Commodity	Parts per million
Barley, grain	0.5
Barley, forage	20
Blueberries	0.1
Corn, fodder	20
Corn, forage	20
Corn, fresh, sweet (K+CWHR)	0.5
Corn, grain	0.5
Cranberries	0.5
Grapes	0.5
Grass hay	300
Grasses, pasture	1,000
Grasses, rangeland	1,000
Millet, forage	20
Millet, grain	0.5
Millet, straw	20
Nuts	0.2
Oats, forage	20
Oats, grain	0.5
Pistachios	0.2
Rice	0.1
Rice, straw	20
Rye, forage	20
Rye, grain	0.5

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Commodity	Parts per million
Sorghum, fodder	20
Sorghum, forage	20
Sorghum, grain	0.5
Stone Fruits	0.2
Sugarcane	2
Sugarcane, forage	20
Wheat, forage	20
Wheat, grain	0.5

(1) *Salts*. Residues on all the above may result from application of 2,4-D in acid form, or in the form of one or more of the following salts:

(i) The inorganic salts: Ammonium, lithium, potassium, and sodium.

(ii) The amine salts: Alkanolamines of the ethanol and isopropanol series, alkyl (C-12), alkyl (C-13), alkyl (C-14), alkylamines derived from tall oil, amylamine, diethanolamine, diethylamine, diisopropanolamine, dimethylamine, N,N-dimethyl-linoleylamine, N,N-dimethylethylamine, ethanolamine, ethylamine, heptylamine, isopropanolamine, isopropylamine, linoleylamine, methylamine, morpholine, octylamine, oleylamine, N-oleyl-1,3-propylenediamine, propylamine, triethanolamine, triethylamine, triisopropanolamine, and trimethylamine.

(2) *Esters*. Residues on all the above may result from application of 2,4-D in acid form, or in the form of one or more of the following esters: amyl (pentyl), butoxyethoxypropyl, butoxyethyl, butoxypolyethylene glycol butyl ether, butoxypropyl, butyl, dipropylene glycol isobutyl ether, ethoxyethoxyethyl, ethoxyethoxypropyl, ethyl, ethoxypropyl, isobutyl, isooctyl (including, but not limited to, 2-ethylhexyl, 2-ethyl-4-methylpentyl, and 2-octyl), isopropyl, methyl, polyethylene glycol 200, polypropoxybutyl, polypropylene glycol, propylene glycol, propylene glycol butyl ether, propylene glycol isobutyl ether, tetrahydrofurfuryl, and tripropylene glycol isobutyl ether.

(c) Tolerances are established for negligible residues of 2,4-D from application of its dimethylamine salt to irrigation ditch banks in the Western United States in programs of the Bureau of Reclamation, U.S. Department of Interior; cooperating water user organizations; the Bureau of Sport Fisheries, U.S. Department of Interior; Agricultural Research Service, U.S. De-

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partment of Agriculture; and the Corps of Engineers, U.S. Department of Defense. Where tolerances are established at higher levels from other uses of 2,4-D on the following crops, the higher tolerance applies also to residues from the irrigation ditch bank use cited in this paragraph.

The established tolerances follow:

Commodity	Parts per million
Avocados	0.1 (N)
Citrus fruits	0.1 (N)
Cottonseed	0.1 (N)
Cucurbits	0.1 (N)
Forage grasses	0.1 (N)
Forage legumes	0.1 (N)
Fruiting vegetables	0.1 (N)
Grain crops	0.1 (N)
Hops	0.1 (N)
Leafy vegetables	0.1 (N)
Nuts	0.1 (N)
Pome fruits	0.1 (N)
Root crop vegetables	0.1 (N)
Seed and pod vegetables	0.1 (N)
Small fruits	0.1 (N)
Stone fruits	0.1 (N)

(d) A tolerance is established for residues of 2,4-D sodium salt and alkanolamine salts (of the ethanol and isopropanol series), calculated as 2,4-D (2,4-dichlorophenoxyacetic acid) as follows:

Commodity	Parts per million
Asparagus	5

(e) A tolerance is established for residues of 2,4-D from application of its alkanolamine salts (of the ethanol and isopropanol series) as follows:

Commodity	Parts per million
Strawberries	0.05

(f) Tolerances are established for residues of 2,4-D from application of its dimethylamine salt for water hyacinth control in ponds, lakes, reservoirs, marshes, bayous, drainage ditches, canals, rivers and streams that are quiescent or slow moving in programs conducted by the Corps of Engineers or other Federal, State, or local public agencies. Where tolerances are established at higher levels from other uses of the dimethylamine salt of 2,4-D on

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crops included within these commodity groups, the higher tolerances also apply to residues from the aquatic uses cited in this paragraph. The established tolerances follow:

Commodity	Parts per million
Crops in paragraph (c) of this section	1.0
Crop groupings in paragraph (c) of this section	1.0
Fish	1.0
Shellfish	1.0

(g) [Reserved]

(h) Tolerances are established for residues of 2,4-dichlorophenoxyacetic acid (2,4-d) and/or its metabolite, 2,4-dichlorophenol (2,4-DCP) in food products of animal origin as follows.

Commodity	Parts per million
Cattle, fat	0.2
Cattle, kidney	2
Cattle, meat	0.2
Cattle, mbyp (exc. kidney)	0.2
Eggs	0.05
Goats, fat	0.2
Goats, kidney	2
Goats, meat	0.2
Goats, mbyp (exc. kidney)	0.2
Hogs, fat	0.2
Hogs, kidney	2
Hogs, meat	0.2
Hogs, mbyp (exc. kidney)	0.2
Horses, fat	0.2
Horses, kidney	2
Horses, meat	0.2
Horses, mbyp (exc. kidney)	0.2
Milk	0.1
Poultry	0.05
Sheep, fat	0.2
Sheep, kidney	2
Sheep, meat	0.2
Sheep, mbyp (exc. kidney)	0.2

(i) A tolerance is established for residues of 2,4-D from applications of its dimethylamine salt or its butoxyethanol ester for Eurasian Watermilfoil control in programs conducted by the Tennessee Valley Authority in dams and reservoirs of the TVA system as follows:

Commodity	Parts per million
Fish	1.0

(j) A tolerance with regional registration as defined in §180.1(n) is established for the residues of 2,4-D (2,4-dichlorophenoxyacetic acid). The tolerance includes residues from the appli-

cation of 2,4-D and its N-oley1-1,3-propylenediamine salt on the following raw agricultural commodity:

Commodity	Parts per million
Raspberries	0.1

(k) A tolerance that expires on December 31, 1998, is established for residues of the herbicide 2,4-D (2,4-dichlorophenoxyacetic acid) resulting from the preplant use of 2,4-D ester or amine in or on the raw agricultural commodity as follows:

Commodity	Parts per million
Soybeans	0.1

[47 FR 620, Jan. 6, 1982, as amended at 48 FR 2323, Jan 19, 1983; 55 FR 39408, Sept. 27, 1990; 61 FR 13429, Mar. 27, 1996]

§ 180.143 Dipropyl isocinchomeronate; tolerances for residues.

Tolerances are established for negligible residues of the insecticide dipropyl isocinchomeronate, resulting from dermal application, in raw agricultural commodities as follows:

0.1 part per million in meat, fat, and meat byproducts of cattle, goats, hogs, horses, and sheep.

0.004 part per million in milk.

[37 FR 16937, Aug. 23, 1972]

§ 180.144 Cyhexatin; tolerances for residues.

Tolerances are established for combined residues of the pesticide cyhexatin (tricyclohexylhydroxystannane; CAS Reg. No. 13121-70-5) and its organotin metabolites (calculated as cyhexatin) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds	0.5
Almonds, hulls	60
Apples	2
Cattle, fat	0.2
Cattle, kidney	0.5
Cattle, liver	0.5
Cattle, mbyp (exc. kidney, liver)	0.2
Cattle, meat	0.2

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Commodity	Parts per million
Citrus fruits	2
Goats, fat	0.2
Goats, kidney	0.5
Goats, liver	0.5
Goats, mbyp (exc kidney, liver)	0.2
Goats, meat	0.2
Hogs, fat	0.2
Hogs, kidney	0.5
Hogs, liver	0.5
Hogs, mbyp (exc kidney, liver)	0.2
Hogs, meat	0.2
Hops	30
Horses, fat	0.2
Horses, kidney	0.5
Horses, liver	0.5
Horses, mbyp (exc kidney, liver)	0.2
Horses, meat	0.2
Macadamia nuts	0.5
Milk, fat (=N in whole milk)	0.05
Nectarines	4
Peaches	4
Pears	2
Plums (fresh prunes)	1
Sheep, fat	0.2
Sheep, kidney	0.5
Sheep, liver	0.5
Sheep, mbyp (exc kidney, liver)	0.2
Sheep, meat	0.2
Strawberries	3
Walnuts	0.5

[41 FR 27358, July 2, 1976; 41 FR 31207, July 27, 1976, as amended at 52 FR 32306, Aug. 27, 1987; 53 FR 23395, June 22, 1988]

§ 180.145 Fluorine compounds; tolerances for residues.

(a) Tolerances are established for combined residues of the insecticidal fluorine compounds cryolite and synthetic cryolite (sodium aluminum fluoride) in or on the following agricultural commodities:

Commodity	Parts per million
Apples	7
Apricots	7
Beans	7
Beets, roots	7
Beets, tops	7
Blackberries	7
Blueberries (huckleberries)	7
Boysenberries	7
Broccoli	7
Brussels sprouts	7
Cabbage	7
Carrots	7
Cauliflower	7
Citrus fruits	7
Collards	7
Corn	7
Cranberries	7
Cucumbers	7
Dewberries	7
Eggplant	7
Grapes	7
Kale	7
Kohlrabi	7

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Commodity	Parts per million
Lettuce	7
Loganberries	7
Melons	7
Mustard greens	7
Nectarines	7
Okra	7
Peaches	7
Peanuts	7
Pears	7
Peas	7
Peppers	7
Plums (fresh prunes)	7
Pumpkins	7
Quinces	7
Radish, roots	7
Radish, tops	7
Raspberries	7
Rutabaga, roots	7
Rutabaga, tops	7
Squash (winter)	7
Squash (summer)	7
Strawberries	7
Tomatoes	7
Turnip, roots	7
Turnip, tops	7
Youngberries	7

(b) Tolerances with regional registration, as defined by § 180.1(n), are established for the combined residues of the insecticidal fluorine compounds, cryolite and synthetic cryolite (sodium aluminum fluoride), in or on the following raw agricultural commodities:

Commodity	Parts per million
Kiwifruit	15

(c) A time-limited tolerance to expire May 6, 1996 is established for residues of the insecticidal fluorine compounds cryolite and synthetic cryolite (sodium aluminum fluoride) in or on the raw agricultural commodity as follows:

Commodity	Parts per million
Potatoes	2.0

[54 FR 6916, Feb. 15, 1989, as amended at 58 FR 26689, May 5, 1993]

§ 180.148 β -Naphthoxyacetic acid; tolerances for residues.

A tolerance of 0.05 part per million is established for negligible residues of the plant regulator β -naphthoxyacetic acid in or on the raw agricultural commodity pineapples from the application

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of the sodium salt of β -naphthoxyacetic acid to the growing crop.

§ 180.149 Mineral oil; tolerances for residues.

(a) For the purposes of this section, the insecticide mineral oil is defined as the refined petroleum fraction having the following characteristics:

- (1) Minimum flashpoint of 300° F.
 - (2) Gravity of 27 to 34 by the American Petroleum Institute standard method.
 - (3) Pour point of 30° F. maximum.
 - (4) Color 2 maximum by standards of the American Society for Testing Materials.
 - (5) Boiling point between 480° F. and 960° F.
 - (6) Viscosity at 100° F. of 100 to 200 seconds Saybolt.
 - (7) Unsulfonated residue of 90 percent minimum.
 - (8) No sulfur compounds according to the United States Pharmacopeia test under Liquid Petrolatum.
- (b) Tolerances of 200 parts per million for residues of mineral oil as specified in paragraph (a) of this section are established in or on the following grains from postharvest application: Shelled corn, grain sorghum.

§ 180.150 Dalapon; tolerances for residues.

(a) Tolerances are established for residues of the herbicide dalapon (2,2-dichloropropionic acid) resulting from application of dalapon sodium salt or sodium-magnesium salt mixtures in or on the following raw agricultural commodities.

Commodity	Parts per million
Almonds	10
Almonds, hulls	50
Apples	3
Apricots	1
Asparagus	30
Bananas	5
Beans	1
Beans, straw	1
Beets, sugar (roots)	5
Beets, sugar (tops)	5
Cattle, mby	0.2
Cattle, meat	0.2
Coffee beans	2
Corn, ear, dried (K+C)	10
Corn, fodder	5
Corn, forage	5
Corn, fresh (including sweet K+C+WHR)	5
Corn, grain	10

Commodity	Parts per million
Cottonseed	35
Cranberries	5
Eggs	0.3
Flaxseed	75
Goats, mby	0.2
Goats, meat	0.2
Grapefruit	5
Grapes	3
Grasses, pasture	10
Grasses, range	10
Hogs, mby	0.2
Hogs, meat	0.2
Lemons	5
Limes	5
Macadamia nuts	1
Milk	0.1
Oranges	5
Peaches	15
Pears	3
Peas, shelled	15
Peas, unshelled	15
Peas, vine, with pod	15
Peas, vine, without pod	15
Pecans	0.1
Pineapples	3
Plums	1
Potatoes	10
Poultry, (excluding kidney)	3
Poultry, kidney	9
Sheep, mby	0.2
Sheep, meat	0.2
Sorghum	1
Sorghum, forage	5
Soybeans	1
Soybeans, straw	1
Sugarcane	0.1
Tangerines	5
Walnuts	5

(b) Tolerances are established for residues of dalapon (2,2-dichloropropionic acid) resulting from application of dalapon sodium-magnesium salt mixtures to irrigation ditch banks in the western United States in or on the following raw agricultural commodities. Where tolerances are established at higher levels from other uses of dalapon on the subject crops, the higher tolerance applies also to residues from the irrigation ditch bank use.

Commodity	Parts per million
Avocados	0.2
Citrus fruits	0.2
Cottonseed	0.2
Cucurbits	0.5
Flaxseed	2.0
Fruits, pome	0.2
Fruits, small	0.2
Fruits, stone	0.2
Grain crops (exc wheat)	0.5
Grasses, forage	2
Hops	0.2
Legumes, forage	2
Nuts	0.2
Vegetables, fruiting	0.2

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Commodity	Parts per million
Vegetables, leafy	0.5
Vegetables, root crop	0.2
Vegetables, seed and pod	0.5
Wheat	2

[43 FR 22359, May 25, 1978]

§ 180.151 Ethylene oxide; tolerances for residues.

A tolerance of 50 parts per million is established for residues of the antimicrobial agent and insecticide ethylene oxide, when used as a postharvest fumigant in or on the following raw agricultural commodities: Black walnut meats, copra, whole spices.

§ 180.152 Sodium dimethyldithiocarbamate; tolerance for residues.

A tolerance of 25 parts per million is established for residues of the fungicide sodium dimethyldithiocarbamate, calculated as zinc ethylenebisdithiocarbamate, in or on melons.

§ 180.153 Diazinon; tolerances for residues.

(a) Tolerances are established for residues of the insecticide diazinon (*O,O*-diethyl *O*-[6-methyl-2-(1-methylethyl)-4-pyrimidinyl]phosphorothioate; CAS Reg. No. 333-41-5) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa, fresh	40.0
Alfalfa, hay	10.0
Almonds	0.5
Almonds, hulls	3.0
Apples	0.5
Apricots	0.5
Bananas (NMT 0.1 ppm shall be present in the pulp after peel is removed)	0.2
Beans, forage	25.0
Beans, hay	10.0
Beans, guar	0.1
Beans, guar, forage	0.1
Beans, lima	0.5
Beans, snap	0.5
Beets, roots	0.75
Beets, sugar, roots	0.5
Beets, sugar, tops	10.0
Beets, tops	0.7
Birdsfoot trefoil	40.0
Birdsfoot trefoil, hay	10.0
Blackberries	0.5
Blueberries	0.5
Boysenberries	0.5
Carrots	0.75

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Commodity	Parts per million
Cattle, fat (pre-s appli)	0.7
Cattle, meat (fat basis) (pre-s appli)	0.7
Cattle, mbyp (fat basis) (pre-s appli)	0.7
Celery	0.7
Cherries	0.75
Chicory, red (tops) (also known as radicchio)	0.7
Citrus	0.7
Clover (fresh)	40.0
Clover, hay	10.0
Coffee beans	0.2
Corn, forage	40.0
Corn (inc. sweet k + CWHR)	0.7
Cottonseed	0.2
Cowpeas	0.1
Cowpeas, forage	0.1
Cranberries	0.5
Cucumbers	0.75
Dandelions	0.7
Dewberries	0.5
Endive (escarole)	0.7
Figs	0.5
Filberts	0.5
Ginseng	0.75
Grapes	0.75
Grass (NMT 40 ppm shall remain 24 hours after appli)	60.0
Grass, hay	10.0
Hops	0.75
Kiwi fruit	0.75
Lespedeza	1.0
Lettuce	0.7
Loganberries	0.75
Melons	0.75
Mushrooms	0.75
Nectarines	0.5
Olives	1.0
Onions	0.75
Parsley	0.75
Parsnips	0.5
Peaches	0.7
Peanuts	0.75
Peanuts, forage	40.0
Peanuts, hay	10.0
Peanuts, hulls	10.0
Pears	0.5
Peavine hay	10.0
Peavines	25.0
Peas with pods (determined on peas after removing any shell present when marketed)	0.5
Pecans	0.5
Peppers	0.5
Pineapples	0.5
Pineapples, forage	40.0
Plums (fresh prunes)	0.5
Potatoes	0.1
Potatoes, sweet	0.1
Radishes	0.5
Raspberries	0.5
Rutabagas	0.75
Sheep, fat (pre-s appli)	0.7
Sheep, meat (fat basis) (pre-s appli)	0.7
Sheep, mbyp (fat basis) (pre-s appli)	0.7
Sorghum, forage	10.0
Sorghum, grain	0.75
Soybeans,	0.1
Soybeans, forage	0.1
Spinach	0.7
Squash, summer	0.5
Squash, winter	0.75
Strawberries	0.5

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Commodity	Parts per million
Sugarcane	0.75
Swiss chard	0.7
Tomatoes	0.75
Turnips, roots	0.5
Turnips, tops	0.75
Vegetables, leafy, <i>Brassica</i> (cole)	0.7
Walnuts	0.5
Watercress	0.7

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the insecticide diazinon (*O,O*-diethyl *O*-(6-methyl-2-(1-methylethyl)-4-pyrimidinyl)-phosphorothioate; CAS Reg. No. 33-41-5) in or on the following raw agricultural commodities:

Commodity	Parts per million
Radish, Chinese (roots)	0.1
Radish, Chinese (tops)	0.1

[47 FR 42738, Sept. 29, 1982, as amended at 48 FR 14896, Apr. 6, 1983; 49 FR 37758, Sept. 26, 1984; 49 FR 47494, Dec. 5, 1984; 51 FR 46858, Dec. 29, 1986; 52 FR 32306, Aug. 27, 1987; 53 FR 23395, June 22, 1988; 53 FR 48260, Nov. 30, 1988]

§ 180.154 *O,O*-Dimethyl S-[(4-oxo-1,2,3-benzotriazin-3(4H)-yl)methyl]phosphorodithioate; tolerances for residues.

(a) Tolerances for residues of the insecticide *O,O*-dimethyl S-[(4-oxo-1,2,3-benzotriazin-3(4H)-yl)methyl]phosphorodithioate in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	2.0
Alfalfa, hay	5.0
Almonds	0.3
Almonds, hulls	10.3
Apples	2.0
Apricots	2.0
Artichokes	2.0
Barley, grain	0.2
Barley, straw	2.0
Beans (dry)	0.3
Beans, snap	2.0
Birdfoot trefoil	2
Birdfoot trefoil hay	5
Blackberries	2.0
Blueberries	5.0
Boysenberries	2.0
Broccoli	2.0
Brussels sprout	2.0
Cabbage	2.0
Cattle, fat	0.1
Cattle, mby	0.1

Commodity	Parts per million
Cattle, meat	0.1
Cauliflower	2.0
Celery	2.0
Cherries	2.0
Citrus fruits	2.0
Clover	2.0
Clover, hay	5.0
Cottonseed	0.5
Crabapples	2.0
Cranberries	2.0
Cucumbers	2.0
Eggplants	0.3
Filberts	0.3
Goats, fat	0.1
Goats, mby	0.1
Goats, meat	0.1
Gooseberries	5.0
Grapes	5.0
Grass, pasture (green)	2.0
Grass, pasture, hay	5.0
Horses, fat	0.1
Horses, mby	0.1
Horses, meat	0.1
Kiwi fruit	10.0
Loganberries	2.0
Melons (honeydew, muskmelons, cantaloupes, watermelons, and other melons)	2.0
Nectarines	2.0
Nuts, pistachio	0.3
Oats, grain	0.2
Oats, straw	2.0
Onions	2.0
Parsley, leaves	5
Parsley, roots	2
Peaches	2.0
Pears	2.0
Peas, black-eyed	0.3
Pecans	0.3
Peppers	0.3
Plums (fresh prunes)	2.0
Potatoes	0.3
Quinces	2.0
Raspberries	2.0
Rye, grain	0.2
Rye, straw	2.0
Sheep, fat	0.1
Sheep, mby	0.1
Sheep, meat	0.1
Soybeans	0.2
Spinach	2.0
Strawberries	2.0
Sugarcane	0.3
Tomatoes (pre- and post-H)	2.0
Walnuts	0.3
Wheat, grain	0.2
Wheat, straw	2.0

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the insecticide *O,O*-dimethyl S-[(4-oxo-1,2,3-benzotriazin-3(4H)-yl)methyl]phosphorodithioate in or on the following commodity:

Commodity	Parts per million
Pomegranates	0.1

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[43 FR 42750, Sept. 21, 1978, as amended at 43 FR 51018, Nov. 2, 1978; 43 FR 60465, Dec. 28, 1978; 44 FR 29051, May 18, 1979; 44 FR 37919, June 29, 1979; 45 FR 76147, Nov. 18, 1980; 46 FR 17021, Mar. 17, 1981; 55 FR 2379, Jan. 24, 1990]

§ 180.154a O,O-Dimethyl S-[4-oxo-1,2,3-benzotriazin-3 (4H)-yl)methyl] phosphorodithioate residues and/or its metabolites in milk.

A tolerance of 0.04 part per million (negligible residue) is established for residues of O,O-dimethyl S-[4-oxo-1,2,3-benzotriazin-3 (4H)-yl)methyl] phosphorodithioate and/or its metabolites calculated as O,O-dimethyl S-[4-oxo-1,2,3-benzotriazin-3 (4H)-yl)methyl] phosphorodithioate in milk.

[37 FR 4338, Mar. 2, 1972 as amended at 44 FR 37919, June 29, 1979]

§ 180.155 1-Naphthaleneacetic acid; tolerances for residues.

(a) Tolerances are established for residues of the plant growth regulator 1-naphthaleneacetic acid in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	1
Cherries, sweet	0.1
Olives	0.1 (N)
Oranges	0.1
Pears	1
Pineapples (from the application of the sodium salt to the growing crop)	0.05
Quinces	1
Tangerines	0.1

(b) Tolerances are established for residues of the ethyl ester of 1-naphthaleneacetic acid in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	1
Pears	1
Olives	0.1

[46 FR 23238, Apr. 24, 1981, as amended at 47 FR 33692, Aug. 4, 1982; 48 FR 20054, May 4, 1983]

§ 180.157 Methyl 3-[(dimethoxyphosphinyl) oxy]butenoate, alpha and beta isomers; tolerances for residues.

Tolerances are established for residues of the insecticide methyl 3-[(dimethoxyphosphinyl)oxy]butenoate, alpha and beta isomers, in or on the

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following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	1.0
Apples	0.5
Artichokes	1.0
Beans	0.25
Beets, garden (incl. tops)	1.0
Birdsfoot trefoil, forage	1.0
Birdsfoot trefoil, hay	1.0
Broccoli	1.0
Brussel sprouts	1.0
Cabbage	1.0
Carrots	0.25
Cauliflower	1.0
Celery	1.0
Cherries	1.0
Chicory, red (tops) (also known as radicchio)	0.5
Citrus	0.2
Clover	1.0
Collards	1.0
Corn, field, forage	1.0
Corn, grain, field	0.25
Corn, pop, forage	1.0
Corn, pop, grain	0.25
Corn, sweet (K+CWHR)	0.25
Corn, sweet, forage	1.0
Cucumbers	0.2
Eggplant	0.25
Grapes	0.5
Kale	1.0
Lettuce	0.5
Melons (incl. cantaloupes, honeydew melon, and muskmelon, determined on the edible portion with rind removed)	0.5
Mustard greens	1.0
Okra	0.25
Onions (green)	0.25
Parsley	1.0
Peaches	1.0
Pears	0.5
Peas	0.25
Peavines	1.0
Peppers	0.25
Plums	1.0
Potatoes	0.25
Raspberries	1.0
Sorghum, forage	1.0
Sorghum, grain	1.0
Spinach	1.0
Squash, summer	0.25
Strawberries	1.0
Tomatoes	0.2
Turnips	0.25
Turnips, tops	1.0
Walnuts (determined on the nut meats with shell removed)	0.25
Watercress	2.0
Watermelon	0.5

[47 FR 42739, Sept. 29, 1982, as amended at 49 FR 21711, May 23, 1984; 49 FR 47494, Dec. 5, 1984]

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§ 180.158 2,4-Dichloro-6-*o*-chloroanilino-*s*-triazine; tolerances for residues.

Tolerances for residues of the fungicide 2,4-dichloro-6-*o*-chloroanilino-*s*-triazine in or on raw agricultural commodities are established as follows:

10 parts per million in or on blackberries, blueberries (huckleberries), celery, cranberries, cucumbers, dewberries, green onions, loganberries, melons, pumpkins, raspberries, shallots, summer squash, strawberries, tomatoes, winter squash.

1 part per million in or on garlic, onions (dry bulb), potatoes.

§ 180.159 Sodium dehydroacetate; tolerances for residues.

Tolerances are established for residues of the fungicide sodium dehydroacetate, expressed as dehydroacetic acid, from postharvest application in or on raw agricultural commodities as follows:

65 parts per million in or on strawberries.

30 parts per million in or on bananas, of which residue not more than 10 parts per million shall be in the pulp after peel is removed and discarded.

§ 180.161 Manganous dimethyldithiocarbamate; tolerance for residues.

A tolerance of 7 parts per million is established for residues of the fungicide manganous dimethyldithiocarbamate, calculated as zinc ethylenebis-dithiocarbamate, in or on apples.

§ 180.162 Tetraiodoethylene; tolerance for residues.

A tolerance of 15 parts per million is established for residues of the fungicide tetraiodoethylene in or on cantaloups from postharvest application.

§ 180.163 1,1-Bis(*p*-chlorophenyl)-2,2,2-trichloroethanol; tolerances for residues.

Tolerances for residues of the insecticide 1,1-bis (*p*-chlorophenyl)-2,2,2-trichloroethanol in or on raw agricultural commodities are established as follows:

30 parts per million in or on hops.

25 parts per million in or on peppermint hay and spearmint hay.

10 parts per million in or on apricots, grapefruit, kumquats, lemons, limes, nectarines, oranges, peaches, tangerines.

5 parts per million in or on apples, beans (dry form); beans, snap (succulent form); beans, lima (succulent form); blackberries, boysenberries, bushnuts, butternuts, cantaloups, cherries, chestnuts, crabapples, cucumbers, dewberries, eggplants, figs, filberts, grapes, hazelnuts, hickory nuts, loganberries, melons, muskmelons, pears, pecans, peppers, pimentos, plums (fresh prunes), pumpkins, quinces, raspberries, summer squash, strawberries, tomatoes, walnuts, watermelons, winter squash.

0.1 part per million in or on cottonseed.

§ 180.167 Nicotine-containing compounds; tolerances for residues.²

A tolerance of 2 parts per million of nicotine is established for residues of nicotine-containing compounds used as insecticides in or on the following raw agricultural commodities: Apples, apricots, artichokes, asparagus, avocados, beans, beets (with or without tops) or beet greens alone, blackberries, boysenberries, broccoli, brussels sprouts, cabbage, cauliflower, celery, cherries, citrus fruits, collards, corn, cranberries, cucumbers, currants, dewberries, eggplants, gooseberries, grapes, kale, kohlrabi, lettuce, loganberries, melons, mushrooms, mustard greens, nectarines, okra, onions, parsley, parsnips (with or without tops) or parsnip greens alone, peaches, pears, peas, peppers, plums (fresh prunes), pumpkins, quinces, radishes (with or without tops) or radish tops, raspberries, rutabagas (with or without tops) or rutabaga tops, spinach, squash, strawberries, summer squash, Swiss chard, tomatoes, turnips (with or without tops) or turnip greens, youngberries.

§ 180.167a Nicotine; tolerances for residues.

Tolerances of 1 part per million are established for residues of the insecticide nicotine (3-1-methyl-2-pyrrolidyl)

² See footnote 2 to § 180.145.

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pyridine) in the raw agricultural commodities eggs and the meat, fat, and meat byproducts of poultry.

[38 FR 13375, May 21, 1973]

§ 180.169 Carbaryl; tolerances for residues.

(a) Tolerances are established for residues of the insecticide carbaryl (1-naphthyl *N*-methylcarbamate), including its hydrolysis product 1-naphthol, calculated as 1-naphthyl *N*-methylcarbamate, in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	100
Alfalfa, hay	100
Almonds	1
Almonds, hulls	40
Apricots	10
Asparagus	10
Bananas	10
Barley, grain	0
Barley, green fodder	100
Barley, straw	100
Beans	10
Beans, forage	100
Beans, hay	100
Beets, garden (roots)	5
Beets, garden (tops)	12
Birdsfoot trefoil, forage	100.0
Birdsfoot trefoil, hay	100.0
Blackberries	12
Blueberries	10
Boysenberries	12
Broccoli	10
Brussels sprouts	10
Cabbage	10
Carrots	10
Cauliflower	10
Celery	10
Cherries	10
Chestnuts	1
Chinese cabbage	10
Citrus fruits	10
Clover	100
Clover, hay	100
Collards	12
Corn, fresh (including sweet) K+CWHR	5
Corn, fodder	100
Corn, forage	100
Cotton, forage	100
Cottonseed	5
Cowpeas	5
Cowpeas, forage	100
Cowpeas, hay	100
Cranberries	10
Cucumbers	10
Dandelions	12
Dewberries	12
Eggplants	10
Endive (escarole)	10
Filberts (hazelnuts)	1
Flax, seed	5
Flax, straw	100
Grapes	10
Grass	100
Grass, hay	100
Horseradish	5

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Commodity	Parts per million
Kale	12
Kohlrabi	10
Lentils	10
Lettuce	10
Loganberries	12
Maple sap	0.5
Melons	10
Millet, proso, grain	3
Millet, proso, straw	100
Mustard greens	12
Nectarines	10
Oats, fodder, green	100
Oats, grain	0
Oats, straw	100
Okra	10
Olives	10
Oysters	0.25
Parsley	12
Parsnips	5
Peaches	10
Peanuts	5
Peanuts, hay	100
Peas (with pods)	10
Peavines	100
Pecans	1
Peppers	10
Pistachio nuts	1
Plums (fresh prunes)	10
Poultry, fat	5
Poultry, meat	5
Potatoes	0.2(N)
Prickly pear cactus, fruit	12.0
Prickly pear cactus, pads	12.0
Pumpkins	10
Radishes	5
Raspberries	12
Rice	5
Rice, straw	100
Rutabagas	5
Rye, fodder, green	100
Rye, grain	0
Rye, straw	100
Salsify (roots)	5
Salsify (tops)	10
Sorghum, forage	100
Sorghum, grain	10
Soybeans	5
Soybeans, forage	100
Soybeans, hay	100
Spinach	12
Squash, summer	10
Squash, winter	10
Strawberries	10
Sugar beets, tops	100
Sunflower seeds	1
Sweet potatoes	0.2
Swiss chard	12
Tomatoes	10
Turnips, roots	5
Turnips, tops	12
Walnuts	1
Wheat, fodder, green	100
Wheat (grain)	3
Wheat, straw	100

(b) Tolerances are established for residues of the insecticide carbaryl (1-

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naphthyl *N*-methylcarbamate) including its metabolites 1-naphthol (naphthyl-sulfate), 5,6-dihydrodihydroxycarbaryl, and 5,6-dihydrodihydroxy naphthol, calculated as 1-naphthyl *N*-methylcarbamate in or on the following raw agricultural commodities:

Commodity	Part per million
Cattle, fat	0.1
Cattle, kidney	1
Cattle, liver	1
Cattle, meat	0.1
Cattle (mbyp)	0.1
Goats, fat	0.1
Goats, kidney	1
Goats, liver	1
Goats, meat	0.1
Goats (mbyp)	0.1
Horses, fat	0.1
Horses, kidney	1
Horses, liver	1
Horses, meat	0.1
Horses (mbyp)	0.1
Sheep, fat	0.1
Sheep, kidney	1
Sheep, liver	1
Sheep, meat	0.1
Sheep (mbyp)	0.1
Swine, fat	0.1
Swine, kidney	1
Swine, liver	1
Swine, meat	0.1
Swine (mbyp)	0.1

(c) A tolerance is established for residues of the insecticide carbaryl (1-naphthyl *N*-methylcarbamate), including its metabolites 1-naphthol (naphthyl sulfate), 5,6-dihydro-dihydroxycarbaryl and 5-methoxy-6-hydroxycarbaryl, calculated as 1-naphthyl *N*-methylcarbamate in or on the raw agricultural commodity milk at 0.3 ppm.

(d) Tolerances are established for residues of the insecticide carbaryl (1-naphthyl *N*-methylcarbamate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Pineapples	2.0
Pome fruits	10.0

(e) Tolerances with regional registration are established for the insecticide carbaryl (1-naphthyl *N*-methylcarbamate) in or on the following raw agricultural commodities.

Commodity	Parts per million
Avocados	10.0

Commodity	Parts per million
Dill (fresh)	0.2

[43 FR 49305, Oct. 23, 1978]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.169, see the List of CFR Sections Affected in the Finding Aids section of this volume.

§ 180.170 Temephos; tolerances for residues.

A tolerance of 0.1 part per million is established for combined negligible residues of the insecticide temephos (*O,O,O',O'*-tetramethyl *O,O'*-(thiodi-4,1-phenylene) phosphorothioate; CAS Reg. No. 3383-96-8) and its metabolite *O,O,O',O'*-tetramethyl *O,O'*-(sulfinyldi-4,1-phenylene) phosphorothioate in or on the raw agricultural commodities citrus fruits.

[53 FR 23395, June 22, 1988]

§ 180.171 Dioxathion; tolerances for residues.

Tolerances are established for residues of dioxathion (2,3-*p*-dioxanedithiol-*S,S*-bis(*O,O*-diethylphosphorodithioate)) incurred from the use of the insecticide composed of a mixture of approximately 70 percent of the *cis* and *trans* isomers of 2,3-*p*-dioxanedithiol-*S,S*-bis(*O,O*-diethylphosphorodithioate) and approximately 30 percent of related compounds in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	5
Cattle, fat of meat	1
Goats, fat of meat	1
Grapefruit	3
Grapes	2
Hogs, fat of meat	1
Horses, fat of meat	1
Lemons	3
Limes	3
Milk	0
Oranges	3
Pears	5
Quinces	5
Sheep, fat of meat	1
Stone fruits	0.1(N)
Tangerines	3
Walnuts	0.14(N)

[43 FR 36630, Aug. 18, 1978, as amended at 47 FR 42739, Sept. 29, 1982]

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§ 180.172 Dodine; tolerances for residues.

(a) Tolerances are established for residues of the fungicide dodine (*n*-dodecylguanidine acetate) in or on the following raw agricultural commodities.

Commodity	Parts per million
Apples	5.0
Cherries, sour	5.0
Cherries, sweet	5.0
Meat	0
Milk	0
Peaches	5.0
Pears	5.0
Pecans	0.3
Strawberries	5.0
Walnuts	0.3

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of dodine in or on the following raw agricultural commodities:

Commodity	Parts per million
Spinach	12.0

[48 FR 37211, Aug. 17, 1983, as amended at 52 FR 33236, Sept. 2, 1987]

§ 180.173 Ethion; tolerances for residues.

Tolerances are established for residues of the insecticide ethion (*O,O,O',O'*-tetraethyl *S,S'*-methylene bisphosphorodithioate) including its oxygen analog (*S*-[[[(diethoxyphosphinothioyl)thio] methyl] *O,O*-diethyl phosphorothioate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds	0.1
Almond, hulls	5.0
Apples	2.0
Apricots	0.1
Beans	2.0
Cattle, fat	2.5
Cattle, meat (fat basis)	2.5
Cattle, mbyp	1.0
Cherries	0.1
Chestnuts	0.1
Citrus fruits	2.0
Corn, fodder	14.0
Corn, forage	14.0
Corn, grain	0.1

Commodity	Parts per million
Cottonseed	0.5
Cucumbers	0.5
Eggs	0.2
Eggplants	1.0
Filberts	0.1
Goats, fat	0.2
Goats, meat	0.2
Goats, mbyp	0.2
Grapes	2.0
Hogs, fat	0.2
Hogs, meat	0.2
Hogs, mbyp	0.2
Horses, fat	0.2
Horses, meat	0.2
Horses, mbyp	0.2
Melons	2.0
Milk fat (reflecting (N) residues in milk)	0.5
Nectarines	1.0
Onions	1.0
Peaches	1.0
Pears	2.0
Pecans	0.1
Peppers	1.0
Pimentos	1.0
Plums (fresh prunes)	2.0
Poultry, fat	0.2
Poultry, meat	0.2
Poultry, mbyp	0.2
Sheep, fat	0.2
Sheep, meat	0.2
Sheep, mbyp	0.2
Sorghum, forage	2.0
Sorghum, grain	2.0
Squash, summer	0.5
Strawberries	2.0
Tomatoes	2.0
Walnuts	0.1

[47 FR 42739, Sept. 29, 1982]

§ 180.174 Tetradifon; tolerances for residues.

Tolerances are established for residues of the insecticide tetradifon (2,4,5,4'-tetrachlorodiphenyl sulfone) in or on raw agricultural commodities as follows:

100 parts per million in or on peppermint, spearmint.

30 parts per million in or on fresh hops.

6 parts per million in or on figs.

5 parts per million in or on apples, apricots, cherries, crabapples, grapes, nectarines, peaches, pears, plums (fresh prunes), quinces, strawberries.

2 parts per million in or on citrus citron, grapefruit, lemons, limes, oranges, tangerines.

1 part per million in or on cucumbers, melons, pumpkins, tomatoes, winter squash.

Zero in meat and milk.

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§ 180.175 Maleic hydrazide; tolerances for residues.

(a) Tolerances for residues of the herbicide and plant regulator maleic hydrazide (1,2-dihydro-3,6-pyridazinedione) are established in or on the following raw agricultural commodities:

Commodity	Parts per million
Onions, dry bulb	15.0
Potatoes	50.0

(b) [Reserved]

[48 FR 56380, Dec. 21, 1983, as amended at 52 FR 33236, Sept. 2, 1987; 61 FR 26120, May 24, 1996]

§ 180.176 Coordination product of zinc ion and maneb; tolerances for residues.

Tolerances for residues of a fungicide which is a coordination product of zinc ion and maneb (manganous ethylene-bisdithiocarbamate) containing 20 percent manganese, 2.5 percent zinc, and 77.5 percent ethylene-bisdithiocarbamate (the whole product calculated as zinc ethylenebisdithiocarbamate), are established as follows:

65 parts per million in or on peanut vine hay, sugarbeet tops.

25 parts per million in or on the straws of barley, oats, rye, wheat.

10 parts per million in or on crabapples, fennel, pears, quinces.

10 parts per million in or on the whole fruit of papayas, with no residue present in the edible pulp after the peel is removed and discarded.

7 parts per million in or on apples, cranberries, and grapes.

5 parts per million in or on celery; corn fodder and forage; and the grains of barley, oats, rye, and wheat.

4 parts per million in or on bananas, preharvest use only, of which not more than 0.5 part per million shall be in the pulp after peel is removed and discarded.

4 parts per million in or on cucumbers, melons, summer squash, and tomatoes.

2 parts per million in or on carrots, sugar beets.

0.5 part per million in or on popcorn grain, fresh corn including sweet corn (kernels plus cob with husk removed),

cottonseed, kidney, liver, onions (dry bulb), and peanuts.

0.1 part per million (negligible residue) in or on asparagus.

0.1 part per million in or on corn grain (except popcorn grain).

[36 FR 22540, Nov. 25, 1971, as amended at 37 FR 16178, Aug. 11, 1972; 37 FR 24112, Nov. 4, 1972]

§ 180.178 Ethoxyquin; tolerances for residues.

A tolerance of 3 parts per million is established for residues of the plant regulator ethoxyquin (1,2-dihydro-6-ethoxy-2,2,4-trimethylquinoline) from preharvest or postharvest use in or on apples and pears.

(See also 21 CFR 172.140, 573.380, and 573.400.)

§ 180.179 Tartar emetic; tolerances for residues.²

A tolerance of 3.5 parts per million is established for residues of the insecticide tartar emetic, calculated as combined antimony trioxide, in or on each of the following raw agricultural commodities: Citrus fruit, grapes, onions.

§ 180.180 Orthoarsenic acid.

A tolerance that expires on July 1, 1995, of 4 parts per million of combined As₂O₃ is established for residues of the defoliant orthoarsenic acid in or on the raw agricultural commodity cottonseed.

[59 FR 3655, Jan. 26, 1994]

§ 180.181 CIPC; tolerances for residues.

Tolerances are established for residues of the plant regulator and herbicide CIPC (isopropyl *m*-chlorocarbamate) and its metabolite 1-hydroxy-2-propyl 3'-chlorocarbamate (calculated as CIPC) in or on the following raw agricultural commodities:

Commodity	Parts per million
Potatoes (POST-H)	50
Soybeans	0.2

[43 FR 52487, Nov. 13, 1978]

² See footnote 2 to § 180.145.

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§ 180.182 Endosulfan; tolerances for residues.

Tolerances are established for the total residues of the insecticide endosulfan (6,7,8,9,10,10-hexachloro-1,5,5a,6,9,9a-hexahydro-6,9-methano-2,4,3-benzodioxathiepin-3-oxide) and its metabolite endosulfan sulfate (6,7,8,9,10,10-hexachloro-1,5,5a,6,9,9a-hexahydro-6,9-methano-2,4,3-benzodioxathiepin-3,3-dioxide) in or on the raw agricultural commodities:

Commodity	Parts per million
Alfalfa, fresh	0.3
Alfalfa, hay	1.0
Almonds	0.2(N)
Almonds, hulls	1.0
Apples	2.0
Apricots	2.0
Artichokes	2.0
Barley, grain	0.1(N)
Barley, straw	0.2(N)
Beans	2.0
Beets, sugar, without tops	0.1(N)
Blueberries	0.1(N)
Broccoli	2.0
Brussels sprouts	2.0
Cabbage	2.0
Carrots	0.2
Cattle, fat	0.2
Cattle, mbyp	0.2
Cattle, meat	0.2
Cauliflower	2.0
Celery	2.0
Cherries	2.0
Collards	2.0
Corn, sweet (K+CWHR)	0.2
Cottonseed	1.0
Cucumbers	2.0
Eggplant	2.0
Filberts	0.2(N)
Goats, fat	0.2
Goats, mbyp	0.2
Goats, meat	0.2
Grapes	2.0
Hogs, fat	0.2
Hogs, mbyp	0.2
Hogs, meat	0.2
Horses, fat	0.2
Horses, mbyp	0.2
Horses, meat	0.2
Kale	2.0
Lettuce	2.0
Macadamia nuts	0.2(N)
Melons	2.0
Milk, fat (=N in whole milk)	0.5
Mustard greens	2.0
Mustard seed	0.2(N)
Nectarines	2.0
Oats, grain	0.1(N)
Oats, straw	0.2(N)
Peaches	2.0
Pears	2.0
Peas, succulent	2.0
Pecans	0.2(N)
Peppers	2.0
Pineapples	2.0

Commodity	Parts per million
Plums	2.0
Potatoes	0.2(N)
Prunes	2.0
Pumpkins	2.0
Rape seed	0.2(N)
Raspberries	0.1
Rye, grain	0.1(N)
Rye, straw	0.2(N)
Safflower seed	0.2(N)
Sheep, fat	0.2
Sheep, mbyp	0.2
Sheep, meat	0.2
Spinach	2.0
Squash, summer	2.0
Squash, winter	2.0
Strawberries	2.0
Sugarcane	0.5
Sunflower seed	2.0
Sweet potatoes	0.2
Tomatoes	2.0
Turnips, greens	2.0
Walnuts	0.2(N)
Watercress	2.0
Wheat, grain	0.1(N)
Wheat, straw	0.2(N)

[48 FR 32988, July 20, 1983]

§ 180.183 O,O-Diethyl S-[2-(ethylthio)ethyl] phosphorodithioate; tolerances for residues.

(a) Tolerances are established for the combined residues of the insecticide 0,0-diethyl S-[2-(ethylthio)ethyl] phosphorodithioate and its cholinesterase-inhibiting metabolites, calculated as demeton, in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa, fresh	5.0
Alfalfa, hay	12.0
Barley, fodder, green	5.0
Barley, grain	0.75
Barley, straw	5.0
Beans, dry	0.75
Beans, lima	0.75
Beans, snap	0.75
Beans, vines	5.0
Beets, sugar, roots	0.5
Beets, sugar, tops	2.0
Broccoli	0.75
Brussels sprouts	0.75
Cabbage	0.75
Cauliflower	0.75
Clover, fresh	5.0
Clover, hay	12.0
Coffee beans	0.3
Corn, field, fodder	5.0
Corn, field, forage	5.0
Corn, grain	0.3
Corn, pop	0.3

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Commodity	Parts per million
Corn, pop, fodder	5.0
Corn, pop, forage	5.0
Corn, sweet, fodder	5.0
Corn, sweet, forage	5.0
Corn, sweet, grain (K+CWHR)	0.3
Cottonseed	0.75
Hops	0.5
Lettuce	0.75
Oats, fodder, green	5.0
Oats, grain	0.75
Oats, straw	5.0
Peanuts	0.75
Peanuts, hay	5.0
Peanuts, hulls	0.3
Peas	0.75
Peas, vines	5.0
Pecans	0.75
Peppers	0.1
Pineapples	0.75
Pineapples, foliage	5.0
Potatoes	0.75
Rice	0.75
Rice, straw	5.0
Sorghum, fodder	5.0
Sorghum, forage	5.0
Sorghum, grain	0.75
Soybeans	0.1
Soybeans, forage	0.25
Soybeans, hay	0.25
Spinach	0.75
Sugarcane	0.3
Tomatoes	0.75
Wheat, fodder, green	5.0
Wheat, grain	0.3
Wheat, straw	5.0

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of *O,O*-diethyl *S*-[2-(ethylthio)ethyl] phosphorodithioate and its cholinesterase-inhibiting metabolites, calculated as demeton, in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	0.1

[48 FR 24689, June 2, 1983, as amended at 52 FR 33237, Sept. 2, 1987]

§ 180.184 Linuron; tolerances for residues.

(a) Tolerances are established for residues of the herbicide linuron (3-(3,4-dichlorophenyl)-1-methoxy-1-methylurea) in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	7.0

Commodity	Parts per million
Barley, forage	0.5
Barley, grain	0.25
Barley, hay	0.5
Barley, straw	0.5
Carrots	1
Cattle, fat	1
Cattle, mbyp	1
Cattle, meat	1
Celery	0.5
Corn, field, fodder	1
Corn, field, forage	1
Corn, fresh (inc. sweet K+CWHR)	0.25
Corn, grain (inc. pop)	0.25
Corn, pop, fodder	1
Corn, pop, forage	1
Corn, sweet, fodder	1
Corn, sweet, forage	1
Cottonseed	0.25
Goats, fat	1
Goats, mbyp	1
Goats, meat	1
Hogs, fat	1
Hogs, mbyp	1
Hogs, meat	1
Horses, fat	1
Horses, mbyp	1
Horses, meat	1
Oats, forage	0.5
Oats, grain	0.25
Oats, hay	0.5
Oats, straw	0.5
Parsnips (with or without tops)	0.5
Parsnips, tops	0.5
Potatoes	1
Rye, forage	0.5
Rye, grain	0.25
Rye, hay	0.5
Rye, straw	0.5
Sheep, fat	1
Sheep, mbyp	1
Sheep, meat	1
Sorghum, fodder	1
Sorghum, forage	1
Sorghum, grain (milo)	0.25
Soybeans, (dry or succulent)	1
Soybeans, forage	1
Soybeans, hay	1
Wheat, forage	0.5
Wheat, grain	0.25
Wheat, hay	0.5
Wheat, straw	0.5

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the herbicide linuron [3-(3,4-dichlorophenyl)-1-methoxy-1-methylurea] in or on the following raw agricultural commodity:

Commodity	Parts per million
Parsley	0.25

[44 FR 29050, May 18, 1979, as amended at 55 FR 39273, Sept. 26, 1990; 60 FR 63950, Dec. 13, 1995]

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§ 180.185 Dimethyl tetrachloroterephthalate; tolerances for residues.

(a) Tolerances for combined residues of the herbicide dimethyl tetrachloroterephthalate and its metabolites monomethyl tetrachloroterephthalate and tetrachloroterephthalic acid (calculated as dimethyl tetrachloroterephthalate) are established in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, field dry	2
Beans, mung, dry	2
Beans, snap, succulent	2
Cantaloups	1
Corn, field, fodder	0.4
Corn, field, forage	0.4
Corn, grain (including field and pop)	0.05
Corn, pop, fodder	0.4
Corn, pop, forage	0.4
Corn, sweet (K+CWHR)	0.05
Corn, sweet, fodder	0.4
Corn, sweet, forage	0.4
Cottonseed	0.2
Cress, upland	5
Cucumbers	1
Eggplant	1
Garlic	1
Honeydew melons	1
Horseradish	2
Lettuce	2
Onions	1
Peas, southern, black-eyed	2
Peppers	2
Pimentos	2
Potatoes	2
Rutabagas	2
Soybeans	2
Squash, summer	1
Squash, winter	1
Strawberries	2
Sweet potatoes	2
Tomatoes	1
Turnips	2
Turnips, greens	5
Vegetables, leafy, <i>Brassica</i> (cole)	5
Watermelons	1
Yams	2

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of dimethyl tetrachloroterephthalate and its metabolites, calculated as dimethyl tetrachloroterephthalate, in or on the following raw agricultural commodities:

Commodity	Parts per million
Radish, roots	2.0
Radish, tops	15.0

[41 FR 27357, July 2, 1976, as amended at 43 FR 29294, July 7, 1978; 49 FR 30700, Aug. 1, 1984; 52 FR 33237, Sept. 2, 1987; 54 FR 5080, Feb. 1, 1989]

§ 180.188 Ammonium sulfamate; tolerances for residues.

A tolerance of 5 parts per million is established for residues of the herbicide ammonium sulfamate in or on apples and pears.

§ 180.189 Coumaphos; tolerances for residues.

Tolerances are established for residues of the insecticide coumaphos (*O,O*-diethyl *O*-3-chloro-4-methyl-2-oxo-2*H*-1-benzopyran-7-yl phosphorothioate) and its oxygen analog (*O,O*-diethyl *O*-3-chloro-4-methyl-2-oxo-2*H*-1-benzopyran-7-yl phosphate) in or on raw agricultural commodities as follows:

1 part per million in or on meat, fat, and meat byproducts of cattle, goats, hogs, horses, poultry, and sheep.

0.5 part per million in milk-fat reflecting negligible residues in milk.

0.1 part per million in eggs.

§ 180.190 Diphenylamine; tolerances for residues.

Tolerances for residues of the plant regulator diphenylamine are established as follows:

10 parts per million in or on apples from preharvest or postharvest use, including use of impregnated wraps, for scald control.

Zero in milk and meat.

[36 FR 22540, Nov. 25, 1971, as amended at 60 FR 31255, June 14, 1995]

§ 180.191 Folpet; tolerances for residues.

Tolerances for residues of the fungicide folpet (*N*-(trichloromethylthio) phthalimide) in or on raw agricultural commodities are established as follows:

50 parts per million in or on celery, cherries, leeks, lettuce, onions (green), shallots.

25 parts per million in or on apples, avocados, blackberries, blueberries, boysenberries, crabapples, cranberries, currants, dewberries, gooseberries, grapes, huckleberries, loganberries, raspberries, strawberries, tomatoes.

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15 parts per million in or on citrus fruits, cucumbers, garlic, melons, onions (dry bulb), pumpkins, summer squash, winter squash.

§ 180.198 Dimethyl (2,2,2-trichloro-1-hydroxyethyl) phosphonate; tolerances for residues.

Tolerances are established for residues of the insecticide dimethyl (2,2,2-trichloro-1-hydroxyethyl) phosphonate in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	60
Alfalfa, hay	90
Artichokes	0.1 (N)
Bananas (NMT 0.2 ppm will be present after the peel is removed)	2
Barley, forage	50
Barley, grain	0.1 (N)
Barley, straw	1
Beans, dried	0.1 (N)
Beans, lima (reflecting 0.1 ppm (N) in or on the shelled beans)	12
Beans, lima vine hay	12
Beans, lima vines	12
Beans, snap	0.1 (N)
Beans, vines	1
Beets	0.1 (N)
Beets, sugar	0.1 (N)
Beets, sugar, tops	12
Birdsfoot trefoil, hay	90
Blueberries	0.1
Brussels sprouts	0.1 (N)
Cabbage	0.1 (N)
Carrots	0.1 (N)
Cattle, fat	0.1 (N)
Cattle, mbyp	0.1 (N)
Cattle, meat	0.1 (N)
Cauliflower	0.1 (N)
Citrus fruit	0.1 (N)
Clover	60
Clover, hay	90
Collards	0.1 (N)
Corn, fodder	30
Corn, forage	30
Corn, fresh (including sweet K+CWHR)	0.1 (N)
Corn, grain	0.1 (N)
Cottonseed	0.1 (N)
Cowpeas	0.1 (N)
Cowpeas, vines	1
Flax, straw	1
Flaxseed	0.1 (N)
Goats, fat	0.1 (N)
Goats, mbyp	0.1 (N)
Goats, meat	0.1 (N)
Grass, pasture	60
Grass, pasture, hay	90
Grass, range	240
Grass, range, hay	240
Horses, fat	0.1 (N)
Horses, mbyp	0.1 (N)
Horses, meat	0.1 (N)
Lettuce	0.1 (N)
Milk	0.01 (N)
Oats, forage	50
Oats, grain	0.1 (N)
Oats, straw	1
Peanuts	0.05 (N)

Commodity	Parts per million
Peanuts, vine hay	4
Peanuts, vine hulls	4
Peppers	0.1 (N)
Pumpkins	0.1 (N)
Safflower seed	0.1 (N)
Sheep, fat	0.1 (N)
Sheep, mbyp	0.1 (N)
Sheep, meat	0.1 (N)
Tomatoes	0.1 (N)
Wheat, forage	50
Wheat, grain	0.1 (N)
Wheat, straw	1

[45 FR 6104, Jan. 25, 1980, as amended at 47 FR 56136, Dec. 15, 1982]

§ 180.199 Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide; tolerances for residues.

(a) Tolerances are established for residues of inorganic bromides (calculated as Br) in or on the following raw agricultural commodities grown in soil fumigated with combinations of chloropicrin, methyl bromide, and propargyl bromide. No tolerances are established for chloropicrin since it has been established that no residue of this substance remains in the raw agricultural commodity.

Commodity	Parts per million
Broccoli	25
Cauliflower	25
Eggplants	60
Muskmelons	40
Peppers	25
Pineapples	25
Strawberries	25
Tomatoes	40

(b) Tolerances with regional registration, as defined in § 180.1(n), are established for residues of inorganic bromides (calculated as Br) in or on the following raw agricultural commodities grown in soil fumigated with combinations of chloropicrin, methyl bromide, and propargyl bromide:

Commodity	Parts per million
Asparagus	300
Lettuce	300
Onions (dry bulb)	300

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(c) A tolerance with regional registration, as defined in §180.1(n), is established for residues of inorganic bromides (calculated as Br) in or on the following raw agricultural commodity grown in soil fumigated with combinations of methyl bromide and chloropicrin. No tolerance is established for chloropicrin since it has been established that no residue of this substance remains in the raw agricultural commodity when formulations containing chloropicrin at 2 percent or less are used.

Commodity	Parts per million
Ginger, roots (Pre- and Post-H)	100

[47 FR 31551, July 21, 1982, as amended at 52 FR 33237, Sept. 2, 1987; 56 FR 19951, May 1, 1991]

§ 180.200 2,6-Dichloro-4-nitroaniline; tolerances for residues.

Tolerances are established for residues of the fungicide 2,6-dichloro-4-nitroaniline in or on the following raw agricultural commodities:

Commodity	Parts per million
Apricots (pre- and post-H)	20
Beans, snap	20
Blackberries	15
Boysenberries	15
Carrots (post-H)	10
Celery	15
Cherries, sweet (pre- and post-H)	20
Cottonseed	0.1
Cucumbers	5
Endive (escarole)	10
Garlic	5
Grapes	10
Kiwifruit (post-H)	20
Lettuce	10
Nectarines (pre- and post-H)	20
Onions	5
Peaches (pre- and post-H)	20
Plums (fresh prunes) (pre- and post-H)	15
Potatoes	0.25
Raspberries	15
Rhubarb	10
Sweet potatoes (post-H)	10
Tomatoes	5

Unless otherwise specified, these tolerances prescribed in this section provide for residues from preharvest application only.

[46 FR 27938, May 22, 1981]

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§ 180.201 Chlorosulfamic acid; tolerances for residues.

A tolerance of 8 parts per million is established for residues of sulfamate ion, expressed as sulfamic acid, from the postharvest application of the fungicide chlorosulfamic acid in or on asparagus, carrots, cauliflower, celery, potatoes, and radishes.

§ 180.202 *p*-Chlorophenoxyacetic acid; tolerances for residues.

Tolerances are established for combined residues of the plant regulator *p*-chlorophenoxyacetic acid and its metabolites *p*-chlorophenol in or on raw agricultural commodities as follows:

2 parts per million in or on mung bean sprouts to inhibit embryonic root development.

0.05 part per million in or on tomatoes.

[39 FR 31635, Aug. 30, 1975]

§ 180.204 Dimethoate including its oxygen analog; tolerances for residues.

(a) Tolerances are established for total residues of the insecticide dimethoate (*O,O*-dimethyl *S*-(*N*-methylcarbamoylmethyl) phosphorodithioate) including its oxygen analog (*O,O*-dimethyl *S*-(*N*-methylcarbamoylmethyl) phosphorothioate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	2
Apples	2
Beans, dry	2
Beans, lima	2
Beans, snap	2
Blueberries ¹	1
Broccoli	2
Cabbage	2
Cattle, fat	0.02(N)
Cattle, mbyp	0.02(N)
Cattle, meat	0.02(N)
Cauliflower	2
Celery	2
Collards	2
Corn, fodder	1
Corn, forage	1
Corn, grain	0.1(N)
Cottonseed	0.1
Eggs	0.02(N)
Endive (escarole)	2
Goats, fat	0.02(N)
Goats, mbyp	0.02(N)
Goats, meat	0.02(N)
Grapefruit	2

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Commodity	Parts per million
Grapes	1
Hogs, fat	0.02(N)
Hogs, mbyyp	0.02(N)
Hogs, meat	0.02(N)
Horses, fat	0.02(N)
Horses, mbyyp	0.02(N)
Horses, meat	0.02(N)
Kale	2
Lemons	2
Lentils	2.0
Lettuce	2
Melons	1
Milk	0.002(N)
Mustard greens	2
Oranges	2
Pears	2
Peas	2
Pecans	0.1
Peppers	2
Potatoes	0.2
Poultry, fat	0.02(N)
Poultry, mbyyp	0.02(N)
Poultry, meat	0.02(N)
Safflower seed	0.1
Sheep, fat	0.02(N)
Sheep, mbyyp	0.02(N)
Sheep, meat	0.02(N)
Sorghum, forage	0.2
Sorghum, grain	0.1
Soybeans	0.05(N)
Soybeans, forage	2
Soybeans, hay	2
Spinach	2
Swiss chard	2
Tangerines	2
Tomatoes	2
Turnips, roots	2
Turnips, tops	2
Wheat, grain	0.04(N)
Wheat, green fodder	2
Wheat, straw	2

¹There are no U.S. registrations as of August 16, 1995.

(b) Tolerances with regional registration, as defined in §180.1(n), are established for total residues of dimethoate including its oxygen analog in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	0.15
Brussels sprouts	5
Cherries	2

[47 FR 16019, Apr. 14, 1982, as amended at 49 FR 3086, Jan. 25, 1984; 52 FR 33237, Sept. 2, 1987; 55 FR 26440, June 28, 1990; 58 FR 63295, Dec. 1, 1993; 60 FR 42447, Aug. 16, 1995; 60 FR 45065, Aug. 30, 1995]

§ 180.205 Paraquat; tolerances for residues.

(a) Tolerances are established for residues of the desiccant, defoliant, and

herbicide paraquat (1,1'-dimethyl-4,4'-bipyridinium-ion) derived from application of either the bis(methyl sulfate) or the dichloride salt (both calculated as the cation) in or on the following raw agricultural commodities:

Commodity	Parts per million
Acerola	0.05
Alfalfa	5
Almond hulls	0.5
Apples	0.05(N)
Apricots	0.05(N)
Asparagus	0.5
Avocados	0.05(N)
Bananas	0.05(N)
Barley grain	0.05(N)
Bean straw	30.0
Beans, dry	0.3
Beans, forage	0.1
Beans, hay	0.4
Beans, lima (succulent)	0.05
Beans, snap (succulent)	0.05
Beets, sugar	0.5
Beets, sugar (tops)	0.5
Birdsfoot trefoil	5
Broccoli	0.05
Cabbage	0.05
Cacao beans	0.05
Carrots	0.05
Cattle, fat	0.05
Cattle, kidney	.3
Cattle, meat	0.05
Cattle, mbyyp(except kidney)	0.05
Cauliflower	0.05
Cherries	0.05(N)
Chinese cabbage	0.05
Citrus fruit	0.05(N)
Clover	5
Coffee beans	0.05(N)
Collards	0.05
Corn, fresh (inc sweet corn) (K+CWHR)	0.05(N)
Corn fodder	0.05(N)
Corn forage	0.05(N)
Corn grain	0.05(N)
Cottonseed	0.5
Cucurbits	0.05
Eggs	0.01(N)
Figs	0.05(N)
Goats, fat	.05
Goats, kidney	.3
Goats, meat	.05
Goats, mbyyp(except kidney)	.05
Grass, pasture	5
Grass, range	5
Guar beans	0.5
Guava	0.05(N)
Hogs, fat	.05
Hogs, kidney	.3
Hogs, meat	.05
Hogs, mbyyp(except kidney)	.05
Hops, fresh	0.1
Hop vines	0.5
Horses, fat	.05
Horses, kidney	.3
Horses, meat	.05
Horses, mbyyp(except kidney)	.05
Kiwifruit	0.05
Lentils	0.3
Lentil, forage	0.1
Lentil, hay	0.4
Lettuce	0.05(N)
Milk	0.01(N)

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Commodity	Parts per million
Mint, hay	0.5
Nectarines	0.05(N)
Nuts	0.05(N)
Oat grain	0.05(N)
Olives	0.05(N)
Onions, dry bulb	0.05
Onions, green	0.05
Papayas	0.05(N)
Passion fruit	0.2
Peaches	0.05(N)
Peanuts	.05
Peanut, hay	.5
Peanut, hulls	.2
Peanut, vines	.5
Pears	0.05(N)
Peas (succulent)	0.05
Peas, forage	0.2
Peas, hay	0.8
Pineapples	0.05(N)
Pistachio nuts	0.05
Plums (fresh prunes)	0.05(N)
Potatoes	0.5
Poultry, fat	0.01(N)
Poultry, meat	0.01(N)
Poultry, mby	0.01(N)
Rhubarb	0.05(N)
Rice grain	0.05
Rice, straw	0.06
Rye grain	0.05(N)
Safflower seed	0.05(N)
Sheep, fat	.05
Sheep, kidney	.3
Sheep, meat	.05
Sheep, mby (except kidney)	.05
Small fruit	0.05(N)
Sorghum forage	0.05(N)
Sorghum grain	0.05(N)
Soybeans	0.05(N)
Soybean forage	0.05(N)
Strawberries	0.25
Sugarcane	0.5(N)
Sunflower seeds	2
Turnips (roots)	0.05
Turnips (tops)	0.05
Vegetables, fruiting	0.05
Wheat grain	0.05(N)

(b) Tolerances with regional registration as defined in §180.1(n), are established for residues of the pesticide paraquat (1,1'-dimethyl-4,4'-bipyridinium ion) derived from application of either the bis(methyl sulfate) or the dichloride salt (both calculated as the cation) in or on the following raw agricultural commodities:

Commodity	Parts per million
Cassava	0.05
Pigeon peas	0.05
Taniers	0.05
Taro (corms)	0.1
Tyfon	0.05
Yams	0.05

[46 FR 51614, Oct. 21, 1981, as amended at 48 FR 7738, Feb. 24, 1983; 48 FR 13173, Mar. 30, 1983; 49 FR 882, Jan. 6, 1984; 52 FR 9492, Mar. 25, 1987; 52 FR 31030, Aug. 19, 1987; 52 FR 37454, Oct. 7, 1987; 53 FR 15208, Apr. 28, 1988; 55 FR 6256, Feb. 22, 1990; 55 FR 24083, June 14, 1990; 58 FR 33555, June 18, 1993; 60 FR 7458, Feb. 8, 1995; 60 FR 27423, May 24, 1995]

§ 180.206 Phorate; tolerances for residues.

Tolerances are established for combined residues of the insecticide phorate (O,O-diethyl S[(ethylthio) methyl] phosphorodithioate) and its cholinesterase-inhibiting metabolites in or on raw agricultural commodities as follows:

Commodity	Parts per million
Alfalfa, fresh	0.5
Alfalfa, hay	1.0
Barley, grain	0.1
Barley, straw	0.1
Beans	0.1
Beans, vines	0.5
Bermuda grass, straw	0.5
Cattle, fat	0.05
Cattle, mby	0.05
Cattle, meat	0.05
Coffee beans ¹	0.02
Corn, forage	0.5
Corn, grain	0.1
Corn, sweet (K + CWHR)	0.1
Cottonseed	0.05
Eggs	0.05
Goats, fat	0.05
Goats, mby	0.05
Goats, meat	0.05
Hogs, fat	0.05
Hogs, mby	0.05
Hogs, meat	0.05
Hops	0.5
Horses, fat	0.05
Horses, mby	0.05
Horses, meat	0.05
Lettuce	0.1
Milk (negligible residue)	0.02
Peanuts	0.1
Peanuts, hay	0.3
Peanuts, vines	0.3
Potatoes	0.5
Poultry, fat	0.05
Poultry, mby	0.05
Poultry, meat	0.05
Rice	0.1
Sheep, fat	0.05
Sheep, mby	0.05
Sheep, meat	0.05
Sorghum, fodder	0.1
Sorghum, grain	0.1
Soybeans	0.1
Sugar beet, roots	0.3
Sugar beet, tops	3.0
Sugarcane	0.1
Tomatoes	0.1
Wheat, grain	0.05
Wheat, green fodder	1.5
Wheat, straw	0.05

¹There are no U.S. registrations as of September 1, 1993 for coffee beans.

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[58 FR 62038, Nov. 24, 1993]

§ 180.207 Trifluralin; tolerances for residues.

Tolerances are established for residues of the herbicide and plant growth regulator trifluralin (alpha, alpha, alpha-trifluoro-2,6-dinitro-*N,N*-dipropyl-*p*-toluidine) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa, hay	0.2 (N)
Asparagus	0.05
Barley, fodder	0.05
Barley, forage	0.05
Barley, hay	0.05
Barley, straw	0.05
Carrots	1.0
Citrus fruits	0.05 (N)
Corn, grain (exc. popcorn)	0.05 (N)
Corn, grain (exc. popcorn), forage	0.05 (N)
Corn, grain (exc. popcorn), fodder	0.05 (N)
Cottonseed	0.05 (N)
Cucurbits	0.05 (N)
Flax, seed	0.05
Flax, straw	0.05
Grain, crops (except fresh corn and rice grain)	0.05
Grapes	0.05 (N)
Hops	0.05 (N)
Legumes, forage	0.05 (N)
Mung bean sprouts	2.0
Nuts	0.05 (N)
Peanut, hulls	0.1
Peanuts	0.05 (N)
Peppermint, hay	0.05 (N)
Rape, seed	0.05
Rape, straw	0.05
Safflower seed	0.05 (N)
Sorghum, fodder	0.05
Sorghum, forage	0.05
Spearmint, hay	0.05 (N)
Stone fruits	0.05 (N)
Sugarcane	0.05 (N)
Sunflower seed	0.05 (N)
Upland Cress	0.05
Vegetables, fruiting	0.05 (N)
Vegetables, leafy	0.05 (N)
Vegetables, root (exc. carrots)	0.05 (N)
Vegetables, seed and pod	0.05 (N)
Wheat, grain	0.05 (N)
Wheat, straw	0.05 (N)

[45 FR 42619, June 25, 1980, as amended at 45 FR 56346, Aug. 25, 1980; 45 FR 86493, Dec. 31, 1980; 46 FR 37250, July 20, 1981; 47 FR 13524, Mar. 31, 1982; 47 FR 20309, May 12, 1982]

§ 180.208 *N*-Butyl-*N*-ethyl- α,α,α -trifluoro-2,6-dinitro-*p*-toluidine; tolerances for residues

Tolerances are established for negligible residues of the herbicide *N*-butyl-*N*-ethyl- α,α,α -trifluoro-2,6-dinitro-*p*-toluidine in or on the raw agricultural commodities alfalfa, birdsfoot

trefoil, clover, lettuce, and peanuts at 0.05 part per million.

§ 180.209 Terbacil; tolerances for residues.

(a) Tolerances are established for residues of the herbicide terbacil (3-*tert*-butyl-5-chloro-6-methyluracil) in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	0.1
Citrus fruits	0.1
Peaches	0.1
Pears	0.1
Sugarcane	0.1

(b) Tolerances are established for combined residues of the herbicide terbacil (3-*tert*-butyl-5-chloro-6-methyluracil) and its metabolites 3-*tert*-butyl-5-chloro-6-hydroxymethyluracil, 6-chloro-2, 3-dihydro-7-hydroxymethyl-3,3-dimethyl-5H-oxazolo (3,2-*a*) pyrimidin-5-one, and 6-chloro-2,3-dihydro-3,3,7-trimethyl-5H-oxazolo (3,2-*a*) pyrimidin-5-one (calculated as terbacil) in or on raw agricultural commodities as follows:

Commodity	Parts per million
Alfalfa, forage	5.0
Alfalfa, hay	5.0
Asparagus	0.2
Blueberries	0.1
Caneberries (blackberries, boysenberries, dewberries, loganberries, raspberries, and youngberries)	0.1
Cattle, fat	0.1
Cattle, mbyp	0.1
Cattle, meat	0.1
Goats, fat	0.1
Goats, mbyp	0.1
Goats, meat	0.1
Hogs, fat	0.1
Hogs, mbyp	0.1
Hogs, meat	0.1
Horses, fat	0.1
Horses, mbyp	0.1
Horses, meat	0.1
Milk, fat (=0.1 in whole milk)	0.5
Mint hay (peppermint and spearmint)	2.0
Pecans	0.1
Sainfoin, forage	5.0
Sainfoin hay	5.0
Sheep, fat	0.1
Sheep, mbyp	0.1
Sheep, meat	0.1
Strawberries	0.1

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[41 FR 23386, June 10, 1976, as amended at 43 FR 1796, Jan. 12, 1978; 43 FR 28490, June 30, 1978; 43 FR 35697, Aug. 11, 1978; 43 FR 38828, Aug. 31, 1978; 43 FR 49306, Oct. 23, 1978; 44 FR 5665, Jan. 29, 1979; 44 FR 17159, Mar. 21, 1979; 44 FR 37919, June 29, 1979; 46 FR 18316, Mar. 24, 1981]

§ 180.210 Bromacil; tolerances for residues.

A tolerance of 0.1 part per million is established for residues of the herbicide bromacil (5-bromo-3-sec-butyl-6-methyluracil) in or on citrus fruits and pineapples.

§ 180.211 2-Chloro-N-isopropylacetanilide; tolerances for residues.

Tolerances are established for residues of the herbicide 2-chloro-N-isopropylacetanilide and its metabolites (calculated as 2-chloro-N-isopropylacetanilide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Beets, sugar, roots	0.2
Beets, sugar, tops	1.0
Cattle, fat	0.02(N)
Cattle, mbyp	0.02(N)
Cattle, meat	0.02(N)
Corn, forage	1.5
Corn, grain	0.1(N)
Corn, sweet (K+CWHR)	0.1(N)
Cottonseed	0.1(N)
Eggs	0.02(N)
Flax, seed	3.0
Flax, straw	100
Goats, fat	0.02(N)
Goats, mbyp	0.02(N)
Goats, meat	0.02(N)
Hogs, fat	0.02(N)
Hogs, mbyp	0.02(N)
Hogs, meat	0.02(N)
Horses, fat	0.02(N)
Horses, mbyp	0.02(N)
Horses, meat	0.02(N)
Milk	0.02(N)
Peas (with pods, determined on peas after removing any pod present when marketed)	0.2
Peas, forage	1.5
Poultry, fat	0.02(N)
Poultry, mbyp	0.02(N)
Poultry, meat	0.02(N)
Pumpkins	0.1
Sheep, fat	0.02(N)
Sheep, mbyp	0.02(N)
Sheep, meat	0.02(N)
Sorghum, fodder	5.0
Sorghum, forage	5.0
Sorghum, grain	0.25

[47 FR 25959, June 16, 1982, as amended at 47 FR 28381, June 30, 1982; 47 FR 28626, July 1, 1982; 47 FR 46701, Oct. 20, 1982]

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§ 180.212 S-Ethyl cyclohexylethylthiocarbamate; tolerances for residues.

Tolerances are established for residues of the herbicide S-ethyl cyclohexylethylthiocarbamate in or on the raw agricultural commodities garden beets (roots and tops), spinach, and sugar beets (roots and tops) at 0.05 part per million (negligible residue).

§ 180.213 Simazine; tolerances for residues.

Tolerances are established for residues of the herbicide simazine (2-chloro - 4,6 - bis(ethylamino) - s - triazine) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	15
Alfalfa, forage	15
Alfalfa, hay	15
Almonds	0.25
Almonds, hulls	0.25
Apples	0.25
Artichokes	0.5
Asparagus	10
Avocados	0.25
Bermuda grass	15
Bermuda grass, forage	15
Bermuda grass, hay	15
Blackberries	0.25
Blueberries	0.25
Boysenberries	0.25
Cattle, fat	0.02 (N)
Cattle, mbyp	0.02 (N)
Cattle, meat	0.02 (N)
Cherries	0.25
Corn, fodder	0.25
Corn, forage	0.25
Corn, fresh (inc. sweet K+CWHR)	0.25
Corn, grain	0.25
Cranberries	0.25
Currants	0.25
Dewberries	0.25
Eggs	0.02 (N)
Filberts	0.25
Goats, fat	0.02 (N)
Goats, mbyp	0.02 (N)
Goats, meat	0.02 (N)
Grapefruit	0.25
Grapes	0.25
Grass	15
Grass, forage	15
Grass, hay	15
Hogs, fat	0.02 (N)
Hogs, mbyp	0.02 (N)
Hogs, meat	0.02 (N)
Horses, fat	0.02 (N)
Horses, mbyp	0.02 (N)
Horses, meat	0.02 (N)
Lemons	0.25
Loganberries	0.25
Macadamia nuts	0.25

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Commodity	Parts per million
Milk	0.02 (N)
Olives	0.25
Oranges	0.25
Peaches	0.25
Pears	0.25
Pecans	0.1 (N)
Plums	0.25
Poultry, fat	0.02 (N)
Poultry, mbyp	0.02 (N)
Poultry, meat	0.02 (N)
Raspberries	0.25
Sheep, fat	0.02 (N)
Sheep, mbyp	0.02 (N)
Sheep, meat	0.02 (N)
Strawberries	0.25
Sugarcane	0.25
Walnuts	0.2

[43 FR 29120, July 6, 1978]

§ 180.213a Simazine; tolerances for residues.

Tolerances are established for combined residues of the herbicide simazine (2-chloro-4,6-bis(ethylamino)-s-triazine) and its metabolites 2-amino-4-chloro-6-ethylamino-s-triazine and 2,4-diamino-6-chloro-s-triazine in or on raw agricultural commodities as follows:

Commodity	Parts per million
Bananas	0.2
Fish	12

[43 FR 1796, Jan. 12, 1978, as amended at 44 FR 37919, June 29, 1979; 55 FR 26440, June 28, 1990]

§ 180.214 Fenthion; tolerances for residues.

Tolerances are established for residues of the insecticide fenthion (*O,O*-dimethyl *O*-[4-(methylthio)-*m*-tolyl] phosphorothioate) and its cholinesterase-inhibiting metabolites in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	5
Alfalfa, hay	18
Cattle, fat	0.1
Cattle, meat	0.1
Cattle (mbyp)	0.1
Grass	5
Grass, hay	18
Hogs, fat	0.1
Hogs, meat	0.1
Hogs (mbyp)	0.1
Milk	0.01 (N)

Commodity	Parts per million
Poultry, fat	0.1
Poultry, meat	0.1
Poultry (mbyp)	0.1
Rice	0.1
Rice, straw	0.5

[45 FR 86492, Dec. 31, 1980]

§ 180.215 Naled; tolerances for residues.

Tolerances are established for residues of the insecticide naled (1,2-dibromo-2,2-dichloro-ethyl dimethyl phosphate) and its conversion product 2,2-dichlorovinyl dimethyl phosphate, expressed as naled, resulting from the application of the pesticide to growing crops or from direct application to livestock and poultry, in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds (hulls)	0.5
Almonds (nuts)	0.5
Beans (dry)	0.5
Beans (succulent)	0.5
Beets, sugar, roots	0.5
Beets, sugar, tops	0.5
Broccoli	1
Brussels sprouts	1
Cabbage	1
Cattle, fat	0.05
Cattle, mbyp	0.05
Cattle, meat	0.05
Cauliflower	1
Celery	3
Collards	3
Cottonseed	0.5
Cucumbers	0.5
Eggplant	0.5
Eggs	0.05
Goats, fat	0.05
Goats, mbyp	0.05
Goats, meat	0.05
Grapefruit	3
Grapes	0.5
Grasses, forage	10
Hogs, fat	0.05
Hogs, mbyp	0.05
Hogs, meat	0.05
Hops	0.5
Horses, fat	0.05
Horses, mbyp	0.05
Horses, meat	0.05
Kale	3
Legumes, forage	10
Lemons	3
Lettuce	1
Melons	0.5
Milk	0.05
Mushrooms	0.5
Oranges	3
Peaches	0.5
Peas (succulent)	0.5
Peppers	0.5

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Commodity	Parts per million
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Pumpkins	0.5
Rice	0.5
Safflower, seed	0.5
Sheep, fat	0.05
Sheep, mbyp	0.05
Sheep, meat	0.05
Spinach	3
Squash, summer	0.5
Squash, winter	0.5
Strawberries	1
Swiss chard	3
Tangerines	3
Tomatoes	0.5
Turnips, tops	3
Walnuts	0.5

A tolerance of 0.5 part per million is established for the pesticide named in or on all raw agricultural commodities, except those otherwise listed in this section, from use of the pesticide for area pest (mosquito and fly) control.

[42 FR 46304, Sept. 15, 1977, as amended at 54 FR 20125, May 10, 1989]

§ 180.216 Chloroxuron; tolerances for residues.

Tolerances for combined negligible residues of the herbicide chloroxuron (3-[*p*-(*p*-chlorophenoxy) phenyl]-1,1-dimethylurea) and its metabolites containing the *p*-(*p*-chlorophenoxy) aniline moiety calculated as chloroxuron in or on raw agricultural commodities are established as follows:

(a) 0.15 part per million in or on soybeans and soybean forage.

(b) 0.1 part per million in or on carrots, celery, onions (dry bulb), and strawberries.

[37 FR 2839, Feb. 8, 1972]

§ 180.217 Ammoniates for [ethylenebis(dithiocarbamate)] zinc and ethylenebis [dithiocarbamic acid] bimolecular and trimolecular cyclic anhydrosulfides and disulfides; tolerances for residues.

Tolerances for residues of a fungicide that is a mixture of 5.2 parts by weight of ammoniates of [ethylenebis (dithiocarbamate)] zinc with 1 part by weight ethylenebis [dithiocarbamic acid] bimolecular and trimolecular cyclic anhydrosulfides and disulfides, calculated as zinc ethylenebisdithiocarbamate, in

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or on raw agricultural commodities are established as follows:

5 parts per million in or on celery.

4 parts per million in or on cantaloups, cucumbers, and tomatoes.

2 parts per million in or on apples.

0.5 part per million (negligible residue) in or on pecans and potatoes.

[36 FR 22540, Nov. 25, 1971, as amended at 37 FR 13618, July 12, 1972]

§ 180.219 2,3,5-Triiodobenzoic acid; tolerances for residues.

Tolerances for negligible residues of the plant regulator 2,3,5-triiodobenzoic acid and its dimethylamine salt (calculated as 2,3,5-triiodobenzoic acid) in or on raw agricultural commodities are established as follows:

0.15 part per million in or on soybeans.

0.05 part per million in or on apples.

§ 180.220 Atrazine; tolerances for residues.

(a) Tolerances are established for residues of the herbicide atrazine (2-chloro-4-ethylamino-6-isopropylamino-s-triazine) in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.02 (N)
Cattle, mbyp	0.02 (N)
Cattle, meat	0.02 (N)
Corn, fodder, field	15
Corn, fodder, pop	15
Corn, fodder, sweet	15
Corn, forage, field	15
Corn, forage, pop	15
Corn, forage, sweet	15
Corn, fresh (inc. sweet K+CWHR)	0.25
Corn, grain	0.25
Eggs	0.02 (N)
Goats, fat	0.02 (N)
Goats, mbyp	0.02 (N)
Goats, meat	0.02 (N)
Guava	0.05
Hogs, fat	0.02 (N)
Hogs, mbyp	0.02 (N)
Hogs, meat	0.02 (N)
Horses, fat	0.02 (N)
Horses, mbyp	0.02 (N)
Horses, meat	0.02 (N)
Macadamia nuts	0.25
Milk	0.02 (N)
Pineapples	0.25
Pineapples, fodder	10
Pineapples, forage	10
Poultry, fat	0.02 (N)
Poultry, mbyp	0.02 (N)
Poultry, meat	0.02 (N)
Rye grass, perennial	15
Sheep, fat	0.02 (N)
Sheep, mbyp	0.02 (N)

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Commodity	Parts per million
Sheep, meat	0.02 (N)
Sorghum, fodder	15
Sorghum, forage	15
Sorghum, grain	0.25
Sugarcane	0.25
Sugarcane, fodder	0.25
Sugarcane, forage	0.25
Wheat, fodder	5
Wheat, grain	0.25
Wheat, straw	5

(b) A tolerance is established for combined residues of the herbicide atrazine (2-chloro-4-ethylamino-6-isopropylamino-s-triazine) and its metabolites 2-amino-4-chloro-6-ethylamino-s-triazine, 2-amino-4-chloro-6-isopropylamino-s-triazine, and 2-chloro-4,6-diamino-s-triazine in or on the following raw agricultural commodity:

Commodity	Parts per million
Grass, range	4
Orchardgrass	15
Orchardgrass, hay	15
Proso millet, fodder	5
Proso millet, forage	5
Proso millet, grain	0.25
Proso millet, straw	5

[43 FR 29121, July 6, 1978, as amended at 44 FR 67116, Nov. 23, 1979; 47 FR 3771, Jan. 27, 1982; 47 FR 8012, Feb. 24, 1982]

§ 180.221 *O*-Ethyl *S*-phenyl ethylphosphonodithioate; tolerances for residues.

Tolerances are established for residues of the insecticide *O*-ethyl *S*-phenyl ethylphosphonodithioate, including its oxygen analog (*O*-ethyl *S*-phenyl ethylphosphonothioate), in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	0.5
Bananas	0.1
Beans, forage	0.1
Beans, vine hay	0.1
Beets, sugar, tops	0.1
Corn, field, fodder	0.1
Corn, field, forage	0.1
Corn, fresh (including sweet) (K + CWHR)	0.1
Corn, grain (including pop)	0.1
Corn, pop, fodder	0.1
Corn, pop, forage	0.1
Corn, sweet, forage	0.1
Corn, sweet, fodder	0.1
Peanuts	0.1
Peanuts, forage	0.1
Peanuts, hay	0.1
Peanuts, hulls	0.1

Commodity	Parts per million
Peas, forage	0.1
Peas, vine hay	0.1
Peppermint	0.1
Peppermint, hay	0.1
Plantains	0.1
Sorghum, fodder	0.1
Sorghum, forage	0.1
Sorghum, grain	0.1
Soybeans, forage	0.1
Soybeans, hay	0.1
Spearmint	0.1
Spearmint, hay	0.1
Strawberries	0.1
Sugarcane	0.1
Vegetables, fruiting	0.1
Vegetables, leafy	0.1
Vegetables, root crop	0.1
Vegetables, seed and pod	0.1

[57 FR 53568, Nov. 12, 1992]

§ 180.222 Prometryn; tolerances for residues.

(a) Tolerances are established for residues of the herbicide prometryn (2,4-bis(isopropylamino) - 6 - methylthio - s-triazine) in or on the following raw agricultural commodities:

Commodity	Parts per million
Celery	0.5
Corn, fodder, field	0.25
Corn, fodder, pop	0.25
Corn, fodder, sweet	0.25
Corn, forage, field	0.25
Corn, forage, pop	0.25
Corn, forage, sweet	0.25
Corn, fresh (inc. sweet K + CWHR)	0.25
Corn, grain	0.25
Cotton	1
Cottonseed	0.25
Pigeon peas	0.25

(b) Tolerances with regional registration, as defined in § 180.1(n), are established for residues of the herbicide prometryn (2,4-bis(isopropylamino)-6-methylthio-s-triazine) in or on the following raw agricultural commodity:

Commodity	Parts per million
Dill	0.3
Parsley	0.1

[43 FR 29121, July 6, 1978, as amended at 45 FR 51782, Aug. 5, 1980; 54 FR 6918, Feb. 15, 1989; 60 FR 20434, Apr. 26, 1995]

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§ 180.224 Gibberellins; tolerances for residues.

(a) Tolerances are established for negligible residues (N) of the plant growth regulator gibberellin A₃ in or on the following raw agricultural commodities:

Commodity	Parts per million
Artichokes	0.15 (N)
Blueberries	0.15 (N)
Citrus fruits	0.15 (N)
Grapes	0.15 (N)
Hops	0.15 (N)
Leafy vegetables	0.15 (N)
Stone fruits	0.15 (N)
Sugarcane	0.15 (N)
Sugarcane fodder	0.15 (N)
Sugarcane forage	0.15 (N)

(b) A tolerance is established for combined residues of the plant growth regulator gibberellin A₄ and A₇ in or on the following raw agricultural commodity:

Commodity	Parts per million
Apples	0.5

[44 FR 17675, Mar. 23, 1979]

§ 180.225 Aluminum phosphide; tolerances for residues.

(a) Tolerances are established for residues of the fumigant phosphine in or on the following raw agricultural commodities from postharvest treatment with aluminum phosphide:

Commodity	Parts per million
Almonds	0.1
Barley	0.1
Beans, cocoa	0.1
Beans, coffee	0.1
Cashews	0.1
Corn	0.1
Corn, pop	0.1
Cottonseed	0.1
Dates	0.1
Filberts	0.1
Millet	0.1
Nuts, Brazil	0.1
Nuts, pistachios	0.1
Oats	0.1
Peanuts	0.1
Pecans	0.1
Rice	0.1
Rye	0.1
Safflower, seed	0.1
Sesame seed	0.1
Sorghum	0.1
Soybeans	0.1
Sunflower, seed	0.1
Vegetables, seed and pod (except soybeans)	0.01

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Commodity	Parts per million
Walnuts	0.1
Wheat	0.1

(b) Tolerances are established for residues of the fumigant phosphine in or on all raw agricultural commodities at 0.01 ppm resulting from preharvest treatment of pest burrows in agricultural and noncropland areas with aluminum phosphide.

[42 FR 56113, Oct. 21, 1977; 42 FR 61259, Dec. 2, 1977, as amended at 42 FR 64685, Dec. 28, 1977; 44 FR 37919, June 29, 1979; 45 FR 26331, Apr. 18, 1980; 48 FR 44205, Sept. 28, 1983; 54 FR 20125, May 10, 1989]

§ 180.226 Diquat; tolerances for residues.

(a) Tolerances are established for residues of the plant growth regulator diquat [6,7-dihydrodipyrido (1,2-a:2',1'-c) pyrazinedium] derived from application of the dibromide salt and calculated as the cation in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.02
Cattle, mby	0.02
Cattle, meat	0.02
Eggs	0.02
Goats, fat	0.02
Goats, mby	0.02
Goats, meat	0.02
Hogs, fat	0.02
Hogs, mby	0.02
Hogs, meat	0.02
Horses, fat	0.02
Horses, mby	0.02
Horses, meat	0.02
Milk	0.02
Potatoes	0.1
Poultry, fat	0.02
Poultry, mby	0.02
Poultry, meat	0.02
Sheep, fat	0.02
Sheep, mby	0.02
Sheep, meat	0.02
Sugarcane	0.05

(b) Tolerances are established for residues of the herbicide diquat (6,7-dihydrodipyrido (1,2-a:2',1'-c) pyrazinedium) (calculated as the cation) derived from the application of the dibromide salt to ponds, lakes, reservoirs, marshes, drainage ditches, canals, streams, and rivers which are slow-moving or quiescent in programs of the

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Corps of Engineers or other Federal or State public agencies and to ponds, lakes and drainage ditches only where there is little or no outflow of water and which are totally under the control of the user, in or on the following raw agricultural commodities:

Commodity	Parts per million
Avocados	0.02
Cottonseed	0.02
Cucurbits	0.02
Fish	0.1
Fruits, citrus	0.02
Fruits, pome	0.02
Fruits, small	0.02
Fruits, stone	0.02
Grain, crops	0.02
Grasses, forage	0.1
Hops	0.02
Legumes, forage	0.1
Nuts	0.02
Shellfish	0.1
Sugarcane	0.02
Vegetables, fruiting	0.02
Vegetables, leafy	0.02
Vegetables, root crop	0.02
Vegetables, seed and pod	0.02

Where tolerances are established at higher levels from other uses of diquat on the subject crops, the higher tolerances applies also to residues of the aquatic uses cited in this paragraph.

(c)(1) Tolerances are established for the plant growth regulator diquat [6,7-dihydrodipyrro (1,2-a:2',1'-c) pyrazinediium] derived from application of the dibromide salt and calculated as the cation in or on the following raw agricultural commodities:

Commodity	Parts per million
Bananas	0.05
Coffee	0.05

(2) There are no U.S. registrations as of December 6, 1995.

[46 FR 30343, June 8, 1981, as amended at 47 FR 8014, Feb. 24, 1982; 47 FR 16020, Apr. 14, 1982; 55 FR 26440, June 28, 1990; 61 FR 30167, June 14, 1996]

§ 180.227 Dicamba; tolerances for residues

(a) Tolerances are established for the combined residues of the herbicide dicamba (3,6-dichloro-o-anisic acid) and its metabolite 3,6-dichloro-5-hydroxy-o-anisic acid in or on the raw agricultural commodities as follows:

Commodity	Parts per million
Asparagus	3.0
Barley, grain	0.5
Barley, straw	0.5
Corn, fodder	0.5
Corn, forage	0.5
Corn, grain	0.5
Grasses, hay	40.0
Grasses, pasture	40.0
Grasses, rangeland	40.0
Millet, proso, grain	0.5
Millet, proso, straw	0.5
Oats, grain	0.5
Oats, straw	0.5
Sorghum, fodder	3.0
Sorghum, forage	3.0
Sorghum, grain	3.0
Sugarcane	0.1
Sugarcane, fodder	0.1
Sugarcane forage	0.1
Wheat, grain	0.5
Wheat, straw	0.5

(b) Tolerances are established for the combined residues of the herbicide dicamba (3,6-dichloro-o-anisic acid) and its metabolite 3,6-dichloro-2-hydroxybenzoic acid in or on the raw agricultural commodities as follows:

Commodity	Parts per million
Cattle, fat	0.2
Cattle, kidney	1.5
Cattle, liver	1.5
Cattle, mbyp	0.2
Cattle, meat	0.2
Goats, fat	0.2
Goats, kidney	1.5
Goats, liver	1.5
Goats, mbyp	0.2
Goats, meat	0.2
Hogs, fat	0.2
Hogs, kidney	1.5
Hogs, liver	1.5
Hogs, mbyp	0.2
Hogs, meat	0.2
Horses, fat	0.2
Horses, kidney	1.5
Horses, liver	1.5
Horses, mbyp	0.2
Horses, meat	0.2
Milk	0.3
Sheep, fat	0.2
Sheep, kidney	1.5
Sheep, liver	1.5
Sheep, mbyp	0.2
Sheep, meat	0.2
Soybeans	0.05
Soybeans, forage	0.1
Soybeans, hay	0.1

(c) A tolerance is established for the combined residues of dicamba (3,6-

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dichloro-*o*-anisic acid) and its 5-OH metabolite (3,6-dichloro-5-hydroxy-*o*-anisic acid), resulting from the application of the sodium salt of dicamba in or on the following raw agricultural commodity.

Commodity	Parts per million
Cottonseed	3.0

[48 FR 11120, Mar. 16, 1983, as amended at 48 FR 24364, June 1, 1983; 49 FR 37758, Sept. 26, 1984; 58 FR 62041, Nov. 24, 1993]

§ 180.228 S-Ethyl hexahydro-1*H*-azepine-1-carbothioate; tolerances for residues.

Tolerances are established for negligible residues of the herbicide S-ethyl hexahydro-1*H*-azepine-1-carbothioate in or on the raw agricultural commodities rice and rice straw at 0.1 part per million.

§ 180.229 Fluometuron; tolerances for residues.

Tolerances are established for negligible residues of the herbicide fluometuron (1,1-dimethyl-3-(α,α,α -trifluorom-tolyl)urea) in or on the raw agricultural commodities cottonseed and sugarcane at 0.1 part per million.

§ 180.230 Diphenamid; tolerances for residues.

Tolerances are established for residues of the herbicide diphenamid (*N,N*-dimethyl-2,2-diphenylacetamide) including its desmethyl metabolite (*N*-methyl-2,2-diphenylacetamide) in or on raw agricultural commodities as follows:

2 parts per million in or on peanut hay and forage.

1 part per million in or on potatoes and strawberries.

0.5 part per million in or on peanut hulls and soybean hay and forage.

0.2 part per million in or on cotton forage.

0.1 part per million (negligible residue) in or on apples, cottonseed, fruiting vegetables, okra, peaches, peanuts, soybeans, and sweet potatoes.

0.05 part per million (negligible residue) in meat, fat, and meat byproducts

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of cattle, goats, hogs, horses, and sheep.

0.01 part per million (negligible residue) in milk.

1.0 part per million in or on raspberries.

[37 FR 738, Jan. 18, 1972, as amended at 46 FR 18315, Mar. 24, 1981; 55 FR 26440, June 28, 1990]

§ 180.231 Dichlobenil; tolerances for residues.

Tolerances are established for the combined negligible residues of the herbicide dichlobenil (2,6-dichlorobenzonitrile) and its metabolite 2,6-dichlorobenzoic acid in or on the raw agricultural commodities: Almond hulls, apples, avocados, blackberries, blueberries, citrus, cranberries, figs, grapes, mangoes, nuts, pears, raspberries, and stone fruits at 0.15 part per million.

§ 180.232 Butylate; tolerances for residues.

Tolerances are established for the herbicide butylate in or on the raw agricultural commodities corn, field, grain; corn, pop, grain; corn, sweet (kernels, plus cob with husk removed); corn, field, fodder; corn, field, forage; corn, pop, forage; and corn, sweet, forage at 0.1 part per million.

[60 FR 34870, July 5, 1995]

§ 180.235 2,2-Dichlorovinyl dimethyl phosphate; tolerances for residues.

(a) Tolerances for residues of the insecticide 2,2-dichlorovinyl dimethyl phosphate are established as follows:

Commodity	Parts per million
Cattle, fat	0.02(N)
Cattle, meat	0.02(N)
Cattle, mbyp	0.02(N)
Cucumbers (residues expressed as naled)	0.5
Eggs	0.05(N)
Goats, fat	0.02(N)
Goats, meat	0.02(N)
Goats, mbyp	0.02(N)
Horses, fat	0.02(N)
Horses, meat	0.02(N)
Horses, mbyp	0.02(N)
Lettuce (residues expressed as naled)	1
Milk	0.02(N)
Mushrooms (residues expressed as naled)	0.5
Poultry, fat	0.05(N)
Poultry, meat	0.05(N)
Poultry, mbyp	0.05(N)

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Commodity	Parts per million
Radishes	0.5
Raw agricultural commodities, nonperishable, bulk stored regardless of fat content (post-H)	0.5
Raw agricultural commodities nonperishable, packaged or bagged, containing 6 percent fat or less (post-H)	0.5
Raw agricultural commodities, nonperishable, packaged or bagged, containing more than 6 percent fat (post-H)	2
Sheep, fat	0.02(N)
Sheep, meat	0.02(N)
Sheep, mbyop	0.02(N)
Tomatoes (pre- and post-H) (residues expressed as naled)	0.05

(b) The tolerance of 0.1 part per million prescribed by 21 CFR 556.180 for negligible residues of 2,2-dichlorovinyl dimethyl phosphate in the edible tissue of swine covers both its use as an anthelmintic in swine feed and as an insecticide applied directly to swine.

[47 FR 55223, Dec. 8, 1982, as amended at 55 FR 26440, June 28, 1990; 56 FR 29183, June 26, 1991]

§ 180.236 Triphenyltin hydroxide; tolerances for residues.

Tolerances are established for residues of the fungicide triphenyltin hydroxide in or on raw agricultural commodities as follows:

0.4 part per million in or on peanut hulls.

0.1 part per million (negligible residue) in or on carrots and sugar beet roots.

0.05 part per million (negligible residue) in or on pecans, peanuts, and potatoes.

0.05 part per million (negligible residue) in the kidney and liver of cattle, goats, hogs, horses, and sheep.

[36 FR 22540, Nov. 25, 1971, as amended at 38 FR 3045, Feb. 1, 1973]

§ 180.238 S-Propyl butylethylthiocarbamate; tolerances for residues.

Tolerances are established for negligible residues of the herbicide S-propyl butylethylthiocarbamate in or on the raw agricultural commodities sugar beets (roots and tops) and tomatoes at 0.1 part per million.

§ 180.239 Phosphamidon; tolerances for residues.

Tolerances (expressed as phosphamidon) for residues of the insecticide phosphamidon (2-chloro-2-diethylcarbamoyl-1-methylvinyl dimethyl phosphate) including all of its related cholinesterase-inhibiting compounds in or on raw agricultural commodities are established as follows:

1 part per million in or on apples.

0.75 part per million in or on grapefruit, lemons, oranges, tangerines.

0.5 part per million in or on broccoli, cauliflower, cucumbers, peppers.

0.25 part per million in or on cantaloups, watermelons.

0.1 part per million in or on cottonseed, potatoes, sugarcane, tomatoes and walnuts.

§ 180.240 S-Propyl dipropylthiocarbamate; tolerances for residues.

Tolerances are established for the herbicide S-Propyl dipropylthiocarbamate in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, fodder	0.1
Corn, forage	0.1
Corn, fresh (inc. sweet) (K-CWHR)	0.1
Corn, grain	0.1
Peanuts	0.1
Peanut, forage	0.1
Peanut, hay	0.1
Peanut, hulls	0.1
Potatoes	0.1
Soybeans,	0.1
Soybean, forage	0.1
Soybean, hay	0.1
Sweet potatoes	0.1

[46 FR 37249, July 20, 1981]

§ 180.241 S-(O,O-Diisopropyl phosphorodithioate) of N-(2-mercaptoethyl) benzenesulfonamide; tolerances for residues.

Tolerances are established for negligible residues of the herbicide S-(O,O-diisopropyl phosphorodithioate) of N-(2-mercaptoethyl) benzenesulfonamide including its oxygen analog S-(O,O-diisopropyl phosphorodithioate) of N-(2-mercaptoethyl) benzenesulfonamide in or on the raw agricultural commodities carrots, cottonseed, cucurbits, fruiting vegetables, leafy vegetables,

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and onions (dry bulb) at 0.1 part per million.

§ 180.242 Thiabendazole; tolerances for residues.

(a) Tolerances are established for residues of the fungicide thiabendazole (2-(4-thiazolyl)benzimidazole) in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples (post-h)	10
Avocados	10
Bananas (pre-h and post-h)	3
Bananas, pulp (pre-h and post-h)	0.4
Beans (dry)	0.1
Beets, sugar, without tops (pre-h)	0.25
Beets, sugar, tops	10
Cantaloupes	15.0
Carrots (post-h)	10
Citrus fruits (post-h)	10
Grapes	10.0
Mangos	10
Mushrooms	40.0
Papayas (post-H)	5
Pears (post-h)	10
Potatoes (pre & post-h)	10.0
Rice, rough	3
Rice, straw	10
Soybeans	0.1
Strawberries	5.0
Sweet potatoes (post-h to sweet potatoes intended only for use as seed)	0.02
Squash, hubbard	1
Wheat grain	1.0
Wheat straw	1

(b) Tolerances are established for combined residues of thiabendazole and its metabolite 5-hydroxythiabendazole in the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.1
Cattle, mbyp	0.1
Cattle, meat	0.1
Eggs	0.1
Poultry	0.1
Poultry, mbyp	0.1
Poultry, meat	0.1
Goats, fat	0.1
Goats, mbyp	0.1
Goats, meat	0.1
Hogs, fat	0.1
Hogs, mbyp	0.1
Hogs, meat	0.1
Horses, fat	0.1
Horses, mbyp	0.1
Horses, meat	0.1
Milk	0.4
Sheep, fat	0.1
Sheep, mbyp	0.1
Sheep, meat	0.1

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[42 FR 32783, June 28, 1977]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.242, see the List of CFR Sections Affected in the Finding Aids section of this volume.

§ 180.243 Propazine; tolerances for residues.

Tolerances are established for negligible residues (N) of the herbicide propazine (2 - chloro - 4,6 - bis(isopropylamino) - s - triazine in or on the following raw agricultural commodities:

Commodity	Parts per million
Sorghum, fodder	0.25 (N)
Sorghum, forage	0.25 (N)
Sorghum, grain	0.25 (N)
Sorghum, sweet	0.25 (N)

[43 FR 29121, July 6, 1978]

§ 180.244 Basic zinc sulfate; tolerances for residues.

A tolerance of 30 parts per million is established for residues of the fungicide basic zinc sulfate, calculated as elemental zinc, in or on the raw agricultural commodity peaches.

§ 180.245 Streptomycin; tolerances for residues.

Tolerances of 0.25 part per million are established for residues of the fungicide streptomycin in or on the raw agricultural commodities celery, peppers, and tomatoes from treatment of the seedling plants before transplanting; potatoes from treatment of seed pieces; and pome fruits.

[38 FR 31539, Nov. 15, 1973, as amended at 61 FR 26120, May 24, 1996]

§ 180.249 Alachlor; tolerances for residues.

Tolerances are established for the combined residues of the herbicide alachlor (2-chloro-2',6'-diethyl-N-(methoxymethyl) acetanilide) and its metabolites (calculated as alachlor) in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, dry	0.1

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Commodity	Parts per million
Beans, forage	0.2
Beans, hay	0.2
Beans, lima (green)	0.1
Cattle, fat	0.02
Cattle, mbyop	0.02
Cattle, meat	0.02
Corn, fodder	0.2
Corn, forage	0.2
Corn, fresh (including sweet K + CWHR)	0.05
Corn, grain	0.2
Eggs	0.02
Goats, fat	0.02
Goats, mbyop	0.02
Goats, meat	0.02
Hogs, fat	0.02
Hogs, mbyop	0.02
Hogs, meat	0.02
Horses, fat	0.02
Horses, mbyop	0.02
Horses, meat	0.02
Milk	0.02
Peanuts	0.05
Peanuts, forage	3.0
Peanut, hay	3.0
Peanut, hulls	1.5
Poultry, fat	0.02
Poultry, mbyop	0.02
Poultry, meat	0.02
Sheep, fat	0.02
Sheep, mbyop	0.02
Sheep, meat	0.02
Sorghum, fodder	1.0
Sorghum, forage	2.0
Sorghum, grain (milo)	0.1
Soybeans	0.2
Soybean, forage	0.75
Soybeans, hay	0.2

[48 FR 5921, Feb. 9, 1983, as amended at 54 FR 20125, May 10, 1989; 59 FR 39466, Aug. 3, 1994; 60 FR 28345, May 31, 1995]

§ 180.250 Metobromuron; tolerances for residues.

A tolerance of 0.2 part per million is established for residues of the herbicide metobromuron (*N*'-(4-bromophenyl)-*N*-methoxy-*N*-methylurea; CAS Reg. No. 3060-89-7) in or on the raw agricultural commodity potatoes.

[53 FR 23395, June 22, 1988]

§ 180.252 2-Chloro-1-(2,4,5-trichlorophenyl) vinyl dimethyl phosphate; tolerances for residues.

Tolerances are established for residues of the insecticide 2-chloro-1-(2,4,5-trichlorophenyl) vinyl dimethyl phosphate in or on raw agricultural commodities as follows:

110 parts per million in or on alfalfa and corn fodder and forage (including field corn, sweet corn, and popcorn).

10 parts per million in or on apples, cherries, corn grain, fresh corn including sweet corn (kernels plus cob with husk removed), cranberries, and pears.

5 parts per million in or on tomatoes.

1.5 parts per million in the fat of cattle and hogs.

0.75 part per million in the fat of poultry.

0.5 part per million in milk fat (reflecting negligible residues in whole milk) and in the fat of goats, horses, and sheep.

0.1 part per million in or on peaches.

0.1 part per million in eggs.

[36 FR 22540, Nov. 25, 1971, as amended at 37 FR 9773, May 17, 1972; 37 FR 13471, July 8, 1972; 38 FR 12214, May 10, 1973]

§ 180.253 Methomyl; tolerances for residues.

(a) Tolerances are established for residues of the insecticide methomyl (S-methyl *N*-[(methylcarbamoyl)oxy] thiocacetimidate) in or on the raw agricultural commodities as follows:

Commodity	Parts per million
Alfalfa	10
Apples	1
Asparagus	2
Avocados	2
Barley, forage	10
Barley, grain	1
Barley, hay	10
Barley, straw	10
Beans, dry	0.1 (N)
Beans, forage	10
Beans, succulent	2
Beets, tops	6
Blueberries	6
Brassica (cole) leafy vegetables	6.0
Broccoli	3
Brussels sprouts	2
Cabbage	5
Cauliflower	2
Celery	3
Chinese cabbage	5
Collards	6
Corn, fodder	10
Corn, forage	10
Corn, fresh (inc sweet K+CWHR)	0.1 (N)
Corn, grain (inc pop)	0.1 (N)
Cottonseed	0.1 (N)
Cucurbits	0.2 (N)
Dandelions	6
Endive (escarole)	5
Grapefruit	2
Grapes	5
Grass, Bermuda	10
Grass, Bermuda, hay (dried and dehydrated) ..	40
Kale	6
Leeks	3.0
Lemons	2
Lentils	0.1
Lettuce	5
Mint, hay	2

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Commodity	Parts per million
Mustard greens	6
Nectarines	5
Oats, forage	10
Oats, grain	1
Oats, hay	10
Oats, straw	10
Onions, green	3
Oranges	2
Parsley	6
Peaches	5
Peanuts	0.1 (N)
Peanuts, hulls	0.1 (N)
Peas	5
Peas, vines	10
Pecans	0.1
Peppers	2
Pomegranates	0.2 (N)
Rye, forage	10
Rye, grain	1
Rye, hay	10
Rye, straw	10
Sorghum, forage	1
Sorghum, grain	0.2 (N)
Soybeans	0.2 (N)
Soybeans, forage	10
Spinach	6
Strawberries	2
Swiss chard	6
Tangerines	2
Tomatoes	1
Turnip greens, tops	6
Vegetables, fruiting	0.2 (N)
Vegetables, leafy [exc. beets (tops), broccoli, Brussels sprouts, cabbage, cauliflower, celery, Chinese cabbage, collards, dandelions, endive (escarole), kale, lettuce, mustard greens, parsley, spinach, Swiss chard, turnip greens (tops), and watercress]	0.2 (N)
Vegetables, root crop	0.2 (N)
Watercress	6
Wheat, forage	10
Wheat, grain	1
Wheat, hay	10
Wheat, straw	10

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of methomyl in or on the following raw agricultural commodities:

Commodity	Parts per million
Pears	4

[41 FR 2822, Jan. 20, 1976, as amended at 43 FR 25121, June 9, 1978; 43 FR 35696, Aug. 11, 1978; 44 FR 18972, Mar. 30, 1979; 44 FR 24847, Apr. 27, 1979; 44 FR 38844, July 3, 1979; 44 FR 47934, Aug. 16, 1979; 44 FR 67117, Nov. 23, 1979; 45 FR 39258, June 10, 1980; 47 FR 23932, June 2, 1982; 52 FR 33237, Sept. 2, 1987; 53 FR 34510, Sept. 7, 1988]

§ 180.254 Carbofuran; tolerances for residues.

(a) Tolerances are established for the combined residues of the insecticide

carbofuran (2,3-dihydro-2,2-dimethyl-7-benzofuranyl-*N*-methylcarbamate), its carbamate metabolite-2,3-dihydro-2,2-dimethyl-3-hydroxy-7-benzofuranyl-*N*-methylcarbamate, and its phenolic metabolites 2,3-dihydro-2,2-dimethyl-7-benzofuranol, 2,3-dihydro-2,2-dimethyl-3,3-oxo-7-benzofuranol and 2,3-dihydro-2,2-dimethyl-3,7-benzofurandiol in or on the following raw agricultural commodities:

Commodity	Parts per million (ppm)
Alfalfa (fresh) (of which no more than 5 ppm are carbamates)	10
Alfalfa hay (of which no more than 20 ppm are carbamates)	40
Bananas	0.1
Barley, grain (of which not more than 0.1 ppm is carbamates)	0.2
Barley, straw (of which not more than 1.0 ppm is carbamates)	5.0
Beets, sugar	0.1
Beets, sugar (tops) (of which no more than 1 ppm is carbamates)	2
Cattle, fat (of which no more than 0.02 ppm is carbamates)	0.05
Cattle, meat (of which no more than 0.02 ppm is carbamates)	0.05
Cattle, mbyp (of which no more than 0.02 ppm is carbamates)	0.05
Coffee beans	0.1
Corn, fodder (of which no more than 5 ppm are carbamates)	25
Corn, forage (of which no more than 5 ppm are carbamates)	25
Corn, fresh (including sweet corn) (K+CWHR) (of which not more than 0.2 ppm is carbamates)	1.0
Corn, grain (including popcorn) (of which no more than 0.1 ppm is carbamates)	0.2
Cottonseed (of which no more than 0.2 ppm is carbamates)	1.0
Cranberries (of which no more than 0.3 ppm is carbamates)	0.5
Cucumbers (of which not more than 0.2 ppm is carbamates)	0.4
Goats, fat (of which no more than 0.02 ppm is carbamates)	0.05
Goats, meat (of which no more than 0.02 ppm is carbamates)	0.05
Goats, mbyp (of which no more than 0.02 ppm is carbamates)	0.05
Grapes (of which no more than 0.2 ppm is carbamates)	0.4
Hogs, fat (of which no more than 0.02 ppm is carbamates)	0.05
Hogs, meat (of which no more than 0.02 ppm is carbamates)	0.05
Hogs, mbyp (of which no more than 0.02 ppm is carbamates)	0.05
Horses, fat (of which no more than 0.02 ppm is carbamates)	0.05
Horses, meat (of which no more than 0.02 ppm is carbamates)	0.05

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Commodity	Parts per million (ppm)
Horses, mbyop (of which no more than 0.02 ppm is carbamates)	0.05
Melons (of which not more than 0.2 ppm is carbamates)	0.4
Milk (of which no more than 0.02 ppm is carbamates)	0.1
Oats, grain (of which not more than 0.1 ppm is carbamates)	0.2
Oats, straw (of which not more than 1.0 ppm is carbamates)	5.0
Peanuts (of which no more than 1.5 ppm are carbamates)	4.0
Peanuts, hulls (of which no more than 8.0 ppm are carbamates)	10.0
Peppers (of which no more than 0.2 ppm is carbamates)	1
Potatoes (of which no more than 1 ppm is carbamates)	2
Pumpkins (of which not more than 0.6 ppm is carbamates)	0.8
Rice	0.2
Rice, straw (of which no more than 0.2 ppm is carbamates)	1
Sheep, fat (of which no more than 0.02 ppm is carbamates)	0.05
Sheep, meat (of which no more than 0.02 ppm is carbamates)	0.05
Sheep, mbyop (of which no more than 0.02 ppm is carbamates)	0.05
Sorghum, fodder (of which no more than 0.5 ppm is carbamates)	3
Sorghum, forage (of which no more than 0.5 ppm is carbamates)	3
Sorghum, grain	0.1
Strawberries (of which no more than 0.2 ppm is carbamates)	0.5
Soybeans (of which not more than 0.2 ppm is carbamates)	1.0
Soybean, forage (of which not more than 20.0 ppm are carbamates)	35.0
Soybean, hay (of which not more than 20.0 ppm are carbamates)	35.0
Squash (of which not more than 0.6 ppm is carbamates)	0.8
Sugarcane	0.1
Sunflower seeds (of which not more than 0.5 ppm is carbamates)	1.0
Wheat, grain (of which not more than 0.1 ppm is carbamates)	0.2
Wheat, straw (of which not more than 1.0 ppm is carbamates)	5.0

(b) Tolerances with regional registration are established for the combined residues of the insecticide carbofuran (2,3-dihydro-2,2-dimethyl-7-benzofuranyl-*N*-methylcarbamate), its carbamate metabolite 2,3-dihydro-2,2-dimethyl-3-hydroxy-7-benzofuranyl-*N*-methylcarbamate, and its phenolic metabolites 2,3-dihydro-2,2-dimethyl-7-benzofuranol, 2,3-dihydro-2,2-dimethyl-3-oxo-7-benzofuranol, and 2,3-dihydro-2,2-dimethyl-3,7-benzofurandiol in or on the following raw agricultural commodity:

Commodity	Parts per million
Artichokes (of which not more than 0.2 ppm is carbamates)	0.4

(c) A time-limited tolerance, to expire on February 22, 1998, with regional registration, as defined in §180.1(n), is established for the combined residues of the insecticide carbofuran (2,3-dihydro-2,2-dimethyl-7-benzofuranyl-*N*-methylcarbamate), its carbamate metabolite, 2,3-dihydro-2,2-dimethyl-3-hydroxy-7-benzofuranyl-*N*-methylcarbamate, and its phenolic metabolites 2,3-dihydro-2,2-dimethyl-7-benzofuranol, 2,3-dihydro-2,2-dimethyl-3-oxo-7-benzofuranol and 2,3-dihydro-2,2-dimethyl-3,7-benzofurandiol in or on the following raw agricultural commodity:

Commodity	Parts per million
Canola (of which no more than 0.2 ppm is carbamate)	1.0

[39 FR 20597, June 12, 1974, as amended at 40 FR 4657, Jan. 31, 1975; 40 FR 13500, Mar. 27, 1975; 41 FR 763, Jan. 5, 1976; 46 FR 58490, Dec. 2, 1981; 46 FR 62275, 62276, Dec. 23, 1981; 46 FR 63045, 63046, Dec. 30, 1981; 47 FR 1380, Jan. 13, 1982; 47 FR 2864, Jan. 20, 1982; 47 FR 37173, Aug. 25, 1982; 49 FR 5752, Feb. 15, 1984; 50 FR 36579, Sept. 9, 1985; 50 FR 38003, Sept. 19, 1985; 60 FR 9781, Feb. 22, 1995; 60 FR 63438, Dec. 11, 1995]

§ 180.257 Chloroneb; tolerances for residues.

Tolerances are established for residues of the fungicide chloroneb (1,4-dichloro-2,5-dimethoxybenzene) and its metabolite 2,5-dichloro-4-methoxyphenol (calculated as chloroneb) in or on raw agricultural commodities as follows:

2 parts per million in or on cotton forage and vines (forage) of beans and soybeans.

0.2 part per million in meat, fat, and meat byproducts of cattle, goats, hogs, horses, and sheep.

0.1 part per million (negligible residue) in or on beans, cottonseed, soybeans, and sugarbeets (roots and tops).

0.05 part per million (negligible residue) in milk.

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§ 180.258 Ametryn; tolerances for residues.

(a) Tolerances are established for residues of the desiccant and herbicide (2-ethylamino) - 4 - (isopropylamino) - 6 - (methylthio)-s-triazine in or on the following raw agricultural commodities:

Commodity	Parts per million
Bananas	0.25
Corn, fodder	0.5
Corn, forage	0.5
Corn, fresh (inc. sweet K+CWHR)	0.25
Corn, grain	0.25
Grapefruit	0.1 (N)
Oranges	0.1 (N)
Pineapples	0.25
Pineapples, fodder	0.25
Pineapples, forage	0.25
Potatoes	0.25
Sugarcane	0.25
Sugarcane, fodder	0.25
Sugarcane, forage	0.25
Taniers	0.25
Yams	0.25

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the residues of ametryn in or on the following raw agricultural commodities:

Commodity	Parts per million
Cassava, root	0.1

[43 FR 29121, July 6, 1978, as amended at 48 FR 13175, Mar. 30, 1983; 48 FR 21132, May 11, 1983; 52 FR 33237, Sept. 2, 1987]

§ 180.259 Propargite; tolerances for residues.

(a) Tolerances are established for residues of the pesticide propargite (2- (p-tert-butylphenoxy) cyclohexyl 2-propynyl sulfite) in or on the following raw agricultural commodities.

Commodity	Parts per million
Almonds	0.1
Almonds, hulls	55
Apples	3
Apricots	7
Beans, dry	0.2
Beans, succulent	20
Cattle, fat	0.1
Cattle, mbyop	0.1
Cattle, meat	0.1
Corn, fodder	10
Corn, forage	10
Corn, grain	0.1
Cottonseed	0.1
Cranberries	10
Eggs	0.1
Figs	3

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Commodity	Parts per million
Goats, fat	0.1
Goats, mbyop	0.1
Goats, meat	0.1
Grapefruit	5
Grapes	10
Hogs, fat	0.1
Hogs, mbyop	0.1
Hogs, meat	0.1
Hops	15
Horses, fat	0.1
Horses, mbyop	0.1
Horses, meat	0.1
Lemons	5
Milk, fat (0.08 ppm in milk)	2
Mint	50
Nectarines	4
Oranges	5
Peaches	7
Peanuts	0.1
Peanuts, forage	10
Peanuts, hay	10
Peanuts, hulls	10
Pears	3
Plums (fresh prunes)	7
Poultry, fat	0.1
Poultry, mbyop	0.1
Poultry, meat	0.1
Potatoes	0.1
Sheep, fat	0.1
Sheep, mbyop	0.1
Sheep, meat	0.1
Sorghum, fodder	10
Sorghum, forage	10
Sorghum, grain	10
Strawberries	7
Walnuts	0.1

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of propargite in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, fresh (including sweet K+CWHR)	0.1

[41 FR 25001, June 22, 1976, as amended at 47 FR 25017, June 9, 1982; 52 FR 33237, Sept. 2, 1987]

§ 180.261 N-(Mercaptomethyl) phthalimide S-(O,O-dimethyl phosphorodithioate) and its oxygen analog; tolerances for residues.

(a) Tolerances are established for the sum of the residues for the insecticide N-(mercaptomethyl) phthalimide S-(O,O-dimethyl phosphorodithioate) and its oxygen analog N-(mercaptomethyl) phthalimide S-(O,O-dimethyl phosphorothioate) in or on the following raw agricultural commodities:

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Commodity	Parts per million
Alfalfa	40
Almonds, hulls	10
Apples	10
Apricots	5
Blueberries	10
Cattle, fat	0.2
Cattle, meat	0.2
Cattle, mby	0.2
Cherries	10
Citrus fruits	5
Corn, fresh (inc. sweet K+CWHR)	0.5
Corn, fodder	10
Corn, forage	10
Corn, grain	0.5
Cottonseed	0.1
Cranberries	10
Goats, fat	0.2
Goats, mby	0.2
Goats, meat	0.2
Grapes	10
Hogs, fat	0.2
Hogs, mby	0.2
Hogs, meat	0.2
Horses, fat	0.2
Horses, mby	0.2
Horses, meat	0.2
Kiwi fruit	25
Nectarines	5
Nuts	0.1 (N)
Peaches	10
Pears	10
Peas	0.5
Peas, forage	10
Peas, hay	10
Plums (fresh prunes)	5
Potatoes	0.1
Sheep, fat	0.2
Sheep, mby	0.2
Sheep, meat	0.2
Sweet potatoes	10
Tomatoes	2.0

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the sum of the residue for the insecticide *N*-(mercaptomethyl) phthalimide *S*-(*O,O*-dimethyl phosphorodithioate) and its oxygen analog *N*-(mercaptomethyl) phthalimide *S*-(*O,O*-dimethyl phosphorothioate) in or on the following raw agricultural commodity:

Commodity	Parts per million
Crabapples	20
Pistachios	0.1

[43 FR 46538, Oct. 10, 1978, as amended at 45 FR 8981, Feb. 11, 1980; 48 FR 37213, Aug. 17, 1983; 52 FR 48539, Dec. 23, 1987; 53 FR 657, Jan. 11, 1988; 53 FR 39090, Oct. 5, 1988]

§ 180.262 Ethoprop; tolerances for residues.

(a) Tolerances are established for residues of the nematocide and insecticide ethoprop (*O*-ethyl *S,S*-dipropyl phos-

phorodithioate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Bananas	0.02(N)
Beans, lima	0.02(N)
Beans, lima, forage	0.02(N)
Beans, snap	0.02(N)
Beans, snap, forage	0.02(N)
Cabbage	0.02(N)
Corn, fodder	0.02(N)
Corn, forage	0.02(N)
Corn, fresh (inc. sweet K+CWHR)	0.02(N)
Corn, grain	0.02(N)
Cucumbers	0.02(N)
Mushrooms	0.02
Peanuts	0.02(N)
Peanuts, hay	0.02(N)
Pineapples	0.02(N)
Pineapples, fodder	0.02(N)
Pineapples, forage	0.02(N)
Potatoes	0.02(N)
Soybeans	0.02(N)
Soybeans, forage	0.02(N)
Soybeans, hay	0.02(N)
Sugarcane	0.02(N)
Sugarcane, fodder	0.02(N)
Sugarcane, forage	0.02(N)
Sweet potatoes	0.02(N)

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of ethoprop in or on the following raw agricultural commodities:

Commodity	Parts per million
Okra	0.02

[47 FR 53004, Nov. 24, 1982, as amended at 48 FR 51485, Nov. 9, 1983; 52 FR 33237, Sept. 2, 1987; 53 FR 30053, Aug. 10, 1988]

§ 180.263 Phosalone; tolerances for residues.

Tolerances are established for residues of the insecticide phosalone (*S*-(6-chloro - 3 - (mercaptomethyl) - 2 - benzoxazolinone)*O,O*, - diethyl phosphorodithioate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almond, hulls	50.0
Apples	10.0
Apricots	15.0
Artichokes	25.0
Cattle, fat	0.25

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Commodity	Parts per million
Cattle, meat	0.25
Cattle, mbyp	0.25
Cherries	15.0
Citrus fruits	3.0
Goats, fat	0.25
Goats, meat	0.25
Goats, mbyp	0.25
Grapes	10.0
Hogs, fat	0.25
Hogs, meat	0.25
Hogs, mbyp	0.25
Horses, fat	0.25
Horses, meat	0.25
Horses, mbyp	0.25
Nectarines	15.0
Nuts	0.1
Peaches	15.0
Pears	10.0
Plums (fresh prunes)	15.0
Potatoes	0.1(N)
Sheep, fat	0.25
Sheep, meat	0.25
Sheep, mbyp	0.25

[47 FR 42740, Sept. 29, 1982]

§ 180.265 Terbutryn; tolerances for residues.

Tolerances are established for negligible residues (N) of the herbicide terbutryn (2 - *tert* - butylamino - 4 - ethylamino - 6 - methylthio - s - triazine) in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, fodder	0.1 (N)
Barley, grain	0.1 (N)
Barley, green	0.1 (N)
Barley, straw	0.1 (N)
Sorghum, grain	0.1 (N)
Wheat, fodder	0.1 (N)
Wheat, grain	0.1 (N)
Wheat, green	0.1 (N)
Wheat, straw	0.1 (N)

[43 FR 29121, July 6, 1978]

§ 180.266 Chloramben; tolerances for residues.

Tolerances are established for residues of the herbicide chloramben (3-amino-2,5-dichlorobenzoic acid; CAS Reg. No. 133-90-4) in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, dried	0.1
Beans, lima	0.1
Beans, snap	0.1
Beans, vines	0.1

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Commodity	Parts per million
Cantaloupes	0.1
Corn, field, fodder	0.1
Corn, field, forage	0.1
Corn, field, grain	0.1
Cucumbers	0.1
Peanuts	0.1
Peanuts, forage	0.1
Peas, pigeon	0.1
Peas, pigeon, forage	0.1
Peppers	0.1
Pumpkins	0.1
Soybeans	0.1
Soybeans, forage	0.1
Squash, summer	0.1
Squash, winter	0.1
Sunflower seed	0.1
Sweet potatoes	0.1
Tomatoes	0.1

[46 FR 32442, June 23, 1981, as amended at 52 FR 32306, Aug. 27, 1987; 53 FR 23395, June 22, 1988]

§ 180.267 Captafol; tolerances for residues.

Tolerances are established for residues of the fungicide captafol (*cis-N*-[(1,1,2,2-tetrachloroethyl)thio]-4-cyclohexene-1,2-dicarboximide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	0.25
Apricots	30
Blueberries	35
Cherries, sour	50
Cherries, sweet	2
Citrus fruits	0.5
Corn, fresh (inc sweet K+CWHR)	0.1 (N)
Cranberries	8
Cucumbers	2
Macadamia nuts	0.1 (N)
Melons	5
Nectarines	2
Peanuts, hulls	2
Peanuts, meats (hulls removed)	0.05
Onions	0.1 (N)
Peaches	30
Pineapples	0.1 (N)
Plums (fresh prunes)	2
Potatoes	0.5
Taro (corn)	0.02
Tomatoes	15

[41 FR 15329, Apr. 12, 1976, as amended at 41 FR 35678, Aug. 24, 1976]

§ 180.268 Barban; tolerances for residues.

A time-limited tolerance, with an expiration date of January 1, 1998, is established for negligible residues of the

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herbicide barban (4-chloro-2-butyryl *m*-chlorocarbanilate) in or on the raw agricultural commodities barley, flax seed, lentils, mustard seed, peas, safflower seed, soybeans, sugar beets, sugar beet tops, sunflower seed, and wheat.

[60 FR 49799, Sept. 27, 1995]

§ 180.269 Aldicarb; tolerances for residues.

Tolerances are established for combined residues of the insecticide and nematocide aldicarb (2-methyl-2-(methylthio)propionaldehyde *O*-(methylcarbamoyl) oxime and its cholinesterase-inhibiting metabolites 2-methyl 2-(methylsulfinyl) propionaldehyde *O*-(methylcarbamoyl) oxime and 2-methyl-2-(methylsulfonyl) propionaldehyde *O*-(methylcarbamoyl) oxime in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans (dry)	0.1
Beets, sugar	0.05
Beets, sugar, tops	1
Cattle, fat	0.01
Cattle, mbyp	0.01
Cattle, meat	0.01
Coffee beans	0.1
Cottonseed	0.1
Goats, fat	0.01
Goats, mbyp	0.01
Goats, meat	0.01
Grapefruits	0.3
Hogs, fat	0.01
Hogs, mbyp	0.01
Hogs, meat	0.01
Horses, fat	0.01
Horses, mbyp	0.01
Horses, meat	0.01
Lemons	0.3
Limes	0.3
Milk	0.002
Oranges	0.3
Peanuts	0.05
Peanuts, hulls	0.5
Pecans	0.5
Potatoes	1
Sheep, fat	0.01
Sheep, mbyp	0.01
Sheep, meat	0.01
Sorghum, fodder	0.5
Sorghum, grain	0.2
Soybeans	0.02
Sugarcane	0.02
Sugarcane, fodder	0.1
Sugarcane, forage	0.1
Sweet potatoes	0.1

[42 FR 15315, Mar. 21, 1977, as amended at 42 FR 51580, Sept. 29, 1977; 43 FR 47730, Oct. 17, 1978; 43 FR 60466, Dec. 28, 1978; 44 FR 5885, Jan. 30, 1979; 46 FR 57048, Nov. 20, 1981; 47 FR 14907, Apr. 7, 1982; 55 FR 26440, June 28, 1990; 58 FR 34713, June 29, 1993]

§ 180.272 S,S,S-Tributyl phosphorotrithioate; tolerances for residues.

Tolerances are established for residues of the defoliant S,S,S-tributyl phosphorotrithioate in or on raw agricultural commodities as follows:

4 parts per million in or on cottonseed.

0.02 part per million (negligible residue) in meat, fat, and meat byproducts of cattle, goats, and sheep.

0.002 part per million (negligible residue) in milk.

§ 180.274 Propanil; tolerances for residues.

Tolerances are established for combined residues of the herbicide propanil (3',4'-dichloropropionanilide) and its metabolites (calculated as propanil) in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	.2
Barley, straw	.75
Cattle, fat	0.1 (N)
Cattle, mbyp	0.1 (N)
Cattle, meat	0.1 (N)
Eggs	0.05 (N)
Goats, fat	0.1 (N)
Goats, mbyp	0.1 (N)
Goats, meat	0.1 (N)
Hogs, fat	0.1 (N)
Hogs, mbyp	0.1 (N)
Hogs, meat	0.1 (N)
Horses, fat	0.1 (N)
Horses, mbyp	0.1 (N)
Horses, meat	0.1 (N)
Milk	0.05 (N)
Oats, grain	.2
Oats, straw	.75
Poultry, fat	0.1 (N)
Poultry, mbyp	0.1 (N)
Poultry, meat	0.1 (N)
Rice	2
Rice, straw	75 (N)
Sheep, fat	0.1 (N)
Sheep, mbyp	0.1 (N)
Sheep, meat	0.1 (N)
Wheat, grain	0.2
Wheat, straw	0.75

[45 FR 29803, May 6, 1980, as amended at 47 FR 1383, Jan. 13, 1982]

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§ 180.275 Chlorothalonil; tolerances for residues.

(a) Tolerances are established for combined residues of the fungicide chlorothalonil (tetrachloroisophthalonitrile) and its metabolite 4-hydroxy-2,5,6-trichloroisophthalonitrile in or on the following raw agricultural commodities:

Commodity	Parts per million
Apricots	0.5
Bananas (NMT 0.05 ppm in edible pulp)	0.5
Beans (dry)	0.1
Beans, snap	5
Blueberries	1.0
Broccoli	5
Brussels sprouts	5
Cabbage	5
Carrots	1
Cauliflower	5
Celery	15
Cherries (sweet and sour)	0.5
Cocoa beans	0.05
Coffee beans	0.20
Corn, sweet (K - CWHR)	1
Cranberries	5.0
Cucumbers	5
Melons	5
Mushrooms	1.0
Nectarines	0.5
Onions, dry bulb	0.5
Onions, green	5
Papayas	15
Parsnips (root)	1
Passion fruit	3
Peaches	0.5
Peanuts	0.3
Plums	0.2
Potatoes	0.1
Prunes	0.2
Pumpkins	5
Soybeans	0.2
Squash, summer	5
Squash, winter	5
Tomatoes	5

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of chlorothalonil and its metabolite in or on the following raw agricultural commodities:

Commodity	Parts per million
Filberts	0.1
Mint hay	2

[42 FR 56114, Oct. 21, 1977, as amended at 43 FR 22725, May 26, 1978; 46 FR 30500, June 9, 1981; 46 FR 48931, Oct. 5, 1981; 47 FR 23934, June 2, 1982; 47 FR 25741, June 15, 1982; 47 FR 42741, Sept. 29, 1982; 49 FR 45852, Nov. 21, 1984; 50 FR 30172, July 24, 1985; 52 FR 33237, Sept. 2, 1987; 61 FR 10282, Mar. 13, 1996]

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§ 180.276 Formetanate hydrochloride; tolerances for residues.

Tolerances are established for residues of the insecticide formetanate hydrochloride (m-[[[(dimethylamino)methylene]amino]phenyl methylcarbamate hydrochloride) in or on raw agricultural commodities as follows:

5 parts per million in or on peaches.

4 parts per million in or on grapefruit, lemons, limes, nectarines, oranges, and tangerines.

3 parts per million in or on apples and pears.

2 parts per million in or on plums (fresh prunes).

[36 FR 22540, Nov. 25, 1971, as amended at 37 FR 21152, Oct. 6, 1972]

§ 180.277 S-2,3-Dichloroallyl diisopropylthiocarbamate; tolerances for residues.

Tolerances, set to expire on August 30, 1996, are established for negligible residues of the herbicide S-2,3-dichloroallyl diisopropylthiocarbamate in or on the raw agricultural commodities alfalfa (fresh and hay), barley (grain, forage, and straw), clover (fresh and hay), field corn grain, fodder and forage, flaxseed, lentils, peas, pea forage and hay, potatoes, safflower seed, soybeans, soybean forage and hay, and sugar beet roots and tops at 0.05 part per million.

[59 FR 1653, Jan. 12, 1994]

§ 180.278 Phenmedipham; tolerances for residues.

Tolerances are established for residues of the herbicide phenmedipham [methyl *m*-hydroxycarbanilate *m*-methlycarbanilate] in or on the following raw agricultural commodities:

Commodity	Parts per million
Beets	0.2(N)
Beets, sugar, roots	0.1(N)
Beets, sugar, tops	0.1(N)
Spinach	0.5

[47 FR 6018, Feb. 10, 1982]

**§ 180.282 2-Chloro-*N,N*-diallylaceta-
mide; tolerances for residues.**

Tolerances are established for negligible residues of the herbicide 2-

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chloro-*N,N*-diallylacetamide in or on the raw agricultural commodities cabbage, castor beans, celery, corn grain (includes popcorn), fresh corn including sweet corn (kernels plus cobs with husk removed), corn forage or fodder (including sweet corn, field corn, and popcorn), dried beans, lima beans, lima bean forage, onions, peas, pea forage, potatoes, snap beans, snap bean forage, sorghum grain, sorghum forage, soybeans, soybean forage, sugarcane, sweet potatoes, and tomatoes at 0.05 part per million.

§ 180.283 2,3,6-Trichlorophenylacetic acid; tolerances for residues.

A tolerance of 0.1 part per million is established for negligible residues of the herbicide 2,3,6-trichlorophenylacetic acid in or on sugarcane, such residues resulting from application of its dimethylamine or sodium salts.

§ 180.284 Zinc phosphide; tolerances for residues.

(a) Tolerances are established for residues of the phosphine resulting from the use of the rodenticide zinc phosphide in or on the raw agricultural commodities as follows:

Commodity	Parts per million
Grapes	0.01
Grasses (rangeland)	0.1
Sugarcane	0.01

(b) Tolerances with regional registration, as defined in § 180.1(n), are established for residues of phosphine resulting from the use of the rodenticide zinc phosphide in or on the following raw agricultural commodities as follows:

Commodity	Parts per million
Artichoke (globe)	0.01
Sugar beet (roots)	0.04
Sugar beet (tops)	0.02

[56 FR 63468, Dec. 4, 1991]

§ 180.287 Amitraz; tolerances for residues.

Tolerances are established for residues of the insecticide amitraz (*N'*-[2,4-dimethylphenyl]-*N*-[(2,4-dimethylphenyl)imino] methyl]-*N*-methylmethanimidamide) and its metabolites *N*-(2,4-dimethylphenyl)-*N*-methyl formamide and *N*-(2,4-dimethylphenyl)-*N*-methylmethanimidamide (both calculated as the parent) in or on the following raw agricultural commodities (RAC) at the following levels:

yl)imino] methyl]-*N*-methylmethanimidamide) and its metabolites *N*-(2,4-dimethylphenyl)-*N*-methyl formamide and *N*-(2,4-dimethylphenyl)-*N*-methylmethanimidamide (both calculated as the parent) in or on the following raw agricultural commodities (RAC) at the following levels:

Commodity	Parts per million
Apples	0
Beeswax	6.0
Cattle, fat	0.1
Cattle, mbyp	0.3
Cattle, meat	0.05
Cottonseed	1.0
Eggs	0.01
Goats, fat	0
Goats, mbyp	0
Goats, meat	0
Hogs, fat	0.1
Hogs, kidney	0.2
Hogs, liver	0.2
Hogs, mbyp	0.3
Hogs, meat	0.05
Honey	1.0
Hops, dried	60
Horses, fat	0
Horses, mbyp	0
Horses, meat	0
Milk	0.03
Milk, fat	0.3
Pears	3
Poultry fat/meat	0.01
Poultry meat byproducts	0.05
Sheep, fat	0
Sheep, mbyp	0
Sheep, meat	0

[44 FR 70145, Dec. 6, 1979, as amended at 51 FR 16846, May 7, 1986; 52 FR 5767, Feb. 26, 1987; 57 FR 53568, Nov. 12, 1992; 58 FR 14316, Mar. 17, 1993; 60 FR 12704, Mar. 8, 1995]

§ 180.288 2-(Thiocyano-methylthio)benzothiazole; tolerances for residues.

Tolerances are established for negligible residues of the fungicide 2-(thiocyanomethylthio) benzothiazole in or on barley (fodder, forage, grain, and straw), corn (fodder, forage, and grain), cotton forage, cottonseed, oats (fodder, forage, grain, and straw), rice (grain and straw) safflower (fodder, forage, and seed), sorghum (fodder, forage, and grain), sugarbeets (roots and tops), and wheat (fodder, forage, grain, and straw) at 0.1 part per million.

[40 FR 33453, Aug. 8, 1975. Correctly designated at 44 FR 70145, Dec. 6, 1979]

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§ 180.289 Methanearsonic acid; tolerances for residues.

Tolerances are established for residues of the herbicide methanearsonic acid (calculated as As₂O₃) from application of the disodium and monosodium salts of methanearsonic acid in or on raw agricultural commodities as follows:

0.7 part per million in or on cottonseed.

0.35 part per million in or on citrus fruit.

[37 FR 7158, Apr. 11, 1972]

§ 180.291 Pentachloronitrobenzene; tolerance for residues.

(a) A tolerance of 0.1 part per million is established for negligible residues of the fungicide pentachloronitrobenzene in or on the raw agricultural commodity cottonseed.

(b) Tolerances with regional registration (refer to § 180.1 (n)) are established for the combined residues of the fungicides pentachloronitrobenzene (PCNB) and its metabolites pentachloroaniline (PCA) and methyl pentachlorophenyl sulfide (MPCPS) in or on the following raw agricultural commodities:

Commodity	Parts per million
Collards	0.2
Kale	0.2
Mustard greens	0.2

[36 FR 22540, Nov. 25, 1971, as amended at 53 FR 9443, Mar. 23, 1988]

§ 180.292 Picloram; tolerances for residues.

Tolerances are established for residues of the pesticide picloram (4-amino-3,5,6-trichloropicolinic acid) from its application in the acid form or in the form of its potassium, triethylamine, or triisopropanolamine salts expressed as picloram in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	0.5
Barley, green forage	1
Barley, straw	1
Cattle, fat	0.2
Cattle, kidney	5
Cattle, liver	0.5

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Commodity	Parts per million
Cattle, mbyp (exc kidney & liver)	0.2
Cattle, meat	0.2
Eggs	0.05
Flax, seed	0.5
Flax, straw	0.5
Goats, fat	0.2
Goats, kidney	5
Goats, liver	0.5
Goats, mbyp (exc kidney & liver)	0.2
Goats, meat	0.2
Grasses, forage	80
Hogs, fat	0.2
Hogs, kidney	5
Hogs, liver	0.5
Hogs, mbyp (exc kidney & liver)	0.2
Hogs, meat	0.2
Horses, fat	0.2
Horses, kidney	5
Horses, liver	0.5
Horses, mbyp (exc kidney & liver)	0.2
Horses, meat	0.2
Milk	0.05
Oats, grain	0.5
Oats, green forage	1
Oats, straw	1
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Sheep, fat	0.2
Sheep, kidney	5
Sheep, liver	0.5
Sheep, mbyp (exc kidney & liver)	0.2
Sheep, meat	0.2
Wheat, grain	0.5
Wheat, green forage	1
Wheat, straw	1

[41 FR 19221, May 11, 1976, as amended at 47 FR 53005, Nov. 24, 1982]

§ 180.293 Endothall; tolerances for residues.

Tolerances are established for residues of the pesticide endothall (7-oxabicyclo [2.2.1] heptane-2,3-dicarboxylic acid) from use of its mono-*N,N*-dimethylalkylamine salt wherein the alkyl group is the same as in the fatty acid of coconut oil in or on the following raw agricultural commodities:

Commodity	Parts per million
Cottonseed	0.1
Hops	0.1
Potatoes	0.1
Rice, grain	0.05 (N)
Rice, straw	0.05 (N)

[41 FR 23717, June 11, 1976, as amended at 51 FR 4498, Feb. 5, 1986]

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§ 180.294 Benomyl; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide benomyl (methyl 1-(butylcarbamoyl)-2-benzimidazolecarbamate) and its metabolites containing the benzimidazole moiety (calculated as benomyl) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almond hulls	1.0
Apples (pre- and post-H)	7.0
Apricots (pre- and post-H)	15.0
Bananas (pre- and post-H) (NMT 0.2 ppm (N) shall be present in the pulp after peel is removed and discarded)	1.0
Barley, grain	0.2
Barley, straw	0.2
Beans	2.0
Bean vine forage	50.0
Beets, sugar, roots	0.2
Beets, sugar, tops	15.0
Blackberries	7.0
Blueberries	7.0
Boysenberries	7.0
Broccoli	0.2
Brussels sprouts	15.0
Cabbage	0.2
Carrots	0.2
Cattle, fat	0.1
Cattle, meat	0.1
Cattle, mbyp	0.1
Califlower	0.2
Celery	3.0
Cherries (pre- and post-H)	15.0
Chinese cabbage	10.0
Citrus fruit (pre-and post-H)	10.0
Collards	0.2
Corn, fresh (inc. sweet K+CWHR)	0.2
Corn, sweet, fodder and forage	0.2
Cucumbers	1.0
Currants	7.0
Dewberries	7.0
Eggplants	0.2
Eggs	0.1
Garlic	0.2
Goats, fat	0.1
Goats, meat	0.1
Goats, mybp	0.1
Grapes	10.0
Hogs, fat	0.1
Hogs, meat	0.1
Hogs, mbyp	0.1
Horses, fat	0.1
Horses, meat	0.1
Horses, mbyp	0.1
Kale	0.2
Kohlrabi	0.2
Loganberries	7.0
Mangoes	3.0
Melons	1.0
Milk	0.1
Mushrooms (pre-and post-H)	10.0
Mustard greens	0.2
Nectarines (pre- and post-H)	15.0
Nuts	0.2 (N)

Commodity	Parts per million
Oats, grain	0.2
Oats, straw	0.2
Peaches (pre- and post-H)	15.0
Peanuts	0.2
Peanut forage	15.0
Peanut hay	15.0
Peanut hulls	2.0
Pears (pre-and post-H)	7.0
Peppers	0.2
Pineapples (post-H)	35.0
Pistachios	0.2
Plums (including fresh prunes) (pre- and post-H)	15.0
Poultry, fat	0.1
Poultry, liver	0.2
Poultry, meat	0.1
Poultry, mbyp	0.1
Pumpkins	1.0
Raspberries	7.0
Rice	5.0
Rice straw	15.0
Rutabagas	0.2
Rye, grain	0.2
Rye, straw	0.2
Sheep, fat	0.1
Sheep, meat	0.1
Sheep, mbyp	0.1
Soybeans	0.2
Spinach	0.2
Squash, summer	1.0
Squash, winter	1.0
Strawberries	5.0
Sweet potatoes	0.2
Tomatoes	5.0
Turnips, roots	0.2
Wheat, grain	0.2
Wheat, straw	15.0

(b) Tolerances with regional registration, as defined in § 180.1(n), are established for residues of the fungicide benomyl (methyl 1-[butylcarbamoyl]-2-benzimidazolecarbamate) and its metabolites containing the benzimidazole moiety (calculated as benomyl) in or on the raw agricultural commodities.

Commodity	Parts per million
Avacados	3.0
Dandelions	10.0
Papayas	3.0
Pistachios	0.2
Turnip greens	6.0
Watercress	10.0

[52 FR 58536, Dec. 23, 1987, as amended at 52 FR 58538, Dec. 23, 1987; 53 FR 9024, Mar. 18, 1988; 59 FR 46354, Sept. 8, 1994]

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§ 180.296 Dimethyl phosphate of 3-hydroxy-*N*-methyl-*cis*-crotonamide; tolerances for residues.

Tolerances are established for residues of the insecticide dimethyl phosphate of 3-hydroxy-*N*-methyl-*cis*-crotonamide in or on raw agricultural commodities as follows:

0.5 parts per million in or on peanut hulls and tomatoes.

0.1 parts per million in or on cottonseed, potatoes, and sugarcane.

0.05 parts per million in or on peanuts.

[38 FR 12215, May 10, 1973, as amended at 38 FR 14168, May 30, 1973; 40 FR 18171, Apr. 25, 1975]

§ 180.297 *N*-1-Naphthyl phthalamic acid; tolerances for residues.

Tolerances are established for residues of the herbicide *N*-1-naphthyl phthalamic acid from application of its sodium salt in or on the following raw agricultural commodities:

Commodity	Parts per million
Cantaloupe	0.1 (N)
Cranberries	0.1 (N)
Cucumbers	0.1 (N)
Muskmelons	0.1 (N)
Peanuts	0.1 (N)
Peanuts, hay	0.1 (N)
Peanuts, hulls	0.1
Soybeans	0.1 (N)
Soybeans, hay	0.1 (N)
Watermelons	0.1 (N)

[45 FR 32306, May 16, 1980]

§ 180.298 Methidathion; tolerances for residues.

(a) Tolerances are established for residues of the insecticide methidathion (*O,O*-dimethyl phosphorodithioate, *S*-ester with 4-(mercaptomethyl-2-methoxy-1,3,4-thiadiazolin-5-one) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	12
Alfalfa, hay	12
Almonds, hulls	6
Artichokes	0.05
Citrus fruits (except mandarins)	2.0
Clover	12
Clover, hay	12
Cottonseed	0.2
Fruits, pome	0.05
Fruits, stone	0.05

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Commodity	Parts per million
Grass	12
Grass, hay	12
Mandarins	6.0
Mangos	0.05
Nuts	0.05
Olives	0.05
Peaches	0.05 (N)
Pecans	0.05 (N)
Potatoes	0.2
Safflower seeds	0.5
Sorghum, fodder	2
Sorghum, forage	2
Sorghum, grain	0.2
Sunflower seeds	0.5
Walnuts	0.05 (N)

(b) Tolerances are established for residues of the insecticide methidathion, its oxygen analog (*S* - [(5 - methoxy - 2 - oxo-1,3,4 - thiadiazol - 3(2*H*) - yl)methyl] *O,O* - dimethyl phosphorothioate), the sulfoxide metabolite (2 - methoxy - 4 - (methylsulfinyl - methyl) - 1,3,4 - thiadiazolin - 5 - one), and the sulfone metabolite (2 - methoxy - 4 - (methylsulfonylmethyl) - 1,3,4 - thiadiazolin - 5 - one) in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, meat	0.05
Cattle, mbyp	0.05
Eggs	0.05
Goats, fat	0.05
Goats, meat	0.05
Goats, mbyp	0.05
Hogs, fat	0.05
Hogs, meat	0.05
Hogs, mbyp	0.05
Horses, fat	0.05
Horses, meat	0.05
Horses, mbyp	0.05
Milk	0.03
Poultry, fat	0.05
Poultry, meat	0.05
Poultry, mbyp	0.05
Sheep, fat	0.05
Sheep, meat	0.05
Sheep, mbyp	0.05

(c) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the insecticide methidathion (*O,O*-dimethyl phosphorodithioate, *S*-ester with 4-(mercaptomethyl-2-methoxy-1,3,4-thiadiazolin-5-one), in or on the following raw agricultural commodity:

Commodity	Parts per million
Carambola	0.1

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Commodity	Parts per million
Kiwifruit	0.1
Longan	0.1
Sugar apple	0.2

[43 FR 44845, Sept. 29, 1978, as amended at 43 FR 45363, Oct. 2, 1978; 46 FR 18314, Mar. 24, 1981; 50 FR 1054, Jan. 9, 1985; 50 FR 5070, Feb. 6, 1985; 53 FR 23391, June 22, 1988; 54 FR 20125, May 10, 1989; 55 FR 2377, Jan. 24, 1990; 55 FR 24083, June 14, 1990; 55 FR 49389, Nov. 28, 1990; 57 FR 31325, July 15, 1992]

§ 180.299 Dimethyl phosphate of 3-hydroxy-N,N-dimethyl-cis-crotonamide; tolerances for residues.

Tolerances are established for residues of the insecticide dimethyl phosphate of 3-hydroxy-N,N-dimethyl-cis-crotonamide in or on the following raw agricultural commodities:

Commodity	Parts per million
Cottonseed	0.05(N)
Pecans	0.05

[47 FR 55224, Dec. 8, 1982]

§ 180.300 Ethephon; tolerances for residues.

(a) Tolerances are established for residues of the plant regulator ethephon [(2-chloroethyl) phosphonic acid] in or on raw agricultural commodities as follows:

Commodity	Parts per million
Apples	5
Barley, grain	2.0
Barley, straw	10.0
Blackberries	30
Blueberries	20
Cantaloupes	2
Cattle, fat	0.1
Cattle, mbyp	0.1
Cattle, meat	0.1
Cherries	10
Coffee beans	0.1 (N)
Cottonseed	2.0
Cranberries	5
Cucumbers	0.1
Figs	5
Filberts	0.5
Goats, fat	0.1
Goats, mbyp	0.1
Goats, meat	0.1
Grapes	2.0
Hogs, fat	0.1
Hogs, mbyp	0.1
Hogs, meat	0.1
Horses, fat	0.1
Horses, mbyp	0.1

Commodity	Parts per million
Horses, meat	0.1
Lemons	2
Macadamia nuts	0.5
Milk	0.1
Peppers	30
Pineapples	2
Pineapple fodder	3
Pineapple forage	3
Pumpkins	0.1
Sheep, fat	0.1
Sheep, mbyp	0.1
Sheep, meat	0.1
Tangerines	0.5
Tangerine hybrids	0.5
Tomatoes	2
Walnuts	0.5
Wheat, grain	2.0
Wheat, straw	10.0

(b) A tolerance with regional registration, as defined in §180.1(n), of 0.1 part per million is established for residues of the plant regulator ethephon [(2-chloroethyl)phosphonic acid] in or on the raw agricultural commodity sugarcane.

[46 FR 31015, June 12, 1981, as amended at 46 FR 42660, Aug. 24, 1981; 46 FR 47547, Sept. 29, 1981; 48 FR 54009, Nov. 30, 1983; 49 FR 17760, Apr. 25, 1984; 50 FR 14106, Apr. 10, 1985; 53 FR 5376, Feb. 24, 1988]

§ 180.301 Carboxin; tolerances for residues.

Tolerances are established for the combined residues of the fungicide carboxin (5,6-dihydro-2-methyl-1,4-oxathiin-3-carboxanilide) and its metabolite 5,6-dihydro-3-carboxanilide-2-methyl-1,4-oxathiin-4-oxide (calculated as carboxin) (from treatment of seed prior to planting) in or on raw agricultural commodities as follows:

Commodity	Parts per million
Barley, forage	0.5
Barley, grain	0.2
Barley, straw	0.2
Beans, dry	0.2
Beans, forage	0.5
Beans, hay	0.5
Beans, straw	0.5
Beans, succulent	0.2
Cattle, fat	0.1
Cattle, meat	0.1
Cattle, mbyp	0.1
Corn, fodder	0.2
Corn, forage	0.2
Corn, fresh, including sweet corn (K+CWHR)	0.2
Corn, grain	0.2

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Commodity	Parts per million
Cottonseed	0.2
Eggs	0.01
Goats, fat	0.1
Goats, meat	0.1
Goat, mbyp	0.1
Hogs, fat	0.1
Hogs, meat	0.1
Hogs, mbyp	0.1
Horses, fat	0.1
Horses, meat	0.1
Horses, mbyp	0.1
Milk	0.01
Oats, forage	0.5
Oats, seed	0.2
Oats, straw	0.2
Peanuts	0.2
Peanut, hay	0.2
Peanut, hulls	0.2
Poultry, fat	0.1
Poultry, meat	0.1
Poultry, mbyp	0.1
Rice	0.2
Rice, straw	0.2
Safflower, seed	0.2
Sheep, fat	0.1
Sheep, meat	0.1
Sheep, mbyp	0.1
Sorghum, fodder	0.2
Sorghum forage	0.2
Sorghum, grain	0.2
Soybeans	0.2
Wheat, forage	0.5
Wheat, grain	0.2
Wheat, straw	0.2

[47 FR 55222, Dec. 8, 1982, as amended at 50 FR 81, Jan. 2, 1985]

§ 180.303 Oxamyl; tolerances for residues.

Tolerances are established for the sum of the residues of the insecticide oxamyl (methyl N'-N'-dimethyl-N-[(methylcarbamoyl)-oxy]-1-thiooxa-mimide) and its oxime metabolite N',N'-dimethyl-N-hydroxy-1-thiooxa-mimide calculated as oxamyl in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	2
Bananas	0.3
Cantaloupe	2.0
Celery	3
Citrus fruits	3
Cottonseed	0.2
Cucumbers	2.0
Eggplants	2.0
Honeydews	2.0
Peanuts	0.2
Peanut, forage	2.0
Peanut, hay	2.0
Peanut, hulls	0.2
Pears	2.0

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Commodity	Parts per million
Peppermint, hay	10.0
Peppers (bell)	3
Peppers, non-bell	5.0
Pineapples	1
Pineapples, forage	10
Potatoes	0.1
Pumpkins	2.0
Root crop vegetables	0.1
Soybeans	0.2
Soybean straw	0.2
Spearmint, hay	10.0
Summer Squash	2.0
Tomatoes	2
Winter Squash	2.0
Watermelon	2.0

[43 FR 27836, June 27, 1978]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.303, see the List of CFR Sections Affected in the Finding Aids section of this volume.

§ 180.304 Oryzalin; tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide oryzalin (3,5-dinitro-N⁴,N⁴-dipropylsulfanilamide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almond, hulls	0.05
Avocados	0.05
Citrus fruits	0.05
Figs	0.05
Kiwifruits	0.05
Nuts	0.05
Olives	0.05
Pistachios	0.05
Pome fruits	0.05
Pomegranates	0.05
Small fruits	0.05
Stone fruits	0.05

(b) Tolerances with regional registration, as defined in § 180.1(n), are established for residues of oryzalin (3,5-dinitro-N⁴,N⁴-dipropylsulfanilamide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Guava	0.05
Papayas	0.05

[57 FR 59823, Dec. 16, 1992, as amended at 61 FR 26120, May 24, 1996]

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§ 180.305 3,4,5-Trimethylphenyl methylcarbamate and 2,3,5-trimethylphenyl methylcarbamate; tolerances for residues.

Tolerances are established for negligible residues of an insecticide that is a mixture consisting of 3,4,5-trimethylphenyl methylcarbamate and 2,3,5-trimethylphenyl methylcarbamate isomers, which are present in ratios varying between 4:1 and 3:1, respectively, in or on the raw agricultural commodities corn grain (including field corn and popcorn) and corn fodder and forage at 0.1 part per million (such tolerance to cover the sum of the residues of both components).

§ 180.306 Cyprazine; tolerances for residues.

A tolerance of 0.1 part per million is established for negligible residues of the herbicide cyprazine (2-chloro-4-cyclopropylamino-6-isopropylamino-s-triazine) in or on the raw agricultural commodities fresh corn including sweet corn (kernels plus cob with husk removed), corn grain, and corn fodder and forage.

[38 FR 9815, Apr. 20, 1973]

§ 180.307 2-[[4-chloro-6-(ethylamino)-s-triazin-2-yl] amino]-2-methylpropionitrile; tolerances for residues.

Tolerances are established for residues of the herbicide 2-[[4-chloro-6-(ethylamino)-s-triazin-2-yl]amino]-2-methylpropionitrile in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, fodder	0.2
Corn, forage	.2
Corn, fresh (including sweet K+CWHR)	.05
Corn, grain	.05
Cottonseed	.05
Sorghum, fodder	.05
Sorghum, forage	.05
Sorghum, grain	.05
Wheat, forage (green)	.1
Wheat, grain	.1
Wheat, straw	.1

[43 FR 41396, Sept. 18, 1978]

§ 180.309 α -Naphthaleneacetamide; tolerances for residues.

Tolerances are established for combined negligible residues of the plant regulator α -naphthaleneacetamide and

its metabolite α -naphthaleneacetic acid (calculated as α -naphthaleneacetic acid) in or on the raw agricultural commodities apples and pears at 0.1 part per million.

[37 FR 4913, Mar. 7, 1972]

§ 180.311 Cacodylic acid; tolerances for residues.

Tolerances are established for residues of the defoliant cacodylic acid (dimethylarsinic acid), expressed as As_2O_3 , in or on raw agricultural commodities as follows:

2.8 parts per million in or on cottonseed.

1.4 parts per million in the kidney and liver of cattle.

0.7 part per million in meat, fat, and meat byproducts (except kidney and liver) of cattle.

[37 FR 739, Jan. 18, 1972]

§ 180.312 4-Aminopyridine; tolerances for residues.

A tolerance of 0.1 part per million is established for negligible residues of the bird repellent 4-aminopyridine in or on the raw agricultural commodities corn fodder and forage, corn grain (including popcorn grain), fresh corn (including sweet corn kernels plus cob with husks removed), and sunflower seeds.

[40 FR 31602, July 28, 1975]

§ 180.314 S-2,3,3-Trichloroallyl diisopropylthiocarbamate; tolerances for residues.

Tolerances are established for residues of the herbicide S-2,3,3-trichloroallyl diisopropylthiocarbamate in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	0.05 (N)
Barley, straw	0.05 (N)
Grass, canary, annual, seed	0.05
Grass, canary, annual, straw	0.05
Lentils	0.05 (N)
Lentils, forage	0.05 (N)
Lentils, hay	0.05 (N)
Peas	0.05 (N)
Peas, forage	0.05 (N)
Peas, hay	0.05 (N)
Wheat, grain	0.05 (N)

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Commodity	Parts per million
Wheat, straw	0.05 (N)

[47 FR 44564, Oct. 8, 1982]

§ 180.315 Methamidophos; tolerances for residues.

(a) Tolerances are established for residues of the insecticide methamidophos (O,S-dimethyl phosphoramidothioate) in or on the following raw agricultural commodities:

Commodity	Part per million
Beets, sugar, roots	0.02
Beets, sugar, tops	0.50
Broccoli	1.0
Brussels sprouts	1.0
Cabbage	1.0
Cauliflower	1.0
Cottonseed	0.1(N)
Cucumbers	1.0
Eggplant	1.0
Lettuce	1.0
Melons	0.5
Peppers	1.0
Potatoes	0.1(N)
Tomatoes	1.0

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of methamidophos in or on the following raw agricultural commodities:

Commodity	Parts per million
Celery	1

[47 FR 13525, Mar. 31, 1982, as amended at 48 FR 44537, Sept. 29, 1983; 52 FR 33238, Sept. 2, 1987]

§ 180.316 Pyrazon; tolerances for residues.

Tolerances are established for combined residues of the herbicide pyrazon (5-amino-4-chloro-2-phenyl-3(2H)-pyridazinone) and its metabolites (calculated as pyrazon) in or on raw agricultural commodities as follows:

1 part per million in or on beet tops and sugar beet tops.

0.1 part per million (negligible residue) in or on beets and sugar beets.

0.01 part per million (negligible residue) in milk.

[37 FR 6401, Mar. 29, 1972]

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§ 180.317 3,5-Dichloro-N-(1,1-dimethyl-2-propynyl)benzamide; tolerances for residues.

(a) Tolerances are established for combined residue of the herbicide 3,5-dichloro-N-(1,1-dimethyl-2-propynyl)benzamide and its metabolites (containing the 3,5-dichlorobenzoyl moiety and calculated as 3,5-dichloro-N-(1,1-dimethyl-2-propynyl)benzamide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	0.1
Artichokes	0.1
Blackberries	0.05
Blueberries	0.05
Boysenberries	0.05
Cattle, fat	0.02
Cattle, kidney	0.4
Cattle, liver	0.4
Cattle, mbyp (except kidney, liver)	0.02
Cattle, meat	0.02
Eggs	0.02
Endive (escarole)	1.0
Goats, fat	0.02
Goats, kidney	0.4
Goats, liver	0.4
Goats, mbyp (except kidney, liver)	0.02
Goats, meat	0.02
Grapes	0.1
Hogs, fat	0.02
Hogs, kidney	0.4
Hogs, liver	0.4
Hogs, mbyp (except kidney, liver)	0.02
Hogs, meat	0.02
Horses, fat	0.02
Horses, kidney	0.4
Horses, liver	0.4
Horses, mbyp (except kidney, liver)	0.02
Horses, meat	0.02
Lettuce	1.0
Milk	0.02
Nongrass animal feeds	10.0
Pears	0.1
Poultry, fat	0.02
Poultry, kidney	0.2
Poultry, liver	0.2
Poultry, mbyp (except kidney, liver)	0.02
Poultry, meat	0.02
Radicchio, greens (tops)	2.0
Raspberries	0.05
Sheep, fat	0.02
Sheep, kidney	0.4
Sheep, liver	0.4
Sheep, mbyp (except kidney, liver)	0.02
Sheep, meat	0.02
Stone fruits	0.1

(b) Tolerances with regional registration are established for the combined residues of the herbicide 3,5-dichloro-N-(1,1-dimethyl-2-propynyl)benzamide

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and its metabolites (containing the 3,5 dichlorobenzoyl moiety and calculated as 3,5-dichloro-*N*-(1,1-dimethyl-2-propynyl)benzamide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Peas, dried (winter)	0.05
Rhubarb	0.1

[61 FR 10284, Mar. 13, 1996]

§ 180.318 4-(2-Methyl-4-chlorophenoxy) butyric acid; tolerances for residues.

A tolerance of 0.1 part per million is established for negligible residues of the herbicide 4-(2-methyl-4-chlorophenoxy) butyric acid in or on the raw agricultural commodity peas.

[37 FR 6849, Apr. 5, 1972]

§ 180.319 Interim tolerances.

While petitions for tolerances for negligible residues are pending and until action is completed on these petitions, interim tolerances are established for residues of the listed pesticide chemicals in or on raw agricultural commodities as follows:

Substance	Use	Tolerance in parts per million	Raw agricultural commodity
Ammoniates of [ethylenebis(dithiocarbamate)] zinc and ethylenebis- [dithiocarbamic acid] bimolecular and trimolecular cyclic anhydrosulfides and disulfides.	Fungicide	0.5 (Calculated as zinc ethylenebisdithiocarbamate).	Peanuts, sugar beets, sweet corn (kernels plus cob with husk removed).
Carbaryl (1-naphthyl <i>N</i> -methylcarbamate and its metabolite 1-naphthol, calculated as carbaryl.	Insecticide	0.5	Eggs.
Coordination product of zinc ion and maneb.	Fungicide	1 (Calculated as zinc ethylenebisdithiocarbamate).	Potatoes.
Endothall (7-oxabicyclo-(2.2.1) heptane 2, 3-dicarboxylic acid).	Herbicide	0.2	Sugar beets.
Isopropyl carbanilate (IPC)	Herbicide	5	Hay of alfalfa, clover, and grass.
		2	Alfalfa, clover, and grass.
		0.1	Flaxseed, lentils, lettuce, peas, safflower seed, spinach, and sugar beets (roots and tops).
		0.05	Eggs; milk; and the meat fat, and meat byproducts of cattle, goats, hogs, horses, poultry, and sheep.
Isopropyl <i>m</i> -chlorocarbanilate (CIPC)	do	50	Hay of alfalfa, clover, and grass.
		20	Alfalfa, clover, and grass.
		0.3	Beans (dry and succulent), blackberries, blueberries, cranberries, peas (dry and succulent), raspberries, spinach, and sugar beet tops.
		0.1	Carrots, garlic, onions, rice grain, safflower seed, sugar beet roots, and tomatoes.
		0.05	Eggs; milk; and the meat, fat, and meat byproducts of cattle, goats, hogs, horses, poultry, and sheep.
Parathion (O,O-diethyl-O- <i>p</i> -nitrophenylthiophosphate) or its methyl homolog.	do	0.5	Rye.
Pentachloronitrobenzene	Fungicide	1	Peanuts.
		0.1	Beans, broccoli, brussels sprouts, cabbage, cauliflower, garlic, peppers, potatoes, tomatoes.

[37 FR 17554, Aug. 30, 1972; 37 FR 18292, Sept. 9, 1972]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.319, see List of CFR Sections Affected in the Finding Aids section of this volume.

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§ 180.320 3,5-Dimethyl-4-(methylthio)phenyl methylcarbamate; tolerances for residues.

Tolerances are established for residues of the pesticide 3,5-dimethyl-4-(methylthio)phenyl methylcarbamate and its cholinesterase-inhibiting metabolites in or the raw agricultural commodities as follows:

Commodity	Parts per million
Citrus fruits	0.02
Corn, fodder	0.03
Corn, forage	0.03
Corn, fresh (inc sweet K + CWHR)	0.03
Corn, grain, field	0.03
Corn, grain, pop	0.03
Peaches	15

[51 FR 22078, June 18, 1986, as amended at 54 FR 11706, Mar. 22, 1989; 60 FR 32097, June 19, 1995]

§ 180.321 sec-Butylamine; tolerances for residues.

Tolerances are established for residues of the fungicide sec-butylamine in or on raw agricultural commodities as follows:

30 parts per million in or on citrus fruit (from postharvest application).

3 parts per million in kidney of cattle.

0.75 part per million in milk and meat, fat, and meat byproducts of cattle (except kidney).

[37 FR 13348, July 7, 1972]

§ 180.324 Bromoxynil; tolerances for residues.

(a) Tolerances are established for residues of the herbicide bromoxynil (3,5-dibromo-4-hydroxybenzonitrile) resulting from application of its octanoic acid ester and/or butyric acid ester in or on the following commodities:

Commodity	Part per million
Alfalfa, seeding	0.10
Barley, forage, green	0.1
Barley, grain	0.1
Barley, straw	0.1
Cattle, fat	0.1
Cattle, mbyp	0.1
Cattle, meat	0.1
Corn, fodder (dry)	0.1
Corn, forage (green)	0.1
Corn, grain	0.1
Corn, fodder, field (dry)	0.1
Corn, forage, field (green)	0.1

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Commodity	Part per million
Corn, grain, field	0.1
Flaxseed	0.1
Flax straw	0.1
Garlic	0.1
Goats, fat	0.1
Goats, mbyp	0.1
Goats, meat	0.1
Grass, canary, annual, seed	0.1
Grass, canary, annual, straw	0.1
Hogs, fat	0.1
Hogs, mbyp	0.1
Hogs, meat	0.1
Horses, fat	0.1
Horses, mbyp	0.1
Horses, meat	0.1
Mint hay	0.1
Oats, forage, green	0.1
Oats, grain	0.1
Oats, straw	0.1
Onions (dry bulb)	0.1(N)
Rye, forage, green	0.1
Rye, grain	0.1
Rye, straw	0.1
Sheep, fat	0.1
Sheep, mbyp	0.1
Sheep, meat	0.1
Sorghum, fodder	0.1
Sorghum, forage	0.1
Sorghum, grain	0.1
Wheat, forage, green	0.1
Wheat, grain	0.1
Wheat, straw	0.1

(b) Tolerances are established for residues of the herbicide bromoxynil (3,5-dibromo-4-hydroxybenzonitrile) resulting from application of its phenol, octanoic, or butyric acid esters in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, fodder	0.1
Corn, forage	0.1
Corn, grain	0.1
Sorghum, fodder	0.1
Sorghum, forage	0.1
Sorghum, grain	0.1

(c) Tolerances are established for residues of the herbicide bromoxynil (3,5-dibromo-4-hydroxybenzonitrile) resulting from application of its heptanoic acid ester in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, forage (green)	0.1
Barley, grain	0.1
Barley, straw	0.1
Cattle, fat	0.1
Cattle, meat	0.1

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Commodity	Parts per million
Cattle, mbyp	0.1
Corn, fodder (dry)	0.1
Corn, forage (green)	0.1
Corn, grain	0.1
Flaxseed	0.1
Flaxseed, straw	0.1
Garlic	0.1
Goats, fat	0.1
Goats, meat	0.1
Goats, mbyp	0.1
Grass, canary, annual, seed	0.1
Grass, canary, annual, straw	0.1
Hogs, fat	0.1
Hogs, meat	0.1
Hogs, mbyp	0.1
Horses, fat	0.1
Horses, meat	0.1
Horses, mbyp	0.1
Mint hay	0.1
Oats, forage (green)	0.1
Oats, grain	0.1
Oats, straw	0.1
Onions (dry bulb)	0.1 (N)
Rye, forage (green)	0.1
Rye, grain	0.1
Rye, straw	0.1
Sheep, fat	0.1
Sheep, meat	0.1
Sheep, mbyp	0.1
Sorghum, fodder	0.1
Sorghum, forage (green)	0.1
Sorghum, grain	0.1
Wheat, forage (green)	0.1
Wheat, grain	0.1
Wheat, straw	0.1

(d) A tolerance is established for residues of the herbicide bromxynil (3,5-dibromo-4-hydroxybenzonitrile) resulting from application of its octanoic and heptanoic acid esters in or on the following raw agricultural commodity:

Commodity	Parts per million	Expiration date
Cottonseed (transgenic BXN varieties only).	0.04	April 1, 1997.

[47 FR 2862, Jan. 20, 1982, as amended at 47 FR 9000, Mar. 3, 1982; 47 FR 33691, Aug. 4, 1982; 47 FR 55225, Dec. 8, 1982; 48 FR 20058, May 4, 1983; 49 FR 8442, Mar. 7, 1984; 49 FR 43649, Oct. 31, 1984; 50 FR 42021, Oct. 17, 1985; 52 FR 35706, Sept. 23, 1987; 55 FR 26440, June 28, 1990; 60 FR 27415, May 24, 1995]

§ 180.325 2-(*m*-Chlorophenoxy)propionic acid; tolerances for residues.

A tolerance of 0.1 part per million is established for negligible residues of the plant regulator 2-(*m*-chlorophenoxy)propionic acid from application of the acid or of 2-(*m*-chlorophen-

oxy)propionamide in or on the following raw agricultural commodities:

Commodity	Part(s) per million (ppm)
Kidneys, cattle	0.5
Kidneys, goats	0.5
Kidneys, hogs	0.5
Kidneys, horses	0.5
Kidneys, sheep	0.5
Meat (except kidneys), fat, mbyp, cattle	0.05
Meat (except kidneys), fat, mbyp, goats	0.05
Meat (except kidneys), fat, mbyp, hogs	0.05
Meat (except kidneys), fat, mbyp, horses	0.05
Meat (except kidneys), fat, mbyp, poultry	0.05
Meat (except kidneys), fat, mbyp, sheep	0.05
Nectarines	0.1(N)
Peaches	0.1(N)
Pineapple	0.3
Pineapple, fodder	0.2
Pineapple, forage	0.2

[37 FR 20826, Oct. 5, 1972, as amended at 46 FR 57499, Nov. 24, 1981]

§ 180.326 Dialifor; tolerances for residues.

Tolerances are established for combined residues of the insecticide dialifor (*S*-(2-chloro-1-naphthalimidoethyl) *O,O*-diethyl phosphorodithioate) and its oxygen analog *S*-(2-chloro-1-phthalimidoethyl) *O,O*-diethyl phosphorothioate in or on raw agricultural commodities as follows:

3 parts per million in or on citrus fruits.

1.5 parts per million in or on apples.

1 part per million in or on grapes.

0.15 part per million (negligible residue) in meat, fat, and meat byproducts of cattle, goats, and sheep.

0.15 part per million in milk fat (reflecting negligible residues in whole milk).

0.05 part per million (negligible residue) in meat, fat, and meat byproducts of poultry.

0.01 part per million (negligible residue) in eggs.

0.01 part per million (negligible residue) in or on pecans.

[39 FR 9964, Mar. 15, 1974; 39 FR 13073, Apr. 11, 1974, as amended at 44 FR 37919, June 29, 1979]

§ 180.328 *N,N*-Diethyl-2-(1-naphthalenyloxy)propionamide; tolerances for residues.

(a) Tolerances are established for negligible residues (*N*) of the herbicide

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N,N-Diethyl-2-(1-naphthalenyloxy) propionamide in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds, hulls	0.1 (N)
Artichokes	0.1
Asparagus	0.1
Avocados	0.1
Basil	0.1
<i>Brassica</i> (cole) leafy vegetables	0.1
Coffee beans	0.1 (N)
Cucurbits vegetables	0.1
Figs	0.1 (N)
Fruits, citrus	0.1 (N)
Fruits, pome	0.1 (N)
Fruits, small	0.1 (N)
Fruits, stone	0.1 (N)
Kiwifruit	0.1
Marjoram	0.1
Mint	0.1
Nuts	0.1 (N)
Olives	0.1
Persimmons	0.1
Pistachio nuts	0.1
Rhubarb	0.1
Rosemary	0.1
Savory, Summer	0.1
Savory, winter	0.1
Sweet potato	0.1
Vegetables, fruiting	0.1 (N)

(b) Tolerances with regional registration are established for residues of the herbicide *N,N*-diethyl-2-(1-naphthalenyloxy) propionamide in or on the following raw agricultural commodities:

Commodity	Parts per million
Pomegranates	0.1

[42 FR 17443, Apr. 1, 1977, as amended at 45 FR 64579, Sept. 30, 1980; 46 FR 39828, Aug. 5, 1981; 46 FR 47548, Sept. 29, 1981; 47 FR 39490, Sept. 8, 1982; 48 FR 13175, Mar. 30, 1983; 48 FR 46310, Oct. 12, 1983; 48 FR 50317, Nov. 1, 1983; 48 FR 51487, Nov. 9, 1983; 50 FR 45113, Oct. 30, 1985; 58 FR 34914, June 30, 1993]

§ 180.330 S-[2-(Ethylsulfinyl)ethyl] O, O-dimethyl phosphorothioate; tolerances for residues.

(a) Tolerances are established for residues of the pesticide S-[2-(ethylsulfinyl)ethyl] O,O-dimethyl phosphorothioate and its cholinesterase-inhibiting metabolites on the following raw agricultural commodities.

Commodity	Parts per million
Alfalfa, chaff, or seed	11
Alfalfa, green	5
Alfalfa, hay, for seed	11

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Commodity	Parts per million
Apples	1
Beans, lima	0.5
Beans, lima, forage	2
Beans, snap	0.5
Beans, snap, forage	2
Beets, sugar	0.3
Beets, sugar, tops	0.5
Blackberries	2
Broccoli	1
Brussels sprouts	1
Cabbage	1
Cattle, fat	0.01
Cattle, mbyp	0.01
Cattle, meat	0.01
Cauliflower	1
Clover, chaff, for seed	11
Clover, green	5
Clover, hay, for seed	11
Corn, fodder	3
Corn, forage	3
Corn, fresh (inc sweet K+CWHR)	0.5
Corn, grain	0.5
Cottonseed	0.1
Cucumbers	1
Eggplant	1
Filberts	0.05
Goats, fat	0.01
Goats, mbyp	0.01
Goats, meat	0.01
Grapefruit	1
Grapes	0.1
Hogs, fat	0.01
Hogs, mbyp	0.01
Hogs, meat	0.01
Horses, fat	0.01
Horses, mbyp	0.01
Horses, meat	0.01
Lemons	1
Lettuce, head	2
Melons	0.3
Milk	0.01
Mint, hay	12.5
Onions, dry bulb	0.05
Oranges	1
Pears	0.3
Peas	0.3
Peas, forage	2
Peas, hay	8
Peppers	0.75
Plums (fresh prunes)	1
Potatoes	0.1
Pumpkins	0.3
Raspberries	2
Safflower	1.0
Sheep, fat	0.01
Sheep, mbyp	0.01
Sheep, meat	0.01
Sorghum, forage	2.0
Sorghum, grain	0.75
Squash, summer	1
Squash, winter	0.3
Strawberries	2
Turnips	0.3
Turnips, tops	2
Walnuts	0.3

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of S-[2-(ethylsulfinyl)ethyl] O,O-dimethyl phosphorothioate and its cholinesterase-inhibiting

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metabolites in or on the following raw agricultural commodities:

Commodity	Parts per million
Apricots	0.5

[41 FR 28791, July 13, 1976; 41 FR 29681, July 19, 1976, as amended at 41 FR 34629, Aug. 16, 1976; 41 FR 41693, Sept. 23, 1976; 49 FR 4737, Feb. 8, 1984; 52 FR 33238, Sept. 2, 1987]

§ 180.331 4-(2,4-Dichlorophenoxy) butyric acid; tolerances for residues.

Tolerances are established for the combined residues of the herbicide 4-(2,4-dichlorophenoxy) butyric acid and its metabolite 2,4-dichlorophenoxyacetic acid in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa	0.2N
Clover	0.2N
Mint, hay	0.2
Peanuts	0.2N
Soybeans	0.2N
Soybeans, hay	0.2N
Trefoil, birdsfoot	0.2N

[48 FR 19026, Apr. 27, 1983]

§ 180.332 4-Amino-6-(1,1-dimethyl-ethyl)-3-(methylthio)-1,2,4-triazin-5(4H)-one; tolerances for residues.

Tolerances are established for combined residues of the herbicide 4-amino-6-(1,1-dimethyl-ethyl)-3-(methylthio)-1,2,4-triazin-5(4H)-one and its triazinone metabolites in or on raw agricultural commodities:

Commodity	Parts per million
Alfalfa, green	2
Alfalfa, hay	7
Asparagus	0.05
Barley, grain	0.75
Barley, straw	1
Carrots	0.3
Cattle, fat	0.7
Cattle, mbyp	0.7
Cattle, meat	0.7
Corn, fodder	0.1
Corn, forage	0.1
Corn, fresh (inc. sweet K+CWHR)	0.05
Corn, grain (inc. popcorn)	0.05
Eggs	0.01
Goats, fat	0.7
Goats, mbyp	0.7
Goats, meat	0.7
Grass	2
Grass, hay	7

Commodity	Parts per million
Hogs, fat	0.7
Hogs, mbyp	0.7
Hogs, meat	0.7
Horses, fat	0.7
Horses, mbyp	0.7
Horses, meat	0.7
Lentils (dried)	0.05
Lentils, forage	0.5
Lentils, vine hay	0.05
Milk	0.05
Peas	0.1
Peas (dried)	0.05
Peas, forage	0.5
Peas, vine hay	0.05
Potatoes	0.6
Poultry, fat	0.7
Poultry, mbyp	0.7
Poultry, meat	0.7
Sainfoin	2
Sainfoin, hay	7
Sheep, fat	0.7
Sheep, mbyp	0.7
Sheep, meat	0.7
Soybeans	0.1
Soybeans, forage	4
Soybeans, hay	4
Sugarcane	0.1
Tomatoes	0.1
Wheat, forage	2
Wheat, grain	00.75
Wheat, straw	1

[42 FR 62913, Dec. 14, 1977, as amended at 43 FR 41396, Sept. 18, 1978; 44 FR 26744, May 7, 1979; 44 FR 45387, Aug. 2, 1979; 52 FR 23654, June 24, 1987; 55 FR 26440, June 28, 1990]

§ 180.337 Oxytetracycline; tolerance for residues.

Tolerances are established for residues of the pesticide oxytetracycline in or on the following raw agricultural commodities:

Commodity	Parts per million
Peaches	0.35
Pears	0.35

[60 FR 34871, July 5, 1995]

§ 180.338 6-methyl-1,3-dithiolo [4,5-b] quin-oxalin-2-one, tolerances for residues.

Tolerances are established for residues of the fungicide and insecticide 6-methyl-1,3-dithiolo [4,5-b] quinoxalin-2-one in or on raw agricultural commodities as follows:

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Commodity	Parts per million
Apples	0.05 (N)
Apricots	0.02
Cattle, fat	0.05 (N)
Cattle, mbyp	0.05 (N)
Cattle, meat	0.05 (N)
Citrus fruits	0.5
Goats, fat	0.05 (N)
Goats, mbyp	0.05 (N)
Goats, meat	0.05 (N)
Hogs, fat	0.05 (N)
Hogs, mbyp	0.05 (N)
Hogs, meat	0.05 (N)
Horses, fat	0.05 (N)
Horses, mbyp	0.05 (N)
Horses, meat	0.05 (N)
Macadamia nuts	0.1 (N)
Milk	0.01 (N)
Pears	0.05 (N)
Sheep, fat	0.05 (N)
Sheep, mbyp	0.05 (N)
Sheep, meat	0.05 (N)
Walnuts	0.1 (N)

[39 FR 26892, July 24, 1974, as amended at 40 FR 13500, Mar. 27, 1975; 47 FR 45006, Oct. 13, 1982]

§ 180.339 2-methyl-4-chlorophenoxyacetic acid; tolerances for residues.

(a) Tolerances are established for residues of the herbicide 2-methyl-4-chlorophenoxyacetic acid from application of the herbicide in the acid form or in the form of its sodium, ethanolamine, diethanolamine, triethanolamine, isopropanolamine, diisopropanolamine, triisopropanolamine, or dimethylamine salts or its isooctyl or butoxyethyl esters in or on raw agricultural commodities as follows:

Commodity	Parts per million
Alfalfa	0.1
Alfalfa hay	0.1
Barley, forage	20
Barley, grain	0.1 (N)
Barley, straw	2
Clovers	0.1
Clover hay	0.1
Flax, straw	2
Flaxseed	0.1 (N)
Grass, canary, annual, seed	0.1
Grass, canary, annual, straw	0.1
Grasses, pasture	300
Grasses, rangeland	300
Grass, hay	20
Lespedeza	0.1
Lespedeza hay	0.1
Oats, forage	20
Oats, grain	0.1 (N)
Oats, straw	2
Peavines	0.1 (N)
Peavines, hay	0.1 (N)
Rice, grain	0.1 (N)
Rice, straw	2

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Commodity	Parts per million
Rye, forage	20
Rye, grain	0.1 (N)
Rye, straw	2
Sorghum, fodder	20
Sorghum, forage	20
Sorghum, grain	0.1
Trefoils	0.1
Trefoil hay	0.1
Vegetables, seed and pod	0.1
Vetches	0.1
Vetch hay	0.1
Wheat, grain	0.1 (N)
Wheat, straw	2

(b) Tolerances are established for combined negligible residues (N) of the herbicide 2-methyl-4-chlorophenoxyacetic acid and its metabolite 2-methyl-4-chlorophenol in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.1 (N)
Cattle, mbyp	0.1 (N)
Cattle, meat	0.1 (N)
Goats, fat	0.1 (N)
Goats, mbyp	0.1 (N)
Goats, meat	0.1 (N)
Hogs, fat	0.1 (N)
Hogs, mbyp	0.1 (N)
Hogs, meat	0.1 (N)
Horses, fat	0.1 (N)
Horses, mbyp	0.1 (N)
Horses, meat	0.1 (N)
Milk	0.1 (N)
Sheep, fat	0.1 (N)
Sheep, mbyp	0.1 (N)
Sheep, meat	0.1 (N)

[41 FR 21190, May 24, 1976, as amended at 41 FR 27358, July 2, 1976; 47 FR 8013, Feb. 24, 1982; 47 FR 33692, Aug. 4, 1982]

§ 180.341 2,4-Dinitro-6-octylphenyl crotonate and 2,6-dinitro-4-octylphenyl crotonate; tolerances for residues.

Tolerances are established for combined negligible residues of a fungicide and insecticide that is a mixture of 2,4-dinitro-6-octylphenyl crotonate and 2,6-dinitro-4-octylphenyl crotonate in or on raw agricultural commodities as follows:

0.15 part per million in or on caneberries (blackberries, boysenberries, dewberries, loganberries, raspberries) and gooseberries.

0.1 part per million in or on apples, apricots, cantaloupes, cucumbers, grapes, honeydew melons, muskmelons, nectarines, peaches, pears, pumpkins,

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summer squash, watermelons and winter squash.

[40 FR 29715, July 15, 1975]

§ 180.342 Chlorpyrifos; tolerances for residues.

(a) Tolerances are established for combined residues of the pesticide chlorpyrifos (*O,O*-diethyl *O*-(3,5,6-trichloro-2-pyridyl) phosphorothioate and its metabolite 3,5,6-trichloro-2-pyridinol in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds	0.2
Almonds, hulls	12.0
Apples	1.5
Beans, lima	0.05
Beans, lima, forage	1.0
Beans, snap	0.05
Beans, snap, forage	1.0
Beets, sugar, roots	1.0
Beets, sugar, tops	8.0
Blueberries	2 ppm (of which no more than 1 ppm is chlorpyrifos)
Citrus fruits	1.0
Corn, fresh (inc. sweet K-CWHR)	0.1
Cranberries	1.0
Kiwifruit	2.0
Mushrooms	0.1
Onions (dry bulb)	0.5
Peppers	1.0
Seed and pod vegetables	0.1
Sorghum, fodder	6.0
Sorghum, forage	1.5
Sorghum, grain	0.75
Sunflower, seeds	0.25
Tomatoes	0.5
Tree nuts	0.2
Vegetables, leafy, <i>Brassica</i> (cole)	12.0
Walnuts	0.2

¹ Of which no more than 1.0 ppm is chlorpyrifos.

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of chlorpyrifos and its metabolite 3,5,6-trichloro-2-pyridinol in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	5.0
Dates	0.5 (of which no more than 0.3 ppm is chlorpyrifos)
Grapes	0.5
Leeks	0.5 (of which no more than 0.2 ppm is chlorpyrifos)

(c) Tolerances are established for residues of the pesticide chlorpyrifos (*O,O*-diethyl *O*-(3,5,6-trichloro-2-pyri-

dyl) phosphorothioate in or on the following raw agricultural commodity:

Commodity	Parts per million
Alfalfa, forage	3
Alfalfa, hay	13
Bananas, whole	0.1
Bananas, pulp with peel removed	0.01
Bean, forage	0.7
Broccoli	1
Brussels sprouts	1
Cabbage	1
Caneberries	1.0
Cattle, fat	0.3
Cattle, meat and meat byproducts	0.05
Cauliflower	1
Cherries	1
Chinese cabbage	1
Corn, field, grain	0.05
Corn, forage and fodder	8
Cottonseed	0.2
Cucumbers	0.05
Eggs	0.01
Figs	0.01
Goats, fat	0.2
Goats, meat and meat byproducts	0.05
Hogs, fat	0.2
Hogs, meat and meat byproducts	0.05
Horses, meat, fat, and meat byproducts	0.25
Legume vegetables, succulent or dried (except soybeans)	0.05
Milk, fat	0.25
Milk, whole	0.01
Mint, hay	0.8
Pea forage	0.7
Peanut hulls	2
Peanuts	0.2
Poultry, meat, fat, and meat byproducts (inc. turkeys)	0.1
Pumpkins	0.05
Radishes	2
Rutabagas	0.5
Sheep, fat	0.2
Sheep, meat and meat byproducts	0.05
Soybean grain	0.3
Soybean forage	0.7
Strawberries	0.2
Sugarcane	0.01
Sweet potatoes	0.05
Turnip greens	0.3
Turnips	1
Wheat, grain	0.5
Wheat, straw	6
Wheat, forage	3

(d) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the pesticide chlorpyrifos (*O,O*-diethyl *O*-(3,5,6-trichloro-2-pyridyl)phosphorothioate) in or on the following commodities:

Commodity	Parts per million
Cherimoya	0.05
Feijoa (pineapple guava)	0.05
Sapote	0.05

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(e) Tolerances are established as follows for residues of the insecticide chlorpyrifos [O,O-diethyl O-(3,5,6-trichloro-2-pyridyl) phosphorothioate] in or on the following raw agricultural commodities:

Commodity	Parts per million
Nectarines	0.05
Peaches	0.05
Pears	0.05
Plums	0.05

(f) A tolerance of 15 parts per million is established for residues of the pesticide chlorpyrifos [O,O-diethyl O-(3,5,6-trichloro-2-pyridyl)phosphorothioate] in or on the raw agricultural commodities oats and barley when blended together as a mixture containing not more than 97% oats and not less than 3% barley.

(1) Such tolerance applies only to oats that were treated post-harvest with chlorpyrifos on or before June 15, 1994.

(2) Such tolerance applies only to oats to be used as animal feed or as a constituent of animal feed.

(3) Notwithstanding any other provision of law or regulation, this tolerance does not authorize the presence of residues of chlorpyrifos in any human food item made from such treated oats, other than residues resulting from the use of the oats for animal feed purposes.

(4) Such tolerance expires on December 31, 1996.

[52 FR 45825, Dec. 2, 1987, as amended at 55 FR 24081, June 14, 1990; 56 FR 41465, Aug. 21, 1991; 58 FR 19356, Apr. 14, 1993; 59 FR 9095, Feb. 25, 1994; 59 FR 10288, Mar. 4, 1994; 60 FR 15489, Mar. 24, 1995; 61 FR 3330, Jan. 31, 1996]

§ 180.344 4,6-Dinitro-o-cresol and its sodium salt; tolerance for residues.

A tolerance of 0.02 part per million is established for negligible residues of the plant regulators 4,6-dinitro-o-cresol and its sodium salt in or on the raw agricultural commodity apples from application to apple trees at the blossom stage as a fruit-thinning agent.

[39 FR 12008, Apr. 2, 1974]

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§ 180.345 Ethofumesate; tolerances for residues.

Tolerances are established for combined residues of the herbicide ethofumesate (2-ethoxy-2,3-dihydro-3,3-dimethyl-5-benzofuranyl methanesulfonate) and its metabolites 2-hydroxy-2,3-dihydro-3,3-dimethyl-5-benzofuranyl methanesulfonate and 2,3-dihydro-3,3-dimethyl-2-oxo-5-benzofuranyl methanesulfonate (both calculated as the parent compound) in or on the following raw agricultural commodities:

Commodity	Parts per million
Beets, sugar, roots	0.1
Beets, sugar, tops	1.00
Cattle, fat	0.05
Cattle, mbyp	0.05
Cattle, meat	0.05
Goats, fat	0.05
Goats, mbyp	0.05
Goats, meat	0.05
Grass, straw	1
Hogs, fat	0.05
Hogs, mbyp	0.05
Hogs, meat	0.05
Horses, fat	0.05
Horses, mbyp	0.05
Horses, meat	0.05
Sheep, fat	0.05
Sheep, mbyp	0.05
Sheep, meat	0.05

[43 FR 14021, Apr. 4, 1978, as amended at 45 FR 26049, Apr. 17, 1980]

§ 180.346 Oxadiazon; tolerances for residues.

Tolerances are established for combined residues of the herbicide oxadiazon (2-tert-butyl-4-(2,4-dichloro-5-isopropoxyphenyl)- Δ^2 1,3,4-oxadiazolin-5-one) and its metabolites (2-tert-butyl-4-(2,4-dichloro-5-hydroxyphenyl)- Δ^2 1,3,4-oxadiazolin-5-one and 2-carboxyisopropyl-4-(4-dichloro)5-isopropoxyphenyl)- Δ^2 -1,3,4-oxadiazolin-5-one) in or on raw agricultural commodities as follows:

0.2 part per million (negligible residue) in or on rice straw.

0.1 part per million in milk fat (reflecting negligible residues in milk).

0.05 part per million (negligible residues) in or on Brazil nuts, bush nuts, butternuts, cashews, chestnuts, crabapples, filberts, hazelnuts, hickory nuts, macadamia nuts, pears, pecans, pistachio nuts, quinces, rice grain, stone fruit, and walnuts.

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0.01 part per million (negligible residue) in the meat, fat, and meat byproducts of cattle, goats, hogs, horses, and sheep.

[39 FR 9177, Mar. 8, 1974, as amended at 40 FR 48681, Oct. 17, 1975]

§ 180.347 Tetraethyl pyrophosphate; tolerances for residues.

Tolerances are established for negligible residues of the insecticide tetraethyl pyrophosphate in or on the raw agricultural commodities alfalfa (fresh and hay), apples, cabbage, cauliflower, oranges, peaches, and potatoes at 0.01 part per million.

[40 FR 34340, Aug. 15, 1975]

§ 180.349 Ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl) phosphoramidate; tolerances for residues.

(a) Tolerances are established for the combined residues of the nematocide ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl) phosphoramidate and its cholinesterase inhibiting metabolites ethyl 3-methyl-4-(methylsulfinyl)phenyl (1-methylethyl)phosphoramidate and ethyl 3-methyl-4-(methylsulfonyl)phenyl (1-methylethyl) phosphoramidate in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	0.25
Bananas	0.10
Brussels sprouts	0.10
Cabbage	0.10
Cherries	0.25
Cocoa beans	0.02
Cottonseed	0.05
Eggplant	0.1
Garlic	0.50
Grapes	0.10
Grapefruit	0.60
Lemons	0.60
Limes	0.60
Okra	0.30
Oranges	0.60
Peaches	0.25
Peanuts	0.02
Peanuts, hulls	0.40
Pineapples	0.30
Raspberries	0.1
Soybeans	0.05
Strawberries	0.6
Tangerines	0.60

(b) Tolerances are established for the combined residues of the nematocide ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl)phosphoramidate and its cholinesterase-inhibiting metabolites ethyl 3-methyl-4-(methylsulfinyl)phenyl (1-methylethyl)phosphoramidate, ethyl 3-methyl-4-(methylsulfonyl)phenyl (1-methylethyl)phosphoramidate, ethyl 3-methyl-4-(methylthio)phenyl phosphoramidate, ethyl-4-(methylsulfinyl)phenyl phosphoramidate, and ethyl 3-methyl-4-(methyl-sulfonyl)phenyl phosphoramidate in or on the following raw agricultural meat commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, meat	0.05
Cattle (mbyp)	0.05
Goats, fat	0.05
Goats, meat	0.05
Goats (mbyp)	0.05
Hogs, fat	0.05
Hogs, meat	0.05
Hogs (mbyp)	0.05
Horses, fat	0.05
Horses, meat	0.05
Horses (mbyp)	0.05
Milk	0.01
Sheep, fat	0.05
Sheep, meat	0.05
Sheep (mbyp)	0.05

(c) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl) phosphoramidate and its cholinesterase-inhibiting metabolites ethyl 3-methyl-4-(methylsulfinyl)phenyl (1-methylethyl) phosphoramidate and ethyl 3-methyl-4-(methylsulfonyl)phenyl (1-methylethyl) phosphoramidate in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	0.02
Beets, garden, roots	1.5
Beets, garden, tops	1.0
Bok choy	0.5
Kiwifruit	0.1
Peppers, non-bell	0.6

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[48 FR 29864, June 29, 1983, as amended at 49 FR 7370, Feb. 29, 1984; 52 FR 33238, Sept. 2, 1987; 53 FR 39091, Oct. 5, 1988; 54 FR 13688, Apr. 5, 1989; 54 FR 46067, Nov. 1, 1989; 55 FR 6255, Feb. 22, 1990; 56 FR 28087, June 19, 1991]

§ 180.350 Nitrapyrin; tolerances for residues.

(a) Tolerances are established for the combined residues of the soil microbicide nitrapyrin [2-chloro-6-(trichloromethyl) pyridine] and its metabolite, 6-chloropicolinic acid in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05(N)
Cattle, mbyp	0.05(N)
Cattle, meat	0.05(N)
Corn, fodder	1.0
Corn, forage	1.0
Corn, grain	0.1(N)
Corn, fresh (including sweet K+CWHR)	0.1(N)
Cottonseed	1.0
Goats, fat	0.05(N)
Goats, mbyp	0.05(N)
Goats, meat	0.05(N)
Hogs, fat	0.05(N)
Hogs, mbyp	0.05(N)
Hogs, meat	0.05(N)
Horses, fat	0.05(N)
Horses, mbyp	0.05(N)
Horses, meat	0.05(N)
Poultry, fat	0.05(N)
Poultry, mbyp	0.05(N)
Poultry, meat	0.05(N)
Sheep, fat	0.05(N)
Sheep, mbyp	0.05(N)
Sheep, meat	0.05(N)
Sorghum, fodder	0.5
Sorghum, forage	0.1(N)
Sorghum, grain	0.1(N)
Wheat, forage	0.5
Wheat, grain	0.1(N)
Wheat, straw	0.5

(b) Tolerances with regional registration, as defined in § 180.1(n), are established for the combined residues of nitrapyrin and its metabolite in or on the following raw agricultural commodities:

Commodity	Parts per million
Strawberries	0.2

[46 FR 58315, Dec. 1, 1981, as amended at 47 FR 22957, May 26, 1982; 52 FR 33238, Sept. 2, 1987; 58 FR 32304, June 9, 1993]

§ 180.352 Terbufos; tolerances for residues.

(a) Tolerances are established for combined residues of the insecticide terbufos (S-[1,1-dimethylthio]methyl)

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O,O-diethyl phosphorodithioate and its cholinesterase-inhibiting metabolites in or on the following raw agricultural commodities.

Commodity	Parts per million
Bananas	0.025
Beets, sugar, roots	0.05 (N)
Beets, sugar, tops	0.1
Corn, field, fodder	0.5
Corn, field, forage	0.5
Corn, pop, fodder	0.5
Corn, pop, forage	0.5
Corn, grain	0.05 (N)
Corn, sweet (K+CWHR)	0.05 (N)
Corn, sweet, forage	0.5
Corn, sweet, fodder	0.5
Sorghum, fodder	0.5
Sorghum, forage	0.5
Sorghum, grain	0.05

(b) A time-limited tolerance to expire December 15, 1997 is established for combined residues of the insecticide/nematicide terbufos (S-[1,1-dimethylthio] methyl] O,O-diethyl phosphorodithioate) and its cholinesterase-inhibiting metabolites in or on the following raw agricultural commodity:

Commodity	Parts per million
Coffee beans, green ¹	0.05

¹There are no U.S. registrations as of August 2, 1995, for the use of terbufos on the growing crop, coffee.

[41 FR 16462, Apr. 19, 1976, as amended at 45 FR 8012, Feb. 6, 1980; 47 FR 17059, Apr. 21, 1982; 53 FR 15041, Apr. 27, 1988; 54 FR 48745, Nov. 27, 1989; 58 FR 29119, May 19, 1993; 58 FR 30220, May 26, 1993; 60 FR 63954, Dec. 13, 1995]

§ 180.353 Desmedipham; tolerances for residues.

A tolerance of 0.2 part per million is established for negligible residues of the herbicide desmedipham (ethyl-*m*-hydroxycarbanilate carbanilate) in or on the raw agricultural commodity sugar beets (roots and tops).

[40 FR 4658, Jan. 31, 1975]

§ 180.355 Bentazon; tolerances for residues.

(a) Tolerances are established for combined residues of the herbicide bentazon (3-isopropyl-1*H*-2,1,3-benzothiadiazin-4(3*H*)-one-2,2-dioxide) and its 6- and 8-hydroxy metabolites in

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or on raw agricultural commodities as follows:

Commodity	Parts per million
Beans (except soybeans), dried	0.05
Beans (exc. soybeans), dried, vine hays	3
Beans (exc. soybeans), forage	3
Beans, lima (succulent)	0.05
Beans, succulent	0.5
Bohemian chili peppers	0.5
Corn, fodder	3
Corn, forage	3
Corn, grain	0.05
Corn, fresh (inc. sweet K+CWHR)	0.05
Mint	1
Peanuts	0.05
Peanuts, hay	3
Peanuts, hulls	0.3
Peanuts, forage	3
Peas (dried)	0.05
Peas (dried), vine hays	3
Peas, forage	3
Peas, succulent	0.5
Rice	0.05
Rice, straw	3
Sorghum, fodder	0.05
Sorghum, forage	0.20
Sorghum, grain	0.05
Soybeans	0.05
Soybeans, forage	3
Soybeans, hay	0.3

(b) Tolerances are established for combined residues of bentazon (3-isopropyl-1-*H*-2,1,3-benzothiadiazin-4(3*H*)-one-2,2-dioxide) and its metabolite 2-amino-*N*-isopropyl benzamide in raw agricultural commodities as follows:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, mbyp	0.05
Cattle, meat	0.05
Eggs	0.05
Goats, fat	0.05
Goats, mbyp	0.05
Goats, meat	0.05
Hogs, fat	0.05
Hogs, mbyp	0.05
Hogs, meat	0.05
Milk	0.02
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Sheep, fat	0.05
Sheep, mbyp	0.05
Sheep, meat	0.05

§ 180.356 Norflurazon; tolerances for residues.

Tolerances are established for the combined residues of the herbicide norflurazon (4-chloro-5-(methylamino)-2-(alpha, alpha, alpha-trifluoro-*m*-tolyl)-3-(2*H*)-pyridazinone) and its desmethyl metabolite 4-chloro-5-(amino)-2-(alpha, alpha, alpha-trifluoro-*m*-tolyl)-3-(2*H*)-pyridazinone in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds, hulls	1.0
Almonds, meat	0.1
Apricots	0.1
Apples	0.1
Asparagus	0.05
Avocados	0.20
Blackberries	0.1
Blueberries	0.2
Cattle, fat	0.1
Cattle, meat	0.1
Cattle, mbyp	0.1
Cherries	0.1
Citrus fruit	0.2
Cottonseed	0.1
Cranberries	0.1
Filberts	0.1
Goats, fat	0.1
Goats, meat	0.1
Goats, mbyp	0.1
Grapes	0.1
Hogs, fat	0.1
Hogs, meat	0.1
Hogs, mbyp	0.1
Hops, green	1.0
Horses, fat	0.1
Horses, meat	0.1
Horses, mbyp	0.1
Milk	0.1
Nectarines	0.1
Pecans	0.1
Peaches	0.1
Peanuts	0.05
Peanuts, hay	5.50
Peanuts, hulls	1.5
Peanuts, vines	1.5
Pears	0.1
Plums (fresh prunes)	0.1
Poultry, fat	0.1
Poultry, meat	0.1
Poultry, mbyp	0.1
Raspberries	0.2
Sheep, fat	0.1
Sheep, meat	0.1
Sheep, mbyp	0.1
Soybeans	0.1
Soybean forage	1.0
Soybean hay	1.0
Walnuts	0.1

[42 FR 26979, May 26, 1977; as amended at 42 FR 39978, Aug. 8, 1977; 43 FR 14020, Apr. 4, 1978; 43 FR 35698, Aug. 11, 1978; 43 FR 44844, Sept. 29, 1978; 44 FR 37919, June 29, 1979; 46 FR 32441, June 23, 1981; 49 FR 11836, Mar. 28, 1984]

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[47 FR 14909, Apr. 7, 1982, as amended at 47 FR 14910, Apr. 7, 1982; 47 FR 17058, Apr. 21, 1982; 47 FR 34537, Aug. 10, 1982; 47 FR 53006, Nov. 24, 1982; 48 FR 37214, Aug. 17, 1983; 49 FR 30702, Aug. 1, 1984; 49 FR 33878, Aug. 27, 1984; 51 FR 15323, Apr. 23, 1986; 56 FR 63467, Dec. 4, 1991; 58 FR 36361, July 7, 1993]

§ 180.357 Methazole, tolerances for residues.

A tolerance is established for combined negligible residues of the herbicide methazole (2-(3,4-dichlorophenyl)-4-methyl-1,2,4-oxadiazolidine-3,5-dione) and its metabolites 1-(3,4-dichlorophenyl)-3-methylurea (DCPMU) and 3,4-dichlorophenylurea (DCPU) in or on cottonseed at 0.1 part per million.

[40 FR 18172, Apr. 25, 1975]

§ 180.358 Butralin; tolerances for residues.

Tolerances are established for residues for the herbicide butralin [4-(1,1-dimethylethyl)-N-(1-methylpropyl)-2,6-dinitrobenzenamine] in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, lima	0.1
Cottonseed	0.1
Peas, southern	0.1
Soybean forage	0.1
Soybeans	0.1
Watermelons	0.1

[41 FR 13583, Mar. 31, 1976]

§ 180.359 Methoprene; tolerances for residues.

Tolerances are established for residues of the insect growth regulator methoprene (isopropyl (E,E)-11-methoxy-3,7,11-trimethyl-2,4-dodecadienoate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley	5.0
Buckweat	5.0
Cattle, fat	1.0
Cattle, meat	0.1
Cattle, meat byproducts	0.1
Corn (except popcorn and sweetcorn)	5.0
Eggs	0.1
Goats, fat	1.0
Goats, meat	0.1
Goats, meat byproducts	0.1
Hogs, fat	1.0
Hogs, meat	0.1
Hogs, meat byproducts	0.1
Horses, fat	1.0
Horses, meat	0.1

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Commodity	Parts per million
Horses, meat byproducts	0.1
Milk	0.1
Millet	5.0
Mushrooms	1.0
Oats	5.0
Peanuts	2.0
Peanut hulls	40.0
Poultry, fat	1.0
Poultry, meat	0.1
Poultry, meat byproducts	0.1
Rice	5.0
Rye	5.0
Sheep, fat	1.0
Sheep, meat	0.1
Sheep, meat byproducts	0.1
Sorghum (milo)	5.0
Wheat	5.0

[59 FR 24060, May 10, 1994]

§ 180.360 Asulam; tolerances for residues.

A tolerance is established for negligible residues of the herbicide asulam (methyl sulfanilylcarbamate) in or on the raw agricultural commodity sugarcane at 0.1 part per million.

[40 FR 25591, June 17, 1975]

§ 180.361 Pendimethalin; tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide pendimethalin [N-(1-ethylpropyl)-3,4-dimethyl-2,6-dinitrobenzenamine] and its metabolite 4-[(1-ethylpropyl)amino]-2-methyl-3,5-dinitrobenzyl alcohol in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, lima (dry, snap)	0.1
Beans, forage	0.1
Beans, hay	0.1
Corn, fodder	0.1
Corn, forage	0.1
Corn, fresh (including sweet, K + CWHR)	0.1
Corn, grain	0.1
Cottonseed	0.1
Onions, dry bulb	0.1
Peanuts	0.1
Peanut, forage	0.1
Peanut, hay	0.1
Peas (except field peas)	0.1
Potatoes	0.1
Rice, grain	0.05
Sorghum, fodder	0.1
Sorghum, forage	0.1
Sorghum, grain	0.1
Soybeans	0.1
Soybeans, forage	0.1
Soybeans, hay	0.1
Sugarcane	0.1

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Commodity	Parts per million
Sunflower, seeds	0.1

(b) Tolerances are established for the combined residues of the herbicide pendimethalin [*N*-(1-ethylpropyl)-3,4-dimethyl-2,6-dinitrobenzenamine] and its metabolite 4-[(1-ethylpropyl) amino]-2-methyl-3,5-dinitrobenzyl alcohol and 3-[(1-ethylpropyl) amino]-6-methyl-2,4-dinitrobenzyl alcohol in or on the following raw agricultural commodities:

Commodity	Parts per million
Peanut, hulls	0.25

(c) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of the herbicide pendimethalin [*N*-(1-ethylpropyl)-3,4-dimethyl-2,6-dinitrobenzenamine] and its metabolite 4-[1-ethylpropyl)amino]-2-methyl-3,5-dinitrobenzyl alcohol in or on the following raw agricultural commodities as follows:

Commodity	Parts per million
Garlic	0.1

[49 FR 15293, Apr. 18, 1984, as amended at 53 FR 3024, Feb. 3, 1988; 54 FR 13688, Apr. 5, 1989; 55 FR 26440, June 28, 1990; 58 FR 11379, Feb. 25, 1993; 58 FR 33772, June 21, 1993; 60 FR 48660, Sept. 20, 1995]

§ 180.362 Hexakis (2-methyl-2-phenylpropyl)distannoxane; tolerances for residues.

(a) Tolerances are established for the combined residues of the insecticide hexakis[2-methyl-2-phenylpropyl] distannoxane and its organotin metabolites calculated as hexakis[2-methyl-2-phenylpropyl] distannoxane in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds	0.5
Almonds, hulls	80
Apples	15.0
Cattle, fat	0.5
Cattle, mbyp	0.5
Cattle, meat	0.5
Cherries, sour	6.0
Cherries, sweet	6.0
Citrus fruits	20.0
Cucumbers	4.0

Commodity	Parts per million
Eggplant	6.0
Eggs	0.1
Goats, fat	0.5
Goats, mbyp	0.5
Goats, meat	0.5
Grapes	5
Hogs, fat	0.5
Hogs, mbyp	0.5
Hogs, meat	0.5
Horses, fat	0.5
Horses, mbyp	0.5
Horses, meat	0.5
Milk fat	0.1
Papayas	2
Pecans	0.5
Peaches	10.0
Pears	15.0
Plums	4.0
Poultry, fat	0.1
Poultry, mbyp	0.1
Poultry, meat	0.1
Prunes	4.0
Sheep, fat	0.5
Sheep, mbyp	0.5
Sheep, meat	0.5
Strawberries	10.0
Walnuts	0.5

(b) Tolerances with regional registration are established for residues of the insecticide hexakis [2-methyl-2-phenylpropyl] distannoxane and its organotin metabolites calculated as hexakis [2-methyl-2-phenylpropyl] distannoxane in or on the raw agricultural commodities:

Commodity	Parts per million
Marigolds, fresh	4.0
Raspberries	10.0

[45 FR 62986, Sept. 23, 1980, as amended at 46 FR 48931, Oct. 5, 1981; 47 FR 21539, May 19, 1982; 48 FR 12087, Mar. 23, 1983; 48 FR 37212, Aug. 17, 1983; 49 FR 30701, Aug. 1, 1984; 51 FR 4499, Feb. 5, 1986; 51 FR 33900, Sept. 24, 1986; 58 FR 48321, Sept. 15, 1993]

§ 180.363 Fluchloralin: tolerances for residues.

Tolerances are established for residues of the herbicide fluchloralin [*N*-(2-chloroethyl)-1,α, α, α-trifluoro-2,6-dinitro-*N*-propyl-*p*-toluidine] in or on the following raw agricultural commodities:

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Commodity	Parts per million
Cottonseed	0.05
Peanuts	0.05
Peanut, forage	0.05
Peanut, hay	0.05
Peanut, hulls	0.1
Seed and pod vegetables (dry/succulent)	0.05
Seed and pod vegetables, forage	0.1
Seed and pod vegetables, hay	0.1
Soybeans	0.05
Sunflower seeds	0.05

[47 FR 30487, July 14, 1982]

§ 180.364 Glyphosate; tolerances for residues.

(a) Tolerances are established for the combined residues of glyphosate (N-(phosphonomethyl)glycine) and its metabolite aminomethylphosphonic acid resulting from the application of the isopropylamine salt of glyphosate and/or the monoammonium salt of glyphosate in or on the following agricultural commodities:

Commodity	Parts per million
Acerola	0.2
Alfalfa	200.0
Alfalfa, fresh and hay	0.2
Almonds, hulls	1
Artichokes, Jerusalem	0.2
Asparagus	0.5
Atemoya	0.2
Avocados	0.2
Bahiagrass	200.0
Bananas	0.2
Beets	0.2
Beets, sugar	0.2
Bermudagrass	200.0
Bluegrass	200.0
Breadfruit	0.2
Bromegrass	200.0
Canistel	0.2
Carambola	0.2
Carrots	0.2
Celeriac	0.2
Cherimoya	0.2
Chickory	0.2
Clover	200.0
Cocoa beans	0.2
Coconut	0.1
Coffee beans	1
Cotton, forage	15
Cotton, hay	15
Cottonseed	15
Cranberries	0.2
Dates	0.2
Fescue	200.0
Figs	0.2
Forage grasses	0.2
Forage legumes (except soybeans and peanuts)	0.4
Fruits, small, and berries	0.2
Genip	0.2
Grain crops (except wheat)	0.1 (N)
Grapes	0.2

Commodity	Parts per million
Grasses, forage	0.2 (N)
Guavas	0.2
Horseradish	0.2
Jaboticaba	0.2
Jackfruit	0.2
Kiwifruit	0.2
Leafy vegetables	0.2 (N)
Longan	0.2
Lychee	0.2
Mame sapote	0.2
Mangoes	0.2
Nuts	0.2
Olives	0.2
Orchardgrass	200.0
Papayas	0.2
Parsnips	0.2
Passion fruit	0.2
Peanut, forage	0.5
Persimmons	0.2
Pineapple	0.1
Pistachio nuts	0.2
Pome fruits	0.2
Pomegranates	0.2
Potatoes	0.2
Radishes	0.2
Rutabagas	0.2
Ryegrass	200.0
Salsify	0.2
Sapodilla	0.2
Sapote, black	0.2
Sapote, white	0.2
Seed and pod vegetables	0.2 (N)
Seed and pod vegetables, forage	0.2 (N)
Seed and pod vegetable, hay	0.2 (N)
Soursop	0.2
Stone fruit	0.2
Sugar apple	0.2
Sweet potatoes	0.2
Tamarind	0.2
Timothy	200.0
Turnips	0.2
Vegetables, bulb	0.2
Vegetables, cucurbit	0.5
Vegetables, fruiting (except cucurbits) group	0.1
Vegetables, leafy, Brassica (cole)	0.2
Wheatgrass	200.0
Yams	0.2

(b) Tolerances are established for combined residues of glyphosate (N-(phosphonomethyl)glycine) and its metabolite aminomethylphosphonic acid resulting from application of the glyphosate isopropylamine salt and/or glyphosate monoammonium salt for herbicidal and plant growth regulator purposes and/or the sodium sesqui salt for growth regulator purposes in or on the following agricultural commodities:

Commodity	Parts per million
Cattle, kidney	4.0
Cattle, liver	0.5
Fish	0.25
Goats, kidney	4.0

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Commodity	Parts per million
Goats, liver	0.5
Hogs, kidney	4.0
Hogs, liver	0.5
Horses, kidney	4.0
Horses, liver	0.5
Peanuts	0.1
Peanut, hay	0.5
Peanut, hulls	0.5
Poultry, kidney	0.5
Poultry, liver	0.5
Sheep, kidney	4.0
Sheep, liver	0.5
Shellfish	3.0
Sugarcane	2.0

(c) Tolerances are established for the combined residues of glyphosate (*N*-phosphonomethylglycine) and its metabolite aminomethylphosphonic acid, resulting from the use of irrigation water containing residues of 0.5 ppm following applications on or around aquatic sites, at 0.1 ppm on the crop groupings citrus, cucurbits, forage grasses, forage legumes, fruiting vegetables, grain crops, leafy vegetables, nuts, pome fruits, root crop vegetables, seed and pod vegetables, stone fruit, and the individual commodities cottonseed, hops, and avocados. Where tolerances are established at higher levels from other uses of glyphosate in or on the subject crops, the higher tolerance should also apply to residues from the aquatic uses cited in this paragraph.

(d) Tolerances are established for residues of glyphosate (*N*-phosphonomethylglycine) resulting from the application of the isopropylamine salt of glyphosate and/or the monoammonium salt of glyphosate in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa, forage	75.0
Alfalfa, hay	200.0
Almond hulls	25
Citrus, fruits	0.5
Cotton gin byproducts	100.0
Peppermint	200
Soybeans	20.0
Soybeans, aspirated grain fractions	50.0
Soybeans, forage	100.0
Soybeans, grain	20.0
Soybeans, hay	200.0
Spearmint	200
Sunflower seed	0.1
Tree nut crop group	1.0
Wheat, grain	5.0
Wheat, straw	85.0

[45 FR 64911, Oct. 1, 1980]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.364, see List of CFR Sections Affected in the Finding Aids section of this volume.

§ 180.366 Oththilnone; tolerances for residues.

Tolerances are established for residues of the fungicide oththilnone (2-octyl-3(2H)-isothiazolone; CAS Reg. No. 26530-20-1) in or on the following raw agricultural commodities derived from plants grown from treated seed:

Commodity	Parts per million
Cotton, forage	0.01
Cottonseed	0.01

[41 FR 12012, Mar. 23, 1976, as amended at 52 FR 32306, Aug. 27, 1987; 53 FR 23396, June 22, 1988]

§ 180.367 n-Octyl bicycloheptenedicarboximide; tolerances for residues.

Tolerances are established for residues of the insecticide n-octyl bicycloheptene-dicarboximide, resulting from dermal application, in raw agricultural commodities as follows:

Commodity	Parts per million
Cattle, fat	0.3
Goats, fat	0.3
Hogs, fat	0.3
Horses, fat	0.3
Milk, fat	0.3
Sheep, fat	0.3

[41 FR 31207, July 27, 1976; 41 FR 32426, Aug. 3, 1976]

§ 180.368 Metolachlor; tolerances for residues.

(a) Tolerances are established for the combined residues (free and bound) of the herbicide metolachlor [2-chloro-N-(2-ethyl-6-methylphenyl)-N-(2-methoxy-1-methylethyl)acetamide] and its metabolites, determined as the derivatives, 2-[(2-ethyl-6-methylphenyl)amino]-1-propanol and 4-(2-ethyl-6-methylphenyl)-2-hydroxy-5-methyl-3-morpholinone, each expressed as the parent compound, in or on the raw agricultural commodities.

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of the application of metolachlor to growing crops listed in paragraph (a) of this section to read as follows:

Commodity	Parts per million
Almond hulls	0.3
Cabbage	1.0
Cattle, fat	0.02
Cattle, kidney	0.2
Cattle, liver	0.05
Cattle, meat	0.02
Cattle, mbyp (except kidney and liver)	0.02
Celery	0.1
Corn, fresh (inc. sweet K+CWHR)	0.1
Corn, forage and fodder	8.0
Corn, grain	0.1
Cottonseed	0.1
Eggs	0.02
Goats, fat	0.02
Goats, kidney	0.2
Goats, liver	0.05
Goats, meat	0.02
Goats, mbyp (except kidney and liver)	0.02
Hogs, fat	0.02
Hogs, kidney	0.2
Hogs, liver	0.05
Hogs, meat	0.02
Hogs, mbyp (except kidney and liver)	0.02
Horses, fat	0.02
Horses, kidney	0.2
Horses, liver	0.05
Horses, meat	0.02
Horses, mbyp (except kidney and liver)	0.02
Legume vegetables group foliage (except soybean forage and soybean hay)	15.0
Milk	0.02
Peanuts	0.5
Peanut, forage and hay	30.0
Peanut, hulls	6.0
Peppers, bell	0.1
Potatoes	0.2
Poultry, fat	0.02
Poultry, liver	0.05
Poultry, meat	0.02
Poultry, mbyp (except liver)	0.02
Safflower seed	0.1
Seed and pod vegetables (except soybeans) ...	0.3
Sheep, fat	0.02
Sheep, kidney	0.2
Sheep, liver	0.05
Sheep, meat	0.02
Sheep, mbyp (except kidney and liver)	0.02
Sorghum, forage and fodder	2.0
Sorghum, grain	0.3
Soybeans	0.2
Soybeans, forage and hay	8.0
Stone fruits group	0.1
Tree nuts group	0.1

(b) Tolerances are established for the combined residues (free and bound) of the herbicide metolachlor [2-chloro-N-(2-ethyl-6-methylphenyl)-N-(2-methoxy-1-methylethyl)acetamide] and its metabolites, determined as the derivatives, 2-[(2-ethyl-6-methylphenyl)amino]-1-propanol and 4-(2-ethyl-6-methylphenyl)-2-hydroxy-5-methyl-3-morpholinone, each expressed as the parent compound, in or on the following raw agricultural commodities when present therein as a result

Commodity	Parts per million
Barley, fodder	0.5
Barley, forage	0.5
Barley, grain	0.1
Buckwheat, fodder	0.5
Buckwheat, forage	0.5
Buckwheat, grain	0.1
Millet, fodder	0.5
Millet, forage	0.5
Millet, grain	0.1
Milo, fodder	0.5
Milo, forage	0.5
Milo, grain	0.1
Nongrass animal feeds (forage, fodder, straw, and hay) group	3.0
Oats, fodder	0.5
Oats, forage	0.5
Oats, grain	0.1
Rice, fodder	0.5
Rice, forage	0.5
Rice, grain	0.1
Rye, fodder	0.5
Rye, forage	0.5
Rye, grain	0.1
Wheat, fodder	0.5
Wheat, forage	0.5
Wheat, grain	0.1

(c) Tolerances with regional registration as defined in §180.1(n) are established for the the combined residues (free and bound) of the herbicide metolachlor [2-chloro-N-(2-ethyl-6-methylphenyl)-N-(2-methoxy-1-methylethyl)acetamide] and its metabolites, determined as the derivatives, 2-[(2-ethyl-6-methylphenyl)amino]-1-propanol and 4-(2-ethyl-6-methylphenyl)-2-hydroxy-5-methyl-3-morpholinone, each expressed as the parent compound, in or on the following raw agricultural commodities:

Commodity	Parts per million
Onion, dry bulb	1.0
Peppers, chilli	0.5
Peppers, Cubanelle	0.1
Peppers, tabasco	.5

[44 FR 10385, Feb. 20, 1979]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.368, see the List of Sections Affected in the Finding Aids section of this volume.

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§ 180.369 Difenzoquat; tolerances for residues.

Tolerances are established for residues of difenzoquat (1,2-dimethyl-3,5-diphenyl-1*H*-pyrazolium ion), derived from application of the methyl sulfate salt and calculated as the cation, in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	0.2
Barley, straw	20
Cattle, fat	0.05
Cattle, mbyp	0.05
Cattle, meat	0.05
Goats, fat	0.05
Goats, mbyp	0.05
Goats, meat	0.05
Hogs, fat	0.05
Hogs, mbyp	0.05
Hogs, meat	0.05
Horses, fat	0.05
Horses, mbyp	0.05
Horses, meat	0.05
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Sheep, fat	0.05
Sheep, mbyp	0.05
Sheep, meat	0.05
Wheat, grain	0.05
Wheat, straw	20

[41 FR 43409, Oct. 1, 1976]

§ 180.370 5-Ethoxy-3-(trichloromethyl)-1,2,4-thiadiazole; tolerances for residues.

Tolerances are established for residues of the fungicide 5-ethoxy-3-(trichloromethyl)-1,2,4-thiadiazole and its monoacid metabolite 3-carboxy-5-ethoxy-1,2,4-thiadiazole in or on the following raw agricultural commodities:

Commodity	Parts per million
Avocados	0.15
Cattle, fat	.10
Cattle, mbyp	.10
Cattle, meat	.10
Corn, field, grain	.05
Corn, fodder	.10
Corn, forage	.10
Cottonseed	.20
Eggs	.05
Goats, fat	.10
Goats, mbyp	.10
Goats, meat	.10
Hogs, fat	.10
Hogs, mbyp	.10
Hogs, meat	.10
Horses, fat	.10

Commodity	Parts per million
Horses, mbyp	.10
Horses, meat	.10
Milk	.05
Poultry, fat	.10
Poultry, mbyp	.10
Poultry, meat	.10
Sheep, fat	.10
Sheep, mbyp	.10
Sheep, meat	.10
Strawberries	.20
Tomatoes	.15
Wheat, forage	.10
Wheat, grain	.05
Wheat, straw	.10

[47 FR 49845, Nov. 3, 1982, as amended at 48 FR 12088, Mar. 23, 1983]

§ 180.371 Thiophanate-methyl; tolerances for residues.

Tolerances are established for residues of the fungicide thiophanate-methyl (dimethyl [(1,2-phenylene)-bis(iminocarbonothioyl)] bis[carbamatel]), its oxygen analogue dimethyl-4,4'-*o*-phenylene bis(allophonate), and its benzimidazole-containing metabolites (calculated as thiophanate-methyl) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds pre-H	0.2 (N)
Almonds (hulls) pre-H	1.0
Apples (pre- and post-H)	7.0
Apricots (pre- and post-H)	15.0
Bananas (pre-H)	2.0
Bananas, pulp (pre-H)	0.2
Beans (snap and dry) pre-H	2.0
Bean (forage and hay) pre-H	50.0
Cattle, fat	0.1
Cattle, kidney	0.2 (N)
Cattle, liver	2.5
Cattle, meat byproducts (exc. kidney and liver)	0.1 (N)
Cattle, meat	0.1 (N)
Celery (pre-H)	3.0
Cherries (pre- and post-H)	15.0
Cucumbers	1.0
Eggs	0.1 (N)
Goats, fat	0.1 (N)
Goats, kidney	0.2
Goats, liver	2.5
Goat, meat byproducts (exc. kidney and liver)	0.1 (N)
Goat, meat	0.1 (N)
Hogs, fat	0.1 (N)
Hogs, liver	1.0
Hogs, meat byproducts (exc. liver)	0.1 (N)
Hogs, meat	0.1 (N)
Horses, fat	0.1 (N)
Horses, liver	1.0
Horses, meat byproducts (exc. liver)	0.1 (N)
Horses, meat	0.1 (N)

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Commodity	Parts per million
Melons	1.0
Milk	1.0
Nectarines (pre- and post-H)	15.0
Onion, dry	3.00
Onion, green	3.00
Pecans (pre-H)	0.2
Peaches (pre- and post-H)	15.0
Peanuts pre-H	0.2 (N)
Peanuts (hulls) pre-H	2.0
Peanuts (forage and hay) pre-H	15.0
Plums (pre- and post-H)	15.0
Potatoes (seed treatment)	0.05
Poultry, fat	0.1 (N)
Poultry, liver	0.2 (N)
Poultry, meat byproducts (exc. liver)	0.1 (N)
Poultry, meat	0.1 (N)
Prunes (pre- and post-H)	15.0
Pumpkins	1.0
Sheep, fat	0.1 (N)
Sheep, kidney	0.2
Sheep, liver	2.5
Sheep, meat byproducts (exc. kidney and liver)	0.1 (N)
Sheep, meat	0.1 (N)
Soybeans (pre-H)	0.2
Squash	1.0
Strawberries (pre-H)	5.0
Sugar beets (roots pre-H)	0.2
Sugar beets (tops pre-H)	15.0
Sugarcane (seed piece treatment pre-H)	0.1 (N)
Wheat, grain	0.05
Wheat, hay	0.10
Wheat, straw	0.10

[46 FR 12975, Feb. 19, 1981, as amended at 47 FR 50874, Nov. 10, 1982; 49 FR 49627, Dec. 21, 1984]

§ 180.372 2,6-dimethyl-4-tridecylmorpholine; tolerances for residues.

A tolerance is established for residues of the fungicide 2,6-dimethyl-4-tridecylmorpholine in or on the following raw agricultural commodity:

Commodity	Parts per million
Bananas	0.1

[43 FR 50176, Oct. 27, 1978]

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§ 180.374 O-Ethyl O-[4-(methylthio)phenyl] S-propyl phosphorodithioate; tolerances for residues.

Tolerances are established for combined residues of the insecticide O-ethyl O-[4-(methylthio)phenyl] S-propyl phosphorodithioate and its cholinesterase-inhibiting metabolites in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.1

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Commodity	Parts per million
Cattle, meat	0.1
Cattle, mbyp	0.1
Cottonseed	5.0
Eggs	0.001
Goats, fat	0.1
Goats, meat	0.1
Goats, mbyp	0.1
Hogs, fat	0.1
Hogs, meat	0.1
Hogs, mbyp	0.1
Horses, fat	0.1
Horses, meat	0.1
Horses, mbyp	0.1
Milk	0.01
Poultry, fat	0.01
Poultry, meat	0.01
Poultry, mbyp	0.01
Sheep, fat	0.1
Sheep, meat	0.1
Sheep, mbyp	0.1
Soybeans,	0.5
Soybeans, forage	20.0
Soybeans, hay	15.0

[43 FR 32133, July 25, 1978, as amended at 49 FR 49291, Dec. 19, 1984]

§ 180.375 Magnesium phosphide; tolerances for residues.

(a) Tolerances are established for residues of the fumigant phosphine in or on the following raw agricultural commodities from postharvest treatment with magnesium phosphide:

Commodity	Parts per million
Almonds	0.1
Avocados	0.01
Bananas	0.01
Barley	0.1
Brazil nuts	0.1
Cabbage, Chinese	0.01
Cashews	0.1
Citrus citron	0.01
Cocoa beans	0.1
Coffee beans	0.1
Corn	0.1
Corn, pop	0.1
Cottonseed	0.1
Dates	0.1
Eggplants	0.01
Endive (escarole)	0.01
Filberts	0.1
Grapefruit	0.01
Kumquats	0.01
Lemons	0.01
Lettuce	0.01
Limes	0.01
Mangoes	0.01
Millet	0.1
Mushrooms	0.01
Oats	0.1
Oranges	0.01
Papayas	0.01
Peanuts	0.1
Pecans	0.1
Peppers	0.01

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Commodity	Parts per million
Persimmons	0.01
Pimentos	0.01
Pistachio nuts	0.1
Plantains	0.01
Rice	0.1
Rye	0.1
Salsify tops	0.01
Sorghum	0.1
Soybeans	0.1
Sunflower seeds	0.1
Sweet potatoes	0.01
Tangelos	0.01
Tangerines	0.01
Tomatoes	0.01
Walnuts	0.1
Wheat	0.1

(b) Tolerances are established for residues of the fumigant phosphine in or on all raw agricultural commodities at 0.01 ppm resulting from preharvest treatment of pest burrows in agricultural and noncropland areas with magnesium phosphide.

[43 FR 56042, Nov. 30, 1978, as amended at 48 FR 2324, Jan. 19, 1983; 48 FR 44205, Sept. 28, 1983; 52 FR 5769, Feb. 26, 1987]

§ 180.377 Diflubenzuron; tolerances for residues.

(a) Tolerances are established for residues of the insecticide diflubenzuron (*N*-[(4-chlorophenyl)amino]carbonyl]-2,6-difluorobenzamide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Artichokes	6.0
Cattle, fat	0.05
Cattle, mbyp	0.05
Cattle, meat	0.05
Cottonseed	0.2
Eggs	0.05
Goats, fat	0.05
Goats, mbyp	0.05
Goats, meat	0.05
Grapefruit	0.5
Hogs, fat	0.05
Hogs, mbyp	0.05
Hogs, meat	0.05
Horses, fat	0.05
Horses, mbyp	0.05
Horses, meat	0.05
Milk	0.05
Mushrooms	0.2
Orange	0.5
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Sheep, fat	0.05
Sheep, mbyp	0.05
Sheep, meat	0.05
Soybeans	0.05
Tangerine	0.5
Walnuts	0.1

(b) Tolerances with regional registration, as defined in § 180.1(n), are established for residues of diflubenzuron in or on the following raw agricultural commodities:

Commodity	Parts per million
Grass, pasture	1.0
Grass, range	3.0

[44 FR 25453, May 1, 1979, as amended at 47 FR 32536, July 28, 1982; 48 FR 37210, Aug. 17, 1983; 49 FR 22649, May 31, 1984; 52 FR 33238, Sept. 2, 1987; 53 FR 48261, Nov. 30, 1988; 60 FR 24788, May 10, 1995; 61 FR 30171, June 14, 1996]

§ 180.378 Permethrin; tolerances for residues.

(a) Tolerances, to expire on November 15, 1997, are established for residues of the insecticide permethrin [(3-phenoxyphenyl)methyl 3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropane carboxylate] in or on the following raw agricultural commodities:

Commodity	Parts per million
Cottonseed	0.5

(b) Tolerances are established for residues of the insecticide permethrin [(3-phenoxyphenyl)methyl 3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropane carboxylate] and the sum of its metabolites 3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropane carboxylic acid (DCVA) and (3-phenoxyphenyl)methanol (3-PBA) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa, fresh	25.0
Alfalfa, hay	55.0
Almonds	0.05
Almonds hulls	20.0
Apples	0.05
Artichokes	10.0
Asparagus	1.0
Avocados	1.0
Broccoli	1.0

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Commodity	Parts per million
Brussels sprouts	1.0
Cabbage	6.0
Celery	5.0
Cauliflower	1.0
Cherries	3.0
Corn, fodder	60.0
Corn, forage	60.0
Corn grain (field and pop)	0.05
Corn, sweet (K + CWHR)	0.1
Eggplant	1.0
Filberts	0.05
Garlic	0.1
Grasses, range	15.0
Horseradish	1.0
Kiwifruit	2.0
Leafy vegetables (except <i>Brassica</i>)	20.0
Lettuce (head)	20.0
Mushrooms	6.0
Onions, dry bulb	0.1
Peaches	5.0
Pears	3.0
Peppers, bell	1.0
Pistachios	0.1
Potatoes	0.05
Soybeans	0.05
Spinach	20.0
Tomatoes	2
Vegetables, cucurbit	3.0
Walnuts	0.05
Watercress	5.0

(c) Tolerances are established for residues of permethrin and the sum total of its metabolites 3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropane carboxylic acid (DCVA) and (3-phenoxyphenyl)methanol (3-PBA) and 3-phenoxybenzoic acid in or on the following animal commodities.

Commodity	Parts per million
Cattle, fat	3.0
Cattle, meat	0.25
Cattle, mbyp	2.0
Eggs	1.0
Goats, fat	3.0
Goats, meat	0.25
Goats, mbyp	2.0
Hogs, fat	3.0
Hogs, meat	0.25
Hogs, mbyp	3.0
Horses, fat	3.0
Horses, meat	0.25
Horses, mbyp	2.0
Milk fat (reflecting 0.25 ppm in whole milk)	6.25
Poultry, fat	0.15
Poultry, meat	0.05
Poultry, mbyp	0.25
Sheep, fat	3.0
Sheep, meat	0.25
Sheep, mbyp	2.0

(d) Tolerances with regional registration, as defined in §180.1(n), are estab-

lished for residues of permethrin [(3-phenoxyphenyl)methyl-3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropane carboxylate] and the sum of its metabolites 3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropane carboxylic acid (DCVA) and (3-phenoxyphenyl)methanol (3-PBA) in or on the following raw agricultural commodities:

Commodity	Parts per million
Collards	20
Papayas	1.0
Turnip greens	20
Turnip roots	1

[47 FR 45010, Oct. 13, 1982]

EDITORIAL NOTE: For FR citations affecting §180.378, see the List of CFR Sections Affected in the Finding Aids section of this volume.

§ 180.379 Cyano(3-phenoxyphenyl)methyl-4-chloro- α -(1-methylethyl) benzeneacetate; tolerances for residues.

(a) Tolerances are established for residues of the insecticide Cyano(3-phenoxyphenyl)methyl-4-chloro- α -(1-methylethyl)benzeneacetate in or on the following raw agricultural commodities:

Commodity	Parts per million
Almond hulls	15.0
Almonds	0.2
Apples	2.0
Artichokes	0.2
Beans, dried	0.25
Beans, snap	2.0
Broccoli	2.0
Blueberries	3.0
Cabbage	10.0
Caneberries	3.0
Cantaloupes	1.0
Carrots	0.5
Cattle, fat	1.5
Cattle, mbyp	1.5
Cattle, meat	1.5
Cauliflower	0.5
Collards	10.0
Corn, grain	0.02
Corn, fodder	50.0
Corn, forage	50.0
Corn, sweet, kernels & cobs	0.1
Cottonseed	10.2
Cucumbers	0.5
Currants	3.0
Eggplant	1.0
Elderberries	3.0
English walnuts	0.2
Filberts	0.2

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Commodity	Parts per million
Goats, fat	1.5
Goats, mby	1.5
Goats, meat	1.5
Gooseberries	3.0
Hogs, fat	1.5
Hogs, mby	1.5
Hogs, meat	1.5
Honeydew melons	1.0
Horses, fat	1.5
Horses, mby	1.5
Horses, meat	1.5
Huckleberries	3.0
Milk	0.3
Milk, fat	7.0
Muskmelons	1.0
Peanuts	0.02
Peanut hulls	0.10
Pears	2.0
Peas	1.0
Peas, dried	0.25
Pecans	0.2
Peppers	1.0
Potatoes	0.02
Pumpkins	1.0
Radish, roots	0.3
Radish, tops	8.0
Sheep, fat	1.5
Sheep, mby	1.5
Sheep, meat	1.5
Soybeans	0.05
Stone fruits	10.0
Sugarcane	2.0
Summer squash	0.5
Sunflower seed	1.0
Tomatoes	1.0
Turnip roots	0.5
Turnip tops	20.0
Watermelons	1.0
Winter squash	1.0

¹The tolerance for cottonseed expires on November 15, 1997.

(b) Tolerances with regional registration are established for residues of the insecticide cyano(3-phenoxyphenyl)methyl-4-chloro-alpha-(1-methylethyl)benzeneacetate in or on the following raw agricultural commodities:

Commodity	Parts per million
Okra	0.1

[44 FR 6099, Jan. 31, 1979. Redesignated and amended at 44 FR 37919, June 29, 1979; further amended at 55 FR 26440, June 28, 1990]

EDITORIAL NOTE: For FR citations affecting § 180.379, see the List of CFR Sections Affected in the Finding Aids section of this volume.

§ 180.380 3-(3,5-Dichlorophenyl)-5-ethenyl-5-methyl-2,4 oxazolidinedione; tolerances for residues.

Tolerances are established for the combined residues of the fungicide 3-(3,5-dichlorophenyl)-5-ethenyl-5-meth-

yl-2,4 oxazolidinedione and its metabolites containing the 3,5 dichloroaniline moiety in or on the following raw agricultural commodities:

Commodity	Parts per million
Belgian endive, tops	5.0
Cucumbers	1.0
Grapes	6.0
Kiwifruit	10.0
Lettuce, head	10.0
Lettuce (leaf)	10.0
Onions (dry bulb)	1.0
Peppers (bell)	3.0
Raspberries	10.0
Stonefruits	25.0
Strawberries	10.0
Tomatoes	3.0

There are no U.S. registrations for cucumbers or tomatoes as of April 13, 1990.

[55 FR 24082, June 14, 1990]

§ 180.381 Oxyfluorfen; tolerances for residues.

(a) Tolerances are established for residues of the herbicide oxyfluorfen [2-chloro-1-(3-ethoxy-4-nitrophenoxy)-4-(trifluoromethyl)benzene] in or on the following raw agricultural commodities:

Commodity	Parts per million
Almond hulls	0.1
Artichokes	0.05
Avocados	0.05
Bananas (including plantain)	0.05
Broccoli	0.05
Cabbage	0.05
Cattle, fat	0.05
Cattle, mby	0.05
Cattle, meat	0.05
Cauliflower	0.05
Cocoa beans	0.05
Coffee	0.05
Corn, grain	0.05
Cottonseed	0.05
Dates	0.05
Eggs	0.05
Feijoa	0.05
Figs	0.05
Goat, fat	0.05
Goat, mby	0.05
Goat, meat	0.05
Grapes	0.05
Hogs, fat	0.05
Hogs, mby	0.05
Hogs, meat	0.05
Horseradish	0.05
Horses, fat	0.05
Horses, mby	0.05
Horses, meat	0.05
Kiwifruit	0.05
Olives	0.05
Onions (dry bulb)	0.05

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Commodity	Parts per million
Milk	0.05
Mint hay (peppermint and spearmint)	0.1
Persimmons	0.05
Pistachios	0.05
Pome fruits group	0.05
Pomegranates	0.05
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Sheep, fat	0.05
Sheep, mbyp	0.05
Sheep, meat	0.05
Soybeans	0.05
Stone fruits group	0.05
Tree nuts group (except almond hulls)	0.05

(b) Tolerances with regional registration are established for residues of the herbicide oxyfluorfen [2-chloro-1-(3-ethoxy-4-nitrophenoxy)-4-(trifluoromethyl)benzene] in or on the following raw agricultural commodities:

Commodity	Parts per million
Blackberry	0.05
Garbanzo beans	0.05
Guava	0.05
Papaya	0.05
Raspberry	0.05
Taro (corms and leaves)	0.05

[45 FR 85022, Dec. 24, 1980, as amended at 46 FR 23239, Apr. 24, 1981; 47 FR 1381, 1382, Jan. 13, 1982; 48 FR 34036, July 27, 1983; 48 FR 51488, Nov. 9, 1983; 50 FR 13195, Apr. 3, 1985; 52 FR 2226, Jan. 21, 1987; 52 FR 33936, Sept. 9, 1988; 52 FR 42292, Nov. 4, 1987; 53 FR 244, Jan. 6, 1988; 55 FR 31185, Aug. 1, 1990; 57 FR 34518, Aug. 5, 1992; 60 FR 62331, Dec. 6, 1995]

§ 180.382 Triforine; tolerances for residues.

(a) Tolerances are established for residues of the fungicide triforine (*N,N*-[1,4-piperazinediylbis(2,2,2-trichloroethylidene)]bis[formamide]) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almond hulls	0.20
Almond (nutmeats)	0.01
Apples	0.01
Apricots	8.0
Bell peppers	5.0
Blueberries	.1
Cantaloupes	1.0
Cherries	3.0
Cranberries	.1
Cucumbers	.5
Eggplant	1.0
Nectarines	8.0

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Commodity	Parts per million
Peaches	8.0
Plums	3.0
Prunes (fresh)	3.0
Strawberries	2.0
Watermelon	1.0

(b) Tolerances with regional registration are established for residues of the fungicide triforine (*N,N'*-[1,4-piperazinediylbis (2,2,2-trichloroethylidene)]bis (formamide)) in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	0.01

[46 FR 15126, Mar. 3, 1981, as amended at 47 FR 18130, Apr. 28, 1982; 50 FR 1055, Jan. 9, 1985; 51 FR 34973, Oct. 1, 1986; 55 FR 26440, June 28, 1990]

§ 180.383 Sodium salt of acifluorfen; tolerances for residues.

Tolerances are established for combined residues of the herbicide sodium salt of acifluorfen (sodium 5-[2-chloro-4-trifluoromethylphenoxy]-2-nitrobenzoic acid) and its metabolites (the corresponding acid, methyl ester, and amino analogues) in or on the following raw agricultural commodities;

Commodity	Parts per million
Cattle, kidney	0.02
Cattle, liver	0.02
Eggs	0.02
Goats, kidney	0.02
Goats, liver	0.02
Hogs, kidney	0.02
Hogs, liver	0.02
Horses, kidney	0.02
Horses, liver	0.02
Milk	0.02
Peanuts	0.1
Peanut, hulls	0.1
Poultry, fat	0.02
Poultry, mbyp	0.02
Poultry, meat	0.02
Rice grain	0.1
Rice straw	0.1
Sheep, kidney	0.02
Sheep, liver	0.02
Soybeans	0.1
Strawberry	0.05

[45 FR 24877, Apr. 11, 1980, as amended at 46 FR 61272, Dec. 16, 1981; 47 FR 39490, Sept. 8, 1982; 61 FR 30165, June 14, 1996]

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§ 180.384 N,N-Dimethylpiperidinium chloride; tolerances for residues.

Tolerances are established for residues of the plant growth regulator *N,N*-dimethylpiperidinium chloride in or on the following raw agricultural commodities:

Commodity	Parts per million
Cotton forage	3
Cottonseed	2
Eggs	0.05
Cattle, fat	0.1
Cattle, mbyp	0.1
Cattle, meat	0.1
Goats, fat	0.1
Goats, mbyp	0.1
Goats, meat	0.1
Hogs, fat	0.1
Hogs, mbyp	0.1
Hogs, meat	0.1
Horses, fat	0.1
Horses, mbyp	0.1
Horses, meat	0.1
Milk	0.05
Poultry, fat	0.1
Poultry, mbyp	0.1
Poultry, meat	0.1
Sheep, fat	0.1
Sheep, mbyp	0.1
Sheep, meat	0.1

[45 FR 27937, Apr. 25, 1980]

§ 180.385 Diclofop-methyl; tolerances for residues.

Tolerances are established for the combined residues of the herbicide diclofop-methyl (methyl 2-[4-(2,4-dichlorophenoxy)phenoxy]propanoate) and its metabolites, 2-[4-(2,4-dichlorophenoxy)phenoxy]propanoic acid and 2-[4-(2,4-dichloro-5-hydroxyphenoxy)phenoxy]propanoic acid, in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	0.1
Barley, straw	0.1
Flaxseed	0.1
Lentils	0.1
Pea seeds (dry)	0.1
Soybeans	0.1
Wheat, grain	0.1
Wheat, straw	0.1

[45 FR 23425, Apr. 7, 1980, as amended at 50 FR 20211, May 15, 1985; 51 FR 3599, Jan. 29, 1986; 51 FR 19176, May 28, 1986]

§ 180.386 Mefluidide; tolerances for residues.

A tolerance is established for residues of the herbicide mefluidide (*N*-[2,4-dimethyl-5-[[[(trifluoromethyl) sulfonyl]amino]phenyl]acetamide) derived from application of the diethanolamine or potassium salts and calculated as the free acid in or on the following raw agricultural commodity:

Commodity	Parts per million
Soybeans	0.01

[47 FR 13527, Mar. 31, 1982]

§ 180.387 1-Methyl 2-[[ethoxy-[(1-methylethyl) amino] phosphinothioyl]oxy]benzoate.

Tolerances are established for combined residues of the insecticide 1-methylethyl 2-((ethoxy((1-methylethyl) amino)phosphinothioyl)oxy)benzoate and its cholinesterase inhibiting benzoate metabolites 1-methylethyl 2-((ethoxy ((1-methylethyl)amino)phosphinothioyl)oxy)benzoate, 1-methylethyl 2-((ethoxy(1-amino)phosphinothioyl)oxy)benzoate and 1-methylethyl 2-((ethoxy(1-amino)phosphinothioyl)oxy)benzoate in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, forage and fodder	1.0
Corn, fresh including sweet, (K+CWHR)	0.1
Corn, grain	0.1
Eggs	0.02
Meat, fat, and meat byproducts of cattle, goats, hogs, horses, sheep and poultry	0.1
Milk	0.02

[45 FR 47147, July 14, 1980, as amended at 55 FR 26440, June 28, 1990]

§§ 180.388—180.389 [Reserved]

§ 180.390 Tebuthiuron; tolerances for residues.

Tolerances are established for residues of the herbicide tebuthiuron (*N*-[5-(1,1-dimethylethyl)-1,3,4-thiadiazol-2-yl]-

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N,N'-dimethylurea) and its metabolites containing the dimethylethyl thia-diazole moiety in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	2
Cattle, mbyp	2
Cattle, meat	2
Goats, fat	2
Goats, mbyp	2
Goats, meat	2
Grass, forage	10.0
Grass, hay	10.0
Horses, fat	2
Horses, mbyp	2
Horses, meat	2
Milk	0.3
Sheep, fat	2
Sheep, mbyp	2
Sheep, meat	2

[44 FR 75639, Dec. 21, 1979; 45 FR 17147, Mar. 18, 1980, as amended at 48 FR 32014, July 13, 1983; 61 FR 19849, May 3, 1996]

EFFECTIVE DATE NOTE: At 61 FR 19849, May 3, 1996, in §180.390, the table was amended by revising the entry for “grass, hay”, removing the entry for “grass, rangeland, forage”, and adding alphabetically an entry for “grass, forage”, effective July 2, 1996. For the convenience of the user, the superseded text is set forth as follows:

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	*		*		*		*		*
	Commodity								Parts per million
Grass, hay	*		*		*		*		20.0
Grass, rangeland, forage									20
	*		*		*		*		

§ 180.395 Tetrahydro - 5,5 - dimethyl-2(1*H*) -pyrimidinone(3 -(4-trifluoromethyl)phenyl)-1-(2-(4-(trifluoromethyl)phenyl)ethenyl)-2-propenyli-dene)hydrazone; tolerances for residues.

Tolerances are established for residues of the insecticide tetrahydro-5,5-dimethyl - 2(1*H*)-pyrimidinone(3-(4-(trifluoromethyl)phenyl)-1-(2-(4-(trifluoromethyl)phenyl)ethenyl) - 2 - propenyli-dene)hydrazone in or on the following raw agricultural commodities:

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Commodity	Parts per million
Grass (pasture and rangeland)	0.05
Grass hay (pasture and rangeland)	0.05

[45 FR 55198, Aug. 19, 1980]

§ 180.396 Hexazinone; tolerances for residues.

(a) Tolerances are established for combined residues of the herbicide hexazinone (3-cyclohexyl-6-(dimethylamino)-1-methyl-1, 3, 5-triazine-2,4(1*H*,3*H*)-dione) and its metabolites (calculated as hexazinone) in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa green forage	2.0
Alfalfa hay	8.0
Blueberries	0.2
Cattle, fat	0.1
Cattle, mbyp	0.1
Cattle, meat	0.1
Goats, fat	0.1
Goats, mbyp	0.1
Goats, meat	0.1
Grasses, pasture	10
Grasses, range	10
Hogs, fat	0.1
Hogs, mbyp	0.1
Hogs, meat	0.1
Horses, fat	0.1
Horses, mbyp	0.1
Horses, meat	0.1
Milk	0.1
Pineapple (whole fruit)	0.5
Sheep, fat	0.1
Sheep, mbyp	0.1
Sheep, meat	0.1

(b) A tolerance with regional registration, as defined in §180.1(n) and which excludes use of hexazinone on sugarcane in Florida, is established for combined residues of the herbicide hexazinone (3-cyclohexyl-6-(dimethylamino)-1-methyl-1,3,5-triazine-2,4(1*H*,3*H*)-dione) and its metabolites (calculated as hexazinone) in or on the following raw agricultural commodity:

Commodity	Parts per million
Sugarcane	0.2

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[46 FR 42851, Aug. 25, 1981, as amended at 47 FR 41738, Sept. 22, 1982; 47 FR 53007, Nov. 22, 1982; 48 FR 1299, Jan. 12, 1983; 48 FR 37214, Aug. 17, 1983; 60 FR 26362, May 17, 1995; 61 FR 26120, May 24, 1996]

§ 180.398 Chlorthiophos; tolerances for residues.

A tolerance is established for the combined residues of the insecticide chlorthiophos, that is a mixture of *O*-[2,5 - dichloro - 4 - (methylthio)phenyl] *O*,*O*-diethylphosphorothioate; *O*-[2,4-dichloro-5-(methylthio)phenyl] *O*,*O*-diethylphosphorothioate; and *O*-[4,5-dichloro-2-(methylthio)phenyl] *O*,*O*-diethylphosphorothioate and its diethyl phosphorus ester-moiety containing metabolites in or on the following raw agricultural commodity:

Commodity	Parts per million
Tomatoes	0.5

[46 FR 21601, Apr. 13, 1981]

§ 180.399 Iprodione; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide iprodione [3-(3,5-dichlorophenyl)-*N*-(1-methylethyl)-2,4-dioxo-1-imidazolidinecarboxamide], its isomer 3-(1-methylethyl)-*N*-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide, and its metabolite 3-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds, hulls	2.0
Almonds, nutmeat	0.3
Apricots	20.0
Beans, dried, vine hay	90.0
Beans, dry	2.0
Beans, forage	90.0
Beans, succulent	2.0
Blueberries	15.0
Boysenberries	15.0
Broccoli	25.0
Caneberries	25.0
Carrots	5.0
Cherries (sour)	20.0
Cherries (sweet) (pre- and postharvest)	20.0
Currants	15.0
Garlic	0.1
Ginseng	2.0
Grapes	60.0
Kiwi fruit	10.0
Lettuce	25.0
Nectarines (pre- and postharvest)	20.0
Onions, dry bulb	0.5

Commodity	Parts per million
Peaches (pre- and postharvest)	20.0
Peanuts	0.5
Peanut forage	150.0
Peanut hay	150.0
Peanut hulls	7.0
Plums (pre- and postharvest)	20.0
Potatoes	0.5
Prunes	20.0
Raspberries	15.0
Rice grain	10.0
Rice straw	20.0
Strawberries	15.0

(b) Tolerances are established for the combined residues of iprodione [3-(3,5-dichlorophenyl)-*N*-(1-methylethyl)-2,4-dioxo-1-imidazolidinecarboxamide], its isomer [3-(1-methylethyl)-*N*-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide, and its metabolites [3-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide] and [*N*-(3,5-dichloro-4-hydroxyphenyl)-ureido-carboxamide], all expressed as iprodione equivalents in or on the following raw agricultural commodities of animal origin:

Commodity	Parts per million
Cattle, fat	0.5
Cattle, kidney	3.0
Cattle, liver	3.0
Cattle, meat	0.5
Cattle, meat byproducts (mbyp) (except kidney and liver)	0.5
Eggs	1.5
Goats, fat	0.5
Goats, kidney	3.0
Goats, liver	3.0
Goats, meat	0.5
Goats, mbyp (except kidney and liver)	0.5
Hogs, fat	0.5
Hogs, kidney	3.0
Hogs, liver	3.0
Hogs, meat	0.5
Hogs, mbyp (except kidney and liver)	0.5
Horses, fat	0.5
Horses, kidney	3.0
Horses, liver	3.0
Horses, meat	0.5
Horses, mbyp (except kidney and liver)	0.5
Milk	0.5
Poultry, fat	3.5
Poultry, liver	5.0
Poultry, meat	1.0
Poultry, mbyp (except liver)	1.0
Sheep, fat	0.5
Sheep, kidney	3.0
Sheep, liver	3.0
Sheep, meat	0.5
Sheep, mbyp (except kidney and liver)	0.5

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(c) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of the fungicide iprodione [3-(3,5-dichlorophenyl)-N-(1-methylethyl)-2,4-dioxo-1-imidazolidinecarboxamide], its isomer [3-(1-methylethyl)-N-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide], and its metabolite [3-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide] in or on the following raw agricultural commodity:

Commodity	Parts per million
Chinese mustard	15.0

(d)(1) A time-limited tolerance, to expire March 15, 1997, is established permitting the combined residues of the fungicide iprodione [3-(3,5-dichlorophenyl)-N-(1-methylethyl)-2,4-dioxo-1-imidazolidinecarboxamide], its isomer [3-(1-methylethyl)-N-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide] and its metabolite [3-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide] in or on the following raw agricultural commodity:

Commodity	Parts per million
Cottonseed	0.10

(2) Residues in this commodity not in excess of the established tolerance resulting from the use described in this paragraph remaining after expiration of the time-limited tolerance will not be considered to be actionable if the fungicide is applied during the term of and in accordance with the provisions of the above regulation.

[48 FR 40385, Sept. 7, 1983]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.399, see the List of Sections Affected in the Finding Aids section of this volume.

§ 180.401 Thiobencarb; tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide thiobencarb (S-[(4-chlorophenyl)methyl]diethyl carbamothioate) and its chlorobenzyl and chlorophenyl moiety-containing metabolites

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in or on the following raw agricultural commodities:

Commodity	Part per million
Cattle, fat	0.2
Cattle, mbyop	0.2
Cattle, meat	0.2
Eggs	0.2
Goats, fat	0.2
Goats, mbyop	0.2
Goats, meat	0.2
Hogs, fat	0.2
Hogs, mbyop	0.2
Hogs, meat	0.2
Horses, fat	0.2
Horses, mbyop	0.2
Horses, meat	0.2
Milk	0.05
Poultry, fat	0.2
Poultry, mbyop	0.2
Poultry, meat	0.2
Rice, grain	0.2
Rice, straw	1.0
Sheep, fat	0.2
Sheep, mbyop	0.2
Sheep, meat	0.2

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the herbicide thiobencarb (S-[(4-chlorophenyl)methyl]diethyl carbamothioate) and its chlorobenzyl and chlorophenyl moiety-containing metabolites in or on the following raw agricultural commodities:

Commodity	Parts per million
Celery	0.2
Endive (escarole)	0.2
Lettuce	0.2

[47 FR 6833, Feb. 17, 1982, as amended at 56 FR 2440, Jan. 23, 1991]

§ 180.402 Diethatyl-ethyl; tolerances for residues.

Tolerances are established for the combined residues of the herbicide diethatyl-ethyl and its metabolites (free and bound) determinable as the N-acetyl N-(2,6-diethylphenyl) glycine derivative in or on the following raw agricultural commodities:

Commodity	Parts per million
Red beet, roots	0.2
Red beet, tops	0.2
Spinach	1.0
Sugar beets, roots	0.05

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Commodity	Parts per million
Sugar beets, tops	0.05

[47 FR 8012, Feb. 24, 1982, as amended at 49 FR 42732, Oct. 24, 1984]

§ 180.403 Thidiazuron; tolerances for residues.

Tolerances are established for the combined residues of the defoliant thidiazuron (N-phenyl-N'-1,2,3-thiadiazol-5-ylurea) and its aniline containing metabolites in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.2
Cattle, meat	0.2
Cattle, mbyp	0.2
Cottonseed	0.4
Eggs	0.1
Goat, fat	0.2
Goats, meat	0.2
Goat, mbyp	0.2
Hogs, fat	0.2
Hogs, meat	0.2
Hogs, mbyp	0.2
Horses, fat	0.2
Horses, meat	0.2
Horses, mbyp	0.2
Milk	0.05
Poultry, fat	0.2
Poultry, meat	0.2
Poultry, mbyp	0.2
Sheep, fat	0.2
Sheep, meat	0.2
Sheep, mbyp	0.2

[47 FR 25958, June 16, 1982]

§ 180.404 Profenofos; tolerances for residues.

Tolerances are established for combined residues of the insecticide profenofos [O-(4-bromo-2-chlorophenyl)-O-ethyl-S-propyl phosphorothioate and its metabolites converted to 4-bromo-2-chlorophenyl and calculated as profenofos in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, mbyp	0.05
Cattle, meat	0.05
Cottonseed	3.0
Eggs	0.05
Goats, fat	0.05
Goats, mbyp	0.05

Commodity	Parts per million
Goats, meat	0.05
Hogs, fat	0.05
Hogs, mbyp	0.05
Hogs, meat	0.05
Horses, fat	0.05
Horses, mbyp	0.05
Horses, meat	0.05
Milk	0.01
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Sheep, fat	0.05
Sheep, mbyp	0.05
Sheep, meat	0.05

[47 FR 30488, July 14, 1982]

§ 180.405 Chlorsulfuron; tolerances for residues.

(a) Tolerances are established for the combined residues of chlorsulfuron (2-chloro-N-[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)aminocarbonyl]benzenesulfonamide) and its metabolite, 2-chloro-5-hydroxy-N-[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)aminocarbonyl] benzenesulfonamide in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, forage	20.0
Barley, grain	0.1
Barley, straw	0.5
Oat, forage	20.0
Oat, grain	0.1
Oat, straw	0.5
Wheat, forage	20.0
Wheat, grain	0.1
Wheat, straw	0.5

(b) Tolerances are established for residues of chlorsulfuron (2-chloro-N-[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)aminocarbonyl]benzenesulfonamide) in or on the following raw agricultural commodities.

Commodity	Parts per million
Cattle, fat	0.3
Cattle, meat	0.3
Cattle, mbyp	0.3
Goats, fat	0.3
Goats, meat	0.3

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Commodity	Parts per million
Goats, mbyp	0.3
Hogs, fat	0.3
Hogs, meat	0.3
Hogs, mbyp	0.3
Horses, fat	0.3
Horses, meat	0.3
Horses, mbyp	0.3
Milk	0.1
Sheep, fat	0.3
Sheep, meat	0.3
Sheep, mbyp	0.3

[47 FR 33689, Aug. 4, 1982]

§ 180.406 Dimethipin; tolerances for residues.

Tolerances are established for residues of the harvest growth regulant dimethipin (2,3-dihydro-5,6-dimethyl-1,4-dithiin 1,1,4,4-tetraoxide; CAS Reg. No. 55290-64-7) in or on the following raw agricultural commodities:

Commodity	Parts per million
Cottonseed	0.5
Cattle, fat	0.02
Cattle, meat	0.02
Cattle, mbyp	0.02
Goats, fat	0.02
Goats, meat	0.02
Goats, mbyp	0.02
Hogs, fat	0.02
Hogs, meat	0.02
Hogs, mbyp	0.02
Horses, fat	0.02
Horses, meat	0.02
Horses, mbyp	0.02
Sheep, fat	0.02
Sheep, meat	0.02
Sheep, mbyp	0.02

[47 FR 37172, Aug. 25, 1982; 50 FR 19531, May 9, 1985, as amended at 52 FR 32306, Aug. 27, 1987; 53 FR 23396, June 22, 1988]

§ 180.407 Thiodicarb; tolerances for residues.

(a) A tolerance is established for the combined residues of the insecticide thiodicarb (dimethyl *N*, *N'*-[thiobis [(methylimino) carbonyl]oxy]] bis[ethanimidothioate]) and its metabolite methomyl (S-methyl *N*-[(methylcarbamoylethoxy)]thioacetimidate) in or on the following raw agricultural commodity:

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Commodity	Parts per million
Corn, sweet grain (K + CWHR)	2.0
Cottonseed	0.4
Soybeans	0.2

(b) A tolerance that expires on August 15, 1997 is established for the combined residues of the insecticide thiodicarb (dimethyl *N*, *N'*-[thiobis [(methylimino) carbonyloxy]] bis[ethanimidothioate]) and its metabolite methomyl (S-methyl *N*-[(methylcarbamoylethoxy)]thioacetimidate) in or on the following raw agricultural commodity crop group:

Commodity	Parts per million
Leafy vegetables	35 ppm

(c) A tolerance to expire on August 15, 1997 is established for the combined residues of the insecticide thiodicarb (dimethyl *N*, *N'*-[thiobis [(methylimino) carbonyloxy]] bis[ethanimidothioate]) and its metabolite methomyl (S-methyl *N*-[(methylcarbamoylethoxy)]thioacetimidate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Broccoli	7
Cabbage	7
Cauliflower	7

[57 FR 1650, Jan. 15, 1992, as amended at 57 FR 5390, Feb. 14, 1992; 58 FR 42675, Aug. 11, 1993; 60 FR 24785, May 10, 1995; 60 FR 65577, Dec. 20, 1995]

§ 180.408 Metalaxyl; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide metalaxyl [*N*-(2,6-dimethylphenyl)-*N*-(methoxyacetyl) alanine methylester] and its metabolites containing the 2,6-dimethylaniline moiety, and *N*-(2-hydroxy methyl-6-methylphenyl)-*N*-(methoxyacetyl)-alanine methyl ester, each expressed as metalaxyl equivalents, in or on the following raw agricultural commodities:

Commodity	Parts per million
Alfalfa, forage	6.0

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Commodity	Parts per million
Alfalfa, hay	20.0
Almonds	0.5
Almonds, hulls	10.0
Apples	0.2
Asparagus	7.0
Avocados	4.0
Beets	0.1
Beet, tops	0.1
Blueberries	2.0
Brassica (cole) leafy vegetables group [except broccoli, cabbage, cauliflower, brussels sprouts, and mustard greens]	0.1
Broccoli	2.0
Brussels sprouts	2.0
Cabbage	1.0
Cattle, fat	0.4
Cattle, kidney	0.4
Cattle, liver	0.4
Cattle, meat	0.05
Cattle, mby (except kidney and liver)	0.05
Cauliflower	1.0
Cereal grains (except wheat, barley, and oats)	0.1
Citrus fruit	1.0
Clover, forage	1.0
Clover, hay	2.5
Cottonseed	0.1
Cranberry	4.0
Cucurbit vegetables group	1.0
Eggs	0.05
Fruiting vegetables (except cucurbits) group	1.0
Ginseng	3.0
Goats, fat	0.4
Goats, kidney	0.4
Goats, liver	0.4
Goats, meat	0.05
Goats, mby (except kidney and liver)	0.05
Grain, crops	0.1
Grapes	2.0
Grass, forage	10.0
Grass, hay	25.0
Hogs, fat	0.4
Hogs, kidney	0.4
Hogs, liver	0.4
Hogs, meat	0.05
Hogs, mby (except kidney and liver)	0.05
Hops, green	2.0
Horses, fat	0.4
Horses, kidney	0.4
Horses, liver	0.4
Horses, meat	0.05
Horses, mby (except kidney and liver)	0.05
Leafy vegetables (except brassica) group (except spinach)	5.0
Leaves of root and tuber vegetables (human food or animal feed) group	15.0
Legume vegetable foliage	8.0
Legume vegetable group (dry or succulent)	0.2
Lettuce, head	5.0
Milk	0.02
Mustard greens	5.0
Onions, dry bulb	3.0
Onions, green	10.0
Peanut, hay	20.0
Peanut, nuts	0.2
Peanut, shells	2.0
Peanut, vines	20.0
Pineapples	0.1
Pineapple fodder	0.1
Pineapple forage	0.1
Poultry, fat	0.4
Poultry, kidney	0.4
Poultry, liver	0.4
Poultry, meat	0.05

Commodity	Parts per million
Poultry, mby (except kidney and liver)	0.05
Potatoes	0.5
Raspberries	0.5
Root and tuber vegetables group	0.5
Sheep, fat	0.4
Sheep, kidney	0.4
Sheep, liver	0.4
Sheep, meat	0.05
Sheep, mby (except kidney and liver)	0.05
Soybean, grain	1.0
Spinach	10.0
Stonefruit group	1.0
Strawberries	10.0
Sugar beets	0.1
Sugar beet (roots)	0.5
Sugar beet (tops)	10.0
Sunflowers	0.1
Sunflower, forage	0.1
Walnuts	0.5

(b) Indirect or inadvertent tolerances. Tolerances are established for indirect or inadvertent residues of metalaxyl in or on the raw agricultural commodities when present therein as a result of the application of metalaxyl to growing crops listed in paragraph (a) of this section and other non-food crops to read as follows:

Commodity	Part per million
Barley, grain	0.2
Barley, fodder	2.0
Barley, forage	2.0
Barley, straw	2.0
Cereal grains group (except wheat, barley, and oats), fodder	1.0
Cereal grains group (except wheat, barley, and oats), forage	1.0
Cereal grains group (except wheat, barley, and oats), straw	1.0
Oat, fodder	2.0
Oat, forage	2.0
Oat, grain	0.2
Oat, straw	2.0
Wheat, fodder	2.0
Wheat, forage	2.0
Wheat, grain	0.2
Wheat, straw	2.0

(c) Tolerances with regional registration (refer to § 180.1(n)) are established for the combined residues of the fungicide metalaxyl [*N*-(2,6-dimethylphenyl)-*N*-(methoxyacetyl) alanine methyl ester] and its metabolites containing the 2,6-dimethylaniline moiety, and *N*-(2-hydroxy methyl-6-methyl)-*N*-(methoxyacetyl)-alanine methylester, each expressed as metalaxyl, in or on the following raw agricultural commodity:

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Commodity	Parts per million
Papaya	0.1

[48 FR 3600, Jan. 26, 1983]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.408, see the List of Sections Affected in the Finding Aids section of this volume.

§ 180.409 Pirimiphos-methyl; tolerances for residues.

Tolerances are established for the combined residues of the insecticide pirimiphos-methyl, *O*-[2-diethylamino-6-methyl-pyrimidinyl] *O,O*-dimethyl phosphorothioate, the metabolite *O*-[2-ethylamino-6-methyl-pyrimidin-4-yl] *O,O*-dimethyl phosphorothioate and, in free and conjugated form, the metabolites 2-diethylamino-6-methyl-pyrimidin-4-ol), 2-ethylamino-6-methyl-pyrimidin-4-ol, and 2-amino-6-methyl-pyrimidin-4-ol in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn	8.0
Cattle fat	0.2
Cattle, kidney and liver	2.0
Cattle, mbyp	0.2
Cattle, meat	0.2
Eggs	0.5
Goats, fat	0.2
Goats, kidney and liver	2.0
Goats, mbyp	0.2
Goats, meat	0.2
Hogs, fat	0.2
Hogs, kidney and liver	2.0
Hogs, mbyp	0.2
Hogs, meat	0.2
Horses, fat	0.2
Horses, kidney and liver	2.0
Horses, mbyp	0.2
Horses, meat	0.2
Kiwifruit	5.0
Milk, fat (0.1 ppm (N) in whole milk)	3.0
Poultry, fat	0.2
Poultry, mbyp	2.0
Poultry, meat	2.0
Sheep, fat	0.2
Sheep, kidney and liver	2.0
Sheep, mbyp	0.2
Sheep, meat	0.2
Sorghum, grain	8.0

[51 FR 28228, Aug. 6, 1986]

§ 180.410 1-(4-Chlorophenoxy) - 3,3 - dimethyl-1(1H-1,2,4-triazol-1-yl) -2-butanone; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide 1-(4-chlorophenoxy)-3,3-dimethyl-1(1H-1,2,4-triazol-1-yl)-2-butanone and its metabo-

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lites containing chlorophenoxy and triazole moieties (expressed as the fungicide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds	0.05
Almond, hulls	0.10
Apples	1.0
Apricots	4.0
Barley, grain	1.0
Barley, green forage	15.0
Barley, straw	5.0
Cattle, fat	1.0
Cattle, meat	1.0
Cattle, mbyp	1.0
Chick pea, seed (dry)	0.1
Cucurbits	0.3
Eggs	0.04
Grapes	1.0
Goats, fat	1.0
Goats, meat	1.0
Goats, mbyp	1.0
Grass, forage	0.2
Grass, seed cleanings (including hulls)	145.0
Grass, seed straw (including chaff)	105.0
Hogs, fat	0.04
Hogs, meat	0.04
Hogs, mbyp	0.04
Horses, fat	1.0
Horses, meat	1.0
Horses, mbyp	1.0
Milk	0.04
Nectarines	4.0
Peaches	4.0
Pears	1.0
Pineapples (fresh)	3.0
Plums (fresh prunes)	4.0
Poultry, fat	0.04
Poultry, meat	0.04
Poultry, mbyp	0.04
Sheep, fat	1.0
Sheep, meat	1.0
Sheep, mbyp	1.0
Sugar beets	0.5
Sugar beets, tops	3.0
Wheat, grain	1.0
Wheat, green forage	15.0
Wheat, straw	5.0

(b) Tolerances with regional registration are established for the combined residues of the fungicide 1-(4-chlorophenoxy)-3,3-dimethyl-1(1H-1,2,4-triazol-1-yl)-2-butanone and its metabolites containing chlorophenoxy and triazole moieties (expressed as the fungicide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Raspberries	2.0

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[49 FR 10548, Mar. 21, 1984; 49 FR 19654, May 9, 1984, as amended at 50 FR 1052, Jan. 9, 1985; 51 FR 15324, Apr. 23, 1986]

§ 180.411 Fluazifop-butyl; tolerances for residues.

(a) Tolerances are established for residues of the herbicide fluazifop-butyl ($\pm$)-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy propanoic acid (fluazifop), both free and conjugated and of ($\pm$)-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy propanoate (fluazifop-butyl), all expressed as fluazifop, in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, meat	.05
Cattle, mbyp	.05
Cottonseed	.1
Eggs	.05
Goats, fat	.05
Goats, meat	.05
Goats, mbyp	.05
Hogs, fat	.05
Hogs, meat	.05
Hogs, mbyp	.05
Horses, fat	.05
Horses, meat	.05
Horses, mbyp	.05
Milk	.05
Poultry, fat	.05
Poultry, meat	.05
Poultry, mbyp	.05
Sheep, fat	.05
Sheep, meat	.05
Sheep, mbyp	.05
Soybeans	1.0

(b) Tolerances with regional registration are established for residues of fluazifop-butyl ($\pm$)-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy propanoic acid (fluazifop), both free and conjugated and of ($\pm$)-butyl-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy propanoate (fluazifop-butyl), all expressed as fluazifop, in or on the following raw agricultural commodities:

Commodity	Parts per million
Peppers, tabasco	1.0

(c) Tolerances are established for residues of the resolved isomer of fluazifop, (R)-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy]propanoic

acid, both free and conjugated and of fluazifop-P-butyl, butyl(R)-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy]propanoate, all expressed as fluazifop, in or on the raw agricultural commodity:

Commodity	Parts per million
Carrots	2.0
Endive	6.0
Macadamia nuts	0.1
Onions (bulb)	0.5
Pecans	0.05
Spinach	6.0
Stone fruits	0.05
Sweet potatoes	0.5

(d) Tolerances with regional registration, see § 180.1(n), are established for residues of the resolved isomer of the herbicide fluazifop, (R)-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy] propanoic acid, both free and conjugated and of fluazifop-P-butyl, butyl[R]-2-[4-[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy] propanoate, all expressed as fluazifop, in or on the raw agricultural commodities:

Commodity	Parts per million
Asparagus	3.0
Coffee	0.1
Rhubarb	0.5

[48 FR 19027, Apr. 27, 1983, as amended at 52 FR 2226, Jan. 21, 1987; 52 FR 5768, Feb. 26, 1987; 52 FR 42652, Nov. 6, 1987; 52 FR 48538, Dec. 23, 1987; 53 FR 5377, Feb. 24, 1988; 53 FR 15825, May 4, 1988; 54 FR 8540, Mar. 1, 1989; 54 FR 27349, June 29, 1989; 55 FR 1586, Jan. 17, 1990; 55 FR 9444, Mar. 14, 1990]

§ 180.412 2-[1-(Ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one; tolerances for residues.

(a) Tolerances are established for combined residues of the herbicide 2-[1-(ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one and its metabolites containing the 2-cyclohexen-1-one moiety (calculated as the herbicide) in or on the following raw agricultural commodities:

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Commodity	Parts per million
Alfalfa, forage	40.0
Alfalfa, hay	40.0
Almond hulls	2.0
Beans, dry	20.0
Beans, forage	10.0
Beans, hay	50.0
Beans, succulent	5.0
Blueberries	4.0
Brassica leafy vegetables	5.0
Bulb vegetables	1.0
Canola/rapeseed	35.0
Cattle, fat	0.2
Cattle, mbyp	0.2
Cattle, meat	0.2
Celery	1.0
Citrus fruits	0.5
Clover, forage	35.0
Clover, hay	50.0
Corn, field, grain	0.5
Corn fodder	2.5
Corn forage	2.0
Corn, sweet (K+CWHR)	0.2
Cottonseed	5.0
Cucurbits vegetables	4.0
Eggs	2.0
Flaxseed	5.0
Flax straw	2.0
Fruiting vegetables	4.0
Goats, fat	0.2
Goats, mbyp	0.2
Goats, meat	0.2
Grapes	0.2
Hogs, fat	0.2
Hogs, mbyp	0.2
Hogs, meat	0.2
Horses, fat	0.2
Horses, mbyp	0.2
Horses, meat	0.2
Lentils	30.0
Lettuce, head	1.0
Lettuce, leaf	2.0
Milk	0.05 (N)
Peanuts	25.0
Peanuts, hull	5.0
Peas, dry	40.0
Peas, forage	20.0
Peas, hay	40.0
Peas, succulent	10.0
Pome fruits	0.2
Potatoes	4.0
Poultry, fat	0.2
Poultry, mbyp	2.0
Poultry, meat	0.2
Raspberries	5.0
Sheep, fat	0.2
Sheep, mbyp	0.2
Sheep, meat	0.2
Soybean, hay	10.0
Soybeans	10.0
Spinach	4.0
Strawberries	10.0
Sugar beet, roots	1.0
Sugar beet, tops	3.0
Sunflower seeds	7.0
Sweet potato	4.0
Tree nuts	0.2

(b) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of the

herbicide 2-[1-(ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one) and its metabolites containing the 2-cyclohexen-1-one moiety (calculated as the herbicide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Artichokes	3.0
Rhubarb	0.3

(c) Time-limited tolerances to expire on December 31, 1996, are established for combined residues of the herbicide 2-[1-(ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one and its metabolites containing the 2-cyclohexen-1-one moiety (calculated as the herbicide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Asparagus	4.0
Carrot	1.0
Cranberry	2.0
Peppermint	30.0
Spearmint	30.0

(d) Time-limited tolerances to expire on December 31, 1996, are established for combined residues of the herbicide 2-[1-(ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one and its metabolites containing the 2-cyclohexen-1-one moiety (calculated as the herbicide) in or on the following raw agricultural commodities:

Commodity	Parts per million
Endive	2.0

[48 FR 20055, May 4, 1983]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting §180.412, see the List of Sections Affected in the Finding Aids section of this volume.

§ 180.413 Imazalil; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide

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imazalil 1-[2-(2,4-dichlorophenyl)-2-(2-propenyloxy)ethyl]-1*H*-imidazole and its metabolite 1-(2,4-dichlorophenyl)-2-(1*H*-imidazole-1-yl)-1-ethanol in or on the following raw agricultural commodities:

Commodity	Parts per million
Bananas (Whole)	3.00
Bananas (Pulp)	0.20
Barley, forage	0.5
Barley, grain	0.05
Barley, straw	0.5
Citrus fruit (Postharvest)	10.0
Cottonseed	0.05
Wheat, forage	0.5
Wheat, grain	0.05
Wheat, straw	0.5

(b) Tolerances are established for the combined residues of the fungicide imazalil 1-[2-(2,4-dichlorophenyl)-2-(2-propenyloxy)ethyl]-1*H*-imidazole and its metabolites 1-(2,4-dichlorophenyl)-2-(1*H*-imidazole-1-yl)-1-ethanol and 3-[1-(2,4-dichlorophenyl)-2-(1*H*-imidazole-1-yl)ethoxyl]-1,2-propane diol in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.01
Cattle, liver	0.50
Cattle, meat	0.01
Cattle, mbyp	0.01
Goats, fat	0.01
Goats, liver	0.50
Goats, meat	0.01
Goats, mbyp	0.01
Hogs, fat	0.01
Hogs, liver	0.50
Hogs, meat	0.01
Hogs, mbyp	0.01
Horses, fat	0.01
Horses, liver	0.50
Horses, meat	0.01
Horses, mbyp	0.01
Milk	0.01
Sheep, fat	0.01
Sheep, liver	0.50
Sheep, meat	0.01
Sheep, mbyp	0.01

[48 FR 28443, June 22, 1983; 49 FR 24376, June 13, 1984, as amended at 49 FR 24377, June 13, 1984; 49 FR 30701, Aug. 1, 1984; 58 FR 30122, May 26, 1993]

§ 180.414 Cyromazine; tolerances for residues.

(a) Tolerances are established for combined residues of the insecticide cyromazine (*N*-cyclopropyl-1,3,5-tri-

azine-2,4,6-triamine) and its metabolite melamine (1,3,5-triazine-2,4,6-triamine) in or on the following raw agricultural commodities:

Commodity	Parts per million
Eggs	0.25

(b) Tolerances are established for residues of the insecticide cyromazine (*N*-cyclopropyl-1,3,5-triazine-2,4,6-triamine) in or on the following raw agricultural commodities:

Commodity	Part per million
Fat, poultry (from chicken layer hens and chicken breeder hens only)	0.05
Meat, poultry (from chicken layer hens and chicken breeder hens only)	0.05
Meat byproducts (from chicken layer hens and chicken breeder hens only)	0.05

(c) Tolerances are established for residues of the cyromazine metabolite melamine (1,3,5-triazine-2,4,6-triamine) in or on the following raw agricultural commodities:

Commodity	Part per million
Fat, poultry (from chicken layer hens and chicken breeder hens only)	0.05
Meat, poultry (from chicken layer hens and chicken breeder hens only)	0.05
Meat byproducts (from chicken layer hens and chicken breeder hens only)	0.05

(d) Tolerances are established for the combined residues of the insecticide cyromazine (*N*-cyclopropyl-1,3,5-triazine-2,4,6-triamine) and its metabolite melamine (1,3,5-triazine-2,4,6-triamine) calculated as cyromazine in or on the following raw agricultural commodities.

Commodity	Parts per million
Celery	10.0
Lettuce, head	5.0

(e) Tolerances are established for combined residues of the insect growth regulator cyromazine (*N*-cyclopropyl-1,3,5-triazine-2,4,6-triamine) and its metabolite melamine (1,3,5-triazine-2,4,6-triamine), calculated as

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cyromazine, in or on the following raw agricultural commodity:

Commodity	Parts per million
Cucurbit vegetables	2.0
Leafy vegetables (except Brassica)	10.0
Mushrooms	10.0
Peppers	4.0
Tomato	1.0

(f) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of the insecticide cyromazine (*N*-cyclopropyl-1,3,5-triazine-2,4,6-triamine) and its metabolite melamine (1,3,5-triazine-2,4,6-triamine), calculated as cyromazine, in or on the following raw agricultural commodities:

Commodity	Parts per million
Cabbage, Chinese	3.0
Mustard, Chinese	3.0

[50 FR 20371, May 15, 1985, as amended at 50 FR 42020, Oct. 17, 1985; 52 FR 27551, July 22, 1987; 58 FR 44767, Aug. 25, 1993; 58 FR 54044, Oct. 20, 1993; 59 FR 9932, Mar. 2, 1994; 59 FR 26952, May 25, 1994; 61 FR 19845, May 3, 1996]

§ 180.415 Aluminum tris (O-ethylphosphonate); tolerances for residues.

(a) Tolerances are established for residues of the fungicide aluminum tris (O-ethylphosphonate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Avocados	25
Brassica (cole) leafy vegetables group	60
Caneberries	0.1
Citrus	0.5
Cucurbit vegetables group	15
Ginseng root, fresh	0.1
Hops, dried	45
Leafy vegetables (except brassica vegetables) group	100
Pineapple	0.1
Pineapple fodder	0.1
Pineapple forage	0.1
Pome fruit	10
Onions, dry bulb	0.5
Strawberries	75
Tomatoes	3

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the fungicide aluminum tris(O-ethylphosphonate) in or on the following raw agricultural commodity:

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Commodity	Parts per million
Asparagus	0.1

(c) Time-limited tolerances are established for residues of the fungicide aluminum tris (O-ethylphosphonate) in or on the following raw agricultural commodities:

Commodities	Parts per million	Expiration date
Blueberry	40	December 31, 1998

[48 FR 50533, Nov. 2, 1983, as amended at 51 FR 18586, May 21, 1986; 52 FR 25603, July 8, 1987; 54 FR 17949, April 26, 1989; 57 FR 22435, May 28, 1992; 57 FR 31454, July 16, 1992; 57 FR 53445, Nov. 10, 1992; 58 FR 19354, Apr. 14, 1993; 59 FR 17488, Apr. 13, 1994; 59 FR 53748, 53750, Oct. 26, 1994; 59 FR 54829, Nov. 2, 1994; 61 FR 31040, June 19, 1996]

§ 180.416 Ethalfluralin; tolerances for residues.

Tolerances are established for residues of the herbicide ethalfluralin [*N*-ethyl-*N*-(2-methyl-2-propenyl)-2,6-dinitro-4-(trifluoromethyl)benzenamine] in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, dry	0.05
Cattle, fat	0.05
Cattle, meat	0.05
Cattle, mbyp	0.05
Cucurbits vegetable group	0.05
Eggs	0.05
Goats, fat	0.05
Goats, meat	0.05
Goats, mbyp	0.05
Hogs, fat	0.05
Hogs, meat	0.05
Hogs, mbyp	0.05
Horses, fat	0.05
Horses, meat	0.05
Horses, mbyp	0.05
Milk	0.05
Peanuts	0.05
Peanuts hulls	0.05
Peas, dry	0.05
Poultry, fat	0.05
Poultry, meat	0.05
Poultry, mbyp	0.05
Sheep, fat	0.05
Sheep, meat	0.05

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Commodity	Parts per million
Sheep, mbyop	0.05
Soy beans	0.05
Sunflower seed	0.05

[49 FR 391, Jan. 4, 1984, as amended at 50 FR 4976, Feb. 5, 1985; 52 FR 11262, Apr. 8, 1987]

§ 180.417 Triclopyr; tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide triclopyr ((3,5,6-trichloro-2-pyridinyl)oxy)acetic acid and its metabolites 3,5,6-trichloro-2-pyridinol and 2-methoxy-3,5,6-trichloropyridine in or on the following raw agricultural commodities:

Commodity	Parts per million
Grasses, forage	500
Grasses, forage, hay	500

(b) Tolerances are established for the combined residues of the herbicide triclopyr ((3,5,6-trichloro-2-pyridinyl)oxy)acetic acid and its metabolite 3,5,6-trichloro-2-pyridinol in or on the following raw agricultural commodities:

Commodity	Parts per million
Eggs	0.05
Meat, fat, and meat byproducts (except liver and kidney) of cattle, goats, hogs, horses, and sheep	0.05
Meat, fat, and meat byproducts (except kidney) of poultry	0.1
Milk	0.01
Liver and kidney of cattle, goats, hogs, horses, and sheep	0.5
Rice, grain	0.3
Rice, straw	10.0

[50 FR 18486, May 1, 1985, as amended at 55 FR 26440, June 28, 1990; 60 FR 4095, Jan. 20, 1995]

§ 180.418 Cypermethrin; tolerances for residues.

Tolerances are established until November 15, 1997, for residues of the insecticide cypermethrin [(±) alpha-cyano-(3-phenoxyphenyl)methyl (±-cis, trans-3(2,2-dichloroethenyl)-2,2-dimethylcyclopropanecarboxylate)] in or on the following raw agricultural commodities:

Commodity	Parts per million
Cabbage	2.0
Cattle, fat	0.05
Cattle, meat	0.05
Cattle, mbyop	0.05
Cottonseed	0.5
Goats, fat	0.05
Goats, meat	0.05
Goats, mbyop	0.05
Hogs, fat	0.05
Hogs, meat	0.05
Hogs, mbyop	0.05
Horses, fat	0.05
Horses, meat	0.05
Horses, mbyop	0.05
Lettuce, head	10.0
Milk	0.05
Onions, bulb	0.10
Pecans	0.05
Sheep, fat	0.05
Sheep, meat	0.05
Sheep, mbyop	0.05

[49 FR 24864, June 15, 1984, as amended at 50 FR 7173, Feb. 21, 1985; 50 FR 39100, Sept. 27, 1985; 51 FR 16032, Apr. 30, 1986; 53 FR 5375, Feb. 24, 1988; 54 FR 41099, Oct. 5, 1989; 59 FR 9094, Feb. 25, 1994; 59 FR 9412, Feb. 28, 1994; 60 FR 9784, Feb. 22, 1995]

§ 180.419 Chlorpyrifos-methyl.

Tolerances are established for the combined residues of the insecticide chlorpyrifos-methyl [0,0-dimethyl 0-(3,5,6-trichloro-2-pyridyl)] phosphorothioate and its metabolite (3,5,6-trichloro-2-pyridinol) in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	6.0
Cattle, fat	0.5
Cattle, meat	0.5
Cattle, mbyop	0.5
Eggs	0.1
Goats, fat	0.5
Goats, meat	0.5
Goats, mbyop	0.5
Hogs, fat	0.5
Hogs, meat	0.5
Hogs, mbyop	0.5
Horses, fat	0.5
Horses, meat	0.5
Horses, mbyop	0.5
Milk, fat (0.05 ppm (N) in whole milk)	1.25
Oats, grain	6.0
Poultry, fat	0.5
Poultry, meat	.5
Poultry, mbyop	.5
Rice, grain	6.0
Sheep, fat	0.5
Sheep, meat	0.5
Sheep, mbyop	0.5
Sorghum, grain	6.0
Wheat, grain	6.0

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[50 FR 26684, June 27, 1985; 50 FR 31843, Aug. 7, 1985]

§ 180.420 Fluridone; tolerances for residues.

(a) Tolerances are established for the combined residues (free and bound) of the herbicide fluridone (1-methyl-3-phenyl-5-[3-(trifluoromethyl)phenyl]-4(1*H*)-5-[3-(trifluoromethyl)phenyl]-4(1*H*)-pyridinone) in fish and crayfish at 0.5 part per million.

(b) Tolerances are established for residues of the herbicide fluridone in the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, kidney	.1
Cattle, liver	.1
Cattle, meat (except liver and kidney)	.05
Cattle, mbyp	.05
Eggs	.05
Goats, fat	.05
Goats, kidney	.1
Goats, liver	.1
Goats, meat (except liver and kidney)	.05
Goats, mbyp	.05
Hogs, fat	.05
Hogs, kidney	.1
Hogs, liver	.1
Hogs, meat (except liver and kidney)	.05
Hogs, mbyp	.05
Horses, fat	.05
Horses, kidney	.1
Horses, liver	.1
Horses, meat (except liver and kidney)	.05
Horses, mbyp	.05
Milk	.05
Poultry, fat	.05
Poultry, kidney	.01
Poultry, liver	.01
Poultry, meat (except liver and kidney)	.05
Poultry, mbyp	.05
Sheep, fat	.05
Sheep, kidney	.1
Sheep, liver	.1
Sheep, meat (except liver and kidney)	.05
Sheep, mbyp	.05

(c) Tolerances are established in the following irrigated crops and crop groupings for residues of the herbicide fluridone resulting from use of irrigation water containing residues of 0.15 ppm following applications on or around aquatic sites. Where tolerances are established at higher levels from other uses of fluridone on the following crops, the higher tolerance also applies to residues in the irrigated commodity. The tolerances follow:

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Commodity	Parts per million
Avocados	0.1
Citrus	.1
Cottonseed	.1
Cucurbits	.1
Forage grasses	.15
Forage legumes	.15
Fruiting vegetables	.1
Grain crop	.1
Hops	.1
Leafy vegetables	.1
Nuts	.1
Pome fruit	.1
Root crops, vegetables	.1
Seed and pod vegetables	.1
Small fruit	.1
Stone fruit	.1

[51 FR 12146, Apr. 9, 1986, as amended at 55 FR 29829, July 20, 1990]

§ 180.421 Fenarimol; tolerances for residues.

(a) Tolerances are established for residues of the fungicide fenarimol [alpha-(2-chlorophenyl)-alpha-(4-chlorophenyl)-5-pyrimidinemethanol] in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	0.1
Cattle, fat	0.1
Cattle, meat	0.01
Cattle, mbyp	0.01
Cattle, kidney	0.1
Cattle, liver	0.1
Eggs	0.01
Goat, fat	0.1
Goat, meat	0.01
Goat, mbyp	0.01
Goat, kidney	0.1
Goat, liver	0.1
Hog, fat	0.1
Hog, meat	0.01
Hog, mbyp	0.01
Hog, kidney	0.1
Hog, liver	0.1
Horse, fat	0.1
Horse, meat	0.01
Horse, mbyp	0.01
Horse, liver	0.1
Horse, kidney	0.1
Milk	0.003
Pears	0.1
Pecans	0.1
Poultry, fat	0.01
Poultry, meat	0.01
Poultry, mbyp	0.01
Sheep, fat	0.1
Sheep, meat	0.01
Sheep, mbyp	0.01
Sheep, kidney	0.1
Sheep, liver	0.1

(b) A tolerance is established for combined residues of the fungicide

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fenarimol [alpha-(2-chlorophenyl)-alpha-(4-chlorophenyl)-5-pyrimidinemethanol] and its metabolites [alpha-(2-chlorophenyl)-alpha-(4-chlorophenyl)-1,4-dihydro-5-pyrimidinemethanol and 5-[(2-chlorophenyl) (4-chlorophenyl)methyl]-3,4-dihydro-4-pyrimidinol measured as the total of fenarimol and 5-[(2-chlorophenyl)-(4-chlorophenyl)methyl]pyrimidine (calculated as fenarimol)], in or on the following raw agricultural commodities:

Commodity	Parts per million
Bananas ¹	0.5 (Not more than 0.25 ppm shall be present in the pulp after peel is removed)
Cherries	1.0
Grapes	0.2

¹There are no United States registrations for bananas as of April 26, 1995.

[51 FR 39662, Oct. 30, 1986, as amended at 53 FR 27349, July 20, 1988; 53 FR 44403, Nov. 3, 1988; 54 FR 45734, Oct. 31, 1989; 60 FR 33354, June 28, 1995]

§ 180.422 Tralomethrin; tolerances for residues.

Tolerances, to expire on November 15, 1997, are established for the combined residues of the insecticide tralomethrin ((S)-alpha-cyano-3-phenoxybenzyl (1R,3S)-2,2-dimethyl-3-[(RS)-1,2,2,2-tetrabromoethyl]-cyclopropanecarboxylate; CAS Reg. No. 66841-25-6) and its metabolites (S)-alpha-cyano-3-phenoxybenzyl (1R,3R)-3(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate and (S)-alpha-cyano-3-phenoxybenzyl(1S,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate calculated as the parent in or on the following raw agricultural commodities:

Commodity	Parts per million
Broccoli	0.50
Cottonseed	0.02
Lettuce, head	1.00
Lettuce, leaf	3.00
Soybeans	0.05
Sunflower seed	0.05

[50 FR 37852, Sept. 18, 1985, as amended at 52 FR 23039, June 17, 1987; 60 FR 9785, Feb. 22, 1995; 60 FR 49798, Sept. 27, 1995]

§ 180.423 Fenridazon, potassium salt; tolerances for residues.

Tolerances are established for residues of the hybridizing agent potassium salt of fenridazon (1-(4-chlorophenyl)-1,4-dihydro-6-methyl-4-oxo-3-pyridazinecarboxylic acid, potassium salt; CAS Reg. No. 83588-43-6) in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, kidney and liver	1.0
Cattle, meat	0.05
Cattle, mbyp	0.05
Eggs	0.05
Goat, fat	0.05
Goat, kidney and liver	1.0
Goat, meat	0.05
Goat, mbyp	0.05
Hog, fat	0.05
Hog, kidney and liver	1.0
Hog, meat	0.05
Hog, mbyp	0.05
Horse, fat	0.05
Horse, kidney and liver	1.0
Horse, meat	0.05
Horse, mbyp	0.05
Milk	0.05
Poultry, fat	0.30
Poultry, meat	0.30
Poultry, mbyp	0.30
Sheep, fat	0.05
Sheep, kidney and liver	1.0
Sheep, meat	0.05
Sheep, mbyp	0.05
Wheat, grain	40.0
Wheat, straw	25.0

[51 FR 11307, Apr. 2, 1986, as amended at 52 FR 32306, Aug. 27, 1987; 53 FR 23396, June 22, 1988]

§ 180.424 2-(3,5-Dichlorophenyl)-2-(2,2,2-trichloroethyl)-oxirane; tolerances for residues.

Tolerances are established for residues of the herbicide 2-(3,5-dichlorophenyl)-2-(2,2,2-trichloroethyl)-oxirane in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, grain, field	0.05
Corn, fodder	0.10
Corn, forage	0.10

[51 FR 6002, Feb. 19, 1986]

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§ 180.425 Clomazone; tolerances for residues.

Tolerances are established for residues of the herbicide clomazone, 2-(2-chlorophenyl)methyl-4,4-dimethyl-3-isoxazolidinone, in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, snap	0.05
Cabbage	0.1
Cottonseed	0.05
Cucumber	0.1
Peas (succulent)	0.05
Peppers	0.05
Pumpkins	0.1
Soybeans	0.05
Squash, summer	0.1
Squash, winter	0.1
Sweet potato	0.05

[51 FR 9446, Mar. 19, 1986, as amended at 53 FR 3022, Feb. 3, 1988; 53 FR 19907, June 1, 1988; 56 FR 21310, May 8, 1991; 57 FR 59824, Dec. 16, 1992; 58 FR 8697, Feb. 17, 1993; 58 FR 15804, Mar. 24, 1993; 60 FR 54605, Oct. 25, 1995; 61 FR 20745, May 8, 1996]

§ 180.426 2-[4,5-Dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-3-quinoline carboxylic acid; tolerance for residues.

A tolerance is established for residues of the herbicide 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-3-quinoline carboxylic acid, in or on the raw agricultural commodity soybeans at 0.05 part per million.

[51 FR 13309, Apr. 2, 1986]

§ 180.427 (Alpha RS,2R)-fluvalinate [(RS)-alpha-cyano-3-phenoxybenzyl (R)-2-[2-chloro-4-(trifluoromethyl)anilino]-3-methylbutanoate]; tolerances for residues.

(a) Tolerances are established for residues of the insecticide (alpha RS,2R)-fluvalinate [(RS)-alpha-cyano-3-phenoxybenzyl (R)-2-[2-chloro-4-(trifluoromethyl)anilino]-3-methylbutanoate in or on the following raw agricultural commodities:

Commodity	Parts per million
Cottonseed	0.1
Cattle, fat	0.01
Cattle, mby	0.01
Cattle, meat	0.01
Eggs	0.01
Goat, fat	0.01

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Commodity	Parts per million
Goat, mby	0.01
Goat, meat	0.01
Hogs, fat	0.01
Hogs, mby	0.01
Hogs, meat	0.01
Honey	0.05
Horses, fat	0.01
Horses, mby	0.01
Horses, meat	0.01
Milk	0.01
Poultry, fat	0.01
Poultry, mby	0.01
Poultry, meat	0.01
Sheep, fat	0.01
Sheep, mby	0.01
Sheep, meat	0.01

(b) Tolerances with regional registration, as defined in §180.1(n), are established for residues of the insecticide (alpha RS,2R)-fluvalinate[(RS)-alpha-cyano-3-phenoxybenzyl(R)-2-[2-chloro-4-(trifluoromethyl)anilino]-3-methylbutanoate in or on the following commodities:

Commodity	Parts per million
Coffee	0.01

[51 FR 15327, Apr. 23, 1986, as amended at 54 FR 46068, Nov. 1, 1989; 55 FR 14422, Apr. 18, 1990]

§ 180.428 Metsulfuron methyl; tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide metsulfuron methyl (methyl 2-[[[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)amino]carbonyl]amino]sulfonyl]benzoate) and its metabolite methyl 2-[[[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)amino]carbonyl]amino]sulfonyl]-4-hydroxybenzoate in or on the following raw material agricultural commodities:

Commodity	Parts per million
Barley, grain	0.1
Barley, green forage	5.0
Barley, hay	20.0
Barley, straw	0.3
Grass, fodder	15.0
Grass, forage	15.0
Grass, hay	15.0
Sugarcane	0.05
Wheat, grain	0.1
Wheat, green forage	5.0
Wheat, hay	20.0

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Commodity	Parts per million
Wheat, straw	0.3

(b) Tolerances are established for residues of metsulfuron methyl (methyl-2[[[(4-methoxy-6-methyl-1,3,5-triazin-2-yl) amino]carbonyl]amino]sulfonyl]benzoate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.1
Cattle, kidney	0.5
Cattle, meat	0.1
Cattle, mbyp	0.1
Goats, fat	0.1
Goats, kidney	0.5
Goats, meat	0.1
Goats, mbyp	0.1
Hogs, fat	0.1
Hogs, kidney	0.5
Hogs, meat	0.1
Hogs, mbyp	0.1
Horses, fat	0.1
Horses, kidney	0.5
Horses, meat	0.1
Horses, mbyp	0.1
Milk	0.05
Sheep, fat	0.1
Sheep, kidney	0.5
Sheep, meat	0.1
Sheep, mbyp	0.1

[51 FR 12148, Apr. 9, 1986, as amended at 55 FR 10457, Mar. 21, 1990; 56 FR 40258, Aug. 14, 1991; 59 FR 13891, Mar. 24, 1994; 59 FR 25820, May 18, 1994]

§ 180.429 Chlorimuron ethyl; tolerance for residues.

A tolerance is established for the residues of the herbicide chlorimuron ethyl [ethyl 2-[[[(4-chloro-6-methoxypyrimidin-2-yl) amino]carbonyl] amino]sulfonyl] benzoate] in or on the following raw agricultural commodities:

Commodity	Parts per million
Peanuts	0.02
Peanut, hulls	0.05
Soybeans	0.05

[54 FR 27350, June 29, 1989]

§ 180.430 Fenoxaprop-ethyl; tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide fenoxaprop-ethyl [(±)-ethyl 2-[4-[(6-chloro-2-benzoxazolyloxy]phenoxy]propanoate] and its

metabolites [2-[4-](6-chloro-2-benzoxazolyloxy)phenoxy]propanoic acid and 6-chloro-2,3-dihydrobenzoxazol-2-one], each expressed as fenoxaprop-ethyl, in or on the following raw agricultural commodities:

Commodity	Parts per million
Cottonseed	0.05
Peanuts	0.05
Peanut hulls	0.05
Rice grain	0.05
Soybeans	0.05

(b) Time-limited tolerances, to expire November 1, 1997, are established for the combined residues of the herbicide fenoxaprop-ethyl [(±) ethyl 2-[4-[(6-chloro-2-benzoxazolyloxy]phenoxy]propanoate] and its metabolites [2-[4-[(6-chloro-2-benzoxazolyloxy]phenoxy]propanoic acid and 6-chloro-2,3-dihydrobenzoxazol-2-one], each expressed as fenoxaprop-ethyl, in or on the following raw agricultural commodities:

Commodities	Parts per million
Cattle, fat	0.05
Cattle, meat	0.05
Cattle, mbyp	0.05
Goats, fat	0.05
Goats, meat	0.05
Goats, mbyp	0.05
Hogs, fat	0.05
Hogs, meat	0.05
Hogs, mbyp	0.05
Horses, fat	0.05
Horses, meat	0.05
Horses, mbyp	0.05
Milk	0.02
Sheep, fat	0.05
Sheep, meat	0.05
Sheep, mbyp	0.05
Wheat, grain	0.05
Wheat, straw	0.50

[56 FR 42531, Aug. 28, 1991, as amended at 61 FR 21380, May 10, 1996; 61 FR 30165, June 14, 1996]

§ 180.431 Clopyralid; tolerances for residues.

(a) Tolerances are established for residues of the herbicide clopyralid (3,6-dichloro-2-pyridinecarboxylic acid) in or on the following raw agricultural commodities:

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Commodity	Parts per million
Asparagus	1.0
Barley, forage	9.0
Barley, grain	3.0
Barley, straw	9.0
Cattle, fat	1.0
Cattle, kidney	12.0
Cattle, meat	1.0
Cattle, mbyp (except kidney)	1.0
Eggs	0.1
Goats, fat	1.0
Goats, kidney	12.0
Goats, meat	1.0
Goats, mbyp (except kidney)	1.0
Grasses, forage and hay	500.0
Hogs, fat	0.2
Hogs, meat	0.2
Hogs, mbyp	0.2
Horses, fat	1.0
Horses, Kidney	12.0
Horses, meat	1.0
Horses, mbyp (except kidney)	1.0
Milk	0.1
Mint, hay	3.0
Oats, forage	9.0
Oats, grain	3.0
Oats, straw	9.0
Poultry, fat	0.2
Poultry, meat	0.2
Poultry, mbyp	0.2
Sheep, fat	1.0
Sheep, kidney	12.0
Sheep, meat	1.0
Sheep, mbyp (except kidney)	1.0
Sugar beet roots	0.5
Sugar beet tops	0.5
Wheat, forage	9.0
Wheat, grain	3.0
Wheat, straw	9.0

(b) Time-limited tolerances are established as follows for residues of the herbicide clopyralid (3,6-dichloro-2-pyridinecarboxylic acid) in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Cottonseed	0.05	December 31, 1996

[55 FR 33695, Aug. 17, 1990, as amended at 61 FR 19850, May 3, 1996; 61 FR 20743, May 8, 1996]

§ 180.433 Sodium salt of fomesafen; tolerance for residues.

Tolerances are established for the residues of sodium salt of fomesafen, 5-[2-chloro-4-(trifluoromethyl)phenoxy]-N-(methylsulfonyl)-2-nitrobenzamide, in or on soybeans at 0.05 part per million.

[52 FR 12526, Apr. 17, 1987]

Commodity	Parts per million	Expiration date
Field corn, fodder	10.0	December 31, 1996.
Field corn, forage	3.0	December 31, 1996.
Field corn, grain	1.0	December 31, 1996.

[52 FR 10566, Apr. 2, 1987, as amended at 53 FR 33489, Aug. 31, 1988; 55 FR 31183, Aug. 1, 1990; 58 FR 54297, Oct. 21, 1993; 59 FR 19640, Apr. 25, 1994; 60 FR 63958, Dec. 13, 1995]

§ 180.432 Lactofen; tolerances for residues.

(a) Tolerances are established for the combined residues of lactofen, 1-(carboethoxy)ethyl-5-[2-chloro-4-(trifluoromethyl)phenoxy]-2-nitrobenzoate, and its associated metabolites containing the diphenyl ether linkage expressed as lactofen in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, snap	0.05
Soybeans	0.05

(b) A time-limited tolerance, that expired December 31, 1995, is renewed for 1 year and will now expire December 31, 1996, for residues of the herbicide lactofen, 1-(carboethoxy)ethyl-5-[2-chloro-4-(trifluoromethyl)phenoxy]-2-nitrobenzoate, and its metabolites containing the diphenyl ether linkage in or on the following raw agricultural commodity:

§ 180.434 1-[[2-(2,4-dichlorophenyl)-4-propyl-1,3-dioxolan-2-yl]methyl]-1H-1,2,4-triazole; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide 1-[[2-(2,4-dichlorophenyl)-4-propyl-1,3-dioxolan-2-yl] methyl]-1H-1,2,4-triazole and its metabolites determined as 2,4-dichlorobenzoic acid and expressed as parent compound in or on the following raw agricultural commodities:

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Commodity	Parts per million
Apricots	1.0
Bananas	0.2
Barley, grain	0.1
Barley, straw	1.5
Cattle, fat	0.1
Cattle, kidney	2.0
Cattle, liver	2.0
Cattle, meat	0.1
Cattle, mbyp (except kidney and liver)	0.1
Celery	5.0
Eggs	0.1
Goats, fat	0.1
Goats, kidney	2.0
Goats, liver	2.0
Goats, meat	0.1
Goats, mbyp (except kidney and liver)	0.1
Grass, forage	0.5
Grass, hay (straw)	40
Grass, seed screenings	60
Hogs, fat	0.1
Hogs, kidney	2.0
Hogs, liver	2.0
Hogs, meat	0.1
Hogs, mbyp (except kidney and liver)	0.1
Horses, fat	0.1
Horses, kidney	2.0
Horses, liver	2.0
Horses, meat	0.1
Horses, mbyp (except kidney and liver)	0.1
Milk	0.05
Mushrooms	0.1
Nectarines	1.0
Oats, forage	10.0
Oats, grain	0.1
Oats, hay	30.0
Oats, straw	1.0
Peaches	1.0
Pecans	0.1
Plums	1.0
Poultry, fat	0.1
Poultry, kidney	0.2
Poultry, liver	0.2
Poultry, meat	0.1
Poultry, mbyp (except kidney and liver)	0.1
Prunes, fresh	1.0
Rice, grain	0.1
Rice, straw	3.0
Rye, grain	0.1
Rye, straw	1.5
Sheep, fat	0.1
Sheep, kidney	2.0
Sheep, liver	2.0
Sheep, meat	0.1
Sheep, mbyp (except kidney and liver)	0.1
Wheat, grain	0.1
Wheat, straw	1.5

(b) A tolerance with regional registration, as defined in §180.1(n), is established for residues of 1-[[2-(2,4-dichlorophenyl)-4-propyl-1,3-dioxolan-2-yl]methyl]-1H-1,2,4-triazole and its metabolites determined as 2,4-dichlorobenzoic acid and expressed as parent compound, in or on the following raw agricultural commodity:

Commodity	Parts per million
Mint, tops (leaves and stems)	0.3

Commodity	Parts per million
Wild rice	0.5

(c) Tolerances limited by an expiration date are established for residues of 1-[[2-(2,4-Dichlorophenyl)-4-propyl-1,3-dioxolan-2-yl]methyl]-1H-1,2,4-triazole and its metabolites determined as 2,4-dichlorobenzoic acid and expressed as parent compound, in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration Date
Corn, fodder	12	12/31/98
Corn, forage	12	12/31/98
Corn, grain	0.1	12/31/98
Corn, sweet (kernels, plus cobs with husks removed)	0.1	12/31/98
Peanuts	0.2	12/31/98
Peanuts, hay	20.0	12/31/98
Peanuts, hulls	1.0	12/31/98
Pineapple	0.1	12/31/98
Pineapple, fodder	0.1	12/31/98

[58 FR 29551, May 21, 1993, as amended at 59 FR 8137, Feb. 18, 1994; 59 FR 18974, Apr. 21, 1994; 59 FR 26950, May 25, 1994; 61 FR 3328, Jan. 31, 1996; 61 FR 29674, June 12, 1996]

§ 180.435 Deltamethrin; tolerances for residues.

A tolerance is established for residues of the insecticide deltamethrin [(S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] and its major metabolites, *trans*-deltamethrin [(S)-*alpha*-cyano-*m*-phenoxybenzyl(1R,3S)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] and *alpha*-*R*-deltamethrin [(R)-*alpha*-cyano-*m*-phenoxybenzyl-(1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Cottonseed	0.04	Nov. 15, 1997
Tomatoes	0.2	None

[60 FR 42455, Aug. 16, 1995]

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§ 180.436 Cyfluthrin; tolerances for residues.

(a) Tolerances are established for residues of the insecticide cyfluthrin (cyano(4-fluoro-3-phenoxyphenyl)methyl 3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropanecarboxylate; CAS Reg. No. 68359-37-5) in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Alfalfa, forage	5.00	Nov. 15, 1997.
Alfalfa, hay	10.00	Do.
Carrots	0.20	Do.
Cattle, fat	1.00	Do.
Cattle, meat	0.40	Do.
Cattle, mbyp	0.40	Do.
Cottonseed	1.0	Do.
Eggs	0.01	Do.
Goats, fat	1.00	Do.
Goats, meat	0.40	Do.
Goats, mbyp	0.40	Do.
Hogs, fat	1.00	Do.
Hogs, meat	0.40	Do.
Hogs, mbyp	0.40	Do.
Hops, fresh	4.0	None.
Horses, fat	1.00	Nov. 15, 1997.
Horses, meat	0.40	Do.
Horses, mbyp	0.40	Do.
Milkfat (reflecting 0.08 ppm in whole milk).	2.50	Do.
Peppers	0.50	Do.
Poultry, fat	0.01	Do.
Poultry, meat	0.01	Do.
Poultry, mbyp	0.01	Do.
Radishes	1.00	Do.
Sheep, fat	1.00	Do.
Sheep, meat	0.40	Do.
Sheep, mbyp	0.40	Do.
Sugarcane	0.05	Do.
Sunflower, forage	1.00	Do.
Sunflower, seed	0.02	Do.
Tomato	0.20	Do.

(b) Time-limited tolerances are established for residues of the insecticide cyfluthrin (cyano(4-fluoro-3-phenoxyphenyl)methyl 3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropanecarboxylate; CAS Reg. No 68359-37-5) in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Corn, forage and fodder, field and pop	0.01	July 5, 1999
Corn, grain, field and pop	0.01	Do.
Corn, sweet, (K+CWHR)	0.05	Do.
Corn, sweet, fodder	15.00	Do.
Corn, sweet, forage	30.00	Do.

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[53 FR 1924, Jan. 25, 1988, as amended at 54 FR 27643, June 30, 1989; 60 FR 28354, May 31, 1995; 60 FR 33357, June 28, 1995; 60 FR 34876, July 5, 1995; 61 FR 10681, Mar. 15, 1996]

§ 180.437 Methyl 2-(4-isopropyl-4-methyl-5-oxo-2-imidazolin-2-yl)-p-toluate and methyl 6-(4-isopropyl-4-methyl-5-oxo-2-imidazolin-2-yl)-m-toluate; tolerances for residues.

Tolerances are established for the combined residues of the herbicide methyl 2-(4-isopropyl-4-methyl-5-oxo-2-imidazolin-2-yl)-p-toluate and methyl 6-(4-isopropyl-4-methyl-5-oxo-2-imidazolin-2-yl)-m-toluate in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley grain	0.10
Barley straw	2.00
Sunflower seed	0.10
Wheat grain	0.10
Wheat straw	2.00

[53 FR 24069, June 27, 1988]

§ 180.438 Lambda-cyhalothrin; tolerances for residues.

Tolerances to expire on November 15, 1997, are established for the combined residues of the pyrethroid lambda-cyhalothrin and its epimer expressed as: Lambda-cyhalothrin, a 1:1 mixture of (S)-α-cyano-3-phenoxybenzyl-(Z)-(1R,3R)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and (R)-α-cyano-3-phenoxybenzyl-(Z)-(1S,3S)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and its epimer expressed as epimer of lambda-cyhalothrin, a 1:1 mixture of (S)-α-cyano-3-phenoxybenzyl-(Z)-(1S,3S)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and (R)-α-cyano-3-phenoxybenzyl-(Z)-(1R,3R)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate, in or on the following raw agricultural commodities:

Commodity	Parts per million
Broccoli	0.4
Cabbage	0.4
Cattle, fat	3.0

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Commodity	Parts per million
Cattle, meat	0.2
Cattle, mbyp	0.2
Corn, fodder	1.0
Corn, forage	6.0
Corn, grain (field and pop)	0.05
Corn, sweet (K + kwhr)	0.05
Cottonseed	0.05
Dry bulb onion	0.1
Eggs	0.01
Garlic	0.02
Goats, fat	3.0
Goats, meat	0.2
Goats, mbyp	0.2
Hogs, fat	3.0
Hogs, meat	0.2
Hogs, mbyp	0.2
Horses, fat	3.0
Horses, meat	0.2
Horses, mbyp	0.2
Lettuce, head	2.0
Milk, fat (reflecting 0.2 ppm in whole milk)	5.0
Peanuts	0.05
Peanut, hulls	0.05
Poultry, fat	0.01
Poultry, meat	0.01
Poultry, mbyp	0.01
Sheep, fat	3.0
Sheep, meat	0.2
Sheep, mbyp	0.2
Soybeans	0.01
Sorghum, grain	0.2
Sorghum, grain dust	1.5
Sunflower, forage	0.20
Sunflower, seeds	0.2
Tomatoes	0.1
Wheat, forage	2.0
Wheat, grain	0.05
Wheat, grain dust	2.0
Wheat, hay	2.0
Wheat, straw	2.0

[60 FR 15685, Mar. 27, 1995, as amended at 60 FR 34878, July 5, 1995]

§ 180.439 Thifensulfuron methyl (methyl-3-[[[[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)amino]carbonyl]amino]sulfonyl]-2-thiophene carboxylate); tolerances for residues.

Tolerances are established for residues of the herbicide thifensulfuron methyl (methyl-3-[[[[(4-methoxy-6-methyl-1,3,5-triazin-2-yl)amino]carbonyl]amino]sulfonyl]-2-thiophene carboxylate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	0.05
Barley, straw	0.1
Oat, grain	0.05
Oat, straw	0.10
Soybeans	0.1
Wheat, grain	0.05
Wheat, straw	0.1

[59 FR 32085, June 22, 1994]

§ 180.440 Tefluthrin; tolerances for residues.

Tolerances, to expire on November 15, 1997, are established for the combined residues of the insecticide tefluthrin (2,3,5,6-tetrafluoro-4-methylphenyl)methyl-(1-*alpha*, 3-*alpha*)-(Z)-(±)-3(2-chloro-3,3,3-trifluoro-1-propenyl)-2,2-dimethylcyclopropanecarboxylate) and its metabolite (Z)3-3-(2-chloro-3,3,3-trifluoro-1-propenyl)-2,2-dimethylcyclopropanecarboxylic acid raw agricultural commodities:

Commodity	Parts per million
Corn, forage and fodder, field, pop and sweet	0.06
Corn, fresh (including sweet K and CWHR)	0.06
Corn, grain, field and pop	0.06

[61 FR 19854, May 3, 1996]

§ 180.441 Quizalofop ethyl; tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide quizalofop (2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy]propanoic acid) and quizalofop ethyl (ethyl-2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy]propanoate), all expressed as quizalofop ethyl, in or on the raw agricultural commodity soybeans at 0.05 part per million (ppm).

(b) Tolerances are established for the combined residues of the herbicide quizalofop (2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy]propanoic acid), quizalofop-ethyl (ethyl-2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy]propanoate), and quizalofop-methyl (methyl 2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy]propanoate), all expressed as quizalofop ethyl, as follows:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, meat	0.02
Cattle, mbyp	0.05
Eggs	0.02

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Commodity	Parts per million
Goats, fat	0.05
Goats, meat	0.02
Goats, mbyp	0.05
Hogs, fat	0.05
Hogs, meat	0.02
Hogs, mbyp	0.05
Horses, fat	0.05
Horses, meat	0.02
Horses, mbyp	0.05
Milk	0.01
Milk, fat	0.05
Poultry, fat	0.05
Poultry, meat	0.02
Poultry, mbyp	0.05
Sheep, fat	0.05
Sheep, meat	0.02
Sheep, mbyp	0.05

(c) Tolerances are established for the combined residues of the herbicide quizalofop-p ethyl ester [ethyl (R)-(2-[4-((6-chloroquinoxalin-2-yl)oxy)phenoxy]propanoate)], and its acid metabolite quizalofop-p [R-(2-(4-((6-quinoxalin-2-yl)oxy)phenoxy)propanoic acid)], and the S enantiomers of both the ester and the acid, all expressed as quizalofop-p-ethyl ester, in or on the following raw agricultural commodities;

Commodity	Parts per million
Cottonseed	0.1
Lentils	0.05

(d) Time limited tolerances to expire on June 14, 1999 are established for the combined residues of the herbicide quizalofop-p ethyl ester (ethyl (R)-(2-(4-((6-chloroquinoxalin-2-yl)oxy)phenoxy)propanoate) and its acid metabolite quizalofop-p [R-(2-(4-((6-chloroquinoxalin-2-yl)oxy)phenoxy)propanoic acid)], and the S enantiomers of both the ester and the acid, all expressed as quizalofop-p-ethyl ester in or on the following raw agricultural commodities:

Commodities	Parts per million
Foliage of legume vegetables (except soybeans).	3.0
Legume vegetables (succulent or dried) group.	0.25
Sugarbeet, root	0.1

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Commodities	Parts per million
Sugarbeet, top	0.5

EDITORIAL NOTE: At 61 FR 30175, June 14, 1996, paragraph (d) was added to §180.441. At 61 FR 31042, June 19, 1996, a second paragraph (d) was added. The second paragraph (d), which is set forth below, will be redesignated as paragraph (e) at a later date.

(d) Tolerances with regional registration, as defined in §180.1(n), are established for the combined residues of the herbicide quizalofop-p ethyl ester [ethyl (R)-2-[4-((6-chloroquinoxalin-2-yl)oxy)phenoxy] propionate], its acid metabolite quizalofop-p [R-(2-[4-((6-chloroquinoxalin-2-yl)oxy)phenoxy]) propanoic acid], and the S enantiomers of both the ester and the acid, all expressed as quizalofop-p ethyl ester, in or the raw agricultural commodities, as follows:

Commodity	Parts per million
Pineapple	0.1

[53 FR 23392, June 22, 1988, as amended at 61 FR 30175, June 14, 1996; 61 FR 31042, June 19, 1996]

§ 180.442 Bifenthrin; tolerances for residues.

(a) Tolerances, to expire November 15, 1997, are established for residues of the pyrethroid bifenthrin, (2-methyl(1,1-biphenyl)-3-yl)methyl-3-(2-chloro-3,3,3-trifluoro-1-propenyl)-2,2-dimethylcyclopropanecarboxylate, in or on the following commodities:

Commodity	Parts per million
Cattle, fat	1.0
Cattle, meat	0.5
Cattle, mbyp	0.10
Corn, fodder	5.0
Corn, forage	2.0
Corn, grain (field, seed, and pop)	0.05
Cottonseed	0.5
Eggs	0.05
Goats, fat	1.0
Goats, meat	0.5
Goats, mbyp	0.10
Hogs, fat	1.0
Hogs, meat	0.5
Hogs, mbyp	0.10
Hops, dried	10.0
Horses, fat	1.0
Horses, meat	0.5

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Commodity	Parts per million
Horses, mby	0.10
Milk, fat (reflecting 0.1 ppm in whole milk)	1.0
Poultry, fat	0.05
Poultry, meat	0.05
Poultry, mby	0.05
Sheep, fat	1.0
Sheep, meat	0.5
Sheep, mby	0.10

(b) Tolerances, are established for residue of the pyrethroid bifenthrin, (2-methyl(1,1-biphenyl)-3-yl)methyl-3-(2-chloro-3,3,3-trifluoro-1-propenyl)-2,2-dimethylcyclopropanecarboxylate, in or on the following commodity:

Commodity	Parts per million
Strawberries	3.00

[59 FR 46192, Sept. 7, 1994, as amended at 61 FR 29678, June 12, 1996]

§ 180.443 Myclobutanil; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide myclobutanil [alpha-butyl-alpha-(4-chlorophenyl)-1H-1,2,4-triazole-1-propanenitrile] and its metabolite alpha-(3-hydroxybutyl)-alpha-(4-chlorophenyl)-1H-1,2,4-triazole-1-propanenitrile (free and bound) in or on:

Commodity	Parts per million
Almond hulls	2.0
Almond nutmeat	0.1
Apples	0.5
Cherries (sweet and sour)	5.0
Cotton seed	0.02
Grapes	1.0
Stone fruits (except cherries)	2.0

(b) Tolerances are established for the combined residues of the fungicide myclobutanil [alpha-butyl-alpha-(4-chlorophenyl)-1H-1,2,4-triazole-1-propanenitrile] and its metabolites, alpha-(3-hydroxybutyl)-alpha-(4-chlorophenyl)-1H-1,2,4-triazole-1-propanenitrile] (free and bound) and alpha-(4-chlorophenyl)-alpha-(3,4-dihydroxybutyl)-1H-1,2,4-triazole-1-propanenitrile, in:

Commodity	Parts per million
Milk	0.2

(c) Tolerances are established for the combined residues of the fungicide myclobutanil [alpha-butyl-alpha-(4-chlorophenyl)-1H-1,2,4-triazole-1-propanenitrile] and its metabolite alpha-(3-hydroxybutyl)-alpha-(4-chlorophenyl)-1H-1,2,4-triazole-1-propanenitrile (free) in:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, liver	1.0
Cattle, meat	0.1
Cattle, mby (except liver)	0.2
Eggs	0.02
Goats, fat	0.05
Goats, liver	1.0
Goats, meat	0.1
Goats, mby (except liver)	0.2
Hogs, fat	0.05
Hogs, liver	1.0
Hogs, meat	0.1
Hogs, mby (except liver)	0.2
Horses, fat	0.05
Horses, liver	1.0
Horses, meat	0.1
Horses, mby (except liver)	0.2
Poultry, fat	0.02
Poultry, meat	0.02
Poultry, mby	0.02
Sheep, fat	0.05
Sheep, liver	1.0
Sheep, meat	0.1
Sheep, mby (except liver)	0.2

[54 FR 6131, Feb. 8, 1989, as amended at 60 FR 40503, Aug. 9, 1995]

§ 180.444 Sulfur dioxide; tolerances for residues.

A tolerance is established as follows for sulfite residues of the fungicide sulfur dioxide (determined as (SO₂)) in or on the following raw agricultural commodity(ies):

Commodity	Parts per million
Grapes, post-H	10.0

[54 FR 20126, May 10, 1989]

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§ 180.445 Bensulfuron methyl ester; tolerances for residues.

Tolerances are established for residues of the herbicide bensulfuron methyl ester (methyl-2[[[(4,6-dimethoxypyrimidin-2-yl)amino]carbonyl]amino]sulfonyl methyl]benzoate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Rice	0.02
Rice, straw	0.05

[54 FR 17950, Apr. 26, 1989]

§ 180.446 Clofentezine; tolerances for residues.

(a) [Reserved]

(b) Tolerances are established for residues of the insecticide clofentezine (3,6-bis(2-chlorophenyl)-1,2,4,5-tetrazine) in or on the following raw agricultural commodities:

Commodity	Parts per million
Almonds, hulls	5.0
Almonds, nutmeat	0.5
Apples	0.01
Apricots	1.0
Cherries	1.0
Nectarines	1.0
Peaches	1.0
Pears	0.5
Walnuts	0.02

(c) Tolerances are established for the combined residues of clofentezine and the 3-(2-chloro-4-hydroxyphenyl)-6-(2-chlorophenyl)-1,2,4,5-tetrazine metabolite in or on the following commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, liver	0.4
Cattle, meat	0.05
Cattle, mbyp (except liver)	0.05
Goat, fat	0.05
Goat, liver	0.4
Goat, meat	0.05
Goat, mbyp (except liver)	0.05
Hog, fat	0.05
Hog, liver	0.4
Hog, meat	0.05
Hog, mbyp (except liver)	0.05
Horse, fat	0.05
Horse, liver	0.4
Horse, meat	0.05
Horse, mbyp (except liver)	0.05
Milk	0.01

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Commodity	Parts per million
Sheep, fat	0.05
Sheep, liver	0.4
Sheep, meat	0.05
Sheep, mbyp (except liver)	0.05

[56 FR 15503, Apr. 17, 1991, as amended at 56 FR 22335, May 15, 1991; 59 FR 26947, May 25, 1994; 60 FR 12709, Mar. 8, 1995]

§ 180.447 Imazethapyr, ammonium salt; tolerance for residues.

(a) Tolerances are established for residues of the herbicide imazethapyr, 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-5-ethyl-3-pyridine carboxylic acid, as the ammonium salt, in or on the following raw agricultural commodities:

Commodity	Parts per million
Legume vegetables	0.1
Soybeans	0.1

(b) Tolerances are established for the sum of the residues of the herbicide imazethapyr, 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-5-ethyl-3-pyridine carboxylic acid, as its ammonium salt, and its metabolite, 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-5-(1-hydroxyethyl)-3-pyridine carboxylic acid both free and conjugated in or on the following commodities:

Commodity	Parts per million
Alfalfa, forage	3.0
Alfalfa, hay	3.0
Peanuts	0.1
Peanuts, hulls	0.1

(c) A tolerance is established for the sum of residues of the herbicide imazethapyr, 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-5-ethyl-3-pyridine carboxylic acid, as its ammonium salt, and its metabolite, 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-5-(1-hydroxyethyl)-3-pyridine carboxylic acid, in or on the following commodities:

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Commodity	Parts per million
Corn grain, fodder, and forage	0.1

(d) Tolerances with regional registration, as defined in §180.1(n) of this chapter, are established for the sum of residues of the herbicide imazethapyr, 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-5-ethyl-3-pyridine carboxylic acid, as its ammonium salt, and its metabolite, 2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1H-imidazol-2-yl]-5-(1-hydroxyethyl)-3-pyridine carboxylic acid, both free and conjugated, in or on the following raw agricultural commodities:

Commodity	Parts per million
Endive (escarole)	0.1
Lettuce (head and leaf)	0.1

[56 FR 23521, May 22, 1991, as amended at 57 FR 22181, May 27, 1992; 58 FR 64492, Dec. 8, 1993; 60 FR 4093, Jan. 20, 1995; 60 FR 31255, June 14, 1995]

§ 180.448 Hexythiazox; tolerance for residues.

A tolerance is established for the combined residues of the acaricide hexythiazox, trans-5-(4-chlorophenyl)-N-cyclohexyl-4-methyl-2-oxothiazolidine-3-carboxamide and its metabolites containing the (4-chlorophenyl)-4-methyl-2-oxo-3-thiazolidine moiety (expressed as parts per million of the parent compound) in or on the following commodity:

Commodity	Part per million
Apples	0.02
Pears	0.30

[54 FR 17948, Apr. 26, 1989, as amended at 61 FR 6554, Feb. 21, 1996]

§ 180.449 Avermectin B₁ and its delta-8,9-isomer; tolerances for residues.

(a) Tolerances are established for the combined residues of the insecticide avermectin B₁ [a mixture of avermectins containing greater than or

equal to 80% avermectin B_{1a} (5-O-demethyl avermectin A₁) and less than or equal to 20% avermectin B_{1b} (5-O-demethyl-25-de(1-methylpropyl)-25-(1-methylethyl) avermectin A₁)] and its delta-8,9-isomer in or on the following commodities:

Commodity	Parts per million	Expiration date
Cattle, fat	0.015	Apr. 30, 1996
Cattle, meat	0.02	Do
Cattle, mbyp	0.02	Do
Citrus whole fruit	0.02	Do
Cottonseed	0.005	Do
Hops, dried	0.5	Dec. 31, 1996
Milk	0.005	Apr. 30, 1996

(b) A tolerance is established for the combined residues of the the insecticide avermectin B₁ [a mixture of avermectins containing greater than or equal to 80 percent avermectin B_{1a} (5-O-demethyl avermectin A_{1a}) and less than or equal to 20 percent avermectin B_{1b} (5-O-demethyl-25-de(1-methylpropyl)-25-(1-methylethyl) avermectin A_{1a})] and its delta-8,9-isomer in or on the following commodities:

Commodity	Parts per million
Almonds	0.005
Apples	0.020
Celery	0.05
Cucurbits (cucumbers, mellons, and squashes)	0.005
Lettuce, head	0.05
Pears	0.02
Peppers, bell	0.01
Strawberry	0.02
Tomatoes, fresh	0.01
Walnuts	0.005

[56 FR 65004, Dec. 13, 1991, as amended at 60 FR 13915, Mar. 15, 1995; 60 FR 57365, Nov. 15, 1995; 60 FR 65578, Dec. 20, 1995; 61 FR 4594, Feb. 7, 1996; 61 FR 9352, Mar. 8, 1996; 61 FR 15902, Apr. 10, 1996; 61 FR 20746, May 8, 1996]

§ 180.450 Beta-(4-Chlorophenoxy)-alpha-(1,1-dimethylethyl)-1H-1,2,4-triazole-1-ethanol; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide beta-(4-chlorophenoxy)-alpha-(1,1-dimethyl-ethyl)-1H-1,2,4-triazole-1-ethanol (triademenol) and its butanediol

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metabolite, 4-(4-chlorophenoxy)-2,2-dimethyl-4-(1*H*-1,2,4-triazol-1-yl)-1,3-butanediol, calculated as triadimenol, in or on the following commodities:

Commodity	Parts per million
Bananas (whole) ¹	0.2
Barley, grain	0.05
Barley, green forage	2.5
Barley, straw	0.2
Corn, fodder	0.05
Corn, fresh (including sweet) (K+CWHR)	0.05
Corn, forage	0.05
Corn, grain	0.05
Cotton, forage	0.02
Cottonseed	0.02
Oats, grain	0.05
Oats, green forage	2.5
Oats, straw	0.2
Rye, grain	0.05
Rye, green forage	2.5
Rye, straw	0.1
Sorghum, grain	0.01
Sorghum, green forage	0.05
Sorghum, fodder	0.01
Wheat, grain	0.05
Wheat, green forage	2.5
Wheat, straw	0.2

¹ There are no U.S. registrations for bananas (whole) as of September 22, 1993.

(b) Tolerances are established for the combined residues of the fungicide *beta*-(4-chlorophenoxy)-*alpha*-(1,1-dimethylethyl)-1*H*-1,2,4-triazole-1-ethanol (triadimenol) and its metabolites containing the chlorophenoxy moiety, calculated as triadimenol, in or on the following commodities:

Commodity	Parts per million
Cattle, fat	0.1
Cattle, meat	0.1
Cattle, mbyp	0.1
Eggs	0.01
Goats, fat	0.1
Goats, meat	0.1
Goats, mbyp	0.1
Hogs, fat	0.1
Hogs, meat	0.1
Hogs, mbyp	0.1
Horses, fat	0.1
Horses, meat	0.1
Horses, mbyp	0.1
Milk	0.01
Poultry, fat	0.01
Poultry, meat	0.01
Poultry, mbyp	0.01
Sheep, fat	0.1
Sheep, meat	0.1
Sheep, mbyp	0.1

[54 FR 31836, Aug. 2, 1989, as amended at 58 FR 46087, Sept. 1, 1993; 58 FR 62039, Nov. 24, 1993; 59 FR 44935, Aug. 31, 1994]

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§ 180.451 Tribenuron methyl; tolerances for residues.

(a) Tolerances are established for the residues of the herbicide tribenuron methyl (methyl-2-[[[*N*-(4-methoxy-6-methyl-1,3,5-triazin-2-yl) methylamino] carbonyl]amino]sulfonyl] benzoate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain	0.05
Barley, straw	0.10
Oat, grain	0.05
Oat, straw	0.10
Wheat, grain	0.05
Wheat, straw	0.10

(b) Tolerances with regional registration, as defined in § 180.1(n) are established for residues of the herbicide tribenuron methyl (methyl-2-[[[*N*-(4-methoxy-6-methyl-1,3,5-triazin-2-yl) methylamino] carbonyl]amino]sulfonyl]benzoate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Grass forage, fodder and hay group (except Bermudagrass); forage	0.10
Grass forage, fodder and hay group (except Bermudagrass); hay	0.10

[59 FR 32085, June 22, 1994, as amended at 61 FR 14639, Apr. 3, 1996]

§ 180.452 Primisulfuron-methyl; tolerances for residues.

Tolerances are established for residues of primisulfuron-methyl (3-[4,6-bis-(difluoromethoxy)-pyrimidin-2-yl]-1-(2-methoxycarbonylphenylsulfonyl)urea) in or on the following raw agricultural commodities.

Commodity	Parts per million
Cattle, fat	0.10
Cattle, meat	0.10
Cattle, mbyp	0.10
Corn, fodder	0.10
Corn, forage	0.10
Corn, fresh (including sweet kernels plus cobs with husks removed)	0.10
Corn, grain	0.02
Eggs	0.10
Goats, fat	0.10

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Commodity	Parts per million
Goats, meat	0.10
Goats, mbyp	0.10
Hogs, fat	0.10
Hogs, meat	0.10
Hogs, mbyp	0.10
Horses, fat	0.10
Horses, meat	0.10
Horses, mbyp	0.10
Milk	0.02
Poultry, fat	0.10
Poultry, meat	0.10
Poultry, mbyp	0.10
Sheep, fat	0.10
Sheep, meat	0.10
Sheep, mbyp	0.10

[55 FR 21548, May 25, 1990]

§ 180.454 Nicosulfuron, [3-pyridinecarboxamide, 2-(((4,6-dimethoxypyrimidin-2-yl)aminocarbonyl)aminosulfonyl))-N,N-dimethyl]; tolerances for residues.

Tolerances are established for the residues of the herbicide nicosulfuron [3-pyridinecarboxamide, 2-(((4,6-dimethoxypyrimidin-2-yl)aminocarbonyl)aminosulfonyl))-N,N-dimethyl] in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, grain	0.1
Corn, fodder	0.1
Corn, forage	0.1
Corn, silage	0.1
Corn, sweet (kernels plus cobs with husks removed)	0.1
Corn, sweet, fodder (stover)	0.1
Corn, sweet, forage	0.1

[55 FR 28621, July 12, 1990, as amended at 61 FR 7734, Feb. 29, 1996]

§ 180.455 Procymidone; tolerances for residues.

A tolerance is established for the residues of the fungicide procymidone, N-(3,5-dichlorophenyl)-1,2-dimethylcyclopropane-1,2-dicarboximide, in or on the following raw agricultural commodity:

Commodity	Parts per million
Wine grapes	5.0

[59 FR 42514, Aug. 18, 1994]

§ 180.456 Oxadixyl; tolerances for residues.

Tolerances are established for the combined residues of the fungicide oxadixyl [2-methoxy-N-(2-oxo-1,3-oxazolidin-3-yl)-acet-2',6'-xylidide] and its desmethyl (M-3) metabolite (2-hydroxy-N-(2-oxo-1,3-oxazolidin-3-yl)-acet-2',6'-xylidide), calculated as oxadixyl in or on the raw agricultural commodities cotton seed, peas, soybeans, sunflower seed and the crop groupings fruiting vegetables (except cucurbits) group, cucurbit vegetables group, leafy vegetables (except Brassica vegetables) group, Brassica (cole) leafy vegetables group, root and tuber vegetables group, cereal grains group (except wheat), grass forage, fodder and hay group, and nongrass animal feeds (forage, fodder, straw, and hay) group at 0.1 part per million.

[57 FR 8844, Mar. 13, 1992]

§ 180.457 Beta-([1,1'-biphenyl]-4-yloxy)-alpha-(1,1-dimethylethyl)-1H-1,2,4-triazole-1-ethanol; tolerances for residues.

A tolerance is established for the residues of the fungicide beta-([1,1'-biphenyl]-4-yloxy)-alpha-(1,1-dimethylethyl)-1H-1,2,4-triazole-1-ethanol in or on the following raw agricultural commodity:

Commodity	Parts per million
Bananas (whole)	0.2

There are no U.S. registrations as of April 1, 1992.

[57 FR 29032, June 30, 1992]

§ 180.458 Clethodim ((E)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one); tolerances for residues.

(a) Tolerances are established for the combined residues of the herbicide clethodim ((E)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one) and its metabolites containing the 2-cyclohexen-1-one moiety in or on the following raw agricultural commodities.

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Commodity	Parts per million
Cattle, fat	0.2
Cattle, meat	0.2
Cattle, mbyp	0.2
Cottonseed	1.0
Eggs	0.2
Goats, fat	0.2
Goats, meat	0.2
Goats, mbyp	0.2
Hogs, fat	0.2
Hogs, meat	0.2
Hogs, mbyp	0.2
Horses, fat	0.2
Horses, meat	0.2
Horses, mbyp	0.2
Milk	0.05
Potatoes	0.5
Poultry, fat	0.2
Poultry, meat	0.2
Poultry, mbyp	0.2
Sheep, fat	0.2
Sheep, meat	0.2
Sheep, mbyp	0.2
Soybeans	10.0

(b) Tolerances are established for the herbicide clethodim [(E)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one] and its metabolites containing the 5-(2-ethylthiopropyl)cyclohexen-3-one and 5-(2-ethylthiopropyl)-5-hydroxycyclohexen-3-one moieties and their sulphoxides and sulphones, expressed as clethodim tolerance residues for the following raw agricultural commodities:

Commodity	Parts per million
Onions (dry bulb)	0.20
Sugar beet, roots	0.20
Sugar beet, tops	0.50

[59 FR 4835, Feb. 2, 1994, as amended at 60 FR 33360, June 28, 1995; 60 FR 40505, Aug. 9, 1995]

§ 180.459 Triasulfuron; tolerances for residues.

(a) Tolerances are established for residues of the herbicide triasulfuron [3-(6-methoxy-4-methyl-1,3,5-triazin-2-yl)-1-(2-(2-chloroethoxy)phenylsulfonyl)urea] in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, forage	5.0
Barley, grain	0.02

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Commodity	Parts per million
Barley, straw	2.0
Cattle, fat	0.1
Cattle, mbyp except kidney	0.1
Cattle, meat	0.1
Goats, fat	0.1
Goats, mbyp except kidney	0.1
Goats, meat	0.1
Hogs, fat	0.1
Hogs, mbyp	0.1
Hogs, meat	0.1
Horses, fat	0.1
Horses, mbyp except kidney	0.1
Horses, meat	0.1
Milk	0.02
Sheep, fat	0.1
Sheep, mbyp except kidney	0.1
Sheep, meat	0.1
Wheat, forage	5.0
Wheat, grain	0.02
Wheat, straw	2.0

(b) Time-limited tolerances are established for residues of the herbicide triasulfuron [3-(6-methoxy-4-methyl-1,3,5-triazin-2-yl)-1-(2-(2-chloroethoxy)phenylsulfonyl)urea] in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Cattle, kidney	0.5	July 20, 1998.
Goats, kidney	0.5	Do.
Grass, forage	7.0	Do.
Grass, hay	2.0	Do.
Horses, kidney	0.5	Do.
Sheep, kidney	0.5	Do.

[60 FR 36731, July 18, 1995]

§ 180.460 4-(Dichloroacetyl)-3,4-dihydro-3-methyl-2H-1,4-benzoxazine; tolerances for residues.

Tolerances, to expire on December 1, 1996, are established at 0.01 part per million (ppm) for residues of 4-(dichloroacetyl)-3,4-dihydro-3-methyl-2H-1,4-benzoxazine when used as an inert ingredient (safener) in pesticide formulations containing metolachlor in or on the raw agricultural commodities for which a tolerance has been established for metolachlor. Metolachlor tolerances are established under § 180.368.

[57 FR 29031, June 30, 1992]

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§ 180.461 Cadusafos; tolerances for residues.

A tolerance is established for the residues of the nematocide/insecticide cadusafos, *O*-ethyl *S,S*-di-*sec*-butyl phosphorodithioate, in or on the following raw agricultural commodity:

Commodity	Parts per million
Bananas	0.01

There are no U.S. registrations as of May 10, 1994, for the nematocide/insecticide cadusafos.

[59 FR 39467, Aug. 3, 1994]

§ 180.462 Pyridate; tolerances for residues.

Tolerances are established for the combined residues of the herbicide pyridate (*O*-(6-chloro-3-phenyl-4-pyridazinyl)-*S*-octyl-carbonothioate), the metabolite 6-chloro-3-phenyl-pyridazine-4-ol and conjugates of 6-chloro-3-phenyl-pyridazine-4-ol, expressed as pyridate, in or on the following raw agricultural commodities:

Commodity	Parts per million
Cabbage	0.03
Corn, fodder	0.03
Corn, forage	0.03
Corn, grain	0.03
Corn, silage	0.03
Peanut, hulls	0.03
Peanut, nutmeat	0.03

[57 FR 54303, Nov. 18, 1992]

§ 180.463 3,7-Dichloro-8-quinoline carboxylic acid; tolerances for residues.

Tolerances are established for residues of the herbicide 3,7-dichloro-8-quinoline carboxylic acid in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, mbyp	0.05
Cattle, meat	0.05
Eggs	0.05
Goats, fat	0.05
Goats, mbyp	0.05
Goats, meat	0.05
Hogs, fat	0.05
Hogs, mbyp	0.05
Hogs, meat	0.05
Horses, fat	0.05

Commodity	Parts per million
Horses, mbyp	0.05
Horses, meat	0.05
Milk	0.05
Poultry, fat	0.05
Poultry, mbyp	0.1
Poultry, meat	0.05
Rice grain	5.0
Rice, straw	12.0
Sheep, fat	0.05
Sheep, mbyp	0.1
Sheep, meat	0.05

[57 FR 47996, Oct. 21, 1992]

§ 180.464 Dimethenamid, 2-chloro-*N*-[(1-methyl-2-methoxy)ethyl]-*N*-(2,4-dimethylthien-3-yl)-acetamide; tolerances for residues.

Tolerances are established for residues of the herbicide dimethenamid, 1(*R,S*)-2-chloro-*N*-[(1-methyl-2-methoxy)ethyl]-*N*-(2,4-dimethylthien-3-yl)-acetamide in or on the following raw agricultural commodities:

Commodity	Parts per million
Beans, dry	0.01
Corn, grain	0.01
Corn, fodder	0.01
Corn, forage	0.01
Corn, sweet, fodder (stover)	0.01
Corn, sweet, forage	0.01
Corn, sweet (kernels plus cobs with husks removed)	0.01
Peanut, hay	0.01
Peanut, nutmeat	0.01
Sorghum, grain, fodder	0.01
Sorghum, grain, forage	0.01
Sorghum, grain	0.01
Soybeans	0.01

[58 FR 14317, Mar. 17, 1993, as amended at 59 FR 16144, Apr. 6, 1994; 61 FR 10684, Mar. 15, 1996]

§ 180.465 4-(Dichloroacetyl)-1-oxa-4-azaspiro[4.5]decane; tolerances for residues.

Tolerances, to expire on January 31, 1998, are established for residues of 4-(dichloroacetyl)-1-oxa-4-azaspiro[4.5]decane (CAS Reg. No. 71526-07-3) when used as an inert ingredient (safener) in pesticide formulations applied to corn fields before the corn plants emerge from the soil with a maximum use level of 0.4 pound per acre per year in or on the following raw agricultural commodities:

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Commodity	Parts per million
Corn, fodder (field)	0.005
Corn, forage (field)	0.005
Corn, grain (field)	0.005

[58 FR 32301, June 9, 1993]

Commodity	Parts per million	Expiration date
Cottonseed	1.0	Nov. 15, 1997.
Cattle, fat	0.02	Do.
Cattle, mbyp	0.02	Do.
Cattle, meat	0.02	Do.
Eggs	0.02	Do.
Goats, fat	0.02	Do.
Goats, mbyp	0.02	Do.
Goats, meat	0.02	Do.
Hogs, fat	0.02	Do.
Hogs, mbyp	0.02	Do.
Hogs, meat	0.02	Do.
Horses, fat	0.02	Do.
Horses, mbyp	0.02	Do.
Horses, meat	0.02	Do.
Milkfat (reflecting 0.02 ppm in whole milk)	0.03	Do.
Poultry, fat	0.02	Do.
Poultry, mbyp	0.02	Do.
Sheep, fat	0.02	Do.
Sheep, mbyp	0.02	Do.
Sheep, meat	0.02	Do.
Strawberries	2.0	Do.
Tomatoes	0.6	Do.

[58 FR 19358, Apr. 14, 1993, as amended at 60 FR 9785, Feb. 22, 1995; 60 FR 49795, Sept. 27, 1995]

§ 180.467 Carbon disulfide; tolerances for residues.

Tolerances are established for the nematocide, insecticide, and fungicide carbon disulfide, from the application of sodium tetrathiocarbonate, in or on the following raw agricultural commodities:

Commodity	Parts per million
Grapefruit	0.1
Grapes	0.1
Lemons	0.1
Oranges	0.1

[58 FR 33771, June 21, 1993]

§ 180.468 Flumetsulam; tolerances for residues.

Tolerances are established for residues of the herbicide flumetsulam, *N*-(2,6-difluorophenyl)-5-methyl-(1,2,4)-triazolo-[1,5a]-pyrimidine-2-sulfonamide, in or on the following raw agricultural commodities:

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§ 180.466 Fenpropathrin; tolerances for residues.

Tolerances are established for residues of the pesticide chemical fenpropathrin (*alpha*-cyano-3-phenoxybenzyl 2,2,3,3-tetramethylcyclopropanecarboxylate) in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, field, grain	0.05
Corn, field, fodder	0.05
Corn, field, forage	0.05
Soybeans	0.05

[58 FR 57967, Oct. 28, 1993]

§ 180.469 *N,N*-Diallyl dichloroacetamide; tolerances for residues.

Time-limited tolerances, to expire December 31, 1998, are established for residues of *N,N*-diallyl dichloroacetamide (CAS Reg. No. 37764-25-3) when used as an inert ingredient (safener) in pesticide formulations applied to corn fields before the corn plants emerge from the soil with a maximum use level of 1.0 pound of this safener per acre per year in or on the following raw agricultural commodities:

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Commodity	Parts per million
Corn, forage (field)	0.05
Corn, fodder (field)	0.05
Corn, grain (field)	0.05

[59 FR 12857, Mar. 18, 1994]

§ 180.470 Acetochlor; tolerances for residues.

Tolerances are established for residues of acetochlor, 2-chloro-2'-methyl-6-ethyl-N-ethoxymethylacetanilide, and its metabolites containing the ethyl methyl aniline (EMA) moiety and the hydroxyethyl methyl aniline (HEMA) moiety, to be analyzed as acetochlor, and expressed as acetochlor equivalents, in or on the following raw agricultural commodities.

Commodity	Parts per million
Field corn, fodder	1.5
Field corn, forage	1.0
Field corn, grain	0.05
Sorghum, fodder	0.1
Sorghum, forage	0.1
Sorghum, grain	0.02
Soybean, forage	0.7
Soybean, grain	0.1
Soybean, hay	1.0
Wheat, forage	0.5
Wheat, grain	0.02
Wheat, straw	0.1

[59 FR 13658, Mar. 23, 1994, as amended at 59 FR 26955, May 25, 1994]

§ 180.471 3-Dichloroacetyl-5-(2-furanyl)-2,2-dimethyloxazolidine; tolerances for residues.

Tolerances, to expire June 30, 1996, are established for residues of 3-dichloroacetyl-5-(2-furanyl)-2,2-dimethyloxazolidine (CAS Reg. No. 121776-33-8) when used as an inert ingredient (safener) in pesticide formulations in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Corn, fodder (field)	0.01	June 30, 1996.
Corn, forage (field)	0.01	June 30, 1996.
Corn, grain (field)	0.01	June 30, 1996.

[59 FR 24059, May 10, 1994]

§ 180.472 1-[(6-Chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine; tolerances for residues.

(a) Tolerances are established permitting the combined residues of the insecticide 1-[6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine and its metabolites containing the 6-chloropyridinyl moiety, all expressed as 1-[(6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine, in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	0.5
Brassica vegetables crop group	3.5
Canola	0.05
Cattle, fat	0.3
Cattle, mbyp	0.3
Cattle, meat	0.3
Cotton, gin byproducts	4.0
Cottonseed	6.0
Eggs	0.02
Fruiting vegetables crop group	1.0
Goats, fat	0.3
Goats, mbyp	0.3
Goats, meat	0.3
Grapes	1.0
Hogs, fat	0.3
Hogs, mbyp	0.3
Hogs, meat	0.3
Hops, dried	6
Horses, fat	0.3
Horses, mbyp	0.3
Horses, meat	0.3
Leafy greens subgroup	3.5
Leafy vegetables crop group	3.5
Lettuce, head and leaf	3.5
Mango	0.2
Milk	0.1
Pome fruits crop group	0.6
Potatoes	0.3
Poultry, fat	0.05
Poultry, mbyp	0.05
Poultry, meat	0.05
Sheep, fat	0.3
Sheep, mbyp	0.3
Sheep, meat	0.3

(b) [Reserved]

(c) Time-limited tolerances, to expire November 17, 1997, are established permitting the combined residues of the insecticide 1-[(6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine and its metabolites containing the 6-chloropyridinyl moiety, all expressed as 1-[(6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine, in or on the following raw agricultural commodities:

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Commodity	Parts per million
Sorghum, forage	0.1
Sorghum, straw	0.1
Sorghum, grain	0.05

Residues in these commodities not in excess of the established tolerances resulting from the use described in this paragraph remaining after expiration of the time-limited tolerance will not be considered to be actionable if the insecticide is applied during the term of and in accordance with the provisions of the above regulation.

(d) [Reserved]

(e)(1) Time-limited tolerances are established for residues of the insecticide 1-[6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine and its metabolites containing the 6-chloropyridinyl moiety, all expressed as 1-[(6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine, in or on the following raw agricultural commodities

Commodity	Parts per million	Expiration date
Barley, forage	1.5	Nov. 28, 1998
Barley, grain	0.05	Do.
Barley, straw	0.2	Do.
Beets, sugar (roots)	0.05	Aug. 24, 1998
Beets, sugar (tops)	0.1	Do.
Wheat, forage	7.0	Do.
Wheat, grain	0.05	Do.
Wheat, straw	0.3	Do.

(2) Residues in the commodities listed in paragraph (e)(1) of this section not in excess of the established tolerances resulting from the uses described in this paragraph (e) remaining after expiration of the time-limited tolerances will not be considered to be actionable if the insecticide is applied during the term of and in accordance with the provisions of the above regulation in this paragraph (e).

(f) Time-limited indirect or inadvertent tolerance: A time-limited tolerance, to expire on December 31, 1996, is established for indirect or inadvertent combined residues of the insecticide 1-[6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine and its metabolites containing the 6-chloropyridinyl moiety, all expressed as 1-[(6-chloro-3-pyridinyl)methyl]-N-

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nitro-2-imidazolidinimine, when present therein as a result of the application of the pesticide to growing crops listed in this section and other nonfood crops as follows:

Commodities	Parts per million
Vegetables, cucurbit	0.2

[59 FR 61278, Nov. 30, 1994, as amended at 59 FR 61553, Dec. 1, 1994; 60 FR 378, Jan. 4, 1995; 60 FR 9783, Feb. 22, 1995; 60 FR 12705, Mar. 8, 1995; 60 FR 18549, Apr. 12, 1995; 60 FR 45067, 45069, Aug. 30, 1995; 60 FR 63956, Dec. 13, 1995; 61 FR 5712, 5716, Feb. 14, 1996; 61 FR 7736, Feb. 29, 1996; 61 FR 19857, May 3, 1996; 61 FR 29676, June 12, 1996]

§ 180.473 Glufosinate ammonium; tolerances for residues.

(a)(1) Time-limited tolerances are established for residues of the herbicide glufosinate ammonium (butanoic acid, 2-amino-4-(hydroxymethylphosphinyl)-, monoammonium salt) and its metabolite, 3-methylphosphinico-propionic acid, in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Almond hulls	0.50	July 13, 1999
Apples	0.05	Do.
Cattle, fat	0.05	Do.
Cattle, meat	0.05	Do.
Cattle, mbyp	0.10	Do.
Goats, fat	0.05	Do.
Goats, meat	0.05	Do.
Goats, mbyp	0.10	Do.
Grapes	0.05	Do.
Hogs, fat	0.05	Do.
Hogs, meat	0.05	Do.
Hogs, mbyp	0.10	Do.
Horses, fat	0.05	Do.
Horses, meat	0.05	Do.
Horses, mbyp	0.10	Do.
Milk	0.02	Do.
Sheep, fat	0.05	Do.
Sheep, meat	0.05	Do.
Sheep, mbyp	0.10	Do.
Tree nuts group	0.1	Do.

(2) Residues in these commodities not in excess of the established tolerances resulting from the uses described in paragraph (a)(1) of this section remaining after expiration of the time-limited tolerance will not be considered to be actionable if the herbicide is applied

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during the term of and in accordance with the provisions of paragraph (a)(1) of this section.

(b)(1) A tolerance, to expire on January 18, 2000, is established as follows for combined residues of glufosinate ammonium (monoammonium 2-amino-4-(hydroxymethylphosphinyl) butanoate) and its metabolite 3-methylphosphinicpropionic acid, expressed as 2-amino-4-(hydroxymethylphosphinyl)butanoic acid equivalents.

Commodity	Parts per million
Bananas	0.3 (Not more than 0.2 ppm shall be present in the pulp after peel is removed).

(2) There are no U.S. registrations as of August 24, 1994, for bananas.

[59 FR 35629, July 13, 1994, as amended at 60 FR 3547, Jan. 18, 1995; 60 FR 63962, Dec. 13, 1995]

§ 180.474 Tebuconazole (*alpha*-[2-(4-chlorophenyl)-ethyl]-*alpha*-(1,1-dimethylethyl)-1*H*-1,2,4-triazole-1-ethanol); tolerances for residues.

Tolerances are established for residues of the fungicide tebuconazole (*alpha*-[2-(4-chlorophenyl)-ethyl]-*alpha*-(1,1-dimethylethyl)-1*H*-1,2,4-triazole-1-ethanol) in or on the following raw agricultural commodities:

Commodity	Parts per million
Bananas	0.05
Barley, forage	0.10
Barley, grain	0.05
Barley, hay	0.10
Barley, straw	0.10
Cherries	4.0
Oat, forage	0.10
Oat, grain	0.05
Oat, hay	0.10
Oat, straw	0.10
Peaches (includes nectarines)	1.0
Peanuts	0.1
Peanut, hulls	4.0
Wheat, forage	0.10
Wheat, grain	0.05
Wheat, hay	0.10
Wheat, straw	0.10

[59 FR 39464, Aug. 3, 1994, as amended at 60 FR 40500, Aug. 9, 1995; 60 FR 63947, Dec. 13, 1995]

§ 180.475 Difenoconazole; tolerances for residues.

(a) Time-limited tolerances, to expire on December 31, 1998, are established for difenoconazole, [(2*S*,4*R*)/(2*R*,4*S*)]/[2*R*,4*R*/2*S*,4*S*] 1-(2-[4-(4-chlorophenoxy)-2-chlorophenyl]-4-methyl-1,3-dioxolan-2-yl-methyl)-1*H*-1,2,4-triazole, in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.05
Cattle, meat	0.05
Cattle, mby	0.05
Eggs	0.05
Goats, fat	0.05
Goats, meat	0.05
Goats, mby	0.05
Hogs, fat	0.05
Hogs, meat	0.05
Hogs, mby	0.05
Horses, fat	0.05
Horses, meat	0.05
Horses, mby	0.05
Milk	0.01
Poultry, fat	0.05
Poultry, meat	0.05
Poultry, mby	0.05
Sheep, fat	0.05
Sheep, meat	0.05
Sheep, mby	0.05
Wheat, forage	0.1
Wheat, grain	0.1
Wheat, straw	0.1

(b) Residues in these commodities not in excess of the established tolerance resulting from the use described in paragraph (a) of this section remaining after expiration of the time-limited tolerance will not be considered to be actionable if the fungicide is applied during the term of and in accordance with the provisions of the above regulation.

(c) Tolerances are established for difenoconazole, [(2*S*,4*R*)/(2*R*,4*S*)]/[2*R*,4*R*/2*S*,4*S*] 1-(2-[4-(4-chlorophenoxy)-2-chlorophenyl]-4-methyl-1,3-dioxolan-2-yl-methyl)-1*H*-1,2,4-triazole, in or on the following raw agricultural commodities:

Commodity	Parts per million
Barley, grain ¹	0.1
Cattle, fat	0.05
Cattle, meat	0.05
Cattle, mby	0.05
Eggs	0.05
Goats, fat	0.05
Goats, meat	0.05
Goats, mby	0.05
Hogs, fat	0.05

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Commodity	Parts per million
Hogs, meat	0.05
Hogs, mbyp	0.05
Horses, fat	0.05
Horses, meat	0.05
Horses, mbyp	0.05
Milk	0.01
Poultry, fat	0.05
Poultry, meat	0.05
Poultry, mbyp	0.05
Rye, grain ¹	0.1
Sheep, fat	0.05
Sheep, meat	0.05
Sheep, mbyp	0.05
Wheat, grain	0.1

¹There are no U.S. registrations as of April 12, 1995.

[59 FR 43492, Aug. 24, 1994, as amended at 60 FR 28348, May 31, 1995]

§ 180.476 Triflumizole; tolerances for residues.

(a) Tolerances are established for the combined residues of the fungicide triflumizole, 1-(1-((4-chloro-2-(trifluoromethyl)phenyl)imino)-2-propoxyethyl)-1*H*-imidazole, and its metabolites containing the 4-chloro-2-trifluoromethylaniline moiety, calculated as the parent compound, in or on the following raw agricultural commodities:

Commodity	Parts per million
Apples	0.5
Grapes	2.5
Pears	0.5

(b) Tolerances are established for the combined residues of the fungicide triflumizole, 1-(1-((4-chloro-2-(trifluoromethyl)phenyl)imino)-2-propoxyethyl)-1*H*-imidazole, the metabolite 4-chloro-2-hydroxy-6-trifluoromethylaniline sulfate, and other metabolites containing the 4-chloro-2-trifluoromethylaniline moiety, calculated as the parent compound, in or on the following raw agricultural commodities of animal origin:

Commodity	Parts per million
Cattle, fat	0.5
Cattle, meat	0.05
Cattle, mbyp	0.5
Eggs	0.05
Goats, fat	0.5
Goats, meat	0.05
Goats, mbyp	0.5
Hogs, fat	0.5
Hogs, meat	0.05

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Commodity	Parts per million
Hogs, mbyp	0.5
Horses, fat	0.5
Horses, meat	0.05
Horses, mbyp	0.5
Milk	0.05
Poultry, fat	0.05
Poultry, meat	0.05
Poultry, mbyp	0.1
Sheep, fat	0.5
Sheep, meat	0.05
Sheep, mbyp	0.5

[59 FR 59167, Nov. 16, 1994]

§ 180.477 Flumiclorac pentyl; tolerances for residues.

Tolerances are established for residues of the herbicide flumiclorac pentyl, pentyl[2-chloro-4-fluoro-5-(1,3,4,5,6,7-hexahydro-1,3-dioxo-2*H*-isoindol-2-yl)phenoxy]acetate, including all the metabolites of flumiclorac pentyl, in or on the raw agricultural commodities listed below. The tolerance level for each commodity is expressed in terms of the parent only which serves as an indicator of the use of flumiclorac pentyl on these raw agricultural commodities.

Commodity	Parts per million
Corn, field, grain	0.01
Corn, field, fodder	0.01
Corn, field, forage	0.01
Soybean, seed	0.01

[59 FR 61280, Nov. 30, 1994]

§ 180.478 Rimsulfuron; tolerances for residues.

Tolerances are established for residues of the herbicide rimsulfuron, *N*-((4,6-dimethoxypyridin-2-yl)aminocarbonyl)-3-(ethylsulfonyl)-2-pyridinesulfonamide, in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, field, fodder	0.1
Corn, field, forage	0.1
Corn, field, grain	0.1
Potatoes, tubers	0.1

[59 FR 66745, Dec. 28, 1994]

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§ 180.479 Halosulfuron; tolerances for residues.

(a) *Tolerances.* Tolerances are established for residues of the herbicide halosulfuron, methyl 5-[(4,6-dimethoxy-2-pyrimidinyl)amino] carbonylaminosulfonyl-3-chloro-1-methyl-1*H*-pyrazole-4-carboxylate, and its metabolites determined as 3-chloro-1-methyl-5-sulfamoylpyrazole-4-carboxylic acid and expressed as parent equivalents, in or on the raw agricultural commodities listed below.

Commodity	Parts per million
Cattle, mbyp	0.1
Corn, field, fodder	1.5
Corn, field, forage	0.3
Corn, field, grain	0.1
Goats, mbyp	0.1
Hogs, mbyp	0.1
Horses, mbyp	0.1
Sheep, mbyp	0.1
Sorghum, grain, fodder/stover	0.1
Sorghum, grain, forage	0.1
Sorghum, grain, grain	0.1

(b) *Indirect or inadvertent tolerances.* Tolerances are established for indirect or inadvertent residues of the herbicide halosulfuron, methyl 5-[(4,6-dimethoxy-2-pyrimidinyl)amino] carbonylaminosulfonyl-3-chloro-1-methyl-1*H*-pyrazole-4-carboxylate, and its metabolites determined as 3-chloro-1-methyl-5-sulfamoylpyrazole-4-carboxylic acid and expressed as parent equivalents, in or on the following raw agricultural commodities when present therein as a result of the application of halosulfuron to growing crops:

Commodity	Parts per million
Soybean, forage	0.5
Soybean, hay	0.5
Soybean, seed	0.5
Wheat, forage	0.1
Wheat, grain	0.1
Wheat, straw	0.2

[59 FR 66743, Dec. 28, 1994]

§ 180.480 Fenbuconazole; tolerances for residues.

(a) Time-limited tolerances, to expire on December 31, 1998, are established for combined residues of the fungicide fenbuconazole [alpha-[2-(4-chlorophenyl)-ethyl]-alpha-phenyl-3-(1*H*-1,2,4-triazole)-1-propanenitrile] and

its metabolites, *cis*-5-(4-chlorophenyl)-dihydro-3-phenyl-3-(1*H*-1,2,4-triazole-1-ylmethyl)-2-3*H*-furanone and *trans*-5-(4-chlorophenyl)dihydro-3-phenyl-3-(1*H*-1,2,4-triazole-1-ylmethyl)-2-3*H*-furanone, expressed as fenbuconazole, in or on the following raw agricultural commodities:

Commodity	Parts per million
Bananas (whole fruit)	0.3 (of which not more than 0.05 ppm is contained in the banana pulp).
Pecans	0.1
Stone fruit crop group (except plums and prunes)	2.0

(b) Residues in these commodities not in excess of the established tolerance resulting from the uses described in paragraph (a) of this section remaining after expiration of the time-limited tolerance will not be considered to be actionable if the fungicide is applied during the term of and in accordance with the provisions of the above regulation.

[60 FR 11032, Mar. 1, 1995, as amended at 60 FR 27421, May 24, 1995]

§ 180.481 Prosulfuron; tolerances for residues.

Tolerances that expire as indicated in the table below are established for residues of the herbicide prosulfuron 1-(4-methoxy-6-methyl-triazin-2-yl)-3-[2-(3,3,3-trifluoropropyl)-phenylsulfonyl]-urea in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Cattle, fat	0.05	December 31, 1999
Cattle, kidney	0.05	Do.
Cattle, liver,	0.05	Do.
Cattle, meat	0.05	Do.
Cattle, meat by-products	0.05	Do.
Cereal grains group (except rice and wild rice), fodder	0.01	Do.
Cereal grains group (except rice and wild rice), forage	0.10	Do.
Cereal grains group (except rice and wild rice), grain	0.01	Do.
Cereal grains group (except rice and wild rice), hay	0.20	Do.

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Commodity	Parts per million	Expiration date
Cereal grains group (except rice and wild rice), straw	0.02	Do.
Corn, fodder	0.01	Do.
Corn, forage	0.01	Do.
Corn, grain and fresh [including sweet kernels plus cobs with husks removed]	0.01	Do.
Goats, fat	0.05	Do.
Goats, kidney	0.05	Do.
Goats, liver	0.05	Do.
Goats, meat	0.05	Do.
Goats, meat by-products	0.05	Do.
Hogs, fat	0.05	Do.
Hogs, kidney	0.05	Do.
Hogs, liver	0.05	Do.
Hogs, meat	0.05	Do.
Hogs, meat by-products	0.05	Do.
Horses, fat	0.05	Do.
Horses, kidney	0.05	Do.
Horses, liver	0.05	Do.
Horses, meat	0.05	Do.
Horses, meat by-products	0.05	Do.
Milk	0.01	Do.
Sheep, fat	0.05	Do.
Sheep, kidney	0.05	Do.
Sheep, liver	0.05	Do.
Sheep, meat	0.05	Do.
Sheep, meat by-products	0.05	Do.

[61 FR 26842, May 29, 1996, as amended at 61 FR 26844, May 29, 1996]

§ 180.482 Benzoic acid; tolerances for residues.

A tolerance is established for residues of the insecticide benzoic acid, 3,5-dimethyl-1-(1,1-dimethylethyl)-2-(4-ethylbenzoyl)hydrazide, in or on the following raw agricultural commodity:

Commodity	Parts per million
Apples	1.0
Walnuts	0.1

[60 FR 29347, May 31, 1995; 60 FR 34874, July 5, 1995, as amended at 61 FR 13428, Mar. 27, 1996]

§ 180.483 O-[2-(1,1-Dimethylethyl)-5-pyrimidinyl] O-ethyl-O-(1-methylethyl) phosphorothioate; tolerances for residues.

Time-limited tolerances are established for residues of the insecticide O-[2-(1,1-dimethylethyl)-5-pyrimidinyl] O-

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ethyl-O-(1-methylethyl) phosphorothioate in or on the following raw agricultural commodities:

Commodity	Parts per million	Expiration date
Corn, forage and fodder, field, pop, and sweet	0.01	July 6, 1999.
Corn, grain, field and pop	0.01	Do.
Corn, sweet (K+CWHR)	0.01	Do.

[60 FR 34873, July 5, 1995]

§ 180.484 Flutolanil (N-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide); tolerances for residues.

(a) Tolerances are established for residues of flutolanil, N-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide, and its metabolites converted to 2-(trifluoromethyl) benzoic acid and calculated as flutolanil in or on the following raw agricultural commodities:

Commodity	Parts per million
Cattle, fat	0.10
Cattle, kidney	1.00
Cattle, liver	2.00
Cattle, mbyp	0.05
Cattle, meat	0.05
Cattle, milk	0.05
Eggs	0.05
Goats, fat	0.10
Goats, kidney	1.00
Goats, liver	2.00
Goats, mbyp	0.05
Goats, meat	0.05
Goats, milk	0.05
Hogs, fat	0.10
Hogs, kidney	1.00
Hogs, liver	2.00
Hogs, mbyp	0.05
Hogs, meat	0.05
Hogs, milk	0.05
Horses, fat	0.10
Horses, kidney	1.00
Horses, liver	2.00
Horses, mbyp	0.05
Horses, meat	0.05
Horses, milk	0.05
Peanuts	0.5
Peanut hay	15.0
Peanut hulls	5.0
Poultry (including turkeys), fat	0.05
Poultry (including turkeys), mbyp	0.05
Poultry (including turkeys), meat	0.05
Sheep, fat	0.10
Sheep, kidney	1.00
Sheep, liver	2.00
Sheep, meat	0.05

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Commodity	Parts per million
Sheep, mbyp	0.05
Sheep, milk	0.05

(b) Time-limited tolerances are established for the combined residues of the fungicide flutolanil *N*-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide and its metabolites converted to 2-(trifluoromethyl) benzoic acid and calculated as flutolanil in or on the following raw agricultural commodities:

Commodities	Parts per million	Expiration date
Rice, grain	2.0	April 30, 1998.
Rice, straw	8.0	Do.

[60 FR 42458, Aug. 16, 1995, as amended at 61 FR 33044, June 26, 1996]

§ 180.485 Cyproconazole; tolerances for residues.

A time-limited tolerance is established for residues of the fungicide cyproconazole, (2*RS*,3*RS*)-2-(4-chlorophenyl)-3-cyclopropyl-1-(1*H*-1,2,4-triazole-1-yl)butan-2-ol, in or on the following imported raw agricultural commodity:

Commodity	Parts per million	Expiration date
Coffee beans ¹	0.1	July 1, 1997.

¹There are no U.S. registrations as of August 9, 1995 for use on coffee beans.

[60 FR 49796, Sept. 27, 1995]

§ 180.486 Phosphorothioic acid, 0,0-diethyl 0-(1,2,2,2-tetrachloroethyl) ester; tolerances for residues.

Tolerances are established permitting the residue of the insecticide phosphorothioic acid, 0,0-diethyl 0-(1,2,2,2-tetrachloroethyl) ester in or on the following raw agricultural commodities:

Commodity	Parts per million
Corn, field, forage	0.01
Corn, field, grain	0.01
Corn, field, stover (fodder)	0.01
Corn, pop, grain	0.01
Corn, pop, stover (fodder)	0.01

Commodity	Parts per million
Corn, sweet (K + CWHR)	0.01
Corn, sweet, forage	0.01
Corn, sweet, stover (fodder)	0.01

[60 FR 49792, Sept. 27, 1995]

§ 180.487 Pyriithiobac sodium salt (sodium 2-chloro-6-[(4,6-dimethoxypyrimidin-2-yl)thio]benzoate); tolerances for residues.

A time-limited tolerance is established for residues of the herbicide pyriithiobac sodium salt (sodium 2-chloro-6-[(4,6-dimethoxypyrimidin-2-yl)thio]benzoate) in or on the following raw agricultural commodity:

Commodity	Parts per million	Expiration date
Cottonseed	0.02	Sept. 30, 1997.

[60 FR 54610, Oct. 25, 1995]

§ 180.488 Hexaconazole; tolerance for residues.

A tolerance is established for residues of the fungicide hexaconazole, [alpha-butyl-alpha-(2,4-dichlorophenyl)-1*H*-1,2,4-triazole-1-ethanol], in or on the imported raw agricultural commodity bananas at 0.1 part per million. This tolerance will expire on [insert date 3 years after the signature date]. There are no U.S. registrations as of March 26, 1996 for use on bananas.

[61 FR 15896, Apr. 10, 1996]

§ 180.489 Sulfonium, trimethyl-salt with *N*-(phosphonomethyl)glycine (1:1); tolerances for residues.

(a) Tolerances are established for residues of the herbicide Sulfonium, trimethyl-salt with *N*-(phosphonomethyl)glycine (1:1) in or on the following raw agricultural products:

Commodities	Parts per million
Almond, hulls, (of which no more than 0.3 ppm is trimethylsulfonium)	1.00
Bananas (imported only) ^a	0.05
Citrus fruit group,	0.05
Grapes,	0.10

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Commodities	Parts per million
Stone fruit group	0.05
Tree nut group,	0.05

^a There are no U.S. registrations as of the date of publication of the tolerance in the FEDERAL REGISTER.

(b) Time-limited tolerances are established for the residues of the herbicide sulfonium, trimethyl-salt with *N*-(phosphonomethyl)glycine (1:1) in or on the following raw agricultural commodities:

Commodities	Parts per million	Expiration date
Cattle, fat	0.10	March 9, 1998
Cattle, mbyp	1.00	Do.
Cattle, meat	0.20	Do.
Corn, fodder (of which no more than 0.20 ppm is trimethylsulfonium)	0.30	Do.
Corn, forage	0.10	Do.
Corn, grain (of which no more than 0.10 is trimethylsulfonium)	0.20	Do.
Eggs	0.02	Do.
Goats, fat	0.10	Do.
Goats, mbyp	1.00	Do.
Goats, meat	0.20	Do.
Hogs, fat	0.10	Do.
Hogs, mbyp	1.00	Do.
Hogs, meat	0.20	Do.
Horses, fat	0.10	Do.
Horses, mbyp	1.00	Do.
Horses, meat	0.20	Do.
Milk	0.20	Do.
Poultry, fat	0.05	Do.
Poultry, liver	0.05	Do.
Poultry, mbyp	0.10	Do.
Poultry, meat	0.05	Do.
Sheep, fat	0.10	Do.
Sheep, mbyp	1.00	Do.
Sheep, meat	0.20	Do.
Soybean, forage (of which no more than 1 ppm is trimethylsulfonium)	2.00	April 10, 1998
Soybean, aspirated grain fractions (of which no more than 60 ppm is trimethylsulfonium)	210.00	Do.
Soybean, hay (of which no more than 2 ppm is trimethylsulfonium)	5.00	Do.
Soybean, seed (of which no more than 1 ppm is trimethylsulfonium)	3.00	Do.

[61 FR 9355, Mar. 8, 1996, as amended at 61 FR 15899, Apr. 10, 1996]

§ 180.490 Cadre, tolerance for residues.

Tolerance is established for residues of the herbicide; (+)-2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1*H*-imidazol-2-yl]-5-methyl-3-pyridinecarboxylic acid applied as its ammonium salt and its metabolite (+)-2-[4,5-dihydro-4-methyl-4-(1-methylethyl)-5-oxo-1*H*-imidazol-2-yl]-5-hydromethyl-3-pyridinecarboxylic acid both free and conjugated; in or on the following raw agricultural commodity:

Commodities	Parts per million
Peanut nutmeat	0.1

[61 FR 11313, Mar. 20, 1996]

§ 180.491 Propylene oxide; tolerance for residues.

A time-limited tolerance to expire on May 20, 1998 is established for residues of the fumigant propylene oxide, in or on the following raw agricultural commodities.

Commodity	Parts per million
Almonds	150
Brazil Nuts	150
Filberts	150
Pecans	150
Pistachio Nuts	150
Walnuts	150

[61 FR 25153, May 20, 1996]

§ 180.492 Triflurosulfuron methyl; tolerances for residues

Tolerances to expire as shown in the table below are established for residues

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of the herbicide, triflurosulfuron methyl, methyl 2-[[[[[4-(dimethylamino)-6-(2,2,2-trifluoroethoxy)-1,3,5-triazin-2-yl]amino]carbonyl]amino]sulfonyl]-3-methylbenzoate, in or on the raw agricultural commodities:

Commodity	Parts per million	Expiration date
Sugar beet, root	0.05	June 14, 1999.
Sugar beet, top	0.05	June 14, 1999.

[61 FR 30170, June 14, 1996]

Subpart D—Exemptions From Tolerances

§ 180.1001 Exemptions from the requirement of a tolerance.

(a) An exemption from a tolerance shall be granted when it appears that the total quantity of the pesticide chemical in or on all raw agricultural commodities for which it is useful under conditions of use currently prevailing or proposed will involve no hazard to the public health.

(b) When applied to growing crops, in accordance with good agricultural practice, the following pesticide chemicals are exempt from the requirement of a tolerance:

(1) The following copper compounds: Bordeaux mixture, copper acetate, basic copper carbonate (malachite), copper hydroxide, copper-lime mixtures, copper linoleate, copper oleate, copper oxychloride, copper sulfate basic, copper sulfate monohydrate, copper sulfate pentahydrate, copper-zinc chromate, cupric oxide, cuprous oxide. These copper compounds are used primarily as fungicides.

(2) *N*-Octylbicyclo(2,2,1)-5-heptene-2,3-dicarboximide.

(3) Petroleum oils.

(4) Piperonyl butoxide.

(5) [Reserved]

(6) *N*-Propyl isomer.

(7) Pyrethrum and pyrethrins.

(8) Rotenone or derris or cube roots.

(9) Ryania.

(10) Sabadilla.

These pesticides are not exempted from the requirement of a tolerance when applied to a crop at the time of or after harvest.

(c) Residues of the following materials are exempted from the requirement of a tolerance when used in accordance with good agricultural practice as inert (or occasionally active) ingredients in pesticide formulations applied to growing crops or to raw agricultural commodities after harvest:

Inert ingredients	Limits	Uses
Acetic acid		Catalyst.
Acetic anhydride		Solvent, cosolvent.
Acetone		Do.
Acrylamide potassium acrylate—acrylic acid copolymer, cross-linked (CAS Reg. No. 31212-13-2), minimum number average molecular weight (in atomic mass units (amu)) 1,000,000.		Carrier.
Acrylic acid—stearyl methacrylate copolymer (CAS Reg. No. 27756-15-6), minimum number average molecular weight (in amu) 2,500.		Emulsifier, suspending agent, or rheology modifier.
Alkanoic and alkenoic acids, mono- and diesters of α -hydro- ω -hydroxypoly (oxyethylene) with molecular weight (in amu) range of 200 to 6,000.		Emulsifiers.
Alkyl (C_8 - C_{24}) benzenesulfonic acid and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Surfactants, related adjuvants of surfactants.
α -Alkyl (C_8 - C_{18} - ω -hydroxypoly(oxyethylene) with poly(oxyethylene) content of 2-30 moles.		Solvent, cosolvent, surfactant, and related adjuvants of surfactants.
α -(<i>p</i> -Alkylphenyl)- ω -hydroxypoly(oxyethylene) produced by the condensation of 1 mole of alkylphenol (alkyl is a mixture of propylene tetramer and pentamer isomers and averages C_{13}) with 6 moles of ethylene oxide.		Surfactants, related adjuvants of surfactants.
α -Alkyl(C_{12} - C_{15})- ω -hydroxypoly(oxyethylene) sulfate, ammonium, calcium, magnesium, potassium, sodium, and zinc salts; the poly(oxyethylene) content averages 3 moles.		Do.

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Inert ingredients	Limits	Uses
α-Alkyl (C ₆ -C ₁₄)-ω-hydroxypoly(oxypropylene) block copolymer with polyoxyethylene; polyoxypropylene content is 1-3 moles; polyoxyethylene content is 4-12 moles; average molecular weight (in amu) is approximately 635.		Do.
Alkyl (C ₈ -C ₁₈) sulfate and its ammonium, calcium, isopropylamine, magnesium, potassium, sodium, and zinc salts.		Surfactants.
Almond shells		Solid diluent and carrier.
Aluminum hydroxide		Diluent, carrier.
Aluminum oxide		Diluent.
Aluminum stearate		Surfactant.
Ammonium bicarbonate		Surfactant, suspending agent, dispersing agent.
Ammonium carbamate		Synergist in aluminum phosphide formulations.
Ammonium chloride		Intensifier when used with ammonium nitrate as a dessicant or defoliant. Fire suppressant in aluminum phosphide and magnesium phosphide formulations.
Ammonium hydroxide		Solvent, cosolvent, neutralizer, solubilizing agent.
Ammonium stearate		Surfactant.
Ammonium sulfate		Solid diluent, carrier.
Ammonium thiosulfate		Intensifier when used with ammonium nitrate as desiccant or defoliant.
Amyl acetate		Solvent, cosolvent, attractant.
Animal glue		Surfactant, adhesive.
Apple pomace		Solid diluent, carrier.
Ascorbic acid (CAS Reg. No. 50-81-7)		Stabilizer, preservative
Ascorbyl palmitate		Preservative.
Attapulgate-type clay		Solid diluent, carrier, thickener.
<i>Bacillus thuringiensis</i> fermentation solids and/or solubles.		Diluent, carrier.
Beeswax		Coating agent.
Bentonite		Solid diluent, carrier.
Benzoic acid		Preservative for formulation.
Butane		Propellant.
<i>n</i> -Butanol (CAS Reg. No. 71-36-3)		Solvent, cosolvent.
Butylated hydroxyanisole		Antioxidant.
Butylated hydroxytoluene		Do.
α-Butyl-ω-hydroxypoly(oxypropylene) block polymer with poly(oxyethylene); molecular weight (in amu) 2,400-3,500.		Surfactants, related adjuvants of surfactants.
α-(<i>p</i> - <i>tert</i> -Butylphenyl)-ω-hydroxypoly (oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding ammonium calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the poly(oxyethylene) content averages 4-12 moles.		Surfactants related adjuvants of surfactants.
Calcareous shale		Solid diluent carrier.
Calcite		Do.
Calcium carbonate		Do.
Calcium chloride		Stabilizer.
Calcium citrate		Solid diluent, carrier.
Calcium phosphate		Do.
Calcium hydroxide		Do.
Calcium hypochlorite		Sanitizing and bleaching agent.
Calcium oxide		Solid diluent, carrier.
Calcium salt of partially dimerized rosin, conforming to 21 CFR 172.210.		Coating agent.
Calcium silicate		Solid diluent, carrier.
Calcium stearate		Do.
Carnauba wax		Coating agent.
Carrageenan, conforming to 21 CFR 172.620	Minimum molecular weight (in amu): 100,000.	Thickener.
Casein		Surfactant, emulsifier, wetting agent.
Castor oil, polyoxyethylated; the poly(oxyethylene) content averages 5-54 moles.		Surfactants, related adjuvants of surfactants.
α-Cellulose		Solid diluent, carrier.

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Inert ingredients	Limits	Uses
Cetyl alcohol (CAS Reg. No. 36653-82-4)	Not more than 5.0% of pesticide formulation.	Evaporation retardant.
Charcoal, activated	Meets specifications in the Food Chemical Codex.	Carrier.
Citric acid		Sequestrant.
Citrus meal		Solid diluent, carrier.
Cocoa shells		Do.
Coconut oil		Surfactant, emulsifier, wetting agent.
Coconut shells		Solid diluent and carrier.
Cod liver oil		Solvent, cosolvent.
Coffee grounds		Solid diluent, carrier.
Corn cobs		Do.
Corn dextrin		Solid diluent, carrier.
Corn meal		Do.
Corn oil		Solvent, cosolvent.
Cornstarch		Solid diluent, carrier.
Corn syrup	Pre- and postharvest application.	Rehydrating agent.
Cottonseed oil		Safener.
Coumarone—indene resin, conforming to 21 CFR 172.215.	For use on citrus only	Component of coating agent.
Croscarmellose sodium (CAS Reg. No. 74811-65-7).		Disintegrant, solid diluent, carrier, and thickener.
Dextrin		Surfactant, suspending agent, dispersing agent.
Dextrose		Solid diluent, carrier.
Diacetyl tartaric acid esters of mono- and diglycerides of edible fatty acids.		Emulsifier.
Dialkyl (C ₈ -C ₁₈) dimethyl ammonium chloride	Not more than 0.2% in silica, hydrated silica.	Flocculating agent in the manufacture of silica, hydrated silica for use as a solid diluent, carrier.
Diatomite (diatomaceous earth)		Solid diluent carrier.
Dichlorodifluoromethane		Propellant.
Dichlorotetrafluoroethane		Do.
Diethylene glycol abietate		Surfactants, related adjuvants of surfactants.
1,2-Dihydro-6-ethoxy-2,2,4-trimethylquinolene	Not more than 0.02% of pesticide formulation.	Antioxidant.
3,6-Dimethyl-4-octyn-3,6-diol	Not more than 2.5% of pesticide formulation.	Surfactants, related adjuvants of surfactants.
Dimethylpolysiloxane (as defined in 21 CFR 173.340).		Defoaming agent.
α-(<i>o,p</i> -Dinonylphenyl)-ω-hydroxypoly (oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the nonyl group is a propylene trimer isomer and the poly(oxyethylene) content averages 4-14 moles.		Surfactants, related adjuvants of surfactants..
α-(<i>o,p</i> -Dinonylphenyl)-ω-hydroxypoly (oxyethylene) produced by condensation of 1 mole of dinonylphenol (nonyl group is a propylene trimer isomer) with an average of 4-14 or 140-160 moles of ethylene oxide.		Do.
Dipropylene glycol		Solvent, cosolvent.
Disodium phosphate		Anticaking agent, conditioning agent.
Disodium zinc ethylenediaminetetraacetate dihydride.		Sequestrant.
1,12-Dodecanediol dimethacrylate polymer	Minimum molecular weight (in amu) 100,000.	Release rate regulator in pheromone formulation.
Dodecylbenzenesulfonic acid, amine salts		Do.
α-(<i>p</i> -Dodecylphenyl)-ω-hydroxypoly (oxyethylene) produced by the condensation of 1 mole of dodecylphenol (dodecyl group is a propylene tetramer isomer) with an average of 4-14 or 30-70 moles of ethylene oxide; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 4-14 or 30-70.		Surfactants, related, adjuvants of surfactants.
Dolomite		Solid diluent, carrier.
Epoxidized linseed oil		Surfactants, related adjuvants of surfactants.

Inert ingredients	Limits	Uses
Epoxidized soybean oil		Do.
1,2-Ethanediamine, polymer with oxirane and methyloxirane (CAS Reg. No. 26316–40–5) minimum number average molecular weight 2,800 and the range of number average molecular weight is 2,800 to 10,000 daltons..		Surfactant, dispersing agent
Ethoxylated lignosulfonic acid, sodium salt		Surfactant.
Ethyl acetate		Solvent, cosolvent.
Ethyl alcohol		Do.
Ethyl esters of fatty acids derived from edible fats and oils.		Solvent, cosolvent.
Ethylene glycol dimethacrylate—lauryl methacrylate copolymer.	Minimum molecular weight (in amu) 100,000.	Release rate regulator in pheromone formulation.
Ethylene glycol dimethacrylate polymer	Minimum molecular weight (in amu) 100,000.	Release rate regulator in pheromone formulation
Ethylene methylphenylglycidate		Synthetic flavoring.
Ethylene oxide adducts of 2,4,7,9-tetramethyl-5-decyndiol, the ethylene oxide content averages 3.5, 10, or 30 moles.		Surfactants, related adjuvants of surfactants.
Ethylenediaminetetraacetic acid	3% of pesticide formulation	Sequestrant.
Ethylenediaminetetraacetic acid, tetrasodium salt.	5% of pesticide formulation	Sequestrant.
2-Ethyl-1-hexanol	Not more than 2.5% of pesticide formulation.	Solvent, adjuvant of surfactants.
Fatty acids, conforming to 21 CFR 172.860		Binder, defoaming agent, lubricant.
FD & C Blue No. 1	Not more than 0.2% of pesticide formulation.	Dye.
FD & C Red No. 40 (CAS Reg. No. 25956-17-6) conforming to 21 CFR 74.340.	Not to exceed 0.002% by weight of pesticide formulation.	Dye, coloring agent.
Ferric sulfate		Solid diluent, carrier.
Fish meal		Do.
Fish oil		Solvent, cosolvent.
Furcelleran		Thickener.
Glycerol		Do.
Glycerol mono-, di-, and triacetate		Solvent, cosolvent.
Glyceryl monostearate		Emulsifier.
Granite		Do.
Grape pomace, dried		Do.
Graphite		Solid diluent, carrier.
Guar gum		Surfactants, related adjuvants of surfactants.
Gum arabic (acacia)		Surfactant, suspending agent, dispersing agent.
Gypsum		Solid diluent, carrier.
Hexamethylenetetramine	For use in citrus washing solutions only at not more than 1%.	Preservative.
1,6-Hexanediol dimethacrylate polymer	Minimum molecular weight (in amu) 100,000.	Release rate regulator in pheromone formulation
<i>n</i> -Hexyl alcohol (CAS Reg. No. 111-27-3)		Solvent, cosolvent.
Hydrochloric acid		Solvent, neutralizer.
α-Hydro-ω-hydroxypoly(oxypropylene); molecular weight (in amu) 4,000.		Do.
Hydroxyethyl cellulose		Do.
Hydroxypropyl methylcellulose		Thickener.
12-Hydroxystearic acid—polyethylene glycol copolymer (CAS Reg. No. 70142-34-6), minimum number average molecular weight (in amu) 5,000..		Suspending agent, dispersing agent, surfactants, related adjuvants.
Iron oxide		Solid diluent, carrier.
Isopropyl alcohol		Solvent, cosolvent, stabilizer, inhibitor.
Isopropyl myristate, CAS Reg. No. 110-27-0		Solvent.
Kaolinite-type clay		Solid diluent, carrier.
Lactic acid		Solvent.
Lactose		Solid diluent, carrier.
Lard		Do.
Lauryl alcohol		Surfactant.
α-Lauryl-ω-hydroxypoly(oxyethylene), average molecular weight (in amu) of 600.		Emulsifier.
α-Lauryl-ω-hydroxypoly(oxyethylene) sulfate, sodium salt; the poly(oxyethylene) content is 3-4 moles.		Surfactants, related adjuvants of surfactants.
Lauryl methacrylate—1,6-hexanediol dimethacrylate copolymer.	Minimum molecular weight (in amu) 100,000.	Release rate regulator in pheromone formulation

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Inert ingredients	Limits	Uses
Lecithin	Meeting Food Chemicals Codex specification.	Emulsifier.
Licorice root		
Lignosulfonate, ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Surfactants, related adjuvants of surfactants.
d-Limonene (CAS Reg. No. 5989-27-5)		Solvent, fragrance.
Magnesium carbonate		Anticaking agent, conditioning agent.
Magnesium chloride		Safener.
Magnesium lime		Solid diluent, carrier.
Magnesium oxide		Do.
Magnesium silicate		Do.
Magnesium stearate		Surfactant.
Magnesium sulfate		Solid diluent, carrier, safener.
Maleic acid monobutyl ester—vinyl methyl ether copolymer, CAS No. 25119-68-0, minimum average molecular weight (in amu) 52,000.		Seed-coating adhesive, gel, and antitranspirant.
Maleic acid monoethyl ester—vinyl methyl ether copolymer, CAS No. 25087-06-3, minimum average molecular weight (in amu) 46,000.		Seed-coating adhesive, gel, and antitranspirant.
Maleic acid monoisopropyl ester—vinyl methyl ether copolymer, CAS No. 31307-95-6, minimum average molecular weight (in amu) 49,000.		Seed-coating adhesive, gel, and antitranspirant.
Manganous oxide		Solid diluent, carrier.
Methyl alcohol		Solvent.
Methyl <i>n</i> -amyl ketone (CAS Reg. No. 110-43-0)		Solvent, cosolvent.
Methylated silicones		Antifoaming agent.
Methylcellulose		Thickener.
Methyl esters of fatty acids derived from edible fats and oils.		Solvent, cosolvent.
Methyl esters of higher fatty acids conforming to 21 CFR 573.640.		Antidusting agent, surfactant.
Methyl ester of rosin, partially hydrogenated (as defined in 21 CFR 172.615).		Surfactants, related adjuvants of surfactants.
Methyl isobutyl ketone		Solvent.
Methyl methacrylate—methacrylic acid—monomethoxy polyethylene glycol methacrylate copolymer, minimum number average molecular weight (in amu) 18,000..		Suspending agent, dispersing agent, surfactants, related adjuvants.
Methyl vinyl ether—maleic acid copolymer (CAS Reg. No. 25153-40-6), minimum number average molecular weight (in amu) 75,000.		Dispersant, seed-coating adhesive.
Methyl vinyl ether—maleic acid copolymer calcium sodium salt (CAS Reg. No. 62386-95-2), minimum number average molecular weight (in amu) 900,000..		Dispersant, seed-coating adhesive.
Mica		Solid diluent, carrier.
Mineral oil, U.S.P., or conforming to 21 CFR 172.878 or 178.3620(a) (CAS Reg. No. 8012-95-1).		Diluent, carrier, and solvent.
Modified polyester resin derived from ethylene glycol, fumaric acid, and rosin.	For use on citrus only	Resinous coating.
Molasses		Attractant.
Monoammonium phosphate	No more than 3.75% by weight in formulation.	Postharvest fumigation in formulation with aluminum phosphide.
Mono- and diglycerides of C ₈ -C ₁₈ fatty acids		Surfactants, related adjuvants of surfactants.
Montmorillonite-type clay		Solid diluent, carrier.
Montmorillonite-type clay treated with polytetrafluoroethylene (PTFE; CAS Reg. No. 9002-84-0).	PTFE content not greater than 0.5% (w/w) of clay..	Carrier.
Nonyl, decyl, and undecyl glycoside mixture with a mixture of nonyl, decyl, and undecyl oligosaccharides and related reaction products (primarily decanol and undecanol) produced as an aqueous-based liquid (50 to 65% solids) from the reaction of primary alcohols (containing 15 to 20% secondary alcohol isomers) in a ratio of 20% C ₉ , 40% C ₁₀ , and 40% C ₁₁ with carbohydrates (average glucose to alkyl chain ratio 1.3 to 1.8).		Surfactant.

Inert ingredients	Limits	Uses
α -(<i>p</i> -Nonylphenyl)- ω -hydroxypoly(oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the nonyl group is a propylene trimer isomer and the poly(oxyethylene) content averages 4-14 moles or 30 moles.		Surfactants, related adjuvants of surfactants.
α -(<i>p</i> -Nonylphenyl)- ω -hydroxypoly(oxyethylene) produced by the condensation of 1 mole of nonylphenol (nonyl group is a propylene trimer isomer) with an average of 4-14 or 30-90 moles of ethylene oxide; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 4-14 or 30-90.		Do.
α -(<i>p</i> -Nonylphenyl)- ω -hydroxypoly(oxyethylene) sulfate, ammonium, calcium, magnesium, potassium, sodium, and zinc salts; the nonyl group is a propylene trimer isomer and the poly(oxyethylene) content averages 4 moles.		Do.
α -(<i>p</i> -Nonylphenyl)- ω -hydroxypoly(oxypropylene) block polymer with poly(oxyethylene); polyoxypropylene content of 10-60 moles; polyoxyethylene content of 10-80 moles; molecular weight (in amu) 1,200-7,100.		Do.
α -(<i>p</i> -Nonylphenyl)poly(oxypropylene) block polymer with poly(oxyethylene); polyoxyethylene content 30 to 90 moles; molecular weight (in amu) averages 3,000.		Do.
Oatmeal		Solid diluent, carrier.
Oats		Do.
Octadecanoic acid, 12-hydroxy-, homopolymer, octadecanoate (CAS Reg. No. 58128-22-6), minimum number-average molecular weight 1,370..		dispersing agent, related adjuvant of surfactants, surfactant, suspending agent.
α - <i>cis</i> -9-Octadecenyl- ω -hydroxypoly(oxyethylene); the octadecenyl group is derived from oleyl alcohol and the poly(oxyethylene) content averages 20 moles.		Surfactants, related adjuvants of surfactants.
Octyl and decyl glucosides mixture with a mixture of octyl and decyloligosaccharides and related reaction products (primarily <i>n</i> -decanol) produced as an aqueous-based liquid (68-72% solids) from the reaction of straight chain alcohols (C ₈ (45%), C ₁₀ (55%)) with anhydrous glucose.		Do.
Oleic acid		Diluent.
Oleic acid diester of α -hydro- ω -hydroxypoly(oxyethylene); the poly(oxyethylene) having average molecular weight (in amu) 400.		Surfactants, related adjuvants of surfactants.
α -Oleoyl- ω -hydroxypoly(oxyethylene), average molecular weight (in amu) of 600.		Emulsifier.
Oleyl alcohol (CAS Reg. No. 143-28-2)	15%	Cosolvent.
Orange pomace		Solid diluent, carrier.
Oxalic acid	No more oxalic acid should be used than is necessary to chelate calcium and in no case should more than 2 lb oxalic acid per acre be used.	Calcium chelating hard water inhibitor.
Oxidized pine lignin, sodium salt, (CAS Reg. No. 68201-23-0).	Maximum of 2% of formulation.	Surfactant, related adjuvant of surfactant
Palmitic acid		Diluent.
Peanut shells		Solid diluent, carrier.
Pentaerythritol ester of maleic anhydride modified wood rosin.		Plasticizer.
Pentaerythritol ester of modified resin		Do.
Petrolatum, conforming to 21 CFR 172.880		Coating agent.
Petroleum hydrocarbons, light odorless conforming to 21 CFR 172.884.		Solvent, diluent.

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Inert ingredients	Limits	Uses
Petroleum hydrocarbons, synthetic isoparaffinic, conforming to 21 CFR 172.882.		Do.
Petroleum naphtha, conforming to 21 CFR 172.250(d).		Component of coating agent.
Petroleum wax, conforming to 21 CFR 172.886(d).		Coating agent.
Phosphoric acid		Buffer.
Phosphorus oxychloride		Catalyst.
Pine lignin		Adsorbent.
<i>B</i> -Pinene polymers		Surfactants, related adjuvants of surfactants.
Polyethylene, conforming to 21 CFR 177.1520(c).		Binder, carrier, and coating agent.
Polyethylene, oxidized, conforming to 21 CFR 172.260.		Coating agent.
Polyethylene glycol[α -hydro- ω -hydroxypoly(oxyethylene)]; mean molecular weight (in amu) 194 to 9,500 conforms to 21 CFR 178.3750.		Surfactants, related adjuvants of surfactants.
Polyethylene glycol—polyisobuteryl anhydride—tall oil fatty acid copolymer (minimum number average molecular weight (in amu) 5,000).		Surfactant, dispersing agent, suspending agent, or related adjuvant.
Polyglycerol esters of fatty acids conforming to 21 CFR 172.854.		Surfactants, related adjuvants of surfactants.
Polyglyceryl phthalate ester of coconut oil fatty acids.		Do.
Polymerized sodium methacrylate		pH control.
Polymers derived from the following monomers: acrylic acid, sodium form; butyl acrylate; ethyl acrylate; methacrylic acid and its ammonium and potassium salts; and methyl methacrylate.		Surfactants, related adjuvants of surfactants.
Poly(methylene- <i>p</i> - <i>tert</i> -butylphenoxy)-poly(oxyethylene) ethanol; the poly(oxyethylene) content averages 4-12 moles.		Coating agent.
Poly(methylene- <i>p</i> -nonylphenoxy)poly(oxyethylene) ethanol; the poly(oxyethylene) content averages 4-12 moles.		Coating agent.
Poly(oxy-1,2-ethanediyl), α -(carboxymethyl)- ω -(nonylphenoxy) produced by the condensation of 1 mole of nonylphenol (nonyl group is a propylene trimer isomer) with an average of 4-14 or 30-90 moles of ethylene oxide. The molecular weight (in amu) ranges are 454-894 and 1598-4238.		Surfactant.
Polyoxyethylene (20) sorbitan monostearate		Surfactants, related adjuvants of surfactants.
Poly(oxyethylene/oxypropylene) monoalkyl(C ₆ -C ₁₀)ether—sodium fumarate adduct (CAS Reg. No. 102900-02-7), minimum number average molecular weight (in amu) 1,900..		Surfactant.
Poly(oxypropylene) block polymer with poly(oxyethylene); molecular weight (in amu) 1,800-16,000.		Do.
Polysorbate 65, conforming to 21 CFR 172.838		Emulsifier.
Polystyrene (CAS Reg. No. 9003-53-6), minimum number average molecular weight (in amu) 50,000).		Suspending agent, thickener.
Poly (vinyl pyrrolidone); molecular weight (in amu) 40,000 or over.		Do.
Poly(vinylpyrrolidone) (CAS Reg. No. 9003-39-8), minimum number average molecular weight (in amu) 4,000.		Surfactant, related adjuvants of surfactant.
Poly(vinylpyrrolidone-1-eicosene) (CAS Reg. No. 28211-18-9).	Minimum average molecular weight 3,000.	Dispersing agent.
Poly(vinylpyrrolidone-1-hexadecene) (CAS Reg. No. 63231-81-2).	Minimum average molecular weight (in amu) 4,700.	Dispersing agent.
Potassium aluminum silicate		Solid diluent, carrier.
Potassium chloride		Do.
Potassium hydroxide		Neutralizer.
Potassium phosphate		Buffer.
Potassium sulfate		Solid diluent.
Propane		Propellant.
n-Propanol		Solvent, cosolvent.
Propionic acid		Catalyst.
Propylene glycol		Solvent, cosolvent.

Inert ingredients	Limits	Uses
Propylene glycol alginate (as defined in 21 CFR 172.858).		Defoaming agent.
Propyl gallate		Antioxidant.
Propyl <i>p</i> -hydroxybenzoate		Preservative for formulations.
Pyrophyllite		Solid diluent, carrier.
Rhodamine B		Dye.
Rice bran		Solid diluent, carrier.
Rosin, partially dimerized (as defined in 21 CFR 172.615).		Surfactants, related adjuvants of surfactants.
Rosin, partially hydrogenated (as defined in 21 CFR 172.615).		Do.
Rosin, wood		Do.
Salts of fatty acids, conforming to 21 CFR 172.863.		Binder, emulsifier, anticaking agent.
Sand		Solid diluent, carrier.
Secondary alkyl (C ₁₁ -C ₁₅) poly(oxyethylene) acetate, sodium salt; the ethylene oxide content averages 5 moles.		Surfactant.
Shellac, bleached; refined, food grade, arsenic and rosin-free.		Coating agent.
Silica, hydrated		Solid diluent, carrier.
Silicon dioxide, fumed, amorphous		Flow control, anticaking and carrier agent.
Soap (sodium or potassium salts of fatty acids)		Surfactant, emulsifier, wetting agent.
Soapstone		Solid diluent.
Sodium acetate		Buffer.
Sodium acid pyrophosphate		Surfactant, suspending agent, dispersing agent, buffer.
Sodium alginate		Stabilizer.
Sodium α -olefinsulfonate (sodium C ₁₄ -C ₁₆) (Olefin sulfonate).		Surfactants, related adjuvants of surfactants.
Sodium aluminum silicate		Solid diluent, carrier.
Sodium benzoate		Anticaking agent.
Sodium bicarbonate		Neutralizer.
Sodium carboxymethylcellulose		Surfactants, related adjuvants of surfactants.
Sodium chloride		Solid diluent, carrier.
Sodium diisobutyl naphthalenesulfonate		Surfactants, related adjuvants of surfactants.
Sodium dioctylsulfosuccinate		Do.
Sodium dodecylphenoxybenzenedisulfonate		Do.
Sodium hexametaphosphate		Surfactant, emulsifier, wetting agent, suspending agent, dispersing agent, buffer.
Sodium hydroxide		Neutralizer.
Sodium isopropylisohexyl naphthalenesulfonate		Surfactants, related adjuvants of surfactants.
Sodium <i>N</i> -lauroyl- <i>N</i> -methyltaurine		Do.
Sodium lauryl glyceryl ether sulfonate		Do.
Sodium metasilicate		Surfactants, emulsifiers, wetting agents, dispersing agents, buffer.
Sodium monoalkyl and dialkyl (C ₈ -C ₁₆) phenoxybenzenedisulfonate mixtures containing not less than 70% of the monoalkylated product.		Surfactants, related adjuvants of surfactants.
Sodium mono- and dimethyl naphthalenesulfonates, molecular weight (in amu) 245-260.		Do.
Sodium mono-, di-, and tributyl naphthalenesulfonates.		Do.
Sodium mono-, di-, and triisopropyl naphthalenesulfonate.		Do.
Sodium <i>N</i> -oleoyl- <i>N</i> -methyltaurine		Do.
Sodium oleyl sulfate		Do.
Sodium <i>N</i> -palmitoyl- <i>N</i> -methyltaurine		Do.
Sodium propionate		Preservative for formulation.
Sodium salt of sulfated oleic acid		Surfactants, related adjuvants of surfactants.
Sodium silicate		Surfactant, emulsifier, wetting agent, stabilizer, inhibitor.
Sodium sulfate		Solid diluent, carrier.
Sodium sulfite		Stabilizer.
Sodium tripolyphosphate		Buffer, surfactant, suspending agent, dispersing agent, anticaking agent, conditioning agent.
Sorbitan fatty acid esters (fatty acids limited to C ₁₂ , C ₁₄ , C ₁₆ , and C ₁₈ containing minor amounts of associated fatty acids) and their derivatives; the poly(oxyethylene) content averages 5-20 moles.		Surfactants, related adjuvants or surfactants.

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Inert ingredients	Limits	Uses
Sorbic acid (and potassium salt)		Preservative for formulations.
Sorbitol		Antidusting agent.
Soy protein, isolated		Adhesive.
Soybean flour		Surfactant.
Soybean oil		Solvent, cosolvent.
Soybean oil-derived fatty acids		Solvent, cosolvent.
Sperm oil conforming to 21 CFR 172.210		Coating agent.
Starch (potato, tapioca, and wheat)		Solid diluent, carrier.
Stearic acid		Diluent.
α-Stearoyl-ω-hydroxypoly(oxyethylene), average molecular weight (in amu) of 600.		Emulsifier.
α-Stearoyl-ω-hydroxypoly(oxyethylene); the poly(oxyethylene) content averages either 8, 9, or 40 moles; if a blend of products is used, the average number of moles ethylene oxide reacted to produce any product that is a component of the blend shall be either 8, 9, or 40.		Surfactants, related adjuvants of surfactants.
Stearyl methacrylate—1,6-hexanediol dimethacrylate copolymer.	Minimum molecular weight (in amu) 100,000.	Release rate regulator in pheromone formulation.
Styrene-2-ethylhexyl acrylate-glycidyl methacrylate-2-acrylamido-2-methylpropanesulfonic acid graft copolymer, minimum number-average molecular weight 12,500.		Dispersing agent/solvent.
Sucrose		Solid diluent carrier, safener.
Sucrose octaacetate		Adhesive.
Sulfuric acid (CAS Reg. No. 7664-93-9) that meets the Food Chemicals Codex specifications.	0.1% of pesticide formulation.	pH control agent.
Sulfurous acid		Preservative.
Synthetic paraffin and its succinic derivatives conforming to 21 CFR 172.275.		Carrier, binder, and carrying agent.
Synthetic petroleum wax, conforming to 21 CFR 172.888.		Binder, carrier, and coating agent.
Talc		Solid diluent, carriers.
Tall oil; fatty acids not less than 58%, rosin acids not more than 44%, unsaponifiables not more than 8%.		Surfactants, related adjuvants of surfactants.
Tartrazine		Dye.
1,1,1,2-Tetrafluoroethane, (CAS Reg. No. 811–97–2).		Aerosol propellant
Tetrahydrofurfuryl alcohol		Solvent cosolvent.
α-[p-(1,1,3,3-Tetramethylbutyl)phenyl]-ω-hydroxypoly(oxyethylene) produced by the condensation of 1 mole of p-(1,1,3,3-tetramethylbutyl)phenol with a range of 1-14 or 30-70 moles of ethylene oxide; if a blend of products is used, the average range number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 1-14 or 30-70.		Surfactants, related adjuvants of surfactants.
α-[p-(1,1,3,3-Tetramethylbutyl) phenyl]-ω-hydroxypoly(oxyethylene) produced by the condensation of 1 mole of p-(1,1,3,3-tetramethylbutyl) phenol with an average of 4-14 or 30-70 moles of ethylene oxide; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 4-14 or 30-70.		Do.
2,4,7,9-Tetramethyl-5-decyn-4, 7-diol	Not more than 2.5% of pesticide formulation.	Surfactants, related adjuvants of surfactants.
Tetrasodium pyrophosphate		Anticaking agent, conditioning agent.
Tricalcium phosphate		Surfactant, suspending agent, dispersing agent, anticaking agent, conditioning agent.
1,1,1-Trichloroethane		Solvent, cosolvent.
Trichlorofluoromethane		Propellant.
Tridecylpoly(oxyethylene) acetate, sodium salt; where the ethylene oxide content averages 6-7 moles.		Surfactants, related adjuvants of surfactants.
Trisodium phosphate		Surfactant, emulsifier, wetting agent.
Urea		Stabilizer, inhibitor.
Vermiculite		Solid diluent, carrier.

Inert ingredients	Limits	Uses
Vinyl pyrrolidone-dimethylaminoethylmethacrylate copolymer (CAS Reg. No. 30581-59-0), minimum number average molecular weight (in amu) 20,000.		Leaching inhibitor, binder for water-dispersible aggregates, sticker and suspension stabilizer.
Walnut shells		Do.
Wheat bran		Do.
Wintergreen oil		Attractant.
Wood flour	Derived from wood free of chemical preservatives.	Solid diluent and carrier.
Xanthan gum		Thickener.
Xanthan gum-modified, produced by the reaction of xanthan gum and glyoxal (maximum 0.3% by weight).	Not more than 0.5% of pesticide formulation.	Surfactant
Xylene meeting the specifications listed in 21 CFR 172.884(b)(4).	In pesticide formulations for grain storage only.	Solvent, cosolvent.
Zeolite (hydrated alkali aluminum silicate)		Solid diluent, carrier.
Zinc oxide		Coating agent.
Zinc sulfate (basic and monohydrate)		Do.
Zinc sulfate (basic and monohydrate)		Solid diluent, carrier.

(d) The following materials are exempted from the requirement of a tolerance when used in accordance with good agricultural practice as inert (or occasionally active) ingredients in pesticide formulations applied to growing crops only:

Inert ingredients	Limits	Uses
Acetic acid ethenyl ester, polymer with ethenol and (α)-2-propenyl-(ω)-hydroxypoly (oxy-1,2-ethanediy) (CAS Reg. No.137091-12-4); minimum number average molecular weight 15,000.		Component of water-soluble film.
Acetonitrile	Not more than 0.5% of pesticide formulation.	Solvent for blended emulsifiers in all pesticides used before crop emerges from soil and in herbicides before or after crop emerges.
Acetophenone		Attractant.
Acrylamide—acrylic acid resins		Thickeners.
Acrylamide—sodium acrylate resins		Do.
Acrylic acid, polymerized, and its ethyl and methyl esters.		Surfactants, related adjuvants of surfactants.
Acrylic acid—sodium acrylate—sodium-2-methylpropanesulfonate copolymer (minimum average molecular weight (in amu) 4,500); CAS No. 97953-25-8.		Dispersing agent.
Acrylonitrile—styrene—hydroxypropyl methacrylate copolymer; minimum number average molecular weight (in amu) 447,000.		Pigment carrier.
Adenosine (CAS Reg. No. 58-61-7)	Maximum of 0.5% of formulation.	Synergist.
α-Alkyl (C ₁₂ -C ₁₈)-ω-hydroxypoly(oxyethylene) copolymers with poly(oxypropylene); polyoxyethylene content averages 3-12 moles and polyoxypropylene content 2-9 moles.		Surfactants, related adjuvants of surfactants.
α-Alkyl (C ₁₀ -C ₁₆)-ω-hydroxypoly(oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the poly(oxyethylene) content averages 3-20 moles.		Surfactants, related adjuvants of surfactants.
α-Alkyl (C ₁₂ -C ₁₅)-ω-hydroxypoly(oxyethylene) sulfosuccinate, isopropylamine and N-hydroxyethyl isopropylamine salts of; the poly(oxyethylene) content averages 3-12 moles.	Not more than 0.2% in the final solution.	Emulsifiers in pesticide concentrates applied with liquid fertilizer solutions before crop emerges from soil or not later than 4 weeks after planting.
α-Alkyl(C ₁₀ -C ₁₂)-ω-hydroxypoly(oxyethylene) poly(oxypropylene) copolymer; poly(oxyethylene) content is 11-15 moles; poly(oxypropylene) content is 1-3 moles.		Surfactants, related adjuvants of surfactants.

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Inert ingredients	Limits	Uses
α -Alkyl(C ₁₂ -C ₁₈)- ω -hydroxypoly(oxyethylene/oxypropylene) hetero polymer in which the oxyethylene content averages 13-17 moles and the oxypropylene content averages 2-6 moles.		Do.
α -Alkyl (C ₁₀ -C ₁₆)- ω -hydroxypoly(oxyethylene)poly(oxypropylene) mixture of di- and monohydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the combined poly(oxyethylene) poly(oxypropylene) content averages 3-20 moles.		Do.
α -Alkyl (C ₁₂ -C ₁₈)- ω -hydroxypoly(oxyethylene/oxypropylene) hetero polymer in which the oxyethylene content is 8-12 moles and the oxypropylene content is 3-7 moles.		Do.
α -Alkyl (C ₁₂ -C ₁₅)- ω -hydroxypoly(oxyethylene/oxypropylene) hetero polymer in which the oxyethylene content is 8-13 moles and the oxypropylene content is 7-30 moles.		Solvent, cosolvent, surfactant, and related adjuvants of surfactants.
α -Alkyl (C ₂₁ -C ₇₁)- ω -hydroxypoly(oxyethylene) in which the poly(oxyethylene) content is 2 to 91 moles and molecular weight range from 390 to 5,000..	Not to exceed 10%	Wetting agent or granule coating
<i>n</i> -Alkyl(C ₈ -C ₁₈)amine acetate		Surfactants, related adjuvants of surfactants.
Almond, bitter		Attractant.
Alkyl (C ₁₂ - C ₂₀) methacrylate-methacrylic acid copolymer; minimum molecular weight (in amu) 11,900.		Stabilizer; component of spray drift retardant.
Aluminum 2-ethylhexanoate	Not more than 0.25% of pesticide formulation.	Gelling agent.
Aluminum sulfate		Safener adjuvant.
Amine salts of alkyl(C ₈ -C ₂₄) benzenesulfonic acid (butylamine, dimethylaminopropylamine, mono- and diisopropylamine, mono-, di-, and triethanolamine).		Surfactants, related adjuvants of surfactants.
<i>N</i> -(Aminoethyl) ethanolamine salt of dodecylbenzenesulfonic acid.	For use only in liquid emulsifiable herbicide concentrates.	Do.
Ammonium nitrate (CAS Reg. No. 6484-52-2) ...		Adjuvant/ intensifier for herbicides.
Ammonium polyphosphate (CAS Reg. No. 68333-79-9).		Sequestrant, buffer, or surfactant.
Ammonium thiocyanate		Adjuvant/intensifier for defoliation of, and weed control in/on cotton and soybeans.
Animal waste material (produced by the thermophilic digestion of cattle and poultry manure).	<i>E. coli</i> and <i>Salmonella</i> free; heavy metal content not to exceed the following: Material/Concentration (ppm): As/12.5; Cd/12.0; Cu/14.0; Pb/17.0; Hg/0.1; Se/0.2.	Carrier.
Barium sulfate		Carrier.
Benzene		Solvent, cosolvent.
1,2-Benzisothiazolin-3-one	Not more than 0.1% of formulation. Not more than 0.02 lb to be applied per acre.	Preservative/stabilizer.
<i>N,N</i> -Bis[α -ethyl- ω -hydroxypoly(oxyethylene) alkylamine; the poly(oxyethylene) content averages 3 moles; the alkyl groups (C ₁₄ -C ₁₈) are derived from tallow, or from soybean or cottonseed oil acids.		Surfactants for preemergence use with herbicides on sugarcane only.
<i>N,N</i> -Bis(2-hydroxyethyl)alkylamine, where the alkyl groups (C ₈ -C ₁₈) are derived from coconut, cottonseed, soya, or tallow acids.		Surfactants, related adjuvants of surfactants.
<i>N,N</i> -Bis 2-(ω -hydroxypolyoxyethylene) ethyl) alkylamine; the reaction product of 1 mole <i>N,N</i> -bis(2-hydroxyethyl)alkylamine and 3-60 moles of ethylene oxide, where the alkyl group (C ₈ -C ₁₈) is derived from coconut, cottonseed, soya, or tallow acids.		Do.

Inert ingredients	Limits	Uses
<i>N,N</i> -Bis-2-(ω -hydroxypolyoxyethylene/polyoxypropylene) ethyl alkylamine; the reaction product of 1 mole of <i>N,N</i> -bis(2-hydroxyethyl alkylamine) and 3-60 moles of ethylene oxide and propylene oxide, where the alkyl group (C ₈ -C ₁₈) is derived from coconut, cottonseed, soya, or tallow acids.		Surfactant, related adjuvants of surfactants.
3,5-Bis(6-isocyanatohexyl)-2 <i>H</i> -1,3,5-oxadiazine-2,4,6-(3 <i>H</i> ,5 <i>H</i>)-trione, polymer with diethylenetriamine (CAS Reg. No. 87823-33-4); minimum number average molecular weight (in amu) 1,000,000.		Encapsulating agent.
Boric acid		Sequestrant.
Buffalo gourd root powder (<i>Cucurbita foetidissima</i> root powder).	No more than 2.5 lbs/acre/season (3.4 gm/acre/season of Cucurbitacin).	Gustatory stimulant.
Butadiene-styrene copolymer		Adhesive, component of adhesive.
2-Butenedioic acid (Z)-, polymer with ethenol and ethenyl acetate, sodium salt (minimum number average molecular weight (in amu) 75,000; CAS No. 139871-83-3).		Component of water-soluble film.
Butoxytriethylene glycol phosphate		Surfactants for arsenical herbicide formulations only.
1,3-Butylene glycol dimethacrylate	Not more than 0.1% of pesticide formulation.	Stabilizer.
Butyl stearate		Defoamer.
γ -Butyrolactone		Solvent.
C.I. Pigment Blue #15 (CAS Reg. No. 147-14-8; containing no more than 50 ppm polychlorinated biphenyls (PCBs)).	For seed treatment use only	Dye, coloring agent.
C.I. Pigment Green #7 (CAS Reg. No. 1328-53-6; containing no more than 50 ppm polychlorinated biphenyls (PCBs)).	For seed treatment use only.	Dye, coloring agent.
C.I. Pigment Violet #23 (CAS Reg. No. 6358-30-1; containing no more than 20 ppb of polychlorinated dibenzo- <i>p</i> -dioxins and/or polychlorinated dibenzofurans).	For seed treatment use only.	Dye, coloring agent.
Calcium and sodium salts of certain sulfonated petroleum fractions (mahogany soaps); calcium salt molecular weight (in amu) 790-1,020, sodium salt molecular weight (in amu) 400-500.		Surfactants, related adjuvants of surfactants.
Calcium hypochlorite		Sanitizing and bleaching agent.
Camphor (CAS Reg. No. 76-22-2)	Not more than 5% weight to weight (w/w) of pesticide formulations.	Deodorant, melting point adjustment.
Carous chloride	10 ppm in formulation	Tagging agent.
Carrageenan, conforming to 21 CFR 172.260	Not more than 0.15% of pesticide formulation.	Thickener and stabilizer for pesticide formulations applied to seeds before planting.
Cellulose acetate (CAS Reg. No. 9004-35-7), minimum number average molecular weight 28,000.		Pesticide rate-release regulating agent.
Chlorobenzene	Contains not more than 1% impurities. Not for use after edible parts of plant begin to form. Do not graze livestock in treated areas within 48 hours after application.	Solvent, cosolvent.
5-Chloro-2-methyl-4-isothiazolin-3-one (in combination with 2-methyl-4-isothiazolin-3-one).	Not more than 0.0022% (22.5 ppm) in the formulation; 0.00022% (or 2.25 ppm) in the final solution applied to growing crops.	Preservative.
Cinnamon		Attractant.
Clove		Do.
Coal (derived only from anthracite and bituminous coals).	Soil application only	Carrier, extender.
Coffee		Attractant.
Coke (from anthracite and bituminous coals only and petroleum).	Soil application only	Carrier, extender.
Condensation product of orthophenylphenol with 5 moles of ethylene oxide.		Stabilizer.

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Inert ingredients	Limits	Uses
Copper naphthenate	Not more than 2.5% of formulation; application limited to before edible portions of plants begin to form.	Mercaptan scavenger in technical pesticide.
Copper salts of neodecanoic acid and 2-ethylhexanoic acid.	Not more than 1% of formulation; application limited to before edible portions of plants begin to form.	Do.
Corn		Attractant.
Corn gluten meal, hydrolyzed		Attractant.
Cross-linked polyurea-type encapsulating polymer formed by the reduction of a mixture of toluene diisocyanate and polymethylene polyphenylisocyanate.		Encapsulating agent.
Cyclohexane		Solvent, cosolvent.
Cyclohexanol		Do.
Cyclohexanone		Do.
Cysteine (CAS Reg. No. 52-90-4)	Maximum of 0.5% of formulation.	Synergist.
D & C Green No. 6		Dye.
D & C Red No. 17, technical grade		Dye.
D & C Red No. 33 (CAS Reg. No. 3567-66-6); meeting the specifications listed in 21 CFR 74.1333.		Dye.
D & C Violet No. 2, technical grade	Not more than 0.005% of pesticide formulation.	Dye.
<i>n</i> -Decyl alcohol		Do.
Diacetone alcohol		Deactivator, solvent for formulations used before crop emerges from soil.
Diallyl phthalate	Not more than 0.1% of pesticide formulation.	Stabilizer.
Diammonium phosphate (CAS Reg. No. 7783-28-0).		Buffer, surfactant.
α -(Di- <i>sec</i> -butyl)phenylpoly(oxypropylene) block polymer with poly(oxyethylene); the poly(oxypropylene) content averages 4 moles, the poly(oxyethylene) content averages 5 to 12 moles, the molecular.		Surfactants, related adjuvants of surfactants.
Diethanolamine		Stabilizer, inhibitor for formulations used before crop emerges from soil.
Diethylene glycol		Deactivator for formulations used before crop emerges from soil.
Diethylene glycol		Deactivator, adjuvant for formulations used before crop emerges from soil.
Diethylene glycol and diethylene glycol monobutyl, monoethyl, and monomethyl ethers.		Deactivator for formulations used before crop emerges from soil, stabilizer.
Dimethylformamide (see also § 180.1046)	For use only in preemergence application, application prior to formation of edible parts of food plants, and seed and transplant treatment. Also, as part of the USDA witchweed quarantine program, postemergent application in field corn, after silking and tasseling of the corn.	Solvent, cosolvent.
3,6-Dimethyl-4-octyn-3,6-diol	In pesticide formulations, for soil prior to planting or to plants before edible parts form.	Surfactants, related adjuvants of surfactants.
Dimethyl sulfoxide		Solvent or cosolvent for formulations used before crop emerges from soil or prior to formation of edible parts of food plants.
Dioxane		Solvent, cosolvent.
Dipotassium hydrogen phosphate		Buffering agent.
Dipropylene glycol dibenzoate	For seed treatment use only.	Solvent, cosolvent.
Dipropylene glycol monomethyl ether		Stabilizer.
Disodium 4-isodecyl sulfosuccinate		Surfactants related adjuvants of surfactants.

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Inert ingredients	Limits	Uses
Dodecylphenol		Coupling agent in emulsifier.
α-Dodecylphenol-ω-hydroxypoly(oxyethylene/ oxypropylene) hetero polymer where ethylene oxide content is 11-13 moles and oxypropylene content is 14-16 moles, molec- ular weight (in amu) averages 600 to 965.		Surfactants, related adjuvants of surfactants.
Douglas-fir bark, ground		Solid diluent, carrier.
Dysprosium chloride	10 ppm in formulation	Tagging agent.
Ethylene glycol		Antifreeze, deactivator for all pesticides used before crop emerges from soil and in herbi- cides before or after crop emerges.
Ethylene glycol monobutyl ether		
Ethylene glycol monomethyl ether		Solvent for formulations used before crop emerges from soil.
2-Ethylhexanol		Cosolvent, defoamer, solvent for all pesticides used before crop emerges from soil and in herbicides before or after crop emerges.
Ethyl methacrylate		Surfactants, related adjuvants of surfactants.
Europic chloride	10 ppm in formulation	Tagging agent.
FD & C Red No. 40 (CAS Reg. No. 25956-17-6)	For seed treatment use only. Not to exceed 2% by weight of the pesticide formulation..	Dye, coloring agent.
Fenugreek		Attractant.
Ferric chloride		Not greater than 2% of suspending, dispersing agent, pesticide formulation.
Fluorapatite		Solid diluent, carrier.
Folic acid (CAS Reg. No. 59-30-3)	Maximum of 0.5% of formu- lation.	Synergist.
Formaldehyde	Not more than 1% of pes- ticide formulation.	Preservative for formulation.
Fumaric acid		Acidulant.
Fumaric acid—isophthalic acid—styrene—ethyl- ene/propylene glycol copolymer (minimum av- erage molecular weight (in amu) 1×10^{18}).		Encapsulating agent.
Furfural byproduct (a granular steam-acid steri- lized, lignocellulosic residuum in the extraction of furfural from corn cobs, sugarcane ba- gassee, cottonseed hulls, oat hulls, and rice hulls).		Solid diluent, carrier.
Gluconic acid (and sodium salt)		Sequestrant.
/-Glutamic acid ($C_5H_9NO_4$; CAS Reg. No. 56-86- 0).	Seed treatment use only	Plant nutrient.
Glutamine (CAS Reg. No. 56-85-9)	Maximum of 0.5% of formu- lation.	Synergist.
Glycerol—propylene oxide polymer (CAS Reg. No. 25791-96-2).		Component in water-soluble film.
Glyceryl triacetate		Stabilizer.
Glyceryl tris-12-hydroxystearate		Flow control agent.
Graphite		Treatment aid for seeds.
Hexamethylenetetramine		Stabilizer for carriers in solid pesticide formula- tions.
α-Hydro-ω-hydroxypoly(oxyethylene); molecular weight (in amu) 100,000 minimum.		Carrier.
α-Hydro-ω-hydroxypoly(oxypropylene) (mol. wt. 2,000).		Component of defoamers.
2-Hydroxy-4- <i>n</i> -octoxybenzophenone (CAS Reg. No. 1843-05-6).	Not more than 0.2 pt of pesticide formulation.	Light stabilizer.
Hydroxypropyl cellulose		Thickener.
Hydroxypropyl guar gum		Do.
Isoamyl acetate	Not more than 0.5% of pes- ticide formulation.	Odor-masking agent.
Isobornyl acetate		Solvent.
Isobutyl alcohol		Do.
Isobutylene-butene copolymers	For soil application only	Binder.
Isooctadecanol	Not more than 2% of pes- ticide formulation.	Defoaming agent.
Isophorone (CAS Reg. No. 78-59-1)		Solvent, cosolvent.
Isopropyl alcohol		Solvent, cosolvent, stabilizer, inhibitor.
Isopropylbenzene		Solvent, cosolvent.
Isopropylbenzenesulfonic acid and its ammo- nium, calcium, magnesium, potassium, so- dium, and zinc salts.		Surfactants and related adjuvants of surfactants.
Lanthanum chloride	10 ppm in formulation	Tagging agent.

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Inert ingredients	Limits	Uses
(3-Lauramidopropyl) trimethylammonium methyl sulfate.	Not more than 2.6% in the formulation. Not to be applied within 7 days of harvest.	Antistatic agent.
Linoleic diethanolamide (CAS Reg. No. 56863-02-6).		Surfactant.
Locust bean gum		Adhesive, component of defoamers.
Low erucic acid rapeseed oil, conforming to 21 CFR 184.1555(c) (CAS Reg. No. None).		Surfactant, related adjuvants of surfactant.
Magnesium nitrate (in combination with 2-methyl-4-isothiazolin-3-one and 5-chloro-2-methyl-4-isothiazolin-3-one).	None	Preservation.
Maleic acid and maleic anhydride	For pesticide formulations applied to apples with a minimum preharvest interval of 21 days.	Stabilizer.
Maleic acid—butadiene copolymer	3% of pesticide formulation	Surfactants, related adjuvants surfactants.
Maleic anhydride diisobutylene copolymer, sodium salt.	Not more than 3% of pesticide formulation.	Suspending agent, dispersing agent.
Maleic anhydride—methyl vinyl ether, copolymer; average molecular weight (in amu) 250,000.		Do.
Manganese carbonate		Plant nutrient.
Mesityl oxide	Not for use after edible parts of plant begin to form. Do not graze livestock in treated areas within 48 hours after application.	Solvent, cosolvent.
Methionine (CAS Reg. No. 59-51-8)	Maximum of 0.5% of formulation.	Synergist.
Methyl alcohol		Do.
Methyl bis(2-hydroxyethyl)alkyl ammonium chloride, where the carbon chain (C ₈ -C ₁₈) is derived from coconut, cottonseed, soya, or tallow acids.		Surfactant.
α,α'-[Methylenebis]-4-(1,1,3,3-tetramethylbutyl)-o-phenylene bis[ω-hydroxypoly(oxyethylene)] having 6-7.5 moles of ethylene oxide per hydroxyl group.		Solvent, cosolvent, surfactant, and related adjuvants of surfactants.
Methylene blue		Dye for formulations used on cotton.
Methylene chloride (Dichloromethane)		Solvent, cosolvent.
Methyl ethyl ketone		Surfactant.
Methyl p-hydroxybenzoate		Preservative for formulations.
Methyl isoamyl ketone		Solvent, cosolvent.
Methyl isobutyl ketone		Do.
2-Methyl-4-isothiazolin-3-one (in combination with 5-chloro-2-methyl-4-isothiazolin-3-one).	Not more than 0.0022% (22.5 ppm) in the formulation; 0.00022% (or 2.25 ppm) in the final solution applied to growing crops..	Preservative.
Methyl methacrylate		Surfactants, related adjuvants of surfactants.
Methyl methacrylate-2-sulfoethyl methacrylate-dimethylaminoethyl methacrylate-glycidyl methacrylate-styrene-2-ethylhexyl acrylate graft copolymer (minimum average molecular weight (in amu) 9,600).		Carrier.
Methylnaphthalenesulfonic acid—formaldehyde condensate, sodium salt.		Dispersant.
Methyl oleate		Surfactant.
2-Methyl-2,4-pentandiol		Solvent for formulations used before crop emerges from soil.
Methyl poly(oxyethylene) alkyl ammonium chloride, where the poly(oxyethylene) content is 3-15 moles and the alkyl group (C ₈ -C ₁₈) is derived from coconut, cottonseed, soya, or tallow acids..		Surfactant.
N-Methylpyrrolidone (CAS Reg. No. 872-504)		Solvent, cosolvent.
Methyl violet 2B		Dye.
Mixed phytosterols (consisting of campesterol, sitosterol and stigmasterol, with minor amounts of associated plant sterols) derived from edible vegetable oils.		Surfactant.

Inert ingredients	Limits	Uses
Mono- and bis-(1 <i>H</i> , 1 <i>H</i> , 2 <i>H</i> , 2 <i>H</i> -perfluoroalkyl) phosphates where the alkyl group is even numbered and in the C ₆ -C ₁₂ range.	Not more than 0.5% of pesticide formulation..	Defoaming agent.
Mono- and dialkyl (C ₈ -C ₁₈) methylated ammonium chloride compounds, where the alkyl group(s) (C ₈ -C ₁₈) are derived from coconut, cottonseed, soya, tallow, or hogfat fatty acids.		Surfactants, related adjuvants of surfactants.
Monophosphate ester of the block copolymer α -hydro- ω -hydroxypoly(oxyethylene) poly(oxypropylene) poly(oxyethylene); the poly(oxypropylene) content averages 37-41 moles, and the molecular weight (in amu) averages 8,000.		Do.
Morpholine salt of dodecylbenzenesulfonic acid		Do.
Naphthalenesulfonic acid-formaldehyde condensate, ammonium and sodium salts.		Do.
Nicotinamide (CAS Reg. No. 98-92-0)	Maximum of 0.5% of formulation.	Synergist.
α -(<i>p</i> -Nonylphenyl)- ω -hydroxypoly(oxyethylene); produced by the condensation of 1 mole of nonylphenol (nonyl group is a propylene trimer isomer) with an average of 4-14 or 30-100 moles of ethylene oxide; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range 4-14 or 30-100.		Surfactant.
X-(<i>p</i> -Nonylphenyl)- ω -hydroxy-poly(oxyethylene) sulfosuccinate isopropylamine and <i>N</i> -hydroxyethyl isopropylamine salts of: the poly(oxyethylene) content averages r moles.	Not more than 0.2% in the final solution.	Emulsifiers in pesticide concentrates applied with liquid fertilizer solutions before crop emerges from soil or not later than 4 weeks after planting.
Oat hulls		Solid diluent carrier.
<i>n</i> -Octyl alcohol		Solvent, cosolvent.
Oleic acid diester of α -hydro- ω -hydroxypoly(oxyethylene); the poly(oxyethylene) molecular weight (in amu) averages 2,300.		Surfactant.
α -Oleoyl- ω -(oleoyloxy) poly(oxyethylene) derived from α -hydro- ω -hydroxypoly(oxyethylene) (molecular weight 600 amu).		Component of defoamers.
Oxo-decyl acetate (CAS reg. No. 108419–33–6)		Solvent
Oxo-heptyl acetate (CAS Reg. No. 90438–79–2)		Solvent
Oxo-hexyl acetate (CAS Reg. No. 88230–35–7)		Solvent
Oxo-nonyl acetate (CAS Reg. No. 108419–34–7).		Solvent
Oxo-octyl acetate (CAS Reg. No. 108419–32–5)		Solvent
Oxo-tridecyl acetate (CAS Reg. No. 108419–35–8).		Solvent
Paper fiber, deinked or recycled, conforming to 21 CFR 109.30(a)(9) and 21 CFR 176.260.		Carrier.
Paper fiber, produced by the kraft (sulfate) or sulfite pulping processes.		Carrier.
Paraformaldehyde	Not more than 2% of pesticide formulation.	Preservative for formulation.
Partial sodium salt of <i>N</i> -lauryl- α -iminodipropionic acid.	Not more than 1% of pesticide formulation.	Surfactants, related adjuvants of surfactants.
Phenol		Solvent, cosolvent.
Phenolic resins	Soil applications	Binding agent.
Phenolsulfonic acid—formaldehyde—urea condensate and its sodium salt.	Applied to growing plants only.	Dispersant surfactant.
(Pthalocyaninato (2)) copper; (C.I. pigment blue No. 15).	When used as a colorant in low-density plastic films.	Coloring agent, pigment.
Pigment red 48	For seed treatment use only.	Dye.
α -Pinene	Not more than 2% of formulation by weight.	Stabilizer.
Polyethylene, oxidized (as defined in 21 CFR 172.260(a)).		Surfactants, related adjuvants of surfactants.
Polymethylene polyphenylisocyanate, polymer with ethylene diamine, diethylene triamine and sebacoyl chloride, cross-linked; minimum number average molecular weight 100,000.		Encapsulating agent

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Inert ingredients	Limits	Uses
Poly(methylene- <i>p</i> -nonylphenoxy)poly(oxypropylene) propanol; the poly(oxy- propylene) content averages 4-12 moles.		Do.
Polyoxyethylated primary amine (C ₁₄ -C ₁₈); the fatty amine is derived from an animal source and contains 3% water; the poly(oxyethylene) content averages 20 moles.	Applied prior to planting of any crop, or as directed spray around the base of any crop.	Surfactant.
Polyoxyethylated sorbitol fatty acid esters; the polyoxyethylated sorbitol solution containing 15% water is reacted with fatty acids limited to C ₁₂ , C ₁₄ , C ₁₆ , and C ₁₈ , containing minor amounts of associated fatty acids; the poly(oxyethylene) content averages 30 moles.		Surfactants, related adjuvants of surfactants.
Poly(oxyethylene) adducts of mixed phytosterols (such sterols to consist of campesterol, stigmasterol and sitosterol with minor amounts of associated plant sterols) derived from edible vegetable oils; polyoxyethylene content averaging 5-26 moles.		Surfactant, related adjuvants.
Poly(oxyethylene) (5) sorbitan monooleate		Surfactants, related adjuvants of surfactants.
Poly(phenylhexylurea), cross-linked; minimum average molecular weight 36,000.		Encapsulating agent
Polysorbate 60, conforming to 21 CFR 172.836		Surfactant.
Polyvinyl acetate (as defined in 21 CFR 172.615).		Adhesive.
Polyvinyl acetate—polyvinyl alcohol copolymer (CAS Reg. No. 25213-24-5).	Minimum number average molecular weight (in amu) 50,000.	Component of water-soluble film.
Polyvinyl alcohol		Binder; water soluble bag-container or film-tape for encapsulating seeds.
Polyvinylpyrrolidone, butylated		Surfactants, related adjuvants of surfactants.
Potassium carbonate		Buffering agent.
Potassium dihydrogen phosphate		Do.
Primary <i>n</i> -alkylamines, where the alkyl group (C ₈ -C ₁₈) is derived from coconut, cottonseed, soya, or tallow acids.		Surfactant.
<i>n</i> -Propanol		Solvent for blended emulsifiers.
Propylene dichloride		Solvent for formulations used before crop emerges from soil.
Propylene glycol monomethyl ether		Solvent.
Pyridoxine (CAS Reg. No. 65-23-6)	Maximum of 0.5% of formulation.	Synergist.
Rosin, dark wood (as defined in 21 CFR 178.3870(a)(1)(v)).		Surfactants, related adjuvants of surfactants.
Rosin, gum		Do.
Rosin, tall oil		Do.
Scandium chloride	10 ppm in formulation	Tagging agent.
Silicon dioxide, fumed, amorphous		Flow control, anticating, and carrier agent.
Soapbark (quillaja)		Dispersing agent, wetting agent.
Sodium bisulfate (CAS Reg. No. 7681-38-1)		Acidifying/buffering agent.
Sodium butyl naphthalenesulfonate		Surfactants, related adjuvants of surfactants.
Sodium caseinate		Suspending agent and binder.
Sodium citrate		Sequestrant.
Sodium 1,4-dicyclohexyl sulfosuccinate		Surfactants, related adjuvants of surfactants.
Sodium 1,4-dihexyl sulfosuccinate		Do.
Sodium dihydrogen phosphate (CAS Reg. No. 7558-80-7) conforming to 21 CFR 182.6778.		Buffering agent.
Sodium 1,4-diisobutyl sulfosuccinate		Surfactants, related adjuvants of surfactants.
Sodium 1,4-dipentyl sulfosuccinate		Do.
Sodium 1,4-ditridecyl sulfosuccinate		Do.
Sodium fluoride	Not more than 0.25% of pesticide formulation.	Stabilizer carrier for formulations used before crop emerges from soil.
Sodium metaborate		Sequestrant.
Sodium molybdate		Plant nutrient.
Sodium mono- and dimethyl naphthalenesulfonate; molecular weight (in amu) 245-260.		Surfactants, related adjuvants of surfactants.
Sodium mono-, di-, and triisopropyl naphthalenesulfonate.		Do.
Sodium nitrate		Solid diluent.
Sodium nitrite	Not more than 3% of pesticide formulation.	Stabilizer, inhibitor.

Inert ingredients	Limits	Uses
Sodium <i>o</i> -phenylphenate	Not more than 0.1% of pesticide formulation.	Preservative for formulation.
Sodium polyflavinoidsulfonate, consisting chiefly of the copolymer of catechin and leucocyanidin.		Sunscreen agent for viral insecticides for use on cotton.
Sodium salt of the insoluble fraction of rosin		Surfactants, related adjuvants of surfactants.
Sodium salt of partially or completely saponified dark wood rosin (as defined in 21 CFR 178.3870(a)(4)).		Surfactants, related adjuvants of surfactants.
Sodium tetraborate	Not more than 2% of pesticide formulation.	Buffering agent; corrosion inhibitor.
Styrene—maleic anhydride copolymer	For preemergence use only	Suspending or dispersing agent.
Styrene—maleic anhydride copolymer, ester derivative.	Limited to 3% of the formulation.	Suspending or dispersing agent. For pre-emergence use and use prior to formation of edible parts of plant.
Sulfosuccinic acid ester with <i>N</i> -(2-hydroxypropyl) oleamide, ammonia and isopropylamine salts of.	Not more than 0.2% in the final solution.	Emulsifiers in pesticide concentrates applied with liquid fertilizer solutions before crop emerges from soil or not later than 4 weeks after planting.
Tall oil diesters with polypropylene glycol (CAS Reg. No. 68648-12-4).		Component in water-soluble film.
Tannin		Dispersing agent.
Tertiary butylhydroquinone		Antioxidant.
1-Tetradecanamine, <i>N,N</i> -dimethyl-, <i>N</i> -oxide (CAS Reg. No. 3332-27-2).		Component in water-soluble film.
<i>N,N,N',N''</i> -Tetrakis-(2-hydroxypropyl) ethylenediamine.		Stabilizer for formulations used before crop emerges from soil.
α -[<i>p</i> -(1,1,3,3-Tetramethylbutyl)phenyl]- ω -hydroxypoly(oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding sodium salts of the phosphate esters; the poly(oxyethylene) content averages 6 to 10 moles.		Surfactants, related adjuvants of surfactants.
α -[<i>p</i> -(1,1,3,3-Tetramethylbutyl)phenyl] poly(oxypropylene) block polymer with poly(oxyethylene); the poly(oxypropylene) content averages 25 moles, the poly(oxyethylene) content averages 40 moles, the molecular weight (in amu) averages 3,400.		Do.
2,4,7,9-Tetramethyl-5-decyne 4,7-diol	In pesticide formulations, for application to soil prior to planting or to plants before edible parts form.	Do.
Tetrapotassium pyrophosphate (CAS Reg. No. 7320-345).	Not to exceed 10% of formulation.	Sequestrant, anticaking agent, conditioning agent.
Tetrasodium <i>N</i> -(1,2-dicarboxyethyl)- <i>N</i> -octadecylsulfosuccinamate.		Do.
[2,2'-(2,5-Thiophenediyl) bis (5- <i>tert</i> -butylbenzoxazole)] (CAS Reg. Number 7128-64-5).	10 ppm in pesticide formulations.	Quality control agent.
Titanium dioxide (CAS Reg. No. 13463-67-7)		Pigment/coloring agent in plastic bags used to wrap growing bananas (preharvest), colorant on seeds for planting.
Toluene		Solvent, cosolvent.
Toluenesulfonic acid and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Do.
Tri- <i>tert</i> -butylphenol polyglycol ether (molecular weight (in amu) 746).		Surfactant for formulations used before crop emerges from soil.
Triethanolamine		Stabilizer, inhibitor for formulations used before crop emerges from soil.
Triethylene glycol		Deactivator.
Triethyl phosphate		Stabilizer for formulations used before crop emerges from soil.
Trimethylolpropane (CAS Reg. No. 77-66-9)	Not more than 15% of the pesticide formulation.	Component of water-soluble film.
Trimethylolpropane (CAS Reg. No. 77-99-6)	Not to exceed 15% by weight of the film.	Component in water-soluble film.
α -[2,4,6-Tris[1-(phenyl)ethyl]phenyl]- ω -hydroxy poly(oxyethylene), the poly(oxyethylene) content averages 4-150 moles.	Not more than 15% of the formulation.	Surfactant.

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Inert ingredients	Limits	Uses
α-[2,4,6-Tris[1-(phenyl)ethyl]phenyl]-ω-hydroxy poly(oxyethylene); mixture of monohydrogen and dihydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, potassium, sodium, and zinc salts, the poly(oxyethylene) content averages 4-150 moles).	Not more than 15% of the formulation.	Do.
α-[2,4,6-Tris[1-(phenyl)ethyl]phenyl]-ω-hydroxy poly(oxyethylene) poly(oxypropylene) copolymer, the poly(oxypropylene) content averages 2-8 moles, the poly(oxyethylene) content averages 16-30 moles, and the average molecular weight (in amu) is 1,500.	Not more than 15% in the pesticide formulation.	Do.
α-[2,4,6-Tris[1-(phenyl)ethyl]phenyl]-ω-hydroxy poly(oxyethylene) sulfate, and the corresponding ammonium, calcium, magnesium, potassium, sodium, and zinc salts, the poly(oxyethylene) content averages 4-150 moles.	Not more than 15% of the pesticide formulation.	Do.
Tryptophan (CAS Reg. No. 73-22-3)	Maximum of 0.5% of formulation.	Synergist.
Urea (CAS Reg. No. 57-13-6)		Adjuvant/ intensifier for herbicides.
Urea—formaldehyde copolymer (minimum average molecular weight (in amu) 30,000); CAS No. 9011-05-6..		Encapsulating agent.
Valeric acid, normal	Not more than 2% in pesticide formulations.	Stenching agent or odorant.
Vanillin		Attractant.
Vinyl acetate—allyl acetate—monomethyl maleate copolymer (minimum average molecular weight (in amu) 20,000).		Component on water-soluble film.
Vinyl acetate—ethylene copolymer (CAS Reg. No. 24937-78-8); minimum number average molecular weight (in amu) 69,000.		Component of water-soluble film.
Vinyl acetate—vinyl alcohol—alkyl lactone copolymer.	Minimum estimated number average molecular weight (in amu) 40,000; minimum viscosity of 18 centipoise.	Component of water-soluble film.
Vinyl alcohol—disodium itaconate copolymer (minimum average molecular weight (in amu) 50,290).		Component of water-soluble film.
Vinyl alcohol—vinyl acetate—monomethyl maleate, sodium salt—maleic acid, disodium salt-γ-butyrolactone acetic acid, sodium salt copolymer, minimum number average molecular weight (in amu) 20,000.		Carrier.
Vinyl chloride—vinyl acetate copolymers	Not more than 2% of pesticide formulation.	Inert binding agent for formulation applied only to soil.
Vinylpyrrolidone—styrene copolymer (CAS Reg. No. 25086-29-7).	Not to exceed 2% of the formulation.	Opacifier.
Wheat		Attractant.
Wheat flour		Do.
Wool fat (anhydrous lanolin)		Stabilizer.
Woolwax alcohols		Safener.
Xylene		Solvent, cosolvent.
Xylenesulfonic acid its ammonium calcium, magnesium, potassium, sodium, and zinc salts.		Surfactants, related adjuvants of surfactants.
Ytterbium chloride	10 ppm in formulation	Tagging agent.
Yttrium chloride	10 ppm in formulation	Tagging agent.
Zinc orthophosphate		Plant nutrient and safener.
Zinc stearate, conforming to 21 CFR 182.5994 and 582.5994.		Flow control agent.

(e) The following materials are exempted from the requirement of a tolerance when used in accordance with good agricultural practice as inert (or

occasionally active) ingredients in pesticide formulations applied to animals:

Inert ingredients	Limits	Uses
Acetic acid (CAS Reg. No. 64-19-7)	Not more than 0.5% of pesticide formulation.	Catalyst.
Acetic anhydride		Solvent, cosolvent, stabilizer.
Acetyl tributyl citrate (CAS Reg. No. 77-90-7)		Component of plastic animal tags.
Acetylated lanolin alcohol		Moisturizer.
Acrylic acid—stearyl methacrylate copolymer (CAS Reg. No. 27756-15-6), minimum number average molecular weight (in amu) 2,500.		Emulsifier, suspending agent, or rheology modifier.
Acrylonitrile—butadiene copolymer (CAS Reg. No. 9003-18-3) conforming to 21 CFR 180.22, minimum average molecular weight (in amu) 1,000.		Carrier in animal tag and similar slow-release devices.
Alkanoic and alkenoic acids, mono- and diesters of α -hydro- ω -hydroxypoly(oxyethylene) with molecular weight (in amu) range of 200 to 6,000.		Emulsifiers.
Alkyl (C ₈ -C ₂₄) benzenesulfonic acid and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Surfactants, emulsifier, related adjuvants of surfactants.
α -Alkyl (C ₉ -C ₁₈)- ω -hydroxy poly(oxyethylene): the poly(oxyethylene) content averages 2-20 moles.		Solvent, cosolvent, surfactant, and related adjuvants of surfactants.
α -Alkyl (C ₁₂ -C ₁₅)- ω -hydroxypoly(oxyethylene) sulfate and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts; the poly(oxyethylene) content averages 3 moles.		Surfactants, related adjuvants of surfactants.
α -Alkyl (C ₁₂ -C ₁₅)- ω -hydroxypoly(oxyethylene/oxypropylene) hetero polymer in which the oxyethylene content is 8-13 moles and the oxypropylene content is 7-30 moles.		Solvent, cosolvent, surfactant, and related adjuvants of surfactants.
α -Alkyl (C ₈ -C ₁₀) hydroxypoly(oxypropylene) block polymer with polyoxyethylene; polyoxypropylene content averages 3 moles and polyoxyethylene content averages 5-12 moles.		Do.
α -Alkyl (C ₆ -C ₁₄)- ω -hydroxypoly(oxypropylene) block copolymer with polyoxyethylene; polyoxypropylene content is 1-3 moles; polyoxyethylene content is 7-9 moles; average molecular weight (in amu) approximately 635.		Surfactants, related adjuvants of surfactants.
α -(<i>p</i> -Alkylphenyl)- ω -hydroxypoly (oxyethylene) produced by the condensation of 1 mole of alkylphenol (alkyl is a mixture of propylene tetramer and pentamer isomers and averages C ₁₃) with 6 moles of ethylene oxide.		Do.
Alkyl (C ₈ -C ₁₈) sulfate and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Do.
Amine salts of alkyl (C ₈ -C ₂₄) benzenesulfonic acid (butylamine; dimethylamino propylamine; mono- and diisopropyl- amine; and mono-, di-, and triethanolamine).		Do.
Ascorbyl palmitate		Preservative.
Attapulgate-type clay		Solid diluent, carrier.
Barium sulfate (CAS Reg. No. 7727-43-7)		Carrier, density control agent.
Benzoic acid		Preservative for formulations.
Butane		Propellant.
1,4-Butanediol-methylenebis(4-phenylisocyanate)-poly(tetramethylene glycol) copolymer (CAS Reg. No. 9018-04-6); minimum molecular weight (in amu) 158,000.		Solid diluent; carrier.
<i>n</i> -Butanol (CAS Reg. No. 71-36-3)		Solvent for blended emulsifiers.
Butylated hydroxyanisole		Antioxidant.
Butylated hydroxytoluene		Do.
α -Butyl- ω -hydroxypoly(oxypropylene) block polymer with poly(oxyethylene); molecular weight (in amu) 2,400-3,500.		Surfactants, emulsifier, related adjuvants of surfactants.

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Inert ingredients	Limits	Uses
α -(<i>p</i> - <i>tert</i> -Butylphenyl)- ω -hydroxypoly (oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the poly(oxyethylene) content averages 4-12 moles.		Surfactants, related adjuvants of surfactants.
Calcium carbonate		Solid diluent, carrier.
Calcium chloride		Stabilizer.
Calcium silicate, hydrated calcium silicate		Anticaking agent, solid diluent, carrier.
Calcium stearate (CAS Reg. No. 1592-23-0)		Stabilizer, component of plastic animal tag.
Calcium sulfate		Solid diluent, carrier.
Calcium and sodium salts of certain sulfonated petroleum fractions (mahogany soaps); calcium salt molecular weight (in amu) 790-1,020, sodium salt molecular weight (in amu) 400-500.		Surfactants, related adjuvants of surfactants.
Carbon black (CAS Reg. No. 1333-86-4)		Colorant/pigment in animal tag.
Carnauba wax (CAS Reg. No. 8015-86-9)		Binder.
Carrageenan, conforming to 21 CFR 172.620	Minimum molecular weight (in amu): 100,000.	Thickener.
Castor oil, U.S.P.		Cosolvent.
Castor oil, polyoxyethylated; the poly(oxyethylene) content averages 5-54 moles.		Surfactants, related adjuvants of surfactants.
Castor oil, polyoxyethylated; the poly(oxyethylene) content averages 40 moles.		Surfactants, related adjuvants of surfactants.
α -Cellulose	Food grade	Suspending.
Chlorinated polyethylene (CAS Reg. No. 64754-90-1).		Resin, component animal tag.
Citric acid		Buffer.
Corn syrup		Sticker, attractant.
Cross-linked polyurea-type encapsulating polymer.		Encapsulating agent.
Cumene (isopropylbenzene)		Solvent, cosolvent.
Cyclohexanone		Do.
D & C Green No. 6		Dye, coloring agent.
D & C Red No. 17		Do.
D & C Violet No. 2		Do.
Dextrin (CAS Reg. No. 9004-53-9)		Surfactant, suspending agent, dispersing agent.
Dextrose		Solid diluent, carrier, sweetener.
Diacetyl tartaric acid esters of mono- and diglycerides of edible fatty acids.		Emulsifier.
Dialkyl (C ₈ -C ₁₈) dimethylammonium chloride	Not more than 0.2% in silica hydrated silica.	Flocculating agent in the manufacture of silica hydrated silica for use as a solid diluent, carrier.
Diatomite (diatomaceous earth)		Solid diluent, carrier.
Dibutyltin dilaurate (CAS Reg. No. 77-58-7)		Component of plastic slow release tag.
Dichlorodifluoromethane		Propellant.
Diethylphthalate		Solvent, cosolvent.
Dimethyl ether (CAS Reg. No. 115-10-6)		Propellant.
3,6-Dimethyl-4-octyne-3,6-diol	Not more than 2.5% of pesticide formulation.	Surfactants, related adjuvants of surfactants.
Dimethylpolysiloxane (CAS Reg. No. 9016-00-6)		Defoaming agent.
α -(<i>o,p</i> -Dinonylphenyl)- ω -hydroxypoly (oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the nonyl group is a propylene trimer isomer and the poly(oxyethylene) content averages 4-14 moles.		Surfactants, related adjuvants of surfactants.
α -(<i>o,p</i> -Dinonylphenyl)- ω -hydroxypoly (oxyethylene), produced by the condensation of 1 mole of dinonylphenol (nonyl group is a propylene trimer isomer) with an average of 4-14 moles of ethylene oxide.		Do.
Dipropylene glycol monomethyl ether		Do.
Dodecylbenzenesulfonic acid, amine salts		Do.

Inert ingredients	Limits	Uses
α -(<i>p</i> -Dodecylphenyl)- ω -hydroxypoly (oxyethylene) produced by the condensation of 1 mole of dodecylphenol (dodecyl group is a propylene tetramer isomer) with an average of 4-14 or 30-70 moles of ethylene oxide; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 4-14 or 30-70 moles.		Surfactants, emulsifier.
Epoxidized soybean oil		Stabilizer.
Epoxidized soybean oil (CAS Reg. No. 8013-07-8).		Stabilizer, plasticizer, component animal tag.
1,2 Ethanedi-amine, polymer with oxirane and methyloxirane (CAS Reg. No. 26316–40–5) minimum number average molecular weight 2,800 and the range of number average molecular weight is 2,800 to 10,000 daltons..		Surfactant, dispersing agent
Ethyl alcohol		Solvent, cosolvent.
Ethylene oxide adducts of 2,4,7,9-tetramethyl-5-decynediol, the ethylene oxide content averages 3.5, 10, or 30 moles.		Surfactants, related adjuvants of surfactants.
2-Ethyl-1-hexanol	Not more than 2.5% of pesticide formulation.	Solvent, adjuvant of surfactants.
Ethyl vinyl acetate (CAS Reg. No. 24937-78-8)		Component of plastic slow release tag.
FD & C Blue No. 1		Dye.
FD & C Blue No. 1		Dye, coloring agent.
FD & C Yellow No. 6 Aluminum Lake (CAS Reg. No. 15790-07-5).	Not more than 2% by weight of pesticide formulation.	Pigment in animal tag and similar slow-release devices.
Glycerol (glycerin)	Meets specifications of Food Chemicals Codex.	Solvent and thickener.
Glycerol monooleate		Surfactants, related adjuvants of surfactants.
Glyceryl monostearate		Emulsifier.
Glyceryl tris-12-hydroxystearate		Flow control agent.
Graphite		Solid diluent, carrier.
<i>n</i> -Hexyl alcohol (CAS Reg. No. 111-27-3)		Solvent, cosolvent.
α -Hydro- ω -hydroxypoly(oxypropylene); molecular weight (in amu) 2,000.		Surfactants, related adjuvants of surfactants.
α -Hydro- ω -hydroxypoly(oxyethylene)poly(oxypropylene) poly(oxyethylene) block copolymer; the minimum poly(oxypropylene) content is 27 moles and the minimum molecular weight (in amu) is 1,900.		Surfactant, wetting agent.
2-(2'-Hydroxy-5'-methylphenyl)benzotriazole (CAS Reg. No. 2440-22-4).	Not more than 0.5% by weight of pesticide formulation.	Ultraviolet light absorber/stabilizer in animal tag and similar slow-release devices.
Iron oxide (CAS Reg. No. 1309-37-1)		Colorant in pesticide formulations for animal tags.
Isopropyl alcohol		Solvent, cosolvent.
4,4'-Isopropylidenediphenol alkyl (C ₁₂ -C ₁₅) phosphites (CAS Reg. No. 92908-32-2).	Not to exceed 1% of polymer.	Stabilizer, component animal tag.
Isopropyl myristate, CAS Reg. No. 110-27-0		Solvent.
Kaolinite-type clay		Solid diluent, carrier.
Kerosene, U.S.P. reagent		Solvent, cosolvent.
Lactic acid		Solvent.
α -Lauryl- ω -hydroxypoly(oxyethylene). average molecular weight (in amu) of 600.		Emulsifier.
α -Lauryl- ω -hydroxypoly(oxyethylene) sulfate, sodium salt; the poly(oxyethylene) content is 3-4 moles.		Surfactants, related adjuvants of surfactants.
Lignosulfonate: ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Surfactants, related adjuvants of surfactants.
d-Limonene (CAS Reg. No. 5989-27-5)		Solvent, fragrance.
Magnesium carbonate		Solid diluent, carrier.
Magnesium silicate, hydrated magnesium silicate.		Do.
Maleic acid monobutyl ester—vinyl methyl ether copolymer, CAS No. 25119-68-0, minimum average molecular weight (in amu) 52,000.		Seed-coating adhesive, gel, and antitranspirant.
Maleic acid monoethyl ester—vinyl methyl ether copolymer, CAS No. 25087-06-3, minimum average molecular weight (in amu) 46,000.		Seed-coating adhesive, gel, and antitranspirant.

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Inert ingredients	Limits	Uses
Maleic acid monoisopropyl ester—vinyl methyl ether copolymer, CAS No. 31307-95-6, minimum average molecular weight (in amu) 49,000.		Seed-coating adhesive, gel, and antitranspirant.
Manganous oxide		Do.
Methyl alcohol		Solvent, cosolvent.
Methyl <i>n</i> -amyl ketone (CAS Reg. No. 110-43-0)		Solvent, cosolvent.
Methylcellulose		Dispersing-wetting agent.
Methylene chloride		Dispersant.
α -(Methylene (4-(1,1,3,3-tetramethylbutyl)- <i>o</i> -phenylene) bis- ω -hydroxypoly(oxyethylene) having 6-7.5 moles of ethylene oxide per hydroxyl group.		Surfactants, related adjuvants of surfactants.
Methyl esters of higher fatty acids conforming to 21 CFR 573.640.		Antidusting agent.
Methyl- <i>p</i> -hydroxybenzoate (Methyl paraben)	Meets specifications of Food Chemicals Codex; not to exceed 0.1% in formulations.	Preservative.
Methyl isobutyl ketone		Solvent, cosolvent.
2-[Methyl [(perfluoroalkyl)alkyl(C ₂ -C ₈)sulfonyl] amino]alkyl(C ₂ -C ₈) acrylate—alkyl(C ₂ -C ₈) methacrylates- <i>N</i> -methylolacrylamide copolymer.		Water repellant agent.
Methyl vinyl ether—maleic acid copolymer (CAS Reg. No. 25153-40-6), minimum number average molecular weight (in amu) 75,000.		Dispersant.
Methyl vinyl ether—maleic acid copolymer calcium sodium salt (CAS Reg. No. 62386-95-2), minimum number average molecular weight (in amu) 900,000..		Dispersant.
Mineral oil, U.S.P., or conforming to 21 CFR 172.878 or 178.3620(a), (b).		Solvent, diluent.
Mono-, di-, and trimethylnaphthalenesulfonic acids-formaldehyde condensates, sodium salts.	Not to exceed 0.006% in final formulation.	Dispersing-wetting agent in dip vat operations for large animals, such as cattle.
Montmorillonite-type clay		Solid diluent, carrier.
Naphthalenesulfonic acid and its sodium salt		Surfactants, related adjuvants of surfactants.
Nitrile rubber modified acrylonitrile methylacrylate (CAS Reg. No. 27012-62-0) conforming to 21 CFR 177.1480.		Component of plastic slow release tag.
Nonyl, decyl, and undecyl glycoside mixture with a mixture of nonyl, decyl, and undecyl oligosaccharides and related reaction products (primarily decanol and undecanol) produced as an aqueous-based liquid (50 to 65% solids) from the reaction of primary alcohols (containing 15 to 20% secondary alcohol isomers) in a ratio of 20% C ₉ , 40% C ₁₀ , and 40% C ₁₁ with carbohydrates (average glucose to alkyl chain ratio 1.3 to 1.8).		Surfactant.
α -(<i>p</i> -Nonylphenyl)- ω -hydroxypoly(oxyethylene) mixture of dihydrogen phosphate and monohydrogen phosphate esters and the corresponding ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts of the phosphate esters; the nonyl group is a propylene trimer isomer and the poly(oxyethylene) content averages 4-14 moles.		Surfactants, related adjuvants of surfactants.
α -(<i>p</i> -Nonylphenyl)- ω -hydroxypoly(oxyethylene) produced by the condensation of 1 mole of nonylphenol (nonyl group is a propylene trimer isomer) with an average of 4-15 or 30-90 moles of ethylene oxide; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 4-15 or 30-90 moles.		Surfactants, emulsifier, related adjuvants of surfactants.

Inert ingredients	Limits	Uses
α-(<i>p</i> -Nonylphenyl)-ω-hydroxypoly(oxyethylene) sulfate, and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts; the nonyl group is a propylene trimer isomer and the poly(oxyethylene) content averages 4 moles.		Surfactants, related adjuvants of surfactants.
α-(<i>p</i> -Nonylphenyl)-ω-hydroxypoly(oxyethylene) sulfate, and its ammonium, calcium, magnesium, monoethanolamine, potassium, sodium, and zinc salts; the nonyl group is a propylene trimer isomer and the poly(oxyethylene) content averages 4-14 or 30-90 moles of ethylene oxide.		Surfactants, related adjuvants of surfactants.
α-(<i>p</i> -Nonylphenyl)-ω-hydroxypoly(oxypropylene) block polymer with poly(oxyethylene); polyoxypropylene content of 20-60 moles; polyoxyethylene content of 30-80 moles; molecular weight (in amu) 2,100-7,100.		Surfactants, related adjuvants of surfactants.
α-(<i>p</i> -Nonylphenyl)poly(oxypropylene) block polymer with poly(oxyethylene); poly oxyethylene content 30 to 90 moles; molecular weight (in amu) averages 3,000.		Do.
α- <i>cis</i> -9-Octadecenyl-ω-hydroxypoly(oxyethylene); the octadecenyl group is derived from oleyl alcohol and the poly(oxyethylene) content average 20 moles.		Do.
Octadecyl 3,5-di- <i>tert</i> -butyl-4-hydroxyhydro cinnamate (CAS Reg. No. 2082-79-3).	Not more than 0.5% by weight of pesticide formulation.	Thermal stabilizer/antioxidant in animal tag and similar slow-release devices.
Octyl and decyl glucosides mixture with a mixture of octyl and decyl oligosaccharides and related reaction products (primarily <i>n</i> -decanol) produced as an aqueous-based liquid (68-72% solids) from the reaction of straight chain alcohols (C ₈ (45%), C ₁₀) with anhydrous glucose.		Do.
Octyl epoxytallate (CAS Reg. No. 61788-72-5)		Plasticizer, component animal tag.
Oleic acid, conforming to 21 CFR 172.862 (CAS Reg. No. 112-80-1).		Defoaming agent.
α-Oleoyl-ω-hydroxypoly(oxyethylene), average molecular weight (in amu) of 600.		Emulsifier.
α-Oleoyl-ω-(oleyl-oxy)poly(oxyethylene) derived from α-hydro-ω-hydroxypoly(oxyethylene), molecular weight (in amu) 600.		Emulsifier, defoaming agent.
Oxidized pine lignin, sodium salt (CAS Reg. No. 68201-23-0).	Maximum of 2% of formulation.	Surfactant, related adjuvant of surfactant
Paraformaldehyde	Not more than 2% of pesticide formulation.	Preservative for formulation.
Petroleum hydrocarbons, light, odorless, conforming to 21 CFR 172.884 or 178.3650.		Solvent, diluent.
Petroleum hydrocarbons, synthetic isoparaffinic, conforming to 21 CFR 172.882 or 178.3530.		Do.
Phenol		Solvent, cosolvent.
Pine lignin		Adsorbent.
α-Pinene	Not more than 2% of formulation by weight.	Stabilizer.
Polyacrylic acid		Surfactants, related adjuvants of surfactants.
Polyethylene (CAS Reg. No. 9002-88-4) conforming to 21 CFR 172.615.		Component of plastic slow release tag.
Polyethylene esters of fatty acids, conforming to 21 CFR 172.854.		Surfactants, related adjuvants of surfactants.
Polyethylene glycol [α-hydro-ω-hydroxypoly(oxyethylene)]; mean molecular weight (in amu) 194 to 9,500 conforms to 21 CFR 178.3750.		Surfactants, related adjuvants of surfactants.
Polyglyceryl phthalate esters of coconut oil fatty acids.		Do.
Poly(methylene- <i>p-tert</i> -butylphenoxy)poly(oxyethylene) ethanol; the poly(oxyethylene) content averages 4-12 moles.		Do.

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Inert ingredients	Limits	Uses
Poly(methylene- <i>p</i> -nonylphenoxy)poly(oxyethylene) ethanol; the poly(oxyethylene) content averages 4-12 moles.		Do.
Poly(methylene- <i>p</i> -nonylphenoxy)poly(oxypropylene) propanol; the poly(oxypropylene) content averages 4-12 moles.		Do.
Polyoxyethylated sorbitol fatty acid esters; the polyoxyethylated sorbitol solution containing 15% water is reacted with fatty acids limited to C ₁₂ , C ₁₄ , C ₁₆ , and C ₁₈ containing minor amounts of associated fatty acids; the poly(oxyethylene) content averages 30 moles.		Do.
Poly(oxypropylene) block polymer with poly(oxyethylene); molecular weight (in amu) 1,800-9,000.		Do.
Polypropylene (CAS Reg. No. 9003-07-0)		Carrier, component of plastic slow-release tag. Suspending agent, thickener.
Polystyrene (CAS Reg. No. 9003-53-6), minimum number average molecular weight (in amu) 50,000).		
Polytetrafluoroethylene (CAS Reg. No. 9002-84-0).		Component of plastic slow release tag.
Polyvinyl alcohol (CAS Reg. No. 9002-89-5)		Surfactant.
Polyvinyl chloride		Solid diluent, carrier.
Potassium hydroxide	Meeting Food Chemicals, Codex specifications.	Neutralizer.
Propane		Propellant.
<i>n</i> -Propanol		Solvent, for blended emulsifiers.
Propylene glycol		Solvent, cosolvent.
Propylene glycol monomethyl ether		Deactivator, emmolient.
Propyl gallate		Antioxidant.
Propyl <i>p</i> -hydroxybenzoate (Propyl paraben)	Meets specifications of Food Chemicals Codex; not to exceed 0.1% in formulations.	Preservative.
Pyrophyllite		Solid diluent, carrier.
Rhodamine B		Dye.
Secondary alkyl (C ₁₁ -C ₁₅) poly(oxyethylene) acetate, sodium salt; the ethylene oxide content averages 5 moles.		Surfactant.
Silica, hydrated silica		Anticaking agent, solid diluent, carrier.
Silica aerogel (finely powdered microcellular silica foam having a minimum silica content of 89.5%).		Component of antifoaming agent.
Soapstone		Solid diluent.
Sodium alginate		Stabilizer.
Sodium benzoate (CAS Reg. No. 532-32-1)		Anticaking agent/stabilizer/preservative.
Sodium butylphenylsulfonate		Not more than 0.5% of pesticide formulation.
Sodium carboxymethylcellulose		Suspending and thickening agent.
Sodium diisobutylphenylsulfonate		Surfactants, related adjuvants of surfactants.
Sodium dioctylsulfosuccinate		Do.
Sodium hydroxide		Neutralizer.
Sodium isopropylisohexylphenylsulfonate		Surfactants, related adjuvants of surfactants.
Sodium isopropylphenylsulfonate		Do.
Sodium monoalkyl and dialkyl (C ₈ -C ₁₃) phenoxybenzenedisulfonate mixtures containing not less than 70% of the monoalkylated product.		Do.
Sodium mono- and dimethylnaphthalenesulfonate, molecular weight (in amu) 245-260.		Do.
Sodium mono-, di-, and tributylphenylsulfonates.		Solvent, cosolvent stabilizer.
Sodium <i>N</i> -oleoyl- <i>N</i> -methyl taurine	Not more than 1% of pesticide formulations.	Surfactant.
Sodium sulfate		Solid diluent, carrier.
Sorbitan fatty acid esters (fatty acids limited to C ₁₂ , C ₁₄ , C ₁₆ , and C ₁₈ containing minor amounts of associated fatty acids) and poly(oxyethylene) derivatives of sorbitan fatty acid esters; the poly(oxyethylene) content averages 16-20 moles.		Buffering agent; corrosion inhibition.
Sorbitol		Antidusting agent.

Inert ingredients	Limits	Uses
Soy protein, isolated		Adhesive.
Stearic acid (CAS Reg. No. 57-11-4)		Lubricant, component animal tag.
α-Stearoyl-ω-hydroxypoly(oxyethylene), average molecular weight (in amu) of 600.		Emulsifier.
α-Stearoyl-ω-hydroxypoly(oxyethylene); the poly(oxyethylene) content averages 8, 9, or 40 moles; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be 8, 9, or 40.		Surfactants; related adjuvants of surfactants.
Sucrose		Solid diluent, carrier.
Sulfur (CAS Reg. No. 7704-34-9)		Stabilizer.
Talc		Do.
Tall oil; fatty acids not less than 58%, rosin acids not more than 44%, unsaponifiables not more than 8%.		Surfactants, related adjuvants of surfactants.
Tartrazine		Dye, coloring agent.
α-[p-(1,1,3,3-Tetramethylbutyl)phenyl]-ω-hydroxypoly(oxyethylene) produced by the condensation of 1 mole of p (1,1,3,3-tetramethylbutyl)phenol with a range of 1-14 or 30-70 moles of ethylene oxide; if a blend of products is used, the average range number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 1-14 or 30-70.		Surfactants, related adjuvants of surfactants.
α-[p-(1,1,3,3-Tetramethylbutyl)phenyl]-ω-hydroxypoly(oxyethylene) produced by the condensation of 1 mole of p-(1,1,3,3-tetramethylbutyl) phenol with an average of 4-14 or 30-70 moles of ethylene oxide; if a blend of products is used, the average number of moles of ethylene oxide reacted to produce any product that is a component of the blend shall be in the range of 4-14 or 30-70.		Surfactants, related adjuvants of surfactants.
2,4,7,9-Tetramethyl-5-decyne-4,7-diol	Not more than 2.5% of pesticide formulation.	Do.
Titanium dioxide (CAS Reg. No. 13463-67-7)		Pigment/colorant in pesticide formulations for animal tag.
Toluenesulfonic acid and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Do.
Triacetin (glyceryl triacetate)		Solvent, cosolvent.
Tri-tert-butylphenol polyglycol ether (molecular weight (in amu) 746).		Dispersing agent.
1,1,1-Trichloroethane		Solvent, cosolvent.
1,1,1-Trichloroethane	Not more than 25% of pesticide formulation.	Do.
Trichlorofluoromethane		Propellant.
Tridecylpoly(oxyethylene) acetate sodiums salt; where the ethylene oxide content averages 6-7 moles.		Surfactants, related adjuvants of surfactants.
Triethylene glycol diacetate (CAS Reg. No. 111-21-7).	For use on beef cattle only	Solvent.
Trisodium phosphate		Precipitant, buffer, filler.
Ultramarine blue(CAS Reg. No. 57455-37-5)	Not more than 1.5% of pesticide formulation.	Pigment/colorant in animal tag.
Urea		Stabilizer, inhibitor.
Vinyl pyrrolidone—dimethylaminoethylmethacrylate copolymer (CAS Reg. No. 30581-590), minimum number average molecular weight (in amu) 20,000.		Leaching inhibitor, binder for water-dispersible aggregates, sticker and suspension stabilizer.
Wheat shorts		Solid diluent.
Wood rosin acid, potassium salts, conforming to 21 CFR 178.3870.		Surfactants, related adjuvants of surfactants.
Xanthan gum		Thickener.
Xylene		Solvent, cosolvent.
Xylenesulfonic acid and its ammonium, calcium, magnesium, potassium, sodium, and zinc salts.		Surfactants, related adjuvants of surfactants.
Zinc oxide		Solid diluent, carrier.
Zinc stearate, conforming to 21 CFR 182.5994 and 582.5994.		Water repellant, dessicant, and coating agent.

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Inert ingredients	Limits	Uses
Zinc stearate (CAS Reg. No. 557-05-1)		Water repellant, desiccant, and coating agent; stabilizer, component of plastic animal tag.
Zinc sulfate (basic and monohydrate)		Water repellant, dessicant, and coating agent.

[36 FR 22540, Nov. 25, 1971]

EDITORIAL NOTE: For FEDERAL REGISTER citations affecting § 180.1001, see the List of CFR Sections Affected appearing in the Finding Aids section of this volume.

§ 180.1002 Allethrin (allyl homolog of cinerin I); exemption from the requirement of a tolerance.

The insecticide allethrin is exempted from the requirement of a tolerance for residues when used before harvest in the production of the following commodities:

COMMODITY

Apples
Artichokes (Jerusalem)
Beans
Beets
Beets, sugar
Broccoli
Brussels sprouts
Cabbage
Carrots
Cauliflower
Celery
Chickory
Chinese cabbage
Citrus
Collards
Corn
Endive
Escarole
Garlic
Horseradish
Kale
Kohlrabi
Leeks
Lettuce
Mushrooms
Mustard greens
Onions
Parsley
Parsnips
Peaches
Pears
Peppers
Potatoes
Radishes
Rutabagas
Salsify
Shallots
Sorghum (milo)
Sorghum, grain
Spinach
Sweet potatoes
Tomatoes
Turnips

[47 FR 20307, May 12, 1982]

§ 180.1003 Ammonia; exemption from the requirement of a tolerance.

The fungicide ammonia is exempted from the requirement of a tolerance when used after harvest on the raw agricultural commodities grapefruit, lemons, oranges, and corn grain for feed use only.

[44 FR 44845, July 31, 1979]

§ 180.1008

40 CFR Ch. I (7–1–96 Edition)

§ 180.1008 Chloropicrin; exemption from the requirement of a tolerance.

The insecticide chloropicrin is exempted from the requirement of a tolerance for residues when used as a fumigant after harvest for the following grains: Barley, buckwheat, corn (including popcorn), oats, rice, rye, grain sorghum, wheat.

§ 180.1010 Methylene chloride; exemption from the requirement of a tolerance.

The insecticide methylene chloride is exempted from the requirement of a tolerance for residues when used as a fumigant after harvest for the following grains:

Barley, corn, oats, popcorn, rice, rye, sorghum (milo), wheat.

When used in the postharvest fumigation of citrus fruits.

§ 180.1011 Viable spores of the microorganism *Bacillus thuringiensis* Berliner; exemption from the requirement of a tolerance.

(a) For the purposes of this section the microbial insecticide for which exemption from the requirement of a tolerance is being established shall have the following specifications:

(1) The microorganism shall be an authentic strain of *Bacillus thuringiensis* Berliner conforming to the morphological and biochemical characteristics of *Bacillus thuringiensis* as described in Bergey's Manual of Determinative Bacteriology, Eighth Edition.

(2) Spore preparations of *Bacillus thuringiensis* Berliner shall be produced by pure culture fermentation procedures with adequate control measures during production to detect any changes from the characteristics of the parent strain or contamination by other microorganisms.

(3) Each lot of spore preparation, prior to the addition of other materials, shall be tested by subcutaneous injection of at least 1 million spores into each of five laboratory test mice weighing 17 grams to 23 grams. Such test shall show no evidence of infection or injury in the test animals when observed for 7 days following injection.

(4) Spore preparations shall be free of the *Bacillus thuringiensis* β -exotoxin

when tested with the fly larvae toxicity test ("Microbial Control of Insects and Mites," R.P.M. Bond et al., p. 280 ff., 1971). This specification can be satisfied either by determining that each master seed lot brought into production is a *Bacillus thuringiensis* strain which does not produce β -exotoxin under standard manufacturing conditions or by periodically determining that β -exotoxin synthesized during spore production is eliminated by the subsequent spore-harvesting procedure.

(b) Exemption from the requirement of a tolerance is established for residues of the microbial insecticide *Bacillus thuringiensis* Berliner, as specified in paragraph (a) of this section, in or on beeswax and honey and all other raw agricultural commodities when it is applied either to growing crops, or when it is applied after harvest in accordance with good agricultural practices.

[36 FR 22540, Nov. 25, 1971, as amended at 38 FR 19045, July 17, 1973; 42 FR 28540, June 3, 1977; 45 FR 43721, June 30, 1980; 45 FR 56347, Aug. 25, 1980]

§ 180.1012 1,1,1-Trichloroethane; exemption from the requirement of a tolerance.

The fungicide, 1,1,1-trichloroethane is exempted from the requirement of a tolerance for residues when used in the postharvest fumigation of citrus fruits.

§ 180.1013 Sulfur dioxide from use in fumigants for stored grains; exemption from the requirement of a tolerance.

(a) Residues from the use of sulfur dioxide in liquid grain-fumigant formulations for marker or fire-retardant purposes at levels not exceeding 5 percent by weight of such formulations are exempted from the requirement of a tolerance in or on barley, buckwheat, corn, oats, popcorn, rice, rye, grain sorghum (milo), wheat.

(b) Residues of sulfur dioxide resulting from postharvest fungicidal use are exempted from the requirement of tolerances in or on corn for feed use only.

[36 FR 22540, Nov. 25, 1971, as amended at 45 FR 41419, June 19, 1980]

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§ 180.1021

§ 180.1014 Pentane; exemption from the requirement of a tolerance.

Pentane is exempted from the requirement of a tolerance for residues when used in accordance with good commercial practice as an adjuvant in liquid grain fumigants for the fumigation of the following grains: Barley, corn, oats, popcorn, rice, rye, sorghum (milo), wheat.

§ 180.1016 Ethylene; exemption from the requirement of a tolerance.

Ethylene is exempted from the requirement of a tolerance for residues when:

(a) Used as a plant regulator on fruit and vegetable crops in conformity with good agricultural practice before or after harvest, or

(b) Injected into the soil to cause premature germination of witchweed in bean (lima and string), cabbage, cantaloupe, collard, corn, cotton, cucumber, eggplant, okra, onion, pasture grass, pea (field and sweet), peanut, pepper, potato, sweet potato, sorghum, soybean, squash, tomato, turnip, and watermelon fields as part of the U.S. Department of Agriculture witchweed control program.

[39 FR 33315, Sept. 17, 1974, as amended at 40 FR 19477, May 5, 1975]

§ 180.1017 Diatomaceous earth; exemption from the requirement of a tolerance.

Diatomaceous earth is exempted from the requirement of a tolerance for residues when used in accordance with good agricultural practice in pesticide formulations applied to growing crops, to raw agricultural commodities after harvest, and to animals.

[49 FR 5753, Feb. 15, 1984]

§ 180.1018 Ammonium nitrate; exemption from the requirement of a tolerance.

Ammonium nitrate is exempted from the requirement of a tolerance when used as a desiccant or defoliant in the production of cottonseed, grain sorghum, peppers, potatoes, sweet potatoes.

§ 180.1019 Sulfuric acid; exemption from the requirement of a tolerance.

Sulfuric acid is exempted from the requirement of a tolerance for residues when used in accordance with good agricultural practice as a herbicide in the production of garlic and onions and as a potato vine desiccant in the production of potatoes.

[47 FR 13528, Mar. 31, 1982]

§ 180.1020 Sodium chlorate; exemption from the requirement of a tolerance.

Sodium chlorate is exempted from the requirement of a tolerance for residues in or on the following raw agricultural commodities when used as a defoliant, desiccant, or fungicide in accordance with good agricultural practice.

COMMODITY

Beans, dry, edible
Corn, fodder
Corn, forage
Corn, grain
Cottonseed
Flaxseed
Flax, straw
Guar beans
Peas, southern
Peppers, chili
Potatoes
Rice
Rice, straw
Safflower, grain
Sorghum, grain
Sorghum, fodder
Sorghum, forage
Soybeans
Sunflower seed

[54 FR 9800, Mar. 8, 1989, as amended at 60 FR 4862, Jan. 25, 1995]

§ 180.1021 Copper; exemption from the requirement of a tolerance.

Copper is exempted from the requirement of a tolerance in meat, milk, poultry, eggs, fish, shellfish and irrigated crops when it results from the use of:

(a) Copper sulfate as an algicide or herbicide in irrigation conveyance systems and lakes, ponds, reservoirs, or bodies of water in which fish or shellfish are cultivated.

(b) Basic copper carbonate (malachite) as an algicide or herbicide in impounded and stagnant bodies of water.

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(c) Copper triethanolamine and copper monoethanolamine as an algicide or herbicide in fish hatcheries, lakes, ponds, and reservoirs.

(d) Cuprous oxide bearing antifouling coatings for control of algae or other organisms on submerged concrete or other (irrigation) structures.

[47 FR 44563, Oct. 8, 1982]

§ 180.1022 Iodine-detergent complex; exemption from the requirement of a tolerance.

The aqueous solution of hydriodic acid and elemental iodine, including one or both of the surfactants (a) polyoxypropylene-polyoxyethylene glycol nomionic block polymers (minimum average molecular weight 1,900) and (b) α -(*p*-nonylphenyl)-*omega*-hydroxypoly(oxyethylene) having a maximum average molecular weight of 748 and in which the nonyl group is a propylene trimer isomer, is exempted from the requirement of a tolerance for residues in eggs and poultry when used as a sanitizer in poultry drinking water.

[37 FR 6581, Mar. 31, 1972]

§ 180.1023 Propionic acid; exemptions from the requirement of a tolerance.

(a) Postharvest application of propionic acid or a mixture of methylene bispropionate and oxy(bismethylene) bispropionate when used as a fungicide is exempted from the requirement of a tolerance for residues in or on the following raw agricultural commodities: Alfalfa, barley grain, Bermuda grass, bluegrass, brome grass, clover, corn grain, cowpea hay, fescue, lespedeza, lupines, oat grain, orchard grass, peanut hay, peavine hay, rye grass, sorghum grain, soybean hay, sudan grass, timothy, vetch, and wheat grain.

(b) Propionic acid is exempt from the requirement of a tolerance for residues in or on meat and meat byproducts of cattle, sheep, hogs, goats, horses, and poultry, milk, and eggs when applied as a bactericide/fungicide to livestock drinking water, poultry litter, and storage areas for silage and grain.

(c) Postharvest application of propionic acid when used as a fungicide is exempted from the requirement of a

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tolerance for residues in or on the following raw agricultural commodities: Cottonseed, peanuts, rice grain, and soybeans.

[60 FR 7459, Feb. 8, 1995]

§ 180.1024 Paraformaldehyde; exemption from the requirement of a tolerance.

The insecticide paraformaldehyde is exempted from the requirement of a tolerance for residues in or on sugar beets (roots and tops) when applied to the soil not later than planting.

[37 FR 14230, July 18, 1972]

§ 180.1025 Xylene; exemption from the requirement of a tolerance.

Xylene is exempted from the requirement of a tolerance when used as an aquatic herbicide applied to irrigation conveyance systems in accordance with the following conditions:

(a) It is to be used only in programs of the Bureau of Reclamation, U.S. Department of Interior, and cooperating water user organizations.

(b) It is to be applied as an emulsion at an initial concentration not to exceed 750 parts per million.

(c) It is not to be applied when there is any likelihood that the irrigation water will be used as a source of raw water for a potable water system or where return flows of such treated irrigation water into receiving rivers and streams would contain residues of xylene in excess of 10 parts per million.

(d) Xylene to be used as an aquatic herbicide shall meet the requirement limiting the presence of a polynuclear aromatic hydrocarbons as listed in 21 CFR 172.250.

[38 FR 16352, June 22, 1973, as amended at 50 FR 2980, Jan. 3, 1985]

§ 180.1026 N,N-Diallyl dichloroacetamide; exemption from the requirement of a tolerance.

N,N-Diallyl dichloroacetamide is exempted from the requirement of a tolerance when used as an inert ingredient in formulations of the herbicides S-ethyl diisobutylthiocarbamate, S-ethyl dipropylthiocarbamate, and S-propyl

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dipropylthiocarbamate applied to cornfields before the corn plants emerge from the soil.

[38 FR 7331, Mar. 20, 1973]

§ 180.1027 Nuclear polyhedrosis virus of *Heliothis zea*; exemption from the requirement of a tolerance.

(a) For the purposes of this section, the viral insecticide must be produced with an unaltered and unadulterated inoculum of the single-embedded *Heliothis zea* nuclear polyhedrosis virus (HzSNPV). The identity of the seed virus must be assured by periodic checks.

(b) Each lot of active ingredient of the viral insecticide shall have the following specifications:

(1) The level of extraneous bacterial contamination of the final unformulated viral insecticide should not exceed 10^7 colonies per gram as determined by an aerobic plate on trypticase soy agar.

(2) Human pathogens, e.g., *Salmonella*, *Shigella*, or *Vibrio*, must be absent.

(3) Safety to mice as determined by an intraperitoneal injection study must be demonstrated.

(4) Identity of the viral product, as determined by the most sensitive and standardized analytical technique, e.g., restriction endonuclease and/or SDS-PAGE analysis, must be demonstrated.

(c) Exemptions from the requirement of a tolerance are established for the residues of the microbial insecticide *Heliothis zea* NPV, as specified in paragraphs (a) and (b) of this section, in or on all agricultural commodities including: corn, cottonseed, beans, lettuce, okra, peppers, sorghum, soybeans, and tomatoes.

[60 FR 42460, Aug. 16, 1995]

§ 180.1028 Cross-linked nylon-type encapsulating polymer; exemption from the requirement of a tolerance.

(a) The cross-linked nylon-type polymer formed by the reaction of a mixture of sebacoyl chloride and polymethylene polyphenylisocyanate with a mixture of ethylenediamine and diethylenetriamine is exempted from the requirement of a tolerance when

used as an inert encapsulating material for formulations of methyl parathion applied to growing alfalfa, apples, artichokes, barley, cabbage, cherries, corn (except popcorn), cotton, forage grasses, grapes, beans, (dry, lima, and snap), nectarines, oats, onions, (dry bulb), peaches, pears, peas, plums (fresh prunes), potatoes, rice, soybeans, tomatoes, and wheat.

(b) The cross-linked nylon-type polymer formed by the reaction of a mixture of sebacoyl chloride and polymethylene polyphenylisocyanate with a mixture of ethylenediamine and diethylenetriamine is exempted from the requirement of a tolerance when used as an inert encapsulating material for formulations of parathion applied to growing sorghum.

[45 FR 22932, Apr. 4, 1980, as amended at 46 FR 46580, Sept. 21, 1981]

§ 180.1030 Isobutyric acid; exemption from the requirement of a tolerance.

The fungicide isobutyric acid is exempted from the requirement of a tolerance for residues resulting from postharvest application of isobutyric acid or the fungicide ammonium isobutyrate in or on the following raw agricultural commodities: Alfalfa; Bermuda grass; brome grass; clover; corn; fescue; grains of barley, grapes, oats, sorghum, and wheat; lespedeza; orchard grass; and timothy.

[39 FR 43724, Dec. 18, 1974, as amended at 49 FR 31692, Aug. 8, 1984]

§ 180.1031 Acetaldehyde; exemption from the requirement of a tolerance.

The fungicide acetaldehyde, when used postharvest as a storage fumigant, is exempt from the requirement of a tolerance for residues in or on apples and strawberries.

[40 FR 12511, Mar. 19, 1975]

§ 180.1032 Formaldehyde; exemption from the requirement of a tolerance.

Formaldehyde is exempt from the requirement of a tolerance for residues in or on the grains of barley, corn, oats, sorghum, and wheat and the forages of alfalfa, Bermuda grass, bluegrass,

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brome grass, clover, cowpea hay, fescue, lespedeza, lupines, orchard grass, peanut hay, peavine hay, rye grass, soybean hay, sudan grass, timothy, and vetch from postharvest application of formaldehyde or a mixture of methylene bispropionate and oxy(bismethylene) bispropionate when used as a fungicide. These raw agricultural commodities are for use only as animal feeds.

[40 FR 1042, Jan. 6, 1975]

§ 180.1033 Methoprene; exemption from the requirement of a tolerance.

Methoprene is exempt from the requirement of a tolerance in or on all raw agricultural commodities when used to control mosquito larvae including pastures, rice fields, vineyards, date palm orchards, nut orchards, berry orchards, and fruit orchards.

[60 FR 42460, Aug. 16, 1995]

§ 180.1034 Butanoic anhydride; exemption from the requirement of a tolerance.

The insect repellant butanoic anhydride is exempted from the requirement of a tolerance for residues in the raw agricultural commodities honey and beeswax, when present therein as a result of its application in an absorbent pad over the hive to repel bees during the harvesting of honey.

[53 FR 52708, Dec. 29, 1988]

§ 180.1035 Pine oil; exemption from the requirement of a tolerance.

Pine oil is exempted from the requirement of a tolerance for residues in the raw agricultural commodities honey and beeswax, when present therein as a result of its use as a deodorant at no more than 12 percent in formulation with the bee repellent butanoic anhydride applied in an absorbent pad over the hive.

[53 FR 52708, Dec. 29, 1988]

§ 180.1036 Hydrogenated castor oil; exemption from the requirement of a tolerance.

The adhesive hydrogenated castor oil is exempt from the requirement of a tolerance for residues in or on the raw

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agricultural commodity cottonseed when used as an inert adhesive for formulations of the attractant gossyplure (1:1 mixture of (Z,Z)- and (Z,E)-7,11-hexadecadien-1-ol acetate) to disrupt the mating of the pink bollworm.

[42 FR 47205, Sept. 20, 1977; 42 FR 56114, Oct. 21, 1977]

§ 180.1037 Polybutenes; exemption from the requirement of a tolerance.

(a) Polybutenes are exempt from the requirement of a tolerance for residues in or on the raw agricultural commodity cottonseed when used as a sticker agent for formulations of the attractant gossyplure (1:1 mixture of (Z,Z)- and (Z,E)-7,11-hexadecadien-1-ol acetate) to disrupt the mating of the pink bollworm.

(b) Polybutenes are exempt from the requirement of a tolerance for residues in or on the raw agricultural commodity artichokes when used as a sticker agent in multi-layered laminated controlled-release dispensers of (Z)-11-hexadecenal to disrupt the mating of the artichoke plume moth.

[42 FR 47205, Sept. 20, 1977; 42 FR 56114, Oct. 21, 1977, as amended at 48 FR 21133, May 11, 1983]

§ 180.1038 Polyoxymethylene copolymer; exemption from the requirement of a tolerance.

Polyoxymethylene copolymer, conforming to 21 CFR 177.2470, is exempt from the requirement of a tolerance for residues in or on the raw agricultural commodity cottonseed when used as an inert controlled-release dispenser for formulations of the attractant gossyplure (1:1 mixture of (Z,Z)- and (Z,E)-7-11-hexadecadien-1-ol acetate) to disrupt the mating of the pink bollworm.

[42 FR 47205, Sept. 20, 1977; 42 FR 56114, Oct. 21, 1977, as amended at 50 FR 2980, Jan. 23, 1985]

§ 180.1040 Ethylene glycol; exemption from the requirement of a tolerance.

Ethylene glycol as a component of pesticide formulations is exempt from the requirement of a tolerance when

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used in foliar applications to peanut plants.

[43 FR 41393, Sept. 18, 1978]

§ 180.1041 *Nosema locustae*; exemption from the requirement of a tolerance.

The insecticide *Nosema locustae* is exempted from the requirement of a tolerance for residues in or on all raw agricultural commodities.

[47 FR 21537, May 19, 1982]

§ 180.1042 Aqueous extract of seaweed meal; exemption from the requirement of a tolerance.

Aqueous extract of seaweed meal derived from *Laminaria digitata*, *Laminaria hyperborea*, *Fucus serratus*, *Ascophyllum nodosum* is exempted from the requirement of a tolerance when used as a plant growth regulator in or on the following raw agricultural commodities:

COMMODITY

Alfalfa
Apples
Asparagus
Banana
Beans
Beets, sugar
Broccoli
Brussels sprouts
Cabbage
Carrots
Cauliflower
Celery
Corn
Cotton
Cucumber
Eggplant
Grapes
Lettuce
Melons
Okra
Onions
Oranges
Parsley
Peaches
Peanuts
Peas
Peppers
Potatoes
Potatoes, sweet
Radishes
Rice

Sorghum (milo)
Soybeans
Spinach
Squash
Strawberries
Tomatoes
Wheat

[47 FR 16022, Apr. 14, 1982, as amended at 48 FR 34034, July 27, 1983; 49 FR 44468, Nov. 7, 1984; 56 FR 65002, Dec. 13, 1991]

§ 180.1043 Gossypure; exemption from the requirement of a tolerance.

The pheromone gossypure, a 1:1 mixture of (Z,Z)- and (Z,E)-7,11-hexadecadien-1-ol acetate) is exempt from the requirement of a tolerance in or on the raw agricultural commodity cottonseed when applied to cotton from capillary fibers.

[43 FR 20803, May 15, 1978]

§ 180.1045 Chlorotoluene; exemption from the requirement of a tolerance.

Chlorotoluene, an isomeric mixture predominantly of ortho- and para-monochlorotoluene with up to 6 percent unreacted toluene and a boiling range of 110 degrees C to 162 degrees C, is exempted from the requirement of a tolerance when used as a solvent or co-solvent in pesticide formulations with the following restrictions:

(a) Not for use after edible parts of the plant begin to form.

(b) Do not graze livestock in treated areas within 48 hours after application.

[44 FR 21646, Apr. 11, 1979]

§ 180.1046 Dimethylformamide; exemption from the requirement of a tolerance.

(a) Residues of dimethylformamide are exempted from the requirement of a tolerance when used in accordance with good agricultural practices in formulations with the fungicide triforine (*N,N*-[1,4-piperazinediylbis(2,2,2-trichloroethylidene)] bis [formamide]) if such formulations contain not more than 30 percent dimethylformamide in or on the following raw agricultural commodities:

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COMMODITY

Almonds
Apples
Apricots
Bell peppers
Blueberries
Cantaloupes
Cherries
Cranberries
Cucumbers
Eggplants
Hops
Nectarines
Peaches
Plums
Prunes, fresh
Strawberries
Watermelons

(b) Dimethylformamide (DFM) is exempted from the requirement of a tolerance, when used by the U.S. Department of Interior, Fish and Wildlife Service, as a solvent for the lamprecide, sodium salt of alpha, alpha, alpha-trifluoro-4-nitro-meta-cresol, or 4-nitro-3-(trifluoromethyl)phenol in the Great Lakes.

[47 FR 10213, Mar. 10, 1982, and 47 FR 18128, Apr. 28, 1982, as amended at 52 FR 39225, Oct. 21, 1987]

§ 180.1049 Carbon dioxide; exemption from the requirement of a tolerance.

The insecticide carbon dioxide is exempted from the requirement of a tolerance when used after harvest in modified atmospheres for stored insect control on raw agricultural commodities.

[45 FR 75664, Nov. 17, 1980]

§ 180.1050 Nitrogen; exemption from the requirement of a tolerance.

The insecticide nitrogen is exempted from the requirements of a tolerance when used after harvest in modified atmospheres for stored product insect control on all raw agricultural commodities.

[45 FR 75664, Nov. 17, 1980]

§ 180.1051 Combustion product gas; exemption from the requirements of a tolerance.

The insecticide combustion product gas is exempted from the requirements of a tolerance when used after harvest

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in modified atmospheres for stored product insect control on all raw agricultural commodities (except fresh meat) with the following prescribed conditions.

(a) The insecticide is produced by the controlled combustion in air of butane, propane, or natural gas. The combustion equipment shall be provided with an absorption type filter capable of removing possible toxic impurities, through which all gas used in the treatment of food shall pass; and with suitable controls to insure that any combustion products failing to meet the specifications provided will be prevented from reaching the food being treated.

(b) The insecticide meets the following specifications:

(1) Carbon monoxide content not to exceed 4.5 percent by volume.

(2) It is used or intended for use to displace or remove oxygen in the storage of food, except fresh meat.

[45 FR 75664, Nov. 17, 1980]

§ 180.1052 2,2,5-trimethyl-3-dichloroacetyl-1,3-oxazolidine; exemption from the requirement of a tolerance.

2,2,5-trimethyl-3-dichloroacetyl-1,3-oxazolidine is exempted from the requirement of a tolerance when used as an inert ingredient in formulations of the herbicides S-ethyl dipropylthiocarbamate, S-propyl dipropylthiocarbamate, and S-ethyl diisobutylthiocarbamate applied to corn fields before the corn plants emerge from the soil with a maximum of 0.5 pound of the inert ingredient per acre.

[45 FR 51201, Aug. 1, 1980]

§ 180.1053 Polyamide polymer derived from sebacic acid; exemption from requirement of tolerance.

Polyamide polymer derived from sebacic acid, vegetable oil acids with or without dimerization, terephthalic acid and/or ethylenediamine is exempted from the requirement of a tolerance when used as an encapsulating medium for methoprene only.

[46 FR 5981, Jan. 21, 1981]

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§ 180.1054 Calcium hypochlorite; exemption from the requirement of a tolerance.

(a) Calcium hypochlorite is exempted from the requirement of a tolerance when used preharvest or postharvest in solution on all raw agricultural commodities.

(b) Calcium hypochlorite is exempted from the requirement of a tolerance in or on grapes when used as a fumigant postharvest by means of a chlorine generator pad.

[59 FR 59165, Nov. 16, 1994]

§ 180.1055 (E,Z)-3,13-octadecadien-1-ol acetate and (Z,Z)-3,13-octadecadien-1-ol acetate; exemption from the requirement of a tolerance.

(E,Z)-3,13-octadecadien-1-ol acetate and (Z,Z)-3,13-octadecadien-1-ol acetate are exempted from the requirement of a tolerance when applied to the growing crops or to the raw agricultural commodities almond, apricot, cherry, nectarine, peach, plum, and prune trees after harvest to disrupt mating of the peachtree borer.

[46 FR 26771, May 15, 1981, as amended at 55 FR 26440, June 28, 1990]

§ 180.1056 Boiled linseed oil; exemption from requirement of tolerance.

Boiled linseed oil (containing no more than 0.33 percent manganese naphthenate and no more than 0.33 percent cobalt naphthenate) is exempt from the requirement of a tolerance when used as a coating agent for S-ethyl hexahydro-1*H*-azepine-1-carbothioate. No more than 15 percent of the pesticide formulation may consist of "boiled linseed oil." This exemption is limited to use on rice before edible parts form.

[46 FR 33270, June 29, 1981]

§ 180.1057 *Phytophthora palmivora*; exemption from requirement of tolerance.

Phytophthora palmivora is exempted from the requirement of a tolerance in or on the raw agricultural commodity citrus fruit.

[46 FR 18695, Mar. 26, 1981]

§ 180.1058 Sodium diacetate; exemption from the requirement of a tolerance.

Sodium diacetate, when used postharvest as a fungicide, is exempt from the requirement of a tolerance for residues in or on alfalfa hay, Bermuda grass hay, blue grass hay, brome grass hay, clover hay, corn grain, oat grain, orchard grass hay, sorghum grain, sudan grass hay, rye grass hay, and timothy hay.

[58 FR 47215, Sept. 8, 1993]

§ 180.1059 Methyl alpha-eleostearate; exemption from the requirement of a tolerance.

Methyl alpha-eleostearate [methyl ester of (Z,E,E)-9,11,13-octadecatrienoic acid] is exempted from the requirement of a tolerance for residues in or on cottonseed when used in accordance with good agricultural practice as an insecticide on cotton.

[46 FR 20998, Apr. 8, 1981]

§ 180.1060 Polyvinyl chloride; exemption from requirement of a tolerance.

(a) Polyvinyl chloride (film and resin) is exempt from the requirement of a tolerance for residues in or on cottonseed, when used as an inert controlled-release dispenser for formulations of the attractant gossyplure [(Z,Z-) and (Z,E-) 7,11-hexadecadien-1-ol acetate] to disrupt the mating of the pink bollworm.

(b) Polyvinyl chloride is exempt from the requirement of a tolerance for residues in or on the raw agricultural commodity artichokes when used as inert multi-layered laminated controlled-release dispensers of (Z)-11-hexadecenal to disrupt the mating of the artichoke plume moth.

[47 FR 39827, Aug. 5, 1981, as amended at 48 FR 21133, May 11, 1983]

§ 180.1061 *Hirsutella thompsonii*; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for *Hirsutella thompsonii* when applied to all raw agricultural commodities (postharvest) to control the citrus rust

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mite, the blueberry mite, and the Bermuda turf mite.

[46 FR 30625, June 10, 1981]

§ 180.1062 Butyl benzyl phthalate; exemption from the requirement tolerance.

(a) Butyl benzyl phthalate is exempt from the requirement of a tolerance for residues in or cottonseed, when used as an inert plasticizer in the formulation of controlled-release laminated dispensers of the attractant gossyplure [(Z,Z) and (Z,E) 7,11-hexadecadien-1-ol acetate] to disrupt the mating of the pink bollworm.

(b) Butyl benzyl phthalate is exempt from the requirement of a tolerance for residues in or on the raw agricultural commodity artichokes when used as an inert plasticizer in multi-layered laminated controlled-release dispensers of (Z)-11-hexadecenal to disrupt the mating of the artichoke plume moth.

[46 FR 43971, Sept. 2, 1981, as amended at 48 FR 21133, May 11, 1983]

§ 180.1063 Kontrol H. V.; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance for the combined residues of the biological insecticide Kontrol H.V. when used on cotton to control the tobacco budworm.

[46 FR 38356, July 27, 1981]

§ 180.1064 Tomato pinworm insect pheromone; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for combined residues of both components of the tomato pinworm insect pheromone (*E*)-4-tridecen-1-yl acetate and (*Z*)-4-tridecen-1-yl acetate in or on all raw agricultural commodities (preharvest) in accordance with the following prescribed conditions:

(a) Application shall be limited solely to point source dispensers or point source chopped fibers containing the tomato pinworm insect pheromone.

(b) Cumulative yearly application cannot exceed 200 grams of tomato pinworm pheromone per acre.

[58 FR 34376, June 25, 1993]

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§ 180.1065 2-Amino-4,5-dihydro-6-methyl-4-propyl-s-triazolo(1,5- α)pyrimidin-5-one; exemption from the requirement of a tolerance.

The inert ingredient, 2-amino-4,5-dihydro-6-methyl-4-propyl-s-triazolo(1,5- α)pyrimidin-5-one is exempted from the requirement of a tolerance when used as an emetic at not more than 0.1 percent in formulations of paraquat dichloride. Further restrictions on this exemption are that this ingredient may not be advertised as an emetic and the paraquat product may not be promoted in any way because of the inclusion of this inert ingredient.

[47 FR 16022, Apr. 14, 1982]

§ 180.1066 O-O-Diethyl-O-phenylphosphorothioate; exemption from the requirement of a tolerance.

O-O-Diethyl-O-phenylphosphorothioate, applied at a maximum of 1 pound per acre, is exempted from the requirement of a tolerance when use as an inert ingredient herbicide extender in formulations containing S-ethyl dipropylthiocarbamate, S-ethyl hexahydro-*H*-azepine-1-carbothioate, S-ethyl cyclohexylethylthiocarbamate, S-propyl dipropylthiocarbamate, S-ethyl diisobutylthiocarbamate and S-propyl butylethylthiocarbamate applied, in accordance with good agricultural practices, to crops prior to harvest, at a maximum rate of 1 pound O,O-diethyl-O-phenylphosphorothioate per acre.

[48 FR 6896, Feb. 16, 1983, as amended at 55 FR 26440, June 28, 1990]

§ 180.1067 Methyl eugenol and malathion combination; exemption from the requirement of a tolerance.

The insect attractant methyl eugenol and the insecticide malathion are exempt from the requirement of tolerances on all raw agricultural commodities when used in combination in Oriental fruit fly eradication programs under the authority of the U.S. Department of Agriculture, in accordance with the following directions and specifications:

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(a) The combination shall be at the ratio of three parts methyl eugenol to one part technical malathion (3:1).

(b) This combination is to be impregnated on a carrier (cigarette filter tips (cellulose acetate); cotton strings; fiberboard squares) or mixed with a jel cleared under 40 CFR 180.1001(d).

(c) The maximum actual dosage per application per acre shall be 28.35 grams (one ounce avoirdupois) methyl eugenol and 9.45 grams (one-third (0.33) ounce avoirdupois) technical malathion.

[47 FR 9002, Mar. 3, 1982]

§ 180.1068 C₁₂–C₁₈ fatty acid potassium salts; exemption from the requirement of a tolerance.

C₁₂–C₁₈ fatty acids (saturated and unsaturated) potassium salts are exempted from the requirement of a tolerance for residues in or on all raw agricultural commodities when used in accordance with good agricultural practice.

[60 FR 34871, July 5, 1995]

§ 180.1069 (Z)-11-Hexadecenal; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the biological insecticide (pheromone) (Z)-11-hexadecenal when used as a sex attractant on artichoke plants to control the artichoke plume moth.

[47 FR 14906, Apr. 7, 1982]

§ 180.1070 Sodium chlorite; exemption from the requirement of a tolerance.

Sodium chlorite is exempted from the requirement of a tolerance for residues when used in accordance with good agricultural practice as a seed-soak treatment in the growing of the raw agricultural commodities crop group *Brassica* (cole) leafy vegetables and radishes.

[50 FR 51856, Dec. 20, 1985]

§ 180.1071 Egg solids (whole); exemption from the requirement of a tolerance.

Whole egg solids (of at least feed grade quality) are exempted from the requirement of a tolerance for residues when used as an animal repellent in or on almonds and applied to the growing crop in accordance with good agricultural practices.

[51 FR 7567, Mar. 5, 1985]

§ 180.1072 Poly-D-glucosamine (chitosan); exemption from the requirement of a tolerance.

(a) An exemption from the requirement of a tolerance is established for residues of the biological plant growth regulator poly-D-glucosamine when used as a seed treatment in or on barley, beans, oats, peas, rice, and wheat.

(b) An exemption from the requirement of a tolerance is established for residues of the biological plant growth regulator poly-D-glucosamine when used as a pesticide in the production any raw agricultural commodity.

[60 FR 19524, Apr. 19, 1995]

§ 180.1073 Isomate-M; exemption from the requirement of a tolerance.

The oriental fruit moth pheromone (Isomate-M) (Z-8-dodecen-1-yl acetate, E-8-dodecen-1-yl acetate, Z-8-dodecen-1-ol) is exempt from the requirement of a tolerance in or on all the raw agricultural commodities (food and feed) including peaches, quinces, nectarines, and macadamia nuts when used in orchards with encapsulated polyethylene tubing to control oriental fruit moth.

[54 FR 22897, May 30, 1989, as amended at 55 FR 23935, June 13, 1990]

§ 180.1074 F.D. & C Blue No. 1; exemption from the requirement of a tolerance.

F.D. & C. Blue No. 1 is exempted from the requirement of a tolerance when used as an aquatic plant control agent.

[47 FR 25963, June 16, 1982]

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§ 180.1075 Colletotrichum gloeosporioides f. sp. aeshynomene; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the mycoherbicide *Colletotrichum gloeosporioides* f. sp. *aeshynomene* in or on the following raw agricultural commodities:

COMMODITY

Rice grain
Soybeans

[47 FR 25742, June 15, 1982]

§ 180.1076 Viable spores of the microorganism Bacillus popilliae; exemption from the requirement of a tolerance.

(a) For the purposes of this section the microbial insecticide for which exemption from the requirement of a tolerance is being established shall have the following specifications:

(1) The microorganism shall be an authentic strain of *Bacillus popilliae* conforming to the morphological and biochemical characteristics of *Bacillus popilliae* as described in Bergey's Manual of Determinative Bacteriology, Eighth Edition.

(2) Spore preparations of *Bacillus popilliae* shall be produced by an extraction process from diseased Japanese beetles, and may contain a small percentage of the naturally occurring milky disease bacterium *Bacillus lentimorbus*.

(3) Each lot of spore preparation, prior to the addition of other materials, shall be tested by subcutaneous injection of at least 1 million spores into each of five laboratory test mice weighing 17 grams to 23 grams. Such test shall show no evidence of infection or injury in the test animals when observed for 7 days following injection.

(b) Exemption from the requirement of a tolerance is established for residues of the microbial insecticide *Bacillus popilliae*, as specified in paragraph (a) of this section in or on pasture and rangeland forage when it is applied to growing crops in accordance with good agricultural practices.

[47 FR 38535, Sept. 1, 1982]

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§ 180.1077 2,2-Dichloro-N-(1,3-dioxolan-2-ylmethyl)-N-2-propenylacetamide; exemption from the requirement of a tolerance.

2,2-Dichloro-N-(1,3-dioxolan-2-ylmethyl)-N-2-propenylacetamide is exempted from the requirement of a tolerance when used as an inert ingredient in formulations of the herbicides S-ethyl dipropyl-thiocarbamate and S-ethyl diisobutyl thiocarbamate when applied to corn fields before corn plants emerge from the soil at a maximum rate of 0.5 pound per acre.

[48 FR 7443, Feb. 22, 1983]

§ 180.1078 Poly(oxy-1,2-ethanediyl), alpha-isooctadyl-omega-hydroxy; exemption from the requirement of a tolerance.

The insecticide poly(oxy-1,2-ethanediyl), alpha-isooctadecyl-omega-hydroxy (as Registry Number 52292-17-8) is exempted from the requirement of a tolerance for residues in or on fish, shellfish, irrigated crops, meat, milk, poultry, and eggs when used in accordance with good agricultural practice as a mosquito control agent in aquatic sites.

[48 FR 36252, Aug. 10, 1983]

§ 180.1079 1-(8-Methoxy-4,8-dimethylnonyl)-4-(1-methylethyl) benzene; exemptions from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the insecticide 1-(8-methoxy-4,8-dimethylnonyl)-4-(1-methylethyl) benzene when used for fire ants control on pasture and range grass.

[48 FR 8813, Mar. 2, 1983, as amended at 55 FR 26440, June 28, 1990]

§ 180.1080 Plant volatiles and pheromone; exemptions from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the plant volatiles cyclic decadiene, cyclic decene, cyclic pentadecatriene, and decatriene and the pheromone Z-2-isopropenyl-1-methylcyclobutaneethanol; Z-3,3-dimethyl-Δ¹,β-cyclohexaneethanol; Z-3,3-dimethyl-Δ¹,α-cyclohexaneethanol; E-3,3-dimethyl-Δ¹,α-cyclohexaneethanol

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combination when applied to cotton in hollow synthetic fibers.

[48 FR 28442, June 22, 1983]

§ 180.1081 1-Triacontanol; exemption from the requirement of a tolerance.

1-Triacontanol is exempted from the requirement of a tolerance when used as a plant growth regulator in or on all raw agricultural commodities.

[48 FR 21133, May 11, 1983]

§ 180.1083 Dimethyl sulfoxide; exemption from the requirement of a tolerance.

Dimethyl sulfoxide (DMSO) [CAS Registry Number 67-68-5] is exempted from the requirement of a tolerance when used as an inert solvent or cosolvent in formulations with the following pesticides when used in accordance with good agricultural practices in or on the following raw agricultural commodities:

Pesticides	Commodity
(a) Carbaryl (1-naphthyl methyl-carbamate)	Peas.
(b) O-O-Diethyl O-(2-isopropyl-6-methyl-4-pyrimidinyl) phosphorothioate.	Peas.

[48 FR 54819, Dec. 7, 1983])

§ 180.1084 Monocarbamide dihydrogen sulfate; exemption from the requirement of a tolerance.

Monocarbamide dihydrogen sulfate is exempted from the requirement of a tolerance when used as a herbicide or desiccant in or on all raw agricultural commodities.

[53 FR 12152, Apr. 13, 1988]

§ 180.1085 Potassium ricinoleate and related C₁₂-C₁₈ fatty acid potassium salts; exemption from the requirement of a tolerance.

Potassium ricinoleate and related C₁₂-C₁₈ fatty acid potassium salts are exempted from the requirement of a tolerance for residues in or on the raw agricultural commodity catfish when used as an algicide in managed catfish ponds in accordance with good agricultural practices.

[50 FR 23693, June 5, 1985]

§ 180.1086 3,7,11-Trimethyl-1,6,10-dodecatriene-1-ol and 3,7,11-trimethyl-2,6,10-dodecatriene-3-ol; exemption from the requirement of a tolerance.

The insect pheromone containing the active ingredients 3,7,11-trimethyl-1,6,10-dodecatriene-1-ol and 3,7,11-trimethyl-2,6,10-dodecatriene-3-ol is exempted from the requirement of a tolerance in or on all raw agricultural commodities.

[52 FR 12165, Apr. 15, 1987; 52 FR 29014, Aug. 5, 1987]

§ 180.1087 Sesame stalks; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the biorational nematocide sesame stalk in or on the following raw agricultural commodities: cotton, soybeans, potatoes, sugarbeets, tomatoes, bell peppers, squash, strawberries, eggplants, cucumbers, carrots, radish, turnips, onions, peas, melons, grapes, walnuts, almond, orange, grapefruit, mulberry, peach, apple, apricot, blackberry, loganberry, pecan, cherry, plum, and cranberry.

[53 FR 5379, Feb. 24, 1988]

§ 180.1088 Pseudomonas fluorescens EG-1053; exemption from the requirement of tolerance.

An exemption from the requirement of a tolerance is established for residues of the biofungicide *Pseudomonas fluorescens* EG-1053 in or on cottonseed and cotton forage.

[53 FR 7740, Mar. 10, 1988, as amended at 55 FR 26204, June 27, 1990]

§ 180.1089 Poly-N-acetyl-D-glucosamine; exemption from the requirement of tolerance.

An exemption from the requirement of a tolerance is established for residues of the biochemical nematocide poly-N-acetyl-D-glucosamine on a variety of agricultural crops.

[53 FR 10249, Mar. 30, 1988]

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§ 180.1090 Lactic acid; exemption from the requirement of a tolerance.

Lactic acid (2-hydroxypropanoic acid) is exempted from the requirement of a tolerance when used as a plant growth regulator in or on all raw agricultural commodities.

[53 FR 15286, May 4, 1988]

§ 180.1091 Aluminum isopropoxide and aluminum secondary butoxide; exemption from the requirement of a tolerance.

Aluminum isopropoxide (CAS Reg. No. 555—31—7) and aluminum secondary butoxide (CAS Reg. No. 2269—22—9) are exempted from the requirement of a tolerance when used in accordance with good agricultural practices as stabilizers in formulations of the insecticide amitraz [*N'*-(2,4-dimethylphenyl)-*N*-[(2,4-dimethylphenyl)imino]-*N*-methylmethanimidamide] applied to growing crops or animals.

[53 FR 34509, Sept. 7, 1988; 53 FR 36696, Sept. 21, 1988]

§ 180.1092 Menthol; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the pesticidal chemical menthol in or on beeswax and honey when used in accordance with good agricultural practice in over-wintering bee hives.

[53 FR 47811, Nov. 28, 1988]

§ 180.1095 Chlorine gas; exemptions from the requirement of a tolerance.

Chlorine gas is exempted from the requirement of a tolerance when used preharvest or postharvest in solution on all raw agricultural commodities.

[56 FR 21309, May 8, 1991]

§ 180.1097 GBM-ROPE; exemption from the requirement of a tolerance.

The grape berry moth pheromone (GBM-ROPE) containing the active ingredients (Z)-9-dodecenyl acetate and (Z)-11-tetradecenyl acetate is exempt from the requirement of a tolerance in or on the raw agricultural commodity grapes when used in orchards with en-

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capsulated polyethylene tubing to control grape berry moth.

[55 FR 28622, July 12, 1990]

§ 180.1098 Gibberellins (GA₃); exemption from the requirement of a tolerance.

Gibberellins (GA₃) are exempted from the requirement of a tolerance when used as a plant growth regulator at application rates less than 20 grams of active ingredient per acre (20 g ai/A) in or on the following raw agricultural commodities: Barley, beans, beets (sugar), broccoli, brussels sprouts, cabbage, cauliflower, corn (field, sweet, and popcorn), cotton, cucumber, grapefruit, lemons, lettuce, melons, mint (peppermint and spearmint), mustard greens, oats, onions, oranges, peanuts, peppers, potatoes, rice, rye, sorghum (milo), soybeans, spinach, squash, strawberries, sugarcane, tomatoes, turnips, watercress, and wheat.

[57 FR 22436, May 28, 1992]

§ 180.1099 Indole butyric acid (IBA); exemption from the requirement of tolerance.

Indole butyric acid is exempted from the requirement of a tolerance when used as a plant growth regulator at application rates less than 20 grams of active ingredient per acre (20 g ai/A) in or on the following raw agricultural commodities: Barley, beans, beets (sugar), broccoli, brussels sprouts, cabbage, cauliflower, corn (field, sweet, and popcorn), cotton, cucumber, grapefruit, lemons, lettuce, melons, mustard greens, oats, onions, oranges, peanuts, peppers, potatoes, rice, rye, sorghum (milo), soybeans, spinach, squash, strawberries, sugarcane, tomatoes, turnips, and wheat.

[55 FR 47475, Nov. 16, 1990]

§ 180.1100 Gliocladium virens isolate GL-21; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the biofungicide *Gliocladium virens* GL-21 in or on all raw agricultural commodities when used either as a fungicide for inoculation of plant growth media in greenhouses or on terrestrial food crops grown outdoors in

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accordance with good agricultural practices.

[60 FR 48659, Sept. 20, 1995; 60 FR 52248, Oct. 5, 1995]

§ 180.1101 Parasitic (parasitoid) and predatory insects; exemption from the requirement of a tolerance.

Parasitic (parasitoid) and predatory insects are exempted from the requirement of a tolerance for residues when they are used in accordance with good agricultural and pest control practices to control insect pests of stored raw whole grains such as corn, small grains, rice, soybeans, peanuts, and other legumes either bulk or warehoused in bags. For the purposes of this rule, the parasites (parasitoids) and predators are considered to be species of Hymenoptera in the genera *Trichogramma*, *Trichogrammatidae*; *Bracon*, *Braconidae*; *Venturia*, *Mesostenus*, *Ichneumonidae*; *Anisopteromalus*, *Choetospila*, *Lariophagus*, *Dibrachys*, *Habrocytus*, *Pteromalus*, *Pteromalidae*; *Cephalonomia*, *Holepyris*, *Laelius*, *Bethylidae*; and of Hemiptera in the genera *Xylocoris*, *Lyctocoris*, and *Dufouriellus*, *Anthocoridae*. Whole insects, fragments, parts, and other residues of these parasites and predators remain subject to 21 U.S.C. 342(a)(3).

[57 FR 14646, Apr. 22, 1992]

§ 180.1102 *Trichoderma harzianum*, Rifai Strain KRL-AG2; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the biofungicide *Trichoderma harzianum*, Rifai Strain KRL-AG2, in or on beans (green and dry), cabbage, corn (field and sweet), cotton, cucumbers, peanuts, potatoes, sorghum, soybeans, sugar beets, and tomatoes when used as a fungicide for the treatment of seeds of these crops in accordance with good agricultural practices.

[55 FR 50327, Dec. 6, 1990]

§ 180.1103 Isomate-C; exemption from the requirement of a tolerance.

The codling moth pheromone (Isomate-C) E,E-8,10-dodecenyl alcohol, dodecanol, tetradecanol is exempt from the requirements of a tolerance in or

on all RAC's when formulated in polyethylene pheromone dispensers for use in orchards with encapsulated polyethylene tubing to control codling moth.

[56 FR 23523, May 22, 1991]

§ 180.1107 Delta endotoxin of *Bacillus thuringiensis* variety *kurstaki* encapsulated into killed *Pseudomonas fluorescens*; exemption from the requirement of a tolerance.

The delta endotoxin of *Bacillus thuringiensis* variety *kurstaki* encapsulated into killed *Pseudomonas fluorescens* is exempt from the requirements of a tolerance in or on all raw agricultural commodities.

[56 FR 28328, June 20, 1991]

§ 180.1108 Delta endotoxin of *Bacillus thuringiensis* variety *San Diego* encapsulated into killed *Pseudomonas fluorescens*; exemption from the requirement of a tolerance.

The delta endotoxin of *Bacillus thuringiensis* variety *San Diego* encapsulated into killed *Pseudomonas fluorescens* is exempt from the requirements of a tolerance in or on all raw agricultural commodities.

[56 FR 28326, June 20, 1991]

§ 180.1110 3-Carbamyl-2,4,5-trichlorobenzoic acid; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for the residues of 3-carbamyl-2,4,5-trichlorobenzoic acid in or on all raw agricultural commodities which occur from the direct application of chlorothalonil to crops in § 180.275 (a) and (b) and/or as an inadvertent residue resulting from the soil metabolism of chlorothalonil when applied to crops in § 180.275 (a) and (b), and subsequent uptake by rotated crops when used according to approved agricultural practices.

[57 FR 24552, June 10, 1992]

§ 180.1111 *Bacillus subtilis* GB03; exemption from the requirement of a tolerance.

The biofungicide *Bacillus subtilis* GB03 is exempted from the requirement of a

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tolerance in or on all raw agricultural commodities when applied as a seed treatment for growing agricultural crops in accordance with good agricultural practices.

[57 FR 29033, June 30, 1992]

§ 180.1112 Alkyl acrylate/methacrylate copolymers; exemptions from the requirement of a tolerance.

Tetradecyl acrylate-acrylic acid copolymer, hexadecyl acrylate-acrylic acid copolymer, octadecyl acrylate-acrylic acid copolymer, docosyl methacrylate-acrylic acid copolymer, hexadecyl acrylate-butyl acrylate-acrylic acid copolymer, hexadecyl acrylate-dodecyl acrylate-acrylic acid copolymer, octadecyl methacrylate-butyl acrylate-acrylic acid copolymer, octadecyl methacrylate-hexyl acrylate-acrylic acid copolymer, octadecyl acrylate-dodecyl acrylate-acrylic acid copolymer, octadecyl methacrylate-dodecyl acrylate-acrylic acid copolymer, and docosyl methacrylate-octadecyl methacrylate-acrylic acid copolymer, minimum number average molecular weight 3,000, are exempted from the requirement of a tolerance when used as inert ingredients (controlled-release agents) in pesticide formulations applied to growing crops, raw agricultural commodities after harvest, or animals.

[57 FR 61002, Dec. 23, 1992]

§ 180.1113 *Lagenidium giganteum*; exemption from the requirement of a tolerance.

Lagenidium giganteum (a fungal organism) is exempt from the requirement of a tolerance in or on the raw agricultural commodities grasses, forage and hay; rice, grain and straw; soybeans; soybean, forage and hay; and wild rice.

[57 FR 53570, Nov. 12, 1992]

§ 180.1114 *Pseudomonas fluorescens* A506, *Pseudomonas fluorescens* 1629RS, and *Pseudomonas syringae* 742RS; exemptions from the requirement of a tolerance.

The biological pesticides *Pseudomonas fluorescens* A506, *Pseudomonas fluorescens* 1629RS, and

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Pseudomonas syringae 742RS are exempted from the requirement of a tolerance in or on all raw agricultural commodities when applied as a frost protection agent or biological control agent to growing agricultural crops in accordance with good agricultural practices.

[57 FR 42700, Sept. 16, 1992]

§ 180.1115 *Burkholderia* (*Pseudomonas*) *cepacia* type Wisconsin; exemption from the requirement of a tolerance.

The biological pesticide *Burkholderia* (*Pseudomonas*) *cepacia* type Wisconsin is exempted from the requirement of a tolerance in or on all raw agricultural commodities when applied to plant roots and seedling roots, or as a seed treatment for growing agricultural crops in accordance with good agricultural practices.

[60 FR 37021, July 19, 1995]

§ 180.1116 *Metarhizium anisopliae* strain ESF1; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for the microbial pest control agent *Metarhizium anisopliae* strain ESF1 on all raw agricultural commodities in accordance with the following prescribed conditions:

(a) Application shall be limited solely to placement of attractant stations containing *Metarhizium anisopliae* strain ESF1.

(b) To ensure safe use of the microbial pest control agent, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency.

[58 FR 29120, May 19, 1993]

§ 180.1117 Urea; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the frost protectant urea in or on the following raw agricultural commodities when used before harvest in the production of: alfalfa, almonds, apples, apricots, artichokes, asparagus, avocados, beans, bell peppers, blackberries, blueberries, broccoli, brussels sprouts, boysenberries, caneberries,

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canola, cantaloupes, carrots, cauliflower, casaba, celery, cherries, chili peppers, chinese cabbage (bok choy, napa), cooking peppers, corn, cotton, crenshaw, cucumbers, figs, grapefruit, grapes, honeydew melon, hops, kiwifruit, kohlrabi, lemons, lentils, lettuce, limes, macadamia nuts, musk melon, nectarines, olives, onions, oranges, peaches, pears, peanuts, peas, persian melon, pistachios, plums, potatoes, pumpkin, prunes, radish, raspberries, rice, safflower, sorghum, spinach, spinach (New Zealand), squash (winter and summer), strawberries, sugar beets, sunflower, sweet pepper, table beets, tangerines, tomatoes, walnuts, watermelon, and zucchini.

[60 FR 43719, Aug. 23, 1995]

§ 180.1118 *Spodoptera exigua* nuclear polyhedrosis virus; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for the microbial pest control agent *Spodoptera exigua* nuclear polyhedrosis virus when used as a pesticide control agent on all raw agricultural commodities.

[58 FR 25784, Apr. 28, 1993]

§ 180.1119 Azadirachtin; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for the biochemical azadirachtin, which is isolated from the berries of the Neem tree (*Azadirachta indica*), when used as a pesticide at 20 grams or less per acre on all raw agricultural commodities.

[58 FR 8696, Feb. 17, 1993]

§ 180.1120 *Streptomyces* sp. strain K61; exemption from the requirement of a tolerance.

The biological pesticide *Streptomyces* sp. strain K61 is exempted from the requirement of a tolerance in or on all raw agricultural commodities when used as a fungicide for the treatment of seeds, cuttings, transplants, and plants of agricultural crops in accordance with good agricultural practices.

[58 FR 21403, Apr. 21, 1993]

§ 180.1121 Boric acid and its salts, borax (sodium borate decahydrate), disodium octaborate tetrahydrate, boric oxide (boric anhydride), sodium borate and sodium metaborate; exemptions from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the pesticidal chemical boric acid and its salts, borax (sodium borate decahydrate), disodium octaborate tetrahydrate, boric oxide (boric anhydride), sodium borate and sodium metaborate, in or on raw agricultural commodities when used as an active ingredient in insecticides, herbicides, or fungicides preharvest or postharvest in accordance with good agricultural practices.

[58 FR 44283, Aug. 20, 1993]

§ 180.1122 Inert ingredients of semiochemical dispensers; exemptions from the requirement of a tolerance.

(a) All inert ingredients of semiochemical dispenser products formulated with, and/or contained in, dispensers made of polymeric matrix materials (including the monomers, plasticizers, dispersing agents, antioxidants, UV protectants, stabilizers, and other inert ingredients) are exempted from the requirement of a tolerance when used as carriers in pesticide formulations for application to growing crops only. These dispensers shall conform to the following specifications:

(1) Exposure must be limited to inadvertent physical contact only. The design of the dispenser must be such as to preclude any contamination by its components of the raw agricultural commodity (RAC) or processed foods/feeds derived from the commodity by virtue of its proximity to the RAC or as a result of its physical size.

(2) The dispensers must be applied discretely. This exemption does not apply to components of semiochemical formulations applied in a broadcast manner either to a crop field plot or to individual plants.

(b) A semiochemical dispenser is a single enclosed or semi-enclosed unit that releases semiochemical(s) into the

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surrounding atmosphere via volatilization and is applied in a manner to provide discrete application of the semiochemical(s) into the environment.

(c) Semiochemicals are chemicals that are emitted by plants or animals and modify the behavior of receiving organisms. These chemicals must be naturally occurring or substantially identical to naturally occurring semiochemicals.

[58 FR 64494, Dec. 8, 1993]

§ 180.1123 *Puccinia canaliculata* (ATCC 40199); exemption from the requirement of a tolerance.

The biological pesticide *Puccinia canaliculata* (ATCC 40199) is exempted from the requirement of a tolerance in or on all raw agricultural commodities when used as a herbicide in agricultural crops in accordance with good agricultural practices.

[58 FR 51015, Sept. 30, 1993]

§ 180.1124 Arthropod pheromones; exemption from the requirement of a tolerance.

Arthropod pheromones, as described in § 152.25(b) of this chapter, when used in retrievably sized polymeric matrix dispensers are exempt from the requirement of a tolerance in or on all raw agricultural commodities when applied to growing crops only at a rate not to exceed 150 grams active ingredient/acre/year in accordance with good agricultural practices.

[59 FR 14759, Mar. 30, 1994]

§ 180.1125 Polyhedral occlusion bodies of *Autographa californica* nuclear polyhedrosis virus; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for the microbial pest control agent *Autographa californica* nuclear polyhedrosis virus in or on all raw agricultural commodities.

[59 FR 13660, Mar. 23, 1994]

§ 180.1126 Codlure, (E,E)-8,10-Dodecadien-1-ol; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for the insect pheromone codlure, (E,E)-8,10-

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dodecadien-1-ol, on all raw agricultural commodities in accordance with the following prescribed conditions:

(a) Application shall be limited solely to codlure dispensers that conform to the following specifications:

(1) Commodity exposure must be limited to inadvertent physical contact. The design of the dispenser must be such as to preclude any exposure of its components to the raw agricultural commodity (RAC) or processed foods/feeds derived from the commodity due to its proximity to the RAC or as a result of its physical size. Dispensers must be of such size and construction that they are readily recognized post-application.

(2) The dispensers must be applied discretely, i.e., placed in the field in easily perceived distinct locations in a manner that does not prevent later retrieval. This exemption does not apply to codlure applied in a broadcast manner either to a crop field plot or to individual plants.

(b) A codlure dispenser is a single enclosed or semi-enclosed unit that releases codlure into the surrounding atmosphere via volatilization and is applied in a manner to provide discrete application (i.e., in easily perceived distinct locations in a manner that does not prevent later retrieval) of the codlure into the environment.

[59 FR 9931, Mar. 2, 1994]

§ 180.1127 Biochemical pesticide plant floral volatile attractant compounds: cinnamaldehyde, cinnamyl alcohol, 4-methoxy cinnamaldehyde, 3-phenyl propanol, 4-methoxy phenethyl alcohol, indole, and 1,2,4-trimethoxybenzene; exemptions from the requirement of a tolerance.

Residues of the biochemical pesticide plant floral volatile attractant compounds: cinnamaldehyde, cinnamyl alcohol, 4-methoxy cinnamaldehyde, 3-phenyl propanol, 4-methoxy phenethyl alcohol, indole, and 1,2,4-trimethoxybenzene are exempt from the requirement of a tolerance in or on the following raw agricultural commodities: the following field crops—alfalfa, clover, cotton, dandelion, peanuts (including hay), rice, sorghum

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(milo), soybeans, sunflower, sweet potatoes, and wheat; the following vegetable crops— asparagus, beans (including forage hay), beets, carrots, celery, cole crops (cabbage, broccoli, brussels sprouts, cauliflower), collards (kale, mustard greens, turnip greens, kohlrabi), corn, fresh (field, sweet, pop, seed), corn fodder and forage, chinese cabbage, cowpeas, cucurbitis (cucumbers, squash, pumpkin), egg plant, endive (escarole), horseradish (radish, rutabagas, turnip roots), leafy greens (spinach, swiss chard), lettuce (head leaf), okra, parsley, parsnip, peas, peas with pods, peppers, potatoes, sugar beets, tomatoes; the following tree fruit, berry and nut crops—almonds, apples, apricots, berries (blackberry, boysenberry, dewberry, loganberry, raspberry), blueberry, cherry, citrus (grapefruit, kumquat, lemon, lime, orange, tangelo, and tangerine) cranberry, grapes, melons, (watermelon, honeydew, crenshaw, cantaloupe, casaba, persian), nectarines, pears, pecans, peaches, and strawberry as dispersed from the end-use product Corn Rootworm Bait®, a pesticidal bait, in accordance with the prescribed conditions in paragraph (a) of this section.

(a) Cumulative yearly application cannot exceed 20 grams of each floral attractant/acre/application.

(b) [Reserved]

[59 FR 15857, Apr. 5, 1994]

§ 180.1128 *Bacillus subtilis* MBI 600; exemption from the requirement of a tolerance.

The biofungicide *Bacillus subtilis* MBI 600 is exempted from the requirement of a tolerance in or on all raw agricultural commodities when applied as a seed treatment on seeds used for growing agricultural crops in accordance with good agricultural practices.

[59 FR 29544, June 8, 1994]

§ 180.1129 *Pseudomonas fluorescens* strain NCIB 12089; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the biological pesticide *Pseudomonas fluorescens* strain NCIB 12089 in or on mushrooms.

[59 FR 43490, Aug. 24, 1994]

§ 180.1130 *N*-(*n*-octyl)-2-pyrrolidone and *N*-(*n*-dodecyl)-2-pyrrolidone; exemptions from the requirement of a tolerance.

N-(*n*-octyl)-2-pyrrolidone and *N*-(*n*-dodecyl)-2-pyrrolidone are exempt from the requirement of a tolerance when used as solvents in cotton defoliant formulations containing thidiazuron and diuron as active ingredients.

[59 FR 32084, June 22, 1994]

§ 180.1131 *Ampelomyces quisqualis* isolate M10; exemption from the requirement of a tolerance.

The biological fungicide *Ampelomyces quisqualis* isolate M10 is exempted from the requirement of a tolerance in or on all raw agricultural commodities when used as a fungicide on agricultural crops in accordance with good agricultural practices.

[59 FR 33437, June 29, 1994]

§ 180.1132 Watermelon mosaic virus-2 coat protein, zucchini yellow mosaic virus coat protein, and the genetic material necessary for the production of these proteins; exemption from the requirement of a tolerance.

The plant pesticides watermelon mosaic virus-2 coat protein and zucchini yellow mosaic virus coat protein as expressed in Asgrow line ZW20 of *Cucurbita pepo* L. and the genetic material (nucleic acids) necessary for the production of these proteins are exempted from the requirement of a tolerance in this transgenic plant and in subsequent generations of Asgrow line ZW20 of *cucurbita pepo* L. obtained through normal sexual reproduction.

[59 FR 54825, Nov. 2, 1994]

§ 180.1133 Methyl-1-alkylamido ethyl-2-alkyl-imidazolinium methyl sulfate; exemption from the requirement of a tolerance.

Methyl-1-alkylamido ethyl-2-alkyl-imidazolinium methyl sulfate, where the alkyl group (C₈-C₁₈) is derived from coconut, cottonseed, soya, tallow, or hogfat fatty acids, is exempted from the requirement of a tolerance when used as an inert ingredient (metal corrosion inhibitor, spreader-sticker) in propionic acid formulations applied to

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various grains, grasses, and hays, as specified in 40 CFR 180.1023.

[59 FR 53751, Oct. 26, 1994]

§ 180.1134 Neomycin phosphotransferase II and genetic material necessary for its production; exemption from the requirement of a tolerance.

The neomycin phosphotransferase II (NPTII) and the genetic material necessary for the production of this protein are exempted from the requirement of a tolerance in or on all raw agricultural commodities when used as a plant-pesticide inert ingredient.

[59 FR 49353, Sept. 28, 1994]

§ 180.1135 *Pasteuria penetrans*; exemption from the requirement of a tolerance.

The biological nematicide *Pasteuria penetrans* is exempted from the requirement of a tolerance in or on all raw agricultural commodities, except roots and tubers, when used as a nematicide in the production of fruits and vegetables in greenhouses.

[59 FR 66741, Dec. 28, 1994]

§ 180.1139 Sodium 5-nitroguaiacolate; exemption from the requirement of a tolerance.

The biochemical sodium 5-nitroguaiacolate is exempted from the requirement of a tolerance when used as a plant regulator in end-use products at a concentration of 0.1% by weight and applied at an application rate of 20 grams of active ingredient per acre (20 g ai/A) or less per application, in or on the raw agricultural commodities cottonseed, cotton gin by-products, rice, rice straw, soybeans, and soybean forage and hay.

[60 FR 4097, Jan. 20, 1995]

§ 180.1140 Sodium o-nitrophenolate; exemption from the requirement of a tolerance.

The biochemical sodium o-nitrophenolate is exempted from the requirement of a tolerance when used as a plant regulator in end-use products at a concentration of 0.2% by weight and applied at an application rate of 20 grams of active ingredient per acre (20 g ai/A) or less per applica-

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tion, in or on the raw agricultural commodities cottonseed, cotton gin by-products, rice, rice straw, soybeans, and soybean forage and hay.

[60 FR 4097, Jan. 20, 1995]

§ 180.1141 Sodium p-nitrophenolate; exemption from the requirement of a tolerance.

The biochemical sodium p-nitrophenolate is exempted from the requirement of a tolerance when used as a plant regulator in end-use products at a concentration of 0.3% by weight and applied at an application rate of 20 grams of active ingredient per acre (20 g ai/A) or less per application, in or on the raw agricultural commodities cottonseed, cotton gin by-products, rice, rice straw, soybeans and soybean forage and hay.

[60 FR 4097, Jan. 20, 1995]

§ 180.1142 1,4-Dimethylnaphthalene; exemption from the requirement of a tolerance.

An exemption from the requirement of a tolerance is established for residues of the plant growth regulator 1,4-dimethylnaphthalene when applied post harvest to potatoes in accordance with good agricultural practices.

[60 FR 7457, Feb. 8, 1995]

§ 180.1143 Methyl anthranilate; exemption from the requirement of a tolerance.

Methyl anthranilate, a biochemical pesticide, is exempt from the requirement of a tolerance when used in accordance with good agricultural practices on the following raw agricultural commodities: Blueberry, cherry, and grape.

[60 FR 20433, Apr. 26, 1995]

§ 180.1144 *Candida oleophila* isolate I-182; exemption from the requirement of a tolerance.

Candida oleophila isolate I-182, when used as a post-harvest biological fungicide, is exempted from the requirement of a tolerance in or on all raw agricultural commodities.

[60 FR 11033, Mar. 1, 1995]

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§ 180.1145 *Pseudomonas syringae*; exemption from the requirement of a tolerance.

Pseudomonas syringae is exempted from the requirement of a tolerance on all raw agricultural commodities when applied postharvest according to good agricultural practices.

[60 FR 12703, Mar. 8, 1995]

§ 180.1146 *Beauveria bassiana* Strain GHA; exemption from the requirement of a tolerance.

Beauveria bassiana Strain GHA is exempted from the requirement of a tolerance in or on all raw agricultural commodities when applied to growing crops according to good agricultural practices.

[60 FR 18547, Apr. 12, 1995]

§ 180.1147 *Bacillus thuringiensis* CryIIIA delta-endotoxin and the genetic material necessary for its production.

Bacillus thuringiensis CryIIIA delta-endotoxin and the genetic material necessary for its production are exempted from the requirement of a tolerance when used as a plant pesticide in potatoes. "Genetic material necessary for its production" means the CryIIIA gene and its regulatory regions. "Regulatory regions" are the genetic materials that control the expression of the gene, such as promoters, terminators, and enhancers.

[60 FR 21728, May 3, 1995]

§ 180.1148 Occlusion Bodies of the Granulosis Virus of *Cydia pomonella*; tolerance exemption.

An exemption from the requirement of a tolerance is established for residues of the microbial pest control agent Occlusion Bodies of the Granulosis Virus of *Cydia pomonella* (codling moth) in or on all raw agricultural commodities.

[60 FR 42450, Aug. 16, 1995]

§ 180.1149 Inclusion bodies of the multi-nuclear polyhedrosis virus of *Anagrapha falcifera*; exemption from the requirement of a tolerance.

The microbial pest control agent inclusion bodies of the multi-nuclear polyhedrosis virus of *Anagrapha falcifera* is exempted from the requirement of a tolerance in or on all raw agricultural commodities when used to control certain lepidopteran pest species.

[60 FR 37020, July 19, 1995]

§ 180.1150 6-Benzyladenine; exemption from the requirement of a tolerance.

The plant growth regulator 6-benzyladenine is exempt from the requirement of a tolerance when used as a fruit-thinning agent at an application rate not to exceed 30 grams of active ingredient per acre (30 g ai/A) in or on apples.

[60 FR 34869, July 5, 1995]

§ 180.1151 Phosphinothricin acetyltransferase and the genetic material necessary for its production (plasmid vector pCIB3064) in corn; exemption from the requirement of a tolerance.

Phosphinothricin acetyltransferase and the genetic material necessary for its production (plasmid vector pCIB3064) in corn is exempt from the requirement of a tolerance when used as a plant pesticide inert ingredient in the raw agricultural commodities of field corn, sweet corn, and popcorn. "Genetic material necessary for its production" means the genetic materials which comprise genetic material encoding the phosphinothricin acetyltransferase and its regulatory regions. "Regulatory regions" are the genetic materials that control the expression of the genetic material encoding the phosphinothricin acetyltransferase, such as promoters, terminators, and enhancers.

[60 FR 42453, Aug. 16, 1995]

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§ 180.1152 *Bacillus thuringiensis* CryIA(b) delta-endotoxin and the genetic material necessary for its production (plasmid vector pCIB4431) in corn; exemption from the requirement of a tolerance.

Bacillus thuringiensis CryIA(b) delta-endotoxin and the genetic material necessary for its production (plasmid vector pCIB4431) in corn is exempt from the requirement of a tolerance when used as a plant pesticide in the raw agricultural commodities of field corn, sweet corn, and popcorn. "Genetic material necessary for its production" means the genetic materials which comprise genetic material encoding the CryIA(b) delta-endotoxin and its regulatory regions. "Regulatory regions" are the genetic materials that control the expression of the genetic material encoding the CryIA(b) delta-endotoxin, such as promoters, terminators, and enhancers.

[60 FR 42446, Aug. 16, 1995]

§ 180.1153 Lepidopteran pheromones; exemption from the requirement of a tolerance.

Lepidopteran pheromones that are naturally occurring compounds, or identical or substantially similar synthetic compounds, designated by an unbranched aliphatic chain (between 9 and 18 carbons) ending in an alcohol, aldehyde or acetate functional group and containing up to 3 double bonds in the aliphatic backbone, are exempt from the requirement of a tolerance in or on all raw agricultural commodities. This exemption pertains to only those situations when the pheromone is applied to growing crops at a rate not to exceed 150 grams active ingredient/acre/year in accordance with good agricultural practices.

[60 FR 45062, Aug. 30, 1995]

§ 180.1154 CryIA(c) and CryIC derived delta-endotoxins of *Bacillus thuringiensis* var. *kurstaki* encapsulated in killed *Pseudomonas fluorescens*, and the expression plasmid and cloning vector genetic constructs.

CryIA(c) and CryIC derived delta-endotoxins of *Bacillus thuringiensis* var. *kurstaki* encapsulated in killed *Pseudomonas fluorescens* and the expres-

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sion plasmid and cloning vector genetic constructs are exempt from the requirement of a tolerance when used in or on all raw agricultural commodities.

[60 FR 47489, Sept. 13, 1995]

§ 180.1155 *Bacillus thuringiensis* CryIA(c) delta-endotoxin and the genetic material necessary for its production; exemption from the requirement of a tolerance.

Bacillus thuringiensis CryIA(c) delta-endotoxin and the genetic material necessary for its production are exempted from the requirement of a tolerance when used as a plant pesticide in cotton. "Genetic material necessary for its production" means the CryIA(c) gene and its regulatory regions. "Regulatory regions" are the genetic materials that control the expression of the gene, such as promoters, terminators, and enhancers.

[60 FR 47874, Sept. 15, 1995]

§ 180.1156 Cinnamaldehyde; exemption from the requirement of a tolerance.

Cinnamaldehyde is exempted from the requirement of a tolerance when used as a plant pesticide on soil casing for mushrooms.

[60 FR 48657, Sept. 20, 1995]

§ 180.1159 Pelargonic acid.

Pelargonic acid is exempt from the requirement of a tolerance on apples and pears provided it is used as a blossom thinner only and is in a dilution of 100 gallons of water applied to blooms at a rate not to exceed 4.2 lbs/acre with the maximum number of applications not exceeding two per year.

[61 FR 5718, Feb. 14, 1996]

§ 180.1160 Jojoba oil; exemption from the requirement of a tolerance.

The insecticide and spray tank adjuvant jojoba oil is exempted from the requirement of a tolerance in or on all raw agricultural commodities when applied at the rate of 1.0% or less of the final spray in accordance with good agricultural practices, provided the jojoba oil does not contain simmondsin, simmondsin-2-ferulate,

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and related conjugated organonitriles including demethyl simmondsin and didemethylsimmondsin.

[61 FR 2121, Jan. 25, 1996]

§180.1161 Clarified hydrophobic extract of neem oil; exemption from the requirement of a tolerance.

Clarified hydrophobic extract of neem oil (Reg. No. 11688-8) is exempt from the requirement of a tolerance on all raw agricultural commodities when used as a botanical fungicide/insecticide/miticide.

[60 FR 63953, Dec. 13, 1995]

§180.1162 Acrylate polymers and copolymers; exemption from the requirement of a tolerance.

(a) Acrylate polymers and copolymers are exempt from the requirement of a tolerance when used as inert ingredients in pesticidal formulations applied to growing, raw agricultural commodities. This tolerance exemption covers the acrylate polymers/copolymers that are intrinsically safe and already listed in TSCA inventory or will meet the polymer tolerance exemption from requirements of premanufacturing notification under 40 CFR 723.250. Polymers exempted can be used as dispensers, resins, fibers, and beads, as long as the fibers, beads and resins particle sizes are greater than 10 microns and insoluble in water. This exemption pertains to the acrylate polymers/copolymers used as inert ingredients for sprayable and dispenser pesticide formulations that are applied on food crops. Any acrylate polymers/copolymers used for encapsulating material must be cleared as an inert ingredient when used in pesticide formulation applied on food crops.

(b) For the purposes of this exemption, acrylate polymers/copolymers used as inert ingredients in an end-use formulation must meet the definition for a polymer as given in 40 CFR 723.250(b), are not automatically excluded by 40 CFR 723.250(d), and meet the tolerance exemption criteria in 40 CFR 723.250(e)(1), 40 CFR 723.250 (e)(2) or 40

CFR 723.250(e)(3). Therefore, acrylate polymers and copolymers that are already listed in the TSCA inventory or will meet the polymer tolerance exemption under 40 CFR 723.250 as amended on March 29, 1995 are covered by this exemption.

[61 FR 6551, Feb. 21, 1996]

§180.1163 Killed *Myrothecium verrucaria*; exemption from the requirement of a tolerance.

Killed *Myrothecium verrucaria* is exempted from the requirement of a tolerance in or on all raw agricultural commodities when applied as a pre-seed or pre- or post-planting soil treatment alone or mixed with water and the mixed suspension be applied through drip or border irrigation systems at a rate not to exceed 20 to 40 lbs/acre and the indicator mycotoxin levels do not exceed 15 ppm.

[61 FR 11315, Mar. 20, 1996]

§180.1164 Food and food by-products; exemption from the requirement of a tolerance.

(a) Meat meal, a sterilized food by-product, is exempt from the requirement of a tolerance on all raw agricultural commodities when used as an olfactory animal repellent.

(b) Red pepper (*Capsicum spp.*) is exempt from the requirement of a tolerance on all raw agricultural commodities when used as a gustatory animal repellent.

[61 FR 13426, Mar. 27, 1996]

§180.1167 Allyl isothiocyanate as a component of food grade oil of mustard; exemption from the requirement of a tolerance.

The insecticide and repellent Allyl isothiocyanate is exempt from the requirement of a tolerance for residues when used as a component of food grade oil of mustard, in or on all raw agricultural commodities, when applied according to approved labeling.

[61 FR 24894, May 17, 1996]

**PART 185—TOLERANCES FOR
PESTICIDES IN FOOD**

Subpart A—[Reserved]

**Subpart B—Food Additives Permitted in
Food for Human Consumption**

Sec.		
185.100	Acephate.	185.2650 Endothall.
185.150	Aldicarb.	185.2700 Ethephon.
185.200	Aluminum phosphide.	185.2750 Ethion.
185.250	4-Amino-6-(1,1-dimethylethyl)-3-(methylthio)-1,2,4-triazin-5(4 <i>H</i>)-one.	185.2800 2-[1-(Ethoxymino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexene-1-one.
185.300	Avermectin B ₁ and its delta-8,9-isomer; tolerances for residues.	185.2850 Ethylene oxide.
185.350	Benomyl.	185.2900 Ethyl formate.
185.410	1,1-Bis(p-chlorophenyl)-2,2,2-trichloroethanol.	185.2950 Ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl)-phosphoramidate.
185.425	Bromide ion and residual bromine.	185.3000 <i>O</i> -Ethyl <i>O</i> -[4-(methylthio)phenyl] <i>S</i> -propyl phosphorodithioate.
185.600	Carbofuran; tolerances for residues.	185.3200 Fenarimol.
185.650	Carbon dioxide.	185.3225 Fenpropathrin.
185.800	1-(4-Chlorophenoxy)-3,3-dimethyl-1-[1 <i>H</i> -1,2,4-triazol-1-yl]-2-butanone.	185.3250 Fluzazifop-butyl.
185.900	1-[(6-Chloro-3-pyridinyl)methyl]- <i>N</i> -nitro-2-imidazolidinimine; tolerances for residues.	185.3385 Flutolanil (N-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide).
185.1000	Chlorpyrifos.	185.3450 Formetanate hydrochloride.
185.1050	Chlorpyrifos-methyl.	185.3475 Fumigants for grain-mill machinery.
185.1075	Clethodim ((<i>E</i>)-($\pm$)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one).	185.3480 Fumigants for processed grains used in production of fermented malt beverages.
185.1100	Clopyralid.	185.3500 Glyphosate.
185.1150	Combustion product gas.	185.3550 Hexakis.
185.1200	Copper.	185.3575 Hexazinone.
185.1250	Cyfluthrin.	185.3600 Hydrogen cyanide.
185.1300	Cyano(3-phenoxyphenyl)methyl-4-chloro-alpha-(1-methylethyl)benzeneacetate and its <i>S,S</i> isomer.	185.3625 Hydroprene; tolerances for residues.
185.1350	Cyhexatin.	185.3650 Imazalil.
185.1450	2,4-D.	185.3700 Inorganic bromide.
185.1500	Dalapon.	185.3750 Iprodione.
185.1580	Deltamethrin.	185.3765 Lambda-cyhalothrin.
185.1650	Dialifor.	185.3775 d-Limonene.
185.1700	Diatomaceous earth.	185.3800 Magnesium phosphide.
185.1750	Diazinon.	185.3850 Malathion.
185.1800	Dicamba.	185.3900 Maleic hydrazide.
185.1850	3-(3,5-Dichlorophenyl)-5-ethenyl-5-methyl-2,4-oxazolidinedione.	185.4000 Metalaxyl.
185.1900	2,2-Dichlorovinyl dimethyl phosphate.	185.4025 Metaldehyde.
185.1975	Dihydro-5-heptyl-2(3 <i>H</i>)-furanone.	185.4035 Metarhizium anisopliae strain ESF1.
185.1985	Dihydro-5-pentyl-2(3 <i>H</i>)-furanone.	185.4100 Methomyl.
185.2150	2,2-Dimethyl-1,3-benzodioxol-4-ol methylcarbamate.	185.4150 Methoprene.
185.2200	<i>O,O</i> -Dimethyl <i>O</i> -(4-nitro- <i>m</i> -tolyl) phosphorothioate.	185.4200 1-Methoxycarbonyl-1-propen-2-yl dimethylphosphate and its beta isomer.
185.2225	<i>O,O</i> -Dimethyl <i>S</i> -[(4-oxo-1,2,3-benzotriazin-3(4 <i>H</i>)-yl)methyl] phosphorodithioate.	185.4250 Methyl chloride.
185.2250	Dimethyl phosphate of 3-hydroxy- <i>N</i> -methyl-cis-crotonamide.	185.4300 Methyl formate.
185.2500	Diquat.	185.4350 Myclobutanil.
185.2600	Endosulfan.	185.4400 Nitrogen.
		185.4450 Norflurazon.
		185.4500 <i>N</i> -Octylbicycloheptene dicarboximide.
		185.4650 Paraformaldehyde.
		185.4700 Paraquat.
		185.4800 Phosalone.
		185.4850 Picloram.
		185.4900 Piperonyl butoxide.
		185.4950 Pirimiphos-methyl.
		185.5000 Propargite.
		185.5100 Propetamphos.
		185.5150 Propylene oxide.
		185.5200 Pyrethrins.
		185.5250 Quiazalofop ethyl.
		185.5300 Resmethrin.
		185.5375 Sulfonium, trimethyl-salt with <i>N</i> -(phosphonomethyl)glycine (1:1).

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185.5450 Tralomethrin.
185.5475 Tetradifon.
185.5550 Thiabendazole.
185.5950 Triforine.
185.6300 Zinc ion and maneb coordination product.

Subpart C—Food Additives Resulting From Contact With Containers or Equipment And Food Additives Otherwise Affecting Food

185.7000 Malathion.

AUTHORITY: 21 U.S.C. 346a and 348.

SOURCE: 40 FR 14156, Mar. 28, 1975, unless otherwise noted. Redesignated at 41 FR 26568, June 28, 1976, and 53 FR 24667, June 29, 1988.

EDITORIAL NOTE: The text of part 185 set forth below was transferred and recodified at 53 FR 24666, June 29, 1988. New part 185 formerly appeared in 21 CFR part 193. A Redesignation Table appears in the Finding Aids section of this volume.

Subpart A—[Reserved]

Subpart B—Food Additives Permitted in Food for Human Consumption

§ 185.100 Acephate.

(a) A food additive tolerance of 0.02 ppm is established for the combined residues of acephate (*O,S*-dimethyl acetylphosphoramidothioate) and its cholinesterase-inhibiting metabolite, methamidophos as follows:

(1) In or on all food items (other than those already covered by a higher tolerance as a result of use on growing crops) in food handling establishments.

(2) The acephate may be present as a residue from applications of acephate in food handling establishments, including food service, manufacturing and processing establishments, such as restaurants, cafeterias, supermarkets, bakeries, breweries, dairies, meat slaughtering and packing plants, and canneries in accordance with the following prescribed conditions:

(i) Application shall be limited solely to spot and/or crack and crevice treatment in food handling establishments where food and food products are held, processed, prepared and served. Spray concentration shall be limited to a maximum of 1.0 percent active ingredient. For crack and crevice treatments, equipment capable of delivering a pin-

stream of insecticide shall be used. For spot treatments, a coarse, low-pressure spray shall be used to avoid atomization or splashing of the spray. Contamination of food or food-contact surfaces shall be avoided.

(ii) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[47 FR 52995, Nov. 24, 1982. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.150 Aldicarb.

(a) A regulation is established permitting the combined residues of the insecticide/nematocide aldicarb 2-methyl-2-(methylthio)propionaldehyde *O*-(methylcarbamoyl)oxime and its cholinesterase-inhibiting metabolites 2-methyl-2-(methylsulfonyl) propionaldehyde *O*-(methylcarbamoyl)oxime and 2-methyl-2-(methylsulfonyl)propionaldehyde *O*-(methylcarbamoyl)oxime in or on the commodity sorghum bran at 0.5 part per million.

(b) [Reserved]

[47 FR 14894, Apr. 7, 1982, as amended at 53 FR 8874, Mar. 18, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.200 Aluminum phosphide.

The food additive aluminum phosphide may be safely used in accordance with the following prescribed conditions:

(a) It is used to generate phosphine in the fumigation of processed foods.

(b) To assure safe use of the additive, it is used in compliance with label and labeling conforming to that registered with the U.S. Environmental Protection Agency. Labeling shall bear a warning to aerate the finished food for 48 hours before it is offered to the consumer. A further warning shall state that under no condition should the formulation containing aluminum phosphide be used so that it or its unreacted residues will come in contact with any processed food, except processed brewer's rice, malt, and corn grits stored in breweries for use in the manufacture of beer.

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(c) Residues of phosphine in or on processed foods do not exceed 0.01 part per million.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 44 FR 35210, June 19, 1979. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.250 4-Amino-6-(1,1-dimethylethyl)-3-(methylthio)-1,2,4-triazin-5(4H)-one.

Tolerances are established for combined residues of the herbicide 4-amino-6-(1,1-dimethylethyl)-3-(methylthio)-1,2,4-triazin-5(4H)-one and its triazinone metabolites in or on the following processed foods when present therein as a result of application of this herbicide to growing crops:

Food	Parts per million
Barley, milled fractions (except flour)	3
Potatoes, processed (inc. potato chips)	3
Sugarcane molasses	2
Wheat milled fractions (except flour)	3

[44 FR 40283, July 10, 1979. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.300 Avermectin B₁ and its delta-8,9-isomer; tolerances for residues.

Tolerances, to expire on April 30, 1996, are established for the combined residues of the insecticide avermectin B₁ and its delta-8,9-isomer (a mixture of avermectins containing $\geq$ 80 percent avermectin B_{1a} (5-O-demethyl avermectin B_{1a}) and < 20 percent avermectin B_{1a} (5-O-demethyl-25-di (1-methylpropyl)-25-1(1-methylethyl) avermectin A_{1a}) in or on the following commodity:

Commodity	Parts per million
Citrus oil	0.10

[59 FR 49826, Sept. 30, 1994]

§ 185.350 Benomyl.

Tolerances of 50 parts per million are established for combined residues of the fungicide benomyl (methyl-1-(butylcarbamoyl)-2-benzimidazolecarbamate) and its metabolites containing the benzimidazole moiety (calculated as benomyl) in raisins and concentrated tomato products when present therein as a re-

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sult of application of the fungicide to growing grapes and tomatoes.

[59 FR 46769, Sept. 12, 1994]

§ 185.410 1,1-Bis(p-chlorophenyl)-2,2,2-trichloroethanol.

A tolerance of 45 parts per million is established for residues of the insecticide 1,1-bis(p-chlorophenyl)-2,2,2-trichloroethanol in dried tea when present therein as a result of its application to the growing tea crop.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and at 53 FR 24667, June 29, 1988. Correctly redesignated at 53 FR 28383, July 28, 1988]

EFFECTIVE DATE NOTE: At 59 FR 10997, Mar. 9, 1994, § 185.410 was removed. At 59 FR 23800, May 9, 1994 the effective date of the removal was stayed until further notice.

§ 185.425 Bromide ion and residual bromine.

The food additives, bromide ion and residual bromine, may be present in potable water in accordance with the following conditions:

(a) The food additives are present as a result of treating water aboard ships with a polybrominated ion-exchange resin (as a source of bromine) under the supervision of trained personnel.

(b) Residual bromine levels are controlled to not exceed 1.0 part per million (ppm) in the final treated water. Control is effected using calibrated recirculating or proportioning bromine feeder equipment and periodic checks of residual bromine using a bromine test kit. To assure safe use of the additives, the label and labeling of the disinfectant formulation containing the food additives shall conform to the label and labeling registered by the U.S. Environmental Protection Agency.

(c) No tolerance is established for bromide ion levels.

[41 FR 17893, Apr. 29, 1976. Redesignated at 41 FR 26568, June 28, 1976, and at 53 FR 24667, June 29, 1988]

§ 185.600 Carbofuran; tolerances for residues.

A tolerance is established for the combined residues of the insecticide carbofuran (2,3-dihydro-2,2-dimethyl-7-

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benzofuranyl-*N*-methylcarbamate), its carbamate metabolite 2,3-dihydro-2,2-dimethyl-3-hydroxy-7-benzofuranyl-*N*-methylcarbamate, and the phenolic metabolites 2,3-dihydro-2,2-dimethyl-7-benzofuranol, 2,3-dihydro-2,2-dimethyl-7-benzofuranol and 2,3-dihydro-2,2-dimethyl-3, 7-benzofurandiol in or on the following food commodity:

Commodity	Parts per million
Raisins (of which no more than 1.0 ppm is carbamate)	2.0

[46 FR 58487, Dec. 2, 1981. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.650 Carbon dioxide.

The food additive carbon dioxide may be safely used after harvest in modified atmospheres for stored product insect control on all processed agricultural commodities.

[46 FR 32866, June 25, 1981. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.800 1-(4-Chlorophenoxy)-3,3-dimethyl-1-(1*H*-1,2,4-triazol-1-yl)-2-butanone.

Tolerances are established for the combined residues of the fungicide 1-(4-chlorophenoxy)-3,3-dimethyl-1-(1*H*-1,2,4-triazol-1-yl)-2-butanone and its metabolite beta-(4-chlorophenoxy)-alpha-(1,1-dimethylethyl)-1*H*-1,2,4-triazole-1-ethanol in or on the following food commodities:

Food	Parts per million
Barley, milled fractions (except flour)	4.0
Wheat, milled fractions (except flour)	4.0

[48 FR 5901, Feb. 9, 1983. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.900 1-[(6-Chloro-3-pyridinyl)methyl]-*N*-nitro-2-imidazolidinimine; tolerances for residues.

(a) A food additive regulation is established permitting residues of the insecticide 1-[(6-chloro-3-pyridinyl)methyl]-*N*-nitro-2-imidazolidinimine in or on the follow-

ing food resulting from application of the insecticide to potatoes:

Food	Parts per million
Potato, chip	0.4

(b) A food additive regulation is established premitting residues of the insecticide 1-[(6-chloro-3-pyridinyl)methyl]-*N*-nitro-2-imidazolidinimine in or on the following food commodities:

Food	Part per million
Grape, juice	1.5
Grape, raisin	1.5
Tomato, paste	6.0
Tomato, puree	3.0

[59 FR 61278, Nov. 30, 1994, as amended at 60 FR 18549, Apr. 12, 1995]

§ 185.1000 Chlorpyrifos.

(a) Tolerances are established for the combined residues of the insecticide chlorpyrifos [O,O-diethyl O-(3,5,6-trichloro-2-pyridyl) phosphorothioate] and its metabolite 3,5,6-trichloro-2-pyridinol resulting from application of the insecticide to growing crops as follows:

Foods	Parts per million
Citrus oil	25.0
Corn oil	3.0

(b) The additive chlorpyrifos [O,O-diethyl O-(3,5,6-trichloro-2-pyridyl) phosphorothioate] may be safely used in accordance with the following prescribed conditions.

(1) Application shall be limited solely to spot and/or crack and crevice treatment in food handling establishments where food and food products are held, processed, prepared or served. Contamination of food or food contact surfaces shall be avoided. Food must be removed or covered during treatment.

(2) Spray concentration for spot treatment shall be limited to a maximum of 0.5 percent of the active ingredient by weight. A course, low-pressure

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spray shall be used to avoid atomization or splashing of the spray.

(3) Paint-on application for spot treatment shall be limited to a maximum of 2 percent of the active ingredient by weight.

(4) Crack and crevice treatment shall be limited to a maximum of 2 percent of the active ingredient by weight. Equipment capable of delivering a pin-stream of insecticide shall be used.

(5) Application via adhesive strips shall contain a maximum of 10% by weight of the controlled-release product in food-handling establishments where food and food products are held, processed, prepared, or served. A maximum of 36 strips (or 5.15 grams of chlorpyrifos) is to be used per 100 square feet of floor space. The strips are not to be placed in exposed areas where direct contact with food, utensils, and food-contact surfaces would be likely to occur.

(6) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

(c) A tolerance of 0.1 part per million is established for residues of chlorpyrifos, per se, in or on all food items (other than those already covered by a higher tolerance as a result of use on growing crops) in food service establishments where food and food products are prepared and served, as a result of the application of chlorpyrifos in microencapsulated form.

(1) Application of a microencapsulated product shall be limited solely to spot and/or crack and crevice treatment in food handling establishments where food and food products are prepared and served. All treatments shall be applied in such a manner as to avoid contamination of food or food contact surfaces.

(2) Spray concentrations shall be limited to a maximum of 0.5 percent of the active ingredient by weight.

(3) For crack and crevice treatment, equipment capable of delivering a pin stream of spray directly into cracks and crevices or capable of applying small amounts of insecticide into cracks and crevices shall be used.

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(4) For spot treatment, an individual spot shall not exceed 2 square feet.

(5) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

(d) Tolerances are established for residues of the insecticide chlorpyrifos [*O,O*-diethyl *O*-(3,5,6-trichloro-2-pyridyl) phosphorothioate] resulting from application of the insecticide to growing crops as follows:

Foods	Parts per million
Milling fractions (except flour) of wheat	1.5
Mint oil	8
Peanut oil	0.4

[47 FR 30478, July 14, 1982, as amended at 53 FR 9434, Mar. 23, 1988. Redesignated at 53 FR 24667, June 29, 1988; 57 FR 10293, Mar. 25, 1992; 58 FR 19356, Apr. 14, 1993]

§ 185.1050 Chlorpyrifos-methyl.

Tolerances are established for the combined residues of the insecticide chlorpyrifos-methyl (*O,O*-dimethyl-*O*-(3,5,6-trichloro-2-pyridyl) phosphorothioate and its metabolite (3,5,6-trichloro-2-pyridinol) in or on the following processed feeds when present therein as a result of application to stored grains:

Food	Parts per million
Barley milling fractions (except flour)	90
Oats milling fractions (except flour)	130
Sorghum milling fractions (except flour)	90
Rice milling fractions (except flour)	30
Wheat milling fractions (except flour)	30

[50 FR 26682, June 27, 1985. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1075 Clethodim ((E)-±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one).

Food additive tolerances are established for the combined residues of the herbicide clethodim ((E)-±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one) and its metabolites

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containing the 2-cyclohexen-1-one moiety in or on the following processed foods:

Food	Parts per million
Potato flakes ¹	1.0
Potato granules ¹	1.0

¹There are no U.S. registrations as of August 9, 1995.

[60 FR 40505, Aug. 9, 1995]

§ 185.1100 Clopyralid.

(a) Tolerances are established for residues of the herbicide clopyralid (3,6-dichloro-2-pyridinecarboxylic acid), in or on the following foods:

Food	Parts per million
Barley, milled fractions (except flour)	12.0
Oats, milled fractions (except flour)	12.0
Wheat, milled fractions (except flour)	12.0

(b) Time-limited tolerances are established as follows for residues of the herbicide clopyralid (3,6-dichloro-2-pyridine carboxylic acid), in or on the following foods:

Foods	Parts per million	Expiration date
Field corn, milling fractions	1.5	December 31, 1996.

[52 FR 10563, Apr. 2, 1987. Redesignated at 53 FR 24667, June 29, 1988, and amended at 55 FR 31183, Aug. 1, 1990; 59 FR 19640, Apr. 25, 1994]

§ 185.1150 Combustion product gas.

The food additive combustion product gas may be safely used after harvest in modified atmospheres for stored product insect control on all processed agricultural commodities (except fresh meat) with the following prescribed conditions:

(a) The combustion product gas is produced by the controlled combustion in air of butane, propane, or natural gas. The combustion equipment shall be provided with an absorption type filter capable of removing possible toxic impurities through which all gas used in the treatment of food shall pass and with suitable controls to insure that any combustion products failing to meet the specifications provided will

be prevented from reaching the food being treated.

(b) The insecticide meets the following specifications:

(1) Carbon monoxide content not to exceed 4.5 percent by volume.

(2) It is used or intended for use to displace or remove oxygen in the storage of food, except fresh meat.

[46 FR 32866, June 25, 1981. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1200 Copper.

A tolerance of 1 part per million is established in potable water for residues of copper resulting from the use of the algicides or herbicides basic copper carbonate (malachite), copper sulfate, copper monoethanolamine, and copper triethanolamine to control aquatic plants in reservoirs, lakes, ponds, irrigation ditches, and other potential sources of potable water.

[45 FR 53459, Aug. 12, 1980. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1250 Cyfluthrin.

(a) A time-limited tolerance, to expire on November 15, 1997, is established for residues of the insecticide cyfluthrin (cyano(4-fluoro-3-phenoxyphenyl)methyl-3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropanecarboxylate) in or on the following food commodities:

Commodity	Parts per million	Expiration date
Cottonseed oil	2.0	Nov. 15, 1997.
Tomato, concentrated products.	0.5	Do.

(b) [Reserved]

(c) A tolerance of 0.05 ppm is established for residues of the insecticide cyfluthrin (cyano(4-fluoro-3-phenoxyphenyl)methyl-3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropanecarboxylate; CAS Reg. No. 69359-37-5) in food commodities exposed to the insecticide during treatment of food-handling establishments where food and food products are held, processed, prepared, or served. Treatments may be made by

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general surface, spot, and/or crack and crevice applications.

(1) General surface treatments shall be limited to a maximum of 3.8 grams of active ingredient per 1,000 square feet, applying to walls, floors, and ceilings with a low-pressure system. Cover or remove all food processing and/or handling equipment during application. Do not apply directly to food products. Reapplications may be made at 10-day intervals.

(2) Crack and crevice or spot treatments shall be limited to a maximum of 0.1 percent of the active ingredient by weight, applied with a low-pressure system with a pinpoint or variable-pattern nozzle. Dust formulation shall be limited to a maximum of 0.1 percent of the active ingredient by weight, applied using a hand duster, power duster, or other equipment capable of applying dust insecticide directly into voids and cracks and crevices. Dust applications should be made in a manner to avoid deposits on exposed surfaces or introducing the material into the air. Cover exposed food or remove food from premises. Do not apply directly to food. Reapplications may be made at 10-day intervals.

(3) To ensure safe use of the insecticide, its label and labeling shall conform to that registered by the Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

(d) A tolerance of 20.0 parts per million is established for residues of the insecticide cyfluthrin (cyano(4-fluoro-3-phenoxyphenyl)methyl-3-(2,2-dichloroethenyl)-2,2-dimethyl-cyclopropanecarboxylate) in or on dried hops resulting from application of the insecticide to hops.

[52 FR 29009, Aug. 5, 1987; 52 FR 31846, Aug. 24, 1987, as amended at 53 FR 1917, Jan. 25, 1988; 53 FR 18837, May 25, 1988. Redesignated at 53 FR 24667, June 29, 1988, and amended at 54 FR 27643, June 30, 1989; 54 FR 46069, Nov. 1, 1989; 55 FR 26440, June 28, 1990; 60 FR 28354, May 31, 1995; 60 FR 33362, June 28, 1995]

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§ 185.1300 Cyano(3-phenoxyphenyl)methyl-4-chloro-alpha-(1-methylethyl)benzeneacetate and its S,S isomer.

(a) A food additive tolerance of 0.05 part per million is established for residues of the insecticide cyano(3-phenoxyphenyl)methyl-4-chloro-alpha-(1-methylethyl)benzeneacetate and an isomer, (S)-cyano(3-phenoxyphenyl)methyl-(S)-4-chloro-alpha-(1-methylethyl)-benzeneacetate, as follows:

(1) In or on all food items (other than those already covered by a higher tolerance as a result of use on growing crops) in food-handling establishments where food products are held, processed, or prepared.

(2) Application of cyano(3-phenoxyphenyl)methyl-4-chloro-alpha-(1-methylethyl)benzeneacetate shall be limited to space treatment with a maximum of 0.5 fluid ounce of a 0.05-percent active ingredient solution per 1,000 cubic feet of space, or as a contact spray applied as a coarse wet spray at a maximum of 1 gallon of a 0.2-percent active ingredient solution per 1,000 square feet of surface. Food must be removed or covered during treatment. Spray should not be applied directly to surfaces or utensils that may come into contact with food. Food-contact surfaces and equipment should be thoroughly cleaned with an effective cleaning compound and rinsed with potable water before using.

(3) Application of (S)-cyano(3-phenoxyphenyl)methyl-(S)-4-chloro-alpha-(1-methylethyl)benzeneacetate shall be limited to space treatment with a maximum of 1.0 fluid ounce of a 0.25-percent active ingredient solution per 1,000 cubic feet of space, or as a contact spray applied as a coarse wet spray at a maximum of 1 gallon of a 0.05-percent active ingredient solution per 1,000 square feet of surface, or as a pressurized spot/crack and crevice spray of a 0.25-percent solution. Food must be removed or covered during treatment. Spray should not be applied

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directly to surfaces or utensils that may come into contact with food. Food-contact surfaces and equipment should be thoroughly cleaned with an effective cleaning compound and rinsed with potable water before using.

(4) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

(b) [Reserved]

[55 FR 26442, June 28, 1990]

§ 185.1350 Cyhexatin.

Tolerances are established for combined residues of the insecticide cyhexatin (tricyclohexylhydroxystannane; CAS Reg. No. 13121-70-5) and its organotin metabolites (calculated as cyhexatin) in or on the following processed foods when present therein as a result of application of this insecticide to the growing crops:

Food	Parts per million
Hops, dried	90
Prunes, dried	4

[53 FR 23389, June 22, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1450 2,4-D.

(a) Tolerances are established for residues of the herbicide 2,4-D (2,4-dichlorophenoxyacetic acid) as follows:

(1) 5 ppm in sugarcane molasses, resulting from application of the herbicide to sugarcane fields.

(2) 2 ppm in the milled fractions (except flour) derived from barley, oats, rye, and wheat to be ingested as food or to be converted to food. Such residues may be present therein only as a result of application to the growing crop of the herbicides identified in 40 CFR 180.142.

(3) 0.1 ppm (negligible residue) in potable water. Such residues may be present therein only:

(i) As a result of the application of the dimethylamine salt of 2,4-D to irrigation ditch banks in the Western United States in programs of the Bureau of Reclamation; cooperating water user organizations; the Bureau of Sport Fisheries, U.S. Department of

the Interior; Agricultural Research Service, U.S. Department of Agriculture; and the Corps of Engineers, U.S. Department of Defense.

(ii) As a result of the application of the dimethylamine salt of 2,4-D for water hyacinth control in ponds, lakes, reservoirs, marshes, bayous, drainage ditches, canals, rivers and streams that are quiescent or slow moving in programs of the Corps of Engineers or other Federal, State, or local public agencies.

(iii) As a result of application of its dimethylamine salt or is butoxyethanol ester for Eurasian watermilfoil control in programs conducted by the Tennessee Valley Authority in dams and reservoirs of the TVA system.

(b) [Reserved]

[53 FR 9434, Mar. 23, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1500 Dalapon.

A tolerance of 0.2 part per million is established for residues of the herbicide dalapon (2,2-dichloropropionic acid) in potable water when present therein as a result of the application of dalapon sodium-magnesium salt mixtures to irrigation ditch banks in the western United States.

[43 FR 22345, May 25, 1978. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1580 Deltamethrin.

Tolerances are established for residues of the insecticide deltamethrin [(S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] and its major metabolites, *trans*-deltamethrin [(S)-*alpha*-cyano-*m*-phenoxybenzyl(1R,3S)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] and *alpha*-R-deltamethrin [(R)-*alpha*-cyano-*m*-phenoxybenzyl-(1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] in or on the following food commodities:

Commodity	Parts per million	Expiration date
Cottonseed oil	0.2	Nov. 15, 1997

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Commodity	Parts per million	Expiration date
Tomato (products) concentrated	1.0	None

[60 FR 42455, Aug. 16, 1995]

§ 185.1650 Dialifor.

A tolerance of 2 parts per million is established for combined residues of the insecticide dialifor (S-(2-chloro-1-phthalimidoethyl) O,O-diethyl phosphorodithioate) and its oxygen analog S-(2-chloro-1-phthalimidoethyl O,O-diethyl phosphorothioate) in or on raisins from application of the insecticide to the growing raw agricultural commodity grapes.

§ 185.1700 Diatomaceous earth.

The food additive diatomaceous earth may be safely used in accordance with the following conditions. Application shall be limited solely to spot and/or crack and crevice treatments in food processing and food storage areas in accordance with the prescribed conditions:

(a) It is used or intended for use for control of insects in food processing and food storage areas: *Provided*, That the food is removed or covered prior to such use.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[46 FR 55511, Nov. 10, 1981. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1750 Diazinon.

A regulation is established permitting the use of the insecticide diazinon (O,O-diethyl O-[6-methyl-2-(1-methylethyl)-4-pyrimidinyl] phosphorothioate; CAS Reg. No. 333-41-5) in food-handling establishments in accordance with the following prescribed conditions:

(a) Application shall be limited solely to spot and/or crack and crevice treatment in food handling establishments, including food service, manufacturing, and processing establishments, such as restaurants, cafeterias, supermarkets, bakeries, breweries,

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dairies, meat slaughtering and packing plants, and canneries where food and food products are held, processed, and served.

(1) Spray and dust concentrations shall be limited to a maximum of 1 percent and 2 percent, respectively, of active ingredient by weight. The spray concentration limit of 1 percent shall include, but not be limited to, encapsulated formulations of the additive utilizing the encapsulating polymer formed from the reaction of sebacoyl chloride, polymethylene polyphenylisocyanate, ethylenediamine and/or diethylenetriamine.

(2) Application to areas, surfaces, or utensils contacted by food, contamination of food and food contact surfaces, and the introduction of spray or dust into the air is to be avoided.

(3) For spot treatment, a coarse, low pressure spray shall be used. Application is limited to floor surfaces only and to 20 percent of the surface area. Any individual spot treatment shall not exceed 2 square feet.

(4) For crack and crevice treatment, equipment capable of delivering dust or a pin stream of spray directly into the cracks and crevices shall be used.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[45 FR 12700, Feb. 18, 1981, as amended at 47 FR 25952, June 16, 1982; 52 FR 32293, Aug. 27, 1987; 53 FR 23389, June 22, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1800 Dicamba.

Tolerances are established for the combined residues of the herbicide dicamba (3,6-dichloro-o-anisic acid) and its metabolite 3,6-dichloro-5-hydroxy-o-anisic acid in or on the following processed foods when present therein as a result of application of this herbicide to growing crops.

Food	Parts per million
Sugarcane molasses	2.0

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[48 FR 11114, Mar. 16, 1983. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1850 3-(3,5-Dichlorophenyl)-5-ethenyl-5-methyl-2,4-oxazolidinedione.

(a) Tolerances are established for the combined residues of the fungicide 3-(3,5-dichlorophenyl)-5-ethenyl-5-methyl-2,4-oxazolidinedione and its metabolites containing the 3,5-dichloroaniline moiety in or on the following food commodities:

Food	Parts per million
Prunes	75

(b) A food additive regulation is established for the combined residues of the fungicide, 3-(3,5-dichlorophenyl)-5-ethenyl-5-methyl-2,4-oxazolidinedione, and its metabolites containing the 3,5-dichloroaniline moiety in or on the following processed foods when present therein as a result of application to grapes:

Food	Parts per million
Raisins	30

[51 FR 11437, Apr. 3, 1986, as amended at 52 FR 17941, May 13, 1987; 53 FR 20308, June 3, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.1900 2,2-Dichlorovinyl dimethyl phosphate.

The food additive 2,2-dichlorovinyl dimethyl phosphate may be present as a residue from application as an insecticide on packaged or bagged nonperishable processed food (see: 21 CFR 170.3(j)) in an amount in such food not in excess of 0.5 part per million (ppm). To assure safe use of the insecticide, its label and labeling shall conform to the label and labeling registered by the U.S. Environmental Protection Agency, and the usage employed shall conform with such label or labeling.

[56 FR 29183, June 26, 1991]

EFFECTIVE DATE NOTE: At 58 FR 59667, Nov. 10, 1993, § 185.1900 was revised. At 59 FR 11556, Mar. 11, 1994, the revision was stayed until further notice. For the convenience of the reader, the revised text is set forth below.

§ 185.1900 2,2-Dichlorovinyl dimethyl phosphate.

A tolerance that expires on March 10, 1994, is established as follows: The food additive 2,2-dichlorovinyl dimethyl phosphate may be present as a residue from application as an insecticide on packaged or bagged nonperishable processed food (see: 21 CFR 170.3(j)) in an amount in such food not in excess of 0.5 part per million (ppm). To assure safe use of the insecticide, its label and labeling shall conform to the label and labeling registered by the U.S. Environmental Protection Agency, and the usage employed shall conform to such label and labeling.

[58 FR 59667, Nov. 10, 1993]

§ 185.1975 Dihydro-5-heptyl-2(3H)-furanone.

The food additive dihydro-5-heptyl-2(3H)-furanone may be safely used in accordance with the following conditions:

(a) It is used in combination with the active ingredients d-limonene and dihydro-5-pentyl-2(3H)-furanone in insect-repellent tablecloths and in insect-repellent strips used in food-handling establishments.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[60 FR 16053, Mar. 29, 1995]

§ 185.1985 Dihydro-5-pentyl-2(3H)-furanone.

The food additive dihydro-5-pentyl-2(3H)-furanone may be safely used in accordance with the following conditions:

(a) It is used in combination with the active ingredients d-limonene and dihydro-5-heptyl-2(3H)-furanone in insect-repellent tablecloths and in insect-repellent strips used in food-handling establishments.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[60 FR 16053, Mar. 29, 1995]

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§ 185.2150 2,2-Dimethyl-1,3-benzodioxol-4-ol methylcarbamate.

(a) The insecticide 2,2-dimethyl-1,3-benzodioxol-4-ol methylcarbamate may be safely used in spot and/or crack and crevice treatments in food handling establishments, including food service, manufacturing and processing establishments, such as restaurants, cafeterias, supermarkets, bakeries, breweries, dairies, meat slaughtering and packing plants, and canneries.

(b) To ensure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency and it shall be used in accordance with such label and labeling.

(Sec. 409(c)(1) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 348(c)(1) transferred to the Administrator EPA in Reorganization Plan No. 3 (35 FR 15623))

[40 FR 45163, Oct. 1, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 53 FR 8874, Mar. 18, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.2200 O,O-Dimethyl O-(4-nitro-m-tolyl) phosphorothioate.

(a) A tolerance of 30 parts per million, of which no more than 15 parts per million is *O,O*-dimethyl *O*-(4-nitro-*m*-tolyl) phosphorothioate or *O,O*-dimethyl *O*-(4-nitro-*m*-tolyl) phosphate, is established for combined residues of the insecticide *O,O*-dimethyl *O*-(4-nitro-*m*-tolyl) phosphorothioate and its metabolites *O,O*-dimethyl *O*-(4-nitro-*m*-tolyl) phosphate and 3-methyl-4-nitrophenol in wheat gluten resulting from postharvest application of the insecticide to stored wheat in Australia.

(b) [Reserved]

[44 FR 40282, July 10, 1979, as amended at 53 FR 8874, Mar. 18, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.2225 O,O-Dimethyl S-[4-oxo-1,2,3-benzotriazin-3(4H)-ylmethyl] phosphorodithioate.

A tolerance of 1 part per million is established for residues of the insecticide *O,O*-dimethyl S-[4-oxo-1,2,3-benzotriazin-3(4H)-ylmethyl] phosphorodithioate in soybean oil resulting from application of the insecticide to the raw agricultural commodity soybeans.

§ 185.2250 Dimethyl phosphate of 3-hydroxy-*N*-methyl-cis-crotonamide.

A tolerance of 2 parts per million is established for residues of the insecticide dimethyl phosphate of 3-hydroxy-*N*-methyl-cis-crotonamide in concentrated tomato products when present therein as a result of application of the insecticide to growing tomatoes.

(Sec. 409(c) (1) & (4), Federal Food, Drug, and Cosmetic Act (21 U.S.C. 348(c) (1) & (4)), transferred to the Administrator EPA in Reorganization Plan No. 3 of 1970 (35 FR 15623))

[40 FR 18168, Apr. 25, 1975. Redesignated at 41 FR 26568, June 28, 1976. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.2500 Diquat.

(a) A tolerance of 0.01 ppm is established for residues of the herbicide diquat (6,7-dihydrodipyrido (1,2-*a*:2',1'-*c*) pyrazidiinium) derived from application of the dibromide salt in potable water resulting from the application of the pesticide for control of aquatic weeds in ponds, lakes, reservoirs, marshes, bayous, drainage ditches, canals, streams, and rivers which are slow-moving or quiescent in programs of the Corps of Engineers or other Federal or State public agencies. These agencies or contractors or licensees under their direct control will make certain that the treated water will not be used for animal consumption, swimming, spraying, domestic purposes, or for irrigation for 14 days post-treatment or until approved analysis shows that the water does not contain more than 0.01 ppm of diquat (calculated as the cation) and that no treatment will be made where commercial processing of fish resulting in the production of fish protein concentrate or fish meal is practiced.

(b) A tolerance of 0.01 ppm is established for residues of the herbicide diquat (6,7-dihydrodipyrido (1,2-*a*:2',1'-*c*) pyrazinediium) (calculated as the cation) derived from application of the dibromide salt in potable water resulting from the application of the pesticide in ponds, lakes, and drainage ditches where there is little or no outflow of water and which are totally under control of the user. The applicator will make certain that treated

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water will not be used for animal consumption, swimming, spraying, irrigation, or domestic purposes for 14 days post-treatment. For the purposes of this paragraph only (§ 185.2500(b)) these applications of diquat are not to be used in aquatic sites in Florida.

(c) A food additive regulation of 0.5 part per million is established for residues of diquat in processed potatoes (includes potato chips).

[46 FR 30339, June 8, 1981, and 47 FR 8007, Feb. 24, 1982. Redesignated and amended at 53 FR 24666, 24668, June 29, 1988; 55 FR 26440, June 28, 1990]

§ 185.2600 Endosulfan.

A tolerance of 24 parts per million is established for combined residues of the insecticide endosulfan (6,7,8,9,10,10-hexachloro-1,5,5a,6,9,9a-hexahydro-6,9-methano-2,4,3-benzodioxathiepin-3-oxide) and its metabolite endosulfan sulfate (6,7,8,9,10,10-hexachloro-1,5,5a,6,9,9a-hexahydro-6,9-methano-2,4,3-benzodioxathiepin-3,3-dioxide) in or on dried tea (reflecting less than 0.1 part per million residues in beverage tea) resulting from application of the insecticide to growing tea.

§ 185.2650 Endothall.

An interim tolerance of 0.2 part per million is established for residues of the herbicide endothall (7-oxabicyclo[2.2.1] heptane-2,3-dicarboxylic acid) in potable water from use of its potassium, sodium, di-*N,N*-dimethylalkylamine, and mono-*N,N*-dimethylalkylamine salts as algicides or herbicides to control aquatic plants in canals, lakes, ponds, and other potential sources of potable water.

§ 185.2700 Ethephon.

A food additive regulation is established permitting residues of the plant growth regulator ethephon [(2-chloroethyl) phosphonic acid] in or on the following food commodities:

Food	Parts per million
Barley, milling fractions, except flour	5.0
Sugarcane, molasses	1.5
Wheat, milling fractions, except flour	5.0

[47 FR 20763, June 23, 1982, as amended at 50 FR 14097, Apr. 10, 1985; 51 FR 31325, Sept. 3, 1986; 53 FR 5367, Feb. 24, 1988. Redesignated at 53 FR 24667, June 29, 1988; 60 FR 32097, June 19, 1995]

§ 185.2750 Ethion.

Tolerances for residues of the insecticide ethion (*O,O,O',O'*-tetraethyl *S,S'*-methylene bisphosphorodithioate), including its oxygen analog (*S*-[[diethoxyphosphinothioyl) thio]methyl]*O*, *O*-diethyl phosphorothioate), when present as a result of its application to growing agricultural commodities are established as follows:

10 parts per million in dried tea.

4 parts per million in raisins.

§ 185.2800 2-[1-(Ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexene-1-one.

A food additive regulation is established to permit the combined residues of the herbicide 2-[1-(ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexene-1-one and its metabolites on the food commodity tomato products, concentrated, at 24.0 parts per million and the food commodities potato flakes and potato granules, at 8.0 parts per million, and the commodity raisins at 1.0 part per million.

[53 FR 234, Jan. 6, 1988, as amended at 53 FR 23388, June 22, 1988. Redesignated at 53 FR 24667, June 29, 1988; 54 FR 53068, Dec. 27, 1989]

§ 185.2850 Ethylene oxide.

Ethylene oxide may be safely used as a fumigant for the control of microorganisms and insect infestation in ground spices and other processed natural seasoning materials, except mixtures to which salt has been added, in accordance with the following prescribed conditions:

(a) Ethylene oxide, either alone or admixed with carbon dioxide or dichlorodifluoromethane, shall be used in amounts not to exceed that required to accomplish the intended technical effects. If used with dichlorodifluoromethane, the dichlorodifluoromethane shall conform with the requirements prescribed by 21 CFR 173.355 of this chapter.

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(b) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency and it shall be used in accordance with such label or labeling.

(c) Residues of ethylene oxide in ground spices from both postharvest application to the raw agricultural commodity whole spices and application to the ground spices shall not exceed the established tolerance of 50 parts per million for residues in whole spices in 40 CFR 180.151.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 50 FR 2958, Jan. 23, 1985. Redesignated and amended at 53 FR 24666, 24668, June 29, 1988]

EFFECTIVE DATE NOTE: At 61 FR 12009, Mar. 22, 1996, § 185.2850 was removed, effective May 21, 1996. At 61 FR 25154, May 20, 1996, the removal was stayed indefinitely.

§ 185.2900 Ethyl formate.

The food additive ethyl formate may be safely used in or on specified dried fruits in accordance with the following prescribed conditions:

(a) It is used or intended for use in or on raisins and dried Zante currants as a bulk and package fumigant.

(b) It is used in accordance with directions registered with the U.S. Environmental Protection Agency, and so used that the total formic acid present free and combined, in the finished product shall not exceed 250 parts per million.

(c) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency.

§ 185.2950 Ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl)-phosphoramidate.

Tolerances are established for the combined residues of the nematocide ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl)-phosphoramidate and its cholinesterase-inhibiting metabolites ethyl 3-methyl-4-(methylsulfinyl)phenyl (1-methylethyl)-phosphoramidate and ethyl 3-methyl-4-(methylsulfonyl)-phenyl (1-methylethyl) phosphoramidate in or on the following food commodities:

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Food	Parts per million
Citrus oil	25.0
Raisins	0.3

[48 FR 29839, June 29, 1983. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.3000 O-Ethyl O-[4-(methylthio)phenyl] S-propyl phosphorodithioate.

A tolerance of 1 part per million is established for residues of the insecticide O-ethyl O-[4-(methylthio)-phenyl] S-propyl phosphorodithioate and its cholinesterase-inhibiting metabolites in cottonseed oil resulting from application of the pesticide to growing cotton.

[43 FR 32130, July 25, 1978. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.3200 Fenarimol.

Tolerances are established for combined residues of the fungicide fenarimol [alpha-(2-chlorophenyl)-alpha-(4-chlorophenyl)-5-pyrimidine-methanol] and its metabolites, alpha-(2-chlorophenyl)-alpha-(4-chlorophenyl)-1,4-dihydro-5-pyrimidine-methanol and 5-[(2-chlorophenyl) (4-chlorophenyl)methyl]-3,4-dihydro-4-pyrimidinol measured as the total of fenarimol and 5-[(2-chlorophenyl)-(4-chlorophenyl) methyl]pyrimidine (calculated as fenarimol) in or on the following food additive commodities:

Commodity	Parts per million
Grape juice	0.6
Raisins	0.6

[53 FR 44403, Nov. 3, 1988]

§ 185.3225 Fenpropathrin.

A food additive tolerance is established for residues of the pesticide chemical fenpropathrin (*alpha*-cyano-3-phenoxybenzyl 2,2,3,3-tetramethylcyclopropanecarboxylate) as follows:

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Commodity	Parts per million	Expiration date
Cottonseed oil	3.0	Nov. 15, 1997

[58 FR 19358, Apr. 14, 1993, as amended at 60 FR 9785, Feb. 22, 1995]

§ 185.3250 Fluazifop-butyl.

Tolerances are established for residues of (±)-2-[4-[[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy]propanoic acid (fluazifop), both free and conjugated, and of (±)-butyl 2[4-[[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy]propanoate (fluazifop-butyl), all expressed as fluazifop, in or on the following foods:

Food	Parts per million
Cottonseed, oil	0.2
Soybean, oil	2.0

[48 FR 19023, Apr. 27, 1983. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.3385 Flutolanil (N-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide).

(a) A food additive regulation is established permitting the combined residues of the insecticide flutolanil, N-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide, and its metabolites converted to 2-(trifluoromethyl) benzoic acid and calculated as flutolanil in or on the following processed food commodity:

Commodity	Parts per million
Peanut meal	1.0

(b) A time-limited food additive regulation is established permitting the combined residues of the fungicide flutolanil N-(3-(1-methylethoxy)phenyl)-2-(trifluoromethyl)benzamide and its metabolites converted to 2-(trifluoromethyl) benzoic acid and calculated as flutolanil in or on the following raw processed food commodity:

Commodities	Parts per million	Expiration date
Rice, hull	7.0	April 30, 1998.
Rice, bran	3.0	Do.

[60 FR 42458, Aug. 16, 1995, as amended at 61 FR 33044, June 26, 1996]

§ 185.3450 Formetanate hydrochloride.

A tolerance of 8 parts per million is established for residues of the insecticide formetanate hydrochloride (*m*-[(dimethylamino) methylene amino] phenyl methyl-carbamate hydrochloride) in dried prunes when present therein as a result of the application of the insecticide to growing plums (fresh prunes).

§ 185.3475 Fumigants for grain-mill machinery.

Fumigants may be safely used in or on grain-mill machinery in accordance with the following prescribed conditions:

(a) The fumigants consist of methyl bromide.

(b) To assure safe use of the fumigant, its label and labeling shall conform to the label and labeling registered by the U.S. Environmental Protection Agency.

(c) Residues of inorganic bromides (calculated as Br) in milled fractions derived from cereal grain from all fumigation sources, including fumigation of grain-mill machinery, shall not exceed 125 parts per million.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 49 FR 44459, Nov. 7, 1984. Redesignated at 53 FR 24667, June 29, 1988, and amended at 54 FR 6130, Feb. 8, 1989]

§ 185.3480 Fumigants for processed grains used in production of fermented malt beverages.

Fumigants for processed grain may be safely used, in accordance with the following conditions.

(a) Methyl bromide. Total residues of inorganic bromides (calculated as Br) from the use of this fumigant shall not exceed 125 parts per million.

(b) Methyl bromide is used to fumigate corn grits and cracked rice in the

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production of fermented malt beverages.

(c) To assure safe use of the fumigant, its label and labeling shall conform to the label and labeling registered by the U.S. Environmental Protection Agency, and the usage employed should conform with such label or labeling.

(d) The total residue of inorganic bromides in fermented malt beverages, resulting from the use of corn grits and cracked rice fumigated with the fumigant described in paragraph (a)(2) of this section plus additional residues of inorganic bromides that may be present from uses in accordance with other regulations in this chapter promulgated under section 408 and/or 409 of the Act, does not exceed 25 parts per million bromide (calculated as Br).

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 49 FR 44459, Nov. 7, 1984. Redesignated at 53 FR 24667, June 29, 1988, and amended at 54 FR 6130, Feb. 8, 1989]

§ 185.3500 Glyphosate.

(a) Tolerances are established for the combined residues of the herbicide glyphosate and the metabolites as indicated when present therein as a result of the herbicide application to the growing crops.

(1) Glyphosate [*N*-(phosphono-methyl)glycine] and its metabolite aminomethylphosphonic acid resulting from the application of the isopropylamine salt of glyphosate for herbicidal purposes and/or the sodium sesqui salt for plant growth regulator purposes.

Food	Parts per million
Molasses, sugarcane	30.0

(2) Glyphosate [*N*-(phosphono-methyl)glycine] and its metabolite aminomethylphosphonic acid resulting from the application of the isopropylamine

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salt of glyphosate for herbicidal purposes.

Food	Parts per million
Oil, palm	0.1
Olives, imported	0.1
Tea, dried	1.0
Tea, instant	7.0

(3) Glyphosate (*N*-(phosphonomethyl)glycine) resulting from the application of the isopropylamine salt of glyphosate and/or the monoammonium salt of glyphosate for herbicidal purposes.

Food	Parts per million
Wheat milling fractions (excluding flour)	20.0

(b) [Reserved]

[48 FR 56577, Dec. 22, 1983, as amended at 53 FR 9434, Mar. 23, 1988. Redesignated at 53 FR 24667, June 29, 1988, and amended at 57 FR 42701, Sept. 16, 1992; 58 FR 36359, July 7, 1993]

§ 185.3550 Hexakis.

A regulation is established permitting the combined residues of the insecticide hexakis (2-methyl-2-phenylpropyl) distannoxane and its organotin metabolites calculated as hexakis (2-methyl-2-phenylpropyl) distannoxane in or on the following food items:

[47 FR 21532, May 19, 1982, as amended at 48 FR 37204, Aug. 17, 1983; 48 FR 39058, Aug. 29, 1983. Redesignated at 53 FR 24667, June 29, 1988; 59 FR 5109, Feb. 3, 1994]

§ 185.3575 Hexazinone.

A food additive tolerance with regional registration, as defined in § 180.1(n) and which excludes use of hexazinone on sugarcane in Florida, is established for combined residues of the herbicide hexazinone (3-cyclohexyl-6-(dimethylamino)-1-methyl-1,3,5-triazine-2,4(1*H*,3*H*)-dione) and its metabolites (calculated as hexazinone) in or on the following food commodity:

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Commodity	Parts per million
Sugarcane, molasses	5.0

[60 FR 42462, Aug. 16, 1995]

§ 185.3600 Hydrogen cyanide.

The food additive hydrogen cyanide may be present as a residue in certain processed foods in accordance with the following prescribed conditions:

(a) The food additive is present as a result of its use as a fumigant.

(b) The residues of hydrogen cyanide shall not exceed the following levels:

(1) 125 parts per million in cereal flours.

(2) 90 parts per million in cereals that are cooked before being eaten.

(3) 50 parts per million in uncooked ham, bacon, and sausage.

(4) 200 parts per million in cocoa.

(c) Where tolerances are established under both sections 408 and 409 of the Act on the raw agricultural commodity and on the processed food, respectively, the total residues of hydrogen cyanide in or on the processed food shall not be bonter than that designated in paraboph (b) of this section.

(d) To assure safe use of the additive, the label and labeling of the pesticide formulation containing the food additive shall conform to the label and labeling registered by the U.S. Environmental Protection Agency.

§ 185.3625 Hydroprene; tolerances for residues.

A tolerance of 0.2 part per million is established for combined residues of both racemic components of hydroprene, namely [(R)-(Ethyl (2E,4E,-)-3,7,11-trimethyl-2,4-dodecadienoate)] and [(S)-(Ethyl (2E,4E,-)-3,7,11-trimethyl-2,4-dodecadienoate)] on all food items in food-handling establishments in accordance with the following prescribed conditions:

(a) Application shall be limited solely to spot or crack and crevice treatment in food-handling establishments, including food service, manufacturing, and processing establishments such as restaurants, cafeterias, supermarkets, bakeries, breweries, dairies, meat slaughtering and packing plants, and

canneries where food and food products are held, processed, and served: *Provided*, That the food is removed or covered prior to such use, and food-processing surfaces are covered during treatment or thoroughly cleaned before using.

(b) To assure safe use of the insect growth regulator, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[57 FR 36006, Aug. 12, 1992]

§ 185.3650 Imazalil.

Tolerances are established for the combined residues of the fungicide imazalil 1-[2-(2,4-dichlorophenyl)-2-(2-propenyloxy)ethyl]-1H-imidazole and its metabolite 1-(2,4-dichlorophenyl)-2-(1H-imidazole-1-yl)-1-ethanol in or on the following food commodity:

Food	Parts per million
Citrus oil	25.0

[48 FR 28433, June 22, 1983. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.3700 Inorganic bromide.

The food additive inorganic bromide may be present as a residue in certain processed foods in accordance with the following conditions:

(a) When the food additive is present as a result of fumigation of the processed food with methyl bromide or from such fumigation in addition to the authorized use of methyl bromide on the source raw aboicultural commodity, as provided for in 40 CFR part 180, the total residues of inorganic bromides (calculated as Br) shall not exceed the following levels:

400 parts per million in or on dried eggs and processed herbs and spices.
325 parts per million in or on parmesan cheese and roquefort cheese.
250 parts per million in or on concentrated tomato products and dried figs.
125 parts per million in or on processed foods other than those listed above.

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(b) [Reserved]

(c) When the food additive is present in fermented malt beverages in accordance with §§185.3480 and/or 21 CFR 172.730(a)(2) of this chapter, the amount shall not exceed 25 parts per million (calculated as Br).

(d)—(v) [Reserved]

(w) Where tolerances are established under sections 408 and 409 of the FFDCA on both the raw agricultural commodities and processed foods made therefrom, the total residues of inorganic bromides in or on the processed food shall not be greater than those designated in paragraphs (a) of this section, unless a higher level is established elsewhere in this part or in part 180.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 49 FR 17149, Apr. 23, 1984; 50 FR 2958, Jan. 23, 1985; 50 FR 3755, Jan. 28, 1985. Redesignated and amended at 53 FR 24666, 24668, June 29, 1988; 53 FR 52709, Dec. 29, 1988]

§ 185.3750 Iprodione.

Tolerances are established for the combined residues of the fungicide iprodione [3-(3,5-dichlorophenyl)-N-(1-methylethyl)-2,4-dioxo-1-imidazolidinecarboxamide], its isomer [3-(1-methyl-ethyl)-N-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide], and its metabolite [3-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide in or on the following food commodity:

Food	Parts per million
Ginseng, dried	4.0
Raisins	300

[50 FR 4208, Jan. 30, 1985, as amended at 52 FR 10562, Apr. 2, 1987. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.3765 Lambda-cyhalothrin.

(a) A food additive tolerance of 0.01 part per million is established for residues of the insecticide [1 α (S*),3 α (Z)]-($\pm$)-cyano(3-phenoxyphenyl)methyl 3-(2-chloro-3,3,3-trifluoro-1-propenyl)-2,2-dimethylcyclopropanecarboxylate (lambdacyhalothrin) as follows:

(1) In or on all food items (other than those already covered by a higher tolerance as a result of use on growing

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crops) in food-handling establishments where food products are held, processed, or prepared.

(2) Application shall be limited solely to spot and/or crack and crevice treatment with a spray solution maximum of a 0.06-percent active ingredient by weight. Food must be removed or covered during treatment. Spray should not be applied directly to surfaces or utensils that may come into contact with food. Food-contact surfaces and equipment should be thoroughly cleaned with an effective cleaning compound and rinsed with potable water before using.

(3) For spot treatment, a coarse low-pressure spray shall be used. Limit individual spot treatments to an area no larger than 20 percent of the surface area. Any individual spot treatment shall not exceed 2 square feet.

(4) For crack and crevice treatment, equipment capable of delivering a pin-stream of spray directly into the cracks and crevices shall be used.

(5) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

(b) A food additive tolerance is established for residues of the insecticide [1 α (S*),3 α (Z)]-($\pm$)-cyano-(3-phenoxyphenyl)methyl 3-(2-chloro-3,3,3-trifluoro-1-propenyl)-2,2-dimethylcyclopropanecarboxylate as follows:

Commodity	Parts per million
Hops, dried	10.0

(c) A tolerance, to expire on November 15, 1997, is established for the combined residues of the insecticide lambda-cyhalothrin and its epimer expressed as lambda-cyhalothrin, a 1:1 mixture of (S)- α -cyano-3-phenoxybenzyl-(Z)-(1R,3R)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and (R)- α -cyano-3-phenoxybenzyl-(Z)-(1S,3S)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and its epimer of lambda-cyhalothrin, a 1:1 mixture of (S)- α -cyano-3-

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phenoxybenzyl-(Z)-(1S,3S)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and (R)- α -cyano-3-phenoxybenzyl-(Z)-(1R,3R)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate in or on the following food commodities:

Food	Parts per million
Corn, grain flour	0.15
Sunflower, oil	0.30
Wheat, bran	0.2

[56 FR 6988, Feb. 21, 1991, as amended at 57 FR 32441, July 22, 1992. Redesignated and amended at 60 FR 34878, July 5, 1995]

§ 185.3775 d-Limonene.

The food additive d-limonene may be safely used in accordance with the following conditions:

(a) It is used with the active ingredients dihydro-5-pentyl-2(3H)-furanone and dihydro-5-heptyl-2(3H)-furanone in insect-repellent tablecloths and in insect-repellent strips used in food-handling establishments.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[60 FR 16053, Mar. 29, 1995]

§ 185.3800 Magnesium phosphide.

The food additive magnesium phosphide may be safely used in accordance with the following prescribed conditions:

(a) It is used to generate phosphine in the fumigation of processed foods.

(b) To assure safe use of the additive, it is used in compliance with the label and labeling conforming to that registered with the U.S. Environmental Protection Agency. The labeling shall bear a warning to aerate the finished food for 48 hours before it is offered to the consumer. A further warning shall state that under no condition should the formulation containing magnesium phosphide be used so that it or its unreacted residues will come in contact with any processed food.

(c) Residues of phosphine in or on processed foods do not exceed 0.01 part per million.

[43 FR 56040, Nov. 30, 1978. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.3850 Malathion.

Malathion may be safely used in accordance with the following conditions:

(a)(1) It is incorporated into paper trays in amounts not exceeding 100 milligrams per square foot.

(2) Treated paper trays are intended for use only in the drying of grapes (raisins).

(3) Total residues of malathion resulting from drying of grapes on treated trays and from application to grapes before harvest shall not exceed 12 parts per million on processed ready-to-eat raisins.

(b) Residues of malathion in refined safflower oil from application to the growing safflower plant shall not exceed 0.6 part per million.

§ 185.3900 Maleic hydrazide.

A food additive known as maleic hydrazide (1,2-dihydro-3,6-pyridazin-2-one) may be present in potato chips when used in accordance with the following conditions:

(a) The food additive is present as a result of the application of a pesticide formulation containing maleic hydrazide to the growing potato plant in accordance with directions registered by the U.S. Environmental Protection Agency.

(b) The label of the pesticide formulation containing the food additive conforms to labeling registered by the U.S. Environmental Protection Agency.

(c) The food additive is present in an amount not to exceed 160 parts per million by weight of the finished food.

§ 185.4000 Metalaxyl.

(a) A regulation is established permitting the combined residues of the fungicide metalaxyl [*N*-(2,6-dimethylphenyl)-*N*-(methoxyacetyl) alanine methyl ester] and its metabolites containing the 2,6-dimethylaniline moiety, and *N*-(2-hydroxy methyl-6-methyl)-*N*-(methoxyacetyl)-alanine methylester,

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each expressed as metalaxyl, in or on the following food commodities:

Food	Parts per million
Apricots (dried)	4.0
Citrus, oil	7.0
Potatoes, processed (including potato chips)	4.0
Prunes (dried)	4.0
Raisins	6.0
Tomatoes, processed	3.0

(b) *Indirect or inadvertent tolerances.* Tolerances are established for indirect or inadvertent residues of metalaxyl in the food commodities when present therein as a result of the application of metalaxyl to growing crops listed in 40 CFR 180.408(a) and other non-food crops as listed below:

Food	Parts per million
Barley, milling fractions	1.0
Oat milling fractions	1.0
Wheat, milling fractions	1.0

(c) [Reserved]

(d) A food additive regulation is established for residues of the fungicide metalaxyl, [N-(2,6-dimethylphenyl)-N-(methoxyacetyl)alanine methyl ester], and its metabolites containing the 2,6-dimethylaniline moiety, and N-(2-hydroxymethyl-6-methylphenyl)-N-(methoxyacetyl) alanine methyl ester, each expressed as metalaxyl, in or on the following processed foods when present therein as a result of application to growing hops:

Food	Parts per million
Hops, dried	20

[48 FR 3587, Jan. 26, 1983, as amended at 50 FR 49688, Dec. 4, 1985; 52 FR 41418, Oct. 28, 1987; 52 FR 42760, Nov. 6, 1987; 53 FR 8874, Mar. 18, 1988. Redesignated at 53 FR 24667, June 29, 1988, and amended at 54 FR 12445, Mar. 27, 1989; 55 FR 14833, Apr. 19, 1990; 55 FR 26440, June 28, 1990; 56 FR 2442, Jan. 23, 1991; 56 FR 65003, Dec. 13, 1991; 58 FR 30123, May 26, 1993]

§ 185.4025 Metaldehyde.

The food additive metaldehyde may be safely used as a preharvest spray or dust on strawberries to control slugs and snails, in accordance with the following prescribed conditions:

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(a) The food additive is applied as a preharvest spray or dust on growing strawberries at a rate of not more than 1 pound per acre, calculated as metaldehyde, and applied not later than 14 days before first picking.

(b) A tolerance of zero is established for residues of metaldehyde on strawberries.

(c) To insure safe usage of the additive:

(1) The label of any market package of the additive shall bear, in addition to other information required by the act, the name of the additive.

(2) The label of any prepared mix or concentrate shall indicate the percentage by weight of the additive.

(3) The label shall bear adequate directions for use, in conformance with paragraph (a) of this section and may indicate that in the event the metaldehyde is removed by rain an additional application may be made provided such application is made not less than 14 days before first picking.

§ 185.4035 *Metarhizium anisopliae* strain ESF1.

A food additive regulation is established allowing the use of the microbial pest-control agent *Metarhizium anisopliae* strain ESF1 as follows:

(a) *Metarhizium anisopliae* strain ESF1 may be present as a residue in food items as a result of application of *Metarhizium anisopliae* strain ESF1 in food-handling establishments, including food service, manufacturing, and processing establishments such as restaurants, cafeterias, supermarkets, bakeries, breweries, dairies, meat-slaughtering and packing plants, and canneries where food and food products are held, processed, and served.

(b) Application shall be limited solely to placement of attractant stations containing *Metarhizium anisopliae* strain ESF1 in food-handling establishments.

(c) To ensure safe use of the microbial pest control agent, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[58 FR 29121, May 19, 1993]

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§ 185.4100 Methomyl.

A food additive tolerance of 12 parts per million is established for residues of the insecticide methomyl (S-methyl-N-[(methylcarbomyl)oxy]thioacetimidate) in or on the processed commodity dried hops as a result of application to the growing hops. There are no United States registrations for use of methomyl on hops, as of February 14, 1990.

[55 FR 5220, Feb. 14, 1990]

§ 185.4150 Methoprene.

A tolerance of 10 parts per million is established for residues of isopropyl (E,E)-11-methoxy-3,7,11-trimethyl-2,4-dodecadienoate) in or on the food additive commodity cereal grain milled fractions (except flour and rice hulls).

[60 FR 42460, Aug. 16, 1995]

§ 185.4200 1-Methoxycarbonyl-1-propen-2-yl dimethylphosphate and its beta isomer.

A tolerance of 4 parts per million is established for residues of the insecticide 1-methoxycarbonyl-1-propen-2-yl dimethylphosphate and its beta isomer in dehydrated parsley when present as a result of application of the insecticide to the growing crop.

§ 185.4250 Methyl chloride.

The food additive methyl chloride may be safely used in accordance with the following prescribed conditions:

(a) It is used or intended for use as a propellant in pesticide formulations in an amount not to exceed 30 percent of the finished formulation.

(b) It is used or intended for use in food storage and processing areas whereby spray applications do not contact fatty foods.

(c) To assure safe use of the additive, the label and labeling of the pesticide formulation containing the food additive shall conform to the label and labeling registered by the U.S. Environmental Protection Agency.

§ 185.4300 Methyl formate.

The food additive methyl formate may be safely used in or on specified

dried fruits in accordance with the following prescribed conditions:

(a) It is used or intended for use in or on raisins and dried Zante currants as a bulk and package fumigant.

(b) It is used in accordance with directions registered with the U.S. Environmental Protection Agency, and so used that the total formic acid present, free and combined in the finished product shall not exceed 250 parts per million.

(c) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency.

§ 185.4350 Myclobutanil.

Tolerances are established for combined residues of the fungicide myclobutanil [alpha-butyl-alpha-(4-chlorophenyl)-1*H*-1,2,4-triazole-1-propanenitrile] and its metabolite alpha-(3-hydroxybutyl)-alpha-(4-chlorophenyl)-1*H*-1,2,4-triazole-1-propanenitrile (free and bound) in or on the following food additive commodity:

Commodity	Parts per million
Plums, dried	8.0
Raisins	10.0

[54 FR 6131, Feb. 8, 1989, as amended at 60 FR 21739, May 3, 1995]

§ 185.4400 Nitrogen.

The food additive nitrogen may be safely used after harvest in modified atmospheres for stored product insect control on all processed agricultural commodities.

[46 FR 32866, June 25, 1981. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.4450 Norflurazon.

A regulation is established for the combined residues of the herbicide norflurazon (4-chloro-5-(methylamino)-2-(alpha, alpha, alpha-trifluoro-*m*-tolyl)-3(2*H*)-pyridazinone) and its desmethyl metabolite (4-chloro-5-amino-2-(alpha, alpha, alpha-trifluoro-*m*-tolyl)-3(2*H*)-pyridazinone) in dried hops at 3.0 parts per million when

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present therein as a result of its application to the growing crop.

[47 FR 14896, Apr. 7, 1982. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.4500 *N*-Octylbicycloheptene dicarboximide.

The food additive *N*-octylbicycloheptene dicarboximide may be safely used in accordance with the following prescribed conditions:

(a) It is used in combination with piperonyl butoxide and pyrethrins for insect control in food-processing and food-storage areas, provided that the food is removed or covered prior to such use.

(b) Residues in food resulting from the use described in paragraph (a) of this section shall not exceed 10 parts per million of *N*-octylbicycloheptene dicarboximide, 10 parts per million of piperonyl butoxide, and 1 part per million of pyrethrins.

(c) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency and it shall be used in accordance with such label and labeling.

§ 185.4650 Paraformaldehyde.

The food additive paraformaldehyde may be safely used in accordance with the following prescribed conditions.

(a) It is used to control microbial or fungal growth in maple tree tapholes

(b) It is so used that the maple sirup produced from the sap of treated maple trees does not contain in excess of 2 parts per million of formaldehyde.

§ 185.4700 Paraquat.

A tolerance of 0.2 part per million is established for residues of the defoliant, desiccant, and herbicide paraquat (1,1'-dimethyl-4,4'-bipyridinium ion) derived from the application of either the bis (methyl sulfate) or dichloride salt (both calculated as the cation) in or on dried hops resulting from application of the pesticide to growing hops.

[40 FR 43720, Sept. 23, 1975. Redesignated at 41 FR 26568, June 28, 1976, and at 53 FR 24667, June 29, 1988]

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§ 185.4800 Phosalone.

Tolerances are established for residues of the insecticide phosalone (*S*-(6-chloro-3-(mercaptomethyl)-2-benzoxazolinone) *O,O*-diethyl phosphorodithioate) in or on the following processed foods when present therein as a result of application of the insecticide to the growing crops:

40 parts per million in or on dried prunes.
20 parts per million in or on raisins.
8 parts per million in or on dried tea.

§ 185.4850 Picloram.

Tolerances are established for residues of picloram [4-amino-3,5,6-trichloropicolinic acid] resulting from the application of the pesticide to growing crops in the following:

Food	Parts per million
Barley, milled fractions (exc flour)	3
Oats, milled fractions (exc flour)	3
Wheat, milled fractions (exc flour)	3

[41 FR 19211, May 11, 1976. Redesignated at 41 FR 26568, June 28, 1976, and at 53 FR 24667, June 29, 1988]

§ 185.4900 Piperonyl butoxide.

The food additive piperonyl butoxide may be safely used in accordance with the following prescribed conditions:

(a) It is used or intended for use in combination with pyrethrins for control of insects:

(1) In cereal grain mills and in storage areas for milled cereal grain products, whereby the amount of piperonyl butoxide is at least equal to but not more than 10 times the amount of pyrethrins in the formulation.

(2) On the outer ply of multiwall paper bags of 50 pounds or more capacity in amounts not exceeding 60 milligrams per square foot, whereby the amount of piperonyl butoxide is equal to 10 times the amount of pyrethrins in the formulation. Such treated bags are to be used only for dried foods.

(3) On cotton bags of 50 pounds or more capacity in amounts not exceeding 55 milligrams per square foot of cloth, whereby the amount of piperonyl butoxide is equal to 10 times the amount of pyrethrins in the formulation. Such treated bags are constructed

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with waxed paper liners and are to be used only for dried foods that contain 4 percent fat or less.

(4) In two-ply bags consisting of cellophane/polyolefin sheets bound together by an adhesive layer when it is incorporated in the adhesive. The treated sheets shall contain not more than 50 milligrams of piperonyl butoxide per square foot (538 milligrams per square meter). Such treated bags are to be used only for packaging prunes, raisins, and other dried fruits and are to have a maximum ratio of 3.12 milligrams of piperonyl butoxide per ounce of fruit (0.10 milligram of piperonyl butoxide per gram of product).

(5) In food processing and food storage areas: *Provided*, That the food is removed or covered prior to such use.

(b) It is used or intended for use in combination with pyrethrins and *N*-octylbicycloheptene dicarboximide for insect control in accordance with § 178.3730.

(c) A tolerance of 10 parts per million is established for residues of piperonyl butoxide in or on:

(1) Milled fractions derived from cereal grains when present therein as a result of its use in cereal grain mills and in storage areas for milled cereal grain products.

(2) Dried foods when present as a result of migration from its use on the outer ply of multiwall paper bags of 50 pounds or more capacity.

(3) Foods treated in accordance with § 178.3730.

(4) Dried foods that contain 4 percent fat, or less, when present as a result of migration from its use on the cloth of cotton bags of 50 pounds or more capacity constructed with waxed paper liners.

(5) Foods treated in accordance with paragraph (a)(4) and (5) of this section.

(d) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

(e) Where tolerances are established under sections 408 and 409 of the Act on both raw agricultural commodities and processed foods made therefrom, the total residues of piperonyl butoxide in

or on the processed food shall not be greater than that permitted by the larger of the two tolerances.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 50 FR 2958, Jan. 23, 1985. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.4950 Pirimiphos-methyl.

(a) Tolerances are established for the combined residues of the insecticide pirimiphos-methyl (*O*-[2-diethylamino-6-methyl-4-pyrimidinyl] *O,O*-dimethyl phosphorothioate) and its metabolite *O*-(2-ethylamino-6-methyl-pyrimidin-4-yl) *O,O*-dimethyl phosphorothioate and, in free and conjugated forms, the metabolites 2-diethylamino-6-methyl-pyrimidin-4-ol, 2-ethylamino-6-methyl-pyrimidin-4-ol, and 2-amino-6-methyl-pyrimidin-4-ol in or on the following processed foods when present therein as a result of application to stored grains:

Food	Parts per million
Corn milling fractions (except flour)	40
Corn oil	88
Sorghum milling fractions (except flour)	40

(b) A food additive tolerance of 8.0 parts per million is established for residues of the insecticide pirimiphos-methyl (*O*-[2-diethylamino-6-methyl-4-pyrimidinyl]0,0-dimethyl phosphorothioate) and its metabolite 0-(2-ethylamino-6-methyl-pyrimidine-4-yl)0,0-dimethylphosphorothioate and, in free and conjugated forms, the metabolites 2-diethylamino-6-methyl-pyrimidin-4-ol, 2-ethylamino-6-methyl-pyrimidin-4-ol, and 2-amino-6-methyl-pyrimidin-4-ol in or on the processed commodity wheat flour as a result of application to stored wheat grain. There are no United States registrations for use of pirimiphos-methyl on wheat, as of June 12, 1990.

[53 FR 8874, Mar. 18, 1988. Redesignated at 53 FR 24667, June 29, 1988, and amended at 55 FR 23737, June 12, 1990]

§ 185.5000 Propargite.

Tolerances are established for residues of the insecticide propargite (2-(*p*-*tert*-butylphenoxy)cyclohexyl 2-

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propynyl sulfite) in or on the following processed foods when present therein as a result of the application of this insecticide to growing crops:

Food	Parts per million
Figs, dried	9
Hops, dried	30
Tea, dried	10

[44 FR 38841, July 3, 1979. Redesignated at 53 FR 24667, June 29, 1988, as amended at 61 FR 12009, Mar. 22, 1996]

EFFECTIVE DATE NOTE: At 61 FR 12009, in § 185.5000, the entries for "Figs, dried" and "Tea, dried" were removed from the table, effective May 21, 1996. At 61 FR 25154, May 21, 1996, the removals were stayed indefinitely.

§ 185.5100 Propetamphos.

A tolerance of 0.1 part per million is established for residues of the insecticide propetamphos [(e)-methyl ethyl 3-[(ethylamino) methoxyphosphinothioyl]oxy]-2-butenate] in food commodities exposed to the insecticide during treatment of food-handling establishments.

(a) Direct application shall be limited solely to spot and/or crack and crevice treatment in food-handling establishments where food and food products are held, processed, prepared, or served. Spray and dust concentrations shall be limited to a maximum of 1 percent active ingredient. For crack and crevice treatment, equipment capable of delivering a dust or a pin-stream of spray directly into cracks and crevices shall be used. For spot treatment, a coarse, low-pressure spray shall be used to avoid contamination of food or food-contact surfaces.

(b) To ensure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[48 FR 52902, Nov. 23, 1983. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.5150 Propylene oxide.

The food additive propylene oxide may be safely used in or on foods in accordance with the following prescribed conditions:

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(a) It is intended as a fumigant in or on bulk quantities of cocoa, gums, processed spices, and processed nutmeats (except peanuts) when such bulk foods are to be further processed into a final food form.

(b) It is applied in fumigation chambers not more than one time at a temperature not in excess of 125° F. The maximum period of fumigation shall not exceed 4 hours for cocoa, processed nutmeats (except peanuts), and processed spices. For edible gums, the maximum duration shall be 24 hours.

(c) When used as described in paragraphs (a) and (b) of this section, residues shall not exceed the following limitations:

Food	Limitations ¹
Cocoa	300
Gums	300
Processed nutmeats (except peanuts)	300
Spices, processed	300

¹ Expressed as parts per million of propylene oxide.

(d) When used as a mixture with carbon dioxide (92 parts of carbon dioxide to 8 parts of propylene oxide on a weight/weight basis), all commodities listed in paragraph (c) of this section may be processed not more than one time for a period not to exceed 48 hours and at a temperature not to exceed 125° F.

(e) To assure safe use of the additive, the label and labeling of the pesticide formulation containing the food additive shall conform to the label and labeling registered by the U. S. Environmental Protection Agency.

[40 FR 14156, Mar. 28, 1975, as amended at 41 FR 1589, Jan. 9, 1976. Redesignated at 41 FR 26568, June 28, 1976, and amended at 42 FR 59852, Nov. 22, 1977. Redesignated at 53 FR 24667, June 29, 1988, as amended at 61 FR 12009, Mar. 22, 1996; 61 FR 25154, May 20, 1996]

EFFECTIVE DATE NOTE: At 61 FR 12009, § 185.5150 was removed, effective May 21, 1996. At 61 FR 25154, May 20, 1996, the removal of the introductory text, paragraphs (a) through (e), and the entries in the table in paragraph (c) for "Cocoa", "Gums", "Processed nutmeats (except peanuts)", and "Spices, processed" was stayed indefinitely.

§ 185.5200 Pyrethrins.

The food additive pyrethrins may be safely used in accordance with the following prescribed conditions:

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(a) It is used or intended for use in combination with piperonyl butoxide for control of insects:

(1) In cereal grain mills and in storage areas for milled cereal grain products, whereby the amount of pyrethrins is from 10 percent to 100 percent of the amount of piperonyl butoxide in the formulation.

(2) On the outer ply of multiwall paper bags of 50 pounds or more capacity in amounts not exceeding 6 milligrams per square foot, whereby the amount of pyrethrins is equal to 10 percent of the amount of piperonyl butoxide in the formulation. Such treated bags are to be used only for dried foods.

(3) On cotton bags of 50 pounds or more capacity in amounts not exceeding 5.5 milligrams per square foot of cloth, whereby the amount of pyrethrins is equal to 10 percent of the amount of piperonyl butoxide in the formulation. Such treated bags are constructed with waxed paper liners and are to be used only for dried foods that contain 4 percent fat or less.

(4) In two-ply bags consisting of cellophane/polyolefin sheets bound together by an adhesive layer when it is incorporated in the adhesive. The treated sheets shall contain not more than 10 milligrams of pyrethrins per square foot (107.6 milligrams per square meter). Such treated bags are to be used only for packaging prunes, raisins, and other dried fruits and are to have a maximum ratio of 0.31 milligram of pyrethrins per ounce of fruit (0.01 milligram of pyrethrins per gram of product).

(5) In food processing areas and food storage areas: *Provided*, That the food is removed or covered prior to such use.

(b) It is used or intended for use in combination with piperonyl butoxide and *N*-octylbicycloheptene dicarboximide for insect control in accordance with § 185.4500.

(c) A tolerance of one part per million is established for residues of pyrethrins in or on:

(1) Milled fractions derived from cereal grains when present as a result of its use in cereal grain mills and in storage areas for milled cereal grain products.

(2) Dried foods when present as the result of migration from its use on the outer ply of multiwall paper bags of 50 pounds or more capacity.

(3) Foods treated in accordance with § 185.4500.

(4) Dried foods that contain 4 percent fat, or less, when present as a result of migration from its use on the cloth of cotton bags of 50 pounds or more capacity constructed with waxed paper liners.

(5) Foods treated in accordance with paragraphs (a)(4) and (a)(5) of this section.

(d) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

(e) Where tolerances are established under sections 408 and 409 of the Act on both raw agricultural commodities and processed foods made therefrom, the total residues of pyrethrins in or on the processed food shall not be greater than that permitted by the larger of the two tolerances.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and further redesignated and amended at 53 FR 24666, 24668, June 29, 1988]

§ 185.5250 Quizalofop ethyl.

A food additive regulation is established to permit the combined residues of the herbicide quizalofop (2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy]propanoic acid) and quizalofop ethyl (ethyl 2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy] propanoate, all expressed as quizalofop ethyl in or on the food commodity soybean flour at 0.5 part per million (ppm).

[53 FR 23387, June 22, 1988. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.5300 Resmethrin.

Tolerances are established for residues of the insecticide resmethrin [5-(phenylmethyl)-3-furanyl] methyl 2,2-dimethyl-3-(2-methyl-1-propenyl) cyclopropanecarboxylate in or on food items at 3.0 ppm resulting from use of the insecticide in food handling and storage areas as a space concentration for spot/or crack and crevice treatment

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and shall be limited to a maximum of 3.00 percent of the active ingredient by weight, and as a space treatment shall be limited to a maximum of 0.5 fluid ounce of 3.0 percent active ingredient by weight per 1000 cubic feet of space provided that the food is removed or covered prior to such use. To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency, and shall be used in accordance with such label and labeling.

[48 FR 36247, Aug. 10, 1983. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.5375 Sulfonium, trimethyl-salt with N-(phosphonomethyl)glycine (1:1).

(a) Food additive regulation is established for residues of the herbicide sulfonium, trimethyl-salt with N-(phosphonomethyl)glycine (1:1) (formerly glyphosate-trimesium/sulfosate) in or on the following processed commodities:

Commodities	Parts per million
Prunes (of which no more than 0.05 ppm is trimethylsulfonium)	0.2
Raisins (of which no more than 0.05 ppm is trimethylsulfonium)	0.20
Soybean, hulls (of which no more than 2 ppm is trimethylsulfonium)	7.0

(b) [Reserved]

[61 FR 9359, Mar. 8, 1996, as amended at 61 FR 15900, Apr. 10, 1996]

§ 185.5450 Tralomethrin.

(a) A time-limited food additive regulation is established for the combined residues of the insecticide tralomethrin ((S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3S)-2,2-dimethyl-3-[(RS)-1,2,2,2-tetrabromoethyl]-cyclopropanecarboxylate; CAS Reg. No. 66841-25-6) and its metabolites (S)-*alpha*-cyano-3-phenoxybenzyl (1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate and (S)-*alpha*-cyano-3-phenoxybenzyl(1S,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate calculated as the parent in or on the fol-

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lowing food commodities when present as a result of application of the insecticide to the growing crops:

Commodity	Parts per million	Expiration date
Cottonseed oil	0.20	Nov. 15, 1997.

(b) A time-limited food additive regulation is established permitting residues of the pesticide tralomethrin ((S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3S)-2,2-dimethyl-3-[(RS)-1,2,2,2-tetrabromoethyl]-cyclopropanecarboxylate; CAS Reg. No. 66841-25-6) and its metabolites (S)-*alpha*-cyano-3-phenoxybenzyl (1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate and (S)-*alpha*-cyano-3-phenoxybenzyl(1S,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate calculated as the parent in or on the following food commodity resulting from application of the insecticide to tomatoes in accordance with an experimental program (34147-EUP-2). The conditions set forth in this section shall be met.

Commodity	Parts per million	Expiration date
Tomato puree	1.00	June 1, 1997.

(1) Residues in the food not in excess of the established tolerance resulting from the use described in paragraph (b) of this section remaining after expiration of the experimental program will not be considered to be actionable if the insecticide is applied during the term of and in accordance with the provisions of the experimental use program and feed additive regulation.

(2) The company concerned shall immediately notify the Environmental Protection Agency of any findings from the experimental use that have a bearing on safety. The firm shall also keep records of production, distribution, and performance, and on request make the records available to any authorized officer or employee of the Environmental

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Protection Agency or the Food and Drug Administration.

(c) A food additive tolerance of 0.02 part per million is established for the combined residues of the insecticide tralomethrin ((S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3S)-2,2-dimethyl-3-[(RS)-1,2,2,2-tetrabromoethyl]cyclopropanecarboxylate) and its metabolites *cis*-deltamethrin [(S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3R)-3-[2,2-dibromovinyl]-2,2-dimethylcyclopropanecarboxylate] and *trans*-deltamethrin [(S)-*alpha*-cyano-3-phenoxybenzyl (1S,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] as follows:

(1) In or on all food items (other than those covered by a higher tolerance as a result of use on growing crops) in food-handling establishments.

(2) The insecticide may be present as a residue from application of tralomethrin in food-handling establishments, including food service, manufacturing, and processing establishments, such as restaurants, cafeterias, supermarkets, bakeries, breweries, dairies, meat slaughtering and packing plants, and canneries in accordance with the following prescribed conditions:

(i) Application shall be limited to a general surface and spot and/or crack and crevice treatment in food-handling establishments where food and food products are held, processed, prepared, and served. General surface application may be used only when the facility is not in operation provided exposed food has been covered or removed from the area being treated. All food-contact surfaces and equipment must be thoroughly cleaned after general surface applications. Spot and/or crack and crevice application may be used while the facility is in operation provided exposed food is covered or removed from the area being treated prior to application. Spray concentration shall be limited to a maximum of 0.06 percent active ingredient. Contamination of food and food-contact surfaces shall be avoided.

(ii) To assure safe use of the insecticide, its label and labelling shall conform to that registered with the U.S. Environmental Protection Agency and

shall be used in accordance with such label and labelling.

[60 FR 38265, July 26, 1995, as amended at 60 FR 54612, Oct. 25, 1995]

§ 185.5475 Tetradifon.

Tolerances are established for residues of tetradifon (2,4,5,4'-tetrachlorodiphenyl sulfone) when present as a result of its application as a pesticide chemical to growing agricultural crops, as follows:

120 parts per million in or on dried hops.

10 parts per million in or on dried figs.

8 parts per million in or on dried tea.

§ 185.5550 Thiabendazole.

A tolerance of 3 parts per million is established for residues of the fungicide thiabendazole [2-(4-thiazolyl)benzimidazole] in or on wheat milled fractions (except flour) resulting from applications of the fungicide to growing wheat.

[50 FR 14098, Apr. 10, 1985. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.5950 Triforine.

A food additive regulation is established to permit residues of the fungicide triforine (*N,N*-[1,4-piperazinediylbis(2,2,2-trichloroethylidene)]bis[formamide]) in or on the following processed foods when present therein as a result of application to growing hops:

Food	Parts per million
Hops, dried	60

[52 FR 39222, Oct. 21, 1987. Redesignated at 53 FR 24667, June 29, 1988]

§ 185.6300 Zinc ion and maneb coordination product.

Tolerances are established for residues of a fungicide which is a coordination product of zinc ion and maneb (manganous ethylenebisdithiocarbamate) containing 20 percent manganese, 2.5 percent zinc, and 77.5 percent ethylenebisdithiocarbamate (the whole product calculated as zinc ethylenebisdithiocarbamate) in or on

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the following processed foods, when present therein as a result of the application of this fungicide to growing crops:

20 parts per million in the bran of oats.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976 and 53 FR 24667, June 29, 1988, and amended at 59 FR 33694, 33696, June 30, 1994; 61 FR 12009, Mar. 22, 1996; 61 FR 25154, May 20, 1996]

EFFECTIVE DATE NOTE: At 61 FR 12009, Mar. 22, 1996, § 185.6300 was removed, effective May 21, 1996. At 61 FR 25154, May 20, 1996, the removal of the introductory text and the entry for “bran of oats” was stayed indefinitely.

Subpart C—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

§ 185.7000 Malathion.

Malathion may be safely used for the control of insects during the drying of grapes (raisins) in compliance with § 185.3850 by incorporation into paper trays in amounts not exceeding 100 milligrams per square foot.

[40 FR 14156, Mar. 28, 1975. Redesignated at 41 FR 26568, June 28, 1976, and amended at 50 FR 2958, Jan. 23, 1985. Redesignated and amended at 53 FR 24666, 24668, June 29, 1988]

PART 186—PESTICIDES IN ANIMAL FEED

Subpart A—[Reserved]

Subpart B—Feed Additives Permitted in Animal Feed

Sec.

- 186.100 Acephate.
- 186.150 Aldicarb.
- 186.200 Aluminum phosphide.
- 186.250 4-Amino-6-(1,1-dimethylethyl)-3-(methylthio)-1,2,4-triazin-5(4*H*)-one.
- 186.300 Avermectin B₁ and its delta-8,9-isomer; tolerances for residues.
- 186.350 Benomyl.
- 186.375 Bentazon.
- 186.450 *sec*-Butylamine.
- 186.550 Carbaryl.
- 186.600 Carbofuran.
- 186.800 1-(4-Chlorophenoxy)-3,3-dimethyl-1-(1*H*-1,2,4-triazol-1-yl)-2-butanone.
- 186.850 2-(*m*-Chlorophenoxy)propionic acid.
- 186.900 1-[(6-Chloro-3-pyridinyl) methyl]-N-nitro-2-imidazolidinimine.

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- 186.950 2-Chloro-1-(2,4,5-trichlorophenyl)vinyl dimethyl phosphate.
- 186.1000 Chlorpyrifos.
- 186.1050 Chlorpyrifos-methyl.
- 186.1075 Clethodim ((*E*)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one).
- 186.1100 Clopyralid.
- 186.1250 Cyfluthrin.
- 186.1300 Cyano(3-phenoxyphenyl)methyl 4-chloro- α -(1-methyl-ethyl)benzeneacetate.
- 186.1350 Cyhexatin.
- 186.1400 Cyromazine.
- 186.1450 2,4-D.
- 186.1500 Dalapon.
- 186.1650 Dialifor.
- 186.1700 Diatomaceous earth.
- 186.1750 Diazinon.
- 186.1800 Dicamba.
- 186.1850 3-(3,5-Dichlorophenyl)-5-ethenyl-5-methyl-2,4-oxazolidinedione.
- 186.1860 3,7-Dichloro-8-quinoline carboxylic acid.
- 186.1875 Propanil.
- 186.1950 *O,O*-Diethyl S-2(ethylthio)ethyl phosphorodithioate.
- 186.1975 Dihydro-5-heptyl-2(3*H*)-furanone.
- 186.1985 Dihydro-5-pentyl-2(3*H*)-furanone.
- 186.2000 Diflubenzuron.
- 186.2050 Dimethipin.
- 186.2100 Dimethoate including its oxygen analog.
- 186.2150 2,2-Dimethyl-1,3-benzodioxol-4-*o*-1 methylcarbamate.
- 186.2225 *O,O*-Dimethyl S-[4-oxo-1,2,3-benzotriazin-3(4*H*)-yl methyl-yl]phosphorodithioate.
- 186.2275 *N,N*-Dimethylpiperidinium chloride.
- 186.2325 *O,O*-Dimethyl 2,2,2-trichloro-1-hydroxyethyl phosphonate.
- 186.2400 2,4-Dinitro-6-octylphenyl crotonate and 2,6-dinitro-4-octylphenyl crotonate.
- 186.2450 Dioxathion.
- 186.2500 Diquat.
- 186.2550 Diuron.
- 186.2700 Ethephon.
- 186.2750 Ethion.
- 186.2775 Ethofumesate.
- 186.2800 2-[1-(Ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one.
- 186.2950 Ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl)-phosphoramidate.
- 186.3000 *O*-Ethyl *O*-[4-(methylthio)phenyl] S-propyl phosphorodithioate.
- 186.3050 S-[2-(Ethylsulfinyl)ethyl] *O,O*-dimethyl phosphorothioate.
- 186.3200 Fenarimol.
- 186.3225 Fenpropathrin.
- 186.3250 Fluzifop-butyl.
- 186.3325 Flumiclorac pentyl; tolerances for residues.
- 186.3350 Fluometuron.

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- 186.3375 Fluorine compounds.
 186.3400 (alpha *RS,2R*)-Fluvalinate [(*RS*)-alpha-cyano-3-phenoxbenzyl(*R*)-2-[2-chloro-4-(trifluoromethyl) anilino]-3-methylbutanoate].
 186.3450 Formetanate hydrochloride.
 186.3500 Glyphosate.
 186.3550 Hexakis (2-methyl-2-phenyl-propyl)distanoxane.
 186.3575 Hexazinone.
 186.3650 Imazalil.
 186.3700 Inorganic bromides.
 186.3750 Iprodione.
 186.3765 Lambda-cyhalothrin.
 186.3775 d-Limonene.
 186.3800 Magnesium phosphide.
 186.3850 Malathion.
 186.4000 Metalaxyl.
 186.4035 Metarhizium anisopliae strain ESF1.
 186.4050 Methanearsonic acid.
 186.4150 Methoprene.
 186.4350 Myclobutanil.
 186.4450 Norflurazon.
 186.4575 Oxamyl.
 186.4700 Paraquat.
 186.4750 Phorate.
 186.4800 Phosalone.
 186.4850 Picloram.
 186.4900 Piperonyl butoxide.
 186.4950 Pirimiphos-methyl.
 186.4975 Profenofos.
 186.5000 Propargite.
 186.5100 Propetamphos.
 186.5200 Pyrethrins.
 186.5250 Quizalofop ethyl.
 186.5350 Simazine.
 186.5400 Synthetic isoparaffinic petroleum hydrocarbons.
 186.5450 Tralomethrin.
 186.5550 Thiabendazole.
 186.5600 Thidiazuron.
 186.5650 Thiodicarb.
 186.5700 Thiophanate-methyl.
 186.5800 S,S,S-Tributyl phosphorotrithioate.
 186.5850 Triflumizole.
 186.5950 Triforine.
 186.6300 Zinc ion and maneb coordination product.

AUTHORITY: 21 U.S.C. 342, 348, and 701.

SOURCE: 40 FR 14161, Mar. 28, 1975, unless otherwise noted. Redesignated at 53 FR 24668, June 29, 1988.

EDITORIAL NOTE: The text of part 186 set forth below was transferred and recodified at 53 FR 24668, June 29, 1988. New part 186 formerly appeared in 21 CFR part 561. A Redesignation Table appears in the Finding Aids section of this volume.

Subpart A—[Reserved]

Subpart B—Feed Additives Permitted in Animal Feed

§ 186.100 Acephate.

(a) Tolerances are established for combined residues of acephate (*O,S*-dimethyl acetylphosphramidothioate) and its cholinesterase-inhibiting metabolite *O,S*-dimethyl phosphoramidothioate in the following processed feeds, when present as a result of the application of this insecticide to growing crops:

(1) 8 parts per million in cottonseed meal.

(2) 4 parts per million in cottonseed hulls and soybean meal.

(b) [Reserved]

[40 FR 14161, Mar. 28, 1975, as amended at 41 FR 28952, July 14, 1976; 53 FR 9435, Mar. 23, 1988. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.150 Aldicarb.

Tolerances are established for combined residues of the insecticide and nematocide aldicarb (2-methyl-2-(methylthio)-propionaldehyde *O*-(methylcarbamoyl)oxime) and its cholinesterase-inhibiting metabolites 2-methyl-2-(methylsulfinyl) propionaldehyde *O*-(methylcarbamoyl)oxime and 2-methyl-2-(methylsulfonyl)-propionaldehyde *O*-(methylcarbamoyl)-oxime in the following processed feeds when present therein as a result of the application of this pesticide to growing crops:

Food	Parts per million
Citrus pulp, dried	0.6
Cottonseed, hulls	0.3
Sorghum, bran	0.5

[42 FR 15409, Mar. 22, 1977, as amended at 47 FR 14898, Apr. 7, 1982. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.200 Aluminum phosphide.

The food additive aluminum phosphide may be safely used in accordance with the following prescribed conditions:

(a) It is used to generate phosphine in the fumigation of animal feeds.

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(b) To assure safe use of the additive, it is used in compliance with label and labeling conforming to that registered with the U.S. Environmental Protection Agency. Labeling shall bear a warning to aerate the finished feed for 48 hours before use.

(c) Residues of phosphine in or on animal feeds do not exceed 0.1 part per million.

[42 FR 12427, Mar. 4, 1977. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.250 4-Amino-6-(1,1-dimethylethyl)-3-(methylthio)-1,2,4-triazin-5(4H)-one.

Tolerances are established for combined residues of the herbicide 4-amino-6-(1,1-dimethylethyl)-3-(methylthio)-1,2,4-triazin-5(4H)-one and its triazinone metabolites in the following processed feeds when present therein as a result of application of this herbicide to growing crops:

Food	Parts per million
Barley, milled fractions (except four)	3
Potato waste, processed (dried)	3
Sugarcane bagasse	0.5
Sugarcane molasses	0.3
Tomato pomace, dried	2
Wheat, milled fractions (except flour)	3

[43 FR 41386, Sept. 18, 1978, as amended at 44 FR 40283, July 10, 1979. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.300 Avermectin B₁ and its delta-8,9-isomer; tolerances for residues.

(a) Tolerances, to expire on April 30, 1996, are established for the combined residues of the insecticide avermectin B₁ and its delta-8,9-isomer (a mixture of avermectins containing $\geq$ 80 percent avermectin B_{1a} (5-O-demethyl avermectin B_{1a}) and < 20 percent avermectin B_{1a} (5-O-demethyl-25-di (1-methylpropyl)-25-1(1-methylethyl) avermectin A_{1a}) in or on the following commodity:

Commodity	Parts per million
Dried citrus pulp	0.10

(b) A tolerance is established for the combined residues of the insecticide avermectin B₁ and its delta-8,9-isomer [a mixture of avermectins containing >

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80 percent avermectin B_{1a} (5-O-demethyl avermectin A_{1a}) and < 20 percent avermectin B_{1b} (5-O-demethyl-25-di(1-methylpropyl)-25-(1-methylethyl) avermectin A_{1a})] in or on the following commodity:

Commodity	Parts per million
Almonds, hulls	0.10
Apples, wet pomace	0.10
Tomato pomace	0.07

[56 FR 65004, Dec. 13, 1991, as amended at 59 FR 49826, Sept. 30, 1994; 61 FR 15902, Apr. 10, 1996]

§ 186.350 Benomyl.

Tolerances are established for combined residues of the fungicide benomyl (methyl-1-(butylcarbamoyle)-2-benzimidazolecarbamate) and its metabolites containing the benzimidazole moiety (calculated as benomyl) as follows:

125 parts per million in dried grape pomace and raisin waste when present therein as a result of application of the fungicide to growing grapes.

70 parts per million in dried apple pomace when present therein as a result of application (preharvest and/or postharvest) of the fungicide to the raw agricultural commodity apples.

50 parts per million in dried citrus pulp when present therein as a result of application (preharvest and/or postharvest) of the fungicide to the raw agricultural commodity citrus fruits.

20 parts per million in or on rice hulls when present therein as a result of preharvest application of the fungicide to the raw agricultural commodity rice.

[40 FR 14161, Mar. 28, 1975, as amended at 41 FR 11286, Mar. 18, 1976; 44 FR 40283, July 10, 1979. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.375 Bentazon; tolerances for residues.

A tolerance of 4 parts per million is established for combined residues of the herbicide bentazon (3 - isopropyl - 1H - 2,1,3 - benzothiadiazin - 4(3H) - one - 2,2 - dioxide) and its 6- and 8-hydroxy metabolites in or on spent

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mint hay resulting from application of the herbicide to growing mint.

[43 FR 44838, Sept. 29, 1978. Redesignated at 53 FR 24668, June 29, 1988. Correctly redesignated at 53 FR 28383, July 28, 1988]

§ 186.450 *sec*-Butylamine.

A tolerance of 90 parts per million is established for residues of the fungicide *sec*-butylamine in citrus molasses and dried citrus pulp for cattle feed when present therein as a result of postharvest application of the fungicide to citrus fruit.

§ 186.550 Carbaryl.

A tolerance is established for residues of the insecticide carbaryl (1-naphthyl *N*-methyl carbamate) in or on the feed commodity pineapple bran (wet and dry) at 20 parts per million.

[50 FR 37847, Sept. 18, 1985. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.600 Carbofuran.

Tolerances are established for the combined residues of the insecticide carbofuran (2,3-dihydro-2,2-dimethyl-7-benzofuranyl-*N*-methylcarbamate), its carbamate metabolite 2,3-dihydro-2,2-dimethyl-3-hydroxy-7-benzofuranyl-*N*-methylcarbamate, and the phenolic metabolites 2,3-dihydro-2,2-dimethyl-7-benzofuranol, 2,3-dihydro-2,2-dimethyl-3-oxo-7-benzofuranol, and 2,3-dihydro-2,2-dimethyl-3,7-benzofurandiol in or on the following animal feed commodities:

Food	Parts per million
Grape pomace, dried (of which not more than 1.5 ppm are carbamates)	2.0
Peanut soapstock, fatty acids (of which not more than 3.0 ppm are carbamates, reflecting residues of 8.0 ppm phenolic metabolite and 1.0 ppm alkaline soapstock)	24.0
Raisin waste (of which not more than 3.0 ppm are carbamates)	6.0
Soybean soapstock, fatty acids (of which not more than 1.0 ppm is carbamates, reflecting residues of 2.0 ppm phenolic metabolites and 0.33 ppm carbamates in alkaline soapstock)	6.0
Sunflower seed hulls (of which not more than 0.6 ppm is carbamates)	1.4
Sunflower seed meal (of which not more than 0.6 ppm is carbamates)	1.4
Sunflower seed soapstock (of which not more than 0.5 ppm is carbamates, reflecting residues of 1.25 ppm phenolic metabolites and potential residues of 0.25 ppm carbamates in alkaline soapstock)	3.0

[49 FR 5750, Feb. 15, 1984. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.800 1-(4-Chlorophenoxy)-3,3-dimethyl-1-(1*H*-1,2,4-triazol-1-yl)-2-butanone.

Tolerances are established for the combined residues of the fungicide 1-(4-chlorophenoxy)-3,3-dimethyl-1-(1*H*-1,2,4-triazol-1-yl)-2-butanone and its metabolite beta-(4-chlorophenoxy)-alpha-(1,1-dimethylethyl)-1*H*-1,2,4-triazole-1-ethanol in or on the following feed commodities:

Food	Parts per million
Apple pomace (wet and dry)	4.0
Grape pomace (wet and dry)	3.0
Raisin waste	7.0

[48 FR 5901, Feb. 9, 1983. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.850 2-(*m*-Chlorophenoxy) propionic acid.

A feed additive regulation is established for residues of the plant growth regulator 2-(*m*-chlorophenoxy) propionic acid in or on the following commodity:

Commodity	Part(s) per million (ppm)
Pineapple bran	3.0

[46 FR 57479, Nov. 24, 1981. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.900 1-[(6-Chloro-3-pyridinyl)methyl]-*N*-nitro-2-imidazolidinimine.

(a) A feed additive regulation is established permitting residues of the insecticide 1-[(6-chloro-3-pyridinyl)methyl]-*N*-nitro-2-imidazolidinimine in or on the following feeds resulting from application of the insecticide to apples and potatoes:

Feed	Parts per million
Apples, pomace (wet)	3.0

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Feed	Parts per million
Potato, waste	0.9

(b)(1) A maximum residue level regulation is established for residues of the insecticide 1-[(6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine in or on the following feed resulting from application of the insecticide to cotton:

Feed	Parts per million
Cottonseed meal	8.0

(2) The regulation in paragraph (b)(1) of this section reflects the maximum level of residues in cottonseed meal consistent with use of 1-[(6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine on cotton in conformity with §180.472 of this chapter and with the use of good manufacturing practices.

(c) A feed additive regulation is established premitting residues of the insecticide 1-[(6-chloro-3-pyridinyl)methyl]-N-2-imidazolidinimine in or on the following feed commodities resulting from application of the insecticide to tomato and grapes:

Feed	Part per million
Grape, pomace (wet or dried)	5.0
Grape, raisin waste	15.0
Tomato, pomace (wet or dried)	4.0

(d) A time-limited feed additive tolerance is established for residues of the insecticide 1-[(6-chloro-3-pyridinyl)methyl]-N-nitro-2-imidazolidinimine and its metabolites containing 6-chloropyridinyl moiety in or on processed feed when present therein as a result of application to sugarbeets.

Commodity	Parts per million	Expiration date
Beets, sugar, molasses	0.3	August 24, 1998

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Residues in this commodity not in excess of the established tolerances resulting from the use described in this paragraph remaining after expiration of the time-limited tolerance will not be considered to be actionable if the insecticide is applied during the term of and in accordance with the provisions of the above regulation.

[59 FR 61278, Nov. 30, 1994, as amended at 60 FR 18549, Apr. 12, 1995; 60 FR 45069, Aug. 30, 1995; 61 FR 7736, Feb. 29, 1996]

§ 186.950 2-Chloro-1-(2,4,5-trichlorophenyl)vinyl dimethyl phosphate.

The additive 2-chloro-1-(2,4,5-trichlorophenyl)vinyl dimethyl phosphate may be safely used in accordance with the following prescribed conditions:

(a) It is used as a feed additive in the feed of beef, dairy cattle, and horses at a rate of 0.00015 pound (0.07 gram) and swine at the rate of 0.00011 pound (0.05 gram) per 100 pounds of body weight per day.

(b) It is used for control of fecal flies in manure of treated cattle, horses, and swine.

(c) To assure safe use of the additive, the label and labeling of the pesticide formulation containing the feed additive shall conform to the label and labeling registered by the United States Environmental Protection Agency.

[40 FR 21028, May 15, 1975, as amended at 47 FR 28368, June 30, 1982. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1000 Chlorpyrifos.

(a) Tolerances are established for combined residues of the insecticide chlorpyrifos (O,O-diethyl O-(3,5,6-trichloro-2-pyridyl) phosphorothioate) and its metabolite 3,5,6-trichloro-2-pyridinol in the following processed feeds when present therein as a result of application of this insecticide to growing crops:

Food	Parts per million
Apple pomace, dried	12.0
Beets, sugar, molasses	15.0

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Food	Parts per million
Beets, sugar, pulp (dried)	5.0
Citrus pulp, dried	5.0
Corn soapstock	1.0
Grape, pomace, dried	2.0
Sorghum milling fractions	1.5
Sunflower seed hulls	0.5

(b) [Reserved]

[44 FR 35212, June 19, 1979, as amended at 45 FR 26696, Apr. 21, 1980; 47 FR 19322, May 5, 1982; 47 FR 25955, June 16, 1982; 47 FR 30480, July 14, 1982; 47 FR 49840, Nov. 3, 1982; 48 FR 6894, Feb. 16, 1983; 48 FR 15623, Apr. 12, 1983; 53 FR 9435, Mar. 23, 1988. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1050 Chlorpyrifos-methyl.

Tolerances are established for the combined residues of the insecticide chlorpyrifos-methyl (*O,O*-dimethyl-*O*-(3,5,6-trichloro-2-pyridyl) phosphorothioate and its metabolite (3,5,6-trichloro-2-pyridinol) in or on the following processed foods when present therein as a result of application to stored grains:

Food	Parts per million
Barley milling fractions (except flour)	90
Oats milling fractions (except flour)	130
Sorghum milling fractions (except flour)	90
Rice milling fractions (except flour)	30
Wheat milling fractions (except flour)	30

[50 FR 26682, June 27, 1985. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1075 Clethodim ((E)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one).

(a) Tolerances are established for residues of the herbicide clethodim ((E)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one) and its metabolites containing the 2-cyclohexen-1-one moiety in or on the following feeds.

Feed	Parts per million
Cottonseed meal	2.0
Soybean soapstock	15.0

(b) Tolerances are established for the herbicide clethodim [(E)-(±)-2-[1-[(3-chloro-2-propenyl)oxy]imino]propyl]-5-

[2(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one] and its metabolites containing the 5-(2-ethylthiopropyl)cyclohexen-3-one and 5-(2-ethylthiopropyl)-5-hydroxycyclohexen-3-one moieties and their sulphoxides and sulphones, expressed as clethodim tolerance residues for the following feeds:

Commodity	Parts per million
Sugar beet, molasses	2.0

[59 FR 4835, Feb. 2, 1994, as amended at 60 FR 33360, June 28, 1995]

§ 186.1100 Clopyralid.

(a) Tolerances are established for residues of the herbicide clopyralid (3,6-dichloro-2-pyridinecarboxylic acid), in or on the following feeds:

Food	Parts per million
Barley, milled fractions (except flour)	12.0
Oats, milled fractions (except flour)	12.0
Sugar beet molasses	7.0
Wheat, milled fractions (except flour)	12.0

(b) Time-limited tolerances are established as follows for residues of the herbicide clopyralid (3,6-dichloro-2-pyridinecarboxylic acid), in or on the following feeds:

Feeds	Parts per million	Expiration date
Field corn, milling fractions	1.5	December 31, 1996

[52 FR 10563, Apr. 2, 1987. Redesignated at 53 FR 24668, June 29, 1988, and amended at 53 FR 33490, Aug. 31, 1988; 55 FR 31183, Aug. 1, 1990; 59 FR 19640, Apr. 25, 1994]

§ 186.1250 Cyfluthrin.

(a) A time-limited tolerance, to expire on November 15, 1997, is established for residues of the insecticide cyfluthrin (cyano(4-fluoro-3-phenoxyphenyl)methyl-3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropanecarboxylate) in or on the following feed commodities:

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Commodity	Parts per million	Expiration date
Cottonseed, hulls	2.0	Nov. 15, 1997.
Sugarcane, molasses	0.2	Do.
Tomato, pomace (dry and wet)	5.0	Do.

(b) [Reserved]

(c) A tolerance of 0.05 part per million is established for residues of the insecticide cyfluthrin (cyano(4-fluoro-3-phenoxyphenyl)methyl-3-(2,2-dichloroethenyl)-2,2-dimethylcyclopropanecarboxylate; CAS Reg. No. 68359-37-5) in feed commodities exposed to the insecticide during treatment of feed-handling establishments where feed and feed products are held, processed, prepared, or served. Treatments may be made by general surface, spot, and/or crack and crevice applications.

(1) General surface treatments shall be limited to a maximum of 3.8 grams of active ingredient per 1,000 square feet, applying to walls, floors, and ceilings with a low-pressure system. Cover or remove all feed processing and/or handling equipment during application. Do not apply directly to feed products. Reapplications may be made at 10-day intervals.

(2) Crack and crevice or spot treatments shall be limited to a maximum of 0.1 percent of the active ingredient by weight, applied with a low-pressure system with a pinpoint or variable-pattern nozzle. Dust formulation shall be limited to a maximum of 0.1 percent of the active ingredient by weight, applied using a hand duster, power duster, or other equipment capable of applying dust insecticide directly into voids and cracks and crevices. Dust applications should be made in a manner to avoid deposits on exposed surfaces or introducing the material into the air. Cover exposed feed or remove feed from premises. Do not apply directly to feed. Reapplications may be made at 10-day intervals.

(3) To ensure safe use of the insecticide, its label and labeling shall conform to that registered by EPA, and it

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shall be used in accordance with such label and labeling.

[52 FR 29009, Aug. 5, 1987, as amended at 53 FR 1916, Jan. 25, 1988; 53 FR 18837, May 25, 1988. Redesignated at 53 FR 24668, June 29, 1988; 54 FR 27643, June 30, 1989; 60 FR 28355, May 31, 1995; 60 FR 33357, 33362, June 28, 1995]

§ 186.1300 Cyano(3-phenoxyphenyl)methyl 4-chloro-alpha-(1-methylethyl)benzeneacetate.

A regulation is established permitting residues of the insecticide cyano(3-phenoxyphenyl)methyl 4-chloro-alpha-(1-methylethyl)benzeneacetate in or on the following commodities:

Commodity	Parts per million
Dried apple pomace	20
Dried tomato pomace	10
Soybean hulls	1.0
Sugarcane bagasse	20.0
Sunflower hulls	2.0

[47 FR 14897, Apr. 7, 1982, as amended at 49 FR 42700, Oct. 24, 1984; 50 FR 2284, Jan. 16, 1985. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1350 Cyhexatin.

Tolerances are established for combined residues of the insecticide cyhexatin (tricyclohexylhydroxystannane; CAS Reg. No. 13121-70-5) and its organotin metabolites (calculated as cyhexatin) in or on the following processed foods when present therein as a result of application of the insecticide to the growing crops:

Food	Parts per million
Apple pomace, dried	8
Citrus pulp, dried	8

[53 FR 23389, June 22, 1989. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1400 Cyromazine.

The additive cyromazine (*N*-cyclopropyl-1,3,5-triazine-2,4,6-triamine) may be safely used in accordance with the following prescribed conditions:

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(a) It is used as a feed additive only in the feed for chicken layer hens and chicken breeder hens at the rate of not more than 0.01 pound of cyromazine per ton of poultry feed.

(b) It is used for control of flies in manure of treated chicken layer hens and chicken breeder hens.

(c) Feeding of cyromazine-treated feed must stop at least 3 days (72 hours) before slaughter. If the feed is formulated by any person other than the end user, the formulator must inform the end user, in writing, of the 3-day (72 hours) preslaughter interval.

(d) To ensure safe use of the additive, the labeling of the pesticide formulation containing the feed additive shall conform to the labeling which is registered by the U.S. Environmental Protection Agency, and the additive shall be used in accordance with this registered labeling.

(e) Residues of cyromazine are not to exceed 5.0 parts per million (ppm) in poultry feed.

[52 FR 27545, July 22, 1987. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1450 2,4-D.

The following tolerances are established for residues of 2,4-D (2,4-dichloro-phenoxyacetic acid) in the following processed feeds. Such residues may be present therein only as a result of application to the growing crop of the herbicides identified in 40 CFR 180.142:

5 parts per million in sugarcane bagasse and sugarcane molasses.

2 parts per million in the milled fractions derived from barley, oats, rye, and wheat to be ingested as animal feed or converted into animal feed.

[41 FR 11483, Mar. 19, 1976. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1500 Dalapon.

A tolerance of 20 parts per million is established for residues of the herbicide dalapon (calculated as 2,2-dichloropropionic acid) in dehydrated citrus pulp for cattle feed, when present therein as a result of the application of dalapon sodium salt or dalapon sodium-magnesium salt mix-

tures during the growing of citrus fruit.

§ 186.1650 Dialifor.

Tolerances are established for combined residues of the insecticide dialifor (S-(2-chloro-1-phthalimidoethyl) O,O-diethyl phosphorodithioate) and its oxygen analog S-(2-chloro-1-phthalimido-ethyl) O,O-diethyl phosphorothioate in or on the following processed foods when present therein as a result of application to growing apples, citrus, and grapes:

40 parts per million in dried apple pomace.

20 parts per million in dried grape pomace.

15 parts per million in dried citrus pulp.

10 parts per million in or on raisin waste.

§ 186.1700 Diatomaceous earth.

The feed additive diatomaceous earth may be safely used in accordance with the following conditions. Application shall be limited solely to spot and/or crack and crevice treatments in feed processing and feed storage areas in accordance with the prescribed conditions:

(a) It is used or intended for use for control of insects in feed processing and feed storage areas: *Provided*, That the feed is removed or covered prior to such use.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[46 FR 55512, Nov. 10, 1981. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1750 Diazinon.

A regulation is established permitting the use of the insecticide diazinon (O,O-diethyl O-[6-methyl-2-(1-methyl-ethyl)-4-pyrimidinyl] phosphorothioate; CAS Reg. No. 333-41-5) in animal feed-handling establishments in accordance with the following prescribed conditions:

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(a) Application shall be limited solely to spot and/or crack and crevice treatment in animal feed handling establishments, including feed manufacturing and processing establishments such as stores, supermarkets, dairies, meat slaughtering and packing plants, and canneries, where feed and feed products are held, processed, and sold.

(1) Spray and dust concentrations shall be limited to a maximum of 1 percent and 2 percent, respectively, of active ingredient by weight. The spray concentration limit of 1 percent shall include, but not be limited to, encapsulated formulations of the additive utilizing the encapsulating polymer formed from the reaction of sebacoyl chloride, polymethylene polyphenylisocyanate, ethylenediamine and/or diethylenetriamine.

(2) Application to areas, surfaces, or utensils contacted by feed, contamination of feed or feed contact surfaces, and the introduction of spray or dust into the air is to be avoided.

(3) For spot treatment, a coarse, low-pressure spray shall be used. Application is limited to floor surfaces only and to 20 percent of the surface area. Any individual spot treatment shall not exceed 2 square feet.

(4) For crack and crevice treatment, equipment capable of delivering dust or a pin stream of spray directly into cracks and crevices shall be used.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[46 FR 12701, Feb. 18, 1981, as amended at 47 FR 25953, June 16, 1982; 52 FR 32293, Aug. 27, 1987; 53 FR 23389, June 22, 1988. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1800 Dicamba.

(a) Tolerances are established for the combined residues of the herbicide dicamba (3,6-dichloro-*o*-anisic acid) and its metabolite 3,6-dichloro-5-hydroxy-*o*-anisic acid in or on the processed feeds when present therein as a result of application of this herbicide to growing crops.

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Feed	Parts per million
Sugarcane molasses	2.0

(b) A tolerance is established for the combined residues of dicamba (3,6-dichloro-*o*-anisic acid) and its 5-OH metabolite (3,6-dichloro-5-hydroxy-*o*-anisic acid), resulting from the application of the sodium salt, to the growing crop in or on the following processed feed.

Feed	Parts per million
Cottonseed meal	6.0

[58 FR 62041, Nov. 24, 1993]

§ 186.1850 3-(3,5-Dichlorophenyl)-5-ethenyl-5-methyl-2,4-oxazolidinedione.

A feed additive regulation is established for the combined residues of the fungicide, 3-(3,5-dichlorophenyl)-5-ethenyl-5-methyl-2,4-oxazolidinedione and its metabolites containing the 3,5-dichloroaniline moiety in or on the processed feeds when present therein as a result of application to grapes:

Food	Parts per million
Grape, pomace, dry	42.0

[52 FR 17941, May 13, 1987, as amended at 53 FR 20308, June 3, 1988. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.1860 3,7-Dichloro-8-quinoline carboxylic acid.

A tolerance is established to permit residues of the herbicide 3,7-dichloro-8-quinoline carboxylic acid in or on the feed commodity rice bran at 15.0 ppm when present therein as a result of application of the herbicide to the growing crop.

[57 FR 47996, Oct. 21, 1992]

§ 186.1875 Propanil.

Tolerances are established for the combined residues of the herbicide

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propanil (3',4'-dichloropropionanilide; CAS Reg. No. 709-98-8) and its metabolites (calculated as the parent compound) in or on the following processed feeds when present therein as a result of application of the herbicide to the growing crops:

Commodity	Parts per million
Rice bran	10
Rice hulls	10
Rice polishings	10
Rice mill fractions	10

[54 FR 27644, June 30, 1989]

§ 186.1950 *O,O*-Diethyl S-2-(ethylthio)ethyl phosphorodithioate.

Tolerances for residues of *O,O*-diethyl S-2-(ethylthio)ethyl phosphorodithioate, calculated as demeton, in ingredients for livestock feed are established as follows:

(a) 5 parts per million in dehydrated sugar beet pulp when present therein as a result of the application of the pesticide to the growing agricultural crop, provided that, if residues of demeton are also present, the total of both residues shall not exceed 5 parts per million.

(b) 5 parts per million in pineapple bran when present therein as a result of the application of the insecticide in the production of pineapples.

§ 186.1975 Dihydro-5-heptyl-2(3H)-furanone.

The feed additive dihydro-5-heptyl-2(3H)-furanone may be safely used in accordance with the following conditions:

(a) It is used in combination with the active ingredients d-limonene and dihydro-5-pentyl-2(3H)-furanone in insect-repellent tablecloths and in insect-repellent strips used in feed-handling establishments.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[60 FR 16053, Mar. 29, 1995]

§ 186.1985 Dihydro-5-pentyl-2(3H)-furanone.

The feed additive dihydro-5-pentyl-2(3H)-furanone may be safely used in accordance with the following conditions:

(a) It is used in combination with the active ingredients d-limonene and dihydro-5-heptyl-2(3H)-furanone in insect-repellent tablecloths and in insect-repellent strips used in feed-handling establishments.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[60 FR 16053, Mar. 29, 1995]

§ 186.2000 Diflubenzuron.

A regulation is established permitting residues of the insecticide diflubenzuron (*N*-[[4-chlorophenyl]amino]carbonyl]-2,6-difluorobenzamide) in or on the following feed commodities:

Food	Parts per million
Soybean hulls	0.5
Soybean soap stock	0.1

[47 FR 32526, July 28, 1982. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.2050 Dimethipin.

A tolerance is established for residues of the harvest growth regulant dimethipin (2,3-dihydro-5,6-dimethyl-1,4-dithiin 1,1,4,4-tetraoxide; CAS Reg. No. 55290-64-7) in or on the following processed feeds when present therein as a result of application of the harvest growth regulant to the growing crops:

Food	Part per million
Cottonseed hulls	0.7

[53 FR 23389, June 22, 1988. Redesignated at 53 FR 24668, June 29, 1988]

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§ 186.2100 Dimethoate including its oxygen analog.

A tolerance of 5 parts per million is established for total residues of the insecticide dimethoate (*O,O*-dimethyl *S*-(*N*-methylcarbamoylmethyl) phosphorodithioate) including its oxygen analog (*O,O*-dimethyl *S*-(*N*-methylcarbamoylmethyl) phosphorothioate) in dried citrus pulp for cattle feed. Such residue may be present therein only as a result of the application of the insecticide to the growing agricultural crop.

§ 186.2150 2,2-Dimethyl-1,3-benzodioxol-4-ol methylcarbamate.

(a) The insecticide 2,2-dimethyl-1,3-benzodioxol-4-ol methylcarbamate may be safely used in spot and/or crack and crevice treatments in animal feed handling establishments, including feed manufacturing and processing establishments, such as stores, supermarkets, dairies, meat slaughtering and packing plants, and canneries.

(b) To ensure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency and it shall be used in accordance with such label and labeling.

[40 FR 45164, Oct. 1, 1975. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.2225 *O,O*-Dimethyl *S*-[4-oxo-1,2,3-benzotriazin-3(4H)-ylmethyl] phosphorodithioate.

The following tolerances are established for residues of the insecticide *O,O*-dimethyl *S*-[4-oxo-1,2,3-benzotriazin-3(4H)-ylmethyl] phosphorodithioate in the indicated commodities when used for the feed of cattle, goats, and sheep:

5 parts per million in dried citrus pulp.

1.5 parts per million in sugarcane bagasse.

Such residues may be present therein only as a result of the application of the insecticide to the growing agricultural crop.

§ 186.2275 *N,N*-Dimethylpiperidinium chloride.

A tolerance is established for residues the plant growth regulator *N,N*-

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dimethylpiperidinium chloride in the following processed feed when present therein as a result of application of this plant growth regulator to growing cotton:

Food	Parts per million
Cottonseed meal	3

[45 FR 27926, Apr. 25, 1980. Redesignated at 53 FR 24668, June 29, 1988, and amended at 55 FR 39409, Sept. 27, 1990; 60 FR 32097, June 19, 1995]

§ 186.2325 *O,O*-Dimethyl 2,2,2-trichloro-1-hydroxyethyl phosphonate.

A tolerance of 2.5 parts per million is established for residues of the insecticide *O,O*-dimethyl 2,2,2-trichloro-1-hydroxyethyl phosphonate in dried citrus pulp when present therein as a result of application of the insecticide to growing citrus fruit.

§ 186.2400 2,4-Dinitro-6-octylphenyl crotonate and 2,6-dinitro-4-octylphenyl crotonate.

A tolerance of 0.3 part per million is established for combined residues of the fungicide and insecticide that is a mixture consisting of 2,4-dinitro-6-octylphenyl crotonate and 2,6-dinitro-4-octylphenyl crotonate and related nitro-octylphenols (principally dinitro, calculated as the ester) in dried apple pomace when present as a result of application of the fungicide and insecticide to the growing crop apples.

§ 186.2450 Dioxathion.

A tolerance of 18 parts per million is established for residues of dioxathion (2,3-*p*-dioxanedithiol-*S,S*-bis (*O,O*-diethylphosphorodithioate)) in dehydrated citrus pulp for cattle feed when present therein as a result of the application of the pesticide to the growing agricultural crop.

§ 186.2500 Diquat.

A feed additive regulation of 1.0 part per million (ppm) is established for residues of the desiccant diquat [6,7-dihydrodipyrido (1,2-*a*:2',1'-*c*) pyrazinediium] derived from application of the dibromide salt and calculated as

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the cation, in processed, dried potato waste.

[46 FR 30340, June 8, 1981. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.2550 Diuron.

A tolerance of 4 parts per million is established for residues of diuron (3-(3,4-dichlorophenyl)-1,1-dimethylurea) in dried citrus pulp for livestock feed when present therein as a result of the application of the pesticide in the production of citrus fruits.

§ 186.2700 Ethephon.

(a) A feed additive regulation is established permitting residue of the plant growth regulator ethephon [(2-chloroethyl) phosphonic acid] in or on the following feed commodities.

Food	Parts per million
Barley, milling fractions, except flour	5.0
Raisin waste	65.0
Sugarcane, molasses	1.5
Wheat, milling fractions, except flour	5.0

(b) [Reserved]

[47 FR 27064, June 23, 1982, as amended at 50 FR 14097, Apr. 10, 1985; 53 FR 5367, Feb. 24, 1988; 53 FR 12640, Apr. 15, 1988]

§ 186.2750 Ethion.

A tolerance of 10 parts per million is established for total residues of the insecticide ethion (*O,O,O',O'*-tetraethyl *S,S'*-methylene bisphosphorodithioate) including its oxygen analog (*S*-[[[(diethoxyphosphinothioyl)thio]-methyl]*O,O*-diethyl phosphorothioate) in dehydrated citrus pulp for cattle feed when present therein as a result of the application of the pesticide to the growing agricultural crop.

§ 186.2775 Ethofumesate.

Tolerances are established for combined residues of the herbicide ethofumesate (2-ethoxy-2,3-dihydro-3,3-dimethyl-5-benzofuranyl methanesulfonate; CAS Reg. No. 26225-79-6) and its metabolites 2-hydroxy-2,3-dihydro-3,3-dimethyl-5-benzofuranyl methanesulfonate and 2,3-dihydro-3,3-dimethyl-2-oxo-5-benzofuranyl methanesulfonate, (both calculated as

the parent compound) in or on the following processed feeds when present therein as a result of application of the herbicide to the growing crops:

Commodity	Parts per million
Sugar beet molasses	0.5

[54 FR 27644, June 30, 1989]

§ 186.2800 2-[1-(Ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one.

Tolerances are established for the combined residues of the herbicide 2-[1-(ethoxyimino)butyl]-5-[2-(ethylthio)propyl]-3-hydroxy-2-cyclohexen-1-one and its metabolites containing the 2-cyclohexen-1-one moiety (calculated as the herbicide) in or on the following commodities:

Food	Parts per million
Apple pomace, wet and dry	0.8
Canola/rapeseed	40.0
Citrus molasses	1.5
Cottonseed soapstock	15
Dried citrus pulp	1.5
Flaxseed meal	7
Grape pomace, wet and dry	6.0
Peanut soapstock	75.0
Processed potato waste (wet and dry)	8.0
Raisin waste	1.0
Sugar beet molasses	10.0
Sunflower meal	20.0
Tomato pomace, dried	12.0

[49 FR 31667, Aug. 8, 1984, as amended at 52 FR 1447, Jan. 14, 1987; 52 FR 27544, July 22, 1987; 53 FR 234, Jan. 6, 1988; 53 FR 23388, June 22, 1988. Redesignated at 53 FR 24668, June 29, 1988; 54 FR 35878, Aug. 30, 1989; 54 FR 53068, Dec. 27, 1989; 60 FR 4099, Jan. 20, 1995; 60 FR 28353, May 31, 1995]

§ 186.2950 Ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl)-phosphoramidate.

Tolerances are established for the combined residues of the nematocide ethyl 3-methyl-4-(methylthio)phenyl (1-methylethyl)-phosphoramidate and its cholinesterase-inhibiting metabolites ethyl 3-methyl-4-(methylsulfinyl)phenyl (1-methylethyl)-phosphoramidate and ethyl 3-methyl-4-(methylsulfonyl)phenyl (1-methylethyl) phosphoramidate in or on the following feed commodities:

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Food	Parts per million
Apple pomace (dried)	5.0
Citrus molasses	2.5
Citrus pulp (dried)	2.5
Grape pomace	1.0
Pineapple bran	10.0
Raisin waste	3.0

[48 FR 29839, June 29, 1983. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3000 O-Ethyl O-[4-(methylthio)phenyl] S-propyl phosphorodithioate.

A regulation is established to permit the combined residues of the insecticide *O*-ethyl *O*-[4-(methylthio)phenyl] *S*-propyl phosphorodithioate and its cholinesterase-inhibiting metabolites in or on the following feed commodities with the stated tolerance limitations resulting from application of the insecticide to growing crops as follows:

Food	Parts per million
Cottonseed hulls	10.0
Soybean hulls	1.0

[49 FR 49289, Dec. 19, 1984. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3050 S-[2-(Ethylsulfinyl)ethyl] O, O-dimethyl phosphorothioate.

A tolerance of 2.0 ppm is established for combined residues of the insecticide *S*-[2-(ethylsulfinyl)ethyl] *O,O*-dimethyl phosphorothioate and its cholinesterase-inhibiting metabolites in the milled fractions of sorghum (except flour) for animal feed when present therein as a result of application of the insecticide to growing sorghum.

[41 FR 28790, July 13, 1976. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3200 Fenarimol.

(a) A regulation is established to permit residues of the fungicide fenarimol [alpha-(2-chlorophenyl)-alpha-(4-chlorophenyl)-5-pyrimidinemethanol] in or on the following feed commodities:

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Commodity	Parts per million
Apple pomace (wet and dry)	2.0

(b) Tolerances are established to permit the combined residues of the fungicide fenarimol [alpha-(2-chlorophenyl)-alpha-(4-chlorophenyl)-5-pyrimidinemethanol] and its metabolites, alpha(2-chlorophenyl)alpha-(4-chlorophenyl)-1,4-dihydro-5-pyrimidine-methanol and 5[(2-chlorophenyl) (4-chlorophenyl)methyl]- 3,4-dihydro-4-pyrimidinol measured as the total of fenarimol and 5-[(2chlorophenyl)-(4-chlorophenyl)methyl]pyrimidine (calculated as fenarimol) in or on the following feed additive commodities:

Commodity	Parts per million
Grape pomace (wet & dry)	2.0
Raisin waste	3.0

[51 FR 39655, Oct. 30, 1986. Redesignated at 53 FR 24668, June 29, 1988, and amended at 53 FR 44403, Nov. 3, 1988]

§ 186.3225 Fenpropathrin

A feed additive tolerance is established for residues of the pesticide chemical fenpropathrin (*alpha*-cyano-3-phenoxybenzyl 2,2,3,3-tetramethylcyclopropanecarboxylate) as follows:

Commodity	Parts per million	Expiration date
Cottonseed hulls	2.0	Nov. 15, 1997

[58 FR 19359, Apr. 14, 1993, as amended at 60 FR 9786, Feb. 22, 1995]

§ 186.3250 Fluzifop-butyl.

Tolerances are established for residues of (±)-2-[4-[[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy]propanoic acid (fluzifop), both free and conjugated, and of (±)-butyl 2[4-[[5-(trifluoromethyl)-2-pyridinyl]oxy]phenoxy]propanoate (fluzifop-butyl), all expressed as fluzifop, in or on the following feeds:

Food	Parts per million
Cottonseed, soapstock	0.2
Soybean, meal	2.0

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Food	Parts per million
Soybean, soapstock	2.0

[48 FR 19023, Apr. 27, 1983. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3325 Flumiclorac pentyl; tolerances for residues.

Tolerances are established for residues of the herbicide flumiclorac pentyl, pentyl[2-chloro-4-fluoro-5-(1,3,4,5,6,7-hexahydro-1,3-dioxo-2H-isoindol-2-yl)phenoxy]acetate, including all the metabolites of flumiclorac pentyl, in or on the feeds listed below. The tolerance level for each commodity is expressed in terms of the parent only which serves as an indicator of the use of flumiclorac pentyl on these feeds.

Commodity	Parts per million
Soybean, hulls	0.02

[59 FR 61280, Nov. 30, 1994]

§ 186.3350 Fluometuron.

A tolerance of 0.2 part per million is established for residues of the herbicide fluometuron (1,1-dimethyl-3-(α,α,α -trifluoro-*m*-tolyl)urea) in or on sugarcane bagasse resulting from application of the herbicide to the growing raw agricultural commodity sugarcane.

§ 186.3375 Fluorine compounds.

A time-limited tolerance to expire on May 6, 1996, is established for residues of the insecticidal fluorine compounds cryolite and synthetic cryolite (sodium aluminum fluoride) in the following processed animal feed resulting from application of the compounds to growing crops:

Commodity	Parts per million
Potato waste, processed (wet or dry)	22.0

[58 FR 26689, May 5, 1993; 58 FR 37867, July 14, 1993]

§ 186.3400 (Alpha RS,2R)-fluvalinate [(RS)-alpha-cyano-3-phenoxybenzyl (R)-2-[2-chloro-4-(trifluoromethyl) anilino]-3-methylbutanoate].

A regulation is established permitting residues of the insecticide (alpha RS, 2R)-fluvalinate [(RS)-alpha-cyano-3-phenoxybenzyl (R)-2-[2-chloro-4-(trifluoromethyl) anilino]-3-methylbutanoate] in or on the following feed commodities:

Commodity	Parts per million
Cottonseed hulls	0.3
Cottonseed oil (crude and refined)	1.0

[51 FR 15317, Apr. 23, 1986; 51 FR 19168, May 28, 1986. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3450 Formetanate hydrochloride.

A tolerance of 10 parts per million is established for residues of the insecticide formetanate hydrochloride (*m*-[[[(dimethylamino)methylene]amino]-phenyl methylcarbamate hydrochloride) in citrus molasses resulting from application of the insecticide to the growing raw agricultural commodities grapefruit, lemons, limes, oranges, and tangerines.

§ 186.3500 Glyphosate.

(a) A feed additive regulation is established permitting residues of the herbicide glyphosate (*N*-(phosphonomethyl) glycine) and its metabolite aminomethylphosphonic acid in or on the following feed commodities.

Feeds	Parts per million
Citrus molasses	1.0

(b) A feed additive regulation is established permitting residues of glyphosate (*N*-(phosphonomethyl)glycine) in or on the following feed commodities.

Commodity	Parts per million
Citrus pulp, dried	1.5
Soybean, hulls	100.0

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[47 FR 47550, Oct. 27, 1982, as amended at 53 FR 9435, Mar. 23, 1988. Redesignated at 53 FR 24668, June 29, 1988, and amended at 57 FR 42701, Sept. 16, 1992; 61 FR 15196, Apr. 5, 1996]

§ 186.3550 Hexakis (2-methyl-2-phenylpropyl)distannoxane.

(a) Tolerances are established for combined residues of the insecticide hexakis (2-methyl-2-phenylpropyl)distannoxane and its organotin metabolites calculated as hexakis (2-methyl-2-phenylpropyl)distannoxane in the following processed feeds when present therein as a result of application of the insecticide to growing crops:

Commodity	Parts per million
Apple pomace, dried	100
Citrus pulp, dried	100
Grape pomace, dried	100
Raisin waste	80

(b) Tolerances with regional registration, as defined in §180.1(n) of this chapter, are established for residues of the pesticide hexakis in or on the following feed commodities:

Feed	Parts per million
Marigolds (dried and extract)	25.0

[58 FR 48321, Sept. 15, 1993, as amended at 59 FR 5109, Feb. 3, 1994]

§ 186.3575 Hexazinone.

A feed additive tolerance with regional registration, as defined in §180.1(n) and which excludes use of hexazinone on sugarcane in Florida, is established for combined residues of the herbicide hexazinone (3-cyclohexyl-6-(dimethylamino)-1-methyl-1,3,5-triazine-2,4(1*H*,3*H*)-dione) and its metabolites (calculated as hexazinone) in or on the following feed commodity:

Commodity	Parts per million
Sugarcane, molasses	5.0

[60 FR 42462, Aug. 16, 1995]

40 CFR Ch. I (7–1–96 Edition)**§ 186.3650 Imazalil.**

A tolerance is established for the combined residues of the fungicide imazalil 1-[2-(2,4-dichlorophenyl)-2-(2-propenyloxy)ethyl]-1*H*-imidazole and its metabolite 1-(2,4-dichlorophenyl)-2-(1*H*-imidazole-1-yl)-1-ethanol in or on the following feed commodity:

Food	Parts per million
Citrus pulp (dried)	25.0

[48 FR 28433, June 22, 1983. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3700 Inorganic bromides.

Tolerances are established for residues of inorganic bromides (calculated as Br) as follows:

(a) 400 parts per million for residues in or on dog food, resulting from fumigation with methyl bromide.

(b) 125 parts per million for residues in or on milled fractions for animal feed from barley, corn, grain sorghum (milo), oats, rice, rye, and wheat, resulting directly from fumigation with methyl bromide or from carryover and concentration of residues of inorganic bromides from fumigation of the grains with methyl bromide.

[40 FR 14161, Mar. 28, 1975, as amended at 49 FR 17150, Apr. 23, 1984; 51 FR 1785, Jan. 15, 1986. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3750 Iprodione.

Tolerances are established for combined residues of the fungicide iprodione [3-(3,5-dichlorophenyl)-*N*-(1-methylethyl)-2,4-dioxo-1-imidazolidinecarboxamide], its isomer [3-(1-methyl-ethyl)-*N*-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide], and its metabolite [3-(3,5-dichlorophenyl)-2,4-dioxo-1-imidazolidinecarboxamide] in or on the following feed commodities:

Food	Parts per million
Grape, pomace, dry	225.0
Raisin waste	300.0
Rice bran	30.0
Rice hulls	50.0

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Food	Parts per million
Soapstock	10.0

[50 FR 4208, Jan. 30, 1985, as amended at 50 FR 23676, June 5, 1985. Redesignated at 53 FR 24668, June 29, 1988; 54 FR 31833, Aug. 2, 1989]

§ 186.3765 Lambda-cyhalothrin.

A tolerance, to expire on November 15, 1997, is established for the combined residues of the insecticide lambda-cyhalothrin and its epimer expressed as lambda-cyhalothrin, a 1:1 mixture of (S)- α -cyano-3-phenoxybenzyl-(Z)-(1R,3R)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and (R)- α -cyano-3-phenoxybenzyl-(Z)-(1S,3S)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and its epimer of lambda-cyhalothrin, a 1:1 mixture of (S)- α -cyano-3-phenoxybenzyl-(Z)-(1S,3S)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate and (R)- α -cyano-3-phenoxybenzyl-(Z)-(1R,3R)-3-(2-chloro-3,3,3-trifluoroprop-1-enyl)-2,2-dimethylcyclopropanecarboxylate in or on the following feed commodities:

Food	Parts per million
Sunflower, hulls	0.50
Tomato pomace (dry or wet)	6.0
Wheat, bran	0.2

[60 FR 34878, July 5, 1995]

§ 186.3775 d-Limonene.

The feed additive d-limonene may be safely used in accordance with the following conditions:

(a) It is used with the active ingredients dihydro-5-pentyl-2(3H)-furanone and dihydro-5-heptyl-2(3H)-furanone in insect-repellent tablecloths and in insect-repellent strips used in feed-handling establishments.

(b) To assure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it

shall be used in accordance with such label and labeling.

[60 FR 16053, Mar. 29, 1995]

§ 186.3800 Magnesium phosphide.

The feed additive magnesium phosphide may be safely used in accordance with the following prescribed conditions:

(a) It is used to generate phosphine in the fumigation of animal feeds.

(b) To assure safe use of the additive, it is used in compliance with the label and labeling conforming to that registered with the U.S. Environmental Protection Agency. The labeling shall bear a warning to aerate the finished feed for 48 hours before use. A further warning shall state that under no condition should the formulation containing magnesium phosphide be used so that it or its unreacted residues will come in contact with any processed feed.

(c) Residues of phosphine in or on animal feeds do not exceed 0.1 part per million.

[43 FR 56040, Nov. 30, 1978; 44 FR 12031, Mar. 5, 1979. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.3850 Malathion.

Malathion (O,O-dimethyl dithiophosphate of diethyl mercaptosuccinate) may be safely used in feed in accordance with the following conditions.

(a) A tolerance of 50 parts per million is established for residues of malathion in dehydrated citrus pulp for cattle feed, when present as the result of the application of the pesticide to bagged citrus pulp during storage. Whether or not tolerances for residues of malathion on the fresh fruit have been established under section 408 of the Act, the total residue of malathion in the dried citrus pulp shall not exceed 50 parts per million.

(b) A tolerance of 10 parts per million is established for malathion in non-medicated cattle feed concentrate blocks resulting from its application as a pesticide to paper used in packaging the nonmedicated cattle feed concentrate blocks.

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§ 186.4000 Metalaxyl.

(a) A regulation is established permitting the combined residues of the fungicide metalaxyl [*N*-(2,6-dimethylphenyl)-*N*-(methoxyacetyl) alanine methyl ester] and its metabolites containing the 2,6-dimethylaniline moiety, and *N*-(2-hydroxymethyl-6-methyl)-*N*-(methoxyacetyl)-alanine methylester, each expressed as metalaxyl, in or on the following feed commodities:

Food	Parts per million
Apple, pomace (dry)	2.0
Apple, pomace (wet)	0.4
Citrus, molasses	7.0
Citrus, pulp	7.0
Grape pomace (dry)	10.0
Grape pomace (wet)	10.0
Hops, dry	2.0
Legume vegetable, cannery waste	5.0
Peanut, meal	1.0
Peanut, soapstock	2.0
Potato waste, dried, processed	4.0
Raisin waste	10.0
Soybean, hulls	2.0
Soybean, meal	2.0
Soybean, soapstock	2.0
Sugar beet molasses	1.0
Tomato pomace (dry and wet)	20.0

(b) Indirect or inadvertent tolerances. Tolerances are established for indirect or inadvertent residues of metalaxyl in the food commodities when present therein as a result of the application of metalaxyl to growing crops listed in 40 CFR 180.408(a) and other non-food crops as listed below:

Food	Parts per million
Barley, milling fractions	1.0
Oat milling fractions	1.0
Sugar beet molasses	5.0
Wheat, milling fractions	1.0

(c) [Reserved]

(d) A feed additive regulation is established for residues of the fungicide metalaxyl, [*N*-(2,6-dimethylphenyl)-*N*-(methoxyacetyl) alanine methyl ester], and its metabolites containing the 2,6-dimethylaniline moiety, and *N*-[2-hydroxymethyl-6-methylphenyl)-*N*-(methoxyacetyl) alanine methyl ester, each expressed as metalaxyl, in or on the following processed feeds when present therein as a result of application to growing hops.

Food	Parts per million
Hops, spent	20

[48 FR 3587, Jan. 26, 1983, as amended at 50 FR 49688, Dec. 4, 1985; 52 FR 41418, Oct. 28, 1987; 53 FR 8874, Mar. 18, 1988. Redesignated at 53 FR 24668, June 29, 1988, and amended at 54 FR 12445, Mar. 27, 1989; 54 FR 15874, Apr. 19, 1989; 56 FR 2442, Jan. 23, 1991; 56 FR 40259, Aug. 14, 1991; 56 FR 65003, Dec. 13, 1991; 58 FR 30123, May 26, 1993]

§ 186.4035 *Metarhizium anisopliae* strain ESF1.

A feed additive regulation is established allowing the use of the microbial pest-control agent *Metarhizium anisopliae* strain ESF1 as follows:

(a) *Metarhizium anisopliae* strain ESF1 may be present as a residue in or on processed animal feeds as a result of application of *Metarhizium anisopliae* strain ESF1 in feed-handling establishments, including areas where livestock and poultry feed is consumed, feed-manufacturing establishments and feed-processing establishments such as stores, supermarkets, dairies, poultry houses, livestock barns, meat-slaughtering and packing plants, and canneries, where feed and feed products are held, processed, sold and/or consumed by livestock or poultry.

(b) Application shall be limited solely to placement of attractant stations containing *Metarhizium anisopliae* strain ESF1 in animal feed-handling establishments.

(c) To ensure safe use of the microbial pest control agent, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[58 FR 29121, May 19, 1993]

§ 186.4050 Methanearsonic acid.

(a) A tolerance of 0.9 part per million (expressed as As₂O₃) is established for residues of the herbicide methanearsonic acid in cottonseed hulls from application of the disodium and monosodium salts of methanearsonic acid in the production of cotton.

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(b) [Reserved]

[40 FR 22132, May 21, 1975, as amended at 41 FR 31530, July 29, 1976; 53 FR 9435, Mar. 23, 1988. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.4150 Methoprene.

The feed additive methoprene (isopropyl (*E,E*)-11-methoxy-3,7,11-trimethyl-2,4-dodecadienoate) may be safely used in accordance with the following prescribed conditions:

(a) It is used as a feed additive in the form of mineral and/or protein blocks or other feed supplements in the feed of cattle at the rate of 22.7 to 45.4 milligrams per 100 pounds of body weight per month.

(b) It is used to prevent the breeding of hornflies in the manure of treated cattle.

(c) To ensure safe use of the additive, the label and labeling of the pesticide formulation containing this additive shall conform to the label and labeling registered by the U.S. Environmental Protection Agency.

(d) Tolerances are established for residues of the insect growth regulator methoprene (isopropyl (*E,E*)-11-methoxy-3,7,11-trimethyl-2,4-dodecadienoate) in or on the following feed additive commodities:

Feed	Parts per million
Cereal grain milled fractions (except flour and rice hulls)	10
Rice hulls	25

[42 FR 22363, May 3, 1977. Redesignated at 53 FR 24668, June 29, 1988, and amended at 59 FR 24060, May 10, 1994]

§ 186.4350 Myclobutanil.

Tolerances are established for combined residues of the fungicide myclobutanil [alpha-butyl-alpha-(4-chlorophenyl)-1*H*-1,2,4-triazole-1-propanenitrile] and its metabolite alpha-(3-hydroxybutyl)-alpha-(4-chlorophenyl)-1*H*-1,2,4-triazole-1-propanenitrile (free and bound) in or on the following feed additive commodities:

Commodity	Parts per million
Apple pomace (wet and dry)	5.0
Grape pomace (wet and dry)	10.0

Commodity	Parts per million
Raisin waste	25.0

[54 FR 6131, Feb. 8, 1989]

§ 186.4450 Norflurazon.

A regulation is established for the combined residues of the herbicide norflurazon (4-chloro-5-(methylamino)-2-(alpha, alpha, alpha-trifluoro-*m*-tolyl)-3(2*H*)-pyridazinone) and its desmethyl metabolite (4-chloro-5-amino-2-(alpha, alpha, alpha-trifluoro-*m*-tolyl)-3(2*H*)-pyridazinone) in citrus molasses at 1.0 part per million (ppm) and dried citrus pulp at 0.4 ppm when present therein as a result of the application of the pesticide to the growing crop.

[47 FR 14897, Apr. 7, 1982. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.4575 Oxamyl.

A tolerance of 6 parts per million is established for residues of the insecticide oxamyl (methyl *N,N'*-dimethyl-*N*-[(methylcarbamoyl)oxy]-1-thiooxamidate) in pineapple bran as a result of application of the insecticide to growing pineapples.

[43 FR 41386, Sept. 18, 1978. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.4700 Paraquat.

Tolerances are established for residues of the defoliant, desiccant, and herbicide paraquat (1,1'-dimethyl-4,4'-bipyridinium ion) derived from the application of either the bis(methyl sulfate) or dichloride salt (both calculated as the cation) in the following processed feeds when present therein as a result of application of paraquat to the growing crops:

Food	Parts per million
Mint, hay, spent	3.0
Sunflower, seed hulls	6.0

[48 FR 7331, Feb. 24, 1983. Redesignated at 53 FR 24668, June 29, 1988]

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§ 186.4750 Phorate.

A tolerance of 1 part per million is established for residues of the insecticide phorate (*O,O*-diethyl *S*-(ethylthiomethyl) phosphorodithioate) in or on dried sugarbeet pulp for cattle feed when present therein as a result of application of the insecticide to the growing agricultural crop.

§ 186.4800 Phosalone.

Tolerances are established for residues of the insecticide phosalone (*S*-(6-chloro-3-(mercaptomethyl)-2-benzoxazolinone)*O,O*,-diethyl phosphorodithioate) in or on the following processed foods, when present therein as a result of the application of this insecticide to growing crops:

- 85 parts per million in or on dried apple pomace.
- 45 parts per million in or on dried grape pomace.
- 12 parts per million in or on dried citrus pulp.

§ 186.4850 Picloram.

Tolerances are established for residues of picloram [4-amino-3,5,6-trichloro-picolinic acid] resulting from the application of the pesticide to growing crops in the following:

Food	Parts per million
Barley, milled fractions (exc flour)	3
Oats, milled fractions (exc flour)	3
Wheat, milled fractions (exc flour)	3

[41 FR 19211, May 11, 1976. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.4900 Piperonyl butoxide.

The food additive piperonyl butoxide may be safely used in accordance with the following prescribed conditions:

- (a) It is used or intended for use in combination with pyrethrins for control of insects:
 - (1) On the outer ply of multiwall paper bags of 50 pounds or more capacity in amounts not exceeding 60 milligrams per square foot.
 - (2) On cotton bags of 50 pounds or more capacity in amounts not exceeding 55 milligrams per square foot of cloth. Such treated bags are con-

structed with waxed paper liners and are to be used only for dried feeds that contain 4 percent fat or less.

(b) It is used in combination with pyrethrins, whereby the amount of piperonyl butoxide is equal to 10 times the amount of pyrethrins in the formulation. Such treated bags are to be used only for dried feeds.

(c) A tolerance of 10 parts per million is established for residues of piperonyl butoxide when present as the result of migration:

- (1) In or on dried feeds from its use on the outer ply of multiwall paper bags of 50 pounds or more capacity.
- (2) In or on dried feeds that contain 4 percent fat, or less, from its use on cotton bags of 50 pounds or more capacity constructed with waxed paper liners.
- (d) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency.

(e) Where tolerances are established under sections 408 and 409 of the Act on both raw agricultural commodities and processed foods made therefrom, the total residues of piperonyl butoxide in or on the processed food shall not be greater than that permitted by the larger of the two tolerances.

§ 186.4950 Pirimiphos-methyl.

(a) Tolerances are established for the combined residues of the insecticide pirimiphos-methyl (*O*-[2-diethylamino-6-methyl-4-pyrimidinyl] *O,O*-dimethyl phosphorothioate) and its metabolite *O*-(2-ethylamino-6-methyl-pyrimidin-4-yl) *O,O*-dimethyl phosphorothioate and, in free and conjugated forms, the metabolites 2-diethylamino-6-methyl-pyrimidin-4-ol, 2-ethylamino-6-methyl-pyrimidin-4-ol, and 2-amino-6-methyl-pyrimidin-4-ol in or on the following processed feeds when present therein as a result of application to stored grains:

Food	Parts per million
Corn milling fractions (except flour)	40
Sorghum milling fractions (except flour)	40

(b) [Reserved]

[53 FR 8874, Mar. 18, 1988. Redesignated at 53 FR 24668, June 29, 1988]

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§ 186.4975 Profenofos.

A regulation is established permitting residues of the insecticide profenofos [O-(4-bromo-2-chlorophenyl)-O-ethyl-S-propyl phosphorothioate] and its metabolites converted to 4-bromo-2-chlorophenol and calculated as profenofos in cottonseed hulls at 6.0 ppm and in soapstock at 15.0 ppm resulting from the application of the insecticide to the growing crop, cotton.

[47 FR 30479, July 14, 1982. Redesignated at 53 FR 24668, June 29, 1988. Correctly redesignated at 53 FR 28383, July 28, 1988]

§ 186.5000 Propargite.

(a) Tolerances are established for residues of the insecticide propargite (2-(*p*-*tert*-butylphenoxy)cyclohexyl 2-propynyl sulfite) in the following processed feeds, when present therein as a result of the application of propargite to growing crops:

Food	Parts per million
Apple pomace, dried	80
Citrus pulp, dried	40
Grape pomace, dried	40

(b) [Reserved]

[53 FR 9435, Mar. 23, 1988. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.5100 Propetamphos.

A tolerance of 0.1 part per million is established for residues of the insecticide propetamphos ([*e*]-methylethyl 3-[[[(ethylamino) methoxyphosphinothioyl]oxy]-2-butenate]) in animal feed exposed to the insecticide during treatment of animal feed-handling establishments.

(a) Direct application shall be limited solely to spot and/or crack and crevice treatment in feed-handling establishments where feed and feed products are held, processed, prepared, or sold. Spray and dust concentrations shall be limited to a maximum of 1 percent active ingredient. For crack and crevice treatment, equipment capable of delivering a dust or a pinstream of spray directly into cracks and crevices shall be used. For spot treatment, a coarse, low-pressure spray shall be used

to avoid contamination of feed or feed-contact surfaces.

(b) To ensure safe use of the insecticide, its label and labeling shall conform to that registered by the U.S. Environmental Protection Agency, and it shall be used in accordance with such label and labeling.

[48 FR 52903, Nov. 23, 1983. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.5200 Pyrethrins.

The food additive pyrethrins may be safely used in accordance with the following prescribed conditions:

(a) It is used or intended for use in combination with piperonyl butoxide for control of insects:

(1) On the outer ply of multiwall paper bags of 50 pounds or more capacity in amounts not exceeding 6 milligrams per square foot.

(2) On cotton bags of 50 pounds or more capacity in amounts not exceeding 5.5 milligrams per square foot of cloth. Such treated bags are constructed with waxed paper liners and are to be used only for dried feeds that contain 4 percent fat or less.

(b) It is used in combination with piperonyl butoxide, whereby the amount of pyrethrins is equal to 10 percent of the amount of piperonyl butoxide in the formulation. Such treated bags are to be used only for dried feeds.

(c) A tolerance of 1 part per million is established for residues of pyrethrins when present as the result of migration:

(1) In or on dried feeds from its use on the outer ply of multiwall paper bags of 50 pounds or more capacity.

(2) In or on dried feeds that contain 4 percent fat, or less, from its use on cotton bags of 50 pounds or more capacity constructed with waxed paper liners.

(d) To assure safe use of the additive, its label and labeling shall conform to that registered with the U.S. Environmental Protection Agency.

(e) Where tolerances are established under sections 408 and 409 of the Act on both raw agricultural commodities and processed foods made therefrom, the total residues of pyrethrins in or on the processed food shall not be greater

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than that permitted by the larger of the two tolerances.

§ 186.5250 Quizalofop ethyl.

(a) A feed additive regulation is established to permit the combined residues of the herbicide quizalofop (2-[4-(6-chloroquinoxalin-2-yl oxy) phenoxy]propanoic acid) and quizalofop ethyl (ethyl 2-[4-(6-chloroquinoxalin-2-yl oxy)phenoxy] propanoate, all expressed as quizalofop ethyl, in or on the feed commodities:

Commodity	Parts per million
Soybean hulls	0.02
Soybean meal	0.5
Soybean soapstock	1.0

(b) A feed additive regulation to expire June 14, 1999, is established to permit the combined residues of the herbicide quizalofop-p-ethyl ester [ethyl (R)-2-[4-((6-chloroquinoxalin-2-yl)oxy)phenoxy]propanoate], and its acid metabolite quizalofop-p [R-(2-(4-((6-chloroquinoxalin-2-yl)oxy)phenoxy)propanoic acid), and the S enantiomers of the ester and the acid, all expressed as quizalofop-p-ethyl ester in or on sugar beet molasses at 0.2 part per million (ppm).

[53 FR 23387, June 29, 1988. Redesignated at 53 FR 24668, June 29, 1988, as amended at 61 FR 30175, June 14, 1996; 61 FR 33799, June 28, 1996]

§ 186.5350 Simazine.

A tolerance of 1 part per million is established for residues of the herbicide simazine (2-chloro-4,6-bis(ethylamino)-s-triazine) in the sugarcane byproduct molasses intended for animal feed, resulting from application of the herbicide to the growing crop sugarcane.

§ 186.5400 Synthetic isoparaffinic petroleum hydrocarbons.

Synthetic isoparaffinic petroleum hydrocarbons complying with 21 CFR 172.882 (a) and (b) may be safely used as a component of insecticide formulations for use on animal feeds in an amount no greater than reasonably required to accomplish its intended effect as an adjuvant in the insecticide

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formulation and shall not be intended to accomplish any effect in animal feed. It is used or intended for use as a component of insecticide formulations used in compliance with regulations issued in 40 CFR part 180 and in this part.

[40 FR 14161, Mar. 28, 1975, as amended at 50 FR 2959, Jan. 23, 1985, and amended at 53 FR 24668, 24669, June 29, 1988]

§ 186.5450 Tralomethrin.

(a) A time-limited feed additive regulation is established permitting residues of tralomethrin ((S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3S)-2,2-dimethyl-3-[(RS)-1,2,2,2-tetrabromoethyl]-cyclopropanecarboxylate; CAS Reg. No. 66841-25-6) and its metabolites (S)-*alpha*-cyano-3-phenoxybenzyl (1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate and (S)-*alpha*-cyano-3-phenoxybenzyl(1S,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate calculated as the parent in or on the following feed resulting from application of the insecticide to tomatoes in accordance with an experimental program (34147-EUP-2). The conditions set forth in this section shall be met.

Feed	Parts per million	Expiration date
Tomato pomace, wet	1.50	June 1, 1997.
Tomato pomace, dry	4.00	Do.

(1) Residues in the feed not in excess of the established tolerance resulting from the use described in paragraph (a) of this section remaining after expiration of the experimental program will not be considered to be actionable if the insecticide is applied during the term of and in accordance with the provisions of the experimental use program and feed additive regulation.

(2) The company concerned shall immediately notify the Environmental Protection Agency of any findings from the experimental use that have a bearing on safety. The firm shall also keep records of production, distribution, and performance, and on request make the

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records available to any authorized officer or employee of the Environmental Protection Agency or the Food and Drug Administration.

(b) A feed additive tolerance of 0.02 part per million is established for the combined residues of the insecticide tralomethrin ((S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3S)-2,2-dimethyl-3-[(RS)-1,2,2,2-tetrabromoethyl]cyclopropanecarboxylate) and its metabolites *cis*-deltamethrin [(S)-*alpha*-cyano-3-phenoxybenzyl-(1R,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] and *trans*-deltamethrin [(S)-*alpha*-cyano-3-phenoxybenzyl (1S,3R)-3-(2,2-dibromovinyl)-2,2-dimethylcyclopropanecarboxylate] as follows:

(1) In or on all feed items (other than those covered by a higher tolerance as a result of use on growing crops) in feed-handling establishments.

(2) The insecticide may be present as a residue from application of tralomethrin in feed-handling establishments, including feed manufacturing and processing establishments in accordance with the following prescribed conditions:

(i) Application shall be limited to a general surface and spot and/or crack and crevice treatment in feed-handling establishments where feed and feed products are held or processed. General surface application may be used only when the facility is not in operation provided exposed feed has been covered or removed from the area being treated. All feed-contact surfaces and equipment must be thoroughly cleaned after general surface applications. Spot and/or crack and crevice application may be used while the facility is in operation provided exposed feed is covered or removed from the area being treated prior to application. Spray concentration shall be limited to a maximum of 0.06 percent active ingredient. Contamination of feed and feed-contact surfaces shall be avoided.

(ii) To assure safe use of the insecticide, its label and labelling shall conform to that registered with the U.S. Environmental Protection Agency and

shall be used in accordance with such label and labelling.

[60 FR 38266, July 26, 1995, as amended at 60 FR 54612, Oct. 25, 1995]

§ 186.5550 Thiabendazole.

(a) Tolerances are established for residues of thiabendazole (2-(4-thiazolyl)benzimidazole) in the following processed feeds when present as a result of the application of this pesticide to growing crops or post-harvest crops:

Food	Parts per million
Apple pomace, dried (POST-H)	33
Beets, sugar, pulp (dried and/or dehydrated)	3.5
Citrus molasses	20
Citrus pulp, dried (POST-H)	35
Grape, pomace (dry or wet)	150.0
Potato processing waste (PRE- & POST-H)	30
Rice, hulls	8
Wheat milled fractions (except flour)	3.0

(b) [Reserved]

[44 FR 4468, Jan. 22, 1979, as amended at 45 FR 46068, July 9, 1980; 47 FR 39480, Sept. 8, 1982; 50 FR 14098, Apr. 10, 1985; 53 FR 9435, Mar. 23, 1988. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.5600 Thidiazuron.

A regulation is established for the combined residues of the defoliant thidiazuron (*N*-phenyl-*N'*-1,2,3-thiadiazol-5-ylurea) and its aniline containing metabolites in cottonseed hulls at 0.8 ppm when present therein as a result of the application of the pesticide to the growing crop.

[47 FR 25954, June 16, 1982. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.5650 Thiodicarb.

Tolerances are established for residues of thiodicarb (dimethyl *N*, *N'*-[thiobis[(methylimino)carbonyloxy]] bis [ethanimidothioate]) and its metabolite methomyl in or on the following processed feeds when present therein as a result of application of this insecticide to growing crops:

Food	Parts per million
Cottonseed hulls	0.8

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Food	Parts per million
Soybean hulls	0.8

[50 FR 41344, Oct. 10, 1985. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.5700 Thiophanate-methyl.

Tolerances are established for residues of the fungicide thiophanate-methyl (dimethyl [(1,2-phenylene)bis(iminocarbonothioyl)], bis [carbamate]), its oxygen analogue dimethyl-4, 4'-o-phenylene bis (allophanate), and its benzimidazole-containing metabolites (calculated as thiophanatemethyl) in or on the following commodity:

Food	Parts per million
Apple, dried pomace	40.0

[46 FR 12957, Feb. 19, 1981; 46 FR 18023, Mar. 23, 1981. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.5800 S,S,S-Tributyl phosphorotrithioate.

A tolerance of 6 parts per million is established for residues of the defoliant S,S,S-tributyl phosphorotrithioate in or on cottonseed hulls. Such residue may be present only as a result of application of the defoliant to the growing cotton crop.

§ 186.5850 Triflumizole.

Tolerances are established for the combined residues of the fungicide triflumizole, 1-(1-((4-chloro-2-(trifluoromethyl)phenyl)imino)-2-propoxyethyl)-1H-imidazole, and its metabolites containing the 4-chloro-2-trifluoromethylaniline moiety, calculated as the parent compound, in or

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on the following processed feed commodities when present therein as a result of application to growing crops:

Commodity	Parts per million
Apple pomace	2.0
Grape pomace	15.0
Raisin waste	10.0

[59 FR 59167, Nov. 16, 1994]

§ 186.5950 Triforine.

A feed additive regulation is established to permit residues of the fungicide triforine (*N,N*-[1,4-piperazinediylbis(2,2,2-trichloroethylidene)]bis[formamide]) in or on processed feeds when present therein as a result of application to growing hops:

Food	Parts per million
Hops, spent	60

[52 FR 39222, Oct. 21, 1987. Redesignated at 53 FR 24668, June 29, 1988]

§ 186.6300 Zinc ion and maneb coordination product.

Tolerances are established for residues of a fungicide which is a coordination product of zinc ion and maneb (manganous ethylenebisdithiocarbamate) containing 20 percent manganese, 2.5 percent zinc, and 77.5 percent ethylenebisdithiocarbamate (the whole product calculated as zinc ethylenebisdithiocarbamate) in or on the following processed feed, when present therein as a result of the application of this fungicide to growing crops: 20 parts per million in the milled feed fractions of barley, oats, rye, and wheat.

PARTS 187–189—[RESERVED]

FINDING AIDS

A list of CFR titles, subtitles, chapters, subchapters and parts and an alphabetical list of agencies publishing in the CFR are included in the CFR Index and Finding Aids volume to the Code of Federal Regulations which is published separately and revised annually.

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Material Approved for Incorporation by Reference

(Revised as of July 1, 1996)

The Director of the Federal Register has approved under 5 U.S.C. 552(a) and 1 CFR Part 51 the incorporation by reference of the following publications. This list contains only those incorporations by reference effective as of the revision date of this volume. Incorporations by reference found within a regulation are effective upon the effective date of that regulation. For more information on incorporation by reference, see the preliminary pages of this volume.

40 CFR CHAPTER I (PART 180): SUBCHAPTER E—PESTICIDE PROGRAMS ENVIRONMENTAL PROTECTION AGENCY

40 CFR

The following is available from the Document Control Officer,
Rm. E-107, Office of Pesticides and Toxic Substances, Environ-
mental Protection Agency, 401 M St., SW., Washington, DC 20460.

Williams & Wilkinson

Baltimore, MD

Bergey's Manual of Determinative Bacteriology, Eighth Ed., 1974, 180.1011(a)(1)
pp. 530-536.

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The OMB control numbers for chapter I of title 40 were consolidated into §9.1 at 58 FR 27472, May 10, 1993, and amended at 58 FR 34199, June 23, 1993, and 58 FR 34370, June 25, 1993. Section 9.1 is reprinted below for the convenience of the user.

PART 9—OMB APPROVALS UNDER THE PAPERWORK REDUCTION ACT

AUTHORITY: 7 U.S.C. 135 et seq., 136–136y; 15 U.S.C. 2001, 2003, 2005, 2006, 2601–2671; 21 U.S.C. 331j, 346a, 348; 31 U.S.C. 9701; 33 U.S.C. 1251 et seq., 1311, 1313d, 1314, 1318, 1321, 1326, 1330, 1342, 1344, 1345 (d) and (e), 1361; E.O. 11735, 38 FR 21243, 3 CFR, 1971–1975 Comp. p. 973; 42 U.S.C. 241, 242b, 243, 246, 300f, 300g, 300g–1, 300g–2, 300g–3, 300g–4, 300g–5, 300g–6, 300j–1, 300j–2, 300j–3, 300j–4, 300j–9, 1857 et seq., 6901–6992k, 7401–7671q, 7542, 9601–9657, 11023, 11048.

§9.1 OMB approvals under the Paperwork Reduction Act.

This part consolidates the display of control numbers assigned to collections of information in certain EPA regulations by the Office of Management and Budget (OMB) under the Paperwork Reduction Act (PRA). This part fulfills the requirements of section 3507(f) of the PRA.

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265.52	2050-0120	265.444	2050-0050
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270.19	2050–0009	280.20(e)	2050–0068
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721.285	2070-0012	721.1645	2070-0012
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721.470	2070-0012	721.1755	2070-0012
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721.520	2070-0012	721.1775	2070-0012
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721.536	2070-0012	721.1800	2070-0012
721.540	2070-0012	721.1820	2070-0012
721.550	2070-0012	721.1825	2070-0012
721.562	2070-0012	721.1850	2070-0012
721.575	2070-0012	721.1875	2070-0012
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721.925	2070-0012	721.2120	2070-0012
721.950	2070-0012	721.2140	2070-0012
721.982	2070-0012	721.2170	2070-0012
721.1000	2070-0012	721.2175	2070-0012
721.1025	2070-0038	721.2250	2070-0012
721.1050	2070-0012	721.2260	2070-0012
721.1068	2070-0012	721.2270	2070-0012
721.1075	2070-0012	721.2275	2070-0012
721.1120	2070-0012	721.2287	2070-0038
721.1150	2070-0012	721.2340	2070-0012
721.1175	2070-0012	721.2355	2070-0038
721.1187	2070-0012	721.2380	2070-0012
721.1193	2070-0012	721.2410	2070-0012
721.1210	2070-0012	721.2420	2070-0012
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721.1240	2070-0012	721.2520	2070-0012
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721.2940	2070-0012	721.4215	2070-0012
721.2950	2070-0012	721.4220	2070-0012
721.2980	2070-0012	721.4240	2070-0012
721.3000	2070-0012	721.4250	2070-0012
721.3020	2070-0012	721.4255	2070-0012
721.3028	2070-0012	721.4260	2070-0012
721.3034	2070-0012	721.4270	2070-0012
721.3040	2070-0012	721.4280	2070-0012
721.3060	2070-0012	721.4300	2070-0012
721.3080	2070-0012	721.4320	2070-0012
721.3100	2070-0012	721.4340	2070-0012
721.3120	2070-0012	721.4360	2070-0038
721.3140	2070-0012	721.4380	2070-0012
721.3152	2070-0012	721.4390	2070-0012
721.3160	2070-0038	721.4400	2070-0012
721.3180	2070-0012	721.4420	2070-0012
721.3200	2070-0012	721.4460	2070-0012
721.3220	2070-0038	721.4463	2070-0012
721.3248	2070-0012	721.4466	2070-0012
721.3260	2070-0012	721.4470	2070-0012
721.3320	2070-0012	721.4473	2070-0012
721.3340	2070-0012	721.4480	2070-0012
721.3350	2070-0038	721.4490	2070-0012
721.3360	2070-0012	721.4500	2070-0012
721.3364	2070-0012	721.4520	2070-0012
721.3374	2070-0012	721.4550	2070-0012
721.3380	2070-0012	721.4568	2070-0012
721.3390	2070-0012	721.4585	2070-0012
721.3420	2070-0012	721.4590	2070-0012
721.3430	2070-0038	721.4594	2070-0012
721.3435	2070-0012	721.4600	2070-0012
721.3437	2070-0012	721.4620	2070-0012
721.3440	2070-0012	721.4640	2070-0012
721.3460	2070-0012	721.4660	2070-0012
721.3480	2070-0012	721.4680	2070-0012
721.3486	2070-0012	721.4700	2070-0012
721.3500	2070-0012	721.4720	2070-0012
721.3520	2070-0012	721.4740	2070-0038
721.3560	2070-0012	721.4780	2070-0012
721.3620	2070-0012	721.4790	2070-0012
721.3625	2070-0012	721.4794	2070-0012
721.3627	2070-0012	721.4800	2070-0012
721.3629	2070-0012	721.4820	2070-0012
721.3640	2070-0012	721.4840	2070-0012
721.3680	2070-0012	721.4880	2070-0012
721.3700	2070-0012	721.4925	2070-0038
721.3720	2070-0012	721.5050	2070-0012
721.3740	2070-0012	721.5075	2070-0012
721.3760	2070-0012	721.5175	2070-0038
721.3764	2070-0012	721.5192	2070-0012
721.3780	2070-0012	721.5200	2070-0012
721.3790	2070-0012	721.5225	2070-0012
721.3800	2070-0012	721.5250	2070-0012
721.3815	2070-0012	721.5275	2070-0012
721.3840	2070-0012	721.5278	2070-0012
721.3860	2070-0012	721.5282	2070-0012
721.3870	2070-0012	721.5285	2070-0012
721.3880	2070-0012	721.5300	2070-0012
721.3900	2070-0012	721.5310	2070-0012
721.4000	2070-0012	721.5325	2070-0012
721.4020	2070-0012	721.5330	2070-0012
721.4040	2070-0012	721.5350	2070-0012
721.4060	2070-0012	721.5375	2070-0012
721.4080	2070-0038	721.5385	2070-0012
721.4100	2070-0012	721.5400	2070-0012
721.4110	2070-0012	721.5425	2070-0012
721.4128	2070-0012	721.5450	2070-0012
721.4133	2070-0012	721.5475	2070-0012
721.4140	2070-0038	721.5500	2070-0012
721.4155	2070-0038	721.5525	2070-0012
721.4160	2070-0038	721.5540	2070-0012
721.4180	2070-0038	721.5550	2070-0012

OMB Control Numbers

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40 CFR citation	OMB control No.	40 CFR citation	OMB control No.
721.5575	2070-0012	721.7160	2070-0012
721.5600	2070-0038	721.7180	2070-0012
721.5700	2070-0012	721.7200	2070-0012
721.5705	2070-0012	721.7210	2070-0012
721.5710	2070-0038	721.7220	2070-0012
721.5740	2070-0012	721.7240	2070-0012
721.5760	2070-0012	721.7260	2070-0012
721.5763	2070-0012	721.7280	2070-0012
721.5769	2070-0012	721.7300	2070-0012
721.5780	2070-0012	721.7320	2070-0012
721.5800	2070-0012	721.7340	2070-0012
721.5820	2070-0012	721.7360	2070-0012
721.5840	2070-0012	721.7370	2070-0012
721.5860	2070-0012	721.7400	2070-0012
721.5867	2070-0012	721.7420	2070-0012
721.5880	2070-0012	721.7440	2070-0012
721.5900	2070-0012	721.7450	2070-0012
721.5910	2070-0012	721.7460	2070-0012
721.5915	2070-0012	721.7480	2070-0012
721.5920	2070-0012	721.7500	2070-0012
721.5960	2070-0012	721.7540	2070-0012
721.5970	2070-0012	721.7560	2070-0012
721.5980	2070-0012	721.7580	2070-0012
721.5990	2070-0012	721.7600	2070-0012
721.6000	2070-0038	721.7620	2070-0012
721.6020	2070-0012	721.7655	2070-0012
721.6060	2070-0012	721.7660	2070-0012
721.6070	2070-0012	721.7680	2070-0012
721.6080	2070-0012	721.7780	2070-0012
721.6085	2070-0012	721.7710	2070-0012
721.6090	2070-0012	721.7720	2070-0012
721.6100	2070-0012	721.7700	2070-0012
721.6110	2070-0012	721.7740	2070-0012
721.6120	2070-0012	721.7760	2070-0012
721.6140	2070-0012	721.7770	2070-0012
721.6160	2070-0012	721.8075	2070-0012
721.6180	2070-0012	721.8082	2070-0012
721.6186	2070-0012	721.8090	2070-0012
721.6200	2070-0012	721.8100	2070-0012
721.6220	2070-0012	721.8155	2070-0012
721.6440	2070-0012	721.8160	2070-0012
721.6470	2070-0012	721.8170	2070-0012
721.6500	2070-0012	721.8175	2070-0012
721.6520	2070-0012	721.8225	2070-0012
721.6540	2070-0012	721.8250	2070-0012
721.6560	2070-0012	721.8265	2070-0012
721.6580	2070-0012	721.8275	2070-0012
721.6600	2070-0012	721.8290	2070-0012
721.6620	2070-0012	721.8300	2070-0012
721.6625	2070-0012	721.8325	2070-0012
721.6640	2070-0012	721.8335	2070-0012
721.6660	2070-0012	721.8350	2070-0012
721.6680	2070-0012	721.8375	2070-0012
721.6700	2070-0012	721.8400	2070-0012
721.6720	2070-0012	721.8425	2070-0012
721.6740	2070-0012	721.8450	2070-0012
721.6760	2070-0012	721.8475	2070-0012
721.6780	2070-0012	721.8500	2070-0012
721.6820	2070-0012	721.8525	2070-0012
721.6840	2070-0012	721.8550	2070-0012
721.6880	2070-0012	721.8575	2070-0012
721.6900	2070-0012	721.8600	2070-0012
721.6920	2070-0012	721.8650	2070-0012
721.6940	2070-0012	721.8654	2070-0012
721.6960	2070-0012	721.8670	2070-0012
721.6980	2070-0012	721.8675	2070-0012
721.7000	2070-0012	721.8700	2070-0012
721.7020	2070-0012	721.8750	2070-0012
721.7040	2070-0012	721.8775	2070-0012
721.7046	2070-0012	721.8825	2070-0012
721.7080	2070-0012	721.8850	2070-0012
721.7100	2070-0012	721.8875	2070-0012
721.7140	2070-0012	721.8900	2070-0012

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40 CFR citation	OMB control No.
721.8965	2070–0012
721.9000	2070–0038
721.9075	2070–0012
721.9100	2070–0012
721.9220	2070–0012
721.9240	2070–0012
721.9260	2070–0012
721.9280	2070–0012
721.9300	2070–0012
721.9320	2070–0012
721.9360	2070–0012
721.9400	2070–0012
721.9420	2070–0012
721.9460	2070–0012
721.9470	2070–0038
721.9480	2070–0012
721.9500	2070–0012
721.9505	2070–0012
721.9510	2070–0012
721.9520	2070–0012
721.9525	2070–0012
721.9526	2070–0012
721.9527	2070–0012
721.9530	2070–0012
721.9540	2070–0012
721.9550	2070–0012
721.9570	2070–0012
721.9580	2070–0038
721.9620	2070–0012
721.9630	2070–0012
721.9650	2070–0012
721.9656	2070–0012
721.9658	2070–0012
721.9660	2070–0038
721.9665	2070–0012
721.9675	2070–0012
721.9700	2070–0012
721.9720	2070–0012
721.9730	2070–0012
721.9740	2070–0012
721.9750	2070–0012
721.9780	2070–0012
721.9800	2070–0012
721.9820	2070–0012
721.9850	2070–0012
721.9870	2070–0012
721.9892	2070–0012
721.9900	2070–0012
721.9920	2070–0012
721.9925	2070–0012
721.9930	2070–0038
721.9940	2070–0012
721.9957	2070–0038
721.9975	2070–0012
Premanufacture Notification Exemptions	
723.50	2070–0012
723.175	2070–0012
723.250(m)(1)	2070–0012
Lead-Based Paint Poisoning Prevention in Certain Residential Structures	
part 745, subpart F	2070-0151
Water Treatment Chemicals	
part 749, subpart D	2060–0193
749.68	2060–0193

40 CFR citation	OMB control No.
Polychlorinated Biphenyls (PCBs) Manufacturing, Processing, Distribution in Commerce, and Use Prohibitions	
761.20	2070–0008 & 2070–0021
761.30	2070–0003, 2070–0008 & 2070–0021
761.60	2070–0011
761.65	2070–0112
761.70	2070–0011
761.75	2070–0011
761.80	2070–0021
761.93(a)(1)(iii)	2070–0149
761.93(b)	2070–0149
761.125	2070–0112
761.180	2070–0112
761.185	2070–0008
761.187	2070–0008
761.193	2070–0008
761.202	2070–0112
761.205	2070–0112
761.207	2070–0112
761.207(a)	2050–0039
761.208	2070–0112
761.209	2070–0112
761.210	2070–0112
761.211	2070–0112
761.215	2070–0112
761.218	2070–0112
Asbestos	
part 763, subpart E	2070–0091
part 763, subpart G	2070–0072
part 763, subpart I	2070–0082
Dibenzo-para-dioxin/Dibenzofurans	
766.35(b)(1)	2070–0054
766.35(b)(2)	2070–0054
766.35(b)(3)	2070–0017
766.35(b)(4)(iii)	2070–0054
766.35(c)(1)(i)	2070–0054
766.35(c)(1)(ii)	2070–0054
766.35(c)(1)(iii)	2070–0017
766.35(d) Form	2070–0017
766.38	2070–0054
Procedures Governing Testing Consent Agreements and Test Rules	
790.5	2070–0033
790.42	2070–0033
790.45	2070–0033
790.50	2070–0033
790.55	2070–0033
790.60	2070–0033
790.62	2070–0033
790.68	2070–0033
790.80	2070–0033
790.82	2070–0033
790.85	2070–0033
790.99	2070–0033
Good Laboratory Practice Standards	
part 792	2010–0019,

OMB Control Numbers

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40 CFR citation	OMB control No.
	2070-0004, 2070-0017, 2070-0033, 2070-0054 & 2070-0067
Provisional Test Guidelines	
795.45	2070-0067
795.232	2070-0033
Identification of Specific Chemical Substance and Mixture Testing Requirements	
799.1053	2070-0033
799.1250	2070-0033
799.1560	2070-0033
799.1575	2070-0033
799.1645	2070-0033
799.1700	2070-0033
799.2155	2070-0033
799.2325	2070-0033
799.2475	2070-0033
799.2500	2070-0033
799.2700	2070-0033
799.3300	2070-0033
799.4360	2070-0033
799.4440	2070-0033
799.5000	2070-0033
799.5025	2070-0033
799.5050	2070-0033
799.5055	2070-0033

40 CFR citation	OMB control No.
799.5075	2070-0033

¹The ICRs referenced in this section of the Table encompass the applicable general provisions contained in 40 CFR part 60, subpart A, which are not independent information collection requirements.

²The ICRs referenced in this section of the Table encompass the applicable general provisions contained in 40 CFR part 61, subpart A, which are not independent information collection requirements.

³The ICRs referenced in this section of the Table encompass the applicable general provisions contained in 40 CFR part 63, subpart A, which are not independent information collection requirements.

[58 FR 27472, May 10, 1993]

EDITORIAL NOTE: For Federal Register citations affecting §9.1 see the List of CFR Sections Affected in the Finding Aids section of this volume.

EFFECTIVE DATE NOTES: 1. At 61 FR 16309, Apr. 12, 1996, in §9.1 table, the heading “Public Information” and its entry for part 2, subpart B were added, effective July 11, 1996.

2. At 61 FR 33206, June 26, 1996, in §9.1 table, the entry for 170.112 was removed and the entry for part 170 was added, effective Aug. 26, 1996.

3. At 61 FR 34228, July 1, 1996, in §9.1 table, entries 71.5, 71.6(a),(c),(d),(g), 71.7, and 71.9(e)-(j) were added, effective July 31, 1996.

Pesticide Tolerance Commodity/Chemical Index

For the convenience of the user, the Office of Pesticide Programs, Office of Prevention, Pesticides and Toxic Substances, Environmental Protection Agency, has developed the following Pesticide Tolerance Commodity Index. This index indicates the name of the commodity, pesticide chemical, and allowable tolerances.

For technical questions regarding the preparation of this index and the correlated commodity index, inquiries may be made to: Biological Analysis Branch (7503W), Office of Pesticide Programs, Environmental Protection Agency, 401 M St., SW., Washington, DC 20460, ((703) 305-8181).

Questions regarding pesticide tolerances and how they are established may be directed to: Dietary Exposure Branch (7509C), Office of Pesticide Programs, EPA, same mailing address as above, ((703) 305-7324).

General questions about pesticides and pesticide regulations may be directed to: Public Response and Program Resources Branch (7506C), Office of Pesticide Programs, EPA, same mailing address as above, ((703) 305-5805).

ELECTRONIC AVAILABILITY

The EPA Pesticide Tolerances Index is available from the Federal Bulletin Board in two ways: Subscription and single purchase.

The File Library EPA—TIS is intended for subscribers only and is not accessible to nonsubscribers. It contains the software programs and the latest single issue of the data base file. Subscribers have access to the EPA—TIS File Library and may download the program software and 12 monthly issues of the data base files for an annual fee of \$72.

The File Library EPA—TI was established for single purchase of the software and individual issues for the monthly data base files.

Files from December 1993 forward are available in the EPA—T File Library. Purchased individually in File Library EPA—T, the retrieval and reporting software (file name TISINFO.EXE) and the indexing software (file TISINDEX.EXE) costs \$13 in total and

the monthly issues cost approximately \$7 each (depending on file size).

Subscription orders: To order by subscription, log on to the Federal Bulletin Board at (202) 512-1387. If you are not already a user of the Board, enter "new" at the USER-ID prompt and follow the instructions to create a USER-ID and PASSWORD. From the Main Menu, select "D Federal Agencies" and then, from the list of Federal agencies, select "Environmental Protection Agency." This brings up the first EPA menu; select Order EPA Tolerance Index Subscription" and finally, from the list of subscriptions, select "Pesticide Tolerance Index - SUBS" and follow the prompts through the ordering process.

"New" users will have 60 minutes to complete the order, but may log on again if more time is required. It is necessary to enter Visa, Master Card, or prepaid Superintendent of Documents Deposit Account information to order the Pesticide Tolerance Index Subscription. Please have that information available when you call.

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Additional information: There is no charge to log on to the Federal Bulletin Board and browse the File Libraries. Payment becomes necessary only if you download a paid file or display it on your monitor. It is very unlikely

Pesticide Tolerance Commodity/Chemical Index

that you will accidentally incur a charge since each paid file includes the price in the File Description. The Federal Bulletin Board is operated as a nonprofit, cost-recovery service of the U.S. Government Printing Office (GPO). This bulletin board service (BBS) enables Federal agencies to provide the public immediate, self-service access to Government information in electronic form at reasonable rates.

TOLERANCE INDEX SYSTEM—TIS

Terms abbreviated in TIS reports:

APPLI = application
C-I MET = cholinesterase-inhibiting metabolites
CARB = carbamates
Conc = concentrated
CT.F. = cattle feed
EPWRR = edible portion with rind removed
EXC. = except
FAR = food additive regulation
FEAR = feed additive regulation
GRAS = generally regarded as safe
GT. F. = goat feed
INC. = including
K+C = kernel plus cob
K+CWHR = kernel plus cob with husk removed
LS. F. = livestock feed
MBYP = meat byproducts

MFG = manufactured
MIN = minimum
NMT = not more than
Non-Per Bag/Pkgd RAC = nonperishable packaged/bagged raw agricultural commodity
NONMED. = nonmedicated
ppm = parts per million
Post-H = postharvest application
Pre-H = preharvest application
Pre-S = preslaughter application
RAC = raw agricultural commodity
Sh. F. = sheep feed
Trans = transplant
TRT = treatment

Types

I = interim tolerance
L = time-limited tolerance
N = negligible residues
R = Region/State tolerance
T = temporary tolerance
X = permanent tolerance that has been revoked

Refer to §180.1 for definitions and interpretations. For the general category of raw agricultural commodities and the corresponding specific raw agricultural commodities, refer to §180.1(h). Refer to §180.34(f) for additional crop groupings.

40 CFR Ch. I (7–1–96 Edition)

CROSS-REFERENCE LISTING OF COMMON AND CHEMICAL NAMES USED IN THE PESTICIDE TOLERANCE COMMODITY INDEX AND IN 40 CFR PART 180

Common/Chemical Name	Preferred Name
4-Amino-6-[1,1-dimethylethyl]-3-[methylthio]-1,2,4-triazin-5[4 <i>H</i>]-one. Ammonium benzadox (Benzamidoxy acetic acid). AMS	Metribuzin Ammonium benzadox Ammonium sulphamate <i>Bacillus thuringiensis</i> <i>Bacillus thuringiensis</i> CryIA[c] δ-endotoxin and the genetic material necessary for its production
<i>Bacillus thuringiensis</i> var. <i>kurstaki</i> δ-endotoxin protein as produced by the CryIA[c] gene and its controlling sequences.	
Basic zinc sulfate	Zinc sulfate, basic
Benzoic acid, 2-[[[4,6-dimethyl-2-pyrimidinyl]amino]carbonyl]amino] sulfonyl]-3-oxetanyl ester (9CI).	2-[[[4,6-Dimethyl-2-pyrimidinyl] amino]carbonyl] amino] sulfonyl] benzoic acid, 3-oxetanyl ester
N6-Benzyladenine	Promalin
3,6-Bis[2-chlorophenyl]-1,2,4,5-tetrazine	Clofentezine
1,1-Bis[chlorophenyl]-2,2,2-trichloro ethanol.	Dicofol
Bis[4-fluorophenyl]methyl[1 <i>H</i> -1,2,4-triazol-1-yl methyl]-silane.	Flusilazole
Boron sodium oxide, tetrahydrate	Disodium octaborate tetrahydrate
<i>Burkholderia</i> [<i>Pseudomonas</i>] <i>cepia</i> type Wisconsin.	<i>Pseudomonas cepacia</i> type Wisconsin Benfluralin
N-Butyl-N-ethyl-α,α,α-trifluoro-2,6-dinitro- <i>p</i> -toluidine.	
1-[Carboethoxy]ethyl-5-[2-chloro-4-[trifluoromethyl]phenoxy]-2-nitrobenzoate.	Lactofen
2-Carbomethoxy-1-methylvinyl dimethyl phosphate, α-isomer and related compounds.	Mevinphos
9-[<i>o</i> -Carboxyphenyl]-6-hydroxy-3 <i>H</i> -xanthen-3-one, disodium salt.	Uranine
2-Chloroallyl diethylthiocarbamate	Sulfallate
2-Chloro-1-[2,4-dichlorophenyl]vinyl diethyl phosphate.	Chlorfenvinphos
3-Chloro-5-[[[4,6-dimethoxy-2-pyrimidinyl]amino]carbonyl] amino] sulfonyl]-1-methyl-1 <i>H</i> -pyrazole-4-carboxylic acid, methyl ester.	Halosulfuron
2-Chloroethyl trimethyl ammonium chloride.	Chlormequat chloride
2-[[4-Chloro-6-[ethylamino]- <i>S</i> -triazin-2-yl]amino]-2-methylpropionitrile.	Cyanazine
2-Chloro- <i>N</i> -isopropylacetanilide	Propachlor
2-Chloro- <i>N</i> -[[1-methyl-2-methoxy]ethyl]- <i>N</i> -[2,4-dimethylthien-3-yl]-acetamide.	Acetamide
1-[4-Chlorophenoxy]-3,3-dimethyl-1-[1 <i>H</i> -1,2,4-triazol-1-yl]-2-butanone.	Triadimefon
2-[<i>m</i> -Chlorophenoxy]propionic acid	Cloprop
<i>p</i> -Chlorophenyl 2,4,5-trichlorophenyl sulfide.	Tetrasul
<i>trans</i> -5-[4-Chlorophenyl]- <i>n</i> -cyclohexyl-4-methyl-2-oxothiazolidine-3-carboxamide.	Hexythiazox
2-[2-Chlorophenyl]methyl-4,4-dimethyl-3-isoxazolidinone.	Clomazone
2-[4-[6-Chloroquinoxalin-2-yl oxy]phenoxy]propanoate.	Quizalofop-ethyl

CROSS-REFERENCE LISTING OF COMMON AND CHEMICAL NAMES USED IN THE PESTICIDE TOLERANCE COMMODITY INDEX AND IN 40 CFR PART 180—Continued

Common/Chemical Name	Preferred Name
2-Chloro-1-[2,4,5-trichlorophenyl]vinyl dimethyl phosphate.	Tetrachlorvinphos
5-[2-Chloro-4-[trifluoromethyl]phenoxy]- <i>N</i> -[methylsulfonyl]-2-nitrobenzamide.	Fomesafen
<i>N</i> -[2-Chloro-4-[trifluoromethyl]phenyl]-DL-valine[+/-]-cyano[3-phenoxyphenyl] methyl ester.	Fluvalinate
3,6-Dichloro-2-pyridinecarboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	Clopyralid
Copper[II] oxide	Cupric oxide
Cyano[4-fluoro-3-phenoxyphenyl] methyl-3-[2,2-dichloroethyl]-2,2-dimethyl cyclo propanecarboxylate.	Cyfluthrin
α-Cyano-3-phenoxy benzyl-2,2,3,3-tetramethylcyclo propanecarboxylate.	Fenpropathrin
1-α-[<i>S</i>]-3-α-[<i>Z</i>]-Cyano-[3-phenoxyphenyl]methyl 3-[2-chloro-3,3,3-trifluoro-1-propenyl]-2,2-dimethyl cyclopropanecarboxylate.	Cyhalothrin
Cyano[3-phenoxyphenyl]methyl 4-chloro-α-[1-methylethyl] benzeneacetate (9CA).	Fenvalerate
α-Cyano-[3-phenoxyphenyl]methyl- <i>cis,trans</i> -3-[2,2-dichloroethyl]-2,2-dimethyl cyclopropanecarboxylate.	Cypermethrin
[+/-]-α-Cyano-[3-phenoxyphenyl] methyl[+/-]- <i>cis</i> -3-[<i>Z</i> -2-chloro-3,3,3-trifluoroprop-1-enyl]-2,2-dimethylcyclopropanecarboxylate.	Lambda-cyhalothrin
2-Cyano-2-phenyl-2-[<i>beta-p</i> -chloro phenethyl]ethyl-1 <i>H</i> -1,2,4-triazole.	Fenbuconazole
D & C Red No. 28	Phloxine B
<i>N,N</i> -Diallyl-2-chloroacetamide	Allidochlor
Dichlorodiphenyldichloroethane	TDE
Dichlorodiphenyltrichloroethane	DDT
<i>S</i> -[2,3-Dichloroallyl] diisopropylthiocarbamate.	Di-allate
4,5-Dichloro-2-cyclohexyl-4-isothiazolin-3-one [8CA & 9CA].	Aqueous extract of seaweed meal
3,5-Dichloro- <i>N</i> -[1,1-dimethyl-2-propynyl]benzamide.	Propyzamide
2,6-Dichloro-4-nitroaniline	Dicloran
2,4-Dichloro-6-[<i>o</i> -chloroanilino]- <i>S</i> -triazine.	Anilazine
2,4-Dichlorophenyl <i>p</i> -nitrophenyl ether	Nitrofen
3-[3,5-Dichlorophenyl]-5-ethenyl-5-methyl-2,4-oxazolidinedione [9CA].	Vinclozolin
[<i>RS</i>]-2-[2,4-Dichlorophenyl]-1-[1 <i>H</i> -1,2,4-triazole-1-yl]hexan-2-ol.	Hexaconazole
1-[[2-[2,4-Dichlorophenyl]-4-propyl-1,3-dioxolan-2-yl]methyl]-1 <i>H</i> -1,2,4-triazole.	Propiconazole
2-[3,5-Dichlorophenyl]-2-[2,2,2-trichloroethyl] oxirane.	Tridiphane
3,6-Dichloro-2-pyridinecarboxylic acid ...	Clopyralid
3,6-Dichloro-2-pyridinecarboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	3,6-Dichloro-2-pyridinecarboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)
2,2-Dichlorovinyl dimethyl phosphate	Dichlorvos
Diethylphenyl dichloroethane and related compounds.	Ethylan

Pesticide Tolerance Commodity/Chemical Index

CROSS-REFERENCE LISTING OF COMMON AND CHEMICAL NAMES USED IN THE PESTICIDE TOLERANCE COMMODITY INDEX AND IN 40 CFR PART 180—Continued

Common/Chemical Name	Preferred Name
<i>O,O</i> -Diethyl <i>O</i> -[3-chloro-4-methyl-2-oxo-2 <i>H</i> -1-benzopyran-7-yl]phosphorothioate.	Coumaphos
<i>O,O</i> -Diethyl <i>O</i> -[<i>p</i> -[methylsulfinyl]phenyl]phosphorothioate.	Fensulfotion
<i>O,O</i> -Diethyl <i>O</i> -2-pyrazinyl phosphorothioate.	Thionazin
<i>O,O</i> -Diethyl <i>S</i> -[2-[ethylthio]ethyl]phosphorodithioate.	Disulfoton
<i>N</i> -[2,6-Difluorophenyl]-5-methyl[1,2,4]triazol-1,5- α -pyrimidine-2-sulfonamide.	Flumetsulam
Dihydro-5-heptyl-2[3 <i>H</i>]-furanone	5-Heptyldihydro-2[3 <i>H</i>]-furanone Imazaquin
2-[4,5-Dihydro-4-methyl-4-[1-methylethyl]-5-oxo-1 <i>H</i> -imidazol-2-yl]-3-quinoline carboxylic acid.	
1,2-Dihydro-3,6-pyridazinedione	Maleic hydrazide
<i>S</i> [<i>O,O</i> -Diisopropyl phosphorodithioate] ester of <i>N</i> -[2-mercaptoethyl] benzenesulfonamide.	Bensulide
<i>O,O</i> -Dimethyl <i>O</i> -[4-nitro- <i>m</i> -tolyl]phosphorothioate.	Fenitrothion
Dimethyl phosphate ester of α -methylbenzyl 3-hydroxy- <i>cis</i> -crotonate.	Crotoxyphos
Dimethyl phosphate ester of 3-hydroxy- <i>N</i> -methyl- <i>cis</i> -crotonamide.	Monocrotophos
Dimethyl phosphate ester of 3-hydroxy- <i>N,N</i> -dimethyl- <i>cis</i> -crotonamide.	Dicrotophos
<i>O,O</i> -Dimethyl <i>S</i> -[[4-oxo-1,2,3-benzotriazin-3[4 <i>H</i>]-yl]methyl]phosphorodithioate.	Azinphos-Methyl
Dimethyl tetrachloroterephthalate	Chlorthal-dimethyl
Dimethyl [2,2,2-trichloro-1-hydroxyethyl]phosphonate.	Trichlorfon
<i>O</i> -[2-[1,1-Dimethylethyl]-5-pyrimidinyl] <i>O</i> -ethyl- <i>O</i> -[1-methylethyl]phosphorothioate.	Phostebupirim
<i>N,N</i> -Dimethylpiperidinium chloride	Mepiquat chloride
2,6-Dimethyl-4-tridecylmorpholine	Tridemorph
4,6-Dinitro- <i>o</i> -cresol	DNOC
2,4-Dinitro-6-octyl* phenyl crotonate, 2,6-dinitro-4-octyl* phenyl crotonate and nitrooctylphenols (* A mixture of 1-methylheptyl, 1-ethylhexyl and 1-propylpentyl).	Dinocap
Di- <i>n</i> -propylmaleate isosafrole condensate.	Propyl isome
Dodecachlorooctahydro-1,3,4-metheno-1 <i>H</i> -cyclobuta[cd]pentalene.	Mirex
<i>E,E</i> -8,10-Dodecadien-1-ol	Isomate-C
6-Ethoxy-1,2-dihydro-2,2,4-trimethylquinoline.	Ethoxyquin
2-[1-[Ethoxymino]butyl]-5-[2-[ethylthio]propyl]-3-hydroxy-2-cyclohexen-1-one.	Sethoxydim
5-Ethoxy-3-[trichloromethyl]-1,2,4-thiadiazole.	Etridiazole
Ethyl 2-[[[4-chloro-6-methoxy pyrimidine-2-yl]amino carbonyl]amino sulfonyl] benzoic acid.	Chlorimuron ethyl
Ethyl 4,4'-dichlorobenzilate	Chlorobenzilate
<i>S</i> -Ethyl diisobutylthiocarbamate	Butylate
<i>S</i> -Ethyl dipropylthiocarbamate	EPTC
<i>S</i> -Ethyl hexahydro-1 <i>H</i> -azepine -1-carbothioate.	Molinate

CROSS-REFERENCE LISTING OF COMMON AND CHEMICAL NAMES USED IN THE PESTICIDE TOLERANCE COMMODITY INDEX AND IN 40 CFR PART 180—Continued

Common/Chemical Name	Preferred Name
Ethyl 3-methyl-4-[methylthio]phenyl 1-[methylethyl] phosphoramidate (9CA).	Fenamiphos
<i>O</i> -Ethyl <i>O</i> -[4-[methylthio]phenyl] <i>S</i> -propyl phosphorodithioate.	Sulprofos
<i>O</i> -Ethyl <i>S</i> -phenyl ethylphosphonodithioate.	Fonofos
Ethyl-2-[[4-[6-chloro-2-benzoxazolyl oxy]] phenoxy] propionate.	Fenoxaprop-ethyl
<i>S</i> -[2-[Ethylsulfinyl]ethyl] <i>O,O</i> -dimethyl phosphorothioate.	Oxydemeton-methyl
<i>O</i> -[2-[Ethylthio]ethyl] <i>O,O</i> -dimethyl phosphorothioate and <i>S</i> -[2-[ethylthio]ethyl] <i>O,O</i> -dimethyl phosphorothioate.	Demeton- <i>S</i> -methyl
C(12-18)-Fatty acid potassium salts	Potassium salts of fatty acids (C(12-18))
Folex	Merphos
Halosulfuron-methyl	Halosulfuron
Inclusion bodies of multinuclear polyhedrosis virus of <i>Anagrapha falcifera</i> .	<i>Anagrapha falcifera</i> multinuclear polyhedrosis virus
Isopropyl carbanilate	Propham
Isopropyl <i>N</i> -[3-chlorophenyl]carbamate	Chlorpropham
Isopropylamine glyphosate	Glyphosate, isopropylamine salt
	Bentazon
3-Isopropyl-1 <i>H</i> -2,1,3-benzothiadiazin-4[3 <i>H</i>]-one 2,2-dioxide.	
Lead arsenate (Standard)	Lead arsenate
Manganous dimethyldithiocarbamate	Manam
<i>N</i> -(Mercaptomethyl)phthalimide <i>S</i> -(<i>O,O</i> -dimethyl phosphorodithioate).	Phosmet
Metachlorophenprop	Clopro
Methyl 2-[[[[[4,6-dimethoxy-2-pyrimidin-2-yl] amino]carbonyl] amino]sulfonyl]methyl]benzoate.	Bensulfuron-methyl
Methyl 5-[[[4,6-dimethoxy-2-pyrimidinyl]amino]carbonylamino sulfonyl]-3-chloro-1-methyl-1 <i>H</i> -pyrazole-4-carboxylate.	Halosulfuron
1-Methyl 2-[[ethoxy[[1-methylethyl]amino] phosphinothioyl]oxy] benzoate.	Isufenphos
Methyl 3-[[[[4-methoxy-6 methyl-1,3,5-triazin-2-yl]-amino]carbonyl] amino] sulfonyl-2-thiophene carboxylate.	Thifensulfuron methyl
Methyl 2-[[[[[4-methoxy-6-methyl-1,3,5-triazin-2-yl]amino]-carbonyl]amino]sulfonyl]benzoate.	Metsulfuron-methyl
Methyl 2-[[[[[<i>N</i> -[4-methoxy-6-methyl-1,3,5-triazin-2-yl]-methylamino] carbonyl]amino]sulfonyl]benzoate.	Tribenuron-methyl
2-Methyl-4-chlorophenoxyacetic acid	MCPA
4-[2-Methyl-4-chlorophenoxy]butyric acid.	MCPB
2,2'-Methylenebis[4-chlorophenol]	Dichlorophen
2,2'-Methylenebis[3,4,6-trichlorophenol]	Hexachlorophene
exo-1-Methyl-4-[1-methylethyl]-2-[2-methylphenyl]methoxyl-7-oxa bicyclo[2.2.1]heptane.	Cinmethylin
6-Methyl-2,3-quinoxalinedithiol cyclic <i>S,S</i> -dithiocarbonate.	Chinomethionat
4-[Methylthio]-3,5-xylyl methylcarbamate.	Methiocarb

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CROSS-REFERENCE LISTING OF COMMON AND CHEMICAL NAMES USED IN THE PESTICIDE TOLERANCE COMMODITY INDEX AND IN 40 CFR PART 180—Continued

Common/Chemical Name	Preferred Name
Mixture of 5.2 parts by weight (83.9%) of [ethylenebis[dithiocarbamate]]zinc with 1 part by weight (16.1%) ethylenebis[dithiocarbamic acid], bimolecular and trimolecular cyclic anhydrosulfide.	Metiram
Monocarbamide dihydrogen sulfate	Sulfuric acid, monourea adduct
Myricyl alcohol	1-Triacontanol
Nonanoic acid	Pelargonic acid
Occlusion bodies of the granulosis virus of <i>Cydia pomonella</i> .	<i>Cydia pomonella</i> granulosis virus
Octamethylpyrophosphoramidate	Schradan
Petroleum distillate, oils, solvent, or hydrocarbons; also paraffinic hydrocarbons, aliphatic hydrocarbons.	Petroleum hydrocarbons
<i>N</i> -[Phenylmethyl]-1 <i>H</i> -purin-6-amine	Promalin
Poly- <i>N</i> -acetyl- <i>D</i> -glucosamine	Chitin
Poly- <i>D</i> -glucosamine	Chitosan
Polyhedral inclusion bodies of <i>Spodoptera exigua</i> .	Beet armyworm NPV (polyhedral inclusion bodies of <i>Spodoptera exigua</i>)
Polyhedrosis inclusion bodies of Beet Armyworm nuclear polyhedrosis virus.	Beet armyworm NPV (polyhedral inclusion bodies of <i>Spodoptera exigua</i>)
Potassium 1-[<i>p</i> -chlorophenyl]-1,4-dihydro-6-methyl-4-oxopyridazine-3-carboxylate.	Fenridazone-potassium
Primisulfuron-methyl	Primisulfuron
<i>S</i> -Propyl butylethylthiocarbamate	Pebulate
<i>S</i> -Propyl dipropylthiocarbamate	Vernolate
Quinomethionate	Chinomethionat
Silicon dioxide	Diatomaceous earth
Sodium 2-chloro-6-[4,6-dimethoxy pyrimidin-2-ylthio]benzoate.	Pyrrithiobac sodium salt
Sodium 2-[2,4-dichlorophenoxy] ethyl sulfate.	Disul-Na
Sodium metaborate	Sodium borate

CROSS-REFERENCE LISTING OF COMMON AND CHEMICAL NAMES USED IN THE PESTICIDE TOLERANCE COMMODITY INDEX AND IN 40 CFR PART 180—Continued

Common/Chemical Name	Preferred Name
<i>Spodoptera exigua</i> nuclear polyhedrosis virus.	Beet armyworm NPV (polyhedral inclusion bodies of <i>Spodoptera exigua</i>)
Spod-X	Beet armyworm NPV (polyhedral inclusion bodies of <i>Spodoptera exigua</i>)
1,2,4,5-Tetrachloro-3-nitrobenzene	Tecnazene
Tetraethyl pyrophosphate	TEPP
Tetrahydro-5,5-dimethyl-2-[1 <i>H</i>]-pyrimidinone[3-[4-trifluoromethyl]phenyl]-1-[2-[4-trifluoromethyl]phenyl]ethenyl]-2-propenylidene]hydrazone.	Hydramethylnon
Thiameturon-methyl	Thifensulfuron methyl
2-[4-Thiazolyl]benzimidazole	Thiabendazole
<i>m</i> -Toluic acid, 6-[4-isopropyl-4-methyl-5-oxo-2-imidazoline-2-yl], methyl ester and 128843 <i>p</i> -Toluic acid, 6-[4-isopropyl-4-methyl-5-oxo-2-imidazoline-2-yl], methyl ester.	Imazethabenz
<i>S,S,S</i> -Tributyl phosphorotrithioate	Tribuphos
Tributyl phosphorotrithioate	Merphos
<i>S</i> -[2,3,3-Trichloroallyl] diisopropylthiocarbamate.	Tri-allate
2,3,6-Trichlorophenylacetic acid	Chlorfenac
3,7,11-Trimethyl-2,6,10-dodecatriene-1-ol and 3,7,11-trimethyl-1,6,10-dodecatriene-3-ol.	Farnesol
Trimethylphenyl methylcarbamate residues from use of the 3,4,5- and 2,3,5- isomers (180.305).	Trimethacarb
Trimethylsulfonium carboxymethylaminomethylphosphonate.	Sulfonium, trimethyl-, salt with <i>N</i> -[phosphonomethyl]glycine [1:1]
Triphenyltin hydroxide	Fentin hydroxide
Zinc ion and manganese ethylenebisdithiocarbamate (80%); a coordination compound between manganese (16%), zinc (2%), and ethylenebisdithiocarbamate (62%).	Mancozeb

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Acerola				Alfalfa, Hay			
Glyphosate and its metabolites.	180.364	0.2		Azinphos-methyl	180.154	5.0	
Paraquat dichloride	180.205	0.05		Carbaryl	180.169	100.0	
Alfalfa				Carbofuran	180.254	40.0	
Aqueous extract of sea-weed meal.	180.1042	exempt		Chlorpropham	180.319	50.0	I
Azinphos-methyl	180.154	2.0		Chlorpyrifos	180.342	13.0	
<i>Beauveria bassiana</i>	180.1146	exempt		Cyfluthrin	180.436	10.00	L
Benfluralin	180.208	0.05	N	Di-allate	180.277	0.05	X
Bromoxynil	180.324	0.1		Diazinon	180.153	10.0	
Carbaryl	180.169	100.0		Disulfoton	180.183	12.0	
Chlorpropham	180.319	20.0	I	Endosulfan	180.182	1.0	
4-(2,4-Dichlorophenoxy) butyric acid.	180.331	0.2	N	Fenthion	180.214	18.0	
Dimethoate	180.204	2.0		Glyphosate, isopropylamine salt.	180.364	200.00	
Diuron	180.106	2.0		Hexazinone	180.396	8.0	
Fenthion	180.214	5.0		Imazethapyr	180.447B	3.0	
Formaldehyde	180.1032	exempt		MCPA	180.339	0.1	
Glyphosate and its metabolites.	180.364	200.0		Metalaxyl	180.408	20.0	
Isobutyric acid	180.1030	exempt		Methidathion	180.298	12.0	
L(+)-Lactic acid	180.1001	exempt		Metribuzin	180.332	7.0	
Malathion	180.111	135.0		Parathion	180.121	5.0	
MCPA	180.339	0.1		Permethrin	180.378	55.0	
Methidathion	180.298	12.0		Phorate	180.206	1.0	
Methomyl	180.253	10.0		Propham	180.319	5.0	I
Methoxychlor	180.120	100.0		Sethoxydim	180.412	40.0	
Mevinphos	180.157	1.0		Simazine	180.213	15.0	
Paraquat dichloride	180.205	5.0		TEPP	180.347	0.01	N
Phosmet	180.261	40.0		Terbacil	180.209	5.0	
Propham	180.319	2.0	I	Trichlorfon	180.198	90.0	
Propionic acid	180.1023	exempt		Trifluralin	180.207	0.2	N
Simazine	180.213	15.0		Alfalfa, Hay (Post-H)			
Tetrachlorvinphos	180.252	110.0		Methyl bromide	180.123	50.0	
Trichlorfon	180.198	60.0		Sodium diacetate	180.1058	exempt	
Urea	180.1117	exempt		Alfalfa, Hay, For Seed			
Alfalfa, Chaff, For Seed				Oxydemeton-methyl	180.330	11.0	
Oxydemeton-methyl	180.330	11.0		Allspice (Post-H)			
Alfalfa, Forage				Hydrocyanic acid	180.130	250.0	
Cyfluthrin	180.436	5.00	L	Almonds			
Glyphosate, isopropylamine salt.	180.364	75.0		Abamectin	180.449	0.005	
Imazethapyr	180.447B	3.0		Azinphos-methyl	180.154	0.3	
Metalaxyl	180.408	6.0		Captan	180.103	2.0	I
Sethoxydim	180.412	40.0		Carbaryl	180.169	1.0	
Simazine	180.213	15.0		Chlorpyrifos	180.342	0.2	
Terbacil	180.209	5.0		Cyhexatin	180.144	0.5	
Alfalfa, Fresh				Dalapon	180.150	10.0	
Carbofuran	180.254	10.0		Diazinon	180.153	0.5	
Di-allate	180.277	0.05	X	Endosulfan	180.182	0.2	N
Diazinon	180.153	40.0		Ethion	180.173	0.1	
Disulfoton	180.183	5.0		Fenbutatin oxide	180.362	0.5	
Endosulfan	180.182	0.3		Fenvalerate	180.379	0.2	
Glyphosate and its metabolites.	180.364	0.2		Ferbam	180.114	0.1	
Parathion	180.121	1.25		L(+)-Lactic acid	180.1001	exempt	
Permethrin	180.378	25.0		Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Phorate	180.206	0.5		Maneb	180.110	0.1	
TEPP	180.347	0.01	N	Metalaxyl	180.408	0.5	
Alfalfa, Green				Naled	180.215	0.5	
Metribuzin	180.332	2.0		Oxyfluorfen	180.381	0.05	
Oxydemeton-methyl	180.330	5.0		Parathion	180.121	0.1	N
Alfalfa, Green, Forage				Permethrin	180.378	0.05	
Chlorpyrifos	180.342	3.0		Phosalone	180.263	0.1	N
Hexazinone	180.396	2.0		Propargite	180.259	0.1	
				Propylene oxide	180.491	150	L
				Putrescent whole egg solids.	180.1071	exempt	
				Sesame plant, ground ...	180.1087	exempt	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Thiophanate-methyl	180.371	0.2	N
Triadimefon	180.410	0.05	
Urea	180.1117	exempt	
Ziram	180.116	0.1	
Almonds (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Hydrocyanic acid	180.130	25.0	
Methyl bromide	180.123	200.0	
(Z,Z)-3,13-Octadeca dien-1-ol acetate.	180.1055	exempt	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Almonds (Pre- and Post-H)			
Malathion	180.111	8.0	
Almonds, Hulls			
Abamectin	186.300	0.10	
Azinphos-methyl	180.154	10.0	
Benomyl	180.294	1.0	
Captan	180.103	100.0	
Carbaryl	180.169	40.0	
Chlorpyrifos	180.342	12.0	
Clofentezine	180.446	5.0	
Cyhexatin	180.144	60.0	
Dalapon	180.150	50.0	
Diazinon	180.153	3.0	
Dichlobenil	180.231	0.15	N
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N
Endosulfan	180.182	1.0	
EPTC	180.117	0.1	N
Ethion	180.173	5.0	
Fenbutatin oxide	180.362	80.0	
Fenvalerate	180.379	15.0	
Glufosinate-ammonium	180.473	0.50	L
Glyphosate and its metabolites.	180.364	1.0	
Glyphosate, isopropylamine salt.	180.364	25	
Iprodione	180.399	2.0	
Metalaxyl	180.408	10.0	
Methidathion	180.298	6.0	
Metolachlor	180.368	0.3	
Myclobutanil	180.443	2.0	
Naled	180.215	0.5	
Norflurazon	180.356	1.0	
Oryzalin	180.304	0.05	
Oxyfluorfen	180.381	0.1	
Oxyfluorfen	180.381	0.1	
Paraquat dichloride	180.205	0.5	
Parathion	180.121	3.0	
Permethrin	180.378	20.0	
Phosalone	180.263	50.0	
Phosmet	180.261	10.0	
Propargite	180.259	55.0	
Sethoxydim	180.412	2.0	
Simazine	180.213	0.25	
Sulfonium, trimethyl-, salt with N-(phosphonomethyl)glycine (1:1).	180.489	1.00	
Thiophanate-methyl	180.371	1.0	
Triadimefon	180.410	0.1	
Triforine	180.382	0.2	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Almonds, Hulls and Nuts			
Simazine	180.213	0.25	
Almonds, Hulls (Pre- and Post-H)			
Malathion	180.111	50.0	
Almonds, Meat			
Clofentezine	180.446	0.5	
Iprodione	180.399	0.3	
Myclobutanil	180.443	0.1	
Norflurazon	180.356	0.1	
Triforine	180.382	0.01	
Animal Feed			
Aluminum phosphide (residues calculated as phosphide)	186.200	0.1	
Bendiocarb	186.2150	FEAR	
Diatomaceous earth	186.1700	FEAR	
Diazinon	186.1750	FEAR	
Dihydro-5-pentyl-2(3H)-furanone	186.1985	FEAR	
5-Heptyldihydro-2(3H)-furanone	186.1975	FEAR	
Limonene	186.3775	FEAR	
Magnesium phosphide (residues calculated as phosphine)	186.3800	0.1	
Metarhizium anisopliae strain ESF1	186.4035	FEAR	
Propetamphos	186.5100	0.1	
Animal Products			
<i>Beauveria bassiana</i>	180.1146	exempt	
Calcium oxide	180.2	GRAS	
Calcium polysulfide	180.2	GRAS	
Citric acid	180.2	GRAS	
Diatomaceous earth	180.1017	exempt	
Ferrous sulfate	180.2	GRAS	
heptahydrate			
Fumaric acid	180.2	GRAS	
Potassium carbonate	180.2	GRAS	
Potassium carbonate	180.2	GRAS	
Potassium polysulfide	180.2	GRAS	
Sodium benzoate	180.2	GRAS	
Sodium carbonate	180.2	GRAS	
Sodium chloride	180.2	GRAS	
Sodium hypochlorite	180.2	GRAS	
Sodium metasilicate	180.2	GRAS	
Sodium polysulfide	180.2	GRAS	
Sodium propionate	180.2	GRAS	
Sodium sesquicarbonate	180.2	GRAS	
Sorbic acid	180.2	GRAS	
Sorbic acid, potassium salt	180.2	GRAS	
Sulfur	180.2	GRAS	
Anise (Post-H)			
Hydrocyanic acid	180.130	250.0	
Apples			
Abamectin	180.449	0.020	
Allethrin	180.1002	exempt	
Amitraz	180.287	0.0	
Ammonium sulphamate	180.188	5.0	
Aqueous extract of seaweed meal	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Benzoic acid	180.482	1.0	
Captafol	180.267	0.25	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Captan	180.103	25.0	N	TEPP	180.347	0.01	N
Chinomethionat	180.338	0.05		Terbacil	180.209	0.1	
Chlorpyrifos	180.342	1.5		Tetrachlorvinphos	180.252	10.0	
Clofentezine	180.446	0.01		Tetradifon	180.174	5.0	
Cryolite	180.145	7.0		Thiram	180.132	7.0	
Cyhexatin	180.144	2.0		Triadimefon	180.410	1.0	
Dalapon	180.150	3.0		Triflumazole	180.476	0.5	
Dialifor	180.326	1.5		Triforine	180.382	0.01	
Diazinon	180.153	0.5		2,3,5-Triiodobenzoic acid	180.219	0.05	N
Dichlobenil	180.231	0.15		Urea	180.1117	exempt	
Dichlone	180.118	3.0	N	Zineb	180.115	2.0	X
2,4-Dichlorophenoxy acetic acid	180.142A	5.0		Ziram	180.116	7.0	
Dicofol	180.163	5.0		Apples (Blossom Stage)			
Dimethoate	180.204	2.0		DNOC	180.344	0.02	N
Dinocap	180.341	0.1		Apples (Post-H)			
Dioxathion	180.171	5.0		Acetaldehyde	180.1031	exempt	
Diphenamid	180.230	0.1		Allethrin	180.113	4.0	
Diuron	180.106	1.0		Methyl bromide	180.123	5.0	
Dodine	180.172	5.0		2-Phenylphenol	180.129	25.0	
Endosulfan	180.182	2.0		Piperonyl butoxide	180.127	8.0	
Ethephon	180.300	5.0	T	Pyrethrins	180.128	1.0	
Ethion	180.173	2.0		Thiabendazole	180.242	10.0	
Ethyl 1-naphthalene acetate	180.155	1.0		Apples (Pre- and Post-H)			
Fenamiphos	180.349	0.25		Benomyl	180.294	7.0	
Fenarimol	180.421	0.1		Ethoxyquin	180.178	3.0	
Fenbutatin oxide	180.362	15.0		Thiophanate-methyl	180.371	7.0	
Fenvalerate	180.379	2.0		Apples (Pre- and Post-H) (Inc. Wraps)			
Ferbam	180.114	7.0		Diphenylamine	180.190	10.0	
Folpet	180.191	25.0		Apples, Pomace, Dried			
Formetanate hydrochloride	180.276	3.0		Chlorpyrifos	186.1000	12.0	
Gibberellic acid	180.224	0.5	T	Cyhexatin	186.1350	8.0	
Glufosinate-ammonium	180.473	0.05		Dialifor	186.1650	40.0	
Glyodin	180.124	5.0		Dinocap	186.2400	0.3	
Hexythiazox	180.448	0.02		Fenamiphos	186.2950	5.0	
Imidacloprid	180.472	0.5		Fenbutatin oxide	186.3550	100	
L(+)-Lactic acid	180.1001	exempt		Fenvalerate	186.1300	20.0	
Lindane	180.133	1.0		Metalaxyl	186.4000	2.0	
Malathion	180.111	8.0		Phosalone	186.4800	85.0	
Manam	180.161	7.0		Propargite	186.5000	80.0	
Mancozeb	180.176	7.0		Thiophanate-methyl	186.5700	40.0	
Maneb	180.110	2.0	N	Apples, Pomace, Dried (Post and Pre-H)			
Metalaxyl	180.408	0.2		Benomyl	186.350	70.0	
Methomyl	180.253	1.0		Apples, Pomace, Dried (Post-H)			
Methoxychlor	180.120	14.0		Thiabendazole	186.5550	33.0	
Metiram	180.217	2.0		Apples, Pomace, Wet			
Mevinphos	180.157	0.5		Abamectin	186.300	0.10	
Myclobutanil	180.443	0.5		Imidacloprid	186.900	3	T
1-Naphthaleneacetamide	180.309	0.1		Metalaxyl	186.4000	0.4	
1-Naphthaleneacetic acid	180.155	1.0		Apples, Pomace, Wet and Dry			
Nicotine	180.167	2.0		Fenarimol	186.3200	2.0	
Norflurazon	180.356	0.1	N	Myclobutanil	186.4350	5.0	
Oxamyl	180.303	2.0		Sethoxydim	186.2800	0.8	
Oxydemeton-methyl	180.330	1.0		Triadimefon	186.800	4.0	
Paraquat dichloride	180.205	0.05		Triflumazole	186.5850	2	
Parathion	180.121	1.0		Apricots			
Pelargonic acid	180.1159	exempt		Azinphos-methyl	180.154	2.0	
Permethrin	180.378	0.05		Captan	180.267	30.0	
Phosalone	180.263	10.0			180.103	50.0	
Phosmet	180.261	10.0					
Phosphamidon	180.239	1.0					
Promalin	180.1150	exempt					
Propargite	180.259	3.0					
Propyzamide	180.317	0.1					
Sesame plant, ground	180.1087	exempt					
Simazine	180.213	0.25					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Carbaryl	180.169	10.0	
Chinomethionat	180.338	0.02	
Chlorothalonil	180.275	0.5	
Clofentezine	180.446	1.0	
Cryolite	180.145	7.0	
Dalapon	180.150	1.0	
Diazinon	180.153	0.5	
2,4-Dichlorophenoxy acetic acid.	180.142A	5.0	
Dicofol	180.163	10.0	
Dinocap	180.341	0.1	N
Endosulfan	180.182	2.0	
Ethion	180.173	0.1	
Ferbam	180.114	7.0	
Iprodione	180.399	20.0	
Lindane	180.133	1.0	
Malathion	180.111	8.0	
Maneb	180.110	10.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Norflurazon	180.356	0.1	
Norflurazon	180.356	0.1	
Oxydemeton-methyl	180.330	0.5	R
Paraquat dichloride	180.205	0.05	N
Parathion	180.121	1.0	
Phosalone	180.263	15.0	
Phosmet	180.261	5.0	
Propargite	180.259	7.0	
Propiconazole	180.434	1.0	
Sesame plant, ground ...	180.1087	exempt	
Tetradifon	180.174	5.0	
Triadimefon	180.410	4.0	
Triforine	180.382	8.0	
Urea	180.1117	exempt	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Apricots (Post-H)			
Methyl bromide	180.123	20.0	
(Z,Z)-3,13-Octadeca dien-1-ol acetate.	180.1055	exempt	
Apricots (Pre- and Post-H)			
Benomyl	180.294	15.0	
Dicloran	180.200	20.0	
Thiophanate-methyl	180.371	15.0	
Apricots, Dried			
Metalaxyl	185.4000	4.0	
Artichokes			
Azinphos-methyl	180.154	2.0	
Carbofuran	180.254	0.4	
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Diflubenzuron	180.377	6.0	
Diuron	180.106	1.0	
Endosulfan	180.182	2.0	
Fenvalerate	180.379	0.2	
Gibberellic acid	180.224	0.15	
(Z)-11-Hexadecenal	180.1069	exempt	
Methidathion	180.298	0.05	
Mevinphos	180.157	1.0	
Nicotine	180.167	2.0	
Oxyfluorfen	180.381	0.05	
Parathion	180.121	1.0	N
Permethrin	180.378	10.0	
Phosalone	180.263	25.0	
Propyzamide	180.317	0.1	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Sethoxydim	180.412	3.0	R
Simazine	180.213	0.5	
Trichlorfon	180.198	0.1	N
Urea	180.1117	exempt	
Zinc phosphide	180.284	0.01	R
Artichokes, Jerusalem			
Allethrin	180.1002	exempt	
Glyphosate and its metabolites.	180.364	0.2	
Artichokes, Jerusalem (Post-H)			
Methyl bromide	180.123	30.0	
Asparagus			
Aqueous extract of seaweed meal.	180.1042	exempt	
Calcium arsenate	180.192	3.5	
Carbaryl	180.169	10.0	
Chlorpyrifos	180.342	5.0	R
Clopyralid	180.431	1.0	
Dalapon	180.150	30.0	
Dicamba	180.227	3.0	
2,4-Dichlorophenoxy acetic acid.	180.142D	5.0	
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Dimethoate	180.204	0.15	R
Disul-Na	180.102	2.0	
Disulfoton	180.183	0.1	R
Diuron	180.106	7.0	
EPTC	180.117	0.1	N
Fenamiphos	180.349	0.02	R
Ferbam	180.114	7.0	
Fluazifop-butyl	180.411	3.0	R
Fonofos	180.221	0.5	
Fosetyl-Al	180.415	0.1	R
Glyphosate and its metabolites.	180.364	0.5	
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	300.0	R
Lindane	180.133	1.0	
Linuron	180.184	7.0	
Malathion	180.111	8.0	
Mancozeb	180.176	0.1	N
Metalaxyl	180.408	7.0	
Methomyl	180.253	2.0	
Methoxychlor	180.120	14.0	
Metribuzin	180.332	0.05	
Nicotine	180.167	2.0	
Norflurazon	180.356	0.05	
Paraquat dichloride	180.205	0.5	
Permethrin	180.378	1.0	
Sethoxydim	180.412	4.0	L
Simazine	180.213	10.0	
Terbacil	180.209	0.2	
Trifluralin	180.207	0.05	
Triforine	180.382	0.01	
Urea	180.1117	exempt	
Asparagus (Post-H)			
Chlorosulfamic acid	180.201	8.0	
Methyl bromide	180.123	100.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Atemoya				Magnesium phosphide (residues calculated as phosphine).....	180.375	0.01	
Glyphosate and its metabolites.....	180.364	0.2		Mancozeb	180.176	4.0	
Avocados				Oxamyl	180.303	0.3	
Benomyl	180.294B	3.0	R	Oxamyl	180.303	0.3	
Captan	180.103	25.0		Paraquat dichloride	180.205	0.05	N
Carbaryl	180.169	10.0	R	Propiconazole	180.434	0.2	
Dalapon	180.150B	0.2		Simazine	180.213A	0.2	
Dichlobenil	180.231	0.15	N	Sulfonium, trimethyl-, salt with <i>N</i> -(phosphonomethyl)glycine (1:1).....	180.489	0.05	
2,4-Dichlorophenoxy acetic acid.....	180.142C	0.1	N	Tebuconazole	180.474	0.05	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.....	180.328	0.1		Terbufos	180.352	0.025	
Diquat dibromide	180.226	0.02		Thiophanate-methyl	180.371	2.0	
Etridiazole	180.370	0.15		Tridemorph	180.372	0.1	
Fluridone	180.420	0.1		Bananas (Inc. Plantains)			
Folpet	180.191	25.0		Glyphosate and its metabolites.....	180.364	0.2	
Fosetyl-Al	180.415	25		Oxyfluorfen	180.381	0.05	
Glyphosate and its metabolites.....	180.364	0.2		Bananas (Post-H)			
Lindane	180.133	1.0		Sodium dehydroacetate	180.159	30.0	
Magnesium phosphide (residues calculated as phosphine).....	180.375	0.01		Bananas (Pre- and Post-H)			
Malathion	180.111	8.0		Benomyl	180.294	1.0	
Metalaxyl	180.408	4.0		Thiabendazole	180.242	3.0	
Methomyl	180.253	2.0		Bananas, Pulp			
Nicotine	180.167	2.0		Benomyl	180.294	0.2	N
Norflurazon	180.356	0.2		Chlorothalonil	180.275	0.05	
Oryzalin	180.304	0.05		Diazinon	180.153	0.1	
Oxyfluorfen	180.381	0.05		Fenarimol	180.421	0.25	
Paraquat dichloride	180.205	0.05	N	Fenbuconazole	180.480	0.05	L
Parathion	180.121	1.0		Glufosinate-ammonium	180.473	0.2	L
Permethrin	180.378	1.0		Imazalil	180.413	0.2	
Simazine	180.213	0.25		Maneb	180.110	0.5	
Thiabendazole	180.242	10.0		Thiabendazole	180.242	0.4	
Urea	180.1117	exempt		Thiophanate-methyl	180.371	0.2	
Avocados (180.142(f))				Thiram	180.132	1.0	
2,4-Dichlorophenoxy acetic acid.....	180.142F	1.0		Trichlorfon	180.198	0.2	
Avocados (Post-H)				Bananas, Pulp (No Peel)			
Methyl bromide	180.123	75.0		Chlorpyrifos	180.342	0.01	
Bacon, Uncooked				Mancozeb	180.176	0.5	
Hydrocyanic acid	185.3600	50.0		Bananas, Pulp (Post-H)			
Bananas				Sodium dehydroacetate	180.159	10.0	
Ametryn	180.258	0.25		Thiabendazole	180.242	0.4	
Aqueous extract of seaweed meal.....	180.1042	exempt		Bananas, Whole			
Cadusafos	180.461	0.01		Imazalil	180.413	3.0	
Carbaryl	180.169	10.0		Maneb	180.110	4.0	
Carbofuran	180.254	0.1		Triadimenol	180.450	0.2	
Chlorothalonil	180.275	0.5		Trichlorfon	180.198	2.0	
Chlorpyrifos	180.342	0.1		Bananas, with Peel (Pre- and Post-H)			
Dalapon	180.150	5.0		Thiram	180.132	7.0	
Diazinon	180.153	0.2		Barley			
Diquat dibromide	180.226	0.05		Barban	180.268	0.1	L
Diuron	180.106	0.1	N	Chitosan	180.1072	exempt	
Ethoprop	180.262	0.02	N	Gibberellic acid	180.1098	exempt	
Fenamiphos	180.349	0.1		Indole-3-butyric acid	180.1099	exempt	
Fenarimol	180.421	0.5		L(+)-Lactic acid	180.1001	exempt	
Fenbuconazole	180.480	0.3	L	Magnesium phosphide (residues calculated as phosphine).....	180.375	0.1	
Fonofos	180.221	0.1					
Glufosinate-ammonium	180.473	0.3	L				
Hexaconazole	180.488	0.1	L				

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Methoprene	180.359	5.0	
Parathion	180.121	1.0	
Barley (Post-H)			
Aluminum phosphide (residues calculated as phosphide)	180.225	0.1	
Hydrocyanic acid	180.130	75.0	
Methyl bromide	180.123	50.0	
Piperonyl butoxide	180.127	20.0	
Pyrethrins	180.128	3.0	
Barley, Flour			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700)	185.3700	125.0	
Barley, Fodder			
Metalaxyl	180.408	2.0	
Metolachlor	180.368	0.5	
Terbutryn	180.265	0.1	N
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Trifluralin	180.207	0.05	
Barley, Fodder, Green			
Carbaryl	180.169	100.0	
Disulfoton	180.183	5.0	
Barley, Forage			
Carboxin	180.301	0.5	
Chlorsulfuron	180.405	20.0	
Di-allate	180.277	0.05	X
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	9.0	
2,4-Dichlorophenoxy acetic acid	180.142B	20.0	
Diuron	180.106	2.0	
Imazalil	180.413	0.5	
Imidacloprid	180.472	1.5	L
Linuron	180.184	0.5	
MCPA	180.339	20.0	
Metalaxyl	180.408	2.0	
Methomyl	180.253	10.0	
Metolachlor	180.368	0.5	
Tebuconazole	180.474	0.10	
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Triasulfuron	180.459	5.0	
Trichlorfon	180.198	50.0	
Trifluralin	180.207	0.05	
Barley, Forage, Green			
Bromoxynil	180.324C	0.1	
Bromoxynil	180.324	0.1	
Metsulfuron-methyl	180.428	5.0	
Picloram	180.292	1.0	
Triadimefon	180.410	15.0	
Triadimenol	180.450	2.5	
Barley, Grain			
Azinphos-methyl	180.154	0.2	
Benomyl	180.294	0.2	
Bromoxynil	180.324C	0.1	
Bromoxynil	180.324	0.1	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Carbaryl	180.169	0.0	
Carbofuran	180.254	0.2	
Carboxin	180.301	0.2	
Chlorpyrifos-methyl	180.419	6.0	
Chlorsulfuron	180.405	0.1	
Di-allate	180.277	0.05	X
Dicamba	180.227	0.5	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	3.0	
2,4-Dichlorophenoxy acetic acid	180.142B	0.5	
3',4'-Dichloropropion anilide	180.274	0.2	
Diclofop-methyl	180.385	0.1	
Difenoconazole	180.475	0.1	
Difenzoquat	180.369	0.2	
Disulfoton	180.183	0.75	
Diuron	180.106	1.0	
Endosulfan	180.182	0.1	N
Ethephon	180.300	2.0	
Imazalil	180.413	0.05	
Imazethabenz	180.437	0.1	
Imidacloprid	180.472	0.05	L
Linuron	180.184	0.25	
Mancozeb	180.176	5.0	
MCPA	180.339	0.1	N
Metalaxyl	180.408	0.2	
Methomyl	180.253	1.0	
Metolachlor	180.368	0.1	
Metribuzin	180.332	0.75	
Metsulfuron-methyl	180.428	0.1	
Paraquat dichloride	180.205	0.05	N
Phorate	180.206	0.1	
Picloram	180.292	0.5	
Propiconazole	180.434	0.1	
Tebuconazole	180.474	0.05	
Terbutryn	180.265	0.1	N
Thifensulfuron methyl	180.439	0.05	
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Tri-allate	180.314	0.05	N
Triadimefon	180.410	1.0	
Triadimenol	180.450	0.05	
Triasulfuron	180.459	0.02	
Tribenuron-methyl	180.31	0.05	
Tribenuron-methyl	180.451	0.05	
Trichlorfon	180.198	0.1	N
Barley, Grain (Post-H)			
Allethrin	180.113	2.0	
Calcium cyanide	180.125	25.0	
Chloropicrin	180.1008	exempt	
Formaldehyde	180.1032	exempt	
Isobutyric acid	180.1030	exempt	
Methylene chloride	180.1010	exempt	
Propionic acid	180.1023	exempt	
Barley, Grain (Pre- and Post-H)			
Malathion	180.111	8.0	
Barley, Grain, Stored (Post-H)			
Methoxychlor	180.120	2.0	
Barley, Green			
Terbutryn	180.265	0.1	N

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Barley, Hay				Imazalil	180.413	0.5	L
Diuron	180.106	2.0		Imazethabenz	180.437	2.0	
Linuron	180.184	0.5		Imidacloprid	180.472	0.2	
Methomyl	180.253	10.0		Linuron	180.184	0.5	
Metsulfuron-methyl	180.428	20.0		Mancozeb	180.176	25.0	
Tebuconazole	180.474	0.10		MCPA	180.339	2.0	
Trifluralin	180.207	0.05		Metalaxyl	180.408	2.0	
Barley, Milled Fractions				Methomyl	180.253	10.0	N
2,4-Dichlorophenoxy acetic acid.	186.1450	2.0		Metribuzin	180.332	1.0	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	186.3700	125.0		Metsulfuron-methyl	180.428	0.3	
				Phorate	180.206	0.1	
				Picloram	180.292	1.0	
				Propiconazole	180.434	1.5	
				Tebuconazole	180.474	0.10	
Mancozeb	186.6300	20.0		Terbutryn	180.265	0.1	N
Metalaxyl	185.4000	1.0		Thifensulfuron methyl	180.439	0.1	
Metalaxyl	186.4000	1.0		2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Barley, Milled Fractions (Exc. Flour)				Tri-allate	180.314	0.05	
Chlorpyrifos-methyl	185.1050	90.0		Triadimefon	180.410	5.0	
Chlorpyrifos-methyl	186.1050	90.0		Triadimenol	180.450	0.2	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	185.1100	12.0		Triasulfuron	180.459	2.0	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	186.1100	12.0		Tribenuron-methyl	180.451	0.1	
2,4-Dichlorophenoxy acetic acid.	185.1450	2.0		Trichlorfon	180.198	1.0	
Ethephon	185.2700	5.0		Trifluralin	180.207	0.05	
Ethephon	186.2700	5.0		Basil			
Metribuzin	185.250	3.0		N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Metribuzin	186.250	3.0		Basil (Post-H)			
Picloram	185.4850	3.0		Hydrocyanic acid	180.130	250.0	
Picloram	186.4850	3.0		Bay (Post-H)			
Triadimefon	185.800	4.0		Hydrocyanic acid	180.130	250.0	
Barley, Straw				Beans			
Azinphos-methyl	180.154	2.0		Allethrin	180.1002	exempt	N
Benomyl	180.294	0.2		Aqueous extract of seaweed meal.	180.1042	exempt	
Bromoxynil	180.324C	0.1		Benomyl	180.294	2.0	
Bromoxynil	180.324	0.1		Calcium arsenate	180.192	3.5	
Carbaryl	180.169	100.0		Carbaryl	180.169	10.0	
Carbofuran	180.254	5.0		Chitosan	180.1072	exempt	
Carboxin	180.301	0.2		Chloroneb	180.257	0.1	
Chlorsulfuron	180.405	0.5		Cryolite	180.145	7.0	
Di-allate	180.277	0.05	X	Dalapon	180.150	1.0	
Dicamba	180.227	0.5		Dichlone	180.118	3.0	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	9.0		Endosulfan	180.182	2.0	
3',4'-Dichloropropion anilide.	180.274	0.75		Ethion	180.173	2.0	
Diclofop-methyl	180.385	0.1		Ferbam	180.114	7.0	
Difenzoquat	180.369	20.0		Gibberellic acid	180.1098	exempt	
Disulfoton	180.183	5.0		Indole-3-butyric acid	180.1099	exempt	
Diuron	180.106	2.0	N	Malathion	180.111	8.0	
Endosulfan	180.182	0.2		Methoxychlor	180.120	14.0	
Ethephon	180.300	10.0		Mevinphos	180.157	0.25	
				Nicotine	180.167	2.0	
				Parathion	180.121	1.0	
				Pentachloronitrobenzene	180.319	0.1	
				Phorate	180.206	0.1	
			Sethoxydim	180.412	20.0	I	
			Urea	180.1117	exempt		
			Zineb	180.115	7.0	X	
			Ziram	180.116	7.0		
Beans (Post-H)				Methyl bromide	180.123	50.0	
			Piperonyl butoxide	180.127	8.0		
			Pyrethrins	180.128	1.0		

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Beans, (Exc. Soybeans), Forage			
Bentazon	180.355	3.0	
Beans, (Exc. Soybeans), Dry			
Bentazon	180.355	0.05	
Beans, (Exc. Soybeans), Dry, Vinehay			
Bentazon	180.355	3.0	
Beans, Castor			
Allidochlor	180.282	0.05	N
EPTC	180.117	0.1	N
Beans, Dried, Vines, Hay			
Iprodione	180.399	90.0	
Beans, Dry			
Acephate	180.108	3.0	
Acetamide	180.464	0.01	
Alachlor	180.249	0.1	
Aldicarb	180.269	0.1	
Allidochlor	180.282	0.05	N
Azinphos-methyl	180.154	0.3	
Captan	180.103	25.0	I
Carboxin	180.301	0.2	
Chloramben	180.266	0.1	
Chlorothalonil	180.275	0.1	
Chlorpropham	180.319	0.3	I
Dicofol	180.163	5.0	
Dimethoate	180.204	2.0	
Disulfoton	180.183	0.75	
Ethalfuralin	180.416	0.05	
Fenvalerate	180.379	0.25	
Iprodione	180.399	2.0	
L(+)-Lactic acid	180.1001	exempt	
Maneb	180.110	7.0	
Methomyl	180.253	0.1	N
Naled	180.215	0.5	
Paraquat dichloride	180.205	0.3	
Propargite	180.259	0.2	
Sodium chlorate	180.1020	exempt	
Thiabendazole	180.242	0.1	
Thiophanate-methyl	180.371	2.0	
Trichlorfon	180.198	0.1	N
<i>Trichoderma viride</i> <i>sensu</i> Bisby.	180.1102	exempt	
Beans, Dry (Post-H)			
Hydrocyanic acid	180.130	25.0	
Beans, Field, Dry			
Chlorthal-dimethyl	180.185	2.0	
Beans, Forage			
Alachlor	180.249	0.2	
Carbaryl	180.169	100.0	
Carboxin	180.301	0.5	
Chlorpyrifos	180.342	0.7	
Diazinon	180.153	25.0	
Fonofos	180.221	0.1	
Iprodione	180.399	90.0	
Methomyl	180.253	10.0	
Paraquat dichloride	180.205	0.1	
Pendimethalin	180.361	0.1	
Sethoxydim	180.412	10.0	
Thiophanate-methyl	180.371	50.0	
Beans, Garbanzo			
Oxyfluorfen	180.381	0.05	R

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Beans, Green			
L(+)-Lactic acid	180.1001	exempt	
<i>Trichoderma viride</i> <i>sensu</i> Bisby.	180.1102	exempt	
Beans, Green (Post-H)			
Methyl bromide	180.123	50.0	
Beans, Guar			
Diazinon	180.153	0.1	
Methyl parathion	180.121	0.2	
Paraquat dichloride	180.205	0.5	
Beans, Guar, Forage			
Diazinon	180.153	0.1	
Sodium chlorate	180.1020	exempt	
Beans, Hay			
Alachlor	180.249	0.2	
Carbaryl	180.169	100.0	
Carboxin	180.301	0.5	
Diazinon	180.153	10.0	
Paraquat dichloride	180.205	0.4	
Pendimethalin	180.361	0.1	
Sethoxydim	180.412	50.0	
Thiophanate-methyl	180.371	50.0	
Beans, Lima			
Allidochlor	180.282	0.05	N
Butralin	180.358	0.1	
Chloramben	180.266	0.1	
Chlorpyrifos	180.342	0.05	I
Diazinon	180.153	0.5	
Dimethoate	180.204	2.0	
Disulfoton	180.183	0.75	
Ethoprop	180.262	0.02	N
Ethylene	180.1016	exempt	
Oxydemeton-methyl	180.330	0.5	
Trichlorfon	180.198	12.0	
Beans, Lima (Dry, Snap)			
Pendimethalin	180.361	0.1	
Beans, Lima (Post-H)			
Methyl bromide	180.123	50.0	
Beans, Lima (Succulent)			
Paraquat dichloride	180.205	0.05	
Beans, Lima, Forage			
Allidochlor	180.282	0.05	N
Chlorpyrifos	180.342	1.0	
Ethoprop	180.262	0.02	N
Oxydemeton-methyl	180.330	2.0	
Beans, Lima, Green			
Alachlor	180.249	0.1	
Beans, Lima, Shelled			
Trichlorfon	180.198	0.1	N
Beans, Lima, Succulent			
Bentazon	180.355	0.05	
Dicofol	180.163	5.0	
Beans, Lima, Vines			
Trichlorfon	180.198	12.0	
Beans, Lima, Vines, Hay			
Trichlorfon	180.198	12.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Beans, Mung, Dry				Beets			
Chlorthal-dimethyl	180.185	2.0		Allethrin	180.1002	exempt	
Beans, Mung, Sprouts				Glyphosate and its metabolites	180.364	0.2	
4-Chlorophenoxyacetic acid	180.202	2.0		Metalaxyl	180.408	0.1	
Trifluralin	180.207	2.0		Phenmedipham	180.278	0.2	N
Beans, Snap				Pyrazon	180.316	0.1	N
Allidochlor	180.282	0.05	N	Trichlorfon	180.198	0.1	N
Azinphos-methyl	180.154	2.0		Urea	180.1117	exempt	
Chloramben	180.266	0.1		Beets (Inc. Tops) (Pre-H)			
Chlorothalonil	180.275	5.0		Malathion	180.111	8.0	
Chlorpyrifos	180.342	0.05		Beets, Garden, (Inc. Tops)			
Clomazone	180.425	0.05		Mevinphos	180.157	1.0	
Diazinon	180.153	0.5		Beets, Garden, Roots			
Dicloran	180.200	20.0		Carbaryl	180.169	5.0	
Dimethoate	180.204	2.0		S-Ethyl cyclohexylethylthiocarbamate	180.212	0.05	N
Disulfoton	180.183	0.75		Fenamiphos	180.349	1.5	R
Ethoprop	180.262	0.02	N	Beets, Garden, Roots (Post-H)			
Fenvalerate	180.379	2.0		Methyl bromide	180.123	30.0	
Lactofen	180.432	0.05		Beets, Garden, Roots Only			
Oxydemeton-methyl	180.330	0.5		Zineb	180.115	7.0	X
Thiophanate-methyl	180.371	2.0		Beets, Garden, Tops			
Trichlorfon	180.198	0.1	N	Carbaryl	180.169	12.0	
Beans, Snap (Post-H)				S-Ethyl cyclohexylethylthiocarbamate	180.212	0.05	N
Methyl bromide	180.123	50.0		Fenamiphos	180.349	1.0	R
Beans, Snap, Forage				Beets, Greens			
Allidochlor	180.282	0.05	N	Captan	180.103	100.0	
Chlorpyrifos	180.342	1.0		Beets, Greens (Alone)			
Ethoprop	180.262	0.02	N	Cryolite	180.145	7.0	
Oxydemeton-methyl	180.330	2.0		Ferbam	180.114	7.0	
Beans, Snap, Succulent				Methoxychlor	180.120	14.0	
Chlorthal-dimethyl	180.185	2.0		Nicotine	180.167	2.0	
Dicofol	180.163	5.0		Parathion	180.121	1.0	
Paraquat dichloride	180.205	0.05		Ziram	180.116	7.0	
Beans, Straw				Beets, Roots			
Carboxin	180.301	0.5		Captan	180.103	2.0	
Dalapon	180.150	1.0		Diazinon	180.153	0.75	
Paraquat dichloride	180.205	30.0		Diethatyl ethyl	180.402	0.2	
Beans, String (Post-H)				Beets, Sugar			
Ethylene	180.1016	exempt		Aldicarb	180.269	0.05	
Beans, Succulent				Allethrin	180.1002	exempt	
Acephate	180.108	3.0		Aqueous extract of seaweed meal	180.1042	exempt	
Bentazon	180.355	0.5		Barban	180.268	0.1	L
Captan	180.103	25.0	I	Carbofuran	180.254	0.1	
Carboxin	180.301	0.2		Disulfoton	180.183	0.5	
Chlorpropham	180.319	0.3	I	Endothall	180.319	0.2	I
Iprodione	180.399	2.0		Gibberellic acid	180.1098	exempt	
Maneb	180.110	10.0		Glyphosate and its metabolites	180.364	0.2	
Methomyl	180.253	2.0		Indole-3-butyric acid	180.1099	exempt	
Naled	180.215	0.5		L-(+)-Lactic acid	180.1001	exempt	
Propargite	180.259	20.0		Mancozeb	180.176	2.0	
Sethoxydim	180.412	5.0		Metalaxyl	180.408	0.1	
Beans, Vines				Metiram	180.319	0.5	I
Chloramben	180.266	0.1		Oxydemeton-methyl	180.330	0.3	
Disulfoton	180.183	5.0					
Phorate	180.206	0.5					
Trichlorfon	180.198	1.0					
Beans, Vines, Forage							
Benomyl	180.294	50.0					
Chloroneb	180.257	2.0					
Beans, Vines, Hay							
Fonofos	180.221	0.1	N				

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Paraquat dichloride	180.205	0.5	
Parathion	180.121	0.1	N
Pyrazon	180.316	0.1	N
Sesame plant, ground ...	180.1087	exempt	
Triadimefon	180.410	0.5	
Trichlorfon	180.198	0.1	N
<i>Trichoderma viride</i> <i>sensu</i> Bisby.	180.1102	exempt	
Urea	180.1117	exempt	
Beets, Sugar, Dried And/Or Dehydrated			
Thiabendazole	186.5550	3.5	
Beets, Sugar, Molasses			
Chlorpyrifos	186.1000	15.0	
Clethodim	186.1075	2.0	
Clopyralid	186.1100	7.0	
Ethofumesate	186.2775	0.5	
Imidacloprid	186.900	0.3	L
Metalaxyl	186.4000	5.0	
Quizalofop-ethyl	186.5250	0.2	L
Sethoxydim	186.2800	10.0	
Beets, Sugar, Pulp, Dehydrated (LS. F.)			
Disulfoton	186.1950	5.0	
Beets, Sugar, Pulp, Dried			
Chlorpyrifos	186.1000	5.0	
Beets, Sugar, Pulp, Dried (Ct.F.)			
Phorate	186.4750	1.0	
Beets, Sugar, Roots			
<i>Beauvaria bassiana</i>	180.1146	exempt	
Benomyl	180.294	0.2	
Chloroneb	180.257	0.1	N
Chlorpropham	180.319	0.1	I
Chlorpyrifos	180.342	1.0	
Clethodim	180.458	0.2	
Clopyralid	180.431	0.5	
Dalapon	180.150	5.0	
Desmedipham	180.353	0.2	N
Di-allate	180.277	0.05	X
Diazinon	180.153	0.5	
Diethatyl ethyl	180.402	0.05	
Ethofumesate	180.345	0.1	
S-Ethyl cyclohexylethylthiocar- bamate.	180.212	0.05	N
Fentin hydroxide	180.236	0.1	N
Imidacloprid	180.472	0.05	L
Malathion	180.111	1.0	
Metalaxyl	180.408	0.5	
Methamidophos	180.315	0.02	
Naled	180.215	0.5	
Paraformaldehyde	180.1024	exempt	
Pebulate	180.238	0.1	N
Phenmedipham	180.278	0.1	N
Phorate	180.206	0.3	
Propachlor	180.211	0.2	
Propham	180.319	0.1	I
Quizalofop-ethyl	180.441	0.1	L
Sethoxydim	180.412	0.1	
Terbufos	180.352	0.05	N
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Thiophanate-methyl	180.371	0.2	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Triflusalufuron-methyl	180.492	0.05	L
Zinc phosphide	180.284	0.04	R
Beets, Sugar, Roots (Post-H)			
Methyl bromide	180.123	30.0	
Beets, Sugar, Tops			
Aldicarb	180.269	1.0	
Barban	180.268	0.1	L
Benomyl	180.294	15.0	
Carbaryl	180.169	100.0	
Carbofuran	180.254	2.0	
Chloroneb	180.257	0.1	N
Chlorpropham	180.319	0.3	I
Chlorpyrifos	180.342	8.0	
Clethodim	180.458	0.5	
Clopyralid	180.431	0.5	
Dalapon	180.150	5.0	
Desmedipham	180.353	0.2	N
Di-allate	180.277	0.05	X
Diazinon	180.153	10.0	
Diethatyl ethyl	180.402	0.05	
Disulfoton	180.183	2.0	
Ethofumesate	180.345	1.0	
S-Ethyl cyclohexylethylthiocar- bamate.	180.212	0.05	N
Fonofos	180.221	0.1	N
Imidacloprid	180.472	0.1	L
Malathion	180.111	8.0	
Mancozeb	180.176	65.0	
Maneb	180.110	45.0	
Metalaxyl	180.408	10.0	
Methamidophos	180.315	0.5	
Naled	180.215	0.5	
Oxydemeton-methyl	180.330	0.5	
Paraformaldehyde	180.1024	exempt	
Paraquat dichloride	180.205	0.5	
Parathion	180.121	0.1	N
Pebulate	180.238	0.1	N
Phenmedipham	180.278	0.1	N
Phorate	180.206	3.0	
Propachlor	180.211	1.0	
Propham	180.319	0.1	I
Pyrazon	180.316	1.0	
Quizalofop-ethyl	180.441	0.5	L
Sethoxydim	180.412	3.0	
Terbufos	180.352	0.1	
Thiabendazole	180.242	10.0	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Thiophanate-methyl	180.371	15.0	
Triadimefon	180.410	3.0	
Trichlorfon	180.198	12.0	
Triflusalufuron-methyl	180.492	0.05	L
Zinc phosphide	180.284	0.02	R
Beets, Sugar, without Tops			
Endosulfan	180.182	0.1	N
Thiabendazole	180.242	0.25	
Beets, Tops			
Diazinon	180.153	0.7	
Diethatyl ethyl	180.402	0.2	
Metalaxyl	180.408	0.1	
Methomyl	180.253	6.0	
Pyrazon	180.316	1.0	
Zineb	180.115	25.0	X

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Beets, with Tops				Captafol	180.267	35.0	
Cryolite	180.145	7.0		Carbaryl	180.169	10.0	
Ferbam	180.114	7.0		Chlorothalonil	180.275	1.0	
Methoxychlor	180.120	14.0		Chlorpropham	180.319	0.3	I
Nicotine	180.167	2.0		Chlorpyrifos	180.342	2.0	
Parathion	180.121	1.0		Diazinon	180.153	0.5	
Ziram	180.116	7.0		Dichlobenil	180.231	0.15	N
Beets, without Tops				2,4-Dichlorophenoxy acetic acid	180.142B	0.1	
Cryolite	180.145	7.0		Dimethoate	180.204	1	
Ferbam	180.114	7.0		Endosulfan	180.182	0.1	N
Methoxychlor	180.120	14.0		Ethephon	180.300	20.0	
Nicotine	180.167	2.0		Fenvalerate	180.379	3.0	
Parathion	180.121	1.0		Fosetyl-Al	180.415	40	L
Ziram	180.116	7.0		Gibberellic acid	180.224	0.15	N
Belgian Endive, Tops				Hexazinone	180.396	0.2	
Vinclozolin	180.380	5.0		Iprodione	180.399	15.0	
Birdseed Mixtures (Post-H)				Malathion	180.111	8.0	
Piperonyl butoxide	180.127	20.0		Metaxyl	180.408	2.0	
Pyrethrins	180.128	3.0		Methomyl	180.253	6.0	
Biscuit Mixes				Methyl anthranilate	180.1143	exempt	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0		Norflurazon	180.356	0.2	
Blackberries				Phosmet	180.261	10.0	
Anilazine	180.158	10.0		Propyzamide	180.317	0.05	N
Azinphos-methyl	180.154	2.0		Sethoxydim	180.412	4.0	
Benomyl	180.294	7.0		Simazine	180.213	0.25	
Captan	180.103	25.0		Terbacil	180.209	0.1	
Carbaryl	180.169	12.0		Trichlorfon	180.198	0.1	
Chlorpropham	180.319	0.3	I	Triforine	180.382	0.1	
Cryolite	180.145	7.0		Urea	180.1117	exempt	
Diazinon	180.153	0.5		Blueberries (Huckleberries)			
Dichlobenil	180.231	0.15	N	Anilazine	180.158	10.0	
Dicloran	180.200	15.0		Captan	180.103	25.0	
Dicofol	180.163	5.0		Cryolite	180.145	7.0	
Dinocap	180.341	0.15	N	Diuron	180.106	1.0	
Diuron	180.106	1.0		Ferbam	180.114	7.0	
Ethephon	180.300	30.0		Folpet	180.191	25.0	
Ferbam	180.114	7.0		Methoxychlor	180.120	14.0	
Folpet	180.191	25.0		Parathion	180.121	1.0	
Malathion	180.111	8.0		Ziram	180.116	7.0	
Methoxychlor	180.120	14.0		Blueberries (Huckleberries) (Post-H)			
Nicotine	180.167	2.0		Allethrin	180.113	4.0	
Norflurazon	180.356	0.1		Piperonyl butoxide	180.127	8.0	
Oxydemeton-methyl	180.330	2.0		Pyrethrins	180.128	1.0	
Oxyfluorfen	180.381	0.05	R	Blueberries (Post-H)			
Parathion	180.121	1.0		Methyl bromide	180.123	20.0	
Propyzamide	180.317	0.05	N	Boysenberries			
Sesame plant, ground ...	180.1087	exempt		Azinphos-methyl	180.154	2.0	
Simazine	180.213	0.25		Benomyl	180.294	7.0	
Urea	180.1117	exempt		Carbaryl	180.169	12.0	
Zineb	180.115	7.0	X	Cryolite	180.145	7.0	
Ziram	180.116	7.0		Diazinon	180.153	0.5	
Blackberries (Post-H)				Dicloran	180.200	15.0	
Allethrin	180.113	4.0		Dicofol	180.163	5.0	
Piperonyl butoxide	180.127	8.0		Dinocap	180.341	0.15	N
Pyrethrins	180.128	1.0		Diuron	180.106	1.0	
Blueberries				Ferbam	180.114	7.0	
Azinphos-methyl	180.154	5.0		Folpet	180.191	25.0	
Benomyl	180.294	7.0		Iprodione	180.399	15.0	
				Malathion	180.111	8.0	
				Methoxychlor	180.120	14.0	
				Nicotine	180.167	2.0	
				Parathion	180.121	1.0	
				Propyzamide	180.317	0.05	N
				Simazine	180.213	0.25	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Urea	180.1117	exempt	X
Zineb	180.115	7.0	
Ziram	180.116	7.0	
Boysenberries (Post-H)			
Allethrin	180.113	4.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Brassica (Cole) Leafy Vegetables			
Chlorpyrifos	180.342	2.0	
Diazinon	180.153	0.7	
N,N-Diethyl-2-(1-naphthalenyloxy)propionamide.	180.328	0.1	
Fosetyl-Al	180.415	60	
Imidacloprid	180.472	3.5	
Malathion	180.111	8.0	
Methomyl	180.253	6.0	
Methyl parathion	180.121	1.0	
Oxadixyl	180.456	0.1	
Sethoxydim	180.412	5.0	
Sodium chlorite	180.1070	exempt	
Brassica (Exc. Broc, Cab, Caul, Brus Sprt, Mus Grn)(Cole)Leafy Veg			
Metalaxyl	180.408	0.1	
Brazil Nuts			
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Oxadiazon	180.346	0.05	N
Phosalone	180.263	0.05	N
Propylene oxide	180.491	150	L
Brazil Nuts (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Methyl bromide	180.123	200.0	
Bread Mixes			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Breadfruit			
Glyphosate and its metabolites.	180.364	0.2	
Breeding			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Broccoli			
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal.	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Benomyl	180.294	0.2	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Captan	180.103	2.0	
Carbaryl	180.169	10.0	
Chlorothalonil	180.275	5.0	
Chlorpyrifos	180.342	1	
Cryolite	180.145	7.0	
Dimethoate	180.204	2.0	
Disulfoton	180.183	0.75	
Endosulfan	180.182	2.0	
Fenvalerate	180.379	2.0	
Ferbam	180.114	7.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	25.0	
Iprodione	180.399	25.0	
L(+)-Lactic acid	180.1001	exempt	
Lambda-cyhalothrin	180.438	0.4	
Lindane	180.133	1.0	
Maneb	180.110	10.0	
Metalaxyl	180.408	2.0	
Methamidophos	180.315	1.0	
Methomyl	180.253	2.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	1.0	
Naled	180.215	1.0	
Nicotine	180.167	2.0	
Oxydemeton-methyl	180.330	1.0	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Pentachloronitrobenzene	180.319	0.1	I
Permethrin	180.378	1.0	
Phosphamidon	180.239	0.5	
Thiodicarb	180.407	7.0	L
Tralomeethrin	180.422	0.50	L
Urea	180.1117	exempt	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Brussels Sprouts			
Acephate	180.108	3.0	
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal.	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Benomyl	180.294	15.0	
Captan	180.103	2.0	
Carbaryl	180.169	10.0	
Chlorothalonil	180.275	5.0	
Chlorpyrifos	180.342	1	
Cryolite	180.145	7.0	
Dimethoate	180.204	5.0	
Disulfoton	180.183	0.75	
Endosulfan	180.182	2.0	
Fenamidophos	180.349	0.1	
Ferbam	180.114	7.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Lindane	180.133	1.0	
Maneb	180.110	10.0	
Metalaxyl	180.408	2.0	
Methamidophos	180.315	1.0	
Methomyl	180.253	2.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	1.0	
Naled	180.215	1.0	
Nicotine	180.167	2.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Oxydemeton-methyl	180.330	1.0		Metolachlor	180.368	1.0	
Pentachloronitrobenzene	180.319	0.1	I	Mevinphos	180.157	1.0	
Permethrin	180.378	1.0		Naled	180.215	1.0	
Trichlorfon	180.198	0.1	N	Nicotine	180.167	2.0	
Urea	180.1117	exempt		Oxydemeton-methyl	180.330	1.0	
Zineb	180.115	7.0	X	Oxyfluorfen	180.381	0.05	
Ziram	180.116	7.0		Paraquat dichloride	180.205	0.05	
Buckwheat (Post-H)				Pentachloronitrobenzene	180.319	0.1	I
Hydrocyanic acid	180.130	75.0		Permethrin	180.378	6.0	
Piperonyl butoxide	180.127	20.0		Pyridate	180.462	0.03	
Pyrethrins	180.128	3.0		TEPP	180.347	0.01	N
Buckwheat, Fodder				Thiodicarb	180.407	7.0	L
Metolachlor	180.368	0.5		Trichlorfon	180.198	0.1	N
Buckwheat, Forage				<i>Trichoderma viride</i>	180.1102	exempt	
Metolachlor	180.368	0.5		<i>sensu</i> Bisby.			
Buckwheat, Grain				Zineb	180.115	7.0	X
Methoprene	180.359	5.0		Ziram	180.116	7.0	
Metolachlor	180.368	0.1		Cabbage (Post-H)			
Buckwheat, Grain (Post-H)				Methyl bromide	180.123	50.0	
Calcium cyanide	180.125	25.0		Cabbage, Chinese			
Chloropicrin	180.1008	exempt		Allethrin	180.1002	exempt	
Bush Nuts				Benomyl	180.294	10.0	
Dicofol	180.163	5.0		Carbaryl	180.169	10.0	
Bush Nuts (Post-H)				Chlorpyrifos	180.342	1	
Methyl bromide	180.123	200.0		Cyromazine	180.414	3.0	
Butternuts				Fenamiphos	180.349	0.5	R
Dicofol	180.163	5.0		Magnesium phosphide	180.375	0.01	
Oxadiazon	180.346	0.05	N	(residues calculated as phosphine).			
Phosalone	180.263	0.05	N	Maneb	180.110	10.0	
Butternuts (Post-H)				Methomyl	180.253	5.0	
Methyl bromide	180.123	200.0		Paraquat dichloride	180.205	0.05	
Cabbage				Urea	180.1117	exempt	
Allethrin	180.1002	exempt		Zineb	180.115	25.0	X
Allidochlor	180.282	0.05	N	Cake Mixes			
Aqueous extract of seaweed meal	180.1042	exempt		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Azinphos-methyl	180.154	2.0		Caneberries			
Benomyl	180.294	0.2		Chlorpyrifos	180.342	1.0	
Captan	180.103	2.0		Dinocap	180.341	0.15	N
Carbaryl	180.169	10.0		Fenvalerate	180.379	3.0	
Chlorothalonil	180.275	5.0		Fosetyl-Al	180.415	0.1	
Chlorpyrifos	180.342	1		Iprodione	180.399	25.0	
Clomazone	180.425	0.1		Terbacil	180.209	0.1	
Cryolite	180.145	7.0		Urea	180.1117	exempt	
Cypermethrin	180.418	2.0	T	Canola			
Dimethoate	180.204	2.0		Carbofuran	180.254	1.0	L
Disulfoton	180.183	0.75		Imidacloprid	180.472	0.05	
Endosulfan	180.182	2.0		Urea	180.1117	exempt	
Ethoprop	180.262	0.02	N	Cantaloupes			
Ethylene	180.1016	exempt		Captan	180.103	25.0	
Fenamiphos	180.349	0.1		Chloramben	180.266	0.1	
Fenvalerate	180.379	10.0		Chlorthal-dimethyl	180.185	1.0	
Ferbam	180.114	7.0		Dicofol	180.163	5.0	
Gibberellic acid	180.1098	exempt		Dinocap	180.341	0.1	N
Indole-3-butyric acid	180.1099	exempt		Ethephon	180.300	2.0	
L(+)-Lactic acid	180.1001	exempt		Ethylene	180.1016	exempt	
Lambda-cyhalothrin	180.438	0.4		Fenvalerate	180.379	1.0	
Lindane	180.133	1.0		Metiram	180.217	4.0	
Maneb	180.110	10.0		<i>N</i> -1-Naphthylphthalamic acid.	180.297	0.1	N
Metaxyl	180.408	1.0					
Methamidophos	180.315	1.0					
Methomyl	180.253	5.0					
Methoxychlor	180.120	14.0					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Oxamyl	180.303	2.0	
Phosphamidon	180.239	0.25	
Triforine	180.382	1.0	
Urea	180.1117	exempt	
Cantaloupes (Post-H)			
Methyl bromide	180.123	20.0	
2-Phenylphenol	180.129	125.0	
Tetraiodoethylene	180.162	15.0	
Thiabendazole	180.242	15.0	
Cantaloupes, Edible Portion (Post-H)			
2-Phenylphenol	180.129	10.0	
Carambola			
Glyphosate and its metabolites.	180.364	0.2	
Carambola			
Glyphosate and its metabolites.	180.364	0.2	
Methidathion	180.298	0.1	R
Caraway (Post-H)			
Hydrocyanic acid	180.130	250.0	
Carrots			
Allethrin	180.1002	exempt	
Aqueous extract of sea-weed meal.	180.1042	exempt	
Benomyl	180.294	0.2	
Bensulide	180.241	0.1	N
Captan	180.103	2.0	
Carbaryl	180.169	10.0	
Chlorothalonil	180.275	1.0	
Chloroxuron	180.216	0.1	
Chlorpropham	180.319	0.1	I
Cryolite	180.145	7.0	
Cyfluthrin	180.436	0.2	L
Diazinon	180.153	0.75	
Endosulfan	180.182	0.2	
Fentin hydroxide	180.236	0.1	N
Fenvalerate	180.379	0.5	
Ferbam	180.114	7.0	
Fluazifop-butyl	180.411	2.0	
Glyphosate and its metabolites.	180.364	0.2	
Iprodione	180.399	5.0	
Linuron	180.184	1.0	
Malathion	180.111	8.0	
Mancozeb	180.176	2.0	
Maneb	180.110	7.0	
Methoxychlor	180.120	14.0	
Metribuzin	180.332	0.3	
Mevinphos	180.157	0.25	
Paraquat dichloride	180.205	0.05	
Parathion	180.121	1.0	
Sesame plant, ground ...	180.1087	exempt	
Sethoxydim	180.412	1.0	L
Trichlorfon	180.198	0.1	N
Trifluralin	180.207	1.0	
Urea	180.1117	exempt	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Carrots (Post-H)			
Chlorosulfamic acid	180.201	8.0	
Dicloran	180.200	10.0	
Methyl bromide	180.123	30.0	
2-Phenylphenol	180.129	20.0	
Thiabendazole	180.242	10.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Cashews			
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Oxadiazon	180.346	0.05	N
Phosalone	180.263	0.05	N
Cashews (Post-H)			
Aluminum phosphide (residues calculated as phosphine).	180.225	0.1	
Hydrocyanic acid	180.130	25.0	
Methyl bromide	180.123	200.0	
Cassava (Manioc)			
Paraquat dichloride	180.205	0.05	R
Cassava, Roots			
Ametryn	180.258	0.1	R
Cassia (Post-H)			
Hydrocyanic acid	180.130	250.0	
Catfish (Meat Animal)			
Potassium ricinoleate ...	180.1085	exempt	
Cattle, Beef (All or Unspecified)			
Methoprene	186.4150	FEAR	
Tetrachlorvinphos	186.950	FEAR	
Cattle, Dairy (All or Unspecified)			
Methoprene	186.4150	FEAR	
Tetrachlorvinphos	186.950	FEAR	
Cattle, Fat			
Abamectin	180.449	0.015	L
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.01	
Amitraz	180.287	0.1	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154	0.1	
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	1.0	T
Bromoxynil	180.324C	0.1	
Bromoxynil	180.324	0.1	
sec-Butylamine	180.321	0.75	
Cacodylic acid	180.311	0.7	
Captan	180.103	0.05	
Carbaryl	180.169	0.1	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chlorobenzilate	180.109	0.5	
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	I
Chlorpyrifos	180.342	0.3	
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Clofentezine	180.446	0.05	
Cloprop	180.325	0.05	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	1.00	L
Cyhexatin	180.144	0.2	
Cypermethrin	180.418	0.05	T
Dialifor	180.326	0.15	N
Dicamba	180.227	0.2	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0		Phosmet	180.261	0.2	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05		Picloram	180.292	0.2	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2		Piperonyl butoxide	180.127	0.1	N
3',4'-Dichloropropion anilide.	180.274	0.1	N	Pirimiphos-methyl	180.409	0.2	
Dichlorvos	180.235	0.02	N	Primisulfuron	180.452	0.1	
Difenoconazole	180.475	0.05	T	Profenofos	180.404	0.05	
Difenoquat	180.369	0.05		Propachlor	180.211	0.02	N
Diffubenzuron	180.377	0.05		Propargite	180.259	0.1	
Dimethipin	180.406	0.02		Propham	180.319	0.05	I
Dimethoate	180.204	0.02	N	Propiconazole	180.434	0.1	
Diphenamid	180.230	0.05	N	Propyzamide	180.317	0.02	N
Dipropyl isocinchomeronate.	180.143	0.1	N	Prosulfuron	180.481	0.05	L
Diquat dibromide	180.226	0.02		Pyrethrins	180.128	0.1	N
Diuron	180.106	1.0		Quizalofop-ethyl	180.441	0.05	
Endosulfan	180.182	0.2		Sethoxydim	180.412	0.2	
Ethalfuralin	180.416	0.05		Simazine	180.213	0.02	N
Ethephon	180.300	0.1		Sulfonium, trimethyl-, salt with <i>N</i> -(phos	180.489	0.10	L
Ethion	180.173	2.5		phonomethyl)glycine (1:1).			
Ethofumesate	180.345	0.05		Sulprofos	180.374	0.1	
Etridiazole	180.370	0.1		Tebuthiuron	180.390	2.0	
Fenamiphos	180.349	0.05		Terbacil	180.209	0.1	
Fenarimol	180.421	0.1		Tetrachlorvinphos	180.252	1.5	
Fenbutatin oxide	180.362	0.5		Thiabendazole	180.242	0.1	
Fenoxaprop-ethyl	180.430	0.05	L	Thidiazuron	180.403	0.2	
Fenpropathrin	180.466	0.02	T	Thiobencarb	180.401	0.2	
Fenridazone-potassium	180.423	0.05		Thiophanate-methyl	180.371	0.1	
Fenthion	180.214	0.1		Triadimefon	180.410	1.0	
Fenvalerate	180.379	1.5		Triadimenol	180.450	0.1	
Fluazifop-butyl	180.411	0.05		Triasulfuron	180.459	0.1	
Fluridone	180.420	0.05		<i>S,S,S</i> -Tributyl phospho	180.272	0.02	N
Flutolanil	180.484	0.10		trithioate.			
Fluvalinate	180.427	0.01		Trichlorfon	180.198	0.1	N
Glufosinate-ammonium	180.473	0.05	L	Triclopyr	180.417	0.05	
Hexazinone	180.396	0.1		Triflumazole	180.476	0.5	
Imazalil	180.413	0.01		Cattle, Fat (Pre-S)			
Imidacloprid	180.472	0.3		Diazinon	180.153	0.7	
Iprodione	180.399	0.5		Malathion	180.111	4.0	
Isofenphos	180.387	0.1		Cattle, Fat of Meat			
Lambda-cyhalothrin	180.438	3.0		Dioxathion	180.171	1.0	
Linuron	180.184	1.0		Lindane	180.133	7.0	
MCPA	180.339	0.1	N	Methoxychlor	180.120	3.0	
Mepiquat chloride	180.384	0.1		Cattle, Feed, Conc. (Nonmed.)			
Metalaxyl	180.408	0.4		Malathion	186.3850	10.0	
Methidathion	180.298	0.05		Cattle, Kidney			
Methoprene	180.359	1.0		<i>sec</i> -Butylamine	180.321	3.0	
Metolachlor	180.368	0.02		Cacodylic acid	180.311	1.4	
Metribuzin	180.332	0.7		Carbaryl	180.169	1.0	
Metsulfuron-methyl	180.428	0.1		Cloprop	180.325	0.5	
Myclobutanil	180.443	0.05		Cyhexatin	180.144	0.5	
Naled	180.215	0.05		Dicamba	180.227	1.5	
Nitrapyrin	180.350	0.05	N	3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	12.0	
Norflurazon	180.356	0.1		2,4-Dichlorophenoxy acetic acid.	180.142(h)	2.0	
<i>N</i> -Octyl bicycloheptene dicarboximide.	180.367	0.3		Fenarimol	180.421	0.1	
Oxadiazon	180.346	0.01	N	Fenridazone-potassium	180.423	1.0	
Oxydemeton-methyl	180.330	0.01		Fentin hydroxide	180.236	0.05	N
Oxyfluorfen	180.381	0.05		Fluridone	180.420	0.1	
Paraquat dichloride	180.205	0.05		Flutolanil	180.484	1.00	
Permethrin	180.378	3.0		Glyphosate and its metabolites.	180.364	4.0	
Phorate	180.206	0.05	N				
Phosalone	180.263	0.25					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Iprodione	180.399	3.0	
Metalaxyl	180.408	0.4	
Metolachlor	180.368	0.2	
Metsulfuron-methyl	180.428	0.5	
Paraquat dichloride	180.205	0.3	
Picloram	180.292	5.0	
Pirimiphos-methyl	180.409	2.0	
Propiconazole	180.434	2.0	
Propyzamide	180.317	0.4	
Prosulfuron	180.481	0.05	L
Sodium acifluorfen	180.383	0.02	
Thiophanate-methyl	180.371	0.2	N
Triasulfuron	180.459	0.5	L
Triclopyr	180.417	0.5	
Cattle, Liver			
Cacodylic acid	180.311	1.4	
Carbaryl	180.169	1.0	
Cyhexatin	180.144	0.5	
Dicamba	180.227	1.5	
Fenarimol	180.421	0.1	
Fenridazone-potassium	180.423	1.0	
Fentin hydroxide	180.236	0.05	N
Fluridone	180.420	0.1	
Flutolanil	180.484	2.00	
Glyphosate and its metabolites.	180.364	0.5	
Imazalil	180.413	0.5	
Iprodione	180.399	3.0	
Metalaxyl	180.408	0.4	
Metolachlor	180.368	0.05	
Myclobutanil	180.443	1.0	
Picloram	180.292	0.5	
Pirimiphos-methyl	180.409	2.0	
Propiconazole	180.434	2.0	
Propyzamide	180.317	0.4	
Prosulfuron	180.481	0.05	L
Sodium acifluorfen	180.383	0.02	
Thiophanate-methyl	180.371	2.5	
Triclopyr	180.417	0.5	
Cattle, Liver (Pre-S Min 14 Days)			
Clofentazine	180.446	0.4	
Cattle, MBYP			
Abamectin	180.449	0.02	T
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.01	
Amitraz	180.287	0.3	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154	0.1	
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	0.1	T
Bromoxynil	180.324C	0.1	
Bromoxynil	180.324	0.1	
Captan	180.103	0.05	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chlorobenzilate	180.109	0.5	
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	I
Chlorpyrifos	180.342	0.05	
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Cloprop	180.325	0.05	
Coumaphos	180.189	1.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Cyfluthrin	180.436	0.4	L
Cypermethrin	180.418	0.05	T
Dalapon	180.150	0.2	
Dialifor	180.326	0.15	N
Dicamba	180.227	0.2	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
3',4'-Dichloropropion anilide.	180.274	0.1	N
Dichlorvos	180.235	0.02	N
Difenoconazole	180.475	0.05	T
Difenzoquat	180.369	0.05	
Diffubenzuron	180.377	0.05	
Dimethipin	180.406	0.02	
Dimethoate	180.204	0.02	N
Diphenamid	180.230	0.05	N
Dipropyl isocinchomeronate.	180.143	0.1	N
Diquat dibromide	180.226	0.02	
Diuron	180.106	1.0	
Endosulfan	180.182	0.2	
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Ethion	180.173	1.0	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.01	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	
Fenthion	180.214	0.1	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Flutolanil	180.484	0.05	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.10	L
Halosulfuron	180.479A	0.1	
Hexazinone	180.396	0.1	
Imazalil	180.413	0.01	
Imidacloprid	180.472	0.3	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	0.2	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Methidathion	180.298	0.05	
Methoprene	180.359	0.1	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Naled	180.215	0.05	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Permethrin	180.378	2.0	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propam	180.319	0.05	I
Propionic acid	180.1023	exempt	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Prosulfuron	180.481	0.05	L	Bifenthrin	180.442	0.5	T
Pyrethrins	180.128	0.1	N	Bromoxynil	180.324C	0.1	
Quizalofop-ethyl	180.441	0.05		Bromoxynil	180.324	0.1	
Sethoxydim	180.412	0.2		sec-Butylamine	180.321	0.75	
Simazine	180.213	0.02	N	Cacodylic acid	180.311	0.7	
Sulfonium, trimethyl-, salt with N-(phosphonomethyl)glycine (1:1)	180.489	1.00	L	Captan	180.103	0.05	
Sulprofos	180.374	0.1		Carbaryl	180.169	0.1	
Tebuthiuron	180.390	2.0		Carbofuran	180.254	0.05	
Terbacil	180.209	0.1		Carboxin	180.301	0.1	
Thiabendazole	180.242	0.1		Chinomethionat	180.338	0.05	N
Thidiazuron	180.403	0.2		Chlorobenzilate	180.109	0.5	
Thiobencarb	180.401	0.2		Chloroneb	180.257	0.2	
Triadimefon	180.410	1.0		Chlorpropham	180.319	0.05	I
Triadimenol	180.450	0.1		Chlorpyrifos	180.342	0.05	
S,S,S-Tributyl phosphorotrithioate	180.272	0.02	N	Chlorpyrifos-methyl	180.419	0.5	
Trichlorfon	180.198	0.1	N	Chlorsulfuron	180.405	0.3	
Triflumazole	180.476	0.5		Clethodim	180.458	0.2	
Cattle, MBYP (Exc. Liver)				Clofentezine	180.446	0.05	
Clofentezine	180.446	0.05		Coumaphos	180.189	1.0	
Myclobutanil	180.443	0.2		Cyfluthrin	180.436	0.4	L
Cattle, MBYP (Exc. Kidney and Liver)				Cyhexatin	180.144	0.2	
Cacodylic acid	180.311	0.7		Cypermethrin	180.418	0.05	T
Carbaryl	180.169	0.1		Dalapon	180.150	0.2	
Cyhexatin	180.144	0.2		Dialifor	180.326	0.15	N
Fluridone	180.420	0.05		Dicamba	180.227	0.2	
Iprodione	180.399	0.5		3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	1.0	
Metolachlor	180.368	0.02		3,7-Dichloro-8-quinoline carboxylic acid	180.463	0.05	
Picloram	180.292	0.2		2,4-Dichlorophenoxy acetic acid	180.142(h)	0.2	
Propiconazole	180.434	0.1		3',4'-Dichloropropion anilide	180.274	0.1	N
Propyzamide	180.317	0.02	N	Dichlorvos	180.235	0.02	N
Thiophanate-methyl	180.371	0.1	N	Difenoconazole	180.475	0.05	T
Triclopyr	180.417	0.05		Difenzoquat	180.369	0.05	
Cattle, MBYP (Exc. Kidney)				Diflubenzuron	180.377	0.05	
sec-Butylamine	180.321	0.75		Dimethipin	180.406	0.02	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	1.0		Dimethoate	180.204	0.02	N
2,4-Dichlorophenoxy acetic acid	180.142(h)	0.2		Diphenamid	180.230	0.05	N
Paraquat dichloride	180.205	0.05		Dipropyl isocinchomeronate	180.143	0.1	N
Triasulfuron	180.459	0.1		Diquat dibromide	180.226	0.02	
Cattle, MBYP (Fat Basis)				Diuron	180.106	1.0	
Diazinon	180.153	0.7		Endosulfan	180.182	0.2	
Cattle, MBYP (Pre-S)				Ethalfuralin	180.416	0.05	
Malathion	180.111	4.0		Ethephon	180.300	0.1	
Cattle, Meat				Ethofumesate	180.345	0.05	
Abamectin	180.449	0.02	T	Etridiazole	180.370	0.1	
Acephate	180.108	0.1		Fenamiphos	180.349	0.05	
Alachlor	180.249	0.02		Fenarimol	180.421	0.01	
Aldicarb	180.269	0.01		Fenbutatin oxide	180.362	0.5	
Amitraz	180.287	0.05		Fenoxaprop-ethyl	180.430	0.05	L
Atrazine	180.220	0.02	N	Fenpropathrin	180.466	0.02	T
Azinphos-methyl	180.154	0.1		Fenridazone-potassium	180.423	0.05	
Benomyl	180.294	0.1		Fenthion	180.214	0.1	
Bentazon	180.355	0.05		Fenvalerate	180.379	1.5	
				Fluazifop-butyl	180.411	0.05	
				Fluridone	180.420	0.05	
				Flutolanil	180.484	0.05	
				Fluvalinate	180.427	0.01	
				Glufosinate-ammonium	180.473	0.05	L
				Halosulfuron	180.479A	0.1	
				Hexazinone	180.396	0.1	
				Imazalil	180.413	0.01	
				Imidacloprid	180.472	0.3	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Iprodione	180.399	0.5	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	0.2	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Metalaxyl	180.408	0.05	
Methidathion	180.298	0.05	
Methoprene	180.359	0.1	
Metolachlor	180.368	0.02	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Myclobutanil	180.443	0.1	
Naled	180.215	0.05	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Permethrin	180.378	0.25	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Picloram	180.292	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propiconazole	180.434	0.1	
Propionic acid	180.1023	exempt	
Propyzamide	180.317	0.02	N
Prosulfuron	180.481	0.05	L
Pyrethrins	180.128	0.1	N
Quizalofop-ethyl	180.441	0.02	
Sethoxydim	180.412	0.2	
Simazine	180.213	0.02	N
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonemethylglycine (1:1)	180.489	0.20	L
Sulprofos	180.374	0.1	
Tebuthiuron	180.390	2.0	
Terbacil	180.209	0.1	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	
Thiobencarb	180.401	0.2	
Thiophanate-methyl	180.371	0.1	
Triadimefon	180.410	1.0	
Triadimenol	180.450	0.1	
Triasulfuron	180.459	0.1	
<i>S,S,S</i> -Tributyl phospho trithioate	180.272	0.02	N
Trichlorfon	180.198	0.1	N
Triclopyr	180.417	0.05	
Triflumazole	180.476	0.05	
Cattle, Meat (Exc. Kidneys)			
Cloprop	180.325	0.05	
Cattle, Meat (Fat Basis)			
Diazinon	180.153	0.7	
Ethion	180.173	2.5	
Cattle, Meat (Pre-S)			
Malathion	180.111	4.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Cauliflower			
Acephate	180.108	2.0	
Allethrin	180.1002	exempt	
Aqueous extract of sea- weed meal	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Benomyl	180.294	0.2	
Captan	180.103	2.0	
Carbaryl	180.169	10.0	
Chlorothalonil	180.275	5.0	
Chlorpyrifos	180.342	1	
Cryolite	180.145	7.0	
Dimethoate	180.204	2.0	
Disulfoton	180.183	0.75	
Endosulfan	180.182	2.0	
Fenvalerate	180.379	0.5	
Ferbam	180.114	7.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Inorganic bromides re- sulting from soil treat- ment with combina- tions of chloropicrin, methyl bromide, and propargyl bromide	180.199	25.0	
L(+)-Lactic acid	180.1001	exempt	
Lindane	180.133	1.0	
Maneb	180.110	10.0	
Metalaxyl	180.408	1.0	
Methamidophos	180.315	1.0	
Methomyl	180.253	2.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	1.0	
Naled	180.215	1.0	
Nicotine	180.167	2.0	
Oxydemeton-methyl	180.330	1.0	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Pentachloronitrobenzene	180.319	0.1	I
Permethrin	180.378	1.0	
Phosphamidon	180.239	0.5	
TEPP	180.347	0.01	N
Thiodicarb	180.407	7.0	L
Trichlorfon	180.198	0.1	N
Urea	180.1117	exempt	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Cauliflower (Post-H)			
Chlorosulfamic acid	180.201	8.0	
Celeriac			
Glyphosate and its metabolites	180.364	0.2	
Celery			
Abamectin	180.449	0.05	
Acephate	180.108	10.0	
Allethrin	180.1002	exempt	
Allidochlor	180.282	0.05	N
Anilazine	180.158	10.0	
Aqueous extract of sea- weed meal	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Benomyl	180.294	3.0	
Captan	180.103	50.0	
Carbaryl	180.169	10.0	
Chlorothalonil	180.275	15.0	
Chloroxuron	180.216	0.1	
Cyromazine	180.414	10.0	
Diazinon	180.153	0.7	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Dichlorone	180.118	3.0		Chlorpyrifos	180.342	1.0	
Dicloran	180.200	15.0		Clofentazine	180.446	1.0	
Dimethoate	180.204	2.0		Diazinon	180.153	0.75	
Endosulfan	180.182	2.0		Dichlorone	180.118	3.0	
Ferbam	180.114	7.0		Dicofol	180.163	5.0	
Folpet	180.191	50.0		Dimethoate	180.204	2.0	
Lindane	180.133	1.0		Endosulfan	180.182	2.0	
Linuron	180.184	0.5		Ethephon	180.300	10.0	
Mancozeb	180.176	5.0		Ethion	180.173	0.1	
Maneb	180.110	5.0		Fenamiphos	180.349	0.25	
Methamidophos	180.315	1.0	R	Fenarimol	180.421	1.0	
Methomyl	180.253	3.0		Ferbam	180.114	7.0	
Metiram	180.217	5.0		Folpet	180.191	50.0	
Metolachlor	180.368	0.1		Glyodin	180.124	5.0	
Mevinphos	180.157	1.0		L(+)-Lactic acid	180.1001	exempt	
Naled	180.215	3.0		Lindane	180.133	1.0	
Nicotine	180.167	2.0		Malathion	180.111	8.0	
Oxamyl	180.303	3.0		Methoxychlor	180.120	14.0	
Parathion	180.121	1.0		Methyl anthranilate	180.1143	exempt	
Permethrin	180.378	5.0		Mevinphos	180.157	1.0	
Prometryn	180.222	0.5		Nicotine	180.167	2.0	
Propiconazole	180.434	5.0		Norflurazon	180.356	0.1	
Sethoxydim	180.412	1.0		Oxyfluorfen	180.381	0.05	
Streptomycin	180.245	0.25		Paraquat dichloride	180.205	0.05	
Thiobencarb	180.401	0.2	R	Parathion	180.121	1.0	
Thiophanate-methyl	180.371	3.0		Permethrin	180.378	3.0	
Thiram	180.132	7.0		Phosalone	180.263	15.0	
Urea	180.1117	exempt		Phosmet	180.261	10.0	
Zineb	180.115	5.0	X	Sesame plant, ground ...	180.1087	exempt	
Ziram	180.116	7.0		Simazine	180.213	0.25	
Celery (Post-H)				Tebuconazole	180.474	4.0	
Chlorosulfamic acid	180.201	8.0		Tetrachlorvinphos	180.252	10.0	
Celery, Seed (Post-H)				Tetradifon	180.174	5.0	
Hydrocyanic acid	180.130	250.0		Triforine	180.382	3.0	
Cereals, Cooked				Urea	180.1117	exempt	
Hydrocyanic acid	185.3600	90.0		Zineb	180.115	7.0	X
				Ziram	180.116	7.0	
Chayote				Cherries (Post-H)			
Malathion	180.111	8.0		Allethrin	180.113	4.0	
Chayote, Roots				Methyl bromide	180.123	20.0	
Malathion	180.111	8.0		(Z,Z)-3,13-Octadeca dien-1-ol acetate.	180.1055	exempt	
Cheese, Parmesan				2-Phenylphenol	180.129	5.0	
Inorganic bromides re- sulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3- chloropropane (185.3700, 186.3700).	185.3700	325.0		Piperonyl butoxide	180.127	8.0	
Cheese, Rouquefort				Pyrethrins	180.128	1.0	
Inorganic bromides re- sulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3- chloropropane (185.3700, 186.3700).	185.3700	325.0		Cherries (Pre- and Post-H)			
				Benomyl	180.294	15.0	
Cherimoya				Thiophanate-methyl	180.371	15.0	
Chlorpyrifos	180.342	0.05	R	Cherries (Sweet and Sour)			
Glyphosate and its metabolites.	180.364	0.2		Chlorothalonil	180.275	0.5	
Cherries				Fenbutatin oxide	180.362	6.0	
Azinphos-methyl	180.154	2.0		Myclobutanil	180.443	5.0	
Captan	180.103	100.0		Cherries, Sour			
Carbaryl	180.169	10.0		Captafol	180.267	50.0	
				Dodine	180.172	5.0	
				Fenbutatin oxide	180.362	6.0	
				Iprodione	180.399	20.0	
				Cherries, Sweet			
				Captafol	180.267	2.0	
				Dodine	180.172	5.0	
				Fenbutatin oxide	180.362	6.0	
				1-Naphthaleneacetic acid.	180.155	0.1	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Cherries, Sweet (Pre- and Post-H)			
Dicloran	180.200	20.0	
Iprodione	180.399	20.0	
Chestnuts			
Carbaryl	180.169	1.0	
Dicofol	180.163	5.0	
Ethion	180.173	0.1	
Malathion	180.111	1.0	
Oxadiazon	180.346	0.05	N
Phosalone	180.263	0.05	N
Chestnuts (Post-H)			
Methyl bromide	180.123	200.0	
Chicory			
Allethrin	180.1002	exempt	
Glyphosate and its metabolites.	180.364	0.2	
Chicory, Red (Tops) (Radicchio)			
Diazinon	180.153	0.7	
Mevinphos	180.157	0.5	
Propyzamide	180.317	2.0	
Vinclozolin	180.380	5.0	
Chili (Post-H)			
Hydrocyanic acid	180.130	250.0	
Cinnamon (Post-H)			
Hydrocyanic acid	180.130	250.0	
Cipollini, Bulb (Post-H)			
Methyl bromide	180.123	50.0	
Citrus			
Allethrin	180.1002	exempt	
Fluridone	180.420	0.1	
Fosetyl-Al	180.415	0.5	
L(+)-Lactic acid	180.1001	exempt	
Mevinphos	180.157	0.2	
Citrus Fruits			
Abamectin	180.449	0.02	T
Azinphos-methyl	180.154	2.0	
Bromacil	180.210	0.1	
Captafol	180.267	0.5	
Carbaryl	180.169	10.0	
Chinomethionat	180.338	0.5	
Chlorobenzilate	180.109	5.0	
Chlorpyrifos	180.342	1.0	
Cryolite	180.145	7.0	
Cyhexatin	180.144	2.0	
Dalapon	180.150B	0.2	
Dialifor	180.326	3.0	
Diazinon	180.153	0.7	
Dichlobenil	180.231	0.15	N
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N
Diquat dibromide	180.226	0.02	
Disodium methanearsonate.	180.289	0.35	
Diuron	180.106	1.0	
EPTC	180.117	0.1	N
Ethion	180.173	2.0	
Fenbutatin oxide	180.362	20.0	
Ferbam	180.114	7.0	
Folpet	180.191	15.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Gibberellic acid	180.224	0.15	N
Glyphosate, isopropylamine salt.	180.364	0.5	
Metolaxyl	180.408	1.0	
Methiocarb	180.320	0.02	
Nicotine	180.167	2.0	
Norflurazon	180.356	0.2	
Oryzalin	180.304	0.05	
Oxamyl	180.303	3.0	
Paraquat dichloride	180.205	0.05	N
Parathion	180.121	1.0	
Phosalone	180.263	3.0	
Phosmet	180.261	5.0	
Phytophthora palmivora	180.1057	exempt	
Sethoxydim	180.412	0.5	
Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1).	180.489	0.05	
Tartar emetic	180.179	3.5	
Temephos	180.170	0.1	N
Terbacil	180.209	0.1	
Trichlorfon	180.198	0.1	N
Trifluralin	180.207	0.05	N
Zineb	180.115	7.0	X
Citrus Fruits (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Citrus Fruits (Ex. Mandarins)			
Methidathion	180.298	2.0	
Citrus Fruits (Inc. Pre-H and Post-H)			
2,4-Dichlorophenoxy acetic acid.	180.142A	5.0	
Citrus Fruits (Post-H)			
sec-Butylamine	180.321	30.0	
Hydrocyanic acid	180.130	50.0	
Imazail	180.413	10.0	
Methylene chloride	180.1010	exempt	
2-Phenylphenol	180.129	10.0	
Thiabendazole	180.242	10.0	
1,1,1-Trichloroethane	180.1012	exempt	
Citrus Fruits (Pre- and Post-H)			
Benomyl	180.294	10.0	
Citrus Fruits and Hybrids Thereof (Post-H)			
Biphenyl	180.141	110.0	
Citrus, Citron			
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Tetradifon	180.174	2.0	
Citrus, Citron (Post-H)			
Methyl bromide	180.123	30.0	
2-Phenylphenol	180.129	10.0	
Citrus, Molasses			
Fenamiphos	186.2950	2.5	
Formetanate hydrochloride.	186.3450	10.0	
Glyphosate and its metabolites.	186.3500	1.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Metalaxyl	186.4000	7.0		4-(2,4-Dichlorophenoxy) butyric acid	180.331	0.2	N
Norflurazon	186.4450	1.0		Formaldehyde	180.1032	exempt	
Sethoxydim	186.2800	1.5		Glyphosate and its metabolites	180.364	200.0	
Thiabendazole	186.5550	20.0		Isobutyric acid	180.1030	exempt	
Citrus, Molasses (Ct.F.)(Post-H)				Malathion	180.111	135.0	
sec-Butylamine	186.450	90.0		MCPA	180.339	0.1	
Citrus, Oil				Methidathion	180.298	12.0	
Abamectin	185.300	0.1	T	Methoxychlor	180.120	100.0	
Chlorpyrifos	185.1000	25.0		Mevinphos	180.157	1.0	
Fenamiphos	185.2950	25.0		Paraquat dichloride	180.205	5.0	
Fenbutatin oxide	185.3550	140		Parathion	180.121	1.0	
Imazalil	185.3650	25.0		Propham	180.319	2.0	I
Metalaxyl	185.4000	7.0		Propionic acid	180.1023	exempt	
Citrus, Pulp, Dehydrated (Ct.F.)				Trichlorfon	180.198	60.0	
Dalapon	186.1500	20.0		Clover, Chaff, For Seed			
Dioxathion	186.2450	18.0		Oxydemeton-methyl	180.330	11.0	
Ethion	186.2750	10.0		Clover, Forage			
Malathion	186.3850	50.0		Diuron	180.106	2.0	
Citrus, Pulp, Dried				Metalaxyl	180.408	1.0	
Abamectin	186.300	0.1	T	Sethoxydim	180.412	35	
Aldicarb	186.150	0.6		Clover, Fresh			
Chlorpyrifos	186.1000	5.0		Di-allate	180.277	0.05	X
Cyhexatin	186.1350	8.0		Diazinon	180.153	40.0	
Dialfor	186.1650	15.0		Disulfoton	180.183	5.0	
Fenamiphos	186.2950	2.5		Clover, Green			
Fenbutatin oxide	186.3550	100		Oxydemeton-methyl	180.330	5.0	
Glyphosate and its metabolites	186.3500	1.5		Clover, Hay			
Imazalil	186.3650	25.0		Azinphos-methyl	180.154	5.0	
Metalaxyl	186.4000	7.0		Carbaryl	180.169	100.0	
Norflurazon	186.4450	0.4		Chlorpropham	180.319	50.0	I
Phosalone	186.4800	12.0		Di-allate	180.277	0.05	X
Propargite	186.5000	40.0		Diazinon	180.153	10.0	
Sethoxydim	186.2800	1.5		Disulfoton	180.183	12.0	
Trichlorfon	186.2325	2.5		Diuron	180.106	2.0	
Citrus, Pulp, Dried (Ct, Gt, Sh.F.)				MCPA	180.339	0.1	
Azinphos-methyl	186.2225	5.0		Metalaxyl	180.408	2.5	
Citrus, Pulp, Dried (Ct.F.)				Methidathion	180.298	12.0	
Dimethoate	186.2100	5.0		Propham	180.319	5.0	I
Citrus, Pulp, Dried (Ct.F.)(Post-H)				Sethoxydim	180.412	50	
sec-Butylamine	186.450	90.0		Sodium diacetate	180.1058	exempt	
Citrus, Pulp, Dried (LS. F.)				Trichlorfon	180.198	90.0	
Diuron	186.2550	4.0		Clover, Hay, For Seed			
Citrus, Pulp, Dried (Post and Pre-H)				Oxydemeton-methyl	180.330	11.0	
Benomyl	186.350	50.0		Cocoa			
Citrus, Pulp, Dried (Post-H)				Hydrocyanic acid	185.3600	200.0	
Thiabendazole	186.5550	35.0		Cocoa Beans			
Clove (Post-H)				Chlorothalonil	180.275	0.05	
Hydrocyanic acid	180.130	250.0		Fenamiphos	180.349	0.02	
Clover				Glyphosate and its metabolites	180.364	0.2	
Azinphos-methyl	180.154	2.0		Magnesium phosphide (residues calculated as phosphine)	180.375	0.1	
Benfluralin	180.208	0.05	N	Oxyfluorfen	180.381	0.05	
Carbaryl	180.169	100.0		Paraquat dichloride	180.205	0.05	
Chlorpropham	180.319	20.0	I	Cocoa Beans (Post-H)			
				Aluminum phosphide (residues calculated as phosphide)	180.225	0.1	
				Hydrocyanic acid	180.130	25.0	
				Methyl bromide	180.123	50.0	
				Piperonyl butoxide	180.127	8.0	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Pyrethrins	180.128	1.0	
Coconut			
Glyphosate and its metabolites.	180.364	0.1	
Coffee Beans			
Aldicarb	180.269	0.1	
Carbofuran	180.254	0.1	
Chlorothalonil	180.275	0.2	
Cyproconazole	180.485	0.1	L
Dalapon	180.150	2.0	
Diazinon	180.153	0.2	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N
Diquat dibromide	180.226	0.05	
Disulfoton	180.183	0.3	
Ethephon	180.300	0.1	N
Fluazifop-butyl	180.411	0.1	R
Fluvalinate	180.427	0.01	R
Glyphosate and its metabolites.	180.364	1.0	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	N
Phorate	180.206	0.02	
Terbufos	180.352	0.05	L
Coffee Beans (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Methyl bromide	180.123	75.0	
Collards			
Allethrin	180.1002	exempt	
Benomyl	180.294	0.2	
Captan	180.103	2.0	
Carbaryl	180.169	12.0	
Cryolite	180.145	7.0	
Dimethoate	180.204	2.0	
Endosulfan	180.182	2.0	
Ethylene	180.1016	exempt	
Fenvalerate	180.379	10.0	
Ferbam	180.114	7.0	
Lindane	180.133	1.0	
Maneb	180.110	10.0	
Methomyl	180.253	6.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	1.0	
Naled	180.215	3.0	
Nicotine	180.167	2.0	
Paraquat dichloride	180.205	0.05	
Pentachloronitrobenzene	180.291	0.2	R
Permethrin	180.378	20.0	R
Trichlorfon	180.198	0.1	N
Zineb	180.115	25.0	X
Ziram	180.116	7.0	
Cookie Mixes			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Copra (Post-H)			
Ethylene oxide	180.151	50.0	
Methyl bromide	180.123	100.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Coriander (Post-H)			
Hydrocyanic acid	180.130	250.0	
Corn			
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal.	180.1042	exempt	
<i>Beauveria bassiana</i>	180.1146	exempt	
Cryolite	180.145	7.0	
Ethylene	180.1016	exempt	
Ferbam	180.114	7.0	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parasitoid insects	180.1101	exempt	
Parathion	180.121	1.0	
Pirimiphos-methyl	180.409	8.0	
Urea	180.1117	exempt	
Corn (For Feed Use)			
Sulfur dioxide	180.1013	exempt	N
Corn (Inc. Sweet)(K+Cwhr)			
Carbaryl	180.169	5.0	
Diazinon	180.153	0.7	
Malathion	180.111	2.0	
Corn (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Chloropicrin	180.1008	exempt	
Hydrocyanic acid	180.130	75.0	
Isobutyric acid	180.1030	exempt	
Methyl bromide	180.123	50.0	
Piperonyl butoxide	180.127	20.0	
Pyrethrins	180.128	3.0	
Corn, Ear, Dried (K+C)			
Dalapon	180.150	10.0	
Corn, Field			
<i>Bacillus thuringiensis</i> CryIA(b) δ -endotoxin and the genetic material necessary for its production (plasmid vector pCIB4431) in corn.	180.1152	exempt	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
L(+)-Lactic acid	180.1001	exempt	
Methoprene	180.359	5.0	
Phostebupirim	180.483	0.01	
<i>Trichoderma viride sensu</i> Bisby.	180.1102	exempt	L
Corn, Field, Ear			
Diuron	180.106	1.0	
Corn, Field, Fodder			
Acetochlor	180.470	1.5	
Allidochlor	180.282	0.05	N
Atrazine	180.220	15.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Butylate	180.232	0.1		Corn, Field, Grain			
Chloramben	180.266	0.1		Acetochlor	180.470	0.05	
Chlorthal-dimethyl	180.185	0.4		Bromoxynil	180.324C	0.1	
Clopyralid	180.431	10	T	Bromoxynil	180.324	0.1	
Cyfluthrin	180.436	0.01	L	Butylate	180.232	0.1	
Di-allate	180.277	0.05	X	Chloramben	180.266	0.1	
4-(Dichloroacetyl)-1-oxa-4-azaspiro(4.5)decane.	180.465	0.005	T	Chlorethoxyphos	180.486	0.01	
<i>N</i> -(4,6-Dimethoxypyridin-2-yl)aminocarbonyl)-3-(ethylsulfonyl)-2-pyridinesulfonamide.	180.478	0.1		Chlorpyrifos	180.342	0.05	
Disulfoton	180.183	5.0		Clopyralid	180.431	1.0	T
Diuron	180.106	2.0		Cyfluthrin	180.436	0.01	L
Flumetsulam	180.468	0.05		Di-allate	180.277	0.05	X
flumiclorac-pentyl	180.477	0.01		4-(Dichloroacetyl)-1-oxa-4-azaspiro(4.5)decane.	180.465	0.005	T
Fonofos	180.221	0.1	N	<i>N</i> -(4,6-Dimethoxypyridin-2-yl)aminocarbonyl)-3-(ethylsulfonyl)-2-pyridinesulfonamide.	180.478	0.1	
Halosulfuron	180.479A	1.5		Diuron	180.106	1.0	
Linuron	180.184	1.0		Etridiazole	180.370	0.05	
Prometryn	180.222	0.25		Flumetsulam	180.468	0.05	
Tefluthrin	180.440	0.06	L	flumiclorac-pentyl	180.477	0.01	
Terbufos	180.352	0.05		Halosulfuron	180.479A	0.1	
Tetrachlorvinphos	180.252	110.0		Methiocarb	180.320	0.03	
Thifensulfuron methyl	180.439	0.1		Mevinphos	180.157	0.25	
Trifluralin	180.207	0.05	N	Sethoxydim	180.412	0.5	
Corn, Field, Fodder (Stover)				Tefluthrin	180.440	0.06	L
Chlorethoxyphos	180.486	0.01		Thifensulfuron methyl	180.439	0.05	
Corn, Field, Fodder, Dry				Tridiphane	180.424	0.05	
Bromoxynil	180.324	0.1		Trifluralin	180.207	0.05	N
Corn, Field, Forage				Trimethacarb	180.305	0.1	N
Acetochlor	180.470	1.0		Corn, Fodder			
Allidochlor	180.282	0.05	N	Acetamide	180.464	0.01	
Atrazine	180.220	15.0		Alachlor	180.249	0.2	
Butylate	180.232	0.1		Ametryn	180.258	0.5	
Chloramben	180.266	0.1		4-Aminopyridine	180.312	0.1	N
Chlorethoxyphos	180.486	0.01		Bentazon	180.355	3.0	
Chlorthal-dimethyl	180.185	0.4		Bifenthrin	180.442	5.0	T
Clopyralid	180.431	3.0	T	Bromoxynil	180.324	0.1	
Cyfluthrin	180.436	0.01	L	Carbaryl	180.169	100.0	
Di-allate	180.277	0.05	X	Carbofuran	180.254	25.0	
4-(Dichloroacetyl)-1-oxa-4-azaspiro(4.5)decane.	180.465	0.005	T	Carboxin	180.301	0.2	
<i>N</i> -(4,6-Dimethoxypyridin-2-yl)aminocarbonyl)-3-(ethylsulfonyl)-2-pyridinesulfonamide.	180.478	0.1		Chlorpyrifos	180.342	8.0	
Disulfoton	180.183	5.0		Cyanazine	180.307	0.2	
Diuron	180.106	2.0		Cyfluthrin	180.436	0.01	L
Flumetsulam	180.468	0.05		Cyprazine	180.306	0.1	N
flumiclorac-pentyl	180.477	0.01		Dalapon	180.150	5.0	
Fonofos	180.221	0.1	N	Dicamba	180.227	0.5	
Halosulfuron	180.479A	0.3		2,4-Dichlorophenoxy acetic acid.	180.142B	20.0	
Linuron	180.184	1.0		Dimethoate	180.204	1.0	
Mevinphos	180.157	1.0		Ethion	180.173	14.0	
Prometryn	180.222	0.25		Ethoprop	180.262	0.02	N
Tefluthrin	180.440	0.06	L	Etridiazole	180.370	0.1	
Terbufos	180.352	0.05		Fenvalerate	180.379	50.0	
Tetrachlorvinphos	180.252	110.0		Imazethapyr	180.447	0.1	T
Thifensulfuron methyl	180.439	0.1		Imazethapyr, ammonium salt.	180.447	0.1	
Trifluralin	180.207	0.05	N	Isofenphos	180.387	1.0	
Corn, Field, Forage, Green				Lambda-cyhalothrin	180.438	1.0	L
Bromoxynil	180.324	0.1		Mancozeb	180.176	5.0	
				Methiocarb	180.320	0.03	
				Methomyl	180.253	10.0	
				Metolachlor	180.368	8.0	
				Metribuzin	180.332	0.1	
				Nicosulfuron	180.454	0.1	
				Nitrapyrin	180.350	1.0	
				Oxydemeton-methyl	180.330	3.0	
				Paraquat dichloride	180.205	0.05	N

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Pendimethalin	180.361	0.1	
Permethrin	180.378	60.0	
Phosmet	180.261	10.0	
Phostebupirim	180.483	0.01	L
Primisulfuron	180.452	0.1	
Propargite	180.259	10.0	
Propiconazole	180.434	12	T
Prosulfuron	180.481	0.01	L
Pyridate	180.462	0.03	
Sethoxydim	180.412	2.5	
Simazine	180.213	0.25	
Sodium chlorate	180.1020	exempt	
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.30	L
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Triadimenol	180.450	0.05	
Trichlorfon	180.198	30.0	
Tridiphane	180.424	0.1	N
Trimethacarb	180.305	0.1	N
Vernolate	180.240	0.1	N
Corn, Fodder, Dry			
Bromoxynil	180.324B	0.1	
Bromoxynil	180.324C	0.1	
Corn, Forage			
Acetamide	180.464	0.01	
Alachlor	180.249	0.2	
Ametryn	180.258	0.5	
4-Aminopyridine	180.312	0.1	N
Bentazon	180.355	3.0	
Bifenthrin	180.442	2.0	T
Bromoxynil	180.324	0.1	
Carbaryl	180.169	100.0	
Carbofuran	180.254	25.0	
Carboxin	180.301	0.2	
Chlorpyrifos	180.342	8.0	
Cyanazine	180.307	0.2	
Cyfluthrin	180.436	0.01	L
Cyprazine	180.306	0.1	N
Dalapon	180.150	5.0	
Diazinon	180.153	40.0	
Dicamba	180.227	0.5	
2,4-Dichlorophenoxy acetic acid.	180.142B	20.0	
Dimethoate	180.204	1.0	
Ethion	180.173	14.0	
Ethoprop	180.262	0.02	N
Etridiazole	180.370	0.1	
Fenvalerate	180.379	50.0	
Imazethapyr	180.447	0.1	T
Imazethapyr, ammonium salt.	180.447	0.1	
Isofenphos	180.387	1.0	
Lambda-cyhalothrin	180.438	6.0	L
Malathion	180.111	8.0	
Mancozeb	180.176	5.0	
Methiocarb	180.320	0.03	
Methomyl	180.253	10.0	
Metolachlor	180.368	8.0	
Metribuzin	180.332	0.1	
Nicosulfuron	180.454	0.1	
Nitrapyrin	180.350	1.0	
Oxydemeton-methyl	180.330	3.0	
Paraquat dichloride	180.205	0.05	N
Parathion	180.121	1.0	
Pendimethalin	180.361	0.1	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Permethrin	180.378	60.0	
Phorate	180.206	0.5	
Phosmet	180.261	10.0	
Phostebupirim	180.483	0.01	L
Primisulfuron	180.452	0.1	
Propachlor	180.211	1.5	
Propargite	180.259	10.0	
Propiconazole	180.434	12	T
Prosulfuron	180.481	0.01	L
Pyridate	180.462	0.03	
Sethoxydim	180.412	2.0	
Simazine	180.213	0.25	
Sodium chlorate	180.1020	exempt	
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.10	L
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Thiodicarb	180.31	150.0	
Triadimenol	180.450	0.05	
Trichlorfon	180.198	30.0	
Tridiphane	180.424	0.1	
Trimethacarb	180.305	0.1	N
Vernolate	180.240	0.1	N
Corn, Forage, Green			
Bromoxynil	180.324B	0.1	
Bromoxynil	180.324C	0.1	
Corn, Fresh (Inc. Sweet)(K+Cwhr)			
Alachlor	180.249	0.05	
Allidochlor	180.282	0.05	N
Ametryn	180.258	0.25	
4-Aminopyridine	180.312	0.1	N
Atrazine	180.220	0.25	
Bentazon	180.355	0.05	
Captafol	180.267	0.1	N
Carbofuran	180.254	1.0	
Carboxin	180.301	0.2	
Chlorpyrifos	180.342	0.1	
Cyanazine	180.307	0.05	
Cyprazine	180.306	0.1	N
Dalapon	180.150	5.0	
2,4-Dichlorophenoxy acetic acid.	180.142B	0.5	
Ethoprop	180.262	0.02	N
Fonofos	180.221	0.1	N
Isofenphos	180.387	0.1	
Linuron	180.184	0.25	
Mancozeb	180.176	0.5	
Methiocarb	180.320	0.03	
Methomyl	180.253	0.1	N
Metolachlor	180.368	0.1	
Metribuzin	180.332	0.05	
Nitrapyrin	180.350	0.1	N
Oxydemeton-methyl	180.330	0.5	
Paraquat dichloride	180.205	0.05	N
Pendimethalin	180.361	0.1	
Phosmet	180.261	0.5	
Primisulfuron	180.452	0.1	
Prometryn	180.222	0.25	
Propargite	180.259	0.1	R
Prosulfuron	180.481	0.01	L
Simazine	180.213	0.25	
Tefluthrin	180.440	0.06	L
Triadimenol	180.450	0.05	
Trichlorfon	180.198	0.1	N
Vernolate	180.240	0.1	N

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Corn, Fresh (K+Cwhr)				Methomyl	180.253	0.1	N
Tetrachlorvinphos	180.252	10.0		Trichlorfon	180.198	0.1	N
Corn, Grain				Corn, Grain (Post-H)			
Acetamide	180.464	0.01		Allethrin	180.113	2.0	
Alachlor	180.249	0.2		Ammonia	180.1003	exempt	
Allidochlor	180.282	0.05	N	Calcium cyanide	180.125	25.0	
Ametryn	180.258	0.25		Formaldehyde	180.1032	exempt	
4-Aminopyridine	180.312	0.1	N	Malathion	180.111	8.0	
Atrazine	180.220	0.25		Methylene chloride	180.1010	exempt	
Bentazon	180.355	0.05		Propionic acid	180.1023	exempt	
Bromoxynil	180.324B	0.1		Sodium diacetate	180.1058	exempt	
Carboxin	180.301	0.2		Corn, Grain, Flour			
Cyanazine	180.307	0.05		Lambda-cyhalothrin	185.3765	0.15	L
Cyprazine	180.306	0.1	N	Corn, Grain, Stored (Post-H)			
Dalapon	180.150	10.0		Methoxychlor	180.120	2.0	
Dicamba	180.227	0.5		Corn, Grits, Malted Beverages			
Dimethoate	180.204	0.1	N	Methyl bromide	185.3480	125.0	
Disulfoton	180.183	0.3		Corn, Milled Fractions			
Ethion	180.173	0.1	N	Clopyralid	185.1100	1.5	T
Ethoprop	180.262	0.02	N	Clopyralid	186.1100	1.5	T
Fenvalerate	180.379	0.02		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	186.3700	125.0	
Fonofos	180.221	0.1	N	Corn, Milled Fractions (Exc. Flour)			
Imazethapyr	180.447	0.1	T	Pirimiphos-methyl	185.4950	40.0	
Imazethapyr, ammonium salt.	180.447	0.1		Pirimiphos-methyl	186.4950	40.0	
Isofenphos	180.387	0.1		Corn, Oil			
Linuron	180.184	0.25		Chlorpyrifos	185.1000	3.0	
Metolachlor	180.368	0.1		Pirimiphos-methyl	185.4950	88.0	
Metribuzin	180.332	0.05		Corn, Pop			
Nicosulfuron	180.454	0.1		<i>Bacillus thuringiensis</i> CryIA(b) δ -endotoxin and the genetic material necessary for its production (plasmid vector pCIB4431) in corn.	180.1152	exempt	
Nitrapyrin	180.350	0.1	N	Cyfluthrin	180.436	0.01	L
Oxydemeton-methyl	180.330	0.5		Disulfoton	180.183	0.3	
Oxyfluorfen	180.381	0.05		Gibberellic acid	180.1098	exempt	
Paraquat dichloride	180.205	0.05	N	Indole-3-butyric acid	180.1099	exempt	
Pendimethalin	180.361	0.1		Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Phorate	180.206	0.1		Phostebupirim	180.483	0.01	L
Phosmet	180.261	0.5		Corn, Pop (Post-H)			
Primisulfuron	180.452	0.02		Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Prometryn	180.222	0.25		Methyl bromide	180.123	240.0	
Propachlor	180.211	0.1	N	Corn, Pop, Fodder			
Propargite	180.259	0.1		Allidochlor	180.282	0.05	N
Propiconazole	180.434	0.1	T	Atrazine	180.220	15.0	
Prosulfuron	180.481	0.01	L	Chlorthal-dimethyl	180.185	0.4	
Pyridate	180.462	0.03		Cyfluthrin	180.436	0.01	L
Simazine	180.213	0.25		Disulfoton	180.183	5.0	
Sodium chlorate	180.1020	exempt		Diuron	180.106	2.0	
Sulfonium, trimethyl-, salt with <i>N</i> -phosphonomethylglycine (1:1).	180.489	0.20	L				
Terbufos	180.352	0.05	N				
Tetrachlorvinphos	180.252	10.0					
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N				
Triadimenol	180.450	0.05					
Vernolate	180.240	0.1	N				
Zineb	180.115	0.1	X				
Corn, Grain (Exc. Pop)							
Mancozeb	180.176	0.1					
Corn, Grain (Inc. Field and Pop)							
Bifenthrin	180.442	0.05	T				
Chlorthal-dimethyl	180.185	0.05	L				
Lambda-cyhalothrin	180.438	0.05	L				
Permethrin	180.378	0.05					
Phostebupirim	180.483	0.01	L				
Corn, Grain (Inc. Pop)							
Carbofuran	180.254	0.2					

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Fonofos	180.221	0.1	N
Linuron	180.184	1.0	
Prometryn	180.222	0.25	
Tefluthrin	180.440	0.06	L
Terbufos	180.352	0.5	
Tetrachlorvinphos	180.252	110.0	
Corn, Pop, Fodder (Stover)			
Chlorethoxyphos	180.486	0.01	
Corn, Pop, Forage			
Allidochlor	180.282	0.05	N
Atrazine	180.220	15.0	
Butylate	180.232	0.1	
Chlorthal-dimethyl	180.185	0.4	
Cyfluthrin	180.436	0.01	L
Disulfoton	180.183	5.0	
Diuron	180.106	2.0	
Fonofos	180.221	0.1	N
Linuron	180.184	1.0	
Mevinphos	180.157	1.0	
Prometryn	180.222	0.25	
Tefluthrin	180.440	0.06	L
Terbufos	180.352	0.5	
Tetrachlorvinphos	180.252	110.0	
Corn, Pop, Grain			
Butylate	180.232	0.1	
Chlorethoxyphos	180.486	0.01	
Cyfluthrin	180.436	0.01	L
Diuron	180.106	1.0	
Mancozeb	180.176	0.5	
Methiocarb	180.320	0.03	
Mevinphos	180.157	0.25	L
Tefluthrin	180.440	0.06	N
Trimethacarb	180.305	0.1	
Corn, Pop, Grain (Post-H)			
Chloropicrin	180.1008	exempt	
Methylene chloride	180.1010	exempt	
Corn, Seed			
Bifenthrin	180.442	0.05	T
Corn, Shelled (Post-H)			
Mineral oil—includes paraffin oil from petroleumhydrocarbons.	180.149	200.0	
Corn, Silage			
Nicosulfuron	180.454	0.1	
Pyridate	180.462	0.03	
Corn, Soapstock			
Chlorpyrifos	186.1000	1.0	
Corn, Sweet			
<i>Bacillus thuringiensis</i> CryIA(b) δ -endotoxin and the genetic material necessary for its production (plasmid vector pCIB4431) in corn.	180.1152	exempt	
Cyfluthrin	180.436	0.01	L
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
L(+)-Lactic acid	180.1001	exempt	
Lambda-cyhalothrin	180.438	0.05	L
Phostebupirim	180.483	0.01	L

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Propiconazole	180.434	0.1	T
<i>Trichoderma viride sensu Bisby.</i>	180.1102	exempt	
Corn, Sweet (K+Cwhr)			
Acetamide	180.464	0.01	
Butylate	180.232	0.1	
Captan	180.103	2.0	
Chlorethoxyphos	180.486	0.01	
Chlorothalonil	180.275	1.0	
Chlorthal-dimethyl	180.185	0.05	L
Cyfluthrin	180.436	0.05	
Endosulfan	180.182	0.2	
Maneb	180.110	5.0	
Metiram	180.319	0.5	I
Mevinphos	180.157	0.25	
Nicosulfuron	180.454	0.1	
Permethrin	180.378	0.1	
Phorate	180.206	0.1	
Phostebupirim	180.483	0.01	L
Propachlor	180.211	0.1	N
Sethoxydim	180.412	0.2	
Terbufos	180.352	0.05	N
Tetrachlorvinphos	180.252	10.0	
Zineb	180.115	5.0	X
Corn, Sweet (K+Cwhr) (Post-H)			
Methyl bromide	180.123	50.0	
Corn, Sweet, Ear			
Diuron	180.106	1.0	
Corn, Sweet, Fodder			
Acetamide	180.464	0.01	
Allidochlor	180.282	0.05	N
Atrazine	180.220	15.0	
Benomyl	180.294	0.2	
Chlorthal-dimethyl	180.185	0.4	
Cyfluthrin	180.436	15.00	L
Disulfoton	180.183	5.0	
Diuron	180.106	2.0	
Fonofos	180.221	0.1	N
Linuron	180.184	1.0	
Nicosulfuron	180.454	0.1	
Prometryn	180.222	0.25	
Tefluthrin	180.440	0.06	L
Terbufos	180.352	0.5	
Tetrachlorvinphos	180.252	110.0	
Corn, Sweet, Fodder (Stover)			
Chlorethoxyphos	180.486	0.01	
Corn, Sweet, Forage			
Acetamide	180.464	0.01	
Allidochlor	180.282	0.05	N
Atrazine	180.220	15.0	
Benomyl	180.294	0.2	
Butylate	180.232	0.1	
Chlorethoxyphos	180.486	0.01	
Chlorthal-dimethyl	180.185	0.4	
Cyfluthrin	180.436	30.00	L
Disulfoton	180.183	5.0	
Diuron	180.106	2.0	
Fonofos	180.221	0.1	N
Linuron	180.184	1.0	
Mevinphos	180.157	1.0	
Nicosulfuron	180.454	0.1	
Prometryn	180.222	0.25	
Tefluthrin	180.440	0.06	L
Terbufos	180.352	0.5	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Tetrachlorvinphos	180.252	110.0		Butralin	180.358	0.1	
Corn, Sweet, Grain (K+Cwhr)				Cacodylic acid	180.311	2.8	
Disulfoton	180.183	0.3		Captan	180.103	2.0	
Thiodicarb	180.407	2.0		Carbaryl	180.169	5.0	
Corn, Sweet, Kernel + Cobs				Carbofuran	180.254	1.0	
Fenvalerate	180.379	0.1		Carboxin	180.301	0.2	N
Cotton, Forage				Chloroneb	180.257	0.1	N
<i>Alternaria cassiae</i>	180.1001	exempt		Chlorpyrifos	180.342	0.2	
<i>Bacillus thuringiensis</i> CryIA(c) δ -endotoxin and the genetic material necessary for its production.	180.1155	exempt		Chlorthal-dimethyl	180.185	0.2	
Carbaryl	180.169	100.0		Clethodim	180.458	1.0	
Chloroneb	180.257	2.0		Clomazone	180.425	0.05	
Diphenamid	180.230	0.2		Cyanazine	180.307	0.05	
EPTC	180.117	0.1	N	Cyfluthrin	180.436	1.0	T
Mepiquat chloride	180.384	3.0		Cypermethrin	180.418	0.5	T
Occhilnone	180.366	0.01		Dalapon	180.150B	0.2	
Prometryn	180.222	1.0		Dalapon	180.150	35.0	L
<i>Pseudomonas fluorescens</i> (natural occurring strain).	180.1088	exempt		Deltamethrin	180.435	0.04	
Sesame plant, ground ...	180.1087	exempt		Diazinon	180.153	0.2	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N	Dicamba	180.227	3.0	
Triadimefon	180.450	0.02		2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Urea	180.1117	exempt		Dicloran	180.200	0.1	
Cotton, Gin Byproducts				Dicofol	180.163	0.1	
Glyphosate and its metabolites.	180.364	100.0		Dicrotophos	180.299	0.05	N
Imidacloprid	180.472	4.0		Diflubenzuron	180.377	0.2	
Sodium 5-nitroguaiacolate	180.1139	exempt		Dimethipin	180.406	0.5	
Sodium <i>o</i> -nitrophenolate	180.1140	exempt		Dimethoate	180.204	0.1	
Sodium <i>p</i> -nitrophenolate	180.1141	exempt		Diphenamid	180.230	0.1	N
Cotton, Hay				Diquat dibromide	180.226	0.02	
<i>Bacillus thuringiensis</i> CryIA(c) δ -endotoxin and the genetic material necessary for its production.	180.1155	exempt		Disodium methanearsonate.	180.289	0.7	
Glyphosate and its metabolites.	180.364	15.0		Disulfoton	180.183	0.75	
Urea	180.1117	exempt		Diuron	180.106	1.0	
Cotton, Seed				Endosulfan	180.182	1.0	
Abamectin	180.449	0.005	T	Endothall	180.293	0.1	
Acephate	180.108	2.0		EPTC	180.117	0.1	N
Aldicarb	180.269	0.1		Ethephon	180.300	2.0	
<i>Alternaria cassiae</i>	180.1001	exempt		Ethion	180.173	0.5	
Amitraz	180.287	1.0		Ethylene	180.1016	exempt	
Ammonium nitrate	180.1018	exempt		Etridiazole	180.370	0.2	
Aqueous extract of seaweed meal.	180.1042	exempt		Fenamiphos	180.349	0.05	
Arsenic acid	180.180	4.0	X	Fenoxaprop-ethyl	180.430	0.05	
Azinphos-methyl	180.154	0.5		Fenpropathrin	180.466	1.0	T
<i>Bacillus thuringiensis</i> CryIA(c) δ -endotoxin and the genetic material necessary for its production.	180.1155	exempt		Fenvalerate	180.379	0.2	T
<i>Beauveria bassiana</i>	180.1146	exempt		Fluazifop-butyl	180.411	0.1	
Bensulide	180.241	0.1	N	Fluchloralin	180.363	0.05	N
Bifenthrin	180.442	0.5	T	Fluometuron	180.229	0.1	N
				Fluridone	180.420	0.1	
				Fluvalinate	180.427	0.1	
				Gibberellic acid	180.1098	exempt	
				Glyphosate and its metabolites.	180.364	6.0	
				Gossypure	180.1043	exempt	
				Imazalil	180.413	0.05	
				Imidacloprid	180.472	6.0	
				Indole-3-butyric acid	180.1099	exempt	
				Iprodione	180.399	0.10	L
				Lactofen	180.432	0.05	L
				Lambda-cyhalothrin	180.438	0.05	T
				Linuron	180.184	0.25	
				Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
				Malathion	180.111	2.0	
				Mancozeb	180.176	0.5	
				Mepiquat chloride	180.384	2.0	
				Metalaxyl	180.408	0.1	
				Methamidophos	180.315	0.1	N
				Methazole	180.357	0.1	N

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Methidathion	180.298	0.2	N
Methomyl	180.253	0.1	
Methyl α -eleostearate	180.1059	exempt	N
Metolachlor	180.368	0.1	
Monocrotophos	180.296	0.1	N
Myclobutanil	180.443	0.02	
Naled	180.215	0.5	N
Nitrapyrin	180.350	1.0	
Norflurazon	180.356	0.1	N
Ocithilnone	180.366	0.01	
Oxadixyl	180.456	0.1	N
Oxamyl	180.303	0.2	
Oxydemeton-methyl	180.330	0.1	N
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.5	N
Parathion	180.121	0.75	
Pendimethalin	180.361	0.1	N
Pentachloronitrobenzene	180.291	0.1	
Permethrin	180.378	0.5	N
Phorate	180.206	0.05	
Phosmet	180.261	0.1	N
Phosphamidon	180.239	0.1	
Plant volatiles and pheromones.	180.1080	exempt	N
Polyhedral inclusion bodies of Heliothis nucleopolyhedrosis virus.	180.1063	exempt	
Profenofos	180.404	3.0	N
Prometryn	180.222	0.25	
Propachlor	180.211	0.1	N
Propargite	180.259	0.1	
Propionic acid	180.1023	exempt	N
<i>Pseudomonas fluorescens</i> (natural occurring strain).	180.1088	exempt	
Pyrithiobac sodium salt	180.487	0.02	L
Quizalofop-ethyl	180.441	0.1	
Sesame plant, ground ...	180.1087	exempt	L
Sethoxydim	180.412	5.0	
Sodium 5-nitroguaiacolate	180.1139	exempt	L
Sodium chlorate	180.1020	exempt	
Sodium o-nitrophenolate	180.1140	exempt	L
Sodium p-nitrophenolate	180.1141	exempt	
Sulprofos	180.374	5.0	L
Thidiazuron	180.403	0.4	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Thiodicarb	180.407	0.4	
Tralomehrin	180.422	0.02	T
Triadimefon	180.450	0.02	
S,S,S-Tributyl phosphoro trithioate.	180.272	4.0	N
Trichlorfon	180.198	0.1	
<i>Trichoderma viride sensu</i> Bisby.	180.1102	exempt	N
Trifluralin	180.207	0.05	
Urea	180.1117	exempt	N
Cotton, Seed (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	N
Cotton, Seed (Post-H) (residues calculated as phosphide).	180.225	0.1	
Methyl bromide	180.123	200.0	N
Piperonyl butoxide	180.127	8.0	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Pyrethrins	180.128	1.0	L
Cotton, Seed (Transgenic Varieties Only)			
Bromoxynil	180.324	0.04	L
Cotton, Seed, Hulls			
Acephate	186.100	4.0	T
Aldicarb	186.150	0.3	
Cyfluthrin	186.1250	2.0	T
Dimethipin	186.2050	0.7	
Disodium methanearsonate.	186.4050	0.9	T
Fluvalinate	186.3400	0.3	
Profenofos	186.4975	6.0	T
Sulprofos	186.3000	10.0	
Thidiazuron	186.5600	0.8	T
Thiodicarb	186.5650	0.8	
S,S,S-Tributyl phosphoro trithioate.	186.5800	6.0	T
Cotton, Seed, Meal			
Acephate	186.100	8.0	T
Clethodim	186.1075	2.0	
Dicamba	186.1800	6.0	T
Imidacloprid	186.900	8.0	
Mepiquat chloride	186.2275	3.0	L
Cotton, Seed, Oil			
Cyfluthrin	185.1250	2.0	T
Deltamethrin	185.1580	0.2	
Fenpropathrin	185.3225	3.0	T
Fluazifop-butyl	185.3250	0.2	
Sulprofos	185.3000	1.0	L
Tralomehrin	185.5450	0.20	
Cotton, Seed, Oil (Crude and Unrefined)			L
Fluvalinate	186.3400	1.0	
Cotton, Seed, Soapstock			T
Fenpropathrin	186.3225	2.0	
Fluazifop-butyl	186.3250	0.2	T
Profenofos	186.4975	15.0	
Sethoxydim	186.2800	15.0	N
Cowpeas			
Diazinon	180.153	0.1	N
Trichlorfon	180.198	0.1	
Cowpeas, Forage			N
Diazinon	180.153	0.1	
Malathion	180.111	135.0	N
Cowpeas, Hay			
Formaldehyde	180.1032	exempt	N
Malathion	180.111	135.0	
Propionic acid	180.1023	exempt	N
Cowpeas, Vines			
Trichlorfon	180.198	1.0	N
Crabapples			
Azinphos-methyl	180.154	2.0	N
Dicofol	180.163	5.0	
Folpet	180.191	25.0	N
Mancozeb	180.176	10.0	
Oxadiazon	180.346	0.05	N
Tetradifon	180.174	5.0	
Crabapples (Post-H)			N
Allethrin	180.113	4.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Phosmet	180.261	20.0	R	Clomazone	180.425	0.1	
Piperonyl butoxide	180.127	8.0		Cryolite	180.145	7.0	
Pyrethrins	180.128	1.0		Diazinon	180.153	0.75	
Cranberries				Dichlorvos	180.235	0.5	
Acephate	180.108	0.5		Dicloran	180.200	5.0	
Anilazine	180.158	10.0		Dicofol	180.163	5.0	
Azinphos-methyl	180.154	2.0		Dinocap	180.341	0.1	N
Captafol	180.267	8.0		Endosulfan	180.182	2.0	
Carbaryl	180.169	10.0		Ethephon	180.300	0.1	
Carbofuran	180.254	0.5		Ethion	180.173	0.5	
Chlorothalonil	180.275	5.0		Ethoprop	180.262	0.02	N
Chlorpropham	180.319	0.3		Ethylene	180.1016	exempt	
Chlorpyrifos	180.342	1.0	I	Fenbutatin oxide	180.362	4.0	
Cryolite	180.145	7.0		Fenvalerate	180.379	0.5	
Dalapon	180.150	5.0		Ferbam	180.114	7.0	
Diazinon	180.153	0.5		Folpet	180.191	15.0	
Dichlobenil	180.231	0.15		Gibberellic acid	180.1098	exempt	
2,4-Dichlorophenoxy acetic acid.	180.142B	0.5	N	Indole-3-butyric acid	180.1099	exempt	
Ethephon	180.300	5.0		L-(+)-Lactic acid	180.1001	exempt	
Ferbam	180.114	7.0		Lindane	180.133	3.0	
Folpet	180.191	25.0		Malathion	180.111	8.0	
Glyphosate and its metabolites.	180.364	0.2		Mancozeb	180.176	4.0	
Malathion	180.111	8.0		Maneb	180.110	4.0	
Mancozeb	180.176	7.0		Methamidophos	180.315	1.0	
Maneb	180.110	7.0		Methoxychlor	180.120	14.0	
Metalaxyl	180.408	4.0		Metiram	180.217	4.0	
Methoxychlor	180.120	14.0		Mevinphos	180.157	0.2	
N-1-Naphthylphthalamic acid.	180.297	0.1	N	Naled	180.215	0.5	
Nicotine	180.167	2.0		N-1-Naphthylphthalamic acid.	180.297	0.1	N
Norflurazon	180.356	0.1		Nicotine	180.167	2.0	
Parathion	180.121	1.0		Oxamyl	180.303	2.0	
Phosmet	180.261	10.0		Oxydemeton-methyl	180.330	1.0	
Propargite	180.259	10.0		Parathion	180.121	1.0	
Sesame plant, ground ...	180.1087	exempt		Phosphamidon	180.239	0.5	
Sethoxydim	180.412	2.0		Sesame plant, ground ...	180.1087	exempt	
Simazine	180.213	0.25		Tetradifon	180.174	1.0	
Tetrachlorvinphos	180.252	10.0		Thiophanate-methyl	180.371	1.0	
Triflorine	180.382	0.1		Trichoderma viride sensu Bisby.	180.1102	exempt	
Zineb	180.115	7.0	X	Triflorine	180.382	0.5	
Ziram	180.116	7.0		Urea	180.1117	exempt	
Crayfish				Vinclozolin	180.380	1.0	
Fluridone	180.420	0.5		Zineb	180.115	4.0	X
Cress, Upland				Ziram	180.116	7.0	
Chlorthal-dimethyl	180.185	5.0		Cucumbers (Post-H)			
Trifluralin	180.207	0.05		Methyl bromide	180.123	30.0	
Crops, Irrigated				2-Phenylphenol	180.129	10.0	
Cuprous oxide	180.1021	exempt		Cucurbits			
Polyoxyethylene	180.1078	exempt		Aluminum tris(O-ethylphosphonate).	180.415	15	
Cucumbers				Bensulide	180.241	0.1	N
Anilazine	180.158	10.0		Cyromazine	180.414	2.0	
Aqueous extract of sea-weed meal.	180.1042	exempt		Dalapon	180.150B	0.5	
Azinphos-methyl	180.154	2.0		2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Benomyl	180.294	1.0		N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Calcium cyanide	180.125	5.0		Diquat dibromide	180.226	0.02	
Captafol	180.267	2.0		Ethalfuralin	180.416	0.05	
Captan	180.103	25.0		Fluridone	180.420	0.1	
Carbaryl	180.169	10.0		Glyphosate and its metabolites.	180.364	0.5	
Carbofuran	180.254	0.4		Metalaxyl	180.408	1.0	
Chloramben	180.266	0.1		Methomyl	180.253	0.2	N
Chlorothalonil	180.275	5.0		Oxadixyl	180.456	0.1	
Chlorpyrifos	180.342	0.05		Paraquat dichloride	180.205	0.05	
Chlorthal-dimethyl	180.185	1.0					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Permethrin	180.378	3.0	N
Sethoxydim	180.412	2.0	
Triadimefon	180.410	0.3	
Trifluralin	180.207	0.05	
Cucurbits (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Cucurbits Vegetable Group			
Abamectin	180.449	0.005	L
Imidacloprid	180.472	0.2	
Sethoxydim	180.412	4.0	
Cumin (Post-H)			
Hydrocyanic acid	180.130	250.0	
Cumin, Seed (Post-H)			
Methyl bromide	180.123	100.0	
Currants			
Benomyl	180.294	7.0	X
Diuron	180.106	1.0	
Fenvalerate	180.379	3.0	
Ferbam	180.114	7.0	
Folpet	180.191	25.0	
Iprodione	180.399	15.0	
Malathion	180.111	8.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Simazine	180.213	0.25	
Zineb	180.115	7.0	
Currants (Post-H)			
Allethrin	180.113	4.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Currants, Zante, Dried			
Ethyl formate	185.2900	250.0	
Methyl formate	185.4300	250.0	
Dandelions			R
Benomyl	180.294B	10.0	
Carbaryl	180.169	12.0	
Diazinon	180.153	0.7	
Methomyl	180.253	6.0	
Dates			
Chlorpyrifos	180.342	0.5	
Ferbam	180.114	7.0	
Glyphosate and its metabolites.	180.364	0.2	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Malathion	180.111	8.0	
Oxyfluorfen	180.381	0.05	
Parathion	180.121	1.0	
Dates (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Dewberries			
Anilazine	180.158	10.0	
Benomyl	180.294	7.0	
Captan	180.103	25.0	
Carbaryl	180.169	12.0	
Cryolite	180.145	7.0	
Diazinon	180.153	0.5	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Dicofol	180.163	5.0	N
Dinocap	180.341	0.15	
Diuron	180.106	1.0	
Ferbam	180.114	7.0	
Folpet	180.191	25.0	X
Malathion	180.111	8.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Simazine	180.213	0.25	
Zineb	180.115	7.0	
Ziram	180.116	7.0	
Dewberries (Post-H)			
Allethrin	180.113	4.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Dill			R
Carbaryl	180.169	0.2	
Dill (Post-H)			R
Hydrocyanic acid	180.130	250.0	
Prometryn	180.222	0.3	
Dog Food			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	186.3700	400.0	
Eggplant			
Aqueous extract of seaweed meal.	180.1042	exempt	
Azinphos-methyl	180.154	0.3	
Benomyl	180.294	0.2	
Captan	180.103	25.0	
Carbaryl	180.169	10.0	
Chlorthal-dimethyl	180.185	1.0	
Cryolite	180.145	7.0	
Dicofol	180.163	5.0	
Endosulfan	180.182	2.0	
Ethion	180.173	1.0	
Ethylene	180.1016	exempt	
Fenamiphos	180.349	0.1	
Fenbutatin oxide	180.362	6.0	
Fenvalerate	180.379	1.0	
Ferbam	180.114	7.0	
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	60.0	
Lindane	180.133	1.0	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Malathion	180.111	8.0	
Maneb	180.110	7.0	
Methamidophos	180.315	1.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	0.25	
Naled	180.215	0.5	
Nicotine	180.167	2.0	
Oxamyl	180.303	2.0	
Oxydemeton-methyl	180.330	1.0	
Parathion	180.121	1.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Permethrin	180.378	1.0		Oxyfluorfen	180.381	0.05	
Sesame plant, ground ...	180.1087	exempt		Paraquat dichloride	180.205	0.01	N
Triforine	180.382	1.0		Permethrin	180.378	1.0	
Zineb	180.115	7.0	X	Phorate	180.206	0.05	N
Ziram	180.116	7.0		Picloram	180.292	0.05	
Eggplant (Post-H)				Piperonyl butoxide	180.127	1.0	
Methyl bromide	180.123	20.0		Pirimiphos-methyl	180.409	0.5	
Eggs				Polyoxyethylene	180.1078	exempt	
Acephate	180.108	0.1		Primisulfuron	180.452	0.1	
Alachlor	180.249	0.02		Profenofos	180.404	0.05	
Amitraz	180.287	0.01		Propachlor	180.211	0.02	N
Atrazine	180.220	0.02	N	Propargite	180.259	0.1	
Benomyl	180.294	0.1		Propham	180.319	0.05	I
Bentazon	180.355	0.05		Propiconazole	180.434	0.1	
Bifenthrin	180.442	0.05	T	Propionic acid	180.1023	exempt	
Carbaryl	180.319	0.5	I	Propyzamide	180.317	0.02	N
Carboxin	180.301	0.01		Pyrethrins	180.128	0.1	N
Chlorpropham	180.319	0.05	I	Quizalofop-ethyl	180.441	0.02	
Chlorpyrifos	180.342	0.01		Sethoxydim	180.412	2.0	
Chlorpyrifos-methyl	180.419	0.1		Simazine	180.213	0.02	N
Clethodim	180.458	0.2		Sodium acifluorfen	180.383	0.02	
Coumaphos	180.189	0.1		Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.02	L
Cuprous oxide	180.1021	exempt		Sulprofos	180.374	0.001	
Cyfluthrin	180.436	0.01	L	Tetrachlorvinphos	180.252	0.1	
Cyromazine	180.414	0.25		Thiabendazole	180.242	0.1	
Dalapon	180.150	0.3		Thidiazuron	180.403	0.1	
Dialifor	180.326	0.01	N	Thiobencarb	180.401	0.2	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.1		Thiophanate-methyl	180.371	0.1	N
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05		Triadimefon	180.410	0.04	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.05		Triadimenol	180.450	0.01	
3',4'-Dichloropropion anilide.	180.274	0.05	N	Triclopyr	180.417	0.05	
Dichlorvos	180.235	0.05	N	Triflumazole	180.476	0.05	
Difenoconazole	180.1129	0.05	T	Eggs, Dried			
Disulfobenzuron	180.377	0.05		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	400.0	
Dimethoate	180.204	0.02	N	Elderberries			
Diquat dibromide	180.226	0.02		Fenvalerate	180.379	3.0	
Ethalfuralin	180.416	0.05		Endive			
Ethion	180.173	0.2		Fluazifop-butyl	180.411	6.0	R
Etridiazole	180.370	0.05		Sethoxydim	180.412	2.0	L
Fenarimol	180.421	0.01		Endive (Escarole)			
Fenbutatin oxide	180.362	0.1		Allethrin	180.1002	exempt	
Fenpropathrin	180.466	0.02	T	Carbaryl	180.169	10.0	
Fenridazone-potassium	180.423	0.05		Diazinon	180.153	0.7	
Fluazifop-butyl	180.411	0.05		Dicloran	180.200	10.0	
Fluridone	180.420	0.05		Dimethoate	180.204	2.0	
Flutolanil	180.484	0.05		Imazethapyr, ammonium salt.	180.447	0.1	R
Fluvalinate	180.427	0.01		Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Imidacloprid	180.472	0.02		Maneb	180.110	10.0	
Iprodione	180.399	1.5		Methomyl	180.253	5.0	
Isofenphos	180.387	0.02		Parathion	180.121	1.0	
Lambda-cyhalothrin	180.438	0.01	L	Propyzamide	180.317	1.0	
Malathion	180.111	0.1		Thiobencarb	180.401	0.2	R
Mepiquat chloride	180.384	0.05		Zineb	180.115	10.0	X
Metalaxyl	180.408	0.05					
Methidathion	180.298	0.05					
Methoprene	180.359	0.1					
Metolachlor	180.368	0.02					
Metribuzin	180.332	0.01					
Myclobutanil	180.443	0.02					
Naled	180.215	0.05					
Nicotine	180.167	1.0					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Feijoa (Pineapple Guava)			
Chlorpyrifos	180.342	0.05	R
Oxyfluorfen	180.381	0.05	
Fennel			
Mancozeb	180.176	10.0	
Fescue			
Formaldehyde	180.1032	exempt	
Glyphosate and its metabolites.	180.364	200.0	
Isobutyric acid	180.1030	exempt	
Propionic acid	180.1023	exempt	
Figs			
Chlorpyrifos	180.342	0.01	
Diazinon	180.153	0.5	
Dichlobenil	180.231	0.15	N
Dicofol	180.163	5.0	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy)propionamide.	180.328	0.1	N
Ethephon	180.300	5.0	
Glyphosate and its metabolites.	180.364	0.2	
Malathion	180.111	8.0	
Maneb	180.110	7.0	
Oryzalin	180.304	0.05	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	N
Parathion	180.121	1.0	
Propargite	180.259	3.0	
Tetradifon	180.174	6.0	
Urea	180.1117	exempt	
Figs (Post-H)			
Allethrin	180.113	4.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Figs, Dried			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	250.0	
Tetradifon	185.5475	10.0	
Filberts			
Azinphos-methyl	180.154	0.3	
Chlorothalonil	180.275	0.1	R
Diazinon	180.153	0.5	
Endosulfan	180.182	0.2	
Ethephon	180.300	0.5	
Ethion	180.173	0.1	
Fenvalerate	180.379	0.2	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Malathion	180.111	1.0	
Norflurazon	180.356	0.1	
Oxydemeton-methyl	180.330	0.05	
Parathion	180.121	0.1	N
Permethrin	180.378	0.05	
Propylene oxide	180.491	150	L
Simazine	180.213	0.25	
Filberts (Hazelnuts)			
Carbaryl	180.169	1.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Dicofol	180.163	5.0	
Oxadiazon	180.346	0.05	N
Phosalone	180.263	0.05	N
Filberts (Hazelnuts) (Post-H)			
Methyl bromide	180.123	200.0	
Filberts (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Fish			
Cuprous oxide	180.1021	exempt	
2,4-Dichlorophenoxy acetic acid.	180.142I	1.0	
Diquat dibromide	180.226	0.1	
Fluridone	180.420	0.5	
Glyphosate and its metabolites.	180.364	0.25	
Polyoxyethylene	180.1078	exempt	
Simazine	180.213A	12.0	
Fish (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Flax, Seed			
Barban	180.268	0.1	L
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	5.0	
Dalapon	180.150B	2.0	
Dalapon	180.150	75.0	
Di-allate	180.277	0.05	X
Diclofop-methyl	180.385	0.1	
EPTC	180.117	0.1	N
Malathion	180.111	0.1	
MCPA	180.339	0.1	N
Picloram	180.292	0.5	
Propachlor	180.211	3.0	
Propham	180.319	0.1	I
Sethoxydim	180.412	5.0	
Sodium chlorate	180.1020	exempt	
Trichlorfon	180.198	0.1	N
Trifluralin	180.207	0.05	
Flax, Seed (Post-H)			
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Flax, Seed, Meal			
Sethoxydim	186.2800	7.0	
Flax, Straw			
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	100.0	
Malathion	180.111	1.0	
MCPA	180.339	2.0	
Picloram	180.292	0.5	
Propachlor	180.211	10.0	
Sethoxydim	180.412	2.0	
Sodium chlorate	180.1020	exempt	
Trichlorfon	180.198	1.0	
Trifluralin	180.207	0.05	
Flours, Cereal			
Hydrocyanic acid	185.3600	125.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Flours, Cereal and Related Prods.				Fruits, Small and Berries (180.142(f))			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0		2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Forage, Pasture				Fruits, Stone			
<i>Bacillus popilliae</i> and <i>B. lentimorbus</i> .	180.1076	exempt		Dalapon	180.150B	0.2	
<i>Beauveria bassiana</i>	180.1146	exempt		Dichlobenil	180.231	0.15	N
Forage, Rangeland				2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
<i>Bacillus popilliae</i> and <i>B. lentimorbus</i> .	180.1076	exempt		2,4-Dichlorophenoxy acetic acid.	180.142B	0.2	
<i>Beauveria bassiana</i>	180.1146	exempt		<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N
Fruits				Dioxathion	180.171	0.1	N
Ethylene	180.1016	exempt		Diquat dibromide	180.226	0.02	
Fruits, Passion				Fenvalerate	180.379	10.0	
Chlorothalonil	180.275	3.0		Fluazifop-butyl	180.411	0.05	
Glyphosate and its metabolites.	180.364	0.2		Fluridone	180.420	0.1	
Malathion	180.111	8.0		Gibberellic acid	180.224	0.15	N
Paraquat dichloride	180.205	0.2		Glyphosate and its metabolites.	180.364	0.2	
Fruits, Pome				Metalaxyl	180.408	1.0	
Carbaryl	180.169	10.0		Methidathion	180.298	0.05	
Dalapon	180.150B	0.2		Metolachlor	180.368	0.1	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N	Oryzalin	180.304	0.05	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N	Oxadiazon	180.346	0.05	N
Diquat dibromide	180.226	0.02		Oxyfluorfen	180.381	0.05	
Fluridone	180.420	0.1		Propyzamide	180.317	0.1	
Fosetyl-Al	180.415	10		Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.05	
Glyphosate and its metabolites.	180.364	0.2		Trifluralin	180.207	0.05	N
Imidacloprid	180.472	0.6		Vinclozolin	180.380	25.0	
Methidathion	180.298	0.05		Fruits, Stone (180.142(f))			
Oryzalin	180.304	0.05		2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Oxyfluorfen	180.381	0.05		Fruits, Stone (Exc. Cherries)			
Sethoxydim	180.412	0.2		Myclobutanil	180.443	2.0	
Streptomycin	180.245	0.25		Garlic			
Fruits, Pome (180.142(f))				Allethrin	180.1002	exempt	
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0		Anilazine	180.158	1.0	
Fruits, Small and Berries				Benomyl	180.294	0.2	
Dalapon	180.150B	0.2		Bromoxynil	180.324	0.1	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N	Bromoxynil	180.324C	0.1	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N	Captan	180.103	25.0	
Diquat dibromide	180.226	0.02		Chlorpropham	180.319	0.1	I
EPTC	180.117	0.1	N	Chlorthal-dimethyl	180.185	1.0	
Fluridone	180.420	0.1		Dicloran	180.200	5.0	
Glyphosate and its metabolites.	180.364	0.2		Fenamiphos	180.349	0.5	
Oryzalin	180.304	0.05		Folpet	180.191	15.0	
Paraquat dichloride	180.205	0.05	N	Iprodione	180.399	0.1	
				Lambda-cyhalothrin	180.438	0.02	
				Malathion	180.111	8.0	
				Parathion	180.121	1.0	
				Pendimethalin	180.361	0.1	R
				Pentachloronitrobenzene	180.319	0.1	I
				Permethrin	180.378	0.1	
				Sulfuric acid	180.1019	exempt	
				Garlic (Post-H)			
				Methyl bromide	180.123	50.0	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Genip			
Glyphosate and its metabolites.	180.364	0.2	
Ginger (Post-H)			
Hydrocyanic acid	180.130	250.0	
Ginger, Roots			
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	100.0	R
Methyl bromide	180.123	100.0	R
Ginger, Roots (Post-H)			
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	100.0	R
Methyl bromide	180.123	100.0	
Ginseng			
Diazinon	180.153	0.75	
Fosetyl-Al	180.415	0.1	
Iprodione	180.399	2.0	
Metalaxyl	180.408	3.0	
Ginseng, Dried			
Iprodione	185.3750	4.0	
Goats, Fat			
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.01	
Amitraz	180.287	0.0	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154	0.1	
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	1.0	T
Bromoxynil	180.324C	0.1	
Bromoxynil	180.324	0.1	
Carbaryl	180.169	0.1	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	I
Chlorpyrifos	180.342	0.2	
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Clofentezine	180.446	0.05	
Cloprop	180.325	0.05	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	1.00	L
Cyhexatin	180.144	0.2	
Cypermethrin	180.418	0.05	T
Dialfor	180.326	0.15	N
Dicamba	180.227	0.2	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
3',4'-Dichloropropion anilide.	180.274	0.1	N
Dichlorvos	180.235	0.02	N
Difenoconazole	180.475	0.05	T
Difenzoquat	180.369	0.05	
Diflubenzuron	180.377	0.05	
Dimethipin	180.406	0.02	
Dimethoate	180.204	0.02	N
Diphenamid	180.230	0.05	N
Dipropyl isocinchomeronate.	180.143	0.1	N
Diquat dibromide	180.226	0.02	
Diuron	180.106	1.0	
Endosulfan	180.182	0.2	
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Ethion	180.173	0.2	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.1	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	
Flutolanil	180.484	0.10	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.05	L
Hexazinone	180.396	0.1	
Imazalil	180.413	0.1	
Imidacloprid	180.472	0.3	
Iprodione	180.399	0.5	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	3.0	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Metalaxyl	180.408	0.4	
Methidathion	180.298	0.05	
Methoprene	180.359	1.0	
Metolachlor	180.368	0.02	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Myclobutanil	180.443	0.05	
Naled	180.215	0.05	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
N-Octyl bicycloheptene dicarboximide.	180.367	0.3	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Permethrin	180.378	3.0	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Picloram	180.292	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Propham	180.319	0.05	I	Goats, Liver			
Propiconazole	180.434	0.1		Carbaryl	180.169	1.0	
Propyzamide	180.317	0.02	N	Clofentazine	180.446	0.4	
Prosulfuron	180.481	0.05	L	Cyhexatin	180.144	0.5	
Pyrethrins	180.128	0.1	N	Dicamba	180.227	1.5	
Quizalofop-ethyl	180.441	0.05		Fenarimol	180.421	0.1	
Sethoxydim	180.412	0.2		Fenridazone-potassium	180.423	1.0	
Simazine	180.213	0.02	N	Fentin hydroxide	180.236	0.05	N
Sulfonium, trimethyl-, salt with <i>N</i> -phos- phonomethylglycine (1:1).	180.489	0.10	L	Fluridone	180.420	0.1	
Sulprofos	180.374	0.1		Flutolanil	180.484	2.00	
Tebuthiuron	180.390	2.0		Glyphosate and its metabolites.	180.364	0.5	
Terbacil	180.209	0.1		Imazail	180.413	0.5	
Tetrachlorvinphos	180.252	0.5		Iprodione	180.399	3.0	
Thiabendazole	180.242	0.1		Metolachlor	180.408	0.4	
Thidiazuron	180.403	0.2		Metolachlor	180.368	0.05	
Thiobencarb	180.401	0.2		Myclobutanil	180.443	1.0	
Thiophanate-methyl	180.371	0.1	N	Picloram	180.292	0.5	
Triadimefon	180.410	1.0		Pirimiphos-methyl	180.409	2.0	
Triadimenol	180.450	0.1		Propiconazole	180.434	2.0	
Triasulfuron	180.459	0.1		Propyzamide	180.317	0.4	
S,S,S-Tributyl phospho- trithioate.	180.272	0.02	N	Prosulfuron	180.481	0.05	L
Trichlorfon	180.198	0.1	N	Sodium acifluorfen	180.383	0.02	
Triclopyr	180.417	0.05		Thiophanate-methyl	180.371	2.5	
Triflumazole	180.476	0.5		Triclopyr	180.417	0.5	
Goats, Fat (Pre-S)				Goats, MBYP			
Malathion	180.111	4.0		Acephate	180.108	0.1	
Goats, Fat of Meat				Alachlor	180.249	0.02	
Dioxathion	180.171	1.0		Aldicarb	180.269	0.01	
Lindane	180.133	7.0		Amitraz	180.287	0.0	
Methoxychlor	180.120	3.0		Atrazine	180.220	0.02	N
Goats, Kidney				Azinphos-methyl	180.154	0.1	
Carbaryl	180.169	1.0		Benomyl	180.294	0.1	
Cloprop	180.325	0.5		Bentazon	180.355	0.05	
Cyhexatin	180.144	0.5		Bifenthrin	180.442	0.1	T
Dicamba	180.227	1.5		Bromoxynil	180.324	0.1	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	12.0		Bromoxynil	180.324C	0.1	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	2.0		Carbofuran	180.254	0.05	
Fenarimol	180.421	0.1		Carboxin	180.301	0.1	
Fenridazone-potassium	180.423	1.0		Chinomethionat	180.338	0.05	N
Fentin hydroxide	180.236	0.05	N	Chloroneb	180.257	0.2	
Fluridone	180.420	0.1		Chlorpropham	180.319	0.05	I
Flutolanil	180.484	1.00		Chlorpyrifos	180.342	0.05	
Glyphosate and its metabolites.	180.364	4.0		Chlorpyrifos-methyl	180.419	0.5	
Iprodione	180.399	3.0		Chlorsulfuron	180.405	0.3	
Metolachlor	180.408	0.4		Clethodim	180.458	0.2	
Metolachlor	180.368	0.2		Cloprop	180.325	0.05	
Metolachlor-methyl	180.428	0.5		Coumaphos	180.189	1.0	
Paraquat dichloride	180.205	0.3		Cyfluthrin	180.436	0.4	L
Picloram	180.292	5.0		Cypermethrin	180.418	0.05	T
Pirimiphos-methyl	180.409	2.0		Dalapon	180.150	0.2	
Propiconazole	180.434	2.0		Dialifor	180.326	0.15	N
Propyzamide	180.317	0.4		Dicamba	180.227	0.2	
Prosulfuron	180.481	0.05	L	3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
Sodium acifluorfen	180.383	0.02		3',4'-Dichloropropion anilide.	180.274	0.1	N
Thiophanate-methyl	180.371	0.2		Dichlorvos	180.235	0.02	N
Triasulfuron	180.459	0.5		Difenoconazole	180.475	0.05	T
Triclopyr	180.417	0.5		Difenoconazole	180.369	0.05	
				Diflubenazuron	180.377	0.05	
				Dimethipin	180.406	0.02	
				Dimethoate	180.204	0.02	N
				Diphenamid	180.230	0.05	N
				Dipropyl isocinchomeronate.	180.143	0.1	N
				Diquat dibromide	180.226	0.02	
				Diuron	180.106	1.0	
				Endosulfan	180.182	0.2	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Ethion	180.173	0.2	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.01	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Flutolanil	180.484	0.05	
Fluvalinate	180.427	0.01	
Glufozinat-ammonium	180.473	0.10	L
Halosulfuron	180.479A	0.1	
Hexazinone	180.396	0.1	
Imazalil	180.413	0.01	
Imidacloprid	180.472	0.3	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	0.2	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Methidathion	180.298	0.05	
Methoprene	180.359	0.1	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Naled	180.215	0.05	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Permethrin	180.378	2.0	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propionic acid	180.1023	exempt	
Prosulfuron	180.481	0.05	L
Pyrethrins	180.128	0.1	N
Quizalofop-ethyl	180.441	0.05	
Sethoxydim	180.412	0.2	
Simazine	180.213	0.02	N
Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1)	180.489	1.00	L
Sulprofos	180.374	0.1	
Tebuthiuron	180.390	2.0	
Terbacil	180.209	0.1	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	
Thiobencarb	180.401	0.2	
Triadimefon	180.410	1.0	
Triadimenol	180.450	0.1	
S,S,S-Tributyl phosphoro trithioate	180.272	0.02	N
Trichlorfon	180.198	0.1	N
Triflumazole	180.476	0.5	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Goats, MBYP (Exc. Kidney and Liver)			
Carbaryl	180.169	0.1	
Cyhexatin	180.144	0.2	
Fluridone	180.420	0.05	
Iprodione	180.399	0.5	
Metalaxyl	180.408	0.05	
Metolachlor	180.368	0.02	
Picloram	180.292	0.2	
Propiconazole	180.434	0.1	
Propyzamide	180.317	0.02	N
Thiophanate-methyl	180.371	0.1	N
Triclopyr	180.417	0.05	
Goats, MBYP (Exc. Kidney)			
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	1.0	
2,4-Dichlorophenoxy acetic acid	180.142(h)	0.2	
Paraquat dichloride	180.205	0.05	
Triasulfuron	180.459	0.1	
Goats, MBYP (Exc. Liver)			
Clofentezine	180.446	0.05	
Myclobutanil	180.443	0.2	
Goats, MBYP (Pre-S)			
Malathion	180.111	4.0	
Goats, Meat			
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.01	
Amitraz	180.287	0.0	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154	0.1	
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	0.5	T
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	0.1	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	I
Chlorpyrifos	180.342	0.05	
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Clofentezine	180.446	0.05	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	0.4	L
Cyhexatin	180.144	0.2	
Cypermethrin	180.418	0.05	T
Dalapon	180.150	0.2	
Dialfor	180.326	0.15	N
Dicamba	180.227	0.2	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	1.0	
3,7-Dichloro-8-quinoline carboxylic acid	180.463	0.05	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2		Propiconazole	180.434	0.1	
3',4'-Dichloropropion anilide.	180.274	0.1	N	Propionic acid	180.1023	exempt	
Dichlorvos	180.235	0.02	N	Propyzamide	180.317	0.02	N
Difenoconazole	180.475	0.05	T	Prosulfuron	180.481	0.05	L
Difenzoquat	180.369	0.05		Pyrethrins	180.128	0.1	N
Diflufenzuron	180.377	0.05		Quizalofop-ethyl	180.441	0.02	
Dimethipin	180.406	0.02		Sethoxydim	180.412	0.2	
Dimethoate	180.204	0.02	N	Simazine	180.213	0.02	N
Diphenamid	180.230	0.05	N	Sulfonium, trimethyl-, salt with <i>N</i> -phos	180.489	0.20	L
Dipropyl isocinchomeronate.	180.143	0.1	N	phonomethylglycine (1:1).			
Diquat dibromide	180.226	0.02		Sulprofos	180.374	0.1	
Diuron	180.106	1.0		Tebuthiuron	180.390	2.0	
Endosulfan	180.182	0.2		Terbacil	180.209	0.1	
Ethalfuralin	180.416	0.05		Thiabendazole	180.242	0.1	
Ethephon	180.300	0.1		Thidiazuron	180.403	0.2	
Ethion	180.173	0.2		Thiobencarb	180.401	0.2	
Ethofumesate	180.345	0.05		Thiophanate-methyl	180.371	0.1	N
Etridiazole	180.370	0.1		Triadimefon	180.410	1.0	
Fenamiphos	180.349	0.05		Triadimenol	180.450	0.1	
Fenarimol	180.421	0.01		Triasulfuron	180.459	0.1	
Fenbutatin oxide	180.362	0.5		<i>S,S,S</i> -Tributyl phospho	180.272	0.02	N
Fenoxaprop-ethyl	180.430	0.05	L	trithioate.			
Fenpropathrin	180.466	0.02	T	Trichlorfon	180.198	0.1	N
Fenridazone-potassium	180.423	0.05		Triclopyr	180.417	0.05	
Fenvalerate	180.379	1.5		Triflumazole	180.476	0.05	
Fluazifop-butyl	180.411	0.05		Goats, Meat (Exc. Kidneys)			
Fluridone	180.420	0.05		Cloprop	180.325	0.05	
Flutolanil	180.484	0.05		Goats, Meat (Pre-S)			
Fluvalinate	180.427	0.01		Malathion	180.111	4.0	
Glufosinate-ammonium	180.473	0.05	L	Gooseberries			
Halosulfuron	180.479A	0.1		Azinphos-methyl	180.154	5.0	
Hexazinone	180.396	0.1		Dinocap	180.341	0.15	N
Imazail	180.413	0.01		Diuron	180.106	1.0	
Imidacloprid	180.472	0.3		Fenvalerate	180.379	3.0	
Iprodione	180.399	0.5		Ferbam	180.114	7.0	
Isofenphos	180.387	0.1		Folpet	180.191	25.0	
Lambda-cyhalothrin	180.438	0.2	L	Malathion	180.111	8.0	
Linuron	180.184	1.0		Methoxychlor	180.120	14.0	
MCPA	180.339	0.1	N	Nicotine	180.167	2.0	
Mepiquat chloride	180.384	0.1		Parathion	180.121	1.0	
Metalaxyl	180.408	0.05		Zineb	180.115	7.0	X
Methidathion	180.298	0.05		Ziram	180.116	7.0	
Methoprene	180.359	0.1		Gooseberries (Post-H)			
Metolachlor	180.368	0.02		Allethrin	180.113	4.0	
Metribuzin	180.332	0.7		Piperonyl butoxide	180.127	8.0	
Metsulfuron-methyl	180.428	0.1		Pyrethrins	180.128	1.0	
Myclobutanil	180.443	0.1		Grain, Crops			
Naled	180.215	0.05	N	<i>Beauveria bassiana</i>	180.1146	exempt	
Nitrapyrin	180.350	0.05	N	2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Norflurazon	180.356	0.1		Diquat dibromide	180.226	0.02	
Oxadiazon	180.346	0.01	N	EPTC	180.117	0.1	N
Oxydemeton-methyl	180.330	0.01		Fluridone	180.420	0.1	
Oxyfluorfen	180.381	0.05		Glyphosate and its metabolites.	180.364	0.1	N
Paraquat dichloride	180.205	0.05		Metalaxyl	180.408	0.1	
Permethrin	180.378	0.25		Grain, Crops (180.142(f))			
Phorate	180.206	0.05	N	2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Phosalone	180.263	0.25		Grain, Crops (Exc. Fresh Corn/Rice Grain)			
Phosmet	180.261	0.2		Trifluralin	180.207	0.05	
Picloram	180.292	0.2					
Piperonyl butoxide	180.127	0.1	N				
Pirimiphos-methyl	180.409	0.2					
Primisulfuron	180.452	0.1					
Profenofos	180.404	0.05					
Propachlor	180.211	0.02	N				
Propargite	180.259	0.1					
Propham	180.319	0.05	I				

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Grain, Crops (Exc. Wheat)			
Dalapon	180.150B	0.5	N
Glyphosate and its metabolites.	180.364	0.1	
Oxadixyl	180.456	0.1	
Grains, Cereal (Exc. Rice and Wild Rice), Grain			
Prosulfuron	180.481	0.01	L
Grains, Cereal (Exc. Rice and Wild Rice), Forage			
Prosulfuron	180.481	0.10	L
Grains, Cereal (Exc. Rice and Wild Rice), Fodder			
Prosulfuron	180.481	0.01	L
Grains, Cereal (Exc. Rice and Wild Rice), Straw			
Prosulfuron	180.481	0.02	L
Grains, Cereal (Exc. Rice and Wild Rice), Hay			
Prosulfuron	180.481	0.20	L
Grains, Cereal (Exc. Wheat, Barley and Oats)			
Metalaxyl	180.408	0.1	L
Grains, Cereal (Exc. Wheat, Barley and Oats) Forage/Fodder			
Metalaxyl	180.408	1	
Grains, Cereal (Exc. Wheat, Barley and Oats) Straw			
Metalaxyl	180.408	1	
Grains, Cereal, Milled Fractions (Exc. Flour)			
Methoprene	186.4150	10	
Methoprene	185.4150	10	
Grains, Cereal, Milled Fractions			
Methyl bromide	185.3475	125.0	
Grains, Cereal, Milled Fractions (Exc. Flour)			
Piperonyl butoxide	185.4900	10.0	
Grains, Cereal, Milled Fractions			
Pyrethrins	185.5200	1.0	
Grape Juice			
Fenarimol	185.3200	0.6	N
Imidacloprid	185.900	1.5	
Grapefruit			
Aldicarb	180.269	0.3	N
Ametryn	180.258	0.1	
Carbon disulfide	180.467	0.1	
Dalapon	180.150	5.0	
Dicofol	180.163	10.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Diflubenzuron	180.377	0.5	exempt
Dimethoate	180.204	2.0	
Dioxathion	180.171	3.0	
Fenamiphos	180.349	0.6	
Formetanate hydrochloride.	180.276	4.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Malathion	180.111	8.0	
Methomyl	180.253	2.0	
Naled	180.215	3.0	exempt
Oxydemeton-methyl	180.330	1.0	
Phosphamidon	180.239	0.75	
Propargite	180.259	5.0	
Sesame plant, ground ...	180.1087	exempt	
Simazine	180.213	0.25	
Tetradifon	180.174	2.0	
Urea	180.1117	exempt	
Grapefruit (Post-H)			
Ammonia	180.1003	exempt	exempt
Methyl bromide	180.123	30.0	
2-Phenylphenol	180.129	10.0	
Grapes			
Aqueous extract of seaweed meal.	180.1042	exempt	exempt
Azinphos-methyl	180.154	5.0	
Benomyl	180.294	10.0	
Calcium hypochlorite	180.1054	exempt	
Captan	180.103	50.0	
Carbaryl	180.169	10.0	
Carbofuran	180.254	0.4	
Carbon disulfide	180.467	0.1	
Chlorpyrifos	180.342	0.5	
Cryolite	180.145	7.0	
Dalapon	180.150	3.0	N
Dialifor	180.326	1.0	
Diazinon	180.153	0.75	
Dichlobenil	180.231	0.15	
2,4-Dichlorophenoxy acetic acid.	180.142B	0.5	
Dicloran	180.200	10.0	
Dicofol	180.163	5.0	
Dimethoate	180.204	1.0	
Dinocap	180.341	0.1	
Dioxathion	180.171	2.0	
Diuron	180.106	1.0	exempt
9-Dodecenyl acetate	180.1097	exempt	
Endosulfan	180.182	2.0	
Ethephon	180.300	2.0	
Ethion	180.173	2.0	
Fenamiphos	180.349	0.1	
Fenarimol	180.421	0.2	
Fenbutatin oxide	180.362	5.0	
Ferbam	180.114	7.0	
Folpet	180.191	25.0	
Gibberellic acid	180.224	0.15	N
Glufosinate-ammonium	180.473	0.05	T
Glyphosate and its metabolites.	180.364	0.2	exempt
Imidacloprid	180.472	1.0	
Iprodione	180.399	60.0	
Isobutyric acid	180.1030	exempt	
L(+)-Lactic acid	180.1001	exempt	
Lindane	180.133	1.0	
Malathion	180.111	8.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Mancozeb	180.176	7.0		Grass, Canary, Annual, Seed			
Maneb	180.110	7.0		Bromoxynil	180.324	0.1	
Metalaxyl	180.408	2.0		Bromoxynil	180.324C	0.1	
Methomyl	180.253	5.0		MCPA	180.339	0.1	
Methoxychlor	180.120	14.0		Tri-allate	180.314	0.05	
Methyl anthranilate	180.1143	exempt		Grass, Canary, Annual, Straw			
Mevinphos	180.157	0.5		Bromoxynil	180.324	0.1	
Myclobutanil	180.443	1.0		Bromoxynil	180.324C	0.1	
Naled	180.215	0.5		MCPA	180.339	0.1	
Nicotine	180.167	2.0		Tri-allate	180.314	0.05	
Norflurazon	180.356	0.1		Grass, Forage			
Oxydemeton-methyl	180.330	0.1		Metsulfuron-methyl	180.428	15.0	
Oxyfluorfen	180.381	0.05		Propiconazole	180.434	0.5	
Parathion	180.121	1.0		Triadimefon	180.410	0.2	
Phosalone	180.263	10.0		Triasulfuron	180.459	7.0	L
Phosmet	180.261	10.0		Grass, Pasture, Hay			
Propargite	180.259	10.0		Azinphos-methyl	180.154	5.0	
Propyzamide	180.317	0.1		Grass, Seed, Cleanings (Inc. Hulls)			
Sesame plant, ground ...	180.1087	exempt		Propiconazole	180.434	60	
Sethoxydim	180.412	0.2		Triadimefon	180.410	145.0	
Simazine	180.213	0.25		Grass, Seed, Straw (Inc. Chaf)			
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonemethylglycine (1:1).	180.489	0.10		Triadimefon	180.410	105.0	
Sulfur dioxide	180.444	10.0		Grass, Straw			
Tartar emetic	180.179	3.5		Ethofumesate	180.345	1.0	
Tetradifon	180.174	5.0		Propiconazole	180.434	40	
Thiabendazole	180.242	10.0		Grasses			
Triadimefon	180.410	1.0		Carbaryl	180.169	100.0	
Triflumazole	180.476	2.5		Chlorpropham	180.319	20.0	I
Trifluralin	180.207	0.05	N	Diazinon	180.153	60.0	
Urea	180.1117	exempt		Fenthion	180.214	5.0	
Vinclozolin	180.380	6.0		Malathion	180.111	135.0	
Zinc phosphide	180.284	0.01		Methidathion	180.298	12.0	
Zineb	180.115	7.0	X	Metribuzin	180.332	2.0	
Ziram	180.116	7.0		Propham	180.319	2.0	I
Grapes (Post-H)				Simazine	180.213	15.0	
Allethrin	180.113	4.0		Grasses, Bahia			
Methyl bromide	180.123	20.0		Glyphosate and its metabolites.	180.364	200.0	
Piperonyl butoxide	180.127	8.0		Grasses, Bermuda			
Pyrethrins	180.128	1.0		Diuron	180.106	7.0	
Grapes, Pomace, Dried				Formaldehyde	180.1032	exempt	
Benomyl	186.350	125.0		Glyphosate and its metabolites.	180.364	200.0	
Carbofuran	186.600	2.0		Isobutyric acid	180.1030	exempt	
Chlorpyrifos	186.1000	2.0		Methomyl	180.253	10.0	
Dialifor	186.1650	20.0		Propionic acid	180.1023	exempt	
Fenbutatin oxide	186.3550	100.0		Simazine	180.213	15.0	
Iprodione	186.3750	225.0		Grasses, Bermuda, Forage			
Phosalone	186.4800	45.0		Simazine	180.213	15.0	
Propargite	186.5000	40.0		Grasses, Bermuda, Hay			
Vinclozolin	186.1850	42.0		Diuron	180.106	7.0	
Grapes, Pomace, Wet and Dry				Simazine	180.213	15.0	
Fenamiphos	186.2950	1.0		Sodium diacetate	180.1058	exempt	
Fenarimol	186.3200	2.0		Grasses, Bermuda, Hay (Dry, Dehydrated)			
Imidacloprid	186.900	5.0		Methomyl	180.253	40.0	
Metalaxyl	186.4000	10.0					
Myclobutanil	186.4350	10.0					
Sethoxydim	186.2800	6.0					
Thiabendazole	186.5550	150.0					
Triadimefon	186.800	3.0					
Triflumazole	186.5850	15					
Grapes, Wine							
Procymidone	180.455	5.0					
Zineb	180.115	7	X				

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Grasses, Bermuda, Straw			
Phorate	180.206	0.5	
Grasses, Blue			
Formaldehyde	180.1032	exempt	
Glyphosate and its metabolites.	180.364	200.0	
Propionic acid	180.1023	exempt	
Grasses, Blue, Hay			
Sodium diacetate	180.1058	exempt	
Grasses, Brome			
Formaldehyde	180.1032	exempt	
Glyphosate and its metabolites.	180.364	200.0	
Isobutyric acid	180.1030	exempt	
Propionic acid	180.1023	exempt	
Sodium diacetate	180.1058	exempt	
Grasses, Crops (Exc. Bermuda Grass)			
Diuron	180.106	2.0	
Grasses, Crops (Exc. Bermuda Grass); Forage			
Tribenuron-methyl	180.451	0.10	R
Grasses, Crops (Exc. Bermuda Grass); Hay			
Tribenuron-methyl	180.451	0.10	R
Grasses, Fodder			
Metsulfuron-methyl	180.428	15.0	
Oxadixyl	180.456	0.1	
Grasses, Forage			
Dalapon	180.150B	2.0	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Diquat dibromide	180.226	0.1	
EPTC	180.117	0.1	N
Fluridone	180.420	0.15	
Glyphosate and its metabolites.	180.364	0.2	
<i>Lagenidium giganteum</i> mycelium.	180.1113	0	
Metalaxyl	180.408	10.0	
Methoxychlor	180.120	100.0	
Naled	180.215	10.0	
Oxadixyl	180.456	0.1	
Parathion	180.121	1.0	
Picloram	180.292	80.0	
Simazine	180.213	15.0	
Tebuthiuron	180.390	10.0	
Triclopyr	180.417	500.0	
Grasses, Forage (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Grasses, Forage, Hay			
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	500.0	
Triclopyr	180.417	500.0	
Grasses, Hay			
Acephate	180.108	15.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Carbaryl	180.169	100.0	
Chlorpropham	180.319	50.0	I
Diazinon	180.153	10.0	
Dicamba	180.227	40.0	
2,4-Dichlorophenoxy acetic acid.	180.142B	300.0	
Fenthion	180.214	18.0	
<i>Lagenidium giganteum</i> mycelium.	180.1113	0	
Malathion	180.111	135.0	
MCPA	180.339	20.0	
Metalaxyl	180.408	25.0	
Methidathion	180.298	12.0	
Metribuzin	180.332	7.0	
Metsulfuron-methyl	180.428	15.0	
Oxadixyl	180.456	0.1	
Propham	180.319	5.0	I
Simazine	180.213	15.0	
Tebuthiuron	180.390	10.0	
Triasulfuron	180.459	2.0	L
Grasses, Hay (Exc. Bermuda Grass)			
Diuron	180.106	2.0	
Grasses, Orchardgrass			
Atrazine	180.220	15.0	
Formaldehyde	180.1032	exempt	
Glyphosate and its metabolites.	180.364	200.0	
Isobutyric acid	180.1030	exempt	
Propionic acid	180.1023	exempt	
Grasses, Orchardgrass, Hay			
Atrazine	180.220	15.0	
Sodium diacetate	180.1058	exempt	
Grasses, Pasture			
Dalapon	180.150	10.0	
Dicamba	180.227	40.0	
2,4-Dichlorophenoxy acetic acid.	180.142B	1000.0	
Diffubenzuron	180.377	1.0	R
Ethylene	180.1016	exempt	
Hexazinone	180.396	10.0	
Hydramethylnon	180.395	0.05	
MCPA	180.339	300.0	
1-(8-Methoxy-4,8-dimethylnonyl)-4-(1-methyl ethyl)benzene.	180.1079	exempt	
Paraquat dichloride	180.205	5.0	
Trichlorfon	180.198	60.0	
Grasses, Pasture and Range			
Acephate	180.108	15.0	
Grasses, Pasture (Green)			
Azinphos-methyl	180.154	2.0	
Grasses, Pasture, Hay			
Hydramethylnon	180.395	0.05	
Trichlorfon	180.198	90.0	
Grasses, Range			
Atrazine	180.220	4.0	
Dalapon	180.150	10.0	
Diffubenzuron	180.377	3.0	R
Hexazinone	180.396	10.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
1-(8-Methoxy-4,8-dimethylnonyl)-4-(1-methylethyl)benzene.	180.1079	exempt		Hickory Nuts (Post-H)			
Paraquat dichloride	180.205	5.0		Methyl bromide	180.123	200.0	
Permethrin	180.378	15.0		Hogs (All or Unspecified)			
Trichlorfon	180.198	240.0		Tetrachlorvinphos	186.950	FEAR	
Grasses, Range, Hay				Hogs, Fat			
Hydramethylnon	180.395	0.05		Acephate	180.108	0.1	
Trichlorfon	180.198	240.0		Alachlor	180.249	0.02	
Grasses, Rangeland				Aldicarb	180.269	0.01	
Dicamba	180.227	40.0		Amitraz	180.287	0.1	
2,4-Dichlorophenoxy acetic acid.	180.142B	1000.0		Atrazine	180.220	0.02	N
Hydramethylnon	180.395	0.05		Benomyl	180.294	0.1	
MCPA	180.339	300.0		Bentazon	180.355	0.05	
Zinc phosphide	180.284	0.1		Bifenthrin	180.442	1.0	T
Grasses, Rye				Bromoxynil	180.324C	0.1	
Formaldehyde	180.1032	exempt		Bromoxynil	180.324	0.1	
Glyphosate and its metabolites.	180.364	200.0		Captan	180.103	0.05	
Propionic acid	180.1023	exempt		Carbaryl	180.169	0.1	
Grasses, Rye, Hay				Carbofuran	180.254	0.05	
Sodium diacetate	180.1058	exempt		Carboxin	180.301	0.1	
Grasses, Rye, Perennial				Chinomethionat	180.338	0.05	N
Atrazine	180.220	15.0		Chloroneb	180.257	0.2	
Greens, Leafy Subgroup				Chlorpropham	180.319	0.05	I
N-(4,6-Dimethoxy-pyridin-2-yl)aminocarbonyl-3-(ethylsulfonyl)-2-pyridinesulfonamide.	180.472	3.5		Chlorpyrifos	180.342	0.2	
Guavas				Chlorpyrifos-methyl	180.419	0.5	
Atrazine	180.220	0.05		Chlorsulfuron	180.405	0.3	
Ferbam	180.114	7.0		Clethodim	180.458	0.2	
Glyphosate and its metabolites.	180.364	0.2		Clofentezine	180.446	0.05	
Lindane	180.133	1.0		Cloprop	180.325	0.05	
Malathion	180.111	8.0		Coumaphos	180.189	1.0	
Oryzalin	180.304	0.05	R	Cyfluthrin	180.436	1.00	L
Oxyfluorfen	180.381	0.05	R	Cyhexatin	180.144	0.2	
Paraquat dichloride	180.205	0.05	N	Cypermethrin	180.418	0.05	T
Parathion	180.121	1.0		Dicamba	180.227	0.2	
Zineb	180.115	7.0	X	3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.2	
Guavas (Post-H)				3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
Allethrin	180.113	4.0		2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
Piperonyl butoxide	180.127	8.0		3',4'-Dichloropropion anilide.	180.274	0.1	N
Pyrethrins	180.128	1.0		Dichlorvos	180.235	0.1	N
Ham, Uncooked				Difenoconazole	180.475	0.05	T
Hydrocyanic acid	185.3600	50.0		Difenoquat	180.369	0.05	
Herbs, Processed				Diflubenzuron	180.377	0.05	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	400.0		Dimethipin	180.406	0.02	
Hickory Nuts				Dimethoate	180.204	0.02	N
Dicofol	180.163	5.0		Diphenamid	180.230	0.05	N
Oxadiazon	180.346	0.05	N	Dipropyl isocinchomeronate.	180.143	0.1	N
Phosalone	180.263	0.05	N	Diquat dibromide	180.226	0.02	
				Diuron	180.106	1.0	
				Endosulfan	180.182	0.2	
				Ethalfuralin	180.416	0.05	
				Ethephon	180.300	0.1	
				Ethion	180.173	0.2	
				Ethofumesate	180.345	0.05	
				Etridiazole	180.370	0.1	
				Fenamiphos	180.349	0.05	
				Fenarimol	180.421	0.1	
				Fenbutatin oxide	180.362	0.5	
				Fenoxaprop-ethyl	180.430	0.05	L
				Fenpropathrin	180.466	0.02	T
				Fenridazone-potassium	180.423	0.05	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Fenthion	180.214	0.1	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	
Flutolanil	180.484	0.10	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.05	L
Hexazinone	180.396	0.1	
Imazalil	180.413	0.01	
Imidacloprid	180.472	0.3	
Iprodione	180.399	0.5	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	3.0	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Metalaxyl	180.408	0.4	
Methidathion	180.298	0.05	
Methoprene	180.359	1.0	
Metolachlor	180.368	0.02	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Myclobutanil	180.443	0.05	
Naled	180.215	0.05	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
N-Octyl bicycloheptene dicarboximide	180.367	0.3	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Permethrin	180.378	3.0	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Picloram	180.292	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propiconazole	180.434	0.1	
Propyzamide	180.317	0.02	N
Prosulfuron	180.481	0.05	L
Pyrethrins	180.128	0.1	N
Quizalofop-ethyl	180.441	0.05	
Sethoxydim	180.412	0.2	
Simazine	180.213	0.02	N
Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1)	180.489	0.10	L
Sulprofos	180.374	0.1	
Terbacil	180.209	0.1	
Tetrachlorvinphos	180.252	1.5	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	
Thiobencarb	180.401	0.2	
Thiophanate-methyl	180.371	0.1	N
Triadimefon	180.410	0.04	
Triadimenol	180.450	0.1	
Triasulfuron	180.459	0.1	
Triclopyr	180.417	0.05	
Triflumazole	180.476	0.5	
Hogs, Fat (Pre-S)			
Malathion	180.111	4.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Hogs, Fat of Meat			
Dioxathion	180.171	1.0	
Lindane	180.133	4.0	
Methoxychlor	180.120	3.0	
Hogs, Kidney			
Amitraz	180.287	0.2	
Carbaryl	180.169	1.0	
Cloprop	180.325	0.5	
Cyhexatin	180.144	0.5	
Dicamba	180.227	1.5	
2,4-Dichlorophenoxy acetic acid	180.142(h)	2.0	
Fenarimol	180.421	0.1	
Fenridazone-potassium	180.423	1.0	
Fentin hydroxide	180.236	0.05	N
Fluridone	180.420	0.1	
Flutolanil	180.484	1.00	
Glyphosate and its metabolites	180.364	4.0	
Iprodione	180.399	3.0	
Metalaxyl	180.408	0.4	
Metolachlor	180.368	0.2	
Metsulfuron-methyl	180.428	0.5	
Paraquat dichloride	180.205	0.3	
Picloram	180.292	5.0	
Pirimiphos-methyl	180.409	2.0	
Propiconazole	180.434	2.0	
Propyzamide	180.317	0.4	
Prosulfuron	180.481	0.05	L
Sodium acifluorfen	180.383	0.02	
Triasulfuron	180.459	0.5	L
Triclopyr	180.417	0.5	
Hogs, Liver			
Amitraz	180.287	0.2	
Carbaryl	180.169	1.0	
Clofentezine	180.446	0.4	
Cyhexatin	180.144	0.5	
Dicamba	180.227	1.5	
Fenarimol	180.421	0.1	
Fenridazone-potassium	180.423	1.0	
Fentin hydroxide	180.236	0.05	N
Fluridone	180.420	0.1	
Flutolanil	180.484	2.00	
Glyphosate and its metabolites	180.364	0.5	
Imazalil	180.413	0.5	
Iprodione	180.399	3.0	
Metalaxyl	180.408	0.4	
Metolachlor	180.368	0.05	
Myclobutanil	180.443	1.0	
Picloram	180.292	0.5	
Pirimiphos-methyl	180.409	2.0	
Propiconazole	180.434	2.0	
Propyzamide	180.317	0.4	
Prosulfuron	180.481	0.05	L
Sodium acifluorfen	180.383	0.02	
Thiophanate-methyl	180.371	1.0	
Triclopyr	180.417	0.5	
Hogs, MBYP			
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.01	
Amitraz	180.287	0.3	
Atrazine	180.220	0.02	N
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	0.1	T
Bromoxynil	180.324	0.1	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Bromoxynil	180.324C	0.1		Naled	180.215	0.05	
Captan	180.103	0.05		Nitrapyrin	180.350	0.05	N
Carbaryl	180.169	0.1		Norflurazon	180.356	0.1	
Carbofuran	180.254	0.05		Oxadiazon	180.346	0.01	N
Carboxin	180.301	0.1		Oxydemeton-methyl	180.330	0.01	
Chinomethionat	180.338	0.05	N	Oxyfluorfen	180.381	0.05	
Chloroneb	180.257	0.2		Permethrin	180.378	3.0	
Chlorpropham	180.319	0.05	I	Phorate	180.206	0.05	N
Chlorpyrifos	180.342	0.05		Phosalone	180.263	0.25	
Chlorpyrifos-methyl	180.419	0.5		Phosmet	180.261	0.2	
Chlorsulfuron	180.405	0.3		Piperonyl butoxide	180.127	0.1	N
Clethodim	180.458	0.2		Pirimiphos-methyl	180.409	0.2	
Cloprop	180.325	0.05		Primisulfuron	180.452	0.1	
Coumaphos	180.189	1.0		Profenofos	180.404	0.05	
Cyfluthrin	180.436	0.4	L	Propachlor	180.211	0.02	N
Cypermethrin	180.418	0.05	T	Propargite	180.259	0.1	
Dalapon	180.150	0.2		Propham	180.319	0.05	I
Dicamba	180.227	0.2		Propionic acid	180.1023	exempt	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.2		Prosulfuron	180.481	0.05	L
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05		Pyrethrins	180.128	0.1	N
3',4'-Dichloropropion anilide.	180.274	0.1	N	Quizalofop-ethyl	180.441	0.05	
Dichlorvos	180.235	0.1	N	Sethoxydim	180.412	0.2	
Difenoconazole	180.475	0.05	T	Simazine	180.213	0.02	N
Difenzoquat	180.369	0.05		Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	1.00	L
Diffubenzuron	180.377	0.05		Sulprofos	180.374	0.1	
Dimethipin	180.406	0.02		Terbacil	180.209	0.1	
Dimethoate	180.204	0.02	N	Thiabendazole	180.242	0.1	
Diphenamid	180.230	0.05	N	Thidiazuron	180.403	0.2	
Dipropyl isocinchomeronate.	180.143	0.1	N	Thiobencarb	180.401	0.2	
Diquat dibromide	180.226	0.02		Triadimefon	180.410	0.04	
Diuron	180.106	1.0		Triadimenol	180.450	0.1	
Endosulfan	180.182	0.2		Triflumazole	180.476	0.5	
Ethalfuralin	180.416	0.05		Hogs, MBYP (Exc. Liver)			
Ethephon	180.300	0.1		Clofentezine	180.446	0.05	
Ethion	180.173	0.2		Myclobutanil	180.443	0.2	
Ethofumesate	180.345	0.05		Thiophanate-methyl	180.371	0.1	N
Etridiazole	180.370	0.1		Hogs, MBYP (Exc. Kidney and Liver)			
Fenamiphos	180.349	0.05		Cyhexatin	180.144	0.2	
Fenarimol	180.421	0.01		Fluridone	180.420	0.05	
Fenbutatin oxide	180.362	0.5		Iprodione	180.399	0.5	
Fenoxaprop-ethyl	180.430	0.05	L	Metalaxyl	180.408	0.05	
Fenpropathrin	180.466	0.02	T	Metolachlor	180.368	0.02	
Fenridazone-potassium	180.423	0.05		Picloram	180.292	0.2	
Fenthion	180.214	0.1		Propiconazole	180.434	0.1	
Fenvalerate	180.379	1.5		Propyzamide	180.317	0.02	N
Fluazifop-butyl	180.411	0.05		Triclopyr	180.417	0.05	
Flutolanil	180.484	0.05		Hogs, MBYP (Exc. Kidney)			
Fluvalinate	180.427	0.01		2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
Glufosinate-ammonium	180.473	0.10	L	Paraquat dichloride	180.205	0.05	
Halosulfuron	180.479A	0.1		Triasulfuron	180.459	0.1	
Hexazinone	180.396	0.1		Hogs, MBYP (Pre-S)			
Imazalil	180.413	0.01		Malathion	180.111	4.0	
Imidacloprid	180.472	0.3		Hogs, Meat			
Isofenphos	180.387	0.1		Acephate	180.108	0.1	
Lambda-cyhalothrin	180.438	0.2	L	Alachlor	180.249	0.02	
Linuron	180.184	1.0		Aldicarb	180.269	0.01	
MCPA	180.339	0.1	N	Amitraz	180.287	0.05	
Mepiquat chloride	180.384	0.1		Atrazine	180.220	0.02	N
Methidathion	180.298	0.05		Benomyl	180.294	0.1	
Methoprene	180.359	0.1					
Metribuzin	180.332	0.7					
Metsulfuron-methyl	180.428	0.1					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Bentazon	180.355	0.05	
Bifenthrin	180.442	0.5	T
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Captan	180.103	0.05	
Carbaryl	180.169	0.1	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	I
Chlorpyrifos	180.342	0.05	
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Clofentezine	180.446	0.05	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	0.4	L
Cyhexatin	180.144	0.2	
Cypermethrin	180.418	0.05	T
Dalapon	180.150	0.2	
Dicamba	180.227	0.2	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.2	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
3',4'-Dichloropropion ani- lide.	180.274	0.1	N
Dichlorvos	180.235	0.1	N
Difenoconazole	180.475	0.05	T
Difenzoquat	180.369	0.05	
Diffubenzuron	180.377	0.05	
Dimethipin	180.406	0.02	
Dimethoate	180.204	0.02	N
Diphenamid	180.230	0.05	N
Dipropyl isocinchomeronate.	180.143	0.1	N
Diquat dibromide	180.226	0.02	
Diuron	180.106	1.0	
Endosulfan	180.182	0.2	
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Ethion	180.173	0.2	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.01	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	
Fenthion	180.214	0.1	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	
Flutolanil	180.484	0.05	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.05	L
Halosulfuron	180.479A	0.1	
Hexazinone	180.396	0.1	
Imazalil	180.413	0.01	
Imidacloprid	180.472	0.3	
Iprodione	180.399	0.5	
Isofenphos	180.387	0.1	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Lambda-cyhalothrin	180.438	0.2	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Metaxyl	180.408	0.05	
Methidathion	180.298	0.05	
Methoprene	180.359	0.1	
Metolachlor	180.368	0.02	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Myclobutanil	180.443	0.1	
Naled	180.215	0.05	N
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Permethrin	180.378	0.25	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Picloram	180.292	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propiconazole	180.434	0.1	
Propionic acid	180.1023	exempt	
Propyzamide	180.317	0.02	N
Prosulfuron	180.481	0.05	L
Pyrethrins	180.128	0.1	N
Quizalofop-ethyl	180.441	0.02	
Sethoxydim	180.412	0.2	
Simazine	180.213	0.02	N
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonemethylglycine (1:1).	180.489	0.20	L
Sulprofos	180.374	0.1	
Terbacil	180.209	0.1	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	
Thiobencarb	180.401	0.2	
Thiophanate-methyl	180.371	0.1	N
Triadimefon	180.410	0.04	
Triadimenol	180.450	0.1	
Triasulfuron	180.459	0.1	
Triclopyr	180.417	0.05	
Triflumazole	180.476	0.05	
Hogs, Meat (Exc. Kidneys)			
Cloprop	180.325	0.05	
Hogs, Meat (Pre-S)			
Malathion	180.111	4.0	
Honey			
Amitraz	180.287	1.0	
Benzaldehyde	180.2	GRAS	
Fluvalinate	180.427	0.05	
Honeycomb			
Amitraz	180.287	6.0	
Honeycomb with Honey			
<i>Bacillus thuringiensis</i>	180.1011	exempt	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Butanoic anhydride	180.1034	exempt		Horseradish			
Menthol	180.1092	exempt		Allethrin	180.1002	exempt	
Honeydew				Carbaryl	180.169	5.0	
Captan	180.103	25.0		Chlorthal-dimethyl	180.185	2.0	
Chlorthal-dimethyl	180.185	1.0		Glyphosate and its metabolites.	180.364	0.2	
Dinocap	180.341	0.1	N	Malathion	180.111	8.0	
Fenvalerate	180.379	1.0		Methoxychlor	180.120	1.0	
Oxamyl	180.303	2.0		Oxyfluorfen	180.381	0.05	
Urea	180.1117	exempt		Permethrin	180.378	1.0	
Honeydew (Post-H)				Horseradish (Post-H)			
Methyl bromide	180.123	20.0		Methyl bromide	180.123	30.0	
Hops				Horses (All or Unspecified)			
Cyhexatin	180.144	30.0		Tetrachlorvinphos	186.950	FEAR	
Dalapon	180.150B	0.2		Horses, Fat			
Diazinon	180.153	0.75		Acephate	180.108	0.1	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N	Alachlor	180.249	0.02	
Dicofol	180.163	30.0		Aldicarb	180.269	0.01	
Diquat dibromide	180.226	0.02		Amitraz	180.287	0.0	
Disulfoton	180.183	0.5		Atrazine	180.220	0.02	N
Endothal	180.293	0.1		Azinphos-methyl	180.154	0.1	
Fluridone	180.420	0.1		Benomyl	180.294	0.1	
Gibberellic acid	180.224	0.15	N	Bifenthrin	180.442	1.0	T
Glyphosate and its metabolites.	180.364	0.1		Bromoxynil	180.324	0.1	
Malathion	180.111	1.0		Bromoxynil	180.324C	0.1	
Naled	180.215	0.5		Carbaryl	180.169	0.1	
Parathion	180.121	1.0		Carbofuran	180.254	0.05	
Phorate	180.206	0.5		Carboxin	180.301	0.1	
Propargite	180.259	15.0		Chinomethionat	180.338	0.05	N
Trifluralin	180.207	0.05	N	Chloroneb	180.257	0.2	
Urea	180.1117	exempt		Chlorpropham	180.319	0.05	I
Zineb	180.115	60.0	X	Chlorpyrifos	180.342	0.25	
Hops (180.142(f))				Chlorpyrifos-methyl	180.419	0.5	
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0		Chlorsulfuron	180.405	0.3	
Hops, Dried				Clethodim	180.458	0.2	
Abamectin	180.449	0.5	L	Clofentezine	180.446	0.05	
Aluminum tris(O-ethylphosphonate).	180.415	45		Cloprop	180.325	0.05	
Amitraz	180.287	60		Coumaphos	180.189	1.0	
Bifenthrin	180.442	10.0	T	Cyfluthrin	180.436	1.00	L
Cyfluthrin	185.1250	4.0		Cyhexatin	180.144	0.2	
Cyhexatin	185.1350	90.0		Cypermethrin	180.418	0.05	T
Imidacloprid	180.472	6		Dicamba	180.227	0.2	
Lambda-cyhalothrin	185.3765	10.0		3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0	
Metalaxyl	185.4000	20.0		3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
Metalaxyl	186.4000	2.0		2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
Methomyl	185.4100	12.0		3',4'-Dichloropropion anilide.	180.274	0.1	N
Norflurazon	185.4450	3.0		Dichlorvos	180.235	0.02	N
Paraquat bis(methyl sulfate).	185.4700	0.2		Difenoconazole	180.475	0.05	T
Propargite	185.5000	30.0		Difenoquat	180.369	0.05	
Tetradifon	185.5475	120.0		Diiflubenzuron	180.377	0.05	
Triforine	185.5950	60.0		Dimethipin	180.406	0.02	
Hops, Fresh				Dimethoate	180.204	0.02	N
Cyfluthrin	180.436	4.0		Diphenamid	180.230	0.05	N
Metalaxyl	180.408	2.0		Dipropyl isocinchomeronate.	180.143	0.1	N
Norflurazon	180.356	1.0		Diquat dibromide	180.226	0.02	
Paraquat dichloride	180.205	0.1		Diuron	180.106	1.0	
Tetradifon	180.174	30.0		Endosulfan	180.182	0.2	
Hops, Spent				Ethalfuralin	180.416	0.05	
Metalaxyl	186.4000	20.0		Ethephon	180.300	0.1	
Triforine	186.5950	60.0					
Hops, Vines							
Paraquat dichloride	180.205	0.5					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Ethion	180.173	0.2	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.1	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	
Flutolanil	180.484	0.10	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.05	L
Hexazinone	180.396	0.1	
Imazalil	180.413	0.01	
Imidacloprid	180.472	0.3	
Iprodione	180.399	0.5	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	3.0	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Metalaxyl	180.408	0.4	
Methidathion	180.298	0.05	
Methoprene	180.359	1.0	
Metolachlor	180.368	0.02	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Myclobutanil	180.443	0.05	
Naled	180.215	0.05	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
N-Octyl bicycloheptene dicarboximide	180.367	0.3	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Permethrin	180.378	3.0	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Picloram	180.292	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propiconazole	180.434	0.1	
Propyzamide	180.317	0.02	N
Prosulfuron	180.481	0.05	L
Pyrethrins	180.128	0.1	N
Quizalofop-ethyl	180.441	0.05	
Sethoxydim	180.412	0.2	
Simazine	180.213	0.02	N
Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1)	180.489	0.10	L
Sulprofos	180.374	0.1	
Tebuthiuron	180.390	2.0	
Terbacil	180.209	0.1	
Tetrachlorvinphos	180.252	0.5	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Thiobencarb	180.401	0.2	
Thiophanate-methyl	180.371	0.1	N
Triadimefon	180.410	1.0	
Triadimenol	180.450	0.1	
Triasulfuron	180.459	0.1	
Trichlorfon	180.198	0.1	N
Triclopyr	180.417	0.05	
Triflumazole	180.476	0.5	
Horses, Fat (Pre-S)			
Malathion	180.111	4.0	
Horses, Fat of Meat			
Dioxathion	180.171	1.0	
Lindane	180.133	7.0	
Methoxychlor	180.120	3.0	
Horses, Kidney			
Carbaryl	180.169	1.0	
Cloprop	180.325	0.5	
Cyhexatin	180.144	0.5	
Dicamba	180.227	1.5	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	12.0	
2,4-Dichlorophenoxy acetic acid	180.142(h)	2.0	
Fenarimol	180.421	0.1	
Fenridazone-potassium	180.423	1.0	
Fentin hydroxide	180.236	0.05	N
Fluridone	180.420	0.1	
Flutolanil	180.484	1.00	
Glyphosate and its metabolites	180.364	4.0	
Iprodione	180.399	3.0	
Metalaxyl	180.408	0.4	
Metolachlor	180.368	0.2	
Metsulfuron-methyl	180.428	0.5	
Paraquat dichloride	180.205	0.3	
Picloram	180.292	5.0	
Pirimiphos-methyl	180.409	2.0	
Propiconazole	180.434	2.0	
Propyzamide	180.317	0.4	
Prosulfuron	180.481	0.05	L
Sodium acifluorfen	180.383	0.02	
Triasulfuron	180.459	0.5	L
Triclopyr	180.417	0.5	
Horses, Liver			
Carbaryl	180.169	1.0	
Clofentezine	180.446	0.4	
Cyhexatin	180.144	0.5	
Dicamba	180.227	1.5	
Fenarimol	180.421	0.1	
Fenridazone-potassium	180.423	1.0	
Fentin hydroxide	180.236	0.05	N
Fluridone	180.420	0.1	
Flutolanil	180.484	2.00	
Glyphosate and its metabolites	180.364	0.5	
Imazalil	180.413	0.5	
Iprodione	180.399	3.0	
Metalaxyl	180.408	0.4	
Metolachlor	180.368	0.05	
Myclobutanil	180.443	1.0	
Picloram	180.292	0.5	
Pirimiphos-methyl	180.409	2.0	
Propiconazole	180.434	2.0	
Propyzamide	180.317	0.4	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Prosulfuron	180.481	0.05	L	MCPA	180.339	0.1	N
Sodium acifluorfen	180.383	0.02		Mepiquat chloride	180.384	0.1	
Thiophanate-methyl	180.371	1.0		Methidathion	180.298	0.05	
Triclopyr	180.417	0.5		Methoprene	180.359	0.1	
Horses, MBYP				Metribuzin	180.332	0.7	
Acephate	180.108	0.1		Metsulfuron-methyl	180.428	0.1	
Alachlor	180.249	0.02		Naled	180.215	0.05	
Aldicarb	180.269	0.01		Nitrapyrin	180.350	0.05	N
Amitraz	180.287	0.0		Norflurazon	180.356	0.1	
Atrazine	180.220	0.02	N	Oxadiazon	180.346	0.01	N
Azinphos-methyl	180.154	0.1		Oxydemeton-methyl	180.330	0.01	
Benomyl	180.294	0.1		Oxyfluorfen	180.381	0.05	
Bifenthrin	180.442	0.1	T	Permethrin	180.378	2.0	
Bromoxynil	180.324	0.1		Phorate	180.206	0.05	N
Bromoxynil	180.324C	0.1		Phosalone	180.263	0.25	
Carbofuran	180.254	0.05		Phosmet	180.261	0.2	
Carboxin	180.301	0.1		Piperonyl butoxide	180.127	0.1	N
Chinomethionat	180.338	0.05	N	Pirimiphos-methyl	180.409	0.2	
Chloroneb	180.257	0.2		Primisulfuron	180.452	0.1	
Chlorpropham	180.319	0.05	I	Profenofos	180.404	0.05	
Chlorpyrifos	180.342	0.25		Propachlor	180.211	0.02	N
Chlorpyrifos-methyl	180.419	0.5		Propargite	180.259	0.1	
Chlorsulfuron	180.405	0.3		Propham	180.319	0.05	I
Clethodim	180.458	0.2		Propionic acid	180.1023	exempt	
Cloprop	180.325	0.05		Prosulfuron	180.481	0.05	L
Coumaphos	180.189	1.0		Pyrethrins	180.128	0.1	N
Cyfluthrin	180.436	0.4	L	Quizalofop-ethyl	180.441	0.05	
Cypermethrin	180.418	0.05	T	Sethoxydim	180.412	0.2	
Dicamba	180.227	0.2		Simazine	180.213	0.02	N
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05		Sulfonium, trimethyl-, salt with <i>N</i> -phosphonomethylglycine (1:1).	180.489	1.00	L
3',4'-Dichloropropion anilide.	180.274	0.1	N	Sulprofos	180.374	0.1	
Dichlorvos	180.235	0.02	N	Tebuthiuron	180.390	2.0	
Difenoconazole	180.475	0.05	T	Terbacil	180.209	0.1	
Difenzoquat	180.369	0.05		Thiabendazole	180.242	0.1	
Diflubenzuron	180.377	0.05		Thidiazuron	180.403	0.2	
Dimethipin	180.406	0.02		Thiobencarb	180.401	0.2	
Dimethoate	180.204	0.02	N	Triadimefon	180.410	1.0	
Diphenamid	180.230	0.05	N	Triadimenol	180.450	0.1	
Dipropyl isocinchomeronate.	180.143	0.1	N	Trichlorfon	180.198	0.1	N
Diquat dibromide	180.226	0.02		Triflumazole	180.476	0.5	
Diuron	180.106	1.0		Horses, MBYP (Exc. Kidney and Liver)			
Endosulfan	180.182	0.2		Carbaryl	180.169	0.1	
Ethalfuralin	180.416	0.05		Cyhexatin	180.144	0.2	
Ethephon	180.300	0.1		Fluridone	180.420	0.05	
Ethion	180.173	0.2		Iprodione	180.399	0.5	
Ethofumesate	180.345	0.05		Metalaxyl	180.408	0.05	
Etridiazole	180.370	0.1		Metolachlor	180.368	0.02	
Fenamiphos	180.349	0.05		Picloram	180.292	0.2	
Fenarimol	180.421	0.01		Propiconazole	180.434	0.1	
Fenbutatin oxide	180.362	0.5		Propyzamide	180.317	0.02	N
Fenoxaprop-ethyl	180.430	0.05	L	Triclopyr	180.417	0.05	
Fenpropathrin	180.466	0.02	T	Horses, MBYP (Exc. Kidney)			
Fenridazone-potassium	180.423	0.05		3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0	
Fenvalerate	180.379	1.5		2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
Fluazifop-butyl	180.411	0.05		Paraquat dichloride	180.205	0.05	
Flutolanil	180.484	0.05		Triasulfuron	180.459	0.1	
Fluvalinate	180.31	0.01					
Fluvalinate	180.427	0.01					
Glufosinate-ammonium	180.473	0.10	L				
Halosulfuron	180.479A	0.1					
Hexazinone	180.396	0.1					
Imazalil	180.413	0.01					
Imidacloprid	180.472	0.3					
Isofenphos	180.387	0.1					
Lambda-cyhalothrin	180.438	0.2	L				
Linuron	180.184	1.0					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Horses, MBYP (Exc. Liver)			
Clofentazine	180.446	0.05	
Myclobutanil	180.443	0.2	
Thiophanate-methyl	180.371	0.1	N
Horses, MBYP (Pre-S)			
Malathion	180.111	4.0	
Horses, Meat			
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.01	
Amitraz	180.287	0.0	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154	0.1	
Benomyl	180.294	0.1	
Bifenthrin	180.442	0.5	T
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	0.1	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	
Chlorpyrifos	180.342	0.25	I
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Clofentazine	180.446	0.05	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	0.4	L
Cyhexatin	180.144	0.2	
Cypermethrin	180.418	0.05	T
Dicamba	180.227	0.2	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
3',4'-Dichloropropion anilide.	180.274	0.1	N
Dichlorvos	180.235	0.02	N
Difenoconazole	180.475	0.05	T
Difenozaquat	180.369	0.05	
Diflubenzuron	180.377	0.05	
Dimethipin	180.406	0.02	
Dimethoate	180.204	0.02	N
Diphenamid	180.230	0.05	N
Dipropyl isocinchomeronate.	180.143	0.1	N
Diquat dibromide	180.226	0.02	
Diuron	180.106	1.0	
Endosulfan	180.182	0.2	
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Ethion	180.173	0.2	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.01	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	
Flutolanil	180.484	0.05	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.05	L
Halosulfuron	180.479A	0.1	
Hexazinone	180.396	0.1	
Imazalil	180.413	0.01	
Imidacloprid	180.472	0.3	
Iprodione	180.399	0.5	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	0.2	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Metallaxyl	180.408	0.05	
Methidathion	180.298	0.05	
Methoprene	180.359	0.1	
Metolachlor	180.368	0.02	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	
Myclobutanil	180.443	0.1	
Naled	180.215	0.05	N
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	
Permethrin	180.378	0.25	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Picloram	180.292	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propiconazole	180.434	0.1	
Propionic acid	180.1023	exempt	
Propyzamide	180.317	0.02	N
Prosulfuron	180.481	0.05	L
Pyrethrins	180.128	0.1	N
Quizalofop-ethyl	180.441	0.02	
Sethoxydim	180.412	0.2	
Simazine	180.213	0.02	N
Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1).	180.489	0.20	L
Sulprofos	180.374	0.1	
Tebuthiuron	180.390	2.0	
Terbacil	180.209	0.1	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	
Thiobencarb	180.401	0.2	
Thiophanate-methyl	180.371	0.1	N
Triadimefon	180.410	1.0	
Triadimenol	180.450	0.1	
Triasulfuron	180.459	0.1	
Trichlorfon	180.198	0.1	N
Triclopyr	180.417	0.05	
Triflumazole	180.476	0.05	
Horses, Meat (Exc. Kidneys)			
Cloprop	180.325	0.05	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Horses, Meat (Pre-S)				Urea	180.1117	exempt	X
Malathion	180.111	4.0		Zineb	180.115	7.0	
Huckleberries				Ziram	180.116	7.0	
Fenvalerate	180.379	3.0		Kumquats			
Jaboticaba				Dicofol	180.163	10.0	
Glyphosate and its metabolites.	180.364	0.2		Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Jackfruit				Malathion	180.111	8.0	
Glyphosate and its metabolites.	180.364	0.2		Kumquats (Post-H)			
Kale				Methyl bromide	180.123	30.0	
Allethrin	180.1002	exempt		2-Phenylphenol	180.129	10.0	
Benomyl	180.294	0.2		Leafy Vegetables (Root and Tuber Vegetables Group)			
Captan	180.103	2.0		Metalaxyl	180.408	15.0	L
Carbaryl	180.169	12.0		Thiodicarb	180.407	35.0	
Cryolite	180.145	7.0		Leeks			
Dimethoate	180.204	2.0		Allethrin	180.1002	exempt	
Endosulfan	180.182	2.0		Captan	180.103	50.0	
Ferbam	180.114	7.0		Chlorpyrifos	180.342	0.5	
Lindane	180.133	1.0		Folpet	180.191	50.0	
Maneb	180.110	10.0		Malathion	180.111	8.0	
Methomyl	180.253	6.0		Methomyl	180.253	3.0	
Methoxychlor	180.120	14.0		Legume Vegetable Fodder			
Mevinphos	180.157	1.0		Metalaxyl	180.408	3.0	
Naled	180.215	3.0		Legume Vegetable Forage			
Nicotine	180.167	2.0		Metalaxyl	180.408	5.0	
Pentachloronitrobenzene	180.291	0.2	R	Legume Vegetable Group (Dry or Succulent)			
Zineb	180.115	10.0	X	Imazethapyr	180.447	0.1	
Ziram	180.116	7.0		Metalaxyl	180.408	0.2	
Kidney				Parasitoid insects	180.1101	exempt	L
Mancozeb	180.176	0.5		Quizalofop-ethyl	180.441	0.25	
Kiwifruits				Legume Vegetable Group Cannery Waste (For Animal Feed)			
Azinphos-methyl	180.154	10.0		Metalaxyl	186.4000	5.0	
Chlorpyrifos	180.342	2.0		Legume Vegetables, Succulent or Dried (Exc. Soybeans)			
Cryolite	180.145	15.0	R	Chlorpyrifos	180.342	0.05	
Diazinon	180.153	0.75		Legumes, Forage			
N,N-Diethyl-2-(1-naphthalenyloxy)propionamide.	180.328	0.1		Dalapon	180.150B	2.0	N
Glyphosate and its metabolites.	180.364	0.2		2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	
Iprodione	180.399	10.0		Diquat dibromide	180.226	0.1	
Methidathion	180.298	0.1	R	EPTC	180.117	0.1	N
Oryzalin	180.304	0.05		Fluridone	180.420	0.15	
Oxyfluorfen	180.381	0.05		Naled	180.215	10.0	
Paraquat dichloride	180.205	0.05		Trifluralin	180.207	0.05	N
Permethrin	180.378	2.0		Legumes, Forage (180.142(f))			
Phosmet	180.261	25.0		2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Pirimiphos-methyl	180.409	5.0					
Urea	180.1117	exempt					
Vinclozolin	180.380	10.0					
Kiwifruits (Post-H)							
Dicloran	180.200	20.0					
Fenamiphos	180.349	0.1					
2-Phenylphenol	180.129	20.0					
Kohlrabi							
Allethrin	180.1002	exempt					
Benomyl	180.294	0.2					
Carbaryl	180.169	10.0					
Cryolite	180.145	7.0					
Ferbam	180.114	7.0					
Lindane	180.133	1.0					
Maneb	180.110	10.0					
Methoxychlor	180.120	14.0					
Nicotine	180.167	2.0					

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Legumes, Forage (Exc. Soybeans and Peanuts)			
Glyphosate and its metabolites.	180.364	0.4	
Lemons			
Aldicarb	180.269	0.3	
Carbon disulfide	180.467	0.1	
Dalapon	180.150	5.0	
Dicofol	180.163	10.0	
Dimethoate	180.204	2.0	
Dioxathion	180.171	3.0	
Ethephon	180.300	2.0	
Fenamiphos	180.349	0.6	
Formetanate hydrochloride.	180.276	4.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Malathion	180.111	8.0	
Methomyl	180.253	2.0	
Naled	180.215	3.0	
Oxydemeton-methyl	180.330	1.0	
Phosphamidon	180.239	0.75	
Propargite	180.259	5.0	
Simazine	180.213	0.25	
Tetradifon	180.174	2.0	
Urea	180.1117	exempt	
Lemons (Post-H)			
Ammonia	180.1003	exempt	
2,4-Dichlorophenoxy acetic acid.	180.142A	5.0	
Methyl bromide	180.123	30.0	
2-Phenylphenol	180.129	10.0	
Lentils			
Barban	180.268	0.1	L
Carbaryl	180.169	10.0	
Di-allate	180.277	0.05	X
Diclofop-methyl	180.385	0.1	
Dimethoate	180.204	2.0	
Malathion	180.111	8.0	
Methomyl	180.253	0.1	
Methyl parathion	180.121	1.0	
Paraquat dichloride	180.205	0.3	
Propham	180.319	0.1	I
Quizalofop-ethyl	180.441	0.05	
Sethoxydim	180.412	30.0	
Tri-allate	180.314	0.05	N
Urea	180.1117	exempt	
Lentils, Dry			
Metribuzin	180.332	0.05	
Lentils, Forage			
Metribuzin	180.332	0.5	
Paraquat dichloride	180.205	0.1	
Tri-allate	180.314	0.05	N
Lentils, Hay			
Paraquat dichloride	180.205	0.4	
Tri-allate	180.314	0.05	N
Lentils, Vine Hay			
Metribuzin	180.332	0.05	
Lespedeza			
Diazinon	180.153	1.0	
Formaldehyde	180.1032	exempt	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Isobutyric acid	180.1030	exempt	
MCPA	180.339	0.1	
Propionic acid	180.1023	exempt	
Lespedeza, Hay			
Malathion	180.111	135.0	
MCPA	180.339	0.1	
Lespedeza, Seed			
Malathion	180.111	8.0	
Lespedeza, Straw			
Malathion	180.111	135.0	
Lettuce			
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal.	180.1042	exempt	
Benfluralin	180.208	0.05	N
Calcium cyanide	180.125	5.0	
Captan	180.103	100.0	
Carbaryl	180.169	10.0	
Chlorthal-dimethyl	180.185	2.0	
Cryolite	180.145	7.0	
Diazinon	180.153	0.7	
Dichlorvos	180.235	1.0	
Dicloran	180.200	10.0	
Dimethoate	180.204	2.0	
Disulfoton	180.183	0.75	
Endosulfan	180.182	2.0	
Ferbam	180.114	7.0	
Folpet	180.191	50.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	300.0	R
L			
Iprodione	180.399	25.0	
Lindane	180.133	3.0	
X			
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
I			
Maneb	180.110	10.0	
Methamidophos	180.315	1.0	
Methomyl	180.253	5.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	0.5	
Naled	180.215	1.0	
Nicotine	180.167	2.0	
N			
Paraquat dichloride	180.205	0.05	N
Parathion	180.121	1.0	
Phorate	180.206	0.1	
Propham	180.319	0.1	I
Propyzamide	180.317	1.0	
Thiobencarb	180.401	0.2	R
Trichlorfon	180.198	0.1	N
exempt			
Urea	180.1117	10.0	X
Zineb	180.115	7.0	
Ziram	180.116		
Lettuce, Head			
Abamectin	180.449	0.05	
Acephate	180.108	10.0	
Cypermethrin	180.418	10.0	T
Cyromazine	180.414	5.0	
Imazethapyr, ammonium salt.	180.447	0.1	R
Imidacloprid	180.472	3.5	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Lambda-cyhalothrin	180.438	2.0	L	Lupine, Straw	180.111	135.0	
Metalaxyl	180.408	5.0		Malathion			
Oxydemeton-methyl	180.330	2.0		Lupines	180.1032 180.1023	exempt exempt	
Permethrin	180.378	20.0		Formaldehyde			
Sethoxydim	180.412	1.0		Propionic acid			
Tralomethrin	180.422	1.00		Lychee	180.364	0.2	
Vinclozolin	180.380	10.0		Glyphosate and its metabolites.			
Lettuce, Leaf			R	Macadamia Nuts			
Imazethapyr, ammonium salt.	180.447	0.1		Acephate	180.108	0.05	
Imidacloprid	180.472	3.5		Atrazine	180.220	0.25	
Sethoxydim	180.412	2.0		Captafol	180.267	0.1	
Tralomethrin	180.422	3.00	L	Chinomethionat	180.338	0.1	N
Vinclozolin	180.380	10.0		Cyhexatin	180.144	0.5	
Limes				Dalapon	180.150	1.0	
Aldicarb	180.269	0.3		Z-8- and E-8-Dodecen-1-yl acetate and Z-8-dodecen-1-ol.	180.1073	exempt	
Dalapon	180.150	5.0	N	Endosulfan	180.182	0.2	N
Dicofol	180.163	10.0		Ethephon	180.300	0.5	
Dioxathion	180.171	3.0		Fluazifop-butyl	180.411	0.1	
Fenamiphos	180.349	0.6		Malathion	180.111	1.0	
Formetanate hydrochloride.	180.276	4.0		Simazine	180.213	0.25	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01		Urea	180.1117	exempt	
Malathion	180.111	8.0		Macadamia Nuts (Bush Nuts)			
Tetradifon	180.174	2.0		Oxadiazon	180.346	0.05	
Urea	180.1117	exempt		Phosalone	180.263	0.05	
Limes (Post-H)				Macaroni Products			
Methyl bromide	180.123	30.0	N	Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
2-Phenylphenol	180.129	10.0		Mace (Post-H)			
Liver				Hydrocyanic acid	180.130	250.0	
Mancozeb	180.176	0.5		Malt Beverages			
Loganberries				Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	25.0	
Anilazine	180.158	10.0		Mamy Sapote			
Azinphos-methyl	180.154	2.0		Glyphosate and its metabolites.	180.364	0.2	
Benomyl	180.294	7.0		Mandarins			
Carbaryl	180.169	12.0		Methidathion	180.298	6.0	
Cryolite	180.145	7.0		Mangoes			
Diazinon	180.153	0.75	X	Benomyl	180.294	3.0	N
Dicofol	180.163	5.0		Captan	180.103	50.0	
Dinocap	180.341	0.15		Dichlobenil	180.231	0.15	
Diuron	180.106	1.0		Ferbam	180.114	7.0	
Ferbam	180.114	7.0		Glyphosate and its metabolites.	180.364	0.2	
Folpet	180.191	25.0		Imidacloprid	180.472	0.2	
Malathion	180.111	8.0		Lindane	180.133	1.0	
Methoxychlor	180.120	14.0		Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Nicotine	180.167	2.0		Malathion	180.111	8.0	
Parathion	180.121	1.0					
Sesame plant, ground ...	180.1087	exempt	R	Lupine, Hay			
Simazine	180.213	0.25		Malathion	180.111	135.0	
Zineb	180.115	7.0		Lupine, Seed			
Ziram	180.116	7.0		Malathion	180.111	8.0	
Loganberries (Post-H)							
Allethrin	180.113	4.0					
Piperonyl butoxide	180.127	8.0					
Pyrethrins	180.128	1.0					
Longan Fruit (Post-H)							
Glyphosate and its metabolites.	180.364	0.2					
Methidathion	180.298	0.1					

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Parathion	180.121	1.0	
Thiabendazole	180.242	10.0	
Mangoes (Post-H)			
Allethrin	180.113	4.0	
Methyl bromide	180.123	20.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Maple Sap			
Carbaryl	180.169	0.5	
Marigolds (Dried and Extract)			
Fenbutatin oxide	186.3550	25.0	R
Marigolds, Fresh			
Fenbutatin oxide	180.362	4.0	R
Marjoram			
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Marjoram (Post-H)			
Hydrocyanic acid	180.130	250.0	
Meat			
<i>Beauvaria bassiana</i>	180.1146	exempt	
Cuprous oxide	180.1021	exempt	
Diphenylamine	180.190	0.0	
Dodine	180.172	0.0	
Polyoxyethylene	180.1078	exempt	
Tetradifon	180.174	0.0	
Melons			
Anilazine	180.158	10.0	
Aqueous extract of seaweed meal.	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Benomyl	180.294	1.0	
Captafol	180.267	5.0	
Carbaryl	180.169	10.0	
Carbofuran	180.254	0.4	
Chlorothalonil	180.275	5.0	
Cryolite	180.145	7.0	
Diazinon	180.153	0.75	
Dicofol	180.163	5.0	
Dimethoate	180.204	1.0	
Endosulfan	180.182	2.0	
Ethion	180.173	2.0	
Ferbam	180.114	7.0	
Folpet	180.191	15.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
L(+)-Lactic acid	180.1001	exempt	
Lindane	180.133	3.0	
Malathion	180.111	8.0	
Mancozeb	180.176	4.0	
Maneb	180.110	4.0	
Methamidophos	180.315	0.5	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	0.5	
Naled	180.215	0.5	
Nicotine	180.167	2.0	
Oxydemeton-methyl	180.330	0.3	
Parathion	180.121	1.0	
Sesame plant, ground ...	180.1087	exempt	
Sodium dimethyldithiocarbamate.	180.152	25.0	
Tetradifon	180.174	1.0	
Thiophanate-methyl	180.371	1.0	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Zineb	180.115	4.0	X
Ziram	180.116	7.0	
Melons, Winter			
Urea	180.1117	exempt	
Milk			
Abamectin	180.449	0.005	T
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.002	
Amitraz	180.287	0.03	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154A	0.04	N
<i>Beauvaria bassiana</i>	180.1146	exempt	
Benomyl	180.294	0.1	
Bentazon	180.355	0.02	
Bifenthrin	180.442	0.1	T
<i>sec</i> -Butylamine	180.321	0.75	
Carbaryl	180.169	0.3	
Carbofuran	180.254	0.1	
Carboxin	180.301	0.01	
Chinomethionat	180.338	0.01	N
Chloroneb	180.257	0.05	N
Chlorpropham	180.319	0.05	I
Chlorpyrifos-methyl	180.419	0.05	
Chlorsulfuron	180.405	0.1	
Clethodim	180.458	0.05	
Clofentezine	180.446	0.01	T
Cuprous oxide	180.1021	exempt	
Cyfluthrin	180.436	0.08	L
Cypermethrin	180.418	0.05	T
Dalapon	180.150	0.1	N
Dicamba	180.227	0.3	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.1	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.1	
3',4'-Dichloropropionanilide.	180.274	0.05	N
Dichlorvos	180.235	0.02	N
Difenoconazole	180.475	0.01	T
Diffubenzuron	180.377	0.05	
Dimethoate	180.204	0.002	N
Dioxathion	180.171	0.0	
Diphenamid	180.230	0.01	N
Diphenylamine	180.190	0.0	
Dipropyl isocinchomeronate.	180.143	0.004	N
Diquat dibromide	180.226	0.02	
Dodine	180.172	0.0	
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Etridiazole	180.370	0.05	
Fenamiphos	180.349	0.01	
Fenarimol	180.421	0.003	
Fenoxaprop-ethyl	180.430	0.02	L
Fenridazone-potassium	180.423	0.05	
Fenthion	180.214	0.01	N
Fenvalerate	180.379	0.3	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	
Flutolanil	180.484	0.05	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.02	L

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Hexazinone	180.396	0.1		Methoxychlor	180.120	1.25	
Imazalil	180.413	0.01		N-Octyl bicycloheptene dicarboximide	180.367	0.3	
Imidacloprid	180.472	0.1		Piperonyl butoxide	180.127	0.25	N
Iprodione	180.399	0.5		Pyrethrins	180.128	0.5	N
Isofenphos	180.387	0.02		Quizalofop-ethyl	180.441	0.05	
Lambda-cyhalothrin	180.438	0.2	L	Tetrachlorvinphos	180.252	0.5	N
MCPA	180.339	0.1	N	Milk, Fat (0.02 ppm in Whole Milk)			
Mepiquat chloride	180.384	0.05		Fenpropathrin	180.466	0.03	T
Metaxyl	180.408	0.02		Milk, Fat (0.08 ppm in Whole Milk)			
Methidathion	180.298	0.03		Propargite	180.259	2.0	
Methoprene	180.359	0.1		Milk, Fat (0.1 ppm (N) in Whole Milk)			
Metolachlor	180.368	0.02		Pirimiphos-methyl	180.409	3.0	
Metribuzin	180.332	0.05		Milk, Fat (= 0.1 in Whole Milk)			
Metsulfuron-methyl	180.428	0.05		Terbacil	180.209	0.5	
Myclobutanil	180.443	0.2		Milk, Fat (= N in Whole Milk)			
Naled	180.215	0.05		Coumaphos	180.189	0.5	
Norflurazon	180.356	0.1		Cyhexatin	180.144	0.05	
Oxydemeton-methyl	180.330	0.01		Dialifor	180.326	0.15	N
Oxyfluorfen	180.381	0.05		Endosulfan	180.182	0.5	
Paraquat dichloride	180.205	0.01	N	Ethion	180.173	0.5	N
Phorate	180.206	0.02	N	Oxadiazon	180.346	0.1	N
Picloram	180.292	0.05		Milk, Fat (From Application to Dairy Cows)			
Polyoxyethylene	180.1078	exempt		Malathion	180.111	0.5	
Primisulfuron	180.452	0.02		Milk, Whole			
Profenofos	180.404	0.01		Chlorpyrifos	180.342	0.01	
Propachlor	180.211	0.02	N	Millet (Post-H)			
Propham	180.319	0.05	I	Aluminum phosphide (residues calculated as phosphide)	180.225	0.1	
Propiconazole	180.434	0.05		Magnesium phosphide (residues calculated as phosphine)	180.375	0.1	
Propionic acid	180.1023	exempt		Millet, Fodder			
Propyzamide	180.317	0.02	N	Metolachlor	180.368	0.5	
Prosulfuron	180.481	0.01	L	Millet, Forage			
Pyrazon	180.316	0.01	N	2,4-Dichlorophenoxy acetic acid	180.142B	20.0	
Quizalofop-ethyl	180.441	0.01		Metolachlor	180.368	0.5	
Sethoxydim	180.412	0.05	N	Millet, Grain			
Simazine	180.213	0.02	N	2,4-Dichlorophenoxy acetic acid	180.142B	0.5	
Sodium acifluorfen	180.383	0.02		Methoprene	180.359	5.0	
Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1)	180.489	0.20	L	Metolachlor	180.368	0.1	
Sulprofos	180.374	0.01		Millet, Proso, Grain			
Tebuthiuron	180.390	0.3		Atrazine	180.220	0.25	
Tetradifon	180.174	0.0		Carbaryl	180.169	3.0	
Thiabendazole	180.242	0.4		Dicamba	180.227	0.5	
Thidiazuron	180.403	0.05		Millet, Proso, Straw			
Thiobencarb	180.401	0.05		Carbaryl	180.169	100.0	
Thiophanate-methyl	180.371	1.0		Dicamba	180.227	0.5	
Triadimefon	180.410	0.04		Millet, Straw			
Triadimenol	180.450	0.01		2,4-Dichlorophenoxy acetic acid	180.142B	20.0	
Triasulfuron	180.459	0.02					
S,S,S-Tributyl phospho trithioate	180.272	0.002	N				
Trichlorfon	180.198	0.01	N				
Triclopyr	180.417	0.01					
Triflumazole	180.476	0.05					
Milk (Reflecting 0.25 ppm in Whole Milk)							
Permethrin	180.378	6.25					
Milk, Fat							
Amitraz	180.287	0.3					
Bifenthrin	180.442	1.0	T				
Chlorpyrifos	180.342	0.25					
Chlorpyrifos-methyl	180.419	1.25					
Cyfluthrin	139.23	2.50					
Cyfluthrin	180.436	2.5	L				
Fenbutatin oxide	180.362	0.1					
Fenvalerate	180.379	7.0					
Lambda-cyhalothrin	180.438	5.0	L				

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Milo, Fodder			
Metolachlor	180.368	0.5	
Milo, Forage			
Metolachlor	180.368	0.5	
Milo, Grain			
Metolachlor	180.368	0.1	
Mint			
Bentazon	180.355	1.0	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy)propionamide.	180.328	0.1	
Propargite	180.259	50.0	
Propiconazole	180.434	0.3	R
Mint, Hay			
Acephate	180.108	15.0	
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Chlorothalonil	180.275	2.0	R
Chlorpyrifos	180.342	0.8	
Clopyralid	180.431	3.0	
4-(2,4-Dichlorophenoxy)butyric acid.	180.331	0.2	
Methomyl	180.253	2.0	
Oxydemeton-methyl	180.330	12.5	
Paraquat dichloride	180.205	0.5	
Mint, Hay, Peppermint			
Oxyfluorfen	180.381	0.1	
Terbacil	180.209	2.0	
Mint, Hay, Spearmint			
Oxyfluorfen	180.381	0.1	
Terbacil	180.209	2.0	
Mint, Hay, Spent			
Bentazon	186.375	4.0	
Paraquat dichloride	186.4700	3.0	
Mint, Oil			
Chlorpyrifos	185.1000	8.0	
Mulberry			
Sesame plant, ground ...	180.1087	exempt	
Mushrooms			
Allethrin	180.1002	exempt	
Benomyl	180.294	10.0	
Chlorothalonil	180.275	1.0	
Chlorpyrifos	180.342	0.1	
Cyromazine	180.414	10.0	
Diazinon	180.153	0.75	
Dichlorvos	180.235	0.5	
Diflubenzuron	180.377	0.2	
Ethoprop	180.262	0.02	
Lindane	180.133	3.0	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Malathion	180.111	8.0	
Methoprene	180.359	1.0	
Methoxychlor	180.120	14.0	
Naled	180.215	0.5	
Nicotine	180.167	2.0	
Permethrin	180.378	6.0	
Propiconazole	180.434	0.1	
<i>Pseudomonas fluorescens</i> strain NCIB 12089.	180.1129	exempt	
Thiabendazole	180.242	40.0	
Zineb	180.115	7.0	X

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Mushrooms (Post-H)			
Benomyl	180.294	10.0	
Muskmelons			
Captan	180.103	25.0	
Dicofol	180.163	5.0	
Dinocap	180.341	0.1	N
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	40.0	
<i>N</i> -1-Naphthylphthalamic acid.	180.297	0.1	N
Urea	180.1117	exempt	
Muskmelons (Post-H)			
Allethrin	180.113	4.0	
Methyl bromide	180.123	20.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Mustard, Cabbage			
Iprodione	180.399	15.0	R
Mustard, Chinese			
Cyromazine	180.414	3.0	
Mustard, Greens			
Allethrin	180.1002	exempt	
Benomyl	180.294	0.2	
Captan	180.103	2.0	
Carbaryl	180.169	12.0	
Cryolite	180.145	7.0	
Dimethoate	180.204	2.0	
Endosulfan	180.182	2.0	
Ferbam	180.114	7.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Lindane	180.133	1.0	
Maneb	180.110	10.0	
Metaxyl	180.408	5.0	
Methomyl	180.253	6.0	
Mevinphos	180.157	1.0	
Nicotine	180.167	2.0	
Pentachloronitrobenzene	180.291	0.2	R
Zineb	180.115	10.0	X
Mustard, Seed			
Barban	180.268	0.1	L
Endosulfan	180.182	0.2	N
Parathion	180.121	0.2	
Nectarines			
Azinphos-methyl	180.154	2.0	
Captafol	180.267	2.0	
Captan	180.103	50.0	
Carbaryl	180.169	10.0	
Chlorothalonil	180.275	0.5	
Chlorpyrifos	180.342	0.05	
Clofentezine	180.446	1.0	
Cloprop	180.325	0.1	N
Cryolite	180.145	7.0	
Cyhexatin	180.144	4.0	
Diazinon	180.153	0.5	
Dicofol	180.163	10.0	
Dinocap	180.341	0.1	N
Z-8- and E-8-Dodecen-1-yl acetate and Z-8-dodecen-1-ol.	180.1073	exempt	
Endosulfan	180.182	2.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Ethion	180.173	1.0		2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Ferbam	180.114	7.0		<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N
Formetanate hydrochloride.	180.276	4.0		Diquat dibromide	180.226	0.02	
L-(+)-Lactic acid	180.1001	exempt		Diuron	180.106	0.1	N
Lindane	180.133	1.0		EPTC	180.117	0.1	N
Malathion	180.111	8.0		Fluridone	180.420	0.1	
Maneb	180.110	10.0		Glyphosate and its metabolites.	180.364	0.2	
Methomyl	180.253	5.0		Methidathion	180.298	0.05	
Methoxychlor	180.120	14.0		Oryzalin	180.304	0.05	
Myclobutanil	180.443	2	T	Paraquat dichloride	180.205	0.05	N
Nicotine	180.167	2.0		Phosmet	180.261	0.1	N
Norflurazon	180.356	0.1		Trifluralin	180.207	0.05	N
Paraquat dichloride	180.205	0.05	N	Nuts (180.142(f))			
Parathion	180.121	1.0		2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Phosalone	180.263	15.0		Oat/Barley Animal Feed Mixture (97% Oats, 3% Barley)			
Phosmet	180.261	5.0		Chlorpyrifos	180.342	15	T
Propargite	180.259	4.0		Oats			
Propiconazole	180.434	1.0		Chitosan	180.1072	exempt	
Tebuconazole	180.474	1.0		Gibberellic acid	180.1098	exempt	
Tetradifon	180.174	5.0		Indole-3-butyric acid	180.1099	exempt	
Triadimefon	180.410	4.0		Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Triforine	180.382	8.0		Methoprene	180.359	5.0	
Urea	180.1117	exempt		Parathion	180.121	1.0	
Zineb	180.115	7.0	X	Oats (Post-H)			
Ziram	180.116	7.0		Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Nectarines (Post-H)				Hydrocyanic acid	180.130	75.0	
Methyl bromide	180.123	20.0		Isobutyric acid	180.1030	exempt	
(<i>Z,Z</i>)-3,13-Octadecadien-1-ol acetate.	180.1055	exempt		Methyl bromide	180.123	50.0	
2-Phenylphenol	180.129	5.0		Piperonyl butoxide	180.127	8.0	
Nectarines (Pre- and Post-H)				Pyrethrins	180.128	1.0	
Benomyl	180.294	15.0		Oats, Flour			
Dicloran	180.200	20.0		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Iprodione	180.399	20.0		Oats, Fodder			
Thiophanate-methyl	180.371	15.0		Metalaxyl	180.408	2.0	
Nongrass Animal Feeds (Forage, Fodder, Straw, Hay) Group				Metolachlor	180.368	0.5	
Metolachlor	180.368	3.0		2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Oxadixyl	180.456	0.1		Oats, Fodder, Green			
Propyzamide	180.317	10.0		Carbaryl	180.169	100.0	
Nongrass Animal Feeds (Root and Tuber Vegetables) Group				Disulfoton	180.183	5.0	
Metalaxyl	180.408	15.0		Oats, Forage			
Noodle Products				Carboxin	180.301	0.5	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0		Chlorsulfuron	180.405	20.0	
Nutmeg (Post-H)				3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	9.0	
Hydrocyanic acid	180.130	250.0					
Nuts							
Benomyl	180.294	0.2	N				
Dalapon	180.150B	0.2					
Dichlobenil	180.231	0.15	N				
2,4-Dichlorophenoxy acetic acid.	180.142B	0.2					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
2,4-Dichlorophenoxy acetic acid.	180.142B	20.0	
Diuron	180.106	2.0	
Linuron	180.184	0.5	
MCPA	180.339	20.0	
Metalaxyl	180.408	2.0	
Methomyl	180.253	10.0	
Metolachlor	180.368	0.5	
Propiconazole	180.434	10.0	
Tebuconazole	180.474	0.10	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Trichlorfon	180.198	50.0	
Oats, Forage, Green			
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Picloram	180.292	1.0	
Triadimenol	180.450	2.5	
Oats, Grain			
Azinphos-methyl	180.154	0.2	
Benomyl	180.294	0.2	
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	0.0	
Carbofuran	180.254	0.2	
Chlorpyrifos-methyl	180.419	6.0	
Chlorsulfuron	180.405	0.1	
Dicamba	180.227	0.5	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	3.0	
2,4-Dichlorophenoxy acetic acid.	180.142B	0.5	
3',4'-Dichloropropion anilide.	180.274	0.2	
Disulfoton	180.183	0.75	
Diuron	180.106	1.0	
Endosulfan	180.182	0.1	N
Linuron	180.184	0.25	
Mancozeb	180.176	5.0	
MCPA	180.339	0.1	N
Metalaxyl	180.408	0.2	
Methomyl	180.253	1.0	
Metolachlor	180.368	0.1	
Paraquat dichloride	180.205	0.05	N
Picloram	180.292	0.5	
Propiconazole	180.434	0.1	
Tebuconazole	180.474	0.05	
Thifensulfuron methyl	180.439	0.05	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Triadimenol	180.450	0.05	
Tribenuron-methyl	180.451	0.05	
Trichlorfon	180.198	0.1	N
Oats, Grain (Post-H)			
Calcium cyanide	180.125	25.0	
Chloropicrin	180.1008	exempt	
Formaldehyde	180.1032	exempt	
Methylene chloride	180.1010	exempt	
Propionic acid	180.1023	exempt	
Sodium diacetate	180.1058	exempt	
Oats, Grain (Post-H)			
Allethrin	180.113	2.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Oats, Grain (Pre- and Post-H)			
Malathion	180.111	8.0	
Oats, Grain, Stored (Post-H)			
Methoxychlor	180.120	2.0	
Oats, Hay			
Diuron	180.106	2.0	
Linuron	180.184	0.5	
Methomyl	180.253	10.0	
Propiconazole	180.434	30.0	
Tebuconazole	180.474	0.10	
Oats, Milled Fractions			
2,4-Dichlorophenoxy acetic acid.	186.1450	2.0	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	186.3700	125.0	
Mancozeb	186.6300	20.0	
Metalaxyl	185.4000	1.0	
Metalaxyl	186.4000	1.0	
Oats, Milled Fractions (Exc. Flour)			
Chlorpyrifos-methyl	186.1050	130.0	
Chlorpyrifos-methyl	185.1050	130.0	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	185.1100	12.0	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	186.1100	12.0	
2,4-Dichlorophenoxy acetic acid.	185.1450	2.0	
Picloram	186.4850	3.0	
Picloram	185.4850	3.0	
Oats, Seed			
Carboxin	180.301	0.2	
Oats, Straw			
Azinphos-methyl	180.154	2.0	
Benomyl	180.294	0.2	
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	100.0	
Carbofuran	180.254	5.0	
Carboxin	180.301	0.2	
Chlorsulfuron	180.405	0.5	
Dicamba	180.227	0.5	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	9.0	
3',4'-Dichloropropion anilide.	180.274	0.75	
Disulfoton	180.183	5.0	
Diuron	180.106	2.0	
Endosulfan	180.182	0.2	N
Linuron	180.184	0.5	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Mancozeb	180.176	25.0		Ethylene	180.1016	exempt	
MCPA	180.339	2.0		Ferbam	180.114	7.0	
Metalaxyl	180.408	2.0		Gibberellic acid	180.1098	exempt	
Methomyl	180.253	10.0		Indole-3-butyric acid	180.1099	exempt	
Picloram	180.292	1.0		L(+)-Lactic acid	180.1001	exempt	
Propiconazole	180.434	1.0		Malathion	180.111	8.0	
Tebuconazole	180.474	0.10		Maneb	180.110	7.0	
Thifensulfuron methyl	180.439	0.10		Nicotine	180.167	2.0	
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N	Parathion	180.121	1.0	
Triadimenol	180.450	0.2		Sesame plant, ground ...	180.1087	exempt	
Tribenuron-methyl	180.451	0.10		Sulfuric acid	180.1019	exempt	
Trichlorfon	180.198	1.0		Tartar emetic	180.179	3.5	
Okra				Urea	180.1117	exempt	
Aqueous extract of sea-weed meal	180.1042	exempt		Zineb	180.115	7.0	X
Carbaryl	180.169	10.0		Ziram	180.116	7.0	
Cryolite	180.145	7.0		Onions (Post-H)			
Diphenamid	180.230	0.1	N	Methyl bromide	180.123	20.0	
Ethoprop	180.262	0.02	R	Onions, Dry			
Ethylene	180.1016	exempt		Thiophanate-methyl	180.371	3.0	
Fenamiphos	180.349	0.3		Onions, Dry Bulb			
Fenvalerate	180.379	0.1	R	Anilazine	180.158	1.0	
Lindane	180.133	1.0		Bensulide	180.241	0.1	N
Malathion	180.111	8.0		Bromoxynil	180.324	0.1	N
Mevinphos	180.157	0.25		Bromoxynil	180.324C	0.1	
Nicotine	180.167	2.0		Captan	180.103	25.0	
Parathion	180.121	1.0		Chlorothalonil	180.275	0.5	
Okra (Post-H)				Chloroxuron	180.216	0.1	
Methyl bromide	180.123	30.0		Chlorpyrifos	180.342	0.5	
Olives				Cypermethrin	180.418	0.10	T
Carbaryl	180.169	10.0		Fluazifop-butyl	180.411	0.5	
Diazinon	180.153	1.0		Folpet	180.191	15.0	
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide	180.328	0.1		Fosetyl-Al	180.415	0.5	
Diuron	180.106	1.0		Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide	180.199	300.0	R
Ethyl 1-naphthalene acetate	180.155	0.1		Iprodione	180.399	0.5	
Glyphosate and its metabolites	180.364	0.2		Lambda-cyhalothrin	180.438	0.1	
Methidathion	180.298	0.05		Maleic hydrazide	180.175	15.0	
1-Naphthaleneacetic acid	180.155	0.1	N	Mancozeb	180.176	0.5	
Oryzalin	180.304	0.05		Metalaxyl	180.408	3.0	
Oxyfluorfen	180.381	0.05		Metolachlor	180.368	1.0	
Paraquat dichloride	180.205	0.05		Oxydemeton-methyl	180.330	0.05	
Parathion	180.121	1.0	N	Oxyfluorfen	180.381	0.05	
Simazine	180.213	0.25		Paraquat dichloride	180.205	0.05	
Urea	180.1117	exempt		Pendimethalin	180.361	0.1	
Olives, Imported				Permethrin	180.378	0.1	
Glyphosate and its metabolites	185.3500	0.1		Thiram	180.132	0.5	
Onions				Vinclozolin	180.380	1.0	
Allethrin	180.1002	exempt		Onions, Dry Bulb (Only)			
Allidochlor	180.282	0.05	N	Lindane	180.133	1.0	
Aqueous extract of sea-weed meal	180.1042	exempt		Onions, Green			
Azinphos-methyl	180.154	2.0		Anilazine	180.158	10.0	
Captafol	180.267	0.1	N	Captan	180.103	50.0	
Chlorpropham	180.319	0.1	I	Chlorothalonil	180.275	5.0	
Chlorthal-dimethyl	180.185	1.0		Folpet	180.191	50.0	
Clethodim	180.458	0.2		Malathion	180.111	8.0	
Diazinon	180.153	0.75		Metalaxyl	180.408	10.0	
Dicloran	180.200	5.0		Methomyl	180.253	3.0	
Ethion	180.173	1.0		Mevinphos	180.157	0.25	
				Paraquat dichloride	180.205	0.05	
				Thiophanate-methyl	180.371	3.0	
				Oranges			
				Aldicarb	180.269	0.3	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Ametryn	180.258	0.1	N
Aqueous extract of seaweed meal	180.1042	exempt	
Carbon disulfide	180.467	0.1	
Dalapon	180.150	5.0	
Dicofol	180.163	10.0	
Disulfobenzuron	180.377	0.5	
Dimethoate	180.204	2.0	
Dioxathion	180.171	3.0	
Fenamiphos	180.349	0.6	
Formetanate hydrochloride	180.276	4.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Magnesium phosphide (residues calculated as phosphine)	180.375	0.01	
Malathion	180.111	8.0	
Methomyl	180.253	2.0	
Naled	180.215	3.0	
1-Naphthaleneacetic acid	180.155	0.1	
Oxydemeton-methyl	180.330	1.0	
Phosphamidon	180.239	0.75	
Propargite	180.259	5.0	
Sesame plant, ground	180.1087	exempt	
Simazine	180.213	0.25	
TEPP	180.347	0.01	N
Tetradifon	180.174	2.0	
Urea	180.1117	exempt	
Oranges (Post-H)			
Allethrin	180.113	4.0	
Ammonia	180.1003	exempt	
Methyl bromide	180.123	30.0	
2-Phenylphenol	180.129	10.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Oregano (Post-H)			
Hydrocyanic acid	180.130	250.0	
Oysters			
Carbaryl	180.169	0.25	
Palm, Oil			
Glyphosate and its metabolites	185.3500	0.1	
Papaya, Edible Pulp (No Peel)			
Mancozeb	180.176	10.0	
Papaya, Whole			
Mancozeb	180.176	10.0	
Permethrin	180.378	1.0	R
Papayas			
Benomyl	180.294B	3.0	R
Chlorothalonil	180.275	15.0	
Diuron	180.106	0.5	
Fenbutatin oxide	180.362	2.0	
Ferbam	180.114	7.0	
Glyphosate and its metabolites	180.364	0.2	
Magnesium phosphide (residues calculated as phosphine)	180.375	0.01	
Malathion	180.111	1.0	
Maneb	180.110	10.0	
Metalaxyl	180.408	0.1	R
Oryzalin	180.304	0.05	R

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Oxyfluorfen	180.381	0.05	R
Paraquat dichloride	180.205	0.05	N
Papayas (Post-H)			
Methyl bromide	180.123	20.0	
Thiabendazole	180.242	5.0	
Paprika (Post-H)			
Hydrocyanic acid	180.130	250.0	
Parsley			
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal	180.1042	exempt	
Carbaryl	180.169	12.0	
Diazinon	180.153	0.75	
Linuron	180.184	0.25	R
Methomyl	180.253	6.0	
Methyl parathion	180.121	1.0	
Mevinphos	180.157	1.0	
Nicotine	180.167	2.0	
Prometryn	180.222	0.1	
Zineb	180.115	7.0	X
Parsley, Dehydrated			
Mevinphos	185.4200	4.0	
Parsley, Leaves			
Azinphos-methyl	180.154	5.0	
Parsley, Roots			
Azinphos-methyl	180.154	2.0	
Parsnips			
Allethrin	180.1002	exempt	
Carbaryl	180.169	5.0	
Diazinon	180.153	0.5	
Glyphosate and its metabolites	180.364	0.2	
Malathion	180.111	8.0	
Parsnips, Greens (Alone)			
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Parsnips, Roots			
Chlorothalonil	180.275	1.0	
Parsnips, Roots (Post-H)			
Methyl bromide	180.123	30.0	
Parsnips, Tops			
Linuron	180.184	0.5	
Parsnips, with Tops			
Linuron	180.184	0.5	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Parsnips, without Tops			
Linuron	180.184	0.5	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Peaches			
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Captan	180.267	30.0	
Captan	180.103	50.0	
Carbaryl	180.169	10.0	
Chlorothalonil	180.275	0.5	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Chlorpyrifos	180.342	0.05		Peaches (Pre- and Post-H)			
Clofentezine	180.446	1.0		Benomyl	180.294	15.0	
Cloprop	180.325	0.1	N	Dicloran	180.200	20.0	
Cryolite	180.145	7.0		Iprodione	180.399	20.0	
Cyhexatin	180.144	4.0		Thiophanate-methyl	180.371	15.0	
Dalapon	180.150	15.0		Peanuts			
Diazinon	180.153	0.7		Acephate	180.108	0.2	
Dichlone	180.118	3.0		Alachlor	180.249	0.05	
Dicofol	180.163	10.0		Aldicarb	180.269	0.05	
Dinocap	180.341	0.1	N	<i>Alternaria cassiae</i>	180.1001	exempt	
Diphenamid	180.230	0.1	N	Aqueous extract of sea-weed meal	180.1042	exempt	
Diuron	180.106	0.1	N	Benfluralin	180.208	0.05	N
Z-8- and E-8-Dodecen-1-yl acetate and Z-8-dodecen-1-ol	180.1073	exempt		Benomyl	180.294	0.2	
Dodine	180.172	5.0		Bentazon	180.355	0.05	
Endosulfan	180.182	2.0		Carbaryl	180.169	5.0	
Ethion	180.173	1.0		Carbofuran	180.254	4.0	
Fenamiphos	180.349	0.25		Carboxin	180.301	0.2	N
Fenbutatin oxide	180.362	10.0		Chloramben	180.266	0.1	
Ferbam	180.114	7.0		Chlorimuron ethyl	180.429	0.02	
Formetanate hydrochloride	180.276	5.0		Chlorothalonil	180.275	0.3	
Glyodin	180.124	5.0		Chlorpyrifos	180.342	0.2	
L(+)-Lactic acid	180.1001	exempt		Cryolite	180.145	7.0	
Lindane	180.133	1.0		Diazinon	180.153	0.75	
Malathion	180.111	8.0		4-(2,4-Dichlorophenoxy)butyric acid	180.331	0.2	N
Maneb	180.110	10.0		Diphenamid	180.230	0.1	N
Methidathion	180.298	0.05	N	Disul-Na	180.102	6.0	
Methiocarb	180.320	15.0		Disulfoton	180.183	0.75	
Methomyl	180.253	5.0		Ethalfuralin	180.416	0.05	
Methoxychlor	180.120	14.0		Ethoprop	180.262	0.02	N
Mevinphos	180.157	1.0		Ethylene	180.1016	exempt	
Myclobutanil	180.443	2	T	Fenamiphos	180.349	0.02	
Naled	180.215	0.5		Fenoxaprop-ethyl	180.430	0.05	
Nicotine	180.167	2.0		Fentin hydroxide	180.236	0.05	N
Norflurazon	180.356	0.1		Fenvalerate	180.379	0.02	
Oxytetracycline	180.337	0.35		Ferbam	180.114	7.0	
Paraquat dichloride	180.205	0.05	N	Fluchloralin	180.363	0.05	
Parathion	180.121	1.0		Flutolanil	180.484	0.5	
Permethrin	180.378	5.0		Fonofos	180.221	0.1	N
Phosalone	180.263	15.0		Gibberellic acid	180.1098	exempt	
Phosmet	180.261	10.0		Glyphosate and its metabolites	180.364	0.1	
Propargite	180.259	7.0		Imazethapyr	180.447	0.1	
Propiconazole	180.434	1.0		Indole-3-butyric acid	180.1099	exempt	
Sesame plant, ground ...	180.1087	exempt		Iprodione	180.399	0.5	
Simazine	180.213	0.25		Lambda-cyhalothrin	180.438	0.05	L
Tebuconazole	180.474	1.0		Magnesium phosphide (residues calculated as phosphine)	180.375	0.1	
TEPP	180.347	0.01	N	Mancozeb	180.176	0.5	
Terbacil	180.209	0.1		Metalaxyl	180.408	0.2	
Tetrachlorvinphos	180.252	0.1		Methomyl	180.253	0.1	N
Tetradifon	180.174	5.0		Methoprene	180.359	2.0	
Thiram	180.132	7.0		Methoxychlor	180.120	14.0	
Triadimefon	180.410	4.0		Metiram	180.319	0.5	I
Triforine	180.382	8.0		Metolachlor	180.368	0.5	
Urea	180.1117	exempt		Monocrotophos	180.296	0.05	
Zinc sulfate, basic	180.244	30.0		N-1-Naphthylphthalamic acid	180.297	0.1	N
Zineb	180.115	7.0	X	Norflurazon	180.356	0.05	
Ziram	180.116	7.0		Oxamyl	180.303	0.2	
Peaches (Post-H)				Paraquat dichloride	180.205	0.05	
Allethrin	180.113	4.0		Parasitoid insects	180.1101	exempt	
Methyl bromide	180.123	20.0		Parathion	180.121	1.0	
(Z,Z)-3,13-Octadecadien-1-ol acetate	180.1055	exempt		Pendimethalin	180.361	0.1	
2-Phenylphenol	180.129	20.0		Pentachloronitrobenzene	180.319	1.0	I
Piperonyl butoxide	180.127	8.0		Phorate	180.206	0.1	
Pyrethrins	180.128	1.0					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Propargite	180.259	0.1	T
Propiconazole	180.434	0.2	
Propionic acid	180.1023	exempt	
Sethoxydim	180.412	25.0	
Sodium acifluorfen	180.383	0.1	
Tebuconazole	180.474	0.1	N
Thiophanate-methyl	180.371	0.2	
Trichlorfon	180.198	0.05	
<i>Trichoderma viride</i> <i>sensu</i> Bisby	180.1102	exempt	N
Trifluralin	180.207	0.05	
Urea	180.1117	exempt	
Vernolate	180.240	0.1	N
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Peanuts (Post-H)			
Aluminum phosphide (residues calculated as phosphide)	180.225	0.1	N
Hydrocyanic acid	180.130	25.0	
Methyl bromide	180.123	200.0	
Peanuts (Pre- and Post-H)			
Malathion	180.111	8.0	N
Peanuts, Forage			
Alachlor	180.249	3.0	N
Benomyl	180.294	15.0	
Bentazon	180.355	3.0	
Chloramben	180.266	0.1	
Diazinon	180.153	40.0	
Diphenamid	180.230	2.0	
Fluchloralin	180.363	0.05	
Fonofos	180.221	0.1	
Glyphosate and its metabolites	180.364	0.5	
Iprodione	180.399	150.0	
Malathion	180.111	135.0	
Methoxychlor	180.120	100.0	
Metolachlor	180.368	30.0	
Oxamyl	180.303	2.0	
Pendimethalin	180.361	0.1	
Propargite	180.259	10.0	
Thiophanate-methyl	180.371	15.0	
Vernolate	180.240	0.1	
Peanuts, Hay			
Acetamide	180.464	0.01	N
Alachlor	180.249	3.0	
Benomyl	180.294	15.0	
Bentazon	180.355	3.0	
Carbaryl	180.169	100.0	
Carboxin	180.301	0.2	
Diazinon	180.153	10.0	
Diphenamid	180.230	2.0	
Disul-Na	180.102	6.0	
Disulfoton	180.183	5.0	
Ethoprop	180.262	0.02	
Fluchloralin	180.363	0.05	
Flutolanil	180.484	15.0	
Fonofos	180.221	0.1	
Formaldehyde	180.1032	exempt	
Glyphosate and its metabolites	180.364	0.5	
Iprodione	180.399	150.0	
Malathion	180.111	135.0	
Metalaxyl	180.408	20.0	
Metolachlor	180.368	30.0	
<i>N</i> -1-Naphthylphthalamic acid	180.297	0.1	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Norflurazon	180.356	5.50	T
Oxamyl	180.303	2.0	
Paraquat dichloride	180.205	0.5	
Pendimethalin	180.361	0.1	
Phorate	180.206	0.3	
Propargite	180.259	10.0	
Propiconazole	180.434	20.0	
Propionic acid	180.1023	exempt	
Pyridate	180.31	0.03	
Thiophanate-methyl	180.371	15.0	
Vernolate	180.240	0.1	N
Peanuts, Hulls			
Acephate	180.108	5.0	N
Alachlor	180.249	1.5	
Aldicarb	180.269	0.5	
Benomyl	180.294	2.0	
ntazon	180.355	0.3	
Captafol	180.267	2.0	
Carbofuran	180.254	10.0	
Carboxin	180.301	0.2	
Chlorimuron ethyl	180.429	0.05	
Chlorpyrifos	180.342	2.0	
Diazinon	180.153	10.0	
Diphenamid	180.230	0.5	
Disul-Na	180.102	6.0	
Disulfoton	180.183	0.3	
Ethalfuralin	180.416	0.05	
Fenamiphos	180.349	0.4	
Fenoxaprop-ethyl	180.430	0.05	
Fentin hydroxide	180.236	0.4	
Fenvalerate	180.379	0.1	
Fluchloralin	180.363	0.1	
Flutolanil	180.484	5.0	
Fonofos	180.221	0.1	N
Glyphosate and its metabolites	180.364	0.5	
Imazethapyr	180.447	0.1	L
Iprodione	180.399	7.0	
Lambda-cyhalothrin	180.438	0.05	
Metalaxyl	180.408	2.0	
Methomyl	180.253	0.1	
Methoprene	180.359	40.0	
Metolachlor	180.368	6.0	
Monocrotophos	180.296	0.5	
N-1-Naphthylphthalamic acid	180.297	0.1	
Norflurazon	180.356	1.5	
Oxamyl	180.303	0.2	
Paraquat dichloride	180.205	0.2	
Pendimethalin	180.361	0.25	
Propargite	180.259	10.0	
Propiconazole	180.434	1.0	
Pyridate	180.462	0.03	
Sethoxydim	180.412	5.0	
Sodium acifluorfen	180.383	0.1	
Tebuconazole	180.474	4.0	
Thiophanate-methyl	180.371	2.0	
Trichlorfon	180.198	4.0	
Trifluralin	180.207	0.1	
Vernolate	180.240	0.1	
Peanuts, Meal			
Flutolanil	185.3385	1.0	
Metalaxyl	186.4000	1.0	
Peanuts, Meat (Hulls Removed)			
Acetamide	180.464	0.01	
Cadre	180.490	0.1	
Captafol	180.267	0.05	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Pyridate	180.462	0.03		Nicotine	180.167	2.0	
Peanuts, Oil				Norflurazon	180.356	0.1	
Chlorpyrifos	185.1000	0.4		Oxadiazon	180.346	0.05	N
Peanuts, Shell				Oxamyl	180.303	2.0	
Removed (Post-H)				Oxydemeton-methyl	180.330	0.3	
Piperonyl butoxide	180.127	8.0		Oxyfluorfen	180.381	0.05	
Pyrethrins	180.128	1.0		Oxytetracycline	180.337	0.35	
Peanuts, Soapstock				Paraquat dichloride	180.205	0.05	N
Metalaxyl	186.4000	2.0		Parathion	180.121	1.0	
Sethoxydim	186.2800	75.0		Pelargonic acid	180.1159	exempt	
Peanuts, Soapstock,				Permethrin	180.378	3.0	
Fatty Acids				2-Phenylphenol	180.129	25.0	
Carbofuran	186.600	24.0		Phosalone	180.263	10.0	
Peanuts, Vines				Phosmet	180.261	10.0	
Metalaxyl	180.408	20.0		Propargite	180.259	3.0	
Norflurazon	180.356	1.5		Propyzamide	180.317	0.1	
Paraquat dichloride	180.205	0.5		Simazine	180.213	0.25	
Phorate	180.206	0.3		Terbacil	180.209	0.1	
Peanuts, Vines, Hay				Tetrachlorvinphos	180.252	10.0	
Mancozeb	180.176	65.0		Tetradifon	180.174	5.0	
Trichlorfon	180.198	4.0		Triadimefon	180.410	1.0	
Pears				Triflumazole	180.476	0.5	
Abamectin	180.449	0.02		Urea	180.1117	exempt	
Allethrin	180.1002	exempt		Zineb	180.115	7.0	X
Amitraz	180.287	3.0		Ziram	180.116	7.0	
Ammonium sulphamate	180.188	5.0		Pears (Post-H)			
Azinphos-methyl	180.154	2.0		Allethrin	180.113	4.0	
Captan	180.103	25.0		Copper carbonate	180.136	3.0	
Chinomethionat	180.338	0.05	N	Methyl bromide	180.123	5.0	
Chlorpyrifos	180.342	0.05		Piperonyl butoxide	180.127	8.0	
Clofentezine	180.446	0.5		Pyrethrins	180.128	1.0	
Cryolite	180.145	7.0		Thiabendazole	180.242	10.0	
Cyhexatin	180.144	2.0		Pears (Pre- and Post-			
Dalapon	180.150	3.0		H)			
Diazinon	180.153	0.5		Benomyl	180.294	7.0	
Dichlobenil	180.231	0.15	N	Ethoxyquin	180.178	3.0	
2,4-Dichlorophenoxy	180.142A	5.0		Peas			
acetic acid.				Allidochlor	180.282	0.05	N
Dicofol	180.163	5.0		Aqueous extract of sea-	180.1042	exempt	
Dimethoate	180.204	2.0		weed meal.			
Dinocap	180.341	0.1	N	Barban	180.268	0.1	L
Dioxathion	180.171	5.0		Chitosan	180.1072	exempt	
Diuron	180.106	1.0		Cryolite	180.145	7.0	
Dodine	180.172	5.0		Di-allate	180.277	0.05	X
Endosulfan	180.182	2.0		Dimethoate	180.204	2.0	
Ethion	180.173	2.0		Disulfoton	180.183	0.75	
Ethyl 1-naphthalene ace-	180.155	1.0		Diuron	180.106	1.0	
tate.				Fenvalerate	180.379	1.0	
Fenarimol	180.421	0.1		Ferbam	180.114	7.0	
Fenbutatin oxide	180.362	15.0		Malathion	180.111	8.0	
Fenvalerate	180.379	2.0		MCPB	180.318	0.1	N
Ferbam	180.114	7.0		Methomyl	180.253	5.0	
Formetanate hydro-	180.276	3.0		Methoxychlor	180.120	14.0	
chloride.				Metribuzin	180.332	0.1	
Glyodin	180.124	5.0		Mevinphos	180.157	0.25	
Hexythiazox	180.448	0.3		Nicotine	180.167	2.0	
Lindane	180.133	1.0		Oxadixyl	180.456	0.1	
Malathion	180.111	8.0		Oxydemeton-methyl	180.330	0.3	
Mancozeb	180.176	10.0		Parathion	180.121	1.0	
Methomyl	180.253	4.0	R	Phosmet	180.261	0.5	
Methoxychlor	180.120	14.0		Propham	180.319	0.1	I
Mevinphos	180.157	0.5		Sesame plant, ground ...	180.1087	exempt	
1-Naphthaleneacetamide	180.309	0.1	N	Tri-allate	180.314	0.05	N
1-Naphthaleneacetic	180.155	1.0		Urea	180.1117	exempt	
acid.				Zineb	180.115	7.0	X
				Ziram	180.116	7.0	
				Peas (Pod Removed)			
				Propachlor	180.211	0.2	

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Peas (Post-H)			
Methyl bromide	180.123	50.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Peas (Shell Removed)			
Dalapon	180.150	15.0	
Diazinon	180.153	0.5	
Pendimethalin	180.361	0.1	
Peas (Succulent)			
Bentazon	180.355	0.5	
Captan	180.103	2.0	
Chlorpropham	180.319	0.3	
Clomazone	180.425	0.05	
Endosulfan	180.182	2.0	
Ethylene	180.1016	exempt	
Naled	180.215	0.5	
Paraquat dichloride	180.205	0.05	
Sethoxydim	180.412	10.0	
Peas (Sweet)			
Ethylene	180.1016	exempt	
Peas, Black-Eyed			
Azinphos-methyl	180.154	0.3	
Peas, Black-Eyed (Post-H)			
Methyl bromide	180.123	50.0	
Peas, Chick, Seed, Dry			
Triadimefon	180.410	0.1	
Peas, Cowpeas			
Carbaryl	180.169	5.0	
Methoxychlor	180.120	100.0	
Peas, Cowpeas, Forage			
Carbaryl	180.169	100.0	
Peas, Cowpeas, Hay			
Carbaryl	180.169	100.0	
Peas, Dried			
Bentazon	180.355	0.05	
Captan	180.103	2.0	
Chlorpropham	180.319	0.3	
Diclofop-methyl	180.385	0.1	
Ethalfuralin	180.416	0.05	
Fenvalerate	180.379	0.25	
Metribuzin	180.332	0.05	
Sethoxydim	180.412	40.0	
Peas, Dried (Post-H)			
Hydrocyanic acid	180.130	25.0	
Peas, Dry, Vinehay			
Bentazon	180.355	3.0	
Peas, Forage			
Allidochlor	180.282	0.05	
Bentazon	180.355	0.3	
Chlorpyrifos	180.342	0.7	
Di-allate	180.277	0.05	
Diuron	180.106	2.0	
Fonofos	180.221	0.1	
Metribuzin	180.332	0.5	
Oxydemeton-methyl	180.330	2.0	
Paraquat dichloride	180.205	0.2	
Parathion	180.121	1.0	
Phosmet	180.261	10.0	
Propachlor	180.211	1.5	
Sethoxydim	180.412	20.0	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Tri-allate	180.314	0.05	N
Peas, Hay			
Di-allate	180.277	0.05	X
Diuron	180.106	2.0	
Oxydemeton-methyl	180.330	8.0	
Paraquat dichloride	180.205	0.8	
Phosmet	180.261	10.0	
Sethoxydim	180.412	40.0	
Tri-allate	180.314	0.05	N
Peas, Pigeon			
Chloramben	180.266	0.1	
Paraquat bis(methyl sulfate)	180.205	0.05	R
Prometryn	180.222	0.25	
Peas, Pigeon, Forage			
Chloramben	180.266	0.1	
Peas, Southern			
Butralin	180.358	0.1	
Sodium chlorate	180.1020	exempt	
Peas, Southern, Black-Eyed			
Chlorthal-dimethyl	180.185	2.0	
Peas, Unshelled			
Dalapon	180.150	15.0	
Peas, Vines			
Carbaryl	180.169	100.0	
Diazinon	180.153	25.0	
Disulfoton	180.183	5.0	
Malathion	180.111	8.0	
MCPA	180.339	0.1	N
Methomyl	180.253	10.0	
Mevinphos	180.157	1.0	
Pendimethalin	180.361	0.1	
Peas, Vines, Hay			
Diazinon	180.153	10.0	
Fonofos	180.221	0.1	N
Formaldehyde	180.1032	exempt	
MCPA	180.339	0.1	N
Metribuzin	180.332	0.05	
Propionic acid	180.1023	exempt	
Peas, Vines, Hay (Pre-H)			
Malathion	180.111	8.0	
Peas, Vines, with Pod			
Dalapon	180.150	15.0	
Peas, Vines, without Pod			
Dalapon	180.150	15.0	
Peas, Winter, Dry			
Propyzamide	180.317	0.05	R
Peas, with Pods			
Carbaryl	180.169	10.0	
Pendimethalin	180.361	0.1	
Pecans			
Aldicarb	180.269	0.5	
Azinphos-methyl	180.154	0.3	
Carbaryl	180.169	1.0	
Cypermethrin	180.418	0.05	T
Dalapon	180.150	0.1	
Dialifor	180.326	0.01	N
Diazinon	180.153	0.5	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Dicofol	180.163	5.0		Bacteriophages of <i>Xanthomonas campestris</i> subsp. <i>viscatoria</i>	180.31	exempt	
Dicrotophos	180.299	0.05		Benomyl	180.294	0.2	
Dimethoate	180.204	0.1		Captan	180.103	25.0	
Disulfoton	180.183	0.75		Carbaryl	180.169	10.0	
Dodine	180.172	0.3		Carbofuran	180.254	1.0	
Endosulfan	180.182	0.2	N	Chloramben	180.266	0.1	
Ethion	180.173	0.1		Chlorpyrifos	180.342	1.0	
Fenarimol	180.421	0.1		Chlorthal-dimethyl	180.185	2.0	
Fenbuconazole	180.480	0.1	L	Clomazone	180.425	0.05	
Fenbutatin oxide	180.362	0.5		Cryolite	180.145	7.0	
Fentin hydroxide	180.236	0.05	N	Cyfluthrin	180.436	0.5	L
Fenvalerate	180.379	0.2		Cyromazine	180.414	4.0	
Fluazifop-butyl	180.411	0.05		Diazinon	180.153	0.5	
Lindane	180.133	0.01	N	Dicofol	180.163	5.0	
Magnesium phosphide (residues calculated as phosphine)	180.375	0.1		Dimethoate	180.204	2.0	
Malathion	180.111	8.0		Disulfoton	180.183	0.1	
Methidathion	180.298	0.05	N	Endosulfan	180.182	2.0	
Methomyl	180.253	0.1		Ethephon	180.300	30.0	
Metiram	180.217	0.5	N	Ethion	180.173	1.0	
Norflurazon	180.356	0.1		Ethylene	180.1016	exempt	
Oxadiazon	180.346	0.05	N	Fenvalerate	180.379	1.0	
Parathion	180.121	0.1	N	Ferbam	180.114	7.0	
Phosalone	180.263	0.05	N	Gibberellic acid	180.1098	exempt	
Propiconazole	180.434	0.1		Indole-3-butyric acid	180.1099	exempt	
Propylene oxide	180.491	150	L	Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide	180.199	25.0	
Sesame plant, ground ...	180.1087	exempt		L(+)-Lactic acid	180.1001	exempt	
Simazine	180.213	0.1	N	Lindane	180.133	1.0	
Terbacil	180.209	0.1		Magnesium phosphide (residues calculated as phosphine)	180.375	0.01	
Thiophanate-methyl	180.371	0.2		Malathion	180.111	8.0	
Ziram	180.116	0.1		Maneb	180.110	7.0	
Pecans (Post-H)				Methamidophos	180.315	1.0	
Aluminum phosphide (residues calculated as phosphide)	180.225	0.1		Methomyl	180.253	2.0	
Hydrocyanic acid	180.130	25.0		Methoxychlor	180.120	14.0	
Methyl bromide	180.123	200.0		Mevinphos	180.157	0.25	
Pepper, Black (Post-H)				Naled	180.215	0.5	
Hydrocyanic acid	180.130	250.0		Nicotine	180.167	2.0	
Pepper, Red (Post-H)				Oxydemeton-methyl	180.330	0.75	
Hydrocyanic acid	180.130	250.0		Parathion	180.121	1.0	
Pepper, White (Post-H)				Pentachloronitrobenzene	180.319	0.1	I
Hydrocyanic acid	180.130	250.0		Phosphamidon	180.239	0.5	
Peppermint				Streptomycin	180.245	0.25	
Gibberellic acid	180.1098	exempt		Trichlorfon	180.198	0.1	N
Glyphosate and its metabolites	180.364	200		Urea	180.1117	exempt	
Malathion	180.111	8.0		Zineb	180.115	7.0	X
Sethoxydim	180.412	30.0	L	Ziram	180.116	7.0	
Tetradifon	180.174	100.0		Peppers (Post-H)			
Peppermint, Hay				Methyl bromide	180.123	30.0	
Dicofol	180.163	25.0		Peppers, Bell			
Diuron	180.106	2.0		Abamectin	180.449	0.01	
Fonofos	180.221	0.1	N	Acephate	180.108	4.0	
Oxamyl	180.303	10.0		L(+)-Lactic acid	180.1001	exempt	
Trifluralin	180.207	0.05	N	Metolachlor	180.368	0.1	
Peppers				Oxamyl	180.303	3.0	
Acephate	180.108	4.0		Permethrin	180.378	1.0	
Allethrin	180.1002	exempt		Sesame plant, ground ...	180.1087	exempt	
Ammonium nitrate	180.1018	exempt		Triforine	180.382	5.0	
Aqueous extract of sea-weed meal	180.1042	exempt		Urea	180.1117	exempt	
Azinphos-methyl	180.154	0.3		Vinclozolin	180.380	3.0	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Peppers, Bell (Post-H)			
2-Phenylphenol	180.129	10.0	
Peppers, Chili			
L(+)-Lactic acid	180.1001	exempt	R
Metolachlor	180.368	0.5	
Sodium chlorate	180.1020	exempt	
Urea	180.1117	exempt	
Peppers, Chili, Bohemian			
Bentazon	180.355	0.05	
Peppers, Cubanelle			
Metolachlor	180.368	0.1	R
Peppers, Not Bell			
Fenamiphos	180.349	0.6	R
Oxamyl	180.303	5.0	
Urea	180.1117	exempt	
Peppers, Tabasco			
Fluazifop-butyl	180.411	1.0	R
Metolachlor	180.368	0.5	
Persimmons			
N,N-Diethyl-2-(1-naphthalenyloxy)propionamide.	180.328	0.1	
Glyphosate and its metabolites.	180.364	0.2	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Oxyfluorfen	180.381	0.05	
Pie Mixes			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Pimentos			
Captan	180.103	25.0	N
Chlorthal-dimethyl	180.185	2.0	
Dicofol	180.163	5.0	
Ethion	180.173	1.0	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Pimentos (Post-H)			
Methyl bromide	180.123	30.0	
Pineapples			
Ametryn	180.258	0.25	N
Atrazine	180.220	0.25	
Bromacil	180.210	0.1	
Captafol	180.267	0.1	
Carbaryl	180.169	2.0	
Cloprop	180.325	0.3	
Dalapon	180.150	3.0	
Diazinon	180.153	0.5	
Disulfoton	180.183	0.75	
Diuron	180.106	1.0	
Endosulfan	180.182	2.0	
EPTC	180.117	0.1	
Ethephon	180.300	2.0	
Ethoprop	180.262	0.02	
Fenamiphos	180.349	0.3	
Fosetyl-Al	180.415	0.1	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Glyphosate and its metabolites.	180.364	0.1	
Hexazinone	180.396	0.5	
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	25.0	
Lindane	180.133	1.0	
Malathion	180.111	8.0	
Metalaxyl	180.408	0.1	
Methoxychlor	180.120	14.0	
1-Naphthaleneacetic acid.	180.155	0.05	
(2-Naphthyloxy)acetic acid.	180.148	0.05	N
Oxamyl	180.303	1.0	
Paraquat dichloride	180.205	0.05	N
Parathion	180.121	1.0	
Propiconazole	180.434	0.1	T
Quizalofop-ethyl	180.441	0.1	R
Pineapples (Post-H)			
Allethrin	180.113	4.0	
Benomyl	180.294	35.0	
Methyl bromide	180.123	20.0	
2-Phenylphenol	180.129	10.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Pineapples, Bran			
Carbaryl	186.550	20.0	
Cloprop	186.850	3.0	
Fenamiphos	186.2950	10.0	
Oxamyl	186.4575	6.0	
Pineapples, Bran (LS. F.)			
Disulfoton	186.1950	5.0	
Pineapples, Fodder			
Ametryn	180.258	0.25	
Atrazine	180.220	10.0	
Cloprop	180.325	0.2	
Ethephon	180.300	3.0	
Ethoprop	180.262	0.02	N
Fosetyl-Al	180.415	0.1	
Metalaxyl	180.408	0.1	
Propiconazole	180.434	0.1	T
Pineapples, Foliage			
Disulfoton	180.183	5.0	
Pineapples, Forage			
Ametryn	180.258	0.25	
Atrazine	180.220	10.0	
Cloprop	180.325	0.2	
Diazinon	180.153	40.0	
Ethephon	180.300	3.0	
Ethoprop	180.262	0.02	N
Fosetyl-Al	180.415	0.1	
Metalaxyl	180.408	0.1	
Oxamyl	180.303	10.0	
Pineapples, Fresh			
Triadimefon	180.410	3.0	
Pistachio, Nuts			
Glyphosate and its metabolites.	180.364	0.2	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1		Tetradifon	180.174	5.0	
Permethrin	180.378	0.1		Triadimefon	180.410	4.0	
Propylene oxide	180.491	150	L	Zineb	180.115	7.0	X
Pistachios				Plums (Fresh Prunes) (Post-H)			
Azinphos-methyl	180.154	0.3		Allethrin	180.113	4.0	
Benomyl	180.294	0.2	R	Methyl bromide	180.123	20.0	
Carbaryl	180.169	1.0		2-Phenylphenol	180.129	20.0	
2,4-Dichlorophenoxy acetic acid.	180.142B	0.2		Piperonyl butoxide	180.127	8.0	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1		Pyrethrins	180.128	1.0	
Oryzalin	180.304	0.05		Plums (Fresh Prunes) (Pre- and Post-H)			
Oxadiazon	180.346	0.05	N	Benomyl	180.294	15.0	
Oxyfluorfen	180.381	0.05		Dicloran	180.200	15.0	
Paraquat dichloride	180.205	0.05		Plums (Pre- and Post-H)			
Phosmet	180.261	0.1	R	Iprodione	180.399	20.0	
Urea	180.1117	exempt		Malathion	180.111	8.0	
Pistachios (Post-H)				(<i>Z,Z</i>)-3,13-Octadeca dien-1-ol acetate.	180.1055	exempt	
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1		Thiophanate-methyl	180.371	15.0	
Methyl bromide	180.123	200.0		Pomegranates			
Plantains				Azinphos-methyl	180.154	0.1	R
Fonofos	180.221	0.1		<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01		Glyphosate and its metabolites.	180.364	0.2	
Plums				Methomyl	180.253	0.2	N
Chlorothalonil	180.275	0.2		Oryzalin	180.304	0.05	
Chlorpyrifos	180.342	0.05		Oxyfluorfen	180.381	0.05	
Dalapon	180.150	1.0		Pomegranates (Post-H)			
Endosulfan	180.182	2.0		Methyl bromide	180.123	100.0	
Fenbutatin oxide	180.362	4.0		Poppy (Post-H)			
Mevinphos	180.157	1.0		Hydrocyanic acid	180.130	250.0	
Propiconazole	180.434	1.0		Potato (From Seed Piece Treatment)			
Sesame plant, ground	180.1087	exempt		Streptomycin	180.245	0.25	
Simazine	180.213	0.25		Potato Chips			
Triflorine	180.382	3.0		Imidacloprid	185.900	0.4	
Urea	180.1117	exempt		Maleic hydrazide	185.3900	160.0	
Plums (Fresh Prunes)				Potatoes			
Azinphos-methyl	180.154	2.0		Aldicarb	180.269	1.0	
Captan	180.267	2.0		Allethrin	180.1002	exempt	
Captan	180.103	100.0		Allidochlor	180.282	0.05	N
Carbaryl	180.169	10.0		Ametryn	180.258	0.25	
Cryolite	180.145	7.0		Ammonium nitrate	180.1018	exempt	
Cyhexatin	180.144	1.0		Anilazine	180.158	1.0	
Diazinon	180.153	0.5		Aqueous extract of seaweed meal.	180.1042	exempt	
Dichlorone	180.118	3.0		Azinphos-methyl	180.154	0.3	
Dicofol	180.163	5.0		<i>Bacillus thuringiensis</i> subspecies <i>tenebrionis</i> δ-endotoxin as produced in potato by CryIIIA and the genetic material necessary for its production.	180.1147	exempt	
Ethion	180.173	2.0		<i>Beauveria bassiana</i>	180.1146	exempt	
Ferbam	180.114	7.0		Captan	180.267	0.5	
Formetanate hydrochloride.	180.276	2.0		Captan	180.103	25.0	I
Lindane	180.133	1.0		Carbaryl	180.169	0.2	N
Methoxychlor	180.120	14.0		Carbofuran	180.254	2.0	
Nicotine	180.167	2.0					
Norflurazon	180.356	0.1					
Oxydemeton-methyl	180.330	1.0					
Paraquat dichloride	180.205	0.05	N				
Parathion	180.121	1.0					
Phosalone	180.263	15.0					
Phosmet	180.261	5.0					
Propargite	180.259	7.0					

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Chlorothalonil	180.275	0.1	
Chlorthal-dimethyl	180.185	2.0	
Clethodim	180.458	0.5	T
Cryolite	180.145	2.0	
Dalapon	180.150	10.0	
Di-allate	180.277	0.05	X
Diazinon	180.153	0.1	
2,4-Dichlorophenoxy acetic acid.	180.142A	0.2	
Dicloran	180.200	0.25	
Dimethoate	180.204	0.2	
N-(4,6-Dimethoxy-pyrimidin-2-yl)aminocarbonyl)-3-(ethylsulfonyl)-2-pyridinesulfonamide.	180.478	0.1	
Diphenamid	180.230	1.0	
Diquat dibromide	180.226	0.1	
Disul-Na	180.102	6.0	
Disulfoton	180.183	0.75	
Diuron	180.106	1.0	
Endosulfan	180.182	0.2	N
Endothall	180.293	0.1	
Ethoprop	180.262	0.02	N
Ethylene	180.1016	exempt	
Fentin hydroxide	180.236	0.05	N
Fenvalerate	180.379	0.02	
Gibberellic acid	180.1098	exempt	
Glyphosate and its metabolites.	180.364	0.2	
Imidacloprid	180.472	0.3	
Indole-3-butyric acid	180.1099	exempt	
Iprodione	180.399	0.5	
L(+)-Lactic acid	180.1001	exempt	
Linuron	180.184	1.0	
Malathion	180.111	8.0	
Maleic hydrazide	180.175	50.0	
Mancozeb	180.319	1.0	I
Maneb	180.110	0.1	
Metalaxyl	180.408	0.5	
Methamidophos	180.315	0.1	N
Methidathion	180.298	0.2	
Methoxychlor	180.120	1.0	
Metiram	180.217	0.5	N
Metobromuron	180.250	0.2	
Metolachlor	180.368	0.1	
Metribuzin	180.332	0.6	
Mevinphos	180.157	0.25	
Monocrotophos	180.296	0.1	
Oxamyl	180.303	0.1	
Oxydemeton-methyl	180.330	0.1	
Paraquat dichloride	180.205	0.5	
Parathion	180.121	0.1	N
Pendimethalin	180.361	0.1	
Pentachloronitrobenzene	180.319	0.1	I
Permethrin	180.378	0.05	
Phorate	180.206	0.5	
Phosalone	180.263	0.1	N
Phosmet	180.261	0.1	
Phosphamidon	180.239	0.1	
Propargite	180.259	0.1	
Sesame plant, ground	180.1087	exempt	
Sethoxydim	180.412	4.0	
Sodium chlorate	180.1020	exempt	
Sulfuric acid	180.1019	exempt	
TEPP	180.347	0.01	N
<i>Trichoderma viride sensu</i> Bisby.	180.1102	exempt	
Urea	180.1117	exempt	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Vernolate	180.240	0.1	N
Potatoes (Post-H)			
Calcium hypochlorite	180.1054	exempt	
Chlorosulfamic acid	180.201	8.0	
Chlorpropham	180.181	50.0	
Methyl bromide	180.123	75.0	
Piperonyl butoxide	180.127	0.25	
Pyrethrins	180.128	0.05	
Potatoes (Pre- and Post-H)			
Thiabendazole	180.242	10.0	
Potatoes (Seed Treatment)			
Thiophanate-methyl	180.371	0.05	
Potatoes, Flakes			
Clethodim	185.1075	1.0	
Sethoxydim	185.2800	8.0	
Potatoes, Granules			
Clethodim	185.1075	1.0	
Sethoxydim	185.2800	8.0	
Potatoes, Processed (Inc. Potato Chips)			
Diquat dibromide	185.2500	0.5	
Metalaxyl	185.4000	4.0	
Metribuzin	185.250	3.0	
Potatoes, Processing Waste (Pre- and post-H)			
Thiabendazole	186.5550	30.0	
Potatoes, Waste, Dried			
Diquat dibromide	186.2500	1.0	
Potatoes, Waste, Processed (Dried)			
Metalaxyl	186.4000	4.0	
Metribuzin	186.250	3.0	
Potatoes, Waste, Processed, (Wet and Dry)			
Cryolite	186.3375	22.0	T
Imidacloprid	186.900	0.9	
Sethoxydim	186.2800	8.0	
Poultry			
Cuprous oxide	180.1021	exempt	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.05	
Polyoxyethylene	180.1078	exempt	
Thiabendazole	180.242	0.1	
Poultry (Exc. Kidney)			
Dalapon	180.150	3.0	
Poultry Feed (For Chicken Layers and Breeder Hens Only)			
Cyromazine	186.1400	5.0	
Poultry, Fat			
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Amitraz	180.287	0.01	
Atrazine	180.220	0.02	N
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	0.05	T

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Carbaryl	180.169	5.0		Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.05	L
Carboxin	180.301	0.1		Sulprofos	180.374	0.01	
Chlorpropham	180.319	0.05	I	Tetrachlorvinphos	180.252	0.75	
Chlorpyrifos-methyl	180.419	0.5		Thidiazuron	180.403	0.2	
Clethodim	180.458	0.2		Thiobencarb	180.401	0.2	
Cloprop	180.325	0.05		Thiophanate-methyl	180.371	0.1	N
Coumaphos	180.189	1.0		Triadimefon	180.410	0.04	
Cyfluthrin	180.436	0.01	L	Triadimenol	180.450	0.01	
Dialifor	180.326	0.05	N	Triclopyr	180.417	0.1	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.2		Triflumazole	180.476	0.05	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05		Poultry, Fat (From Chicken Layers and Breeder Hens Only)			
3',4'-Dichloropropion anilide.	180.274	0.1	N	Cyromazine	180.414	0.05	
Dichlorvos	180.235	0.05	N	Poultry, Fat (Inc. Turkeys)			
Difenoconazole	180.1129	0.05	T	Chlorpyrifos	180.342	0.1	
Difenoquat	180.369	0.05		Flutolanil	180.484	0.05	
Disulfobenzuron	180.377	0.05		Poultry, Fat (Pre-S)			
Dimethoate	180.204	0.02	N	Malathion	180.111	4.0	
Diquat dibromide	180.226	0.02		Poultry, Kidney			
Ethalfuralin	180.416	0.05		Dalapon	180.150	9.0	
Ethion	180.173	0.2		Fluridone	180.420	0.1	
Etridiazole	180.370	0.1		Glyphosate and its metabolites.	180.364	0.5	
Fenarimol	180.421	0.01		Metalaxyl	180.408	0.4	
Fenbutatin oxide	180.362	0.1		Propiconazole	180.434	0.2	
Fenpropathrin	180.466	0.02	T	Propyzamide	180.317	0.2	
Fenridazone-potassium	180.423	0.3		Poultry, Liver			
Fenthion	180.214	0.1		Benomyl	180.294	0.2	
Fluazifop-butyl	180.411	0.05		Fluridone	180.420	0.1	
Fluridone	180.420	0.05		Glyphosate and its metabolites.	180.364	0.5	
Fluvalinate	180.427	0.01		Iprodione	180.399	3.0	
Imidacloprid	180.472	0.05		Iprodione	180.399	5.0	
Iprodione	180.399	3.5		Metalaxyl	180.408	0.4	
Isofenphos	180.387	0.1		Metalachlor	180.368	0.05	
Lambda-cyhalothrin	180.438	0.01	L	Propiconazole	180.434	0.2	
Mepiquat chloride	180.384	0.1		Propyzamide	180.317	0.2	
Metalaxyl	180.408	0.4		Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.05	L
Methidathion	180.298	0.05		Thiophanate-methyl	180.371	0.2	N
Methoprene	180.359	1.0		Poultry, MBYP			
Metolachlor	180.368	0.02		Acephate	180.108	0.1	
Metribuzin	180.332	0.7		Alachlor	180.249	0.02	
Myclobutanil	180.443	0.02		Amitraz	180.287	0.05	
Naled	180.215	0.05		Atrazine	180.220	0.02	N
Nicotine	180.167	1.0		Bentazon	180.355	0.05	
Nitrapyrin	180.350	0.05	N	Bifenthrin	180.442	0.05	T
Norflurazon	180.356	0.1		Carboxin	180.301	0.1	
Oxyfluorfen	180.381	0.05		Chlorpropham	180.319	0.05	I
Paraquat dichloride	180.205	0.01	N	Chlorpyrifos-methyl	180.419	0.5	
Permethrin	180.378	0.15		Clethodim	180.458	0.2	
Phorate	180.206	0.05		Coumaphos	180.189	1.0	
Picloram	180.292	0.05		Cyfluthrin	180.436	0.01	L
Piperonyl butoxide	180.127	3.0		Dialifor	180.326	0.05	N
Pirimiphos-methyl	180.409	0.2		3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.2	
Primisulfuron	180.452	0.1					
Profenofos	180.404	0.05					
Propachlor	180.211	0.02	N				
Propargite	180.259	0.1					
Propham	180.319	0.05	I				
Propiconazole	180.434	0.1					
Propyzamide	180.317	0.02	N				
Pyrethrins	180.128	0.2					
Quizalofop-ethyl	180.441	0.05					
Sethoxydim	180.412	0.2					
Simazine	180.213	0.02	N				
Sodium acifluorfen	180.383	0.02					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.1	
3',4'-Dichloropropion anilide.	180.274	0.1	N
Dichlorvos	180.235	0.05	N
Difenoconazole	180.1129	0.05	T
Difenzoquat	180.369	0.05	
Diflubenzuron	180.377	0.05	
Dimethoate	180.204	0.02	N
Diquat dibromide	180.226	0.02	
Ethalfuralin	180.416	0.05	
Ethion	180.173	0.2	
Etridiazole	180.370	0.1	
Fenarimol	180.421	0.01	
Fenbutatin oxide	180.362	0.1	
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.3	
Fenthion	180.214	0.1	
Fluazifop-butyl	180.411	0.05	
Fluvalinate	180.427	0.01	
Imidacloprid	180.472	0.05	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	0.01	L
Mepiquat chloride	180.384	0.1	
Methidathion	180.298	0.05	
Methoprene	180.359	0.1	
Metribuzin	180.332	0.7	
Myclobutanil	180.443	0.02	
Naled	180.215	0.05	
Nicotine	180.167	1.0	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.01	N
Permethrin	180.378	0.25	
Phorate	180.206	0.05	N
Picloram	180.292	0.05	
Piperonyl butoxide	180.127	3.0	
Pirimiphos-methyl	180.409	2.0	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propionic acid	180.1023	exempt	
Pyrethrins	180.128	0.2	
Quizalofop-ethyl	180.441	0.05	
Sethoxydim	180.412	2.0	
Simazine	180.213	0.02	N
Sodium acifluorfen	180.383	0.02	
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.10	L
Sulprofos	180.374	0.01	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	
Thiobencarb	180.401	0.2	
Triadimefon	180.410	0.04	
Triadimenol	180.450	0.01	
Triclopyr	180.417	0.1	
Triflumazole	180.476	0.1	
Poultry, MBYP (Exc. Kidney and Liver)			
Fluridone	180.420	0.05	
Iprodione	180.399	0.5	
Metalaxyl	180.408	0.05	
Propiconazole	180.434	0.1	
Propyzamide	180.317	0.02	N

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Poultry, MBYP (Exc. Kidney)			
Cloprop	180.325	0.05	
Poultry, MBYP (Exc. Liver)			
Benomyl	180.294	0.1	
Iprodione	180.399	1.0	
Metolachlor	180.368	0.02	N
Thiophanate-methyl	180.371	0.1	
Poultry, MBYP (From Chicken Layers and Breeder Hens Only)			
Cyromazine	180.414	0.05	
Poultry, MBYP (Inc. Turkeys)			
Chlorpyrifos	180.342	0.1	
Flutolanil	180.484	0.05	
Poultry, MBYP (Pre-S)			
Malathion	180.111	4.0	
Poultry, Meat			
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Amitraz	180.287	0.01	
Atrazine	180.220	0.02	N
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	0.05	T
Carbaryl	180.169	5.0	
Carboxin	180.301	0.1	
Chlorpropham	180.319	0.05	I
Chlorpyrifos-methyl	180.419	0.5	
Clethodim	180.458	0.2	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	0.01	L
Dialifor	180.326	0.05	N
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	0.2	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
3',4'-Dichloropropion anilide.	180.274	0.1	N
Dichlorvos	180.235	0.05	N
Difenoconazole	180.1129	0.05	T
Difenzoquat	180.369	0.05	
Diflubenzuron	180.377	0.05	
Dimethoate	180.204	0.02	N
Diquat dibromide	180.226	0.02	
Ethalfuralin	180.416	0.05	
Ethion	180.173	0.2	
Etridiazole	180.370	0.1	
Fenarimol	180.421	0.01	
Fenbutatin oxide	180.362	0.1	
Fenridazone-potassium	180.423	0.3	
Fenthion	180.214	0.1	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	
Fluvalinate	180.427	0.01	
Imidacloprid	180.472	0.05	
Iprodione	180.399	1.0	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	0.01	L
Mepiquat chloride	180.384	0.1	
Metalaxyl	180.408	0.05	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Methidathion	180.298	0.05		Bendiocarb	185.2150	FAR	
Methoprene	180.359	0.1		Carbon dioxide	185.650	FAR	
Metolachlor	180.368	0.02		Chlorpyrifos	185.1000	0.1	
Metribuzin	180.332	0.7		Cyfluthrin	185.1250	0.05	
Myclobutanil	180.443	0.02		Cyfluthrin	186.1250	0.05	
Naled	180.215	0.05		Diatomaceous earth	185.1700	FAR	
Nicotine	180.167	1.0		Diazinon	185.1750	FAR	
Nitrapyrin	180.350	0.05	N	Dihydro-5-pentyl-2(3 <i>H</i>)-furanone	185.1985	FAR	
Norflurazon	180.356	0.1		Esfenvalerate	185.1300	0.05	
Oxylfluorfen	180.381	0.05		5-Heptyldihydro-2(3 <i>H</i>)-furanone	185.1975	FAR	
Paraquat dichloride	180.205	0.01	N				
Permethrin	180.378	0.05		Processed Food			
Phorate	180.206	0.05	N	Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Picloram	180.292	0.05					
Piperonyl butoxide	180.127	3.0		Processed Food			
Pirimiphos-methyl	180.409	2.0		Lambda-cyhalothrin	185.3765	0.01	
Primsulfuron	180.452	0.1		Limonene	185.3775	FAR	
Profenofos	180.404	0.05		Magnesium phosphide (residues calculated as phosphine).	185.3800	0.01	
Propachlor	180.211	0.02	N	Metarhizium anisopliae strain ESF1.	185.4035	FAR	
Propargite	180.259	0.1		Methyl chloride	185.4250	FAR	
Propham	180.319	0.05	I	<i>N</i> -Octyl bicycloheptene dicarboximide.	185.4500	10.0	
Propiconazole	180.434	0.1		Piperonyl butoxide	185.4900	10.0	
Propionic acid	180.1023	exempt		Propetamphos	185.5100	0.1	
Propyzamide	180.317	0.02	N	Pyrethrins	185.5200	1.0	
Pyrethrins	180.128	0.2		Resmethrin	185.5300	3.0	
Quisqualop-ethyl	180.441	0.02		Processed Food (2-Ply Bag-Cloth and Waxpaper)			
Sethoxydim	180.412	0.2		Piperonyl butoxide	185.4900	10.0	
Simazine	180.213	0.02	N	Pyrethrins	185.5200	1.0	
Sodium acifluorfen	180.383	0.02					
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	0.05	L	Processed Food (Nonper. Bag, Pkgd)			
Sulprofos	180.374	0.01		Dichlorvos	185.1900	0.5	
Thiabendazole	180.242	0.1		Processed Food in Paper Bags (Multi-walled)			
Thidiazuron	180.403	0.2		Piperonyl butoxide	185.4900	10.0	
Thiobencarb	180.401	0.2		Pyrethrins	185.5200	1.0	
Thiophanate-methyl	180.371	0.1	N	Processed Food Items			
Triadimefon	180.410	0.04		Tralomethrin	185.5450	0.02	
Triadimenol	180.450	0.01		Tralomethrin	186.5450	0.02	
Triclopyr	180.417	0.1		Prunes			
Triflumazole	180.476	0.05		Chlorothalonil	180.275	0.2	
Poultry, Meat (Exc. Kidneys)				Endosulfan	180.182	2.0	
Cloprop	180.325	0.05		Fenbutatin oxide	180.362	4.0	
Poultry, Meat (From Chicken Layers and Breeder Hens Only)				L(+)-Lactic acid	180.1001	exempt	
Cyromazine	180.414	0.05		Malathion	180.111	8.0	
Poultry, Meat (Inc. Turkeys)				Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	185.5375	0.2	
Chlorpyrifos	180.342	0.1		Urea	180.1117	exempt	
Flutolanil	180.484	0.05		Vinclozolin	185.1850	75.0	
Poultry, Meat (Pre-S)				Prunes (Fresh)			
Malathion	180.111	4.0		Iprodione	180.399	20.0	
Prickly Pear Cactus, Fruit							
Carbaryl	180.169	12.0					
Prickly Pear Cactus, Pads							
Carbaryl	180.169	12.0					
Processed Food							
Acephate	185.100	0.02					
Aluminum phosphide (residues calculated as phosphide).	185.200	0.01					

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Propiconazole	180.434	1.0	
Triforine	180.382	3.0	
Prunes (Pre- and Post-H)			
(Z,Z)-3,13-Octadecadien-1-ol acetate.	180.1055	exempt	
Thiophanate-methyl	180.371	15.0	
Prunes, Dried			
Cyhexatin	185.1350	4.0	
Fenbutatin oxide	185.3550	20.0	
Formetanate hydrochloride.	185.3450	8.0	
Metalaxyl	185.4000	4.0	
Myclobutanil	185.4350	8.0	
Phosalone	185.4800	40.0	
Pumpkins			
Anilazine	180.158	10.0	
Benomyl	180.294	1.0	
Captan	180.103	25.0	
Carbaryl	180.169	10.0	
Carbofuran	180.254	0.8	
Chloramben	180.266	0.1	
Chlorothalonil	180.275	5.0	
Chlorpyrifos	180.342	0.05	
Clomazone	180.425	0.1	
Cryolite	180.145	7.0	
Dicofol	180.163	5.0	
Dinocap	180.341	0.1	
Endosulfan	180.182	2.0	
Ethephon	180.300	0.1	
Fenvalerate	180.379	1.0	
Ferbam	180.114	7.0	
Folpet	180.191	15.0	
Lindane	180.133	3.0	
Malathion	180.111	8.0	
Maneb	180.110	7.0	
Methoxychlor	180.120	14.0	
Naled	180.215	0.5	
Nicotine	180.167	2.0	
Oxamyl	180.303	2.0	
Oxydemeton-methyl	180.330	0.3	
Parathion	180.121	1.0	
Propachlor	180.211	0.1	
Tetradifon	180.174	1.0	
Thiophanate-methyl	180.371	1.0	
Trichlorfon	180.198	0.1	
Urea	180.1117	exempt	
Zineb	180.115	7.0	
Ziram	180.116	7.0	
Pumpkins (Post-H)			
Methyl bromide	180.123	20.0	
Quinces			
Azinphos-methyl	180.154	2.0	
Cryolite	180.145	7.0	
2,4-Dichlorophenoxy acetic acid.	180.142A	5.0	
Dicofol	180.163	5.0	
Dioxathion	180.171	5.0	
Z-8- and E-8-Dodecen-1-yl acetate and Z-8-dodecen-1-ol.	180.1073	exempt	
Ferbam	180.114	7.0	
Lindane	180.133	1.0	
Malathion	180.111	8.0	
Mancozeb	180.176	10.0	
Methoxychlor	180.120	14.0	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
1-Naphthaleneacetic acid.	180.155	1.0	
Nicotine	180.167	2.0	
Oxadiazon	180.346	0.05	N
Parathion	180.121	1.0	
Tetradifon	180.174	5.0	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Quinces (Post-H)			
Methyl bromide	180.123	5.0	
Rac, Non-Per Bag, 6% Fat or Less (Post-H)			
Dichlorvos	180.235	0.5	
Rac, Non-Per Bag, 6% Fat or More (Post-H)			
Dichlorvos	180.235	2.0	
Rac, Non-Per Pkg, 6% Fat or Less (Post-H)			
Dichlorvos	180.235	0.5	
Rac, Non-Per Pkg, 6% Fat or More (Post-H)			
Dichlorvos	180.235	2.0	
Rac, Non-Per, Bulk Stored (Post-H)			
Dichlorvos	180.235	0.5	
Radish, Chinese (Roots)			
Diazinon	180.153	0.1	R
Radish, Chinese (Tops)			
Diazinon	180.153	0.1	R
Radishes			
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal.	180.1042	exempt	
Calcium cyanide	180.125	5.0	
Carbaryl	180.169	5.0	
Chlorpyrifos	180.342	2.0	
Cyfluthrin	180.436	1.0	L
Diazinon	180.153	0.5	
Dichlorvos	180.235	0.5	
Glyphosate and its metabolites.	180.364	0.2	
Malathion	180.111	8.0	
Sesame plant, ground ...	180.1087	exempt	
Sodium chlorite	180.1070	exempt	
Urea	180.1117	exempt	
Radishes (Post-H)			
Chlorosulfamic acid	180.201	8.0	
Methyl bromide	180.123	30.0	
Radishes, Roots			
Chlorthal-dimethyl	180.185	2.0	R
Fenvalerate	180.379	0.3	
Radishes, Tops			
Chlorthal-dimethyl	180.185	15.0	R
Cryolite	180.145	7.0	
Fenvalerate	180.379	8.0	
Ferbam	180.114	7.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Radishes, with Tops				Rapeseed/Canola, Meal			
Cryolite	180.145	7.0		Sethoxydim	186.2800	40	
Ferbam	180.114	7.0		Raspberries			
Methoxychlor	180.120	14.0		Anilazine	180.158	10.0	
Nicotine	180.167	2.0		Azinphos-methyl	180.154	2.0	
Parathion	180.121	1.0		Benomyl	180.294	7.0	
Zineb	180.115	7.0	X	Captan	180.103	25.0	
Ziram	180.116	7.0		Carbaryl	180.169	12.0	
Radishes, without Tops				Chlorpropham	180.319	0.3	I
Cryolite	180.145	7.0		Cryolite	180.145	7.0	
Ferbam	180.114	7.0		Diazinon	180.153	0.5	
Methoxychlor	180.120	14.0		Dichlobenil	180.231	0.15	N
Nicotine	180.167	2.0		2,4-Dichlorophenoxy acetic acid	180.142J	0.1	R
Parathion	180.121	1.0		Dicloran	180.200	15.0	
Zineb	180.115	7.0	X	Dicofol	180.163	5.0	
Ziram	180.116	7.0		Dinocap	180.341	0.15	N
Raisins				Diphenamid	180.230	1.0	
Carbofuran	185.600	2.0		Diuron	180.106	1.0	
Dialifor	185.1650	2.0		Endosulfan	180.182	0.1	
Ethephon	185.2700	12.0		Fenamiphos	180.349	0.1	
Ethion	185.2750	4.0		Fenbutatin oxide	180.362	10.0	
Ethyl formate	185.2900	250.0		Ferbam	180.114	7.0	
Fenamiphos	185.2950	0.3		Folpet	180.191	25.0	
Fenarimol	185.3200	0.6		Iprodione	180.399	15.0	
Fenbutatin oxide	185.3550	20.0		Malathion	180.111	8.0	
Imidacloprid	185.900	1.5		Metaxyl	180.408	0.5	
Iprodione	185.3750	300.0		Methoxychlor	180.120	14.0	
Malathion	185.7000	FAR		Mevinphos	180.157	1.0	
Metaxyl	185.4000	6.0		Nicotine	180.167	2.0	
Methyl formate	185.4300	250.0		Norflurazon	180.356	0.1	
Myclobutanil	185.4350	10.0		Oxydemeton-methyl	180.330	2.0	
Phosalone	185.4800	20.0		Oxyfluorfen	180.381	0.05	R
Sethoxydim	185.2800	1.0		Parathion	180.121	1.0	
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1)	185.5375	0.20		Propyzamide	180.317	0.05	N
Vinclozolin	185.1850	30.0		Sethoxydim	180.412	5.0	
Raisins, Processed				Simazine	180.213	0.25	
Benomyl	185.350	50		Triadimefon	180.410	2.0	
Malathion	185.3850	12.0		Urea	180.1117	exempt	
Raisins, Waste				Vinclozolin	180.380	10.0	
Benomyl	186.350	125.0		Zineb	180.115	7.0	X
Carbofuran	186.600	6.0		Ziram	180.116	7.0	
Dialifor	186.1650	10.0		Raspberries (Post-H)			
Ethephon	186.2700	65.0		Allethrin	180.113	4.0	
Fenamiphos	186.2950	3.0		Piperonyl butoxide	180.127	8.0	
Fenarimol	186.3200	3.0		Pyrethrins	180.128	1.0	
Fenbutatin oxide	186.3550	80		Raw Agric Commodities Not Listed in 180.215			
Imidacloprid	186.900	15		Naled	180.215	0.5	
Iprodione	186.3750	300.0		Raw Agric Commodities			
Metaxyl	186.4000	10.0		Allyl isothiocyanate	180.1167	exempt	
Myclobutanil	186.4350	25.0		Anagrapha falcifera multi-nuclear polyhedrosis virus	180.1149	exempt	
Sethoxydim	186.2800	1.0		Arthropod pheromones	180.1124	exempt	
Triadimefon	186.800	7.0		<i>Autographa californica</i> NPV	180.1125	exempt	
Triflumazole	186.5850	10		Azadirachtin	180.1119	exempt	
Rape, Seed				<i>Bacillus subtilis</i> MBI 600	180.1128	exempt	
<i>Beauveria bassiana</i>	180.1146	exempt		<i>Bacillus thuringiensis</i> variety kurstaki	180.1107	exempt	
Endosulfan	180.182	0.2	N	<i>Bacillus thuringiensis</i> variety San Diego	180.1108	exempt	
Parathion	180.121	0.2		Basic copper sulfate	180.1001	exempt	
Sethoxydim	180.412	35					
Trifluralin	180.207	0.05					
Rape, Straw							
Trifluralin	180.207	0.05					

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
<i>Beauveria bassiana</i>	180.31	exempt	
<i>Beauveria bassiana</i>	180.1166	exempt	
Beet armyworm NPV (polyhedral inclusion bodies of <i>Spodoptera exigua</i>).	180.1118	exempt	
Borax	180.1121	exempt	
Boric acid	180.1121	exempt	
Boric oxide	180.1121	exempt	
Calcium oxide	180.2	GRAS	
Calcium polysulfide	180.2	GRAS	
<i>Candida oleophila</i> iso- late I-182.	180.1144	exempt	
Carbon dioxide	180.1049	exempt	
Chitin	180.1089	exempt	
Chitosan	180.1072	exempt	
Chlorine	180.1095	exempt	
Cinnamaldehyde	180.1156	exempt	
Citric acid	180.2	GRAS	
Clarified hydrophobic ex- tract of neem oil.	180.1161	exempt	
Copper acetate	180.1001	exempt	
Copper carbonate	180.1001	exempt	
Copper hydroxide	180.1001	exempt	
Copper linoleate	180.1001	exempt	
Copper oleate	180.1001	exempt	
Copper oxychloride	180.1001	exempt	
Copper sulfate	180.1001	exempt	
Copper sulfate monohydrate.	180.1001	exempt	
Copper-zinc-chromate complex (declare per- centages as the met- als).	180.1001	exempt	
Cry1A(c) and Cry1C de- rived δ -endotoxins of <i>Bacillus thuringiensis</i> var. <i>kurstaki</i> encap- sulated in killed <i>Pseudomonas</i> <i>fluorescens</i> , and the expression plasmid and cloning vector ge- netic constructs.	180.1154	exempt	
Cupric oxide	180.1001	exempt	
Cuprous oxide	180.1001	exempt	
<i>Cydia pomonella</i> <i>granulosis</i> virus.	180.1148	exempt	
Disodium octaborate tet- rahydrate.	180.1121	exempt	
Dried fermentation solids and solubles of <i>Myrothecium</i> <i>verrucaria</i> .	180.1163	exempt	
Farnesol	180.1086	exempt	
Ferrous sulfate heptahydrate.	180.2	GRAS	
Fumaric acid	180.2	GRAS	
<i>Gliocladium virens</i> G-21	180.1100	exempt	
<i>Hirsutiella thompsonii</i>	180.1061	exempt	
Isomate-C	180.1103	exempt	
Isomate-C	180.31		
Isomate-C	180.1126	exempt	
Jojoba oil	180.1160	exempt	
L(+)-Lactic acid	180.1090	exempt	
Lepidopteran pheromones.	180.1153	exempt	
Meat meal	180.1164	exempt	
<i>Metarhizium anisopliae</i> strain ESF1.	180.1116	exempt	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Methoprene	180.1033	exempt	
Methyl eugenol	180.1067	exempt	
Nitrogen	180.1050	exempt	
<i>Nosema locustae</i>	180.1041	exempt	
N-Octyl bicycloheptene dicarboximide.	180.1001	exempt	
Petroleum hydrocarbons	180.1001	exempt	
Phosphine resulting from use of aluminum phosphide.	180.225	0.01	
Phosphine resulting from use of magnesium phosphide.	180.375	0.01	
Piperonyl butoxide	180.1001	exempt	
Polyhedral inclusion bodies of <i>Heliothis</i> nucleopolyhedrosis virus.	180.1027	exempt	
Potassium carbonate	180.2	GRAS	
Potassium polysulfide	180.2	GRAS	
Potassium salts of fatty acids (C _{12–18}).	180.1068	exempt	
Propyl isomer	180.1001	exempt	
<i>Pseudomonas cepacia</i> type Wisconsin.	180.1115	exempt	
<i>Pseudomonas</i> <i>fluorescens</i> (naturally occurring strain).	180.1114	exempt	
<i>Pseudomonas syringae</i>	180.1145	exempt	
Pyrethrins	180.1001	exempt	
Pyrethrum powder other than pyrethrins.	180.1001	exempt	
Red pepper	180.1164	exempt	
Rotenone	180.1001	exempt	
Ryania alkaloids	180.1001	exempt	
Sabidilla alkaloids	180.1001	exempt	
Sodium benzoate	180.2	GRAS	
Sodium borate	180.1121	exempt	
Sodium carbonate	180.2	GRAS	
Sodium chloride	180.2	GRAS	
Sodium hypochlorite	180.2	GRAS	
Sodium metasilicate	180.2	GRAS	
Sodium polysulfide	180.2	GRAS	
Sodium propionate	180.2	GRAS	
Sodium sesquicarbonate	180.2	GRAS	
Sorbic acid	180.2	GRAS	
Sorbic acid, potassium salt.	180.2	GRAS	
<i>Streptomyces</i> <i>griseoviridis</i> .	180.1120	exempt	
Sulfur	180.2	GRAS	
Sulfuric acid, monourea adduct.	180.1084	exempt	
1-Triacontanol	180.1081	exempt	
(Z)-4-Tridecen-1-yl ace- tate.	180.1064	exempt	
Raw Agric Commod- ities (Exc. Meat)			
Combustion product gas	180.1051	exempt	
Raw Agric Commod- ities (Irrigated)			
FD&C Blue No. 1	180.1074	exempt	
Xylene	180.1025	exempt	
Raw Agric Commod- ities (Pre- and Post- H)			
<i>Bacillus thuringiensis</i>	180.1011	exempt	
Diatomaceous earth	180.1017	exempt	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Raw Agricultural Commodities Listed in 180.1127				Rice, Bran			
Biochemical Pesticide Plant Volatile Attractant Compounds (040506, 040511, 040512, 040513, 040514, 040515, 025000).	180.1127	exempt		3,7-Dichloro-8-quinoline carboxylic acid.	186.1860	15.0	
Rhubarb				3',4'-Dichloropropion anilide.	186.1875	10.0	
Dicloran	180.200	10.0		Flutolanil	185.3385	3.0	L
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1		Iprodione	186.3750	30.0	
Fluazifop-butyl	180.411	0.5	R	Rice, Cracked			
Maneb	180.110	10.0		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Paraquat dichloride	180.205	0.05	N	Rice, Cracked, Malted Beverages			
Propyzamide	180.317	0.1		Methyl bromide	185.3480	125.0	
Sethoxydim	180.412	0.3	R	Rice, Flours			
Rice				Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Aqueous extract of seaweed meal.	180.1042	exempt		Rice, Fodder			
Benomyl	180.294	5.0		Metolachlor	180.368	0.5	
Bensulfuron-methyl	180.445	0.02		Rice, Forage			
Bentazon	180.355	0.05		Metolachlor	180.368	0.5	
Carbaryl	180.169	5.0		Rice, Grain			
Carbofuran	180.254	0.2		Chlorpropham	180.319	0.1	I
Carboxin	180.301	0.2		Chlorpyrifos-methyl	180.419	6.0	
Chitosan	180.1072	exempt		<i>Colletotrichum gloeosporioides</i> spores.	180.1075	exempt	
2,4-Dichlorophenoxy acetic acid.	180.142B	0.1		3,7-Dichloro-8-quinoline carboxylic acid.	180.463	5.0	
3',4'-Dichloropropion anilide.	180.274	2.0		Endothall	180.293	0.05	N
Disulfoton	180.183	0.75		Fenoxaprop-ethyl	180.430	0.05	
Fenthion	180.214	0.1		Flutolanil	180.484	2.0	L
Gibberellic acid	180.1098	exempt		Iprodione	180.399	10.0	
Indole-3-butyric acid	180.1099	exempt		<i>Lagenidium giganteum</i> mycelium.	180.1113	0.	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1		MCPA	180.339	0.1	N
Methoprene	180.359	5.0		Metolachlor	180.368	0.1	
Molinate	180.228	0.1	N	Oxadiazon	180.346	0.05	N
Naled	180.215	0.5		Pendimethalin	180.361	0.05	
Paraquat bis(methyl sulfate).	180.205	0.05		Propiconazole	180.434	0.1	
Paraquat dichloride	180.205	0.05		Sodium acifluorfen	180.383	0.1	
Parasitoid insects	180.1101	exempt		Thiobencarb	180.401	0.2	
Parathion	180.121	1.0		2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Phorate	180.206	0.1		Rice, Grain (Post-H)			
Propionic acid	180.1023	exempt		Calcium cyanide	180.125	25.0	
Sodium 5-nitroguaiacolate	180.1139	exempt		Chloropicrin	180.1008	exempt	
Sodium chlorate	180.1020	exempt		Methylene chloride	180.1010	exempt	
Sodium o-nitrophenolate	180.1140	exempt		Rice, Grain (Pre- and Post-H)			
Sodium p-nitrophenolate	180.1141	exempt		Malathion	180.111	8.0	
Triclopyr	180.417	0.3		Rice, Grain, Stored (Post-H)			
Urea	180.1117	exempt		Methoxychlor	180.120	2.0	
Rice (Post-H)							
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1					
Hydrocyanic acid	180.130	75.0					
Methyl bromide	180.123	50.0					
Piperonyl butoxide	180.127	20.0					
Pyrethrins	180.128	3.0					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Rice, Hulls			
Benomyl	186.350	20.0	
3',4'-Dichloropropion anilide.	186.1875	10.0	
Flutolanil	185.3385	7.0	L
Iprodione	186.3750	50.0	
Methoprene	186.4150	25	
Thiabendazole	186.5550	8.0	
Rice, Milled Fractions			
3',4'-Dichloropropion anilide.	186.1875	10.0	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	186.3700	125.0	
Rice, Milled Fractions (Exc. Flour)			
Chlorpyrifos-methyl	185.1050	30.0	
Chlorpyrifos-methyl	186.1050	30.0	
Rice, Polishings			
3',4'-Dichloropropion anilide.	186.1875	10.0	
Rice, Rough			
Thiabendazole	180.242	3.0	
Rice, Straw			
Benomyl	180.294	15.0	
Bensulfuron-methyl	180.445	0.05	
Bentazon	180.355	3.0	
Carbaryl	180.169	100.0	
Carbofuran	180.254	1.0	
Carboxin	180.301	0.2	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	12.0	
2,4-Dichlorophenoxy acetic acid.	180.142B	20.0	
3',4'-Dichloropropion anilide.	180.274	75.0	
Disulfoton	180.183	5.0	
Endothall	180.293	0.05	N
Fenthion	180.214	0.5	
Flutolanil	180.484	8.0	L
Iprodione	180.399	20.0	
<i>Lagenidium giganteum</i> mycelium.	180.1113	0	
MCPA	180.339	2.0	
Molinate	180.228	0.1	N
Oxadiazon	180.346	0.2	N
Paraquat bis(methyl sulfate).	180.205	0.06	
Paraquat dichloride	180.205	0.06	
Propiconazole	180.434	3.0	
Sodium 5-nitroguaiacolate	180.1139	exempt	
Sodium acifluorfen	180.383	0.1	
Sodium chlorate	180.1020	exempt	
Sodium <i>o</i> -nitrophenolate	180.1140	exempt	
Sodium <i>p</i> -nitrophenolate	180.1141	exempt	
Thiabendazole	180.242	10.0	
Thiobencarb	180.401	1.0	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
Triclopyr	180.417	10.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Rice, Wild			
<i>Lagenidium giganteum</i> mycelium.	180.1113	0	
Malathion	180.111	8.0	
Propiconazole	180.434	0.5	R
Romaine			
Zineb	180.115	25.0	X
Root and Tuber Vegetables Group			
Metalaxyl	180.408	0.5	
Oxadixyl	180.456	0.1	
Rosemary			
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Rosemary (Post-H)			
Hydrocyanic acid	180.130	250.0	
Rutabagas			
Benomyl	180.294	0.2	
Carbaryl	180.169	5.0	
Chlorpyrifos	180.342	0.5	
Chlorthal-dimethyl	180.185	2.0	
Diazinon	180.153	0.75	
Glyphosate and its metabolites.	180.364	0.2	
Malathion	180.111	8.0	
Rutabagas (Post-H)			
Allethrin	180.1002	exempt	
Methyl bromide	180.123	30.0	
Rutabagas, Roots			
Captan	180.103	2.0	
Rutabagas, Tops			
Cryolite	180.145	7.0	
Ferbam	180.114	7.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Rutabagas, with Tops			
Cryolite	180.145	7.0	
Ferbam	180.114	7.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Rutabagas, without Tops			
Cryolite	180.145	7.0	
Ferbam	180.114	7.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Rye			
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Methoprene	180.359	5.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Parathion	180.319	0.5	I	Rye, Hay			
Rye (Post-H)				Diuron	180.106	2.0	
Aluminum phosphide (residues calculated as phosphide)	180.225	0.1		Linuron	180.184	0.5	
Hydrocyanic acid	180.130	75.0		Methomyl	180.253	10.0	
Methyl bromide	180.123	50.0		Rye, Milled Fractions			
Piperonyl butoxide	180.127	20.0		2,4-Dichlorophenoxy acetic acid	186.1450	2.0	
Pyrethrins	180.128	3.0		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700)	186.3700	125.0	
Rye, Flour				Mancozeb	186.6300	20.0	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700)	185.3700	125.0		Rye, Milled Fractions (Exc. Flour)			
Rye, Fodder				2,4-Dichlorophenoxy acetic acid	185.1450	2.0	
Metolachlor	180.368	0.5		Rye, Straw			
Rye, Fodder, Green				Azinphos-methyl	180.154	2.0	
Carbaryl	180.169	100.0		Benomyl	180.294	0.2	
Rye, Forage				Bromoxynil	180.324	0.1	
2,4-Dichlorophenoxy acetic acid	180.142B	20.0		Bromoxynil	180.324C	0.1	
Diuron	180.106	2.0		Carbaryl	180.169	100.0	
Linuron	180.184	0.5		Diuron	180.106	2.0	
MCPA	180.339	20.0		Endosulfan	180.182	0.2	N
Methomyl	180.253	10.0		Linuron	180.184	0.5	
Metolachlor	180.368	0.5		Mancozeb	180.176	25.0	
Rye, Forage, Green				MCPA	180.339	2.0	
Bromoxynil	180.324	0.1		Methomyl	180.253	10.0	
Bromoxynil	180.324C	0.1		Propiconazole	180.434	1.5	
Triadimenol	180.450	2.5		Triadimenol	180.450	0.1	
Rye, Grain				Safflower			
Azinphos-methyl	180.154	0.2		<i>Beauvaria bassiana</i>	180.1146	exempt	
Benomyl	180.294	0.2		Oxydemeton-methyl	180.330	1.0	
Bromoxynil	180.324	0.1		Sodium chlorate	180.1020	exempt	
Bromoxynil	180.324C	0.1		Urea	180.1117	exempt	
Carbaryl	180.169	0.0		Safflower, Fodder			
2,4-Dichlorophenoxy acetic acid	180.142B	0.5		2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Difenoconazole	180.475	0.1		Safflower, Forage			
Diuron	180.106	1.0		2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Endosulfan	180.182	0.1	N	Safflower, Oil, Refined			
Linuron	180.184	0.25		Malathion	185.3850	0.6	
Mancozeb	180.176	5.0		Safflower, Seed			
MCPA	180.339	0.1		Aluminum phosphide (residues calculated as phosphide)	180.225	0.1	
Methomyl	180.253	1.0		Barban	180.268	0.1	L
Metolachlor	180.368	0.1		Carboxin	180.301	0.2	
Paraquat dichloride	180.205	0.05		Chlorpropham	180.319	0.1	I
Propiconazole	180.434	0.1		Di-allate	180.277	0.05	X
Triadimenol	180.450	0.05		Dimethoate	180.204	0.1	
Rye, Grain (Post-H)				Endosulfan	180.182	0.2	N
Allethrin	180.113	2.0		EPTC	180.117	0.1	N
Calcium cyanide	180.125	25.0		Malathion	180.111	0.2	
Chloropicrin	180.1008	exempt		Metolachlor	180.368	0.1	
Methylene chloride	180.1010	exempt		Naled	180.215	0.5	
Rye, Grain (Pre- and Post-H)				Paraquat dichloride	180.205	0.05	N
Malathion	180.111	8.0		Parathion	180.121	0.1	N
Rye, Grain, Stored (Post-H)				Propham	180.319	0.1	I
Methoxychlor	180.120	2.0		2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Trichlorfon	180.198	0.1	N
Trifluralin	180.207	0.05	N
Sage (Post-H)			
Hydrocyanic acid	180.130	250.0	
Sainfoin			
Metribuzin	180.332	2.0	
Sainfoin, Forage			
Terbacil	180.209	5.0	
Sainfoin, Hay			
Metribuzin	180.332	7.0	
Terbacil	180.209	5.0	
Salsify			
Allethrin	180.1002	exempt	
Glyphosate and its metabolites.	180.364	0.2	
Zineb	180.115	7.0	X
Salsify (Inc. Tops)			
Malathion	180.111	8.0	
Salsify, Roots			
Carbaryl	180.169	5.0	
Salsify, Roots (Post-H)			
Methyl bromide	180.123	30.0	
Salsify, Tops			
Carbaryl	180.169	10.0	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Sapodilla			
Glyphosate and its metabolites.	180.364	0.2	
Sapote, Black			
Glyphosate and its metabolites.	180.364	0.2	
Sapote, White			
Chlorpyrifos	180.342	0.05	R
Glyphosate and its metabolites.	180.364	0.2	
Sausage, Uncooked			
Hydrocyanic acid	185.3600	50.0	
Savory (Post-H)			
Hydrocyanic acid	180.130	250.0	
Savory, Summer			
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Savory, Winter			
N,N-Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	
Sesame (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Hydrocyanic acid	180.130	25.0	
Shallots			
Allethrin	180.1002	exempt	
Anilazine	180.158	10.0	
Captan	180.103	50.0	
Folpet	180.191	50.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Malathion	180.111	8.0	
Sheep, Fat			
Acephate	180.108	0.1	
Alachlor	180.249	0.02	
Aldicarb	180.269	0.01	
Amitraz	180.287	0.0	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154	0.1	
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	1.0	T
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	0.1	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chlorobenzilate	180.109	0.5	
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	I
Chlorpyrifos	180.342	0.2	
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Clofentezine	180.446	0.05	
Cloprop	180.325	0.05	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	1.00	L
Cyhexatin	180.144	0.2	
Cypermethrin	180.418	0.05	T
Dialfor	180.326	0.15	N
Dicamba	180.227	0.2	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
3',4'-Dichloropropion anilide.	180.274	0.1	N
Dichlorvos	180.235	0.02	N
Difenoconazole	180.475	0.05	T
Difenzoquat	180.369	0.05	
Diflubenzuron	180.377	0.05	
Dimethipin	180.406	0.02	
Dimethoate	180.204	0.02	N
Diphenamid	180.230	0.05	N
Dipropyl isocinchomeronate.	180.143	0.1	N
Diquat dibromide	180.226	0.02	
Diuron	180.106	1.0	
Endosulfan	180.182	0.2	
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Ethion	180.173	0.2	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.1	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Fluridone	180.420	0.05	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Flutolanil	180.484	0.10		Malathion	180.111	4.0	
Fluvalinate	180.427	0.01		Sheep, Fat of Meat			
Glufosinate-ammonium	180.473	0.05	L	Dioxathion	180.171	1.0	
Hexazinone	180.396	0.1		Lindane	180.133	7.0	
Imazalil	180.413	0.01		Methoxychlor	180.120	3.0	
Imidacloprid	180.472	0.3		Sheep, Kidney			
Iprodione	180.399	0.5		Carbaryl	180.169	1.0	
Isofenphos	180.387	0.1		Cloprop	180.325	0.5	
Lambda-cyhalothrin	180.438	3.0	L	Cyhexatin	180.144	0.5	
Linuron	180.184	1.0		Dicamba	180.227	1.5	
MCPA	180.339	0.1	N	3,6-Dichloro-2-pyridine	180.431	12.0	
Mepiquat chloride	180.384	0.1		carboxylic acid,			
Metalaxyl	180.408	0.4		alkanolamine salts (of			
Methidathion	180.298	0.05		the ethanol and			
Methoprene	180.359	1.0		isopropanol series).			
Metolachlor	180.368	0.02		2,4-Dichlorophenoxy	180.142(h)	2.0	
Metribuzin	180.332	0.7		acetic acid.			
Metsulfuron-methyl	180.428	0.1		Fenarimol	180.421	0.1	
Myclobutanil	180.443	0.05		Fenridazone-potassium	180.423	1.0	
Naled	180.215	0.05		Fentin hydroxide	180.236	0.05	N
Nitrapyrin	180.350	0.05	N	Fluridone	180.420	0.1	
Norflurazon	180.356	0.1		Flutolanil	180.484	1.00	
N-Octyl bicycloheptene	180.367	0.3		Glyphosate and its	180.364	4.0	
dicarboximide.			N	metabolites.			
Oxadiazon	180.346	0.01		Iprodione	180.399	3.0	
Oxydemeton-methyl	180.330	0.01		Metalaxyl	180.408	0.4	
Oxyfluorfen	180.381	0.05		Metolachlor	180.368	0.2	
Paraquat dichloride	180.205	0.05		Metsulfuron-methyl	180.428	0.5	
Permethrin	180.378	3.0		Paraquat dichloride	180.205	0.3	
Phorate	180.206	0.05	N	Picloram	180.292	5.0	
Phosalone	180.263	0.25		Pirimiphos-methyl	180.409	2.0	
Phosmet	180.261	0.2		Propiconazole	180.434	2.0	
Picloram	180.292	0.2		Propyzamide	180.317	0.4	
Piperonyl butoxide	180.127	0.1	N	Prosulfuron	180.481	0.05	L
Pirimiphos-methyl	180.409	0.2		Sodium acifluorfen	180.383	0.02	
Primisulfuron	180.452	0.1		Thiophanate-methyl	180.371	0.2	
Profenofos	180.404	0.05		Triasulfuron	180.459	0.5	L
Propachlor	180.211	0.02	N	Triclopyr	180.417	0.5	
Propargite	180.259	0.1		Sheep, Liver			
Propham	180.319	0.05	I	Carbaryl	180.169	1.0	
Propiconazole	180.434	0.1		Clofentazine	180.446	0.4	
Propyzamide	180.317	0.02	N	Cyhexatin	180.144	0.5	
Prosulfuron	180.481	0.05	L	Dicamba	180.227	1.5	
Pyrethrins	180.128	0.1	N	Fenarimol	180.421	0.1	
Quizalofop-ethyl	180.441	0.05		Fenridazone-potassium	180.423	1.0	
Sethoxydim	180.412	0.2		Fentin hydroxide	180.236	0.05	N
Simazine	180.213	0.02	N	Fluridone	180.420	0.1	
Sulfonium, trimethyl-,	180.489	0.10	L	Flutolanil	180.484	2.00	
salt with N-phos				Glyphosate and its	180.364	0.5	
phonomethylglycine				metabolites.			
(1:1).				Imazalil	180.413	0.5	
Sulprofos	180.374	0.1		Iprodione	180.399	3.0	
Tebuthiuron	180.390	2.0		Metalaxyl	180.408	0.4	
Terbacil	180.209	0.1		Metolachlor	180.368	0.05	
Tetrachlorvinphos	180.252	0.5		Myclobutanil	180.443	1.0	
Thiabendazole	180.242	0.1		Picloram	180.292	0.5	
Thidiazuron	180.403	0.2		Pirimiphos-methyl	180.409	2.0	
Thiobencarb	180.401	0.2		Propiconazole	180.434	2.0	
Thiophanate-methyl	180.371	0.1	N	Propyzamide	180.317	0.4	
Triadimefon	180.410	1.0		Prosulfuron	180.481	0.05	L
Triadimenol	180.450	0.1		Sodium acifluorfen	180.383	0.02	
Triasulfuron	180.459	0.1		Thiophanate-methyl	180.371	2.5	
S,S,S-Tributyl phospho	180.272	0.02	N	Triclopyr	180.417	0.5	
trithioate.				Sheep, MBYP			
Trichlorfon	180.198	0.1		Acephate	180.108	0.1	
Triclopyr	180.417	0.05	N	Alachlor	180.249	0.02	
Triflumazole	180.476	0.5		Aldicarb	180.269	0.01	
Sheep, Fat (Pre-S)							
Diazinon	180.153	0.7					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Amitraz	180.287	0.0	
Atrazine	180.220	0.02	N
Azinphos-methyl	180.154	0.1	
Benomyl	180.294	0.1	
Bentazon	180.355	0.05	
Bifenthrin	180.442	0.1	T
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbofuran	180.254	0.05	
Carboxin	180.301	0.1	
Chinomethionat	180.338	0.05	N
Chlorobenzilate	180.109	0.5	
Chloroneb	180.257	0.2	
Chlorpropham	180.319	0.05	I
Chlorpyrifos	180.342	0.05	
Chlorpyrifos-methyl	180.419	0.5	
Chlorsulfuron	180.405	0.3	
Clethodim	180.458	0.2	
Cloprop	180.325	0.05	
Coumaphos	180.189	1.0	
Cyfluthrin	180.436	0.4	L
Cypermethrin	180.418	0.05	T
Dalapon	180.150	0.2	
Dialifor	180.326	0.15	N
Dicamba	180.227	0.2	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.1	
3',4'-Dichloropropion ani- lide.	180.274	0.1	N
Dichlorvos	180.235	0.02	N
Difenoconazole	180.475	0.05	T
Difenzoquat	180.369	0.05	
Disulfobenzuron	180.377	0.05	
Dimethipin	180.406	0.02	
Dimethoate	180.204	0.02	N
Diphenamid	180.230	0.05	N
Dipropyl isocinchomeronate.	180.143	0.1	N
Diquat dibromide	180.226	0.02	
Diuron	180.106	1.0	
Endosulfan	180.182	0.2	
Ethalfuralin	180.416	0.05	
Ethephon	180.300	0.1	
Ethion	180.173	0.2	
Ethofumesate	180.345	0.05	
Etridiazole	180.370	0.1	
Fenamiphos	180.349	0.05	
Fenarimol	180.421	0.01	
Fenbutatin oxide	180.362	0.5	
Fenoxaprop-ethyl	180.430	0.05	L
Fenpropathrin	180.466	0.02	T
Fenridazone-potassium	180.423	0.05	
Fenvalerate	180.379	1.5	
Fluazifop-butyl	180.411	0.05	
Flutolanil	180.484	0.05	
Fluvalinate	180.427	0.01	
Glufosinate-ammonium	180.473	0.10	L
Hexazinone	180.396	0.1	
Imazalil	180.413	0.01	
Imidacloprid	180.472	0.3	
Isofenphos	180.387	0.1	
Lambda-cyhalothrin	180.438	0.2	L
Linuron	180.184	1.0	
MCPA	180.339	0.1	N
Mepiquat chloride	180.384	0.1	
Methidathion	180.298	0.05	
Methoprene	180.359	0.1	
Metribuzin	180.332	0.7	
Metsulfuron-methyl	180.428	0.1	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Naled	180.215	0.05	
Nitrapyrin	180.350	0.05	N
Norflurazon	180.356	0.1	
Oxadiazon	180.346	0.01	N
Oxydemeton-methyl	180.330	0.01	
Oxyfluorfen	180.381	0.05	
Permethrin	180.378	2.0	
Phorate	180.206	0.05	N
Phosalone	180.263	0.25	
Phosmet	180.261	0.2	
Piperonyl butoxide	180.127	0.1	N
Pirimiphos-methyl	180.409	0.2	
Primisulfuron	180.452	0.1	
Profenofos	180.404	0.05	
Propachlor	180.211	0.02	N
Propargite	180.259	0.1	
Propham	180.319	0.05	I
Propionic acid	180.1023	exempt	
Prosulfuron	180.481	0.05	L
Pyrethrins	180.128	0.1	N
Quizalofop-ethyl	180.441	0.05	
Sethoxydim	180.412	0.2	
Simazine	180.213	0.02	N
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1).	180.489	1.00	L
Sulprofos	180.374	0.1	
Tebuthiuron	180.390	2.0	
Terbacil	180.209	0.1	
Thiabendazole	180.242	0.1	
Thidiazuron	180.403	0.2	
Thiobencarb	180.401	0.2	
Triadimefon	180.410	1.0	
Triadimenol	180.450	0.1	
S,S,S-Tributyl phosphoro trithioate.	180.272	0.02	N
Trichlorfon	180.198	0.1	N
Triflumazole	180.476	0.5	
Sheep, MBYP (Exc. Liver)			
Clofentezine	180.446	0.05	
Myclobutanil	180.443	0.2	
Sheep, MBYP (Exc. Kidney and Liver)			
Cyhexatin	180.144	0.2	
Fluridone	180.420	0.05	
Iprodione	180.399	0.5	
Metolachlor	180.408	0.05	
Metolachlor	180.368	0.02	
Picloram	180.292	0.2	
Propiconazole	180.434	0.1	
Propyzamide	180.317	0.02	N
Thiophanate-methyl	180.371	0.1	N
Triclopyr	180.417	0.05	
Sheep, MBYP (Exc. Kidney)			
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2	
Paraquat dichloride	180.205	0.05	
Triasulfuron	180.459	0.1	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Sheep, MBYP (Fat Basis)				Fenarimol	180.421	0.01	
Diazinon	180.153	0.7		Fenbutatin oxide	180.362	0.5	
Sheep, MBYP (Kidney and Liver)				Fenoxaprop-ethyl	180.430	0.05	L
Carbaryl	180.169	0.1		Fenpropathrin	180.466	0.02	T
Sheep, MBYP (Pre-S)				Fenridazone-potassium	180.423	0.05	
Malathion	180.111	4.0		Fenvalerate	180.379	1.5	
Sheep, Meat				Fluazifop-butyl	180.411	0.05	
Acephate	180.108	0.1		Fluridone	180.420	0.05	
Alachlor	180.249	0.02		Flutolanil	180.484	0.05	
Aldicarb	180.269	0.01		Fluvalinate	180.427	0.01	
Amitraz	180.287	0.0		Glufosinate-ammonium	180.473	0.05	L
Atrazine	180.220	0.02	N	Hexazinone	180.396	0.1	
Azinphos-methyl	180.154	0.1		Imazalil	180.413	0.01	
Benomyl	180.294	0.1		Imidacloprid	180.472	0.3	
Bentazon	180.355	0.05		Iprodione	180.399	0.5	
Bifenthrin	180.442	0.5	T	Isofenphos	180.387	0.1	
Bromoxynil	180.324	0.1		Lambda-cyhalothrin	180.438	0.2	L
Bromoxynil	180.324C	0.1		Linuron	180.184	1.0	
Carbaryl	180.169	0.1		MCPA	180.339	0.1	N
Carbofuran	180.254	0.05		Mepiquat chloride	180.384	0.1	
Carboxin	180.301	0.1		Metaxyl	180.408	0.05	
Chinomethionat	180.338	0.05	N	Methidathion	180.298	0.05	
Chlorobenzilate	180.109	0.5		Methoprene	180.359	0.1	
Chloroneb	180.257	0.2		Metolachlor	180.368	0.02	
Chlorpropham	180.319	0.05	I	Metribuzin	180.332	0.7	
Chlorpyrifos	180.342	0.05		Metsulfuron-methyl	180.428	0.1	
Chlorpyrifos-methyl	180.419	0.5		Myclobutanil	180.443	0.1	
Chlorsulfuron	180.405	0.3		Naled	180.215	0.05	
Clethodim	180.458	0.2		Nitrapyrin	180.350	0.05	N
Clofentazine	180.446	0.05		Norflurazon	180.356	0.1	
Coumaphos	180.189	1.0		Oxadiazon	180.346	0.01	N
Cyfluthrin	180.436	0.4	L	Oxydemeton-methyl	180.330	0.01	
Cyhexatin	180.144	0.2		Oxyfluorfen	180.381	0.05	
Cypermethrin	180.418	0.05	T	Paraquat dichloride	180.205	0.05	
Dalapon	180.150	0.2		Permethrin	180.378	0.25	
Dialifor	180.326	0.15	N	Phorate	180.206	0.05	N
Dicamba	180.227	0.2		Phosalone	180.263	0.25	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	1.0		Phosmet	180.261	0.2	
3,7-Dichloro-8-quinoline carboxylic acid.	180.463	0.05		Picloram	180.292	0.2	
2,4-Dichlorophenoxy acetic acid.	180.142(h)	0.2		Piperonyl butoxide	180.127	0.1	N
3',4'-Dichloropropion anilide.	180.274	0.1	N	Pirimiphos-methyl	180.409	0.2	
Dichlorvos	180.235	0.02	N	Primisulfuron	180.452	0.1	
Difenoconazole	180.475	0.05	T	Profenofos	180.404	0.05	
Difenzoquat	180.369	0.05		Propachlor	180.211	0.02	N
Diflubenzuron	180.377	0.05		Propargite	180.259	0.1	
Dimethipin	180.406	0.02		Propham	180.319	0.05	I
Dimethoate	180.204	0.02	N	Propiconazole	180.434	0.1	
Diphenamid	180.230	0.05	N	Propionic acid	180.1023	exempt	
Dipropyl isocinchomeronate.	180.143	0.1	N	Propyzamide	180.317	0.02	N
Diquat dibromide	180.226	0.02		Prosulfuron	180.481	0.05	L
Diuron	180.106	1.0		Pyrethrins	180.128	0.1	N
Endosulfan	180.182	0.2		Quizalofop-ethyl	180.441	0.02	
Ethalfuralin	180.416	0.05		Sethoxydim	180.412	0.2	
Ethephon	180.300	0.1		Simazine	180.213	0.02	N
Ethion	180.173	0.2		Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1).	180.489	0.20	L
Ethofumesate	180.345	0.05		Sulprofos	180.374	0.1	
Etridiazole	180.370	0.1		Tebuthiuron	180.390	2.0	
Fenamiphos	180.349	0.05		Terbacil	180.209	0.1	
				Thiabendazole	180.242	0.1	
				Thidiazuron	180.403	0.2	
				Thiobencarb	180.401	0.2	
				Thiophanate-methyl	180.371	0.1	N
				Triadimefon	180.410	1.0	
				Triadimenol	180.450	0.1	
				Triasulfuron	180.459	0.1	
				S,S,5-Tributyl phosphorothioate.	180.272	0.02	N

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Trichlorfon	180.198	0.1	N
Triclopyr	180.417	0.05	
Triflumazole	180.476	0.05	
Sheep, Meat (Exc. Kidneys)			
Cloprop	180.325	0.05	
Sheep, Meat (Fat Basis)			
Diazinon	180.153	0.7	
Sheep, Meat (Pre-S)			
Malathion	180.111	4.0	
Shellfish			
Cuprous oxide	180.1021	exempt	
2,4-Dichlorophenoxy acetic acid	180.142F	1.0	
Diquat dibromide	180.226	0.1	
Glyphosate and its metabolites	180.364	3.0	
Polyoxyethylene	180.1078	exempt	
Soapstock			
Iprodione	186.3750	10.0	
Sorghum			
Dalapon	180.150	1.0	
2,4-Dichlorophenoxy acetic acid	180.142B	0.5	
Ethylene	180.1016	exempt	
Magnesium phosphide (residues calculated as phosphine)	180.375	0.1	
Parathion	180.121	0.1	N
<i>Trichoderma viride sensu</i> Bisby	180.1102	exempt	
Urea	180.1117	exempt	
Sorghum (Post-H)			
Aluminum phosphide (residues calculated as phosphide)	180.225	0.1	
Isobutyric acid	180.1030	exempt	
Sorghum Grain Dust			
Lambda-cyhalothrin	180.438	1.5	L
Sorghum, Bran			
Aldicarb	185.150	0.5	
Aldicarb	186.150	0.5	
Sorghum, Fodder			
Acetamide	180.464	0.01	
Acetochlor	180.470	0.1	
Alachlor	180.249	1.0	
Aldicarb	180.269	0.5	
Atrazine	180.220	15.0	
Bentazon	180.355	0.05	
Bromoxynil	180.324B	0.1	
Bromoxynil	180.324C	0.1	
Carbofuran	180.254	3.0	
Carboxin	180.301	0.2	
Chlorpyrifos	180.342	6.0	
Cyanazine	180.307	0.05	
Dicamba	180.227	3.0	
2,4-Dichlorophenoxy acetic acid	180.142B	20.0	
Disulfoton	180.183	5.0	
Diuron	180.106	2.0	
Fonofos	180.221	0.1	N
Halosulfuron	180.479A	0.1	
Linuron	180.184	1.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
MCPA	180.339	20.0	
Methidathion	180.298	2.0	
Metolachlor	180.368	2.0	
Nitrapyrin	180.350	0.5	
Parathion	180.121	3.0	
Pendimethalin	180.361	0.1	
Phorate	180.206	0.1	
Propachlor	180.211	5.0	
Propargite	180.259	10.0	
Propazine	180.243	0.25	N
Sodium chlorate	180.1020	exempt	
Terbufos	180.352	0.5	
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Triadimenol	180.450	0.01	
Trifluralin	180.207	0.05	
Sorghum, Forage			
Acetochlor	180.470	0.1	
Alachlor	180.249	2.0	
Allidochlor	180.282	0.05	N
Atrazine	180.220	15.0	
Bentazon	180.355	0.2	
Bromoxynil	180.324B	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	100.0	
Carbofuran	180.254	3.0	
Carboxin	180.301	0.2	
Chlorpyrifos	180.342	1.5	
Cyanazine	180.307	0.05	
Dalapon	180.150	5.0	
Diazinon	180.153	10.0	
Dicamba	180.227	3.0	
2,4-Dichlorophenoxy acetic acid	180.142B	20.0	
Dimethoate	180.204	0.2	
Disulfoton	180.183	5.0	
Diuron	180.106	2.0	
Ethion	180.173	2.0	
Fonofos	180.221	0.1	N
Imidacloprid	180.472	0.1	
Linuron	180.184	1.0	
Malathion	180.111	8.0	
MCPA	180.339	20.0	
Methidathion	180.298	2.0	
Methomyl	180.253	1.0	
Metolachlor	180.368	2.0	
Mevinphos	180.157	1.0	
Nitrapyrin	180.350	0.1	N
Oxydemeton-methyl	180.330	2.0	
Paraquat dichloride	180.205	0.05	
Parathion	180.121	3.0	
Pendimethalin	180.361	0.1	
Propachlor	180.211	5.0	
Propargite	180.259	10.0	
Propazine	180.243	0.25	N
Sodium 5-nitroguaiacolate	180.1139	exempt	
Sodium chlorate	180.1020	exempt	
Terbufos	180.352	0.5	
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Trifluralin	180.207	0.05	
Sorghum, Forage, Green			
Triadimenol	180.450	0.05	
Sorghum, Grain			
Acetamide	180.464	0.01	N
Acetochlor	180.470	0.02	
Aldicarb	180.269	0.2	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Allidochlor	180.282	0.05	N	Hydrocyanic acid	180.130	75.0	
Ammonium nitrate	180.1018	exempt		Methyl bromide	180.123	50.0	
Atrazine	180.220	0.25		Methylene chloride	180.1010	exempt	
Bentazon	180.355	0.05		Sorghum, Grain, Milo, Milled Fractions			
Bromoxynil	180.324B	0.1		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	186.3700	125.0	
Bromoxynil	180.324C	0.1		Sorghum, Grain, Stored (Post-H)			
Carbaryl	180.169	10.0		Methoxychlor	180.120	2.0	
Carbofuran	180.254	0.1		Sorghum, Milled Fractions			
Carboxin	180.301	0.2		Chlorpyrifos	186.1000	1.5	
Chlorpyrifos	180.342	0.75		Sorghum, Milled Fractions (Exc. Flour)			
Chlorpyrifos-methyl	180.419	6.0		Chlorpyrifos-methyl	186.1050	90.0	
Cyanazine	180.307	0.05		Chlorpyrifos-methyl	185.1050	90.0	
Diazinon	180.153	0.75		Oxydemeton-methyl	186.3050	2.0	
Dicamba	180.227	3.0		Pirimiphos-methyl	185.4950	40.0	
Dimethoate	180.204	0.1		Pirimiphos-methyl	186.4950	40.0	
Disulfoton	180.183	0.75		Sorghum, Milo			
Diuron	180.106	1.0		Aqueous extract of seaweed meal	180.1042	exempt	
Ethion	180.173	2.0		Gibberellic acid	180.1098	exempt	
Fonofos	180.221	0.1	N	Indole-3-butyric acid	180.1099	exempt	
Imidacloprid	180.472	0.05		Methoprene	180.359	5.0	
Lambda-cyhalothrin	180.438	0.2	L	Sorghum, Milo, Flours			
MCPA	180.339	0.1		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Methidathion	180.298	0.2		Sorghum, Sweet			
Methomyl	180.253	0.2	N	Propazine	180.243	0.25	N
Metolachlor	180.368	0.3		Soursop			
Mevinphos	180.157	1.0		Glyphosate and its metabolites.	180.364	0.2	
Nitrapyrin	180.350	0.1	N	Soya, Flour			
Oxydemeton-methyl	180.330	0.75		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Paraquat dichloride	180.205	0.05	N	Quizalofop-ethyl	185.5250	0.5	
Pendimethalin	180.361	0.1		Soybeans			
Phorate	180.206	0.1		Acephate	180.108	1.0	
Pirimiphos-methyl	180.409	8.0		Acetamide	180.464	0.01	
Propachlor	180.211	0.25		Acetochlor	180.470	0.1	
Propargite	180.259	10.0		Alachlor	180.249	0.2	
Propazine	180.243	0.25	N	Aldicarb	180.269	0.02	
Sodium chlorate	180.1020	exempt		Allidochlor	180.282	0.05	N
Terbufos	180.352	0.05		<i>Alternaria cassiae</i>	180.1001	exempt	
Terbutryn	180.265	0.1	N	Azinphos-methyl	180.154	0.2	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N	Barban	180.268	0.1	L
Triadimenol	180.450	0.01		<i>Beauveria bassiana</i>	180.1146	exempt	
Sorghum, Grain (Post-H)							
Calcium cyanide	180.125	25.0					
Chloropicrin	180.1008	exempt					
Formaldehyde	180.1032	exempt					
Mineral oil—includes paraffin oil from petroleum hydrocarbons.	180.149	200.0					
Piperonyl butoxide	180.127	8.0					
Propionic acid	180.1023	exempt					
Pyrethrins	180.128	1.0					
Sodium diacetate	180.1058	exempt					
Sorghum, Grain (Pre- and Post-H)							
Malathion	180.111	8.0					
Sorghum, Grain, Forage							
Acetamide	180.464	0.01					
Sorghum, Grain, Milo							
Alachlor	180.249	0.1					
Allethrin	180.1002	exempt					
Halosulfuron	180.479A	0.1					
Linuron	180.184	0.25					
Sorghum, Grain, Milo (Post-H)							
Allethrin	180.113	2.0					

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Benomyl	180.294	0.2	
Bentazon	180.355	0.05	
Butralin	180.358	0.1	
Carbaryl	180.169	5.0	
Carbofuran	180.254	1.0	
Carboxin	180.301	0.2	
Chitosan	180.1072	exempt	
Chloramben	180.266	0.1	
Chlorimuron ethyl	180.429	0.05	
Chloroneb	180.257	0.1	N
Chlorothalonil	180.275	0.2	
Chloroxuron	180.216	0.15	
Chlorpropham	180.181	0.2	
Chlorpyrifos	180.342	0.3	
Chlorthal-dimethyl	180.185	2.0	
Clethodim	180.458	10.0	
Clomazone	180.425	0.05	
<i>Colletotrichum gloeosporioides</i> spores.	180.1075	exempt	
Dalapon	180.150	1.0	
Di-allate	180.277	0.05	X
Diazinon	180.153	0.1	
Dicamba	180.227	0.05	
4-(2,4-Dichlorophenoxy) butyric acid.	180.331	0.2	N
2,4-Dichlorophenoxy acetic acid.	180.142K	0.1	L
Diclofop-methyl	180.385	0.1	
Diiflubenzuron	180.377	0.05	
Dimethoate	180.204	0.05	N
Diphenamid	180.230	0.1	N
Disulfoton	180.183	0.1	
Ethalfuralin	180.416	0.05	
Ethoprop	180.262	0.02	N
Ethylene	180.1016	exempt	
Fenamiphos	180.349	0.05	
Fenoxaprop-ethyl	180.430	0.05	
Fenvalerate	180.379	0.05	
Fluazifop-butyl	180.411	1.0	
Fluchloralin	180.363	0.05	N
Flumetsulam	180.468	0.05	
Fomesafen	180.433	0.05	
Gibberellic acid	180.1098	exempt	
Glyphosate, isopropylamine salt.	180.364	20.0	
Imazaquin	180.426	0.05	
Imazethapyr	180.447	0.1	
Indole-3-butyric acid	180.1099	exempt	
Lactofen	180.432	0.05	
<i>Lagenidium giganteum</i> mycelium.	180.1113	0	
Lambda-cyhalothrin	180.438	0.01	L
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Mefluidide	180.386	0.01	
Metalaxyl	180.408	1.0	
Methomyl	180.253	0.2	N
Metolachlor	180.368	0.2	
Metribuzin	180.332	0.1	
N-1-Naphthylphthalamic acid.	180.297	0.1	N
Norflurazon	180.356	0.1	
Oxadixyl	180.456	0.1	
Oxamyl	180.303	0.2	
Oxyfluorfen	180.381	0.05	
Paraquat dichloride	180.205	0.05	N
Parasitoid insects	180.1101	exempt	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Parathion	180.121	0.1	
Pendimethalin	180.361	0.1	
Permethrin	180.378	0.05	
Phorate	180.206	0.1	
Propionic acid	180.1023	exempt	
Quizalofop-ethyl	180.441	0.05	
Sesame plant, ground ..	180.1087	exempt	
Sethoxydim	180.412	10.0	
Sodium 5-nitroguaiacolate	180.1139	exempt	
Sodium acifluorfen	180.383	0.1	
Sodium chlorate	180.1020	exempt	
Sodium o-nitrophenolate	180.1140	exempt	
Sodium p-nitrophenolate	180.1141	exempt	
Sulprofos	180.374	0.5	
Thiabendazole	180.242	0.1	
Thifensulfuron methyl	180.439	0.1	
Thiodicarb	180.407	0.2	
Thiophanate-methyl	180.371	0.2	
Tralomeethrin	180.422	0.05	T
<i>Trichoderma viride sensu</i> Bisby.	180.1102	exempt	
2,3,5-Triiodobenzoic acid	180.219	0.15	N
Vernolate	180.240	0.1	N
Soybeans (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Methyl bromide	180.123	200.0	
Soybeans, Aspirated Grain Fractiona			
Glyphosate, isopropylamine salt.	180.364	50.0	
Sulfonium, trimethyl-, salt with N-phos phonomethylglycine (1:1).	180.489	210.00	L
Soybeans, Dry			
Captan	180.103	2.0	
Linuron	180.184	1.0	
Malathion	180.111	8.0	
Soybeans, Fodder			
Metalaxyl	180.408	8.0	
Soybeans, Forage			
Acetochlor	180.470	0.7	
Alachlor	180.249	0.75	
Allidochlor	180.282	0.05	N
Bentazon	180.355	3.0	
Butralin	180.358	0.1	
Carbaryl	180.169	100.0	
Carbofuran	180.254	35.0	
Chloramben	180.266	0.1	
Chloroxuron	180.216	0.15	
Chlorpyrifos	180.342	0.7	
Di-allate	180.277	0.05	X
Diazinon	180.153	0.1	
Dicamba	180.227	0.1	
Dimethoate	180.204	2.0	
Diphenamid	180.230	0.5	
Disulfoton	180.183	0.25	
Ethoprop	180.262	0.02	N
Fonofos	180.221	0.1	N
Glyphosate, isopropylamine salt.	180.364	100.0	
Halosulfuron	180.479B	0.5	
<i>Lagenidium giganteum</i> mycelium.	180.1113	0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Linuron	180.184	1.0		Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1)	185.5375	7.0	
Malathion	180.111	135.0		Sulprofos	186.3000	1.0	
Methomyl	180.253	10.0		Thiodicarb	186.5650	0.8	
Methoxychlor	180.120	100.0		Soybeans, Meal			
Metolachlor	180.368	8.0		Acephate	186.100	4.0	
Metribuzin	180.332	4.0		Fluazifop-butyl	186.3250	2.0	
Norflurazon	180.356	1.0		Metalaxyl	186.4000	2.0	
Paraquat dichloride	180.205	0.05	N	Quizalofop-ethyl	186.5250	0.5	
Pendimethalin	180.361	0.1		Soybeans, Oil			
Sodium <i>o</i> -nitrophenolate	180.1140	exempt		Azinphos-methyl	185.2225	1.0	
Sodium <i>p</i> -nitrophenolate	180.1141	exempt		Fluazifop-butyl	185.3250	2.0	
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1)	180.489	2.00	L	Soybeans, Seed			
Sulprofos	180.374	20.0		Halosulfuron	180.479B	0.5	
Vernolate	180.240	0.1	N	Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1)	180.489	3.00	L
Soybeans, Hay				Soybeans, Soapstock			
Acetochlor	180.470	1.0		Clethodim	186.1075	15.0	
Alachlor	180.249	0.2		Diflufenzuron	186.2000	0.1	
Bentazon	180.355	0.3		Fluazifop-butyl	186.3250	2.0	
Carbaryl	180.169	100.0		Metalaxyl	186.4000	2.0	
Carbofuran	180.254	35.0		Quizalofop-ethyl	186.5250	1.0	
Di-allate	180.277	0.05	X	Soybeans, Soapstock, Fatty Acids			
Dicamba	180.227	0.1		Carbofuran	186.600	6.0	
4-(2,4-Dichlorophenoxy) butyric acid	180.331	0.2	N	Soybeans, Straw			
Dimethoate	180.204	2.0		Chlorpyrifos	180.342	15.0	
Diphenamid	180.230	0.5		Dalapon	180.150	1.0	
Disulfoton	180.183	0.25		Oxamyl	180.303	0.2	
Ethoprop	180.262	0.02	N	Soybeans, Succulent			
Fonofos	180.221	0.1	N	Captan	180.103	2.0	
Formaldehyde	180.1032	exempt		Linuron	180.184	1.0	
Glyphosate, isopropylamine salt	180.364	200.0		Malathion	180.111	8.0	
Halosulfuron	180.479B	0.5		Soybeans, Vines, Forage			
<i>Lagenidium giganteum</i> mycelium	180.1113	0		Chloroneb	180.257	2.0	
Linuron	180.184	1.0		Spearmint			
Malathion	180.111	135.0		Gibberellic acid	180.1098	exempt	
Metalaxyl	180.408	8.0		Glyphosate and its metabolites	180.364	200	
Metolachlor	180.368	8.0		Malathion	180.111	8.0	
Metribuzin	180.332	4.0		Sethoxydim	180.412	30.0	L
<i>N</i> -1-Naphthylphthalamic acid	180.297	0.1	N	Tetradifon	180.174	100.0	
Norflurazon	180.356	1.0		Spearmint, Hay			
Parathion	180.121	1.0		Dicofol	180.163	25.0	
Pendimethalin	180.361	0.1		Fonofos	180.221	0.1	N
Propionic acid	180.1023	exempt		Oxamyl	180.303	10.0	
Sethoxydim	180.412	10.0		Trifluralin	180.207	0.05	N
Sodium 5-nitroguaiacolate	180.1139	exempt		Spices, Processed			
Sodium <i>o</i> -nitrophenolate	180.1140	exempt		Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700)	185.3700	400.0	
Sodium <i>p</i> -nitrophenolate	180.1141	exempt		Spices, Whole (Post-H)			
Sulfonium, trimethyl-, salt with <i>N</i> -phos phonomethylglycine (1:1)	180.489	5.00	L	Ethylene oxide	180.151	50.0	
Sulprofos	180.374	15.0					
Vernolate	180.240	0.1	N				
Soybeans, Hulls							
Diflufenzuron	186.2000	0.5					
Fenvalerate	186.1300	1.0					
Flumiclorac-pentyl	186.3325	0.01					
Glyphosate and its metabolites	186.3500	100.0					
Metalaxyl	186.4000	2.0					
Quizalofop-ethyl	186.5250	0.02					

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Spinach			
Allethrin	180.1002	exempt	
Aqueous extract of seaweed meal	180.1042	exempt	
Azinphos-methyl	180.154	2.0	
Benomyl	180.294	0.2	
Captan	180.103	100.0	
Carbaryl	180.169	12.0	
Chlorpropham	180.319	0.3	I
Diazinon	180.153	0.7	
Diethatyl ethyl	180.402	1.0	
Dimethoate	180.204	2.0	
Disulfoton	180.183	0.75	
Dodine	180.172	12.0	R
Endosulfan	180.182	2.0	
S-Ethyl cyclohexylethylthiocarbamate	180.212	0.05	N
Ferbam	180.114	7.0	
Fluazifop-butyl	180.411	6.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Lindane	180.133	1.0	
Maneb	180.110	10.0	
Metalaxyl	180.408	10.0	
Methomyl	180.253	6.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	1.0	
Naled	180.215	3.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Permethrin	180.378	20.0	
Phenmedipham	180.278	0.5	
Propham	180.319	0.1	
Sethoxydim	180.412	4.0	I
Urea	180.1117	exempt	
Zineb	180.115	10.0	X
Ziram	180.116	7.0	
Spinach, New Zealand			
Urea	180.1117	exempt	
Squash			
Aqueous extract of seaweed meal	180.1042	exempt	
Carbofuran	180.254	0.8	
Cryolite	180.145	7.0	
Ethylene	180.1016	exempt	
Ferbam	180.114	7.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
L-(+)-Lactic acid	180.1001	exempt	
Lindane	180.133	3.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Sesame plant, ground	180.1087	exempt	
Thiophanate-methyl	180.371	1.0	
Zineb	180.115	4.0	X
Ziram	180.116	7.0	
Squash, Hubbard			
Thiabendazole	180.242	1.0	
Squash, Summer			
Anilazine	180.158	10.0	
Benomyl	180.294	1.0	
Captan	180.103	25.0	
Carbaryl	180.169	10.0	
Chloramben	180.266	0.1	
Chlorothalonil	180.275	5.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Chlorthal-dimethyl	180.185	1.0	
Clomazone	180.425	0.1	
Cryolite	180.145	7.0	
Diazinon	180.153	0.5	
Dicofol	180.163	5.0	
Dinocap	180.341	0.1	N
Endosulfan	180.182	2.0	
Ethion	180.173	0.5	
Fenvalerate	180.379	0.5	
Ferbam	180.114	7.0	
Folpet	180.191	15.0	
Lindane	180.133	3.0	
Malathion	180.111	8.0	
Mancozeb	180.176	4.0	
Maneb	180.110	4.0	
Methoxychlor	180.120	14.0	
Mevinphos	180.157	0.25	
Naled	180.215	0.5	
Nicotine	180.167	2.0	
Oxamyl	180.303	2.0	
Oxydemeton-methyl	180.330	1.0	
Parathion	180.121	1.0	
Urea	180.1117	exempt	
Watermelon mosaic virus-2 coat protein as produced in cucurbits by the WMV2	180.1132	exempt	
Zineb	180.115	7.0	X
Ziram	180.116	7.0	
Zucchini yellow mosaic virus coat protein as produced in cucurbits by the ZYMV	180.1132	exempt	
Squash, Summer (Post-H)			
Methyl bromide	180.123	30.0	X
Squash, Winter			
Anilazine	180.158	10.0	
Benomyl	180.294	1.0	
Captan	180.103	25.0	
Carbaryl	180.169	10.0	
Chloramben	180.266	0.1	
Chlorothalonil	180.275	5.0	
Chlorthal-dimethyl	180.185	1.0	
Clomazone	180.425	0.1	
Diazinon	180.153	0.75	
Dicofol	180.163	5.0	
Dinocap	180.341	0.1	N
Endosulfan	180.182	2.0	
Fenvalerate	180.379	1.0	
Folpet	180.191	15.0	
Malathion	180.111	8.0	
Maneb	180.110	4.0	
Naled	180.215	0.5	
Oxamyl	180.303	2.0	
Oxydemeton-methyl	180.330	0.3	
Tetradifon	180.174	1.0	
Urea	180.1117	exempt	
Squash, Winter (Post-H)			
Methyl bromide	180.123	20.0	
Squash, Zucchini			
Urea	180.1117	exempt	
Squash, Zucchini (Post-H)			
Methyl bromide	180.123	20.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Stored Feed, Dried (4% Fat or Less) (From Cotton Bags)				Methoxychlor	180.120	14.0	
Piperonyl butoxide	186.4900	10.0		Mevinphos	180.157	1.0	
Stored Feed, Dried (4% Fat or Less) (From Paper Bags)				Naled	180.215	1.0	
Piperonyl butoxide	186.4900	10.0		Nicotine	180.167	2.0	
Stored Feed, Dried (4% Fat or Less) (From Cotton Bags)				Nitrapyrin	180.350	0.2	R
Pyrethrins	186.5200	1.0		Oxydemeton-methyl	180.330	2.0	
Stored Feed, Dried (4% Fat or Less) (From Paper Bags)				Paraquat dichloride	180.205	0.25	
Pyrethrins	186.5200	1.0		Parathion	180.121	1.0	
Strawberries				Propargite	180.259	7.0	
Abamectin	180.449	0.02		Sesame plant, ground ...	180.1087	exempt	
Aluminum tris(O-ethylphosphonate)	180.415	75		Sethoxydim	180.412	10.0	
Anilazine	180.158	10.0		Simazine	180.213	0.25	
Aqueous extract of seaweed meal	180.1042	exempt		Sodium acifluorfen	180.383	0.05	
Azinphos-methyl	180.154	2.0		Terbacil	180.209	0.1	
Benomyl	180.294	5.0		Tetradifon	180.174	5.0	
Bifenthrin	180.442	3.00		Thiabendazole	180.242	5.0	
Captan	180.103	25.0		Thiophanate-methyl	180.371	5.0	
Carbaryl	180.169	10.0		Thiram	180.132	7.0	
Carbofuran	180.254	0.5		Triforine	180.382	2.0	
Chloroxuron	180.216	0.1		Urea	180.1117	exempt	
Chlorpyrifos	180.342	0.2		Vinclozolin	180.380	10.0	
Chlorthal-dimethyl	180.185	2.0		Zineb	180.115	7.0	X
Cryolite	180.145	7.0		Ziram	180.116	7.0	
Cyhexatin	180.144	3.0		Strawberries (Post-H)			
Diazinon	180.153	0.5		Acetaldehyde	180.1031	exempt	
Dichlorone	180.118	15.0		Sodium dehydroacetate	180.159	65.0	
2,4-Dichlorophenoxy acetic acid	180.142E	0.05		Strawberries (Pre- and Post-H)			
Dicofol	180.163	5.0		Methyl bromide	180.123	60.0	
Diphenamid	180.230	1.0		Sudangrass			
Disul-Na	180.102	2.0		Formaldehyde	180.1032	exempt	
Dodine	180.172	5.0		Propionic acid	180.1023	exempt	
Endosulfan	180.182	2.0		Sudangrass, Hay			
EPTC	180.117	0.1	N	Sodium diacetate	180.1058	exempt	
Ethion	180.173	2.0		Sugar Apple			
Etridiazole	180.370	0.2		Glyphosate and its metabolites	180.364	0.2	
Fenamiphos	180.349	0.6		Methidathion	180.298	0.2	R
Fenbutatin oxide	180.362	10.0		Sugarcane			
Fenpropathrin	180.466	2.0	L	Aldicarb	180.269	0.02	
Ferbam	180.114	7.0		Allidochlor	180.282	0.05	N
Folpet	180.191	25.0		Ametryn	180.258	0.25	
Fonofos	180.221	0.1	N	Asulam	180.360	0.1	N
Gibberellic acid	180.1098	exempt		Atrazine	180.220	0.25	
Indole-3-butyric acid	180.1099	exempt		Azinphos-methyl	180.154	0.3	
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide	180.199	25.0		Carbofuran	180.254	0.1	
Iprodione	180.399	15.0		Chlorfenac	180.283	0.01	N
L(+)-Lactic acid	180.1001	exempt		Chlorpyrifos	180.342	0.01	
Lindane	180.133	1.0		Cyfluthrin	180.436	0.05	L
Malathion	180.111	8.0		Dalapon	180.150	0.1	
Metalaxyl	180.408	10.0		Diazinon	180.153	0.75	
Metalddehyde	185.4025	0.0		Dicamba	180.227	0.1	
Methomyl	180.253	2.0		2,4-Dichlorophenoxy acetic acid	180.142B	2.0	
				Diquat dibromide	180.226	0.05	
				Disulfoton	180.183	0.3	
				Diuron	180.106	1.0	
				Endosulfan	180.182	0.5	
				Ethephon	180.300	0.1	R
				Ethoprop	180.262	0.02	N
				Fenvalerate	180.379	2.0	
				Fluometuron	180.229	0.1	N
				Fonofos	180.221	0.1	N
				Gibberellic acid	180.224	0.15	N
				Gibberellic acid	180.1098	exempt	
				Glyphosate and its metabolites	180.364	2.0	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Hexazinone	180.396	0.2	R
Indole-3-butyric acid	180.1099	exempt	
Metribuzin	180.332	0.1	
Metsulfuron-methyl	180.428	0.05	
Monocrotophos	180.296	0.1	
Paraquat dichloride	180.205	0.5	N
Parathion	180.121	0.1	N
Pendimethalin	180.361	0.1	
Phorate	180.206	0.1	
Phosphamidon	180.239	0.1	
Simazine	180.213	0.25	
Terbacil	180.209	0.1	
Trifluralin	180.207	0.05	N
Zinc phosphide	180.284	0.01	
Sugarcane (Seed Piece Tret Pre-H)			
Thiophanate-methyl	180.371	0.1	N
Sugarcane, Bagasse			
2,4-Dichlorophenoxy acetic acid.	186.1450	5.0	
Fenvalerate	186.1300	20.0	
Fluometuron	186.3350	0.2	
Metribuzin	186.250	0.5	
Sugarcane, Bagasse (CT. F, GT. F., Sh. F)			
Azinphos-methyl	186.2225	1.5	
Sugarcane, Fodder			
Aldicarb	180.269	0.1	
Ametryn	180.258	0.25	
Atrazine	180.220	0.25	
Dicamba	180.227	0.1	
Ethoprop	180.262	0.02	N
Gibberellic acid	180.224	0.15	N
Parathion	180.121	0.1	N
Sugarcane, Forage			
Aldicarb	180.269	0.1	
Ametryn	180.258	0.25	
Atrazine	180.220	0.25	
Dicamba	180.227	0.1	
2,4-Dichlorophenoxy acetic acid.	180.142B	20.0	
Ethoprop	180.262	0.02	N
Gibberellic acid	180.224	0.15	N
Parathion	180.121	0.1	N
Sugarcane, Molasses			
Cyfluthrin	186.1250	0.2	
Dicamba	185.1800	2.0	
Dicamba	186.1800	2.0	
2,4-Dichlorophenoxy acetic acid.	186.1450	5.0	
2,4-Dichlorophenoxy acetic acid.	185.1450	5.0	
Glyphosate and its metabolites.	185.3500	30.0	
Hexazinone	185.3575	5.0	R
Hexazinone	186.3575	5.0	R
Metribuzin	185.250	2.0	
Metribuzin	186.250	0.3	
Sugarcane, Molasses, Byproduct (Animal Feed)			
Ethephon	186.2700	1.5	
Sugarcane, Molasses, Byproduct			
Ethephon	185.2700	1.5	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Sugarcane, Molasses, Byproduct (Animal Feed)			
Simazine	186.5350	1.0	
Sunflower Oil			
Lambda-cyhalothrin	185.3765	0.30	L
Sunflower, Forage			
Cyfluthrin	180.436	1.00	L
Lambda-cyhalothrin	180.438	0.2	L
Metalaxyl	180.408	0.1	
Sunflower, Seeds			
4-Aminopyridine	180.312	0.1	N
Barban	180.268	0.1	L
<i>Beauveria bassiana</i>	180.1146	exempt	
Carbaryl	180.169	1.0	
Carbofuran	180.254	1.0	
Chloramben	180.266	0.1	
Chlorpyrifos	180.342	0.25	
Cyfluthrin	180.436	0.02	L
Endosulfan	180.182	2.0	
EPTC	180.117	0.1	N
Ethalfuralin	180.416	0.05	
Fenvalerate	180.379	1.0	
Fluchloralin	180.363	0.05	
Glyphosate, isopropylamine salt.	180.364	0.1	
Imazethabenz	180.437	0.1	
Lambda-cyhalothrin	180.438	0.2	L
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Metalaxyl	180.408	0.1	
Oxadixyl	180.456	0.1	
Paraquat dichloride	180.205	2.0	
Parathion	180.121	0.2	
Pendimethalin	180.361	0.1	
Sethoxydim	180.412	7.0	
Sodium chlorate	180.1020	exempt	
Tralomethrin	180.422	0.05	L
Trifluralin	180.207	0.05	N
Urea	180.1117	exempt	
Sunflower, Seeds (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Malathion	180.111	8.0	
Sunflower, Seeds, Hulls			
Carbofuran	186.600	1.4	
Chlorpyrifos	186.1000	0.5	
Fenvalerate	186.1300	2.0	
Lambda-cyhalothrin	186.3765	0.50	L
Paraquat dichloride	186.4700	6.0	
Sunflower, Seeds, Meal			
Carbofuran	186.600	1.4	
Sethoxydim	186.2800	20.0	
Sunflower, Seeds, Soapstock			
Carbofuran	186.600	3.0	
Sweet Potatoes			
Aldicarb	180.269	0.1	
Allethrin	180.1002	exempt	
Allidochlor	180.282	0.05	N
Ammonium nitrate	180.1018	exempt	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Aqueous extract of seaweed meal.	180.1042	exempt		Diflubenzuron	180.377	0.5	
Benomyl	180.294	0.2		Dimethoate	180.204	2.0	
Carbaryl	180.169	0.2		Dioxathion	180.171	3.0	
Chloramben	180.266	0.1		Ethephon	180.300	0.5	
Chlorpyrifos	180.342	0.05		Fenamiphos	180.349	0.6	
Clomazone	180.425	0.05		Formetanate hydrochloride.	180.276	4.0	
Diazinon	180.153	0.1		Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy)propionamide.	180.328	0.1		Malathion	180.111	8.0	
Diphenamid	180.230	0.1	N	Methomyl	180.253	2.0	
Endosulfan	180.182	0.2		Naled	180.215	3.0	
Ethoprop	180.262	0.02	N	1-Naphthaleneacetic acid.	180.155	0.1	
Ethylene	180.1016	exempt		Phosphamidon	180.239	0.75	
Fluazifop-butyl	180.411	0.5		Tetradifon	180.174	2.0	
Glyphosate and its metabolites.	180.364	0.2		Urea	180.1117	exempt	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01		Tangerines (Post-H)			
Malathion	180.111	1.0		Methyl bromide	180.123	30.0	
Parathion	180.121	0.1	N	2-Phenylphenol	180.129	10.0	
Sethoxydim	180.412	4.0		Tangerines, Hybrids			
Vernolate	180.240	0.1	N	Ethephon	180.300	0.5	
Sweet Potatoes (Post-H)				Taniers			
Dicloran	180.200	10.0		Ametryn	180.258	0.25	
Methyl bromide	180.123	75.0		Taniers (Yautia)			
2-Phenylphenol	180.129	15.0		Paraquat dichloride	180.205	0.05	R
Phosmet	180.261	10.0		Taro (Corm)			
Piperonyl butoxide	180.127	0.25		Captafol	180.267	0.02	
Pyrethrins	180.128	0.05		Captan	180.103	0.25	
Sweet Potatoes (Pre- and Post-H)				Oxyfluorfen	180.381	0.05	R
Methoxychlor	180.120	7.0		Paraquat dichloride	180.205	0.1	
Sweet Potatoes (Yams)				Taro (Leaves)			
Chlorthal-dimethyl	180.185	2.0		Oxyfluorfen	180.381	0.05	R
Sweet Potatoes, Seed (Post-H)				Tea, Dried			
Streptomycin	180.245	0.02		Dicofol	185.410	45	
Thiabendazole	180.242	0.02		Endosulfan	185.2600	24.0	
Swiss Chard				Ethion	185.2750	10.0	
Carbaryl	180.169	12.0		Glyphosate and its metabolites.	185.3500	1.0	
Diazinon	180.153	0.7		Phosalone	185.4800	8.0	
Dimethoate	180.204	2.0		Tetradifon	185.5475	8.0	
Lindane	180.133	1.0		Tea, Instant			
Methomyl	180.253	6.0		Glyphosate and its metabolites.	185.3500	4.0	
Naled	180.215	3.0		Glyphosate and its metabolites.	185.3500	7.0	
Nicotine	180.167	2.0		Thyme (Post-H)			
Parathion	180.121	1.0		Hydrocyanic acid	180.130	250.0	
Zineb	180.115	25.0	X	Timothy			
Syrup, Maple				Formaldehyde	180.1032	exempt	
Paraformaldehyde	185.4650	2.0		Glyphosate and its metabolites.	180.364	200.0	
Tamarind				Isobutyric acid	180.1030	exempt	
Glyphosate and its metabolites.	180.364	0.2		Propionic acid	180.1023	exempt	
Tangelos				Timothy, Hay (Post-H)			
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01		Methyl bromide	180.123	50.0	
Tangerines				Sodium diacetate	180.1058	exempt	
Dalapon	180.150	5.0		Tomato Paste			
Dicofol	180.163	10.0		Imidacloprid	185.900	6.0	
				Tomato Puree			
				Imidacloprid	185.900	3.0	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Tralomehrin	185.5450	1.00	L
Tomatoes			
Abamectin	180.449	0.01	
Allethrin	180.1002	exempt	
Allidochlor	180.282	0.05	N
Anilazine	180.158	10.0	
Aqueous extract of sea-weed meal.	180.1042	exempt	
Bacteriophages of <i>Xanthomonas campestris</i> subsp. <i>viscatoria</i> .	180.31	exempt	
Benomyl	180.294	5.0	
Calcium cyanide	180.125	5.0	
Captafol	180.267	15.0	
Captan	180.103	25.0	
Carbaryl	180.169	10.0	
Chloramben	180.266	0.1	
4-Chlorophenoxyacetic acid.	180.202	0.05	
Chlorothalonil	180.275	5.0	
Chlorpropham	180.319	0.1	I
Chlorpyrifos	180.342	0.5	
Chlorthal-dimethyl	180.185	1.0	
Cryolite	180.145	7.0	
Cyfluthrin	180.436	0.2	L
Cyromazine	180.414	1.0	
Deltamethrin	180.435	0.2	
Diazinon	180.153	0.75	
Dichlone	180.118	3.0	
O-(4,5-Dichloro-2-(methylthio)phenyl) O,O-diethyl phosphorothioate, an isomer of.	180.398	0.5	
Dicloran	180.200	5.0	
Dicofol	180.163	5.0	
Dimethoate	180.204	2.0	
Disulfoton	180.183	0.75	
Endosulfan	180.182	2.0	
Ethephon	180.300	2.0	
Ethion	180.173	2.0	
Ethylene	180.1016	exempt	
Etridazole	180.370	0.15	
Fenpropathrin	180.466	0.6	L
Fenvalerate	180.379	1.0	
Ferbam	180.114	7.0	
Folpet	180.191	25.0	
Fosetyl-Al	180.415	3	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
Inorganic bromides resulting from soil treatment with combinations of chloropicrin, methyl bromide, and propargyl bromide.	180.199	40.0	
L-(+)-Lactic acid	180.1001	exempt	
Lambda-cyhalothrin	180.438	0.1	
Lindane	180.133	3.0	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.01	
Malathion	180.111	8.0	
Mancozeb	180.176	4.0	
Maneb	180.110	4.0	
Methamidophos	180.315	1.0	
Methomyl	180.253	1.0	
Methoxychlor	180.120	14.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Metiram	180.217	4.0	
Metribuzin	180.332	0.1	
Mevinphos	180.157	0.2	
Monocrotophos	180.296	0.5	
Naled	180.215	0.5	
Nicotine	180.167	2.0	
Oxamyl	180.303	2.0	
Parathion	180.121	1.0	
Pebulate	180.238	0.1	N
Pentachloronitrobenzene	180.319	0.1	I
Permethrin	180.378	2.0	
Phorate	180.206	0.1	
Phosmet	180.261	2.0	
Phosphamidon	180.239	0.1	
Sesame plant, ground	180.1087	exempt	
Tetrachlorvinphos	180.252	5.0	
Tetradifon	180.174	1.0	
Thiram	180.132	7.0	
Trichlorfon	180.198	0.1	N
<i>Trichoderma viride sensu</i> Bisby.	180.1102	exempt	
Urea	180.1117	exempt	
Vinclozolin	180.380	3.0	
Zineb	180.115	4.0	X
Ziram	180.116	7.0	
Tomatoes (From Pre-Trans App)			
Streptomycin	180.245	0.25	
Tomatoes (Post-H)			
Allethrin	180.113	4.0	
Methyl bromide	180.123	20.0	
2-Phenylphenol	180.129	10.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Tomatoes (Pre- and Post-H)			
Azinphos-methyl	180.154	2.0	
Dichlorvos	180.235	0.5	
Tomatoes, Conc Prods			
Cyfluthrin	185.1250	0.5	L
Deltamethrin	185.1580	1.0	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	250.0	
Monocrotophos	185.2250	2.0	
Sethoxydim	185.2800	24.0	
Sethoxydim	185.2800	24.0	
Tomatoes, Pomace, Dried			
Abamectin	186.300	0.07	
Cyfluthrin	186.1250	5.0	L
Fenvalerate	186.1300	10.0	
Imidacloprid	186.900	4.0	
Lambda-cyhalothrin	186.3765	6.0	L
Metaxyl	186.4000	20.0	
Metribuzin	186.250	2.0	
Sethoxydim	186.2800	12.0	
Tralomehrin	186.5450	4.00	L
Tomatoes, Pomace, Wet			
Abamectin	186.300	0.07	
Cyfluthrin	186.1250	5.0	L

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Imidacloprid	186.900	4.0		Turnips, Greens			
Lambda-cyhalothrin	186.3765	6.0	L	Benomyl	180.294	6.0	R
Metalaxyl	186.4000	20.0		Captan	180.103	2.0	
Tralomethrin	186.5450	1.50	L	Chlorpyrifos	180.342	0.3	
Tomatoes, Processed				Chlorthal-dimethyl	180.185	5.0	
Benomyl	185.350	50		Cryolite	180.145	7.0	
Metalaxyl	185.4000	3.0		Endosulfan	180.182	2.0	
Tree Nuts				Ferbam	180.114	7.0	
Chlorpyrifos	180.342	0.2		Methoxychlor	180.120	14.0	
Glyphosate, isopropylamine salt.	180.364	1.0		Nicotine	180.167	2.0	
Metolachlor	180.368	0.1		Parathion	180.121	1.0	
Oxyfluorfen	180.381	0.05		Permethrin	180.378	20.0	R
Tree Nuts Group				Zineb	180.115	7.0	X
Sethoxydim	180.412	0.2		Ziram	180.116	7.0	
Sulfonium, trimethyl-, salt with <i>N</i> -phosphonomethylglycine (1:1).	180.489	0.05		Turnips, Greens, Tops			
Tree Nuts Group (Exc. Almonds)				Methomyl	180.253	6.0	
Glufosinate-ammonium	180.473	0.1	T	Turnips, Roots			
Trefoil				Benomyl	180.294	0.2	
MCPA	180.339	0.1		Captan	180.103	2.0	
Trefoil, Birdsfoot				Carbaryl	180.169	5.0	
Azinphos-methyl	180.154	2.0		Chlorpyrifos	180.342	1.0	
Benfluralin	180.208	0.05	N	Diazinon	180.153	0.5	
Diazinon	180.153	40.0		Dimethoate	180.204	2.0	
4-(2,4-Dichlorophenoxy) butyric acid.	180.331	0.2	N	Fenvalerate	180.379	0.5	
Paraquat dichloride	180.205	5.0		Maneb	180.110	7.0	
Trefoil, Birdsfoot, Forage				Paraquat dichloride	180.205	0.05	R
Carbaryl	180.169	100.0		Turnips, Roots (Post-H)			
Diuron	180.106	2.0		Methyl bromide	180.123	30.0	
Malathion	180.111	135.0		Turnips, Tops			
Methyl parathion	180.121	1.25		Carbaryl	180.169	12.0	
Mevinphos	180.157	1.0		Diazinon	180.153	0.75	
Trefoil, Birdsfoot, Hay				Dimethoate	180.204	2.0	
Azinphos-methyl	180.154	5.0		Fenvalerate	180.379	20.0	
Carbaryl	180.169	100.0		Maneb	180.110	10.0	
Diazinon	180.153	10.0		Mevinphos	180.157	1.0	
Diuron	180.106	2.0		Naled	180.215	3.0	
Malathion	180.111	135.0		Oxydemeton-methyl	180.330	2.0	
Methyl parathion	180.121	5.0		Paraquat dichloride	180.205	0.05	
Mevinphos	180.157	1.0		Turnips, with Tops			
Trichlorfon	180.198	90.0		Cryolite	180.145	7.0	
Trefoil, Hay				Ferbam	180.114	7.0	
MCPA	180.339	0.1		Malathion	180.111	8.0	
Tumeric (Post-H)				Methoxychlor	180.120	14.0	
Hydrocyanic acid	180.130	250.0		Nicotine	180.167	2.0	
Turnips				Parathion	180.121	1.0	
Allethrin	180.1002	exempt		Zineb	180.115	7.0	X
Chlorthal-dimethyl	180.185	2.0		Ziram	180.116	7.0	
Ethylene	180.1016	exempt		Turnips, without Tops			
Gibberellic acid	180.1098	exempt		Cryolite	180.145	7.0	
Glyphosate and its metabolites.	180.364	0.2		Ferbam	180.114	7.0	
Indole-3-butyric acid	180.1099	exempt		Methoxychlor	180.120	14.0	
Mevinphos	180.157	0.25		Nicotine	180.167	2.0	
Oxydemeton-methyl	180.330	0.3		Parathion	180.121	1.0	
Sesame plant, ground ...	180.1087	exempt		Zineb	180.115	7.0	X
				Ziram	180.116	7.0	
				Tyfon			
				Paraquat dichloride	180.205	0.05	
				Vegetables			
				Ethylene	180.1016	exempt	
				Vegetables, Bulb			
				Glyphosate and its metabolites.	180.364	0.2	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Sethoxydim	180.412	1.0	
Vegetables, Dried			
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	185.3700	125.0	
Vegetables, Fruiting			
Bensulide	180.241	0.1	N
Dalapon	180.150B	0.2	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
<i>N,N</i> -Diethyl-2-(1-naphthalenyloxy) propionamide.	180.328	0.1	N
Diphenamid	180.230	0.1	N
Diquat dibromide	180.226	0.02	
EPTC	180.117	0.1	N
Fluridone	180.420	0.1	
Fonofos	180.221	0.1	N
Methomyl	180.253	0.2	N
Paraquat dichloride	180.205	0.05	
Sethoxydim	180.412	4.0	
Trifluralin	180.207	0.05	N
Vegetables, Fruiting (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Vegetables, Fruiting (Exc. Cucurbits) Group			
Glyphosate and its metabolites.	180.364	0.1	
Metalaxyl	180.408	1.0	
Oxadixyl	180.456	0.1	
Vegetables, Fruiting Group			
Imidacloprid	180.472	1.0	
Vegetables, Leafy			
Bensulide	180.241	0.1	N
Chlorthal-dimethyl	180.185	5.0	
Dalapon	180.150B	0.5	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Diquat dibromide	180.226	0.02	
EPTC	180.117	0.1	N
Fluridone	180.420	0.1	
Fonofos	180.221	0.1	N
Gibberellic acid	180.224	0.15	N
Glyphosate and its metabolites.	180.364	0.2	N
Imidacloprid	180.472	3.5	
Trifluralin	180.207	0.05	N
Vegetables, Leafy (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Vegetables, Leafy (Exc. Brassica)			
Cyromazine	180.414	10.0	
Fosetyl-Al	180.415	100	
Glyphosate and its metabolites.	180.364	0.2	
Malathion	180.111	8.0	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Metalaxyl	180.408	5	
Oxadixyl	180.456	0.1	
Permethrin	180.378	20.0	
Vegetables, Leafy (Not Listed in 108.253)			
Methomyl	180.253	0.2	N
Vegetables, Legume Foliage (Exc. Soybean Forage and Hay)			
Metolachlor	180.368	15.0	
Vegetables, Legume Foliage (Exc. Soybeans)			
Quizalofop-ethyl	180.441	3.0	L
Vegetables, Root Crop			
Dalapon	180.150B	0.2	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Diquat dibromide	180.226	0.02	
EPTC	180.117	0.1	N
Fluridone	180.420	0.1	
Fonofos	180.221	0.1	N
Glyphosate and its metabolites.	180.364	0.1	
Methomyl	180.253	0.2	N
Oxamyl	180.303	0.1	
Vegetables, Root Crop (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Vegetables, Root Crop (Exc. Carrots)			
Trifluralin	180.207	0.05	N
Vegetables, Seed and Pod			
Chlorpyrifos	180.342	0.1	
Dalapon	180.150B	0.5	
2,4-Dichlorophenoxy acetic acid.	180.142C	0.1	N
Diquat dibromide	180.226	0.02	
EPTC	180.117	0.1	N
Fluridone	180.420	0.1	
Fonofos	180.221	0.1	N
Glyphosate and its metabolites.	180.364	0.2	N
MCPA	180.339	0.1	
Trifluralin	180.207	0.05	N
Vegetables, Seed and Pod (180.142(f))			
2,4-Dichlorophenoxy acetic acid.	180.142F	1.0	
Vegetables, Seed and Pod, Dry and Succulent			
Fluchloralin	180.363	0.05	
Vegetables, Seed and Pod, Forage			
Fluchloralin	180.363	0.1	
Glyphosate and its metabolites.	180.364	0.2	N

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Vegetables, Seed and Pod, Hay			
Fluchloralin	180.363	0.1	N
Glyphosate and its metabolites.	180.364	0.2	
Vegetables, Seed and Pod (Exc.Soybean)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.01	
Metolachlor	180.368	0.3	
Vetch			
Formaldehyde	180.1032	exempt	
MCPA	180.339	0.1	
Parathion	180.121	1.0	
Propionic acid	180.1023	exempt	
Vetch, Forage			
Diuron	180.106	2.0	
Vetch, Hay			
Diuron	180.106	2.0	
Malathion	180.111	135.0	
MCPA	180.339	0.1	
Vetch, Seed			
Diuron	180.106	1.0	
Malathion	180.111	8.0	
Vetch, Straw			
Malathion	180.111	135.0	
Walnuts			
Abamectin	180.449	0.005	
Azinphos-methyl	180.154	0.3	
Benzoic acid	180.482	0.1	
Carbaryl	180.169	1.0	
Chinomethionat	180.338	0.1	N
Chlorpyrifos	180.342	0.2	
Clofentazine	180.446	0.02	
Cyhexatin	180.144	0.5	
Dalapon	180.150	5.0	
Diazinon	180.153	0.5	
Dicofol	180.163	5.0	
Diflubenzuron	180.377	0.1	
Dioxathion	180.171	0.14	N
Endosulfan	180.182	0.2	N
Ethephon	180.300	0.5	
Ethion	180.173	0.1	
Fenbutatin oxide	180.362	0.5	
Magnesium phosphide (residues calculated as phosphine).	180.375	0.1	
Malathion	180.111	8.0	
Metaxyl	180.408	0.5	
Methidathion	180.298	0.05	N
Naled	180.215	0.5	
Norflurazon	180.356	0.1	
Oxadiazon	180.346	0.05	N
Oxydemeton-methyl	180.330	0.3	
Oxyfluorfen	180.381	0.05	
Parathion	180.121	0.1	N
Permethrin	180.378	0.05	
Phosalone	180.263	0.05	N
Phosphamidon	180.239	0.1	
Propargite	180.259	0.1	
Propylene oxide	180.491	150	L
Sesame plant, ground ...	180.1087	exempt	
Simazine	180.213	0.25	
Urea	180.1117	exempt	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Walnuts (Post-H)			
Aluminum phosphide (residues calculated as phosphide).	180.225	0.1	
Hydrocyanic acid	180.130	25.0	
Methyl bromide	180.123	200.0	
Piperonyl butoxide	180.127	8.0	
Pyrethrins	180.128	1.0	
Walnuts, Black			
Dodine	180.172	0.3	
Walnuts, Black, Meat (Post-H)			
Ethylene oxide	180.151	50.0	
Walnuts, English			
Fenvalerate	180.379	0.2	
Walnuts, Meat (Shell Removed)			
Mevinphos	180.157	0.25	
Water, Potable			
Copper (metallic)	185.1200	1.0	
Dalapon	185.1500	0.2	
2,4-Dichlorophenoxy acetic acid.	185.1450	0.1	N
Diquat dibromide	185.2500	0.01	
Endothall	185.2650	0.2	I
Water, Potable (Aboard Ships)			
Bromine	185.425	1.0	
Watercress			
Benomyl	180.294	10.0	R
Diazinon	180.153	0.7	
Endosulfan	180.182	2.0	
Gibberellic acid	180.1098	exempt	
Methomyl	180.253	6.0	
Mevinphos	180.157	2.0	
Permethrin	180.378	5.0	
Watermelons			
Butralin	180.358	0.1	
Captan	180.103	25.0	
Chlorthal-dimethyl	180.185	1.0	
Dicofol	180.163	5.0	
Dinocap	180.341	0.1	N
Ethylene	180.1016	exempt	
Fenvalerate	180.379	1.0	
Mevinphos	180.157	0.5	
N-1-Naphthylphthalamic acid.	180.297	0.1	N
Oxamyl	180.303	2.0	
Phosphamidon	180.239	0.25	
Triforine	180.382	1.0	
Urea	180.1117	exempt	
Watermelons (Post-H)			
Methyl bromide	180.123	20.0	
Wheat			
Aqueous extract of sea-weed meal.	180.1042	exempt	
Barban	180.268	0.1	L
Chitosan	180.1072	exempt	
Dalapon	180.150B	2.0	
Gibberellic acid	180.1098	exempt	
Indole-3-butyric acid	180.1099	exempt	
L(+)-Lactic acid	180.1001	exempt	
Methoprene	180.359	5.0	
Parathion	180.121	1.0	

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Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Zineb	180.115	1.0	X
Wheat (Post-H)			
Aluminum phosphide (residues calculated as phosphide)	180.225	0.1	
Hydrocyanic acid	180.130	75.0	
Isobutyric acid	180.1030	exempt	
Magnesium phosphide (residues calculated as phosphine)	180.375	0.1	
Methyl bromide	180.123	50.0	
Piperonyl butoxide	180.127	20.0	
Pyrethrins	180.128	3.0	
Wheat Grain Dust			
Lambda-cyhalothrin	180.438	2.0	L
Wheat, Bran			
Lambda-cyhalothrin	186.3765	0.2	L
Lambda-cyhalothrin	185.3765	0.2	L
Wheat, Flour			
Pirimiphos-methyl	185.4950	8.0	
Wheat, Fodder			
Atrazine	180.220	5.0	
Metaxyl	180.408	2.0	
Metolachlor	180.368	0.5	
Terbutryn	180.265	0.1	N
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Wheat, Fodder, Green			
Carbaryl	180.169	100.0	
Dimethoate	180.204	2.0	
Disulfoton	180.183	5.0	
Phorate	180.206	1.5	
Wheat, Forage			
Acetochlor	180.470	0.5	
Carboxin	180.301	0.5	
Chlorpyrifos	180.342	3	
Chlorsulfuron	180.405	20.0	
Diazinon	180.153	0.05	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	9.0	
2,4-Dichlorophenoxy acetic acid	180.142B	20.0	
Difenoconazole	180.1129	0.1	T
Diuron	180.106	2.0	
Etridiazole	180.370	0.1	
Halosulfuron	180.479B	0.1	
Imazalil	180.413	0.5	
Imidacloprid	180.472	7.0	L
Lambda-cyhalothrin	180.438	2.0	L
Linuron	180.184	0.5	
Metaxyl	180.408	2.0	
Methomyl	180.253	10.0	
Metolachlor	180.368	0.5	
Metribuzin	180.332	2.0	
Nitrapyrin	180.350	0.5	
Tebuconazole	180.474	0.10	
2-(Thiocyanomethylthio) benzothiazole	180.288	0.1	N
Triasulfuron	180.459	5.0	
Trichlorfon	180.198	50.0	
Wheat, Forage, Green			
Bromoxynil	180.324	0.1	

Pesticide Tolerance Commodity/Chemical
Index—Continued

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Bromoxynil	180.324C	0.1	
Cyanazine	180.307	0.1	
Metsulfuron-methyl	180.428	5.0	
Picloram	180.292	1.0	
Triadimefon	180.410	15.0	
Triadimenol	180.450	2.5	
Wheat, Gluten (Post-H in Australia)			
Fenitrothion	185.2200	15.0	
Wheat, Grain			
Acetochlor	180.470	0.02	
Atrazine	180.220	0.25	
Azinphos-methyl	180.154	0.2	
Benomyl	180.294	0.2	
Bromoxynil	180.324	0.1	
Bromoxynil	180.324C	0.1	
Carbaryl	180.169	3.0	
Carbofuran	180.254	0.2	
Carboxin	180.301	0.2	
Chlorpyrifos	180.342	0.5	
Chlorpyrifos-methyl	180.419	6.0	
Chlorsulfuron	180.405	0.1	
Cyanazine	180.307	0.1	
Diazinon	180.153	0.05	
Dicamba	180.227	0.5	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series)	180.431	3.0	
2,4-Dichlorophenoxy acetic acid	180.142B	0.5	
3',4'-Dichloropropion anilide	180.274	0.2	
Diclofop-methyl	180.385	0.1	
Difenoconazole	180.475	0.1	T
Difenoquat	180.369	0.05	
Dimethoate	180.204	0.04	N
Disulfoton	180.183	0.3	
Diuron	180.106	1.0	
Endosulfan	180.182	0.1	N
Ethephon	180.300	2.0	
Etridiazole	180.370	0.05	
Fenoxaprop-ethyl	180.430	0.05	L
Fenridazole-potassium	180.423	40.0	
Glyphosate, isopropylamine salt	180.364	5.0	
Halosulfuron	180.479B	0.1	
Imazalil	180.413	0.05	
Imazethabenz	180.437	0.1	
Imidacloprid	180.472	0.05	L
Lambda-cyhalothrin	180.438	0.05	L
Linuron	180.184	0.25	
Mancozeb	180.176	5.0	
MCPA	180.339	0.1	N
Metaxyl	180.408	0.2	
Methomyl	180.253	1.0	
Metolachlor	180.368	0.1	
Metribuzin	180.332	0.75	
Metsulfuron-methyl	180.428	0.1	
Nitrapyrin	180.350	0.1	N
Paraquat dichloride	180.205	0.05	N
Phorate	180.206	0.05	
Picloram	180.292	0.5	
Propiconazole	180.434	0.1	
Tebuconazole	180.474	0.05	
Terbutryn	180.265	0.1	N
Thiabendazole	180.242	1.0	

Pesticide Tolerance Commodity/Chemical Index

Pesticide Tolerance Commodity/Chemical Index—Continued				Pesticide Tolerance Commodity/Chemical Index—Continued			
Commodity Name/Chemical Name	CFR Cite	ppm	Type	Commodity Name/Chemical Name	CFR Cite	ppm	Type
Thifensulfuron methyl	180.439	0.05		Ethephon	185.2700	5.0	
2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N	Ethephon	186.2700	5.0	
Thiophanate-methyl	180.371	0.05		Glyphosate, isopropylamine salt.	185.3500	20.0	
Tri-allate	180.314	0.05	N	Metribuzin	186.250	3.0	
Triadimefon	180.410	1.0		Metribuzin	185.250	3.0	
Triadimenol	180.450	0.05		Picloram	185.4850	3.0	
Triasulfuron	180.459	0.02		Picloram	186.4850	3.0	
Tribenuron-methyl	180.31	0.05		Thiabendazole	186.5550	3.0	
Tribenuron-methyl	180.451	0.05		Thiabendazole	185.5550	3.0	
Trichlorfon	180.198	0.1	N	Triadimefon	185.800	4.0	
Trifluralin	180.207	0.05	N				
Wheat, Grain (Post-H)				Wheat, Straw			
Allethrin	180.113	2.0		Acetochlor	180.470	0.1	
Calcium cyanide	180.125	25.0		Atrazine	180.220	5.0	
Chloropicrin	180.1008	exempt		Azinphos-methyl	180.154	2.0	
Formaldehyde	180.1032	exempt		Benomyl	180.294	15.0	
Methylene chloride	180.1010	exempt		Bromoxynil	180.324	0.1	
Propionic acid	180.1023	exempt		Bromoxynil	180.324C	0.1	
				Carbaryl	180.169	100.0	
Wheat, Grain (Pre- and Post-H)				Carbofuran	180.254	5.0	
Malathion	180.111	8.0		Carboxin	180.301	0.2	
				Chlorpyrifos	180.342	6	
Wheat, Grain, Stored (Post-H)				Chlorsulfuron	180.405	0.5	
Methoxychlor	180.120	2.0		Cyanazine	180.307	0.1	
				Diazinon	180.153	0.05	
Wheat, Green				Dicamba	180.227	0.5	
Terbutryn	180.265	0.1	N	3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	180.431	9.0	
Wheat, Hay							
Diuron	180.106	2.0		3',4'-Dichloropropion anilide.	180.274	0.75	
Lambda-cyhalothrin	180.438	2.0	L	Diclofop-methyl	180.385	0.1	
Linuron	180.184	0.5		Difenoconazole	180.475	0.1	T
Methomyl	180.253	10.0		Difenoquat	180.369	20.0	
Metsulfuron-methyl	180.428	20.0		Dimethoate	180.204	2.0	
Tebuconazole	180.474	0.10		Disulfoton	180.183	5.0	
Thiophanate-methyl	180.371	0.1		Diuron	180.106	2.0	
				Endosulfan	180.182	0.2	N
Wheat, Milled Fractions				Ethephon	180.300	10.0	
2,4-Dichlorophenoxy acetic acid.	186.1450	2.0		Etridiazole	180.370	0.1	
Inorganic bromides resulting from fumigation with methyl bromide, ethylene dibromide, and/or 1,2-dibromo-3-chloropropane (185.3700, 186.3700).	186.3700	125.0		Fenoxaprop-ethyl	180.430	0.50	L
				Fenridazole-potassium	180.423	25.0	
Mancozeb	186.6300	20.0		Glyphosate, isopropylamine salt.	180.364	85.0	
Metalaxyl	185.4000	1.0		Halosulfuron	180.479B	0.2	
Metalaxyl	186.4000	1.0		Imazalil	180.413	0.5	
				Imazethabenz	180.437	2.0	
Wheat, Milled Fractions (Exc. Flour)				Imidacloprid	180.472	0.3	L
Chlorpyrifos	185.1000	1.5		Lambda-cyhalothrin	180.438	2.0	L
Chlorpyrifos-methyl	186.1050	30.0		Linuron	180.184	0.5	
Chlorpyrifos-methyl	185.1050	30.0		Mancozeb	180.176	25.0	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	185.1100	12.0		MCPA	180.339	2.0	
				Metalaxyl	180.408	2.0	
3,6-Dichloro-2-pyridine carboxylic acid, alkanolamine salts (of the ethanol and isopropanol series).	186.1100	12.0		Methomyl	180.253	10.0	
				Metribuzin	180.332	1.0	
2,4-Dichlorophenoxy acetic acid.	185.1450	2.0		Metsulfuron-methyl	180.428	0.3	
				Nitrapyrin	180.350	0.5	
				Phorate	180.206	0.05	
				Picloram	180.292	1.0	
				Propiconazole	180.434	1.5	
				Tebuconazole	180.474	0.10	
				Terbutryn	180.265	0.1	N
				Thiabendazole	180.242	0.1	
				Thifensulfuron methyl	180.439	0.1	
				2-(Thiocyanomethylthio) benzothiazole.	180.288	0.1	N
				Thiophanate-methyl	180.371	0.1	

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**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Tri-allate	180.314	0.05	N
Triadimefon	180.410	5.0	
Triadimenol	180.450	0.2	
Triasulfuron	180.459	2.0	
Tribenuron-methyl	180.451	0.1	
Trichlorfon	180.198	1.0	N
Trifluralin	180.207	0.05	
Wheatgrass (Forage-Fodder)			
Glyphosate and its metabolites.	180.364	200.0	
Yams			
Ametryn	180.258	0.25	
Glyphosate and its metabolites.	180.364	0.2	

**Pesticide Tolerance Commodity/Chemical
Index—Continued**

Commodity Name/Chemical Name	CFR Cite	ppm	Type
Yams (Dioscorea)			R
Paraquat dichloride	180.205	0.05	
Yams (Post-H)			
Methyl bromide	180.123	30.0	
Youngberries			
Cryolite	180.145	7.0	X
Ferbam	180.114	7.0	
Methoxychlor	180.120	14.0	
Nicotine	180.167	2.0	
Parathion	180.121	1.0	
Zineb	180.115	7.0	
Ziram	180.116	7.0	

Crop Grouping Commodities Index

Crop Grouping Commodities Index

Commodities	Crop Group Number
Achiote (see annatto seed)	19
Achira (see canna, edible)	1
Acorn squash (see squash, winter)	9
Adzuki bean (see bean (<i>Vigna</i> spp.))	6
Alfalfa (forage, fodder, straw, hay)	18
Allspice	19
Almond	14
Amaranth	4
Angelica	19
Angola bean (see pigeon pea)	6
Anise (anise seed)	19
Annatto seed	19
Annual marjoram (see marjoram)	19
Apple	11
Apple, balsam (see <i>Momordica</i> spp.)	9
Apricot	12
Arracacha	1
Arrowroot	1
Arugula	4
Asian pear (see pear, oriental)	11
Asparagus bean (see bean (<i>Vigna</i> spp.))	6
Asparagus lettuce (see celtuce)	4
Aubergine (see eggplant)	8
Australian arrowroot (see canna, edible)	1
Austrian winter pea (see pea (<i>Pisum</i> spp.) (field pea))	6
Azuki bean (see bean (<i>Vigna</i> spp.) (adzuki bean))	6
Balm	19
Balsam apple (see <i>Momordica</i> spp.)	9
Balsam pear (see <i>Momordica</i> spp.)	9
Barley	15
Barley (forage, fodder, straw)	16
Basil	19
Bay leaf (see sweet bay)	19
Bean	6
Bean (foliage)	7
Bean, velvet (forage, fodder, straw, hay)	18
Bean, yam	1
Beech nut	14
Beet	1
Beet (foliage)	2
Beetroot (see beet, garden)	1
Bell pepper (see pepper (<i>Capsicum</i> spp.))	8
Bingleberry (see blackberry)	13
Birdsfoot trefoil (see trefoil)	18
Bitter cassava	1
Bitter cassava (foliage)	2
Bitter gourd (see balsam pear)	9
Bitter melon (see <i>Momordica</i> spp.)	9
Bitter orange (see orange, sour)	10
Black caraway	19
Black cumin (see caraway, black)	19
Black pepper	19
Black raspberry	13
Black salsify	1
Black salsify (foliage)	2
Black satin berry (see blackberry)	13
Black walnut	14
Blackberry	13
Blackeyed pea (see bean (<i>Vigna</i> spp.))	6
Blero (see amaranth)	4
Blood orange (see orange, sweet)	10
Blueberry	13
Bok choy (see cabbage, Chinese (bok choy))	5
Bok choy sum (see cabbage, Chinese (bok choy))	5
Bor choy (see mustard spinach)	5
Bor tsai (see mustard spinach)	5
Bottle gourd (see gourd, edible (cucuzza))	9

Crop Grouping Commodities Index—
Continued

Commodities	Crop Group Number
Borage	19
Borecole (see kale)	5
Borekale (see kale)	5
Boy choy sum (see cabbage, Chinese (bok choy))	5
Boysenberry (see blackberry)	13
Brazil nut	14
Broad bean	6
Broad bean (foliage)	7
Broccoli (see cauliflower)	5
Broccoli	5
Broccoli raab	5
Brussels sprouts	5
Buckwheat	15
Buckwheat (forage, fodder, straw)	16
Bullace plum (see plum, Damson)	12
Bulrush millet (see millet, pearl)	15
Burdock, edible	1
Burdock, edible (foliage)	2
Burnet	19
Bush nut (see macadamia nut)	14
Butter bean (see bean (<i>Phaseolus</i> spp.) (lima bean))	6
Butternut	14
Butternut squash (see squash, winter)	9
Cabbage	5
Cajan pea (see pigeon pea)	6
Calabash gourd (see gourd, edible (cucuzzi))	9
Calabaza (see squash, winter)	9
Calaloo (see amaranth)	4
Calamondin	10
Calli (see amaranth)	4
Camomile	19
Canna, edible	1
Cantaloupe (see muskmelon)	9
Cape gooseberry (see groundcherry)	8
Caper buds	19
Caraway	19
Cardoni (see cardoon)	4
Cardoon	4
Cardamom	19
Carrot	1
Carrot (foliage)	2
Casaba (see muskmelon)	9
Cashew	14
Cassava, bitter and sweet	1
Cassava, bitter and sweet (foliage)	2
Cassia bark	19
Cassia buds	19
Catjang (see bean (<i>Vigna</i> spp.))	6
Catmint (see catnip)	19
Catnip	19
Cauliflower	5
Cavalo broccolo	5
Celeriac	1
Celeriac (foliage)	2
Celery	4
Celery cabbage (see cabbage, Chinese (napa))	5
Celery mustard (see cabbage, Chinese (bok choy))	5
Celery root (see celeriac)	1
Celery seed	19
Celtuce	4
Ceylon spinach (see spinach, vine)	4
Chayote (fruit)	9
Chayote (root)	1
Cherokee blackberry (see blackberry)	13
Cherry, sweet	12
Cherry, tart	12

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Crop Grouping Commodities Index— Continued

Commodities	Crop Group Number
Chervil	4
Chervil (dried)	19
Chervil, turnip-rooted	1
Chervil, turnip-rooted (foliage)	2
Chesterberry (see blackberry)	13
Chestnut	14
Cheyenne blackberry (see blackberry)	13
Chickasaw plum	12
Chickpea	6
Chickpea (foliage)	7
Chicory	1
Chicory (foliage)	2
Chihili cabbage (see cabbage, Chinese (napa))	5
Chili pepper (see pepper (<i>Capsicum</i> spp.))	8
China pea (see pea (<i>Pisum</i> spp.) (snow pea))	6
China star anise (see anise, star)	19
Chinese artichoke	1
Chinese broccoli	5
Chinese cabbage (bok choy)	5
Chinese cabbage (napa)	5
Chinese celery	4
Chinese celery cabbage (see cabbage, Chi- nese (napa))	5
Chinese chive	19
Chinese cucumber (see <i>Momordica</i> spp.)	9
Chinese green mustard (see cabbage, Chinese mustard)	5
Chinese green mustard cabbage (see cab- bage, Chinese mustard)	5
Chinese kale (see broccoli, Chinese)	5
Chinese lantern plant (see tomatillo)	8
Chinese leek (see chive, Chinese)	19
Chinese longbean (see bean (<i>Vigna</i> spp.))	6
Chinese mustard (see mustard greens)	5
Chinese mustard cabbage	5
Chinese okra (see gourd, edible)	9
Chinese parsley (see coriander)	19
Chinese pea (see pea (<i>Pisum</i> spp.) (snow pea))	6
Chinese pear (see pear, oriental)	11
Chinese preserving melon (see Chinese waxgourd)	9
Chinese radish (see radish, oriental)	1
Chinese spinach (see amaranth)	4
Chinese squash (see Chinese waxgourd)	9
Chinese turnip (see radish, Oriental)	1
Chinese waxgourd	9
Chinese white cabbage (see cabbage, Chinese (bok choy))	5
Chinquapin	14
Chironja (see citrus hybrids)	10
Chive	19
Choi sum (see cabbage, Chinese (bok choy))	5
Chopsuey greens (see chrysanthemum, edible- leaved)	4
Choy sum (see cabbage, Chinese cabbage (bok choy))	5
Chrysanthemum, edible-leaved	4
Chrysanthemum, garland	4
Chufa	1
Ciboule (see onion, Welsh)	3
Cilantro (see coriander)	19
Cilantro del monte (see culantro)	19
Cinnamon	19
Citrus citron	10
Citron melon	9
Citrus hybrids (<i>Citrus</i> spp.)	10
Clary	19
Clove buds	19
Clover (forage, fodder, straw, hay)	18

Crop Grouping Commodities Index— Continued

Commodities	Crop Group Number
Cluster bean (see guar)	6
Cocoyam (see taniar)	1
Cocoyam (foliage)	2
Collards	5
Common bean (see bean (<i>Phaseolus</i> spp.) (kidney bean))	6
Common millet (see millet, proso)	15
Common vetch (see vetch)	18
Congo pea (see pigeon pea)	6
Cooking pepper (see pepper (<i>Capsicum</i> spp.))	8
Coriander (leaf and seed)	19
Corn	15
Corn (forage, fodder)	16
Corn salad	4
Coryberry (see blackberry)	13
Costmary	19
Courgette (see squash, summer)	9
Cowpea (see bean (<i>Vigna</i> spp.))	6
Crabapple	11
Crenshaw melon (see muskmelon)	9
Cress	4
Christophine (see chayote)	9
Crookneck squash (see squash, summer)	9
Crowder pea (see bean (<i>Vigna</i> spp.))	6
Crown vetch (forage, fodder, straw, hay)	18
Cucumber	9
Cucuzza (see gourd, edible)	9
Cucuzzi (see gourd, edible)	9
Culantro (leaf)	19
Culantro (seed)	19
Cumin	19
Currant	13
Curry leaf	19
Cush cush yam (see yam, true)	1
Custard marrow (see chayote)	9
Daikon (see radish, oriental)	1
Damson plum	12
Dandelion	4
Darrowberry (see blackberry)	13
Dasheen	1
Dasheen (foliage)	2
Dewberry (see blackberry)	13
Dill seed	19
Dillweed	19
Dirksen thornless berry (see blackberry)	13
Dock	4
Dwarf pea (see pea (<i>Pisum</i> spp.))	6
Eddoe (see dasheen)	1
Edible burdock	1
Edible burdock (foliage)	2
Edible canna	1
Edible gourd	9
Edible-leaved chrysanthemum	4
Edible-pod pea (see pea (<i>Pisum</i> spp.))	6
Eggplant	8
Elderberry	13
Elephant garlic (see garlic, great-headed)	3
Endive	4
English pea (see pea (<i>Pisum</i> spp.))	6
English walnut	14
Escarole (see endive)	4
Estragon (see tarragon)	19
European plum (see prune (fresh))	12
Fava bean (see broad bean)	6
Fennel, common	19
Fennel, Florence	4
Fennel, Florence (seed)	19
Fennel flower (see caraway, black)	19
Fenugreek	19
Field bean (see bean (<i>Phaseolus</i> spp.))	6

Crop Grouping Commodities Index

Crop Grouping Commodities Index—
Continued

Commodities	Crop Group Number
Field pea (see pea (<i>Pisum</i> spp.))	6
Filbert	14
Finocchio (see fennel, Florence)	4
Florence fennel	4
Florence fennel (seed)	19
Flowering bok choy (see cabbage, Chinese (bok choy))	5
Flowering leek (see chive, Chinese)	19
Flowering pak choy (see cabbage, Chinese (bok choy))	5
French bean (see bean (<i>Phaseolus</i> spp.) (kidney bean))	6
French parsley (see chervil)	4
Gai choy (see cabbage, Chinese mustard)	5
Gai lon (see broccoli, Chinese)	5
Garbanzo bean (see chickpea)	6
Garden beet	1
Garden beet (foliage)	2
Garden clary (see clary)	19
Garden cress	4
Garden pea (see pea (<i>Pisum</i> spp.))	6
Garden purslane	4
Garland chrysanthemum	4
Garlic	3
Garlic chive (see chive, Chinese)	19
Gau choy (see chive, Chinese)	19
Gau tsoi (see chive, Chinese)	19
Gherkin	9
Ginger	1
Ginseng	1
Girasole (see artichoke, Jerusalem)	1
Gobo (see burdock, edible)	1
Golden pershaw melon (see muskmelon)	9
Gooseberry	13
Gooseberry, cape (see groundcherry)	8
Gourd, edible	9
Gow choy (see chive, Chinese)	19
Grain lupin (see bean (<i>Lupinus</i> spp.))	6
Grains of paradise	19
Grapefruit	10
Grasses (either green or cured)	17
Great-headed garlic	3
Greater burdock (see burdock, edible)	1
Green bean (see bean (<i>Phaseolus</i> spp.) (snap bean))	6
Green cauliflower (see cauliflower)	5
Green onion (see onion)	3
Green pea (see pea (<i>Pisum</i> spp.))	6
Groundcherry	8
Guar	6
Guar (foliage)	7
Guinea grains (see grains of paradise)	19
Guinea yam (see yam, true)	1
Hairy vetch (see vetch)	18
Hazelnut (see filbert)	14
Head lettuce (see lettuce)	4
Hechima (see gourd, edible)	9
Hickory nut	14
Himalayaberry (see blackberry)	13
Honey balls (see muskmelon)	9
Honeydew melon (see muskmelon)	9
Horehound	19
Horseradish	1
Hubbard squash (see squash, winter)	9
Huckleberry	13
Hullberry (see blackberry)	13
Husk tomato (see tomatillo)	8
Hyacinth bean (see lablab bean)	6
Hytan (see gourd, edible)	9
Hyssop	19

Crop Grouping Commodities Index—
Continued

Commodities	Crop Group Number
Indian mustard (see mustard greens)	5
Indian rice (see wild rice)	15
Indian saffron (see turmeric)	1
Indian spinach (see spinach, vine)	4
Irish potato (see potato)	1
Italian fennel (see fennel, Florence)	4
Italian fennel (seed) (see fennel, Florence (seed))	19
Jackbean	6
Jackbean (foliage)	7
Japanese artichoke (see artichokes, Chinese)	1
Japanese bunching onion (see onion, Welsh)	3
Japanese chrysanthemum (see chrysanthemum, edible-leaved)	4
Japanese greens (see mizuna)	5
Japanese medlar (see loquat)	11
Japanese mustard (see mizuna)	5
Japanese pear (see oriental pear)	11
Japanese plum	12
Japanese radish (see radish, oriental)	1
Japanese squash (see Chinese waxgourd)	9
Jerusalem artichoke	1
Jicama (see yam bean)	1
Juniper berry	19
Kai choy (see cabbage, Chinese mustard)	5
Kai lan (see broccoli, Chinese)	5
Kale	5
Kalonji (see caraway, black)	19
Kidney bean (see bean (<i>Phaseolus</i> spp.))	6
Kintsai (see celery, Chinese)	4
Kohlrabi	5
Komatsuna (see mustard spinach)	5
Kudzu (forage, fodder, straw, hay)	18
Kumquat	10
Kunchoi (see celery, Chinese)	4
Kyona (see cabbage, Chinese mustard)	5
Lablab bean	6
Lablab bean (foliage)	7
Lavacaberry (see blackberry)	13
Lavender	19
Leaf lettuce (see lettuce)	4
Leafy amaranth (see amaranth)	4
Leek	3
Leek, flowering (see chive, Chinese)	19
Lemon	10
Lemon balm (see balm)	19
Lemongrass	19
Lentil	6
Lentil (foliage)	7
Leren	1
Lespedeza (forage, fodder, straw, hay)	18
Lesser Asiatic yam (see yam, true)	1
Lettuce	4
Lima bean (see bean (<i>Phaseolus</i> spp.))	6
Lime	10
Lipstick plant (see annatto seed)	19
Lobok (see radish, oriental)	1
Lo pak (see radish, oriental)	1
Loganberry	13
Loquat	11
Lovage (leaf and seed)	19
Lowberry (see blackberry)	13
Lucretiaberry (see blackberry)	13
Lupin (foliage)	7
Lupin (forage, fodder, straw, hay)	18
Lupin (grain) (see bean (<i>Lupinus</i> spp.))	6
Lupine (see lupin)	6
Macadamia nut	14
Mace	19
Malabar cardamom (see cardamom)	19

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Crop Grouping Commodities Index— Continued

Commodities	Crop Group Number
Malabar spinach (see spinach, vine)	4
Mammoth blackberry (see blackberry)	13
Mandarin	10
Mango melon (see muskmelon)	9
Mango squash (see chayote)	9
Manioc (see cassava)	1
Manioc pea (see yam bean)	1
Marigold	19
Marionberry (see blackberry)	13
Marjoram (<i>Origanum</i> spp.)	19
Marrow (see squash, summer)	9
Marrow, vegetable (see squash, summer)	9
Marrow, custard (see chayote (fruit))	9
Mayhaw	11
Melegueta pepper (see grains of paradise)	19
Melons	9
Mexican husk tomato (see tomatillo)	8
Mexican parsley (see coriander (cilantro) (leaf))	19
Mexican water chestnut (see yam bean)	1
Mibuna (see mizuna)	5
Milk vetch (forage, fodder, straw, hay)	18
Millet	15
Millet (forage, fodder, straw)	16
Milo (see sorghum)	15
Mizuna	5
Mo qua (see Chinese waxgourd)	9
<i>Momordica</i> spp.	9
Moth bean (see bean (<i>Vigna</i> spp.))	6
Multiplier onion (see onion, Welsh)	3
Mung bean (see bean (<i>Vigna</i> spp.))	6
Muskmelon	9
Mustard cabbage (see cabbage, Chinese mustard)	5
Mustard greens	5
Mustard seed	19
Mustard spinach	5
Mysore cardamom (see cardamom)	19
Napa cabbage (see cabbage, Chinese (napa))	5
Nashi (see pear, oriental)	11
Nasturtium	19
Navy bean (see bean (<i>Phaseolus</i> spp.))	6
Nectarberry (see blackberry)	13
Nectarine	12
New Zealand spinach	4
No-eye pea (see pigeon pea)	6
Nutmeg	19
Oat	15
Oat (forage, fodder, straw)	16
Okra, Chinese (see gourd, edible)	9
Olallieberry (see blackberry)	13
Onion	3
Orach	4
Orange, sour	10
Orange, sweet	10
Oregano (see marjoram)	19
Oregon evergreen berry (see blackberry)	13
Oriental garlic (see chive, Chinese)	19
Oriental pear	11
Oriental radish	1
Oriental radish (foliage)	2
Oyster plant (see salsify)	1
Pak choy (see cabbage, Chinese cabbage (bok choy))	5
Pak tsoi sum (see cabbage, Chinese cabbage (bok choy))	5
Parsley	4
Parsley, Chinese (see coriander)	19
Parsley (dried)	19
Parsley, turnip-rooted	1
Parsnip	1

Crop Grouping Commodities Index— Continued

Commodities	Crop Group Number
Parsnip (foliage)	2
Pea (<i>Pisum</i> spp.)	6
Pea (foliage)	7
Peach	12
Pear	11
Pear, balsam (see <i>Momordica</i> spp.)	9
Pearl millet	15
Pearl millet (forage, fodder, straw)	16
Pecan	14
Peking cabbage (see cabbage, Chinese (napa))	5
Pennyroyal	19
Pepino	8
Pepper (<i>Capsicum</i> spp.)	8
Pepper, black	19
Pepper, white	19
Persian melon (see muskmelon)	9
Persian walnut (see walnut, English)	14
Pe-tsai (see cabbage, Chinese (bok choy))	5
Phenomenalberry (see blackberry)	13
Pigeon pea	6
Pigeon pea (foliage)	7
Pimento (see pepper (<i>Capsicum</i> spp.))	8
Pineapple melon (see muskmelon)	9
Pinto bean (see bean (<i>Phaseolus</i> spp.))	6
Plum	12
Plumcot	12
Pomelo (see pummelo)	10
Popcorn	15
Popcorn (forage, fodder)	16
Poppy seed	19
Pot marjoram (see marjoram)	19
Potato bean (see yam bean)	1
Potherb mustard (see mizuna)	5
Potato	1
Potato bean (see yam bean)	1
Proso millet	15
Proso millet (forage, fodder, straw)	16
Prune (fresh)	12
Prune plum (see prune (fresh))	12
Pummelo	10
Pumpkin	9
Purple arrowroot (see canna, edible)	1
Purslane, garden	4
Purslane, winter	4
Queensland arrowroot (see canna, edible)	1
Queensland nut (see macadamia nut)	14
Quince	11
Radicchio	4
Radish	1
Radish (foliage)	2
Raspberry (see blackberry)	13
Rape greens	5
Rapini (see broccoli raab)	5
Raspberry, black	13
Raspberry, red	13
Ravenberry (see blackberry)	13
Recao (see culantro)	19
Recaito (see culantro)	19
Red chicory (see radicchio)	4
Red gram (see pigeon pea)	6
Red raspberry	13
Rhubarb	4
Rice	15
Rice (forage, fodder, straw)	16
Rice bean (see bean (<i>Vigna</i> spp.))	6
Rocket salad (see arugula)	4
Roquette (see arugula)	4
Rosemary	19
Rosberry (see blackberry)	13

Crop Grouping Commodities Index

Crop Grouping Commodities Index—
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Commodities	Crop Group Number
Rucola (see arugula)	4
Rue	19
Runner bean (see bean (<i>Phaseolus</i> spp.))	6
Rutabaga	1
Rutabaga (foliage)	2
Rye	15
Rye (forage, fodder, straw)	16
Saffron	19
Sage	19
Sainfoin (forage, fodder, straw, hay)	18
Salsify	1
Salsify, black (foliage)	2
Sandpear (see pear, oriental)	11
Santa Claus melon (see muskmelon)	9
Satsuma mandarin	10
Savory, summer	19
Savory, winter	19
Seville orange (see orange, sour)	10
Scallop squash (see squash, summer)	9
Shaddock (see pummelo)	10
Shallot	3
Shawnee blackberry (see blackberry)	13
Skirret	1
Small cardamom (see cardamom)	19
Snake melon (see muskmelon)	9
Snap bean (see bean (<i>Phaseolus</i> spp.))	6
Snow pea (see pea (<i>Pisum</i> spp.))	6
Sorghum	15
Sorghum (forage, fodder, straw)	16
Sorrel (see dock)	4
Sour cherry (see tart cherry)	12
Sour orange	10
Southern pea (see bean (<i>Vigna</i> spp.))	6
Southernwood (see wormwood)	19
Soybean	6
Soybean (foliage)	7
Soybean (immature seeds) (edible-pod)	6
Spaghetti squash (see squash, winter)	9
Spanish salsify	1
Spinach	4
Spiny coriander (see culantro)	19
Sprouting broccoli (see broccoli)	5
Squash, summer	9
Squash, winter	9
Star anise	19
Stem turnip (see kohlrabi)	5
Straightneck squash (see squash, summer)	9
String bean (see bean (<i>Phaseolus</i> spp.) (snap bean))	6
Sugar beet	1
Sugar beet (foliage)	2
Sugar pea (see pea (<i>Pisum</i> spp.) (snow pea))	6
Sugar snap pea (see pea (<i>Pisum</i> spp.))	6
Sunchoke (see Jerusalem artichoke)	1
Summer savory	19
Summer squash	9
Swede (see rutabaga)	1
Sweet Alice (see anise)	19
Sweet anise (see fennel, Florence)	4
Sweet bay	19
Sweet cassava	1
Sweet cassava (foliage)	2
Sweet cherry	12
Sweet clover (see clover)	18
Sweet corn (see corn)	15
Sweet fennel (see fennel, Florence)	4
Sweet fennel (seed) (see fennel, Florence (seed))	19
Sweet lupin (see bean (<i>Lupinus</i> spp.))	6
Sweet marjoram (see marjoram)	19

Crop Grouping Commodities Index—
Continued

Commodities	Crop Group Number
Sweet orange	10
Sweet pepper (see pepper (<i>Capsicum</i> spp.)) ..	8
Sweet potato	1
Sweet potato (foliage)	2
Swiss chard	4
Sword bean	6
Sword bean (foliage)	7
Table beet (see beet, garden)	1
Tampala (see amaranth)	4
Tangelo (see citrus hybrids)	10
Tangerine (see mandarin)	10
Tangor (see citrus hybrids)	10
Tanier	1
Tanier (foliage)	2
Tansy	19
Taro (see dasheen)	1
Tarragon	19
Tart cherry	12
Teosinte	15
Teosinte (forage, fodder, straw)	16
Tepary bean (see bean (<i>Phaseolus</i> spp.))	6
Thousand-veined mustard (see mizuna)	5
Thyme	19
Tiger nut (see chufa)	1
Tomatillo	8
Tomato	8
Tree melon (see pepino)	8
Trefoil (forage, fodder, straw, hay)	18
Triticale	15
Triticale (forage, fodder, straw)	16
True cantaloupe (see muskmelon)	9
True yam	1
True yam (foliage)	2
Tsai shim (see cabbage, Chinese (bok choy)) ..	5
Tsoi sim (see cabbage, Chinese (bok choy)) ..	5
Turmeric	7
Turnip	1
Turnip (foliage)	2
Turnip-rooted chervil	1
Turnip-rooted chervil (foliage)	2
Turnip-rooted parsley	1
Ugli (see pummelo)	10
Upland cress	4
Urd bean (see bean (<i>Vigna</i> spp.))	6
U-toy (see cabbage, Chinese (bok choy))	5
Vanilla	19
Vegetable marrow (see squash, summer)	9
Vegetable pear (see chayote)	9
Velvet bean (forage, fodder, straw, hay)	18
Vetch (forage, fodder, straw, hay)	18
Vine spinach	4
Walnut	14
Watermelon	9
Wax bean (see bean (<i>Phaseolus</i> spp.))	6
Waxgourd, Chinese	9
Welsh onion	3
Wheat	15
Wheat (forage, fodder, straw)	16
White flowering broccoli (see broccoli, Chinese)	5
White lupin (see bean (<i>Lupinus</i> spp.))	6
White pepper	19
White sweet lupin (see bean (<i>Lupinus</i> spp.))	6
White potato (see potato)	1
Wild marjoram (see marjoram)	19
Wild rice	15
Wild rice (forage, fodder, straw)	16
Winter cress (see cress, upland)	4
Winter melon (see waxgourd, Chinese)	9
Winter purslane	6
Winter radish (see radish, oriental)	1

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Crop Grouping Commodities Index— Continued

Commodities	Crop Group Number
Winter savory	19
Winter squash	9
Wintergreen	19
Wong bok (see cabbage, Chinese (napa))	5
Woodruff	19
Wormwood	19
Yam, true	1
Yam, true (foliage)	2

Crop Grouping Commodities Index— Continued

Commodities	Crop Group Number
Yam bean	1
Yardlong bean (see bean (<i>Vigna</i> spp.))	6
Yellow rocket (see cress, upland)	4
Yellow sweet clover (see clover)	18
Yellow yam (see yam, true)	1
Youngberry (see blackberry)	13
Zucchini (see squash, summer)	9

Redesignation Table

At 53 FR 24666, June 29, 1988, 21 CFR Parts 193 and 561 were redesignated and recodified into 40 CFR Parts 185 and 186. The following Redesignation Table shows the relationship of the CFR section numbers formerly under Parts 193 and 561 and those sections being redesignated into Parts 185 and 186.

Old section	New section	Old section	New section
193.10	185.100	193.330	185.4650
193.15	185.150	193.331	185.4700
193.20	185.200	193.340	185.4800
193.25	185.250	193.350	185.4850
193.30	185.350	193.360	185.4900
193.40	185.500	193.370	185.5000
193.43	185.600	193.375	185.5100
193.45	185.650	193.380	185.5150
193.50	185.700	193.390	185.5200
193.60	185.750	193.400	185.5350
193.65	185.1150	193.410	185.1550
193.80	185.410	193.418	185.5450
193.83	185.800	193.420	185.5475
193.85	185.1000	193.430	185.1350
193.90	185.1200	193.440	185.5900
193.97	185.1300	193.450	185.5750
193.98	185.1250	193.460	185.6300
193.99	185.3300	193.462	185.4550
193.100	185.1450	193.463	185.2950
193.105	185.1500	193.464	185.5300
193.130	185.1650	193.465	185.1800
193.135	185.1700	193.466	185.3250
193.137	185.1850	193.467	185.3650
193.140	185.1900	193.468	185.4950
193.142	185.1750	193.470	185.5550
193.150	185.2225	193.471	185.1050
193.151	185.2250	193.472	185.1100
193.152	185.2150	193.473	185.300
193.156	185.2200	193.475	185.4100
193.160	185.2500	193.476	185.5950
193.170	185.2600	193.477	185.4350
193.180	185.2650	193.479	185.2800
193.186	185.2700	193.480	185.2275
193.190	185.2750	193.481	185.5250
193.200	185.2850	193.520	185.7000
193.210	185.2900	561.20	186.100
193.212	185.3000	561.30	186.150
193.220	185.3450	561.40	186.200
193.225	185.3475	561.41	186.250
193.230	185.3480	561.50	186.350
193.235	185.3500	561.51	186.375
193.236	185.3550	561.53	186.4975
193.240	185.3600	561.60	186.450
193.250	185.3700	561.65	186.500
193.251	185.425	561.66	186.550
193.253	185.3750	561.67	186.600
193.255	185.3800	561.70	186.700
193.260	185.3850	561.80	186.750
193.270	185.3900	561.91	186.950
193.275	185.3950	561.92	186.400
193.277	185.4000	561.93	186.800
193.280	185.4025	561.95	186.850
193.285	185.4150	561.96	186.1250
193.290	185.4200	561.97	186.1300
193.300	185.4250	561.98	186.1000
193.310	185.4300	561.99	186.1400
193.320	185.4500	561.100	186.1450
193.323	185.4400	561.110	186.1500
193.324	185.4450	561.130	186.1600
193.325	185.4600	561.140	186.1650

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Old section	New section	Old section	New section
561.145	186.1700	561.310	186.4900
561.150	186.1875	561.330	186.5000
561.160	186.1950	561.340	186.5200
561.170	186.2100	561.350	186.5350
561.180	186.2225	561.360	186.1550
561.190	186.2325	561.365	186.5400
561.191	186.2150	561.380	186.5550
561.197	186.2275	561.385	186.5600
561.200	186.2400	561.386	186.5650
561.210	186.2450	561.387	186.5700
561.215	186.2500	561.390	186.5800
561.220	186.2550	561.400	186.1350
561.225	186.2700	561.410	186.6300
561.230	186.2750	561.415	186.1750
561.232	186.2950	561.420	186.2000
561.233	186.3000	561.425	186.2050
561.234	186.3050	561.427	186.1800
561.235	186.2775	561.428	186.3250
561.240	186.3350	561.429	186.3650
561.250	186.3450	561.430	186.2800
561.253	186.3500	561.432	186.4950
561.255	186.3550	561.434	186.5100
561.260	186.3700	561.435	186.3300
561.263	186.3750	561.436	186.3400
561.268	186.3800	561.437	186.1050
561.270	186.3850	561.438	186.3200
561.273	186.4000	561.439	186.1100
561.280	186.4050	561.440	186.1850
561.282	186.4150	561.441	186.300
561.283	186.4450	561.442	186.5950
561.285	186.4575	561.443	186.4350
561.289	186.4700	561.444	186.5850
561.290	186.4750	561.445	186.5250
561.300	186.4800		
561.305	186.4850		

List of CFR Sections Affected

All changes in this volume of the Code of Federal Regulations which were made by documents published in the Federal Register since January 1, 1986, are enumerated in the following list. Entries indicate the nature of the changes effected. Page numbers refer to Federal Register pages. The user should consult the entries for chapters and parts as well as sections for revisions.

Title 40 was established at 36 FR 12213, June 29, 1971. For the period before January 1, 1986, see the "List of CFR Sections Affected, 1964–1972 and 1973–1985" published in six separate volumes.

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40 CFR	51 FR Page		51 FR Page
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154 Clarification	10391	166 Revised (effective date pending)	1902
Eff. 5–14–86	17716	Eff. 5–7–86	16844
Technical correction	26387	166.7 Heading corrected	11306
155 Eff. 5–14–86	17716	171 Clarification	30494
157 Added (effective date pending)	21286	172.1–172.11 (Subpart A) Heading added	32920
Addition eff. 10–15–86	36692	172.24 Eff. 5–14–86	17716
158.160 Eff. 5–14–86	17716	Technical correction	26387
162 Authority citation revised	6739	180 Interim policy	47240
Policy statement	19174	180.1 (h) table amended	21172, 32213
Technical correction	26387	(n) added	46858
162.2 (g)(2) amended	6739	180.3 (e)(5) amended	28228
162.6 (b)(1) amended	6739	180.33 Revised	847
(b)(5)(ii) amendment eff. 5–14–86	17716	180.34 (f)(9)(vi)(A) revised	21172
162.11 Eff. 5–14–86	17716	180.109 Revised	8497
162.16 Removed (effective date pending)	21288	180.122 Removed	46668
Removal eff. 10–15–86	36692	180.135 Removed	46665
162.41 Amended	6739	180.137 Removed	46665
162.43 Eff. 5–14–86	17716	180.138 Amended	46662
162.45 (b) amended	6739	180.140 Removed	25698
Eff. 5–14–86	17716	180.147 Removed	46662
162.160 (b)(2) amended	6739	180.147a Removed	46662
162.163 (b)(2) revision eff. 5–14–86	17716	180.147b Removed	46662
(b)(2)(ii) amendment eff. 5–14–86	17716	180.153 Table amended	46858
162.165 (a) amended	6739	180.164 Removed	1791
(a)(7) removal eff. 5–14–86	17716	180.166 Removed	1791
162.167 Eff. 5–14–86	17716	180.169 (a) table amended; (d) revised; (e) added	21173
		180.187 Removed	46662
		180.197 Removed	1791
		180.242 (a) table amended	9449
		180.251 Removed	45115
		180.287 Table amended	16846
		180.293 Table amended	4498

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180.317 Existing text designated as (a); (b) added	22078
180.319 Table amended	46668
180.320 Revised	22078
180.342 Table amended	9450
180.356 (a) heading and (b) heading removed; (c) added	15323
Technical correction	16688
180.362 Table amended	4499
Existing text designated as (a); (b) added	33900
180.364 (a) table amended	15325, 15326
180.368 (a) table revised	25697
(a) table amended	28226
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180.378 (b) table amended	21174, 28227, 36013
180.379 Table amended	26, 11308
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180.380 Table amended	11449
180.382 Existing text designated as (a); (b) added	34973
180.385 Table amended	3599, 19176
Technical correction	6536
180.397 (c) revised	5684, 34472
180.399 (a) table amended	6741
180.408 (a) table amended	45114
180.409 Revised	28228
180.410 Existing text designated as (a); (b) added	15324
180.415 Table amended	18586
180.418 Table amended	16032
180.420 Added	12146
180.421 Added	7568
Revised	39662
180.423 Added	11307
180.424 Added	6002
180.425 Added	9446
180.426 Added	11309
180.427 Added	15327
180.428 Added	12148
180.429 Added	12855
180.1001 (d) table amended	9447
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(e) table amended	44466, 44467, 44469
(d) and (e) tables amended	44468
180.1071 Added	7567
180.1072 Added	34975
180.1073 Added	44606

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